

Family Law

Eighth Edition

Jonathan Herring

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Eighth edition

Jonathan Herring

Exeter College
University of Oxford



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To Kirsten, Laurel, Jo and Darcy

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Preface

This text tries to present family law in its context. I hope readers will gain not only an understanding of what the law actually is, but also an awareness of the complex tensions in social, philosophical and political forces which surround 'family life'. This means the text not only contains much law, but also a little sociology, political theory and philosophy. Of course, a little of anything might be said to be a bad thing and the text can only give a flavour of the wide-ranging issues surrounding family life and its regulation. Still, it is hoped the reader can see that family law is not simply a set of rules cast down from up on high, but rules that have to operate in the messy world of personal relations where many people do not know what the law says, and even if they do, do not care very much about it.

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1

What is family law?

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain and evaluate how different theories seek to define a 'family'
2. Discuss the arguments for and against family life and its alternatives
3. Explain and evaluate how different theories seek to define 'family law'
4. Summarise the broad issues which underpin family law
5. Describe how the Human Rights Act 1998 affects family law and discuss the impact of its proposed repeal

1 Introduction

Families can be the scenes of some of the greatest joys, as well as some of the greatest sadnesses, that life can bring. Studies suggest that for a substantial majority of people families are more important to them than jobs or status.¹ In one survey 92 per cent of people felt very or fairly close to their families.² The interaction of law and the family therefore gives rise to questions of enormous importance to the individuals who appear before the courts and to society at large.³ In *Huang v Secretary of State for the Home Department*⁴ the House of Lords emphasised the importance of families to individuals:

Human beings are social animals. They depend on others. Their family, or extended family, is the group on which many people most heavily depend, socially, emotionally and often financially. There comes a point at which, for some, prolonged and unavoidable separation from this group seriously inhibits their ability to live full and fulfilling lives.

The importance of families to the general social good was recognised by the Government in 2014 when it announced a 'family test' for all new policies and legislation.⁵ This requires

¹ Future Foundation (1999).

² Centre for the Modern Family (2011).

³ For a remarkable history of family law during the twentieth century, see Cretney (2003a).

⁴ [2007] UKHL 11, para 18.

⁵ Department for Work and Pensions (2014a).

Government departments to assess the impact of proposed reforms on families. That is because the Government states that:

Strong and stable families, in all their forms, play an important role in our society. Families have a major impact on the life chances of individuals and strong family relationships are recognised as an important component of individual, community and national wellbeing.⁶

This chapter will consider some key questions about families: What is family law? Is family life in crisis? It will also highlight some of the most controversial issues which face family lawyers today and which will appear throughout the text. First, it is necessary to attempt a definition of a family.

2 Seeking a definition of the family

Learning objective 1

Explain and evaluate how different theories seek to define a 'family'

The notion of a 'family' is notoriously difficult to define.⁷ Many people have a stereotypical image of what the 'ideal family' is like – a mother, a father and two children. Yet this family composition is not the family form that most people will have experienced. Only 25 per cent of families in 2015 consisted of a couple with dependent children.⁸ So the image of two parents and two children as the ideal family is just that, an ideal; a powerful ideal, but not the most common family form.

It is possible to distinguish families (a group of people related by blood, marriage or adoption); a nuclear family (parents and their dependent children); extended families (the nuclear family plus the wider kin, e.g. grandparents); kinships (the larger family groups related by blood or marriage); and households (a group of people sharing accommodation).⁹ David Archard suggests a family is 'a multigenerational group, normally stably co-habiting, whose adults take primary custodial responsibility for the dependent children'.¹⁰ But his requirement that a family must contain children is controversial. Do you cease to be a member of a family once you leave home? One of the difficulties in defining 'family' is the power of the definition and especially the stigma that follows from denying that a certain group of people is a family.¹¹ Hence the extensive campaigning to have gay and lesbian relationships recognised as family.

'Family' is presently a term that is of limited legal significance. As we shall see in this text, much effort has been made in attempting a legal definition of 'marriage', 'parent' and 'parent-hood', but relatively few cases have defined 'a family'. How might the law define a family?¹²

A The person in the street's definition

In an attempt to define a 'family', the law could rely on common usage: how would the person in the street define a family? The difficulty with this is that although there may be some cases where everyone would agree that a particular group of people is a family, there are many

⁶ Family and Childcare Trust (2016) found that in the first year only Government departments were able to identify an occasion where the policy had had any impact.

⁷ Herring, Probert and Gilmore (2015: ch. 1).

⁸ National Statistics (2015b).

⁹ Day Sclater (2000). See also Archard (2003: ch. 2) for further discussion.

¹⁰ Archard (2010: 76).

¹¹ Douglas (2005: 3).

¹² See Diduck (2005) for an excellent discussion of the changing legal understanding of families.

other cases where, when asked, people would answer 'I don't know', or there would be conflicting answers, reflecting different values, religious beliefs or cultural perspectives. When children have been asked to define families they have revealed a broad understanding of the term including those people they feel close to and even included pets.¹³

B A formalistic definition

The law could rely upon a formalistic approach.¹⁴ Such definitions would focus on whether the group of individuals in question has certain observable traits that can be objectively proved. These definitions often focus on criteria such as marriage or the existence of children. The benefit of formalistic definitions is their clarity and ease of proof. The approach therefore has a strong appeal to lawyers. The definitions avoid involving the court in time-consuming or unnecessarily controversial questions.

The main disadvantage is that the approach can be rather technical. If the group of people failed to meet the formal requirements of the definition even though they functioned as a family, should they be denied the status of family? For example, some people argue that it would be bizarre if the law treated an unmarried couple who had lived together for 20 years and raised children together any differently from a married couple who had been married 20 years. Should the fact that the married couple undertook a short ceremony 20 years previously make a difference? Those who take such a view may prefer a definition that considers the function the relationship performs, rather than its technical nature.

C A function-based definition

A function-based definition¹⁵ suggests that a group of people perform certain functions then the law can term them a family. In other words, the approach focuses on what they do, rather than what they are. This has led David Morgan to argue that although we may not be able to define what a family is, we can identify what 'family practices' are.¹⁶ If such an approach were to be adopted, the law might describe the functions of a family as: providing security and care for its members; producing children; socialising and raising of children; and providing economically for its members. However, whether a family needs to fulfil all or only some of these functions is controversial. Some have argued that a family's existence should be focused around children.¹⁷ Others suggest that a sexual relationship, or a potential sexual relationship is essential if families are to be distinguished from friendship.¹⁸ Still others have argued that caring is what is central to a family.¹⁹ Alison Diduck has written:

'family' is one way to describe forms or expressions of intimate or private living based upon care and interdependence. And so, family could include a couple, of the same or different sexes with or without children, co-habiting with or without legal formality, or, indeed not co-habiting at all.

¹³ Smart, Neale and Wade (2001: 52).

¹⁴ See Glennon (2008) and Leckey (2008) for an informative analysis.

¹⁵ The term 'functionalist definition' would be neater, but within sociological writing the term 'functionalism' has become associated with one particular view of the function of a family: a highly traditional one.

¹⁶ Morgan (2011).

¹⁷ Archard (2012).

¹⁸ See Lord Clyde in *Fitzpatrick v Sterling Housing Association* [2000] 1 FCR 21 at p. 35. But see Lind (2011) for an excellent discussion of how friendship needs to be taken more seriously.

¹⁹ See Herring (2013a).

Family also means an adult caring for a child or other dependent relative. What makes a relationship familial to me then is not necessarily a biological, legal, or conjugal connection, rather it is what people do in it, it is a relationship characterized by some degree of intimacy, interdependence, and care.²⁰

Opponents of a function-based approach claim that it presupposes a particular role for a family, but not everyone will agree on what that role is. Hence, it is argued that it is only because of the dominant position religion has held in our society that a sexual element is seen as important to the definition of marriage.²¹ There is also the problem of proof. Determining what the group of people does is normally far harder than determining whether or not they have undergone a formal ceremony of some kind. Others complain that a function-based approach ignores some of the things that hold families together, such as shared values, memories, and a sense of identity, which are not captured by the 'doings' of a family.²²

D An idealised definition

Another approach suggests that a workable definition of what a family is does not exist, but that a definition of an idealised family can be provided. In our society many would see this as a married couple with children.²³ The difficulty is that this idealised picture has become tarnished through evidence of domestic violence; abuse of children within the home; and the oppression of women within marriage. Further, the approach also assumes that what is the ideal family for one person must be the ideal for all. Rather than the law promoting a particular ideal of family life, we should let each person work out for themselves what family form works for them. Also, in a culturally diverse nation such as ours it would be impossible to agree on an idealised family form that would be acceptable to everyone.

E A self-definition approach

This approach would state 'you are a family if you say you are'. Eekelaar and Nhlapo²⁴ have suggested that societies are gradually accepting an increasing variety of family forms and are reaching the position that a family is any group of people who regard themselves as a family. The benefit of such an approach is that it does not stigmatise people as 'not family' unless they do not wish to be regarded as a family.

F Do we give up?

So there are severe difficulties in defining families. There is little agreement within society over exactly what constitutes family or what the purposes of a family are. Nowadays it is generally accepted that family life has been transformed with cohabitation, divorce, children born through assisted reproduction, increased acceptance of same-sex relationships all leading to a more fluid and diverse understanding of what family life is about.²⁵ Does this lead us to throw up our hands and say there is no such thing as a family, as so many sociologists do? The argument for not doing so is that most people regard their family (whatever they mean by

²⁰ Diduck (2011).

²¹ Herring (2014a).

²² McKie and Callan (2012).

²³ Morgan (2007).

²⁴ Eekelaar and Nhlapo (1998: ix).

²⁵ Smart (2014).

that) as of enormous importance, and indeed families are seen as having great social significance. Promoting the family is one of the few political ideals with which most people agree.²⁶

What this demonstrates is that there are dangers in seeking to promote family life or talk about family law unless we are clear what it is we mean by families. We need to be precise about what aspect of the family a law is seeking to promote, or which group of people is intended to be covered by a particular law. Indeed, it may be that some parts of family law will apply to some families and not to others. It is not that some groups are family and some are not, but that some family groups may need the benefits of a particular law and others not. What is clear is that the definition of a family may change over time.

G Discussion of how the law defines families

The legal definition of families has changed over the decades. In 1950 in *Gammans v Ekins*,²⁷ talking of an unmarried couple, it was stated: 'to say of two people masquerading as these two were as husband and wife, that they were members of the same family, seems to be an abuse of the English Language'. This approach would no longer represent the law.

The leading case on the meaning of family in the law is *Fitzpatrick v Sterling Housing Association Ltd*,²⁸ a decision of the House of Lords. Although their Lordships were careful to explain that they were just considering the meaning of family in the Rent Act 1977, the decision will be highly influential in defining family in other contexts.

CASE: *Fitzpatrick v Sterling Housing Association Ltd* [2000] 1 FCR 21

The case concerned a Mr Thompson and a Mr Fitzpatrick, who had lived together in a flat for 18 years until Mr Thompson died. Under the Rent Act 1977 Mr Fitzpatrick could succeed to the tenancy of the flat, which had been in Mr Thompson's name alone, if he was a member of Mr Thompson's family. So, the core issue was whether a gay or lesbian couple could be a family. By a three to two majority the House of Lords held that Mr Thompson and Mr Fitzpatrick were a family. The majority accepted that the meaning of family is not restricted to people linked by marriage or blood. Lord Slynn suggested that the hallmarks of family life were 'that there should be a degree of mutual inter-dependence, of the sharing of lives, of caring and love, or commitment and support'.²⁹ He later added that the relationship must not be 'a transient superficial relationship'.³⁰ Applying these criteria to the couple in question, they were certainly family members. Mr Fitzpatrick had cared for Mr Thompson during the last six years of his illness. Lord Clyde, unlike the others in the majority, thought that it would be difficult for a couple to show that they were a family unless there was an active sexual relationship or the potential for one.³¹ He felt that the sexual element was important if a distinction was to be drawn between families and acquaintances. The dissenting judges argued that the paradigm of the family was a legal relationship (e.g. marriage or adoption) or by blood (e.g. parent-child). As the couple did not fall into these definitions, nor did they mirror them, they could not be regarded as a family, although the minority added that they believed Parliament should consider reforming the law so that a survivor of a gay or lesbian relationship could take on a tenancy.

²⁶ Edwards and Gillies (2012).

²⁷ [1950] 2 KB 328 at p. 331.

²⁸ [2000] 1 FCR 21.

²⁹ [2000] 1 FCR 21 at p. 32.

³⁰ [2000] 1 FCR 21 at p. 35.

³¹ [2000] 1 FCR 21 at p. 47.

In *Mendoza v Ghaidan*³² it was held that a same-sex couple were living 'as [the tenant's] husband or wife' for the purposes of para 2(2) of Sch 1 to the Rent Act 1977, which lists those entitled to succeed to a statutory tenancy. Relying on the Human Rights Act 1998 the House of Lords interpreted the paragraph to read 'as if he or she were his wife or husband' and held that this would cover long-term same-sex partners. In *Joram Developments Ltd v Sharratt*³³ a 24-year-old man and a 75-year-old woman shared a flat, enjoying each other's company and living communally, although there were no sexual relations. The House of Lords was willing to say they shared a household, but not that they were members of a family.

So, to summarise the law's approach to defining a family, the law does not restrict the definition of family life to those who are married or those who are related by blood. It is willing to accept that other less formal relations can be family if they can demonstrate a sharing of lives and degree of intimacy and stability. However, it would be wrong to say that the law takes a pure function-based approach because if a couple are married they will be regarded as a family, even though their relationship is not a loving, committed, or stable one.

The law, therefore, in defining families, uses a combination of a formalist and function-based approach. Despite these developments recognising a variety of family forms, it can be argued that there is a hierarchy of families in family law: the top position being taken by married couples, with civil partners, then unmarried heterosexual couples and then unpartnered same-sex couples below them.³⁴ Certainly the closer a relationship is to the 'ideal' of marriage the more likely it is to be recognised as a family.

H The Government's definition of family

The Government's 'family test',³⁵ which was mentioned in the previous section, has a very broad understanding of families as including:

- couple relationships (including same-sex couples) including marriage, civil partnerships, co-habitation and those living apart, together;
- relationships in lone parent families, including relationships between the parent and children with a non-resident parent, and with extended family;
- parent and step-parent to child relationships;
- relationships with foster children, and adopted children;
- sibling relationships;
- children's relationship with their grandparents;
- kinship carers; and
- extended families, particularly where they are playing a role in raising children or caring for older or disabled family members.

In producing this list the Government has avoided using a single criterion (e.g. blood ties) and seems to have relied on a broad range of different ways of understanding the family. This recognises the diverse range of being and doing family life in Britain today.

³² [2004] UKHL 30.

³³ [1979] 1 WLR 928.

³⁴ Bailey-Harris (2001c).

³⁵ Department for Work and Pensions (2014b).

I New families?

Some commentators believe that in the past few decades we have witnessed some fundamental changes in the nature of families.³⁶ Others argue that family life has been in constant flux across the centuries and contemporary changes are no different from the changes in centuries past.³⁷ Certainly some current statistics make dramatic reading.³⁸

KEY STATISTICS

- People are now marrying at an older age; the rate of marriage is dropping; and there are projections that fewer and fewer people will marry. In 2015, 66.8% of families in the United Kingdom involved a married couple or civil partners.
- Increasingly people are co-habiting outside of marriage. In 2015 in the United Kingdom 17.1% of households involve co-habiting couples.
- Living alone is an increasingly popular option with 7.7 million people living on their own, 28.5% of all households.
- In 1971, 91.6% of births in England and Wales were within marriage or civil partnership; by 2015 this had decreased to 52.3%. An increasing proportion of children live in lone-parent households. In 2015, 24.5% of households with dependent children were headed by a single parent.
- Same-sex relationships are increasingly acceptable. In 2015 it was estimated there were 61,000 families consisting of a same-sex couples who were married or in civil partnerships and a further 90,000 same-sex co-habiting couples.
- In the 1970s and 1980s there were sharp increases in the rate of divorce. In recent years the divorce rate appears to have levelled off, and even slightly declined. However, current estimates are that 42% of marriages end in divorce.

There are some who believe that such statistics indicate that families are in crisis. Typical of such a view is the following statement of the Conservative Party's Centre for Social Justice:³⁹

A strong, successful and cohesive Britain needs strong families. Family stability in Britain has been in continuous decline for four decades. Since the 1970s there has been a decline in marriage. Over the same period there has been a marked increase in the number of lone parents, with a quarter of all children now growing up in single parent households. A further one in four children are born to cohabiting couples. Around one in ten families with dependent children are stepfamilies. Sadly, 15 per cent of all babies are born and grow up without a resident biological father, and seven per cent are born without a registered father on their birth certificate. Britain has the highest divorce rate and highest teenage pregnancy rate in Europe, with the teenage pregnancy rate actually rising between 2006 and 2007 . . . Tragically, at least one in three children will experience family breakdown, in the form of parental separation, by age 16.

To many, however, such views are 'old fashioned'. Certainly, there has been a notable shift in public attitudes in these areas. In the British Social Attitudes Survey 2013⁴⁰ only 12 per cent of people thought that sex outside of marriage was always or mostly wrong; the figure in 1984 had

³⁶ Silva and Smart (1999).

³⁷ Fox Harding (1996).

³⁸ These statistics are all taken from Office for National Statistics (2015b and 2016a).

³⁹ Centre for Social Justice (2010).

⁴⁰ National Centre for Social Research (2013).

been 28 per cent. Only 42 per cent of those questioned thought that parents ought to marry before having a child. Only 22 per cent thought sex between people of the same sex was always wrong. In 2015 60 per cent of those questioned supported same-sex marriage.⁴¹ That is a notable rise from the 47 per cent support in 2007. However, it would be wrong to assume that in all areas of family life there has been a liberalisation of attitudes. When asked if it was wrong for a married person to have sexual relations with someone other than their partner 63 per cent say that it is 'always wrong'. That is an increase from the 58 per cent who thought this in 1984.

Those dismayed at these statistics commonly refer to the need to promote 'family values'.⁴² But that term is normally used to promote a particular agenda: stable marriages; gendered division of roles; the confinement of sexuality to the married heterosexual unit; and the support of these patterns through Government policy.⁴³ Alison Diduck has questioned that claim and suggested that when people mourn the loss of the traditional family they are in fact grieving for the loss of the values of loyalty, stability, co-operation, love and respect, rather than the traditional image of the married couple with children.⁴⁴ Others speak of the 'new family', where the traditional notions of family have been cast aside to make room for multifarious forms of family life. So, whether family life is in crisis or simply undergoing change is a matter for debate.⁴⁵

Anthony Giddens⁴⁶ suggests that there has been a fundamental shift in the nature of intimate relationships. He suggests that today the typical relationship is one

entered into for its own sake, for what can be derived by each person from a sustained association with another; and which is continued only in so far as it is thought by both parties to deliver enough satisfaction for each individual to stay within it.

He describes this as a 'pure relationship'. This is a highly individualised concept of relationships in which relationships are appreciated by people only in so far as they give them what they want.⁴⁷ This, if it is correct, can be regarded as a symptom of individualism.

TOPICAL ISSUE

The growth of individualism

Some sociologists believe family life is being affected by an increase in individualisation, with personal development being a key aspect of people's lives.⁴⁸ Elisabeth Beck-Gernsheim explains the individualisation thesis in this way:

On the one hand, the traditional social relationships, bonds and belief systems that used to determine people's lives in the narrowest detail have been losing more and more of their meaning . . . New space and new options have thereby opened up for individuals. Now men and women can and should, may and must, decide for themselves how to shape their lives – within certain limits, at least.

On the other hand, individualization means that people are linked into [social] institutions. . . these institutions produce various regulations. . . that are typically addressed to individuals rather

⁴¹ National Centre for Social Research (2015).

⁴² For a discussion of the difficulty in finding agreed 'family values' in today's society, see Carbone (2000).

⁴³ Diduck (2003).

⁴⁴ Diduck (2003: 23).

⁴⁵ Howard and Wilmot (2000).

⁴⁶ Giddens (1992: 58).

⁴⁷ For arguments against such increased individualism, see Eekelaar and Maclean (2004).

⁴⁸ Beck (2002); Daly and Scheiwe (2010).

than the family as a whole. And the crucial feature of these new regulations is that they enjoin the individual to lead a life of his or her own beyond any ties to the family or other groups – or sometimes even to shake off such ties and to act without referring to them.⁴⁹

She argues that individualism has led to a 'detraditionalization' of family life with people abandoning the traditional obligations to one's family or spouse and taking on informal relationships which have looser obligations. People value being free to move away from relationships they no longer find fruitful and to move on to new relationships. This, it is said, explains why we have fewer people wishing to be tied into marriage; higher rates of divorce; and less family care for older people. Individualisation also enables people to move on from the assumptions about the roles of husband, wife, father or mother and develop their own understandings of their relationships.

Not everyone accepts the individualisation argument.⁵⁰ To some, such as Neil Gross, the thesis fails to acknowledge that many people still do feel obligations to their family and spend much time caring for them.⁵¹ This is shown in the way people still leave their money on death primarily to family members, rather than close friends.⁵² Most notably parents feel strong obligations to care for their children and do not feel free to move on if the relationship is not working out.⁵³ People are profoundly committed to their children and those they are close to. Lewis has argued that although individualism is a significant influence in many people's lives, it should not be thought that this means that people do not value commitment. Rather this commitment is negotiated and the result of 'give and take' within a relationship. This means that the value of the relationship is found by the couple themselves, rather than in the form it takes. In other words, people no longer feel there are social expectations on how relationships should develop (e.g. that they should lead to marriage).⁵⁴ Rather, people develop their own relationships in their own way. Although, as we shall see shortly, despite people's purported views, it seems the traditional models of male and female roles in relationships still have a strong hold, at least in heterosexual relationships.

As the statistics indicate, the nature of family life is certainly undergoing a change. Julia Brennan⁵⁵ suggests we are moving towards 'beanpole' families, with people having few children, fewer siblings and living longer. Geoff Dench and Jim Ogg have suggested that we are experiencing a dramatic shift from the traditional model of 'mother–father–child' family to one based on 'mother–grandmother–child', with fathers (and fathers' sides of the family) becoming irrelevant for many children. They argue:

We can see a clear tendency at the moment for matrilineal ties (through the mother) to become the more active, while patrilineal, through the father, may often be very tenuous or even non-existent . . . [There is now] a growing frailty in ties between parents. . . an increasing marginalisation of men, and of ties traced through men, and a stronger focusing of families around women.⁵⁶

⁴⁹ Beck (2002: ix).

⁵⁰ Chambers (2014: 38).

⁵¹ Gross (2005).

⁵² Douglas (2015).

⁵³ Smart (2007a) and Eekelaar (2009).

⁵⁴ Lewis (2001b); Eekelaar and Maclean (2004).

⁵⁵ Brannen (2003).

⁵⁶ Dench and Ogg (2002: x–xiii).

Certainly there has been a dramatic increase in the extent to which child care is undertaken by grandparents, so that now four in five pre-school children are to some extent cared for by grandparents.⁵⁷ Also there has been an increasing number of children living apart from their fathers. As the Centre for Social Justice⁵⁸ notes:

A teenager sitting their GCSEs is more likely to own a smart phone than live with their father.

However, contrary to the views of Dench and Ogg, others have argued we are witnessing a significant change in family life because fathers are seeking to play an increasing role in the lives of their children.⁵⁹

TOPICAL ISSUE

New men, old fathers?

The role of fathers today has become a major issue.⁶⁰ Traditionally the family could be seen as a central way in which sex roles were created and reinforced.⁶¹ Women were to be bearers and carers of children and other dependants. Men were to be providers of money and food. The woman's role and place was in the home. The man's domain was in the 'real world' of commerce and business.⁶²

This is now changing, although quite how is unclear.⁶³ There certainly appears to be an increased acceptance that the traditional model of the family is not how things should be. In the 2013 British Attitude Survey only 13 per cent agreed that 'a man's job is to earn money; a woman's job is to look after the home and family', 43 per cent of people had agreed with that statement in 1984.⁶⁴ Surprisingly, perhaps, of teenagers questioned, 21 per cent of boys believed women should adopt a traditional role.⁶⁵ In 2013 a survey indicated 70 per cent of men thought there was a stigma attached to being a 'stay at home dad'.⁶⁶ In a 2015 survey, 47 per cent of fathers reported feeling that society did not value fatherhood.⁶⁷

Most people accept that there has been a change in public perception about what is expected of a 'good father'. Even though attitudes have changed⁶⁸ it is unclear how much this has affected the practice of fathering.⁶⁹ Indeed it seems many men *increase* their hours at work on becoming a father.⁷⁰ Looking at the new paternity leave of two weeks given to fathers following the birth of a child, a recent study found that only 50 per cent of fathers took the full two weeks available.⁷¹ Less than 20 per cent took up the right to claim more than that.⁷²

⁵⁷ For further discussion see Chapter 12.

⁵⁸ Centre for Social Justice (2016).

⁵⁹ Collier (2010); Fatherhood Institute (2008).

⁶⁰ Collier (2005, 2007); Jordan (2009).

⁶¹ Collier and Sheldon (2008).

⁶² Collier (2010).

⁶³ Featherstone (2009 and 2010a).

⁶⁴ Park *et al.* (2013).

⁶⁵ Park, Phillips and Johnson (2004).

⁶⁶ Dugan and Mesure (2013).

⁶⁷ Centre for Social Justice (2016).

⁶⁸ National Centre for Social Research (2013).

⁶⁹ Featherstone (2009).

⁷⁰ McGill (2014).

⁷¹ Smeaton (2006). See further Weldon-Johns (2011).

⁷² According to Thompson *et al.* (2005: viii) only one in five fathers altered their work patterns following the birth of a child.

The TUC⁷³ found in 2016 that on average just 64 per cent of mothers with children aged up to the age of four are in paid employment, compared to 93 per cent of fathers with pre-school age children. This is not solely down to 'ideological reasons' based on the 'natural role' of the mother. The income of men in employment typically exceeds that of women and so it makes 'economic sense' for the woman to reduce her employment hours.

Many couples seek to ensure that there is an equal sharing of household tasks and child care. However, most fail, and in heterosexual couples women still end up performing the clear majority of household labour and child care.⁷⁴ Even in cases where both partners work more than 48 hours a week, only 20 per cent of women said their partner had the main responsibility for the washing and the cooking.⁷⁵ As the editors of the British Social Attitudes Survey report:

[A]ctual behaviour at home has not caught up with changing attitudes. Women still report undertaking a disproportionate amount of housework and caring activities, spending an average of 13 hours on housework and 23 hours caring for family members each week, compared with eight and 10 hours respectively for men.⁷⁶

A significant study in the role of the modern father found that, although the majority of fathers were spending more time with their children, their care was often mediated through the mother. In other words, the mother enabled the care, for example, by supervising it, or suggesting what the father might do with the child.⁷⁷ Further, there is good evidence of many fathers 'cherry picking' the fun parts of child care (e.g. playing with the child), leaving the more mundane roles to mothers.⁷⁸ Perhaps this is indicated by a survey of children who were asked 'Who understands you best?': 53 per cent said 'mum'; 19 per cent said a best friend and only 13 per cent said 'dad'.⁷⁹ In any event, an optimist may hope that we are seeing the start of an acceptance that the raising of children should be undertaken equally by men and women. The image of fathers in the law has certainly changed, with Sheldon and Collier noting that

the image of unmarried fathers as unworthy, irresponsible and disengaged has been increasingly supplemented, if not entirely supplanted, by a very different depiction of unmarried fathers: as a discriminated group who are often deeply committed to their children yet find themselves denied access to them, being left unfairly dependent on the whims of sometimes hostile mothers.⁸⁰

The extent to which this is a truthful representation will be considered further in Chapter 10.

Evidence concerning the importance or otherwise of a father figure is in dispute.⁸¹ Studies showing the success of lesbian couples in raising children together may suggest that, although there may be a benefit from having two or more people sharing the load of parenting and providing the child with a variety of input, whether they happen to be male or female does not matter.⁸² Others, however, believe there is something unique that a male parent has to offer.⁸³

⁷³ Trades Union Congress (2015).

⁷⁴ Van Hooff, (2013); Herring (2013: ch. 4).

⁷⁵ Family and Parenting Institute (2009).

⁷⁶ Park *et al.* (2013).

⁷⁷ Lewis and Welsh (2006); Welsh *et al.* (2004).

⁷⁸ Sullivan (2013); Featherstone (2009: 34).

⁷⁹ ICM (2004).

⁸⁰ Collier and Sheldon (2008: ch. 6).

⁸¹ Maccullum and Golombok (2004).

⁸² Golombok (2015).

⁸³ Hauari and Hollingworth, K (2010).

Not only has the image of what makes a 'good father' changed, so too has the notion of what makes a 'good mother'.⁸⁴ There has been an increased responsibility placed on parents if their children behave badly⁸⁵ and it has been mothers in particular who have been penalised for the misbehaviour of their children.⁸⁶ Certainly the acceptability, and even necessity, of 'working mothers'⁸⁷ has increased.⁸⁸ During the last few years we have seen significant steps being taken by the Government to facilitate 'working motherhood': improvements in the provision of child care (although it is still inadequate in many areas); an increase in provision for maternity leave;⁸⁹ much effort to encourage lone parents to take up employment; and the development by companies of 'family friendly policies' for their staff.⁹⁰ Despite this, there are enormous pressures on mothers seeking to combine their paid and caring work.⁹¹ Especially so, now that we live in the era of the 'domestic goddess'.

Sylvia Hewlett⁹² argues there is a battle for motherhood. Mothers are finding the tension between a desire to maintain a career and to have children complex. She notes that 59 per cent of Britain's top female executives do not have children. Among professional women in the US 42 per cent do not have children. One study estimated that in the UK a third of graduate women will not have children.⁹³ The 'work-life balance' is seen as an enormous tension for many women especially.⁹⁴ Women balancing work and care face the danger of only just coping to do both. They manage just to keep their jobs, while struggling to put in the expected hours and being overlooked for promotion due to their other commitments; while also feeling that the care provided to their children is only just good enough.⁹⁵ These issues are made all the harder for the 'sandwich generation', a term used to refer to those who are caring for their children and parents at the same time.⁹⁶

3 Should family life be encouraged?

Learning objective 2

Discuss the arguments for and against family life and its alternatives

Most people regard families as beneficial. Indeed, the Universal Declaration of Human Rights proclaims that the family is 'the natural and fundamental group unit of society'. However, there are those who oppose families.⁹⁷ The benefits and disadvantages of family life will now be briefly summarised.

⁸⁴ For a discussion of the idealisation of mothers, see Cain (2011); Herring (2008a).

⁸⁵ Kaganas (2010a).

⁸⁶ Featherstone (2010a). See Hale (2011b) for an excellent discussion of responsibilities and families.

⁸⁷ The idea that mothers who are not in paid employment are not working is, of course, false.

⁸⁸ See the discussion in Churchill (2008).

⁸⁹ See Work and Families Act 2006. However, there is still ample evidence of discrimination against workers who become pregnant: Adams, McAndrew and Winterbrotham (2005).

⁹⁰ Lewis (2009); James (2009).

⁹¹ Gatrell (2005).

⁹² Hewlett (2003).

⁹³ Leapman (2007).

⁹⁴ James and Busby (2011).

⁹⁵ Golyner, O. (2015).

⁹⁶ Grundy and Henretta (2006).

⁹⁷ Barrett and MacIntosh (1991).

DEBATE

Is family life good?

Arguments in favour of family life

1. Emotional security. Family members can provide crucial emotional support and care for each other. Parents can furnish the love and security that children need as they are growing up. Several studies have sought to ascertain whether there are links between a happy family life and well-being. It is difficult to establish this. It does seem that being in a stable relationship is linked to good health. Men in particular do less well on well-being standards if they single, as compared with whether they are in a relationship.⁹⁸ The Office for National Statistics⁹⁹ asked people to rate satisfaction with their life on a scale of 0–10. Only 3.4% of married couples rated themselves low (with a score of 0–4). A similar figure (3.9%) of cohabitants so rated themselves, but notably more single people (6.9%) or divorced or separated or widowed people (11.9%) gave themselves a low rating. Similarly at the top end, 32.2% of married people and 26.1% of cohabitants gave themselves a high mark for life satisfaction (9–10) compared with 27.7% of single people and 18.4% of divorce or separated people. We cannot conclude from such studies that marriage makes people happier. It may be more happy people marry or cohabit.
2. Families can be regarded as essential to the development of people's identity and to the pursuit of their goals in life. Similarly, families enable children to develop their own characters and personalities.
3. The advantages of family life are not limited to the benefits received by the members themselves. Families benefit the state. The government's 'family test' is an acknowledgement of the importance to the state of family life. Families are seen as promoting social cohesion and having a stake in education and public services.
4. The family can also be supported as an institution which protects people from powerful organisations within the state.¹⁰⁰ It is harder for the state to misuse its powers against groups of people living together, than to oppress individuals living alone.
5. While not, perhaps, a ringing endorsement of families, David Archard in his analysis concludes: 'In favour of the family is the simple and undeniable fact that it is impossibly hard to think of any other social institution that could do as good a job of protecting children from their natural vulnerability and dependence on adults.'¹⁰¹

Arguments against families

1. A major concern over families is the level of abuse that takes place against the weakest members. Levels of domestic violence and familial child abuse are strikingly high.¹⁰² Certainly, behind the screen of 'respectable family life' appalling abuse of children and women has occurred. Whether the amount of interpersonal violence would decrease if there were no families may be open to doubt.

⁹⁸ Ploubidis *et al.* (2015).

⁹⁹ Office for National Statistics (2015a).

¹⁰⁰ Mount (1982: 1).

¹⁰¹ Archard (2010: 100).

¹⁰² See Chapter 7.

2. There is a major concern that families are a means of oppression of women. Delphy and Leonard argue:

We see men and women as economic classes with one category/class subordinating the other and exploiting its work. Within the family system specifically, we see men exploiting women's practical, emotional, sexual and reproductive labour. For us 'men' and 'women' are not two naturally given groups, which at some point in history fell into a hierarchical relationship. Rather the reason the two groups are distinguished socially is because one dominates the other in order to use its labour.¹⁰³

The argument is not necessarily that every family involves oppression, but that the structure of family life too readily enables oppression to occur.

3. Barrett and MacIntosh¹⁰⁴ argue that families encourage the values of selfishness, exclusiveness and the pursuit of private interest, which undermine those of altruism, community and the pursuit of the public good. They insist: 'The world around the family is not a pre-existing harsh climate against which the family offers protection and warmth. It is as if the family has drawn comfort and security into itself and left the outside world bereft. As a bastion against a bleak society it has made that society bleak.'¹⁰⁵ If, rather than spending time on DIY and gardening, family members spent time on community projects, would society be a better place?
4. The breakdown of family life carries major social costs. In 2015 it was estimated that the collapse of family relationships cost £47 billion.¹⁰⁶ However, if there were no families there would be added expense for the state of having to care for those currently cared for by families.

Questions

1. *What, if anything, is good about family life? Are those goods found in all families?*
2. *Imagine we had a completely different society. What forms and structures of intimate relationships could be possible? Would they be better or worse than we currently have?*

Further reading

Read Herring (2010c) and Fineman (2004) for a discussion of whether family law should be arranged around caring relationships, rather than sexual ones.

A Proposing new visions for families

If the law and society were to attempt to promote a radically different form of family life, what might that be?

1. Martha Fineman has suggested that we should view the carer-dependant¹⁰⁷ relationship as the core element of a family.¹⁰⁸ She is therefore seeking to move away from seeing the

¹⁰³ Delphy and Leonard (1992: 258).

¹⁰⁴ Barrett and MacIntosh (1991).

¹⁰⁵ Barrett and MacIntosh (1991: 80).

¹⁰⁶ Relationships Foundation (2015).

¹⁰⁷ Although see Herring (2007a) for an argument that the distinction between carer and cared for is not straightforward.

¹⁰⁸ Fineman (2004 and 2011).

sexual relationship between a man and a woman as the core element of family life and instead is focusing on dependent relationships.¹⁰⁹ It is these caring relationships which are of real value to society, certainly more so than a couple having just a sexual relationship. Adopting such an approach I have argued in favour of a 'sexless family law':¹¹⁰

The way ahead is to focus on care, rather than sex. Caring relationships are the ones that need promoting through family law, because they are the relationships that are key to the well-being of society. Caring relationships are the ones that can create vulnerability to abuse and should be the focus of protection. It is in caring relationships that the law is [needed] to remedy the disadvantages that flow from [them]. . . In short, family law needs to be less sexy and more careful.¹¹¹

This kind of approach would include relationships which are not currently covered by family law, such as a daughter caring for her elderly father, to fall within it. It might also mean that some relationships currently within family law, a married couple with no children for example, would fall outside it.¹¹² Such approaches, however, face the difficulty in defining what a 'caring relationship' is. Is a person who helps out an elderly neighbour now and then to become subject to family rights and responsibilities?¹¹³ And if the law starts to regulate caring relationships will that rob them of their informal intimate nature?

2. Barrett and MacIntosh argue that society should move away from small units towards collectivism. They would like to see a range of favoured patterns of family life, involving larger groups of people living together in a variety of relationship forms.¹¹⁴ This could involve acknowledging that many people have a range of friends, relatives and neighbours to whom they feel, in different ways attached. One consequences of this could be to acknowledge we should not assume that family members have to live together. As noted above, increasing numbers of people live alone and this might suggest a model where people throughout their lives engage in a variety of relationships, but without cohabiting with anyone. Sociologists have recognised 'living apart together relationships', where a couple have a monogamous sexual relationship, but live in separate places.¹¹⁵ Levin suggests three conditions to be regarded as a couple who are 'living apart together' (LAT): that the couple agree they are a couple; others see them as such; and they live in separate houses.¹¹⁶ E-mail, texting and other IT makes such relationships easier to maintain. A device that allows couples who are separated by distance to have long-distance sex by drawing in light on each other's bodies may be of assistance too!¹¹⁷ It has been estimated that around 10 per cent of the population are LAT.¹¹⁸ It should not be assumed that LATs are less dedicated to each other than cohabiting partners. Duncan *et al.*¹¹⁹ found a significant proportion of LAT partners provided substantial levels of care and support to each other.

¹⁰⁹ See also Deech (2010a).

¹¹⁰ Herring (2010c: 16).

¹¹¹ Herring (2014a: 40).

¹¹² For further discussion see Herring (2014d); Brake (2012); Scott and Scott (2014).

¹¹³ For a powerful critique of care-based approaches see Barker (2014).

¹¹⁴ Barrett and MacIntosh (1991: 134).

¹¹⁵ Duncan *et al.* (2012); Duncan and Phillips (2010); Haskey and Lewis (2006).

¹¹⁶ Levin (2004: 227).

¹¹⁷ BBC Newsonline (2009c).

¹¹⁸ Duncan and Phillips (2010).

¹¹⁹ Duncan *et al.* (2012).

3. Weeks *et al.*, looking at the meaning of 'family' within the gay and lesbian community, talk of 'families of choice'. Family is seen as 'an affinity circle which may or may not involve children which has cultural and symbolic meaning for the subjects that participate or feel a sense of belonging in and through it'.¹²⁰ Family in this definition are those people to whom a person feels particularly close, rather than those with whom there is a blood tie.¹²¹

4 Approaches to family law

A What is family law?

Learning objective 3

Explain and evaluate how different theories seek to define 'family law'

There is no accepted definition of family law. Family law is usually seen as the law governing the relationships between children and parents, and between adults in close emotional relationships. Many areas of law can have an impact on family life: from taxation to immigration law; from insurance to social security. Therefore, any text that attempts to state all the laws which might affect family life would be enormous, and inevitably texts have to be selective in what material is presented. Conventions have built up over the kinds of topics usually covered, but these are in many ways arbitrary decisions. For example, the laws on social security benefits and taxation can have a powerful effect on family life, but they are usually avoided in family law courses. This text has a section on family issues surrounding older people, but this topic is not included in many family law courses. Rebecca Probert edited a book on the law on intact families (i.e. families which have not experienced relationship breakdown), highlighting how family lawyers tend to focus on issues which arise when families break up, and ignore the many families who stay together.¹²²

B How to examine family law

There has been much debate over how to assess family law. What makes good family law? How do we know if the law is working well? This section will now consider some of the approaches that are taken to answer these questions, although no one approach is necessarily the correct one and perhaps it is best to be willing to look at the law from a number of these perspectives.

(i) A functionalist approach

This approach regards family law as having a series of goals to be fulfilled. We can then assess family law by judging how well it succeeds in reaching those goals.¹²³ For example, if we decide that the aim of a particular law has the purpose of increasing the number of couples who marry, then we can look at the rate of marriages to see if the law has succeeded in its aim. So what might be the objectives of family law?

¹²⁰ Weeks, Donovan and Heaphy (2001: 86).

¹²¹ See also Ellickson (2010) who focuses on the notion of a household.

¹²² Probert (2007c).

¹²³ Millbank (2008b).

Eekelaar¹²⁴ has suggested that, broadly speaking, family law seeks to pursue three goals:

1. Protective – to guard members of a family from physical, emotional or economic harm.
2. Adjustive – to help families which have broken down to adjust to new lives apart.
3. Supportive – to encourage and support family life.

It might be thought that functionalism is such a straightforward approach that it would be uncontroversial. However, there are difficulties with the functionalist approach:

1. One difficulty is that a law rarely has a single clearly identified goal. More often it is attempting a compromise between competing claims. A 1996 Act on divorce claims that it is seeking both to uphold marriage and to make it possible to divorce with as little bitterness or expense as possible.¹²⁵ These are contradictory aims. The Act may or may not strike an appropriate balance between them, but we cannot judge the success of the Act by deciding whether or not it reaches a particular goal, because it has several.
2. Another problem with the functionalist approach is that the law is only one of the influences on the way that people act in their family life. So an Act designed to reduce the divorce rate may have little effect if other social influences cause an increase in the divorce rate. The fact that the divorce rate has not fallen may not be the fault of the Act. The rise might be the result of a complex interaction between the law and all sorts of other influences on family life.
3. With the functionalist approach there is a danger of not questioning whether the aims of the law are the correct ones to pursue. So, just asking whether an Act designed to reduce the divorce rate has actually helped reduce divorce sidesteps asking whether we want to reduce the divorce rate. It is even a little more complex than this because sometimes the law appears to create the very problem it is seeking to fix. For example, it is only because we have legal marriage that we have 'a problem' with divorce.
4. A further difficulty with functionalism is that it overlooks what the law does not try to do. The fact that the law does not regulate a particular area can be as significant as a decision of the law to regulate.

These are powerful criticisms of the functionalist perspective, but do not render it invalid. The approach is so tied to common sense that it cannot be denied as a useful method. However, as the criticisms demonstrate it does have serious limitations.

(ii) Feminist perspectives

Feminist contributions to family law have been invaluable.¹²⁶ At the heart of feminist approaches is the consideration of how the law impacts on both men and women; in particular, how the law is and has been used to enable men to exercise power over women.¹²⁷ Linda McKie and Samantha Callan explain:

Feminist explanations of families and family life are generally based on the notion of patriarchy, namely, that women are undervalued, denied aspects of their rights and are thus oppressed. Further, it is argued that the power resources of societies favour men, and women are exploited

¹²⁴ Eekelaar (1984: 24–6); Eekelaar (1987b). Developed in George (2012b: ch. 1).

¹²⁵ Family Law Act 1996, s 1.

¹²⁶ For excellent discussions of family law from feminist perspectives, see Diduck and O'Donovan (2007); Diduck (2003); Fineman (2004: ch. 6); Munro (2007) and Herring (2013a).

¹²⁷ Rhode (2014).

in numerous ways, including, the division of domestic labour, access to higher paid jobs and ensuring equal pay for work of equal value. Women are persecuted for being women through various forms of violence and violation, including rape, domestic abuse, sexualized stereotypes in advertising and media, so called 'honour' killings, female circumcision and female infanticide. With the family, gendered oppressive power dynamics are sustained, learnt and evolved.¹²⁸

It is important to appreciate the richness of the feminist perspectives:

1. At a basic level, feminist writers point to ways in which the law directly discriminates against women. For example, at one point in history a husband could divorce his wife on the ground of adultery, but a wife could only divorce her husband on the adultery ground if there was also some aggravating feature, for example that the adultery was incestuous. Nowadays there are relatively few provisions that discriminate in such an overt way.¹²⁹ Munby LJ in *Re G (Education: Religious Upbringing)*¹³⁰ insisted there was now equality before the law:

'[M]en and women, husbands and wives, fathers and mothers. . . come before the family courts. . . on an exactly equal footing. The voice of the father carries no more weight because he is the father, nor does the mother's because she is the mother.'

2. Feminist writers also highlight aspects of family law which are indirectly discriminatory: that is, laws which on face value do not appear to discriminate against women, but in effect work against women's interests. An example is the rule that financial contributions to a household are far more likely to give rise to a share of ownership in the house than non-financial ones through housework.¹³¹ This indirectly discriminates against women because it is far more likely that women provide only non-financial contributions to a household than men. A central theme of much feminist writing on families is the way that caring has been devalued and ignored by family law and law more generally.¹³²
3. Feminists have also sought to challenge the norms that form the foundation of the law. Terms which the law might regard as having a given meaning, such as 'family', 'marriage', 'work' and 'mother', have been shown in fact to be 'constructs', images which the law has wished to present as uncontroversial, but which are in fact value-laden.¹³³ Feminists argue that the law has a construct of what is a 'good mother' and penalises those who are not regarded as 'proper mothers', such as lone parents.¹³⁴ Rather less work has been done on the way the law constructs men and what makes a good father.¹³⁵
4. Some feminist perspectives have also challenged what are sometimes called 'male' forms of reasoning. These feminists have categorised reasoning which focuses on individual rights as 'male' and as undermining the values that women prize, such as relationship and interdependency.¹³⁶ Gilligan has written of a distinction between the ethic of care (which rests on responsibilities, relationships and flexible solutions rather than on fixed

¹²⁸ McKie and Callan (2012: 60).

¹²⁹ See *Runkee v UK* [2007] 2 FCR 178 where a challenge to the payment to widows but not widowers failed. Now the benefits for widows and widowers are the same.

¹³⁰ [2012] EWCA Civ 1233, para 24.

¹³¹ See Chapter 5.

¹³² Herring (2013a).

¹³³ See e.g. Herring (2012h) on the law and use of surnames.

¹³⁴ See e.g. Herring (2008a).

¹³⁵ But see Collier (2000; 2003; 2008).

¹³⁶ Gilligan (1982).

long-term solutions) and the ethic of justice (which focuses on abstract principles from an impartial stance and stresses the consistency and predictability of results).¹³⁷ This has led to much dispute over whether rights or ethic of care are a more appropriate way to develop feminist thought.¹³⁸

An approach based on an ethic of care would promote laws which recognised the value and importance of caring relationships. Rather than emphasising rights which promote independence, such as autonomy and privacy, it would prioritise the responsibilities that tie us together and the legal response that promotes care. A central part of that would be ensuring there was effective protection from abuse within relationships.¹³⁹

5. Feminists have also been concerned with how the law operates in practice and not just with what the law says.¹⁴⁰ For example, although the law might try to pretend that both parents have equal parental rights and responsibilities,¹⁴¹ in real life it is mothers who carry out the vast majority of the tasks of parenthood.¹⁴² So, it is argued, the legal picture of shared parental roles does not match the reality.¹⁴³

There are, of course, divisions among feminist commentators and there are dangers in referring to 'the feminist response' to a question. Most notably for family law there is a disagreement between those who espouse feminism of difference and those who endorse feminism of equality. Feminism of equality (sometimes called liberal feminism) argues that women and men should be treated identically. Okin,¹⁴⁴ for example, would like to see a world where gender matters as little as eye colour.¹⁴⁵ Feminism of difference argues that the law should accept that men and women are different, but should ensure that no disadvantages follow from the differences. The issue of child care is revealing.¹⁴⁶ Feminists of equality might argue that we should seek to encourage men and women to have an equal role in child rearing so that they also have an equal role in the workforce. Feminists of difference would contend that we need to ensure that child rearing is valued within society and recompensed financially.¹⁴⁷ Society needs to esteem the nurturing work traditionally carried out by women, rather than forcing women to have to adopt traditionally male roles if they are to receive financial reward. The root problem with these approaches is that they can both work against some women. Feminism of equality might work to the disadvantage of the woman who does not want to enter the world of employment but wants to work at home child caring and homemaking. Indeed, arguably, middle-class women have only felt able to go out to work because they have been able to employ other women to provide housework and child-care services. The difficulty with feminism of difference is that, by stressing differences, it can be seen as exacerbating and reinforcing the traditional roles that men and women play and so can limit the options for women. Much work is therefore being done to produce a third model which

¹³⁷ For further elaboration on the ethics of care, see Held (2006) and Herring (2007a, 2013a).

¹³⁸ Wallbank, Choudhry and Herring (2009).

¹³⁹ See further Herring (2013a and 2014d).

¹⁴⁰ Wallbank (2009).

¹⁴¹ This is only true if both have parental responsibility. (See Chapter 8.)

¹⁴² Aassve, Fuochi and Mencarini (2014).

¹⁴³ Wallbank (2009).

¹⁴⁴ Okin (1992: 171).

¹⁴⁵ For an argument for gender neutrality in family law from a perspective which is not explicitly feminist, see Bainham (2000c).

¹⁴⁶ See Boyd (2008) for an excellent discussion of the uses of equality made by fathers' groups and feminists.

¹⁴⁷ Laufer-Ukeles (2008).

values the caring and nurturing work traditionally carried out by women, but at the same time protects the position of women in the workforce.¹⁴⁸ Dunn¹⁴⁹ argues there is a need for:

recognising and celebrating the value of women's traditional areas of work and influence rather than accepting a masculine and capitalist hierarchy of value which can lead to women passing on their responsibilities to less powerful women. In conjunction with this would be the view that this valuable work is something that male peers can and should do, the aim being to facilitate and insist upon change in men's lives – enabling them to become more like women to the same degree that women have become more like men.

But until men are more willing to embrace this change and value the caring work women do, women are left to carry on their caring work unvalued. As should be clear, the law can only supply part of the impetus for equality for women. Political, cultural and psychological changes are necessary if there is ever to be an end to disadvantages for women.¹⁵⁰

Of course, there are those who fiercely reject the feminist agenda, arguing nowadays it is men, rather than women, who are disadvantaged. Peter Lloyd argues:

Rubbishing the male of the species and everything he stands for is a disturbing – and growing – 21st century phenomenon. It is the fashionable fascism of millions of women – and many, many men, too. Instead of feeling proud of our achievements, we men are forced to spend our time apologising for them. When people chide us for not being able to multi-task or use a washing machine we join in the mocking laughter – even though we invented the damned thing in the first place.¹⁵¹

(iii) The public/private divide

Traditionally it has been thought appropriate to divide life into public and private arenas. Family law has been seen as the protector of private life. Notably, the European Convention on Human Rights upholds 'a right to respect for private and family life'.¹⁵² The significance of this distinction between public and private life is twofold. First, the traditional liberal position is that there are some areas of our lives that are so intimate that it is inappropriate for the state to intervene.¹⁵³ It is argued that it is quite proper for the law to regulate aspects of public life, such as contracts, commercial dealings and governments, but that other areas of life are so private that they are not the state's business. Goldstein *et al.* argue that protection of family privacy is essential to promote the welfare of the child:

When family integrity is broken or weakened by state intrusion, her [the child's] needs are thwarted, and her belief that her parents are omniscient and all-powerful is shaken prematurely. The effect on the child's developmental progress is likely to be detrimental. The child's needs for security within the confines of the family must be met by law through its recognition of family privacy as the barrier to state intervention upon parental autonomy.¹⁵⁴

Not only, it is contended, should the state not intervene in private areas, it cannot. Imagine a law that makes adultery illegal. This might be opposed on the basis that it infringes people's

¹⁴⁸ For an excellent discussion of equality and discrimination generally, see Fredman (2002).

¹⁴⁹ Dunn (1999: 94).

¹⁵⁰ Lewis and Campbell (2007).

¹⁵¹ Lloyd (2014).

¹⁵² *Nazarenko v Russia* (App No 39438/13).

¹⁵³ See Herring (2009b and 2014f) for a discussion of the role played by autonomy.

¹⁵⁴ Goldstein *et al.* (1996: 90).

privacy. It might also be argued that it would be unfeasible. The police cannot keep an eye on the nation's bedrooms and hotels¹⁵⁵ to monitor whether adultery is taking place!

Secondly, it is maintained that where it does intervene in the public arena, the law seeks to promote different kinds of values than it does on the rare occasions when it deals with private law issues. In the public law sector people are presumed to be self-sufficient and able to look after themselves, whereas in the private arena the law stresses mutual co-operation and dependency.¹⁵⁶

The distinction between private areas of life (into which the law should not intervene) and public areas of life (where the law may intervene) is deeply embedded in many people's thinking and much liberal political philosophy. The differentiation is particularly important in family life, although it is far from straightforward. The following are some of the difficulties with the distinction:

1. Is there really a difference between intervention and non-intervention? Imagine a family where the husband regularly assaults his wife. The law might take the view that this is a private matter and that it should not intervene. But, with this approach, what is the law doing? It could be argued that by choosing not to intrude, the law has permitted the existing power structure to be reinforced. In other words, the husband's power can be exercised by him only because of the state's decision not to step in. So a decision not to intervene should not be seen in a neutral light, but as a decision to accept the status quo.¹⁵⁷ This makes the distinction between intervention and non-intervention more complex than at first appears.
2. Can we distinguish the public and the private? Take the example of child abuse. Although this takes place within the home, the consequences of it can affect all of society. The state will have the cost of providing alternative care for the child and of dealing with the social harms that flow from child abuse. This indicates that although the conduct takes place in private it has public consequences. Who changes the nappies and boils the pasta is, in fact, a matter of huge public importance because it can impact on equality between men and women.¹⁵⁸
3. Why exactly might we want to protect the private? The argument for respecting private life is that it enables people to make decisions about how to live their lives free from state intervention. The traditional liberal approach is that each person should be able to develop his or her own beliefs and personality, free from state intervention unless there is a very good reason for the state to intrude.¹⁵⁹ However, this argument does not necessarily support a neutral stance from the state. Take a wife being regularly assaulted by her husband: it is arguable that to enable her to develop her own beliefs and personality the law must intervene. In other words, the promotion of her autonomy (the freedom to choose how she wishes to live her life) which underpins the notion of privacy doctrine does not necessarily require the law to be non-interventionist. In fact, to promote an individual's privacy might require intervention in her private life.
4. What is private and public may be a matter of class. The image of the home and family as a private place is an ideal that may be true for some middle-class couples, but for those reliant on social housing and benefits the home can be seen as replete with social intrusion.

¹⁵⁵ To make a rather conservative selection of venues.

¹⁵⁶ A distinction is sometimes drawn between *Gemeinschaft*: the values of love, duty, and common purpose (private values) and *Gesellschaft*: the values of individualism, competition and formality (public values).

¹⁵⁷ This may be because the law is happy with the status quo or because the law is concerned that legal intervention would cause even more harm. See further Eekelaar (2000a).

¹⁵⁸ Maclean (2007: 77).

¹⁵⁹ Herring (2009b).

In fact the state may police families in a less obvious way than direct legal intervention: health visitors,¹⁶⁰ teachers, neighbourhood watch schemes and social workers could all be thought a form of policing of families outside formal legal regulation.¹⁶¹ The argument here is that to regard legal intervention in family life as the only form of state intervention is unduly narrow.

(iv) Family law and chaos

Any suggestion that family law controls family life in Britain is clearly false. It has been said that 'the law of the family is the law of the absurd'.¹⁶² The point here is that people do not live their family lives only after considering the legal niceties involved. People do not (normally) consult their lawyers before making love, moving in together, or even getting married. The notion that people treat each other in intimate relationships by following the requirement of the law is clearly unrealistic. The vast majority of people simply do not know what the law relating to families is, and, even if they did, it would be very unlikely that the law would influence the way they would act in their family lives. This is not to say that family law is utterly powerless. First, in the cases that actually reach the court, a court order usually has a strong influence on the lives of the parties thereafter. Secondly, the law and legal judgments¹⁶³ act as one part of the maelstrom of general attitudes within society towards the family, and the general attitudes of society can affect the way people think they ought to behave and, hence, the way they do behave.

(v) Autopoietic theory

Autopoietic theory has been developed from the ideas of Gunther Teubner. Its main proponent in the family law arena is Michael King.¹⁶⁴ He argues that society is made up of systems of discourse, and that law is but one system of communication within society.¹⁶⁵ One significance of the theory is that it recognises that there are difficulties in one system of communication working with another. In other words, the law has a certain way of looking at the world and interacting with it. The law classifies people and disputes in particular ways ('a mother'; 'a father'; 'a contact dispute'; 'a child abuse case'), applies the legal rules to it, and produces the appropriate legal response. This process may transform the problem, as the parties understood it, into a quite different form of dispute and then produce an answer inappropriate to the parties' actual needs. Further, when other systems of communication attempt to interact with the legal system, unless they are able to put their arguments into the form of legal communication, the legal system cannot deal with them. For example, when social workers or psychologists are called upon by the courts to advise on what is in the best interests of the child, their evidence will be transformed into a legal communication. This may not be easy for lawyers. The law tends to concentrate on sharp conclusions: guilty or not guilty; abuse or no abuse. Social workers, by contrast, concentrate on ongoing relationships and working in flexible methods over time, rather than setting down in a written order what should happen to children for the future.

¹⁶⁰ Health visitors regularly visit a mother in her house following the birth of a child.

¹⁶¹ Rodger (1996).

¹⁶² Schneider (1991).

¹⁶³ Especially when reported in the media.

¹⁶⁴ King (2000). See Newnham (2015) for a recent excellent use of the approach. For a more critical discussion see Eekelaar (1995).

¹⁶⁵ E.g. King (2000).

5 Current issues in family law

Learning objective 4

Summarise the broad issues which underpin family law

Some of the general issues that affect family law will now be considered.

A How the state interacts with families

Fox Harding has suggested seven ways in which the state could interact with families.¹⁶⁶ Although only sketched here at a superficial level, they demonstrate the variety of attitudes the state could have towards families.

1. **An authoritarian model.** Under this approach the state would set out to enforce preferred family behaviour and prohibit other conduct. The law could rely on both criminal sanctions and informal means of social exclusion and stigmatisation. This approach would severely limit personal freedom.
2. **The enforcement of responsibilities in specific areas.** This model would choose the most important family obligations which the state would then seek to enforce. It is similar to the authoritarian model, but recognises that some family obligations are unenforceable.
3. **The manipulation of incentives.** Here the aim is to encourage certain forms of family behaviour through use of rewards (for example, tax advantages), rather than discourage undesirable behaviour through punishment.¹⁶⁷
4. **Working within constraining assumptions.** Here the state does not overtly advocate particular family forms, but bases social resources on presumptions of certain styles of family life. For example, especially in the past, benefit and tax laws were based on the presumption that the wife was financially dependent on her husband.
5. **Substituting for and supporting families.** In this model the state's role is limited to supporting or substituting for families if they fail. In other words, the state does not seek to influence the running of the family until the family breaks down, but if it does then the state will intervene.
6. **Responding to needs and demands.** Here the law intervenes only when requested to do so by family members. Apart from responding to such requests, the state does not intrude in family life.
7. **Laissez-faire model.** Under this approach the state would seek to exercise minimal control of family life, which would be regarded as a private matter, unsuitable for legal intervention.

B Privatisation of family law

There is much debate over whether there is a lessening of the legal regulation of family life. Some believe that we are witnessing the privatisation of family life, with the law regulating it less and less.¹⁶⁸ For example, as we shall discuss in Chapter 2, the Government has attempted

¹⁶⁶ Fox Harding (1996).

¹⁶⁷ See further Roberts (2001).

¹⁶⁸ Herring (2009b). Fink and Carbone (2003) foresee a form of family law based on contracts agreed by the parties.

to encourage couples who are divorcing to use mediation to resolve financial disputes and disagreements about what should happen to the children after divorce, rather than using lawyers and court procedures. Strikingly, the current Government has said:

The court's role should be focused on protecting the vulnerable from abuse, victimisation and exploitation and should avoid intervening in family life except where there is clear benefit to children or vulnerable adults in doing so.¹⁶⁹

On the other hand, there are other areas of family law where the law appears more interventionist. There has, for example, been an increased use of the criminal law against parents whose children misbehave.¹⁷⁰ So, the picture is not a straightforward one of intervention or deregulation. Dewar has argued that, rather than experiencing deregulation, the law is focusing its resources on cases where there is a need for legal intervention.¹⁷¹ An example to illustrate his argument concerns parental arrangements for children on divorce. Previously, in divorce cases involving children there would be a hearing where a judge would meet the parties and consider the arrangements for the children. However, now there is no such hearing and, unless either party applies for a court order, the judge will not consider the arrangements for the children in depth. This could be seen as privatisation of family law, but it could also be seen as focusing judicial time on those cases which need it – those where the parents cannot agree what should happen to the child.

The law does seem more ready to intervene in family life once the family has broken up. For example, while the family is together there is no direct attempt to ensure that a child is receiving a reasonable level of financial support from his or her parents. However, once the couple separate, the child support legislation and the Matrimonial Causes Act 1973 comes into operation to ensure that a wage-earning parent financially supports the child at a suitable level. The law appears to assume that where a family lives together any difficulties can be resolved by the parties themselves within the ongoing relationship; the law is only needed when the parents separate.¹⁷² Some academics have complained that this non-interventionist stance has undermined family life. Clare Huntington has argued that family law responds to the breakdown of a family but does nothing to foster strong relationships.¹⁷³ She argues for a more active state involvement which is designed to support and enable families to flourish.

It is perhaps ironic that at the same time as many call for family law to become increasingly privatised, there has been increasing pressure on the Government to open up the family courts.¹⁷⁴ Traditionally, family cases, especially those involving children, have been held in private, and publication is not permitted without the express permission of the judge. This has enabled some to say that the family law courts are secretive and are able to pass judgments free of public scrutiny and accountability. Behind closed doors judges and social workers conspired to remove children from their parents and make judgments which were anti-fathers, it was alleged. Cynics might argue that the press were frustrated in not being able to report sordid tales of child abuse and family breakdown which would sell newspapers. Increasing pressure led to a change in the law.¹⁷⁵ The Family Proceedings (Amendment)

¹⁶⁹ Norgrave (2012: annex A).

¹⁷⁰ See Keating (2008).

¹⁷¹ Dewar (1992: 6–7).

¹⁷² Eekelaar and Maclean (1997: 2).

¹⁷³ Huntington (2014).

¹⁷⁴ E.g. Munby J (2005).

¹⁷⁵ Crawford and Pierce (2010) and George and Roberts (2009) provide useful discussion of the issues.

(No. 2) Rules¹⁷⁶ and the President of the Family Division have issued guidance¹⁷⁷ on publication of judgment. These permit accredited members of the press to attend most proceedings in family courts. This includes ancillary relief proceedings as well as disputes over children.¹⁷⁸ The press can be excluded to protect the privacy of the parties, especially children,¹⁷⁹ or where their presence will impact on the evidence given to the court.¹⁸⁰ Those seeking to exclude the press must offer very strong justifications for doing so.¹⁸¹ Court judgments can be anonymised to ensure the identity of the child cannot be discovered.¹⁸² The courts will attach weight to the fact that excluding the press can stoke conspiracy theories and confidence in the family courts will be upheld if they are seen to be open to public scrutiny.¹⁸³ In *Fields v Fields*¹⁸⁴ Holman J explained:

There is considerable current, legitimate public interest in the way the family courts daily operate, and that cannot be shut out simply on an argument that the affairs of the parties are private or personal. Precisely because I am a public court and not a private arbitrator, I must be subject to public scrutiny and gaze. But the exposure is very avoidable by the parties themselves.

The last sentence suggests that parties cannot object to their family lives being made public because they can avoid a court hearing through mediation or arbitration. Even if convincing, that argument does not deal with any breach of privacy which relates to children. It is clearly not their fault that the matter is before the court. Certainly there is some concern that the current law fails to protect children's privacy.¹⁸⁵

C Autonomy

Linked to the public–private debate is the role attached to autonomy. Autonomy has become a major theme in family law in recent years.¹⁸⁶ In basic terms, autonomy is the principle that people should be able make their own decisions about how to live their lives, as long as in doing so they do not harm others. Joseph Raz defines it in this way:

The ruling idea behind the ideal of personal autonomy is that people should make their own lives. The autonomous person is a (part) author of his own life. The ideal of personal autonomy is the vision of people controlling, to some degree, their own destiny, fashioning it through successive decisions throughout their lives.¹⁸⁷

In terms of family law, this means that we should respect individual's decisions about how they wish to live their family lives, and the state should not interfere. This ties in with the theme of individualism, mentioned earlier. People should be free to leave relationships

¹⁷⁶ SI 2009/857.

¹⁷⁷ *President's Practice Guidance: Transparency in the Family Law Courts: Publication of Judgments* [2014] 1 FLR 733.

¹⁷⁸ Although it seems less likely that cases involving financial issues are made public: *Cooper-Hohn v Hohn* [2014] EWHC 2314 (Fam); *Appleton and Gallagher v Newsgroup Newspapers Ltd and The Press Association* [2015] EWHC 2689 (Fam).

¹⁷⁹ *Re C (Publication of Judgment)* [2015] EWCA Civ 500.

¹⁸⁰ *Spencer v Spencer* [2009] EWHC 1529 (Fam).

¹⁸¹ *A v BBC* [2014] UKSC 25.

¹⁸² Although see *H v A (No 2)* [2015] EWHC 2630 (Fam) on the problem of 'jigsaw' identification from bits of information, even where the names of those involved is not disclosed.

¹⁸³ *Haringey LBC v Musa* [2014] EWHC 1200 (Fam).

¹⁸⁴ [2015] EWHC 1670 (Fam).

¹⁸⁵ Brophy (2014).

¹⁸⁶ Herring (2014f).

¹⁸⁷ Raz (1986: 369). For further discussion see Fleming and McClain (2013).

without undue hardship. Similarly, in the case of disputes between the parties, we should respect their decisions about how to resolve them. The state should not be telling people how to run their families, or imposing solutions on their disputes. Autonomy appears to be playing a more prominent role in family law with increasing weight being placed on enabling couples to resolve disputes themselves and with the law taking a less interventionist stance.¹⁸⁸ This emphasis on autonomy could be explained in part by it falling in with Government attempts to reduce legal aid and general legal expenditure. It might also reflect the fact that the issues raised in family cases are often contentious: relying on autonomy avoids the Government having to take sides. However, not everyone supports the emphasis on autonomy. I have argued that the image of individuals making choices to pursue their goals in life is anathema to family life:

Individualism ignores the complex web of relations and connections which make up most people's lives. The reality for everyone, but in our society particularly women, is that it is the values of inter-dependence and connection, rather than self-sufficiently and independence, which reflect their reality. People do not understand their family lives as involving clashes of individual rights or interests, but rather as a working through of relationships. The muddled give and take of everyday family life where sacrifices are made, and benefits gained, without them being totted up on some giant familial star chart, chimes more with everyday family life than the image of independent interests and rights.¹⁸⁹

Autonomy presupposes that people are competent independent individuals who are in a position to make decisions for themselves. For some commentators this overlooks the vulnerability that many face.¹⁹⁰ However, there are dangers here. The emphasis on autonomy can lead to a distinction being drawn between those who are vulnerable and those who are not. Those who are vulnerable are seen by some as in need of protection and that can lead to paternalistic interventions.¹⁹¹ Alison Diduck warns that if autonomy is seen as the ideal then carers and women generally can be seen to suffer the 'unfortunate condition of vulnerability' and need protection. The idea of universal vulnerability,¹⁹² namely that everyone is vulnerable and needs help from others, is one way of responding to that concern.¹⁹³ Anne Barlow¹⁹⁴ decries the shift away from 'solidarity' to the emphasis on autonomy. She argues in favour of solidarity as capturing 'the collective nature of the enterprise in family life'.

D The decline in 'moral judgements'

It is arguable that the law is increasingly reluctant to make what some see as moral judgements.¹⁹⁵ At one time the courts were happy to state what had caused the breakdown of a marriage; who was a good mother or a good father; or what was the best way to raise a child.¹⁹⁶ However, increasingly the courts have been unwilling to do this, and have accepted that there is not necessarily one right answer in difficult cases.¹⁹⁷ In particular, the courts are

¹⁸⁸ Scherpe and Sloane (2014).

¹⁸⁹ Herring (2010b: 266). See also Rhoades (2010 a and b); Nedelsky, J. (2011) and Herring (2014f).

¹⁹⁰ Collins (2014); Diduck (2014b).

¹⁹¹ Fineman and Grear (2013).

¹⁹² Foster, Herring and Doran (2014).

¹⁹³ But see Collins (2014) for a critique.

¹⁹⁴ Barlow (2015).

¹⁹⁵ For a discussion of the interaction between legal and social norms, see Eekelaar (2000a).

¹⁹⁶ King (1999). For a wide-ranging discussion on the role of fault in family law, see Bainham (2001a).

¹⁹⁷ *Piglowska v Piglowski* [1999] 2 FLR 763.

more and more reluctant to accept that a party's bad conduct should affect the outcome of a case. At one time the question of whether a party had engaged in improper conduct was highly relevant in divorce cases, custody disputes and financial cases. Nowadays behaviour is rarely relevant, unless it can be shown to have an impact on the future welfare of the child.¹⁹⁸

It may be that the law's increasing reluctance to make moral judgements represents increasing uncertainty over moral absolutes in society at large.¹⁹⁹ Bainham²⁰⁰ questions the assumption that there is a shared body of common values about family life and the role of family in society. He even questions whether it can be said that society accepts that adultery is morally wrong. He argues: 'It seems likely that if we were to concentrate on the practice rather than the theory of matrimonial obligations, at least as strong a case could be made for identifying a community norm of marital infidelity.' If we cannot even agree that adultery is wrong, there are few areas indeed where the law could set down moral judgements. However, Regan has argued that the law cannot avoid making moral judgements.²⁰¹ Even declining to express a moral judgement is in a way expressing a moral view. Also the courts are willing to use bad behaviour as evidence of how an individual may behave in the future. So, although a father who has been violent may not be denied contact with his child on the basis that he has behaved immorally, he might be denied contact on the basis that his past bad conduct indicates that he might pose a risk to the child in the future.²⁰² This means that it is wrong to think bad conduct is no longer relevant.

Some have criticised the reluctance of the law to impose moral judgement and confirm the importance of family responsibilities.²⁰³ Baroness Deech²⁰⁴ makes the interesting point that we are happy to attach responsibilities and make moral judgements about some areas of life – the environment, diet or smoking – but not in relation to intimate family life.

Criticism of the law's reluctance to uphold moral principles has also come from a leading feminist writer, Carol Smart.²⁰⁵ She argues that there is an overemphasis on 'psy professions' who focus on children's welfare and fathers' rights, while a mother's interests are lost. She is not, of course, calling for the courts to uphold 'traditional morality', but rather wishes to emphasise 'the morality of caring'. This is tied in with an argument that the law should focus on what family members 'do' rather than what their rights are. She argues that the 'doing' of parenthood – providing the day-to-day care of the child – should be given far more weight than in the present law, which instead emphasises rights, such as 'the father's right to contact the child'.²⁰⁶

It may be too simplistic to argue over whether family law should or should not make moral judgements. John Eekelaar proposes three models the law could use to uphold moral values:

- the 'authorisation' model, wherein the state expressly or tacitly gives the force of state law to norms and decisions made within families;
- the 'delegation' model, wherein the state prescribes and gives legal force to the norms to be followed within families, which can therefore be seen as delegates through which state law and policy is applied; and

¹⁹⁸ Bainham (2001a).

¹⁹⁹ Munby J. (2005: 502); Bainham (2000c).

²⁰⁰ Bainham (1995b: 239).

²⁰¹ Regan (2000).

²⁰² Bainham (2001a).

²⁰³ Bridgeman, Keating and Lind (2008; 2011) and Lind, Keating and Bridgeman (2011).

²⁰⁴ Deech (2010d).

²⁰⁵ Smart (1991).

²⁰⁶ Smart (2007a: 45). See also Finch (2007).

- the ‘purposive abstention’ model, wherein moral or social obligations within families are not normally given the force of law, unless their failure threatens community interests, or for the purpose of achieving justice when families fall apart.

His preference is for the purposive abstention model. He is not opposed to the Government (or others) seeking to influence the way people live their intimate lives, it is prescription to which he objects.²⁰⁷

E Sending messages through the law

The number of cases where the courts actually decide what happens to a family is small. Of far more importance is the general message that the law sends to individuals and to the solicitors who advise them.²⁰⁸ The ability of the law to send messages has been recognised by the Law Commission, which concluded, in a discussion on the law of divorce, that: ‘for some of our respondents, as for our predecessors, it was important that divorce law should send the right messages, to the married and the marrying, about the seriousness and the permanence of the commitment involved. We agree.’²⁰⁹ The law can also send messages through the language it uses.²¹⁰ For example, judges have said that it is no longer appropriate in legal terms to speak of illegitimacy, because whether a child’s parents are married or not does not affect the child’s status.

The problem with using the law as a means of sending messages is that, as regards the general public, the message that the law wishes to send is transmitted by the news media. The reliability of the media as conveyors of legal messages is certainly open to doubt. The Government, of course, can send messages of its own about family life outside the context of the law.

F Solicitors, barristers and family law

As we have already noted, the vast majority of disputes between family members do not reach the courts. In Chapter 2 we will discuss the recent cutbacks in legal aid. These mean that fewer and fewer people can afford legal advice in family cases. Many cases are, therefore, resolved by negotiation using solicitors. Hence, the position of the family law solicitor is a crucial one in the working out of family law in everyday life. Ingleby has suggested the term ‘litigotiation’²¹¹ as appropriate to explain what many family lawyers do. The word suggests a combination of litigation and negotiation, meaning that the parties negotiate through the mechanisms put in place to prepare for litigation. The ‘guess’ or prediction of what a court will order shapes the bargaining of the solicitors. If, for example, the solicitors are negotiating a financial settlement after divorce, they will normally be able to estimate the range within which a court is likely to make an order. The negotiations will then concern where in that range the parties can reach agreement. Further, there is increasing interest in the attitudes and practices of family lawyers.²¹² Piper has suggested that ‘solicitors appear to have internalised

²⁰⁷ See further Eekelaar (2015a) for an eloquent expression of the concern that communal or cultural interests should not be used to justify harming individual members.

²⁰⁸ Garrison (2015); Dewar (2010).

²⁰⁹ Law Commission Report 192 (1990: para 3.4).

²¹⁰ Bainham (1998b).

²¹¹ Wright (2007).

²¹² Eekelaar, Maclean and Beinart (2000).

an agreed set of “rules” which must be followed by those aspiring to be good family lawyers’.²¹³ Even if the case reaches barristers, they too make extensive efforts to reach settlement.²¹⁴

G Non-legal responses to family problems

No family lawyer would claim that the law provides the solutions to all problems that families might face.²¹⁵ The importance of the role played by social workers, psychiatrists, psychologists and mediators in resolving difficulties families face should not be underestimated. Thorpe LJ,²¹⁶ in an important case concerning disputes over contact with children, stated:

The disputes are often driven by personality disorders, unresolved adult conflicts or egocentricity. These originating or contributing factors would generally be better treated therapeutically, where at least there would be some prospect of beneficial change, rather than given vent in the family justice system.

It is notable that solicitors are being expected not only to provide legal advice, but also point clients in the direction of other sources of help.²¹⁷ In part this is in response to recognition that litigation can be distressing for the child.²¹⁸ There has been an increasing emphasis on keeping family cases out of court (see Chapter 2).

H Rules or discretion

There is a debate over the extent to which family law cases should be resolved by relying on rules and the extent to which they should be decided on a discretionary basis.²¹⁹ Put simply, should a judge decide each case on its merits and be given a wide discretion in reaching a solution appropriate to a particular case or should we have rules to ensure consistency,²²⁰ save costs, and protect the rights of individual family members?²²¹ In fact, the distinction is not that sharp because there is a continuum between wide discretion and inflexible rules.²²² The more family law is seen as a set of fixed rights and responsibilities, the more likely it is for a rule-based system to be used; but if family law is seen as being about achieving justice for the particular individuals involved, it is more likely that a discretionary-based system will be employed. With a discretionary-based system, if the case is going to be decided on its own special facts, the court will require all the relevant evidence to be heard, and this creates more costs in both the preparation of and hearing of a case. So the expense involved is another important factor in deciding the balance between the two regimes.²²³

²¹³ Diduck (2000).

²¹⁴ Eekelaar and Maclean (2009).

²¹⁵ Wall LJ (2009).

²¹⁶ *Re L (A Child) (Contact: Domestic Violence)* [2000] 2 FCR 404 at p. 439. See further Smart (2007a).

²¹⁷ Melville and Laing (2010).

²¹⁸ *Re N (Section 91(14))* [2010] 1 FLR 1110.

²¹⁹ Schneider (1991).

²²⁰ As Dewar (2000b) points out, clear rules would ensure that there is consistency between decisions reached not only in the courtroom but also between settlements negotiated by the parties and their lawyers.

²²¹ Dewar (1997).

²²² Schneider (1991).

²²³ For further discussion, see Dewar and Parker (2000).

I Multiculturalism and religious diversity

To what extent should family law take into account the variety of cultural practices in British society?²²⁴ The question can be framed as how to balance the desire to protect the values of the dominant culture with a need to recognise and respect the values of minority cultures. For example, in relation to marriage, should the law permit polygamous marriages out of respect for minority cultures which may encourage polygamy, or should it rather reflect the disapproval of the majority culture towards polygamy? Corporal punishment of children is another issue over which different cultures may have different practices. Alternatively, the issue can be seen as this: does the law believe that people have rights which should be protected, regardless of their cultural background, or does the law encourage cultural groups to adopt different practices, regardless of whether the majority approves of them?

There are various strategies that could be adopted including the following:²²⁵

1. **Absolutism.** This view is that the values of the majority are the only correct values. Absolutism would lead to a strategy of complete non-recognition of the values of minority cultures. Minority cultures would have to adopt the values of the majority. This is not an approach that would be acceptable to most western democracies.
2. **Pluralism.** This approach recognises that there are some issues where minority values should be protected, but others where the majority's values must be preserved.²²⁶ Poulter argues that minority cultural values should be restricted in instances where human rights as set out in international agreements must be protected.²²⁷ For example, if the practices of a minority culture infringe children's rights, the law is permitted to outlaw those practices. Parkinson suggests that 'the importance of preserving the inherited cultural values of the majority must be balanced against the effects of such laws on the minority's capacity for cultural expression'. Parkinson insists, in reference to Australia, that there are some aspects of the majority's culture which are fundamental and should be fixed.²²⁸ He refers to the minimum age of marriage, to laws prohibiting incest, and to the need for consent for marriage as being some of the fundamental values. On these issues, minority family practices which contravened these principles could be outlawed. However, on less fundamental values, the minority practices should be respected, even if the majority found them distasteful.
3. **Relativism.** This view states that there are no moral absolutes; that different values may be acceptable for particular cultures at particular times.²²⁹ Therefore, if a form of conduct is accepted in a minority culture, the majority has no ground upon which to forbid it. If this approach were adopted, there might be difficulties over issues where the minority practice is based on a mistaken factual premise. For example, if female circumcision was acceptable in a minority culture because it was thought to provide medical benefits, would the majority be entitled to forbid it because they 'know' that it has no medical benefits? In a more positive light, relativism claims that society benefits from there being a wide variety of different cultural practices and beliefs – it creates a richer and more diverse society.²³⁰

²²⁴ For some useful discussions, see Barton (2009); Banda (2005 and 2003); Brophy (2000); Khaliq and Young (2001) and Malik (2007).

²²⁵ For a thorough discussion, see Freeman (2002b).

²²⁶ For further discussion, see Raz (1994).

²²⁷ Poulter (1987).

²²⁸ Parkinson (1996: 148).

²²⁹ See the discussion in Tilley (2000).

²³⁰ Raz (1994).

However, most relativists accept that there might be some forms of cultural practice that so infringe the rights of others to live their lives as they wish that they should be prohibited.²³¹ Opponents of relativism argue that once society accepts that people have certain rights, these rights should not be lost simply because a citizen is from a minority culture. If, for example, children's rights require that the law forbids corporal punishment, children should not lose those rights because they belong to a culture which accepts corporal punishment.

Freeman has argued that a degree of scepticism is justifiable when considering cultural practices:

Many cultural practices when critically examined turn upon the interpretation of a male elite (an oligarchy, clergy or judiciary): if there is now consensus, this was engineered, an ideology construction to cloak the interests of only one section of society.²³²

He stated that the way ahead is to develop, through dialogues across communities, versions of 'common sense' values.²³³

One of the few occasions on which the English courts²³⁴ have addressed these issues was *R v Derriviere*,²³⁵ where a father gave his son, aged under 13, heavy corporal punishment because he had stayed out late at night. The father argued that the level of punishment was normal by the standards of his culture. However, the Court of Appeal held: 'Once in this country, this country's laws must apply; and there can be no doubt that, according to the law of this country, the chastisement given to this boy was excessive and the assault complained of was proved.' However, in sentencing the father, the fact that he was unaware of the acceptable standards of corporal punishment was taken into account.²³⁶ Another example was *A v T (Ancillary Relief: Cultural Factors)*²³⁷ which involved a divorce between an Iranian couple, who had recently moved to England. On their divorce the husband was refusing to grant his wife a *talaq* divorce, which meant that even though the couple might be divorced in the eyes of the law, they remained married in the eyes of their religion. Baron J ordered that if the husband did not provide the wife with the *talaq* divorce he was to pay her an extra £25,000. He did this having heard evidence that this was the approach that Sharia courts would have taken, arguing that where the spouses have only a 'secondary attachment' to English jurisdiction and culture, then due weight could be given to factors relevant to their 'primary culture'. It will be interesting to see whether courts in other cases will accept an argument that a different family law might apply to different cultures. In Chapter 2 we will consider the role that religious 'courts' can play in resolving family disputes.

In recent times it seems that there is particularly a tension between religion and family law.²³⁸ For those with conservative religious values many of the developments in family law are antagonistic to fundamental beliefs, particularly in the area of same-sex relationships.²³⁹

²³¹ Raz (1994).

²³² Freeman (2000d: 13).

²³³ Freeman (2002b).

²³⁴ Poulter (1998) provides a thorough discussion of the response of English law to cultural diversity.

²³⁵ (1969) 53 Cr App R 637.

²³⁶ For a useful discussion of how cultural values and human rights interrelate, see Freeman (2002a: ch. 1).

²³⁷ [2004] 1 FLR 977. See also S. Edwards (2004).

²³⁸ Cahn and Carbone (2010).

²³⁹ See e.g. *Islington LBC v Ladele* [2009] EWCA Civ 1357 where a registrar refused on religious grounds to conduct a civil partnership and was sacked.

Among some Christians, evangelicals and Roman Catholics, in particular, there is a perception that their faith is 'under attack'. Lord Carey, the former Archbishop of Canterbury is reported to have said:

It is now Christians who are persecuted; often sought out and framed by homosexual activists . . . Christians are driven underground. There appears to be a clear animus to the Christian faith and to Judaeo-Christian values. Clearly the courts of the United Kingdom require guidance.²⁴⁰

In *R (Johns and Johns) v Derby City Council (Equality and Human Rights Commission Intervening)*²⁴¹ a barrister, Mr Diamond, representing a couple who claimed their religious views on homosexuality had meant they were not approved as foster carers, argued that 'something is very wrong with the legal, moral and ethical compass of our country' and that 'gay rights advocates construe religious protection down to vanishing point'. He submitted that the state 'should not use its coercive powers to de-legitimise Christian belief.' Munby J provided a trenchant reply. He rejected claims that Christians were treated unequally before the law. He went on to explain that Britain was 'a democratic and pluralistic society, in a secular state not a theocracy', adding:

Although historically this country is part of the Christian west, and although it has an established church which is Christian, there have been enormous changes in the social and religious life of our country over the last century. Our society is now pluralistic and largely secular. But one aspect of its pluralism is that we also now live in a multi-cultural community of many faiths. One of the paradoxes of our lives is that we live in a society which has at one and the same time become both increasingly secular but also increasingly diverse in religious affiliation . . . Religion – whatever the particular believer's faith – is no doubt something to be encouraged but it is not the business of government or of the secular courts, though the courts will, of course, pay every respect and give great weight to the individual's religious principles.

There is no denying that Christianity has been highly influential on the development of the law and culture in England and Wales. However, the courts have made it clear that they do not see it as their role to ensure the law reflects the teaching of the Church. In part this reflects the fact that there has been a sharp decrease in religious practice in England and Wales. The 2013 British Social Attitudes Survey found that 52 per cent of people described themselves as religious. Only 20 per cent of the population claimed to belong to the Church of England.²⁴² Even if it was thought appropriate for the law to match religious teaching that would be problematic. People of faith do not all agree on a whole range of issues.

At the root of the tension between law and religion is that many of the terms and concepts that family lawyers use has religious significance. Words such as marriage, father, and child, have religious connotations to some. Changes to the legal definition of marriage, for example, was seen by some as a challenge to the religious concept. It may be that now religious and legal understandings of these terms are diverging and if so we need a new kind of language, and better appreciation, if we are to separate the religious and legal understandings of terms like marriage.

²⁴⁰ Bingham (2012).

²⁴¹ [2011] EWHC 375 (Admin).

²⁴² National Centre for Social Research (2013).

6 The Human Rights Act 1998 and family law

Learning objective 5

Describe how the Human Rights Act 1998 affects family law

The Human Rights Act 1998 protects individuals' rights under the European Convention on Human Rights.²⁴³ That Convention sets out the minimum standards of treatment under the law that people are entitled to expect.²⁴⁴ There are two important aspects of the Human Rights Act. First, the rights in the Act (which are essentially the rights protected in the European Convention on Human Rights) are directly enforceable against public authorities (e.g. local authorities) and all public authorities must act in a way that is compatible with these rights unless required not to do so by other legislation.²⁴⁵ Secondly, under s 3 of the Human Rights Act all legislation is to be interpreted, if at all possible, in line with the Convention rights. If it is not possible to interpret the legislation in accordance with these rights, then the legislation should be enforced as it stands and a declaration of incompatibility issued: this requires Parliament to confirm or amend the offending legislation.²⁴⁶ In interpreting the extent of the rights protected in the Human Rights Act, the decisions of the European Court of Human Rights and European Commission will be taken into account by the courts.²⁴⁷ The possible relevance of rights under the Act will be considered at the relevant points throughout this text. However, the impact has been less in family law than in other areas. Sonia Harris-Short²⁴⁸ suggests two reasons why family law judges have taken a 'minimalist' approach to the use of the Act. First, there is a long-standing suspicion of rights among family lawyers, especially because the notion of parental rights might be used to usurp the fundamental principle that the welfare of the child should be the law's paramount concern. Secondly, many family law cases involve complex issues of moral, social and political significance and the courts wish to avoid being brought into such disputes. Hence we will see (in Chapter 12) that courts are very reluctant to use the Human Rights Act to order local authorities to provide children in care with particular services. Indeed a recurrent theme in the way courts have dealt with the common law or Children Act 1989 is to protect the interests of children and adults to the same extent as the Human Rights Act 1998 does. This means if the Human Rights Act 1998 were repealed it is unlikely to make a huge difference to English family law.

7 Conclusion

This chapter has considered the nature of families and family law. One point that has emerged is that the terms 'family' and 'law' do not have a fixed meaning. The understanding of a family has changed over time. For example, although at one point a family would have been defined as an opposite-sex married couple with children. Now a same-sex couple can marry and few would deny that a gay couple can be a family.²⁴⁹ John Eekelaar has even suggested

²⁴³ See Choudhry and Herring (2010) for a detailed examination of human rights and family law.

²⁴⁴ This point is emphasised in Bainham (2000c).

²⁴⁵ Human Rights Act 1998, s 6.

²⁴⁶ Secondary legislation which does not comply with the Human Rights Act can be disapplied: *Re P* [2008] UKHL 38, discussed in Herring (2009a).

²⁴⁷ Human Rights Act 1998, s 2.

²⁴⁸ Harris-Short (2005).

²⁴⁹ *Fitzpatrick v Sterling Housing Association Ltd* [2000] 1 FCR 21.

that rather than talking about family law it would be more appropriate to talk about the 'personal law'.²⁵⁰ This recognises that increasingly it is intimate caring relationships, rather than traditional family ones, which are the focus of the law's attention. Despite the lack of clarity over what a family is, it is clear that it is a powerful ideal: no major political party would openly advocate 'family unfriendly policies'. The chapter has also noted the diversity of ways that family law can be approached. There is no one correct way of viewing the law, and each approach has its benefits and limitations. However, the discussion demonstrates that the interaction between families, law and socio-political forces is complex. The tensions between the traditional ideal of what a family should be like and the realities of family life today are revealed in the topical issues discussed throughout the chapter.

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²⁵⁰ Eekelaar (2006b: 31). Although his use of this phrase is potentially misleading because by 'personal' he means 'personal relationships with others'. It is not, therefore, as individualistic a concept as at first appears. See further the discussion in Diduck (2008).

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2

Family justice

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain the nature of the legal aid reforms
2. Discuss the impact of the legal aid reforms
3. Describe the nature of mediation
4. Discuss the arguments for and against mediation
5. Consider the issues around the use of religious tribunals

1 Introduction

This chapter explores the family justice system. At first that may sound like a rather dry subject. But English family law has undergone a profound revolution in the past few years, which has had an enormous impact on the way family law disputes are dealt with. This chapter will focus on two major issues. First, the consequences of the withdrawal of legal aid from many family law cases and second the move towards mediation and other out of court based forms of dispute resolution.

2 The Family Justice Review and reform of legal aid

In late 2011 the Family Justice Review was published.¹ This involved a major examination of the family justice system. It identified two major problems with the family justice system. The first was delay:

Delay blights lives. It is a troubling statistic that every 2 month delay for a young child represents 1% of their whole childhood. Yet the average care case now takes 55 weeks to complete – and many cases take a good deal longer. These are some of the most vulnerable children in our society. It is absolutely unacceptable that delay is common in so many areas.²

¹ Norgrove (2012).

² Ministry of Justice (2012a: 2).

The second was the adversarial nature of proceedings:

Too often, divorcing couples end up arguing over deeply sensitive and emotional issues in the adversarial environment of the courtroom, when they might have resolved their disputes more quickly, simply and consensually outside it. And when judges do hand down judgments – particularly decisions which determine how separated parents share responsibility for their children – compliance is too low and enforcement ineffective.³

The Government accepted the proposals in the Review and implemented a series of reforms. It set out the following key principles to govern its approach to family justice:

- that the welfare of the child remains the paramount consideration in any proceedings determining the upbringing of the child;
- that the family is nearly always the best place for bringing up children, except where there is a risk of significant harm;
- that in private law, specifically, problems should be resolved out of court, and the courts will only become involved where it is really necessary;
- where court is the right option, that children deserve a family court in which their needs come first;
- that both in public and private law cases children must be given an opportunity to have their voices heard in the decisions that affect them;
- that the process must protect vulnerable children, and their families;
- that this is a task not limited in responsibility to one organisation or another, but something we must all work on together; and
- that judicial independence must be upheld as the system is made more coherent and managed more effectively.

A major part of the response to the Family Justice Review was a series of procedural reforms designed to speed up the family justice system. One of the most significant is that s 17(3) of the Crime and Courts Act 2013 creates a single family court. It will mean that a single court building will deal with all family cases in a particular area, rather than the work being spread across magistrates' courts, county courts and high courts.⁴ That should make the maintenance of files easier and provide a more co-ordinated service. Although the creation of family courts is generally welcomed, the difficulty is that this has been matched by a dramatic cut in the number of courts. The Government has explained that 'over 95% of citizens will be able to reach their required court within an hour by car'.⁵ The problem is that those without cars, or with child-care responsibilities, may find such lengthy journeys a real impediment to accessing justice. However, an even greater impediment to accessing justice is the cutbacks to legal aid.

³ Ministry of Justice (2012a: 2).

⁴ They do not deal with cases under the inherent jurisdiction or international cases.

⁵ Ministry of Justice (2015a).

3 Legal Aid, Sentencing and Punishment of Offenders Act 2012

Learning objective 1

Explain the nature of the legal aid reforms

The Legal Aid, Sentencing and Punishment of Offenders Act 2012 (LASPO) has drastically restricted access to legal aid in family law cases. There is no legal aid in private cases (e.g. disputes between parents over children and financial disputes) with two exceptions:

- (i) Applications for protective orders in relation to domestic violence, such as occupation orders, non-molestation orders or injunctions.⁶
- (ii) Cases where the applicant falls into one of the exceptional categories, to be discussed shortly.

In public law cases (e.g. where a local authority want to take a child into care), legal aid will be available for parties to the proceedings, but this will be restricted to a fixed fee. The Act has also restricted legal aid to cases involving welfare benefits, debt cases, employment tribunals and immigration claims. This chapter will focus on the impact on family law cases, although there are significant issues raised in other areas of the law.

A The exceptional categories

Those seeking legal aid in family cases will need to show that they fall within an exceptional category to be entitled to legal aid. There are five of them:

- the applicant is the victim of domestic violence;
- the case involves a forced marriage injunction;
- the case involves allegations of child abuse;
- a child who is party to proceedings; or
- there are exceptional circumstances.⁷

This means, for example, that if a father is seeking contact with his child or a wife is seeking financial support following divorce, while in the past (subject to their means) they could have obtained legal aid to obtain legal advice and representation, this will not now be available, unless they are the victim of domestic violence. They will need to negotiate the issue with their partner or represent themselves in court. The most they might get is £150 for mediation and legal help. We need to explore in more detail the rare cases when legal aid will be available in family law cases.

B Domestic violence

One exception is where the applicant 'has been, or is at risk of, domestic violence'.⁸ In the Act the following definition of domestic violence is provided:

means any incident, or pattern of incidents, of controlling, coercive or threatening behaviour, violence or abuse (whether psychological, physical, sexual, financial or emotional) between individuals who are associated with each other.⁹

⁶ Section 9.

⁷ See Legal Aid, Sentencing and Punishment of Offenders Act 2012, Sch 1; discussed in Hunter (2011).

⁸ Legal Aid, Sentencing and Punishment of Offenders Act 2012, Sch 1, para 12(1).

⁹ Legal Aid, Sentencing and Punishment of Offenders Act 2012, Sch 1, para 12(9).

Significantly this definition includes emotional abuse as well as physical abuse. It also includes controlling or coercive behaviour. Earlier drafts of the legislation had been limited to physical threats. The reasons behind this extension are explored later (in Chapter 7). For now it is enough to note that it is likely that many people will fall within this broader definition.

The breadth of the definition is, however, significantly limited because of the restrictions on how one can prove one has been or is at risk of domestic violence. The Civil Legal Aid (Procedure) Regulations 2012, reg 33 lists how one can prove one has been or is at risk of domestic violence.¹⁰ This includes a conviction or caution or bail or bind over for a domestic violence offence; a protective injunction or undertaking; a letter from a member of a multi-agency risk assessment conference confirming the applicant was referred to the conference as a victim of domestic abuse and has been considered by them; a finding of fact in court proceedings that there has been domestic violence; or a letter from a health care professional or social services department or a domestic violence support organisation confirming they are satisfied the victim has been or is at risk of domestic violence.¹¹

The list of acceptable evidence is closed so if one does not have one of the listed documents one cannot fall into the exemption.

Under the old version of the regulations Women's Aid¹² found that 39 per cent of women who had been affected by domestic violence were not able to provide the necessary forms of evidence. That is because, as explained in Chapter 7, many victims of domestic violence do not report the violence to the authorities. As Hunter points out, only 16 per cent of domestic violence victims report the incident to the police and only 5 per cent of those cases result in a conviction.¹³ Even if the victim does have paperwork showing they have been the victim of domestic violence, the exception in its original form only applied if the incident was in the past 24 months. This failed to appreciate the potential long-term impact of domestic violence. A woman whose partner who was imprisoned for assaulting her several years ago but is, on his release, seeking contact with her child, may be impacted by the domestic violence as a woman who was assaulted a few weeks previously. As we shall see in Chapter 7 domestic abuse has long-term effects. The courts have now ruled the 24-month limitation unlawful.

CASE: *R (Rights of Women) v The Lord Chancellor and Secretary of State for Justice* [2016] EWCA Civ 91

Rights of Women challenged the lawfulness of the regulations about what evidence could be introduced to show that an applicant was a victim of domestic violence and so fell into the exception entitling them to legal aid. The regulation limited the evidence to documents that showed that within the previous 24 months there was domestic abuse. The claim was successful, with particular weight being placed on two actual cases and seven hypothetical cases where the applicants were undoubtedly at risk of being the victims of domestic violence, but were not able to produce the precise information required which related to the past 24 months. This showed the strict regulations had 'no rational connection with the statutory purpose' of ensuring victims of domestic violence had access to legal aid and the 24-month time limit was therefore unlawful.

¹⁰ As amended by the Civil Legal Aid (Procedure) (Amendment) Regulations 2016 (SI 2016/516).

¹¹ Legal Aid Agency (2014) has set further detailed guidance on what evidence is required to demonstrate these grounds.

¹² Women's Aid (2014 and 2015).

¹³ Hunter (2011).

As a result of this decision new regulations¹⁴ have removed the time limit altogether for criminal convictions, but for the others increased it to 60 months. The fact the original regulations had such a strict time limit reveals fully the failure of the Government to appreciate the significance of the impact of domestic violence and the remarkable implication that two years after an incident of domestic violence, a victim should be in a position to represent themselves. Despite the reforms, real difficulties remain for those victims of domestic abuse who did not report the incident to the police at the time, through fear. And there are other difficulties.

The option of obtaining medical reports is not as straightforward as may be thought. Doctors are required to sign a form which states:

I can confirm that the [injuries/condition] that I presented to you with on [insert date when you were examined by the health professional if known] were caused by domestic violence.¹⁵

Medical professionals may find it difficult to sign this form. The injuries may be consistent with domestic violence, but they are in a position to confirm the injuries were caused by domestic violence. Even if the doctor or nurse is willing to sign the form, Women's Aid¹⁶ reported 22.2 per cent of women in their survey had been asked to pay for the reports, with 7.4 per cent having to pay over £50. There are reports of the police charging £85 for letters confirming there are ongoing proceedings.¹⁷ These sums are likely to be beyond the reach of claimants on benefits, who are those most likely to be seeking legal aid.¹⁸ Women's Aid found that 28 per cent of respondents had to wait more than seven days to receive the evidence from official bodies. In cases where an application is in relation to an urgent matter this may cause applicants to proceed without legal aid.

With many victims of domestic violence being unable to prove what has happened they are left with the unpalatable alternative of navigating the court procedures themselves to bring proceedings against their abusers in court or having no legal protection against the violence. And as Rosemary Hunter has pointed out there is strong evidence that victims who try to put up with the violence are likely to find it escalates to ever more serious levels.¹⁹

A further difficulty is that the Government intends the assessment of legal aid to be made by a helpline operator over a telephone service. The idea that a victim of domestic abuse will be able to provide evidence to a helpline operator displays a complete failure to appreciate the impact and nature of domestic abuse. It will work in a particularly harsh way for women from cultures where claiming domestic violence is 'dishonouring' to the family.²⁰ It is hard to see how the domestic violence exception is going to be policed in a way which is fair to claimants or does not get so broad as to mean the savings made are very limited.

Critics suggest the need for 'objective evidence' perpetuates a culture of disbelief of victims of domestic violence.²¹ However, in fairness the Government could not grant legal aid to everyone who claims to be the victim of domestic violence. That would leave the system open to abuse. A further issue is that the difficulty in proof may encourage some to apply for

¹⁵ Ministry of Justice 2015a.

¹⁴ As amended by the Civil Legal Aid (Procedure) (Amendment) Regulations 2016 (SI 2016/516).

¹⁶ Women's Aid (2014).

¹⁷ Blacklaws (2014).

¹⁸ Platt and Emmerson (2013).

¹⁹ Hunter (2014b).

²⁰ For broader concerns on the use of telephone advice on legal aid see Smith *et al.* (2014).

²¹ Hunter (2014b).

non-molestation orders primarily in order to obtain legal aid.²² Indeed between July and September 2013 when the reforms were introduced domestic violence applications rose by 21 per cent in the same period compared to the previous year.²³

Some critics have complained that while the victim of domestic violence will be entitled to receive legal aid, the alleged abuser will not.²⁴ The personal and social impact of a finding of domestic violence is considerable and John Eekelaar argues that such a person should be regarded as entitled to legal aid.²⁵ Even from the point of view of victims the issue is troubling because it means the alleged abuser will be representing themselves in court and may, therefore, be involved in cross-examining.

C Children at risk

A second exemption category is where there is evidence that children are at risk of harm from someone other than the applicant and the proceedings are designed to protect the child.²⁶ Regulation 34 sets out the evidence that is required to establish that children are at risk. This is similar to the grounds for proof of domestic violence and include, for example, that there is an unspent conviction for a child abuse offence.

D Exceptional funding

Even if the case does not fall into one of these two categories, under s 10 of LASPO the Legal Aid Agency can still grant legal aid to a financially eligible person where there are exceptional circumstances set out in ss 10(3):

- (a) that it is necessary to make the services available to the individual under this Part because failure to do so would be a breach of –
 - (i) the individual's Convention rights (within the meaning of the Human Rights Act 1998), or
 - (ii) any rights of the individual to the provision of legal services that are enforceable EU rights, or
- (b) that it is appropriate to do so, in the particular circumstances of the case, having regard to any risk that failure to do so would be such a breach.

It had been thought that extensive use would be made of this facility. However, in the first 10 months only eight family applications were granted following 601 applications.²⁷ For the year 2014–15 for all legal aid claims there were only 1,172 applications of which 226 were granted. In family cases it seems to be very rare for the exceptional category to be used. The judiciary have been surprisingly unrestrained in expressing their concern. In *MG v JG*²⁸ Mostyn J stated:

14. As the President explained in *Q v Q* the number of annual cases where the safety net has been applied can be counted on the fingers of two hands. In the year to March 2014 there were 9. Indeed between December 2013 and March 2014 one solitary case was caught by the safety net. The President stated at para 14 'if the scheme is indeed working effectively, then it might be

²² Emmerson and Platt (2014).

²³ Hunter (2014b).

²⁴ Ministry of Justice 2011, para 45.

²⁵ Eekelaar (2011b).

²⁶ Civil Legal Aid (Procedure) Regulations 2012, reg 34.

²⁷ Mourby (2014). Emmerson and Platt (2014).

²⁸ [2015] EWHC 564 (Fam).

thought that the scheme is inadequate, for the proper demand is surely at a level very significantly greater than 8 or 9 cases a year.' Thus it would be perfectly reasonable to describe this 'safety net' as a fig leaf. MG and JG have not applied for exceptional funding under section 10(3)(b), no doubt taking the realistic view that any such application would be rejected summarily.

The number of successful applications is astonishingly few because, as shall be discussed shortly, it might be thought that the right to a fair hearing given protection by the Human Rights Act would apply in many cases where a person was denied legal aid. It suggests the Agency is being extremely strict about when exceptional funding is available.

4 The impact of the legal aid cuts

In relation to family matters, in 2009–2010, 308,838 certificates for legal help had been granted. But by 2014–15 the number was 43,805 legal help certificates. In relation to representation in 2010–11 there were 156,968 family civil representations applications of which 131,160 granted. The equivalent for 2014–2015, 87,532 applications and 79,854 granted.²⁹ It is beyond doubt that there are many people with family law cases who would, prior to LASPO have received legal aid, but who as a result of the legislation, are not.³⁰ In December 2013, 42 per cent of private cases involving children involved cases where neither party was represented. For the same month in 2012 (before the cuts were introduced) the figure was 19 per cent. In only 4 per cent of cases were both parties represented.³¹ The number of new civil legal aid cases generally has fallen by over 80 per cent between 2009–10 and 2013–14.³²

As legal aid is only available for the poorest people we must assume that nearly all of those who would previously have obtained legal aid will be denied access to lawyers. Those seeking legal aid will be among the most vulnerable people in society and lack the skills or knowledge to represent themselves. These problems are exacerbated by the fact that one consequence of the cutbacks in family legal aid is that many firms of solicitors are stopping doing family law work.³³ Even if a client is entitled to legal aid they may find it difficult to find a solicitor close by who can deal with their case on a legal aid basis. Women's Aid found that 33 per cent of women had to travel between 5 and 15 miles to find a legal aid solicitor.³⁴

5 The justification for the cuts

The legal aid cuts have generate ferocious debate. Although it is fair to say in the academic and professional literature it has been a rather one sided debate. It is hard to find any family lawyer who supports them. Perhaps that is not surprising.

The cuts in legal aid have been described by leading experts of family law and policy as 'savage'³⁵ and 'breathtaking'.³⁶ What could justify them?

²⁹ HM Government (2016b).

³⁰ The Judicial Working Group on Litigants in Person (2013).

³¹ Cobb (2014).

³² Ministry of Justice (2014d).

³³ Lloyd Platt (2014) fears some firms have delegated family law work to very junior staff.

³⁴ Women's Aid (2014).

³⁵ Maclean (2011).

³⁶ Hunter (2011).

Undoubtedly, the primary justification is money. The Government hopes the reforms will lead to a saving of £450 million annually; from a legal aid bill which in total is £2 billion each year. These claims have been challenged. One commentator claims only 40 per cent of the hoped for savings will be achieved.³⁷ First, the Government may have underestimated the number of people who, even under its proposals, will be entitled to claim legal aid. In particular, there may be significant numbers of people who are victims of domestic violence or are vulnerable and so entitled to be regarded as exceptional. Second, the cutbacks in legal aid have led to more people representing themselves in court.³⁸ Cases which might have been negotiated by lawyers are now going to court. And at court such cases are not presented in concise arguments, but in a less focused and more emotional manner.³⁹ The former President of the Family Division⁴⁰ has claimed that cases that could be resolved in an hour with legal representation, take a day or longer with litigants in person. The savings to legal aid must be balanced with the increased costs in terms of running the courts, judicial time and increased delay. Third, there may be 'knock on costs'.⁴¹ For example, if separating parents do not receive the financial orders they are entitled to there may be increased claims on benefits or social housing. Ongoing disputes over contact may increase stress and illness for partners and their children.

Although it is early days yet, it seems the savings are being met. Certainly there are fewer legal aid certificates being granted. For representation in court there were 130,713 certificates granted in 2010–11, but by 2015–16 that had dropped to 84,907. However that last year was an increase from 76,679 the previous year.

It would, however, be wrong to think the cutbacks in legal aid are solely motivated by a desire to save money. The Government thinks that it is beneficial for couples to avoid using courts and instead use mediation. This is a controversial claim and is discussed later in this chapter. Two other reasons appear in the Government's justification for the cutbacks. One is that litigation should not be available for things that are a result of a personal choice.⁴² The argument appears to be that if someone chooses to divorce, they cannot expect the state to fund the litigation that results from their decision. John Eekelaar argues the reasoning is 'bizarre to the point of incoherence'.⁴³ As he points out, a person may be a victim of fraud as a result of their choice, but that is no reason for not giving legal aid to protect their rights. In any event, many family disputes are not a result of a choice. For example, a parent seeking a contact order because they are being prevented from seeing their children by the other parent is not acting as a result of her choice.

Another justification for the restriction on legal aid is that 'it is not the case that everyone is entitled to legal representation, funded by the taxpayer, for any dispute or to a particular outcome in litigation'.⁴⁴ This quotation has been challenged by several commentators.⁴⁵ Surely people are entitled to a particular outcome in litigation: they are entitled to have their human rights upheld or the welfare of their children protected. If they need legal aid to do that, they should be entitled to it.

³⁷ Cookson (2013).

³⁸ Ministry of Justice 2011, para 45.

³⁹ Williams (2011).

⁴⁰ Wall (2012).

⁴¹ Cookson (2011).

⁴² Ministry of Justice 2010, para 4.19.

⁴³ Eekelaar (2011b).

⁴⁴ Ministry of Justice 2011 (para 140, emphasis supplied).

⁴⁵ Eekelaar (2011b); George (2012c).

The Department for Work and Pensions has provided websites that can provide legal information for couples who are slipping up, but there have been huge problems with them. Two reports on the webpages produced by the DWP highlighted many problems with their performance.⁴⁶ A recurrent theme is the difficulty of providing advice via the web which is focused on the needs of the particular individual seeking it.⁴⁷

One of the most striking things about the Government's justifications for the cutbacks in legal aid is its failure to appreciate what legal aid in family law cases is actually spent on. The Government's justifications give the impression that family lawyers spend their time litigating cases. In fact, very few family law cases are resolved through the courts. Less than 10 per cent of disputes end up in court. Only the most complex of cases reach the courts. Joan Hunt,⁴⁸ looking at contact disputes, notes that even looking at cases where there are concerns over child abuse or neglect, domestic violence, substance abuse or mental illness, only 51 per cent had been to court. Among those where the non-resident parent complained that the resident parent had prevented contact, only 19 per cent litigated. So litigation is already very rare. The contact cases that will be shifted from the courts to mediation by the reforms are not trivial cases where couples have litigated for fun, but are the most serious of an already serious category of cases. As Hunt puts it: 'Parents go to court, therefore, not because they see this as a simple way of dealing with contact difficulties, but because, in most cases, they are desperate and cannot think what else to do'.⁴⁹ Telling them they should mediate will not do much good.

We turn now to look at some of the objections.

Having set out the difficulties in accessing legal aid it is worth exploring the consequences of not being able to obtain legal aid for a family law case. Applicants in such cases have three choices. Not to litigate; to represent themselves; or fund their own litigation. A total of 53 per cent of respondents took no action in relation to their family law problem as

Learning objective 2

Describe the nature of mediation

a result of not being able to apply for legal aid; 28 per cent represented themselves at court; and 29 per cent paid a solicitor privately.

6 The objections to LASPO

The primary objections to LASPO can be put as follows:

A Human rights

Opponents to the new legislation argue that the cutbacks in legal aid will cause real injustice. It is easy to imagine we are talking about couples disputing trivial issues. However, the cutbacks will affect major claims. A good example of the difficulties with withdrawal of legal aid was *Re T (Children)*⁵⁰ where there were claims that the grandparents were involved in the abuse of their grandchild. They were a retired fisherman and bookkeeper

⁴⁶ Department for Work and Pensions (2014a and b).

⁴⁷ Maclean (2014) examines non-government websites offering advice on divorce, sometimes for payment, and of varying quality.

⁴⁸ Hunt (2012).

⁴⁹ Hunt (2012).

⁵⁰ [2012] UKSC 36.

with a modest income, but not enough for legal aid. They were joined as parties to care proceedings and borrowed £55,000 to fund their defence of the allegations. At the hearings it was found that the allegations were entirely without foundation and the grandparents were completely exonerated. They were left with a legal bill which it would take over 15 years to pay off. The Supreme Court, while sympathising with the grandparents' position, held that the local authority (who had acted appropriately) could not be ordered to pay their costs. The fact that couples of very modest circumstances will have to go into great debt, or be simply unable, to defend themselves against allegations of child abuse is hard to justify. The Supreme Court rightly raised article 6 of the ECHR which guarantees a right to a fair trial.

As that case hints, future litigation may centre on the extent to which the restrictions on legal aid infringe people's human rights.⁵¹ The European Court of Human Rights has made it clear that the right to fair trial in article 6 does not mean that someone is automatically entitled to legal aid. However, access to legal aid may be needed to ensure there is 'equality of arms' and therefore a fair trial. In *Airey v Ireland*⁵² the court explained in deciding whether a denial of legal aid breached article 6 the court would take into account:

- (i) the complexity of the case, including procedural and legal issues
- (ii) the need to present evidence and examine witnesses and use expert evidence; and
- (iii) the person's own capacity and circumstances.⁵³

In *P, C and S v United Kingdom*⁵⁴ the court emphasised that fairness was key to deciding if there was a breach of article 6:

there is the importance of ensuring the appearance of the fair administration of justice and a party in civil proceedings must be able to participate effectively, inter alia, by being able to put forward the matters in support of his or her claims. Here, as in other aspects of Art 6, the seriousness of what is at stake for the applicant will be of relevance to assessing the adequacy and fairness of the procedures. (at para [91])

As that quote indicates, if the court is satisfied that a person can appropriately represent their own interests or that pro bono representation is adequate there is no breach of article 6.⁵⁵

The ECtHR may be particularly concerned in cases involving children. The Children's Commissioner has expressed grave concerns that restrictions on legal aid will impact negatively on children. As she points out, even if children are not parties to litigation, parents are often relied upon to represent children's interests.⁵⁶ It is interesting to note that Parliament's Joint Committee on Human Rights, in a recent review of the impact of the legal aid cuts, concluded that the Government 'cannot rely upon this scheme as it currently operates in order to avoid breaches of access to justice rights'.⁵⁷

English judges too have become increasingly aware of the significance of article 6. The Judicial Working Group on Litigants in Person⁵⁸ reports that: 'A withdrawal of funding of this

⁵¹ Miles (2011a).

⁵² (1979) 2 EHRR 305.

⁵³ *NJDB v The United Kingdom* (App No 76760/12).

⁵⁴ Judgment of 16 July 2002.

⁵⁵ *NJDB v The United Kingdom* (App No 76760/12).

⁵⁶ Office of the Children's Commissioner (2012).

⁵⁷ Joint Committee on Human Rights (2014: para 142).

⁵⁸ Judicial Working Group on Litigants in Person (2013).

magnitude has the potential to undermine the right to access to justice and as a result the rule of law itself.' In *Kinderis v Kineriene*⁵⁹ Holman J refused to continue with a child abduction case where a mother was representing herself with no knowledge of the law and very limited English. He allowed an adjournment to allow her to appeal against the refusal to grant her legal aid, suggesting that to continue the case could risk unfairness under article 6. In *Re L (Application Hearing: Legal Representation)*⁶⁰ it was accepted that a father with a history of mental disorder was a 'vulnerable litigant' and it would breach his article 6 rights to require him to represent himself. In *RP and others v United Kingdom*⁶¹ a mother with learning difficulties, who lacked capacity to litigate, was denied legal representation in a public law case. This was found to breach her article 6 rights. In the following case Munby P made it clear the breach of human rights is not just a matter of technical law, but of basic humanity and fairness:

CASE: *Re D (Non-Availability of Legal Aid) (No. 2)* [2015] EWFC 2

The President of the Family Division (Munby P) heard a case involving the removal of children from parents so they could be placed with prospective adopters. Both parents had learning difficulties, but were not eligible for legal aid. He was concerned this might breach their article 6 and 8 rights and continued:

A parent facing the permanent removal of their child must be entitled to put their case to the court, however seemingly forlorn, and that must surely be as much the right of a parent with learning disabilities (as in the case of the mother) or a parent who lacks capacity (as in the case of the father) as of any other parent. It is one of the oldest principles of our law – it goes back over 400 centuries to the earliest years of the seventeenth century – that no-one is to be condemned unheard. I trust that all involved will bear this in mind.

This is a case about three human beings. It is a case which raises the most profound issues for each of these three people. The outcome will affect each of them for the rest of their lives. Even those of us who spend our lives in the family courts can have but a dim awareness of the agony these parents must be going through as they wait, and wait, and wait, and wait, to learn whether or not their child is to be returned to them. Yet for much of the time since their son was taken from them – for far too much of that time – the focus of the proceedings has had to be on the issue of funding, which has indeed been the primary focus of the last three hearings. The parents can be forgiven for thinking that they are trapped in a system which is neither compassionate nor even humane.⁶²

Cases of denial of access to justice are not limited to those where legal aid is denied. Even if legal aid is granted there can still be difficulties in finding a lawyer who deal with a legal aid family law case. The House of Commons Justice Committee⁶³ found 14 local authorities for which there were no lawyers taking on civil legal aid cases. The Women's Aid⁶⁴ survey identified 71 per cent of respondents who found it difficult or very difficult to find legal aid solicitors; 23 per cent had to travel more than 15 miles to access legal advice and an additional 34 per cent between 6 and 15 miles. As the number of legal aid cases reduces it becomes

⁵⁹ [2013] EWHC 4139 (Fam).

⁶⁰ [2013] EWCA Civ 267.

⁶¹ [2013] 1 FLR 744.

⁶² Paras 21 and 22.

⁶³ House of Commons Justice Committee (2015).

⁶⁴ (2015).

harder for firms to make the work worthwhile given the bureaucracy in accessing the legal aid and dealing with the legal aid authorities. That paperwork may be justifiable for a firm dealing with a large quantity of work; with a smaller number of cases it becomes less worth the effort and expense.

B Litigants in person

One might have confidently predicted that following the implementation of the 2012 Act we would have seen a sharp decrease in court hearings and a greater use of mediation or other 'self-help' remedies for people with family problems. However, surprisingly, the number of applications to the family courts has, in many areas of work, increased. There was a 5,000 increase in private law applications involving children, to a total of 57,757 in 2013 and 63,015 in 2015,⁶⁵ and an increase of 2,244 in the number of non-molestation order applications to 18,700. Why has this happened?

The explanation seems to be that couples with disputes over their family issues are representing themselves. In the past a person with a family dispute may have consulted a solicitor who might have been able to negotiate a settlement, deal with the matter with a formal letter or advise that the case had no merit. All of these would have avoided a hearing. As there is no legal aid to provide these services people simply turn straight to the court and hence the increase in the number of applications.

The belief that individuals denied legal aid will be able to mediate their disputes or litigate in person may be based on false assumptions about the kind of people currently receiving legal aid who end up in bitter legal disputes.⁶⁶ Jo Miles and colleagues⁶⁷ point out, such cases are not rare. They note that 71 per cent of those eligible for legal aid for family problems reported mental health problems. Liz Trinder⁶⁸ notes in her international analysis of litigants in person (LIPs) that they are often people who are highly vulnerable, possess limited abilities to communicate, and are victims of domestic abuse. She concludes:

The international evidence is clear that LIPs have a wide range of support needs, but that it is very difficult to provide accessible, consistent and effective support for all LIPs that will enable them put their case forward effectively whilst at the same time not disadvantaging represented parties or overburdening already stretched judges and court staff.

The idea that those with mental health problems, addictions or limited English should represent themselves or use mediation is bizarre.⁶⁹ Judges are put into the difficult position of having to explain the law to litigants in person, who in the emotion of the situation may be ill placed to understand what is being said.⁷⁰ Judges are not presented with finely honed arguments by experienced lawyers, but often long rambling speeches from fraught individuals. Sometimes the judge has to undertake cross-examination of witnesses on behalf of litigants in person or offer them legal advice. Then the line between being a judge and an advocate becomes blurred.⁷¹ It is not surprising that extreme concern is being expressed by the judiciary.⁷² Sir James Munby, the President of the Family Division, in September 2016

⁶⁵ Emmerson and Platt (2014).

⁶⁶ Hunter (2014a).

⁶⁷ Miles, Balmer and Smith (2012).

⁶⁸ Trinder (2014a).

⁶⁹ House of Commons Justice Committee (2011).

⁷⁰ Lethem (2014).

⁷¹ *Re C (Due Process)* [2013] EWCA Civ 1412.

⁷² Judicial Executive Board to the Justice Select Committee Inquiry on Civil Legal Aid (2013).

claimed there was a 'clear and imminent crisis' facing the Family Division due to the workload on the courts.⁷³

A flavour of some of the problems is caught in this quote by Black LJ in *Re R (Care Proceedings: Welfare Analysis of Changed Circumstances)*.⁷⁴ She explained:

More and more litigants appear in front of us in person. Where, as here, the appellant is unrepresented, this requires all those involved in the appeal process to take on burdens that they would not normally have to bear. The court office finds itself having to attempt to make sure that the parties to the litigation are notified of the appeal because litigants in person do not always know who should be served; the only respondent named by M here was LA. The bundles that the court requires in order to determine the appeal are often not provided by the litigant, or are incomplete, and proper papers have to be assembled by the court, not infrequently at the request of the judges allocated to hear the case when they embark upon their preparation for the hearing just days before it is due to start. The grounds of appeal that can properly be advanced have to be identified by the judge hearing the permission application and the arguments in support of them may have to be pinpointed by the court hearing the appeal.

The court has no extra resources to respond to these added challenges. . . . Everyone involved in public and private law children cases is attempting to achieve the best possible result for the children whose welfare is at the heart of the proceedings and, without legal representatives for the parties, that task is infinitely more difficult.

Hunter and Trinder⁷⁵ in their study found only a tiny minority of litigants in person were able to competently deal with all matters of litigation. They go on to explain:

Many LIPs did not grasp foundational legal principles or concepts such as the importance of disclosure or the expectation of negotiation or settlement to forestall contested hearings. Two key 'legal' tasks – the preparation of bundles and cross-examination – were beyond the capacity of most LIPs. The legally aided group had higher levels of drug, alcohol and mental health problems, and a higher proportion of non-English speakers requiring interpreters.

It is not surprising that the National Audit Office⁷⁶ have expressed concern at the financial costs that LIPs are causing the court system. The legal aid budget may be falling, but that must be weighed against the increased costs for the court services.

There is now a long list of cases⁷⁷ where the judges have spoken strongly about the problems caused to the courts from LiPs and the 'gross unfairness'.⁷⁸ The House of Commons Justice Committee (2015, para 107) explained:

The family courts make decisions which often have life-long consequences for the children involved. The courts need the best evidence possible to make the right decisions; this will not be achieved by putting vulnerable witnesses through cross-examination by their abuser.

In *Azizi v Aghaty*⁷⁹ Holman J bemoaned the lot of a district court judge who was expected to deal with a case involving complex issues of international family law with two unrepresented litigants both of whom had limited English, but had been denied legal aid.

⁷³ Bowcott (2016).

⁷⁴ [2014] EWCA Civ 597.

⁷⁵ Hunt and Trinder (2015). [2014] EWCA Civ 597.

⁷⁶ National Audit Office (2014).

⁷⁷ E.g. *Kinderis v Kineriene* [2013] EWHC 4139 (Fam); *Re B (A Child) (Private Law Fact Finding – Unrepresented Father)* [2014] EWHC 700 (Fam); *Q v Q* [2014] EWFC 7; *Q v Q (No. 2)* [2014] EWFC 31; *Re H* [2014] EWFC B127; *Re D (A Child)* [2014] EWFC 39; *CD v ED* [2014] EWFC B153; *Re D (A Child) (No. 2)* [2015] EWFC 2; and *Re K & H (Children: Unrepresented Father: Cross-Examination of Child)* [2015] EWFC 1).

⁷⁸ *MG v JG* [2015] EWHC 564.

⁷⁹ [2016] EWHC 110 (Fam).

Not only can LIPs cause problems for the courts. They can be their own worst enemy. Not only because they may fail to present to court their strongest arguments in the clearest way, but their presentation itself may harm the case. In *Re W (A Child)*⁸⁰ a mother whose child had been abused by her paternal grandfather opposed the father having contact and was representing herself in court. Despite the court ordering that the father should have contact she persisted in refusing to allow it. The Court of Appeal ordered that the child should now live with the father. The Court justified this on the basis that the mother was ‘obsessed’ with the earlier child abuse and had persisted in not allowing contact. No doubt the case involved complex issues, but one wonders whether the fact the mother had to represent herself meant she came across as more emotionally vulnerable than would have been the case had she been represented by a lawyer. Further, that had she been represented her lawyer would have strongly advised her against taking such a stark line against contact. Those without legal representation lose out not only on a source of information, but also on having a counsellor who can guide and warn them on issues arising from the case. Perhaps even more seriously there are reports of violence breaking out between parties in courts, without lawyers being there to lower the emotional temperature.⁸¹

C Parties facing litigants in person

While the potential unfairness to those who must represent themselves is obvious, what is less obvious is the harm to those who must face a litigant in person. This is particularly problematic in a case of a victim of domestic violence. Imagine a dispute over child arrangements, with a mother who has been able to prove that the father was abusive towards her. She is able to obtain legal aid. However, he cannot and is representing himself. He may well wish to challenge her allegations of domestic abuse in court and he will be required to cross-examine her. As *Coy et al.*⁸² found in their survey, that can be highly traumatic for the victim. One woman said that ‘it’s like going through the abuse again’. They found women being emotionally and psychologically ground down; panic, depression and sleeplessness being caused by having to litigate against their former abuser without legal representation.⁸³

In *Re K and H (Private Law: Public Funding)*⁸⁴ a father, who had been denied legal aid and was representing himself, was accused by a girl of sexual abuse. The father denied it. The judge found it would be improper for the father to cross-examine the girl. The Court of Appeal thought the judge should conduct the cross-examination or a justice’s clerk or a guardian appointed for the children. It was not possible to require the Lord Chancellor to fund legal representation for the cross-examination. The problem is that none of the alternative suggestions of the Court of Appeal seem entirely satisfactory, especially given the gravity of the issue.

D Expert witnesses

In many complex cases an expert report is required if the court is to make an effective assessment of what is in the child’s welfare. A court has the power under s 13(6) to require a report from an expert if necessary to assist the court to resolve the proceedings justly. The difficulty

⁸⁰ [2014] EWCA Civ 772.

⁸¹ Holt and Kelly (2014).

⁸² Coy, Scott, Tweedale and Perks (2015).

⁸³ See also All-Party Parliamentary Group on Domestic Violence (2016).

⁸⁴ [2015] EWCA Civ 543.

arises as to who will pay for the expert. If the parties are representing themselves they are unlikely to be able to provide the funding. Even if legal aid is awarded to a client there may be great difficulty in persuading the legal aid agency to fund expert witnesses. In *JG v Lord Chancellor*⁸⁵ it was held that the decision not to provide legal aid to fund an expert in a private law case under the Children Act was unlawful.⁸⁶

E LASPO: the future

In light of the cutbacks in legal aid, it is clear that fewer people are having access to legal advice. Some decide to represent themselves in court, often with unsatisfactory consequences for themselves or the justice system. Some will decide just to give up, with their injustice unremedied. Others might turn to mediation. That seems to be what the Government hopes people will do. We need to consider that option carefully, because it may well be the future of family law.

7 Mediation

A Introduction

One key principle runs through the Family Justice Review:

Generally it seems better that parents resolve things for themselves if they can. They are then more likely to come to an understanding that will allow arrangements to change as they and their children change. Most people could do with better information to help this happen. Others need to be helped to find routes to resolve their disputes short of court proceedings.⁸⁷

This shift towards encouraging mediation, rather than the use of lawyers and courts, has been effected through the Legal Aid, Sentencing and Punishment of Offenders Act 2012 and the restrictions on access to legal aid; and the Children and Families Act 2014, which, as we shall see, requires all applicants in family cases to attend a meeting to learn more about mediation.

The Legal Aid Agency will pay for a MIAM (Mediation Information & Assessment Meeting), lasting up to two hours.⁸⁸ The MIAM will inform the couple about the availability of mediation and provide funding for those who are eligible.⁸⁹ Practice Direction 3A explains:

Attendance at a MIAM provides an opportunity for the parties to a dispute to receive information about the process of mediation and to understand the benefits it can offer as a way to resolve disputes. At that meeting, a trained mediator will discuss with the parties the nature of their dispute and will explore with them whether mediation would be a suitable way to resolve the issues on which there is disagreement.⁹⁰

As already mentioned although it was expected that the cutbacks in legal aid would increase, in fact the number of publicly funded mediation cases dropped by 32 per cent in the year following the restrictions and there was a 51 per cent reduction in the number of couples

⁸⁵ [2014] EWCA Civ 656.

⁸⁶ *Q v Q* [2014] EWFC 31.

⁸⁷ Norgrove (2012: para 104).

⁸⁸ Morris (2013).

⁸⁹ Morris (2013).

⁹⁰ Para 10.

attending meetings to learn about mediation. In January–March 2012 there were 7,984 legal aid payments for mediation assessments, for January–March 2016 the figure was 3,384.⁹¹ It has been suggested that lawyers were a significant cause of referrals for mediation, and this source has been lost.⁹² Further, couples seemed keener to embark on mediation once they have received some legal advice.⁹³

Perhaps in response to such figures the Children and Families Act 2014 now requires parties to attend a MIAM before making an application for ‘family proceedings’.⁹⁴ These include applications for a child arrangements order, a parental responsibility order, a special guardianship order and financial orders. Consent orders are not included so if the couple have reached an agreement over the issue through negotiation or mediation they are not required to attend a MIAM but can apply to have an order of the court in line with the terms of the agreement. Although that is the formal picture, one survey found 31 per cent of respondent lawyers saying that in their courts applicants were permitted to make applications even though they had not attended a MIAM.⁹⁵ Some 45 per cent reported no change in the number of MIAMs since they became compulsory. Indeed, in 2015 completed MIAMs numbering 3,510 were recorded out of a total of 56,551 private law applications, suggesting that the attempt to require people to consider alternatives to court proceedings has had little success.

Before issuing a family proceeding an applicant must show that they have attended a MIAM, have been issued a ‘mediation confirmation’ from a mediator, stating the couple have received information and advice about mediation, or that a ‘mediator’s exemption’ applies because the case is not suitable for mediation, or the couple fall within an exemption.⁹⁶ The exemptions are found in Family Proceedings Rules, para 8(1):

Domestic violence

- (a) there is evidence of domestic violence, as specified in Practice Direction 3A; or Child protection concerns
- (b) –
 - (i) a child would be the subject of the application; and
 - (ii) that child or another child of the family who is living with that child is currently–
 - (aa) the subject of enquiries by a local authority under section 47 of the 1989 Act; or
 - (ab) the subject of a child protection plan put in place by a local authority; or

Urgency

- (c) the application must be made urgently because–
 - (i) there is risk to the life, liberty or physical safety of the prospective applicant or his or her family or his or her home; or
 - (ii) any delay caused by attending a MIAM would cause–
 - (aa) a risk of harm to a child;
 - (ab) a risk of unlawful removal of a child from the United Kingdom, or a risk of unlawful retention of a child who is currently outside England and Wales;

⁹¹ HM Government (2016b).

⁹² Emmerson and Platt (2014).

⁹³ Blacklaws (2014).

⁹⁴ Para 12 and 13 define these in detail.

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⁹⁶ Practice Direction 3a – Family Mediation Information & Assessment Meetings (MIAMS).

- (ac) a significant risk of a miscarriage of justice;
 - (ad) unreasonable hardship to the prospective applicant; or
 - (ae) irretrievable problems in dealing with the dispute (including the irretrievable loss of significant evidence); or
- (iii) there is a significant risk that in the period necessary to schedule and attend a MIAM, proceedings relating to the dispute will be brought in another state in which a valid claim to jurisdiction may exist, such that a court in that other State would be seised of the dispute before a court in England and Wales.

Other exemptions include the bankruptcy of the party or that the parties have a certificate from a mediator confirming the case is inappropriate for the couple to attend.

It is important to appreciate the somewhat limited nature of the requirement to attend a MIAM. First, only the applicant need to attend.⁹⁷ Second, the requirement is to attend the information session. It does not require the parties to undertake mediation. In *Rosalba Alassini and Others*⁹⁸ it was held by the European Court of Justice that forcing people to use mediation rather than courts interfered with their human rights. Given the low take up of mediation it might be argued that the requirement to attend a MIAM does little more than inconvenience the parties, delay the case and increase costs.

Before considering whether the shift to mediation is to be welcomed, mediation must be defined.

B What is mediation?

Learning objective 3

Discuss the arguments for and against mediation

It is important to distinguish between reconciliation and mediation. The aim of reconciliation is to encourage the parties to abandon the divorce petition and to rescue their marriage. Mediation, however, accepts the fact of breakdown and attempts to assist the parties in deciding what should happen in the future.⁹⁹ It may happen that in the course of working together to arrange their life post-divorce, the parties become reconciled, but that is not the purpose of mediation. The core goal in mediation is 'to help separating and divorcing couples to reach their own agreed joint decisions about future arrangements; to improve communications between them; and to help couples work together on the practical consequences of divorce with particular emphasis on their joint responsibilities to co-operate as parents in bringing up their children'.¹⁰⁰

C The role of the mediator

Here are four models a mediator could use:¹⁰¹

1. **Minimal intervention.** This model requires the mediator to ensure there is effective communication between the parties, but it is not the job of the mediator to influence the content of the agreement.¹⁰² So even if the mediator believes that the parties are reaching an

⁹⁷ Practice Direction 3a – Family Mediation Information & Assessment Meetings (MIAMS). See Relate (2014) for an argument that both parties should be required to attend, although it is hard to see what punishment could be imposed on the respondent who failed to attend.

⁹⁸ Joined Cases C-317/08, C-318/08, C-319/08 and C-320/08, 18 March 2010.

⁹⁹ See Leach (2005) for a discussion of what mediation is.

¹⁰⁰ Lord Chancellor's Department (1995: para 6.17).

¹⁰¹ Roberts (1988).

¹⁰² Stylianou (2011).

agreement that is wholly unfair to one side, the mediator should not try to correct the balance. At the heart of this model is the notion that the agreement should be the parties' own decision. If the agreement seems fair to them, then it is not for anyone else to declare it unfair. Marion Stevenson has called this the 'client self-determination model'.¹⁰³

2. **Directive intervention.** Under this model the mediator might provide additional information and seek to influence the content of the agreement if the proposed agreement is clearly unfair to one side or the other. He or she may try to persuade one or both parties to change their views, and may attempt to persuade the parties to agree to the arrangements the mediator believes are most suitable. One trainer of mediators encourages them to 'take their gloves off' and fight for the interests of children, ensuring that the parents reach agreements in the child's best interests.¹⁰⁴ However, most mediators accept that ultimately the decision is for the parties to reach themselves and the parties are free under this model to reject the views of the mediator.¹⁰⁵
3. **Therapeutic intervention.** Here the mediator focuses on the relationship between the parties. This model promotes the belief that the dispute is merely a symptom of a broken relationship. The time spent in mediation may not therefore focus on the actual issues in dispute, but on trying to improve the parties' relationship generally.
4. **'Med-Arb'.** The couple agree to mediate, but if they cannot reach agreement the mediator becomes an arbitrator and determines a solution, based on the parties' discussions, and the parties agree to be bound by their decision.¹⁰⁶ This is a radical change in the traditional model of mediation and it has few proponents to date, although a notable supporter of a version of this is Peter Harris.¹⁰⁷ He proposes separating couples meet a 'lawyer commissioner' who would discuss the case with the parties. The first aim would be to facilitate an agreement. If that was not possible the commissioner would decide what order would be appropriate and recommend it to the court. Unless the court objected to it, an order would be made in these terms.

In the UK the model of minimalist intervention is one which is generally promoted.¹⁰⁸ But this model does not render the mediator powerless. Most mediators hold a screening meeting before starting mediation and if, for example, it becomes clear that there has been serious violence in the past, they will refuse to go ahead with the mediation. Further, if during the course of the mediation the mediator is concerned that one party is being taken advantage of, it is always open to the mediator to stop the mediation and suggest that the parties seek legal advice.¹⁰⁹

Maclean and Eekelaar¹¹⁰ in their study found that in fact there were numerous examples of mediators giving advice to the parties about the best process for the discussion and the outcome. As they go on to argue, the distinction between providing information, but not advice, which is often relied upon by mediators to explain their neutral role, is not a firm

¹⁰³ Stevenson (2015).

¹⁰⁴ Schaffer (2007).

¹⁰⁵ Hitchings and Miles (2016).

¹⁰⁶ Hitchings and Miles (2016).

¹⁰⁷ Harris (2016).

¹⁰⁸ UK College of Mediators 2000, para 42. But see S. Roberts (2000) who suggests there is variation in practice over the style of mediation used.

¹⁰⁹ The contents of mediation are to be kept privileged and cannot usually be referred to in later proceedings: *DB v PO* [2004] EWHC 2064 (Fam).

¹¹⁰ Maclean and Eekelaar (2016).

distinction. For example, is the statement 'normally children who are 10 years old are allowed to decide which parent to live with' advice or information?

Marion Stevenson, a prominent British mediator, sees three key elements for a mediator: empathy, impartiality and questioning.¹¹¹ Empathy requires the mediator to be aware of the emotions that may underpin the views of the parties. Impartiality means 'mediation is a problem-solving activity in which the impartiality of the mediator enables people to seek and find the solutions that are going to fit the situation best. Mediators need to be scrupulous about not advising or pressurising towards any outcomes: if not they risk getting drawn into disputes as judges of rights and wrongs and losing the trust of one or both parties. They also risk disempowering people in terms of responsibility for decision-making.' Questioning requires that mediators keep asking questions about what is the best approach.

A further distinction in styles of mediation is referred to by Maclean and Eekelaar.¹¹² They note that some mediators use 'structured mediation', where the mediator seeks to find an agreement which meets as many of the preferred outcomes of each party as possible. Others use 'transformative mediation', which 'is designed to enhance the participants' appreciation of each other's feelings and perspectives'. This might lead to the parties changing their preferences.

It may be that there is a changing attitude to this issue¹¹³ and that increasingly mediators in England are being interventionist. All mediators would encourage parties to have good relationships with each other and to put the interests of their children first.¹¹⁴ But that is seeking to influence the parties' agreements, albeit in a relatively uncontroversial way. It may simply be impossible for a mediator not to rely on norms of some kind.¹¹⁵ Some mediators claim that it is permissible to seek to persuade the parties to adopt current societal or cultural norms, such as that the interests of children should come first.¹¹⁶ What is not permissible is for the mediator to seek to impose his or her own norms on the couple.¹¹⁷ However, this view is based on being able to draw a reasonably clear line between which norms are social and which are personal. One suggestion is that as long as the mediator is open about what norms he or she is bringing to the discussion, and the couple accept this, the mediator is acting appropriately.¹¹⁸

There is a fierce debate over whether mediation is desirable. It is important to separate out two distinct arguments in favour of mediation. First there is the claim that mediation produces better outcomes for families in dispute. Second, there is the argument in favour of mediation as a way of reducing the costs to the state. Both of these are disputed. There is no doubt that in the future mediation is going to play a central role in family justice. Notably, many family solicitors are now training to be mediators, accepting that there may be less work for lawyers and more for mediators in the years ahead.¹¹⁹

Now the arguments over the benefits and disadvantages of mediation must be considered.¹²⁰

¹¹¹ Stevenson (2013).

¹¹² Maclean and Eekelaar (2016).

¹¹³ Wilson (2009).

¹¹⁴ Stepan (2010).

¹¹⁵ MacFarlane (2002).

¹¹⁶ Belhorn (2005).

¹¹⁷ See the discussion in Stepan (2010).

¹¹⁸ Irvine (2009).

¹¹⁹ Stevenson (2012a).

¹²⁰ As Mantle (2001: 151) argues, much more research is required before it is possible properly to assess the advantages of mediation.

D The benefits of mediation

Learning objective 4

Discuss the arguments for and against mediation

The following are some of the possible benefits of mediation:

1. Central to the arguments in favour of mediation is the idea that there is no 'right answer' to a particular dispute. If the parties reach a solution which is right for them, no one else should

be able to regard their agreement as the wrong one. It could be said to be none of the state's business to seek to interfere in the arrangement the parties have reached. In part, mediation is fuelled by a belief that the court cannot claim that there is a particular solution that is 'just' or 'in the best interests of the child' because there are no agreed community values the law could use as a basis for such a solution. Indeed, the House of Lords itself has accepted that in many cases a variety of solutions could be appropriate and there is not necessarily a right or wrong one.¹²¹

There are three key issues here. The first is whether it is correct that there is no right answer for a court to declare. If there is not, then the solution reached by the parties is likely to be as good as the solution reached by anyone else. If, however, you do not accept this and believe that it is possible to state that some solutions are better than others, then the second key issue is whether there is a good reason to believe that the court is more likely to find a better solution than the parties in mediation. Thirdly, even if you accept that some solutions are better than others and that the court is more likely than the parties to find a better solution, there is still the issue of whether the state, through the courts, should be able to impose the right answer (or *a* right answer) on the parties. The law might want to set down a right answer on the divorcing couple because there are interests of either third parties or of the state which justify forcing a solution on the parties.¹²² So, for example, many argue that mediation is not acceptable because it does not adequately protect the interests of the child. There is nothing to prevent the parents reaching an agreement in mediation which does not promote the interests of the child. However, such an argument would need to demonstrate that allowing judges to resolve disputes over children has a better chance of promoting children's interests than letting parents reach the decision.

2. Supporters of mediation claim that the solutions agreed by the parties are more effective than court orders in the long term,¹²³ although one study found that only one half of all mediated agreements were intact six months after they were reached.¹²⁴ There are three aspects to the argument that mediation produces more effective results. The first is that because the parties have reached the agreement themselves they will more easily be able to renegotiate it together if difficulties with the agreement subsequently arise. Secondly, the solution reached through mediation will be one which the parties can tailor to their particular lifestyles rather than being a formula applied by lawyers or judges to deal with 'these kinds of cases'. Thirdly, it is argued that, as mediation can be hard work and

¹²¹ *Piglowska v Piglowski* [1999] 2 FLR 763 HL.

¹²² Or even that there are rights that the divorcing couple have themselves which they should not be permitted to negotiate away in the process of mediation.

¹²³ HM Government (2004: para 2). For a discussion of the evidence against this proposition, see Eekelaar, Maclean and Beinart (2000: 16) and Wright (2007).

¹²⁴ Mantle (2001: 141). He regards this rate as impressive, given the level of conflict between many parties in court cases. For other studies finding no evidence that mediated agreements were longer lasting than court orders, see Davis et al. (2000: 101) and Walker (2004a: 142).

emotionally exhausting, the parties will therefore feel more committed to the agreement than if it had been given to them by a judge.

3. Mediation enables the parties to communicate more effectively. The White Paper on mediation criticises the use of lawyers as detrimental to communication:

Marriage breakdown and divorce are . . . intimate processes, and negotiating at arm's length through lawyers can result in misunderstandings and reduction in communication between spouses. Lawyers have to translate what their clients say and pass it on to the other side. The other party's lawyers then translate again and pass this on to his or her client. There can thus be a good deal of misunderstanding and a good deal of anger about what is said and how it is said.¹²⁵

Opponents of mediation argue that lawyers can filter out particularly offensive communications and so in fact reduce bitterness, while mediation, by contrast, can increase bitterness. It is said that placing people whose relationship is breaking down in a room together is bound to generate animosity and discord. Despite these arguments, it must be agreed that if mediation enables the parties to talk to each other effectively it has given them an invaluable gift. The question is: how many couples are helped and how many might find that the process of mediation exacerbates bitterness? To this we have no clear answer.

Another aspect of this argument is that supporters of mediation claim that family disputes are unsuitable for court hearings. It is argued that court hearings work reasonably well in finding out past facts: 'who did what to whom and when'; but are less effective in building up ongoing relationships. In other words, the court procedure works best if the parties are never going to have to see one another again. Mediation, it is claimed, is a more suitable basis for a long-term relationship.

4. A linked argument to the one made above is that mediation is a better forum for resolving the emotional issues involved in divorce. The mediation process can not only help to resolve the dispute but perhaps also help the parties to come to terms with their feelings about the other person and begin the post-breakdown healing process. One mediator claims that mediation enables parties to express their anger and notions of blame more effectively than the legal process.¹²⁶ This might be why, on successful mediation, parties report high levels of satisfaction with the result. While this is true where the procedure is successful, where it is unsuccessful the failure might simply increase the emotional anguish. Indeed, one psychologist has warned of the dangers of encouraging parties to put their anger to one side 'for the sake of the children', as mediators often encourage parties to do.¹²⁷
5. Mediation gives time for all issues which are important to the parties to be discussed. It has been a complaint of the legal process that it 'transforms' the parties' disputes. Their arguments are put into legal terminology and some issues that might be of concern to them are ignored.¹²⁸ For example, if a husband and wife were using lawyers and wanted help in resolving a dispute over who should keep their goldfish, lawyers would refuse to spend much time on this, regarding it as a trivial issue. Certainly a judge would not be impressed if asked to rule on who should keep the goldfish. By contrast, in mediation any matter

¹²⁵ Lord Chancellor's Department (1995: para 5.19).

¹²⁶ Richards (2001).

¹²⁷ Day Slater (1999: 180).

¹²⁸ Sarat and Felstiner (1995).

which is important to the parties can be discussed and they can put their arguments in the language they wish to use rather than transforming the issue through legal terminology. Perhaps the real concern here is public funding. Should public funds be used to resolve what appear to be trivial issues, whether in mediation or the courts? It could also be argued that the use of formal lawyer's language helps avoid antagonism between the parties, which might occur if more open language was used.

6. Mediation saves costs, or at least the Government certainly hoped that mediation would save costs. By using just one mediator rather than two lawyers, and with the hourly rate for mediators being generally less than that for lawyers, savings could be made. The Law Commission suggested that the average mediation was £550 per case, while £1,565 was the average legal aid bill per case using lawyers.¹²⁹ In fact, whether or not mediation saves money depends on the success rate of mediation. The present research indicates that if all couples were required to attend state-subsidised mediation it would be likely to lead to increased, not reduced, costs.¹³⁰ This is because of the extra costs involved when mediation fails. The Newcastle study (based on people volunteering for mediation) suggested that only about 39 per cent of mediations were wholly successful, 41 per cent were partially successful and 20 per cent failed.¹³¹ Preliminary findings of a more recent study found that 56 per cent of referrals to mediation (which included couples who had not chosen mediation) went no further than the initial meetings.¹³² For the totally failed mediations¹³³ there are inevitably greater costs than if the parties had gone to lawyers to begin with, without using mediation. If mediation is partly successful, the parties still need to consult lawyers to resolve the remaining issues. But asking a lawyer to resolve 50 per cent of a dispute does not mean incurring only 50 per cent of what the cost would have been had he or she been asked to resolve the whole of the dispute. This is because it is the gathering together of all the facts and information that takes up most of a lawyer's time and this will need to be done whether the lawyer is resolving all or only a part of a dispute. So resolving 50 per cent of a dispute may cost 75 per cent of what the fee would have been for resolving all of a dispute, in which case it is not clear that mediation actually saves costs.¹³⁴ Even if the mediation is completely successful, there are some who believe the costs will be greater.¹³⁵

An important study looking at the comparative costs of mediation and solicitor-based negotiation found that mediation could cost between 65 per cent and 115 per cent of the solicitor-based negotiation.¹³⁶ The study suggested that if the success rate for mediation fell below 60 per cent (which the evidence suggests it would be very likely to do), there would be no savings. The success rate of mediation for couples who sought mediation after attending an information meeting under the study for the Legal Services Commission was only 34 per cent for financial cases and 45 per cent for children cases.¹³⁷ A more recent

¹²⁹ Law Commission Report 192 (1990).

¹³⁰ Walker (2004a: 134).

¹³¹ In Davis's (2000) research there was 45 per cent agreement on all issues and 24 per cent on some. In Walker (2004a) only 25 per cent reached agreement on all issues.

¹³² Parkinson (2013).

¹³³ The success rate would be likely to be significantly lower if mediation were forced on all divorcing couples, as the survey covered those who had volunteered to participate in mediation.

¹³⁴ Davis, Clisby, Cumming *et al.* (2003: 5) found that 57 per cent of their sample stated that their partner was not keen to resolve the legal disputes and compromise.

¹³⁵ Davis, Clisby, Cumming *et al.* (2003: 5).

¹³⁶ Bevan and Davis (1999).

¹³⁷ Davis, Finch and Barnham (2003: 9). See similar figures for the success rate for mediation in the pilot studies: Walker (2001b: 3).

study found that 59 per cent of cases were wholly or partially successful for mediation.¹³⁸ A study¹³⁹ found that the modal costs for not-for-profit mediators was £700; and £1,200 for solicitor-mediators. However, it is impossible to know how much these would have cost had lawyers dealt with these cases. Another survey¹⁴⁰ found that on average a referral to court funded by legal aid cost £930 more than a mediated case. Such statistics are of limited use because it cannot be assumed that the cases that went to court could have been successfully mediated. More importantly, it should not just be a question of whether mediation is cheaper, but whether its benefits (or disadvantages) are worth the expenditure (or savings).¹⁴¹

E The disadvantages of mediation

1. Some opponents of mediation argue that it is in fact impossible for a mediator to be purely impartial.¹⁴² A mediator can influence the content of the agreement, through explicit as well as indirect means, such as body language or the way a mediator responds to one party's proposal.¹⁴³ Marion Severson gives an example of a mediator who, on hearing the father describe the circumstances in which he visited his children said 'that must be tough'. That was taken by the mother as an indication the mediator supported the husband's view, even though the mediator was probably trying to be empathetic.¹⁴⁴ Piper,¹⁴⁵ in her study of mediation, notes that a mediator's summaries of what has been said to date plays a crucial role in the mediation and yet often excludes what the mediator believes to be 'non-relevant matters'. Dingwall and Greatbatch found that mediators had 'the parameters of the permissible',¹⁴⁶ in other words, a band of orders they thought acceptable. There would be no intervention as long as the negotiations were within that band, but if the mediation appeared to be going beyond that band the mediator would seek to influence the discussion.¹⁴⁷

If the mediator does directly or indirectly affect the content of the agreement, then there are concerns that mediation will become, in effect, adjudication in secret. The mediator will act like a judge but without having to give any reasons or be publicly accountable for the outcome. For example, one recent study suggested that mediators often spoke of a father's right of contact with his children, even though the courts have expressly denied such a right.¹⁴⁸

2. One powerful criticism of mediation is that mediation can work against the interests of the weaker party. Weakness in the bargaining position may stem from three sources: first, a lack of information, coupled with the inability to verify presented information. Every family lawyer would say that it is common for rich spouses to portray themselves as impoverished. As mediation has a less effective method of checking levels of wealth compared with

¹³⁸ House of Commons Public Accounts Committee (2007).

¹³⁹ Davis, Finch and Barnham (2003).

¹⁴⁰ Walker (2004a).

¹⁴¹ Reid (2009).

¹⁴² As Wilson (2004: 685) points out, a mediator needs to 'connect' with clients and it is difficult to do this without becoming involved.

¹⁴³ See Richards (2005: 390) where a mediator discusses the techniques used by mediators if the negotiations are going to lead to what is thought by the mediator to be an inappropriate result.

¹⁴⁴ Stevenson *et al.* (2015).

¹⁴⁵ Piper (1996).

¹⁴⁶ Dingwall and Greatbatch (2001).

¹⁴⁷ One example given was that the mediator did not mind whether the father saw the children one weekend in three or four, but would not be happy if the father was to have no contact.

¹⁴⁸ Davis, Pearce, Bird *et al.* (2000).

disclosure mechanisms used by lawyers,¹⁴⁹ it is likely to work against the interests of the less-well-off spouse.¹⁵⁰ A party's lack of personal expert knowledge may also impede their bargaining position. For example, if one party is a trained accountant and the other has an aversion to figures then when the parties discuss what should happen to the pension or the endowment mortgage there might be an inequality of power. The second weakness in the bargaining process may result from a lack of negotiation skills. One party may regularly take part in negotiations in the course of his or her work and may be trained to push for an agreement, while the other may not. The third weakness can be psychological. Women, it is argued by some, are, in general, by nature conflict-averse.¹⁵¹ They may more readily agree rather than argue, partly as a result of being socially conditioned to avoid conflict.¹⁵² There is also an argument that women generally may put greater value on things that are not material in value and/or they may have lower self-esteem.¹⁵³ It may well be that the wife's primary concern is that she keeps the children, and is willing to agree to anything in order to achieve that goal. One survey of the research concluded that generally women were not putting their own interests first in mediation and therefore were losing out to men, who were.¹⁵⁴ There is some evidence that women are more likely to suffer depression than men at the end of a relationship, and this may affect their bargaining ability.¹⁵⁵ However, these points are controversial and there is in fact much debate over whether women do better or worse using mediation.

There are particular concerns about using mediation where the relationship has been characterised by violence.¹⁵⁶ In such cases mediators themselves accept that mediation is unsuitable because cooperation and proper negotiations can only take place where there is no abuse or fear.¹⁵⁷ The concern is whether the mediators can always ascertain those cases where there has been domestic violence.¹⁵⁸ Particularly difficult are cases where the parties do not regard themselves as victims of domestic violence.¹⁵⁹ In a recent study of mediation it was found that mediators used a variety of techniques to put domestic violence issues to one side.¹⁶⁰ It may be that increased awareness of domestic violence issues and improved training can improve the response to violence among mediators.¹⁶¹ However, at least one recent study complains that mediators lack the time and training to properly assess for domestic violence.¹⁶² Ann Barlow¹⁶³ quotes one abused woman's report of mediation: 'it was just another arena in which he could bully me'.

¹⁴⁹ Parkinson, L. (2012).

¹⁵⁰ In their sample, Davis, Clisby, Cumming *et al.* (2003: 5) found high levels of mistrust among those who were mediating.

¹⁵¹ Doughty (2009). One does not have to accept the gendered way the argument is presented in order to appreciate its weight. For example, if one party is conflict-averse, regardless of whether they are a man or a woman, they may be at a disadvantage.

¹⁵² Walker (2004a: 138) argues that women are more concerned than men with keeping the relationship amicable.

¹⁵³ Bryan (1992).

¹⁵⁴ Tilley (2007).

¹⁵⁵ Bryan (1992).

¹⁵⁶ Kaganas and Piper (1994).

¹⁵⁷ Where mediators detect a clear imbalance of power which they cannot counter they should terminate the mediation: Leach (2005).

¹⁵⁸ Barlow *et al.* (2014).

¹⁵⁹ Davis, Clisby, Cumming *et al.* (2003: 5) found that 41 per cent of women and 21 per cent of men in their sample stated that fear of violence made it difficult to resolve issues in their case.

¹⁶⁰ Trinder, Firth and Jenks (2010); Dingwall (2010).

¹⁶¹ Parkinson, L. (2011).

¹⁶² Morris (2013).

¹⁶³ Barlow *et al.* (2014).

Perhaps most fundamentally there is an issue about whether, if you believe that people have legal rights, we should have a system which does not guarantee their enforcement. Lord Dyson, a Supreme Court Judge has asked:

Can it be right that parties who have exercised their right to go to court can be forced to sit down with the individual they believe to have wronged them to try to find a compromise which would probably leave them worse off than had they had their day in court? Leaving aside any human rights issues then, in my view, this simply cannot be right . . .¹⁶⁴

The Code of Practice states that mediators:

must advise participants that it is in their own interests to seek independent legal (or other appropriate) advice before reaching any final agreement and warn them of the risks and disadvantages if they do not do so.

However, the problem is that given the cutbacks in legal aid that legal advice may not be available to less-well-off clients.¹⁶⁵

3. Mediation can be skewed by the norms of society. Neale and Smart have argued that even if one accepts that the mediators and the law are not influencing the agreement, it is wrong to believe that the values of the parties are the only ones that shape the agreement. The norms of society (which may not be legal norms) will predominate.¹⁶⁶ Researchers have found that 'folk myths' concerning what should happen on divorce can play an important part in the mediation.¹⁶⁷ Specifically, Neale and Smart are concerned that if the parties focus on protecting the children's welfare, then the burden of caring for the children will fall mostly on mothers, based on the common assumption that the woman should look after the children. Further, Neale and Smart are concerned that the money and property will be seen as belonging to the wage earner, most often the husband. So the wife will be in the weaker position of arguing for some of 'his' money, rather than discussing how to distribute 'their' money.¹⁶⁸ Similarly, it might be assumed by the parties that it is best for the child to spend an equal amount of time with each parent, although **as we shall see in Chapter 10**, the empirical data is disputed on that. This may be partly circumvented by allowing the parties to receive legal advice before or during mediation, although the more legal advice is used the greater the costs.

4. As already mentioned, there are concerns over whether mediation affects children's interests. As Richards explains:

while mediation may do much to help parents reach agreements and set up workable arrangements for children, it cannot protect children's interests. It must rely on the information about children that the parties bring to the sessions. Necessarily this information will be presented in the light of parental perceptions, hopes, fears, anxieties, and guilt. In most cases this will serve children's interests well enough, but it cannot be termed protection as it is not based on an independent view.¹⁶⁹

The autonomy argument, which is at the heart of the mediation claim, in one sense privatises the dispute. It is presented as belonging to the couple and is for them to set out. Not everyone agrees that family disputes are simply private matters. As Diduck explains:

Yet the current zeal for autonomous dispute resolution represents an unproblematic pursuit of a non-relational form of autonomy that uncritically accepts presumptions which separate

¹⁶⁴ Dyson, Lord (2010).

¹⁶⁵ Parkinson (2013).

¹⁶⁶ Neale and Smart (1997).

¹⁶⁷ Piper (1996).

¹⁶⁸ Neale and Smart (1997).

¹⁶⁹ Richards (1995b: 225).

personal relations from public ones and isolate the autonomous will or interests of individuals from the interests of others.

Diduck argues that the choices we make about family life cannot be detached from the public and social consequences they are made in and produce. A good example is gender expectations and roles in family life which can have a profound impact on gender equality. If, for example, mediated settlements exacerbate women's poverty following relationship breakdown; provide a disincentive to undertake care of children or other dependants; or reward domestic abuse, all of these will have profound impacts on the kind of society we live in.¹⁷⁰

Certainly there seems little in mediation that will ensure the rights of children are protected.¹⁷¹ Janet Walker¹⁷² suggests that children's rights under article 6 to a fair hearing may be infringed if competent children are not heard in mediation. As well as the question of whether mediation will protect the interests of children, there is also the question of whether children should be involved in the proceedings.¹⁷³ Many think that children should not be involved in the process, especially given the tension that is often felt early on in a mediation.¹⁷⁴ A middle route is that the mediator should at least meet the child so their voice can be taken into account. Indeed the Ministry of Justice have indicated support for the principle

of child inclusive practice and the adoption of a non-legal presumption that all children and young people aged 10 and above should be offered the opportunity to have their voices heard during dispute resolution processes, including mediation, if they wish.¹⁷⁵

That is only a recommendation and is not a legal requirement. If it becomes widespread, it will mean the cost of mediation will go up and mediators will need training on dealing with children.

Involving the child in mediation may help repair damaged parental-child relationships.¹⁷⁶ On the other hand, bringing the children into what may be a heated exchange of views may cause distress. Further, it should be noted that encouraging the parties to consider the interests of the parties is quite different from a legal system which requires that the interests of the children are paramount.

5. There are doubts whether mediators have the expertise to consider the complex tax and financial issues which may have to be dealt with on divorce.¹⁷⁷ For example, even experienced solicitors struggle with the valuation and sharing of pensions on divorce and most seek expert advice. To expect mediators and the couple to deal with such issues is to expect too much.
6. An argument can be made that mediation does not acknowledge the psychological realities of many divorces. Although it would be nice if every divorcing couple amicably reached an agreement over their children and finances, and that would reassure us that all

¹⁷⁰ Herring (2013a).

¹⁷¹ Dennison (2010).

¹⁷² Walker (2013).

¹⁷³ Voice of the Child Dispute Resolution Advisory Group (2015); Walker and Lake-Carroll (2014 and 2015).

¹⁷⁴ Henry and Hamilton (2012), looking at the Australian system, reported some children found being involved in mediation distressing, especially in cases where there had been violence or abuse. They noted most children were positive about their experiences, however.

¹⁷⁵ Ministry of Justice (2015b).

¹⁷⁶ Bell *et al.* (2013).

¹⁷⁷ Dingwall and Greatbatch (2001).

was well with 'the family', the anger, fear and bitterness means such a pleasant picture is for the few. It is anger, bitterness and fear that dominate, rather than a desire to sit down and talk the matter out. In a recent study, 25 per cent of those involved in mediation were dissatisfied with the mediation they received.¹⁷⁸ This was of those who had chosen to receive mediation. Mavis Maclean argues that: 'At a time of stress, men and women seek information, advice and support from someone who is committed to helping them, in preference to an impartial facilitator whose primary task is to promote an agreement rather than meet the needs of the individual client.'

7. Even if an agreement is mediated it may still be necessary to obtain a court order to ensure there is no possible legal proceeding later on. However, this may put a lawyer in a difficult position. Is the lawyer liable in negligence if they do not point out potential problems with the mediated agreement? The issue was raised *Minkin v Landsberg*¹⁷⁹ where a lawyer put a negotiated agreement into a consent order, but did not point out the disadvantages to the wife of the agreement. The wife's claim in negligence failed for several reasons: the lawyer had made it clear that he was simply putting the agreement into the form of a consent order and not offering advice on it; the client was a professional accountant who understood the nature of the agreement; and that even if the solicitor had highlighted the problems the client would have instructed the solicitor to proceed nonetheless. Although that claim failed it does highlight the dangers for a lawyer in such a case. Indeed, it may well be that many lawyers will rather not handle such cases (especially as they will not be well paid) and if so that will cause problems for mediated agreements.

A study by a group based at Exeter University¹⁸⁰ found far higher rates of satisfaction with clients who used negotiation through solicitors or collaborative family law (to be discussed shortly) over mediation. Lisa Parkinson¹⁸¹ thinks we cannot read too much into such findings:

This is hardly surprising, since solicitors are partisan even when they work collaboratively, whereas in mediation, divorcing couples and separated parents face each other with an impartial mediator who does not support either of them individually. Comparing satisfaction rates of clients who used negotiations via solicitors or collaborative law with satisfaction rates of mediation participants could be described, simplistically, as comparing apples with lemons.

However, others will reply that the fact that solicitors are partisan is a point in favour of solicitor led negotiation: it means that clients are protected from an inequality in the parties.

F The false dichotomy of mediation and litigation

In considering the benefits and disadvantages of mediation it is important to stress that the choice is not between mediation and litigation in the courtroom, but rather between mediation and negotiation between lawyers.¹⁸² The image of lawyers aggressively fighting cases out

¹⁷⁸ House of Commons Public Accounts Committee (2007).

¹⁷⁹ [2015] EWCA Civ 1152.

¹⁸⁰ Barlow *et al.* (2014).

¹⁸¹ Parkinson (2013).

¹⁸² Eekelaar, Maclean and Beinart (2000).

in the courtroom is exceptional.¹⁸³ In fact, few cases actually reach the courts for settlement. Davis *et al.* noted:

... some solicitors gave us the impression that they regarded trials of the ancillary relief issue in much the same light as they viewed the white rhino – a possibly mythical creature which was outside their immediate experience.¹⁸⁴

A recent study of clients' experiences of solicitors found no evidence of lawyers as 'aggressive troublemakers'.¹⁸⁵ A cynical response is to suggest the mediators' profession has worked effectively to present lawyers as aggressive litigators to encourage the Government to give them more work.¹⁸⁶

Supporters of a lawyer-based approach argue that negotiations between lawyers ensure that the bargaining process is on an equal footing and that values which the law wishes to promote can infiltrate the negotiations. The lawyer also plays an important role in being partisan: being on the side of the client.¹⁸⁷ It is, of course, possible to go through the divorce procedure without using lawyers and mediators. To many clients, having someone to take their side and fight their corner is of great psychological benefit during the trauma of divorce. Interestingly, of clients who had used both lawyers and mediators in one study, 60 per cent stated that their lawyers had been helpful, but only 35 per cent their mediators.¹⁸⁸ In a recent study¹⁸⁹ 67 per cent of those who had divorced said they were satisfied or fairly satisfied with their solicitors; 22 per cent were dissatisfied or very dissatisfied. The complaints particularly centred on the failure of solicitors to take account of the stressful and emotional aspects of the divorce. Satisfaction with solicitors was notably higher than with mediators.¹⁹⁰

G Collaborative family law

Collaborative law is an approach which has been adopted and developed by quite a number of firms of solicitors.¹⁹¹ At its heart is a rejection of litigation as a helpful way of resolving financial disputes and the development of five principles:

- There is to be an open but privileged sharing with the other participants of advice and information.
- There is to be a face-to-face, four-way meeting (two clients, each with their lawyer) designed to reach an agreement.¹⁹² They may also be assisted by other professionals, such as an accountant.
- The negotiations are interest-based. This means that the process begins by identifying the interests of the parties and then negotiations seek to find a solution to meet those interests. This differs from the orthodox approach of each party setting out what they want.

¹⁸³ Davis (2000).

¹⁸⁴ Davis, Cretney and Collins (1994: 40).

¹⁸⁵ Davis, Finch and Fitzgerald (2001).

¹⁸⁶ Dingwall (2010).

¹⁸⁷ Davis, Finch and Fitzgerald (2001).

¹⁸⁸ Davis, Clisby, Cumming *et al.* (2003: 11).

¹⁸⁹ Newcastle Centre for Family Studies (2004).

¹⁹⁰ For a more negative view of the relationship between solicitors and clients, see C. Wright (2006) who finds that clients and solicitors face difficulties in communicating.

¹⁹¹ See Healy (2015) for a helpful analysis.

¹⁹² Bishop *et al.* (2011); Wright (2011).

- The clients and lawyers commit to resolving issues without the court.
- Participants sign a formal participation agreement, including that the lawyers will not represent the parties in any litigation if the negotiations break down.

Users claim a success rate of over 85 per cent and increased rates of satisfaction from clients.¹⁹³ There is much that is attractive about this model, which in a way formalises what was common practice in the past. It has received support from the judiciary, being described in *S v P (Settlement by Collaborative Law Process)*¹⁹⁴ as designed 'to provide as much encouragement as possible to people to resolve their difficulties in this civilised and sensible way'.¹⁹⁵ Supporters claim it can be significantly cheaper than court-based remedies. Of course it is of no assistance for those who cannot afford legal advice.

Collaborative family law is not without its critics. There have been concerns that people feel under considerable pressure to reach an agreement. The process is about putting the client in charge of the settlement, with the lawyers being facilitators of that. If a party is particularly meek or attaches great significance to one issue and is willing to sacrifice anything for one issue, their interests may not be adequately protected. Katherine Wright's study¹⁹⁶ found cases where agreements were reached which the lawyers agreed they would have urged their clients not to agree to in a traditional negotiation approach. Solicitors using collaborative family law can be put in a difficult position if they feel their clients are not negotiating effectively or are agreeing to a settlement which is much to their disadvantage.

A more recent development is 'collaborative law lite'.¹⁹⁷ This is similar to collaborative law but does not have the requirement that lawyers cannot act for the parties if the negotiations break down. To opponents this means the lawyers have no incentive to ensure agreement is reached and that there is a danger that openness does not take place as the risk of litigation hangs large over the meeting. The benefit to the lawyers is that if the collaborative system does not work, they do not lose the clients.

8 Arbitration

An alternative to mediation is arbitration.¹⁹⁸ This involves the parties asking an arbitrator, normally an experienced family lawyer, to resolve their dispute.¹⁹⁹ Arbitrators need to be paid and normally the parties will be legally represented, and so this is an option for the wealthy. The parties may seek to involve a member of the Institute of Family Law Arbitrators (IFLA), but there is no requirement to do this. The arbitrator will hear the evidence and arguments of both parties and resolve the issue, very much as a judge would. Normally the arbitrator will agree to apply the law in England and Wales, although there is nothing to stop the parties to agreeing the law of some other jurisdiction being used.

The primary appeal of arbitration is likely to be privacy.²⁰⁰ Arbitration might also appeal to the parties because it tends to be slightly cheaper than a full court hearing. It can also

¹⁹³ Bishop *et al.* (2011).

¹⁹⁴ [2008] 2 FLR 2040.

¹⁹⁵ Thompson (2013).

¹⁹⁶ Wright (2011).

¹⁹⁷ Bishop *et al.* (2011).

¹⁹⁸ Practice Guidance, Arbitration in the Family Court (2015) governs the procedural aspects.

¹⁹⁹ Bennett (2014).

²⁰⁰ Singer (2012). Practice Guidance, Arbitration in the Family Court (2015) provides for ensuring confidentiality is maintained even if the parties require a consent order.

operate more quickly in some cases. There can be flexibility over the timings and structure of the hearing. The parties can also ask the arbitrator to rule on matters which a judge would be reluctant to do so, such as who should keep a pet.

Typically the parties will agree to be bound by the ruling of the arbitrator. However, in many cases it will be necessary for the parties to obtain a consent order from a court to approve the agreement, particularly if the parties want to obtain a clean break (see Chapter 6). This means that the arbitrator will seek to make an award which they believe is in line with legal principles and will be accepted by the court.

There has been judicial approval of the use of arbitration in *S v S (Financial Remedies: Arbitral Award)*.²⁰¹ Sir James Munby heard a case where the couple had arbitrated their financial dispute under an IFLA scheme. The parties presented the award of the arbitrator for the approval of the court and to be made into a court order. Sir James Munby stated:

Where the consent order which the judge is being asked to approve is founded on an arbitral award under the IFLA Scheme or something similar (and the judge will, of course, need to check that the order does indeed give effect to the arbitral award and is workable) the judge's role will be simple. The judge will not need to play the detective unless something leaps off the page to indicate that something has gone so seriously wrong in the arbitral process as fundamentally to vitiate the arbitral award. Although recognising that the judge is not a rubber stamp, the combination of (a) the fact that the parties have agreed to be bound by the arbitral award, (b) the fact of the arbitral award (which the judge will of course be able to study) and (c) the fact that the parties are putting the matter before the court by consent, means that it can only be in the rarest of cases that it will be appropriate for the judge to do other than approve the order. With a process as sophisticated as that embodied in the IFLA scheme it is difficult to contemplate such a case.²⁰²

He accepted it was always open to a party to seek to persuade a court to reject the award of the arbitrator but indicated that very compelling reasons would be required to do so. Only in the 'rarest of cases' would a court decline to follow the proposed award. In *DB v DLJ (Challenge to Arbitral Award)*²⁰³ Mostyn J warned that 'almost never' will a court decline to follow an arbitrator's award because it is 'wrong' or 'unjust'. However, success is more likely where there is an allegation that there was fraud or there has been a supervening event following the arbitration which has undermined the basis of the award. In such a case the court will follow the general approach they use in cases where an application is made to set aside a consent order, discussed in Chapter 7. An appeal is also possible on the basis the arbitrator has made a mistake of law.

The argument used in *S v S* for giving weight to the arbitration award was autonomy. Indeed Munby P seems to suggest that the case for giving weight to an arbitration award is even stronger than the case for a pre-nup. This has been questioned by Lucinda Ferguson²⁰⁴ who argues:

In relation to nuptial agreements, the parties thus understand the nature of any proposed final outcome before they agree to restrict their future choices, whereas parties agreeing to arbitration do not. When contrasted in that light, there may be a good case for arguing that, to the extent that one is 'of its nature even stronger' than the other, it is in fact nuptial agreements that are a greater expression of the parties' autonomy than arbitral awards.

²⁰¹ [2014] EWHC 7 (Fam).

²⁰² Para 21.

²⁰³ [2016] EWHC 324 (Fam).

²⁰⁴ Ferguson (2015a).

Arbitration does offer some advantages over mediation. The vulnerable party has the reassurance that they will not be pressurised into agreeing to something which is disastrous for them. An experienced professional (the arbitrator) will determine what is fair and one can assume that the result will, at least, not be manifestly unfair. However, the agreement is imposed from 'outside' on the couple. They are not in control of its content in a way the parties are in mediation.

The primary disadvantage of arbitration is its costs. Not only must the lawyers' costs be met, so too must the payment of the arbitrator, the venue and the costs of the court hearing approving the order. It might, therefore, be more costly than a court resolved dispute.²⁰⁵ Even the advantage of privacy may not really be a benefit because as Lucinda Ferguson put it 'confidentiality may hide potential injustice to one party'.²⁰⁶ Despite these points, especially among wealthier clients, arbitration appears to be becoming an increasingly popular option for resolving family law disputes.

9 Religious tribunals

Learning objective 5

Consider the issues around the use of religious tribunals

One form of arbitration which has attracted considerable public attention is a couple applying to a religious court to resolve their family dispute. To some the use of religious tribunals should be no different from the use of any arbitrator scheme. If the couple feel that the religious court will deal fairly with their dispute we should respect their decision. Should it really matter whether the person they ask to help them resolve their dispute is a retired judge, a friend or a religious cleric?

Penny Booth voices the concerns of others with such recognition of these courts: 'The danger is in the development of a parallel system of (any) law where the choice as to which system or principle is used is determined not by the individual or the issue but by the group bullies. In family law this danger could arise where the determination of system and approach is not made by the woman but the man: not through the female but through the male-dominated system.'²⁰⁷ In particular there are concerns that the Sharia councils work in a way which fails to protect the rights of women and at worst condone domestic abuse.²⁰⁸

John Eekelaar has suggested that giving effect to agreements reached following an order of a religious court should be made, as long as the agreement was genuine, followed independent advice and was consistent with 'overriding policy goals', such as the best interests of children.²⁰⁹

The issue came to a head with the Arbitration and Mediation Services (Equality) Bills of 2011, 2013 and 2015. These Bills, which have repeatedly failed in Parliament, are designed to ensure that Sharia courts or other religious courts or bodies do not claim legal jurisdiction over family law. There is a particular concern that religious courts would not protect the fundamental rights of women. The Bills failed but they would have created a criminal offence of falsely claiming jurisdiction of a criminal or family matter. They would also have stated that the sex discrimination provisions of the Equality Act 2010 apply to tribunals.

²⁰⁵ Ferguson (2013a).

²⁰⁶ Ferguson (2013a).

²⁰⁷ Booth (2008: 395). For further discussion, see Ahmed (2010).

²⁰⁸ Zee (2016) is a powerful and critical account.

²⁰⁹ Eekelaar (2011a).

Many people were unconvinced that this was an appropriate way to deal with the issue. John Eekelaar has written:

It is a mistake to think of Sharia as a monolithic system, impervious to change. In fact the bodies apply it in different ways, and it is subject to internal arguments and contestation. Might it be better to allow it to develop within its communities, responding to its internal critiques and influenced by the culture around it?²¹⁰

A helpful study of the work of religious tribunals has indicated that the tribunals were aware of the limits of their jurisdiction and tended to focus on religious issues flowing from relationship breakdown.²¹¹ This suggests the fears that religious courts will take over the work of family courts is misguided.

The issue has now been addressed by the court.

CASE: *AI v MT (Alternative Dispute Resolution)* [2013] EWHC 100 (Fam)

The case involved a couple who wished to refer their dispute over children to a religious court, the New York Beth Din. They were orthodox Jews with an international lifestyle and wanted the issue resolved by the New York Beth Din. Baker J made it clear that the agreement could not remove the court's jurisdiction and so only a non-binding process could be accepted. He received confirmation from the rabbi arbitrator that the court would apply the principle that the interests of the children were paramount and would take all the material information into account. He therefore endorsed the proposal to refer the dispute for non-binding arbitration. Subsequently he approved of the agreements reached by the court in relation to financial order and children. He emphasised that in doing so he was not departing from the welfare principle or undermining the role of the court. The court could never be bound to depart from that principle through respect of the religion. However it was in the interests of parties to resolve dispute by agreement and to avoid court proceedings if possible.

It is important to stress a number of crucial aspects of this case.²¹² It came before the court with the agreement of all the parties, who had receive full legal advice. Also the religious court was able to confirm the welfare of the child would be paramount. Further the agreement was still subject to the endorsement by the court and it will be open to a court to decide not give effect to the ruling reached by the religious court. In other jurisdictions where a similar route has been adopted it seems that the secular courts nearly always do give effect to the decision of the religious tribunal once it has been approved by the court.²¹³

Making the determination of the religious tribunal non-binding goes some way towards mitigating the concerns of those who are worried that the decisions of the religious tribunals will undermine the rights of the family members (especially women) or fail to protect the interests of children. It manages to convey a recognition for the validity of those tribunals while retaining the final say for the courts. Of course this all depends on the extent to which the courts are seen as providing a 'double check' on the decision of the tribunal. If the courts

²¹⁰ Eekelaar (2011a).

²¹¹ Douglas *et al.* (2012).

²¹² See the discussion in Pearce (2013) and Tolley (2013).

²¹³ Tolley (2013).

are seen to rubber stamp the decisions of religious courts then the concerns over women and children become greater. One issue that the courts will be particularly aware of is that the phrase 'children's welfare' can be understood in a range of ways. A religious court could, for example, claim to put the children's welfare first, but then determine that it is always in the welfare of the child to be raised by the father. In *AI v MT (Alternative Dispute Resolution)*²¹⁴ Baker J was satisfied that the understanding of children's welfare taken by the tribunal would match that of the law.

There are other concerns over the use of religious tribunals. One is whether there is a genuine consent to the process. It was key in *AI v MT (Alternative Dispute Resolution)*²¹⁵ that the parties both received extensive independent legal advice. However, it is not difficult to imagine cases where familial and cultural pressure is such that a person will feel they have no choice but to accede to the religious court of their culture, even if they are provided legal advice.

In a positive light it might be argued that the procedure adopted in *AI v MT (Alternative Dispute Resolution)*²¹⁶ will mean that the law can exert a positive influence on religious tribunals. In order to promote their recognition and standing the tribunals will want to have their validity accepted by the courts. This means they will ensure that their judgments reflect basic principle of human rights and the welfare of the child.²¹⁷

10 Conclusion

A recent study of over 100 family law practitioners found that around half believed that in the future lawyers will not be the first port of call for divorcing couples.²¹⁸ Increasingly, it seems, people will resolve issues on family breakdown without any legal involvement and rely on mediation.

It is generally accepted that the state has a responsibility to ensure there is a fair and effective means of resolving family legal disputes.²¹⁹ The question is how the state meets that responsibility. The issue facing family law currently is whether mediation or self-represented legal proceedings are adequate. It may be that a model which combines legal advice and mediation will be developed further in the future.²²⁰ At the moment, mediation in part moves the disputes beyond the reach of the state. This can be seen in some of the rhetoric of describing disputes as 'relationship problems' rather than legal disputes. This implies that family disputes should be seen as more of a personal emotional problem, rather than one involving legal rights. Their solution is more about emotional intelligence and therapy, than with justice or legal rights.²²¹ However, as we have seen, plenty of commentators believe that the resolution of family disputes has a profound impact upon society more generally and they cannot be categorised as simply private squabbles.

It is already clear that the cutbacks in legal aid mean that many people who would previously have had access to legal advice to deal with their family disputes will no longer have the

²¹⁴ [2013] EWHC 100 (Fam).

²¹⁵ [2013] EWHC 100 (Fam).

²¹⁶ [2013] EWHC 100 (Fam).

²¹⁷ Tolley (2013) and Eekelaar (2013c).

²¹⁸ Mills and Reeve (2015).

²¹⁹ Diduck (2014a).

²²⁰ Maclean and Eekelaar (2016).

²²¹ Doughty and Murch (2012).

benefit of that. Christine Piper argues that the cutbacks in legal aid will particularly affect women, ethnic minorities and people with disabilities.²²² The legal aid reductions will lead to a radical shift in the work of family law solicitors. Many will have to move to other areas of work. Far more important is that without access to legal advice and courts people will be left to fend for themselves through mediation. Some, the rich and the strong, will do so without undue difficulty. Others, the weak and poor, will not.²²³ Their rights will go unprotected; their children will be ignored by the law; justice will not be done.

Further reading

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3

Marriage, civil partnership and cohabitation

Learning objectives

When you finish reading this chapter you will be able to:

1. Recall key statistics on marriage
2. Explain and evaluate how different theories define marriage
3. Appreciate why people marry
4. Contrast the status and contract view of marriage and understand the implications of each
5. Explain how a presumption of marriage can arise and how it can be rebutted
6. Differentiate between divorce, nullity, a void marriage, a voidable marriage and a non-marriage
7. Explain the grounds on which a marriage is void
8. Explain the grounds on which a marriage is voidable
9. Explain and evaluate the law relating to civil partnerships
10. Explain how the law has defined cohabitation
11. Compare and contrast the legal position of spouses and civil partners with unmarried couples
12. Appreciate potential reform options for marriage

1 Introduction

In most societies around the world it is widely accepted that it is best for children to be brought up in 'stable intimate partnerships' and that such partnerships can provide adults with much personal fulfilment. The regularisation of these stable relationships has in England and Wales been channelled through marriage, but marriage worldwide is a hugely varied phenomenon.¹ For example, there is no agreement over whether marriage is

¹ For a wonderful history of marriage, see Probert (2009a).

polygamous or monogamous (i.e. how many parties there should be to a marriage); whether or not the upbringing and/or nurturing of children is central to the concept of marriage; whether marriage partners should be chosen by the parties themselves or by their wider family; or at what age marriage is appropriate. In Britain, in our culturally diverse society, it would be difficult to say anything about the nature of marriage that would be true for all married couples. Traditionally, it has been the Christian conception of marriage which has been dominant, although it is far from clear exactly what that conception is, with considerable debate within churches over what marriage should mean.² This was particularly evident in the debates surrounding the Marriage (Same Sex Couples) Act 2014.

Increasingly there is a tension between religious and legal conceptions of marriage.³ England is unusual in allowing some religious ceremonies of marriage to also be legal marriages. However, legal marriages can take place in circumstances which would not be approved by many churches.⁴ Most notably while marriage between those of the same sex is permitted in law, only a few Christian denominations currently permit same-sex marriage.⁵ The Church of England does not. It is interesting that some religious groups have even seen the need for legal marriages to be bolstered by special religious pledges, involving commitments beyond the legal obligations of marriage.⁶ We are gradually moving to the position where legal and religious marriages are seen as being different things, which is the position in most countries.

Marriage used to be the main focus of family law. Textbooks would concentrate on discussion of the formalities of marriage, the consequences of marriage, and its dissolution. However, today, many commentators on family law feel that parenthood is the core concept in family law⁷ and that marriage is of limited legal significance. Alison Diduck and Felicity Kaganas have suggested that 'marriage is both central and peripheral to family law but arguably remains at the heart of family ideology'.⁸ Their argument is that, while the legal consequences of marriage are limited, the symbolic nature of marriage still plays an important part as providing an image of what the ideal family should be. That said, marriage still creates some important legal consequences – it would not be possible for a lawyer to advise a client over a family matter unless the lawyer knew whether the couple were married. For example, as we shall see in Chapter 8, marriage still plays a role in determining who is the parent of a child.

There are two particular challenges that threaten to limit the legal significance of marriage even further. First, as marriage has become easier to enter and to exit, any claim that it is a special relationship deserving of particular respect becomes harder to maintain. Secondly, there are arguments that those who are unmarried but live together in many ways like a traditionally married couple should be treated in the same way as a married couple.⁹ These pressures make it harder to claim a unique status for marriage.

² Thatcher (2011).

³ Edge (2016).

⁴ National Statistics (2008d) records that 68 per cent of all marriages were civil ceremonies (i.e. not in a church or other religious building).

⁵ E.g. the Quakers, the United Reform Church.

⁶ E.g. the Promise Keepers movement in the US, discussed critically in Fineman (2004: 130–1).

⁷ Parkinson (2011) emphasises that parenthood, unlike marriage, is indissoluble.

⁸ Diduck and Kaganas (2006: 30).

⁹ Thornton, Azinn and Xie (2007).

2 Statistics on marriage

KEY STATISTICS

There were 23.8 million people who were married in 2015. This was 50.6% of the population aged 16 and over. Just under 40% of the population are single. The percentage of the population who are married has been gradually falling and it has been estimated that it will fall to 42% by 2033. Of those born in 1930, 90% of men and 94% of women had married by age 40. In contrast, of those born in 1970, 63% of men and 71% of women had married by the same age.¹⁰ In 2015, there were 12.5 million married families, representing 67.6% of all families.¹¹

In 2013, the provisional number of marriages in England and Wales was 240,854, an 8.6% decrease from 2012, but it should be noted that this is the first year marriage rates have fallen since 2009. The Office for National Statistics offers one explanation for the drop: “The fall in 2013 may be due to couples choosing to postpone their marriage to avoid the number 13, which can be perceived as unlucky!” In 2013, the number of men marrying per 1,000 unmarried men aged 16 or over was 22.5; for women the rate was 20.4.¹² These rates were a drop from the rates in the year 2000, which were 29.5 and 25.7. It should be noted that these figures do not take account of people who marry abroad.

Significantly, in 2014, 33% of marriages were second or further marriages for at least one of the parties.¹³ This suggests that there are numbers of people marrying, divorcing and remarrying who are keeping the numbers of marriages at their present rate. Also of note is the fact that 72% of marriages were civil ceremonies (i.e. did not take place in a religious building). Civil marriages first exceeded religious ceremonies in 1976, and have consistently outnumbered religious marriages every year since 1992. It seems, therefore, for only a minority of people is marriage a particularly religious matter.

The number of people who choose not to marry at all has greatly increased. Soon we will be in the position of marriage not being the norm for adults in the United Kingdom. Barlow *et al.* suggest that we are at a time ‘where unmarried cohabitation is quite normal and where marriage is more of a lifestyle choice rather than an expected part of life’.¹⁴ In fact, as the statistics above suggest, it is living as a single person¹⁵ which is becoming increasingly common.

Levels of wealth can significantly affect the likelihood of marriage. Benson¹⁶ notes that ‘of mothers with children under five, 87% of those in higher income groups are married compared to just 24% of those in lower income groups’.

Learning objective 1

Explain and evaluate how different theories define marriage

The significance of marriage as a cultural concept appears to be changing.

Whether or not marriage is in terminal decline remains to be seen. It is clear that the nature of marriage is changing. Three points in particular are worth noting. First, the average age of first marriage in England and Wales has changed – the average age of marriage has risen from 23 for men and 21.4 for

¹⁰ Office for National Statistics (2014f).

¹¹ Office for National Statistics (2015a).

¹² Office for National Statistics (2016b).

¹³ Office for National Statistics (2016b).

¹⁴ Barlow *et al.* (2005: 49).

¹⁵ Even though in a relationship.

¹⁶ Benson (2015).

women in 1975 to 36.7 for men and 34.3 for women in 2013.¹⁷ Secondly, it is now commonplace for a couple to cohabit before marriage.¹⁸ Thirdly, the likelihood that marriage will end in divorce has greatly increased.¹⁹

3 What is marriage?

A The meaning of marriage

Learning objective 2

Explain and evaluate how different theories define marriage

It is impossible to provide a single definition of marriage. Marriage involves a complex mix of social, legal, religious and personal issues. Indeed, one approach is to say that one cannot define marriage because marriage is whatever the parties to a marriage take it to mean. Thus, a Christian couple seeking to base their marriage on biblical principles may well see their marriage in very different terms from a couple who understand their marriage to be open and short term, entered into for tax purposes. Further, the wife's experience and understanding of marriage may be very different from the husband's. At one time a common marriage vow of a wife was that she be 'bonny and buxom in bed and board'.²⁰ As this indicates, expectations of the obligations of marriage have changed over time.

Martha Fineman has written:

Marriage, to those involved in one, can mean a legal tie, a symbol of commitment, a privileged sexual affiliation, a relationship of hierarchy and subordination, a means of self-fulfilment, a social construct, a cultural phenomenon, a religious mandate, an economic relationship, the preferred unit for reproduction, a way to ensure against poverty and dependence on the state, a way out of the birth family, the realization of a romantic ideal, a natural or divine connection, a commitment to traditional notions of morality, a desired status that communicates one's sexual desirability to the world, or a purely contractual relationship in which each term is based on bargaining.²¹

And this, she suggests, is not an exhaustive list. The lack of a clear definition of marriage may be a sign of the times. It reflects the religious, cultural and ethnic diversity within our society.²² As Glendon writes:

the lack of firm and fixed ideas about what marriage is and should be is but an aspect of the alienation of modern man. And in this respect the law seems truly to reflect the fact that in modern society more and more is expected of human relationships while at the same time social changes have rendered those relationships increasingly fragile.²³

But it would be too easy to see marriage as simply being whatever the parties want it to be, because this denies a wider understanding of marriage within society, in particular the role it plays as an ideal that people aspire towards. Not everyone agrees that marriage is still something aspired to. Rosemary Auchmuty suggests it is generally regarded as old-fashioned and

¹⁷ Office for National Statistics (2016b).

¹⁸ Park *et al.* (2013) cite research indicating that eight out of 10 first-time married couples live together first.

¹⁹ See Chapter 4.

²⁰ Instone-Brewer (2002: 231).

²¹ Fineman (2004: 99).

²² Eekelaar (2007).

²³ Glendon (1989).

based on sexist assumptions. People feel they need to justify why they are getting married these days, rather than having to explain why they are not.²⁴ Marriage can be examined from a number of perspectives:

(i) Functional

From a functionalist approach it would be necessary to decide what the purpose of marriage is. Some insist that children are at the heart of marriage. Hoggett *et al.* suggest: 'If nothing else, then, marriage is about the licence to beget children.'²⁵ However, given nearly as many children are born to unmarried couples as are born to married ones that appears a little outdated. Engels,²⁶ on the other hand, saw the role of marriage and family as an integral part of the regulation of private property and the creation of legitimate heirs. Others would emphasise the role of creating an environment of love and comfort for the spouses and any children.

(ii) Psychological

Others analyse marriage by considering the psychological need to marry and the psychological interactions between the two marriage partners. Anthony Giddens, developing the concept of the 'pure relationship' has argued that modern intimate relations are entered into 'for what can be derived by each person from a sustained association with another; and . . . is continued only in so far as it is thought by both parties to deliver enough satisfaction for each individual to stay within it'.²⁷ In other words, people are now more individualistic and are only willing to stay in relationships so long as they feel they personally are benefiting from them.²⁸

(iii) Political

It is also possible to consider the role marriage plays in wider society. Some see the subjugation of women as the essence of marriage. Marriage has been described as 'a public form of labour relationship between men and women, whereby a women pledges for life (with limited rights to quit) her labour, sexuality and reproductive capacity, and receives protection, upkeep and certain rights to children'.²⁹ Baroness Hale, however, has rejected the argument that there should nowadays be a feminist objection to marriage: 'These are not the olden days when the husband and wife were one person in law and that person was the husband. A desire to reject legal patriarchy is no longer a rational reason to reject marriage'.³⁰

(iv) Religious

There is a wide variety of religious understandings of marriage.³¹ Some religions teach of a spiritual union between spouses on marriage, with the spouses' love reflecting God's love.³² Some religions regard marriage as indissoluble, although others do not take a hard line on divorce. Some religious groups teach that marriage must be between an opposite sex couple,

²⁴ Auchmuty (2009).

²⁵ Hoggett *et al.* (2003).

²⁶ Engels (1978).

²⁷ Giddens (1992: 58).

²⁸ Lewis (2001a; 2001b). See Bettel and Herring (2014) for a tongue in cheek response that marrying a robot may be appropriate for the 'pure relationship'.

²⁹ Lenard (1980).

³⁰ *Re P* [2008] UKHL 38, para 109.

³¹ Thatcher (2011).

³² Pontifical Council for the Family (2000).

others are very open to same-sex marriage. In England and Wales the law's understanding of marriage has historically been strongly influenced by Christian theology.³³ In *Sheffield CC v E and S*, Munby J stated that 'although we live in a multi-cultural society of many faiths, it must not be forgotten that as a secular judge my concern . . . is with marriage as a civil contract, not a religious vow'.³⁴ This is hardly controversial, but the fact that Munby J felt it was necessary to say what he did indicates the hold of religion over the notion of marriage.³⁵

B The legal definition of marriage

The most commonly cited definition of marriage in the law is that in *Hyde v Hyde and Woodhouse*:³⁶ 'the voluntary union for life of one man and one woman to the exclusion of all others'. This is perhaps better understood as an ideal promoted by the law rather than a definition as such. As we shall see, it is quite possible to have a legally valid marriage which is entered into involuntarily,³⁷ is characterised by sexual unfaithfulness, and is ended by divorce. Contrast the *Hyde* definition with the more recent definition of marriage provided by Thorpe LJ: 'a contract for which the parties elect but which is regulated by the state, both in its formation and in its termination by divorce because it affects status upon which depend a variety of entitlements, benefits and obligations'.³⁸ Notably, this has no requirement that the parties are opposite sex; that the marriage is for life; or monogamous. Indeed, it seems only the 'voluntariness' element of the *Hyde* definition remains in his formulation. It should not, however, be thought that Thorpe LJ's definition represents the current law. Lord Millet demonstrated that some members of the judiciary have a more traditional understanding of the concept when he stated in a dissenting judgment:

Marriage is the lawful union of a man and a woman. It is a legal relationship between persons of the opposite sex. A man's spouse must be a woman; a woman's spouse must be a man. This is of the very essence of the relationship, which need not be loving, sexual, stable, faithful, long-lasting, or contented.³⁹

The Marriage (Same Sex Couples) Act 2014 which permits same sex marriage makes Lord Millet's definition now out of date.

In fact, it is probably most accurate to say the law does not attempt to define marriage as such. The law has had much to say about who can marry whom and how the relationship can be ended, but says very little explicitly about the content of the relationship itself. In fact, it would be possible for a couple to be legally married but never to have lived together or had any kind of relationship.⁴⁰ In *R (on the Application of the Crown Prosecution Service) v Registrar General of Births, Deaths and Marriages*⁴¹ the Crown Prosecution Service sought an order preventing a marriage between a man charged with murder and the woman intended to be the main prosecution witness at his trial. It was argued that the marriage was being entered into so that she would not be a compellable witness against him. However, the Court of

³³ Scott and Warren (2001).

³⁴ [2004] EWHC 2808 (Fam), para 116.

³⁵ See Probert (2012a) and Douglas (2015) for a helpful discussion on the links between civil and religious marriage.

³⁶ (1866) LR 1 PD 130 at p. 133, per Lord Penzance. This definition is discussed in Probert (2007e).

³⁷ If a marriage is not entered into voluntarily, the marriage will be voidable, which will mean that it is a legally valid marriage, but can still be set aside if the pressurised party wishes to have the marriage annulled.

³⁸ *Bellinger v Bellinger* [2001] 2 FLR 1048, at para 128.

³⁹ *Ghaidan v Godin-Mendoza* [2004] UKHL 30.

⁴⁰ *Vervaeke v Smith* [1983] 1 AC 145.

⁴¹ [2003] 1 FCR 110; [2003] QB 1222.

Appeal refused to grant the order. It would not examine the reason why the couple wanted to marry and consider if it was a valid one.⁴² This is not surprising because the law cannot force a married couple to live in any particular relationship. The law on marriage merely provides parameters within which the couple are free to develop the content of their marriage as they wish.

C Why do people marry?

Learning objective 3

Appreciate why people marry

Several studies have sought to discover why people marry.⁴³ Of course, the decision is rarely made entirely on rational grounds.⁴⁴ Hibbs *et al.*⁴⁵ carried out an interesting study into why people married. Forty-two per cent of those engaged people questioned gave 'love' or 'love and . . . ' as the reason for marriage. A further 13 per cent stated the reason for marriage as being a sign of commitment and 9 per cent as marriage being a sign of progression of their relationship. Three per cent said they did not know why they were getting married! Three factors which might have been expected to appear were rarely mentioned: only 4 per cent mentioned children being a reason to marry; less than 1 per cent mentioned religion;⁴⁶ and none gave legal reasons for getting married.⁴⁷ A study by Eekelaar and Maclean⁴⁸ emphasised that different ethnic groups gave different reasons for marriage. They found that among some communities religious reasons and a desire to please parents constituted an important reason for marrying. They suggested that reasons for marrying could be divided into three categories: pragmatic (e.g. for legal reasons); conventional (e.g. pressure from parents, religious belief); or internal (e.g. to affirm their commitment to each other).⁴⁹ They found that the vast majority of their respondents referred to conventional or internal reasons in explaining their decision to marry.

Alissa Goodman and Ellen Greaves⁵⁰ in a survey of the evidence concluded that a couple are more likely to marry rather than cohabit if:

- the mother is of Indian, Pakistani or Bangladeshi ethnicity;
- the mother is religious;
- the mother's parents did not separate;
- there are no children of previous partners in the household;
- the mother and father have high levels of education;
- the parents own their own home;
- the couple lived together for longer prior to the child's birth;

⁴² See also *M v H* [1996] NZFLR 241 where the New Zealand court upheld the marriage of two students entered into solely so that their parents' wealth would not be taken into account in calculating the level of their grant.

⁴³ Much less research has been carried out on why people cohabit, but see Smart (2000a) and Barlow *et al.* (2005).

⁴⁴ Barlow (2009a).

⁴⁵ Hibbs, Barton and Beswick (2001). See also Barlow *et al.* (2003).

⁴⁶ Kiernan (2001) found a strong link between marriage rates and religious belief.

⁴⁷ Although 3 per cent stated that legal considerations had influenced their decision to get married. In fact, 41 per cent of those questioned thought (quite incorrectly) that marriage would not change their legal rights and responsibilities towards each other. See also Barlow *et al.* (2005: 56).

⁴⁸ Eekelaar and Maclean (2004).

⁴⁹ See Douglas (2016) for an interesting discussion of the nature of commitment.

⁵⁰ Goodman and Greaves (2010b: 5).

- the pregnancy was planned;
- the mother was 20 or older when her first child was born;
- there is more than one child in the household;
- the parents have a higher relationship quality when the baby is nine months old.

Another study, looking at why people did not marry, found that the most common reason given was that people could not afford it (21.8 per cent of those questioned).⁵¹ The cost of marriage is also sometimes given as a reason for delaying marriage. One website suggested that the average cost of marriage was £30,111.⁵² This will represent many years' savings for most couples. A marriage need cost only £46 (the registry office fees), but the reception, honeymoon, etc. that go along with the modern wedding create significant additional expense. One couple attracted publicity recently, spending 'only' £480 on a 'bargain wedding'.⁵³

4 Marriage as a status or contract

Learning objective 4

Contrast the status and contract view of marriage and understand the implications of each

Marriage could be regarded as either a status or a contract.⁵⁴ In law, a status is regarded as a relationship which has a set of legal consequences flowing automatically from that relationship, regardless of the intentions of the parties. A status has been defined as 'the condition of belonging to a class in society to which the law ascribes peculiar rights and duties, capacities and incapacities'.⁵⁵ So, the status view of marriage would suggest that, if a couple marry, then they are subject to the laws governing marriage, regardless of their intentions or choices.⁵⁶ The alternative approach would be to regard contract as governing marriage. The legal consequences of marriage would then flow from the intentions of the parties as set out in an agreement rather than any given rules set down by the law. In English law marriage is best understood as a mixture of a contract and a status.

Baroness Hale has explained:

Marriage is, of course, a contract, in the sense that each party must agree to enter into it and once entered both are bound by its legal consequences. But it is also a status. This means two things. First, the parties are not entirely free to determine all its legal consequences for themselves. They contract into the package which the law of the land lays down. Secondly, their marriage also has legal consequences for other people and for the state.⁵⁷

Rob George,⁵⁸ arguing for a status understanding of marriage puts the point like this:

Entering a marriage is, in some ways, more like joining a club. If you meet the entry requirements, you may become a member, but it does not entitle you to alter the club's rules unilaterally. You can join the club or not, and you can campaign to change the rules of the club whether you are a member or not; but you cannot both be a member of the club and refuse to abide by its current rules.

⁵¹ Lewis (2001b: 135).

⁵² <http://www.bridesmagazine.co.uk/planning/general/planning-service/2013/01/average-cost-of-wedding>.

⁵³ BBC Newsonline (2008a).

⁵⁴ See Brake (2012) for a powerful argument that marriage should be 'minimised' to a contract between the parties.

⁵⁵ *The Amphill Peerage Case* [1977] AC 547.

⁵⁶ For support for marriage as a status, see Regan (1993a).

⁵⁷ *Radmacher v Granatino* [2010] UKSC 42, para 132.

⁵⁸ (2012b: 83).

Dewar and Parker have suggested marriage should be regarded as 'a contractually acquired status'.⁵⁹ There are some legal consequences which flow automatically from marriage, and other consequences which depend on the agreement of the parties. The law sets out: who can marry; when the relationship can be ended; and what are the consequences for the parties of being married. However, as noted in Chapter 2, increasing emphasis is placed on encouraging the parties to resolve their disputes at the end of their relationship themselves without referring them to court. Further, in *Radmacher v Granatino*⁶⁰ the Supreme Court has given legal weight to pre-nuptial contracts, suggesting a greater willingness to allow people to decide for themselves the legal consequences of their relationship. The case produced a rather hysterical reaction with one commentator suggesting it was the 'death knell of marriage'⁶¹ because if couples could choose what marriage meant for them then marriage would lose all its meaning. As there are severe restrictions on what obligations a married couple can contract out of, this was an exaggeration. History will tell, however, whether the case was the first step towards a wholly contractualised vision of marriage.⁶²

Some have argued that it would be preferable to move towards a more contractarian view of marriage.⁶³ The law could require each couple wishing to marry to decide for themselves exactly what the legal consequences of their marriage would be in a pre-marriage contract. If necessary, the law could produce some sample contracts that people might choose to use. The supporters of such a proposal tend to fall within three camps. First, some feminists argue that a contractarian view of marriage would enable women to avoid the traditional marital roles that are disadvantageous to them. Secondly, from a libertarian perspective some argue that the law should not impose upon people any regulation of their intimate lives. Spouses should choose their own form of regulation⁶⁴ rather than there being one kind of marriage sanctioned by the state.⁶⁵ After all, there are many different kinds and understandings of marriage and a contractual-based approach can recognise those differences. Thirdly, there are traditionalists who believe that the present law on marriage is too liberal and that a couple should be allowed to contract to enter a 'traditional' marriage, for example severely restricting access to divorce.⁶⁶

Opponents of contractual marriage argue that pre-marriage contracts are unpopular among the general public because they are 'not very romantic'.⁶⁷ They implicitly accept that marriage may not be for life. Perhaps more significantly, it is argued that entering a fair contract is only possible if the parties are fully aware of each other's financial position, are independently advised and have equality of bargaining power.⁶⁸ In only a few cases will this be so. Even if the parties do have full information and equality of bargaining power, the parties cannot foresee the future, and so the contract may rapidly become outdated and need to be continually renegotiated. Other opponents argue that the contract approach overlooks the interests the state might have in the marriage: the state might wish to support marriage because it has benefits for society as a whole; or the state may have an interest in ensuring that people are not taken advantage of within intimate relationships.⁶⁹ If this is so, the state will

⁵⁹ Dewar and Parker (2000: 125).

⁶⁰ [2010] UKSC 42.

⁶¹ Herring (2010i).

⁶² Vardag and Miles (2016).

⁶³ Rasmusen and Evans State (1998).

⁶⁴ McLellan (1996).

⁶⁵ Rasmusen and Evans State (1998).

⁶⁶ See Chapter 4 for a discussion of these arguments.

⁶⁷ Bridge (2001: 27).

⁶⁸ McLellan (1996).

⁶⁹ Herring (2009b).

not want to leave the law of marriage entirely up to the parties themselves. Mary Lyndon Shanley has suggested that the contractual view of marriage 'fails to take into account the ideal of marriage as a relationship that transcends the individual lives of the parties'.⁷⁰ Margaret Brinig⁷¹ argues that marriage represents public support and reinforcement for relationships that enable trust to be built up because they rest on a long-term commitment. A compromise solution would be for the state to offer people who wish to marry a range of alternative forms of marriage from which they can choose. For example, some US states offer, as an alternative to the standard marriage, 'covenant' marriage, which permits divorce in limited circumstances only.⁷²

5 The presumption of marriage

Learning objective 5

Explain how a presumption of marriage can arise and how it can be rebutted

If a man and a woman live together, believe themselves to be married, and present themselves as married, the law sometimes presumes that they are legally married.⁷³ Where the presumption applies, anyone who seeks to claim that the couple are not married must introduce evidence to rebut this presumption. The

policy behind this is that a couple who believe themselves to be married should not suffer the disadvantages that would follow from being found not to be married without there being clear evidence.⁷⁴ In many cases the presumption can be rebutted by showing that they do not appear on the register of marriage.

The presumption is most often used where the marriage took place a long time ago or abroad⁷⁵ and so official records are not available. In *Martin v Myers*,⁷⁶ where the couple had never travelled abroad, the court held that as there was no record of their marriage in the register of marriage this was sufficient evidence to rebut the presumption. In *A-M v A-M (Divorce: Jurisdiction: Validity of Marriage)*⁷⁷ a couple, originally from the Middle East, who had travelled extensively and had cohabited for around 12 years were regarded as married: the court was willing to presume that the couple had married overseas. In such a case it will be extremely difficult to show that a couple had not married somewhere overseas.⁷⁸ The presumption will only arise if there is a consistent and lengthy period of cohabitation. The court appears to be taking a strict approach. Eight years was said to be insufficient in *Dukali v Lamrani*.⁷⁹ In *Al-Saedy v Musawi (Presumption of Marriage)*⁸⁰ it was found there had been cohabitation 'for periods of time from time to time', but there was insufficient consistency to raise the presumption.

⁷⁰ Lyndon Shanley (2004: 6).

⁷¹ Brinig (2010).

⁷² Waddington (2000: 251–2). Fineman (2004: 133) reports that where these are available only 1.5 per cent of marriages have been covenant marriages.

⁷³ The presumption was preserved by s 7(3)(b)(i) of the Civil Evidence Act 1995.

⁷⁴ Borkowski (2002).

⁷⁵ *A-M v A-M (Divorce: Jurisdiction: Validity of Marriage)* [2001] 2 FLR 6.

⁷⁶ [2004] EWHC 1947 (Ch).

⁷⁷ [2001] 2 FLR 6.

⁷⁸ Welstead and Edwards (2006: 19).

⁷⁹ [2012] EWHC 1748 (Fam). *A v H (Registrar General for England and Wales and another intervening)* [2009]

3 FCR 95 said a year and a half was insufficient.

⁸⁰ [2010] EWHC 3293 (Fam).

The presumption can be rebutted if it can be shown that the parties did not undergo a legal marriage.⁸¹ However, the longer the parties have cohabited, the stronger the presumption is that they are legally married.⁸² In order to rebut the presumption of marriage, clear and positive evidence must be introduced.⁸³ In *Pazpena de Vire v Pazpena de Vire*⁸⁴ a distinction was drawn between cases where the couple have cohabited following a ceremony but there are doubts whether the ceremony is valid, and cases where there is no evidence of a ceremony but there has been a lengthy cohabitation, with the couple believing themselves to be, and being regarded by others as being, married. Where there has been some kind of ceremony, it must be shown beyond reasonable doubt that the ceremony was an invalid marriage, otherwise the presumption will apply.⁸⁵ Where there is no evidence of a ceremony, there must be firm evidence that there was no marriage. It is important to appreciate that the law is not saying that couples who live together are married because they cohabit, but that there is a presumption that they have undergone a ceremony of marriage unless proved otherwise. In *Al-Saedy v Musawi (Presumption of Marriage)*⁸⁶ Bodey J warned against

... elevating a presumption born of common sense into the status of a rule of substance, whereby long cohabitation plus a reputation of marriage would establish marriage, even where all the identified evidence showed that no valid or even void marriage took place.

If the validity of a marriage is ambiguous, there is power under s 55 of the Family Law Act 1986 for a court to make a declaration clarifying the status of the marriage.

6 Non-marriages, void marriages and voidable marriages

Learning objective 6

Differentiate between divorce, nullity, a void marriage, a voidable marriage and a non-marriage

Although it is relatively rare for a party to seek to have a marriage annulled in law, nullity is particularly important because, in effect, it defines who may or may not marry and reveals what the law sees as the essential ingredients of marriage. What might appear to be a ceremony of marriage can either be:

- a valid marriage;
- a voidable marriage;
- a void marriage; or
- a non-marriage, a ceremony of no legal significance.⁸⁷

It is necessary to draw some important distinctions at this point:

⁸¹ *Asaad v Kurter* [2013] EWHC 3852 (Fam).

⁸² *Chief Adjudication Officer v Bath* [2000] 1 FLR 8.

⁸³ *Chief Adjudication Officer v Bath* [2000] 1 FLR 8.

⁸⁴ [2001] 1 FLR 460.

⁸⁵ But where it is shown that that marriage was void, the presumption cannot be relied upon: *MA v JA* [2012] EWHC 2219 (Fam).

⁸⁶ [2010] EWHC 3293 (Fam).

⁸⁷ See the useful discussion on the distinction between these in Probert (2002b and 2013b).

A The difference between divorce and nullity

The law relating to marriage draws an important distinction between those marriages which are annulled and those which are ended by divorce. Where the marriage is annulled the law recognises that there has been some flaw in the establishment of the marriage, rendering it ineffective. Where there is a divorce the creation of the marriage is considered proper but subsequent events demonstrate that the marriage should be brought to an end.

B The difference between a void marriage and non-marriage

A void marriage is one where, although there may have been some semblance of a marriage, there is in fact a fundamental flaw in the marriage which means that it is not recognised in the law as valid. This needs to be distinguished from a non-marriage, where the ceremony that the parties undertook was nothing like a marriage and so is of no legal consequence.⁸⁸ It is a nothing in the eyes of the law. The distinction is of great practical significance because if it is a void marriage then the court has the power to make financial orders, redistributing property between the couple. If the ceremony is a non-marriage the court has no power to redistribute property and the couple will be treated as an unmarried couple. In *Hudson v Leigh (Status of Non-Marriage)*⁸⁹ Bodey J listed the following factors as indicating whether a marriage was a void marriage or a non-marriage:

- (a) whether the ceremony or event set out or purported to be a lawful marriage;
- (b) whether it bore all or enough of the hallmarks of marriage;
- (c) whether the three key participants (most especially the officiating official) believed, intended and understood the ceremony as giving rise to the status of lawful marriage; and
- (d) the reasonable perceptions, understandings and beliefs of those in attendance.⁹⁰

In that case it was clear the event was a non-marriage. Neither the parties nor the celebrant intended the ceremony to be a marriage and the normal wording of a marriage service was altered in order to ensure it did not appear to be a marriage. Similarly, in *El Gamal v Al Maktoum*⁹¹ a private Muslim ceremony in a flat was a non-marriage. It was well short of complying with the formality requirements and could not be seen as an attempt to do so. In *Galloway v Goldstein*⁹² a couple who had married in America went through a ceremony in England. The English ceremony was held to be a non-marriage. The couple cannot have intended the ceremony to be a marriage, as they were already married.

By contrast, in *Gereis v Yagoub*⁹³ the couple went through a purported marriage at a Coptic Orthodox Church without going through the legal formalities. Although the priest had encouraged the parties to have a civil ceremony of marriage, they had not done so. Judge Aglionby decided that the marriage was void because the parties had knowingly and wilfully intermarried in disregard of the formalities under the Marriage Act 1949. He held that the ceremony should be regarded as a void marriage rather than a non-marriage because of the following factors: the ceremony had the 'hallmarks of an ordinary Christian marriage'; the parties regarded themselves as married (they had sexual intercourse only after the service);

⁸⁸ *Dukali v Lamrani* [2012] EWHC 1748 (Fam).

⁸⁹ [2009] 3 FCR 401.

⁹⁰ Para 75. See Probert (2013b) and Bevan (2013) for a helpful discussion of the case law.

⁹¹ [2011] EWHC B27 (Fam).

⁹² [2012] EWHC 60 (Fam), discussed in Herring (2012i). See also *Sharbatly v Shagroon* [2012] EWCA Civ 1507.

⁹³ [1997] 1 FLR 854, [1997] 3 FCR 755.

the couple held themselves out as a married couple by, for example, claiming married couples' tax allowance.

It could be argued that the case law is discriminating against ethnic minorities because their ceremonies do not 'bear the hallmarks of a marriage' as understood in a Christian context.⁹⁴ Indeed, an Islamic ceremony in a private flat⁹⁵ and a Hindu ceremony in a restaurant⁹⁶ have been held to be non-marriages, being too far distant from what one would expect from a marriage ceremony. Care must be taken in these judgements not to impose cultural norms about what marriages are meant to look like.

In *MA v JA* a couple married in a mosque. Moylan J found the spouses intended to enter a legally valid marriage and believed they had. While the Imam was aware the marriage failed to comply with the legal requirements he did not tell the couple this.⁹⁷ Moylan J held that if a couple intended to marry and the ceremony was not too great a departure from the requirements of the Marriage Act 1949 the ceremony could be regarded as a marriage. The fact the Imam did not intend to conduct a legal marriage was not significant. Key was the fact the parties were intending to marry in law; that there was a ceremony of marriage with witnesses in a registered building; and there was no lawful impediment to their marriage.

This last case raises the difficult issue of groups from minority cultures who marry according to the rites of their culture, but in a way which fails to comply with the legal requirements. It demonstrates, perhaps, a judicial willingness to give effect to these ceremonies, at least in cases where the parties believe they are getting married legally. A particular difficulty seems to relate to Muslim couples who undertake their religious (nikah) marriage in circumstances which mean it is legally a non-marriage.⁹⁸ It has been estimated that up to 52 per cent of nikahs are not then registered and so legally valid.⁹⁹ The difficulty with such cases is that the couple may regard themselves as validly married, and be treated by their families and community as married. Yet in the event of a legal issue arising there is no formal legal marriage or recourse to legal remedies based on marriage. This is particularly an issue where women seek financial orders following the breakdown of their 'marriage'. The problem according to Vishal Vora¹⁰⁰ is that many Muslim couples regard the religious ceremony as the important one and civil registration as irrelevant, or even worse a state intrusion into a religious event. In half the cases in her sample the nikah was performed at home and so was not valid and the couple assumed the imam would ensure any formalities were met. She reports particular concerns that women are far more likely than men to be mistaken as to the legal significance of the ceremony.

C The difference between a void and a voidable marriage

A void marriage is one that in the eyes of the law has never existed. A voidable marriage exists until it has been annulled by the courts and, if it is never annulled by a court order, it will be treated as valid. This distinction has a number of significant consequences:

1. Technically, a void marriage is void even if it has never been declared to be so by a court, whereas a voidable marriage is valid from the date of the marriage until the court makes an order. That said, a party who believes his or her marriage to be void would normally seek a

⁹⁴ See the discussion in Probert (2002b).

⁹⁵ *A-M v A-M (Divorce: Jurisdiction: Validity of Marriage)* [2001] 2 FLR 6.

⁹⁶ *Gandhi v Patel* [2002] 1 FLR 603. See also *B v B* [2012] EWHC 2219 (Fam).

⁹⁷ There was no suggestion he was behaving maliciously.

⁹⁸ Akhtar (2016).

⁹⁹ See Vora (2016) which explains the difficulties in ascertaining precise figures for the problem.

¹⁰⁰ Vora (2016).

court order to confirm this to be so. This avoids any doubts over the validity of the marriage and also permits the parties to apply for court orders relating to their financial affairs.¹⁰¹

2. A child born to parties of a void marriage would be technically 'illegitimate', unless at the time of the conception either parent reasonably believed that they were validly married to the other parent.¹⁰² The concept of illegitimacy is now not part of the law, but still there are a very few consequences that depend on whether a child's parents are married or unmarried.¹⁰³
3. The distinction between a void and a voidable marriage may also be important in determining one person's rights to the other's pension.¹⁰⁴
4. Any person may seek a declaration that the marriage is void,¹⁰⁵ but only the parties to the marriage can apply to annul a voidable marriage. This reflects a fundamental distinction in the grounds on which marriage can be declared void or voidable. The grounds on which a marriage may be declared void are those circumstances in which there is an element of public policy against the marriage, hence, any interested person can seek a declaration of nullity. The grounds on which a marriage may be voidable do not indicate that there is a public policy objection to the marriage, but rather that there is a problem in the marriage which is so significant that, if one of the parties wishes, the marriage can be annulled.

Having discussed these distinctions, it is now necessary to consider the grounds on which a marriage may be void or voidable.

D The grounds on which a marriage is void

Learning objective 7

Explain the grounds on which a marriage is void

As already noted, the grounds¹⁰⁶ on which a marriage is void are those which reflect a public policy objection to the marriage. The grounds¹⁰⁷ are set out in the Matrimonial Causes Act 1973, s 11:

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 11

- (a) that it is not a valid marriage under the provisions of the Marriage Acts 1949 to 1986 (that is to say where—
 - (i) the parties are within the prohibited degrees of relationship;
 - (ii) either party is under the age of sixteen; or
 - (iii) the parties have intermarried in disregard of certain requirements as to the formation of marriage);
- (b) that at the time of the marriage either party was already lawfully married;
- (c) in the case of a polygamous marriage entered into outside England and Wales, that either party was at the time of the marriage domiciled in England and Wales.

These grounds will now be considered separately.

¹⁰¹ *Whiston v Whiston* [1995] 2 FLR 268, [1995] 2 FCR 496.

¹⁰² Legitimacy Act 1976, s 1(1).

¹⁰³ See Chapter 8.

¹⁰⁴ See *Ward v Secretary of State for Social Services* [1990] 1 FLR 119, [1990] FCR 361.

¹⁰⁵ Matrimonial Causes Act 1973 (hereafter MCA 1973), s 16. This section applies to decrees after 31 July 1971.

¹⁰⁶ *Re Roberts (dec'd)* [1978] 1 WLR 653 at p. 656, per Walton J.

¹⁰⁷ Walton J suggested that the set of grounds set out in MCA 1973 is exhaustive and so there is no jurisdiction for the courts to create new grounds: *Re Roberts (dec'd)* [1978] 1 WLR 653 at p. 658.

(i) Prohibited degrees

The marriage between two people who are related to each other in certain ways is prohibited. It is interesting that nearly all societies across the world have bars on marriages between people who are related. In Britain the restrictions are based on two groups of relations: those based on blood relationships (consanguinity) and those based on marriage (affinity). The details of the law are set out in the Marriage (Prohibited Degrees of Relationship) Act 1986, s 6(2).

1. The prohibited consanguinity restrictions mean that marriage between the following is not permitted: parent–child; grandparent–grandchild; brother–sister; uncle–niece; aunt–nephew. These include relations of the half-blood as well as those relationships based on the whole blood. It will be noted that cousins may marry under English law.¹⁰⁸
2. The affinity restrictions are traditionally based on the ‘unity of husband and wife’. This is the notion that, on marriage, a husband and wife become one. These prohibited degrees based on marriage are controversial because some believe that the doctrine of unity upon which they are based is outdated. Only one remains: marrying a stepchild. A step-parent can marry the child of a former spouse if: (i) both parties are aged 21 or over; and (ii) the younger party has not been a child of the family in relation to the other while under the age of 18. The effect of the law is that if a step-parent acts in a parental role towards a stepchild, the two can never marry. The bar on parents-in-law and children-in-law that used to exist was abolished by the Marriage Act 1949 (Remedial) Order 2007 No. 438.¹⁰⁹
3. Even though adoption normally ends the relationship between the adopted child and his or her birth family, the restrictions on marriage between an adopted child and members of his or her birth family apply as above. An adoptive child and adoptive parent are also within the prohibited degrees of relationship.¹¹⁰ However, an adopted child can marry other relations that arise from the adoption. So a man could marry the daughter of his adopted parents.¹¹¹

The restrictions based on these relationships are justified by three arguments. The first is the fear of genetic dangers involved in permitting procreation between close blood relations. This would not justify bars based on affinity and with the availability of genetic screening may be harder to support. A second argument in favour of these bars is that permitting marriage between close relations may undermine the security of the family. The argument is that children should be brought up without the possibility of approved sexual relations later in life with members of their family. A third argument can be based on the widespread instinctive moral reaction against such relationships. Whether this ‘yuck factor’ is sufficient to justify preventing two people in love from marrying may be debated. A challenge to the German law prohibiting sexual relations between related people was upheld in *Stübing v Germany*,¹¹² where the aims of protection of the family, self-determination and public health were said to be reasonable grounds for the prohibition.

¹⁰⁸ For a discussion of whether cousin marriage should be permitted, see Deech (2010c) and Taylor (2008) who both express concerns about the potential genetic harm to children of such marriages.

¹⁰⁹ This follows the decision in *B v UK* [2005] 3 FCR 353.

¹¹⁰ This is a permanent bar and applies even if the child is adopted for a second time.

¹¹¹ Assuming the daughter is not his half-sister.

¹¹² [2013] 1 FCR 107.

It should be recalled that although these restrictions prevent, say, a father marrying his daughter, there would be nothing to prevent them cohabiting, although any sexual relations would constitute the crime of incest.

(ii) Age

There are two requirements that relate to the age of the parties:

1. A marriage will be void if either party to the marriage is under 16.¹¹³ All western societies have some kind of age restrictions on who may marry and a minimum age for legal sexual relations, although exactly what that age is varies from state to state and generation to generation.¹¹⁴ The choice of the age 16 in England and Wales reflects the policy of the criminal law that it is unlawful for a man to have sexual intercourse with a girl under 16. It also reflects the concern of society about any children that may be born of such a union: the parents may be too young to care for the children and the burden could then fall on the state. There is also the argument that, below that age, the parties may not fully understand the consequences of marriage.
2. The second requirement is that if either party is between the age of 16 and 18 then it is necessary to have the written consent of each parent with parental responsibility.¹¹⁵ It is possible for the teenager to apply to the court to have the parental consent requirement revoked. However, if the marriage goes ahead without that consent (or on the basis of a forged consent), it would still be valid. The significance of this requirement, then, is that it permits a registrar to refuse to carry out a wedding without this consent. Rebecca Probert has questioned whether requiring parental consent to marry is appropriate in this day and age.¹¹⁶

(iii) Formalities

There are complex rules governing the legal formalities required for a marriage. The exact requirements depend on whether the marriage was performed within the rites of the Church of England or outside. The detailed provisions will not be discussed here.

The purposes of having formalities can be said to be as follows:

1. The formality requirements help to draw a clear line between a marriage, an engagement, and an agreement to cohabit.
2. The formality requirements ensure that the parties do not enter into marriage in an ill-considered or frivolous way. To fulfil the requirements takes some time and effort. Further, they ensure that the moment of marriage is a solemn event. This reinforces the seriousness of marriage to the parties and those present.
3. The existence of the formalities helps to ensure that there is a formal record of marriages.¹¹⁷
4. The formalities also ensure that anyone who wishes to object to the marriage can do so.¹¹⁸

¹¹³ Marriage Act 1949, s 2. On the issue of under-age marriage see Gangoli, McCarry and Razak (2009).

¹¹⁴ Indeed, until 1929 in England a girl could marry from the age of 12.

¹¹⁵ Unless there is a residence order, in which case only the parents with parental responsibility and residence order need consent: Marriage Act 1949, s 3, as amended. A guardian or local authority can also provide consent in certain circumstances.

¹¹⁶ Probert (2009b).

¹¹⁷ Although see the remarkable case of *Islam v Islam* [2003] FL 815 where, although the evidence showed that the woman had been married, she was not able to show that she had married the man she claimed to be her husband. The judge asked the papers to be sent to the Crown Prosecution Service so that it could consider possible criminal proceedings against the wife.

¹¹⁸ *MA v JA* [2012] EWHC 2219 (Fam).

There are, however, dangers that formalities can be too strict. There are two particular concerns. The first is that couples may be discouraged from marrying if the formalities are too onerous. This concern led to the passing of the Marriage Act 1995, which has greatly increased the number of places where a marriage can take place.¹¹⁹ Secondly, if the law were interpreted too strictly, a minor breach of the rules could invalidate what might appear to be a valid marriage. The law has dealt with this concern under ss 25 and 49 of the Marriage Act 1995, which state that a marriage is void for breaching the formalities only if the parties marry knowingly and wilfully in breach of the requirement.¹²⁰ Further, in *MA v JA*,¹²¹ discussed earlier, the court took a broad interpretation in finding that a marriage could be valid, even if there were significant departures from the formality requirements.

One further issue is whether the parties should be required to undergo biological tests, in order to see if either party is suffering from an infectious illness. There have been calls for genetic testing to be carried out on the parties before marriage.¹²² At present no biological tests are required in England and Wales. The reason may be that a requirement of tests would discourage marriage.

There have also been some calls that couples be required to attend marriage counselling sessions before marriage. The closest the Government has come is the proposal that a 'clear and simple guide' detailing the rights and responsibilities of marriage should be made available to all couples planning to marry.¹²³ This seems very sensible given the lack of understanding over the legal consequences of marriage.¹²⁴ In the US a computer questionnaire has become a popular way for a couple to check compatibility before marriage. Apparently, having taken the test and considered the results, 10 per cent of couples decided not to marry.¹²⁵

In 2015 the Law Commission produced a scoping paper, in preparation of a project to propose reforms to the laws governing getting married.¹²⁶ It is generally thought likely to propose reforming the law to reduce the formality requirements. One possibility is that people will be allowed to marry anywhere, as long as the marriage is appropriately registered.

(iv) Bigamy

If at the time of the ceremony either party is already married to someone else, the 'marriage' will be void. The marriage will remain void even if the first spouse dies during the second 'marriage'.¹²⁷ So, if a person is married and wishes to marry someone else, he or she must obtain a decree of divorce or wait until the death of his or her spouse. If the first marriage is void, it is technically not necessary to obtain a court order to that effect before marrying again, but that is normally sought to avoid any uncertainty. In cases of bigamy, as well as the purported marriage being void, the parties may have committed the crime of bigamy.¹²⁸ Chris Barton¹²⁹ has argued that there is little justification for making bigamy a crime and instead more could be done at the time of marriage to check whether parties are free to marry.

¹¹⁹ See Eekelaar (2013b) for an argument that there should be no restrictions on where a marriage can take place.

¹²⁰ See *Chief Adjudication Officer v Bath* [2000] 1 FCR 419, [2000] 1 FLR 8 for an example of a case where the parties were unaware of the non-compliance with the formalities.

¹²¹ [2012] EWHC 2219 (Fam).

¹²² Discussed in Deech (2010d).

¹²³ Home Office (1998: 4.15).

¹²⁵ Hibbs, Barton and Beswick (2001).

¹²⁴ Hibbs, Barton and Beswick (2001).

¹²⁶ Law Commission Scoping Paper (2015).

¹²⁷ *Dredge v Dredge* [1947] 1 All ER 29.

¹²⁸ In *Khan v UK* (1986) 48 DR 253 the European Court of Human Rights rejected an argument that the bar on polygamous marriage infringed the parties' rights under article 12 of the European Convention.

¹²⁹ Barton (2004).

Many cultures do permit polygamous marriages, although in British society monogamous marriages are the accepted norm, which is rarely challenged.¹³⁰ There are concrete objections to polygamous marriages. Some argue that polygamy may create divisions within the family, with one husband or wife vying for dominance over the others, and particularly that divisions may arise between the children of different parents.¹³¹ Supporters of polygamous marriage argue that polygamy leads to less divorce and provides a wider family support network in which to raise children. Polygamy could also be regarded as a form of sex discrimination unless both men and women were permitted to take more than one spouse. There have also been suggestions that permitting polygamous marriages involves an insult to the religious sensitivities of the majority.

(v) Public policy

In *City of Westminster v C*¹³² the Court of Appeal held a marriage between a man with severe intellectual impairment and a woman in Bangladesh performed over the telephone void. He lacked capacity to have any understanding of the nature of marriage and would be unable to consent to sexual relations. The marriage was described as exploitative of the woman and of the man. Although normally lack of capacity would render a marriage voidable rather than void, public policy justified this marriage being declared void. This case highlights the way the law sees sexual relations as at the heart of marriage. While a sexual relationship may not have been appropriate in this case, a relationship of care might have been. The court would have done better to focus on the issue of capacity to consent to enter a close relationship, rather than the sexual one. The decision was followed in *X County Council v AA*¹³³ where the inherent jurisdiction was used to declare invalid a marriage involving a woman with significant learning difficulties. Again, the emphasis was on the sexual issues with it being emphasised that she did not understand the differences between men and women or pregnancy. A stronger justification could be found in the fact there was no evidence that she consented to be in the relationship and that she was at risk from it.

(vi) Marriages entered into abroad

Complex issues of private international law arise over the recognition of marriages conducted abroad, and these are not discussed in this text.¹³⁴

E The grounds on which a marriage is voidable

Learning objective 8

Explain the grounds on which a marriage is voidable

The grounds on which a marriage is voidable are set out in the Matrimonial Causes Act 1973, s 12:

¹³⁰ Shah (2003) discusses the extent of unofficial polygamy in the UK and highlights the problems in regulating against it.

¹³¹ See Bala and Jaremko Bromwich (2002: 166–9) for a discussion of the arguments against polygamy. See Kaganas and Murray (2001) and Emens (2004) for a more supportive approach.

¹³² [2008] 2 FCR 146, see Probert (2008a) for a discussion of this case.

¹³³ [2012] EWHC 2183 (Fam).

¹³⁴ See, e.g., Murphy (2005).

LEGISLATIVE PROVISION**Matrimonial Causes Act 1973, section 12**

- (a) that the marriage has not been consummated owing to the incapacity of either party to consummate it;
- (b) that the marriage has not been consummated owing to the wilful refusal of the respondent to consummate it;
- (c) that either party to the marriage did not validly consent to it, whether in consequence of duress, mistake, unsoundness of mind or otherwise;
- (d) that at the time of the marriage either party, though capable of giving a valid consent, was suffering (whether continuously or intermittently) from mental disorder within the meaning of the Mental Health Act 1983 of such a kind or to such an extent as to be unfitted for marriage;
- (e) that at the time of the marriage the respondent was suffering from venereal disease in a communicable form;
- (f) that at the time of the marriage the respondent was pregnant by some person other than the petitioner;
- (g) that an interim gender recognition certificate under the Gender Recognition Act 2004 has, after the time of the marriage, been issued to either party to the marriage;
- (h) that the respondent is a person whose gender at the time of the marriage had become the acquired gender under the Gender Recognition Act 2004.

These grounds will now be considered separately.

(i) Inability or wilful refusal to consummate

The consummation grounds only apply to marriages involving couples of the opposite sex. The importance of consummation was originally based on the theological ground that the act of sexual intercourse united the two spouses in a spiritual union and was therefore necessary to complete the sacrament of marriage. The requirement of consummation can also be explained in non-religious terms in that it is the act of sexual intercourse that most clearly distinguishes marriage from a close relationship between two platonic friends. However, given the increase in sexual relations outside of marriage it is harder to argue that sexual intercourse has a unique place in marriage.¹³⁵

In order for a marriage to be consummated, there need only be one act of consummation; but the act must take place after the solemnisation of the marriage.¹³⁶ So in *P v P*,¹³⁷ where a husband only had sexual relations eight times in 18 years, the marriage was not voidable and divorce was the only way to end the marriage. There are two grounds of voidability connected to consummation. The first ground is a wilful refusal by a spouse to consummate the marriage, and the second is the incapacity of either party to consummate the marriage. The applicant for the nullity application can rely on his or her own inability to consummate but not on his or her own wilful refusal. This is because a party should not be able to rely on his or her own decision not to consummate in order to annul a marriage. It is useful to have the two

¹³⁵ Herring (2016a).

¹³⁶ *Dredge v Dredge* [1947] 1 All ER 29.

¹³⁷ [1964] 3 All ER 919.

alternative grounds as it may be difficult in a particular case to discover whether the non-consummation was due to inability or wilful refusal.

What is meant by consummation? 'Consummation' is defined as an act of sexual intercourse. Consummation can only be carried out by the penetration of the vagina by the penis. No other form of sexual activity will amount to consummation. Intercourse needs to be 'ordinary and complete, and not partial and imperfect'.¹³⁸ There needs to be full penetration, but there is no need for an ejaculation or orgasm.¹³⁹ In *Baxter v Baxter*¹⁴⁰ the House of Lords held that consummation took place even though the man was wearing a condom.¹⁴¹ There have even been cases where a pregnancy resulted from a sexual act but the court decided there was no consummation because there was no penetration.¹⁴² This reveals that the consummation requirement is not explained by the state's interest in the potential production of children.

'Inability to consummate' means that the inability cannot be cured by surgery¹⁴³ and is permanent. Inability can be either physiological or psychological. Inability also includes 'invincible repugnance', where one party is unable to have sexual intercourse due to 'paralysis of the will',¹⁴⁴ but this must be more than lack of attraction or a dislike of the other partner.¹⁴⁵

There has been much debate over whether the incapacity to consummate marriage has to exist at the time of the marriage. What would happen if the husband was rendered impotent as a result of a fight he had with the bride's father during the reception? Under Canon law impotence could be relied upon only if the impotence existed at the time of marriage. This reflected the crucial distinction between nullity and marriage: nullity applies when defects exist at the time of marriage, while divorce is used when defects occur after the time of the marriage itself. However, the Matrimonial Causes Act makes no reference to the inability existing 'at the time of the marriage', whereas it makes explicit reference to 'at the time of the marriage' in relation to other grounds of voidability. It is therefore submitted that there is a strong case that the inability can occur at any time before or during the marriage as long as the union has not yet been consummated.

'Wilful refusal to consummate' requires a 'settled and definite decision not to consummate without wilful excuse'.¹⁴⁶ If there has been no opportunity to consummate the marriage,¹⁴⁷ it will be hard to show that there has been a wilful refusal unless one party has shown 'unswerving determination' not to consummate the marriage.¹⁴⁸ 'Wilful refusal' may also occur where the parties have agreed only to have intercourse under certain circumstances (e.g. after a religious ceremony¹⁴⁹). In such a case then a refusal by one party to abide by the condition may constitute 'wilful refusal'.¹⁵⁰ The marriage will not be annulled on the ground of wilful refusal if the lack of consummation is due to a just excuse, although the case law reveals very little on the exact meaning of this.¹⁵¹

¹³⁸ *D-E v A-G* (1845) 1 Rob Eccl 279 at p. 298.

¹³⁹ *R v R* [1952] 1 All ER 1194.

¹⁴⁰ [1948] AC 274.

¹⁴² *Clarke v Clarke* [1943] 2 All ER 540. The marriage here had lasted 15 years.

¹⁴¹ There is some doubt about *coitus interruptus* (where the man withdraws before ejaculation): *Cackett v Cackett* [1950] P 253; *White v White* [1948] P 330; *Grimes v Grimes* [1948] 2 All ER 147. The issue was left open in *Baxter v Baxter* [1948] AC 274.

¹⁴³ If the inability to consummate can only be cured by potentially dangerous surgery, the inability will be treated as permanent: *S v S* [1955] P 1.

¹⁴⁴ *G v G* [1924] AC 349.

¹⁴⁵ *Singh v Singh* [1971] P 226.

¹⁴⁶ *Horton v Horton* [1972] 2 All ER 871.

¹⁴⁷ Perhaps because the parties are living in different places (e.g. the husband is in prison).

¹⁴⁸ *Ford v Ford* [1987] Fam Law 232.

¹⁴⁹ *Kaur v Singh* [1972] 1 All ER 292.

¹⁵⁰ *A v J* [1989] 1 FLR 110.

¹⁵¹ *Horton v Horton* [1972] 2 All ER 871.

(ii) Lack of consent

The Matrimonial Causes Act recognises four circumstances which may cause a person to be unable to give consent so as to render a marriage voidable. These are 'duress, mistake, unsoundness of mind or otherwise'.¹⁵² The law seeks to resolve a tension here. On the one hand, there is the view that it should not be too easy to have a marriage annulled. On the other hand, at least in the West, consent is regarded as a highly important factor in marriage. At one time the law required that the lack of consent was apparent at the time of the ceremony.¹⁵³ Although the appearance of consent may be important as a matter of evidence, it is now clear that it is not a formal requirement.

It should be noted that lack of consent renders a marriage voidable rather than void. This means that if a party does not consent to the marriage but later changes his or her mind and is happy with the marriage, the marriage will be valid and there is no need to remarry. The separate ways in which a lack of consent may be demonstrated will now be discussed.

(a) Duress

If it could be shown that someone was compelled to enter a marriage as a result of fear or threats, the marriage may be voidable due to duress. The following issues have been discussed in the case law:

1. *What must the threat or fear be of?* At one time it was thought that it was only possible for duress to render a marriage voidable if there was a threat to 'life, limb or liberty'.¹⁵⁴ The Court of Appeal in *Hirani v Hirani*¹⁵⁵ suggested that the test for duress should focus on the effect of the threat rather than the nature of the threat. In other words, the threats can be of any kind, but it must be shown that 'the threats, pressure or whatever it is, is such as to destroy the reality of the consent and overbear the will of the individual'.¹⁵⁶ In the case of *Hirani v Hirani*¹⁵⁷ the court accepted that social pressure could overbear the consent. The woman was threatened with ostracism by her community and her family if she did not go through with the marriage, and the fear of complete social isolation was such that there was no true consent. In *P v R (Forced Marriage: Annulment: Procedure)*¹⁵⁸ Colderidge J followed *Hirani* and held that severe emotional pressure could be such as to mean that there was no genuine consent to marry. However, in *Singh v Singh*,¹⁵⁹ it was held marrying out of a sense of duty or respect to parents could not negate consent. The effect of the *Hirani* decision is that those who have undergone an arranged marriage in the face of considerable pressure have the choice of either accepting their culture and the validity of the marriage or accepting the dominant culture's view that marriage should be made voidable.¹⁶⁰ This could be regarded as an appropriate compromise between respecting the cultural practice of arranged marriages and respecting people's right to choose whom to marry.¹⁶¹

¹⁵² Article 16(2) of the Universal Declaration of Human Rights 1948 states that: 'Marriage shall be entered into only with the free and full consent of the intending spouses.'

¹⁵³ *Cooper v Crane* [1891] P 369.

¹⁵⁴ *Szechter v Szechter* [1971] P 286; *Singh v Singh* [1971] P 226.

¹⁵⁵ (1982) 4 FLR 232.

¹⁵⁶ *Hirani v Hirani* (1982) 4 FLR 232 at p. 234.

¹⁵⁷ (1982) 4 FLR 232.

¹⁵⁸ [2003] 1 FLR 661. See also *NS v MI* [2006] EWHC 1646 (Fam) where the *Hirani* approach was adopted.

¹⁵⁹ [1971] P 226.

¹⁶⁰ See also *Re KR (Abduction: Forcible Removal by Parents)* [1999] 2 FLR 542, where the court was willing to use wardship to protect a 17-year-old from being taken abroad for an arranged marriage.

¹⁶¹ In *NS v MI* [2006] EWHC 1646 (Fam) Munby J emphasised that the court must beware of stereotyping.

2. The Law Commission has suggested that really what is at issue is the legitimacy of the threat rather than the lack of consent. After all, many people feel a pressure from family or society to get married.¹⁶² This approach is reflected in other areas of law where duress is an issue, for example contract law, where reference to the 'overborne will' has largely been abandoned in favour of asking whether the threat is illegitimate.¹⁶³ When someone is acting under duress it is not that they do not make a choice but rather that the choice is made in circumstances in which it should not lead to legal effect. This then requires the court to make a judgment on whether the horrors of the alternative meant that the choice should not be given effect, rather than considering whether there was true consent. It may be that when the issue next comes before the Court of Appeal it will focus on the legitimacy of the threat as well as the impact of the threat on the victim. Authority for such an approach could be found in *Buckland v Buckland*¹⁶⁴ which focused on asking whether the threat was a reasonable or unjust one to make.
3. *Must the fear be reasonably held?* What if a threat was made, but a reasonable person would not have taken it seriously? In *Szechter* it was suggested that duress could not be relied upon unless the fear was reasonably held.¹⁶⁵ Against this is *Scott v Selbright*,¹⁶⁶ in which it was suggested that as long as the beliefs of threats were honestly held, duress could be relied upon. The *Scott v Selbright* view seems preferable because it would be undesirable to punish a person for their careless mistake by denying them an annulment.
4. *By whom must the threat be made?* The threat can emanate from a third party; it need not emanate from the spouse.¹⁶⁷

(b) Mistake

A mistake can also negate consent. So far the law has only allowed two kinds of mistake to negate consent. The first is a mistake as to the other party's identity. It must be a mistake as to identity rather than a mistake as to attribute.¹⁶⁸ So, for example, a marriage would not be voidable if one party wrongly thought the other was rich,¹⁶⁹ or had pleasant smelling feet.¹⁷⁰ But a marriage would be voidable if a party to the marriage thought the person they were marrying was someone else (e.g. if there was a case of impersonation). The second kind of mistake that will make a marriage voidable is when there is a mistake as to the nature of the ceremony. So, if one party believes the ceremony is one of engagement, say, then this can invalidate the marriage.¹⁷¹ However, a mistake as to the legal effects of marriage is insufficient.¹⁷²

It is arguable that in the light of *Hirani* this area of the law is open to reconsideration; that the law should focus not on the kind of mistake, but the effect of the mistake on a person's consent. So, for example, if it was crucial to a wife that her husband belonged to a particular religion then a mistake as to his religion could invalidate her consent. Only future cases will tell whether such a liberal approach can be taken.

¹⁶² Diduck and Kaganas (2006: 42).

¹⁶³ *Lynch v DPP* [1980] AC 614; *Universal Tankships Inc v ITWF* [1983] AC 366.

¹⁶⁴ [1968] P 296.

¹⁶⁵ [1971] P 286. See also *Buckland v Buckland* [1968] P 296 at p. 301 (per Scarman J); *H v H* [1954] P 258 at p. 269 (per Karminski J).

¹⁶⁶ (1886) 12 PD 21 at p. 24.

¹⁶⁷ *H v H* [1954] P 258; *NS v MI* [2006] EWHC 1646 (Fam).

¹⁶⁸ *Moss v Moss* [1897] P 263.

¹⁶⁹ *Ewing v Wheatly* (1814) 2 Hagg Cas 175.

¹⁷⁰ See *C v C* [1942] NZLR 356 for a New Zealand case where a woman who married a man she believed (incorrectly) to be a famous boxer failed in her attempt to have the marriage annulled.

¹⁷¹ *Valier v Valier* (1925) 133 LT 830.

¹⁷² *Messina v Smith* [1971] P 322.

(c) Unsoundness of mind

If a person lacks the capacity to marry, no one else can consent on their behalf. Unsoundness will only lead to a marriage being voidable if it exists at the time of the marriage. So a marriage will not be void if someone loses mental capacity after the marriage. There is a presumption that people are of sound mind,¹⁷³ and so the burden of proof lies on the person seeking to have the marriage annulled.

The courts have developed the test for capacity to marry in a series of cases and currently there are five things a person needs to have the capacity to marry:

- (i) to understand the nature, duties and responsibility of marriage;¹⁷⁴
- (ii) to understand that spouses are to live together;¹⁷⁵
- (iii) to understand that spouses are meant to love each other to the exclusion of all others. Normally, it involved sharing a common domestic life, sharing each other's society, comfort and assistance.¹⁷⁶
- (iv) to appreciate that 'mutuality, reciprocity and the capacity for compromise are indivisible components of marriage.' In *Re RS (Capacity to Consent to Sexual Intercourse and Marriage)*¹⁷⁷ a man who had emotional and social disorders making it difficult for him to relate to others was found to lack capacity to marry.
- (v) to have the capacity to consent to sexual intercourse.¹⁷⁸ This means they would need to understand the character and nature of sexual intercourse and the reasonably foreseeable consequences of it. They would also need the capacity to be able to choose whether or not to engage in it. This requirement demonstrates the way the law regards sexual intercourse as an essential element of marriage.¹⁷⁹ Given the fact that much sexual intercourse takes place outside marriage, it may be questioned whether sexual relations should be seen as central to the notion of marriage.¹⁸⁰

The courts have deliberately set the test for capacity to marry at a low level. In *Sheffield City Council v E and S*¹⁸¹ Munby J emphasised that:

There are many people in our society who may be of limited or borderline capacity but whose lives are immensely enriched by marriage. We must be careful not to set the test of capacity to marry too high, lest it operate as an unfair, unnecessary and indeed discriminatory bar against the mentally disabled.

However, in *Re RS (Capacity to Consent to Sexual Intercourse and Marriage)*¹⁸² Hayden J emphasised that for a person lacking capacity to be in a marriage they did not understand would undermine their right to dignity.

¹⁷³ Mental Capacity Act 2005, s. 1(2).

¹⁷⁴ *Sheffield City Council v E and S* [2004] EWHC 2808 (Fam), discussed in Gaffney-Rhys (2006).

¹⁷⁵ *Sheffield City Council v E and S* [2004] EWHC 2808 (Fam).

¹⁷⁶ *Sheffield City Council v E and S* [2004] EWHC 2808 (Fam).

¹⁷⁷ [2015] EWHC 3534 (Fam).

¹⁷⁸ *X City Council v MB* [2007] 3 FCR 371.

¹⁷⁹ This approach was confirmed in *Re RS (Capacity to Consent to Sexual Intercourse and Marriage)* [2015] EWHC 3534 (Fam).

¹⁸⁰ Some religions teach that sexual intercourse should only take place in marriage. This has been the traditional Christian view and may explain why sexual relations are regarded as central to marriage.

¹⁸¹ [2004] EWHC 2808 (Fam), discussed in Gaffney-Rhys (2006).

¹⁸² [2015] EWHC 3534 (Fam).

In *Sheffield City Council v E and S*¹⁸³ Munby explained that if a person's competence was challenged in court the judge must focus on whether the person had capacity to marry, not on whether it was wise for them to marry. Controversially, he held that it was not necessary to show that the person understood the character of the person they were marrying. In this case there were serious concerns that the man was a violent and abusive man, and that the woman, who suffered various learning difficulties, did not appreciate that. It might be thought the character of one's partner is central to marriage. A violent abusive marriage is a very different thing from a loving one. However, that approach was rejected. S did understand marriage in general and so had capacity to marry, even though she did not understand what her marriage, in all likelihood, was going to be like.

(d) Otherwise

The statute refers to a lack of consent through factors other than duress or mistake. These include the following:

1. **Drunkenness.** There is no clear authority on whether the marriage is voidable where one party was drunk and so did not consent to the marriage. There are two views here. One is that drunkenness should be seen as analogous to being of unsound mind and so would make a marriage voidable. Another view is that a party should not be able to rely on a lack of consent that arises due to their own fault, and so voluntary intoxication should not render a marriage voidable. In *Sullivan v Sullivan*¹⁸⁴ it was suggested that the groom was so drunk that he was unable to understand the nature of the ceremony and so the marriage was voidable.
2. **Fraud and misrepresentation.** Neither fraud nor innocent misrepresentation will on its own affect the validity of the marriage.¹⁸⁵ However, if the fraud or misrepresentation leads to a mistake as to the identity of the other party or the nature of the ceremony then, as discussed above, the marriage will be voidable.

(iii) Mental disorder

A marriage is also voidable if either party is suffering from a mental disorder¹⁸⁶ at the time of the marriage to such an extent that they are unfit for marriage: that is, 'incapable of carrying out the ordinary duties and obligations of marriage'.¹⁸⁷ It is necessary to distinguish this from the lack of consent through unsoundness of mind. The mental disorder ground covers those who are able to understand the nature of a marriage but are unable to perform the duties of marriage due to a mental illness.

It should be stressed that both of the grounds relating to mental illness only make the marriage voidable and not void, so there is nothing to stop those with mental illnesses, even extreme ones, from marrying, the one exception being where the court finds a public policy objection to the marriage.¹⁸⁸

¹⁸³ [2004] EWHC 2808 (Fam), discussed in Gaffney-Rhys (2006).

¹⁸⁴ (1812) 2 Hag Con 238 at p. 246.

¹⁸⁵ *Swift v Kelly* (1835) 3 Knapp 257 at p. 293; *Moss v Moss* [1897] P 263.

¹⁸⁶ As defined by the Mental Health Act 1983.

¹⁸⁷ *Bennett v Bennett* [1969] 1 All ER 539.

¹⁸⁸ *City of Westminster v C* [2008] 2 FCR 146, see Probert (2008a) for a discussion of this case.

(iv) Venereal disease and pregnancy

A marriage is voidable if the respondent is suffering from venereal disease¹⁸⁹ at the time of the ceremony or if the respondent was pregnant by someone other than the petitioner. It should be noted that a wife cannot seek nullity on the ground that the husband has fathered a child through another woman prior to the marriage. It may be thought that venereal disease and pregnancy should no longer be regarded as sufficient grounds to annul a marriage, although, as we shall see, a petitioner will not be able to use these grounds if they were aware of the disease or the pregnancy at the time of the marriage. The continued use of the term 'venereal disease' is a little unfortunate because it is one that is no longer used in medical circles. 'Sexually transmitted disease' is the preferred phrase.¹⁹⁰

(v) Gender recognition certificate

We will be discussing the position of transsexual people later in this chapter. There it will be explained that the Gender Recognition Act 2004 allows trans people to obtain a certificate to recognise their 'acquired gender'. If a married person obtains a certificate then this will make their marriage voidable. Notice this means that if the other party to the marriage is happy for the marriage to continue then it can. However, it allows a spouse who is unhappy with the marriage, given their spouse's 'acquired gender', to have the marriage annulled. If one person marries someone who has had a gender recognition certificate, but was unaware of that, they can have their marriage annulled. Of course, if they knew about the certificate their marriage is as valid as anyone else's. This requirement has been strongly objected to by some on the basis that it gives legal support to the view that the basis of a marriage is undermined by someone transitioning.

(vi) Sham marriages

What is the position of a couple who go through a marriage purely for the purpose of pretending to be married, even though they never intend to live together as husband or wife? This is most likely to arise in a case involving immigration.¹⁹¹ The House of Lords in *Vervaeke v Smith*¹⁹² suggested that such marriages are valid, even though in that case the parties only saw each other on a few occasions after the marriage and the aim of the marriage was to enable the wife to obtain British citizenship and so avoid deportation.¹⁹³ Although such a marriage was valid, it may not be sufficient for the purposes of immigration rules. So a person entering a sham marriage in order to enter the UK might find themselves unable come to Britain, but married to someone they do not know. It seems the use of marriage purely for immigration purposes is not uncommon.¹⁹⁴

F Bars to relief in voidable marriages

There are no bars to a marriage being void, although there are some circumstances which prevent the petitioner from seeking to annul a voidable marriage. These bars are found in s 13(1) of the Matrimonial Causes Act 1973. If the bar is established, the court may not annul

¹⁸⁹ The term is not defined in the Act.

¹⁹⁰ It is not clear whether the courts would be willing to stretch the meaning of venereal disease to include HIV.

¹⁹¹ Wray (2016).

¹⁹² [1983] 1 AC 145.

¹⁹³ Divorce may well be possible, of course: e.g. *Silver v Silver* [1955] 1 WLR 728.

¹⁹⁴ BBC Newsonline (2009a).

the marriage. The burden is on the respondent to raise the bar as a defence. If the respondent does not mention the bar, the court cannot raise it on his or her behalf. If no statutory bar is established, the court cannot bar the annulment on the basis of public policy.¹⁹⁵ This indicates that the bars exist not for public policy reasons but for the protection of the petitioner. We will now consider the different bars.

(i) Approbation

Section 13(1) of the Matrimonial Causes Act 1973 states:

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 13(1)

The court shall not . . . grant a decree of nullity on the ground that a marriage is voidable if the respondent satisfies the court—

- (a) that the petitioner, with knowledge that it was open to him to have the marriage avoided, so conducted himself in relation to the respondent as to lead the respondent reasonably to believe that he would not seek to do so; and
- (b) that it would be unjust to the respondent to grant the decree.

It is essential that both paragraphs (a) and (b) be proved to the court's satisfaction. The basis of this bar is that it is seen as contrary to public policy and unjust to allow a person to seek to annul the marriage after leading the other party to believe he or she would not challenge the marriage. For example, in *D v D (Nullity)*¹⁹⁶ the husband relied on his wife's refusal to consummate the marriage in a nullity petition. However, he had previously agreed to the adoption of a child. It was held that his action indicated to the wife that he intended to treat the marriage as valid. Similarly, a man marrying a woman who he knows suffers from a mental disorder or is pregnant would be barred from seeking to annul the marriage on these grounds.¹⁹⁷ It may be that if the marriage has lasted some time the court might imply from the delay in bringing the petition that the petitioner had consented to the marriage.

In order to establish the bar, it must be shown that to annul the marriage would be unjust. For example, in *D v D* it might have been unjust to leave the wife caring for the children on her own. However, in that case the wife consented to the nullity decree and so it was thought not to be unjust to her to grant the decree. In considering justice under (b) the court is likely to consider factors such as the length of the marriage, financial implications of the nullity, and social implications of granting a decree.

(ii) Time

A decree of nullity will normally not succeed unless brought within three years of the date of the marriage,¹⁹⁸ the exception being a petition based on impotence. The policy behind this is clear: parties need a degree of security in their marriage – if three years have passed, then to claim that the marriage is fundamentally flawed seems unrealistic. In *B v I (Forced Marriage)*¹⁹⁹

¹⁹⁵ *D v D (Nullity)* [1979] Fam 70.

¹⁹⁶ [1979] Fam 70.

¹⁹⁷ See, e.g., *Morgan v Morgan* [1959] P 92.

¹⁹⁸ MCA 1973, s 13(2). There is an exception if the petitioner suffered from some kind of mental disorder.

a 16-year-old girl was forced into a marriage in Bangladesh and was only able to alert someone over three years later. The court was unable to declare the marriage a nullity, but could declare it to be a marriage which was incapable of recognition within the UK. It was significant in that case that the woman would have faced significant stigma within her community if she had relied on divorce. Otherwise the obvious solution to her situation would have been to seek a divorce.

(iii) Estoppel

Can a party ever be prevented from obtaining a nullity decree on the basis of estoppel? There are two kinds of estoppel that might be relevant. The first is estoppel by conduct where one party so conducts himself or herself that it would be unjust for him or her to deny the facts that he or she has led the other to believe are true. *Miles v Chilton*²⁰⁰ provides an example of the kind of situation under discussion. A husband sought annulment on the ground that his wife was already married at the time of the marriage. The wife argued that the husband had deceived her into believing that her 'first' husband had divorced her. The court held that this was no answer to the husband's petition, because otherwise the court would be prevented from discovering the true state of affairs.²⁰¹ So estoppel by conduct was not found relevant in this case.

The other kind of estoppel is *estoppel per rem judicatam*, meaning that a party cannot seek to overturn a court's decision. A decree of nullity is what is known as a judgment *in rem*: proceedings cannot be started which seek to undermine such a judgment. However, if the nullity petition is dismissed this affects only the parties themselves. So, if a man is granted a nullity petition on the ground that the wife is married to another man, no one can seek to undermine the basis of the annulment by suggesting in a court that the first marriage was invalid. However, if the petition had been dismissed on the ground that the first marriage was invalid, this does not bar anyone except the parties themselves from seeking to show that the first marriage was in fact valid.

G Effects of a decree of nullity

Section 16 of the Matrimonial Causes Act 1973 states:

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 16

A decree of nullity granted after 31st July 1971 in respect of a voidable marriage shall operate to annul the marriage only as respects any time after the decree has been made absolute, and the marriage shall, notwithstanding the decree, be treated as if it had existed up to that time.

A child of a void marriage is treated as legitimate due to s 1(1) of the Legitimacy Act 1976, as long as at the time of the marriage either (or both) parties reasonably believed that the marriage was valid.²⁰² *Re Spence*²⁰³ has clarified the law and said that if the marriage was annulled after the birth then the child was legitimate.

¹⁹⁹ [2010] 1 FLR 1721.

²⁰⁰ (1849) 1 Rob Eccl 684.

²⁰¹ There are contrary dicta in *Bullock v Bullock* [1960] 2 All ER 307 at p. 309.

²⁰² Under the Family Law Act 1986, s 56 a declaration of legitimacy can be made if there is any doubt.

²⁰³ [1990] 2 FLR 278, [1990] FCR 983.

Due to ss 23 and 24 of the Matrimonial Causes Act 1973 on granting a decree of nullity, the court has the power to make ancillary relief orders to the same extent as if a divorce order was being made. However, following *Whiston v Whiston*,²⁰⁴ as interpreted in *Rampal v Rampal* (No. 2),²⁰⁵ if the marriage is void on the ground of bigamy then the court might decide that the applicant's conduct was such that the court should not award her any ancillary relief.

In *J v S-T*²⁰⁶ the applicant was born a woman, underwent a partial sex-change operation, lived as a man, and then married a woman. After 17 years of marriage the wife²⁰⁷ petitioned for a declaration that the marriage was void on the ground that the parties were not respectively male and female. The husband applied for ancillary relief. The court held that there was a discretion in the court to award ancillary relief. However, in exercising its discretion the court decided not to make any award bearing in mind his deception as to his sex.²⁰⁸ By contrast, in *Ben Hashem v Al Shayif*²⁰⁹ as both the husband and wife had been fully aware of the bigamous nature of their marriage, the bigamy had no impact on the amount awarded.

H Reform of nullity

There were 345 petitions for annulments in 2011, of which 206 were granted.²¹⁰ The tiny numbers involved raise the question of whether we need all the complex law on nullity that we have. Indeed the Office for National Statistics no longer reports the number of nullity applications as they are so few. The concept of a void marriage is necessary if there are to be limits on who may marry and to whom. However, there has been some debate over whether the concept of voidable marriage should be abolished. The Law Commission²¹¹ supported the retention of voidable marriage by arguing that to some couples it is particularly important that annulment rather than divorce ends their marriage. This tends to be for religious reasons. Cretney has argued that the law on voidable marriage could be abolished, leaving questions of annulment to the church or other religious bodies.²¹² There is much to be said for this approach, given that the vast majority of annulment petitions are brought for religious reasons.²¹³

I Forced marriages

The Government's Forced Marriage Unit dealt with 1,220 cases of alleged forced marriage in 2015.²¹⁴ Of these, 80 per cent were women and 27 per cent involved people below the age of 18. Most cases involved members of south Asian communities. Forced marriage is a breach of human rights. Article 12 of the European Convention on Human Rights protects the right to marry. This includes the right not to be forced into a marriage against your will. The problem

²⁰⁴ [1995] 2 FLR 268, [1995] 2 FCR 496.

²⁰⁵ [2001] 2 FCR 552.

²⁰⁶ [1997] 1 FLR 402, [1997] 1 FCR 349.

²⁰⁷ It took the wife 17 years to find out that her husband had not been born a man. The facts of the case reveal the dangers of looking in a man's sock drawer.

²⁰⁸ As a result of ss 1(1)(a) and 25(4) of the Inheritance (Provision for Family and Dependents) Act 1975, a person who in good faith has entered into a void marriage may apply to the court for reasonable provision out of the estate.

²⁰⁹ [2009] 1 FLR 115.

²¹⁰ Ministry of Justice (2012b).

²¹¹ Law Commission Report 33 (1970).

²¹² Probert (2005).

²¹³ Herring (2016b).

²¹⁴ Home Office (2016a).

of 'forced marriages' is one which the courts have had to deal with increasingly often.²¹⁵ We have already seen that if a party is forced into a marriage as a result of threats or pressures then the marriage can be annulled on the basis of no consent. Here we will consider how the court will deal with a case where there are concerns that a forced marriage is about to take place.

It should be emphasised that there are no legal objections to an arranged marriage, where the parents determine who their adult child should marry. Parents may encourage or persuade their child to marry the person they propose. There are many communities where this is common practice and the courts will not invalidate a marriage or seek to prevent the parents urging their child to marry, unless the pressure used becomes illegitimate. In *A Local Authority v N*²¹⁶ Munby J warned that courts must be sensitive to cultural, social and religious circumstances and the courts should not assume that an arranged marriage is a forced one. The Government is aware that it is necessary to draw a clear distinction between a forced marriage and an arranged marriage:

There is a clear distinction between a forced marriage and an arranged marriage. In arranged marriages, the families of both spouses take a leading role in arranging the marriage but the choice whether or not to accept the arrangement remains with the prospective spouses. In forced marriage, one or both spouses do not (or, in the case of some adults with disabilities, cannot) consent to the marriage and duress is involved. Duress can include physical, psychological, sexual, financial and emotional pressure.²¹⁷

It is easy to be over-simplistic in an understanding of forced marriages. In fact, they involve a complex interplay of gender and age discrimination.²¹⁸ They should not be seen simply as the product of a minority cultural practice, as economic difficulties; attitudes towards gender and disability and immigration policies also play an important role.²¹⁹ Nor should it be assumed that only young women are affected – men can be,²²⁰ as can older women.²²¹ It should be remembered, too, that it is not just the entry into forced marriages that needs tackling, but women need to be enabled to leave such marriages.²²²

The courts have shown an increased willingness to make orders to protect someone from a forced marriage.²²³ There are three jurisdictions the courts can use: Forced Marriage (Civil Protection) Act 2007; the Mental Capacity Act 2005; and the inherent jurisdiction. Where the only issue of concern is the forced marriage, then the 2007 Act should be used. Where, however, there are a range of issues over which the court needs to make orders, the Mental Capacity Act 2005 should be used if the person lacks mental capacity; or the inherent jurisdiction order if the person does not.

(i) Forced Marriage (Civil Protection) Act 2007

The 2007 Act was passed to provide specific protection to people at risk of being forced into a marriage. The Act does not deal with the validity of forced marriages, those are dealt with by the law on voidability. The Act enables the court to make 'forced marriage protection orders'.

²¹⁵ See Dauvergne and Millbank (2010) for a discussion of the international dimension.

²¹⁶ [2005] EWHC 2956.

²¹⁷ HM Government (2009: 10).

²¹⁸ Mody (2016).

²¹⁹ Gill and Anitha (2009); Chantler, Gangoli and Hester (2009).

²²⁰ Samad (2010).

²²¹ Gangoli and Chantler (2009).

²²² Chantler, Gangoli and Hester (2009).

²²³ See Gill and Anitha (2011) for an excellent analysis of the issues.

In 2011, 157 such orders were made.²²⁴ A forced marriage is defined as one where one person forces another to enter into a marriage without their 'full and free consent'.²²⁵ Force here includes physical and psychological threats; and includes threats, whoever they are directed towards.²²⁶ The Act gives the court a broad discretion to make whatever order is necessary to protect the individual at risk: it can order 'such prohibitions, restrictions or requirements . . . and . . . other terms . . . as the court considers appropriate for the purposes of the order'.²²⁷ This could include surrendering a passport, or prohibiting a party from contacting another. In deciding whether to make an order the court must have regard to 'all the circumstances including the need to secure the health, safety and well-being of the person to be protected'. Notably the Act states that in ascertaining that person's well-being, the court is to have regard to his or her wishes and feelings (so far as reasonably ascertainable) and giving them 'such weight as the court considers appropriate given his or her age and understanding'.²²⁸ In *Bedfordshire Police Constabulary v RU*²²⁹ a forced marriage protection order was made to protect a young woman aged 16. She later applied to dispense with it. The court determined she had been pressurised into the making the application and so kept the order in force.

Applications can be brought by a local authority.²³⁰ The Act can be used in a case where a person has been forced into an invalid marriage abroad and then brought to England.²³¹ In one dramatic case when a 20-year-old became aware that her parents intended to marry her and her five siblings (aged between 18 and 6), forced marriage protection orders were made against all of the parents' children.²³² According to practitioners working in the field, the courts are becoming sensitive to way that concepts of 'shame' and 'honour' can be manipulated to force people into marriage.²³³ However, they argue these same concepts mean that many victims are very reluctant to come forward to seek help. This can be a problem particularly because if an order is breached the police have no standing to seek committal of those who breach the order. Only the victim can do that and she may be very reluctant to seek orders which may result in the imprisonment of her family.²³⁴ In *Bedfordshire Police Constabulary v RU*²³⁵ a teenager who had been subject to a marriage protection order, but was forced into a religious marriage, was not willing to bring committal proceedings. Holman J stated:

Forced marriages are a scourge, which degrade the victim and can create untold human misery. It is vital that FMPOs have real teeth and that people bound by them . . . appreciate that they are capable of being enforced and will be enforced even though the young person may not seek enforcement himself or herself. The scope for psychological or other pressures in this field is obvious and enormous.

Perhaps recognising this difficulty, the Government has made forced marriage a criminal offence. In s 121 of the Anti-Social Behaviour, Crime and Policing Act 2014 it states that a person will commit an offence if he or she uses violence, threats or any other form of coercion for the purpose

²²⁴ Ministry of Justice (2012a).

²²⁵ Family Law Act 1996 (FLA), s 63A(4).

²²⁶ FLA, s 63A(4). Note there does not need to be a threat of violence: *A v SM and HB (Forced Marriage Protection Orders)* [2012] EWHC 435 (Fam).

²²⁷ FLA, s 63B.

²²⁸ FLA, s 63A.

²²⁹ [2013] EWHC 2350 (Fam).

²³⁰ Family Law Act 1996 (Forced Marriage) (Relevant Third Party) Order 2009.

²³¹ *Re P (Forced Marriage)* [2010] EWHC 3467 (Fam).

²³² *A v SM and HB (Forced Marriage Protection Orders)* [2012] EWHC 435 (Fam).

²³³ Chokowry and Skinner (2011).

²³⁴ *Bedfordshire Police Constabulary v RU* [2013] EWHC 2350 (Fam).

²³⁵ [2013] EWHC 2350 (Fam).

of causing another person to enter into a marriage, and believes, or ought reasonably to believe, that the conduct may cause the other person to enter into the marriage without free and full consent. Section 120 of the same Act makes it an offence to breach a forced marriage protection order. While these offences will provide a solution in cases like *Bedfordshire Police Constabulary v RU*,²³⁶ where the victim is reluctant to enforce the order, they are controversial. Some fear that victims will be reluctant to inform the police or seek help if doing so puts their parents at risk of a criminal conviction. Also, there are fears that parents will take children abroad to force their marriages, in an attempt to avoid prosecution.²³⁷ One year since the implementation of the legislation there has been one conviction, a serious case involving rape and kidnapping.²³⁸

(ii) Mental Capacity Act 2005

The Mental Capacity Act 2005 enables courts to make orders to promote the best interests of mentally incompetent people.²³⁹ The Act can only be used in relation to issues over which a person lacks capacity. An order could be made under the Act protecting a person lacking capacity from entering a marriage or even entering a relationship. The courts have been willing, for example, to find that a person lacks the capacity to consent to sex, thereby requiring the local authority to ensure that such a person is protected from entering a sexual relationship.²⁴⁰ Of course, that is likely to lead to a significant restriction on their liberty. That has led the courts to be reluctant to find that someone lacks the capacity to enter a sexual relationship.²⁴¹

In *PC v City of York*²⁴² a vulnerable woman had married a man who was in prison. He was due to be released and the local authority were concerned that he posed a risk to her. He had a history of violence against his partners, but the woman refused to accept that. The Court of Appeal found that although her capacity to make the decision was impaired (she did not understand the nature of the risks of living with him) this was not due to a mental disorder and so she fell outside the Mental Capacity Act 2005. The court said it had to allow her to cohabit with him and hope that it all turned out well in the end.²⁴³ By contrast in *YLA v PM*²⁴⁴ a woman who had severe learning difficulties and was timid, had married a man and given birth to their child. However, it was found in the Court of Protection that she lacked the capacity to engage in sexual relations; consent to marry; or decide where to live. It was ordered she was removed from her husband to protect her from being the victim of sexual offences.

(iii) The inherent jurisdiction

Recently, the courts have also shown a willingness to use the inherent jurisdiction to protect individuals who are at risk of being forced into a marriage. It has even been used in respect of British nationals living overseas.²⁴⁵ The jurisdiction can be exercised over vulnerable adults. These are people who might have capacity to make the decision on whether or not to marry, but are for some other reason vulnerable. This may be because they have some disability or because someone is exercising undue influence over them.²⁴⁶

²³⁶ [2013] EWHC 2350 (Fam).

²³⁷ See the discussion in Proudman (2012) and Gaffney Rhys (2015).

²³⁸ Gaffney Rhys (2015).

²³⁹ See the discussion in *Re SK* [2008] EWHC 636 (Fam).

²⁴⁰ *A Local Authority v H* [2012] EWHC 49 (COP), discussed in Herring (2012j).

²⁴¹ *IM v LM* [2014] EWCA Civ 37, discussed in Herring and Wall (2014b).

²⁴² [2013] EWCA Civ 478, discussed in Herring and Wall (2013 and 2014a).

²⁴³ For an argument that this failed to protect her human rights see Herring and Wall (2013).

²⁴⁴ [2013] EWHC 4020 (COP).

²⁴⁵ *Re B; RB v FB and MA (Forced Marriage: Wardship: Jurisdiction)* [2008] 2 FLR 1624.

²⁴⁶ *Re SK (An Adult) (Forced Marriage: Appropriate Relief)* [2005] 2 FCR 459; *M v B* [2005] EWHC 1681 (Fam).

7 Equal marriage

A The debates over equal marriage

It is possible to identify a journey which several countries, including England and Wales, have taken in response to same-sex couples.²⁴⁷ First, the law removes criminal offences outlawing same-sex activity. Secondly, the law grants same-sex couples an increasing set of rights. Thirdly, a status equivalent to marriage, but different from it, is granted to same-sex couples. Finally, same-sex couples are allowed to marry. This final step occurred in England and Wales with the passing of the Marriage (Same Sex Couples) Act 2014, which allows couples of the same sex to marry.

In *Home Affairs v Fourie*,²⁴⁸ a South African case, Justice Albie Sachs has made a powerful case in favour of allowing same-sex marriage:

The exclusion of same sex couples from the benefits and responsibilities of marriage, accordingly, is not a small and tangential inconvenience resulting from a few surviving relics of societal prejudice destined to evaporate like the morning dew. It represents a harsh if oblique statement by the law that same sex couples are outsiders, and that their need for affirmation and protection of their intimate relations as human beings is somehow less than that of heterosexual couples. It reinforces the wounding notion that they are to be treated as biological oddities, as failed or lapsed human beings who do not fit into normal society, and, as such, do not qualify for the full moral concern and respect that our Constitution seeks to secure for everyone. It signifies that their capacity for love, commitment and accepting responsibility is by definition less worthy of regard than that of heterosexual couples.

There are, of course, voices against same-sex marriage. Many of these are based on religious beliefs,²⁴⁹ arguing that marriage is a religious concept and that allowing same-sex marriage infringes the religious concepts of marriage. However, there is no need for the legal concept of marriage to match religious ones; indeed it does not, at present, for many religions. The law reflects very few traditional religious views about marriage, why should it do so about the sex of the parties?²⁵⁰ Even if it was thought that the law should match religious views of marriage, then which religious view should be followed? There are plenty of religious groups who support same-sex marriage. More importantly, the offence caused to those who have religious objections to same-sex marriage must be weighed against the harm caused to those same-sex couples who wish to marry, some of whom will themselves be religious. In weighing these it may be thought that harm to the same-sex couple would be far greater and more personal than that to those with religious objections.²⁵¹

A non-religious objection to marriage has been voiced by Patrick Parkinson, a leading Australian academic:

A consequence of extending marriage to same-sex relationships is that there will be almost nothing left of the legal definition of marriage as a union of a man and a woman for life to the exclusion of all others. Robbed of its distinctiveness, and detached from its cultural and religious roots, marriage as an institution is unlikely to retain its cultural importance and vitality. We simply won't know what marriage is any more.²⁵²

²⁴⁷ Glennon (2005); Eekelaar (2013a).

²⁴⁸ [2005] ZACC 19, para 71.

²⁴⁹ Carey (2013). But see White (2010) for a discussion of economic arguments against same-sex marriage.

²⁵⁰ Herring (2016a).

²⁵¹ In *Islington LBC v Ladele* [2009] EWCA Civ 1357 a registrar who was sacked after refusing to conduct a civil partnership because of her religious beliefs was found to have been justifiably dismissed.

²⁵² Parkinson, P. (2012).

This view suggests that there is something unique about relationships between people of the opposite sex, although it is unclear what that is. Lynn Wardle, seeking to present a non-religious argument against same-sex marriage, argues:

The union of two persons of different genders creates a union of unique potential strengths and inimitable potential value to society. It is the *integration* of the universe of gender differences – profound and subtle, biological and cultural, psychological and genetic – associated with sexual identity that constitutes the core and essence of marriage. Just as men and women are different, so a union of two men or of two women is not the same as the union of a man and a woman.²⁵³

Notice that this view is based on a strong belief in the differences between the genders. Indeed, a strong case can be made for saying that the opposition to same-sex marriage inevitably reflects a desire to maintain a difference between sexual roles.²⁵⁴ Even if you agreed with Wardle that there is a benefit in integrating the universes of two different people, does that only occur when they are of different sex? Others argue that same-sex relationships are less desirable than opposite-sex ones in other ways: they are less stable, less likely to raise children, or less effective in raising children.²⁵⁵ The argument that appears to carry the most merit is that a same-sex couple will not be able to produce a child together, without medical intervention.²⁵⁶ But we allow opposite-sex couples who are infertile, or who have no intention of having children, to marry.²⁵⁷

Not all members of the gay and lesbian community are supporters of 'gay marriage'. The main concern is that by adopting marriage gay relationships may start to mimic heterosexual ones. Lesbians and gay men should be seeking to develop their own kinds and forms of relationship, rather than adopting heterosexual models.²⁵⁸ However, even those who adopt this view are likely to accept that the law should give same-sex couples the option of marriage, even if they think that same-sex couples should not take up that right.²⁵⁹ There is also a concern among some that although civil partnership will offer recognition and protection for 'orthodox' same-sex couples, those gay men and lesbians who do not match the marriage model (e.g. they have more than one regular partner) will be further ostracised.²⁶⁰

A rather different concern has been voiced by Rosemary Auchmuty.²⁶¹ That is, that calls for same-sex marriage might be seen as suggesting that marriage is something good that should be encouraged and is an ideal to aspire to. However, she sees marriage as being an institution which has and still does oppress women. She is not opposed to gay marriage, but believes it should not be seen as the most important issue for those promoting the interests of the gay community. She explains:

whether you see marriage as an oppressive bastion of male power, as the second-wave feminists did, or simply as outmoded and irrelevant, as many contemporaries do, the goal should surely be to get rid of it, or at least to let it die out of its own accord – not to try to share in its privileges, leaving the ineligible out in the cold.

²⁵³ Wardle (2006: 53). See also Stewart (2004), Pontifical Council for the Family (2000), Duckworth (2002b) outlining some of the non-religious arguments against permitting same-sex marriage. Bamforth (2001) and Woelke (2002) respond to some of these arguments.

²⁵⁴ Case (2010).

²⁵⁵ Duckworth (2002a: 91); Gallagher (2001). See Eskridge and Spedale (2006) for evidence rejecting such claims.

²⁵⁶ It is developed in Deech (2010e).

²⁵⁷ Cretney (2006a: 14–15).

²⁵⁸ Weeks (2004: 35); Boyd and Young (2003).

²⁵⁹ Glennon (2006); Auchmuty (2004); Toner (2004).

²⁶⁰ See the discussion in Barker (2004) and Leckey (2014).

²⁶¹ Auchmuty (2008: 485).

Although it was suggested earlier that in time civil partnerships will be regarded as a stepping stone on the way to recognising same-sex marriage, that is not the only possible consequence of official recognition of same-sex relationships. Will it (further) challenge the traditional gender roles within marriage and heterosexual relationships? Will it open up the possibility of a child having two fathers or two mothers?²⁶² Will it further challenge the legal distinction between male and female?²⁶³

B Marriage (Same Sex Couples) Act 2014

Under the Marriage (Same Sex Couples) Act 2014 couples of the same sex can now marry.²⁶⁴ The first same-sex marriages took place on 29 March 2014. While it was widely regarded as inevitable that same-sex marriage would become part of the law at some point, it all happened earlier than many commentators predicted. The pressure to change the law did not come from Europe. The European Court of Human Rights has so far refused to require states to allow same-sex couples the right to marry, as long as they have access to the same rights and protections as married couples.²⁶⁵ Although, it may well be that in the future the Court will recognise there is a sufficient consensus across Europe for the right of same-sex couples to marry to be recognised.²⁶⁶

The legislation was passed with relatively little opposition. The most vocal groups were religious, but they struggled to explain why their particular understanding of marriage should be accepted by the law. It also became clear that even among religious groups there was a range of views on same-sex marriage.

Section 1 of the Marriage (Same Sex Couple) Act 2014 was refreshingly simple:

Marriage of same-sex couples is lawful.

However the legislation then requires some 64 pages and seven schedules to work through the consequences of that statement. Couples who have civil partnership are permitted to convert their relationships to marriage.²⁶⁷

One might expect that no differences would exist between marriages between people of the same sex and the opposite sex, but that has not occurred. These primarily involve sexual matters:

- Paragraph 4 of Sch 4 states that same-sex couples will not be able to rely on the consummation grounds for having a marriage annulled.
- Paragraph 3(2) of Sch 4 states that in respect of the law of divorce: 'Only conduct between the respondent and a person of the opposite sex may constitute adultery for the purposes of this section.'²⁶⁸
- The common law presumption that a mother's spouse is the father does not apply in same-sex marriages.²⁶⁹

²⁶² Kelly (2004).

²⁶³ Chau and Herring (2004).

²⁶⁴ See Gilbert (2014) for an interesting discussion of some of the politics around the legislation.

²⁶⁵ *Vallianatos v Greece* (Application nos. 29381/09 and 32684/09); *Schalk and Kopf v Austria* (Application no. 30141/04) [2011] 2 FCR 650; *Hamalainen v Finland* [2015] 1 FCR 379; *Oliari and others v Italy* (Applications nos. 18766/11 and 36030/11), 21 July 2015. See Van der Sloot (2015) for a detailed discussion.

²⁶⁶ Johnson (2015).

²⁶⁷ Section 9.

²⁶⁸ It does this by amending the Matrimonial Causes Act 1973.

²⁶⁹ Marriage (Same Sex Couples) Act 2014, Sch 4, para 2.

Hence same-sex marriage is 'de-sexed'.²⁷⁰ The courts need not examine marital same-sex sexual behaviour to ensure that there is consummation; nor non-marital same-sex activity to see if it ensures adultery. They can coyly avert their gaze. To some commentators this is justified given the difficulty in defining what amounted to consummation within the context of a same-sex couple. There would, of course, have been no technical difficulty in doing so. The Sexual Offences Act 2003 contains descriptions of a wide range of sexual acts which could have been drawn on. A more obvious solution would have been to remove the adultery and consummation provisions from all marriages. They are both outdated and hard to justify.

The religious opposition to same-sex marriage was dealt with by inserting into the Act provisions designed to protect religious groups or ministers from being sued for failing to marry same-sex couples on the basis of discrimination. These are extensive and are known as the 'quadruple lock'. It is noticeable that in just the second section of the Act it is made clear that no religious group or minister is required to celebrate same-sex marriages. A religious denomination (although bizarrely not the Church of England) can choose to 'opt in' to allow same-sex marriages.²⁷¹ Although the 'quadruple lock' provisions ensure there is a solid protection for those taking a traditional approach to marriage, they also make it particularly burdensome for religious groups which would like to conduct same-sex marriages.

This whole debate raises the issue of whether it would be more appropriate to separate legal and religious marriages. This would free religious groups to develop their own understandings and teaching of a religious marriage and leave legal marriage as a secular institution. This is common in many countries in Europe.

As there are still some difference between marriages between couples of the same sex and those of the opposite sex we still need to consider how the law defines who is a man and who is a woman.

8 Marriage and the definition of sex

A Transsexual people

The question of deciding how to define sex has arisen in particular because of the law's treatment of transsexual people.²⁷² These are people who are born with some or all of the biological characteristics of one sex, but psychologically feel they belong to the other sex.²⁷³ Some, but not all, trans people undergo 'gender realignment surgery', which is available on the National Health Service²⁷⁴ and in private hospitals.

The law relating to transsexual people is now dominated by the Gender Recognition Act 2004. Before that legislation the leading case on transsexual people and marriage was *Corbett v Corbett*,²⁷⁵ a decision of Ormrod J. He argued that for the purpose of the law an individual's sex is fixed at birth: 'The law should adopt in the first place the first three of the doctor's criteria, i.e., the chromosomal, gonadal and genital tests, and if all three are congruent, determine the sex for

²⁷⁰ Crompton (2013a).

²⁷¹ Marriage (Same Sex Couples) Act 2014, ss 4 and 5. Several groups have, including the Quakers and the United Reformed Church.

²⁷² Sharpe (2002); Whittle (2002).

²⁷³ There is no definitive data on the number of transsexual people, but estimates vary between 2,000 and 5,000: Home Office (2000a).

²⁷⁴ Although there is no right to such treatment: *R v North West Lancashire HA, ex p A* [2000] 2 FCR 525.

²⁷⁵ [1971] P 83. For a fascinating discussion of the history surrounding this case, see Gilmore (2011b), including the fact that in 2005 April Ashley was given a Gender Recognition Certificate and could at last legally be a woman.

the purpose of marriage accordingly, and ignore any operative intervention.²⁷⁶ So, in the case before him, April Ashley, born as a man but having undergone a 'sex change operation' and living as a woman, was a man and could not enter into a marriage with a man.²⁷⁷ The law based on that case was found incompatible with the ECHR in *Goodwin v UK*²⁷⁸ and *I v UK*.²⁷⁹ Following *Goodwin*, the case of *Bellinger v Bellinger*²⁸⁰ issued a declaration that the definition of sex in s 11(c) of the Matrimonial Causes Act 1973 which prohibited a transsexual person marrying in her declared sex was incompatible with articles 8 and 12 of the European Convention on Human Rights.

The Government responded by producing the Gender Recognition Act 2004. Under the Act a person can apply for a Gender Recognition Certificate. Section 9(1) explains:

LEGISLATIVE PROVISION

Gender Recognition Act 2004, section 9(1)

Where a full gender recognition certificate is issued to a person, the person's gender becomes for all purposes the acquired gender (so that, if the acquired gender is the male gender, the person's sex becomes that of a man and, if it is the female gender, the person's sex becomes that of a woman).

There are two alternative grounds on which a person may apply to the Gender Recognition Panel for a certificate.²⁸¹ First that they have 'changed their gender'²⁸² under the law of another country. Secondly, they are living in the gender which is not that on their birth certificate. To issue a certificate on the second ground the panel must be persuaded that the applicant:

LEGISLATIVE PROVISION

Gender Recognition Act 2004, section 2(1)

- (a) has or has had gender dysphoria,
- (b) has lived in the acquired gender throughout the period of two years ending with the date on which the application is made,
- (c) intends to continue to live in the acquired gender until death.²⁸³

²⁷⁶ At p. 106.

²⁷⁷ Sharpe (2002) and Whittle (2002: ch. 7) provide a detailed analysis and criticism of his decision. See also Chau and Herring (2002: 347–51).

²⁷⁸ [2002] 2 FCR 577.

²⁷⁹ [2002] 2 FCR 613.

²⁸⁰ [2003] UKHL 21, [2003] 2 FCR 1. See Gilmore (2003b) for a powerful critique of the decision.

²⁸¹ www.grp.gov.uk is the website of the Gender Recognition Panel and contains some useful material on its work.

²⁸² This phrase is given in quotation marks because many transsexual people do not regard themselves as having changed sex, but as having their body altered to align to their true sex.

²⁸³ Gender Recognition Act 2004 (GRA 2004), s 2(1).

The applicant is required to produce reports from experts in the field to establish these facts.²⁸⁴ The panel request further evidence if needed.²⁸⁵ In *Carpenter v Secretary of State for Justice*²⁸⁶ Thirlwall J rejected an argument that the requirement in s 3(3) of the Gender Recognition Act that details of surgery had to be provided breached her rights to respect for private life under article 8 of the European Convention on Human Rights. It was held it was a justifiable provision as it enabled the committee to have all the relevant information before it. However, as an individual does not need to have had surgery before obtaining a certificate it is hard to see why the committee needs to know the details of the surgery, if that has taken place. Once a certificate is issued, the individual's gender is changed for all purposes. In *R (AB) v Secretary of State for Justice*²⁸⁷ AB had been issued with a certificate meaning she was a woman and it was therefore held to be unlawful to place her in a man's prison.

As already stated, the full certificate changes the legal categorisation of the person's sex, but it does 'not affect the status of the person as the father or mother of a child'.²⁸⁸ In *R (JK) v Registrar General for England and Wales*²⁸⁹ a trans woman who was registered as the father of a child, could not on having obtained a gender recognition certificate amend the certificate to name her as mother. This means that a person could be the mother of one child and the father of another.²⁹⁰ It should also be noted that those transsexual people who do not apply for a certificate have their sex determined by the *Corbett* test set out above.²⁹¹ Between April and June 2014, 75 applications were received, suggesting an average of around 300 a year. In 85 per cent of cases a full certificate is granted.²⁹²

Generally, the Act has been welcomed. At last individuals with gender identity dysphoria can be recognised in law as having the sex with which they identify. Yet there are some who raise concerns about the legislation. Alison Diduck²⁹³ has expressed concern that the legislation appears to regard gender dysphoria as an abnormal dysfunction that needs special medical and legal treatment. It is almost as if it is some highly contagious condition which needs careful control and monitoring. Certainly the wait for two years is a long time. While a wait before undergoing surgery may be sensible given it is so hard to reverse, is there a need for a wait before obtaining a certificate? John Eekelaar objects to the fact that on the issue of a gender recognition certificate a new birth certificate is issued. He argues doing so feeds the climate of discrimination and harassment that the legislation is designed to combat. If society approves of gender reassignment surgery it should 'shout about it from the rooftops'.²⁹⁴ However, transsexual people claim that the surgery is bringing their body in line with their true sex. So reissuing the birth certificate is correcting an erroneous document. Indeed, the Act does nothing to challenge the *Corbett* test for sex, with its focus on genital factors, which remains the starting point for the law's approach.

²⁸⁴ GRA 2004, s 3.

²⁸⁵ *Carpenter v Secretary of State for Justice* [2012] EWHC 4421 (Fam).

²⁸⁶ [2015] EWHC 464 (Admin).

²⁸⁷ [2009] EWHC 2220 (Admin).

²⁸⁸ GRA 2004, s 12.

²⁸⁹ [2015] EWHC 990 (Admin).

²⁹⁰ Probert (2005).

²⁹¹ Gilmore (2003b). Where a woman gives birth to a child, is later given a gender recognition certificate and thereafter, with his new female partner, receives fertility treatment at a licensed clinic and a child is born as a result.

²⁹² Ministry of Justice (2014d).

²⁹³ Diduck (2003: ch. 1).

²⁹⁴ Eekelaar (2006b: 76).

Another issue is that, as mentioned earlier, a person who does not disclose their gender past can render their marriage voidable. Alex Sharpe argues that the fact the Act makes a failure to disclose gender a ground of annulment of a marriage reveals the suspicion the law retains about transsexual people.²⁹⁵ When marrying someone one is not required to disclose any other information. Is one's gender history any more significant than other important information about oneself, such as one's criminal record?²⁹⁶

Others have complained that the legislation does nothing for a transsexual or intersex people who wish to be regarded as neither male nor female. Indeed, the legislation can be said to reflect the law's obsession with categorising people into being either male or female.²⁹⁷ Some commentators have argued that far from there being two boxes for male and female, there is rather a scale of maleness and femaleness,²⁹⁸ while it is often said this is too radical a suggestion given the extent to which gender roles are rigidly defined in our society. However, notably in a 2015 49 per cent of those aged 18–24 said they were not strongly heterosexual.²⁹⁹

In its review of the current law the House of Commons Women and Equalities Committee³⁰⁰ concluded:

The Gender Recognition Act 2004 was pioneering but is now dated. Its medicalised approach pathologises trans identities and runs contrary to the dignity and personal autonomy of applicants. The Government must update the Act, in line with the principle of gender self-declaration.

It looks forward to a day when a person can legally be the sex they want to be. An even bolder one is a day when we are all people and sex is legally irrelevant.

B Intersex people

Transsexual people must be clearly differentiated from intersex people who are born with sexual or reproductive organs of both sexes. As the biological sex of an intersex person is ambiguous at birth, the doctors, in consultation with the family, will select a sex for the child.³⁰¹ Tragically it can later become clear that the doctors made the wrong choice and the child's body develops in a way clearly in line with the opposite sex. In such cases it is possible to amend the birth certificate to reflect the fact that an error was made in determining the sex at birth and the child will be regarded as having the later sex.³⁰²

The leading case in this area is now *W v W (Nullity)*,³⁰³ where Charles J held that if a person was born with ambiguous genitalia, the individual's sex was to be determined by considering: (i) chromosomal factors; (ii) gonadal factors; (iii) genital factors; (iv) psychological factors; (v) hormonal factors; and (vi) secondary sexual characteristics (such as distribution of hair, breast development, etc.). Notably, Charles J accepted that a decision as to someone's sex could be made at the time of the marriage, taking these factors into account. As we have seen, some commentators take the view that the position of intersex people reveals that there is no hard and fast division between male and female, but rather there is a scale between maleness and

²⁹⁵ Sharpe (2007).

²⁹⁶ Sharpe (2012).

²⁹⁷ Chau and Herring (2004: 201); Sandland (2005).

²⁹⁸ O'Donovan (1993); Chau and Herring (2004).

²⁹⁹ YouGov (2015).

³⁰⁰ House of Commons Women and Equality Committee (2016).

³⁰¹ For a detailed discussion of the medical and legal issues surrounding intersexual people, see Chau and Herring (2002 and 2004).

³⁰² See House of Commons Women and Equality Committee (2016) for calls for the law to take account of intersex people.

³⁰³ [2000] 3 FCR 748; discussed in Herring and Chau (2001). See also *B v B* [1954] 2 All ER 598.

femaleness and people are placed at various points on that scale.³⁰⁴ To them we should simply treat everyone as a person and not classify people as male or female. That would mean, in this context, that any two people should be allowed to marry. Objectors to this view might reply that it overlooks the reality that the vast majority of people clearly do strongly regard themselves as either male or female. It is highly artificial to refer to a scale when virtually everyone is at either end of it. Although in reply it might be said that until society opens up the possibility of people being on a scale of sexual identity, we cannot know how people will respond.

9 Civil partnerships

Learning objective 9

Explain and evaluate the law relating to civil partnerships

This status was created by the Civil Partnership Act 2004 (CPA 2004).³⁰⁵ There were 861 civil partnerships formed in England and Wales in 2015, a fall of 49 per cent from 1,683 in 2014 and a significant decrease from the figure of 16,106 in 2006.³⁰⁶ That is not so surprising, because 2006 was the first full year during which civil partnerships were available and no doubt many couples had been waiting for some time. Further, now same-sex couples have the alternative of marriage and many prefer that. It has been calculated that by the end of 2013 a total of 66,000 civil partnerships had been created.³⁰⁷ Notably, the average age of entering a civil partnership in 2011 was 40.0 for men and 37.6 for women.³⁰⁸ Further, in 2015 66 per cent of couples entering civil partnerships were male and 34 per cent were female, although in previous years there had been a higher percentage of female civil partnerships.

In 2014 following the Marriage (Same Sex Couples) Act 2013 civil partners could convert their civil partnerships into marriages. However, as John Haskey notes:

Couples may have seen no need to hurry, if at all, to avail themselves of same-sex marriage (especially if they had already formed a civil partnership). Support for this interpretation might be borne out by the fact that, roughly, only about one in eight civil partnership couples has so far converted their civil partnership into a marriage.³⁰⁹

A Who can enter a civil partnership?

Civil partnerships can only be entered into by same-sex couples.³¹⁰ A civil partnership is created when the parties sign a civil partnership document 'at the invitation of, and in the presence of, a civil partnership registrar' and 'in the presence of each other and two witnesses'.³¹¹

There are other restrictions on who can enter a civil partnership: the parties must not be married or already a civil partner; they must both be over the age of 16³¹² and they must not be within the prohibited degrees of relationship.³¹³ These restrictions are the equivalent to the ones found in marriage. A different set of objections to the Civil Partnership Act is that it

³⁰⁴ The argument is developed in Chau and Herring (2002) and Grenfell (2003).

³⁰⁵ Mallender and Rayson (2006). For critical discussion of the Act, see Barker (2006 and 2012).

³⁰⁶ Office for National Statistics (2016c).

³⁰⁷ Haskey (2016).

³⁰⁸ Office for National Statistics (2013b).

³⁰⁹ Haskey (2016).

³¹⁰ Civil Partnership Act 2004 (CPA 2004), s 1(1).

³¹¹ CPA 2004, s 2(1).

³¹² Where a person is under 18, parental consent is required: s 4.

³¹³ CPA 2004, s 3.

is only open to same-sex couples. Why should an unmarried heterosexual couple wishing to register their relationship not be able to take advantage of this legislation? It has even been suggested (somewhat ironically) that the legislation discriminates on grounds of sexual orientation in making civil partnerships open only to same-sex couples.³¹⁴ The Government's answer to such complaints was that opposite-sex couples had marriage available to them and therefore had no need for civil partnership. This, however, overlooks the argument that an opposite-sex couple may dislike marriage with its historical and religious baggage and wish to formalise their relationship in another way. It also overlooks the case of couples who wish to have a legal formality for their relationship, but cannot marry, such as two sisters who in old age have shared a home together, or an elderly parent cared for by her son.

The issue arose in *Burden v UK*³¹⁵ where two unmarried sisters had lived together for many years. They were concerned that if either of them died the other would be liable to pay inheritance tax. They complained to the European Court of Human Rights that they were denied the exemption from inheritance tax that was available to married couples and civil partners. The Grand Chamber of the ECtHR rejected their complaint stating that a relationship between siblings is 'qualitatively of a different nature to that between married couples and [civil partners] . . . The very essence of the connection between siblings is consanguinity, whereas one of the defining characteristics of a marriage or Civil Partnership Act union is that it is forbidden to close family members.' They went on to explain that what is special about a civil partnership is the existence of the public undertaking and the rights and obligations that go with that. That makes civil partnership (and marriage) different from cohabitation. This seems the correct response to this case. What the sisters really wanted was to be exempt from inheritance tax, rather than become civil partners.³¹⁶ The strength of their case indicates a need to reform inheritance tax, rather than extend the law on civil partnerships.

The Marriage (Same Sex Couples) Act 2014 did not abandon the concept of civil partnership and instead same-sex couples have a choice as to whether to marry or enter a civil partnership. The argument in favour of keeping this option was that it was seen as an 'established mechanism' for recognising same-sex partnerships. It was argued that some same-sex couples may seek to avoid the patriarchal or heterosexist assumptions of the word marriage and feel that the label 'civil partnership' left them freer to explore novel ways of coupledness. More controversial is the decision not to allow opposite-sex couples the freedom to choose civil partnerships, if they too wish to avoid some of the historical trappings of marriage. A 2014 report issued, intriguingly, by the Department of Culture, Media and Sport³¹⁷ reported on the results of a consultation on civil partnership. This found a majority in favour of retaining its current status and over 75 per cent opposed to allowing opposite-sex couples to enter civil partnerships. The reasons for not extending civil partnership to opposite-sex couples were listed in the Report as follows:

- Civil marriage entirely free from any religious element was already available to opposite-sex couples.
- There was no need for opposite-sex couples to have an alternative to marriage.
- Only very few opposite-sex couples would want a civil partnership.

³¹⁴ Wong (2005) considers this argument.

³¹⁵ [2008] ECHR 357, [2008] 2 FCR 244.

³¹⁶ Auchmuty (2009).

³¹⁷ Department for Culture, Media and Sport (2014).

- Marriage is felt to be the appropriate relationship for an opposite-sex couple.
- Civil partnership was a relationship created specifically for same-sex couples.
- It would create a two-tier system based on the assumption that civil partnership entails a lesser degree of commitment and is less stable than marriage.
- It would entail significant costs.

The arguments for the minority view that opposite-sex couples should be permitted to enter civil partnerships were given as follows:

- This is needed for fairness and equality and to eliminate discrimination between opposite-sex and same-sex couples. All couples should have the same options for formalising their relationship in law.
- Civil partnership would enable opposite-sex couples to enter a legal relationship that was a secular alternative to marriage without its traditional associations.
- Couples may prefer civil partnership to marriage; they should be able to make this personal choice.

The Government has decided not to make any changes to the law as a result of the consultation. It is, perhaps, worth noting that over 81 per cent of respondents to the consultation declared themselves to have religious belief. Whether, therefore, the respondents to the survey represented a cross-section of society is questionable. In any event it may be said to be *prima facie* discrimination that a same-sex couple has a choice over the legal form of their relationship, while an opposite-sex couple does not.³¹⁸ The matter, not surprisingly, has been taken to court.

**CASE: *Steinfeld and Keidan v Secretary of State for Education* [2016]
EWHC 128 (Admin)**

An opposite sex couple were in a committed long-term relationship and had a child. They wanted to give their relationship a formal legal basis but had profound ideological objections to marriage, which they saw as patriarchal in nature. They wished to enter a civil partnership, but that is only available to same-sex couples under section 1 Civil Partnership Act 2004 (CPA). They claimed that provision was incompatible with their rights to respect for family life under article 8 in a way which was discriminatory contrary to article 14 of the European Convention on Human Rights.

The application failed. Although opposite sex couples and same sex couples were treated differently in relation to whether they could enter civil partnerships this did not involve infringing a 'personal interest'. Whether a couple were civil partners or married did not affect their legal interests in a practical sense. Even if there was a difference in treatment it could be justified as the Government had indicated it was waiting to determine the impact of the Marriage (Same Sex Couples) Act 2014 before deciding whether to extend civil partnership to opposite sex couples. Further there was no European-wide consensus on the issue. The Government were justified in taking time to determine whether further reform was appropriate.

³¹⁸ Gaffney-Rhys (2014).

It is notable that this decision, in line with previous ones, focuses on the legal rights that flow from the status, rather than the social understanding. Andrews J is clearly correct that an opposite sex couple suffers no disadvantage in terms of legal rights in not accessing civil partnerships. However, it seems for the couple in question, the status was not about legal rights, but the social image and perception of their relationship. Lawyers may see civil partnership and marriage as legally equivalent, but some people see a difference in the social meaning.

B How do you form a civil partnership?

In many ways the creation of a civil partnership is much like a civil wedding. There are two important differences, however. First, in a civil wedding it is the exchange of vows, rather than the signing of the register, which creates the marriage.³¹⁹ Secondly, no religious services can be used while a civil partnership registrar is officiating at the signing of the register.³²⁰ Of course, there is nothing to stop the couple from having a religious service after they have become civil partners. However, the Equality Act 2010³²¹ allows for religious groups to have a civil partnership as part of a religious service. This recognises the fact that some religious groups are supportive of same-sex relationships.

C Annuling a civil partnership

A civil partnership can be void or voidable. It will be void if:³²²

- the parties were not of the same sex;
- either of them was already a civil partner or married;
- either of them was under the age of 16;
- the parties were within the prohibited degrees of relationship; or
- they both knew that certain key formality requirements had not been complied with.³²³

A civil partnership will be voidable on the following grounds:³²⁴

LEGISLATIVE PROVISION

Civil Partnership Act 2004, section 50

- (a) either of them did not validly consent to its formation (whether as a result of duress, mistake, unsoundness of mind or otherwise);
- (b) at the time of its formation either of them, though capable of giving a valid consent, was suffering (whether continuously or intermittently) from a mental disorder of such a kind or to such an extent as to be unfitted for civil partnership;
- (c) at the time of its formation, the respondent was pregnant by some person other than the applicant;

³¹⁹ Cretney (2006a: 23).

³²⁰ CPA 2004, s 2(5).

³²¹ Equality Act 2010, s 202.

³²² CPA 2004, s 49.

³²³ CPA 2004, s 49.

³²⁴ CPA 2004, s 50.

- (d) an interim gender recognition certificate under the Gender Recognition Act 2004 has, after the time of its formation, been issued to either civil partner;
- (e) the respondent is a person whose gender at the time of its formation had become the acquired gender under the 2004 Act.

These match the void and voidable grounds for marriage, with two notable exceptions: the non-consummation grounds are not included, nor is the venereal disease ground. We will look at the reasons for this later. The Act also contains bars to relying on annulment and these match those discussed above for marriage.³²⁵

D The end of the civil partnership

Civil partnerships will end on the death of the party or on an order for dissolution (the equivalent of divorce). The law on dissolution of a civil partnership is very similar to the law on divorce and will be discussed in Chapter 4. For now, it is worth noting that adultery is a fact which establishes the ground for divorce, but not dissolution.

E The effect of a civil partnership

Baroness Hale in *Secretary of State for Work and Pension v M*³²⁶ explained that civil partnerships have ‘virtually identical legal consequences to marriage’. We shall be looking at the consequences of marriage and civil partnerships later in this section. Jill Manthorpe and Elizabeth Price have argued that although civil partnership has enabled same-sex couples to have the relationship between themselves formally recognised, their relationship with their partner’s children or wider family is not recognised in law or socially to the same extent as occurs in marriage.³²⁷ In particular, a civil partner of a woman may not be in as strong a position as a husband in relation to their children. This is explored further in Chapter 10.

F The differences between civil partnership and marriage

As has been repeated several times, there are very few differences between spouses and civil partners. As Stephen Cretney explains, the care taken by Parliament to ensure that marriage and civil partnerships were treated in the same way is revealed by the fact that the CPA 2004 amends legislation as diverse as the Explosive Substances Act 1883 and the Law of Property Act 1925.³²⁸ The most important differences between marriage and civil partnership are the following:

1. The formalities at the start of the relationship: in a civil partnership it is the signing of the register, rather than the exchange of vows, which creates the legal relationship. Further, unlike a marriage, a civil partnership ceremony cannot contain a religious service.³²⁹ However, s 202 of the Equality Act 2010 allows for regulations to be passed which will permit religious groups to have civil partnership ceremonies in the context of a religious service.

³²⁵ CPA 2004, s 51.

³²⁶ [2006] 1 FCR 497 at para 99.

³²⁷ Manthorpe and Price (2005).

³²⁸ Cretney (2006a: 29).

³²⁹ Interestingly, a survey of same-sex couples found that a significant minority wanted a religious element in the civil partnership celebration: Readhead (2006).

2. The non-consummation grounds and venereal disease ground are not present as a ground of voidability in civil partnerships, while they are in marriage.
3. Adultery is not a fact establishing the ground for dissolution of a civil partnership, although it is for divorce.
4. If a woman receives assisted reproductive services, her husband will be regarded as the father of the child. Her civil partner would not be regarded as a parent of the child.³³⁰

What are we to make of these differences? One response is to suggest that they are so minor as to be of negligible practical significance. The exact moment when the status is created is of no practical relevance; nullity is very rarely used and is mainly of significance for those with strong conservative religious beliefs; and in a case of adultery a civil partner can rely on a behaviour ground for dissolution.³³¹ Another response is to be more cynical. The lack of reference to adultery and non-consummation demonstrates the law's failure to recognise that gay sex is real sex. Baroness Scotland, a Government minister at the time of the passing of the CPA, explained: 'There is no provision for consummation in the Civil Partnership Bill. We do not look at the nature of the sexual relationship, it is totally different in nature.' The coyness apparent in the Government's explanation that it was not possible to produce a same-sex equivalent to consummation and adultery, may indicate a reluctance to accept same-sex relationships at full value. Is the law suggesting that same-sex sexual behaviour is something that should not be talked about?

In the first in-depth study of same-sex couples who had entered civil partnerships a number of interesting points emerged.³³² Among civil partners it was common to refer to themselves as 'married' and few had faced negative reactions to their status. Many couples noted that they had been accepted as sons-in-law or daughters-in-law and as full members of their partner's family.³³³ Interestingly, while 80 per cent of the members of the gay and lesbian community welcomed the Act, only 50 per cent wanted marriage to be extended to include same-sex couples. Another study found ambivalence towards civil partnership in the gay and lesbian community, with some describing it as 'pretend marriage' or 'second class'. Others were, however, wary of marriage, seeing it as a 'church thing' and not a label they would feel comfortable with.³³⁴ Some civil partners work hard to ensure their relationship does not follow the traditional pattern of gendered roles within marriage.³³⁵

10 Unmarried cohabiting couples

Learning objective 10

Explain how the law has defined cohabitation

There is enormous difficulty in discussing unmarried couples because there are so many forms of cohabitation.³³⁶ The term 'cohabiting couple' can range from a group of students living together in a flat-share, to a boyfriend and girlfriend living

together while contemplating marriage, to a couple who have deliberately decided to avoid marriage but wish to live together in a permanent stable relationship. Lord Hoffmann in *Re P*³³⁷ stated: 'Statistics show that married couples, who have accepted a legal commitment

³³⁰ The Court of Appeal recognised this in *Re G (Children) (Residence: Same-Sex Partner)* [2006] 1 FCR 681.

³³¹ Spon-Smith (2005: 271).

³³² Smart, Masson and Shipman (2006).

³³³ See Browne (2011) for an interesting discussion of how class can affect acceptance of civil partnership.

³³⁴ Clark, Burgoyne and Burns (2006).

³³⁵ Rolfe and Peel (2011).

³³⁶ Probert (2012b) provides an outstanding history of the legal interaction with cohabitation.

³³⁷ [2008] UKHL 38.

to each other, tend to have more stable relationships than unmarried couples, whose relationships may vary from quasi-marital to ephemeral.’ Baroness Hale in the same case stated:

Some unmarried relationships are much more stable than some marriages, and vice versa. The law cannot force any couple, married or unmarried, to stay together. But being married does at least indicate an initial intention to stay together for life. More important, it makes a great legal difference to their relationship. Marriage brings with it legal rights and obligations between the couple which unmarried couples do not have.³³⁸

One set of researchers³³⁹ suggested that there are essentially four categories of cohabitants:

- the Ideologues: those in long-term relationships, but with an ideological objection to marriage;
- the Romantics: those who expect to get married eventually and see cohabitation as a step towards marriage, which they saw as a serious commitment;
- the Pragmatists: who decided whether or not to get married on legal or financial grounds;
- the Uneven Couples: where one partner wanted to marry and the other did not.

The law has not yet provided a coherent approach to cohabitation, but in several statutes married and unmarried couples have been treated in the same way. Apart from these special provisions, the law treats unmarried couples as two separate individuals, without regard to their relationship. If there is no specific statutory provision, the law treats an unmarried couple in the same way as it would two strangers.³⁴⁰

Tyrer J in *Kimber v Kimber*³⁴¹ suggested the following factors be considered in deciding whether there is cohabitation:

- whether the parties were living together under the same roof;
- whether they shared in the tasks and duties of daily life (e.g. cooking, cleaning);
- whether the relationship had stability and permanence;
- how the parties arranged their finances;
- whether the parties had an ongoing sexual relationship;
- whether the parties had any children and how the parties acted towards each other’s children; and
- the opinion of the reasonable person with normal perceptions looking at the couple’s life together.

There are some statutory attempts at defining cohabitation. Section 144 (4)(b) of the Adoption and Children Act 2002 states that ‘two people (whether of different sexes or the same sex) living as partners in an enduring family relationship’ can adopt. A more common form of definition of cohabitation is found in the Family Law Act 1996: ‘two persons who, although not married to each other, are living together as husband and wife or (if of the same sex) in an equivalent relationship’.³⁴²

³³⁸ *Re P* [2008] UKHL 38, para 108.

³³⁹ Barlow, Burgoyne and Smithson (2008).

³⁴⁰ See Smart and Stevens (2000) for a discussion of the wide range of cohabiting relationships.

³⁴¹ [2000] 1 FLR 232. See also *Re J (Income Support Cohabitation)* [1995] 1 FLR 660 and *Kotke v Saffarini* [2005] EWCA Civ 221 for other discussion of what cohabitation means.

³⁴² FLA, s 62(1)(a) (as amended by the Domestic Violence, Crime and Victims Act 2004).

Same-sex couples who have not entered into a civil partnership can claim the rights that are available to opposite-sex unmarried couples.³⁴³ In 1999 the House of Lords in *Fitzpatrick v Sterling Housing Association Ltd*³⁴⁴ accepted that a gay person was a member of his partner's family. Lord Nicholls in *Secretary of State v M*³⁴⁵ has stated that 'under the law of this country as it has now developed a same sex couple are as much capable of constituting a "family" as a heterosexual couple'. Little could Sister Sledge have foreseen that the theme from their song 'We are family' would be repeated by a Law Lord, albeit in a slightly more erudite way. In *Ghaidan v Godin-Mendoza*³⁴⁶ the House of Lords accepted that the phrase 'a person who was living with the original tenant as his or her wife or husband' could include a same-sex couple.³⁴⁷ These decisions were influenced in part by the fact that it is unlawful under the European Convention to discriminate upon the grounds of sexual orientation.³⁴⁸

More and more couples are choosing to cohabit. In 1971, 8.4 per cent of births in England and Wales were outside marriage or civil partnership; by 2015 this had increased to 48 per cent.³⁴⁹ The number of people living in cohabiting relationship was 5.3 million people, some 12 per cent of the adult population.³⁵⁰

The evidence suggests that some cohabitants are living together, but planning to marry; while others see cohabitation as an alternative to marriage. Certainly cohabitation before marriage has become the norm, although there is no longer an assumption that if you have children you must marry. In 2016, 38 per cent of married couple families had dependent children, the same percentage as cohabiting couple families.³⁵¹

11 Comparisons between the legal position of spouses or civil partners and unmarried couples

Learning objective 11

Compare and contrast the legal position of spouses and civil partners with unmarried couples

It is surprisingly difficult to compile a complete list of the differences between the legal positions of spouses or civil partners and unmarried couples, primarily because the law does not provide a clear statement of the rights and responsibilities of marriage. Some of the main differences in the legal treatment of married and unmarried couples will now be discussed.³⁵²

A Formalities at the beginning and end of a relationship

The law closely regulates the beginning and end of a marriage or civil partnership. It sets out certain formalities that must be complied with in order for a legal marriage or civil partnership to start, and it only ends when the court grants a decree absolute of divorce, or a

³⁴³ CPA 2004, Sch 24 amends statutes to ensure that same-sex and opposite-sex cohabitants are treated in the same way.

³⁴⁴ [2000] 1 FCR 21. The case is discussed in Glennon (2000) and Diduck (2001a).

³⁴⁵ [2006] 1 FCR 497 at para 506.

³⁴⁶ [2004] UKHL 30.

³⁴⁷ In *Nutting v Southern Housing Group* [2004] EWHC 2982 (Ch) it was emphasised that to be living as a spouse one had to have a life-long commitment.

³⁴⁸ *JM v United Kingdom* [2010] ECHR 1361; *EB v France* [2008] 1 FCR 236; *Da Silva Mouta v Portugal* [2001] 1 FCR 653, discussed in Herring (2002b).

³⁴⁹ Office for National Statistics (2014c and 2016c).

³⁵⁰ Office for National Statistics (2014c).

³⁵¹ Office for National Statistics (2016c).

³⁵² See also Barlow *et al.* (2005: 7–11).

dissolution. An unmarried cohabiting relationship can, by contrast, begin or end without any notification to any public body. While every marriage and civil partnership is centrally registered, there is no such record of cohabitation. One consequence of these formalities is that, although the law can restrict who can enter marriage or civil partnership, there is obviously no restriction as to who may cohabit – there is nothing to stop any number of men or women, unmarried or married, from cohabiting.

It is easy to overestimate the practical importance to the parties of the legal formalities at the beginning and end of a relationship. The legal requirements of marriage or civil partnership are not particularly difficult to comply with, and the legal formalities take up little time when compared with the non-legal trappings that often accompany marriage or civil partnership, which take up much more of the money and attention of the parties. Similarly, in relation to separation, although divorce or dissolution does include legal formalities, when compared with the paperwork and practical arrangements of the ending of a long-term relationship the legal formalities of divorce or dissolution can be of minor importance. The paperwork concerned over, for example, separating joint bank accounts, resolving the occupation of the home, dealing with the mortgage or tenancy, changing arrangements over electricity, gas bills, etc. can make the formalities connected to the divorce or dissolution itself seem small.

B Financial support

During the marriage or civil partnership itself each party can seek a court order requiring one to pay maintenance to the other,³⁵³ but one unmarried cohabitant cannot seek maintenance from another. In fact, it is very rare for one spouse to seek maintenance from the other except in the context of divorce. Where it is sought, the amounts awarded tend to be low and difficult to collect.³⁵⁴

Of far more significance is the fact that on divorce or dissolution the court has the power to redistribute property owned by either party. However, on the ending of an unmarried relationship the court only has the power to declare who owns what and has no power to require one party to transfer property to the other or to pay maintenance. Although this is a crucial distinction between spouses or civil partners and unmarried couples, three important factors need to be stressed. The first is that for many couples the Child Support Act 1991 and Children Act 1989 cover the maintenance for children. These Acts apply equally to married and unmarried couples. Secondly, once the child support has been resolved, there is often not enough spare money to consider spousal or partner support. In fact, in fewer than half of all divorces do the courts make any order dealing with the parties' financial resources.³⁵⁵ The third distinction is that, as we shall see later, in resolving disputes between unmarried cohabitants over property the courts have utilised various equitable doctrines (for example, constructive trusts) which have in effect given the courts wide discretion in deciding the appropriate share of the equitable interest. Indeed in some cases involving unmarried couples the results using the equitable doctrines are those which would be expected if the couple were married and the court were hearing the case under the Matrimonial Causes Act 1973.

Cohabiting couples, unlike spouses or civil partners, can enter binding cohabitation contracts which will determine what will happen to their property on separation.³⁵⁶ However,

³⁵³ See Chapter 6.

³⁵⁴ The common law duty on a husband to maintain a wife was abolished in s 198 of the Equality Act 2010.

³⁵⁵ Barton and Bissett-Johnson (2000).

³⁵⁶ They cannot contract out of child support obligations, however: *Morgan v Hill* [2006] 3 FCR 620.

care must be taken in the wording of such contracts. In *Sutton v Mischo de Reya*³⁵⁷ the claimant asked a firm of solicitors to draft a cohabitation contract. Sutton and a Swedish businessman, Mr Stahl, wished to conduct a 'master-slave' relationship. They asked that the contract back this up by confirming that Sutton was to have absolute power over Stahl, to obey him in everything he said on pain of punishment and to hand over to Sutton all his property. Charles J held that such a contract amounted to, in effect, a contract for sexual services. He saw a key distinction between a contract for sexual relations outside marriage which was not enforceable and a contract between people who are cohabiting in a relationship which involves sexual relations. Charles J, in a surprising turn of phrase, stated that 'even a moron in a hurry'³⁵⁸ could tell that the contract in this case fell into the former category and so was not enforceable.

C Children

There used to be a crucial distinction drawn between 'legitimate' and 'illegitimate' children. This affected the status of children and the nature of parental rights over children. The label of illegitimacy has now been abolished by the Family Law Reform Act 1987 and only minor differences exist in the legal position of 'legitimate' and 'illegitimate' children.³⁵⁹ However, there are still important differences between the legal position of married and unmarried fathers. As we shall see, one of the key concepts of the law relating to parenthood is parental responsibility. Every mother of a child automatically acquires parental responsibility for her child, but the father of the child will automatically acquire parental responsibility only if he is married to the mother. An unmarried father may acquire parental responsibility by being registered as the father on the child's birth certificate, lodging at the court a parental responsibility agreement, or the father may apply to the court for a parental responsibility order. This is a significant difference between married and unmarried fathers, but is of less importance than it might at first appear, for two reasons. First, the courts have been very willing to award parental responsibility to a father who applies for it. The second is that in day-to-day issues parental responsibility is of limited importance. Many unmarried fathers carry out their parental role unaware that they do not have parental responsibility. Whether or not a father has parental responsibility is only really of significance when major decisions have to be made in respect of the child, such as whether a child should have a medical operation.

D Inheritance and succession

Where a person dies without having made a will, the person is intestate. In such a case the deceased's spouse or civil partner will be entitled to some or all of the estate, depending on the application of various rules which will be discussed in Chapter 13. However, an unmarried partner of the deceased is not automatically entitled to an intestate estate. All an unmarried partner can do is to apply under the Inheritance (Provision for Family and Dependents) Act 1975 for an order that in effect alters the intestacy rules and awards them a portion of the estate. So, a bereaved unmarried partner must apply to the court in order to be put in the same position as the bereaved spouse if his or her partner is intestate.

³⁵⁷ [2004] 3 FCR 142; [2004] 1 FLR 837.

³⁵⁸ At para 23.

³⁵⁹ See Chapter 8.

E Criminal law

There used to be important distinctions between married and unmarried couples in criminal law, but many of these have been removed.

1. **Rape.** It used to be a common law rule that a husband could not be guilty of raping his wife.³⁶⁰ This was justified in two ways. First, there was an emphasis on the concept of the unity of husbands and wives – as a husband and wife are one in the eyes of the law, sexual intercourse between them could be no crime.³⁶¹ Secondly, it was argued that on marriage the wife impliedly consents to intercourse at any time during that marriage and that such consent was irrevocable. Eventually, the House of Lords in *R v R (Rape: Marital Exemption)*³⁶² abolished the marital exception for rape and this was confirmed by Parliament in the Criminal Justice and Public Order Act 1994. Lord Keith explained that marriage ‘is in modern times regarded as a partnership of equals and no longer one in which the wife must be the subservient chattel of the husband’.³⁶³ So now the substantive law on rape is the same whether the defendant be the victim’s husband or not.³⁶⁴
2. **Actual bodily harm and grievous bodily harm.** There is some confusion in the criminal law over the circumstances in which one person may injure another with their consent. In *R v Brown*³⁶⁵ the House of Lords confirmed the conviction of some sadomasochists who were convicted of assaulting each other even though their ‘victims’ had consented to the infliction of the pain. In *R v Wilson*³⁶⁶ a husband was convicted of assault occasioning actual bodily harm for branding his initials on his wife’s buttocks in spite of her consent. The Court of Appeal overturned the conviction. There is some dispute over how to reconcile these two cases. One argument is that the courts distinguished between injuries caused within marriage and injuries caused by gay couples.³⁶⁷
3. **Theft.** Under s 30 of the Theft Act 1968 a person can only be prosecuted for theft against his or her spouse if the Director of Public Prosecutions has given consent.
4. **Conspiracy.** A person cannot be guilty of conspiring with his or her spouse or civil partner, unless it is alleged that they conspired with other people.³⁶⁸
5. The Anti-social Behaviour, Crime and Policing Act 2014, s 177, abolished the special defence of coercion which used to be available to a wife who committed an offence as a result of her husband’s pressure.

F Contract

It was only after the Law Reform (Married Women and Tortfeasors) Act 1935 that wives were able themselves to enter contracts that were legally effective. Husbands and wives can enter into contracts with each other, but will have to show that there is intent to create legal

³⁶⁰ Although he could be guilty of other criminal offences against his wife.

³⁶¹ This was never a very convincing explanation, because a husband could be convicted of assaulting his wife.

³⁶² [1991] 4 All ER 481, [1992] 1 FLR 217. See now Sexual Offences Act 2003, s 1.

³⁶³ [1991] 4 All ER 481 at p. 484.

³⁶⁴ Although it appears that marital rapists still receive lower sentences than non-marital rapists (Warner (2000)).

³⁶⁵ [1993] 1 AC 212.

³⁶⁶ [1996] 3 WLR 125.

³⁶⁷ Although in *Emmett*, unreported, 15.10.99 a man’s conviction following injuries caused to his partner during an (alleged) sadomasochistic incident with his fiancée was upheld. For an alternative explanation and discussion see Herring (2009c: ch. 6).

³⁶⁸ Criminal Law Act 1977, s 2(2)(a).

relations.³⁶⁹ The position for unmarried couples is similar. A crucial difference is that a married couple or civil partners cannot enter into a binding contract which governs what would happen to their property in the event of their divorce or dissolution. Following *Radmacher v Granatino*³⁷⁰ a court may give effect to such a contract, but not if the court thinks it would be unfair to do so. An unmarried couple can sign a contract which will determine what happens to their property when the relationship ends and the court will give effect to it as long as is a valid contract.

G Tort

The rule that a spouse could not sue his or her spouse in tort was revoked by the Law Reform (Husband and Wife) Act 1962 and the rule that a husband had to be joined in any tortious action brought by or against a wife was abolished by statute in 1935.³⁷¹ In relation to tort, married and unmarried couples are therefore now treated in the same way. The most remarkable case of partners suing in tort is *P v B (Paternity; Damages for Deceit)*³⁷² where a man sued in deceit after his partner had falsely told him he was the father of her child, as a result of which he claimed he paid her £90,000 to support the child. His action was held not to be barred on the grounds of public policy.³⁷³

H Evidence

There are two issues here: can a spouse give evidence against the other spouse (is he or she competent), and can a spouse be forced to give evidence against the other spouse (is he or she compellable)? At one time spouses were not compellable³⁷⁴ witnesses in civil or criminal proceedings against their spouses, the idea being that a spouse should not be forced into the appalling dilemma of either committing perjury or giving evidence which would harm his or her spouse in the proceedings. The spouse was considered an incompetent witness in criminal proceedings because the evidence would be so tainted that a jury would not be able to treat it fairly. These positions have been changed by statute.

The present law is now that in civil proceedings a spouse or civil partner is both a compellable and a competent witness. In criminal proceedings, generally, the spouse or civil partner is competent but not compellable.³⁷⁵ In other words, if a spouse or civil partner is willing to give evidence against his or her spouse or partner he or she may do so, but will not be forced to. The exceptions are that if the husband and wife or civil partners are jointly charged for an offence, then neither is competent to give evidence for the prosecution (unless the charges against them are dropped or they plead guilty). Under s 80 of the Police and Criminal Evidence Act 1984 there is a shortlist of offences for which the spouse or civil partner is compellable. These are offences which involve an assault or injury or threat of injury to the spouse or

³⁶⁹ *Balfour v Balfour* [1919] 2 KB 571.

³⁷⁰ [2010] UKSC 42.

³⁷¹ Married Women's Property Act 1882 and Law Reform (Married Women and Tortfeasors) Act 1935.

³⁷² [2001] 1 FLR 1041.

³⁷³ A spouse will not be permitted to sue a former spouse in tort if this is regarded as an attempt to unsettle the financial orders reached on divorce: *Ganesmoorthy v Ganesmoorthy* [2003] 3 FCR 167.

³⁷⁴ By saying a witness is compellable it is meant that a witness can be forced to give evidence.

³⁷⁵ In *R (On the Application of the Crown Prosecution Service) v Registrar General of Births, Deaths and Marriages* [2003] 1 FCR 110 a defendant to a charge of murder married the chief prosecution witness to take advantage of this rule. The Crown Prosecution Service in that case unsuccessfully applied to prevent that marriage.

any person under the age of 16, or a sexual offence against a person under 16.³⁷⁶ There are no special rules relating to the evidence of cohabitants.³⁷⁷

I Matrimonial property

The Family Law Act 1996 provides married couples and civil partners with home rights which provide a right to occupy the matrimonial home.³⁷⁸ There are also special provisions relating to family property during bankruptcy, and pension rights, which we will discuss later. These provisions do not apply to cohabitants, who are given no particular protection on bankruptcy.

J Marital confidences

Communication between spouses used to be subject to special protection so that a spouse who disclosed confidential information about the other could be found in breach of confidence. However, the law on confidential information has now developed so that it covers cohabitants.³⁷⁹ It has even been found that there could be confidential relations between a husband and the person he was having an adulterous relationship with.³⁸⁰

K Taxation and benefits

There are special exemptions from tax that apply to married couples and civil partners but not unmarried couples. The most important are in respect of inheritance tax and capital gains tax allowance. The Labour Government removed the married couples' tax allowance, which was an allowance against income tax available to married couples but not to unmarried couples. It is significant that the Labour Government replaced the married couples' tax allowance with a tax credit for those who care for children. In relation to state benefits, unmarried couples and married couples are generally treated in the same way. It has been alleged that now some married couples are disadvantaged as compared to lone parents in the tax and benefits systems.³⁸¹ The Coalition Government announced that it will give a tax credit to married couples where both are in employment and neither is a higher rate taxpayer.³⁸²

L Citizenship

Anyone who is not a citizen of the UK and colonies does not become a citizen by marrying someone who is. She or he may obtain nationality by naturalisation or by one of the other methods. The spouse's requirements for naturalisation are less strict than for others. If a person is settled in the UK, the spouse will be given entry clearance as long as he or she can show the marriage is not a sham and that the couple are able to accommodate and maintain

³⁷⁶ This includes attempting, conspiring, aiding, abetting, counselling, procuring or inciting their commission.

³⁷⁷ This was confirmed by the Court of Appeal in *R v Pearce* [2001] EWCA Crim 2834, [2002] 3 FCR 75. It rejected an argument that, following the Human Rights Act 1998, cohabitants should not be compellable witnesses.

³⁷⁸ See Chapter 5.

³⁷⁹ *Stephens v Avery* [1988] 1 Ch 449; *A v B (a company)* [2002] 1 FCR 369.

³⁸⁰ *CC v AB* [2008] 2 FCR 505. See also *John Terry (previously 'LNS') v Persons Unknown* [2010] EWHC 119 (QB).

³⁸¹ BBC Newsline (2007a).

³⁸² Probert (2013a).

themselves. There is a similar power for engaged couples, but not unmarried cohabitants.³⁸³ Following the Civil Partnership Act spouses and civil partners are treated in the same way for immigration purposes.

M Statutory succession to tenancies

Statute has provided rights to a tenant's family to succeed to the tenancy on the death of a tenant. The phrase 'family' has been interpreted to include opposite-sex or same-sex cohabitants.³⁸⁴ The phrase 'as husband and wife' includes opposite-sex or same-sex couples.³⁸⁵

N Domestic violence

Married couples, civil partners and cohabitants are associated persons and so can apply for non-molestation injunctions. Cohabitants can also apply for occupation orders, although if the applicant does not have property rights in the property she will be treated less favourably than she would have been had she been married or a civil partner.³⁸⁶

O Fatal Accident Act 1976

The Fatal Accident Act 1976 permits a spouse or civil partner of a deceased killed in an accident to claim damages under certain circumstances. Under this Act a cohabitant is able to have a claim in the same way as a spouse or civil partner if he or she had been living with the deceased for at least two years immediately before the date of death.³⁸⁷

The next two issues are differences of a theoretical rather than practical nature.

P The doctrine of unity

The principal effect of marriage at common law is that the husband and wife become one. The doctrine of unity finds its basis in Christian theology.³⁸⁸ Blackstone³⁸⁹ wrote:

By marriage, the husband and wife are one person in law; that is, the very being or legal existence of the woman is suspended during the marriage, or at least is incorporated and consolidated into that of the husband; . . . Upon this principle of a union of person in husband and wife, depend almost all the legal rights, duties, and disabilities, that either of them acquire by the marriage.

The effects of this doctrine were never fully explained in the law and today the doctrine is regarded with cynicism. Lord Denning MR in *Midland Bank Trust Co Ltd v Green (No. 3)*³⁹⁰

³⁸³ Cretney, Masson and Bailey-Harris (2002: 92–3) for the detail of the law.

³⁸⁴ *Fitzpatrick v Sterling Housing Association Ltd* [2000] 1 FCR 21.

³⁸⁵ *Ghaidan v Godin-Mendoza* [2004] 2 FCR 481.

³⁸⁶ See Chapter 7.

³⁸⁷ It does not cover those who were 'going out' together but not cohabiting: *Kotke v Saffarini* [2005] 1 FCR 642. In *Swift v Secretary of State for Justice* [2012] EWHC 2000 (QB) and *Smith v Lancashire Teaching Hospitals NHS Trust* [2016] EWHC 2208 (QB) claims that the difference in treatment between married and cohabiting couples breached human rights failed.

³⁸⁸ The Bible, Genesis 2: 24; Genesis 3: 16.

³⁸⁹ Blackstone (1770: 442).

³⁹⁰ [1982] Ch 529 at p 538.

explained that the position used to be that ‘... the law regarded the husband and wife as one and the husband as that one’. However, he made it clear that the doctrine of unity is now of very limited application.³⁹¹

Q Consortium

The concept of consortium is not clear but has been defined by Munby J in *Sheffield CC v E and S*³⁹² as ‘the sharing of a common home and a common domestic life, and the right to enjoy each other’s society, comfort and assistance’. At one time there was an obligation on the wife to provide her husband with ‘society and services’, although a husband did not owe the wife a corresponding duty. However, Munby J emphasised that nowadays spouses are ‘joint co-equal heads of the family’ and any rights of consortium are equal and reciprocal. However, the concept of consortium is rarely enforced in law. In *R v Reid*³⁹³ it was confirmed that a husband could be guilty of kidnapping his wife and that the right of consortium did not provide a defence to such a charge.

12 Engagements

Before marriage it is common for couples to enter into an engagement, when the parties agree to marry one another.³⁹⁴ In the past, under common law, such agreements were seen as enforceable contracts, and so if either party, without lawful justification, broke the engagement then it would be open for the other to sue for breach of promise and to obtain damages. Such an action was abolished by the Law Reform (Miscellaneous Provisions) Act 1970, s 1, which stated that no agreement to marry is enforceable as a contract. The abolition was justified on the basis that it was contrary to public policy for people to feel forced into marriages through fear of being sued.

In general, engaged couples are treated in the same way as unmarried couples, though engagement and agreement to enter a civil partnership still has legal significance in a number of ways:

1. **Property of engaged couples.** When resolving property disputes between an engaged couple s 37 of the Matrimonial Proceedings and Property Act 1970 applies.³⁹⁵ In brief, it states that if someone improves a house he or she thereby acquires an interest in it (**see Chapter 5 for more details**). Apart from this provision, the property of an engaged couple is treated in the same way as that of an unmarried couple.³⁹⁶
2. **Gifts between engaged couples.** The Law Reform (Miscellaneous Provisions) Act 1970, s 3(1) states that: ‘A party to an agreement to marry who makes a gift of property to the other party to the agreement on the condition (express or implied) that it shall be returned if the

³⁹¹ In *Ünal Tekeli v Turkey* [2005] 1 FCR 663 it was said to be contrary to the ECHR to require a married couple to both take the husband’s surname; that was sex discrimination and could not be justified in the name of promoting marital unity. The Court left open the question of whether it would be permissible to require the couple to share a surname.

³⁹² [2004] EWHC 2808 (Fam) at paras 130–1. The case is discussed in Gaffney-Rhys (2006).

³⁹³ [1973] QB 299.

³⁹⁴ It is possible for a party to be engaged even though he or she is married to someone else: *Shaw v Fitzgerald* [1992] 1 FLR 357, [1992] FCR 162.

³⁹⁵ *Mossop v Mossop* [1988] 2 FLR 173 CA, because of s 2(1) of the Law Reform (Miscellaneous Provisions) Act 1970. See also *Dibble v Pfluger* [2010] EWCA Civ 1005.

³⁹⁶ See Chapter 6.

agreement is terminated shall not be prevented from recovering the property by reason only of his having terminated the agreement.' So each case will turn on its own facts and depend on whether the gift was subject to an implied condition that the gift should be returned if the marriage did not take place. For example, furniture bought for the intended matrimonial home may be thought to be conditional upon marriage and therefore should be returned if the engagement is broken. A Christmas gift would probably be regarded as unconditional.

3. The gift of an engagement ring is presumed to be an absolute gift and therefore can be kept by the recipient, but this presumption can be rebutted if it can be shown there was a condition that the ring be returned in the event of the marriage not taking place.³⁹⁷ For example, if the ring had belonged to the man's grandmother and was intended to be passed down within her family, it may be presumed that the ring should be returned if the engagement is broken.
4. **Domestic violence.** Engaged couples are 'associated' people for the provisions of Part IV of the Family Law Act 1996 and so can automatically apply for a non-molestation order against one another. However, the Act requires the engagement be proved in one of a number of distinct ways (see Chapter 7).

13 Should the law treat cohabitation and marriage or civil partnership in the same way?

It should be noted that many European countries have legislated to treat married and unmarried couples in the same way.³⁹⁸ There are various ways of considering this question.

A Does the state benefit from cohabitation to the same extent as from marriage or civil partnership?

The state has traditionally favoured marriage and sought to encourage people to marry, most explicitly by providing tax advantages to married couples which are not available to unmarried people. However, marriage is not only encouraged through such explicit means. As Katherine O'Donovan explains: 'Marriage endures as symbol . . . it may be presented as private but it is reinforced everywhere in public and in political discourse.'³⁹⁹ As late as 1989 a sizeable majority – 70 per cent – of respondents to the British Social Attitudes Survey took the view that 'people who want children ought to get married'. By contrast, in a recent survey 77 per cent of people believed that single parents can be a proper family; and 59 per cent believed that same-sex couples can be a family. Only 36 per cent of those questioned believed that a couple with children had to be married to be a proper family.⁴⁰⁰ Although it seems that people accept that parents can be just as good whether they are married or not, this does not mean marriage is not valued. A 2010 poll found surprisingly traditional attitudes on the issue: 57 per cent believed the law should promote marriage in preference to other kinds of family structure; 58 per cent thought giving cohabitants similar legal rights as the married would undermine marriage and make people less likely to wed; and 85 per cent supported a

³⁹⁷ Law Reform (Miscellaneous Provisions) Act 1970, s 3(2). See *Cox v Jones* [2004] 3 CR 693 for a case where the man was not able to show that the ring was not intended as a gift.

³⁹⁸ Thorpe LJ (2002: 893).

³⁹⁹ O'Donovan (1993: 57).

⁴⁰⁰ Centre for the Modern Family (2011).

tax break to promote marriage.⁴⁰¹ Another recent poll found that 70 per cent of those aged between 20 and 35 wanted to marry, including 79 per cent of those currently cohabiting.⁴⁰² But why is it that the Government, through public statements and policies, seeks to encourage marriage and civil partnership?

There are five particular advantages to the state which are often cited:

1. Sir George Baker, a former President of the Family Division, has argued that marriage provides the 'building blocks' of society and is 'essential to the well-being of our society, as we understand it'.⁴⁰³ Lord Hoffmann has declared: 'The state is entitled to take the view that marriage is a very important institution and that in general it is better for children to be brought up by parents who are married to each other than by those who are not.'⁴⁰⁴ This view, although a popular notion amongst politicians, lacks precision. What does it mean that marriage is a building block or the foundation of society? It could be argued that a married couple may feel they have a greater stake in society than two single people, and so may be more willing to contribute to it. This is certainly open to debate as, for example, single people may well be more likely to use public transport and perhaps even be more vulnerable to crime. It has been suggested that marriage makes a couple wealthier, happier and healthier.⁴⁰⁵ These arguments are all hard to prove either way. We have not tried a society without marriage, and so do not know whether society would be different without marriage.
2. It may be that the state wishes to support marriage and civil partnership in order to promote the production of and caring for children. Ruth Deech argues:

Children deserve natural parents who are prepared to make the act of commitment and aspiration found only in marriage, in order to demonstrate to those children that they intend to be there for them, without question, as they grow up. Thus it is with marriage and its promises in a formal ceremony complete with special clothes, rituals, and insignia. It is the strongest bond ever invented to link two people and two families, for now and for posterity – intimately, legally, politically, religiously, civilly, and publicly.⁴⁰⁶

The Conservative Party's Centre for Social Justice has also voiced its support for the institution of marriage.⁴⁰⁷ It claimed that those children not in two-parent families are:⁴⁰⁸

- 75 per cent more likely to fail at school;
- 70 per cent more likely to be a drug addict;
- 50 per cent more likely to have an alcohol problem;
- 40 per cent more likely to have serious debt problems;
- 35 per cent more likely to experience unemployment/welfare dependency.

They claimed that married relationships were more stable than unmarried relationships⁴⁰⁹ and so it was in society's interests to promote marriage. This claim is controversial and we shall return to it shortly.

⁴⁰¹ Fairburn (2010).

⁴⁰² de Waal (2008).

⁴⁰³ *Campbell v Campbell* [1977] 1 All ER 1 at p. 6.

⁴⁰⁴ *Re P (Adoption: Unmarried Couple)* [2008] UKHL 38, para 13.

⁴⁰⁵ Waite and Gallagher (2001).

⁴⁰⁶ Deech (2012).

⁴⁰⁷ Centre for Social Justice (2009).

⁴⁰⁸ Centre for Social Justice (2010).

⁴⁰⁹ The Labour Government claimed this too: HM Government (2010a).

3. A third alleged benefit to the state is that by managing the start of a relationship the state is able to regulate the relationship if it breaks down. The state may wish to ensure that at the end of a relationship the arrangements for children will promote the child's welfare, and that the spouse's or civil partner's property is divided between them in a way that is just. If a marriage or civil partnership breaks down, the couple must turn to the courts for a divorce or dissolution so that the marriage or civil partnership can be officially terminated; however, if an unmarried couple separate, the court may well not be involved at the end of the relationship. The strength of this view is weakened in the light of the present law. First, the law, in both financial and child-related matters, essentially allows the parties themselves to resolve these matters and intervenes only if there is a dispute. Secondly, this view does not explain why the law does not try to provide the same intervention for unmarried couples.
4. A fourth benefit is economic. If a person falls ill, or becomes unemployed, and so no longer has an income, then the financial responsibility is likely to fall on the state if that person is single, whereas spouses or civil partners would depend on each other. A further economic benefit is the straightforward fact that a couple sharing accommodation require less housing than two single people.
5. Marriage and civil partnership can be used as an effective evidential and bureaucratic tool. If the law were to abolish the legal significance of marriage then it would be necessary to create some kind of alternative in order legally to regulate family life. Perhaps cohabitation would provide that alternative. The difficulty is that a couple might be sharing a house, but not necessarily sharing their lives. The definition of cohabitation and the investigation that would be necessary to decide whether or not a couple were sharing their lives would be far more complex and expensive than deciding whether a person is married. The couples who marry or enter civil partnerships therefore save the state's and courts' time, money and effort in formally establishing the nature of their relationship.

Many of these benefits of marriage or civil partnership are also provided by cohabiting relationships. Further, it is unclear whether all or even most married couples or civil partners provide these benefits.⁴¹⁰ For example, in 2011, only 38 per cent of married couple families had dependent children.⁴¹¹ However, the core question is whether unmarried cohabiting couples are as stable as married or civilly partnered ones.⁴¹² This is especially important when considering their role in raising children. It is very difficult to obtain statistics on cohabiting relationships because there are no formalities marking their beginning and end. The evidence available suggests that unmarried cohabiting relationships are shorter lived.⁴¹³ One study found that around 27 per cent of couples that were cohabiting when their child was born have separated by the time the child is aged five, compared with 9 per cent of couples that were married when their child was born.⁴¹⁴ Further, while cohabiting couples make up only around 19 per cent of parents, they accounted for 48 per cent of family breakdown cases.⁴¹⁵

⁴¹⁰ Huston and Melz (2004) argue that although there are benefits in some couples marrying, that is not true for all couples.

⁴¹¹ Office for National Statistics (2016c). This statistic looks surprising but remember many older married couple's children may no longer be dependent.

⁴¹² For the case that cohabitation does not benefit the state to the same extent as marriage, see Morgan (2000). She argues that there are higher rates of domestic violence, child abuse and alcohol abuse. For a study arguing for similar findings in the US (including an argument that married couples record higher levels of sexual satisfaction than unmarried ones), see Waite (2000).

⁴¹³ Haskey (2001); Kiernan (2001).

⁴¹⁴ Benson (2009). See also Kiernan and Mensah (2010).

⁴¹⁵ Marriage Foundation (2014c).

Sir Paul Coleridge is convinced marriage offers benefits for children and the couple:⁴¹⁶

Unmarried parents are nearly 3 times more likely to break up before their first child's seventh birthday. And the chances of a 15 year old still living with both his parents, if they are unmarried, is very small indeed. About 7% of unmarried parents are still together by the time their children reach 15 whereas 93% are married.

The problem with such arguments is even if we accept these statistics, we cannot conclude that it is marriage which causes the stability of relationships. It is also clear that unmarried cohabitants tend to be economically less well off, and it may be their economic position rather than their marital status that truly affects the stability of their relationship.⁴¹⁷ In other words, even if the cohabiting couple had married, their relationship would not have lasted any longer.

After an extensive review of the literature Alissa Goodman and Ellen Greaves conclude:⁴¹⁸

Our findings suggest that while it is true that cohabiting parents are more likely to split up than married ones, there is very little evidence to suggest that this is due to a causal effect of marriage. Instead, it seems simply that different sorts of people choose to get married and have children, rather than to have children as a cohabiting couple, and that those relationships with the best prospects of lasting are the ones that are most likely to lead to marriage.

Similarly Miles, Pleasence and Balmer found that, once age and socio-economic factors were taken into account, 'there was little difference in breakdown rates between married and cohabiting respondents'.⁴¹⁹

Goodman and Greaves make similar findings in relation to child welfare,⁴²⁰ concluding that encouraging parents to marry is unlikely to lead to significant improvements in young children's outcomes. They found that there are differences in development between children born to married and cohabiting couples but this reflects differences in the sort of parents who decide to get married rather than to cohabit. For example, compared to parents who are cohabiting when their child is born, married parents are more educated, have a higher household income and a higher occupational status, and experience a higher relationship quality early in the child's life. It is these and other similar factors that seem to lead to better outcomes for their children. Having taken account of these (largely pre-existing) characteristics, the parents' marital status appears to have little or no additional impact on the child's development. Similarly, Claire Crawford and colleagues⁴²¹ found that while at ages three and five children born to married parents have a higher cognitive and socio-emotional development, as compared to children of parents who are not married, marriage plays a relatively small, if any, role in causing this.

We might ask if there are any rational reasons why married relationships or civil partnerships might be stronger than unmarried ones. Four reasons will be considered. The first is that marriage or civil partnership may indicate a deeper commitment to the relationship.⁴²² This may be true for many couples but is clearly not true for all. The current divorce rate demonstrates that marriage is not a guarantee of lifelong commitment. Indeed in Eekelaar and Maclean's research⁴²³ no difference in the level of commitment to the relationship was

⁴¹⁶ Coleridge (2014).

⁴¹⁷ Goodman and Greaves (2010b).

⁴¹⁸ Goodman and Greaves (2010b).

⁴¹⁹ Miles, Pleasence and Balmer (2009: 54).

⁴²⁰ Goodman and Greaves (2010a).

⁴²¹ Crawford *et al.* (2012).

⁴²² Morgan (2000); Gallagher and Waite (2001).

⁴²³ Eekelaar and Maclean (2004).

found between married and unmarried couples. There is, however, one sense in which it might be argued that a spouse or civil partner has a greater commitment to the relationship and that is in terms of the legal responsibilities undertaken. The potential financial liability of a spouse or civil partner is certainly greater than that undertaken by a cohabitee.⁴²⁴ In financial and legal terms, at least, a child is likely to be better off if his or her parents are married than if they are unmarried.⁴²⁵ Anita Bernstein sees one of the strongest arguments in favour of marriage being that 'as a form of enforced commitment, state-sponsored marriage facilitates investment – that is, the sacrifice of short-term gain for the prospect of returns in the long term'.⁴²⁶ This may well be true but, as Maclean and Eekelaar⁴²⁷ point out, 'marriage is neither a necessary nor sufficient condition for the acceptance of personal obligation'. They argue:

It becomes increasingly difficult to identify being married in itself as necessarily, or even characteristically, constituting a significant source of personal obligations in the eyes of the participants in such relationships.⁴²⁸

They suggest it is the obligations negotiated by the parties which are the source of the obligation for all couples, be they married or cohabiting. As John Eekelaar⁴²⁹ has argued:

Marriage clearly therefore has great social value, but much of the nature of its value is conferred upon it by those who enter it, and it is unlikely that its value can primarily be defined by law.

The second reason why one might believe that marriages or civil partnerships are more enduring than cohabitation is that the social pressure against ending a marriage or civil partnership may be greater than the pressure against ending an unmarried relationship. Again this may be true, depending on the attitude and culture of the parties, their families and communities.

Thirdly, the legal barriers to divorce or dissolution may slow down the marital breakdown process, which might increase the chance of reconciliation. The strength of these arguments is very much open to debate. Even if it could be shown that marriage itself makes couples more stable, it could still be argued that the state should do more to encourage and support unmarried relationships rather than privileging married relationships. Fourthly, it can be suggested that the characteristics or values of cohabiting couples differ from married ones and these make them more likely to separate.⁴³⁰

An argument that is sometimes made in this debate is that treating unmarried couples in the same way as married couples will discourage marriage or civil partnership, thereby harming society.⁴³¹ The Conservative Party's Centre for Social Justice⁴³² commissioned research which suggested that 58 per cent of those questioned thought giving cohabitants the same rights as married couples would undermine marriage. This argument is weak. Kiernan, Barlow and Merlo⁴³³ have analysed marriage rates in Australia and Europe and have found 'little evidence of a relationship between the introduction of legislation giving rights to

⁴²⁴ Cleary (2004).

⁴²⁵ Lewis (2006) rejects the arguments that attitudes of married and unmarried couples towards their relationship are identical, especially in cases of recoupling.

⁴²⁶ Bernstein (2003: 203).

⁴²⁷ Maclean and Eekelaar (2005b).

⁴²⁸ Eekelaar (2004: 536).

⁴²⁹ Eekelaar (2010).

⁴³⁰ See, e.g., Lye and Waldron (1997).

⁴³¹ Morgan (2000).

⁴³² Centre for Social Justice (2009).

⁴³³ Kiernan, Barlow and Merlo (2007: 72).

cohabiting couples with subsequent changes in the propensity to marry'. As has already been mentioned, it is very unlikely that people decide not to marry because of the legal consequences. Simply put, few people know the law in this area.⁴³⁴ Even those who do are more likely to base their decision to marry on religious and social views, or to be influenced by their families, friends and culture.

B Choice

An alternative approach is to focus on 'choice'.⁴³⁵ Ruth Deech⁴³⁶ has argued that if a couple choose not to marry it is wrong for the law to treat them as if they were married as this would negate their choice and show a lack of respect for their decision.⁴³⁷ She argues:

My preference is for the rights of the individual, or human rights, in this instance autonomy, privacy, a sphere of thought and action that should be free from public and legal interference, namely the right to live together without having a legal structure imposed on one without consent or contract to that effect. It is better not to have legal interference in cohabitation and leave it to be dealt with by the ordinary law of the land, of agreements, wills, property and so on.⁴³⁸

There are perhaps three difficulties with this view, despite its persuasive power. The first is that it is doubtful to what extent many couples *choose* not to marry, at least to what extent they choose not to take on the legal consequences of marriage. In reality few couples decide positively not to get married because of the legal differences in treatment and, indeed, few marry because of the legal benefits.⁴³⁹ In one study, only 38 per cent of people knew that cohabiting did not give you the same rights as being married.⁴⁴⁰ A second problem is that some couples disagree over whether or not to marry. It may be, for example, that the woman wants to get married but the man does not. It seems a little harsh to say she has chosen not to marry. Deech, rather bluntly, replies that such a person should either leave her partner or accept the unmarried status. A third argument is that some of the legal consequences of marriage do not reflect the couple's decision but rather the justice of the situation or the protection of a state interest (for example, protecting the interests of children).⁴⁴¹ One might take the view that it should not be possible to choose not to have justice or not to protect a state interest. Alternatively, it could be said that although cohabiting couples might not want all of the consequences of marriage, this does not mean they do not want the law to intervene at all at the end of their relationship.⁴⁴² In spite of these responses, where both members of a couple have decided firmly to reject the legal consequences of marriage, to deny respect to that choice seems unduly interventionist.

It may be that Deech's argument is more persuasive when seen as a call for marriage to be treated in the same way as cohabitation. In other words, regardless of whether the couple are married or not, the law's response should focus on their commitment to each other, rather than having the consequences of the status of marriage 'imposed upon them'.

⁴³⁴ Smart and Stevens (2000).

⁴³⁵ Deech, R (2012); Dnes (2002). See Glennon (2010) for a very helpful discussion of choice in this context.

⁴³⁶ Deech (2012 and 2010d). See also Garrison (2004) who takes a similar line.

⁴³⁷ Chan (2012).

⁴³⁸ Deech (2010d).

⁴³⁹ Hibbs, Barton and Beswick (2001).

⁴⁴⁰ National Centre for Social Research (2008).

⁴⁴¹ Herring (2005a).

⁴⁴² Haskey (2001: 53).

C Discrimination

It might be argued that to treat married and unmarried people's family rights and responsibilities differently amounts to discrimination of their rights under article 8 of the European Convention on Human Rights in a way prohibited by article 14. The European Court has not yet specifically stated that discrimination on the grounds of marital status is covered by article 14, but it has been implied in several cases. In *Re P*⁴⁴³ the House of Lords held that for the purposes of the Human Rights Act 1998 treating cohabitants differently from married couples did amount to discrimination, although that could be justified in some cases. However, the European Court has not taken such a clear line. In *Gomez v Spain*⁴⁴⁴ a woman who separated from her cohabitant of 18 years complained that her inability to make the financial claims that a wife could make against her husband on divorce infringed her Convention rights. The Commission held that any difference in treatment was justifiable by the need to protect the traditional family. She had chosen not to take up the advantages of marriage and therefore the discrimination was proportionate. Similarly in *Van der Heijden v Netherlands*⁴⁴⁵ differences in the law of evidence as it related to married and cohabiting couples were justified as marriage conferred a 'special status' and gave rise to 'social, personal and legal consequences' that meant differences in treatment could be justified. The implication of this might be that some differences in treatment between married and unmarried couples will be unlawful discrimination under the ECHR and others will not. It may be, for example, that parental rights should not differ as between married and unmarried parents, but the rights they have between themselves can.⁴⁴⁶

D Should marriage be discouraged?

There are, of course, arguments that the state should not encourage marriage and we should be working therefore to remove any special legal status of marriage.⁴⁴⁷ Some feel that marriage is an institution which has helped perpetuate disadvantage against women.⁴⁴⁸ Katherine O'Donovan has sought 'to break free from marriage as a timeless unwritten institution whose terms are unequal and unjust'.⁴⁴⁹ The argument is that marriage ensures the maintenance of patriarchal power, through the power given to husbands as 'head of the household'.⁴⁵⁰ Martha Fineman⁴⁵¹ has argued 'Marriage allows us to ignore dependency in our policy and politics' and that means care-givers (normally women) bear the burden of caring with no social reward. Clare Chambers writes;

The white wedding is replete with sexist imagery: the father 'giving away' the bride; the white dress symbolising the bride's virginity (and emphasising the importance of her appearance); the vows to obey the husband; the minister telling the husband 'you may now kiss the bride' (rather

⁴⁴³ [2008] UKHL 38, discussed in Herring (2009a).

⁴⁴⁴ Application 37784/97 (19 January 1998).

⁴⁴⁵ [2013] 1 FCR 123.

⁴⁴⁶ Although see *B v UK* [2000] 1 FCR 289 where the ECtHR upheld differences in relation to parental responsibility between married and unmarried fathers.

⁴⁴⁷ See Chapter 1.

⁴⁴⁸ Slaughter (2002).

⁴⁴⁹ O'Donovan (1993).

⁴⁵⁰ Smart (1984).

⁴⁵¹ Fineman (2006: 63).

than the bride herself giving permission, or indeed initiating or at least equally participating in the act of kissing); the reception at which, traditionally, all the speeches are given by men; the wife surrendering her own name and taking her husband's.⁴⁵²

But this view has not been accepted by all, with Marsha Garrison arguing that few people now understand marriage in terms of fixed gender roles and instead marriage is based on companionship or personal fulfilment.⁴⁵³

Other criticisms have been similar to those launched against the family, namely that marriage can be self-centred, with the couple focusing on preparing their home rather than working in the community around them. From an opposite perspective, marriage can be seen as anti-individualist. O'Donovan summarises Weitzman's view of marriage:

this unwritten contract, to be found in legislation and case-law, is tyrannical. It is an unconstitutional invasion of marital privacy, it is sexist in that it imposes different rights and obligations on the husband and wife, and it flies in the face of pluralism by denying heterogeneity and diversity and imposing a single model of marriage on everyone.⁴⁵⁴

However, these criticisms may be said to be overcome by a modern understanding of marriage which is based on a partnership of equals, sharing the burdens of homemaking, child-caring and wealth creation,⁴⁵⁵ although the extent to which such marriages occur in reality, rather than as an aspiration, is a matter of debate.

E Protection

Baroness Hale, writing extra-judicially, has argued that the law needs to protect cohabitants from inequality. She writes:

Intimate domestic relationships frequently bring with them inequalities, especially if there are children. They compromise the parties' respective economic positions, often irreparably. This inequality is sometimes compounded by domestic ill-treatment. These detriments cannot be predicted in advance, so there should be remedies that cater for the needs of the situation when it arises. They arise from the very nature of intimate relationships, so it is the relationship rather than the status that should matter.⁴⁵⁶

Notably, this argument does not necessarily require that cohabitation be treated identically to marriage, but it does call for protection from inequality that flows from cohabitation – particularly the unfairness that women face as a result of undertaking the child-caring role in the relationship.

14 The Law Commission's proposed reforms

Learning objective 12

Appreciate potential reform options for marriage

The Law Commission's Consultation Report 2007, *Cohabitation: The Financial Consequences of Relationship Breakdown*, proposes reform to the law. (This is discussed in Chapter 5.) Their proposal will give cohabitants some financial remedies on

⁴⁵² Chambers (2013).

⁴⁵³ Garrison (2014).

⁴⁵⁴ O'Donovan (1984: 114).

⁴⁵⁵ Schwartz (2000) describes such marriages as 'peer' marriages.

⁴⁵⁶ Hale (2004a).

separation, but these will be less extensive than available to married couples.⁴⁵⁷ The Government in 2011 said it had no plans to implement the proposals within the current Parliament. In 2014 a private member's Bill (the Cohabitation Rights Bill 2014) was presented to Parliament to give effect to these proposals, but without Government support it is unlikely to be passed.

15 What if the state were to abolish legal marriage?

One point of view is that marriage should cease to have any legal significance, although most holders of this view would be happy for marriage to continue to have religious and social significance.⁴⁵⁸ This would mean that any legal regulation of relationships would not depend on whether couples are married or not, but rather on different criteria: for example, whether a couple have children, or the length of time a cohabitation has existed.⁴⁵⁹ So, for example, if the Government wishes to give benefits to stable couples who care for children, these could be directed towards couples with children who have stayed together for five years, rather than giving the benefit to all married couples, which would be over-inclusive.⁴⁶⁰

One option would be to replace marriage with a contractual model so that each couple can set out for themselves the terms of their relationship. This would avoid the one size fits all model of the current marriage law. Chambers writes:

Marriage presents and represents a particular symbolic meaning that transcends individuals' subjective self-understandings and experiences. Instead, it appeals to supposedly shared social understandings of value, understandings that can fail to respect minority and historically-oppressed groups. In particular, marriage reinforces the idea that the monogamous heterosexual union is the (only) sacred form of relationship.⁴⁶¹

While this argument might be slightly mitigated by the legalisation of equal marriage, it still highlights the problem that a particular set of rights and duties are seen as met within a particular kind of relationship, such as marriage. Those whose relationships do not fit within that standard framework are disadvantaged, but the primary model for relationship regulation, namely marriage, is not avoidable for them. Chambers prefers 'piecemeal regulation':

Piecemeal regulation involves the state regulating the different functions or parts of a relationship separately. There would be no assumption that, in any particular case, all the functions coincided in one relationship. Thus there would be separate regulations for property, child custody, immigration and so on. Each of these regulations would stand separately, and individuals could form relationships with different people for different functions.⁴⁶²

⁴⁵⁷ Hale (2009b).

⁴⁵⁸ See Bernstein (2006) for a useful set of essays discussing this. For support for this from a religious perspective see Barrow and Bartley (2006). See Bruckner (2014) who sees marriage as failing as a social institution as too much is expected of it.

⁴⁵⁹ Clive (1994). But see Bridge (2001: 9) who questions whether such an approach is compatible with article 12 of the European Convention on Human Rights.

⁴⁶⁰ Such a proposal is developed in Law Commission of Canada (2002).

⁴⁶¹ Chambers (2013).

⁴⁶² Chambers (2013).

DEBATE

After marriage?

If the law does not rely on marriage, how might the law distinguish two strangers from two people in a close relationship, assuming it wishes to?⁴⁶³ The following are some possibilities:

1. *The law could rely on cohabitation.* This proposal could be that if a couple have cohabited for two years and/or have a child then they are given the rights married couples and civil partners currently have.⁴⁶⁴ In effect, this would create a system where you must 'opt out' of marriage. A couple not wishing to be treated as being married would need to lodge a form with a government agency. Most proponents of such a scheme would accept that people could marry in the 'normal' way too. The difficulty is in defining cohabitation. Does it require staying overnight: how many nights a week are necessary?⁴⁶⁵ Proof of cohabitation (or non-cohabitation) may also prove difficult.
2. Some commentators have promoted an approach that seeks to promote relationships of care.⁴⁶⁶ As I have written:

A sexual relationship between two parties may be fun for the parties involved, but is not itself producing any great social benefit. Care does. If the Government announced a no sex week and the citizens complied no great loss would arise. If the Government announced no care week and the citizens complied, significant harm would result.

Elizabeth Brake⁴⁶⁷ has argued in favour of 'minimal marriage' which she sees as designed to promote caring, reciprocal relationships. She rejects the view that only romantic, two-persons relationships should be covered, as that too narrowly restricts the kind of marriages which should be promoted. These caring relationships are 'primary goods' whose value nearly everyone will agree on and therefore make them a less controversial goal than traditional marriage.

A major difficulty with this approach is that it is difficult to know what counts as care in this context. Would a person who helps a neighbour now and then be in a caring relationship? If so, what kind of legal rights and remedies would follow? Supporters would argue that these problems should not deter a promotion of care.

3. Craig Lind takes these arguments further and argues that the primary focus should be on friendship, not just cohabitation. He argues:

Voluntarily assumed responsibility creates vulnerabilities and (inter)dependencies. These benefit our society while the relationships in which they are discovered continue. When those relationships end, the law's tendency to refuse recognition to those responsibilities – its refusal to acknowledge the vulnerabilities and dependencies that are their result – places the law on the side of the powerful, pitted against the powerless. And that is a role the law should be loathe to play.⁴⁶⁸

⁴⁶³ For a discussion of whether family law could be reduced to a network of personal rights and obligations, without obligations emanating from 'the family', see Eekelaar (2000a).

⁴⁶⁴ See Baker (2009b) for a discussion of Australian law which has taken an approach similar to this.

⁴⁶⁵ Cf. *Santos v Santos* [1972] Fam 247.

⁴⁶⁶ Fineman (2004); Herring (2013a).

⁴⁶⁷ Brake (2012).

⁴⁶⁸ Lind (2011).

4. Another approach is to focus on the agreement between the parties.⁴⁶⁹ This could require or encourage the parties to prepare and sign a legal agreement.⁴⁷⁰ This is only satisfactory where the parties are aware of the benefits of doing so. It is notoriously difficult to persuade people to make wills. It is doubtful we will be more successful in persuading people to make cohabitation contracts. (We will return to this issue in Chapter 6.)
5. It would be possible for the state to create an alternative to marriage, for example registered partnerships.⁴⁷¹ However, it is unlikely that people who do not wish to marry would choose to register their partnerships. Partnerships would be useful, however, for those who are legally barred from marriage (e.g. sisters).
6. To some commentators the significance attached to parenthood reflects the decreasing importance of marriage. Dewar⁴⁷² suggests 'that family law is increasingly emphasising the maintenance of economic and legal ties between parents and children after separation, as if to create the illusion of permanence in the face of instability. Since, by definition, neither marriage nor cohabitation are available for the purpose, these continuing links are founded on parenthood.'

Questions

1. *If two friends came to see you asking your advice as a lawyer as to whether they should enter a civil partnership or whether they should cohabit, what would you recommend and why?*
2. *Would it really make any difference to the law if it was decided that marriage was of no legal significance?*

Further reading

Read **Deech** (2010d) for a passionate argument against treating unmarried couples in the same way as married ones. Read **Auchmuty** (2008) for an argument that marriage is outdated and is on its way out.

16 Conclusion

This chapter has considered the nature of marriage, civil partnership and cohabitation. Increasing numbers of people are deciding to live together outside marriage and, in response, the legal distinctions between married and unmarried couples are lessening. Most significantly, the tax advantages awarded to married couples and civil partners have been replaced by a tax credit to those caring for children (whether married or not). This reflects a suggestion that it is parenthood rather than marriage or civil partnership that is at the heart of family law. This is not to say there are no legal differences between married and unmarried couples, but those differences that remain are controversial and many argue that the distinctions should be removed.

⁴⁶⁹ For a useful discussion, see Lewis (2001b).

⁴⁷⁰ Todd (2006).

⁴⁷¹ Bradley (2001). See Francoz-Terminal (2009) for a discussion of the French approach.

⁴⁷² Dewar (2000a: 63).

Governments still seem to promote marriage as a way of encouraging commitment, stability and personal responsibility within relationships. The difficulty is that such values may not resonate with everyone.⁴⁷³ Some couples may place greater weight on financial stability and/or personal freedom within their relationships.

Rosemary Auchmuty has suggested that marriage has lost so much social and legal significance that it should now be regarded as simply as a 'life-style choice'. Certainly, as the legal consequences of marriage lessen, it is harder to justify the restrictions on who can marry whom. Further, if marriage or civil partnership is not to be the touchstone for deciding who are a legally recognised couple, what should replace it? There are great difficulties in finding an alternative: cohabitation or the intentions of the parties, for example, are not susceptible to ready proof, particularly when compared to examining the marriage register to see if a couple are married. The truth is that the term 'cohabitants' can cover a vast range of different kinds of relationship. The bureaucratic difficulties caused by defining cohabitation⁴⁷⁴ might lead, ultimately, to the law deciding that intimate relationships between adults give rise to no legal obligations whatsoever and that obligations should flow instead from parenthood.⁴⁷⁵

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⁴⁷³ Acker (2016).

⁴⁷⁴ See Garrison (2007) who regards this as one of the great benefits of marriage. *Kotke v Saffarini* [2005] EWCA Civ 221 shows the difficulties the courts can face in defining cohabitation.

⁴⁷⁵ See Bernstein (2006) for a useful collection of essays on the legal regulation of family life without reference to marriage.

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4

Divorce

Learning objectives

When you finish reading this chapter you will be able to:

1. Discuss the statistics on divorce
2. Explain the theories around the causes of divorce
3. Set out the current law on divorce
4. Analyse the criticisms of the current law on divorce
5. Describe proposals to reform the law on divorce
6. Examine the law on dissolution of civil partnerships

1 Statistics on divorce

KEY STATISTICS

- Between 1961 and 1991 there was a fivefold rise in the divorce rate. Currently, however, we are seeing a rapidly declining number of divorces.¹
- In 2013 there were 114,720 divorces; this was notably lower than the figure of 153,282 in 2004, a 2.9% decrease from 2012 and is lower than the number of divorces in 1976.
- The divorce rate (the number of divorces per 1,000 marriages per year) rose from 4.7 in 1970 to 13.7 in 1999. However, since then it has fallen and by 2013 it was 9.8.
- For those married in 1968, 20% of marriages had ended in divorce by the fifteenth wedding anniversary whereas for those married in 1998, almost a third of marriages (32%) had ended by this time. It has been estimated that 39% of marriages entered into today will end in divorce.² However, couples who have been married for 30 years have only a 4% risk of divorce.³

¹ All the statistics in this box come from Office for National Statistics (2015c).

² Benson (2013).

³ Benson (2016).

- In 2013 the median duration of a marriage was 11.3 years. This is an increase from 1993–96 when it hovered between 9.8 and 9.9 years. This shows the popular perception that marriages are ending more quickly is not true.
- There were 94,864 children aged under 16 who were in families where the parents divorced in 2013.
- 65% of divorces are granted to wives.
- There were 974 civil partnership dissolutions granted in the United Kingdom in 2013.

Learning objective 1

Discuss the statistics on divorce

These statistics are alarming to many. The high divorce rates suggest significant levels of personal unhappiness for the adults and children involved. And while it is true that the divorce numbers have fallen recently, this is principally because fewer people are marrying.

All that said, the seeming picture of gloom painted by these figures could be misleading. Some 29 per cent of divorces involved couples at least one of whom had been divorced previously.⁴ What this reveals is that the divorce rate figures are somewhat skewed by the number of people marrying, divorcing, remarrying and divorcing again. Further, if we look at marriages which have survived the first 10 years, there is little difference in the divorce risk for couples in the 1960s, 70s, 80s or 90s.⁵ It has been estimated that of those marrying today, 39 per cent will divorce.⁶ Even if that proves to be correct it should not be forgotten that the clear majority of marriages last for life.

A final word on the gloom that surrounds the divorce statistics. Although a divorce is normally marked by emotional turmoil, it can provide a release for the parties from an unhappy relationship and a new beginning. A divorce may be a tragedy, but less of a tragedy than being stuck in a deeply unhappy relationship.

2 Causes of divorce

Learning objective 2

Explain the theories around the causes of divorce

Here we will consider the factors that are statistically linked to divorce. It must be stressed that these are only statistical links, so it does not mean that because one of these factors is present the couple will divorce; it is simply more likely that they might. The

factors predictive of divorce are being married as a teenager; being previously married; having a lower level of education; having children from a previous relationship; having one's parents separate; and having lived together before marriage.⁷ One recent study suggests that a relationship becomes unhappy and then a trigger event such as violence and adultery causes the official break up.⁸ The study notes that while adultery and violence used to predominate

⁴ Office for National Statistics (2016c).

⁵ Benson (2013).

⁶ Benson (2013).

⁷ Amato (2010); Hayward and Brandon (2011). Although see Bridges and Disney (2012) and Pleasence and Balmer (2012) who argue the link between poverty and relationship breakdown is complex.

⁸ Lampard (2014).

among the reasons given for separation, other explanations, such as 'growing apart' have become increasingly common, and now make up about half of cases. Around a fifth of couples mentioned behaviour relating to money.

The following have been proposed as some of the reasons why the divorce rate has increased:

1. One explanation for the increased divorce rate is that society's attitude towards marriage has changed. A higher degree of satisfaction is now expected from marriage. Anthony Giddens has maintained that in modern times people stay in intimate relationships only for as long as the relationships meet their own goals of personal autonomy and fulfilment.⁹ Shelley Day Sclater summarises his view: 'we no longer look for Mr or Mrs Right, but rather we search for the perfect relationship; when one fails to satisfy, the individual in late modernity increasingly feels free to move on to try another'.¹⁰ This increased individualism and the increased expectations of marriage may therefore help explain the increase in divorce rates.
2. Another explanation is that increased life expectancy affects the divorce rate. The potential length of marriages increased by 15 years during the course of the twentieth century.¹¹ In other words, the average length of a marriage is now similar to that in the Victorian era; marriages now end in divorce at a time when they used to be ended by death.
3. Hochschild¹² has suggested that increased work pressures mean that there is less time to spend on family activities and this causes marital breakdown. Further, combining the career aspirations of both the husband and the wife with child care can cause great tensions within a marriage.
4. One factor that affects the divorce rate is that now divorce is economically a possibility for women. Improvements in benefits for lone parents and increased employment opportunities for women mean that a wife can leave her husband without falling into utter poverty. In the first half of the twentieth century the wife was dependent on her husband to support her; few women would have been economically able to leave their husbands.

3 What should be the aims of divorce law?

There has been much debate over what the role of the law is on divorce or dissolution. Some possibilities will now be considered. The first six are set out as the guiding principles for the divorce law in s 1 of the Family Law Act 1996. Notably, when the Lord Chancellor announced that the proposals in the Act would not be implemented, he confirmed the Government's support for the principles declared in s 1.¹³

⁹ Giddens (1992).

¹⁰ Day Sclater (2000: 68).

¹¹ Eekelaar and Maclean (1997: 17).

¹² Hochschild (1996).

¹³ Lord Chancellor's Department (2001).

A Supporting the institution of marriage

Divorce law should seek to support the institution of marriage.¹⁴ Divorce is not only a tragedy for the couple; it also involves expense to the state. It has been suggested that the cost of family breakdown on the state is £46 billion.¹⁵ Divorce may also be said to shake social stability by challenging the image of the family as comforting, secure and enduring.¹⁶ However, these arguments assume that there is a link between divorce law and the rate of divorce. Ruth Deech argues:

every successive attempt during this century to bring statute law into line with 'reality' has resulted in an increase in the divorce rate. The increased divorce rate results in greater familiarity with divorce as a solution to marital problems, more willingness to use it and to make legislative provision for its aftermath. The resultant pressure on the divorce system leads to a relaxation of practice and procedure . . . then to a call for a change in the law in order to bring it into line with 'reality', and then to yet another increase in divorce.¹⁷

In this way, she argues, the changes in divorce law have led to an increase in the divorce rate. Liz Trinder disagrees and in her survey of the international picture concludes:

Looking at the research as a whole then there is little consensus that no-fault or unilateral divorce have had any clear impact at all on the propensity to divorce, though it is common to find short-term blips in response to policy changes.

The debate over the statistics will rumble on¹⁸ and some commentators see the legislation as a response to the divorce statistics, rather than a cause of them.¹⁹ What is far from clear is *how* changes in the divorce law could cause marital breakdown.²⁰ Clearly the rate of divorce and law on divorce are linked. We could have no legal divorce at all, and so a divorce rate of nil. That would not mean, of course, that all the couples who would have divorced would still be living together. No doubt, they would simply separate. We, therefore, would have a large number of 'empty shell' marriages. So, the real question is whether the divorce law affects the marital *breakdown* rate. If the divorce procedure is perceived to be difficult, spouses may be reluctant to seek the advice of a solicitor until they think that they would be entitled to a divorce.²¹ Delaying the visit to the solicitor and the institution of legal proceedings may possibly help reduce breakdown rates. So it is possible that the *perception* of the divorce law might affect the breakdown rate. However, it should be stressed that there is a whole range of factors that might affect marital breakdown.

If the Government did wish to discourage divorce, it might do so more effectively by making marriage – rather than divorce – harder. Increasing the age at which one could marry might well reduce the divorce rate, as might requiring the parties to have a year of reflection and consideration before being permitted to marry. However, both of these proposals might lead to a reduction of the marriage rate,²² as well as the divorce rate.

¹⁴ Family Law Act 1996 (hereafter FLA 1996), s 1(1)(a).

¹⁵ The Marriage Foundation (2014b).

¹⁶ Day Sclater (1999: 4).

¹⁷ Deech (1994: 121).

¹⁸ Reinhold, Kneip and Bauer (2013).

¹⁹ Davis and Murch (1988: 22–3).

²⁰ Richards (1996b).

²¹ See Fahey (2012) who argues from the experience of Ireland that a liberalisation of the divorce law had only a limited impact on divorce or separation behaviour.

²² Which may or may not be objectionable.

B Saving marriages

Divorce law should seek to save marriages if possible.²³ The argument here is that if a couple seeks a divorce the legal procedure should do all it can to persuade them to be reconciled and to turn back from divorce. However, opponents of this aim argue that people do not normally turn to lawyers when their marriage first hits the rocks, but only when it is irreparable,²⁴ and often at the time when one or both of the parties wishes to remarry. It is also argued that some marriages should not be saved: for example, where there has been serious domestic violence, or where the unhappy marriage is harming the children.

C Limiting emotional harm

If there is to be a divorce, the law should not exacerbate the bitterness between the parties.²⁵ Sir Paul McCartney described his divorce from Heather Mills as 'going through hell'²⁶ and many who have experienced divorce will empathise with that. The aim of reducing bitterness, one might think, is uncontroversial; however, opponents point out that increased bitterness is an inevitable aspect of divorce. To expect a legal system to enable the parties to separate happily and then have a good post-divorce relationship is pure idealism. This is why the stated purpose is that the law should *not exacerbate* the bitterness, rather than *remove* it.

D Promoting on-going relationships

The divorce law should seek to promote a continuing relationship between the spouses as far as possible, particularly where there are children.²⁷ To many people this is clearly desirable. As Beck and Beck-Gernsheim explain:

Only someone equating marriage with sex, loving and living together can make the mistake that divorce means the end of marriage. If one concentrates on problems of material support, on the children and on a long common biography, divorce is quite obviously not even the legal end of marriage but transforms itself into a new phase of post-marital 'separation marriage'.²⁸

Whether the divorce process is the correct mechanism for helping the parties to communicate after divorce, or is used at the best time, may be open to debate. Also it might be thought that in cases where there has been serious abuse, it is not appropriate to seek to continue a relationship between the parties, even if there are children.

E Avoiding expense

The divorce process should not involve unnecessary expenditure for the state or the parties.²⁹ This is relatively uncontroversial. The difficulty is over the meaning of the word 'unnecessary'. In the bitterness of the moment, the parties might wish their lawyers to dispute every fact

²³ FLA 1996, s 1(1)(b).

²⁴ Hasson (2004).

²⁵ FLA 1996, s 1(1)(c)(i).

²⁶ BBC Newsonline (2007c).

²⁷ FLA 1996, s 1(1)(c)(ii).

²⁸ Beck and Beck-Gernsheim (1995: 147).

²⁹ FLA 1996, s 1(1)(c)(iii).

claimed by the other party or to hide as many assets as possible from the other party. Lawyers are certainly expensive, but that is in part, and only in part, because the parties misuse their lawyers' time to negotiate about matters which are, from one perspective, not worth the money involved. That said, it is much easier for an outsider to state what is and is not worth litigating, than it is for the divorcing couples themselves.

F Protection from violence

The divorce law should ensure that any risk to one of the parties, and to any children, of violence from the other party during the breakdown of the relationship, so far as is reasonably practicable, be removed or diminished. This is certainly a laudable aim of the divorce law. It may, however, conflict with the above aims. For example, the 'harder' divorce is, in the name of reinforcing the institution of marriage, the more likely it is that the abused party may have to put up with higher levels of abuse.

G Dealing with emotional issues

The law should seek to deal with the emotional turmoil of the parties. Whether the emotional side of divorce should be dealt with through the legal process itself or by coordinating counselling and legal services is open to debate. There is particular concern with the lack of support children receive when their parents separate.³⁰

4 The present law on divorce: Matrimonial Causes Act 1973

A The background to the Matrimonial Causes Act 1973

Prior to 1857 the ecclesiastical (church) courts determined the law on divorce.³¹ This meant that although nullity decrees could be made, divorce was not available through the courts. The only form of divorce was by an Act of Parliament, a hugely expensive procedure that was open only to a few people. The Matrimonial Causes Act 1857 was the first Act to create an alternative to divorce by Act of Parliament. It created a divorce procedure through the courts. However, there was a difference between the grounds available to a husband and those open to a wife. For example, a husband could rely on his wife's adultery, but a wife could rely on a husband's adultery only if there were aggravating circumstances (e.g. the adultery was incestuous or there was some 'unnatural offence'). The Matrimonial Causes Act 1923 put the husband and wife in the same position – simple adultery was a ground of divorce for both. The grounds were extended further in the Matrimonial Causes Act 1937 to include cruelty, desertion, or incurable insanity. The last ground was of particular significance because for the first time it recognised that a party could be divorced even though they had not behaved in a blameworthy way.

The Second World War led to an increase in the number of divorces. During the 1960s there was an increasing acceptance of divorce, even by religious bodies. There were growing calls for divorce to be available simply on the ground that the marriage had irretrievably

³⁰ Dunn and Deater-Deckard (2001).

³¹ For a discussion of the history of divorce law, see Cretney (2003a).

broken down. The arguments in favour of making divorce easier particularly focused on couples whose marriages had failed and who were forced to form relationships out of marriage with new partners because they were unable to prove the grounds of divorce. There were particular concerns over the number of children being born to unmarried parents. It was argued that liberalising the divorce law would lead to a reduction in the number of children born outside marriage.³² Rather surprisingly, in 1966 a group created by the Archbishop of Canterbury produced one of the leading documents (*Putting Asunder*) in favour of liberalising the law. The fact that the Church of England had come to accept the need for a liberalisation of the divorce law indicated that society's attitude towards divorce had truly changed. The report was referred to the Law Commission, who produced their own report: *Reform of the Grounds of Divorce: The Field of Choice*.³³ The Archbishop's group had suggested that the judge should consider each and every case to decide whether the marriage had irretrievably broken down. But the Law Commission thought the ideal was not practical, and instead proposed creating a new ground of divorce based on a period of separation.

The Government decided not to adopt all of the Law Commission's proposals, and the Divorce Reform Act 1969 sought to create a compromise between the different views. The decision was to abolish the old grounds for divorce and replace them with a single ground for divorce – that the marriage had irretrievably broken down. However, the only way of proving irretrievable breakdown was by establishing one of five facts discussed below. The divorce law was consolidated in the Matrimonial Causes Act 1973. Before turning to the present law, it is important to appreciate that the Family Law Act 1996 has since been passed, which sets out a complete reform of the law. However, the Lord Chancellor has announced that the Act will not be implemented.³⁴ This means that the present law is in a strange hiatus: the Matrimonial Causes Act 1973 is the present law but Parliament has indicated that it believes the Act needs to be reformed.³⁵ This section, therefore, will consider the current law in the Matrimonial Causes Act 1973; the rejected proposals of the Family Law Act 1996; and how the law might be reformed in the future.³⁶

B The current law: the Matrimonial Causes Act 1973

Learning objective 3

Set out the current law on divorce

To understand how the Matrimonial Causes Act 1973 works in practice it is crucial to appreciate the court procedures that are in place to deal with petitions for divorce.³⁷

(i) The special procedure

Prior to 1973 each divorce required a hearing where the petitioner in open court would have to present evidence to support the grounds set out in the petition, by introducing witnesses if necessary. This was expensive, embarrassing and stressful for the parties and it involved the judiciary in lengthy hearings. A special procedure was introduced that, by 1977, covered all

³² In fact, the number of children born to unmarried parents did not fall following the relaxing of the divorce laws.

³³ Law Commission Report 6 (1966).

³⁴ Dyer (2000).

³⁵ Lord Chancellor's Department (2001).

³⁶ According to Thorpe LJ (2000), there is a widespread feeling amongst family lawyers that there is a need for some reform.

³⁷ The law on recognition of overseas divorces is not covered here: Family Law Act 1986 and Council Regulation (EC) 2201/2003 deal with the issue. A helpful summary is provided in Gilmore and Glennon (2012: 76–8).

grounds for divorce where the petition was undefended.³⁸ Under the special procedure the petitioner simply needs to lodge at the court the petition outlining the grounds for the divorce; a statement concerning the arrangements for the children; and an affidavit confirming the truth of these documents.³⁹ Originally a district court judge would read through the documents and, if satisfied that the petitioner has proved his or her case, pronounces a decree nisi. However, recently there have been trials where this is done by a court administrator, rather than a judge. So although there is some limited scrutiny to ensure that the formal paperwork is present, there is no attempt to ensure that what is stated on the petition is true. Indeed, the petition may be entirely false; there is no need to prove the veracity of what is stated, unless the respondent defends the divorce. One recent survey found 27 per cent of respondents accepted that the facts listed in the petition were not true.⁴⁰ The law works on the assumption that if the respondent does not attempt to defend the petition then it can be assumed to be true. This assumption is in fact unreliable. If a respondent receives a petition based on falsehoods, he or she must decide whether or not to defend the petition. The expense involved in defending the petition (there is no community legal services funding available) and the reluctance of lawyers to become involved in defended divorces⁴¹ means that very few petitions are defended. Even where divorces are defended, the vast majority of defences are unsuccessful. The procedure can be said to increase bitterness between the parties, by denying the respondents opportunity to defend themselves from the allegations in the petition.⁴² Hence, there would be more than an element of truth in saying that the present law of divorce in England and Wales is *in effect* divorce on demand.⁴³

The divorce decree is completed in two stages. First the decree nisi is pronounced and later the decree absolute is declared. The divorce does not take effect until the decree absolute. Any time after six weeks from the decree nisi the petitioner can apply for a decree absolute; if the

CASE: *Rapisarda v Colladon* [2014] EWFC 35

An eagle-eyed administrator in a court noted two divorce petitions with the same postal address. An investigation was undertaken and 180 petitions used the same postal address for one of the parties, namely a mail box in Maidenhead. As Munby P noted, 'given the dimensions of the mail box it is clear that not even a single individual, however small, could possibly reside in it.' It became clear there was 'a conspiracy to pervert the course of justice on an almost industrial scale' (para 1).⁴⁴ The decrees absolute were declared void as based on fraud. The marriages, it was assumed, were entered into for immigration purposes and the divorces were used to end these fictional marriages. One cannot help but suspect many other cases go undetected because so little is done to ensure the contents of divorce petitions are accurate.⁴⁵

³⁸ The procedural change was reinforced by the withdrawal of legal aid for divorce.

³⁹ It is also necessary to provide other documents in some cases.

⁴⁰ Roiser (2015).

⁴¹ They are widely regarded by lawyers as a waste of time. If one party is determined to obtain a divorce, is there any practical benefit in preventing them?

⁴² Cretney (2003a: 383).

⁴³ This has even been acknowledged by Munby J, albeit extra-judicially: Munby J (2005: 503).

⁴⁴ For another example see *B v B (Divorce: Dismissal: Sham Marriages)* [2003] Fam Law 372.

⁴⁵ Herring (2014g).

petitioner fails to apply then the respondent can apply for the decree to be made absolute any time after 3 months plus 6 weeks from decree nisi.⁴⁶ The purpose of the gap in time between the decree nisi and decree absolute is to give time for any appeal against the decree nisi to be lodged. In *Kim v Morris*⁴⁷ the couple reconciled and cohabited for four years after the decree nisi. When the wife applied for a decree absolute this was refused as it was clear that decree nisi had not represented a genuine breakdown of the relationship. She needed to petition again for a fresh decree.⁴⁸

(ii) The ground for divorce

Divorce under the Matrimonial Causes Act 1973 is granted on the basis of a petition where one party (the petitioner) presents an application for divorce which the other party (the respondent) may choose either to defend or not. It is not possible to petition for divorce until the couple have been married for one year. The sole ground for divorce is set out in s 1(1) of the Matrimonial Causes Act 1973: that the marriage has irretrievably broken down. But the only way of proving irretrievable breakdown is by proving one of the five facts in s 1(2). If none of the five facts is proved, a divorce cannot be granted, even if the court is convinced that the marriage has irretrievably broken down.⁴⁹ Even if one of the facts is made out, if the court is convinced that the marriage has not irretrievably broken down, a divorce should not be granted. About three-quarters of petitions are based on either adultery or unreasonable behaviour as these grounds do not involve delay.⁵⁰ The five facts are as follows.

(a) The respondent's adultery

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 1(2)(a)

Section 1(2)(a) of the Matrimonial Causes Act 1973:

'that the respondent has committed adultery and the petitioner finds it intolerable to live with the respondent.'

Section 1(6) of the Matrimonial Causes Act 1973:

'Only conduct between the respondent and a person of the opposite sex may constitute adultery for the purposes of this section.'

The petitioner can rely on the fact that the respondent has committed adultery and that the petitioner finds it intolerable to live with the respondent. Four points should be stressed. First, a petitioner cannot rely on his or her own adultery. Second, adultery is restricted to sexual intercourse between people of the opposite sex. This is hard to justify, but matters little in practice because sexual unfaithfulness can fall under the unreasonable behaviour fact.

⁴⁶ Although if the respondent applies the court has a discretion to refuse to make the decree absolute if there are financial matters unresolved (Matrimonial Causes Act 1973 (hereafter MCA 1973), s 9(2)). See, e.g., *Manchanda v Manchanda* [1995] 2 FLR 590; *Evans v Evans* [2012] EWCA Civ 1293.

⁴⁷ [2012] EWHC 1103 (Fam).

⁴⁸ *Evans v Evans* [2012] EWCA Civ 1293.

⁴⁹ *Buffery v Buffery* [1988] 2 FLR 365, [1988] FCR 465.

⁵⁰ Office for National Statistics (2011b).

Third, it is not enough just to show that the respondent had committed adultery – it is also necessary to demonstrate that the petitioner finds it intolerable to live with the respondent. Fourth, in *Cleary v Cleary*⁵¹ it was established that it is not necessary to show that the reason why the petitioner cannot live with the respondent is due to the adultery. So if the husband commits adultery which the wife forgives, but then later the relationship breaks down for some other reason, the adultery fact can be made out. This suggests that the law believes that adultery is a symptom of a broken marriage, but does not of itself indicate that a marriage has broken down. However, s 2(1) of the Matrimonial Causes Act 1973 states that if the parties live together for more than six months after an act of adultery then the petition cannot be based on that act of adultery.

Adultery is defined as involving a voluntary act of sexual intercourse between the husband or wife and a third party of the opposite sex.⁵² Homosexual intercourse or other forms of sexual activity not involving sexual intercourse will not constitute adultery, but may well constitute unreasonable behaviour under s 1(2)(b). If the respondent defends the petition and denies the adultery, the petitioner must prove it. The court will be willing to find that adultery took place if it could be demonstrated that the parties had the inclination and opportunity to commit adultery. For example, if the husband was seen dining with a woman and then retiring to a room to spend the night with her the court may be willing to assume that adultery took place.

In relation to the intolerability, the question is whether *this* petitioner finds it intolerable to live with this respondent. It does not matter whether most people would or would not find it intolerable to live with the respondent; it is only the reaction of the petitioner which is relevant.⁵³

(b) The respondent's behaviour

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 1(2)(b)

Section 1(2)(b) of the Matrimonial Causes Act 1973: 'that the respondent has behaved in such a way that the petitioner cannot reasonably be expected to live with the respondent'.

The petitioner can rely on the ground that the respondent has behaved in such a way that the petitioner cannot reasonably be expected to live with him or her. A crucial point is that it is not enough just to prove that the respondent has engaged in unreasonable behaviour. It must be behaviour that a right-thinking person would think was such that this petitioner cannot reasonably be expected to live with the respondent.⁵⁴ So the court should take into account the personality of the parties in deciding whether the conduct was sufficient to prove the ground.⁵⁵ However, if the petitioner is reacting unreasonably to the respondent's behaviour, the petitioner may fail.

⁵¹ [1974] 1 All ER 498.

⁵² *Dennis v Dennis* [1995] 2 All ER 51MCA, s. 1(6). Solicitors are urged by the Law Society to encourage their clients not to name in any petition the person with whom the adultery took place (2006: 28).

⁵³ *Goodrich v Goodrich* [1971] 2 All ER 1340.

⁵⁴ *Birch v Birch* [1992] 1 FLR 564, [1992] 2 FCR 564.

⁵⁵ *Birch v Birch* [1992] 1 FLR 564, [1992] 2 FCR 564.

Domestic violence would obviously fall within the definition of unreasonable behaviour, but a wide range of conduct can be included under this heading. It is also possible to rely on a series of incidents which, although minor in themselves, cumulatively establish that the petitioner cannot live with the respondent. There are probably few marriages where a party would not be able to recall a few incidents of unreasonable behaviour by his or her spouse. Ruth Deech suggests it is 'very easy' to rely on the behaviour ground.⁵⁶ The Law Commission has acknowledged that 'virtually any spouse can assemble a list of events which, taken out of context, can be presented as unreasonable behaviour sufficient to found a divorce petition'.⁵⁷ The cases reveal a wide range of conduct constituting unreasonable behaviour, ranging from a DIY enthusiast husband who removed the door of the toilet and took eight months to replace it,⁵⁸ to a husband who required his wife to tickle his feet for hours every evening leaving his wife with uncontrollable movements in her hands.⁵⁹ One journalist claims that Facebook 'sex chats' are responsible for one in five divorces. That seems hard to believe, but the internet may well have facilitated infidelity.⁶⁰

It should be stressed that although the behaviour must be unreasonable, there is no need for the respondent to be blameworthy.⁶¹ For example, if a spouse suffers from an illness which causes him or her to behave in an unreasonable way, the fact that the behaviour was 'not their fault' would be irrelevant.⁶² However, this rule causes difficulties. In *Pheasant v Pheasant*⁶³ the husband presented a petition on the behaviour factor, based on a claim that the wife did not provide spontaneous displays of emotion. It was held that this could not constitute unreasonable behaviour, as the wife had not breached any marital obligation. The case is perhaps better understood as revealing a reluctance of the courts to accept that omissions by a spouse can constitute unreasonable behaviour,⁶⁴ rather than setting up a requirement that behaviour has to constitute a breach of an obligation in order to constitute unreasonable behaviour. However, it would be wrong to suggest that a decree cannot be based on the omissions of a spouse; it is just that the court will require more convincing that omissions can constitute unreasonable behaviour.⁶⁵ *Pheasant v Pheasant* can be contrasted with *Livingstone-Stallard v Livingstone-Stallard*,⁶⁶ where the divorce was granted on the basis of the constant criticisms and rudeness of the husband. In *Hadjimilitis (Tsavlis) v Tsavlis (Divorce: Irretrievable Breakdown)*⁶⁷ the unreasonable behaviour was claimed to be the husband's constant criticism; lack of warmth; controlling and demanding behaviour; public humiliation; lack of respect, insight, sensitivity and understanding, causing the wife depression and nervous strain.

⁵⁶ Deech (2009b).

⁵⁷ Law Commission Report 192 (1990).

⁵⁸ *O'Neill v O'Neill* [1975] 3 All ER 289.

⁵⁹ *Lines v Lines* (1963) *The Times*, 16 July. See also *Le Brocq v Le Brocq* [1964] 3 All ER 464 where the wife claimed that her husband's submissive character and refusal to argue infuriated her.

⁶⁰ See Herring (2009b: ch. 1).

⁶¹ *Gollins v Gollins* [1964] AC 644.

⁶² *Katz v Katz* [1972] 3 All ER 219.

⁶³ [1972] 1 All ER 587.

⁶⁴ The courts have been reluctant to accept that refusal to engage in sexual relations was necessarily unreasonable behaviour: *Mason v Mason* (1981) 11 Fam Law 143.

⁶⁵ *Thurlow v Thurlow* [1975] 2 All ER 979.

⁶⁶ [1974] 2 All ER 766.

⁶⁷ [2002] Fam Law 883.

If the spouses live together for six months after the last incident of unreasonable behaviour referred to in the petition, the court must take this into account when considering whether it was reasonable to expect the petitioner to live with the respondent.⁶⁸ However, if the period is less than six months, the fact that the parties lived together after the incident cannot be taken into account. The reason for this is that parties should not be deterred from attempting reconciliation for fear that it would make it harder to establish a fact.

(c) The respondent's desertion

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 1(2)(c)

Section 1(2)(c) of the Matrimonial Causes Act 1973: 'that the respondent has deserted the petitioner for a continuous period of at least two years immediately preceding the presentation of the petition'.

If the petitioner can show that the respondent has deserted the petitioner for a continuous period of two years preceding the petition, this could form the basis of the divorce application. Desertion has been defined as an unjustifiable withdrawal from cohabitation, without the consent of the remaining spouse and with the intent of being separated permanently. If the desertion is justifiable, it cannot be relied upon. It was justifiable for a wife to leave when the husband took in a 'second wife'.⁶⁹ It is also possible to rely on two years' separation with consent to the divorce,⁷⁰ so desertion is rarely used.

(d) Two years' separation with the respondent's consent to the divorce

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 1(2)(d)

Section 1(2)(d) of the Matrimonial Causes Act 1973: 'that the parties to the marriage have lived apart for a continuous period of at least two years immediately preceding the presentation of the petition . . . and the respondent consents to a decree being granted'.

If the petitioner can establish that there has been two years' separation immediately before the presentation of the petition and that the respondent consents to the petition, a divorce can be granted. This ground is significant because the law has accepted that divorce can be obtained by consent without proof of wrongdoing. The intention was that this would be the most commonly used fact, but actually has never been more popular than behaviour.⁷¹

A couple are living apart unless they are living with each other in the same household.⁷² It is possible for them to be living apart in the same accommodation, if they are living separate

⁶⁸ It is still quite possible for a petition to be granted, despite the period of living together, where, for example, there was no alternative accommodation available for the petitioner: *Bradley v Bradley* [1973] 3 All ER 750.

⁶⁹ *Quoraishi v Quoraishi* [1985] FLR 780.

⁷⁰ MCA 1973, s 1(2)(d).

⁷¹ National Statistics (2010d).

⁷² MCA 1973, s 2(6).

lives. For example, in *Hollens v Hollens*⁷³ the husband and wife both lived in a house but did not speak, eat or sleep together. They were held to be living apart. However, in *Mouncer v Mouncer*,⁷⁴ where the spouses ate together and spoke to each other, it was decided that they were not living apart. The strict interpretation has been criticised on the basis that the more civilised the parties are towards each other during the 'separation', the more likely it is that the courts will find the fact not made out. The situation can be particularly harsh on a couple who cannot afford alternative accommodation and where one of the first three grounds cannot be made out. The courts' approach can be explained on the basis that the more liberal the interpretation given to living apart, the closer the law is to accepting divorce on demand.

Not only must the parties be physically apart, there must also be a wish by one spouse to live apart, explained the Court of Appeal in *Santos v Santos*.⁷⁵ This need not be a mutual wish, nor need it be communicated. So, if the husband is imprisoned and the spouses live separately for over two years, this ground can be made out if one of the parties formed the intention to live separately. The requirement in *Santos v Santos*⁷⁶ of a mental element is controversial because there is no reference to it in the statute.

Section 2(5) permits the spouses to resume living together for one or more periods totalling six months. Such a period will not count towards the two years' living apart, but it will not stop the period running.

(e) Five years' separation

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 1(2)(e)

Section 1(2)(e) of the Matrimonial Causes Act 1973: 'that the parties to the marriage have lived apart for a continuous period of at least five years immediately preceding the presentation of the petition . . . '.

The petitioner can rely on the fact that the parties have been separated for five years prior to the date of the petition. This was the most controversial ground because it permitted divorce to be ordered against a spouse without his or her consent and without any proof of wrongdoing. Opponents called the section a 'Casanova's charter', although with a five-year wait between marriages, a Casanova would require patience!

(iii) Defences to petitions

1. If the petitioner relies on the ground of five years' separation,⁷⁷ s 5 of the Matrimonial Causes Act 1973 provides a defence to a respondent who does not wish the divorce to go through. The defence is available if the divorce would result in grave financial or other hardship to the respondent and it would be wrong in all the circumstances to dissolve the

⁷³ (1971) 115 SJ 327.

⁷⁴ [1972] 1 All ER 289.

⁷⁵ [1972] Fam 247.

⁷⁶ [1972] Fam 247.

⁷⁷ MCA 1973, s 1(2)(e).

marriage. A good example of how s 5 could be used is *K v K (Financial Provision)*,⁷⁸ where the court lacked the power to require the husband to make certain orders to equalise the position of the parties in respect of pension provision. The court felt that in the absence of such provision the wife would suffer grave financial hardship. The court adjourned the husband's petition for divorce until the husband voluntarily made the necessary financial arrangements. In *Archer v Archer*,⁷⁹ where the wife had considerable assets, the court refused to find that she would suffer grave financial hardship if the divorce were granted. In general, the courts have been very reluctant to use s 5 even if divorce causes financial losses⁸⁰ or social ostracism.⁸¹ It should be stressed that it is not enough just to show the hardship; it is also necessary to show that it would be wrong in all the circumstances to grant the decree.

2. If the petition is based on the two or five years' separation grounds then decree absolute should not be made unless the court is satisfied that the petitioner should not be required to make financial provision for the respondent, or that the financial provision made by the petitioner for the respondent is reasonable and fair, or the best that can be made in the circumstances.⁸²
3. Under s 9(2) if three months have passed from the making of the decree nisi and the petitioner has not applied to have it made absolute then the respondent can apply to have the decree nisi made absolute. However, the court has the power to refuse to make the decree absolute on the respondent's application if that is appropriate in all the circumstances. In *O v O (Jurisdiction: Jewish Divorce)*⁸³ the respondent husband refused to supply his wife with a *get*, which she required if her divorce was to be recognised within the Jewish religion. The wife petitioner therefore refused to apply to have the decree made absolute. The respondent husband applied under s 9(2) but the court refused to make the decree absolute until he supplied the *get*.⁸⁴
4. Viljeon J in *O v O (Jurisdiction: Jewish Divorce)*⁸⁵ also suggested a court had the power to delay making absolute a decree nisi under the inherent jurisdiction if there were special reasons for doing so.⁸⁶ The failure of the husband in that case to supply the *get* was a sufficiently special circumstance.
5. Under the Divorce (Religious Marriages) Act 2002 the court can refuse to make a decree absolute until the arrangements for a religious divorce have been made. The Act will be discussed further, below.
6. Under the original version of the Matrimonial Causes Act 1973 where the couple have children of the family under the age of 16, the court, when considering whether to make a decree nisi, must consider the parties' proposals concerning the future of the child and decide whether it should make any orders under the Children Act 1989, but this has now

⁷⁸ [1996] 3 FCR 158, [1997] 1 FLR 35.

⁷⁹ [1999] 1 FLR 327.

⁸⁰ *Julian v Julian* (1972) 116 SJ 763.

⁸¹ *Banik v Banik* [1973] 3 All ER 45; *Rukat v Rukat* [1975] Fam 63.

⁸² MCA 1973, s 10(2), (3). See *Wickler v Wickler* [1998] 2 FLR 326 for an example of when the section was used and *Re G (Decree Absolute: Prejudice)* [2003] 1 FLR 870 when it was not.

⁸³ [2000] 2 FLR 147.

⁸⁴ For another example, where there was a fear that the respondent would leave the jurisdiction without enabling the court to make effective ancillary relief orders, see *W v W (Decree Absolute)* [1998] 2 FCR 304.

⁸⁵ [2000] 2 FLR 147.

⁸⁶ See also *Miller Smith v Miller Smith (No. 2)* [2009] EWHC 3623 (Fam).

been repealed. In practice, whatever the age of the child, unless either spouse has applied for an order, the court is unlikely to make one of its own volition. As Douglas *et al.* explain:

'The assumption which lies behind this approach is that parents may be trusted in most cases, to plan what is best for their children's futures, and that, where they are in agreement on this, it is unnecessary and potentially damaging for the state, in the guise of the court, to intervene.'⁸⁷

5 Problems with the present law

Learning objective 4

Analyse the criticisms of the current law on divorce

Moves to reform the Matrimonial Causes Act 1973 started with the Booth Committee Report in 1985. The report argued that defended divorces led to increased bitterness and disappointment. Parties, it was argued, should resolve issues themselves and disputes taken to court should be kept to a minimum. Subsequently, Law Commission Report 192⁸⁸ suggested significant reforms of the law. The report began by criticising the present law. These criticisms will now be considered.

A 'It is confusing and misleading'

The confusion is said to flow from the fact that although irretrievable breakdown is stated to be the ground for all divorces, it is in fact insufficient simply to show that the marriage is irretrievably broken down: one of the five facts must also be proved. A linked complaint is that the law requires the parties to cite a fact as the cause of the marital breakdown, a fact that might not actually be the real cause of the marital breakdown. Mears,⁸⁹ however, claims that the law is not misleading because lawyers can always explain the true position of the law to their clients. This is not, it must be said, a very satisfactory excuse for having a confusing law. That said, as Mears points out, this is not an area of the law which the public complains about on the grounds of it being impenetrable.

The law can also be criticised on the basis that its practice differs so much from the law as it appears in the statute books. The President of the Family Division Sir James Munby has admitted: 'The reality is that we have had divorce by consent for 30 years'⁹⁰ yet that is not what that the law actually says.

B 'It is discriminatory and unjust'

The Law Commission suggests that the ground of two years' separation is not readily available to those who are unable to afford alternative accommodation for those two years. Those who cannot afford to live separately must use one of the fault-based grounds or wait for five years.⁹¹ Mears⁹² argues that this is also an unfair criticism because the only discrimination is

⁸⁷ Douglas, Murch, Scanlan and Perry (2000: 178).

⁸⁸ Law Commission Report 192 (1990).

⁸⁹ Mears (1991).

⁹⁰ Quoted in Baksi (2014).

⁹¹ It is possible for two parties to live separately under one roof.

⁹² Mears (1991).

against those who are unable to prove the ground of divorce. The validity of his objection depends on whether there is a good reason for requiring separation. If there is not, the Law Commission's argument is valid.

C 'It distorts the parties' bargaining positions'

The argument here concerns the situation where one spouse is desperate for the divorce to go through as quickly as possible but the other spouse is happy for there to be a delay in the divorce. As the party who is desperate for a divorce is dependent on the other party's consent (if it is a two-year petition) or willingness not to defend the petition, either way, this gives the non-consenting spouse a weapon that can be used to advantage in the bargaining process. For example, if the spouses had separated and found new partners, and the husband for religious reasons wished to marry his new partner, but the wife was happy to cohabit with hers, then the wife could use the husband's desire for a divorce as soon as possible to extract a more generous settlement from him, by threatening not to consent to the divorce and thereby requiring him to wait until five years after their separation. Those who would seek to counter this argument would reply that the non-consenting spouse only has a tool if the consenting spouse cannot prove one of the grounds that Parliament has set down and, if so, the non-consenting spouse is within his or her rights to withhold consent.

D 'It provokes unnecessary hostility and bitterness'

The system encourages the parties to use the fault-based grounds because they are so much quicker to use.⁹³ This can produce distress, bitterness and embarrassment in the making of that allegation, particularly because such allegations are made in public documents. The legal process, it is said, requires the parties to look to the past and at the bad aspects of their marriage. This might destroy any last hope of reconciliation. If a wife visits her solicitor and informs him or her that she wants to divorce her husband then the first thing the solicitor will do⁹⁴ will be to ask the wife to recount all the very worst things that her husband has done during the marriage. These will be typed up into a draft petition and sent to the husband. It would be hard to imagine a procedure better designed to increase the parties' ill feelings towards each other. Supporters of the present law would argue that ill feeling and bitterness are an inevitable part of divorce. This will be discussed further below.

E 'It does nothing to save the marriage'

The parties are required to concentrate on making allegations rather than saving the marriage. The only provision specifically designed to assist reconciliation in the Matrimonial Causes Act 1973 is s 6. This states that if a petitioner consults a solicitor in connection with a divorce, the solicitor is required to certify whether or not the possibility of a reconciliation has been discussed and, if appropriate, whether the names and addresses of organisations or people that can help have been provided.⁹⁵ The aim is to ensure that a solicitor reflects carefully on whether the parties ought to consider reconciliation. The provisions are, of course, of little use to those who do not instruct a solicitor. It is notable that in one survey only 53 per cent of those divorcing were sure that divorce was what they wanted.⁹⁶

⁹³ A divorce based on the fault-based grounds can often take between four and six months to complete.

⁹⁴ After discussing fees.

⁹⁵ MCA 1973, s 6(1).

⁹⁶ Newcastle Centre for Family Studies (2004).

F 'It can make things worse for the children'

Children whose parents divorce may suffer more if the parents are in conflict. The law does not attempt to reduce conflict; indeed, it may exacerbate conflict by focusing on one party's blame-worthy conduct. However, in a recent study 30 per cent of those questioned thought it should be harder for couples with children to divorce; only 38 per cent disagreed with that view.⁹⁷

6 Reforming the divorce law: the failure of the Family Law Act 1996

Learning objective 5

Describe proposals to reform the law on divorce

Although the criticisms have persuaded many commentators and practitioners that the divorce law is in urgent need of reform, it must be pointed out that (unlike many other areas of family law) members of the public do not appear to get particularly agitated about it.⁹⁸ There have not been demonstrations in the streets calling for reform of divorce law, even though there have in several other areas of the law. Nevertheless, the criticism contained in the Law Commission report persuaded the Government, and Parliament decided to reform the law through the Family Law Act 1996. However, before putting the Act into effect, it was decided to try out the proposals in various pilot studies around the country. The results of the pilot studies were regarded by the Government as very disappointing. It therefore decided not to implement the Family Law Act 1996 and Part II of the Act (which deals with the divorce procedure) will be repealed.⁹⁹ This section will still discuss the Act in outline because there is a widespread acceptance that the divorce law should be reformed in some way.¹⁰⁰ The reasons for the rejection of the law as set out in the Family Law Act 1996 will play a key role in discussions over how the divorce law should be reformed in the future.

A A timetable for divorce procedures under the Family Law Act 1996

At the heart of the thinking behind the Act is that divorce should be a process over time rather than a one-off event. Before looking at some of the detailed provisions of the Act, a general outline of the proposed procedures will be provided by means of a timetable. The procedures set out in the Act were in fact complicated, and this timetable is a simplification. It is based on the parties moving through the procedure as quickly as possible.

<i>0 months</i>	The spouse wishing to initiate the procedure must attend an 'information meeting'. The other spouse, if he or she wishes, can also attend the meeting. Following the information meeting, the parties should spend the next three months considering whether they really want to get divorced.
<i>3 months</i>	One or both parties may file a statement of marital breakdown. ¹⁰¹ The statement of marital breakdown cannot be made until the parties have been married at least one year. ¹⁰²

⁹⁷ National Centre for Social Research (2008).

⁹⁸ Although see Shepherd (2009) for a renewed call for divorce reform.

⁹⁹ Lord Chancellor's Department (2001).

¹⁰⁰ The Lord Chancellor indicated he would continue to consider ways of reforming the divorce procedure despite the failure of the Family Law Act 1996 (Lord Chancellor's Department, 2001).

¹⁰¹ FLA 1996, s 6.

¹⁰² FLA 1996, s 6(2), (3).

3 months, 14 days	The period of reflection and consideration starts. ¹⁰³ During this time the parties should continue to consider whether they want to get divorced. Marriage counselling facilities will be available. The parties should also look to the future and consider their relationship after divorce. In particular, arrangements should be made for residence and contact relating to any children, and any financial arrangements should be considered. The parties may consult a lawyer or mediator, if they have not done so already.
12 months, 14 days	If there are no children and neither party has applied for an extension of time, the parties can apply for the divorce order. ¹⁰⁴ The court will grant the divorce order if applied for, providing the parties have been able to satisfy s 9 (requiring in essence that the arrangements over the parties' finances and children have been resolved). A party can apply for an order under s 10 to prevent the granting of the divorce order if there would be substantial financial or other hardship to the applicant spouse or the child if the divorce order were granted.
18 months, 14 days	Those unable to apply at the 12-month stage (e.g. those with children or where a party has applied for an extension) may apply for a divorce order. The court will grant a divorce order subject to ss 9 and 10.

Some of the more controversial aspects of the proposals and the difficulties with them revealed by the pilot studies will now be considered in further detail.

B The information meeting

The information meeting was to start the whole divorce procedure. Apart from a few exceptions,¹⁰⁵ anyone intending to initiate divorce proceedings was to attend an information meeting. It was not necessary for both spouses to attend a meeting but they could. The aims of the information meeting were as follows:¹⁰⁶

1. To communicate a range of information on the divorce process and its consequences. This would cover information about the procedure of the divorce; the availability of mediation; the existence of free marriage guidance facilities and other counselling facilities; the possibility of seeking legal advice; and advice on matters associated with marriage breakdown such as housing and domestic violence.
2. To 'mark the seriousness of the step taken'. The parties were to be informed of the possible consequences of divorce and in particular the ways in which a child may suffer during a divorce. They were to be encouraged to think again about whether they really wished to obtain a divorce. The parties at the meeting were to be offered marriage guidance counselling and were to be encouraged to take it.¹⁰⁷
3. To encourage the parties to use mediation, rather than relying on lawyers.

¹⁰³ The 14 days are the period allowed for service of the statement of marriage breakdown on the other party.

¹⁰⁴ In cases where there are children of the parties or one spouse has applied for an extension of time, the period of reflection and consideration will be extended by a further six months. This extension will not apply if an occupation order or non-molestation order is in force, or if the court is satisfied that delaying the making of the divorce order would be significantly detrimental to the welfare of any child: FLA 1996, s 7.

¹⁰⁵ Famous and disabled people were to be exempt from attending the meetings.

¹⁰⁶ FLA 1996, s 8(9) provides a complete list.

¹⁰⁷ FLA 1996, s 8(6)(b).

The pilot studies used a range of styles of information meetings including one-to-one meetings; group sessions; using CD-ROMs and computer technology; or a mixture of the three. The meetings were conducted by 'information providers', who were not necessarily lawyers, and who were employed on the basis of their communication skills.¹⁰⁸ The highest levels of satisfaction in the pilot studies were found with individual meetings; next came the group sessions; and the least popular were the CD-ROMs.¹⁰⁹

The Government's decision to abandon the implementation of the 1996 Act was largely caused by the lack of satisfaction with the information meetings.¹¹⁰ The major concern was that the meetings did not succeed in encouraging the parties to attend mediation. Other statistics reveal successes: 90 per cent of attendees found the meetings useful and 13 per cent of those attending went to see a marriage counsellor, half of those with their spouse.¹¹¹ Most people found the meetings positive.¹¹² These have led at least one leading researcher to suggest the Government should not have regarded the meetings as a failure, but rather that it had unrealistic expectations about what they could achieve.¹¹³

The key complaint made about the information meetings was that they were too 'structured, impersonal and routine'.¹¹⁴ Many participants felt that they were being subjected to a prepared package, rather than being treated as individuals.

What lessons for future law reform are to be learned from the failure of the information meetings in the pilot studies? First, no two divorces are the same. The information that one couple may require to guide them through their divorce may be quite irrelevant for another divorcing couple.¹¹⁵

Secondly, those involved in the divorcing process strongly dislike being 'lectured to' and prefer discussions with information providers to being passive recipients of information. Indeed, attempts by the state to force divorcing couples to 'behave well' during divorce are likely to be of very limited effect.

C Encouragement of reconciliation

One of the main aims of the Family Law Act 1996 was to persuade couples to become reconciled.¹¹⁶ At the information meeting, couples were to be encouraged to consider saving their marriage, and counsellors were available to assist those who wished to pursue this option. Further, the Act required a three-month gap between the information meeting and the making of the statement of marital breakdown.¹¹⁷ The aim of this gap was to provide a 'cooling

¹⁰⁸ Out-of-work actors were a popular category.

¹⁰⁹ Walker (2001a), although in part the lack of satisfaction with the CD-ROMs may result from lack of familiarity with computers.

¹¹⁰ Walker (2001a).

¹¹¹ Walker (2001a). Walker and McCarthy (2004) report that those who met with counsellors found their meetings useful, even though few marriages were saved.

¹¹² Walker (2001b).

¹¹³ Walker (2001b). See also Hale LJ (2000) who suggests that there were unrealistic expectations for the information meetings.

¹¹⁴ Walker (2000b: 6).

¹¹⁵ Arnold (2000). Interestingly, only 66 per cent of women who said that in theory information about violence was relevant to them found the information provided useful: Bridge (2000: 546), although it should be noted that there are concerns that victims of domestic violence may be reluctant to describe themselves as such: Richards and Stark (2000).

¹¹⁶ Mackay (2000).

¹¹⁷ FLA 1996, s 8(2). There were exceptional circumstances where this requirement could be waived.

off' period, a time for the parties to consider reconciliation and the offer of marriage guidance facilities. These facilities were to be available free of charge throughout the period of 'reflection and consideration'.

Initial research from the pilot studies indicated that this aim was not being achieved. In fact, there was some evidence that the information meetings inclined those who were uncertain about their marriage towards divorce. Further, the information meetings were usually attended by only one of the parties (the one seeking the divorce), in which case talking about reconciliation was of little effect.¹¹⁸

D The length of the process

As noted earlier, under the present law (under the Matrimonial Causes Act 1973) a divorce could take four months where reliance is placed on a fault-based ground. Under the Family Law Act 1996 the length of the proposed divorce procedure was a minimum of 12 months and 14 days. Where the divorcing spouses have children under 16¹¹⁹ or one of the parties requests extra time for consideration,¹²⁰ the minimum could¹²¹ increase to 18 months and 14 days. Cretney had doubts about whether people will spend the period of reflection and consideration reflecting and considering: 'May not some of those concerned prefer to spend their time in the far more pleasurable activity of conceiving – necessarily illegitimate – babies?'¹²²

E Counselling and mediation

When the Family Law Act 1996 was passed, the Government intended mediation to be at the heart of the new divorce law. For example, at the information meeting the parties were to be informed of the availability of mediation and they were to be encouraged to use it during the period of reflection and consideration.¹²³ There were to be special provisions to encourage those reliant on public funding to use mediation. The pilot studies found that mediation was not popular. Only 7 per cent of those attending the information meetings wanted to use mediation and 39 per cent said that they were *more* likely to see a solicitor than they had been before the meeting.¹²⁴ This was said by the Lord Chancellor to be a disappointment.¹²⁵

F Divorce order to be granted only once the financial orders and arrangements for children are made

Under the procedure as set out in the Family Law Act 1996¹²⁶ the divorce order could normally only be granted when parties had made arrangements for the future.¹²⁷ This included arrangements concerning financial matters and their children. This marks a crucial difference between the law under the Family Law Act 1996 and that under the Matrimonial Causes Act

¹¹⁸ Walker (2001a).

¹¹⁹ FLA 1996, s 7(11).

¹²⁰ FLA 1996, s 7(10), (13).

¹²¹ The extensions to the period of reflection would not have applied automatically, for example, if the delay in making the divorce order would be significantly detrimental to the welfare of any child.

¹²² Cretney (1996b).

¹²³ Others must fund mediation themselves.

¹²⁴ Walker (2004a).

¹²⁵ Whether these findings should be regarded as a failure is discussed in Walker (2000b).

¹²⁶ FLA 1996, s 5.

¹²⁷ FLA 1996, s 9. There were various exceptional circumstances in which this requirement need not be complied with, which are set out in FLA 1996, Sch 1.

1973. Under the Family Law Act, in most cases, the divorce would only be granted if the parties had reached an agreement over the financial matters. However, under the Matrimonial Causes Act it is perfectly possible (and quite common) to obtain a divorce and only then turn to consider the financial orders that should be made. It is likely that in this regard, in any future reform, the Family Law Act's proposals will be adopted.

G Protecting children's interests during divorce

The Family Law Act 1996 had a number of other special provisions seeking to promote the interests of children:

1. There was no general duty on the courts to consider the interests of the children during the divorce procedure. Under s 11 the court had a duty to pay particular regard to the wishes and feelings of children. However, it seems the section only operated where the court was considering whether or not to permit a divorce if the arrangements concerning the children were not yet resolved, and was not of wider application.
2. Under s 10 an order preventing divorce could be made if a divorce would cause a child substantial financial or other hardship and it would thus be wrong to dissolve the marriage. However, there was no wider power to prevent divorce in order to promote the interests of any child.
3. The information meetings were to stress to the attendees the importance of promoting any child's welfare and might offer advice on how to help children through the divorce. Information about counsellors trained to work with children was to be offered (s 8(9)(b)). The research on pilot study information meetings indicated that the information on children was useful, although parents 'found it difficult to bridge the gap between knowing what to do to help their children and actually doing it'.¹²⁸
4. The Lord Chancellor was empowered to make rules requiring lawyers to inform their clients that children's wishes, feelings and welfare should be considered.
5. There were duties on state-funded mediators: they were required 'to have arrangements designed to ensure that the parties are encouraged to consider the wishes and feelings of each child'; and to consider whether the children should attend the mediation sessions (s 27(8)).

H 'Quickie divorce'

There was concern that some of the media, having picked up on the fact that under the proposals proof of fault would no longer be required, had presented the proposed law as a 'quick and easy' divorce. In fact, as noted above, the procedure under the 1996 Act was to take much longer in most cases than the present law under the Matrimonial Causes Act 1973. The worry was that such misinformed perceptions might undermine marriage. Further, those who seek a divorce might be disappointed to find that a divorce could actually take over one and a half years. Supporters of the present law argue that the Matrimonial Causes Act 1973 presents a clever fiction: it appears very difficult to divorce, but in fact it can be quick and easy to do so.¹²⁹ Indeed, Cretney has argued that the Government should have been more open about this effect of its proposals: 'It is in concealing the reality – that divorce is to be available at the

¹²⁸ Walker (2001b: 4).

¹²⁹ Deech (1990).

unilateral wish of either party, behind a comforting façade of consideration, reflection, reconciliation and counselling – that the government’s proposals are most vulnerable to the charge of perpetuating the tradition of hypocrisy and humbug.¹³⁰ In a more positive light, John Eekelaar has called the proposal that either party be permitted to bring the marriage to an end ‘a radical empowerment of married people’.¹³¹

I Idealisation of divorce

The Family Law Act 1996 can be criticised for presenting an idealised vision of divorce. It assumes that a fair number of couples will be reconciled; that people will wish to sit in a room together and mediate their dispute; and that time will be spent reflecting on and considering their relationship and the future. The pilot studies show that such aspirations for divorcing couples may be unrealistic. The law may hope that divorcing couples will behave in a ‘sensible’ way, but such wishes may ignore the psychological effects of divorce. The law has only limited ability to influence social behaviour.¹³² As Hasson puts it, ‘marital breakdown is a fact of life to be dealt with, rather than something to be corrected or discouraged’.¹³³

Reece has interpreted the Family Law Act as an attempt to encourage people to divorce responsibly.¹³⁴ It was recognising that people’s relationships are based on choice; you cannot force someone to be happily married. However, when people make the momentous choice of divorce the law should ensure that that decision is taken with proper care and due consideration of the consequences. The information meetings and times for reflection and consideration were an attempt to do this. Other commentators have interpreted these periods of reflection as a punishment (a ‘time out’) imposed by the state on divorcing couples.¹³⁵ John Eekelaar has written of the way the Act sought ‘to enhance people’s freedom to pursue goals of their own choosing, but to exercise state power surreptitiously by influencing them to choose goals which the state believes to be in their interests, or those of the community’.¹³⁶ If that was its goal, it failed.

7 Reforming the divorce law: the Family Justice Review

The Family Justice Review proposed reform of the divorce procedure and the Government has indicated an intention to adopt the proposed reforms to the law on divorce, although it seems not imminently.¹³⁷ The proposal is that those seeking divorce will go to an online ‘information hub’ where they will access a ‘divorce portal’. The computer system will prompt them to consider financial, children and religious issues about the divorce. There will be an online form to apply for a divorce which will be sent to a centralised court processing centre, with a fee. A court officer would check the application was correct and serve the other party. If the other party did not contest the case, the court officer (*not* a judge) would issue a decree nisi and six weeks later the applicant could apply for a decree absolute. If the other party did object, a judge would consider the case and decide whether to make a decree nisi.¹³⁸

¹³⁰ Cretney (1996b: 52).

¹³¹ Eekelaar (2006b: 21).

¹³² James (2002).

¹³³ Hasson (2003: 362).

¹³⁴ Reece (2003).

¹³⁵ Reece (2000).

¹³⁶ Eekelaar (2006b: 21).

¹³⁷ Ministry of Justice (2012a).

¹³⁸ Norgrove (2012: Appendix H).

It is important to notice that these are not proposals to change the grounds for divorce, but to change the process. The major features of the process are that the internet will play a major role, bypassing the need for lawyers; and that judges will not be involved save in the rare cases of defended divorce. The reform is primarily motivated by a desire to save court time and money: Perhaps 10,000 judicial hours will be saved.¹³⁹ The Review explains:

There is scope to increase the use of administrators in the courts to reduce burdens on judges and create a more streamlined process in the 98% of cases where divorce is uncontested. The current process requires judges to spend time in effect to do no more than check that forms have been filled in correctly, with accurate names and dates. This is a waste. To change it would not make any difference to the ease or difficulty of obtaining a divorce. It would just make more judge time available for more important things.¹⁴⁰

It should be noticed that now that (according to the President of the Family Division) defended divorce is 'virtually unheard of'¹⁴¹ and so nearly all divorces will become an administrative procedure. Is there anything to be said against these 'divorce by internet' proposals?

I have expressed some concerns.¹⁴² Divorce law is dealing with people who are often feeling chaotic emotions and powerful passions. We should acknowledge the feelings of 'damage, death, failure, guilt' and anger that divorce typically creates.¹⁴³ Does the completion of an internet form assessed by an administrator demonstrate the solemnity that should mark the end of a marriage? Is divorce to be achieved with a form which will presumably be slightly shorter than that required for a credit card, somehow undignified? Does it fail to encourage the parties to take the decision to divorce seriously or fail to show this is an act which is significant for the state?¹⁴⁴ Perhaps this is all rather old-fashioned. The internet is used for all kinds of important transactions and requiring paper forms is outdated. Further, even accepting solemnity should mark a divorce, need this be done in expensive courtrooms or by judges? Maybe religious or secular services could mark the passing of the marriage if that is what people need.

8 Proposed reform: No Fault Divorce Bill 2015

In 2015 a No Fault Divorce Bill was proposed as a private member's bill. It proposed adding a sixth fact to the current law, namely the couple agreed their marriage had broken down irretrievably with, for that ground, a 12-month waiting period between the granting of the decree nisi and decree absolute. The Bill was not successful.

9 Some general issues on divorce

Reform of the divorce law is clearly back on the agenda. This section will now consider some key issues which will need to be taken into account when deciding how the law should be reformed.

¹³⁹ Ibid, p. 180.

¹⁴⁰ Norgrove (2012: para 4.166).

¹⁴¹ Wall (2012).

¹⁴² Herring (2012a).

¹⁴³ Ibid, p. 154.

¹⁴⁴ Deech (2009b).

A Individualisation of divorce

In the United States in particular there have been moves towards offering people a range of marriages from which they can choose the model which suits them best.¹⁴⁵ For example, a couple could choose a marriage that could end in divorce whenever either party chooses, in other words divorce on demand. However, if they wished, the parties could select a divorce clause stating that the marriage could only come to an end if adultery was proved, or maybe even that the marriage could never be ended.¹⁴⁶ These are sometimes known as 'covenant marriages'. The main argument in favour of this approach is that it provides freedom of choice, that parties should be able to choose to limit their freedom to divorce in order to give deeper commitment to the marriage. The argument can be made that in some marriages sacrifices need to be made early on in the marriage, for the long-term benefits of a committed relationship. For a party to leave after the other party has made sacrifices and before the benefits arrive is unjust. For example, a wife may decide to give up work, and concentrate on caring for the children and making the home. From her perspective, entering into a marriage where her husband is bound to stay with her for at least 10 years may be a more attractive option than a marriage where he could leave at any time. Opponents of this approach argue that it would be very difficult to enforce. In the above example, preventing the husband from divorcing for 10 years will not keep him from simply leaving his wife. Alternatively, the proposed clause could be redefined so that if either party ceases to cohabit with the other there would be a financial penalty. This could create problems of its own; in particular, there are concerns that it could lead to domestic violence. Further, the financial penalty might work against the interests of a poorer spouse who would be unable to make the payments necessary if she or he wished to separate.

Reece¹⁴⁷ sees a post-liberal approach to divorce in the Family Law Act 1996: that divorce should be an exercise of choice, but that this choice should be a carefully thought out and considered one. She explains: 'For the post-liberal, it is no longer sufficient to establish whether the subject wants to divorce: instead, we need to discover whether divorce would help him or her to realise himself or herself, or whether remaining married would more authentically reflect him or her.'

B No-fault versus fault-based divorce

There has been much debate over whether there should be a fault- or no-fault-based divorce system. In fact, this rather simplifies the options available to the law. The forms of divorce law most discussed have been the following:

1. **A pure fault-based system.** This system allows divorce only if one party proves that the other party has wronged them in a particular way. The most common faults cited are that one party has committed adultery, or otherwise behaved in an unacceptable way.
2. **Requiring proof of irretrievable breakdown.** Here divorce would be granted if there is proof that the marriage has broken down and cannot be saved.
3. **Divorce over a period of time.** Divorce would be available after the spouses had waited a period of time following an indication that they wished to separate.

¹⁴⁵ Shaw Spaht (2002). The take-up rate for the 'covenant marriage' (with fault-based divorce) has been low (Ellman (2000b)).

¹⁴⁶ See discussion in Brinig (2000).

¹⁴⁷ Reece (2003: 18).

4. **Divorce by agreement.** If both parties agreed to a divorce, that would be available without proof of any fault on either side.
5. **Divorce on demand.** In this form divorce is granted at the request of one of the parties. There is no need to prove fault or irretrievable breakdown.

In modern times models 1 and 2 have few supporters,¹⁴⁸ mostly on the basis that it is impossible for a court to ascertain whether there is irretrievable breakdown or who was at fault in causing the end of the marriage.¹⁴⁹ Around the world, legal systems have been moving towards a no-fault divorce procedure. Thorpe LJ¹⁵⁰ argues that no-fault divorce is 'the highest legislative priority for the family justice system'. Despite the wide support in academic circles for no-fault divorce, the arguments are not all one way and it is useful to consider the advantages and disadvantages of both fault and no-fault systems.

DEBATE

Should divorce or dissolution be fault based?

Arguments in favour of fault-based divorce

(a) Psychology

Richards argues that although the law may seek to discourage parties from asking who is to blame for the ending of the marriage, this is unrealistic:

The coming of legal 'no fault' divorce has perhaps allowed us to believe that couples separate with a similar detached view of divorce. They don't. Blame, accusation, and strong feelings of injustice are the norm at divorce and they get in the way of couples making reasonable arrangements about children and money. Neither legal fiction of the lack of fault or imposed orders do anything to relieve the situation, rather the reverse.¹⁵¹

A no-fault system can therefore be criticised on the basis that it does not deal with the issues which really concern the parties. Indeed, in one study of divorcing couples' attitudes to divorce the law's failure to address who was at fault in causing the breakdown of the marriage was cited as a major flaw.¹⁵² To some divorcing spouses justice is served only if the court declares that the other party was the cause of the marriage breakdown.¹⁵³ Psychologists argue that blame is a psychologically crucial part of the divorce process,¹⁵⁴ and that making allegations of fault can even be cathartic.¹⁵⁵ As one experienced mediator put it, for most of his clients: 'their marriage has not died, it has been killed'.¹⁵⁶ It has been suggested that ignoring fault in the divorce petition means that proceedings over divorce or money become more acrimonious.¹⁵⁷

¹⁴⁸ But see Hood (2009).

¹⁴⁹ Bainham (2001a) discusses the role fault plays in family law generally.

¹⁵⁰ Thorpe LJ (2000).

¹⁵¹ Richards (1994: 249).

¹⁵² Smart *et al.* (2005) emphasises how important fault is to those actually divorcing.

¹⁵³ Davis, Cretney and Collins (1994).

¹⁵⁴ Day Sclater and Piper (1999).

¹⁵⁵ Hood (2009).

¹⁵⁶ Richards (2001).

¹⁵⁷ Deech (2009b).

While these arguments reveal the importance to divorcing parties of finding fault, some argue that it is not the place of the courtroom to explore these issues, especially at the taxpayer's expense.¹⁵⁸ Perhaps one benefit of mediation is that it can do something to deal with the parties' allegations of fault in a private setting, although most mediators try to persuade clients to focus on the future rather than the past.

(b) Justice

Linked to the argument above is a further point that it is not only the parties' psychological needs that are relevant here, but that it is the law's responsibility to uphold society's values and to discourage conduct which damages society. Where one spouse is to blame for ending the marriage and thereby harming the children, the law should declare the wrongdoing and, if appropriate, punish it. However, others reply that the law cannot prevent marital misconduct or even be responsible for deciding who has caused the end of a relationship.¹⁵⁹ For example, Bainham¹⁶⁰ has argued that the party who commits adultery may not be the one who is at fault, because they may have been driven to do so as a result of the coldness of their spouse. This is controversial but demonstrates that it is far from easy to determine who is at fault

(c) Marriage

It can be argued that having no-fault divorce undermines marriage: no-fault divorce permits a spouse to end a marriage whenever she or he wishes and this undermines the ideal of marriage being a life-long obligation. As Baroness Young has argued:

The message of no fault is clear. It is that breaking marriage vows, breaking a civil contract, does not matter. It undermines individual responsibility. It is an attack upon decent behaviour and fidelity. It violates common sense and creates injustice for anyone who believes in guilt and innocence.¹⁶¹

Sir Paul Coleridge, a Family Division judge, has complained that divorce is easier to get than a driving licence.¹⁶² Others reply that if a couple are staying together only because of what the law says, their marriage is worth little; what makes marriages strong or weak is the love and commitment of the spouses, and not the legal regulation. As already noted, there is much debate over whether the law on divorce can in fact affect the rate of marital breakdown.¹⁶³

Some economists have entered the debate to argue in favour of using divorce to maintain the stability of marriage. Rowthorn¹⁶⁴ argues that a no-fault divorce system undermines the notion of commitment that is key to the nature of marriage. It provides men, in particular, the opportunity to leave the marriage when it is opportune for them, leaving women severely disadvantaged. Cohen puts the argument this way:

At the time of formation, the marriage contract promises gains to both parties. Yet the period of time over which these gains are realized is not symmetrical. As a rule, men obtaining early in the relationship, and women late. This follows from women's relative loss in value. Young women are valued as mates by both old and young men. When they choose to marry a particular man they give up all their other alternatives . . . The creation of this long-term imbalance provides the opportunity for strategic behaviour whereby one of the parties, generally the man, will

¹⁵⁸ Rasmusen (2002) surveys the range of legal remedies there may be to penalise adultery, apart from denying divorce.

¹⁵⁹ O'Donovan (1993).

¹⁶⁰ Bainham (1995b).

¹⁶¹ Baroness Young, Hansard (HL) Vol. 569, col. 1638.

¹⁶² Quoted Whitehead (2011).

¹⁶³ Ellman (2000b).

¹⁶⁴ Rowthorn (1999).

perform his obligations under the marriage contract only so long as he is receiving a net positive marginal benefit and will breach the contract unless otherwise constrained once the marginal benefit falls below his opportunity cost.¹⁶⁵

Scott is sympathetic to the aims of those who seek a fault-based system of divorce. She argues that the law should impose restrictions on exiting marriage as these will 'discourage each spouse from pursuing transitory preferences that are inconsistent with the couple's self-defined long-term interest' and therefore 'each spouse, knowing the other's commitment is enforceable, receives assurance that his or her investment in the relationship will be protected'.¹⁶⁶ However, Scott argues that fault is not the most effective way of doing this and instead suggests three other ways of providing a disincentive to divorce: ¹⁶⁷ mandatory waiting periods before divorce; mandatory marital counselling before a divorce petition can be presented; and that on divorce most marital property be held on trust to provide for the children. Reece considers a similar argument from a different perspective. She suggests that it could be argued that no-fault divorce denies the parties the opportunity of engaging in a long-term committed project, fully immersing themselves in the marriage, confident that the other party cannot (without good reason) withdraw from the marriage.¹⁶⁸

Arguments in favour of no-fault systems

(a) 'Empty shell'

It has been maintained that if one spouse wishes to divorce there is little value in forcing the couple to stay married. There is no point in keeping 'empty shell' marriages alive. Making divorce available only on proof of fault does not lead to happier marriages, but to parties separating, although legally married, or to cantankerous divorce. After all 'no statute, no matter how carefully and cleverly drafted, can make two people love each other.'¹⁶⁹ A recent poll suggested that only 17 per cent of the public thought a couple should stay together 'for the sake of the children'.¹⁷⁰ Evidence from psychologists suggests children living in unhappy homes do worse on a number of levels than children in separated homes.¹⁷¹

(b) The 'right to divorce'

Some argue that it is now a human right to divorce.¹⁷² Forcing someone to remain married against their wishes is an infringement of their right to marry or right to family life. Generally that claim is taken to be that there is a duty on the state to provide an effective law on divorce, rather than the other spouse has a duty to permit a divorce. However, the European Court of Human Rights has made it clear that the European Convention does not include a right to divorce.¹⁷³

(c) Bitterness

A common complaint is that a fault-based system promotes bitterness. By focusing the spouses' minds on the past and the unhappiness of the marriage and making these public, it is argued that fault-based systems exacerbate the anger and frustration they feel towards each other.

¹⁶⁵ Cohen (2002: 25).

¹⁶⁶ Scott (2003: 162).

¹⁶⁷ Ellman (2000b) argues that such waiting periods do more harm than good.

¹⁶⁸ Reece (2003: 121).

¹⁶⁹ Lord Chancellor's Department (1995: para 3).

¹⁷⁰ Resolution (2010).

¹⁷¹ See Chapter 10 for further discussion.

¹⁷² Rivlini (2013).

¹⁷³ *Johnston v Ireland* (1986) 9 EHRR 203.

(d) The impossibility of allocating blame

We have already referred to this argument – that the law cannot really determine who was truly to blame for the break-up. There are practical difficulties in discovering the facts of the case, particularly as the husband and wife are often the only two witnesses. But even if all the facts were known, the court may still not be in a position to allocate blame. Bainham suggests that many people would take the view that for ‘a very large number of people, the obligation of lifelong fidelity to one partner was at best an impossible dream’.¹⁷⁴

Questions

1. *If there is a psychological imperative for spouses to blame each other on divorce, what is the best way to channel those feelings?*
2. *What would be wrong with having a system where simply filling in a form led to a divorce? Is that, in fact, much different from what we have at the moment?*
3. *Is there a good reason for treating marriages differently from other contracts, where we do seek to establish fault?*
4. *Do you agree that divorce is a disaster for society and the individuals? What can be done about it?*

Further reading

Read **Eekelaar** (1999) for a discussion of the attempts to control people during the divorce process. Read **Reece** (2003) for a consideration of the 1996 Family Law Act reforms.

C Length of time for the divorce process

The length of time a divorce should take is inherently problematic. On the one hand, there is concern that if the process moves too quickly then people who are having difficulties with their marriage and consult a solicitor for advice might find themselves divorced before they have had time to think about whether divorce is appropriate. Indeed, under the present law some people have complained that once they consulted a solicitor the matter was taken out of their hands and they lost control of what was happening. On the other hand, the longer the divorce takes, the greater the risk of increased domestic violence and bitterness, especially if the couple are not able to fund two homes until the financial settlement is made.

D Reconciliation and divorce

We have already discussed the difficulties of using the law on divorce to encourage reconciliation. Attempting to save a marriage once one of the parties has taken the drastic step appears to be far too late. As indicated by the Lord Chancellor, in future, attempts to save marriages in trouble will primarily focus on the period of time before the parties seek to divorce.¹⁷⁵ Indeed, perhaps the possibility of requiring couples who are planning to marry to receive advice and counselling may be investigated.¹⁷⁶

¹⁷⁴ Bainham (2002c: 177).

¹⁷⁵ Lord Chancellor's Department (2001).

¹⁷⁶ Barton (2003).

E Religion and divorce

Problems arise when the requirements for divorce in a religion do not match the legal requirements. For example, as we have seen, under Jewish religious law unless the former husband provides what is known as a *get*, the wife is not permitted to remarry.¹⁷⁷ She can remarry under secular law, but not under religious law.¹⁷⁸ At first sight this appears to be solely a religious matter and it would be inappropriate for the law to intervene. But Hamilton has suggested four reasons why the state might want to intervene in these types of situations:¹⁷⁹

1. To promote remarriage. Marriage and family are seen as the framework of society, and the state should have the power to intervene to permit remarriage and to require a religion to recognise the marriage.
2. The right to marry under the European Convention¹⁸⁰ could be said to justify intervention by the law to recognise remarriage.
3. General perceptions of fairness and equality require that the courts and legislature intervene where a religious divorce is unjustly withheld.
4. An unscrupulous husband may use his control of the religious divorce to get a more favourable settlement.

However, there are serious problems for legal intervention in this area. The main one is that under Jewish law the *get* must be provided voluntarily, and so a court order to provide a *get* might be counterproductive.¹⁸¹ So far the courts have been very unwilling to intervene where a *get* has not been provided.¹⁸²

The Divorce (Religious Marriages) Act 2002 enables the courts to refuse to make a decree of divorce absolute unless a declaration has been made by both parties that they have taken such steps as are required to dissolve the marriage in religious terms.¹⁸³ This does not resolve all the problems because it does not help in situations where the wife seeks a divorce but the husband refuses to grant it, or in cases where the couple have already divorced. There one option may be to require a husband to pay a further lump sum if he fails to comply with the religious aspects of the divorce.¹⁸⁴

F Children and divorce

There has been much concern expressed that discussion of reform of divorce does not take sufficient account of the feelings and wishes of children. Day Sclater has summarised the research on children and divorce in this way: 'they want their views to be taken account of; they do not want to choose between parents, neither do they want to feel responsible for post-divorce arrangements for their care, but they do want to be involved in the changes that

¹⁷⁷ She will then be an *agunah* (a 'chained wife').

¹⁷⁸ There can be similar problems under Islamic law.

¹⁷⁹ Hamilton (1995: ch 3).

¹⁸⁰ Article 12.

¹⁸¹ Schuz (1996).

¹⁸² *Brett v Brett* [1969] 1 All ER 1007.

¹⁸³ See Morris (2005) for a useful summary of the religious requirement for divorce in a number of jurisdictions. The Law Society (2006) encourages solicitors to be aware of any religious issues when advising clients.

¹⁸⁴ *A v T (Ancillary Relief: Cultural Factors)* [2004] 1 FLR 977.

affect their lives, and to have a chance to contribute to the decision-making process¹⁸⁵. One survey found that only 34 per cent of parents in the sample had discussed the arrangements concerning children after divorce with their children.¹⁸⁶ This alone lends weight to a requirement that the court should consider the interests of children.¹⁸⁷ To what extent the law can or should seek to involve children in the divorce and court proceedings will be discussed further in Chapter 10.

10 Separation orders

The effect of a separation order is that, although the parties remain married, there is no legal obligation to cohabit. The significance of the order lies in the fact that it enables the court to make orders relating to financial provision for spouses.¹⁸⁸ A separation order is likely to be made where the parties have religious objections to divorce but have decided to live separately, or where there are financial benefits to the parties if they remain married (e.g. a widow's pension that will only be payable to a woman who has remained married to her husband).

11 Death and marriage

A marriage comes to an end on the death of one of the parties. Usually there will be no doubt that a person has died.¹⁸⁹ However, there can be situations where, although it is suspected that someone has died, it cannot be proved: for example, if a husband fails to return home from work and his car is found abandoned near a cliff but his body is never found. This kind of situation puts the wife in a difficult position. Is she free to remarry or is she prevented from remarrying until she can prove that her husband has died?

There are two circumstances in which a person is entitled to assume that his or her spouse has died. The first is based on the seven-year ground. To rely on the seven-year ground it is necessary to show that there is no affirmative evidence that the person was alive for the seven years or more since their disappearance, and:

- that there are persons who would be likely to have heard from the spouse during that period;
- that those persons have not heard from him or her; and
- all appropriate enquiries have been made.¹⁹⁰

This will give rise to a presumption of death, which could be rebutted if other evidence arises that shows that the spouse might still be alive. In *Thompson v Thompson*¹⁹¹ it was stressed that

¹⁸⁵ Day Sclater (2000: 80).

¹⁸⁶ Murch, Douglas, Scanlan *et al.* (1999).

¹⁸⁷ Lowe and Murch (2003).

¹⁸⁸ Under FLA 1996, s 21, if one spouse dies intestate then the property shall devolve as if the other spouse had died prior to the intestacy.

¹⁸⁹ Normally, death and marriage are clearly evidenced by the registers of death and marriage.

¹⁹⁰ MCA 1973, *Chard v Chard*, [1956] P 259.

¹⁹¹ [1956] P 414.

'pure speculation' that the spouse may be alive is insufficient to defeat the presumption of death.

The second ground for presuming death under s 19 of the Matrimonial Causes Act 1973 is:

Any married person who alleges that reasonable grounds exist for supposing that the other party to the marriage is dead may present a petition to the court to have it presumed that the other party is dead and to have the marriage dissolved, and the court may, if satisfied that such reasonable grounds exist, grant a decree of presumption of death and dissolution of marriage.¹⁹²

There is no need to show that seven years have passed since the spouse was last seen, but there must be convincing circumstantial evidence of death. It may be that the discovery of the car by the cliff in the example mentioned above would be insufficient on its own. In *Chard v Chard*,¹⁹³ where there was no reason why anyone would have heard from the missing wife, the court refused to presume her death even some 16 years after the wife was last seen. She had broken contact with her family and her husband, but it could not be presumed from the fact that she had not contacted anyone that she was dead.

12 Dissolving a civil partnership

Learning objective 6

Examine the law on dissolution of civil partnerships

When a civil partnership comes to an end the parties can seek to dissolve it. The law on dissolution of civil partnerships is almost exactly the same as divorce for married couples. Just like divorce, the ground for dissolution is that the civil partnership has broken

down irretrievably.¹⁹⁴ This can only be proved by establishing one of four facts. These match four of the five facts for divorce: 'unreasonable behaviour'; desertion; two-year separation with consent; five-year separation.¹⁹⁵ These grounds are explained above. Notably absent from the list is the fact of adultery. The explanation for this was that the legal definition of adultery is in terms of heterosexual intercourse and it would not transmit to the same-sex context. This is not very convincing; it would not seem to be beyond the wit of man to produce a definition of adultery in the same-sex context. Perhaps it indicates a squeamishness about same-sex relations which reveals a lack of acceptance of the validity of same-sex behaviour. Nevertheless, if adultery has taken place, the injured partner could no doubt rely on the behaviour fact to obtain a dissolution. There is, therefore, no practical consequence that flows from this distinction between divorce and dissolution. Although Rosemary Auchmuty¹⁹⁶ in her study did find evidence that the experience of dissolution was different from heterosexual divorce. Many couples who had entered civil partnership felt they were at the vanguard of a new and politically significant movement. Dissolution was therefore a particular disappointment. All the more so when it was felt the legal intervention at the end of their relationship did more harm than good.

¹⁹² MCA 1973, *Chard v Chard*, [1956] P 259.

¹⁹³ [1956] P 259.

¹⁹⁴ Civil Partnership Act 2004 (CPA 2004), s 44(1).

¹⁹⁵ The CPA 2004 has provisions which match those in the MCA 1973 to deal with periods of attempted reconciliation which will not (if less than six months) interrupt the time periods mentioned in the facts.

¹⁹⁶ Auchmuty (2016).

13 Conclusion

The present law on divorce is in a strange state. Few people find the current law satisfactory. The proposed reforms through the Family Law Act 1996 have been abandoned. Reforms were proposed in the Family Justice Review and given their potential to save money, they seem likely to be implemented. We have focused here on the complexity of the role of the state during divorce. On the one hand, there are concerns that if divorce is 'too easy' this may be thought to destabilise marriage. On the other hand, any attempt to make divorce available only to those who can prove that their marriage has broken down may involve the parties in costly and bitter disputes over whether the marriage can be saved. A further difficulty for the law here is how to channel the strong feelings often produced during divorce through a legal system traditionally designed to be governed by rational thought rather than wild emotion. As Eekelaar suggests:

We may, however, become uncomfortable when the government intervenes at these points in the institutional processes of marriage and divorce and attempts to impose its own vision of how people should be behaving at these times. At best it risks being made to appear foolish and ineffectual. Worse it can appear heavy-handed, domineering and insensitive . . .¹⁹⁷

The law's ambivalence may reflect changing social attitudes. The days when divorce was seen as shameful are largely passed. Divorce is generally seen as sad, but not necessarily indicating a moral failure. However, there is a backlash in some quarters against this. Sir Edward Leigh, a conservative politician, has argued that society needs to be judgmental of parents who do not stay together.¹⁹⁸ Sir Paul Coleridge, a former judge, has created the Marriage Foundation, a group which argues that divorce and relationship breakdown is associated with a host of harmful effects on society. However, the issue is complex. Divorce and relationship breakdown may cause harms, but whether they are any worse than unhappy couples staying together is clearly debatable. For some, divorce is a tragedy, but for others it can be the start of a happy new future.

Perhaps the last word should rest with children. A survey of under-10s said that if they could invent a new rule it would be to ban divorce. Parents arguing was the second worst thing in the world; after being fat!¹⁹⁹

Further reading

Auchmuty, R. (2016) 'The experience of civil partnership dissolution: not "just like divorce"', *Journal of Social Welfare and Family Law*, forthcoming.

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Deech, R. (2009b) 'Divorce – a disaster?', *Family Law* 39: 1048.

Eekelaar, J. (1991a) *Regulating Divorce*, Oxford: Clarendon Press.

¹⁹⁷ Eekelaar (1999).

¹⁹⁸ Quoted in Holehouse (2014).

¹⁹⁹ Quoted in Deech (2009b).

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- Rivlini, R.** (2013) 'The right to divorce: its direction and why it matters', *International Journal of Jurisprudence of the Family* 4: 133.

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5

Family property

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain who owns personal property in the family setting
2. Examine the law on maintenance during marriage
3. Evaluate the law on resulting and constructive trusts of family homes
4. Summarise the law on proprietary estoppel
5. Debate the arguments over the law on family property

1 Introduction

In this chapter we will consider partners' financial position during their relationship, whether they are spouses, civil partners or unmarried couples. In Chapter 6 we will consider the power of the courts to redistribute the property of spouses and civil partners on divorce. One of the key themes in this area is whether it is appropriate to use normal rules of property law to deal with family property. Traditionally, property law has been based on the assumption that parties to a property dispute are strangers and it emphasises the rights of individuals to control their property and to protect their rights from interference from others. However, family property is used by people in a relationship. Many couples regard their property as communal, for the use of the family as a group. This has led to a tension in using the more individualistic property rules in a family setting. Lorna Fox has warned that there are dangers in seeing property as owned by the family as a unit, because that would weaken the interests of each individual member of the family.¹ On the other hand, emphasising the formal property rights of individuals can mean that technicalities of property law dominate, which may not reflect the real intentions of the parties or produce fairness.

¹ Fox (2005).

2 The reality of family finances

As shall be seen, the law does not normally intervene in the way in which the family distributes its money among its members. It is therefore important to understand how families deal with their money and property in the absence of formal legal regulation.

One notable feature of the latter half of the twentieth century was the increasing number of women in paid employment. Now, 69.8 per cent of working age women are in employment.² However, it is important to look behind that headline figure. While among employed men many more were employed full time than part time (87 per cent) among employed women around 58 per cent were working full time. So although rates of employment are equalising, women are often being employed in part-time work. However, we are certainly moving away from the traditional image of the 'wife who stays at home' and 'the husband who goes out to work'. Indeed, it has been argued that the lifestyle of many families can only be maintained by having two wage earners. This has led Patricia Morgan to maintain that some couples cannot afford a 'traditional marriage' and married couples relying on one income cannot afford to have children.³

Despite the widespread existence of families with dual earners, there is still a common presumption that men are the main breadwinners, and this presumption has a powerful effect. For example, even if both people are working, research indicates that if the child falls ill it is far more often the mother rather than the father who takes time off work to care for the child.⁴

Many more women than men fall into the category of homemakers. Homemakers are largely unpaid and have no access to unemployment or sickness benefits.⁵ Further, in social terms the work is undervalued and lacks prestige.

Pahl has identified four systems of money management adopted in families:

1. *Wife management of the whole wage system.* The wife is responsible for managing the finances of the household and is responsible for all expenditure, except for the personal spending of the husband.
2. *Allowance system.* Typically, this involves the husband giving the wife a set amount every week or month. She is responsible for paying for specific items of household expenditure and the rest of the money remains under the control of the husband.
3. *Pooling system or shared management.* Here the couple have a joint account or common kitty into which both pay in and from which both draw out.
4. *Independent management system.* Here each spouse has his or her own separate fund and there is no mixing of funds. They reach an agreement over who pays which bills.

Pahl argues that the system adopted can have important consequences on the way money is spent. She explains:

Where wives control finances a higher proportion of household income is likely to be spent on food and day-to-day living expenses than is the case where husbands control finances; additional income brought into the household by the wife is more likely to be spent on the food than additional money earned by the husband . . . husbands are more likely to spend more on leisure than wives.⁶

² Office for National Statistics (2016e).

³ Morgan (1999b: 82).

⁴ Harkness (2005).

⁵ Employment Rights Act 1996, s 161.

⁶ Pahl (1989: 151–2).

In her more recent work Pahl argues that there is increasing individualisation of the control of money within couples, with each to some extent retaining control over his or her own income and being responsible for 'his or her' expenses. She warns that this has the danger of impoverishing women, especially where women earn less than men, or where women are seen as being responsible for child-care expenses.⁷ This view has been backed up by a study of cohabiting couples which found that women often did less well than men out of the way the couple arranged their finances.⁸ Interestingly same-sex couples appear more individualised in their approach to finance.⁹

3 The ownership of family property: general theory

Who owns the family's property?¹⁰ Of course, most of the time there is no need for members of a family to know who in law owns a particular piece of family property. In most families 'Who owns the television?' is not a question that is usually asked. (Ownership of the remote control is, of course, another question!) There are, however, a number of reasons why it can be important to know who owns a certain piece of property:

1. If the couple are unmarried, it is crucial to know who owns what because there is no power in the court to redistribute property if the relationship breaks down. Therefore, when the couple separate, each person is entitled to take whatever property is theirs.
2. If someone becomes bankrupt, all of their property falls into the hands of the trustee in bankruptcy. The property of the bankrupt's spouse or partner does not. It is therefore necessary to know whether certain property belongs to the bankrupt person or their partner.
3. If a third party wishes to purchase property, it may be important to know who is the owner. Particularly when a house is to be sold, it is necessary to know who the owner of the house is so that he or she can sign the appropriate paperwork. There have been cases where husbands have sold the family home behind their wives' backs. In such cases it is important to know whether the wife had an interest in the property and, if so, whether the purchaser is bound by her interest.
4. On the death of a family member, it is important to know who owns what. So, if a wife left all her books to her brother in her will, it would be important to know which books were hers and which books belonged to her husband.
5. Ownership of family property has important symbolic power. At one time the husband owned all of his wife's property. This reflected the fact that he was regarded as in control of all of the family's affairs. It is arguable that if the law were to state that family property is jointly owned, this would reflect a principle of equality between spouses in marriage.

Law in this area should seek to pursue three particular aims. First, the law should produce as high a degree of certainty as possible. Secondly, the law should reflect the wishes and

⁷ Pahl (2004 and 2005).

⁸ Vogler (2009).

⁹ Leckey (2014).

¹⁰ Under s 17 of the Married Women's Property Act 1882 an application can be made to a court for a declaration of ownership if the couple are married.

expectations of most couples. Thirdly, the law should be practical and easy to apply. Some of the approaches the law could take are as follows:

1. ***Sole ownership.*** The law could decide that one spouse owns all the family's property. Historically, a woman could not own property in her own right¹¹ and so the husband owned all the family's property. This approach might have the benefit of certainty, but it would not reflect the expectations of many couples nowadays and would be unacceptable in a society committed to equality between men and women.
2. ***Community of property.*** The law could state that on marriage (or cohabitation) all property becomes jointly owned.¹² This may be thought to reflect the expectations of most couples, but does it? On marriage would the husband expect a half interest in his wife's collection of shoes? The law could deal with such concerns by producing exceptions to the rule, but these might create uncertainty.¹³ Many European regimes have some form of community of property regime and, if harmonisation of the law in this area were to take place across Europe, England and Wales may be required to adopt it.¹⁴
3. ***Community of gains.*** The law could be that each party owns the property he or she owned before the marriage (or cohabitation), but all property acquired during the relationship will be jointly owned. Many countries that have adopted this approach have created exceptions for special gifts or inheritance received during the relationship.
4. ***Community of common property.*** The law could take the approach that all items intended for joint use would be jointly owned.¹⁵ So the car, television, cooker, etc. would be jointly owned but the wife's golf clubs would not. This approach could be criticised on the basis that in some cases there might be doubt whether a particular item was for common use, and this could cause uncertainty over ownership.
5. ***Purchaser-based ownership.*** Another option is simply to use the normal rules of property and not create any particular regime for couples. In effect, this would mean that the person who buys a piece of property owns it. The objection to this is that it may be a matter of chance whose money happened to be used to buy a piece of property.
6. ***Intention-based ownership.*** The law could decide that ownership would be determined by the intentions of the parties. There would have to be rules that would apply if it were not possible to discover the parties' intentions. This approach would have the disadvantage of making it particularly difficult for third parties to ascertain the ownership of a piece of property.

As we shall see, the law of England and Wales does not plump for one or other of these approaches but instead is based on a rather arbitrary set of rules, which have developed over the years.

Before setting out the law, it is necessary to distinguish between real property and personal property. Basically, real property is land and buildings, personal property is all other kinds of property (e.g. books, cars, CDs).

¹¹ The Married Women's Property Act 1882 has removed the incapacity of the wife to own property.

¹² Barlow, Callus and Cooke (2004). Some countries have 'deferred community of property', which only comes into play on separation, e.g., Family Law (Scotland) Act 1985.

¹³ Law Commission Report 175 (1988: para 3.2).

¹⁴ Barlow, Callus and Cooke (2004).

¹⁵ Basically the approach proposed by Law Commission Report 175 (1988).

4 The ownership of personal property

Learning objective 1

Explain who owns personal property in the family setting

So, how do the courts decide who owns what? The law can be summarised with the following statements:

1. Income belongs to the person who earns it.¹⁶
2. Personal property *prima facie* belongs to the person whose money was used to buy the property.¹⁷ This is a presumption which can be rebutted.¹⁸ For example, if a husband bought his wife perfume it may well be that the court would find the presumption rebutted and that the perfume belonged to the wife, not the husband.
3. Ownership of property can be transferred from one person to another if there is effective delivery of the property¹⁹ with evidence that it is intended as a gift. So, if a wife hands a piece of property to her husband saying that it is a present for him, this would be an effective transfer of ownership from her to him.
4. The act of marriage, engagement or cohabitation itself does not change ownership of property.

There are a number of scenarios where the law is a little more complicated, and these will now be discussed in detail.

A Jointly used bank accounts

Where the parties pool their incomes into a common account, it seems that normally they both have a joint interest in the whole fund.²⁰ The crucial question is: what is the purpose for which the fund is held? The leading case is *Jones v Maynard*.²¹ The husband authorised his wife to draw from his bank account. Although the husband's contribution to the account was greater than the wife's, they treated the account as a joint account. When the marriage was dissolved the ownership of the account became an issue. Vaisey J argued:

In my view a husband's earnings or salary, when the spouses have a common purse and pool their resources, are earnings made on behalf of both; and the idea that years afterwards the contents of the pool can be dissected by taking an elaborate account as to how much was paid in by the husband or the wife is quite inconsistent with the original fundamental idea of a joint purpose or common pool. In my view the money which goes into the pool becomes joint property.

So the court should focus on the intentions of the parties. Was the account intended to be a 'common purse'? If the account was in both names, then it is very likely it will be regarded as joint. This is true whether the couple are spouses, civil partners or cohabitants. Even if it was in only one person's name, the court will examine whether in fact the fund was used jointly.

Where property is bought using a joint bank account, the key issue will be the intentions of the parties.²² If the purchased item was for joint use, it is likely to be jointly owned. However, if the property was bought for the use of one of the parties then it seems likely that it will be

¹⁶ *Heseltine v Heseltine* [1971] 1 All ER 952.

¹⁷ *The Up-Yaws* [2007] EWHC 210 (Admlty).

¹⁸ *Re Whittaker* (1882) 21 Ch D 657.

¹⁹ *Re Cole* [1904] Ch 175.

²⁰ This is so regardless of in whose name the account stands.

²¹ [1951] Ch 572.

²² See *Re Northall* [2010] EWHC 1448.

regarded as belonging to that party. So, if a woman bought a rare stamp for her stamp collection using money from a joint bank account, the stamp is likely to be seen as hers, but if she bought a sofa, it will probably be seen as for joint use and therefore jointly owned.²³ In *Re Bishop*²⁴ investments were purchased from the common fund. Some were purchased in joint names, others in the name of the husband and one in the wife's name. It was held that the fact that the investments were put in specified names indicated they were owned by the named parties.

B Housekeeping and maintenance allowance

According to s 1 of the Married Women's Property Act 1964:

LEGISLATIVE PROVISION

Married Women's Property Act 1964, section 1

If any question arises as to the right of a husband or wife to money derived from any allowance made by either of them for the expenses of the matrimonial home or for similar purposes, or to any property acquired out of such money, the money or property shall, in the absence of any agreement between them to the contrary, be treated as belonging to them in equal shares.

The provision was amended in the Equality Act 2010²⁵ so that it applies to husbands and wives in the same way.²⁶ The Act only applies to spouses or civil partners. It does not apply to cohabitants, nor engaged couples. However, for engaged couples and cohabitants the courts may still decide that the parties intended to share such property. Little use seems to be made of the Act, perhaps because it is based on a rather outdated scenario of family finances.

C Gifts from one partner to the other

Where it is clear that one party intended to make a gift and transferred possession of the property to the other party, then ownership will have passed from one to the other. So if a wife purchased a book using money from her own bank account, the law will presume it belongs to her. However, if she wrapped it up and presented it to her husband on his birthday, ownership will have passed to him.²⁷

D Gifts to partners from third parties

Where a third party makes a gift to a couple, ownership of the gift depends on the donor's intention. This intention can be inferred from the surrounding circumstances. For example, it is reasonable to assume that a wedding gift was intended for joint ownership unless there is evidence to the contrary.²⁸ By contrast, a birthday present given to the husband will be presumed to belong to him alone.

²³ A specific agreement could rebut these presumptions.

²⁴ [1965] Ch 450.

²⁵ Section 200.

²⁶ Section 70A of the Civil Partnership Act 2004 has a similar provision for civil partners.

²⁷ The presumption of advancement (that a husband intended to give his wife a gift when transferring property to her) was abolished by the Equality Act 2010, s 199.

²⁸ *Midland Bank v Cooke* [1995] 4 All ER 562, [1995] 2 FLR 915.

E Improvements to personal property

If a spouse, civil partner or fiancé(e) (but not a cohabitant) does work that improves a piece of property, then he or she can rely on s 37 of the Matrimonial Proceedings and Property Act 1970 to establish an interest in the property. We will discuss this provision later when real property is considered.²⁹

F Express declarations of trust

An owner of a piece of personal property can declare him or herself trustee of it. The declaration can be oral and does not require the use of formal language. For example, in *Rowe v Prance*³⁰ a man bought a boat and wrote to his lover referring to what he would like to do with her on 'our boat'. This was held by the court to be sufficient evidence of an express declaration of trust and he therefore shared equitable ownership with his lover.

G Criticisms of the present law

The present law has been widely criticised.³¹ The Law Commission has characterised the existing rules as arbitrary, uncertain and unfair.³² There is too much emphasis placed on who purchased a piece of property, while this is often a matter of chance. Some of the presumptions seem out of date and based on sexist presumptions no longer appropriate for our law. Further, there is also much uncertainty over when an express trust can be found. The case of *Rowe v Prance*, which we have just discussed, demonstrates that even casual comments can have legal significance attached to them, perhaps out of all proportion to their intended effect. By contrast, there may be couples whose general lifestyle demonstrates that they wish to share everything, but if there are no statements which reflect this, they may have difficulty in proving co-ownership. An unmarried couple who go to court for an order deciding who owns their collection of CDs could find themselves in for a protracted court case.

5 Maintenance during marriage

Learning objective 2

Examine the law on maintenance during marriage

The law on the payment of maintenance on divorce will be discussed in Chapter 6. This section will consider maintenance payments during marriage and cohabitation.

A Unmarried cohabitants

There is no obligation on one unmarried partner to support the other. However, there is an obligation on a parent to provide for children whether the parents are married or not. This will be discussed in Chapter 6. Income could result, however, from an order under s 40 of the Family Law Act 1996, requiring a party to make payments of maintenance for the dwelling house, or rent or mortgage, in connection with an occupation order.³³

²⁹ See 'Improvements to the home' later in this chapter.

³⁰ [1999] 2 FLR 787.

³¹ See, e.g., Tee (2001).

³² Law Commission Report 175 (1988: para 1.4).

³³ Discussed in Chapter 7, although it seems orders under this section are very rarely made in practice.

B Married couples

There are two potential sources of maintenance liability for spouses while the couple are married: from statutes and from separation agreements reached between themselves. We will discuss the liability to maintain spouses on divorce in Chapter 6. The common law duty on a husband to maintain a wife was abolished by the Equality Act 2010.³⁴

(i) Statutory obligations to maintain

Research suggests that although there are statutory means of enforcing an obligation to pay maintenance during the marriage, in practice very small sums are involved and they are rarely collected.³⁵ No doubt many spouses who have separated rely on benefits or earnings while pursuing divorce proceedings. The liability to support a child under the Child Support Act 1991 dominates the financial relationship between parties prior to divorce.

There are four statutory provisions that are relevant for spousal maintenance during marriage:

1. Under s 2 of the Domestic Proceedings and Magistrates' Courts Act 1978, periodical payments orders and lump sum orders for less than £1,000³⁶ can be made. Section 1 sets out the criteria:

LEGISLATIVE PROVISION

Domestic Proceedings and Magistrates' Courts Act 1978, section 1

Either party to a marriage may apply to a magistrates' court for an order under section 2 of this Act on the ground that the other party to the marriage –

- (a) has failed to provide reasonable maintenance for the applicant; or
- (b) has failed to provide, or to make a proper contribution towards, reasonable maintenance for any child of the family; or
- (c) has behaved in such a way that the applicant cannot reasonably be expected to live with the respondent; or
- (d) has deserted the applicant.

In calculating the level of spousal maintenance, the first consideration is the welfare of any minors and there is a list of factors to consider, virtually identical to those in s 25 of the Matrimonial Causes Act 1973.³⁷ Sums that are awarded are usually small. In *E v C (Child Maintenance)*³⁸ it was held to be inappropriate to order a man on income support to pay £5 per week. In fact, if someone is on income support, it would only be appropriate to order a nominal sum. Applications under this statute are made to the magistrates' court. This is a cheaper procedure than the other three provisions and is therefore the most popular.

2. Under s 27 of the Matrimonial Causes Act 1973 periodic payment and lump sum orders can be made without limit. It is necessary to show that the respondent has failed to provide reasonably for the spouse or for a child of the family. The provision is only available for married couples.

³⁴ Section 198.

³⁵ Cretney, Masson and Bailey-Harris (2002: 78).

³⁶ There is no such limitation if there is a consent order.

³⁷ Discussed in Chapter 6.

³⁸ [1995] 1 FLR 472, [1996] 1 FCR 612.

3. Prior to divorce and nullity or judicial separation it is possible to apply for maintenance pending suit.³⁹ Interim lump sum orders can now be made.⁴⁰
4. Section 40 of the Family Law Act 1996 can require the payment of rent, mortgage, and outgoings in respect of a property when an occupation order is made.⁴¹

(ii) Separation agreements

Especially before divorce became more readily available, private agreements were a popular option for couples who could not divorce (or did not want to divorce) but intended to separate. Nowadays separation agreements are often used by couples to deal with the parties' financial affairs while waiting for the final financial orders to be made. An agreement is only binding if the normal requirements of contract law are in place. In particular, there must be an intention to create legal relations.⁴² There is a presumption that agreements between married couples are not intended to be legally binding.⁴³ The law's approach to such agreements is that they can be legally enforced, but are open to alteration by the courts. The broader issue of pre-marital agreements is considered further in Chapter 6.

6 Ownership of real property: the family home: legal ownership

The home is the most valuable asset that many people own. This is true not just in monetary terms but in emotional terms: to many people the home is of great psychological importance. A dispute over ownership of the home can therefore be particularly heated. We will first consider how the law determines who owns a house.⁴⁴ This is particularly important for unmarried couples because at the end of their relationship the court has no jurisdiction to require one party to transfer their share of the home to the other and can only declare who at the moment owns the house.

English and Welsh law has not developed a special regime for dealing with family homes. So the law governing the family home is the same as that concerning any two people who happen to share a house, whether they be business partners or lovers.⁴⁵ As a result of the way in which the law has evolved, it is necessary to distinguish ownership of property at law (common law) and at equity. In this section we will focus on ownership at common law.

Determining ownership of land⁴⁶ is not difficult. If the land is registered, which nearly all land is now,⁴⁷ the legal owner can be determined by discovering who is registered as the owner of the land. When a couple buy a house together it is common for the house to be put into joint names, so both will share legal ownership. If the land is not registered, it is necessary to discover into whose name the lease or property was conveyed. Section 52(1) of the Law of Property Act 1925 makes clear that legal title can only be conveyed by deed.⁴⁸ So words alone cannot transfer legal ownership.

³⁹ Matrimonial Causes Act 1973, s 22; see *G v G (Maintenance Pending Suit: Costs)* [2003] Family Law 393.

⁴⁰ Matrimonial Causes Act 1973, s 22A(4).

⁴¹ See Chapter 7.

⁴² *Soulsbury v Soulsbury* [2007] 3 FCR 811.

⁴³ *Balfour v Balfour* [1919] 2 KB 571.

⁴⁴ Although references will be made to a house, the law is essentially the same over flats.

⁴⁵ *Pettitt v Pettitt* [1970] AC 777; *Gissing v Gissing* [1971] 1 AC 886.

⁴⁶ Land here includes ownership of the house on the land.

⁴⁷ Eventually the Land Registration Act 2002 will end unregistered title.

⁴⁸ Law of Property (Miscellaneous Provisions) Act 1989, s 2.

Just because someone owns the property at common law, it does not mean they are the absolute owner, because the legal owner may hold the property on trust for someone else. It is therefore necessary to consider who owns the property in equity.

7 Ownership of real property: the family home: equitable ownership

Learning objective 3

Evaluate the law on resulting and constructive trusts of family homes

In the eyes of equity it matters not in whose name the property is registered, nor into whose name the property was conveyed. In equity the legal owner of the property may be found to hold the property on trust for someone else who will then have an equitable interest in the property. A trust may be express or implied.

A Express trusts

The leading statutory provision is s 53(1)(b) of the Law of Property Act 1925, which states that a declaration of trust in respect of land must be manifested and proved in writing. So an oral statement from the owner that they wish to hold the land on trust for someone else would not be sufficient for an express trust.⁴⁹ It may be that there is a trust deed that sets out the shares of the parties in equity. The deed may be part of the conveyance (for example, the conveyance may specifically state that the property is transferred 'to A to hold on trust for A and B in shares of 60 per cent and 40 per cent respectively') or there may be a separate document signed by the owner setting out the terms of the trust. In these cases, unless there is any fraud or mistake, this document will identify the shares and there will be no need for the court to consider the ownership question further.⁵⁰ This was made clear in *Goodman v Gallant*.⁵¹ It is therefore highly advisable, and very common, for a couple purchasing a house to make it quite clear the shares they are to own in equity.⁵²

However, all too often there is no written declaration of interests. Typically this arises where one person buys a house and later on his or her partner moves in. The parties do not think about seeing a lawyer to produce a written document. In such cases s 53(2) of the Law of Property Act 1925 is crucial, because it states that s 53(1) does not affect the creation of implied, resulting and constructive trusts. So in the absence of a formal document it is necessary to turn to the law of implied trusts.⁵³ There are three of these, which will be considered next: resulting trusts, constructive trusts and proprietary estoppel. As we shall see, the role now played by resulting trusts in relation to the family home is small.⁵⁴ It is now generally accepted that in the family home context special rules have developed concerning constructive trusts which may not apply to constructive trusts generally.⁵⁵

⁴⁹ Although such a statement may well form the basis of an implied trust.

⁵⁰ *Clarke v Harlowe* [2006] Fam Law 846.

⁵¹ [1986] 1 FLR 513.

⁵² *Springette v Defoe* [1992] 2 FLR 388 at p. 390, per Dillon LJ.

⁵³ *Gissing v Gissing* [1971] 1 AC 886.

⁵⁴ *Fowler v Barron* [2008] EWCA Civ 377.

⁵⁵ *Crossco No. 4 Unlimited v Jolan Ltd* [2011] EWCA Civ 1619.

B Resulting trusts

The presumption of a resulting trust is that if A and B both contribute to the purchase price of a house and the property is put into B's name then, although B will be owner at common law, she will hold it on trust (a resulting trust) for herself and A.⁵⁶ Similarly, if A transfers property into B's name, without B providing any consideration,⁵⁷ then B will hold the property on trust solely for A. Both of these resulting trusts are presumptions, based on the belief that people do not give money or property expecting nothing in return. The presumption can be rebutted if it can be shown that the contribution to the purchase price was given as a gift or a loan.⁵⁸ For example, if an aunt helps provide the purchase price for her nephew's first house it may readily be shown that she intended this money to be a gift and did not intend him to hold it on trust for her.

At one time the presumption of the resulting trust did not apply if there is a close relationship between A and B.⁵⁹ In such a case it was presumed that A intended to make a gift to B. This was known as the presumption of advancement. It will be abolished when s 199 of the Equality Act 2010 is brought into force.

C Constructive trusts

The law on constructive trusts is now governed by the decisions of the House of Lords in *Lloyds Bank v Rosset*,⁶⁰ *Stack v Dowden*⁶¹ and *Jones v Kernott*.⁶²

The current law on constructive trusts draws a sharp distinction between two questions: first, whether a constructive trust exists and second, if it does, what shares a party has under a constructive trust. First we will consider how the court decides whether the trust exists.

Lord Bridge in *Rosset* stated that a constructive trust could be found only if: (1) there is a common intention to share ownership; and (2) the party seeking to establish the constructive trust has relied on the common intention to his or her detriment. These two requirements need to be considered in further detail.

(i) Common intent

There are three well-established ways of establishing common intent:

- (i) If the property is registered in the joint names of both parties.
- (ii) 'Any agreement, arrangement or understanding reached between them that the property is to be shared beneficially.'⁶³
- (iii) A common intent can be inferred from a direct contribution to the purchase price or mortgage instalment. It seems that the courts may be willing to find evidence of a common intention, even if none of these is established, but the case law is somewhat unclear on this.

⁵⁶ See *Huntingford v Hobbs* [1993] 1 FLR 736 for a discussion of the position where a mortgage is used.

⁵⁷ E.g. a payment.

⁵⁸ *Sekhon v Alissa* [1989] 2 FLR 94.

⁵⁹ *Chaudhary v Chaudhary* [2013] EWCA Civ 758; *Lavelle v Lavelle* [2004] 2 FCR 418 at p. 421.

⁶⁰ [1991] 1 AC 107. For a useful discussion of the law on constructive trusts, see Sawyer (2004).

⁶¹ [2007] UKHL 17.

⁶² [2011] UKSC 53.

⁶³ *Lloyds Bank v Rosset* [1991] 1 AC 107.

The three accepted ways of establishing a common intention will now be considered separately.

(a) *Registration in joint names*

Where the property has been registered in joint names, that is taken as clear evidence that the parties intended to share ownership.⁶⁴ This is hardly surprising, especially as it very likely they will have received legal advice and therefore be aware of the significance of doing so.

(b) *An agreement to share ownership*

This requires evidence of an actual conversation between the parties in which it was agreed that the parties would share ownership. It is not enough that there is a mutual, but uncommunicated, belief.⁶⁵ There must be proof that a conversation took place.⁶⁶ Where there is a written record that will be powerful evidence of what is agreed,⁶⁷ otherwise the court will hear the parties' accounts of what happened and look at their conduct. The cultural context of the relationship may be a relevant factor, but the court will not automatically assume the couple intended to share or not share because that was common within a particular cultural group.⁶⁸ It should be stressed that the agreement must be to share ownership, not just to share occupation.⁶⁹ A man who lets his sister use his spare room while she is looking for somewhere to live will be agreeing to share accommodation, but not necessarily agreeing to share ownership. Similarly, an agreement to run a business together in a property is not the same thing as agreeing to share ownership of the property.⁷⁰ It seems an agreement that a party might have a share of the ownership in certain circumstances in the future would be sufficient if those circumstances indeed materialised.⁷¹ The statement to share must be made by the owners of the property. In *Smith v Bottomley*⁷² a promise by a man to his partner that a property in the name of a company would be shared with her could not create a constructive trust of the company's property. Also, the agreement must relate to an agreement to share now, not a promise that a party might get property in the future.⁷³

Lord Bridge accepted that it is not easy to prove an oral agreement, but that evidence of agreements can be introduced 'however imperfectly remembered and however imprecise their terms must have been'.⁷⁴ The difficulties with this have been recognised in *Hammond v Mitchell* by Waite J who noted that:

the tenderest exchanges of a common law courtship may assume an unforeseen significance many years later when they are brought under equity's microscope and subjected to an analysis under which many thousands of pounds of value may be liable to turn on this fine question as to whether the relevant words were spoken in earnest or in dalliance and with or without representational intent.⁷⁵

⁶⁴ *Stack v Dowden* [2007] UKHL 17.

⁶⁵ *Fowler v Barron* [2008] EWCA Civ 377, discussed in Hayward (2009).

⁶⁶ Although the Court of Appeal has suggested it might be willing to infer from the surrounding circumstances that there was a conversation agreeing to share the property: *Springette v Defoe* [1992] 2 FLR 388 at p. 395; *Hyett v Stanley* [2003] 3 FCR 253.

⁶⁷ *Ely v Robson* [2016] EWCA Civ 774.

⁶⁸ *Arif v Anwar and Rehan* [2015] EWHC 124 (Fam).

⁶⁹ *Lloyds Bank v Rosset* [1990] 1 All ER 1111 at p. 1115; *G v G (Matrimonial Property: Rights of Extended Family)* [2005] EWHC 1560 (Admin).

⁷⁰ *Geary v Rankine* [2012] EWCA Civ 555.

⁷¹ *Ledger-Beadell v Peach and Ledger-Beadell* [2006] EWHC 2940 (Ch).

⁷² [2013] EWCA Civ 953.

⁷³ *Curran v Collins* [2015] EWCA Civ 404.

⁷⁴ In *Lightfoot v Lightfoot-Brown* [2005] EWCA Civ 201, para 23.

⁷⁵ *Hammond v Mitchell* [1992] 2 All ER 109 at p. 121. See also *Buggs v Buggs* [2003] EWHC 1538 (Fam).

Cases following *Rosset* have been very willing to find evidence of common intention. The following comments have been evidence of an agreement: 'Don't worry about the future because when we are married [the house] will be half yours anyway and I'll always look after you and [our child]';⁷⁶ 'You will always have a home';⁷⁷ and 'You need a secure home.'⁷⁸ These examples are controversial because the promises appear to relate to rights in the future, rather than being agreements to share in the present, which is what Lord Bridge required. It may be that the judgments after *Rosset* are trying to loosen the strictness of the approach taken by Lord Bridge, although it should not be thought that any old statement will be sufficient. In a more recent decision, the comment concerning improvements to a property 'this will benefit us both' and an assurance to his partner that if he were to die 'you will be well provided for' were insufficient to found a claim for a constructive trust.⁷⁹ The comments did not clearly indicate an intention to share ownership.

Lord Bridge stated there were two 'outstanding examples' of the kind of agreements revealing common intention that he had in mind. Both cases involved property which was in the man's name and he gave an excuse to his partner for not putting the property into their joint names.⁸⁰ In *Eves v Eves*⁸¹ the man (untruthfully) stated that his partner was too young to be put on the title deed. In *Grant v Edwards*⁸² the man involved (again untruthfully) said he would not put the property into their joint names because it would prejudice a dispute between her and her husband (whom she was divorcing). Some commentators⁸³ have pointed out that these cases, far from showing a common intention that the property was to be shared, in fact indicate that the men did not intend that their partners should have a share. Others have supported these cases on the basis that in each instance the men, having led the women to believe it was their intent that the property should be in their joint names, cannot deny there was a common intention to share ownership.⁸⁴ In *Curran v Collins*⁸⁵ the Court of Appeal were adamant that there was not a rule that a spurious reason for not putting a partner on the title was automatically evidence of an intention to share ownership. All of the evidence had to be looked at in the round.

(c) Inferring an agreement to share

If it is not possible to find evidence of an express agreement to share, it will be necessary to infer an agreement to share, from the surrounding evidence. The only circumstance in which Lord Bridge in *Rosset* was willing to accept that such an inference could be made was where there was a direct contribution to the purchase price or at least one of the mortgage instalments. However, in more recent cases (*Stack v Dowden*,⁸⁶ *Abbott v Abbott*⁸⁷) the courts have been open to inferring a common intention to share ownership from other kinds of evidence.

Now, the whole course of conduct of the parties can be examined in order to consider whether the parties intended to share the property. In *Geary v Rankine*⁸⁸ the Court of Appeal

⁷⁶ *Hammond v Mitchell* [1992] 2 All ER 109, [1992] 1 FLR 229.

⁷⁷ *Southwell v Blackburn* [2014] EWCA Civ 1347.

⁷⁸ *Savil v Goodall* [1993] 1 FLR 755, [1994] 1 FCR 325.

⁷⁹ *James v Thomas* [2007] 3 FCR 696; discussed in Piska (2009).

⁸⁰ See, for a more recent example, *Van Laethem v Brooker* [2006] 1 FCR 697.

⁸¹ [1975] 3 All ER 768.

⁸² [1987] 1 FLR 87.

⁸³ Gardner (1993).

⁸⁴ Mee (1999).

⁸⁵ [2015] EWCA Civ 404.

⁸⁶ [2007] UKHL 17.

⁸⁷ [2007] UKPC 53.

⁸⁸ [2012] EWCA Civ 555.

emphasised that an actual intention to share had to be found and could not be created simply to achieve a fair result.⁸⁹ However, they referred to 'inferring' the common intention from the parties' conduct, without restricting the kind of conduct that is to be taken into account. This was confirmed in *Thompson v Hurst*⁹⁰ where it was confirmed that the court must find 'evidence of the parties' actual intentions, express or inferred, objectively ascertained'. In *Capehorn v Harris*⁹¹ the Court of Appeal said that an agreement could be inferred 'from conduct'. This suggests that there must be some objective evidence from which the courts deduce the intention of the parties, rather than it being simply guesswork. They were very clear that the court could not create an intention to share in order to achieve a fair result.⁹²

It should be emphasised that while the court will focus on the intention of the parties at the time of purchase of the property they may be persuaded that this intention changed over time.⁹³ So, even though it was the intention of the parties at the time of purchase for just one to own the property, the court may be persuaded by clear evidence that subsequently they formed the intention to share ownership and therefore a constructive trust can be found.⁹⁴ In *Aspden v Elvy*⁹⁵ it was found that when a man transferred a barn to his former cohabitant he intended it to be a complete gift. However, he later spent much money and work converting the barn and the court held that at that point there must have been a common intention that he had a share in it.

(ii) Detrimental reliance

According to *Rossett* a common intent to share is not in and of itself sufficient for a constructive trust. There must also be acts showing that a party has relied on that common intention to his or her detriment.⁹⁶ However, considerable uncertainty surrounds this requirement. First, it is far from clear what constitutes detrimental reliance. Second, there are some doubts over whether the requirement exists at all.

The approach with the most authority is that detrimental reliance requires conduct upon which the claimant 'could not reasonably have been expected to embark unless she was to have an interest in the house'.⁹⁷ In *Eves v Eves*⁹⁸ the act of reliance was the woman's manual work on the property, including breaking up concrete, demolishing and rebuilding a shed, and renovating the house. This conduct was held to be detrimental reliance because it was not the kind of conduct one would expect from a 'normal' female cohabitant. It could be inferred, therefore, that she must have acted in this way because she believed she had an interest in the property. By contrast, in *Thomas v Fuller-Brown*⁹⁹ a man who moved in with a woman and carried out various pieces of DIY around the house did not thereby acquire an interest in it. This was partly because the acts of DIY were the kind of things a man living in the house could be expected to have done, and so was not the type of conduct he would only

⁸⁹ A point reinforced in *Capehorn v Harris* [2015] EWCA Civ 955.

⁹⁰ [2012] EWCA Civ 1752.

⁹¹ [2015] EWCA Civ 955.

⁹² See also *Gallarotti v Sebastianelli* [2012] EWCA Civ 865.

⁹³ *Geary v Rankine* [2012] EWCA Civ 555.

⁹⁴ *Aspden v Elvy* [2012] EWHC 1387 (Ch).

⁹⁵ [2012] EWHC 1387 (Ch).

⁹⁶ *Chan Pui Chun v Leung Kam Ho* [2003] 1 FCR 520 CA. See also *Churchill v Roach* [2004] 3 FCR 744 where, although detrimental acts were found before the agreement to share ownership, none were found after and so there could be no constructive trust.

⁹⁷ Nourse LJ in *Grant v Edwards* [1986] Ch 638, [1987] 1 FLR 87.

⁹⁸ [1975] 3 All ER 768.

⁹⁹ [1988] 1 FLR 237.

have performed had he believed he had an interest in the property. In *Rosset* the wife's conduct in supervising the builders because her husband was abroad was insufficient to amount to detrimental reliance as 'it would seem the most natural thing in the world for any wife, in the absence of her husband abroad, to spend all the time she could'¹⁰⁰ working on the house, and therefore did not reveal that she believed that she had an interest in the house. Several of these examples demonstrate the danger that gender stereotyping can determine whether a party is able to establish detrimental reliance or not.

There is some authority for alternative approaches. Sir Nicholas Browne-Wilkinson V-C (as he then was) suggested that detrimental reliance requires any conduct of the kind that relates to a couple's 'joint lives' together.¹⁰¹ This is a very liberal interpretation of the requirement; it simply stipulates that there were detrimental acts that related to the couple's joint lives. This might include caring for the couple's children or a substantial amount of housework. If a couple were living together it would almost be inevitable that there would be acts that were referable to their joint lives together. Whichever approach is taken, a direct contribution to the purchase price or mortgage instalments can constitute detrimental reliance. This means that such payments will be evidence from which both a common intention can be inferred and detrimental reliance shown and therefore in and of themselves establish a constructive trust. Notably, *Stack v Dowden*¹⁰² and *Abbott v Abbott*¹⁰³ and *Jones v Kernott*¹⁰⁴ do not mention the requirement of reliance, causing one leading commentator to refer to 'the demise' of the reliance requirement.¹⁰⁵ In *de Bruyne v de Bruyne*¹⁰⁶ it was held that a constructive trust could be imposed even in the absence of detrimental reliance, as long as there were other circumstances which meant that it would be unconscionable for the owner to hold the property absolutely.¹⁰⁷ However, recently the Court of Appeal in *Smith v Bottomley*¹⁰⁸ held that detrimental reliance was: 'a critical element of [the] claim to a beneficial interest in the properties in question . . . by way of constructive trust'. Perhaps the best view is that proof of detrimental reliance is still required to establish a constructive trust, but in an exceptional case a court may well be willing to overlook its absence.

(iii) Calculating what share a party is entitled to under a constructive trust

The shares the parties are entitled to under a constructive trust are determined by the parties' intentions.¹⁰⁹ In some cases that will be simple. If the parties have set out clearly what percentage share they are to have, the court will simply follow that.¹¹⁰ Similarly if the court finds there was an express agreement over what share to own, that will be followed. In *Agarwala v Agarwala*¹¹¹ the court accepted evidence that there was a clear agreement that an investment property bought in the names of the sister-in-law would be owned solely by the brother-in-law.

¹⁰⁰ [1990] 1 All ER 1111 at p. 1117.

¹⁰¹ *Grant v Edwards* [1986] Ch 638 at p. 657.

¹⁰² [2007] UKHL 17.

¹⁰³ [2007] UKPC 53.

¹⁰⁴ [2011] UKSC 53.

¹⁰⁵ Gardner (2008).

¹⁰⁶ [2010] 2 FCR 251.

¹⁰⁷ Sloan (2013) finds it hard to imagine a claim being justifiable in the absence of detrimental reliance.

¹⁰⁸ [2013] EWCA Civ 953.

¹⁰⁹ *Crossley v Crossley* [2006] 1 FCR 655. There it was emphasised that if it is clear what the parties' intentions were there is no need to consider what a 'fair share' of the equitable interest would be.

¹¹⁰ *Fowler v Barron* [2008] 2 FCR 1; *Pankhania v Chandegra* [2012] EWCA Civ 1438. The only exception being where there is a fraud: *Bhura v Bhura and Others (No 2)* [2014] EWHC 727.

¹¹¹ [2013] EWCA Civ 1763.

The sister-in-law's name was only used to help get credit for the purchase. The court held the sister-in-law held the property entirely on trust for the brother in law.

It gets more complicated if the couple talked generally about sharing, but did not make it clear what percentage each were to have. In such a case the basic principle is that the court must attempt to infer their intention by referring to all the evidence in the case. This was the approach as stated by the House of Lords in *Stack v Dowden*.¹¹² They rejected an approach of asking: 'What would be a fair share for each party having regard to the whole course of dealing between them in relation to the property?'¹¹³ The focus must be on the intentions of the parties, rather than fairness. That was re-emphasised in the following decision:¹¹⁴

CASE: *Jones v Kernott* [2011] UKSC 53

Ms Jones and Mr Kernott bought a property in joint names in 1985. They later separated and for 12 years Ms Jones lived in the property and paid for its maintenance and mortgage, while the man made no contribution at all. The trial judge declared a constructive trust under which Ms Jones had a 90 per cent and Mr Kernott a 10 per cent share. The Court of Appeal allowed an appeal and declared equal ownership. The Supreme Court reinstated the 90/10 per cent division of the trial judge.

The central question is how to determine the beneficial interests of a house bought in joint names by an unmarried couple. The Supreme Court, following *Stack v Dowden* [2007] UKHL 17, [2007] 2 All ER 929, set out the key principles. Where a couple buy a house in joint names, but there is no express declaration of beneficial interest, then there is a rebuttable presumption of equal sharing of the beneficial interest. The Supreme Court thought that it would be 'very unusual' (at [68]) for the equal share presumption to be rebutted. The fact the parties had contributed to the purchase of the house in unequal shares was not in itself normally sufficient to rebut the presumption. However, a court could, after looking at their whole course of conduct to ascertain their common intentions, decide that the presumption of equal sharing of the beneficial interest was rebutted.

The key issue before the Supreme Court was whether the focus should be on the parties' actual intentions and the extent to which these needed to be expressed, or could be inferred or imputed from their conduct. Lord Walker and Lady Hale held that the search is 'primarily to ascertain the parties' actual shared intentions' (at [31]). These could be expressed or inferred from their conduct. However, they did allow that in cases where it is not possible to ascertain the proportions of sharing, then the court 'is driven to impute an intention to the parties which they may never have had' (at [31]). Lord Kerr and Lord Wilson in their judgments seem far more ready to employ the term 'impute'.

What is perhaps more important than whether the word 'impute' is used or not, is what is meant by that term. Is it that in cases where we do not have evidence of what their intention is, we can make an educated guess about their intention or is it that in cases where we do not know their intentions we impute the intention they ought to have? Lord Walker, Lady Hale, supported by Lord Collins appear to take the former view emphasising 'the primary search must always be for what the parties actually intended, to be

¹¹² [2007] UKHL 17; followed in *Qayyum v Hameed* [2009] 2 FLR 962.

¹¹³ As proposed in *Oxley v Hiscock* [2004] 2 FCR 295 at para 69.

¹¹⁴ For discussion on *Kernott* see Newnham (2013) and Sloan (2013).

deduced objectively from their words and their actions'. Relying on an assessment of what is fair is a last resort. Lord Kerr appears to take the latter view (at [75]):

As soon as it is clear that inferring an intention is not possible, the focus of the court's attention should be squarely on what is fair and, as I have said, that is an obviously different examination than is involved in deciding what the parties actually intended.

Lord Kerr appears to be supported in his approach by Lord Wilson.

In cases where the couple have registered the property in joint names but not declared the percentage shares they will have, there is a strong presumption that they intend to share the property equally.¹¹⁵ However, the presumption can be rebutted if there is clear evidence as to the parties' intentions.¹¹⁶ What is unclear after *Stack v Dowden* is how strong the evidence has to be to rebut the presumption.¹¹⁷ In *Jones v Kernott*¹¹⁸ it was said to be 'very unusual' for property bought in joint names not to be shared equally, although on the facts of that case (see below) the presumption was rebutted. The fact the parties had contributed to the purchase of the house in unequal shares was not in itself normally sufficient to rebut the presumption. However, a court could, after looking at their whole course of conduct to ascertain their common intentions, decide that the presumption of equal sharing of the beneficial interest was rebutted by clear evidence of an intention to share in unequal shares.¹¹⁹

If the property is not in joint names then all the evidence must be considered to ascertain the common intention of the parties.¹²⁰ Baroness Hale held that financial contributions would be an important factor to take into account; so, too, would the following:

any advice or discussions at the time of the transfer which cast light upon their intentions then; . . . the purposes for which the home was acquired; the nature of the parties' relationship; whether they had children for whom they both had responsibility to provide a home; how the purchase was financed, both initially and subsequently; how the parties arranged their finances, whether separately or together or a bit of both; how they discharged the outgoings on the property and their other household expenses.¹²¹

She explained that although how much each contributed financially was relevant, it would be quite possible to conclude that 'they intended that each should contribute as much to the household as they reasonably could and that they would share the eventual benefit or burden equally'.¹²² In such a case an applicant may be entitled to a 50 per cent share even though she had contributed to less than 50 per cent of the purchase price. In *Stack v Dowden*¹²³ the parties kept their financial affairs 'rigidly separate' and took careful notice of who paid for what.

¹¹⁵ The presumption could not be relied upon if the parties planned to put the property in joint names, but were dissuaded from doing so: *Thompson v Hurst* [2012] EWCA Civ 1752.

¹¹⁶ *Stack v Dowden* [2007] UKHL 17.

¹¹⁷ Probert (2007a) suggests that there was little exceptional about the facts in the case itself, where the presumption was rebutted.

¹¹⁸ [2011] UKSC 53.

¹¹⁹ *Barnes v Phillips* [2015] EWCA Civ 1056.

¹²⁰ *Fowler v Barron* [2008] EWCA Civ 377.

¹²¹ Paragraph 69.

¹²² Paragraph 69. See Burgoyne *et al.* (2006) for a sociological discussion of how unmarried couples understand their finances.

¹²³ [2007] UKHL 17.

In that case it was found that the financial contributions should be particularly significant in ascertaining their share, because the parties attached great significance to that.¹²⁴ Similarly, where the property purchased is an investment property held in joint names, with no declaration of beneficial interest, the court will generally focus only on the financial contributions of the parties because it is assumed the parties were looking at this as simply a financial issue.¹²⁵

Generally, the court will be willing to look at all of the circumstances of the case to ascertain the parties' intentions as to shares.¹²⁶ In *Barnes v Phillips*¹²⁷ the Court of Appeal took into account the failure of the man to pay child support as evidence that they intended his partner to have a greater than half share in their former home. The court in saying that were adamant they were not using the forbidden line of reasoning: 'he has not paid child support and so it would be fair to give his partner a greater share in the house'. They were using the permitted reasoning: 'he has not paid child support and so the parties must have intended that she have a greater share in the home to make up for that.'

If looking at all of the evidence it is not possible to determine what share the parties intended each other to have, the Court of Appeal in *Thompson v Hurst*¹²⁸ confirmed that it is then permitted to consider what is fair and 'impute' that intention to the parties. As the division of opinion in *Kernott* indicates it is a little unclear whether what the courts are doing is using fairness as evidence of intention or 'imposing' fairness on the parties.

It may be that, in practice, there is little difference between these two approaches because in the absence of other evidence we might guess that most people would want there to be a fair share between them and their partner. Indeed, on the facts of *Kernott* Lord Walker, Lady Hale and Lord Collins thought the 90/10 split could be inferred from the evidence as the intentions of the parties, while Lords Kerr and Wilson decided intention could not be inferred, but a 90/10 split should be imputed.¹²⁹

But, what does fairness means in this context? In *Graham-York v York*¹³⁰ the Court of Appeal considered a case where a woman had survived a lengthy abusive relationship with her partner. The court accepted there was an intention to share the property, but no overt evidence as to what those shares would be. The court went on to consider what percentage share would be 'fair'. However, they emphasised that the court in considering fairness should focus on their relationship in relation to the property:

Thus it is irrelevant that it may be thought a 'fair' outcome for a woman who has endured years of abusive conduct by her partner to be allotted a substantial interest in his property on his death. The plight of Miss Graham-York attracts sympathy, but it does not enable the court to redistribute property interests in a manner which right-minded people might think amounts to appropriate compensation. Miss Graham-York is 'entitled to that share which the court considers fair having regard to the whole course of dealing between them in relation to the property'.

They upheld a 25 per cent share in the property, making it clear in a sole name case there was no presumption in favour of an equal sharing being the fair outcome. This restriction to considering fairness in relation to the property is controversial. It does not sit easily with *Barnes v Phillips*¹³¹ where the failure to pay child support was taken into account. It is notable that

¹²⁴ See also *Fowler v Barron* [2008] 2 FCR 1.

¹²⁵ *Laskar v Laskar* [2008] EWCA Civ 347; *Geary v Rankine* [2012] EWCA Civ 555.

¹²⁶ *O'Kelly v Davies* [2014] EWCA Civ 1606.

¹²⁷ [2015] EWCA Civ 1056.

¹²⁸ [2012] EWCA Civ 1752.

¹²⁹ See George (2012a) for a helpful discussion.

¹³⁰ [2015] EWCA Civ 72.

¹³¹ [2015] EWCA Civ 1056.

Jones v Kernott did not seem to limit fairness in a particular way. It is submitted it is better to leave fairness as an unfettered concept.

D Proprietary estoppel

Learning objective 4

Summarise the law on proprietary estoppel

For A to establish a proprietary estoppel claim over B's property, it is necessary to show:¹³²

1. A reasonably believes she has or is going to be given an interest over B's property;
2. A must act reasonably in reliance on this belief;¹³³ and
3. It must be conscionable (fair) in all the circumstances to give A a remedy.

The law has recently been examined by the House of Lords.

CASE: *Thorner v Major* [2009] UKHL 18

Thorner had worked on his cousin's farm for 29 years without pay. The cousin was said by the court to be a man of few words. However, some statements were made which led Thorner to believe he would leave him the farm in his will. For example, he gave some life insurance policy documents to Thorner, saying they were for his 'death duties'. The cousin did make a will leaving the farm to Thorner, but then revoked the will, having fallen out with another legatee. He made no other will. Under the rules of intestacy the farm passed to the cousin's siblings. Thorner argued that the farm was his. At first instance it was found that the vague comments were sufficient for a proprietary estoppel. However, the Court of Appeal allowed an appeal, principally on the basis that the statements were not promises and had not been relied upon by Thorner.

The House of Lords held that to establish a proprietary estoppel the assurance had to be 'clear enough'. Whether the assurance was clear enough depended on the context of the words or actions. Insisting that statements had to be 'clear and unambiguous' would be too strict a test and would be unrealistic. Normally, it would be sufficient if the claimant could show that he or she reasonably understood the words or conduct to be an assurance on which he could rely. In this case, given that the cousin was 'taciturn and undemonstrative', the judge was entitled to accept the words and conduct as amounting to an estoppel. What the cousin actually intended was not really relevant, because the focus was on Thorner's reasonable interpretation of what was said. Nor was it relevant to consider whether a reasonable person would have relied on what the cousin said: the question was whether it was reasonable for Thorner to rely on it. Only in exceptional cases might a person seek to defend a proprietary estoppel on the basis that they did not intend to convey the promise as it was reasonably understood by the claimant. Their lordships also confirmed that a proprietary estoppel claim had to relate to an identified property. In this case it was clear what property was being talked about.

¹³² *Re Basham (Deceased)* [1987] 1 All ER 405; *Gillet v Holt* [2000] FCR 705.

¹³³ *Liden v Burton* [2016] EWCA Civ 275 stated this needed to be detrimental reliance, but that does not seem to have been regarded as an essential requirement in the recent cases.

As a result of this decision, the key question in estoppel is whether it was reasonable for the claimant to believe an assurance¹³⁴ or promise was made and reasonable to rely on it.¹³⁵ In deciding that, the court will look at statements throughout the relationship and in the context of how couples live their lives.¹³⁶ The courts appreciate that couples in love are unlikely to use legally precise terminology.

Their lordships approved *Gillet v Holt* which had stressed that the crucial principle underlying proprietary estoppel is conscionability.¹³⁷ Conscionability in essence means fairness.¹³⁸ However, they made it clear that proprietary estoppel was not solely an issue of unconscionability. Even substantial detriment will not found a claim for a proprietary estoppel without some representation.¹³⁹ The assurance need not be to a specific property right, but must refer to a piece of property.¹⁴⁰ So, the statement to a girlfriend that she 'would not want for anything' could not form the basis of an estoppel claim.¹⁴¹ Nor was an assurance that a woman would have a roof over her head.¹⁴² Similarly statements which the parties expressly agreed were not intended to be binding or have any legal effect could not form the basis of a proprietary estoppel.¹⁴³ There does not need to be financial reliance on the statement, but where there is detrimental reliance on the statement that will help show it would be conscionable to provide a remedy.¹⁴⁴

Having established a proprietary estoppel claim, the next question is: What interest in the property should thereby be acquired by the plaintiff?¹⁴⁵ The simple answer is that the remedy given is that which would 'satisfy the equity'; in other words, that remedy which would be just. The courts have been willing to grant a wide range of remedies including a fee simple¹⁴⁶ or a sum of money.¹⁴⁷ In particular, the courts will consider the nature of the interest that was promised or assured by the owner and the amount of detriment suffered by the claimant.¹⁴⁸ Although, ultimately, the question is a matter for the court's discretion, any remedy should be proportionate to the financial value of the detriment.¹⁴⁹ In *Liden v Burton*¹⁵⁰ the Court of Appeal upheld a first instance judgment which had taken a strict mathematical approach in calculating the award: by returning to the claimant the financial contributions she had made towards the house, with 3 per cent interest. The court found this was at least the minimum which justice could require and so the judgment could not be overturned.

¹³⁴ See Samet (2015) for a discussion of when this might be found from silence.

¹³⁵ *Suggitt v Suggitt* [2011] EWHC 903 (Ch).

¹³⁶ *Southwell v Blackburn* [2014] EWCA Civ 1347. See Hayward (2015) for a helpful discussion of this case.

¹³⁷ *Gillet v Holt* [2000] FCR 705.

¹³⁸ For a detailed discussion, see Dixon (2010), who offers a much narrower definition of unconscionability in the context of proprietary estoppel.

¹³⁹ *Walsh v Singh* [2010] 1 FLR 1658.

¹⁴⁰ See for further discussion McFarlane and Robertson (2009), Mee (2009) and Dixon (2010).

¹⁴¹ *Lissimore v Downing* [2003] 2 FLR 308.

¹⁴² *Negus v Bahouse* [2008] 1 FCR 768.

¹⁴³ *Shield v Shield* [2014] EWHC 23 (Fam).

¹⁴⁴ *Southwell v Blackburn* [2014] EWCA Civ 1347.

¹⁴⁵ Gardner (2006).

¹⁴⁶ *Pascoe v Turner* [1979] 1 WLR 431; *Q v Q* [2009] 1 FLR 935. A fee simple is absolute ownership.

¹⁴⁷ *Southwell v Blackburn* [2014] EWCA Civ 1347.

¹⁴⁸ *Jennings v Rice* [2003] 1 FCR 501.

¹⁴⁹ *Jennings v Rice* [2003] 1 FCR 501. The question of whether a proprietary estoppel creates an interest in land and, if so, when is discussed in Bright and McFarlane (2005).

¹⁵⁰ [2016] EWCA Civ 275.

E The interrelation of constructive trusts and proprietary estoppel

It will have been noticed that the requirements of a constructive trust and proprietary estoppel are very similar. Indeed, some commentators take the view that proprietary estoppel and constructive trusts should be amalgamated.¹⁵¹ Certainly the courts have not taken great efforts to distinguish the two. Lord Bridge, for example, said that where a person has acted to his or her detriment on reliance of an agreement to share property, this will 'give rise to a constructive trust or proprietary estoppel'. The Court of Appeal has accepted that the requirements for the two are very similar.¹⁵² However, the current view of the courts is that, although at some point the doctrines might be merged, they are not yet assimilated.¹⁵³ For example, in *Southwell v Blackburn*¹⁵⁴ although the claim of a constructive trust failed, the claim for a proprietary estoppel was successful. Carnwath LJ will have expressed the views of many experienced practitioners on the history of the case law in this area when saying:

To the detached observer, the result may seem like a witch's brew, into which various esoteric ingredients have been stirred over the years, and in which different ideas bubble to the surface at different times. They include implied trust, constructive trust, resulting trust, presumption of advancement, proprietary estoppel, unjust enrichment, and so on. These ideas are likely to mean nothing to laymen, and often little more to the lawyers who use them.¹⁵⁵

8 Improvements to the home

Section 37 of the Matrimonial Proceedings and Property Act 1970 states that if a spouse, civil partner or fiancé(e) (but not an unmarried cohabitant) makes a substantial contribution to the improvement of property¹⁵⁶ in which the other spouse, civil partner or fiancé(e) has an interest, the improvement will create an interest in the property. However, the section states that this rule is subject to any agreement that the parties reach. A number of requirements need to be satisfied if the section is to apply:

1. The improvement must be of monetary value. Section 37 applies whether the contribution is in real money or money's worth. The improvement may be made by the claimant him- or herself or by someone employed by the claimant.¹⁵⁷ So if an incompetent husband carries out DIY work on the house, which in fact decreases the value of the house, he will be unable to invoke this section, as no improvement of monetary value has been made.
2. The contribution must be identifiable with the improvement in question. So if it could be shown that a wife pays the household expenses thereby enabling the husband to pay for the improvements to a piece of property, s 37 could be relied upon by the wife.¹⁵⁸

¹⁵¹ See Nield (2003).

¹⁵² *Yaxley v Gotts* [2000] Ch 162, [1999] 2 FLR 941.

¹⁵³ *Stokes v Anderson* [1991] 1 FLR 391. See also *Churchill v Roach* [2004] 3 FCR 744 at p. 759 where Judge Norris QC suggested that while constructive trusts focus on the intention of the parties at the time of purchase, proprietary estoppel focuses on the time when a party seeks to go back on an assurance or promise.

¹⁵⁴ [2014] EWCA Civ 1347.

¹⁵⁵ *Stack v Dowden* [2005] 2 FCR 739, at para 75.

¹⁵⁶ The section applies to real and personal property.

¹⁵⁷ *Griffiths v Griffiths* [1979] 1 WLR 1350.

¹⁵⁸ *Harnett v Harnett* [1973] 2 All ER 593 at p. 603.

3. The contribution must be of a substantial nature. *Re Nicholson (Deceased)*¹⁵⁹ provides a good example of this: installing central heating worth £189 in a house worth £6,000 was substantial, but spending £23 on a gas fire was not.
4. The contribution must constitute an improvement to the property and not merely maintenance of it.¹⁶⁰

The share acquired will be that which reflects any agreement of the parties, and if there is not one, then what the court regards as just. Normally, the party will receive a share in the property reflecting the increase in the value of the property that the improvements caused.

There is some debate over the policy behind this section. It could be regarded as putting into legal effect the presumed intentions of the parties: that is, what the parties themselves would have expected to happen as a result of their actions to improve the property had they thought about it. Alternatively, s 37 could be seen as a way of achieving a just result in recognition of a party's contribution to improving the house, regardless of the parties' intentions. The fact that the parties can reach an agreement which negates the effect of the section would suggest that the statute is primarily seeking to reflect the parties' intentions.¹⁶¹ The section is rarely relied upon because works carried out on the house will often form the basis of a proprietary estoppel or constructive trust claim.

9 Criticism of the present law

Learning objective 5

Debate the arguments over the law on family property

The law on ownership of the family home has been heavily criticised.¹⁶² The potential harshness of the law was well revealed in the recent case of *Geary v Rankine*¹⁶³ where the primary asset of an unmarried couple was a business property in the man's name.

There was no evidence of an agreement to share ownership and so the Court of Appeal declined to find a constructive trust. Although their relationship had lasted 19 years and she had done much work for the business, she left the relationship with no share of the fruits of their labours.¹⁶⁴

The Law Commission has stated that: 'Current property law rules are generally agreed to be highly complicated and uncertain. In addition to the technical difficulties they present, the nature of the evidence required to prove the elements of a claim makes it difficult in practice to predict the likely outcome of cases. Most significantly, the rules lead to outcomes which many people would consider to be unfair.'¹⁶⁵

There is much academic support for the need to change the law.¹⁶⁶ The following are some of the main criticisms:

1. The emphasis in the case law on an oral agreement between the parties or a direct financial contribution in order to establish a constructive trust has been heavily criticised. It is unrealistic to expect all couples to discuss the legal ownership of their property. You cannot expect lovers to talk to each other in the way people do when negotiating a business deal.¹⁶⁷ The cases demonstrate that the courts have had to pick up on casual comments

¹⁵⁹ [1974] 1 WLR 476.

¹⁶⁰ *Re Nicholson (Deceased)* [1974] 1 WLR 476.

¹⁶¹ It is therefore analogous to the working of resulting trusts.

¹⁶² See Douglas, Pearce and Woodward (2007) and Gardner (2008).

¹⁶³ [2012] EWCA Civ 555.

¹⁶⁴ For other examples, see Douglas, Pearce and Woodward (2007: chs 4 and 5).

¹⁶⁵ Law Commission Consultation Paper (Overview) (2006: 15).

¹⁶⁶ See Gardner (1993); Law Commission Report 278 (2002).

¹⁶⁷ See Hayward (2012).

- made during the relationship. In a recent case much time was spent discussing what was or was not said over a dinner at a Thai restaurant some five years previously.¹⁶⁸
2. The emphasis on spoken promises in both constructive trusts and proprietary estoppel works against the less articulate or assertive partner, who may not seek an unequivocal promise from the owner.¹⁶⁹ Ruth Deech says that she warned her male students to conduct their love affairs in silence to ensure they would not unintentionally create a constructive trust!¹⁷⁰ Even worse, in *Graham-York v York*¹⁷¹ the fact the male legal owner was abusive and controlling was taken as evidence that it was unlikely he intended his partner to have an equal share in the property.
 3. It has been argued that the law reveals gender bias. In the absence of a conversation, common intention can only be established through a direct contribution to the purchase price or mortgage instalments. It is far more likely that men will be able to contribute in these ways than women, given the greater rates of employment among men.¹⁷² Further, the law devalues non-financial contributions to the household by treating them as insufficient to establish a constructive trust. Notably, in relation to the redistribution of property of married couples on divorce, the House of Lords has held that there should be no discrimination between the money-earner and the homemaker or child-carer.¹⁷³ This principle is not reflected in the law governing cohabitants.
 4. The emphasis placed on whether the property is in joint names has also been challenged. It has been argued that whether the property is in joint names is often a matter of chance and often does not reflect a careful consideration by the parties as to ownership of the property.¹⁷⁴ Indeed, it has been claimed by psychological economists that financial payments are a very unreliable guide to intentions.¹⁷⁵
 5. We have already noted that the results of these cases can be particularly unpredictable. This produces uncertainty and causes particular difficulties for negotiations between the parties before the case reaches the court. Simon Gardner¹⁷⁶ argues that is not necessarily a problem because cohabiting couples will not live their lives based what they reasonably believe the legal position to be. This makes them different from, say, commercial contractors who may rely on the contract being enforceable.

10 Reform of the law

The Law Commission, after many years' work, has finally produced a report proposing reform of the law relating to the ownership of property of unmarried couples.¹⁷⁷ The Law Commission proposes allowing cohabiting couples to make some financial claims against

¹⁶⁸ *Ashby v Kilduff* [2010] EWHC 2034 (Ch).

¹⁶⁹ Gardner (1993).

¹⁷⁰ Deech (2010d).

¹⁷¹ [2015] EWCA Civ 72.

¹⁷² Wong (2005) suggests this leaves the law open to challenge under the Human Rights Act 1998.

¹⁷³ *White v White* [2001] AC 596; see Chapter 5.

¹⁷⁴ Douglas, Pearce and Woodward (2009a).

¹⁷⁵ Burgoyne and Sonnenberg (2009).

¹⁷⁶ Gardner (2013).

¹⁷⁷ Law Commission Report 307 (2007). The proposals and surrounding issues are discussed in Bridge (2007a, b and c) and Wong (2006). Law Commission Report 278 (2002), discussed in Probert (2002a). See Fox (2003) for a discussion of how other jurisdictions have dealt with this issue.

each other, but these will be normally be at a lower level than would be available if they were married. It is proposed that a claim can be made if the couple meet the 'eligibility criteria': these should be either that the couple have a child or that they have lived together for a certain period of time.¹⁷⁸ By cohabitation the Law Commission means that a couple are living as a couple in a joint household.¹⁷⁹ A couple would be free to opt out of the scheme if they wished.¹⁸⁰ However, the court could set aside an opt-out if following it would cause manifest unfairness. An applicant would need to prove that:

- the respondent has a retained benefit; or
- the applicant has an economic disadvantage;
- as a result of qualifying contributions the applicant has made.¹⁸¹

A qualifying contribution is 'any contribution arising from the cohabiting relationship which is made to the parties' shared lives or to the welfare of the members of their families'.¹⁸² Contributions can include financial, non-financial and future contributions, but they must have an enduring consequence for the couple at the time of the separation. An economic disadvantage could, therefore, include loss of earning potential as a result of caring for children during the relationship and afterwards. A retained benefit could be capital acquired during the relationship or enhanced earning capacity created during the relationship. The court would make an order ensuring a fair sharing of the gains and losses resulting from the relationship. This might require a party who had made a benefit from the relationship to share that, or require a party who had suffered a disadvantage to be compensated. However, the court would take into account, as first consideration, the welfare of any child of both parties. The court could make lump sum orders, property transfers and pension sharing orders. However, it could not make ongoing periodic payment orders.¹⁸³

The Law Commission rejects an argument that once a couple satisfy the 'eligibility criteria' they should be treated in the same way as a married couple for financial relief purposes. It argues that the notion of 'equal partnership' which applies to marriage cannot necessarily be said to apply to cohabitants.

Where parties are married, the formal commitment that they have entered into may be taken as good evidence that they have assumed mutual responsibilities to support each other in case of need . . . Cohabitants currently have no legal obligation of mutual support either during or after their relationship. Even in long relationships, there may be no clear basis for concluding that the parties have assumed that sort of responsibility towards each other.¹⁸⁴

Whether treating couples in the same way as a married couple would undermine marriage is a matter for debate. One study of what has happened in Australia where those living together for two years or more are treated in the same way as a married couple, suggests that reform had no effect on marriage rates.¹⁸⁵

¹⁷⁸ The Law Commission suggested that a figure between two and five years might be appropriate.

¹⁷⁹ Couples who were closely related or one or both of whom were under age 16 would be excluded.

¹⁸⁰ Any opt-out would need to be in writing and signed by both parties.

¹⁸¹ Law Commission Report 307 (2007: para 4.33).

¹⁸² Law Commission Report 307 (2007: para 4.33).

¹⁸³ See Douglas, Pearce and Woodward (2008) for a survey of cohabitants' options of how the Law Commission proposals would work.

¹⁸⁴ Law Commission Consultation Paper 179 (2006: 3.36).

¹⁸⁵ Kiernan, Barlow and Merlo (2006).

The Government at first announced that it would delay responding to the Law Commission proposals until it has seen the impact of similar proposals which have been enacted in Scotland. The Government has particular concerns over the costs to the state of enacting such a scheme.¹⁸⁶ Recently it was announced that reform would not be introduced during the current term of government. This has, somewhat unusually, receive critical comment from the judiciary with Lady Hale stating:

As Professor Cooke also pointed out, the 'existing law is uncertain and expensive to apply and, because it was not designed for cohabitants, often gives rise to results that are unjust'. The reality is that the 'sufficient basis for changing the law' had already been amply provided by the long-standing judicial calls for reform (dating back at least as far as *Burns v Burns* [1984] Ch 317, at 332); by the Law Commission's analysis of the deficiencies in the present law and the injustices which can result; by the demographic trends towards cohabitation and births to cohabiting couples, which are even more marked south of the border than they are in the north; and by the widespread belief that cohabiting couples are already protected by something called 'common law marriage' which has never existed in the south. There was no need to wait for experience north of the border to make the case for reform.¹⁸⁷

Here is a summary of some of other ways which could be used to reform the law in this area.¹⁸⁸

1. The law could give the courts the power to redistribute the property of cohabitants in the same way as they can redistribute the property of married couples.¹⁸⁹ (This proposal was discussed in Chapter 3.) It should be noted that such a proposal would leave those people sharing homes who are not in a marriage-like relationship (e.g. three friends sharing a house or an older person and their carer) with the current legal regulation.
2. The law could focus on the intentions of the parties. This approach might encourage unmarried cohabitants to draw up cohabitation contracts, but, if they did not, the courts would seek to ascertain the parties' intentions from what was said and done during the relationship. The benefit of this approach is that it would promote the parties' autonomy – the law would be seeking to enforce their intentions, rather than telling them what to do. The disadvantages are shown by the law on constructive trusts. Snippets of vaguely recalled conversations may have far more emphasis placed upon them than was intended. Further, in many of these cases the intention of the owner of the property may be quite different from the intention of the cohabitee, and so seeking any kind of *common* intention could be a futile task.
3. The law could focus on the reasonable expectations of the party who is seeking an interest in the property. The difficulty with this approach is revealed by the following scenario. An owner tells the claimant that she can live with him but she will never acquire an interest in his house. If the claimant were then to move in and spend an enormous amount of effort in maintaining and improving the property, she could not reasonably expect the owner to intend that she thereby acquires an interest in the house, even though justice may call out for her to be awarded an interest. The approach also suffers from the difficulty that establishing that the claimant's belief that she had an interest in the property was reasonable is likely to require proof of conversations of the kind which bedevil the present law.

¹⁸⁶ Miles, Wasoff and Mordaunt (2011) found research into the Scottish scheme did not suggest there would be significant increased costs.

¹⁸⁷ *Gow v Grant* [2012] UKSC 29, para 50.

¹⁸⁸ Miles (2003) and Probert (2003) provide excellent discussions on this.

¹⁸⁹ Discussed in Wong (2009).

4. These concerns have produced an interesting variant of the reasonable expectation approach and this is to focus on what share the claimant might reasonably believe he or she *ought* to have.¹⁹⁰ In the scenario discussed in the previous paragraph, although the owner made it clear that the claimant was not to acquire an interest in the property and so she cannot reasonably believe that she was to acquire an interest, she might nevertheless reasonably expect that she ought to. The problem of this variant centres on the concept of reasonableness. Our society does not have a fixed set of views on when people should be entitled to a share in houses, so it is hard to say what is reasonable or not. In effect, this model is similar to option 1 above – it is simply a question of judicial discretion. So it may be more desirable to give the judiciary such discretion explicitly.
5. The courts could focus on the actions performed on the property by the party who has no legal interest in the property. The law should then seek to value the work they have performed. This approach could be based on a form of unjust enrichment. This means that if the owner has received a benefit of the other party's work, the owner would be unjustly enriched by retaining the benefits of the work unless the other party acquires an interest in the property.¹⁹¹ The benefit of this approach is that by focusing on what was done (rather than said, foreseen or intended), a more concrete concept is used. It is certainly easier to prove. The difficulty with this approach is twofold. The first is valuation of the benefit. This is a particular problem where the benefit is in the form of work which is not usually valued in economic terms, such as housework, and which at the time the parties themselves may not have regarded as of economic value.¹⁹² Joanna Miles suggests that it should be recognised that the 'entitlement to a share in the property derives not from any presumed economic value of the contributions, but from an acknowledgement of their unique, socially valuable contribution to the joint enterprise entailed in the parties' relationship'.¹⁹³ Secondly, there is difficulty with the unjustness element. Could the owner argue that in return for housework he permitted the claimant to stay in the house, or provided for her financially in other ways and it is therefore not unjust to deny her an interest in the property?
6. The court could focus on the nature of the parties' relationship. Gardner¹⁹⁴ has argued that the court should consider whether the relationship of the parties has reached the stage of 'communality'. He criticises the present approach for being individualistic: dealing with disputes using the values of commercial law. It would be better to use values which governed the parties' relationship to resolve their dispute. Gardner suggests that the values promoted by a loving relationship are sharing and communality: 'that the parties have committed themselves to sharing the incidents of the relationship between them – good and bad; wealth and costs; work and enjoyment'.¹⁹⁵ The example he gives, however, demonstrates the great difficulties with his approach. He considers a situation where one person invites another to a meal, but the other is unable at the last minute to turn up. He suggests that if they were not yet a couple there would be no expectation to pay for their share of the food, but if they had reached communality, the one unable to attend would expect to pay for his or her share of the meal. Whether most couples would regard there to be an obligation to pay in such cases is very much open to question. Therein lies the problem: it is extremely difficult for someone from the outside to judge

¹⁹⁰ Eekelaar (1994b).

¹⁹¹ See, e.g., Dickson J in *Pettkus v Becker* (1980) 117 DLR (3d) 257 at p. 274.

¹⁹² Gupta *et al.* (2010).

¹⁹³ Miles (2003: 641).

¹⁹⁴ Gardner (1993). See also Gardner (2004 and 2013).

¹⁹⁵ Gardner (1993).

the nature of a relationship. Take sexual relations. For some couples the onset of sexual relations may indicate that the relationship has become a deeply committed one; for other couples sexual relations may not indicate this at all. These concerns are greater if one considers that judges may not be best placed to assess the nature of younger people's relationships. The communality approach might also require deeply personal details of a relationship to be aired before the court. A further difficulty is that one party may regard the relationship to have reached communality and the other party not. These arguments suggest that although this approach might be the most attractive in theory, there are grave practical problems with it.

7. Another option is to rely on the law of unjust enrichment.¹⁹⁶ The benefit of this approach is that it shifts the focus from why the applicant should be entitled to have a share, to asking whether the defendant should be entitled to keep all the ownership of the property. There may be political benefits too as the argument is no longer attempting to put a cohabitant in the position of a married person, but is seeking to prevent a cohabitant from engaging in fraud-like behaviour.

11 Rights to occupy the home

A person has the right to occupy the house if they have an interest in the property under an express trust, resulting trust, constructive trust or a proprietary estoppel. Even if the claimant is unable to establish such an interest, he or she may be able to establish a constructive trust, or a spouse may have a right to occupy the property under a contractual licence or a home right.

A Contractual licences

A contractual licence is a contract under which the owner permits the licensee to occupy the property.¹⁹⁷ The claimant needs to show all the requirements of an ordinary contract. There can be particular difficulties for family members in demonstrating that the owner intended to create legal relations.¹⁹⁸ The holder of the contractual licence might be able to obtain damages if the owner excludes him or her, but the contractual licence will not bind third parties.¹⁹⁹

B Home rights

(i) When are home rights conferred?

Section 30(1) of the Family Law Act 1996²⁰⁰ explains when a home right is bestowed. Home rights are conferred in respect of a dwelling-house,²⁰¹ which has been or was intended to be the home of the spouses where:

¹⁹⁶ Douglas, Pearce and Woodward (2009b).

¹⁹⁷ *Tanner v Tanner* [1975] 3 All ER 776.

¹⁹⁸ *Horrocks v Forray* [1976] 1 All ER 737.

¹⁹⁹ *Tanner v Tanner* [1975] 3 All ER 776.

²⁰⁰ As amended by Civil Partnership Act 2004, Sch 9.

²⁰¹ Defined widely in Family Law Act 1996 (hereafter FLA 1996), s 63 to include, e.g., a caravan.

LEGISLATIVE PROVISION**Family Law Act 1996, section 30(1)**

- (a) one spouse or civil partner ('A') is entitled to occupy a dwelling-house by virtue of–
 - (i) a beneficial estate or interest or contract; or
 - (ii) any enactment giving A the right to remain in occupation; and
- (b) the other spouse or civil partner ('B') is not so entitled.

The right is also awarded to spouses or civil partners who have an equitable interest in the home.²⁰² The home right ceases on divorce, dissolution or death of either spouse or civil partner,²⁰³ unless a court orders otherwise.²⁰⁴

(ii) What do home rights consist of?

A home right consists of:

LEGISLATIVE PROVISION**Family Law Act 1996, section 30(2)**

- (a) if in occupation, a right not to be evicted or excluded from the dwelling-house or any part of it by the other spouse except with the leave of the court given by an order under section 33;
- (b) if not in occupation, a right with leave of the court so given to enter into and occupy the dwelling-house.²⁰⁵

The real significance of the right is that, otherwise, the spouse or civil partner without it could be evicted by the other.

Section 30(3) of the 1996 Act states that payments made by the person with the home right in respect of rent or mortgage should be treated by the recipient as if made by the owner or tenant of the property. So, if a husband stops paying rent on a house taken in his name, the wife can pay the rent and the landlord would have to accept the payment as if made by the husband, and so cannot evict her for non-payment of rent.

(iii) Protection of home rights against third parties

The home rights should be protected by a notice on the land register if the land is registered under the Land Registration Act 2002, or as a class F Land Charge if the land is unregistered.²⁰⁶ The significance of this is that if the owner sells the house to a third party and the home right is registered then the third party must permit the home rights holder to occupy the property.

²⁰² FLA 1996, s 30(9).

²⁰³ FLA 1996, s 30(8).

²⁰⁴ FLA 1996, s 33(5).

²⁰⁵ FLA 1996, s 30(2).

²⁰⁶ The home right is not an overriding interest, even if the holder is in occupation: FLA 1996, s 31(10)(b).

12 The sale of a family home: enforcing trusts

If a cohabiting couple split up, there are two questions for the court. The first is: who owns or has the right to occupy the property? That is the question we have just discussed. The second is whether the property should or may be sold. This is the question which will now be addressed.

If two unmarried cohabitants²⁰⁷ co-own a property (for example, under a constructive trust), there may then be a dispute over whether or not the property should be sold. The Trusts of Land and Appointment of Trustees Act 1996 governs the present law. Land that is co-owned is now held under a trust of land. The trustees have a power to sell and also a power to postpone sale. Section 14(1) permits any trustee or beneficiary under a trust to apply to the court for an order. The court then has the power to make any order relating to the exercise of the trustees' functions as it sees fit.²⁰⁸ Most significantly, the court can order the trustees to sell the property and pay the beneficiaries their cash share of the property.²⁰⁹ The court could also refuse to order sale but require the party remaining in occupation of the home to pay the other 'rent'.²¹⁰

There is a set of guidelines to be considered by the court when deciding whether to exercise its powers.²¹¹ The guidelines are set out in s 15 of the Trusts of Land and Appointment of Trustees Act 1996. These do not rob the courts of a wide discretion, but rather give them some factors to take into account.²¹²

LEGISLATIVE PROVISION

Trusts of Land and Appointment of Trustees Act 1996, section 15

- (a) the intentions of the person or persons (if any) who created the trust,
- (b) the purpose for which the property subject to the trust is held,
- (c) the welfare of any minor who occupies or might reasonably be expected to occupy any land subject to the trust as his home, and
- (d) the interests of any secured creditor of any beneficiary.²¹³

Different guidelines apply to a trustee in bankruptcy.

The general attitude of the courts has been that a house is bought by the couple as a home, but if they split up then the purpose of the trust has failed (factor (b) above) and a sale can be ordered.²¹⁴ If there are children living in the house, the interests of the children will often be an important consideration, particularly if ordering the sale of the property will disrupt their

²⁰⁷ Disputes between married couples over whether a house should be sold should normally be resolved under the Matrimonial Causes Act 1973, although see *Miller Smith v Miller Smith* [2010] 1 FLR 1402 where the wife was obstructing the divorce and the court was willing to make an order under the Trusts of Land and Appointment of Trustees Act 1996.

²⁰⁸ According to *Lawrence v Bertram* [2004] FL 323 one party can be ordered to buy out the other party.

²⁰⁹ Trusts of Land and Appointment of Trustees Act 1996, s 15.

²¹⁰ Trusts of Land and Appointment of Trustees Act 1996, s 13.

²¹¹ See Dixon (2011) for a detailed discussion.

²¹² *TSB v Marshall and Rodgers* [1998] 2 FLR 769; *The Mortgage Corp v Shaire* [2000] 1 FLR 973.

²¹³ Under s 15(3) the wishes of the majority of the beneficiaries should be taken into account.

²¹⁴ *Jones v Challenger* [1961] 1 QB 176 CA. But see *Holman v Howes* [2005] 3 FCR 474 where the woman was promised on purchase that she could stay in the house as long as she needed, and so no sale was ordered.

education.²¹⁵ The aim of the Act is to give the courts wide discretion, and so each case will be decided on its own special facts.²¹⁶ Notably, this is one of those areas of the law where the interests of children are not made paramount.²¹⁷

There have been some attempts to use s 14 where the parties are divorcing or have divorced. The courts have adopted a strict approach: couples who are divorcing or have divorced must apply for orders under the Matrimonial Causes Act 1973 and may not use the Trusts of Land and Appointment of Trustees Act 1996.²¹⁸

13 Conclusion

This chapter has revealed that the law has failed to find a consistent approach to family property. The law in this area is interesting in its treatment of the ownership of the family home. As there is no discretion in the court to redistribute the property of unmarried couples on the breakdown of their relationship, the law on who owns the family home is particularly important for them. This has led the court to develop (manipulate, some would say) land law to enable a cohabitant to establish an interest in a home even if the normal formality requirements that attach to the transfer of interests in land have not been complied with. The current law is widely seen as unsatisfactory. In particular it appears to give exaggerated emphasis to conversations between the parties and inadequate weight to how they live their relationships and what disadvantages they suffer or gains they make from living together. The Law Commission proposals which seek to ensure a fair distribution of the economics gains and disadvantages from the relationship has much to commend it.

Further reading

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Gardner, S. (1993) 'Rethinking family property', *Law Quarterly Review* 109: 263.

²¹⁵ *Bernard v Joseph* [1982] Ch 391; *Edwards v Lloyds TSB Bank* [2005] 1 FCR 139.

²¹⁶ *The Mortgage Corp v Shaire* [2000] 1 FLR 973. See Pawlowski and Brown (2012) for a helpful discussion. The court can order that the property be sold to one of the beneficiaries: *Bagum v Hafiz and Hai* [2015] EWCA Civ 801.

²¹⁷ Warren (2002) discusses the impact of bankruptcy on children.

²¹⁸ *Laird v Laird* [1999] 1 FLR 791; *Tee v Tee and Hamilton* [1999] 2 FLR 613.

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6

Property on separation

Learning objectives

When you finish reading this chapter you will be able to:

1. Discuss the theoretical issues around child support
2. Examine the law on child support
3. Summarise the powers available to the court in financial disputes
4. Debate the issues around spousal support
5. Describe how the relevant provisions of the MCA relate to financial disputes
6. Evaluate the principles developed by the courts in financial cases
7. Assess the law on pre-nuptial agreements

1 Introduction

In 2009 a man who was divorcing his wife sought the return of his kidney that he donated to her when she needed a transplant.¹ He failed, of course, but it's a powerful metaphor for the difficulties that can arise in seeking to divide a couple's property on divorce or dissolution. There is a widespread perception that divorce causes financial ruin for a wealthy spouse, although, as we shall see, it is women who generally do particularly badly out of divorce. The process can certainly be profitable for lawyers. In a recent case there was litigation over six and a half years, generating legal costs of £6.4 million.² In another a couple spent over 70 per cent of their assets on their financial disputes.³

It is notable that while a couple are married or civil partners the law does little to interfere in the property interests of the parties. By contrast, on separation the law is willing to intervene to ensure that the spouse's or civil partner's financial interests are adequately protected. The law distinguishes financial support for children from financial support for partners.

¹ BBC Newsonline (2009d).

² *Young v Young* [2013] EWHC 3637 (Fam).

³ *KSO v MJO* [2008] EWHC 3031 (Fam).

In relation to child support, the law is now governed by the Child Maintenance and Other Payments Act 2008 and, to a lesser extent, the Children Act 1989. The 2008 Act replaces the previous child support scheme in the Child Support Act 1991. The child support legislation applies equally to parents who are married, civil partners and those who are unmarried. However, in relation to financial support for partners an important distinction is drawn between spouses or civil partners and unmarried couples. For married couples and civil partners the courts have the power to redistribute the family's property between the parties as they consider just, taking into account all the circumstances of the case. For unmarried couples the courts can simply declare who owns what, and have no power to require one party to transfer property to another, except as a means of providing child support. (We discussed the law on property ownership in Chapter 5.) This chapter will not explore the enforcement of financial orders, which raises complex issues.

2 Child support: theoretical issues

Learning objective 1

Discuss the theoretical issues around child support

There is grave concern over the economic circumstances in which many children are brought up in the United Kingdom. There are 3.9 million children living in poverty in the United Kingdom. That is 28 per cent of all children.⁴ For several years

the Government has promised to eradicate child poverty. The Child Poverty Act 2010 places a statutory duty on the Secretary of State to eradicate child poverty by 2020.⁵ Current projections are that by 2020 in fact, child poverty will have increased to affect 3.6 million children.⁶ The 2010 Act has been quietly sidelined, although the Government has created the Social Mobility and Child Poverty Commission which is charged with tackling child poverty. There are particular concerns about children of lone parents. Almost half of all lone parent households are in poverty. Now 21 per cent of all households are lone parent households.

As this discussion demonstrates, the question of financial support is crucial if children's interests are to be adequately protected. The issue raises some important questions of theory, which will now be discussed.

A Does the obligation to support children fall on the state or on the parents?

A key issue concerning child support is: on whom does the burden of support for children primarily fall?⁷ Ultimately, is the state responsible for the financial support of children (although the state can recoup the money from parents) or are the parents responsible (although the state can step in to support children if the parents fail)? In other words, is it the state's primary role to enforce parental responsibility to pay child support, or to provide guaranteed support itself for the child? Krause suggests that the obligation is shared between society and the parents: 'children have a right to a decent start in life. This right is the obligation

⁴ Child Poverty Action Group (2016). Poverty here is defined as below 60 per cent of contemporary median net disposable household income after housing costs.

⁵ Although see Palmer (2010) for a sceptical consideration of the statute.

⁶ Child Poverty Action Group (2016).

⁷ See the excellent discussion in Ferguson (2008).

of the father and equally of the mother, and in recognition of a primary and direct responsibility, equally the obligation of society.⁸

Looking at this issue from another angle, it is possible to regard the question as one of children's rights. If it is accepted that children should have rights, it seems inevitable that children have a right to the financial support necessary so that they can, at least, be fed and clothed.⁹ Article 27(4) of the United Nations Convention on the Rights of the Child declares: 'State parties shall take all appropriate measures to secure the recovery of maintenance for the child from the parents or other persons having financial responsibility for the child, both within the State Party and from abroad . . .' Given that the state is a more reliable supporter than the parent, it is in the child's interests that the state should have the primary obligation to ensure children receive sufficient support, but how the state's obligation is performed may vary from family to family.

We shall be discussing the legislation shortly but the Child Support Act 1991 regarded the burden of child support as clearly on the parents, and sees the Government's role as 'helping' parents to meet their responsibility.¹⁰ Such an approach can also be seen in the Child Maintenance and Other Payments Act 2008 which emphasises the importance of parents negotiating with each other the appropriate level of child support. The Child Poverty Act 2010, however, recognises that the state has obligations too. The question is made even more complex in that the state's approach to child support may seek to pursue a variety of aims. As well as ensuring that the child is adequately provided for, a scheme may also endeavour to discourage births out of marriage; to punish unmarried fathers; or to decrease the legal aid costs associated with relationship breakdown.¹¹

There are three main aspects of the state's response to poverty among children. First, there is a complex system of benefits and tax credits for low-income and unemployed parents. The state does recognise some obligation to *all* children by providing child benefit payments to all parents regardless of wealth,¹² although since 2010 child benefit is not paid to higher rate tax payers. Second, there are the incentives on all parents to seek employment, especially on those currently claiming benefits.¹³ The current Government's policies on child poverty are primarily directed towards encouraging parents to work (e.g. by increasing the provision of child care), rather than by giving increased benefits to non-working parents.¹⁴ Fortin is critical of such an approach. She claims that:

despite the Government's assertions that 'Work is good for you' work clearly does not increase the income of all families and may not benefit all children . . . The confident claims that work produces good outcomes for children are also surprising given the lack of agreement over the potential impact on young children of long-term nursery care, rather than full-time maternal care at home.¹⁵

Third, there is the child support legislation that seeks to find an effective way to ensure money for child support is paid by non-residential parents (those parents who no longer live with the child). A recent Government document on child support states:

⁸ Krause (1994: 232).

⁹ Wikeley (2006c).

¹⁰ Department of Social Security (2000: 1).

¹¹ Krause (1994).

¹² See Ferguson (2008) for further discussion of the state's responsibility to children.

¹³ A useful summary is Douglas (2000a).

¹⁴ Daly and Scheiwe (2010).

¹⁵ Fortin (2009b: 340–1).

Parents, whether they live together or not, have a clear moral as well as legal responsibility to maintain their children. Relationships end. Responsibilities do not. Government and society as a whole have a clear interest in making sure these responsibilities are honoured.¹⁶

Sally Sheldon, by contrast, is not convinced that the present law adequately protects the interests of children. She argues: 'Leaving children dependent on the economic means of their parents has contributed significantly to the widespread poverty of women and children and, in countries where the wealth to rectify this situation exists, this should be cause for national shame.'¹⁷ She therefore argues that the state should be regarded as primarily responsible for the financial support of children.

B Are the parents' obligations independent or joint?

Accepting that parents are obliged to support their children, the question is then whether parents are separately responsible for the support of the child or whether they share this burden, in that each parent should only be expected to pay their own half of the child support. If, for example, a mother who is receiving income support is raising the child, should a non-residential employed father be required to pay all the expenses of the child or only 'his half' of them?¹⁸ Or is a non-resident father expected to pay child support if the mother is earning significantly more than he is? It is arguable that the residential parent provides her 'share' of the child support through the time and effort she puts in day to day for the child, and that therefore the full financial burden should fall on the non-residential parent.¹⁹

C Biological or social parents?

If children should be supported jointly by their parents, the next question is: What is meant by parents in this context? Specifically, where a parent has both stepchildren and biological children, how should his or her resources be shared between them? Imagine A and B have a child, Y. A moves out and later lives with C, who has a child, X, by a previous relationship. Should A support Y or X? Or should he try to support both? Prior to the Child Support Act 1991, the practice in many cases was that if a man left his first family and later moved in with a second family, he would provide for the second family and the state would support the first family through benefits. The Child Support Act 1991 and Child Maintenance and Other Payments Act 2008 attach liability to biological parenthood. So, in our example, A is liable in law to support Y and not X.²⁰ Interestingly, one study suggests that this is in line with the views of children whose parents have separated.²¹ Gillian Douglas²² makes the case for why this should be so:

The act of knowingly engaging in behaviour that runs the risk that a child will be created who will be vulnerable and dependent is a valid moral basis for imposing the prior obligation to support that child. Causation both reflects the current legal rationale for the duty to maintain

¹⁶ Department for Work and Pensions (2006c: 1).

¹⁷ Sheldon (2003: 193).

¹⁸ Young and Wikelely (2015).

¹⁹ Eekelaar (1991a: 111).

²⁰ See Chapter 8 for a general discussion on the differences between biological and social parenthood.

²¹ Peacey and Rainford (2004) found that 81 per cent of respondents agreed that non-resident parents had an obligation to support their child.

²² Douglas (2016).

the child and provides a valid and sufficient moral basis for it, which caters for the situation where the parent is not committed to the child.

There are a number of issues here:

1. *Should financial responsibility be linked with parental responsibility?* Is it fair that under English and Welsh law an unmarried father is automatically required to support the child financially, but is not automatically granted parental responsibility? It can be argued that as it is inevitably in the child's interests to receive financial support from his or her father, but not inevitably in the child's interest for his or her father to have parental responsibility, the position can be justified. For example, if the father does not know the child at all, it may be in the child's interests to require him to pay but not to permit him to make decisions on the child's behalf. However, from a father's perspective the position appears most unjust.²³ Indeed, there is some evidence that both mothers and fathers in their minds link the payment of child support and contact.²⁴
2. *Should financial responsibility be coupled with social parenting?* It could be argued that the law should match fiscal legal liability with the feelings of social or moral obligation that parents have. This, it has been maintained, would make the law more effective and acceptable. Eekelaar and Maclean found in their survey that fathers thought financial obligations should be tied to the social role played by fathers, but mothers thought the obligations should follow the blood tie.²⁵ The study demonstrated that there was a strong link between payment of financial support and contact with the child. Where the father had contact with the child he was more likely to support the child than where he did not. Eekelaar and Maclean argued:

A support obligation which accompanies or arises from social parenthood is embedded in that social parenthood; thus the payment of support can be seen as part of the relationship maintained by continued contact. But an obligation based on natural parenthood rests on the policy of instilling a sense of responsibility for individual action and equity between fathers who do and fathers who do not exercise social parenthood.²⁶

The workings of the child support legislation in practice has revealed that where there is an ongoing level of contact between the non-resident parent and the child there is more likely to be payment of child support and that such payments are perceived to be fair.²⁷

3. *Should it matter whether the pregnancy was planned or not?* Hale J in *J v C (Child: Financial Provision)*²⁸ confirmed that liability under the Children Act 1989 and the Child Support Act 1991 did not depend on whether the pregnancy was planned or not. Although it may be understandable that, from a parent's perspective, whether the pregnancy was planned or not should be relevant in determining liability, from the child's viewpoint he or she should not be prejudiced because of his or her parents' attitudes at the time of the conception.²⁹

²³ By contrast, in *P v B (Paternity; Damages for Deceit)* [2001] 1 FLR 1041 a father sued in deceit his cohabitant whom he claimed had falsely told him her child was his, leading to him paying £90,000 by way of child support.

²⁴ Herring (2003a).

²⁵ Eekelaar and Maclean (1997). These might not reflect the views of the public at large: Herring (1998b: 214).

²⁶ Eekelaar and Maclean (1997: 150).

²⁷ Davis and Wikeley (2002).

²⁸ [1999] 1 FLR 152, [1998] 3 FCR 79.

²⁹ Spon-Smith (2002: 29) notes a case in which a man who was deceived into thinking that he was the father of a child was refunded by the CSA £30,000 that he had paid by way of child support when it turned out he was not the father.

That said, some commentators have argued that the man should be liable only if he has intentionally impregnated the mother and thereby can be said to have consented to taking on the financial liability.³⁰ As Kapp has argued:

To saddle a man with at least eighteen years of expensive, exhausting child support liability on the basis of a haphazard vicissitude of life seems to shock the conscience and be arbitrary, capricious, and unreasonable, where childbirth results from the mother's free choice . . . a man no longer has any control over the course of a pregnancy he has biologically brought about [and] it is unjust to impose responsibility where there is no ability to exercise control.³¹

Others argue that, at least, a father should not be liable if he has been misled by the mother into believing that she is using contraception or is infertile.³² There is, perhaps, here a clash between what may be fair to the father and what is in the interests of the child. Nick Wikeley³³ has written:

There is an unspoken value judgment that child support is not a right of the child but an imposition on the father which must be construed as restrictively as possible . . . such a perspective is based upon the Lockean philosophical tradition which emphasizes property rights and individual autonomy and views child support as a taking which demands a justification. The result is that the rights of the parent and the children inevitably come a poor second to those of the non-resident parent.

D What level should the support be?

There are many options for setting the correct level of child support. Some of the options are:

1. *Subsistence costs*. This would be the amount of money that would be necessary to support the child at a minimally decent level. It could be assumed to be the amount of the welfare payment from the state that would be paid in respect of the child.
2. *Acceptable costs*. This would be the estimated level of support required to keep a child at a reasonably acceptable standard of living. It might be suitable to look at the level of payments made by local authorities to foster parents as a guide for the appropriate figure.
3. *Expected lifestyle costs*. This would be the amount needed to keep the child at the lifestyle level which would have been expected had the parents not separated.³⁴ The argument would be the child should not suffer a change in lifestyle because of a decision of their parents.
4. *Actual expenditure*. The law could focus on the amount actually spent by the residential parent, in so far as it was reasonable, and require the non-residential parent to share these costs. The difficulty with this approach would be the ambiguity which surrounds the term 'reasonableness'. The average cost of raising a child until the age of 21 has recently been calculated at £227,226.³⁵
5. *Cost-effective level*. The amount of support should be fixed at a level which can be regularly paid. That might be a fixed percentage of the non-residential parent's income. This

³⁰ Brake (2005).

³¹ Kapp (1982: 376–7).

³² See further the discussion in Sheldon (2001a).

³³ Wikeley (2005: 98).

³⁴ Parker (1991).

³⁵ Osborne (2014).

approach is highly pragmatic. It focuses not on the child but on the expense to the state of enforcing and collecting the payments. It argues that, whatever the ideal, if the level is fixed at too high a rate and seen as unfair, then the money will not be paid. It is therefore better to set a lower rate which is more likely to be paid and thereby avoid the costs of enforcement.

6. *Equality of households*. This approach would seek to achieve an equal standard of living between the father's and mother's households.³⁶ This would not necessarily mean fixing equal income, because the cost of caring for the child would involve the residential parent in greater expense. This method requires integration of the maintenance of the parent with support for the child.

E Paternity fraud

There have been cases where a man has paid child support after being falsely told that he was the father of a child. In *A v B (Damages: Paternity)*³⁷ a man obtained damages against a former partner for deceit in relation to a paternity issue. He was awarded damages to compensate him for sums paid for the benefit of the child, but he could not recover the sums spent on his partner.

F 'The lone-parent crisis'

In the present political climate it is difficult to separate the question of child support from the concerns over the 'crisis of lone parents'. There has been a substantial increase in the number of lone-parent households. In 2015 in England and Wales a lone parent headed 25 per cent of households with a child; in 1971 the figure was 8 per cent.³⁸ The reaction to the increase in lone parenthood has been varied.³⁹ Some see lone parents as an alarming sign of social disintegration, while others view lone parenthood as a crucial aspect of the liberation of women from the traditional family.⁴⁰ As discussed (in Chapter 3) while there is general agreement that children in lone parents families do less well than children raised in two parent households, there is much debate as to why this is so. Some argue that the root cause of the disadvantage faced by children of lone parents is the poverty associated with lone parenthood, while others cite the lack of a father figure or stable family background as the primary cause. In political terms, these arguments lead to debates over whether state benefits to lone parents encourage lone parenthood and so should be restricted or whether such benefits help alleviate the disadvantages attached to lone parenthood and should be increased.

Although it is common to refer to 'the problem of lone mothers', it might be more appropriate to refer to 'the problem of non-residential fathers'. Lady Thatcher, who as Prime Minister had steered the Child Support Act 1991 through Parliament, notably recalled in her memoirs that she was 'appalled by the way in which men fathered a child and then absconded, leaving the single mother – and the taxpayer – to foot the bill for their irresponsibility and condemning the child to a lower standard of living'.⁴¹ Similar attitudes were expressed when it was

³⁶ Parker (1991).

³⁷ [2007] 3 FCR 861, discussed in Wikeley and Young (2008). See also *P v B (Paternity: Damages for Deceit)* [2001] 1 FLR 1041.

³⁸ Office for National Statistics (2016a).

³⁹ Fox Harding (1996).

⁴⁰ Morgan (2007).

⁴¹ Thatcher (1995: 630).

disclosed that a 21-year-old man had just fathered his seventh child.⁴² But a better way to express this concern may be not shocked by the ‘immorality’ of the father, but concerned at the poverty of the children. Some 4.5 million children are eligible to receive payments from non-resident parents, but fewer than a third actually receive anything at all. Many others receive only a small portion of the sum due to them.⁴³ Currently under the Child Support Act 1991 system, which only deals with some cases, just under £4 billion of child support is due but has not been paid.

G Child support and parental support

If a parent is obliged to support a child, should he or she necessarily be required to provide for the residential parent?⁴⁴ There is no point in supplying a child with food and clothing if there is no one to feed or clothe the child. So a strong case can be made that if a child is to be cared for by a residential parent, then the non-residential parent should be liable to support the residential parent at some level. Another key question is how to balance the claims of children and spouses on divorce. A straightforward approach could be that first the courts should resolve the issues related to the child’s support, and then turn to spousal support. In truth, for most couples nowadays, child support takes up such a large part of income that very limited resources are available for spousal support.

H Should child support be a private issue?

Should the level of child support be fixed by the Government or is it a private matter to be left to negotiation between the parties? In considering this issue it is useful to distinguish cases where the child and resident parent are receiving state benefits and cases where they are not. Where they are, the state has a clear interest in ensuring that the non-resident parent recompenses the state for the amount paid out in benefits, if he or she can afford to do so. But if neither party is in receipt of benefits, does the state have an interest, justifying intervention, in how the parties decide to arrange child support? For example, if a couple decide that the best way to arrange their post-separation finances is that the wife and children will receive the former matrimonial home, but to compensate the husband for his loss in the share of the house he will have to pay less by way of financial support than he would have done, is it proper for the state to intervene to require the husband to pay a certain minimum amount? Or should this be regarded as a private matter which should be left to the decision of the couple themselves? It could be argued that the issue of child poverty is an important one for the state, and parents should not be permitted to enter an agreement which leaves the child only barely provided for.⁴⁵ However, the Child Maintenance and Other Payments Act 2008 is based on the principle that individuals should negotiate for themselves child payments, and the primary role of the state is to assist in these negotiations and give effect to them.

⁴² BBC Newsonline (2006h).

⁴³ Bryson *et al.* (2013).

⁴⁴ See the discussion on Children Act 1989, Sch 1 below.

⁴⁵ Wikeley (2006c).

3 Financial support of children

A Financial support of children living with both parents

A crucial point about the present law is that generally it does not intervene in the financial affairs of a family who are living together. As long as the child is provided for at a basic level and the child is not suffering significant harm, the state will not interfere. Indeed many fathers have complained that they are required to pay more for their child after the separation than they did when living with the child. It is on parental separation that the law intervenes and can require a parent not just to provide for the basic needs of the child, but also to apply a fair level of support. This non-intervention in family life except upon the separation of parents is one aspect of the weight the law places on the protection of the private life of the family.⁴⁶ In fact, a child who wishes to complain that he or she is not being given enough pocket money could seek an order under s 8 of the Children Act 1989, but it is hard to imagine a court being willing to hear such a case.⁴⁷

B The Child Maintenance and Other Payments Act 2008

Learning objective 2

Examine the law on child support

Frankly the current law is in a mess. The Child Maintenance and Other Payments Act 2008 now governs the law on child support. It was intended to replace the Child Support Act 1991 and the work of the Child Support Agency. The old system was widely regarded as a failure, as the following statistics demonstrate.

KEY STATISTICS

- By March 2016 the accumulated debt under the CSA 1991 owed by non-resident parents since 1993 stood at over £3.9 billion. Much of that was believed to be uncollectable. 127,000 children had not had their child support payment met.
- 30% of non-resident parents who had been assessed did not pay.
- Under the CSA 1991 it cost around 60 pence in administration costs to get each £1 of maintenance to a child.
- Only one-half of lone parents had a maintenance order or agreement in their favour. Where they did, only 64% received anything.⁴⁸ Of all parents with care on benefits, only 25% were actually receiving any money from the Agency.⁴⁹ As the legislation was especially designed to help this group, this is particularly disappointing.

These figures represent but the tip of the iceberg of a range of problems for the old system. There was widespread miscalculation of the sums due; those seeking to contact the Agency

⁴⁶ See Chapter 1.

⁴⁷ Although see *Re X, Y and Z (Payments from Patient's Estate for Children's Maintenance)* [2014] EWHC 87 where the mother had lost capacity and her money was used to support her children.

⁴⁸ Willitts *et al.* (2005).

⁴⁹ Wikeley (2006b).

found it almost impossible to get through on the telephone;⁵⁰ morale among staff at the Agency was generally seen as appallingly low; and there was little use of the Agency's enforcement powers.⁵¹ The Government announced that the Child Support Agency (CSA) would be abandoned and replaced under the Child Maintenance and Other Payments Act 2008. However the implementation of that legislation has been a long and tortuous process. Currently there are some cases still being dealt with under the 1991 Act scheme, but most under the 2008 Act. It is intended that by 2017 all cases will be dealt with under the new scheme. So, for now we will focus on the 2008 Act scheme as that is the one predominantly in use.

The key principles are as follows. A parent, either a mother or father, who is not living with their child is liable to pay child support for that child. The definition of the parent is that as defined in law.⁵² It does not apply to parents living outside the United Kingdom.⁵³ A child is a person under 16 or a person under 20 who is in full-time education.⁵⁴ The Act only applies to separated parents. The 'parent with care' does not need to provide child support, but the other does. The term parent with care refers to the parent providing day-to-day hands-on care.⁵⁵

When a couple separate they have two choices in relation to child support:

1. They can reach their own agreement. That is known as a 'family-based agreement' and it is clear this is option which is most strongly encouraged. If that happens there is no official involvement in the agreement. It does not need to be approved by a court. A government agency, Child Maintenance Options, can provide information to facilitate an agreement.
2. A party can apply to the Child Maintenance Service (CMS), although only after contact has been made with Child Maintenance Options who can advise on and encourage a 'family-based agreement'. The CMS explain they can assist with matters such as the following:
 - try to find the other parent if you don't know where they live, to sort out child maintenance
 - sort out disagreements about parentage
 - work out how much child maintenance should be paid
 - arrange for the 'paying' parent to pay child maintenance – the parent who doesn't have main day-to-day care of the child
 - pass payments on to the 'receiving' parent – the parent who has main day-to-day care of the child
 - look at the payments again when changes in parents' circumstances are reported
 - review the payment amount every year
 - take action if payments aren't made.⁵⁶

To apply to use one of these services there is a £20 fee, although that is not payable for victims of domestic violence or those under 19. There are also charges if the CMS has to take enforcement measures. For example, there is a £300 fee if they seek a liability order.

⁵⁰ House of Commons Work and Pensions Committee (2005).

⁵¹ Wikeley (2006b).

⁵² CSA 1991, s. 54. See Chapter 8.

⁵³ Although there are exceptions for those employed in the civil service, the armed forces or UK companies.

⁵⁴ Not including higher education.

⁵⁵ *GR v CMEC* [2011] UKUT 101 (AAC).

⁵⁶ HM Government (2016a).

If the CMS is asked to work out how much maintenance is to be paid it undertakes a 'maintenance calculation'. In most cases this is worked out using the 'basic rate'. For those whose income is between £200 and £800 per week, the figures are as follows:

- 12 per cent of gross income for one child;
- 16 per cent of gross income for two children;
- 19 per cent of gross income for three or more children.

It seems once you have three children, you can have as many as you like at no extra cost!

For those with gross weekly income above £800 the percentages are:

- 9 per cent of gross income for one child;
- 12 per cent of gross income for two children;
- 15 per cent of gross income for three children.

These percentages do not apply to income over £3,000 per week.

These percentages can be amended in the following cases:

1. Where a non-resident parent has other 'qualifying children'⁵⁷ in which case there will be a 12 per cent reduction for one other child; 16 per cent reduction for two; and 19 per cent for three.
2. If the non-resident parent's gross weekly income is between £100 and £200 they pay a reduced rate, but that may not be less than £7.
3. If the non-resident parent's gross weekly income is £100 or less then a flat rate £7 per week is payable.
4. If the non-resident parent's income is below £7 then they need pay nothing.
5. If the non-resident parent has other children who are being maintained under a maintenance order or agreement there is an apportionment between the maintained children. Similarly if a parent is due to pay for children living in different households an apportionment operates to ensure each child receives a reasonable sum.
6. If the non-resident parent has the child to stay overnight then the following reductions apply depending on how many nights a year the child spends:
 - for 52–103 nights: a one seventh reduction;
 - for 104–155 nights: a two seventh reduction;
 - for 156–174 nights: a three seventh reduction;
 - for more than 175: a half reduction.

This can be understood as a way to encourage the non-resident parent to have the child to stay and keep up contact. Indeed for the price of a burger and a DVD it might seem a good economic bargain. It might be thought unfair to parents who incur expenses in looking after the children during the day. It might be thought unfair also to the resident parent who has a nearly equal split of care for the child but still needs to pay half the maintenance.

7. In exceptional cases a variation from the calculation can be made under s 28F of the 2008 Act if the Child Maintenance Services believes it would be equitable to do so.⁵⁸ The kind

⁵⁷ These may be children living with him. They are children for whom he or his non-resident partner is receiving child benefit.

⁵⁸ Detailed regulations are found in Sch 4B of the 2008 Act.

of cases envisaged are where there are exceptional costs in travelling to work or maintaining contact with the child.

If the Child Maintenance Service has made an assessment it has a wide range of enforcement powers set out in s 31 of the 1991 Act. This includes ordering an employer to deduct child support from earnings or applying to the court for an order that goods can be sold and even for an order disqualifying the non-payer from having a driving licence.

C The encouragement to agree

Although we have just looked at how CMS will calculate payment, it is clearly the Government's hope that most couples will reach agreement themselves and they will not need to rely on the Government to help them. As already mentioned Child Maintenance Options⁵⁹ will offer advice and will facilitate people to reach their own agreement. Their website⁶⁰ provides suggestions on how an appropriate figure might be agreed. It explains:

The quickest and easiest way to arrange child maintenance is for you and the other parent to set up an arrangement between yourselves. More than half a million children in the United Kingdom now benefit from this kind of family-based arrangement.

You and the other parent can work together to make an arrangement between yourselves that suits your own circumstances. You can agree on the amount and how often payments are paid or received, and you can choose to include other kinds of support, for example, providing school uniforms.

Whether relying on couples to reach their own agreement is a realistic goal or not remains to be seen. If the Government found it impossible to produce a formula under the old law which was regarded as fair or to enforce effectively child support payments, is there any reason to suspect parents will be any more effective at doing so? Indeed, it is worth remembering that the whole reason the CSA was created was due to the problems lone parents faced in seeking to collect child maintenance.

There is much to be concerned about in leaving the issue of child support to parental agreement. Baroness Hollis noted that non-resident fathers were likely to welcome the reforms:

They think that they will get a better deal; they think that they will pay less money; they think that there will be less pressure on them to pay; and they think that they will be able to hug knowledge and information that she – the parent with care – will not have and which will allow them, to a degree, to control what they pay.⁶¹

As Nick Wikeley puts it: 'There is a clear risk, in the absence of adequate advice and support services, that any existing power imbalances between parents will simply be reinforced, to the detriment of children's interests.'⁶²

A survey found that 24 per cent of those on benefits said that if left to their own devices they would agree that the non-resident parent would not have to pay child support.⁶³ Another survey found that under the old scheme when the Child Support Agency was involved six out

⁵⁹ Originally, the Child Maintenance and Enforcement Commission (CMEC) was to have this role, but it was abolished before it really got going.

⁶⁰ www.cmoptions.org

⁶¹ Quoted in Wikeley (2008a: 1027).

⁶² Wikeley (2008a: 1027).

⁶³ Wikeley *et al.* (2008).

of 10 mothers received the child support due, but where the agency was not involved and the parties dealt with the issue themselves only four out of 10 mothers did.⁶⁴ If that reflects what happens when the Act is in operation it will mean that children will lose out significantly under the new legislation. Not surprisingly, surveys suggest that the new regime is welcomed by twice as many non-resident parents as resident parents.⁶⁵

In *Supporting Separated Families; Securing Children's Futures* the Government set out its thinking behind the new scheme.⁶⁶ It notes the current system is not efficient:

We believe that the current child maintenance system places too much emphasis on the state determining financial support and not enough on supporting separated and separating families to reach their own arrangements. Research shows that only an estimated one in five parents makes their own child maintenance arrangements. Despite the Government spending almost half a billion pounds per annum on the child maintenance system, only half of children in separated families benefit from effective maintenance arrangements.

While these are genuine problems it is far from clear that encouraging family-based agreements or the work of the CMS is going to produce better results. The initial signs from the CMS are not good, as a report from Gingerbread analysing the data points out:

In the financial year to March 2015, the CMS collected just 53 per cent of maintenance charged via its collection service. Total CMS arrears now stand at £52.5m. Almost half of all non-resident parents in the CMS – 74,600 out of 157,400 – have associated CMS arrears. Of those with arrears, more than a quarter (20,800) are paying nothing at all.⁶⁷

One way in which couples are encouraged to reach their own agreement is through the fees that are chargeable to those using the CMS. Critics will argue that given the levels of poverty among children and that child support should be seen as a right of the child, charging is inappropriate. There will be an upfront assessment fee of £20.⁶⁸ There will also be fees for collecting sums due. As Gillian Douglas notes:

The paying parent is required to pay 20% on top of the calculated amount, and 4% is deducted from the amount paid to the recipient. If a parent is sufficiently determined, deluded or desperate to overcome these hurdles [to using the CMS], she will then find that, should the Service fail to collect the payments due, she has no standing to seek to recover the money herself.⁶⁹

Another concern is that the new scheme does not do enough for victims of domestic violence. Encouraging them to negotiate child maintenance payments themselves may be dangerous. Further, they are required to disclose financial information which can be available to the other party and might disclose their current whereabouts.⁷⁰

So in a sense under the new scheme we are seeing a return to the position before the 1991 Child Support Act where the responsibility of collection of child support is put into the hands of the resident parent. Given the importance of child support in relieving poverty is striking that rather than seeking to make the child support agency more effective the state's responsibility is being reduced. If the resident parent is in desperate need for money and the non-resident parent

⁶⁴ Bryson *et al.* (2013).

⁶⁵ Wikeley *et al.* (2008).

⁶⁶ Department for Work and Pensions (2012).

⁶⁷ Gingerbread (2016).

⁶⁸ This will not be applied if the applicant has declared that they are a victim of domestic violence, or if they are aged 18 or under.

⁶⁹ Douglas (2016).

⁷⁰ Stone (2016).

reluctant to pay this hardly puts them in an equal bargaining position when deciding how much the non-resident parent should pay. It is hard to believe the new scheme will produce higher levels of child support being paid.

D The Children Act 1989 and child support

The Children Act 1989 can require parents to support children, regardless of whether the parents are married or unmarried. This is an important part of ensuring that the law governing the financial support of children does not depend on whether the parents were married or not. However, in practice the Children Act 1989 has been very little used, in part because so few separating cohabitants seek advice from solicitors.⁷¹

(i) Who can apply under the Children Act 1989?

The following people can apply for a financial order under s 15 of the Children Act 1989 in respect of a child:

1. A parent. This includes adoptive parents as well as natural parents. It also includes 'any party to a marriage (whether or not subsisting) in relation to whom the child . . . is a child of the family'.⁷² A step-parent would be covered by the definition.
2. A guardian.
3. Any person who has a residence order in force in respect of a child.
4. An adult student, or trainee, or other person who can show special circumstances can apply for an order against his or her parents.⁷³ This order cannot be made if both parents are living together in the same household. So, for example, if the child's parents are still happily married or cohabiting the law will not intervene to force them to provide for the student's upkeep.⁷⁴

The court in its own discretion can make an order under the section, even if there has been no application. For example, if the child has been made a ward of court, the court might make an award under the Act.

(ii) Who is liable to pay?

1. *Parents*. This includes biological parents and adoptive parents. A parent is liable to pay even if he or she does not have parental responsibility or never sees the child. A person who has played the role of a parent, but is not a parent in the eyes of the law, cannot be made liable.⁷⁵ In theory a resident parent could be ordered to pay to a non-resident parent but that would require most unusual circumstances.⁷⁶
2. *Those who have treated the child as a child of the family*. This can only apply to spouses or civil partners. An unmarried cohabitant of the mother, who is not the father of the child, will not be liable.⁷⁷

⁷¹ Maclean *et al.* (2002).

⁷² See Chapter 8 for further discussion of this term.

⁷³ E.g. *C v F (Disabled Child: Maintenance Orders)* [1999] 1 FCR 39, [1998] 2 FLR 1.

⁷⁴ The only orders these applicants can claim are periodical payments or lump sum orders.

⁷⁵ *T v B* [2010] EWHC 1444 (Fam).

⁷⁶ *N v C (Financial Provision: Schedule 1 Claims Dismissed)* [2013] EWHC Fam 399.

⁷⁷ *J v J (A Minor: Property Transfer)* [1993] 1 FCR 471, [1993] 2 FLR 56; *T v B* [2010] EWHC 1444 (Fam).

(iii) Orders which can be made

Under the Children Act 1989 periodical payments and lump sum orders can be made.⁷⁸ A periodic payment order cannot be made, unless the court is varying a consent order for periodic payments.⁷⁹ In such a case the court should 'almost invariably' make an order which would match the formula that the child support legislation would use.⁸⁰ The court cannot get around this restriction on period payments by using a lump sum order as a way of providing income.⁸¹ A party can also be required to make a transfer of property. This is most likely to be used in relation to the family home and may, for example, direct that a child and the residential parent stay in a property until the child ceases education. There is also the power to transfer a secure tenancy to the other parent for the child's benefit.⁸²

(iv) Factors that the court will consider

The courts will take into account the following factors in deciding whether to make an order:

LEGISLATIVE PROVISION

Children Act 1989, Schedule 1, para 4(1)

- (a) the income, earning capacity, property and other financial resources which [the applicant, parents and the person in whose favour the order would be made] has or is likely to have in the foreseeable future;
- (b) the financial needs, obligations and responsibilities which [each of those persons] has or is likely to have in the foreseeable future;
- (c) the financial needs of the child;
- (d) the income, earning capacity (if any), property and other financial resources of the child;
- (e) any physical or mental disability of the child;
- (f) the manner in which the child was being, or was expected to be, educated or trained.

Where the liability of a person who is not the child's legal parent is taken into account, the court should also consider:

LEGISLATIVE PROVISION

Children Act 1989, Schedule 1, para 4(2)

- (a) whether that person had assumed responsibility for the maintenance of the child and, if so, the extent to which and basis on which he assumed that responsibility and the length of the period during which he met that responsibility;
- (b) whether he did so knowing that the child was not his child;
- (c) the liability of any other person to maintain the child.

⁷⁸ This can include a lump sum to meet expenses incurred before the court hearing, including expenses connected to the birth of a child (Children Act 1989, Sch 1, para 5(1)).

⁷⁹ *N v C (Financial Provision: Schedule 1 Claims Dismissed)* [2013] EWHC Fam 399.

⁸⁰ *Re TW and TM (Minors)* [2015] EWHC 3054 (Fam).

⁸¹ *Dickson v Rennie* [2014] EWHC 4306 (Fam).

⁸² *K v K (Minors: Property Transfer)* [1992] 2 FCR 253, [1992] 2 FLR 220; although the courts have indicated that they will be cautious in exercising this power: *J v J (A Minor: Property Transfer)* [1993] 1 FCR 471, [1993] 2 FLR 56.

The welfare of the child is not the paramount consideration because, as is made clear by s 105(1), property orders are not deemed concerned with the upbringing of the child and so fall outside the scope of s 1(1) of the Children Act 1989.⁸³ However, the child's welfare will be an important consideration.⁸⁴ The following points will influence the court in deciding the appropriate level of the award:

1. The level of the award should not depend on whether the child's parents were married or not.⁸⁵
2. The child should be brought up in a manner which is in some way commensurate with the non-residential parent's lifestyle.⁸⁶ In *J v C (Child: Financial Provision)*⁸⁷ the child's non-residential father became a millionaire and it was held that the child should be brought up in a way appropriate for a millionaire's daughter, including living in a four-bedroomed house and being driven around in a Ford Mondeo(!).⁸⁸ But there are limits: a mother in *GN v MA (Child Maintenance: Children Act Sch 1)*⁸⁹ sought unsuccessfully for a box at the Emirates football stadium and Ascot and membership of two golf clubs for her seven-year-old son, whose father was a member of the Saudi Royal family.

In other cases it has been emphasised that where the child is having contact with the father the child will feel uncomfortable if his or her home circumstances are vastly different from those enjoyed by his or her father. In *Re P (A Child) (Financial Provision)*⁹⁰ the mother's claim for a top-of-the-range Range Rover from the very wealthy father was found to be excessive. However, she could expect a £20,000 car and £450,000 for a house in a 'suitable' part of London. In *F v G (Child: Financial Provision)*⁹¹ the father was worth over £4.5 million and earned over half a million pounds a year. It was held that the level of award should enable the mother to raise the child in a manner 'not too brutally remote' from the father's lifestyle. In *T v T (Financial Provision: Private Education)*⁹² a lump sum order was made under Sch 1 to cover the children's private school fees, that being commensurate with the parents' wealth. By comparison in *Re M-M (Schedule 1 Provision)*⁹³ the father had modest means and it was held the child's house and income had to reflect that.

3. The court should be wary of making an award which will benefit the resident parent but not the child.⁹⁴ Of course, some provision for the child will inevitably also benefit the resident parent and other children living with them (e.g. a house) and there can be no objection to this.⁹⁵ Payment for nanny care could be expected, even if the mother was not

⁸³ *J v C (Child: Financial Provision)* [1999] 1 FLR 152; *Re P (A Child) (Financial Provision)* [2003] 2 FCR 481.

⁸⁴ *Re P (A Child: Financial Provision)* [2003] EWCA Civ 837; *FG v MBW (Financial Remedy for Child)* [2011] EWHC 1729 (Fam).

⁸⁵ In *A v A (A Minor: Financial Provision)* [1994] 1 FLR 657 at p. 659.

⁸⁶ *Dickson v Rennie* [2014] EWHC 4306 (Fam). See Ellman *et al.* (2014) for evidence this accords with the views of the public.

⁸⁷ [1999] 1 FLR 152.

⁸⁸ Some readers may think the award of a series 1 BMW in *PG v TW (No 2) (Child: Financial Provision)* [2012] EWHC 1892 was closer to the mark.

⁸⁹ [2015] EWHC 3939 (Fam).

⁹⁰ [2003] 2 FCR 481.

⁹¹ [2005] 1 FLR 261.

⁹² [2005] EWHC 2119 (Fam).

⁹³ [2014] EWCA Civ 276.

⁹⁴ *Re P (A Child) (Financial Provision)* [2003] 2 FCR 481. See the useful commentary in Gilmore (2004d).

⁹⁵ *J v C (Child: Financial Provision)* [1998] 3 FCR 79.

working.⁹⁶ In *Re P (A Child: Financial Provision)*⁹⁷ it was held that the mother was entitled to an allowance in her capacity as the child's carer, even though she could not make any claim in her own right. In *H v C*⁹⁸ private health insurance for the mother was included as part of her carer's allowance. In *F v G (Child: Financial Provision)*⁹⁹ £60,000 was awarded for the mother to use either to employ a nanny or herself as full-time carer. Sums for child care can even be ordered if the child is a teenager.¹⁰⁰ However, a carer's allowance is not appropriate once the child was independent.¹⁰¹ These sums can be used by the mother to 'pay herself' and the mother is not required to account for how the money is spent. However, payments must be seen as support for the child, rather than maintenance for the mother in her own right.¹⁰² In *Re S (Child: Financial Provision)*¹⁰³ where the Court of Appeal said that the phrase 'for the benefit of the child' in para 1(2) of Sch 1 would be interpreted widely. It, therefore, could include awarding the mother money so that she could travel to see the child, who had been abducted to Sudan.¹⁰⁴ In deciding the appropriate sum for the carer, account can be taken of the mother's income and earning capacity.¹⁰⁵ However, it seems there has been move towards a rejection of paying a 'carer's allowance'.¹⁰⁶ In *PG v TW (No 2) (Child: Financial Provision)*¹⁰⁷ it was held that the mother was entitled to payment for 'back up child care and housekeeping' to enable her to work without anxiety during the day, but she could not receive payments for her own care. Occasionally the courts have allowed lump sum payments to cover litigation costs over child support.¹⁰⁸

4. A parent is liable to support a child only during the child's minority.¹⁰⁹ So, if a large sum is provided for accommodation for the child, the sum will normally be held on trust to revert to the paying parent on the child reaching the age of 18 or finishing his or her education.¹¹⁰ This means that, when the child reaches 18, if a house was provided it may be sold and the sum returned to the paying parent.¹¹¹ Similarly, funds to support the child will cease on majority, unless there are exceptional circumstances such as disability of the child.¹¹²
5. If the court is considering the liability of a step-parent, it will take into account their liability to support any biological child of theirs.
6. Where the applicant is a disabled adult, they can claim against their parents. Although the expenses are restricted to expenses that directly relate to the disability while under the jurisdiction of the Child Support Act, under the Children Act other expenses can be considered.¹¹³

⁹⁶ *Re P (A Child) (Financial Provision)* [2003] 2 FCR 481.

⁹⁷ [2003] 2 FCR 481.

⁹⁸ [2009] 2 FLR 1540.

⁹⁹ [2005] 1 FLR 261.

¹⁰⁰ *N v D* [2008] 1 FLR 1629.

¹⁰¹ *Re A (Child: Financial Provision)* [2014] EWCA Civ 1577.

¹⁰² *MT v OT* [2007] EWHC 838 (Fam).

¹⁰³ [2004] EWCA Civ 1685.

¹⁰⁴ Followed in *CF v KM* [2010] EWHC 1754 (Fam); *R v F (Child Maintenance: Costs of Contact Proceedings)* [2011] 2 FLR 991; *FG v MBW (Financial Remedy for Child)* [2011] EWHC 1729 (Fam).

¹⁰⁵ *FG v MBW (Financial Remedy for Child)* [2011] EWHC 1729 (Fam).

¹⁰⁶ *Re M-M (Schedule 1 Provision)* [2014] EWCA Civ 276.

¹⁰⁷ [2012] EWHC 1892.

¹⁰⁸ *Dickson v Rennie* [2014] EWHC 4306 (Fam).

¹⁰⁹ *Re N (A child) (Payments for Benefit of Child)* [2009] 1 FCR 606.

¹¹⁰ *H v P (Illegitimate Child: Capital Provision)* [1993] Fam Law 515; *T v S (Financial Provision for Children)* [1994] 1 FCR 743, [1994] 2 FLR 883.

¹¹¹ Although the order may provide for the residential parent to have an option to purchase the house.

¹¹² *Re N (A Child) (Payments for Benefit of Child)* [2009] 1 FCR 606.

¹¹³ *C v F (Disabled Child: Maintenance Orders)* [1999] 1 FCR 39, [1998] 2 FLR 1.

7. It is not possible for the parents to enter a contract which prevents them applying for an order under Sch 1.¹¹⁴

4 Matrimonial Causes Act 1973 and children

A Powers of the court on divorce or dissolution

Learning objective 3

Summarise the powers available to the court in financial disputes

On divorce or dissolution, the court has wide powers to redistribute the parties' property. This includes the power to make orders especially designed to benefit children. For example, an order could demand regular payment of

money to the child or, more commonly, a payment to the resident parent for the benefit of the child.

B 'Child of the family'

Many of the court's powers to redistribute in divorce proceedings apply in respect of 'a child of the family'. The meaning of this phrase will be discussed in Chapter 8. The definition most notably includes a stepchild. Such a child can be treated under the child support legislation as the biological parents' responsibility, but under the Matrimonial Causes Act 1973 (hereafter MCA 1973) as the step-parents' responsibility.

The MCA 1973 does list special considerations that apply where a step-parent is being asked to pay. The following factors must be taken into account:

LEGISLATIVE PROVISION

Matrimonial Cause Act 1973, section 25(4)

- (a) to whether that party assumed any responsibility for the child's maintenance, and, if so, the extent to which, and the basis upon which, that party assumed such responsibility and the length of time for which that party discharged such responsibility;
- (b) to whether in assuming and discharging such responsibility that party did so knowing that the child was not his or her own;
- (c) to the liability of any other person to maintain the child.¹¹⁵

C Applications by children

A child who is over the age of 18 can apply for a financial or property order if his or her parents are divorcing, or apply for a variation of an order made earlier.¹¹⁶ Although normally orders will cease once the child reaches the age of 18, the court can order that

¹¹⁴ *Morgan v Hill* [2006] 3 FCR 620.

¹¹⁵ Matrimonial Causes Act 1973 (hereafter MCA 1973), s 25(4).

¹¹⁶ See *Downing v Downing* [1976] Fam 288.

periodical payments extend beyond the 18th birthday if the child is or will be receiving instruction at an educational establishment or undergoing training and there are special circumstances which justify the order.¹¹⁷

D Factors to be taken into account

The factors to be considered in deciding the appropriate level of an award under the MCA 1973 will be discussed in detail shortly. It should be noted that the welfare of any child is to be regarded as the first consideration¹¹⁸ and the courts regard ensuring the children are adequately housed as especially important.¹¹⁹ The courts have indicated that the amount that would be awarded under the child support legislation will be a starting point.¹²⁰ However, in wealthy cases, substantial sums of maintenance can be ordered and can include private school fees, university tuition fees, funding for gap years and private medical insurance.¹²¹

5 Theoretical issues concerning financial support on divorce or dissolution

Learning objective 4

Debate the issues around spousal support

For ease of expression we will discuss how the courts deal with financial issues on the breakdown of a marriage. The Court of Appeal in *Lawrence v Gallagher*¹²² held that exactly the same principles that apply to financial orders on divorce apply to the dissolution of a civil partnership.¹²³ Presumably the courts will draw no distinction between opposite sex and same sex marriages when determining financial issues.

Proceedings for financial orders on divorce is a controversial issue.¹²⁴ There is a wide range of competing policies that the law seeks to hold together. There is a desire to ensure that on divorce a fair redistribution of the property takes place so that one party is not unduly disadvantaged by the divorce. On the other hand, there is the desire to enable the parties to achieve truly independent lives after the divorce. As the Law Commission put it:

The reality of divorce means that former spouses should not be tied to each other for life; the law gives them freedom to re-marry and take on new responsibilities, and this is hampered if the financial commitment of a former relationship is unnecessarily prolonged. For the economically weaker party, dependence means vulnerability to another's employment, health and willingness to pay.¹²⁵

¹¹⁷ MCA 1973, s 29.

¹¹⁸ MCA 1973, s 25.

¹¹⁹ *M v B (Ancillary Proceedings: Lump Sum)* [1998] 1 FLR 53, [1998] 1 FCR 213.

¹²⁰ *GW v RW* [2003] Fam Law 386.

¹²¹ *H v H (Financial Relief)* [2010] 1 FLR 1864.

¹²² [2012] EWCA Civ 394, discussed in Herring (2012b).

¹²³ *Lawrence v Gallagher* [2012] EWCA Civ 394. See Chan (2013), Wilson (2007) and Allen and Williams (2009) for a discussion of whether there are any arguments that civil partnerships will be treated any differently from marriages in this area.

¹²⁴ The Family Procedure Rules 2010 introduced the terminology 'proceedings for financial orders'. Previously the terminology 'ancillary relief orders' had been popular.

¹²⁵ Law Commission Consultation Paper 208, *Matrimonial Property, Needs and Agreements* (2012).

But to achieve independence and fairness is often impossible. The truth is that for many couples suitable financial orders cannot be made. Neither party will be able to live at a standard of living they regard as acceptable. Both will feel they have been hard done by. There is simply not enough money for most married couples to support two individuals in separate households after divorce, certainly not at the level to which they had become accustomed.¹²⁶

One of the difficulties in dealing with this area of the law is that most of the cases in the law reports involve extremely wealthy clients. It means the principles that have been developed in the courts are often of little relevance to ordinary couples.¹²⁷ The fact that the judge could comment of one case, 'The assets in the case are by no means large, in the region of a little more than a total of £4 million',¹²⁸ shows how easy it is when looking at the case law to lose touch with reality.

To understand how 'everyday' cases are dealt with, one is better off looking at empirical studies, rather than the case reports.¹²⁹ The picture from these is that in around two thirds of cases no financial order is made at all, presumably because the parties have so few assets (or primarily debts) and there is nothing to argue over. Of those cases where an order is made, the vast majority are consent orders, rather than a judge deciding what financial order to make.

A The economic realities of divorce

There is convincing evidence that following divorce women who are caring for children suffer a detrimental downturn in their finances, while their ex-husbands do not.¹³⁰ The conclusions of a recent study of the impact of divorce on women was blunt:

The stark conclusion is that men's household income increases by about 23 per cent on divorce once we control for household size, whereas women's household income falls by about 31 per cent. There is partial recovery for women, but this recovery is driven by repartnering: the average effect of repartnering is to restore income to pre-divorce levels after nine years. [For] those who do not repartner . . . the long term economic consequences of divorce are serious.¹³¹

The extent of disadvantage for women on divorce is closely related to their employment history during marriage. There is convincing evidence that following divorce those who have undertaken primary care of the child (normally the wife) suffer significantly.¹³² Child-care responsibilities mean that women are far more likely to have given up employment than men; where they are employed, mothers are more often in part-time, low status, poorly paid jobs.¹³³ Even where they have returned to full-time employment, the time taken out to care for children will have set back their earning potential.¹³⁴ In part, ex-wives' financial hardships also reflect the wage differences which exist generally between men and women: average earnings of women are 19.2 per cent lower than men.¹³⁵ Women face discrimination in

¹²⁶ Barton and Bissett-Johnson (2000) noted that in the majority of cases no financial orders are made by the court. In some cases this will reflect the fact that there are simply no assets to redistribute.

¹²⁷ *Jones v Jones* [2011] EWCA Civ 41.

¹²⁸ *R v R (Financial Remedies: Needs and Practicalities)* [2011] EWHC 3093 (Fam), Colderidge J.

¹²⁹ Woodward (2015).

¹³⁰ Sigle-Rushton, W. (2009); Perry *et al.* (2000).

¹³¹ Fisher and Low (2009: 254).

¹³² Dex, Ward and Joshi (2006).

¹³³ Lyonette (2015); Scott and Dex (2009); Fawcett Society (2010).

¹³⁴ Scott and Dex (2009).

¹³⁵ Office for National Statistics (2016f).

finding employment, both on the basis of their sex and on the basis that they are caring for children and therefore in a weaker position to advance their careers.¹³⁶ It is not just child care that can restrict a woman's ability to advance her career. Women still carry the primary duty of housework.¹³⁷ One recent study found women did 28 per cent more housework and 31 per cent more childcare than men.¹³⁸ Interestingly, 28 per cent of women thought their male partners did not do their fair share of work around the house, but only 7 per cent of men agreed.¹³⁹ Another found that women did on average 16.6 hours of housework per week, whereas men did 6.6 hours, although found an interesting difference among different ethnic groups with Black Caribbean men doing 7.12 hours per week, compared with 6.05 for White British men.¹⁴⁰ In one survey 48 per cent of men did no or a little housework.¹⁴¹ The impact of this becomes especially apparent on retirement where women suffer particular poverty as compared with men because they have not been able to build up pension provision.¹⁴²

B Why should there be any redistribution?

To assist in the discussion of this question, it will be assumed that the husband is in the stronger position economically, and that the wife is seeking a court order. Similar arguments can, of course, be made if it is the wife who is the higher earner; or in the case of a same-sex couple.¹⁴³

1. *Spousal support and the care of children.* Supporting the child should inevitably require providing benefits to the residential parent. So if it is decided that the child should live in a luxury-level house, this will benefit both the child and the parent with whom they are living. Further, included in the support required for the child must be an element to provide personal care for the child. So one ground for spousal support is that the spouse be maintained at the level required to ensure adequate care of the child. Eekelaar and Maclean have supported the 'equalisation of the standard of living of the two households, and thus of the children within them'.¹⁴⁴ They argue that this equalisation is not due to any kind of implied undertaking between the parents (as some of the models below emphasise), but due to the moral claim of the child; that is, the child's household should not be disadvantaged to the benefit of the non-residential parent's household.
2. *Contract.* It could be argued that it is a part of the marriage contract that, on breach of the contract, one party will pay the other 'damages'; that on marriage the spouses promise to support each other for the rest of their lives. If a husband decides to divorce his wife, he must pay her damages so that she is in the economic position she would have been in had he not broken the contract. This would mean that the husband would have to pay the wife financial support so that she could enjoy the level of wealth she experienced during the marriage.¹⁴⁵ Nowadays this theory does not really explain the English law: first, because it might be questioned whether marriage does (or should) include a promise to remain with the other

¹³⁶ Herring (2013a).

¹³⁷ Trew and Drobnic (2010); Crompton and Lyonette (2008); Sayer (2010).

¹³⁸ Oxfam (2016).

¹³⁹ Oxfam (2016).

¹⁴⁰ Kan and Laurie (2016).

¹⁴¹ Mintel (2004). Geist (2010) notes that in surveys men tend to exaggerate the amount of housework they do.

¹⁴² See Chapter 13.

¹⁴³ See Fehlberg (2004) for a useful discussion of some of the theories discussed here.

¹⁴⁴ Eekelaar and Maclean (1997: 197).

¹⁴⁵ This would justify the minimal loss theory behind the Matrimonial Proceedings and Property Act 1970.

spouse forever, given the ready availability of divorce; secondly, because the law has abandoned trying to work out which party breached the contract, that is, who it is that has caused the marriage breakdown. It may be for these reasons that Milton Regan puts the argument more in terms of an assumed obligation, than a contract, arguing that marriage is:

a distinctive open-ended relationship of mutuality, interdependence, and care, in which responsibilities may arise without express consent and impacts may linger after divorce . . . Financial obligation at divorce . . . rests not on the duty of charity to a dependent, but on the responsibility for economic justice toward a spouse.¹⁴⁶

3. *Partnership*. The view here is that marriage should be regarded as analogous to a partnership.¹⁴⁷ The husband and wife cooperate together as a couple as part of a joint economic enterprise.¹⁴⁸ It may be that one spouse is employed and the other works at home, but they work together for common benefits. Therefore, on divorce each spouse should be entitled to their share, normally argued to be half each. Lord Nicholls in *Miller v Miller*¹⁴⁹ accepted the validity of what he called the 'equal sharing' principle. He put the argument this way:

[in marriage] the parties commit themselves to sharing their lives. They live and work together. When their partnership ends each is entitled to an equal share of the assets of the partnership, unless there is a good reason to the contrary. Fairness requires no less.

The partnership model does not necessarily lead to an equal division. John Eekelaar suggests:

at the end of the relationship, the investment which each party has put into the marriage is assessed on one side of the balance sheet and set against the value of the assets which each is taking out of it and also the earning power which each has at that time. If there is a disparity between the parties with regard to what was put in and what is being taken out, an adjustment will be made to equalize the position between them. Marriages is a joint enterprise in a capitalist society demanding, at least *prima facie*, equal rewards for effort.¹⁵⁰

This kind of approach has been described as 'merger over time' by the Law Commission, and is captured by this quote:

[An approach to spousal support] is to see the spouses as merging into each other over time. In this model, the longer they are married, the more their human capital should be seen as intertwined rather than affixed to the individual spouse in whose body it resides . . . After a while, one can less and less distinguish what was brought into the marriage and what was produced by the marriage.¹⁵¹

This argument might need some modification to take account of the fact that nowadays people have typically lived together for quite some time before marriage. Marriage is rarely the start of an intertwining of lives, but the expression of a complete interconnection. It is for this reason, as we shall see, that the courts tend to take account of the length of the relationship, rather than the length of the marriage.

The partnership model might appear to suggest that we should redistribute assets that have accumulated during the marriage, but would not apply to assets owned by the parties

¹⁴⁶ Regan (1999: 188).

¹⁴⁷ See the approach of the Canadian Supreme Court in *Moge v Moge* (1993) 99 DLR (4th) 456, discussed in Diduck and Orton (1994).

¹⁴⁸ Fehlberg (2005).

¹⁴⁹ [2006] 2 FCR 213 at para 16.

¹⁵⁰ Eekelaar (2007: 431).

¹⁵¹ Sugarman (1990: 159).

before entering the marriage or assets acquired after the marriage breakdown. However, the approach can be developed to extend to future assets. It is possible to argue that the partnership assets are not limited to tangible assets, but extend to the earning capacity of the parties.¹⁵² So, if the wife had supported the husband at home while he developed his career, she could argue that he has only been able to reach the position where he is able to earn as much money as he does because of the help she provided. This argument would entitle the wife to a share in his future earnings, reflecting the increase in his earning potential acquired during the marriage. If you wanted to say it applied to assets generated before the marriage you could argue that on marriage the parties will bring to the relationship a variety of different assets, skills, personalities, interests, etc. Throughout the marriage each party will enjoy and share their personalities, interests and skills. If the relationship involves the mutual sharing of all aspects of their lives, this should include their material assets.

The partnership approach is one of the most popular ways of justifying the powers of redistribution on divorce but there are difficulties with it:

- (i) Some argue that the partnership approach is inappropriate in the absence of an express agreement to share the family assets. It could be replied that the partnership concept is part of the marriage package, and is an obligation which the parties accept by marrying. Another response is that the partnership approach is not necessarily designed to reflect the intentions of the parties, but rather what is conscionable or fair; that, as the spouses worked together on a common enterprise, they should share the fruits, even if they had not explicitly agreed to do so. Seen in this way the partnership approach is closer to unjust enrichment than contract law.¹⁵³
- (ii) Where the argument extends to future earnings, the partnership approach requires the court to calculate what share of the husband's earning capacity is a result of the marriage. This is difficult to ascertain.¹⁵⁴ Also, if the husband could show that, had he not married, he would have done just as well in his career, he could argue that no proportion of his earning capacity could be said to result from the partnership. Finally, if one friend helps another to advance in her career we do not normally think this creates a financial obligation, even if the friend has been instrumental in obtaining the break.¹⁵⁵ Why should it be different in marriage?
- (iii) It can be argued that the approach takes insufficient account of the needs of the parties. Particularly where one spouse is raising the child, a one-half share may not adequately meet his or her needs. In other words, dividing the assets equally might leave the spouse with the child effectively in a worse-off financial position (because of the extra expenses of child care) and not receiving a 'fair' share of the economic benefits of the joint enterprise.

Despite these objections, the partnership approach certainly provides a sound basis for financial support. It is important to appreciate that the approach is not arguing that one spouse should transfer money to the other, but rather that the family assets should be

¹⁵² This argument is developed in Frantz and Dagan (2002 and 2004). It was rejected in *Q v Q* [2005] EWHC 402 (Fam) by Bennett J.

¹⁵³ Regan (1999: 188).

¹⁵⁴ See further Ellman (2005); and the American Law Institute proposals discussed by Ellman (2005) and Eekelaar (2006b: 51–2).

¹⁵⁵ Eekelaar (2006b: 48).

regarded as jointly owned. So a home-working mother is not asking for some of her husband's money on divorce; she is seeking her share of their assets.

4. *Equality*. Some argue that on the breakdown of the marriage the parties should be treated equally as a basic aspect of justice.¹⁵⁶ As Eekelaar has pointed out, this could mean two things: first, equality of outcome; and, secondly, equality of opportunity.¹⁵⁷ Equality of outcome requires that at the point of divorce each spouse has the same total value of assets. Equality of opportunity is that 'each former spouse should be in an equal position to take advantage of the opportunities to enhance her or his economic position in the labour market'.¹⁵⁸ Neither in its most simple form is satisfactory. The difficulty with equality of outcome is that as the needs of the parties (particularly in relation to children) are different, giving the parties equal assets will not truly produce an equal standard of living. The problem with the equality of opportunity approach is that the prevailing social structures (such as discrimination against women in the employment market) are such that perfect equality of economic opportunity would be impossible to achieve.

A more sophisticated version of equality of income for both households post-divorce would have to take carefully into account the costs of raising children. This might involve ensuring that each household has the same amount of spare cash after the payment of essential expenses. That would normally involve giving more money to the household that has children living in it.

5. *Compensation*. Here the argument is that on divorce the non-earning spouse should be compensated for the disadvantages she has suffered as a result of the marriage.¹⁵⁹ This was accepted as a principle in *Miller v Miller*,¹⁶⁰ where Lord Nicholls explained:

[Compensation] is aimed at redressing any significant prospective economic disparity between the parties arising from the way they conducted their marriage. For instance, the parties may have arranged their affairs in a way which has greatly advantaged the husband in terms of his earning capacity but left the wife severely handicapped so far as her own earning capacity is concerned. Then the wife suffers a double loss: a diminution in her earning capacity and the loss of a share in her husband's enhanced income.

Baroness Hale referred to the need to compensate for 'relationship-generated disadvantage'. The compensation argument can take two forms (assuming the wife to be the non-earning spouse):

- (i) The non-earning spouse should be compensated for loss of the earnings which she would have gained had she not been at home caring for the children or the home.
- (ii) The non-earning spouse should in retrospect be paid an appropriate wage for her work by the husband. A court could assess how much the house-cleaning and child-caring would have cost the husband had he employed people to do it. Some who adopt this approach accept that, as the non-earning spouse herself benefits from the housework, the cost should be shared and so the husband should only pay for half of this work.

¹⁵⁶ Parkinson (2005).

¹⁵⁷ Eekelaar (1988).

¹⁵⁸ Eekelaar (1988: 192).

¹⁵⁹ In *VB v JP* [2008] 2 FCR 682 the wife refused to take up a promotion because the husband did not want to move. This was regarded as an economic disadvantage due to the marriage.

¹⁶⁰ [2006] 2 FCR 213 at para 13. See the discussion in Ellman (2007).

There are difficulties with the compensation approach. As one group of solicitors argue:

Seeking to 'compensate' a party who has prioritised family over career is also demeaning to homemakers because it implies that h/she is a victim . . . There is, after all, no way of compensating the breadwinner for having missed his or her children growing up. The proposal elevates money over emotional advantages. It seems fairer and less artificial to regard the two parties as having voluntarily assumed varying levels of responsibility for different aspects of their lives, and in some circumstances these responsibilities continue after divorce.¹⁶¹

Whether the authors are correct in implying there is a fair division of gains and losses in relationships is open to dispute. Saying the breadwinner misses out on their children growing up is debatable. Most workers get to see their children at evening and weekends. It might be said they get the fun part of parenting, rather than the daily grind of getting the children ready for school and their homework done. Further, this argument, however, overlooks the fact that the choice of bearing and raising children is one that is essential to society's well-being. It is therefore a choice which society must seek to encourage and support. Others argue that the costs that women who care for children suffer are due to the inequalities of society, rather than being married. It is the state's failure to provide adequate child-care facilities and employment protection for mothers that is the root cause of the disadvantages suffered. The losses women suffer should be compensated for by the state rather than by husbands.¹⁶² However, in the absence of state support, it is surely unfair for mothers alone to have to carry the burden of financial sacrifice for the raising of children.

Eekelaar sees a different objection to the compensation approach, arguing that even if the wife had not married her husband she would have married someone else, and so it is not realistic to claim that the lack of development in her career is this man's fault.¹⁶³ Funder has argued that if, say, the wife gives up her career to care for the children then the resulting loss of income is a loss for both parties because they would have shared her income. The wife cannot therefore claim compensation for it, because the couple would have already equally shared the loss of the income. Carbone and Brinig¹⁶⁴ refute these kinds of arguments by suggesting that, as the husband himself has benefited from his wife's sacrifices (by having the pleasure of fatherhood and a pleasant home life), it can be seen as reasonable to require him to compensate the wife for her loss of earnings. A difficulty then arises in calculating what the wife would have earned had she not given up her career in order to undertake family responsibilities.¹⁶⁵ A final argument against compensation is that it can act as a deterrent against a wife who undertakes paid work during the marriage. She may find herself on divorce no better off, or even worse off, than a wife who gives up her career early in the marriage.¹⁶⁶

6. *The state's interests.* The arguments so far have assumed that the issue is about achieving fairness between the parties themselves.¹⁶⁷ Indeed, in *DL v SL*¹⁶⁸ Mostyn J stated that 'Ancillary relief (or financial remedy) proceedings are quintessentially private business'.

¹⁶¹ Marshall *et al.* (2014).

¹⁶² Ferguson (2008).

¹⁶³ Eekelaar (1988).

¹⁶⁴ Carbone and Brinig (1991).

¹⁶⁵ Mee (2004: 437).

¹⁶⁶ Davis (2008).

¹⁶⁷ Many commentators make the assumption that redistribution of property on divorce is a private matter: see, e.g., Cretney (2003b).

¹⁶⁸ [2015] EWHC 2621 (Fam).

However, it is arguable that financial orders on divorce can be justified by interests of the state, regardless of what would be fair or just between the parties.¹⁶⁹ As Alison Diduck has put it:

It seems to me, however, that how the law distributes a family's wealth and financial responsibilities at the end of their relationship says as much about the way society and the state organize their economic, reproductive, and caring responsibilities as it does about the way family members do (and should do).¹⁷⁰

So what state interests are there here? The following are suggested:¹⁷¹

- (i) Saving public money. Orders should be made to avoid costs to the state of the children or either spouse becoming dependent on welfare payments now or in the future.
- (ii) Child-care issues. The state might take the view that each member of society should be as economically productive as possible, and so it would want to discourage a spouse giving up employment to take up child care, in which case the state might want to limit financial awards on divorce. If there were no financial orders on divorce, this would discourage a spouse from thinking of giving up employment to care for children; instead they would be likely to rely on day care. However, the state might believe that children's interests are promoted if one spouse gives up work to care for the children, in which case some form of protection from financial disadvantage would be necessary. Hale J in the Court of Appeal in *SRJ v DWJ (Financial Provision)*¹⁷² has stated:

It is not only in [the child's] interests but in the community's interests that parents, whether mothers or fathers, and spouses, whether husbands or wives, should have a real choice between concentrating on breadwinning and concentrating on home-making and child-rearing, and do not feel forced, for fear of what might happen should their marriage break down much later in life, to abandon looking after the home and the family to other people for the sake of maintaining a career.

- (iii) The symbolic valuing of child care. The state should place a far higher value on the unpaid work of raising children than is done at present.¹⁷³ Financial orders on divorce are one way of demonstrating that the state treasures child care as an important social activity.¹⁷⁴ Merle Weiner¹⁷⁵ puts this in terms of compensation for the spouse who is not undertaking their due care of the child (be that during or after the marriage):

parents should have a legal obligation to share fairly the caregiving responsibility for their children . . . Every parent should be obligated 'to give care or share,' i.e., to pay compensation to the other parent for any disproportionate and unfair caregiving that occurs.

- (iv) The interests of children. The level of support for the spouse with primary care of the child will have a significant impact on the welfare of the child. It will affect whether the primary carer will need to undertake work to earn money; their state of emotional

¹⁶⁹ Herring (2005b).

¹⁷⁰ Diduck (2011). See also Miles (2011c).

¹⁷¹ Herring (2005b).

¹⁷² [1999] 2 FLR 176 at p. 182.

¹⁷³ See the Family and Parenting Institute (2009) for the data on work and family life. See Mumford (2007) on how tax credits could be used to recognise and value child care.

¹⁷⁴ It might be thought that orders on divorce are not an effective way of getting this message across. Unmarried parents are not rewarded and the level of the award does not reflect the amount or quality of the work done.

¹⁷⁵ Weiner (2015: 136).

and their material well-being; and their sense of self-respect. All of these will have an impact on the well-being of the child.

- (v) Stability of marriage. Some economists have argued that the level of maintenance can act as a deterrent against divorce.¹⁷⁶ Whether this is correct and whether we wish to pressure people into remaining in a marriage which they wish to leave is a matter for debate.
- (vi) Post-divorce life. The level of financial support after divorce will affect the behaviour of the spouses after divorce. Do we want ex-wives to find employment and seek to become financially self-sufficient or is it proper to recognise that the duties owed to a spouse continue after divorce because the disadvantages flowing from the marriage do?¹⁷⁷ Whatever one's view on such questions the kind of orders made on divorce will affect the spouse's behaviour.
- (vii) Sex discrimination. The state is entitled to seek to promote equality between men and women. As already mentioned, divorce plays a significant role in leading to inequality among women. The state can legitimately seek to combat discrimination through state orders.

Not everyone, by any means, will agree that all of these state interests are weighty. But they do demonstrate that the issue of financial orders on divorce is not just of significance to the parties themselves, but can have effects on the wider society. Lucinda Ferguson argues that the state has over-extended the appropriate interpersonal obligations owed between spouses and by parents to children in order to deal with poverty which should be resolved by state support:

The notion of interpersonal obligation has been distorted in both contexts in an attempt to respond to social inequality. More concerning than this distortion, however, is the fact that neither of these support obligations manages to successfully respond to social inequality anyway. Separated and divorced women and children raised in single-parent families represent a disproportionate percentage of those Canadians¹⁷⁸ living below the low income cut-off. Focus on expanding and strengthening these interpersonal obligations has distracted us from the urgent need to address the root causes of the inequality that these obligations have been adapted to address.¹⁷⁹

Many of the difficulties that this section deals with are caused by the unequal sharing of child care. Although there is evidence of fathers seeking to play an increased role in child care¹⁸⁰ the vast majority is still undertaken by women.¹⁸¹ Some commentators take the view that the Government should attempt to encourage a more equal division of child-caring roles. However, the trend is for those working to be working for longer and longer hours, making it harder for couples to share child care and work.¹⁸² The alternative is to encourage both parties to work and for even greater use to be made of day care. However, this raises the debate over whether day care or care at home is preferable for children. This is a heated debate. Although the evidence suggests that there are some advantages and disadvantages to both, there is controversy as to whether overall one is preferable.¹⁸³

¹⁷⁶ See the discussion in Cohen (2002: 24–5).

¹⁷⁷ See Regan (1993a).

¹⁷⁸ The point could equally well be made about this in England.

¹⁷⁹ Ferguson (2008: 75). See also Case (2011).

¹⁸⁰ Maushart (2001: 129–34) and see Chapter 1.

¹⁸¹ E.g. Eekelaar and Maclean (1997: 137).

¹⁸² Moen (2003).

¹⁸³ Ermisch and Francesconi (2001; 2003) argue that children whose parents both work suffer in a variety of ways. The Daycare Trust (2003) paints a much more positive view of day care.

Having spent all this time considering the academic justifications for financial orders on divorce, it is regrettable to note that they have not impressed the judiciary. Thorpe LJ has stated:

[I]n this jurisdiction we should not flirt with, still less embrace, any of the categorisations of the defining purposes of periodical payments advanced by academic authors. The judges must remain focused on the statutory language, albeit recognising the need for evolutionary construction to reflect social and economic change . . . [T]o adopt one model or another or a combination of more than one is to don a straitjacket and to deflect concentration from the statutory language.¹⁸⁴

C The case for the abolition of maintenance

There is a case for the abolition of maintenance. The argument is that the existence of maintenance perpetuates the fact that women are dependent upon men.¹⁸⁵ A vicious circle exists in that, because the law tells wives that they will be entitled to financial support if their relationships ends, they are willing to take lower-paid jobs and they thereby do become dependent upon their husbands.¹⁸⁶ If maintenance were abolished and financial independence encouraged, women would have to find jobs that paid adequately.¹⁸⁷ Although there may be a short period during which women would suffer from the lack of maintenance, over time the market would have to provide adequately paid jobs for women, or provide economic rewards for homemaking and child-rearing activities. O'Donovan,¹⁸⁸ although sympathetic to this argument, has suggested that the abolition of maintenance can only fairly be accomplished when there:

- is equality of division of labour during marriage, including financial equality;
- is equal participation in wage-earning;
- are wages geared to people as individuals and not as heads of families;
- is treatment of people as individuals (rather than family units) by the state in taxation and benefit provision.

A second objection to maintenance has already been mentioned: that the economic disadvantages that women suffer are due to inequalities within society, such as the lack of provision of child-care services and family-friendly working practices, etc. Therefore, the state, and not husbands, should recompense wives on the breakdown of their marriage for the losses that society has caused.

D Certainty or discretion?

As we shall see, the current law is based around fairness. Although there are some factors and principles a judge can refer to, the outcome is largely in the discretion of the judge. The task of the family judge has been likened to:

¹⁸⁴ Thorpe LJ in *Parlour v Parlour* [2004] EWCA Civ 872 at para 106. See Miles (2005) for an insightful discussion of his statement and Gilmore (2012) for a more general discussion of the relationship between academic writing and family law.

¹⁸⁵ In practice, it is far more common for a wife to be awarded maintenance than a husband.

¹⁸⁶ Deech (2009a).

¹⁸⁷ Although the levels of maintenance are low, and it is unlikely that women would choose not to work in the hope of getting maintenance should they divorce. Perhaps more convincing is the argument that maintenance is symbolic of the culture of dependency.

¹⁸⁸ O'Donovan (1982).

... a bus driver who is given a large number of instructions about how to drive the bus and the authority to do various actions such as turning left or right. There is also the occasional advice or correction offered by three senior drivers. The one piece of information which he or she is not given is where to take the bus. All he or she is told is that the driver is required to drive to a reasonable destination.¹⁸⁹

But Holman J¹⁹⁰ has recently sought to suggest that judges' decisions in these cases are entirely arbitrary:

I have reached this decision in the exercise of the judicial discretion which Parliament has imposed upon, and entrusted to, the courts. Of course, on one level the decision is arbitrary. I could have awarded more, or less, and two judges might (and probably would) have reached conclusions which differed to some degree . . . I, personally, consider that there is nevertheless a distinction between an award which is arbitrary in the true sense, and one which is the product of judicial discretion. An arbitrary result would be one yielded by sticking in a pin, or tossing a coin, or drawing a lot. Judicial discretion is the product of a weighing of all relevant factors and wise, considered and informed decision making by an experienced adjudicator after hearing argument. My decision is a discretionary one, but it is not an arbitrary one.

DEBATE

Certainty or discretion?

A major issue in the area of spousal financial support is whether the financial support for spouses should be based on some formula to ensure certainty of result and consistency or whether the case should be resolved in reliance upon discretion. As we shall see, spousal financial support is at present based on a very broad discretion, considering a list of factors. This can be contrasted with the law on child support, where the level of the award was based upon a mathematical calculation, with only a limited discretion to depart from the calculation. Some of the arguments for and against discretion will now be considered:

1. *Enforcement*. One of the arguments against discretion is that enforcement is easier if the system is seen to be fair and consistent. One common reason for non-payment of maintenance is that the amount payable is seen to be unfair. Having a clearly applied formula, which the parties could be made aware of before marriage, might improve enforcement levels.
2. *Certainty*. Another argument against discretion is that the parties in negotiations are assisted by having clear guidance on what amount the law regards as fair in a particular case. The problem with the present law is that it can be very difficult for solicitors to predict how much a court will award a client. Not only does a discretion based system make negotiations harder, it also increases the powers of solicitors. As Jackson *et al.* argue:

along with discretion goes uncertainty; the elevation of professional judgement (because only lawyers, who deal with these matters all the time, have the necessary knowledge and skill to weigh up the competing factors); an almost limitless need for information about family finances (because discretion, if it is to [be] justified at all, has to be based on a minute examination of differing circumstances) and the demand for large amounts of professional time (because discretion, if it is not to be exercised arbitrarily, takes time).¹⁹¹

¹⁸⁹ Patrick Parkinson, quoted with approval by the Law Commission (2014).

¹⁹⁰ *Robertson v Robertson* [2016] EWHC 613, [68].

¹⁹¹ Jackson, Wasoff, Maclean and Dobash (1993: 256).

Dewar, however, argues that there is no evidence that less discretion means it will be easier for the parties to reach an agreement, because the parties can disagree how even a rigid formula should apply.¹⁹² Lord Nicholls in *Miller; McFarlane* accepted there was a difficulty for the courts here. On the one hand ensuring fairness between the parties meant that the court needed flexibility, but that created unpredictability and that conflicted with another aspect of fairness: that like cases should be treated alike.¹⁹³ Practitioners claim that if you 'know your District Judge' (i.e. the arguments that that judge is usually persuaded by) this can be an advantage for your client.¹⁹⁴ This is in part due to the discretionary nature to the system.¹⁹⁵

3. *Flexibility.* A benefit of the discretion-based system is that it can apply unique solutions that may better fit the circumstances of individual parties. A blanket rule cannot consider the particular events during the relationship which justify a particular award. Perhaps the core question is: to what extent are we willing to put up with injustices in a few cases to enable speedy and efficient responses for the majority?

Questions

1. Do you think there would be disputes even if the law were crystal clear?
2. Should a judge use his or her own moral values when exercising discretion? Or the values of society at large? Or the values of the couple?

Further reading

Read **Cooke** (2007) and **Harris** (2012) for a helpful discussion of the nature of uncertainty in this area of the law.

E The importance of discovery

Crucial to the success of the parties' negotiations and any court hearing is having full disclosure of each party's assets, income and liabilities. There is a duty on both clients and lawyers to make a full frank and clear disclosure of the parties' present assets (*Sharland v Sharland*)¹⁹⁶; *Bokor-Ingram v Bokor-Ingram*¹⁹⁷). Each party must file at court a form, which sets out income and assets. However, it is 'all too common'¹⁹⁸ for people to try to hide their assets. Indeed, for lawyers in practice, far more time is often spent ascertaining the other party's true wealth than in deciding what would be a fair division of the property. The problem can be a simple deliberate failure to disclose, but in more sophisticated forms can involve hiding income and property behind companies or trusts controlled by the parties. Although the courts have powers for ordering discovery of relevant documents, too often it is impossible to be sure that all the relevant material has been provided. The court has two further tools at its disposal if it cannot ascertain a party's true financial position. First, the court can order that the non-disclosing party be punished by being ordered to pay all or some of the legal

¹⁹² Dewar (1997).

¹⁹³ [2006] 1 FCR 213 at para 6.

¹⁹⁴ Watson-Lee (2004: 349).

¹⁹⁵ Although similar claims are made about district judges in areas of the law where there is much less discretion.

¹⁹⁶ [2015] UKSC 60.

¹⁹⁷ [2009] 2 FLR 922.

¹⁹⁸ Thorpe LJ in *Purba v Purba* [2000] 1 FLR 444.

costs incurred in the attempt to ascertain his or her wealth.¹⁹⁹ Second, the court can, if it is convinced that it does not have the full picture, presume that a party has a certain level of wealth.²⁰⁰ This could be done where the court decides that a person's lifestyle is not commensurate with their claimed income.²⁰¹ If a non-disclosure only comes to light after an order has been made, the court can give leave to appeal out of time, even if that is years later.²⁰²

The difficulty in ascertaining the wealth of the parties is likely to work in favour of the richer party. It is far harder to hide the income of a part-time worker than to hide the true income of a managing director of a company whose salary may be but a small portion of his or her true income.²⁰³ At the other end of the spectrum, the courts have complained of solicitors seeking too much information from the other side in the hope of uncovering assets which may be available to their clients. Intensive financial questioning can lead to enormous solicitors' costs. The Family Proceedings Rules 2010 are designed to prevent unnecessary investigation, but the practitioner is in a difficult position. There is a danger that if he or she does not follow up a lead in disclosure, they may be sued in negligence, but if the practitioner does they may be penalised in costs for unnecessary work.

An issue of considerable importance in practice arose in *Tchenguiz v Imerman*.²⁰⁴ The wife had obtained information about her husband's assets from a computer, which she was not authorised to access. This amounted to a breach of his rights of confidentiality, the court held, and so she was not permitted to use the information in the court hearing. Although it was accepted there was a real problem with spouses not disclosing their assets, that did not justify a party breaking the law in order to discover the truth. The difficulty is that if it is discovered that a spouse has misled the court the intrusion into privacy seems justified. A party should not be able to rely on claims of privacy in relation to material they should have disclosed to the court. However, if they have made proper disclosure and the breach of confidentiality was a mere 'fishing expedition' then the rights to confidentiality seem to be infringed. One issue argument the court, perhaps surprisingly, did not find convincing was that in marriage a spouse loses the right of confidentiality in relation to the other. Perhaps the better argument in this context is that on divorce the couple's assets become available for redistribution and cease to be regarded as his or her assets. The conclusion in this case that information obtained without consent of the other spouse sometimes cannot be used in evidence is likely to make disclosure of the truth of the parties' positions even harder and lead to an increase in the number of orders made on the basis of false facts. Rich spouses will be delighted.

6 Orders that the court can make

Courts make financial orders in divorce in around a third of cases.²⁰⁵ The court has a range of orders that it can make. It is useful to divide these up into those orders that relate to income, and those that relate to capital and property.

¹⁹⁹ *W v W (Ancillary Relief: Non-Disclosure)* [2003] 3 FCR 385. In *Young v Young* [2012] EWHC 138 (Fam) the husband's passport was detained until he made disclosure.

²⁰⁰ *Gulobovich v Gulobovich* [2011] EWCA Civ 479; *Hutchings-Whelan v Hutchings* [2012] EWCA Civ 38; although see *US v UR* [2014] EWHC 175 (Fam), where there was no evidence other assets existed.

²⁰¹ *Thomas v Thomas* [1996] 2 FLR 544, [1996] FCR 668; *Al Khatib v Masry* [2002] 2 FCR 539; *Minwalla v Minwalla* [2005] 1 FLR 771.

²⁰² *Sharland v Sharland* [2015] UKSC 60.

²⁰³ *Young v Young* [2014] 2 FCR 495. See also *Velupillai v Velupillai* [2015] EWHC 3095 (Fam). [2010] EWCA Civ 908.

²⁰⁵ Ministry of Justice (2014a).

A Income orders

The main income order is the periodical payments order (PPO) under s 23 of the MCA 1973.²⁰⁶ These payments can be weekly, monthly or annual. For example, a husband could be ordered to pay his ex-wife £400 per month. The order can be secured or unsecured. If it is a secured PPO and the payments are not made, then the property providing the security can be sold to enable payment. The security could be, for example, shares or the matrimonial home. This is an attractive option for the recipient, as she will not have to worry about non-payment, and also secured periodical payments can continue after the death of the payer. However, if there are sufficient assets to provide security for periodical payments, then it might be better simply to transfer those assets over to the wife as a lump sum instead of requiring regular payments. It is, therefore, not surprising that Thorpe LJ has suggested that secured PPOs 'have [been] virtually relegated to the legal history books'.²⁰⁷

A payments order will cease on any of the following events:

1. The death of either party.²⁰⁸ However, if the order is a secured periodical order, the order need not cease on the death of the payer.²⁰⁹
2. The remarriage of the recipient.²¹⁰ The explanation is that on remarriage the new spouse would be financially responsible for the recipient. While that might have some validity if the payments are in the nature of support, that argument does not apply where the maintenance payments represent a share in the assets the couple have built up together during the marriage.
3. The court order may specify a date on which the payments will end. For example, the order may state that there are to be periodical payments for the next three years only.²¹¹

Maintenance orders can be made against either parent for the benefit of a child. If the child is over 18 years of age then PPOs can be made only if the child is in full-time education or under specific circumstances, such as disability.

B Property orders

There are three main types of property orders:

1. *Lump sum orders.* A lump sum order (LSO) requires a lump sum of money to be handed over by one spouse to the other. The LSO may be made to a parent for the benefit of a child. It is possible to order that the LSO be paid in instalments. The LSO is often used when considering housing issues: assuming one party is to stay in the matrimonial home, the other will need some money to use as a deposit to rent or buy a home.

²⁰⁶ MCA 1973, s 22 allows for 'maintenance pending suit' which allows for payments prior to the litigation being completed. Its primary use today is to enable a party to pay their solicitors: *Moses-Taiga v Taiga* [2008] 1 FCR 696.

²⁰⁷ *AMS v Child Support Officer* [1998] 1 FLR 955 at p. 964.

²⁰⁸ MCA 1973, s 28(1)(a).

²⁰⁹ MCA 1973, s 28(1)(b).

²¹⁰ MCA 1973, s 28(1)(a). Remarriage will not prevent a court making a lump sum order, if the application for such an order was made before the remarriage: *Re G (Financial Provision: Liberty to Restore Application for Lump Sum)* [2004] 2 FCR 184.

²¹¹ The recipient could apply to vary the order so as to extend that period unless the order contains a direction under s 28(1A) or the date on which the payments are due to cease has passed, in which case it is not possible to apply for variation.

2. *Transfer of property orders.* The most common transfer of property order is an order that one party transfers a share in the matrimonial home to the other. A transfer of property order could also be used to transfer ownership of other property, such as a car or piece of furniture. The court can make an order to transfer property to the other spouse or to an adult for the benefit of a child under a trust.
3. *Power to order sale.* Under s 24A of the MCA 1973 the court can order the sale of property which either spouse owns outright or which the spouses own jointly. The order is effectively ancillary to an LSO. The owner is normally required to sell the item and then the proceeds are divided between the spouses by means of an LSO.²¹²

C Clean break orders

(i) What is a clean break order?

When considering what financial order to make, the court must consider whether to make a clean break order. If a clean break order is not made, the parties can potentially have further financial obligations placed upon them after divorce for the rest of their lives. For example, if on divorce the husband is required to pay the wife £100 per month, and two years after the divorce the husband wins the national lottery, the wife could apply to the court for a significant increase in the amount she should receive. Similarly, if she won the national lottery, the husband could apply to have the payments ended. By contrast, if a clean break order is made, it ends any continuing obligation between the spouses. So the court may make a lump sum or property adjustment order, and neither party would be able to make any further applications to the court.²¹³ The financial responsibilities to each other in relation to the divorce are at an end.²¹⁴ However, it should be stressed that the clean break cannot end the possibility that a spouse may be liable under the CSA 1991. It is only spousal support that can be cleanly broken; child support cannot.

A delayed clean break order is also possible.²¹⁵ This is where the periodical payments order is set for a certain period, say two years, and after that period the payments will end, with no option for the spouse receiving the payments to apply to extend that period.

(ii) The statutory provisions

In every divorce case there is an obligation on the court to consider whether to make a clean break order. Under s 25A(1) of the MCA 1973 there is a duty on the court in all cases to consider 'whether it would be appropriate so to exercise [its] powers that the financial obligations of each party towards the other will be terminated as soon after the grant of the decree as the court considers just and reasonable'.²¹⁶

If the court is making a periodic payments order, it should consider whether to limit the length of time over which payments will be made, and whether a delayed clean break order

²¹² MCA 1973, s 24A(6): if a third party has an interest in the property this does not mean that there cannot be an order for sale, but that third party's interests must be taken into account. Under FLA 1996, Sch 7 there is a power to transfer tenancies.

²¹³ Although it would be possible to appeal against the making of the order, discussed below.

²¹⁴ A clean break order should also contain a term making it impossible to apply under the Inheritance (Provision for Family and Dependents) Act 1975 should the paying spouse die: *Cameron v Treasury Solicitor* [1996] 2 FLR 716 CA.

²¹⁵ MCA 1973, s 28(1A).

²¹⁶ MCA 1973, s 25(1)(a), (2).

would be appropriate.²¹⁷ A clean break should not be regarded as something to be achieved at all costs. Certainly it would be wrong to make an order which produced an unfair or unjust division in the name of achieving a clean break order.²¹⁸

(iii) The benefits and disadvantages of a clean break order

The benefits of a clean break order include:

1. The parties are each free to pursue their own careers or start new careers without fear that their actions will lead to applications to vary maintenance payments. If the husband is paying maintenance, he may be reluctant to increase his income for fear that such an increase would simply result in his ex-wife seeking a larger maintenance payment. The wife might be deterred from seeking a new job for fear that if she had more income her husband would seek to have the maintenance payments reduced.
2. There may be emotional reasons for having a clean break: the parties may not feel that they are completely released from the marriage until all financial issues are resolved;²¹⁹ although if there are children the parties will be encouraged to keep in contact,²²⁰ and so the strength of this benefit may be questioned.²²¹
3. If the recipient intends to remarry, she may prefer a lump sum clean break arrangement as this will free her to remarry without the risk of losing her maintenance.
4. It avoids the future problems in the payment and collection of periodic payments. As Baroness Hale put it in *Miller; McFarlane*:²²² 'Periodical payments are a continuing source of stress for both parties. They are also insecure. With the best will in the world the paying party may fall on hard times and be unable to keep them up. Nor is the best will in the world always evident between formerly married people.'

The main disadvantage of the clean break is that the court ties its hands and, whatever tragedy befalls the parties, the courts cannot reopen the court order. For example, if the court assumes that the wife will be able to support herself with the income from a new job and therefore makes a clean break order, nothing can be done if, a few months later, she is made redundant.

The following case is a dramatic example of what might happen if a clean break order is not made:

CASE: *Vince v Wyatt* [2015] UKSC 14

The couple married in 1981 and lived a 'new age or traveller creed and lifestyle', largely living on benefits. They lived together until around 1984, but did not divorce until 1992. At that time they had few assets and so they did not seek any orders dealing with their finances. At the time of the Supreme Court hearing their son lived with Mr Vince and a girl they had raised together lived with Ms Wyatt. Ms Wyatt was in poor health and on benefits or in low paid jobs. However, since the divorce Mr Vince had become extremely

²¹⁷ MCA 1973, s 25A(2).

²¹⁸ *F v F (Clean Break: Balance of Fairness)* [2003] 1 FLR 847.

²¹⁹ Lord Scarman in *Minton v Minton* [1979] AC 593 at p. 608.

²²⁰ And financial liability may continue under the CSA 1991.

²²¹ See Hale J in *SRJ v DWJ (Financial Provision)* [1999] 2 FLR 176.

²²² [2006] 2 FCR 213 at para 133.

wealthy through a green energy company and by 2015 had wealth of at least £57 million. He had remarried and had a young wife. Ms Wyatt applied for financial orders on divorce in 2011, nearly 20 years since her divorce. The Court of Appeal found there was no chance of her application succeeding and so it could be dismissed without a full hearing. The Supreme Court disagreed. The Supreme Court accepted that had the couple sought a financial order on divorce it was likely that the court would have made a clean break order, with no payments of significance. However because financial orders had not been made at divorce, Ms Wyatt was still entitled to make an application, at least in theory. The issue was what order was appropriate. Lord Wilson thought the award of £1.9 million sought by Ms Wyatt was 'out of the question', given the short duration of their marital cohabitation; the length of time since the relationship had broken down, the low standard of living during the marriage; and the fact she could not be said to have contributed to Mr Vince's wealth. Nevertheless, he believed she did have a claim based on her contribution to the family, including looking after the children, which had continued after the breakdown of the relationship. The Supreme Court left it for the parties (or future litigation) to resolve the precise amount to reflect this. [Subsequently²²³ a consent order was made granting the wife a £300,000 lump sum.]

Supporters of clean break might be horrified by this case.²²⁴ Why should a wife be able to claim against a husband some 20 years after the marriage finished, to claim a share in money he generated after the marriage was over? Supporters of the decision will claim that Ms Wyatt was entitled to an award to recognise her contribution to the family, especially the care of the children. Although his poverty at the time of divorce meant that an adequate award could not be made, why should she not be compensated when her husband came into wealth and was in a position to recognise financially her contribution?

(iv) When a clean break order is appropriate

The court must consider in each case whether or not to make a clean break order.²²⁵ There is no presumption in favour of making the order,²²⁶ but in *Matthews v Matthews*²²⁷ it was held there was a legislative 'steer' in favour a clean break and such an order should be made whenever possible. Baroness Hale referred to the benefits of a clean break as producing 'independent finances and self-sufficiency'.²²⁸ Clean break orders have been considered appropriate in the following circumstances:

1. *When continuing support offers no benefit to the wife.* In *Ashley v Blackman*²²⁹ the wife was unemployed. The husband was of limited means. The court accepted that the wife would see a very limited benefit if the husband were ordered to pay maintenance because any

²²³ *Wyatt v Vince* [2016] EWHC 1368 (Fam).

²²⁴ See Sloan (2015b) for a discussion.

²²⁵ MCA 1973, s 25A(1).

²²⁶ *Fisher v Fisher* [1989] 1 FLR 423, [1989] FCR 308.

²²⁷ [2013] EWCA Civ 1874.

²²⁸ *Miller; McFarlane* [2006] UKHL 24.

²²⁹ [1988] FCR 699, [1988] 2 FLR 278.

- small amounts of money transferred to her would lead to a corresponding reduction in her state benefits.²³⁰ The court therefore made a clean break order.²³¹
2. *Short, childless marriages.* If the marriage was short and childless, and the parties are easily able to return to the position they were in before they married, a clean break order may be appropriate.²³² Even if the marriage is short, if there is a child the court may well decide that the future for mother and child is too uncertain to make a clean break order.²³³
 3. *The very wealthy.* With wealthy people it is often particularly appropriate to require one spouse to pay the other a substantial lump sum as part of a clean break order.²³⁴ The lump sum can meet any future needs the wife might have.
 4. *Both spouses have well-established careers.* In *Burgess v Burgess*²³⁵ the wife was a doctor in general practice and the husband was a partner in a firm of solicitors. Both were well established in their careers and their children were students at university. It was held that dividing all the family assets equally and making a clean break order was the most appropriate course, given that they were both clearly able to support themselves from their careers.
 5. *Where there is antagonism between the spouses.* A clean break between spouses is appropriate where the relationship has broken down. In such a case continuing financial responsibility may only increase the bitterness affecting the relationship. However, even if the relationship is an unhappy one it might still be impossible to make a clean break order which achieves fairness.²³⁶

(v) When a clean break order is inappropriate

1. *Where there are still young children.* In *Suter v Suter and Jones*²³⁷ there were children, but very limited capital assets. It was held that it was not appropriate to make a clean break order and that the husband should be required to pay a nominal sum of £1 a year. The court stressed that simply because there were dependent children did not mean that there was no possibility of making a clean break order. However, in this case it was necessary to provide a 'backstop' in case there were future unforeseen events which might lead the court to want to make financial provision orders. In *Murphy v Murphy*²³⁸ the wife had stopped work to care for twins, who were aged three at the time of divorce. Her position was described as precarious and a clean break order inappropriate as it was not possible to tell what the future might bring. There are signs of a changing attitude. The Court of Appeal in *Wright v Wright*²³⁹ dealt with a case where the district judge specifically stated in her judgment that 'there is a general expectation in these courts that once a child is in year 2, most mothers can consider part time work consistent with their obligation to their children.' She therefore only needed financial support for two years. She went on: '... vast

²³⁰ *Seaton v Seaton* [1986] 2 FLR 398.

²³¹ See also *Matthews v Matthews* [2013] EWCA Civ 1874.

²³² E.g. *Hobhouse v Hobhouse* [1999] 1 FLR 961.

²³³ *B v B (Mesher Order)* [2003] Fam Law 462.

²³⁴ For a rare case where despite the parties' wealth a clean break order was not appropriate, see *F v F (Clean Break: Balance of Fairness)* [2003] 1 FLR 847.

²³⁵ [1996] 2 FLR 34, [1997] 1 FLR 89.

²³⁶ *Parra v Parra* [2002] 3 FCR 513, although the judgment was overturned on the facts by the Court of Appeal ([2003] 1 FCR 97).

²³⁷ [1987] 2 FLR 232, [1987] FCR 52.

²³⁸ [2014] EWHC 2263 (Fam).

²³⁹ [2015] EWCA Civ 201.

numbers of women with children just get on with it, and Mrs X should have done as well.' Notably, however, even with those points in mind a clean break order was not made and so if the wife could not find a job she could apply to extend the period of financial support (although her chances of success might be low). The order was upheld as permissible by the Court of Appeal, although they did not specifically approve the comments made.

2. *Where there is too much uncertainty over the recipient's financial future.* In *Whiting v Whiting*²⁴⁰ the wife had, at the time of the divorce, started a job. The husband, who had been well paid, had recently been made redundant, but had become self-employed earning at that time £4,500. The trial judge decided that the husband should be ordered to pay a nominal sum and declined to make a clean break order. This was because, although it appeared that the wife was in a position where she would be able to become financially independent, it was not possible to predict her future.²⁴¹ The majority of the Court of Appeal decided that the judge's decision could not be said to be entirely wrong, even though they would have made a clean break order. Balcombe LJ, in the minority, thought the trial judge's ruling was fundamentally wrong and should be overturned. Less controversial was *M v M (Financial Provision)*,²⁴² where a woman, aged 47, had a limited earning capacity. Here the court declined to make a clean break order as she had not worked for the last 20 years and there was no certainty that she would be able to become self-sufficient in the future. In *D v D*²⁴³ the uncertainty of the value of the husband's private company was said to justify not making a clean break.²⁴⁴
3. *Where there is a lengthy marriage.* In *SRJ v DWJ (Financial Provision)*²⁴⁵ the couple had been married for 27 years, during which the wife had spent most of her time caring for the children and the house. The Court of Appeal felt that this strongly militated against a clean break order.
4. *To achieve fairness.* Where one spouse has undertaken child-care responsibilities during the marriage, while the other has pursued his or her career and this causes economic disparity after the marriage which cannot be rectified by provision of a lump sum then ongoing periodic payments may be required to achieve fairness.²⁴⁶ In such a case to make a clean break order would not be fair.²⁴⁷

(vi) Deferred clean break orders

If the court decides that a clean break order is not appropriate, then the next question is whether a delayed clean break order can be made. A delayed clean break order is useful where a party could adjust, without undue hardship, to the termination of financial provision orders in the foreseeable future.

In *Flavell v Flavell*²⁴⁸ Ward LJ was concerned that the lower courts were too ready to make these delayed clean break orders. He stated:

There is in my judgment, often a tendency for these orders to be made more in hope than in serious expectation. Especially in judging in the case of ladies in their middle years, the judicial

²⁴⁰ [1988] 2 FLR 189, [1988] FCR 569.

²⁴¹ See also *H v H (Financial Provision)* [2009] 2 FLR 795.

²⁴² [1987] 2 FLR 1.

²⁴³ [2007] 1 FCR 603.

²⁴⁴ See also *P v P* [2010] 1 FLR 1126.

²⁴⁵ [1999] 2 FLR 176.

²⁴⁶ *Miller; McFarlane* [2006] 2 FCR 213 at para 39.

²⁴⁷ Ouazzani (2009).

²⁴⁸ [1997] 1 FLR 353, [1997] 1 FCR 332.

looking into a crystal ball very rarely finds enough of substance to justify a finding that adjustment can be made without undue hardship. All too often these orders are made without evidence to support them.

As Ward LJ put it in *C v C (Financial Provision: Short Marriage)*,²⁴⁹ 'Hope, without pious exhortations to end dependency, is not enough.' The court therefore must have clear evidence that the recipient will certainly be financially independent come the end of the period of maintenance payments if a delayed clean break order is to be appropriate. Such comments may be welcomed by those who believe that the courts have too readily decided that a wife who has been out of the job market for a long time can easily find employment, particularly women from minority cultural groups.²⁵⁰

D Interim orders

Given the length of time that litigation and negotiations can take, it is understandable that a divorcing spouse might need financial support before the making of a final court order. Hence the MCA 1973 permits the court to order interim support under s 22. There are no formal guidelines, but the courts will take into account all the circumstances of the case. In fact, it seems that interim awards are 'almost unknown', according to Thorpe J in *F v F (Ancillary Relief: Substantial Assets)*.²⁵¹ This is because the courts do not want to tie their hands before they have heard all the facts in a full hearing. They have been used to assist a party pay for their lawyers' fees, although only in cases of very wealthy couples.²⁵²

Under s 22ZA MCA 1973 a court can make a legal services payment order (LSPO) for one party to pay towards the other's legal costs.²⁵³ In the last few years there has been a notable increase in these orders, no doubt due to the restrictions on legal aid. In deciding whether or not to make a LSPO the court should consider the strength of the claim. The more doubtful it is, the more reluctant the court should be to make a LSPO.²⁵⁴ The order should only be made if the applicant cannot reasonably obtain funding from another source, although that would not normally include a person having to sell or mortgage their house or deplete modest savings.²⁵⁵ The court will also consider whether the applicant should have relied on mediation to resolve the dispute.²⁵⁶

7 Statutory factors to be taken into account when making orders

Learning objective 5

Describe how the relevant provisions of the MCA relate to financial disputes

Lord Nicholls in the House of Lords in *White v White*²⁵⁷ has suggested that fairness is the overriding purpose of financial orders. That said, the concept of fairness is not particularly useful. Lord Nicholls accepted that this guidance was not of enormous assistance: as he put it, 'fairness, like beauty, lies in

²⁴⁹ [1997] 2 FLR 26, [1997] 3 FCR 360.

²⁵⁰ S. Edwards (2004: 811).

²⁵¹ [1995] 2 FLR 45.

²⁵² *F v F (Ancillary Relief: Substantial Assets)* [1995] 2 FLR 45.

²⁵³ The court is required to have regard to all the matters mentioned in s 22ZB(1)–(3).

²⁵⁴ *Rubin v Rubin* [2014] EWHC 611 (Fam).

²⁵⁵ *Rubin v Rubin* [2014] EWHC 611 (Fam).

²⁵⁶ *Rubin v Rubin* [2014] EWHC 611 (Fam).

²⁵⁷ [2000] 2 FLR 981, [2000] 3 FCR 555.

the eye of the beholder'.²⁵⁸ In *Miller; McFarlane* he said: 'Fairness is an illusive concept. It is an instinctive response to a given set of facts. Ultimately, it is grounded in social and moral values. These values, or attitudes, can be stated. But they cannot be justified, or refuted, by any objective process of logical reasoning.'²⁵⁹ Baroness Hale was perhaps more helpful in suggesting that: 'The ultimate objective is to give each party an equal start on the road to independent living.'²⁶⁰ But, she was clear that that was only one aspect of fairness.

Apart from the general concept of fairness, judges will be guided by the factors listed in s 25 MCA and by some general principles which the courts have developed. We will start by looking at the statutory factors and then consider the general principles.

The factors to be taken into account by a court in deciding which orders to make are listed in s 25 of the MCA 1973. Key to understanding the way judges decide what financial orders to make under the MCA 1973 is to appreciate that they are given wide discretion. The House of Lords has accepted that different judges may quite properly reach different conclusions as to what the most appropriate order is in a particular case.²⁶¹ The Act deliberately has no one overall objective²⁶² and it is permissible for the court to take into account factors not listed in s 25, if it believes them to be relevant.²⁶³ In *Robson v Robson*²⁶⁴ the Court of Appeal stated:

The statute does not list those factors in any hierarchical order or in order of importance. The weight to be given to each factor depends on the particular facts and circumstances of each case, but where it is relevant that factor (or circumstance of the case) must be placed in the scales and given its due weight.

Less charitably, Peter Harris suggests that the s 25 factors are 'little more than a rag-bag of Parliamentary anxieties and statements of the obvious'.²⁶⁵ It is time to look at what those factors are.

A The welfare of children

The court must take into account all the factors listed in s 25. However, it is required 'to have regard to all the circumstances of the case, first consideration being given to the welfare while a minor of any child of the family who has not attained the age of eighteen'.²⁶⁶ It was made clear in *Suter v Suter and Jones*²⁶⁷ that although the child's welfare is the first consideration, that does not mean that it is the overriding consideration; that is to say, it is the most important factor, but not the only factor. The Court of Appeal explained that, as well as protecting the child's interests, it is necessary to reach 'a financial result, which is just as between husband and wife'.

²⁵⁸ *White v White* [2000] 3 FCR 555 at para 1.

²⁵⁹ [2006] 2 FCR 213 at para 4.

²⁶⁰ Paragraph 144.

²⁶¹ *Piglowska v Piglowski* [1999] 2 FLR 763. See also Herring (2012b).

²⁶² *White v White* [2001] AC 596 HL at pp 316–17.

²⁶³ *Co v Co* [2004] EWHC 287 (Fam).

²⁶⁴ [2010] EWCA Civ 1171, para 48.

²⁶⁵ Harris (2008).

²⁶⁶ MCA 1973, s 25(1). 'Child' here includes any child of the family of the couple (see Chapter 8 for further discussion of this term).

²⁶⁷ [1987] 2 FLR 232, [1987] FCR 52.

The criteria to be taken into account when considering awards to spouses with children are set out in s 25(3):

LEGISLATIVE PROVISION

Matrimonial Causes Act, section 25(3)

- (a) the financial needs of the child;
- (b) the income, earning capacity (if any), property and other financial resources of the child;
- (c) any physical or mental disability of the child;
- (d) the manner in which he was being and in which the parties to the marriage expected him to be educated or trained;
- (e) the considerations mentioned in relation to the parties to the marriage in paragraphs (a), (b), (c) and (e) of [s 25(2) of the MCA 1973].

The child's interests are obviously significant when considering the appropriate level of child support but are also very relevant when deciding the financial support for spouses. The child's interests can be pertinent in a number of ways:

1. It has been held that it would be contrary to the child's interests if either of his or her parents had to live in straitened circumstances, as this would cause the child distress²⁶⁸ and affect the parents' ability to care for him or her. Baroness Hale in *Miller; McFarlane* explained that part of promoting the child's welfare was to ensure that the primary carer is 'properly provided for, because it is well known that the security and stability of children depends in large part upon the security and stability of their primary carers'.²⁶⁹ In *RK v RK*²⁷⁰ the court went further and suggested it was not in a child's interests for there to be a marked disparity in the standard of living of the mother and father.
2. The child's interests can also be important in deciding what should happen to the matrimonial home. It may well be thought that it is in the child's best interests if he or she and the parent who is caring for him or her remain in the matrimonial home. In *B v B (Financial Provision: Welfare of Child and Conduct)*²⁷¹ the need to ensure that the child (who had had a disturbed background) had a secure and satisfactory home meant that there was no money to enable the husband to purchase a house. This was justified by Connell J on the basis that the child's welfare was to be the first consideration.
3. The child's interests are also relevant in deciding whether or not the court should expect the residential parent to go out to work to support him- or herself, or order the other spouse to pay maintenance support.²⁷² The courts generally accept that a parent caring for young children should not be expected to seek employment.²⁷³

²⁶⁸ *E v E (Financial Provision)* [1990] 2 FLR 233 at p. 249.

²⁶⁹ [2006] 2 FCR 213 at para 128.

²⁷⁰ [2012] 3 FCR 44.

²⁷¹ [2002] 1 FLR 555.

²⁷² *Waterman v Waterman* [1989] 1 FLR 380, [1989] FCR 267.

²⁷³ *Leadbeater v Leadbeater* [1985] 1 FLR 789.

The court will take into account the future interests of children, even beyond their minority, as well as the interests of children already over the age of minority, even though the interests of such children are not the first consideration.²⁷⁴

B Financial resources

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Matrimonial Causes Act 1973, section 25(2)(a)

The income, earning capacity, property and other financial resources which each of the parties to the marriage has or is likely to have in the foreseeable future, including in the case of earning capacity any increase in that capacity which it would in the opinion of the court be reasonable to expect a party to the marriage to take steps to acquire.

Clearly, the financial resources of the parties are a key element, although the truth is that the courts are often dealing with the debts, rather than the assets, of the parties.²⁷⁵ All of the assets of a party will be considered, even those they owned before the marriage. A number of controversial issues have been discussed by the courts in regard to financial resources:

1. The court cannot take into account the resources of a third party.²⁷⁶ So, if the wife now has a rich boyfriend, his income cannot be taken into account. However, the court may assume that a spouse's new partner might be in a position to contribute to her household expenses thereby reducing her needs.²⁷⁷ In *TL v ML*²⁷⁸ it was held that it might be appropriate to make an award on the assumption that a third party (such as a parent or trustee) would meet the award, but only if that would be fair to do so, for example where the third party has indicated they are willing to provide the funds to meet any court order.²⁷⁹ However, it would be wrong of the court to make an order that put undue pressure on a third party to make a payment.²⁸⁰
2. With rich individuals, often their assets are hidden within a company that he or she controls. Can the property of the company be used to pay the wife financial payments on divorce?

CASE: *Prest v Petrodel Resources Ltd and Others* [2013] UKSC 34

The parties had been married for nearly 20 years, having four children and an affluent lifestyle. The husband was a prominent oil trader who owned the Petrodel Group of companies. The companies owned seven residential properties. The question arose whether the property of the companies, especially the residential properties, was to be available for redistribution on divorce.

²⁷⁴ *Young v Young* [2013] EWHC 3637 (Fam).

²⁷⁵ Eekelaar and Maclean (1986).

²⁷⁶ *Re L (Minors) (Financial Provisions)* [1979] 1 FLR 39; *Duxbury v Duxbury* [1987] 1 FLR 7.

²⁷⁷ *Atkinson v Atkinson (No. 2)* [1996] 1 FLR 51, [1995] 3 FCR 788 CA.

²⁷⁸ [2006] 1 FCR 465.

²⁷⁹ Although in *Re C (Divorce: Ancillary Relief)* [2007] EWHC 1911 (Fam) Baron J was more willing to assume that a wife who was a beneficiary under a discretionary trust could expect to receive money from the trust. See also *A v A and St George Trustees Ltd* [2007] EWHC 99 (Fam) and *Whaley v Whaley* [2011] EWCA Civ 617.

²⁸⁰ *M v W (Ancillary Relief)* [2010] EWHC 1155 (Fam).

The Supreme Court held that in cases where it was alleged that property owned by a company was in practice owned by the company, in very exceptional cases the courts would be willing to 'pierce the corporate veil' in a divorce case. This was limited to cases where a person was deliberately evading a legal obligation to provide financially on divorce. That did not apply in this case as there was no suggestion these companies had been created to avoid having to meet financial orders on divorce. An argument that s 24 Matrimonial Causes Act 1973 gave a broad power to look behind company ownership was rejected. Nevertheless it was open to the wife to argue that although the company was the legal owner the properties were held on trust for the husband. As he owned the equitable interest in the properties these could be taken into account in the making of financial orders. The husband and the company had refused to provide paperwork in connection with the purchase of the properties and the court was entitled to conclude that they revealed that the husband intended to keep an equitable interest in them.

Although Mrs Prest won the case it should not be thought that this means that generally spouses whose wealth is hidden within corporate entities will be required to use those assets to pay financial orders. Indeed the Supreme Court upheld the general principle that companies have their own legal personhoods and that corporate property is owned by the company, not the directors or shareholders. Only where a company has been created specifically to try and avoid having to make payments on divorce will the court look behind the corporate veil. Mrs Prest won her case on the details concerning the purchase of the property, relying on the principles of resulting trust (see Chapter 5), meaning the parties were presumed to have created a trust when the property was bought, with the company being the trustee and the husband the beneficiary. In other similar cases it may well not be possible to find the parties intended to create a trust. The wife was helped in this case by the husband's refusal to provide evidence, leaving the court with the option of making presumptions of fact against him. Critics will complain that this case makes it very easy for husband's to severely limit the amounts they may need to pay out on divorce.²⁸¹

3. 'Other resources' include income from discretionary trusts;²⁸² personal injury damages;²⁸³ and even inheritance received after the divorce.²⁸⁴ Property inherited during the marriage can be divided on divorce, although the fact that it was inherited by one spouse should be taken into account in determining whether it would be fair to distribute it.²⁸⁵ In *B v B (Ancillary Relief)*²⁸⁶ it was held to be unfair to divide assets equally on divorce after a 12-year marriage where all of the available capital had been brought into the marriage by the wife from an inheritance. Only very rarely will the court assume that one spouse will receive money under someone's will at some point in the future.²⁸⁷

²⁸¹ *RK v RK* [2012] 3 FCR 44.

²⁸² *RK v RK* [2012] 3 FCR 44.

²⁸³ *Mansfield v Mansfield* [2011] EWCA Civ 1056; *C v C (Financial Provision: Personal Damages)* [1995] 2 FLR 171, [1996] 1 FCR 283. But the court will not assume an outcome in proceedings which are yet to be concluded: *George v George* [2003] 3 FCR 380.

²⁸⁴ *Schuller v Schuller* [1990] 2 FLR 193, [1990] FCR 626.

²⁸⁵ *White v White* [2000] 2 FLR 981, [2000] 3 FCR 555.

²⁸⁶ [2008] 1 FCR 613.

²⁸⁷ *C v C (Ancillary Relief: Trust Fund)* [2010] 1 FLR 337. Although in rare cases it might even be appropriate to adjourn the court until a relative's death has occurred: *MT v MT (Financial Provision: Lump Sum)* [1992] 1 FLR 362, [1991] FCR 649.

4. The court will consider not only the spouse's present income, but also the extra earnings that could be gained by receiving bonuses;²⁸⁸ working overtime²⁸⁹ or taking out loans.²⁹⁰ If a person is unemployed, he or she may be expected to find work. If a spouse has reduced their income just prior to separation, they may be expected to return to their normal levels of income.²⁹¹ One difficult issue involves the earning capacity of spouses, normally wives, who have dedicated their lives to child care. The courts will not generally expect a middle-aged spouse who has been out of the job market to find employment.²⁹² Hence, in *A v A (Financial Provision)*²⁹³ it was held not to be reasonable to expect a woman of 45 to seek full-time employment or set up her own business, even though she had an engineering degree. Had she been much younger, or had there been no children, the court might have reacted differently.²⁹⁴

C The needs, obligations and responsibilities of the parties

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Matrimonial Causes Act 1973, section 25(2)(b)

The financial needs, obligations and responsibilities which each of the parties to the marriage has or is likely to have in the foreseeable future.

Having looked at the plus side (the resources of the parties), the court will then turn to the minus side (the needs, obligations and responsibilities of the parties). Needs here are not restricted to those that arise directly from the marriage.²⁹⁵ The concept of 'needs' is inevitably subjective. Do you *need* a sofa? If so, should it be from Argos, John Lewis or Harrods? The courts have interpreted 'needs' loosely. Needs will be understood in the context of the kind of lifestyle the couple enjoyed during their marriage.²⁹⁶ This has, in fact, caused the courts some embarrassment, in that saying a spouse *needs* three houses²⁹⁷ sounds peculiar, and so the courts have suggested that, at least in the context of the rich, 'reasonable requirements' of the spouses should be referred to, rather than their 'needs'. Reasonable requirements are not limited to essentials, and so, for example, in *Robson v Robson*²⁹⁸ the wife was a keen and successful equestrian and it was said her needs included being able to continue to ride horses. In *AR v AR (Treatment of Inherited Wealth)*²⁹⁹ financial security was seen as a need. The court might also consider the needs of the parties for a pension or income during retirement.³⁰⁰

²⁸⁸ *P v P* [2013] EWHC 4105 (Fam).

²⁸⁹ *J-PC v J-AF* [1955] P 215.

²⁹⁰ *Newton v Newton* [1990] 1 FLR 33, [1989] FCR 521.

²⁹¹ *Tattersall v Tattersall* [2013] EWCA Civ 774.

²⁹² *Barrett v Barrett* [1988] 2 FLR 516, [1988] FCR 707.

²⁹³ [1998] 2 FLR 180, [1998] 3 FCR 421.

²⁹⁴ See *N v N (Consent Order: Variation)* [1993] 2 FLR 868, [1994] 2 FCR 275.

²⁹⁵ *Miller; McFarlane* [2006] 2 FCR 213 at para 11.

²⁹⁶ *RK v RK* [2012] 3 FCR 44.

²⁹⁷ *F v F (Ancillary Relief: Substantial Assets)* [1995] 2 FLR 45.

²⁹⁸ [2010] EWCA Civ 1171.

²⁹⁹ [2011] EWHC 2717 (Fam).

³⁰⁰ *Fields v Fields* [2015] EWHC 1670 (Fam).

Are the courts only to take into account needs that arise as a result of the marriage? In *Miller* Baroness Hale said that in relation to wealthy couples needs had to be interpreted 'generously',³⁰¹ although slightly earlier in her judgment she referred to needs 'generated by the relationship'.³⁰² It would be surprising if the need of a spouse not generated by the marriage (e.g. a disability) did not count as a need for the purposes of the legislation. Indeed Lord Nicholls made it clear that needs based on disability was included. Maybe Baroness Hale was simply emphasising that special weight would attach to needs which were caused by the marriage.³⁰³ Mostyn J in *SS v NS (Spousal Maintenance)*³⁰⁴ suggested that periodic payments should be based solely on the needs of the parties save in exceptional cases.³⁰⁵ He explained:

I find it difficult to see why it is just and reasonable that an ex-husband should have to pay spousal maintenance or enhanced spousal maintenance by reference to factors which are not causally connected to the marriage, unless one is looking at the issue in a macro-economic utilitarian way and deciding that in such circumstances it is better that the ex-husband picks up the cost of the ex-wife's support rather than the hard-pressed taxpayer. This, again, is a matter of social policy. But I would suggest that in such a case spousal maintenance payments should only be awarded to alleviate significant hardship.

His views³⁰⁶ were described by the Court of Appeal in *Aburn v Aburn*³⁰⁷ as 'interesting', but they declined to confirm whether it represented the law. So maybe the current position is that the court will definitely want to meet the needs generated by the relationship, but will only make an order to meet other needs where it would be fair to do so.

In many cases the first need the court will consider is housing. As Thorpe LJ put it in *Cordle v Cordle*: 'nothing is more awful than homelessness'.³⁰⁸ The court will therefore always seek to ensure that the children and their carer are housed. Where there is sufficient money it is likely that the housing for the children will be at a similar level to that enjoyed during the marriage.³⁰⁹ However, the court will not do that if doing so means that the non-resident parent will not be able to have adequate housing.

It should be stressed that the courts are concerned with what a spouse needs, not with what he or she might actually spend the money on. The court's responsibility is to ensure that there is enough money, as far as possible, to meet the spouse's needs, and it is the spouse's responsibility to spend it appropriately.³¹⁰ A spouse cannot refuse to pay maintenance on the basis that the recipient would spend it in an inappropriate manner.³¹¹

As well as needs, the court must consider legal obligations a party has, such as debts. Occasionally, the courts will consider a moral obligation (e.g. to support an elderly parent), but that will rarely play a significant role.³¹² The court will not normally take into account obligations which are voluntarily assumed. If a spouse has increased expenditure because he or she insists on living in an unduly large house,³¹³ or lives a long way from work and so has high

³⁰¹ *Miller; McFarlane* [2006] 2 FCR 213, para 142.

³⁰² Emphasised in *R v R* [2009] EWHC 1267 (Fam).

³⁰³ See Hale (2009b).

³⁰⁴ [2014] EWHC 4183 (Fam).

³⁰⁵ *B v S (Financial Remedy: Marital Property Regime)* [2012] EWHC 265.

³⁰⁶ *B v S (Financial Remedy: Marital Property Regime)* [2012] EWHC 265.

³⁰⁷ [2016] EWCA Civ 72.

³⁰⁸ [2002] 1 FCR 97 at para 33.

³⁰⁹ *J v J* [2011] EWHC 1010 (Fam).

³¹⁰ *Duxbury v Duxbury* [1987] 1 FLR 7.

³¹¹ *Duxbury v Duxbury* [1987] 1 FLR 7.

³¹² *Judge v Judge* [2009] 1 FLR 1287.

³¹³ *Slater v Slater* (1982) 3 FLR 364 CA.

travel expenses,³¹⁴ then the court may regard these as voluntarily assumed obligations and therefore will not include them when considering the appropriate award. But the court may be willing to take into account the costs of a new family and the needs of a new spouse.³¹⁵

D 'The standard of living enjoyed by the family before the breakdown of the marriage'

This factor³¹⁶ tends to be relevant to rich couples in particular.³¹⁷ For wealthy couples, a spouse's reasonable requirements are calculated by considering the expenditure during the marriage.³¹⁸ So, if the wife during the marriage normally spent £50,000 per annum on clothes then, when calculating her reasonable needs, it will be assumed that that figure represents her reasonable requirements for clothing. In *S v S*³¹⁹ the couple had both been heavily involved in horses during the marriage. It was held that after the divorce the wife should be given enough money so that she could continue her love of horses. As the court emphasised, that was only appropriate because the husband was a wealthy man. An exception to this approach was highlighted in *A v A (Financial Provision)*,³²⁰ where the spouse lived a frugal life despite being extremely wealthy.³²¹ In such a case the court suggested that the wife's reasonable needs could be calculated by asking what standard of life she might have expected to enjoy being married to a man of that wealth.

The factor was also mentioned in *Vince v Wyatt*³²² where the couple had lived in poverty during their marriage. Although the husband later became very wealthy the standard of living during the marriage was a reason against the wife being given a huge award.

E 'The age of each party to the marriage and the duration of the marriage'

The shorter the marriage, the less likely the court will make a substantial award.³²³ In *Attar v Attar*,³²⁴ where the couple had lived together as a married couple only for six months, it was suggested that the sum awarded should reflect the amount necessary to return the parties to the position they were in before they were married.³²⁵ That is a common approach to take to short marriages. However, just because a marriage is short does not mean that an order will not be made. This was clearly revealed in *C v C (Financial Provision: Short Marriage)*,³²⁶ where the marriage had lasted only nine months. However, a child had been born during the marriage. As the wife could not be expected to enter employment³²⁷ and the child's health was uncertain, there was no likelihood that the wife would be able to become independent. Therefore, a substantial lump sum order and periodical payments order were made. Such a

³¹⁴ *Campbell v Campbell* [1998] 1 FLR 828, [1998] 3 FCR 63.

³¹⁵ *Barnes v Barnes* [1972] 3 All ER 872.

³¹⁶ MCA 1973, s 25(2)(c).

³¹⁷ *Leadbeater v Leadbeater* [1985] 1 FLR 789.

³¹⁸ *Dart v Dart* [1996] 2 FLR 286, [1997] 1 FCR 21.

³¹⁹ [2008] 2 FLR 113.

³²⁰ [1998] 2 FLR 180, [1998] 3 FCR 421.

³²¹ Singer J suggested that their frugality was revealed by the fact their sofa was purchased at Ikea rather than Harrods.

³²² [2015] UKSC 14.

³²³ MCA 1973, s 25(2)(d). See the discussion in Eekelaar (2003c).

³²⁴ [1985] FLR 649.

³²⁵ See also *Hobhouse v Hobhouse* [1999] 1 FLR 961.

³²⁶ [1997] 2 FLR 26, [1997] 3 FCR 360 CA.

³²⁷ The wife had worked as a prostitute (her husband had met her in her 'professional capacity') but the husband could not expect her to return to her former 'occupation'.

decision could be supported by the approach recommended by Lisa Glennon who argues that the courts should focus on the length of caregiving undertaken as a result of the relationship, rather than its length.³²⁸

In *Miller v Miller*³²⁹ a wife was awarded £5 million after a marriage of under three years. The House of Lords explained that such a large sum could be justified because during the course of the short marriage the husband had made a significant amount of money. The wife was entitled to her share of the money generated during the marriage, even in the case of a short marriage.

In considering the length of the marriage, the court will also take into account the total length of the relationship. In *Krystman v Krystman*³³⁰ a couple were married for 26 years but they had actually lived together for only two weeks and so no order was made. Where the couple have cohabited before the marriage, the court will take into account the total length of the relationship. Ewbank J in *W v W (Judicial Separation: Ancillary Relief)*³³¹ and Mostyn QC in *GW v RW*³³² drew no distinction between the period of cohabitation and the period of marriage.³³³ In short, the courts look at the length of the relationship, rather than the length of the marriage.

F 'Any physical or mental disability of either of the parties to the marriage'

In reality, this factor is subsumed under the needs heading.³³⁴ The most notable case is *C v C (Financial Provision: Personal Damages)*³³⁵ where a husband who was badly disabled was held entitled to £5 million, even though the wife was to be left on social security benefits. The husband's disabilities meant he required constant care and complex equipment, and this meant that he had to have all the assets.

G Contributions to the welfare of the family

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 25(2)(f)

The contributions which each of the parties has made or is likely in the foreseeable future to make to the welfare of the family, including any contribution by looking after the home or caring for the family.

Under this heading the courts have discussed two issues. The first is the position of the spouse (normally wife) who has not been earning, but who has worked as a homemaker and child carer. The courts have recognised this to be an important contribution to the welfare of the family. In *White v White*³³⁶ Lord Nicholls explained:

³²⁸ Glennon (2008).

³²⁹ [2006] 2 FCR 213 at para 55. See further Cooke (2007).

³³⁰ [1973] 3 All ER 247.

³³¹ [1995] 2 FLR 259.

³³² [2003] EWHC 611, [2003] 2 FCR 289.

³³³ See Gilmore (2004a) for criticism of this, arguing that it will penalise those who do not cohabit prior to marriage and undermines personal choice as to when the obligations of marriage begin.

³³⁴ MCA 1973, s 25(2)(e).

³³⁵ [1995] 2 FLR 171, [1996] 1 FCR 283.

³³⁶ [2000] 2 FLR 981, [2000] 3 FCR 555; see Diduck (2001b) for a useful discussion.

whatever the division of labour chosen by the husband and wife, or forced upon them by circumstances, fairness requires that this should not prejudice or advantage either party when considering [MCA 1973, s 25(2)(f)] . . . If in their different spheres, each contributed equally to the family, then in principle it matters not which of them earned the money and built up the assets. There should be no bias in favour of the money earner and against the home-maker and the child-carer.³³⁷

The importance of not discriminating between the contributions of the money-earner and the homemaker or child carer was repeated by the House of Lords in *Miller; McFarlane*.³³⁸ Holman J in *Gray v Work*³³⁹ emphasised it was 'extremely important' that the courts avoid that discrimination. Coleridge J in *RP v RP* put it this way:

At the end [of the marriage] both are entitled to a full share of the fruits of their combined and equal contribution; she to ensure that she has a secure future both with and later without the children, and the husband so that he can re-establish himself. She has earned it . . . and so has he. This is not largesse by the husband, it is her entitlement deriving from her valuable contribution.³⁴⁰

Note that the contribution to the family through child care is not restricted to the care during the marriage, but can include a consideration of the care of a wife to the children in the years after the marriage has broken down (*Vince v Wyatt*³⁴¹).

In *R v R (Financial Orders: Contributions)*³⁴² the court emphasised that the wife had made a significant contribution to the husband's business and speculated that the business would not have succeeded as well without her efforts. That was seen as justifying giving her a significant share of the company.

H Conduct

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 25(2)(g)

The conduct of each of the parties if that conduct is such that it would in the opinion of the court be inequitable to disregard it.

At one time conduct was considered very important. A wife who was regarded as guilty of marital misconduct could expect a low award.³⁴³ However, in line with the trend generally in family law, it is now rare for conduct to be taken into account.³⁴⁴ As the statute states, the conduct must be 'such that it would . . . be inequitable to disregard'. The cases suggest that the conduct must be of an extreme kind in order to be relevant. It is well established that adultery will not be sufficient to take into account, not even where the husband has used his wife's money as gifts to his partner.³⁴⁵

³³⁷ This was repeated in *Miller; McFarlane* [2006] 2 FCR 213, para 1 and said to be true for all marriages.

³³⁸ [2006] UKHL 24.

³³⁹ [2015] EWHC 834 (Fam), para 140.

³⁴⁰ [2008] 2 FCR 613, para 63.

³⁴¹ [2015] UKSC 14.

³⁴² [2012] EWHC 2390 (Fam).

³⁴³ *Wachtel v Wachtel* [1973] Fam 72 marked the change in the courts' attitude.

³⁴⁴ *Eekelaar* (1991a).

³⁴⁵ *JS v RS* [2015] EWHC 2921 (Fam), although in that case the husband voluntarily returned the money.

Sir George Baker P suggested that conduct should be 'of the kind that would cause the ordinary mortal to throw up his hands and say, "surely that woman is not going to be given any money" or "is not going to get a full award"'.³⁴⁶ Burton J³⁴⁷ suggested that to be taken into account the conduct had to be such that to ignore it would produce a 'gasp'. Conduct which only led to a 'gulp' would be insufficient. For example, in *K v K (Financial Provision: Conduct)*³⁴⁸ the wife helped her depressed husband's suicide attempt as she wished to acquire his estate and to set up a new life with her lover. Her conduct was such that it should be taken into account and her award was reduced from the £14,000 she would have received but for her misconduct to £5,000.³⁴⁹ Notably, conduct, even in these extreme cases, does not lead to the award being reduced to nil. In *H v H (Financial Relief: Attempted Murder as Conduct)*³⁵⁰ the husband attacked the wife with knives in front of the children. He was sentenced to 12 years' imprisonment for attempted murder. It will not surprise the reader to learn that this was regarded as conduct which it was inequitable to disregard. In *K v L*³⁵¹ the husband sexually abused the wife's grandchildren. The Court of Appeal agreed that this entitled the judge to award the husband nothing, even though the wife owned property valued at over £4 million. It was explained that his conduct was so appalling and its 'legacy of misery' so profound that a nil award was appropriate. Surprisingly in *FZ v SZ*³⁵² it was held that a false allegation of domestic violence by the wife was sufficient to amount to conduct which should affect the level of the award. That is surprising because in other cases actual domestic violence has not been regarded as relevant unless it is especially serious.

So, rarely will misbehaviour be taken into account. However, where the conduct in question is financial misconduct (e.g. one of the spouses has spent money just to make sure the other party does not get any), the court will be particularly willing to take it into account. Normally, this is done by 're-attributing' the wasted money to the spouse who spent it.³⁵³ This means they will be treated as still having the money they wasted, although in *MAP v MFP (Financial Remedies: Add-Back)*³⁵⁴ Moor J suggested that this was appropriate in cases where a spouse has deliberately spent money to avoid the other spouse getting it ('wanton dissipation of the assets'). In this case the husband had spent a quarter of a million pounds on prostitutes and cocaine. This was seen as a result of the husband's personality and a spouse had to take their partner 'as they found them'. He explained:

A spouse must take his or her partner as he or she finds them. Many very successful people are flawed . . . it would be wrong to allow the wife to take advantage of H's great abilities that enabled him to make such a success of the company, while not taking the financial hit from his personality flaw that led to his cocaine addiction and his inability to rid himself of the habit.

Whether the use of prostitutes and cocaine demonstrates a character flaw or a decision to waste assets could be hotly debated!

Where a court decides that conduct is sufficiently serious to be taken into account, the judge must explain how it affects the level of the award. In *Clark v Clark*³⁵⁵ the Court of

³⁴⁶ *W v W* [1976] Fam 107 at 110.

³⁴⁷ In *S v S (Non-Matrimonial Property: Conduct)* [2006] EWHC 2793 (Fam).

³⁴⁸ [1990] 2 FLR 225, [1990] FCR 372.

³⁴⁹ *HM Customs and Excise and another v A* [2002] 3 FCR 481 held that the fact that the husband was a convicted drug dealer was conduct which it was inequitable to ignore.

³⁵⁰ [2006] Fam Law 264.

³⁵¹ [2010] EWCA Civ 125.

³⁵² [2010] EWHC 1630 (Fam).

³⁵³ *Vaughan v Vaughan* [2007] 3 FCR 532.

³⁵⁴ [2015] EWHC 627 (Fam).

³⁵⁵ [1999] 2 FLR 498.

Appeal held that the wife's misconduct was so bad 'it would be hard to conceive graver misconduct'.³⁵⁶ The Court of Appeal criticised the lower court judge, who accepted that the conduct was bad but had decided that it should not affect the level of the award. The Court of Appeal felt that serious misconduct should be taken into account in deciding the appropriate order, although it was open to a court to decide that no deduction would be made. In *H v H (Financial Relief: Attempted Murder as Conduct)*³⁵⁷ Coleridge J held that in assessing the significance of conduct the court should not be punitive, but rather it should lead the court to place greater emphasis on the needs of the 'victim' and less on the blameworthy party.

The court will consider not only the bad conduct, but also the good conduct of the spouses. In *A v A (Financial Provision: Conduct)*³⁵⁸ the husband gave up his job and made no effort to work, while the wife undertook a degree course and started a new career. The court thought that the contrast between what they regarded as the good conduct of the wife and the bad conduct of the husband should be taken into account in calculating the correct award.

Whether conduct should or should not be relevant has given rise to some debate.³⁵⁹ There are some who argue that if the court is to achieve justice, it must ensure that grossly wrong conduct is taken into account. Shazia Choudhry and I have criticised the failure of the courts to attach weight to domestic violence in financial cases.³⁶⁰ Others argue that, with the increasing acceptance of no-fault divorce, it is harder to justify the relevance of fault here, except in the most extreme cases. That said, as Lord Nicholls in *Miller; McFarlane* acknowledged, there is a widespread feeling among the public that conduct is relevant. He suggested that the average person would think: 'If a wife walks out on her wealthy husband after a short marriage it is not "fair" this should be ignored. Similarly, if a rich husband leaves his wife for a younger woman.' However, Lord Nicholls said that it would be impossible for a judge to 'unravel mutual recriminations about happenings within the marriage'.³⁶¹

I Loss of benefits

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 25(2)(h)

The value to each of the parties to the marriage of any benefit (for example, a pension) which, by reason of the dissolution or annulment of the marriage, that party will lose the chance of acquiring.

The most obvious issue here is the pension rights that a spouse may lose the right of acquiring, although rights under an inheritance might be relevant. The law on pensions will be discussed shortly.

³⁵⁶ [1999] 2 FLR 498 at p. 509. The wife (described by the judge as a woman of considerable charm and physical attraction) was in her early 40s and the husband nearly 80. She oppressed the husband, refused to consummate the marriage and virtually imprisoned the husband in a caravan in the garden of his house.

³⁵⁷ [2006] Fam Law 264.

³⁵⁸ [1995] 1 FLR 345.

³⁵⁹ Carbone and Brinig (1991).

³⁶⁰ Choudhry and Herring (2010: ch. 10).

³⁶¹ [2006] 2 FCR 213 at para 60.

J Other factors

In this section we have focused on the factors listed in section 25, but there is nothing to stop a court considering factors not listed. In *Thiry v Thiry*³⁶² during the marriage the husband had acted in a 'financially predatory fashion' by gradually transferring many of the wife's substantial assets through a range of clever devices so they were under his own control. The approach of the court was dominated by restoring to the wife the assets that had been taken from her during the marriage.

8 Principles developed by the courts

Learning objective 6

Evaluate the principles developed by the courts in financial cases

We have just been considering the factors listed in s 25 of the MCA. However, the courts, particularly in the past few years, have been producing further guidelines and principles to govern the courts' discretion. In most cases the decision of the court will

be dominated by the needs of the parties. The judge will be trying to do his or her best to meet as many of the parties' needs, and especially those of the children, with the limited resources. It is only in cases involving wealthier couples that the principles we will now consider come into play. Following from *Miller v Miller; McFarlane v McFarlane*,³⁶³ and *Radmacher v Granatino*³⁶⁴ we can see four key principles that assist the court:

- needs;
- equality;
- compensation;
- autonomy.

A The principle of meeting needs

We have discussed the idea of meeting needs already. This has become the primary principle. The court will only turn to the other principles once it is sure that the basic needs of the parties have been met.³⁶⁵ For most people, the idea of needs will be limited to ensuring the parties have the basics: a roof over their heads, and enough money for food and clothing. In *BD v FD (Financial Remedies: Needs)*³⁶⁶ it was said that in determining needs the kind of lifestyle enjoyed during the marriage was to be the 'starting point' in determining the needs of the marriage. With a couple with significant assets, with a long marriage, the court is likely to try to enable both parties to continue with the kind of lifestyle they enjoyed during the marriage. In *that case* this meant a very wealthy husband who had inherited substantial wealth had to provide his wife with a home in the country in the region of £3.6 million, plus £500,000 for furnishing and refurbishment of it and an annual income of £175,000. It was accepted in many other cases there may not be enough assets

³⁶² [2014] EWHC 4046 (Fam).

³⁶³ [2006] 1 FCR 213.

³⁶⁴ [2010] UKSC 42.

³⁶⁵ *Charman v Charman* [2007] EWCA Civ 503.

³⁶⁶ *BD v FD (Financial Remedies: Needs)* [2016] EWHC 594 (Fam).

to enable both parties to continue in their lifestyle, or in the case of a short marriage, that might not be fair.

B The principle of equality

The principle of equality was introduced by the decision of the House of Lords in *White v White*.

CASE: *White v White* [2000] 3 FCR 555

The Whites had assets of roughly £4.5 million when their marriage ended after 33 years together. The trial judge awarded the wife £800,000 which he assessed as meeting the wife's reasonable needs for the rest of her life. The judgment was appealed to the Court of Appeal and then to the House of Lords. In a major reconsideration of the exercise of discretion, the House of Lords suggested that equality of division of the family assets should be seen as a 'yardstick'. Lord Nicholls explains:

As a general guide equality should only be departed from if, and to the extent that, there is good reason for doing so. The need to consider and articulate reasons for departing from equality would help the parties and the court to focus on the need to ensure the absence of discrimination. This is not to introduce a presumption of equal division under another guise.³⁶⁷

Equal division is an appropriate starting point because each party has contributed to the marriage, be it financially or through child care or housework. They should, therefore, share the fruits of the marriage. Lord Nicholls, however, makes it clear, then, that the equality principle is not to be regarded as a presumption, but rather a yardstick. In *Lambert* Thorpe LJ described the yardstick of equality as a 'cross check'.³⁶⁸ Both of these approaches suggest a judge should look at the statutory factors and determine a provisional order. The judge should then check whether the order departed from equality and if so whether there was a good reason for departing from equality. In most of the reported cases equality has been departed from. In *White* itself the wife ended up with less than half because of the significant contribution of the husband's family to the family business.

There is some sign in more recent cases of a rather different approach being used where the couple are very wealthy. That is that the principle of equality is the starting point. The judge will start with an assumption of equal sharing, unless the parties can provide a good reason for departing from it. That was the approach taken by the Court of Appeal, in *Charman v Charman*.³⁶⁹ It may be that whether one starts with the principle of equality or whether one uses it at the end of the process as a 'cross check' will not affect the ultimate outcome. However, the approach of starting with an assumption of equal division makes it clear that the principle is a central one in this area of the law.³⁷⁰

³⁶⁷ *White v White* [2000] 3 FCR 555 at para 24. Singer HHJ (2001) provides a useful discussion of discrimination in this context.

³⁶⁸ [2002] 3 FCR 673 at para 38.

³⁶⁹ [2006] EWHC 1879 (Fam); [2007] EWCA Civ 503.

³⁷⁰ *Gray v Work* [2015] EWHC 834 (Fam).

The principle of equal division is far less straightforward than might at first appear and raises a number of questions:

(i) When should the principle of equality be departed from?

As we have noted already, the courts have accepted that there will often be good reasons to depart from equal sharing. The following are some of the circumstances in which it may be appropriate to depart from equality:

- (a) *The needs of the parties*. In most cases the needs of the children and resident parent will require a departure from equality.³⁷¹ Couples may lack sufficient assets to meet the most basic needs of the children and primary carer. In such a case an equal distribution will be unacceptable;³⁷² indeed the children and carer may well need all of the assets and, in addition, ongoing maintenance payments.³⁷³ Only where the couple are very rich will there be sufficient assets to meet the basic needs of the parties and equal division can be considered as a possibility. This will be true for many couples. In *Arbili v Arbili*³⁷⁴ the couple had £1,066,000; the Court of Appeal described it as not a 'big money case' and a departure from equality was required to meet the needs of the parties. Even more surprisingly, in *Rapp v Sarre*,³⁷⁵ where there were £13.5 million in assets, the case was dealt with on a needs basis, with the wife receiving nearly 55 per cent of the assets.

In *S v S*³⁷⁶ the husband was living with a woman and her children. It was held he therefore had greater needs than the wife who was living alone. This justified giving him slightly more than half the assets. However, subsequently *H-J v H-J (Financial Provision: Departing from Equality)*³⁷⁷ and *Norris v Norris*³⁷⁸ have suggested that it is wrong in principle for a wife to get less than she would otherwise have been awarded because her husband has left her for another woman and has had children with her.

- (b) *Extraordinary contribution*. In *Lambert v Lambert*³⁷⁹ Thorpe LJ made it clear that only in exceptional cases will the contribution to the marriage of one of the parties be regarded as a good reason for departing from equality.³⁸⁰ So far this has been restricted to exceptional businesspeople who have made extraordinary sums of money in their careers.³⁸¹ It is not enough just to show that the spouse had been successful in their career. In *Sorrell v Sorrell*³⁸² the husband was 'regarded within his field and the wider business community as one of the most exceptional and most talented businessmen'; his 'spark of genius' had created the family fortune; he should be given 60 per cent of the family assets to recognise

³⁷¹ *J v J* [2009] EWHC 2654 (Fam). In *Miller; McFarlane* [2006] 1 FCR 213 at para 13, Lord Nicholls said that most cases begin and end with a consideration of needs.

³⁷² *Tattersall v Tattersall* [2013] EWCA Civ 774.

³⁷³ Although the judge must take into account the needs of all the parties; *A v L (Departure from Equality: Needs)* [2011] EWHC 3150 (Fam).

³⁷⁴ [2015] EWCA Civ 542.

³⁷⁵ [2016] EWCA Civ 93. The case is perhaps best explained on the basis the husband had refused to be involved in the litigation and the judge wanted to ensure an order was made which she could enforce.

³⁷⁶ [2001] 3 FCR 316.

³⁷⁷ [2002] 1 FLR 415.

³⁷⁸ [2003] 2 FCR 245.

³⁷⁹ [2002] 3 FCR 673.

³⁸⁰ This was approved by Lord Nicholls in *Miller; McFarlane* [2006] 2 FCR 213 at para 68. See *Norris v Norris* [2003] 2 FCR 245 where the wife's contribution to the marriage was 'as full as it could have been', but not exceptional.

³⁸¹ *Cowan v Cowan* [2001] 2 FCR 332.

³⁸² [2006] 1 FCR 62.

his outstanding contribution. In *Charman v Charman*,³⁸³ where the husband was an extraordinarily successful businessman, creating £131 million, it was accepted that his contribution was such that it would be inequitable not to have regard to it. In *Cooper-Hohn v Hohn*³⁸⁴ the husband was described as a 'financial genius' who had made £869 million during the marriage. This was an exceptional contribution and justified a departure from equality.

The mere fact that a substantial sum of money has been generated will be insufficient. It will be necessary to show that there was a 'genius element' making the contribution special.³⁸⁵ This is interesting because it suggests that a windfall, not reflecting genius (e.g. a win on the National Lottery), will not constitute a special contribution. In *Gray v Work*³⁸⁶ Holman J doubted the helpfulness of the terminology 'genius', which he thought was 'properly reserved for Leonardo Da Vinci, Mozart, Einstein, and others like them'. His preference was for some 'exceptional and individual quality which deserves special treatment.' He noted that only in very rare cases would an exceptional quality be found and merely showing a spouse was hard working or had produced a very large sum of money was insufficient.

The Court of Appeal in *Charman v Charman*³⁸⁷ refused to set a figure at which it would be said that the contribution was special, but did state that where the contribution did justify a departure the maximum departure would be to a 66/33 division and the minimum 55/45. In the case before the court, the husband's contribution in generating the enormous wealth of the couple was 'special' and so a departure from equality was appropriate. The district judge's granting of 36.5 per cent of the assets to the wife was upheld. Roberts J in *Cooper-Hohn v Hohn*³⁸⁸ awarded the wife some 36 per cent of the husband's £330 million fortune. The departure from equality was appropriate to acknowledge his exceptional contribution and the fact some of his wealth had been created after the marriage.

Thorpe LJ in *Lambert* made the point that if the money-earner's contribution can be assessed to ascertain whether it was outstanding, then in fairness the child-carer's or homemaker's contribution should be assessed to see if it was outstanding.³⁸⁹ Holman J in *Gray v Work*³⁹⁰ suggested that a departure from equality was only appropriate if there was 'a special contribution . . . unmatched by the other', indicating that if one spouse is found to make a special contribution it should be asked whether the other spouse has made a special contribution too. To similar effect, Baroness Hale in *Miller; McFarlane* stated: 'only if there is such a disparity in their respective contributions to the welfare of the family that it would be inequitable to disregard should this be taken into account in determining their shares.'³⁹¹ The obstacle is, of course, that it is extremely difficult to

³⁸³ For a helpful discussion, see Miles (2008).

³⁸⁴ [2014] EWHC 4122 (Fam).

³⁸⁵ In the absence of an extraordinary contribution, the courts will not consider whether there was a difference in the contributions of the parties to the marriage: *AR v AR (Treatment of Inherited Wealth)* [2011] EWHC 2717 (Fam).

³⁸⁶ [2015] EWHC 834 (Fam).

³⁸⁷ For a helpful discussion, see Miles (2008).

³⁸⁸ [2014] EWHC 4122 (Fam).

³⁸⁹ Hodson, Green and De Souza (2003). It will be no easier if it is the wife who is claiming to be exceptional: *Norris v Norris* [2003] 2 FCR 245, [2003] Fam Law 301.

³⁹⁰ [2015] EWHC 834 (Fam).

³⁹¹ [2006] 2 FCR 213 at para 146. Applied in *Evans v Evans* [2013] EWHC 506 (Fam) and *Gray v Work* [2015] EWHC 834 (Fam).

calculate how good someone is at being a child carer or home-maker.³⁹² The courts do not want to get into the position where they are deciding whether the wife was a domestic goddess or not.³⁹³ One can see why in *Cooper-Hohn v Hohn*³⁹⁴ Roberts J suggested that “another day” a higher court would need to consider whether the “special contribution” line of cases could survive a challenge on the basis that they were indirectly discriminatory.

- (c) *Parental contribution or inheritance.* In *White and Dharamshi v Dharamshi*³⁹⁵ the fact that the family business had been started by money from the father’s parents was a reason for giving him slightly more than half the family assets. Similarly, in *B v B (Ancillary Relief)*³⁹⁶ the fact that the wife had inherited the money that made up nearly all the couple’s wealth justified a departure from equality.³⁹⁷ As we shall see later another way of dealing with such cases is to treat inherited money or gifts as not falling into the pot of marital assets which is to be shared.
- (d) *Obvious and gross misconduct.* As discussed above, in extreme cases the conduct of a party may be relevant and that might justify a departure from equality.
- (e) *Difficulties in liquidation.* If it is not possible to liquidate assets (e.g. they are tied up in a business in a way which makes their extraction impossible), this will be a reason to depart from equality.³⁹⁸
- (f) *To achieve a clean break.* A court may be persuaded that in order to achieve a clean break a departure from equality may be required.³⁹⁹ For example, if the wife is not to have periodic payments she may need a lump sum to replace them and, therefore, may get over 50 per cent of the assets.⁴⁰⁰
- (g) *To ensure there was adequate compensation for losses caused during a relationship to a spouse.* We shall return to this later, but the courts will try to ensure there is compensation for a spouse who suffers a loss as a result of the marriage. Most obviously, this would arise if one spouse gave up a career to care for children, during the marriage. In such a case the court will consider whether an equal division of the property will ensure there is adequate compensation. If not then periodic payments or a share greater than 50 per cent may need to be given to her.⁴⁰¹
- (h) *The way the parties organised their finances.* In *J v J*⁴⁰² Charles J suggested the court would take account of the way the couple arranged their finances and treated their property. He did not expand on this but it may be that if a couple have throughout their marriage kept their financial arrangements separate, this may mean it would be unfair to divide their property equally. In *Laurence v Gallagher*⁴⁰³ the Court of Appeal emphasised that the couple’s finances were intermingled and they therefore rejected an argument that each

³⁹² *Miller; McFarlane* [2006] 2 FCR 213 at para 27.

³⁹³ Baroness Hale, in *Miller; McFarlane* [2006] 2 FCR 213 at para 146.

³⁹⁴ [2014] EWHC 4122 (Fam).

³⁹⁵ [2001] 1 FCR 492.

³⁹⁶ [2008] 1 FCR 613.

³⁹⁷ See also *Re V (Financial Relief: Family Farm)* [2005] Fam Law 101.

³⁹⁸ *N v N (Financial Provision: Sale of Company)* [2001] 2 FLR 69; *A v A* [2004] EWHC 2818 (Fam).

³⁹⁹ But not if doing so results in unfairness: *D v D* [2010] EWHC 138 (Fam).

⁴⁰⁰ *Vaughan v Vaughan* [2007] 3 FCR 532.

⁴⁰¹ *McFarlane* [2006] UKHL 24.

⁴⁰² [2009] EWHC 2654 (Fam).

⁴⁰³ [2012] EWCA Civ 394.

should keep the money they had earned. This emphasis on the way the parties organised their finances reflects the principle of autonomy we shall discuss later.

(ii) Which assets are to be shared equally?

Is the property to be divided equally under the *White* yardstick only the property that the couple possess or only those assets generated during the marriage? This question has proved one of the most controversial in the current law.⁴⁰⁴ It is clear that all of a couple's property is available for redistribution, especially where the needs of the parties require it.⁴⁰⁵ That is, all of the assets the couple have at the time of the hearing.⁴⁰⁶ However, in cases of wealthy couples where there is more than enough money to meet their needs, the courts may only divide marital assets (assets generated during the marriage) and exclude from the division non-marital assets (e.g. property owned by one party before the marriage started).⁴⁰⁷ Different cases have put the argument in different ways. Sometimes it is said that the fact some

property is non-marital provides a reason for departing from equality.⁴⁰⁸ In other cases it is said that the sharing principle only applies to marital property.⁴⁰⁹ It has also been suggested that the longer the marriage, the less weight will attach to the fact some property was non-marital.⁴¹⁰

Although there is no uniformity of approach, a helpful approach to use in cases involving non-marital assets was set out by the Court of Appeal in *Jones v Jones*:⁴¹¹

1. Ascertain if all the assets of the couple (be they marital or non-marital) are needed to meet the needs of the parties.⁴¹² If so, the assets should be distributed to meet the needs regardless of their origin.⁴¹³ If not, the court should consider the following questions.
2. Ascertain if the case involves non-marital assets and if so what those are. The definition of marital and non-marital assets is complex, but will be discussed shortly.
3. Decide whether the fact there are non-marital assets justifies a departure from equality. The court will consider the length of the marriage and the extent to which the couple intermingled their assets. The longer the marriage and the more intermingling there was of assets, the more likely it is that all the assets should be divided equally. While the shorter the marriage and the greater the extent to which the non-marital assets were kept separate, the stronger the case for departing from equality.
4. If the court is persuaded that equality should be departed from, the court should determine how much of the non-marital assets should be excluded. This might be the whole

⁴⁰⁴ Mostyn J in *JL v SL (No 2) (Financial Remedies: Rehearing: Non-Matrimonial Property)* [2015] EWHC 360 (Fam).

⁴⁰⁵ *Charman v Charman* [2007] EWCA Civ 503; *J v J* [2009] EWHC 2654 (Fam), discussed in Herring (2010d).

⁴⁰⁶ *H v H (Financial Provision)* [2009] 2 FLR 795; *J v J* [2009] EWHC 2654 (Fam); *R v R* [2009] EWHC 1267 (Fam).

⁴⁰⁷ *Miller; McFarlane* [2006] 2 FCR 213; *SK v WL* [2010] EWHC 3768 (Fam); *Lawrence v Gallagher* [2012] EWCA Civ 394.

⁴⁰⁸ *N v F (Financial Orders: Pre-Acquired Wealth)* [2011] EWHC 586 (Fam).

⁴⁰⁹ *B v PS* [2015] EWHC 2797 (Fam).

⁴¹⁰ *N v F (Financial Orders: Pre-Acquired Wealth)* [2011] EWHC 586 (Fam).

⁴¹¹ [2011] EWCA Civ 41. The Court of Appeal in *Jones* said they were not setting down an approach that was to be followed in every case. However, later cases such as *N v F (Financial Orders: Pre-Acquired Wealth)* [2011] EWHC 586 (Fam) have followed it.

⁴¹² It is unclear whether this means needs in the sense of basic needs, or needs generously interpreted, bearing in mind the living standards of the party: *N v F* [2011] EWHC 586.

⁴¹³ *GS v L (Financial Remedies: Pre-Acquired Assets: Needs)* [2011] EWHC 1759 (Fam).

asset, or if there has been some mingling or a longer marriage a portion of the sum. The court should allocate the excluded non-marital asset to the spouse who owned it and divide the remaining assets equally, unless there is some other reason for departing from equality.

5. The court should, as a final check, look at the percentage share following the above process and ensure it is fair.

A good example of the approach to take is *Miller* (heard alongside the case of *McFarlane* by the House of Lords):

CASE: *Miller; McFarlane* [2006] UKHL 24

The House of Lords heard two cases together. In *Miller* the marriage had lasted a little under three years. The husband, at the time of divorce, owned assets in excess of £17 million. The trial judge, approved by the Court of Appeal, granted the wife £5 million. The Court of Appeal, in justifying such a sum, emphasised the fact that the husband had caused the breakdown of the marriage (by 'running off' with another woman) and that he had caused the wife reasonably to expect a generous provision in the event of a divorce. The House of Lords rejected both these arguments as irrelevant. However, it held that even though it was a short marriage she was entitled to an equal share in the assets acquired during the marriage. The husband's wealth had increased significantly during their short marriage and the £5 million could be said to be a fair share of that money.

In *Miller v Miller*⁴¹⁴ Lord Nicholls held that in a short marriage it may be fair only to divide marital property, that is, the property acquired during the marriage. In *Miller* this meant the wife was awarded £5 million after a marriage of under three years: the couple had generated about £15 million during the short marriage and she was entitled to a fair share of that.⁴¹⁵

Perhaps the best we can say as a general summary is that the court will take into account the distinction between marital and non-marital assets in deciding what is a fair result, but there is no hard and fast rule on how to do that. Certainly in the recent cases involving wealthy couples the distinction between marital and non-marital has become key. We need to explore some of the complexities a little more.

(a) What are non-marital assets?

Mostyn J in *JL v SL (No 2) (Financial Remedies: Rehearing: Non-Matrimonial Property)*⁴¹⁶ described non-marital property as 'property received or created outside the span of the partnership, or gratuitously received within the partnership from an external source. Such property has little to do with the endeavour of the partnership . . . '.

⁴¹⁴ [2006] 2 FCR 213, at para 19.

⁴¹⁵ In *Kingdon v Kingdon* [2010] EWCA Civ 1251 a suggestion that something might be partially a matrimonial asset was rejected by Wilson LJ.

⁴¹⁶ [2015] EWHC 360 (Fam).

Let's start with the easy issues. Non-marital assets include:

- Assets a spouse owned before the relationship started.
- Assets a spouse has inherited, at any point in time.⁴¹⁷
- Gifts to a spouse from friends and family.
- Money earned after a relationship is over.⁴¹⁸
- Maybe money earned during the marriage unrelated to their relationship. We will discuss this further shortly.

Marital assets include earned by the parties in their careers during the marriage. Charles J in *J v J*, subsequently explained that 'that property acquired and built up during the marriage through the respective efforts and roles of the couple should be shared equally. Such property is a product of the relationship'.⁴¹⁹ The home the couple lived in during their marriage will always be a marital asset, even if one of the parties owned it before the relationship started.⁴²⁰ However, it does not generally include assets generated after the separation, unless the wealth can be referred back to work done during the marriage.⁴²¹ So, if a wife wrote a novel during the marriage, but the royalties started being paid after the separation, those royalties could be regarded as marital.

The difficult issue, mentioned above, is whether assets created during the marriage might ever be non-marital. There was a difference of opinion in the House of Lords in *Miller*. Lord Nicholls understood marital property⁴²² to be all assets acquired by either party during the marriage, save those acquired by gift or inheritance. He also included the matrimonial home as 'matrimonial property' even if one party had brought it into the marriage. Baroness Hale, by contrast, used a narrower understanding of 'marital assets', preferring the phrase 'family assets'. These were restricted to assets generated by the family: it could include the family home,⁴²³ family savings, income generated by a business organised by both parties. It would not include assets which were produced by the efforts of one party alone. She explained that in relation to non-family assets 'it simply cannot be demonstrated that the domestic contribution, important though it has been to the welfare of the family as a whole, has contributed to their acquisition'.⁴²⁴ The difference between the views would be revealed in a case involving a business project in which the wife was not involved in any way (perhaps she did not even know about it). This could be a marital asset for Lord Nicholls because it was an asset acquired during the course of the marriage. But it would not be a family asset under Baroness Hale's test if the wife could not in any way be said to have contributed to its acquisition. In the House of Lords, Lord Hoffmann agreed with Baroness Hale, and Lord Hope (diplomatically, but unhelpfully) agreed with both. Lord Mance did not express a clear view, but he did advocate flexibility. John Eekelaar has suggested that this would indicate a view closer to Baroness Hale's.⁴²⁵

⁴¹⁷ *BD v FD (Financial Remedies: Needs)* [2016] EWHC 594 (Fam); *JL v SL (No 2) (Financial Remedies: Rehearing: Non-Matrimonial Property)* [2015] EWHC 360 (Fam).

⁴¹⁸ *SK v WL (Ancillary Relief: Post-Separation Accrual)* [2011] 1 FLR 1471. But note that if the increase in value of an asset after the marriage breaks down is simply a 'latent accrual' it will be treated as a marital asset: *R v R (Financial Orders: Contributions)* [2012] EWHC 2390 (Fam) *Evans v Evans* [2013] EWHC 506 (Fam).

⁴¹⁹ *J v J* [2009] EWHC 2654 (Fam), para 304.

⁴²⁰ Applies in *Lawrence v Gallagher* [2012] EWCA Civ 394.

⁴²¹ *Evans v Evans* [2013] EWHC 506 (Fam).

⁴²² He used the phrase 'matrimonial property', but later cases have preferred the terminology 'marital property'.

⁴²³ Although see *B v PS* [2015] EWHC 2797 (Fam) for a rare case of where the family home was not seen as a marital asset.

⁴²⁴ [2006] 2 FCR 213 at para 151.

⁴²⁵ At para 160. Eekelaar (2006a: 755).

The *Charman v Charman*⁴²⁶ Court of Appeal preferred Baroness Hale's approach, which Sir Mark Potter summarised in this way:

a distinction fell to be made between 'family assets' and the fruits of a business in which both parties had substantially worked, on the one hand, and the fruits of a business in which only one party had substantially worked, i.e. unilateral assets, on the other. The suggestion was that it was property only of the former character which was subject to the sharing principle.⁴²⁷

This quote may be misleading. It is not suggesting that a business person can claim they should keep their earnings because their spouse was no help in their career. In *K v L (Non-Matrimonial Property: Special Contribution)*⁴²⁸ the Court of Appeal said the case law on the 'extra-ordinary contributions' of successful businesspeople, was distinct from the case law on marital assets. What is being considered are sources of income unconnected with their joint lives.

In *S v S (Non-Matrimonial Property: Conduct)*,⁴²⁹ following Baroness Hale's approach, it was held that commercial properties owned by a husband before the marriage and which he did not deal with during the marriage were non-marital property. The wife could not claim a share of an increase in their value during the marriage. By contrast, a share portfolio he brought into the marriage, but which he had spent much time dealing with during it, could be marital property.⁴³⁰ The wife could claim a share in the increase in their value during the marriage.

Another good example of a non-marital asset was *S v AG and another (Financial Remedy: Lottery Prize)*,⁴³¹ which involved a win on the National Lottery. Mostyn J said the key question was whether the purchase of the ticket was a 'joint enterprise' between the spouses in which case it would be marital property or whether it was a lone enterprise, in which case it would be non-marital property. In deciding which it was, the court would consider any agreement or understanding between the parties and whose money had been used. In this case the wife had bought the ticket without her husband's knowledge and with money from her own account (not the joint account). This indicated it was non-marital.

In some cases a middle-road may be appropriate. In *Davies v Davies*⁴³² the main asset of the couple was a hotel the husband brought into the marriage. The Court of Appeal sought to make an order that acknowledged the fact the husband had brought the asset into the marriage, while also acknowledging the fact the wife had done much to help the hotel to flourish as a business. She was given a third share in the business assets.

The Court of Appeal in *Charman v Charman*⁴³³ followed Baroness Hale's approach, saying: 'We suggest with respect that, while the approach of Lord Nicholls was perhaps the more logical, the approach . . . of Baroness Hale . . . was perhaps the more pragmatic.'⁴³⁴ Whether Baroness Hale's approach is more pragmatic may be open to question. It will inevitably lead to a flood of arguments over precisely the extent to which a spouse was working or helping in the business, precisely the kinds of arguments which *White* was seeking to avoid. It could

⁴²⁶ [2007] EWCA Civ 503.

⁴²⁷ Paragraph 82.

⁴²⁸ [2011] EWCA Civ 550.

⁴²⁹ [2006] EWHC 2793 (Fam).

⁴³⁰ *AC v DC* [2012] EWHC 2420 (Fam).

⁴³¹ [2011] EWHC 2637 (Fam).

⁴³² [2012] EWCA Civ 1641.

⁴³³ [2007] EWCA Civ 503.

⁴³⁴ Para 85.

introduce discrimination between the homemaker who also helps in business matters and the homemaker who does not. For example, is it right that a wife who has a severely disabled child to care for and so does nothing to help in her husband's business should be disadvantaged as compared with a spouse who has time to spare to do so?

In deciding whether an asset is marital or not, the court will particularly look at the extent to which the parties have intermingled their assets. A striking case is *K v L (Non-Matrimonial Property: Special Contribution)*⁴³⁵ where a wife brought into the marriage shares which were valued at £59 million at the time of the divorce. However, the wife had kept the shares separate from the family property and not touched them during the marriage. Indeed, the couple lived very modestly during the 21-year marriage. The husband was awarded £5 million, a small percentage, but appropriate the court thought, given the non-marital asset had never been mingled with the family assets. Contrast *Robson v Robson*⁴³⁶ where the couple's 10-year marriage involved an extravagant lifestyle as they lived off a substantial inheritance from the husband's father. They lived their 10-year marriage in a somewhat profligate, equestrian country lifestyle using up much of the £20 million inherited by the husband from his father. The court noted: 'They have by their mutually extravagant lifestyle killed the goose that was capable of laying the golden eggs had they fed her properly.' Here the court placed some weight on the fact this was inheritance, but noted they had treated the inheritance as for their joint use. Less than half the inheritance was ring-fenced and not shared equally.

The court will look at the kind of asset. An inherited asset which has emotional links to the family may be different from inherited money. Ward LJ in *Robson v Robson*⁴³⁷ explained 'the ancestral castle may (note I say "may" not "must") deserve different treatment from a farm inherited from the party's father who acquired it in his lifetime, just as a valuable heirloom intended to be retained *in specie* is of a different character from an inherited portfolio of stocks and shares. The nature and source of the asset may well be a good reason for departing from equality within the sharing principle.'

Normally assets generated post-separation will be treated as non-marital assets, but the question is not straightforward. In *JL v SL (No 2) (Financial Remedies: Rehearing: Non-Matrimonial Property)*⁴³⁸ a distinction was drawn between income which was generated from a marital asset post-separation (which would also be a marital asset) and income which is 'a truly new venture which has no connection to the marital partnership or to the assets of the partnership'. So, post-separation income from an investment fund which was built up during a marriage would be treated as a marital asset. However, income one party earned from their own effort, would not.

However, even that might be questioned. The Court of Appeal in *Charman* referred to an argument that the husband's earning capacity was an asset which the wife had helped generate and that therefore she should be entitled to a share of his future earnings. The Court of Appeal described the issue as complex and felt it was unnecessary to address it.⁴³⁹ In *Jones v Jones*⁴⁴⁰ Wilson LJ rejected the argument. Although earning capacity was relevant in relation

⁴³⁵ [2011] EWCA Civ 550.

⁴³⁶ [2010] EWCA Civ 1171.

⁴³⁷ [2010] EWCA Civ 1171 para 7.

⁴³⁸ [2015] EWHC 360 (Fam).

⁴³⁹ In *H v H* [2008] 2 FCR 714 Charles J appeared open to the argument as long as the wife could show that but for her efforts the husband would not have been earning the salary he was.

⁴⁴⁰ [2011] EWCA Civ 41.

to future needs, it should not be regarded as a marital asset. It is hoped that the Supreme Court will consider this issue. A genuine assessment of the benefits created through a marriage should acknowledge career progression during a marriage creates gains not only during a marriage but after it. If a wife has enabled her husband to gain a high paying job, can she not claim to have contributed to his being able to gain a high salary not just during the marriage, but also after it? Although if that argument was accepted could a husband claim that his earning capacity at the start of the marriage was a non-marital asset?⁴⁴¹ Such an argument was not rejected out of hand in *JS v RS*,⁴⁴² although it was said the claimant would need to produce clear evidence that the husband's earning post-separation were as a result of her pre-separation contributions. That will in many cases be hard to prove.

Despite all these complexities it would be dangerous to overlay the distinction between marital and non-marital assets. Indeed, in *N v N*⁴⁴³ and *Charman (No 4)*⁴⁴⁴ it was emphasised that the courts should not undertake lengthy and time-consuming investigations as to which assets are or are not marital assets. Fairness may mean that a detailed analysis of the origins of assets is not normally necessary.⁴⁴⁵ Certainly the courts will never be prevented from making a fair order because property is labelled marital or non-marital.

(b) When will it be fair to exclude a non-marital asset from the sharing principle?

In deciding whether it is fair to exclude a non-marital asset from the sharing principle, the court will focus on three questions: the length of the marriage; the extent of intermingling; and the nature of the asset. In *Miller*⁴⁴⁶ Baroness Hale and Lord Nicholls agreed that in a case of a lengthy marriage whether the assets were family assets or marital assets would become increasingly irrelevant and it would be likely that the court would simply divide everything the couple had in half. But their lordships made it clear they were not setting down a hard and fast rule that in long marriages you divide all the property equally and in short marriages you divide only the marital property. In each case the judge must seek to determine what would be fair in the circumstances at hand. For example, in *N v N*⁴⁴⁷ despite a marriage of over 32 years it was held to be fair to award the wife 32 per cent of the assets. Ward LJ in *Robson v Robson*⁴⁴⁸ explained:

Where property is acquired before the marriage or when inherited property is acquired during the marriage, thus coming from a source external to the marriage, then it may be said that the spouse to whom it is given should in fairness be allowed to keep it. On the other hand, the more and the longer that wealth has been enjoyed, the less fair it is that it should be ringfenced and excluded from distribution in such a way as to render it unavailable to meet the claimant's financial needs generated by the relationship.

This quote seems to represent the current approach. Non-marital property can be used to meet the needs of either spouse. However, it is less likely to be included in a division under the sharing principle.⁴⁴⁹

⁴⁴¹ An argument rejected in *JS v RS* [2015] EWHC 2921 (Fam).

⁴⁴² [2015] EWHC 2921 (Fam).

⁴⁴³ [2010] EWHC 717 (Fam).

⁴⁴⁴ [2007] EWCA Civ 503.

⁴⁴⁵ *H v H* [2008] 2 FLR 2092.

⁴⁴⁶ [2006] 2 FCR 213.

⁴⁴⁷ [2010] EWHC 717 (Fam).

⁴⁴⁸ [2010] EWCA Civ 1171.

⁴⁴⁹ *Y v Y (Financial Orders: Inherited Wealth)* [2012] EWHC 2063 (Fam).

The significance of the meaning of marital assets in the case of a short marriage was central to one of the most notorious divorce cases in recent years:

CASE: *McCartney v Mills-McCartney* [2008] 1 FCR 707

The husband, Paul McCartney, a famous musician and composer, had been married to Heather Mills for four years. At the time of divorce the wife claimed that the husband was worth £400 million. Bennett J held that it was important to note that the vast bulk of the husband's fortune was made before the marriage and indeed before the couple met. The amount of money generated during the marriage was very small. There was no evidence that Heather Mills had suffered a financial loss as a result of the marriage. In the light of these facts, the primary focus of the courts would be to ensure that the wife and child's reasonable needs (interpreted in a generous way) were met. Focusing on those, he was ordered to pay her £16.5 million, meaning she would leave the marriage worth £24.3 million. Maintenance for the child was set at £35,000 per annum and the nanny's salary at £30,000.

In *K v L*⁴⁵⁰ Wilson LJ took a more nuanced approach than previous cases, rejecting an argument that a lengthy marriage would automatically mean the non-marital property would be shared:

... I believe that the true proposition is that the importance of the source of the assets *may* [not will] diminish over time. Three situations come to mind:

- (a) Over time matrimonial property of such value has been acquired as to diminish the significance of the initial contribution by one spouse of non-matrimonial property.
- (b) Over time the non-matrimonial property initially contributed has been mixed with matrimonial property in circumstances in which the contributor may be said to have accepted that it should be treated as matrimonial property or in which, at any rate, the task of identifying its current value is too difficult.
- (c) The contributor of non-matrimonial property has chosen to invest it in the purchase of a matrimonial home which, although vested in his or her sole name, has – as in most cases one would expect – come over time to be treated by the parties as a central item of matrimonial property.

More recently some judges, and particularly Mostyn J, have taken a stricter line. In *JL v SL (No 2) (Financial Remedies: Rehearing: Non-Matrimonial Property)*⁴⁵¹ Mostyn J doubted whether it would ever be appropriate to apply the sharing principle to non-marital assets, questioning whether there was any moral or principled basis for doing so. Indeed he likened the rarity of cases where it would be appropriate to share non-marital assets, to the rarity of the white leopard. However, that is a first instance decision and it does not sit easily with the suggestions in *White v White* and *Miller; McFarlane* that in the case of lengthy marriages the distinction between marital and non-marital assets will become irrelevant. Until Mostyn J's views have support at appellate level it would not be safe to take them as definitively setting out the law.

⁴⁵⁰ [2011] EWCA Civ 550, para 18.

⁴⁵¹ [2015] EWHC 360 (Fam).

C The principle of compensation

If one spouse is a wage earner and the other is not, then equal division of assets on divorce will mean equality at that point in time, but a few years down the line there is likely to be a sharp inequality.⁴⁵² Baroness Hale in *Miller v Miller*⁴⁵³ explained that the court is concerned with fairness not just at the time of divorce but also with the 'foreseeable (and on occasions more distant) future'. The unfairness of future inequality is particularly acute when one spouse has given up a career to pursue child care, leaving the other to generate substantial earning potential.⁴⁵⁴ The leading case is *McFarlane*.

This point in *McFarlane*⁴⁵⁵ was that equal division would not have produced fairness. The couple had assets worth around £3 million, the husband was earning about £1 million a year. If the £3 million were divided equally (£1.5 million each), within a few years the husband would be many times wealthier than the wife. The wife had lost significant earning potential as a result of the marriage. The periodic payments were necessary to compensate her for this.

Mrs McFarlane returned to the courts several years later (*McFarlane v McFarlane*).⁴⁵⁶ She applied for an increase in maintenance payments for herself and the children. Charles J agreed, although he ordered that the payments would stop in 2015, that being the date when the husband was due to retire. Interestingly, the order was made in terms of a percentage of the husband's earnings, rather than a specific sum. That meant that the parties would not need to return to court if the husband's income fluctuated.

CASE: *McFarlane* [2006] UKHL 24

At the time of the marriage, both parties had been in successful careers. However, the wife gave up her career to care for the children and family. The marriage ended after 16 years. The couple had assets of around £3 million which they agreed to share; they could not agree on the periodic payments. The House of Lords ordered payments of £250,000 per year (the husband earned about £1 million per annum): these would ensure that the wife was compensated fairly for the losses created during the marriage, particularly to her earning potential. Unlike the Court of Appeal, the House of Lords refused to make a s 28(1A) order that the length of time for the payments could not be extended.

In *VB v JP*⁴⁵⁷ Sir Mark Potter suggested that compensation was just one of the strands of fairness and it would not necessarily be appropriate to try to calculate a precise figure as to the loss of earnings caused by the marriage. In a big money case he suggested that normally an equal division of the assets would compensate the wife for her lost career prospects, although it was always a question of what would be fair. Indeed it seems that generally compensation is the most rarely used of the four principles. In part this is because it can be difficult to calculate what income a wife has lost as a result of the

⁴⁵² But see the warning of Thorpe LJ in *Parra v Parra* [2003] 1 FCR 97 at para 27 of relying on speculation as to what the parties' financial position might be in the future.

⁴⁵³ [2006] 2 FCR 213 at para 129.

⁴⁵⁴ See also *Murphy v Murphy* [2009] EWCA Civ 1258.

⁴⁵⁵ [2006] 2 FCR 213.

⁴⁵⁶ [2009] 2 FLR 1322.

⁴⁵⁷ [2008] 2 FCR 682.

marriage, especially if she was not in a clearly established career path at the time she stopped employment. One of the few recent cases relying on the compensation principle is *H v H (Periodical Payments: Variation: Clean Break)* [2014] EWHC 760 (Fam) where the wife was given a substantial capital sum on the husband's retirement following a 22-year marriage. In part this was to compensate her for her lost earnings and ability to develop a pension during the marriage.

However, in following case Mostyn J launched a fierce attack on the notion of compensation.

CASE: SA v PA (Pre-Marital Agreement: Compensation) [2014] EWHC 392 (Fam)

The case involved a couple who had been married for 18 years. They were both solicitors at the start of the marriage, but the wife she had ceased work to care for the children, while the husband's career had flourished with him now earning in excess of half a million pounds a year. She claimed for a financial order on divorce which reflected compensation for her lost earning.

Mostyn J stated that he found the compensation principle 'extremely problematic and challenging both conceptually and legally'. He gave five reasons. First, the idea of compensation normally reflected the fact someone had been wronged by someone else, and did not apply in a case where the victim was 'not an active enthusiastic voluntary participant in the events that give rise to the claim'. Second, that any award was based on speculation as to what would have happened if the wife had not married the husband. Third, he thought it could result in arbitrary awards in giving larger awards to a wife who gave up a lucrative career as compared with one who gave up a low-paid career, if the courts are saying that the contribution through child care is equal. Fourth, calculating how the wife's career would have progressed and what her income would be could not be computed rationally or predictably. Finally, he thought that decision in *McFarlane* could be reached without reference to compensation. Despite these concerns Mostyn J accepted compensation was part of the law, but he suggested it would only be invoked in a 'rare and exceptional case'.

Mostyn J's statement highlights the difficulty in calculating an award which reflects the loss of income and earning potential in compensation cases. However, the Court of Appeal do not appear to agree with him. In *H v H*⁴⁵⁸ it upheld an order of Coleridge J containing a compensation element for a wife who left a well-paid job to undertake care of the couple's children. Indeed the Court of Appeal were concerned that Coleridge J had not awarded a sufficient sum for compensation. So, the compensation principle is alive and well, even if it is only used in relatively few cases.

D The principle of autonomy

In the last few years it has been possible to detect a fourth principle being developed by the courts: the principle of autonomy.⁴⁵⁹ The most obvious way that autonomy works is in the rare cases where the parties have signed a pre-nuptial agreement. The Supreme Court in

⁴⁵⁸ [2014] EWCA Civ 1523.

⁴⁵⁹ *V v V (Prenuptial Agreement)* [2011] EWHC 3230 (Fam).

*Radmacher v Granatino*⁴⁶⁰ amended the law so that now significant weight is attached to a pre-nuptial agreement (a pre-nup). More on that later. For now it is worth noticing the reason why they think to do that is appropriate:

The reason why the court should give weight to a nuptial agreement is that there should be respect for individual autonomy. The court should accord respect to the decision of a married couple as to the manner in which their financial affairs should be regulated. It would be paternalistic and patronising to override their agreement simply on the basis that the court knows best. This is particularly true where the parties' agreement addresses existing circumstances and not merely the contingencies of an uncertain future.⁴⁶¹

This autonomy principle is of far wider significance than pre-nup cases.

In *V v V*⁴⁶² the couple signed an agreement on marriage. Although it was not a pre-nup because it did not say what should happen to the couple's property on divorce, it did set out their understandings about their property. Charles J held that the court, in deciding what order would be fair, should take their views into account.

We have already seen several cases where the courts attached weight to the intentions of the parties in determining what was fair. An excellent example of this is *K v L (Non-Matrimonial Property: Special Contribution)*⁴⁶³ where because the couple had left the wife's inherited shares to one side and not used them during the marriage, the husband was entitled to only a small percentage of them. The couple had, by their actions, shown they intended those shares to be for the wife alone. Similarly, where inherited property has been treated by the couple as joint property, the courts are likely to regard it as marital property to be shared between them.⁴⁶⁴

A less obvious role of the principle of autonomy was in *JS v RS*⁴⁶⁵ where a husband accepted in court that his wife's house should not be regarded as marital property and so should not be subject to division. While Sir Peter Singer indicated that was not the approach the court would necessarily have taken, the principle of autonomy allowed a party in litigation to make concessions or offers which were more generous than the approach the court may take. In short, if the husband wanted his wife to have more money than the court might otherwise have ordered, the court should respect his wishes. That approach should, it is submitted, be treated with some caution. That may well not be an appropriate line in the case of self-representing litigants, who have not received legal advice, or where the concession or offer might be seen as contrary to the public interest as amounting to a gross injustice.

E The role of the principles

There seems to be some division of approach among the judiciary as to exactly what weight is attached to the principles. On school of thought (the 'principles as tools approach') sees the principles as informing and usually guiding the courts, but that finally the court will determine what is fair by looking at the statutory factors and circumstances of the case. The principles are tools that can help achieve fairness, but no more than that. Cases taking this

⁴⁶⁰ [2010] UKSC 42.

⁴⁶¹ Paragraph 78.

⁴⁶² [2011] EWHC 3230.

⁴⁶³ [2011] EWCA Civ 550.

⁴⁶⁴ *J v J* [2009] EWHC 2654 (Fam).

⁴⁶⁵ [2015] EWHC 2921 (Fam).

approach include *B v B*,⁴⁶⁶ *Robson v Robson*,⁴⁶⁷ *Lawrence v Gallagher*⁴⁶⁸ and *AR v AR*.⁴⁶⁹ The other school of thought ('principles as rules' approach) prefers a more structured kind of reasoning, with the principles being followed unless there is a clear reason not to: *Jones v Jones*⁴⁷⁰ and *N v F*.⁴⁷¹ The difference between these general approaches should not be exaggerated, they both agree that essentially fairness is the key factor. The difference is whether the principles are strong guides to fairness and there needs to be a good reason to depart from them or whether the principles are just there to be used, if helpful, to guide the courts. Supporting the principles as rules approach Mostyn J in *N v F*⁴⁷² argued that 'the discretion must be exercised consistently and predictably'. That approach may also be supported if you believe that the principles reflect fundamental rules of justice which should not be departed from. For example, you might believe that whatever the facts of the case child care and money making should be treated equally. Supporters of the 'principles as tools' approach will emphasise the importance of ensuring there is a flexible response so that fairness can be achieved in each case.

In *Charman*, guidance was provided on how to balance the competing principles of sharing, compensation and needs, outlined by the House of Lords in *Miller; McFarlane*.⁴⁷³ The Court of Appeal explained that if an assessment of the wife's needs was greater than the sum that she would be granted on the basis of sharing or compensation then she should be awarded that sum. If, however, the sum she would be awarded on the basis of sharing was greater than her needs, she should be awarded the sharing sum. In short, she should receive the sharing amount or the needs amount, whichever was greater. As regards what to do if the sum to be awarded under the principle of compensation was greater than the award based on needs or sharing, the court decided that that question was best left to another case. Despite making these points, it was emphasised that, at the end of the day, the key issue is fairness. None of the Court of Appeal's comments was intended to be setting down a rule.⁴⁷⁴

9 Particular issues relating to redistribution of property on divorce

A The poor

The case law has established that a spouse cannot expect the state to meet his or her liability towards the other spouse. It is very unusual for a party on benefits to be ordered to make payments.⁴⁷⁵ More commonly, a nominal order is made that could be varied if the person ever got a job. The courts have also made it clear that a payer in employment should not be made to pay so much that he or she is left with only the same income he

⁴⁶⁶ [2008] EWCA Civ 543.

⁴⁶⁷ [2010] EWCA Civ 1171.

⁴⁶⁸ [2012] EWCA Civ 394, discussed in Herring (2012b).

⁴⁶⁹ [2011] EWHC 2717.

⁴⁷⁰ [2011] EWCA Civ 41.

⁴⁷¹ [2011] EWHC 586. Also followed in *JL v SL (No 1) (Appeal: Non-Matrimonial Property)* [2014] EWHC 3658 (Fam).

⁴⁷² [2011] EWHC 586.

⁴⁷³ *Charman v Charman* [2007] EWCA Civ 503, para 73; *Miller; McFarlane* [2006] 2 FCR 213, paras 11–13.

⁴⁷⁴ *C v C* [2007] EWHC 2033 (Fam).

⁴⁷⁵ *Billington v Billington* [1974] Fam 24 at p 29.

or she would have if receiving benefits, because that would rob him or her of the incentive to be employed. In *Ashley v Blackman*⁴⁷⁶ the wife was a 48-year-old schizophrenic woman on state benefits and the husband was a 55-year-old on an income of £7,000 per annum. The judge thought it important to allow the husband to see the 'light at the end of the tunnel' and be spared paying the few pounds that separated him from penury as there was no corresponding benefit to the wife. In *Delaney v Delaney*⁴⁷⁷ the husband was left with insufficient income to pay his mortgage and support his new cohabitant. The Court of Appeal balanced the availability of state benefits and the husband's need to support his new cohabitant. A nominal payments order in favour of the children was all the court was willing to make.⁴⁷⁸ The court thought it important to be aware that there was 'life after divorce'. However, it must be appreciated that the law on child support means that any attempt by the courts to make a clean break order is impossible in regard to children.

It is easy to overlook the fact that the kind of cases which have troubled the Supreme Court and Court of Appeal in recent years have been 'big money cases'. Although the principles articulated in those cases are relevant for the few who have great wealth and can afford to finance litigation, the principles are of limited relevance to the 'everyday case'. In a study of practitioners by Emma Hitchings⁴⁷⁹ it was found that for most high-street practitioners these cases are of little relevance. The everyday case is met with trying to meet the basic needs of the parties.⁴⁸⁰

B Pensions

For most couples the home and pension are the two most valuable family assets.⁴⁸¹ The difficulty arises where one spouse, normally the husband, has substantial pension provision, but the other, normally the wife, has wholly inadequate provision. As Lord Nicholls in *Brooks v Brooks*⁴⁸² explained, the 'major responsibility for family care and home-making still remains with women' and 'the consequent limitations on their earning power prevents them from building up pension entitlements comparable with those of men'. Twice as many women as men (two-thirds of the female population) have an income below poverty level on their retirement. If the couple remain married, the wife will be able to share in her husband's pension and, if her husband dies while he is receiving a pension, his widow will be entitled to payments. However, if they divorce, the wife's financial position will be much weaker than had she remained married.⁴⁸³ A different view is expressed by Deech, who suggests that it is arguable that wives who do not ensure that they have adequate pension provision in their own name are negligent.⁴⁸⁴

There is now a duty on the court to consider the pension position of the parties on divorce under the MCA 1973, s 25B.⁴⁸⁵ Under s 25B(1) of the Act the courts are under a duty to consider the parties' pension entitlements:

⁴⁷⁶ [1988] FCR 699, [1988] 2 FLR 278.

⁴⁷⁷ [1990] 2 FLR 457, [1991] FCR 161.

⁴⁷⁸ See also to similar effect, *Matthews v Matthews* [2013] EWCA Civ 1874.

⁴⁷⁹ Hitchings (2008).

⁴⁸⁰ Hitchings (2010).

⁴⁸¹ See Salter (2000); for relevant discussions of the pension issue.

⁴⁸² [1995] 2 FLR 13 at p 15.

⁴⁸³ Price (2009).

⁴⁸⁴ Deech (1996).

⁴⁸⁵ Pensions Act 1995, s 166.

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Matrimonial Causes Act 1973, section 25B(1)

- (a) . . . any benefits under a pension scheme which a party to the marriage has or is likely to have, and
- (b) . . . any benefits under a pension scheme which, by reason of the dissolution or annulment of the marriage, a party will lose the chance of acquiring.

Singer J, in *T v T (Financial Relief: Pensions)*,⁴⁸⁶ has made it clear that this provision does not require the courts to compensate a party for loss of a share in a pension, but it does mean that the courts have to consider any loss of pension rights. The court, in deciding what (if any) order to make, has the following options. In explaining these options it will be assumed that it is the husband who has substantial pension provision and the wife whose pension position is inadequate.

1. *'Set off'*. The husband could be ordered to pay the wife money in order to ensure she has adequate provision.⁴⁸⁷ So a husband might be ordered to pay his wife a lump sum which the wife should invest so that it will provide for her retirement. The difficulty is that there are few couples who have sufficient funds to provide an adequate sum for a pension. But where there are sufficient funds, that is the preferred option.⁴⁸⁸
2. *'Earmarking' part of pension*. This is a delayed LSO or PPO. The court has power to order the trustees or managers to make payments (including lump sums) for the benefit of a pensioner's spouse when sums become payable to the pensioner under the terms of the pension.⁴⁸⁹ From 1 December 2000, earmarking orders must be expressed in percentage terms.
3. *Delay*. The court may prefer to delay deciding what should happen to the pension until the husband retires.⁴⁹⁰ On divorce, the court will therefore make a PPO and not dismiss the application for an LSO. The issue will therefore be delayed until the husband retires and at that point the wife should apply for an LSO and/or a variation of the PPO.
4. *Commutation of pension*.⁴⁹¹ The court can order the pension to be commuted:⁴⁹² that is, that the pension fund be turned into a lump sum, which can then be divided by means of an LSO. Normally, to commute a pension is financially disadvantageous and is therefore rarely ordered.⁴⁹³
5. *Undertakings*. If the court lacks the jurisdiction to order a particular kind of provision, it may still be able to accept an undertaking. For example, a court cannot order a husband to take out a policy of insurance on his own life for his wife's benefit, but the court may be willing to accept an undertaking from a husband that he will do so.⁴⁹⁴

⁴⁸⁶ [1998] 1 FLR 1072, [1998] 2 FCR 364.

⁴⁸⁷ *MD v D* [2009] 1 FCR 731; *Richardson v Richardson* [1978] 9 Fam Law 86. See Taylor (2015) for a detailed discussion.

⁴⁸⁸ *JS v RS* [2015] EWHC 2921 (Fam).

⁴⁸⁹ MCA 1973, s 25B(4).

⁴⁹⁰ *Burrow v Burrow* [1999] 1 FLR 508.

⁴⁹¹ MCA 1973, s 25B(7).

⁴⁹² Since 1 December 2000, the court can require a portion of the pension to be commuted (MCA 1973, s 25B(7)).

⁴⁹³ *Field v Field* [2003] 1 FLR 376.

⁴⁹⁴ *W v W (Periodical Payments: Pensions)* [1996] 2 FLR 480.

6. *Pension sharing*. Since December 2000, the court has been able to split the husband's pension into two portions on the spouses' divorce.⁴⁹⁵ The husband will thus have his share and the wife will have her share and each will be responsible for paying into their pensions as appropriate. The two pensions will then operate independently.⁴⁹⁶ This order is available only as a result of the Welfare Reform and Pensions Act 1999.⁴⁹⁷ The wife will be entitled to keep her share of the pension with the provider of her husband's pension scheme or transfer her share to a different company. The Government has stressed that there is no presumption that there should be a 50:50 split or indeed any form of order at all.⁴⁹⁸ It may be that *White v White* implies that an equal split of the pension should be ordered in a case of a long marriage unless there is a good reason not to.⁴⁹⁹ However, in shorter marriages account should be taken of what proportion of the pension is referable to the marriage and what proportion relates to payments made before the marriage. In *Martin-Dye v Martin-Dye*⁵⁰⁰ the Court of Appeal suggested that, as it had been decided that the other assets would be allocated 57 per cent to the wife and 43 per cent to the husband, the pensions should be divided in the same proportions. The Court of Appeal in that case warned of the danger of treating a pension valued at a certain sum as equivalent to cash of that value. That would be wrong.⁵⁰¹

The pension sharing option is certainly the most desirable option for many wives.⁵⁰² As mentioned already, a set-off is available only for the richest of couples. The difficulty with earmarking and delay (options 2 and 3 above) is that, if the wife remarries, this will end her PPO. A further difficulty with earmarking is that the husband may be deterred from paying into the pension scheme after the order is made and may prefer to set up a separate pension scheme.⁵⁰³ There is also a concern that the parties may not want to have their relationship reawakened maybe 20 years after the divorce when the husband retires. It is not surprising to learn that the number of earmarking orders has been small.⁵⁰⁴ With option 3 there is the difficulty that, by the time the husband retires, he may have several ex-wives who seek to claim a portion of the pension. We will now look in further detail at pension sharing, which will be the most appropriate option for most couples with a substantial pension. In 2008 there were 10,417 pension sharing orders.⁵⁰⁵

⁴⁹⁵ See also The Divorce and Dissolution etc. (Pension Protection Fund) Regulations 2011 (SI 2011/780), the Pension Protection Fund (Pension Compensation Sharing and Attachment on Divorce etc.) Regulations 2011 (SI 2011/731) ('the Main Regulations 2011') and the Pension Protection Fund (Pensions on Divorce etc.: Charges) Regulations 2011 (SI 2011/726).

⁴⁹⁶ *R (on the application of Smith) v Secretary of State for Defence* [2004] EWHC 1797 (Admin), confirmed in *R (Thomas) v Ministry of Defence* [2008] 2 FLR 1385.

⁴⁹⁷ In the unusual facts of *Brooks v Brooks* [1995] 2 FLR 13, [1995] 3 FCR 214 the House of Lords was willing to split a one-person pension scheme under the MCA 1973, treating it as a prenuptial contract.

⁴⁹⁸ Baroness Hollis, Official Report (HL) 6 July 1999, col. 776.

⁴⁹⁹ *SRJ v DWJ (Financial Provision)* [1999] 2 FLR 176.

⁵⁰⁰ [2006] 2 FCR 325.

⁵⁰¹ See Salter (2008) and Rosettenstein (2005) for a discussion of the problems in valuing pensions and other financial products.

⁵⁰² Ginn and Price (2002).

⁵⁰³ There are also difficulties where the husband dies before the pension is payable.

⁵⁰⁴ Bird (2000).

⁵⁰⁵ Ministry of Justice (2009).

(i) What pensions can be split?

Pension sharing is available 'in relation to a person's shareable rights under any pension arrangement other than an excepted public service pension scheme'.⁵⁰⁶ The basic state pension cannot be split, although the State Earnings Related Pension Scheme (SERPS) can be.

(ii) What is a pension sharing order?

A pension sharing order is defined in s 21A(1) of the MCA 1973 as:

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Matrimonial Causes Act 1973, section 21A(1)

. . . an order which-

- (a) provides that one party's—
 - (i) shareable rights under a specified pension arrangement, or
 - (ii) shareable state scheme rights, be subject to pension sharing for the benefit of the other party, and
- (b) specifies the percentage value to be transferred.⁵⁰⁷

The essence of the order is therefore that a portion of one party's shareable rights is transferred to the other party. The order transfers rights to the other party and it must specify the percentage value to be transferred.⁵⁰⁸

(iii) The effects of pension sharing

The effects of pension sharing are defined in s 29 of the Welfare Reform and Pensions Act 1999:

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Welfare Reform and Pensions Act 1999, section 29

- (a) the transferor's shareable rights under the relevant arrangement become subject to a debit of the appropriate amount, and
- (b) the transferee becomes entitled to a credit of that amount as against the person responsible for that arrangement.

⁵⁰⁶ MCA 1973, s 27(1) explains that a person's shareable rights under a pension arrangement are 'any rights of his under the arrangement' other than rights of a description specified by regulations made by the Secretary of State for Social Security (MCA 1973, s 27(3)). See also Pension Sharing (Valuation) Regulations 2000 (SI 2000/1052), reg 2.

⁵⁰⁷ A pension sharing order can be made only in respect of petitions filed after 1 December 2000 (Welfare Reform and Pensions Act 1999, s 85(2)(a)). If the petition is filed before that date there is conflicting case law on whether a decree nisi can be rescinded in order to permit the petitioner to re-petition and be able to take advantage of the new provisions (*S v S (Rescission of Decree Nisi: Pension Sharing Provision)* [2002] FL 171; *H v H (Pension Sharing: Rescission of Decree Nisi)* [2002] 2 FLR 116; but see *Rye v Rye* [2002] FL 736).

⁵⁰⁸ The order must rely on percentages rather than a cash sum. See further *H v H* [2009] EWHC 3739 (Fam).

The transferor therefore loses the percentage required to be transferred, so that his pension fund is reduced in value, and the transferee acquires the right to require the pension scheme trustee or manager to credit her with that amount so that she gains a pension fund of that value. The transferee in effect has a pension of her own.⁵⁰⁹

(iv) Factors to be taken into account

Under s 25(2) of the MCA 1973 the court is to have regard to all the circumstances of the case and include 'any benefits under a pension arrangement which a party to the marriage has or is likely to have' and 'any benefits under a pension arrangement which . . . a party to the marriage will lose the chance of acquiring'.

The court cannot make a pension sharing order if there is in force an earmarking order in respect of that pension.⁵¹⁰ Similarly, an earmarking order cannot be made if a pension sharing order is in force.

A study into the use of pensions on divorce⁵¹¹ found pensions are made in only 1 in 12 divorces. In a study of selected files of divorce cases it was found that in 66 per cent of cases although there were pensions that could be shared there was no pension sharing order. Pension sharing orders were most commonly made with wealthy couples who had been married a long time. It seems pension attachment orders are very rarely made.⁵¹² The study found that practitioners found pension sharing complex and hard to understand. One explained:

Pensions are very scary, they're difficult; people don't understand them. Judges don't understand them often. And so we do shy away from the whole pension issue . . .⁵¹³

C Housing

In many cases the matrimonial home is the most valuable asset that the parties have. There is real difficulty in balancing the interests of the husband, the wife and the children in deciding who should occupy the family home. *M v B (Ancillary Proceedings: Lump Sum)*⁵¹⁴ provides some indication of how these interests are to be ranked:

In all these cases it is one of the paramount considerations, in applying the s 25 criteria, to endeavour to stretch what is available to cover the need of each for a home, particularly where there are young children involved. Obviously the primary carer needs whatever is available to make the main home for the children, but it is of importance, albeit it is of lesser importance, that the other parent should have a home of his own where the children can enjoy their contact time with him. Of course there are cases where there is not enough to provide a home for either. Of course there are cases where there is only enough to provide for one. But in any case where there is, by stretch and a degree of risk-taking, the possibility of a division to enable both to rehouse themselves, that is an exceptionally important consideration and one which will inevitably have a decisive impact on the outcome.⁵¹⁵

⁵⁰⁹ *Slattery v Cabinet Office* (Civil Service Pensions) [2009] 1 FLR 1365.

⁵¹⁰ MCA 1973, s 24B(5).

⁵¹¹ Woodward and Sefton (2014).

⁵¹² Woodward (2015).

⁵¹³ Woodward (2015).

⁵¹⁴ [1998] 1 FLR 53 at p 60.

⁵¹⁵ Approved in *Piglowska v Piglowski* [1999] 2 FLR 763.

These dicta were approved by the House of Lords in *Piglowska v Piglowski*.⁵¹⁶ So the first aim is to house the children and then, if possible, to enable both spouses to be housed.⁵¹⁷ There are three good reasons for permitting the children to remain in the matrimonial home if at all possible. First, the children will benefit from the security of staying in the house they have been brought up in, given the other huge changes that are going on around them. Secondly, there are educational reasons for keeping the children in their present home, as they can continue to attend their present school. Thirdly, it may be important for the children's psychological welfare that they keep up their friendships with other children who live nearby.

Clearly, whether the parties have alternative accommodation is an important consideration. So in *Hanlon v Hanlon*,⁵¹⁸ where the husband had a flat that came with his job, the court readily required him to transfer to his wife his interest in the matrimonial home. By contrast, if a spouse has special needs then this is an important factor. In *Smith v Smith*⁵¹⁹ the wife was awarded the house as she suffered from a kidney complaint. In *Lawrence v Gallagher*⁵²⁰ one civil partner was left with a valuable flat in London and the other a less valuable cottage in the country. These were treated as equivalent because despite the difference in their value they were equally desirable places to live and met the different needs of the parties.

The harsh truth is that if the house were to be sold and the equity divided⁵²¹ then it may be that neither spouse would have sufficient cash to purchase another house of the same size. On the other hand, not selling the house and permitting the children and the residential parent to remain in the house may seem harsh on the non-residential spouse. So the courts have sought ways of enabling one spouse to stay in the house with the children while seeking to protect the other spouse's financial interest in the property.⁵²² If the couple own a house, then on divorce the court can consider the following options:

1. The court might order one spouse to pay money in exchange for the other's share in the property. This is likely to be an option only for reasonably well-off couples.
2. The court could order that the house be sold under s 24A of the MCA 1973 and the proceeds be divided between the parties in such proportion as the court orders. This might be particularly appropriate if there are no children and the sale would provide enough money to enable both parties to buy their own homes.
3. The court can postpone the sale of the property until a specified event has occurred. There are two main kinds of orders that can be used:
 - (i) A *Mesher* order.⁵²³ The parties will hold the property as equitable tenants in common and the sale will be deferred until the children reach the age of 17; or complete their full-time education; or the wife dies or remarries; or until further order. If one of these

⁵¹⁶ [1999] 2 FLR 763.

⁵¹⁷ See *Walker v Walker* [2013] EWHC 3973 (Fam), where the importance of ensuring both spouses could find accommodation was emphasised.

⁵¹⁸ [1978] 2 All ER 889.

⁵¹⁹ [1975] 2 All ER 19n.

⁵²⁰ [2012] EWCA Civ 394.

⁵²¹ Under MCA 1973, s 24A.

⁵²² *Fisher-Aziz v Aziz* [2010] EWCA Civ 673.

⁵²³ *Mesher v Mesher* [1980] 1 All ER 126.

events occurs, the house will be sold and the equity divided as decided by the court. The option 'or until further order' enables the court to preserve a discretion in cases where an unforeseen event occurs. Until the sale, the wife (or residential parent) will be permitted to occupy the property with the children. Until recently it had been thought that the *Mesher* had fallen out of favour.⁵²⁴ There are a number of disadvantages with it:

- (a) The wife and husband will have to communicate and discuss the sale many years after the divorce. It thereby keeps a certain tie between the couple years after the marriage has formally ended.
- (b) When the children have finished their education they may still be reliant on the mother for accommodation, and the sale of the house could cause them harm.
- (c) The time when the mother is forced to leave her home is at a time in her life when she is most vulnerable. She may be middle-aged, with limited earning capacity and in no position to find appropriate alternative housing.

However, in *Elliott v Elliott*⁵²⁵ the Court of Appeal supported the making of a *Mesher* order on the basis of *White v White*. It was held that to avoid gender discrimination and to promote equality the husband was prima facie entitled to half the value of the family home. Although the needs of the children justified delaying the husband's access to his share, once the children no longer needed the home the husband should be entitled to his share. A *Mesher* order enabled that to occur. *White*, therefore, might lead to an increase in the number of *Mesher* orders.⁵²⁶ However, in *Tattersall v Tattersall*⁵²⁷ a *Mesher* order was said to be inappropriate in a case where there were young children and so the husband was not likely to see his share for twenty years and the divorce was acrimonious and the order could lead to on-going tensions.

An interesting twist on the *Mesher* order was provided by *Sawden v Sawden*⁵²⁸ where the Court of Appeal made an order with the triggering event not being that the children had finished their full-time education but rather that the children had left the home and were living independently of the mother. This recognises the reality that children nowadays often remain living with their parents, not just during education but for some time afterwards.

- (ii) A *Martin* order.⁵²⁹ The *Martin* order is similar to a *Mesher* order in that the property is jointly owned, but the wife (or residential parent) can stay in the home for as long as she wishes. A common form of the order is that she can stay in the house until she dies or remarries. In *Clutton v Clutton*⁵³⁰ the Court of Appeal approved a

⁵²⁴ Eekelaar (1991a) found that only 18 per cent of registrars regarded *Mesher* orders in a favourable light.

⁵²⁵ [2001] 1 FCR 477.

⁵²⁶ Fisher (2002: 111). Although see *B v B (Mesher Order)* [2003] Fam Law 462 for an expression of judicial concern about *Mesher* orders. See *Mansfield v Mansfield* [2011] EWCA Civ 1056 where it was used.

⁵²⁷ [2013] EWCA Civ 774.

⁵²⁸ [2004] 1 FCR 776.

⁵²⁹ *Martin BH v Martin BH* [1978] Fam 12.

⁵³⁰ [1991] 1 FLR 242, [1991] FCR 265.

Martin order where the sale was to take place on the death, remarriage or cohabitation of the wife. There is concern over this kind of 'cohabitation clause', as it might lead to spying by the husband and involve an invasion of the wife's privacy.⁵³¹ The Court of Appeal in *Clutton* suggested that this concern was outweighed by the bitterness the husband would otherwise feel if the wife were to cohabit in 'his' house with another man.

4. The court can give a spouse occupation rights. If, say, a husband was the beneficial owner of the property, it would be possible to give the wife a right to occupy without giving her ownership of the property. There is no provision for such an order under the MCA 1973, but it can be achieved through an order under s 30 of the Family Law Act 1996 that a wife's home rights continue after divorce.
5. The court could order a transfer of the house from one spouse to the other, subject to a charge in the transferor's favour. For example, a husband could be ordered to transfer to his wife his share in the house, subject to a charge in his favour. So he would not own the house, but when the house is sold he would be entitled to a share in the proceeds.⁵³² The benefit of this order is that, as the wife would be the owner, she would decide when the house should be sold, but the husband does not completely lose his financial interest in the property.
6. The court could order that the house be held on trust for the child. In *Tavoulareas v Tavoulareas*⁵³³ the husband was ordered to purchase a house to provide accommodation for his wife and child during the child's dependency. The house was to be held on trust for the husband with the fund reverting to the child rather than to the husband. Once the child reached majority he could, in theory, remove his mother from the home.

D Pre-marriage or prenuptial contracts

Learning objective 7

Assess the law on pre-nuptial agreements

The traditional position in English and Welsh law is that pre-marriage contracts carry little weight in a court's consideration of an application under the MCA 1973.⁵³⁴ However, as we shall see shortly, that view has recently been rejected by the Supreme

Court. The reasoning behind the traditional approach is that Parliament has given the courts the job of determining how property should be distributed on divorce, and the parties cannot rob the court of its jurisdiction.⁵³⁵ It used to be said that pre-marriage contracts were contrary to public policy in that they require people to enter marriage while contemplating its breakdown. However, the courts do not seem to find this a convincing argument given the high rates of divorce.⁵³⁶

The current approach of the courts is governed by the following decision:

⁵³¹ For an example of such spying, see *B v B* (Mesher Order) [2003] Fam Law 462.

⁵³² It is not normally appropriate to phrase the order in terms of a sum of money but rather a percentage, as a specific sum would be ravaged by inflation: *S v S* [1976] Fam 18.

⁵³³ [1998] 2 FLR 418, [1999] 1 FCR 133.

⁵³⁴ Scherpe (2012) provides a comparative overview of the treatment of marital agreements.

⁵³⁵ Hence, contracts between a spouse and a parent-in-law providing for what should happen in the event of a divorce are similarly not enforceable: *Uddin v Ahmed* [2001] 3 FCR 300.

⁵³⁶ Connell J in *M v M* (Prenuptial Agreement) [2002] Fam Law 177.

CASE: *Radmacher v Granatino* [2010] UKSC 42

A German wife and French husband had signed a pre-nuptial agreement in Germany which stated that neither would have a financial claim on the other in the event of a divorce. Baron J, the judge at first instance, placed negligible weight on the agreement and granted the husband (the less wealthy of the two spouses) over £5 million. The Court of Appeal held that Baron J had erred. The law on pre-marriage contracts was moving on and there was a clear trend to give greater weight than previously to pre-marriage contracts. The agreement should have carried due weight. In some cases the agreements should have 'decisive weight' and even be of 'magnetic importance'. The husband appealed to the Supreme Court.

The Supreme Court divided 8:1. The majority summarised their views by saying:

The court should give effect to a nuptial agreement that is freely entered into by each party with a full appreciation of its implications unless in the circumstances prevailing it would not be fair to hold the parties to their agreement.⁵³⁷

The agreement could only carry weight if the spouses 'enter into it of their own free will, without undue influence or pressure, and informed of its implications'.⁵³⁸ If there was a material non-disclosure by one of the parties to the agreement, that could render it of no or little effect. Normally, each party would need legal advice,⁵³⁹ but not if each understood the implications of the agreement. Similarly, any 'unworthy conduct, such as exploitation of a dominant position to secure an unfair advantage' could mean that little or no weight would attach to the agreement. The parties' emotional state would be considered when deciding whether the agreement had been entered into freely. Their Lordships felt that in this case the husband was an experienced businessman and, although not legally advised, he did understand the nature of the agreement.

The agreement would carry weight only if it was fair. An agreement which failed to take into account the needs of the children would lack fairness. Similarly, an agreement which failed to meet the needs of either spouse, or failed to compensate them for losses caused by the marriage, would not be covered. As the majority explained:

The parties are unlikely to have intended that their ante-nuptial agreement should result, in the event of the marriage breaking up, in one partner being left in a predicament of real need, while the other enjoys a sufficiency or more, and such a result is likely to render it unfair to hold the parties to their agreement. Equally if the devotion of one partner to looking after the family and the home has left the other free to accumulate wealth, it is likely to be unfair to hold the parties to an agreement that entitles the latter to retain all that he or she has earned.⁵⁴⁰

A contract may also lack fairness if there had been an unforeseen event after the making of the contract during the marriage. As their Lordships pointed out, this is particularly

⁵³⁷ Para 75.a

⁵³⁸ Para 68.

⁵³⁹ See *Gray v Work* [2015] EWHC 834 (Fam) for a case where a pre-nup was given no effect as the wife had not received any legal advice on the impact of the agreement outside the jurisdiction of Texas and had not understood its terms.

⁵⁴⁰ Para 81.

likely to have occurred in the case of longer marriages.⁵⁴¹ However, an agreement which tried to ensure that the other party did not claim on existing property (i.e. property acquired before the marriage) would be likely to be seen as fair.

If the court concluded that the contract had been properly entered into and was not unfair, the court would give effect to it when making an order for financial provision. *Obiter* the majority held that a pre-marriage agreement could be regarded as a contract and could be enforced as such, although that would be subject to any application to the court under the MCA.

At the heart of the approach of the majority was an appeal to autonomy, mentioned earlier. The law should respect the decision the couple have made about how they wish their property to be divided. It is 'paternalistic and patronising' to assume the court knows better than the couple themselves about what is fair.⁵⁴²

The decision has proved controversial. Before looking at the debate surrounding it we will explore the current law further. *Radmacher v Granatino*⁵⁴³ marks a 'seismic shift' in the law relating to marital agreements.⁵⁴⁴ In a case where there is a pre-nuptial contract the court will make an order giving effect to the agreement unless either of these two can be shown:

- the parties did not freely and fully agree to the contract;
- it would not be fair to hold the parties to the agreement given the circumstances at the time of the court hearing.

It seems that the burden of proof for showing that it would not be fair to hold the parties to the agreement is on the person claiming that it would be unfair to do so. It is worth considering these two factors in more detail.⁵⁴⁵

Did the parties freely and fully agree to enter the contract?

In answering this question, the court will consider a range of factors. Undue influence; a lack of understanding of the implications of the agreement; a failure to make appropriate disclosure of the parties assets; the absence of suitable legal advice; uncertainty whether the agreement was meant to be binding;⁵⁴⁶ 'unworthy conduct, such as exploitation of a dominant position to secure an unfair advantage' could all mean the agreement will not be given effect. Each case will be considered on its own facts and the courts have avoided creating any mandatory procedural requirements for a pre-nup to be valid.

In *Radmacher* itself the husband did not receive legal advice, but he was an experienced businessman and fully understood the terms of the agreement and so that did not invalidate the agreement.⁵⁴⁷ More surprisingly, in *V v V*⁵⁴⁸ an agreement signed by a pregnant 24-year-old

⁵⁴¹ In *Gray v Work* [2015] EWHC 834 (Fam) the pre-nup was given no effect, in part because it had been signed 14 years prior to the divorce and there had been significant changes in the parties' financial positions.

⁵⁴² Para 78.

⁵⁴³ [2010] UKSC 42.

⁵⁴⁴ *Z v Z (No. 2)* [2011] EWHC 2878.

⁵⁴⁵ See Clark (2011); Thompson (2011).

⁵⁴⁶ In *Gray v Work* [2015] EWHC 834 (Fam) the agreement was seen as primarily entered into for tax reasons, rather than being intended to settle financial claims and so was not a binding pre-nup.

⁵⁴⁷ For a similar finding, see *Z v Z (No. 2)* [2011] EWHC 2878. This reasoning is criticised in Harris, George and Herring (2011) because legal advice ensures not just that a party understands the agreement, but provides a check that they are entering it freely.

⁵⁴⁸ *V v V* [2011] EWHC 3230.

woman at the request of her husband to be, a man 10 years her senior, was upheld. Although she did not receive legal advice, the agreement was readily understood by an intelligent reader and the court was persuaded that she would have signed the agreement even if she had received independent legal advice. This case, if followed, seems to indicate a marked watering down of the legal advice requirement.

In *BN v MA (Maintenance Pending Suit: Prenuptial Agreement)*⁵⁴⁹ the court expressly denied that there was a requirement of full disclosure before a pre-nup could be given effect. There was sufficient disclosure for the spouse to understand the general situation. In *V v V*⁵⁵⁰ the court were also unconcerned by the lack of disclosure as the wife was uninterested in the precise wealth of her husband and disclosure would not have affected whether she would have entered the agreement. In *WW v HW (Pre-Nuptial Agreement: Needs: Conduct)*⁵⁵¹ the wife was very wealthy at marriage and required a pre-nuptial agreement to restrict any claim her husband might have against her. The husband gave a false disclosure of his income (he pretended to have a higher salary than in fact he had). Unsurprisingly, the husband could not rely on his own improper disclosure as a way of challenging the validity of the agreement. Indeed, if anything, he was to blame for the fact the agreement did not provide more for him. Further, the husband was a mature man in his forties, not acting under pressure and with full understanding of the agreement. All of this led the court to find it had been properly entered into.

Where is effective legal advice that may be sufficient to allay other concerns about the agreement? In *Hopkins v Hopkins*⁵⁵² the husband had a history of bullying the wife. However, she received very extensive legal advice and the court were persuaded that the agreement was entered into freely. This is a little surprising. While legal advice might reassure us that concerns that a party's ignorance are allayed, it is not clear why legal advice necessarily allays fears of undue influence.⁵⁵³

An example of an agreement which was not properly entered into was *GS v L*.⁵⁵⁴ The parties did not understand what the agreement meant, indeed, they had different interpretations of it. Both had understood it to be primarily about covering their finances in the event of the husband's death. In such circumstances King J felt no real weight could be place on the agreement. Similarly, in *Kremen v Agrest (No. 11) (Financial Remedy: Non-disclosure: Post-Nuptial Agreement)*⁵⁵⁵ there was no proper legal advice or disclosure and the wife did not really understand what she was signing. Mostyn J referred to the agreement as a 'parlour game' because it seemed the parties did not even mean it to be taken seriously at the time it was signed. He had no difficulty in concluding that no weight should be attached to the agreement. He then made comments suggesting a stricter approach to the legal advice issue than some of the earlier cases:

It seems to me that it will only be in an unusual case where it can be said that absent independent legal advice and full disclosure, a party can be taken to have freely entered into a marital agreement with a full appreciation of its implications . . . It would surely have to be shown that the spouse, like Mr Granatino, had a high degree of financial and legal sophistication in order to have a full appreciation of what legal rights he or she is signing away.

⁵⁴⁹ [2013] EWHC 4250 (Fam).

⁵⁵⁰ *V v V* [2011] EWHC 3230.

⁵⁵¹ [2015] EWHC 1844 (Fam).

⁵⁵² [2015] EWHC 812 (Fam).

⁵⁵³ Indeed for evidence it does not see Thompson (2015).

⁵⁵⁴ [2011] EWHC 1759.

⁵⁵⁵ [2012] EWHC 45.

Even if a pre-nup is found to be ineffective due to flaws in the way it was entered into, it might still carry some weight.⁵⁵⁶ It might provide some indication of how the parties understood their financial position, even though its precise terms will not be given effect. That might be taken into account by the court determining what a fair order would be under the MCA.

Would it not be fair to hold the parties to the agreement given the circumstances at the time of the court hearing?

An example of an agreement which would be unfair was one that failed to take into account the needs of the children. Similarly, if the agreement left a spouse in real need or did not ensure it provided compensation for losses caused by the marriage, it might be unfair. In *Luckwell v Limata*⁵⁵⁷ had the pre-nup been complied with the husband would have been left with no home, no income, no capital, no borrowing capacity and considerable debts. This was a position of 'real need' and so a relatively modest award was made to meet his basic needs. However, the award was much less than it would have been had there been no pre-nup. It was also noted that it would harm the children if the husband lived in dire poverty, while the wife lived in splendour. Mostyn J in *Kremen v Agrest (Financial Remedy: Non-Disclosure: Post-Nuptial Agreement)*⁵⁵⁸ suggested that when in *Radmacher* the Supreme Court referred to a case where a pre-nup would be invalid if it failed to meet 'real need' it had in mind a case where a spouse was left destitute. That interpretation was rejected in *WW v HW (Pre-Nuptial Agreement: Needs: Conduct)*⁵⁵⁹ where it was held that whether there was real need or not depended on the circumstances of the case, and presumably a consideration of the lifestyle of the couple during the relationship. A spouse left with a very significantly depreciated standard of living may be in 'real need' even if not absolutely destitute.

It is clear that only in cases of severe need will the court depart from an otherwise valid pre-nup. In *BN v MA (Maintenance Pending Suit: Prenuptial Agreement)*⁵⁶⁰ Mostyn J held that the 'principle of party autonomy' was extremely important. In a case where intelligent and sophisticated people with excellent legal advice had entered agreement it would be very unusual for a court to declare a pre-nup unfair. In particular, an agreement will not be unfair just because the agreement did not provide for sharing of the couple's assets. For example, in *Z v Z (No. 2)*⁵⁶¹ the agreement was enforced, even though it failed to ensure an equal division of the couple's property. The agreement ensured that the needs of the parties were covered and that was sufficient to mean it was fair. Moor J made an order in the terms of the agreement, accepting that the wife received much less than she would have done had she not entered the agreement. That is particularly likely where there seems to be an understandable line of thinking behind the agreement. In *WW v HW (Pre-Nuptial Agreement: Needs: Conduct)*⁵⁶² a very wealthy wife wanted to protect her substantial inherited family wealth from a sharing claim from her husband to be, although the agreement made appropriate provision for the children. This was described to be an 'entirely sensible ambition' and the court gave effect to the agreement, even though the husband received under the agreement significantly less than he might have done had the court made an order without considering the agreement.

⁵⁵⁶ *H v PH (Scandinavian Marriage Settlement)* [2013] EWHC 3873 (Fam).

⁵⁵⁷ [2014] EWHC 502.

⁵⁵⁸ [2012] EWHC 45 (Fam).

⁵⁵⁹ [2015] EWHC 1844 (Fam).

⁵⁶⁰ [2013] EWHC 4250 (Fam).

⁵⁶¹ [2011] EWHC 2878.

⁵⁶² [2015] EWHC 1844 (Fam).

Another basis on which an agreement might be found to be unfair is if an unforeseen event occurred during the marriage. In *Z v Z (No. 2)*⁵⁶³ Moor J rejected an argument that the wife having a child and giving up work and following her husband to England could be regarded as events that undermined the fairness of the agreement. Interestingly, he focused on the fact that the disadvantages she had suffered as a result of the marriage, were provided for by the needs-based provision in the contract. This suggests that if there are unexpected events, but they did not lead to an unfairness in the result, the agreement will still be upheld. Moor J's approach may be questioned here. The wife may have agreed to needs-only provision on the basis that her career would continue during the marriage. She may not have thought it fair to have needs-only provision if she had known she was going to have to give up her job. The concerns over unforeseen events mean that pre-nups will be under great scrutiny if they were signed many years ago at the start of a long marriage.⁵⁶⁴

In *SA v PA (Pre-Marital Agreement: Compensation)*⁵⁶⁵ the pre-nup set out what should happen to the capital assets on divorce and that was given effect to by the court. However, the pre-nup did not address the question of on-going periodic payments and so the court fixed these at a level to meet the wife's needs. This shows that a court will be willing to supplement a pre-nup if there are gaps or issues which the pre-nup does not address.

One issue which the court will need to address in due course is whether a pre-nuptial agreement can be varied by an oral agreement between the parties. The issue was raised in *Z v Z (No. 2)*⁵⁶⁶ where Moor J suggested there needed to be 'clear and compelling' evidence of any variation, but left open the question of whether an oral variation was possible. An emotional letter from the husband, written without legal advice, was insufficient to vary the agreement. By contrast the fact that the parties in *Luckwell v Limata*⁵⁶⁷ has signed several documents reconfirming the pre-nup during the marriage was held to be a significant factor in favour of giving as much weight to the contract as possible.

The Law Commission has issued a consultation paper on marital agreements.⁵⁶⁸ It proposes that Qualifying Nuptial Agreements (QNA) can be given effect if contractually valid, made in writing and signed by the parties, following full and frank material disclosure of the parties' financial situation and legal advice. It asks for views on whether there should be a limit on what property is covered by the agreement, in particular, whether agreements should be prevented from applying to marital property. The key question is the extent to which a court should be able to override a QNA. They see the minimum is that the law must ensure that children are provided for sufficiently and that neither party should be avoidably left dependent on benefits. Other options include setting the agreement aside:

- on the occurrence of specified events; or
- if the agreement would produce significant injustice;
- to the extent that the agreement failed to cover two of the *Miller; McFarlane* principles: needs and compensation for relationship-generated disadvantage (note that the equal sharing principle would remain excluded);
- if the agreement failed to meet the parties' needs, narrowly defined.

⁵⁶³ [2011] EWHC 2878.

⁵⁶⁴ *BN v MA (Maintenance Pending Suit: Prenuptial Agreement)* [2013] EWHC 4250 (Fam).

⁵⁶⁵ [2014] EWHC 392 (Fam).

⁵⁶⁶ [2011] EWHC 2878.

⁵⁶⁷ [2014] EWHC 502.

⁵⁶⁸ For discussion see Parker (2015). Baroness Deech's Divorce (Financial Provision) Bill would have given effect to pre-nups entered into under certain circumstances, but the Bill failed to become law.

The decision in *Radmacher* and the issues raised by the Law Commission are controversial. The benefits of pre-nups appear exaggerated. It is far from obvious that they will make the law more certain. Assuming there is to be some limit on pre-nups, for example that they must not be unfair, we need to have a yardstick against which to measure fairness.⁵⁶⁹ A solicitor advising a client with a pre-nup will need to assess what the court would do without the pre-nup and then compare that with how the court will interpret the pre-nup. There may be extensive disputes over the correct interpretation of the pre-nup.⁵⁷⁰ That is not making the solicitor's job easier nor quicker, nor cheaper.

It will be extremely difficult for lawyers to draft a pre-nup.⁵⁷¹ As Rix LJ stated in *Radmacher*: 'Over the potential many decades of a marriage it is impossible to cater for the myriad different circumstances which may await its parties.'⁵⁷² To cover all eventualities in a fair way will require an extensive document. And where there are extensive documents there are substantial bills!

Any attempt to set down in advance the responsibilities of parties could work against the interests of a party who had to undertake unexpected care work. That is likely to be a woman. As I have written:

Relationships are unpredictable and messy. The sacrifices called for can be unpredictable and obligations without limit. Ask any partner caring for their demented loved one. To seek to tie these down at the start of the relationship in some form of 'once and for all' summation of their claims against each other, ignores the realities of intimate relationships.⁵⁷³

Nor is it certain either that pre-nups will reduce litigation. There is ample room to challenge them. A person unhappy with the pre-nup could claim there was inadequate disclosure at the time of the agreement; they were not given adequate advice at the time of entering the agreement; there was undue influence or misrepresentation; the contract has been frustrated by later unforeseen events; that the contract is manifestly unfair. Further there might be all kinds of disputes over the correct interpretation of the wording of the pre-nup. Even if all of that were clear, many of the problems which beset the current law would still be there: non-disclosure of assets; attempts to dispose of assets; excessive expenditure. Indeed, whole new areas of dispute could arise if ownership of assets had to be determined for the purposes of the contract.⁵⁷⁴ At least under the current law the court does not normally have to determine issues of ownership on a divorce or dissolution. Jurisdictions which have enforced pre-nups have faced substantial levels of litigation challenging them.⁵⁷⁵ So a hefty lawyer's bill to get the pre-nup arranged in the first place and a hefty lawyer's bill to undo it when you divorce. No wonder pre-nups are so popular among the lawyers!⁵⁷⁶ And perhaps no wonder so few people choose to enter them.⁵⁷⁷

Perhaps the most significant argument against pre-nups is that financial orders on divorce should not reflect simply the interests of the two parties, as supporters of pre-nups seem to assume; they should also protect the interests of the state.⁵⁷⁸ For example, much of the case

⁵⁶⁹ George, Harris and Herring (2009).

⁵⁷⁰ *Gray v Work* [2015] EWHC 834 (Fam).

⁵⁷¹ Scherpe (2010).

⁵⁷² Paragraph 73.

⁵⁷³ Herring (2010b: 270). See also Reece (2016).

⁵⁷⁴ *F v F (Pre-Nuptial Agreement)* [2010] 1 FLR 1743.

⁵⁷⁵ Fehlberg and Smyth (2002).

⁵⁷⁶ George, Harris and Herring (2009).

⁵⁷⁷ Hitchings (2009a).

⁵⁷⁸ Herring (2005a).

law from *White* onwards has aimed to ensure women are not discriminated against. That work will be undone if parties are able to contract in a discriminatory way. It was left to Baroness Hale to bravely point out the gendered dimensions of the case (and, even more bravely, of the make-up of the Supreme Court):

Would any self-respecting young woman sign up to an agreement which assumed that she would be the only one who might otherwise have a claim, thus placing no limit on the claims that might be made against her, and then limited her claim to a pre-determined sum for each year of marriage regardless of the circumstances, as if her wifely services were being bought by the year? Yet that is what these precedents do. In short, there is a gender dimension to the issue which some may think ill-suited to decision by a court consisting of eight men and one woman.⁵⁷⁹

It should not be forgotten that the vast majority of pre-nups involve very wealthy men seeking to prevent their wives obtaining what the law regards as a fair share of assets on divorce.⁵⁸⁰ In *Gray v Work*⁵⁸¹ a husband worth over £155 million sought to rely on a pre-nup to restrict his wife to £71,000, to be paid over five years.

We do not give effect to employment contracts which allow an employer to discriminate against an employee or pay them below the minimum wage. Similarly, we should not give effect to pre-nups which allow a money-maker to discriminate against a child-carer.

Despite these points, the arguments relied upon by the House of Lords based on autonomy do chime with other moves in family law, which attach greater weight to autonomy.⁵⁸² The move to no fault divorce and increased use of mediation encourage parties to decide for themselves the nature of their legal relationship.⁵⁸³ Of course, many people will not be interested in pursuing pre-marriage contracts. Even the Beckhams have, apparently, decided against having a pre-nup on the basis that it is 'unromantic'.⁵⁸⁴ After all, you only want a pre-nup signed if you want to prevent a judge giving a fair share of the family property to your spouse. Why would you want to do that?

The position on pre-marriage contracts should be contrasted with unmarried couples where cohabitation contracts are enforceable.⁵⁸⁵ The difference is that cohabitation contracts cannot be seen as robbing the courts of any jurisdiction to redistribute property. Such contracts are rarely made, although they are increasing in popularity.⁵⁸⁶

E Periodic payments

As explained earlier, courts try to make clean break orders where possible. However, sometimes there is simply insufficient capital to ensure that future needs are met or adequate compensation for losses caused by the marriage is provided. In such a case the judge will seek to award monthly payments by way of a periodic payments order to meet the needs of the

⁵⁷⁹ Paragraph 137.

⁵⁸⁰ Ouazzani (2013).

⁵⁸¹ [2015] EWHC 834 (Fam).

⁵⁸² Centre for Social Justice (2010).

⁵⁸³ Franck (2009).

⁵⁸⁴ Barton (2008a). But see Barlow and Smithson (2012) for evidence that attitudes may be changing.

⁵⁸⁵ *Sutton v Mischon de Reya* [2003] EWHC 3166 (Ch), discussed in Probert (2004b).

⁵⁸⁶ Barlow, Burgoyne, Clery and Smithson (2008).

spouse. One difficult issue is to set the length of time for these orders. In the following case the key principles were helpfully summarised.⁵⁸⁷

KEY CASE: *SS v NS (Spousal Maintenance)* [2014] EWHC 4183 (Fam)

Mostyn J summarised the key principles governing spousal maintenance as follows:

- (i) A spousal maintenance award is properly made where the evidence shows that choices made during the marriage have generated hard future needs on the part of the claimant. Here the duration of the marriage and the presence of children are pivotal factors.
- (ii) An award should only be made by reference to needs, save in a most exceptional case where it can be said that the sharing or compensation principle applies.
- (iii) Where the needs in question are not causally connected to the marriage the award should generally be aimed at alleviating significant hardship.
- (iv) In every case the court must consider a termination of spousal maintenance with a transition to independence as soon as it is just and reasonable. A term should be considered unless the payee would be unable to adjust without undue hardship to the ending of payments. A degree of (not undue) hardship in making the transition to independence is acceptable.
- (v) If the choice between an extendable term and a joint lives order is finely balanced the statutory steer should militate in favour of the former.
- (vi) The marital standard of living is relevant to the quantum of spousal maintenance but is not decisive. That standard should be carefully weighed against the desired objective of eventual independence.
- (vii) The essential task of the judge is not merely to examine the individual items in the claimant's income budget but also to stand back and to look at the global total and to ask if it represents a fair proportion of the respondent's available income that should go to the support of the claimant.
- (viii) Where the respondent's income comprises a base salary and a discretionary bonus the claimant's award may be equivalently partitioned, with needs of strict necessity being met from the base salary and additional, discretionary, items being met from the bonus on a capped percentage basis.
- (ix) There is no criterion of exceptionality on an application to extend a term order. On such an application an examination should be made of whether the implicit premise of the original order of the ability of the payee to achieve independence had been impossible to achieve and, if so, why.
- (x) On an application to discharge a joint lives order an examination should be made of the original assumption that it was just too difficult to predict eventual independence.
- (xi) If the choice between an extendable and a non-extendable term is finely balanced the decision should normally be in favour of the economically weaker party.

⁵⁸⁷ See also *G v G* [2012] EWHC 167.

10 A discussion of the approach taken to financial orders by the courts

Before discussing the approach taken by the courts, it is worth recapping the central principles:

1. In all cases the overarching objective of the courts is to reach a fair result.
2. The courts will consider all of the factors listed in s 25 of the Matrimonial Causes Act 1973.
3. The court will be guided by the four principles of: meeting needs; sharing; compensation; and respecting autonomy. In most cases the principle of needs will determine the result.
4. Where there are more assets than needs, the courts will use equal division of all the couple's assets as a starting point. However, there may be a good reason why it is necessary to depart from equality in order to achieve a fair result. Good reasons might include the fact there are non-marital assets or the parties have made it clear they did not intend to share their assets.

There has been much debate over the rulings in *White v White* and *Miller; McFarlane*.⁵⁸⁸ Perhaps it is still too early to assess properly the impact of those decisions because its ramifications are still being worked out by the Court of Appeal. Even the argument that in all but exceptional cases the contributions of the money-earner and the child-carer/homemaker should be regarded as equal is controversial. Stephen Cretney asks:

is it far-fetched to suggest that there is something rather simplistic about the notion that home-making contributions are to be equated in terms of economic value with commercially motivated money-making activity? And even if right-thinking people now want to make such an equation, is this not essentially a matter of social judgment for decision by Parliament rather than the courts?⁵⁸⁹

Cretney's point about whether the approach in *White* was a matter for Parliament rather than the courts is a matter for debate. If the House of Lords felt that the lower courts' interpretation of the word 'contribution' in s 25 was effecting gender discrimination and was misconceived, was it not right to set out what the word should mean?⁵⁹⁰ That is a normal aspect of the House of Lords' role in statutory interpretation.

Francis has also challenged the assumption of equal contribution: 'If . . . a lazy spouse with round-the-clock support staff, who spends his or her life lunching and playing tennis is to receive half, how is the hard-working spouse who has assisted the other in running the (family) business, looked after the children and run the home to be rewarded?'⁵⁹¹ However, it is interesting that the principle of equality appears to accord with the general public's views on what is appropriate on the breakdown of a relationship. One study found that equal division was felt by many people to be a fair way of dividing matrimonial assets on divorce, although (*inter alia*) where one party had given up earning prospects to look after a child or there was fault in the ending of relationships many felt there should be a departure from equality.⁵⁹² Perhaps the response to Francis is that non-monetary contributions to marriage are so varied and valued by spouses in different ways that we cannot in each case calibrate the contribution.

⁵⁸⁸ See Duckworth and Hodson (2001); Eekelaar (2001a).

⁵⁸⁹ Cretney (2001: 3).

⁵⁹⁰ See the discussion in Hale (2009b).

⁵⁹¹ Francis (2006: 105).

⁵⁹² Lewis, Arthur, Fitzgerald and Maclean (2000).

What the courts are saying is that we assume in marriages that both parties are giving something and that they are different, but of equal value.

An aspect of *White* which has been less discussed by the courts and commentators is Lord Nicholls's argument that focusing on the needs of the party would mean that an older wife after a long marriage would receive less than a younger wife with a shorter marriage. Focusing on contributions rather than needs avoided this. Eekelaar has suggested that the shift in the approach of the courts indicated a shift from a welfare-based approach (meeting the needs of the parties) to an entitlement-based approach (what the spouse has 'earned' through the marriage).⁵⁹³ In other words, it is no longer a case of the money-earner having to give the child-carer/homemaker some of 'his' money; rather it is the court dividing the couple's joint assets. Opponents of this suggestion might argue that English and Welsh law clearly does not recognise community of property (i.e. that on marriage the couple's property becomes jointly owned).⁵⁹⁴

11 Consent orders

Increasingly, parties are being encouraged to resolve their financial disputes on divorce without going to court, either through negotiation between their lawyers, or more rarely through mediation. Further impetus is given by the Family Proceedings Rules 1999,⁵⁹⁵ which have as their aim the enabling of parties to reach agreement. If the parties do reach an agreement, it is normally incorporated into the form of a draft court order which is presented to court for formal approval. The court retains the power to examine the contents of the agreement and consider the factors in s 25 of the MCA 1973 (*Sharland v Sharland*⁵⁹⁶). Ward LJ in *Harris v Manahan*⁵⁹⁷ described the role of the court in these cases: 'the court is no rubber stamp nor is it some kind of forensic ferret'. In other words, the court will not blindly accept the parties' proposed orders, nor will it spend enormous effort considering the proposal with a high level of scrutiny.⁵⁹⁸ The court will assume that if the parties were advised independently then the terms are reasonable and will make an order on the terms agreed by the parties.⁵⁹⁹ Once the consent order has been made, it has the same legal effect as if it had been made by the court after a contested hearing.

A The status of agreement before a court order has been made

What if the parties have reached an agreement, but before the agreement is turned into a consent order by the court one of the parties seeks to resile from it?

⁵⁹³ Eekelaar (2001a).

⁵⁹⁴ *Miller; McFarlane* [2006] 2 FCR 213 at para 123. Eekelaar (2003c). Cretney's (2003c) suggestion that the recent case law had created a community of property regime was rejected in *Sorrell v Sorrell* [2006] 1 FCR 62 at para 96.

⁵⁹⁵ SI 1999/3491.

⁵⁹⁶ [2015] UKSC 60.

⁵⁹⁷ [1997] 1 FLR 205, [1997] 2 FCR 607.

⁵⁹⁸ Davis, Pearce, Bird *et al.* (2000) in empirical research found that there was rarely sufficient information before a judge properly to evaluate the proposed order.

⁵⁹⁹ *Xydhias v Xydhias* [1999] 1 FLR 683, [1999] 1 FCR 289.

The position is that the court must then hold a contested hearing, but, following *Macleod v Macleod*,⁶⁰⁰ then providing the agreement is in writing it will bind the parties, subject to three important caveats.⁶⁰¹ First, the agreement could be challenged because of the circumstances of the agreement. For example, if the parties were not adequately advised or if there was a misrepresentation or undue pressure. Second, it may be varied under s 35 MCA if there has been change of circumstance which would make the arrangement ‘manifestly unjust’⁶⁰² or where the agreement fails to make adequate provision for the child. Third, the court would not enforce the agreement if it was an improper attempt to ‘cast a public obligation on the public purse’. That would occur if the parties arranged the agreement on the basis that one spouse would claim benefits, even though the other spouse could easily afford to pay them maintenance.

It should be remembered that there is nothing to stop spouses entering into a contract as long as the contract does not prohibit either party from seeking financial provision orders. In *Soulsbury v Soulsbury*⁶⁰³ the husband promised to pay his wife a lump sum in his will if she did not enforce her claim for maintenance. As the agreement did not prevent the wife from seeking enforcement of the court order, it was a valid agreement.

12 Variation of, appeals against, and setting aside court orders

It may be that some time after the order has been made, one of the parties believes that the order is no longer appropriate. It may be that, since the making of the order, the needs of one of the parties has increased (for example, he or she suffers a serious injury following a car crash) or that one of the parties has greater resources (for example, he or she has won the national lottery). The courts have found these difficult cases because as Black LJ explained in *Critchell v Critchell*.⁶⁰⁴

it involved a conflict between two important legal principles and a decision as to which should prevail. One principle was that cases should be decided, so far as practicable, on the true facts and the other was that it was in the public interest that there should be finality in litigation.

One of the most dramatic examples of events after the making of an order which justified amending the order is *Barder v Barder (Caluori Intervening)*,⁶⁰⁵ where following a divorce the wife killed the family’s two children and committed suicide. In her will she left the property to her mother.⁶⁰⁶

It is important to distinguish three ways of challenging an order.

1. The applicant could apply to vary or discharge orders. The amount payable under a periodical payments order may be increased or decreased, or the order discharged and brought to an end.⁶⁰⁷ An application to vary an order is based on an argument that, although the order was correct at the time when it was made, subsequent events mean that the order

⁶⁰⁰ [2008] UKPC 64.

⁶⁰¹ The court developed the law from *Edgar v Edgar* [1980] 2 FLR 19.

⁶⁰² Paragraph 41.

⁶⁰³ [2007] 3 FCR 811.

⁶⁰⁴ [2015] EWCA Civ 436, para 22.

⁶⁰⁵ [1987] 2 FLR 480.

⁶⁰⁶ See also *WA v The Estate of HA (Deceased and Others)* [2015] EWHC 2233 (Fam).

⁶⁰⁷ MCA 1973, s 31.

should be varied to reflect the new positions of the parties. It is not possible to apply to vary a lump sum order.⁶⁰⁸

2. The applicant could appeal against an order. Here the claim is that there was a fundamental flaw in the judge's reasoning, and the order should not have been made.
3. The applicant could apply to have the order set aside. This is normally done on the grounds of fraud or non-disclosure of property,⁶⁰⁹ although not every non-disclosure will justify setting an order aside.⁶¹⁰ The approach is similar to an appeal but the crucial difference is that the application to set aside accepts that the correct decision was made by the judge on the facts as presented, but maintains that the other party misled the court into making the wrong order.

A Variation

The power of the courts to vary the order is highly controversial (unlike the power to vary or set aside the order which exists for all court orders). If the couple have divorced and an appropriate order is made by the court, why should the fact that, say, the husband wins the national lottery justify the wife in being entitled to more money? Looking back at the justifications discussed earlier in this section, apart from the contract approach the others would not seem to justify a claim to the lottery winnings. However, a case can be made to justify variation. This is that on divorce all too often there are not sufficient assets to make the order that the court may believe just, bearing in mind all the circumstances. For example, even though the marriage may be a long one and the wife may have contributed significantly to it through care of the children and the home, the husband may have disposed of his assets and so there are not enough to give her the level of income she deserves. In such a case, if the husband subsequently does receive a lottery winning and the court can now make the order which would be just and appropriate, should it not do so? Against this is the argument that court orders should represent finality, so that the parties can plan for the future. Further, there is a fear that the power to vary court orders may discourage the parties from seeking to improve their financial position. Payers may fear that if they increase their income the payee will apply to increase the level of payments; similarly, payees may be concerned that any improvement in their standard of living will lead to an application to reduce the level of payments.

(i) Which orders can be varied?

An application can be made to vary a periodical payments order.⁶¹¹ The court could increase, decrease or terminate the payments, or could vary for how long the payments are to be made. It can also terminate a periodical payments order and replace it with a lump sum order. Any application for variation must be made before the order expires.⁶¹² In other words, if the order states that periodical payments are to be made to the wife until 1 January 2013, the wife can only apply to extend the period of payments if she applies to do so before 1 January 2013. If a court wants to make an order for periodical payments which cannot be extended,

⁶⁰⁸ Unless it is a lump sum order in instalments.

⁶⁰⁹ *Bokor-Ingram v Bokor-Ingram* [2009] 2 FLR 922.

⁶¹⁰ *I v I (Ancillary Relief: Disclosure)* [2008] EWHC 1167 (Fam).

⁶¹¹ A lump sum order cannot be varied, unless it is a lump sum order payable in instalments (*Hamilton v Hamilton* [2013] EWCA Civ 13), discussed in detail in Horton (2013).

⁶¹² *Jones v Jones* [2000] 2 FCR 201.

an order under s 28(1A) of the MCA 1973 must be made.⁶¹³ On hearing an application for variation, the court could decide to terminate payments altogether.⁶¹⁴ The court can also vary a PPO by making an LSO in its place.⁶¹⁵ So if a husband had been paying a wife £1,000 per year maintenance and he acquired some capital, the court might decide to order him to make a lump sum payment of, say, £25,000 and then end his PPO. When making orders of this kind the court should use the lump sum as payment in place of the ongoing periodical payments order. It should not reopen arguments about how the couple's assets should be distributed.⁶¹⁶

As property adjustment orders (PAOs) and lump sum orders are designed to produce finality, the general principle is that they cannot usually be varied.⁶¹⁷

(ii) Factors to be taken into account

In considering variation of a PPO, the court will have regard to all the circumstances of the case, the first consideration being the welfare of the child. This includes any change in matters to which the court had regard when first making the order. Under s 31(7) of the MCA 1973, in considering variation the court is also to consider:

LEGISLATIVE PROVISION

Matrimonial Causes Act 1973, section 31(7)

- (a) . . . whether in all the circumstances and after having regard to any such change it would be appropriate to vary the order so that payments under the order are required to be made or secured only for such further period as will in the opinion of the court be sufficient to enable the party in whose favour the order was made to adjust without undue hardship to the termination of those payments;
- (b) in a case where the party against whom the order was made has died, the circumstances of the case shall also include the changed circumstances resulting from his or her death.

Section 31(7)(a) therefore specifically requires the court to consider the possibility of ending the payments altogether to enable the parties to become financially independent. Most cases for variation will involve a fundamental change in circumstances since the order was made,⁶¹⁸ although this is not essential according to the Court of Appeal in *Flavell v Flavell*.⁶¹⁹ In *North v North*⁶²⁰ the husband had been paying the wife nominal periodical payment orders. Some

⁶¹³ *Mutch v Mutch* [2016] EWCA Civ 370; *L v L (Financial Remedies: Deferred Clean Break)* [2011] EWHC 2207 (Fam); *Richardson v Richardson (No. 2)* [1997] 2 FLR 617, [1997] 2 FCR 453.

⁶¹⁴ *Penrose v Penrose* [1994] 2 FLR 621.

⁶¹⁵ MCA 1973, s 31(7B), as inserted by the Family Law Act 1996 (hereafter FLA 1996). See *Harris v Harris* [2001] 1 FCR 68 where the Court of Appeal refused to set down guidelines on how the power under this section should be used, although in *Cornick v Cornick (No. 3)* [2001] 2 FLR 1240 it was suggested that the principles in *White v White* could be applied.

⁶¹⁶ *Pearce v Pearce* [2003] 3 FCR 178.

⁶¹⁷ Although the time of payment can sometimes be changed: *Omelian v Omelian* [1996] 2 FLR 306, [1996] 3 FCR 329 CA.

⁶¹⁸ A party will be prevented from seeking to vary an order if they have led the other party to act to his or her detriment on an assumption that they will not apply for variation.

⁶¹⁹ [1997] 1 FLR 353, [1997] 1 FCR 332.

⁶²⁰ [2007] 2 FCR 601.

20 years after the divorce she had gone to Australia, lived a lavish lifestyle and used up her money. On her return to the United Kingdom, she sought an increase in the level of payments. The Court of Appeal held that the husband was an 'insurer against all hazards'. Here the wife had created her needs from her own extravagance or irresponsibility. The periodical payments should not be increased. In *Vince v Wyatt*⁶²¹ it was held that 'in order to sustain a case of need, at any rate if made after many years of separation, a wife must show not only that the need exists but that it has been generated by her relationship with her husband.' In that case the Supreme Court thought an application based on an award to acknowledge her contribution (through care of the children) was more likely to succeed than one based on needs. In *Hvorostovsky v Hvorostovsky*⁶²² the husband's income has increased substantially after the divorce (he was an international singer) and this justified an increase in the level of maintenance paid to the wife. The Court of Appeal emphasised that in such a case an ex-wife could not claim more than her reasonable needs.

On a hearing to vary a periodical payments order, the court should not reopen the division of capital. In *Lauder v Lauder*⁶²³ the husband became very wealthy in the years following the divorce. However, that did not justify the court varying the PPO to give the wife a share of his wealth. The court would only consider whether in the light of her current needs and the economic disadvantages caused to her by the marriage, there was a justification for increasing the order. As the current order met her needs, there was not.

There is a strict rule that if the spouse who is in receipt of periodical payments remarries then the payments will automatically come to an end.⁶²⁴ But what if she or he cohabits rather than remarries? In *Atkinson v Atkinson (No. 2)*⁶²⁵ the Court of Appeal rejected an argument that, as the wife was now cohabiting, the periodical payments should come to an end. However, the Court of Appeal accepted that the ex-wife's needs were less on the basis that her cohabitant could be expected to contribute to her household expenses and so the level of maintenance should be reduced. On the husband's behalf it was argued that an ex-wife who remarries should not be disadvantaged compared to an ex-wife who cohabits and that therefore cohabitation and marriage should automatically end the payments. The court rejected this argument, stating that if the court did end the wife's payments on cohabitation this would pressurise her into marrying her new cohabitant to ensure she had financial security. The court stated that it would be wrong for the law to place such pressure on her. This approach was recently approved by the Court of Appeal in *Fleming v Fleming*,⁶²⁶ where an argument that changing social attitudes meant that marriage and cohabitation should be treated in the same way in this context was rejected.⁶²⁷ However, in *K v K (Periodic Payment: Cohabitation)*⁶²⁸ Coleridge J thought that a cohabiting couple should strive towards financial independence from a husband.⁶²⁹ He thought the law had to acknowledge that a 'social

⁶²¹ [2015] UKSC 14.

⁶²² [2009] 2 FLR 1574.

⁶²³ [2008] 3 FCR 468.

⁶²⁴ Although this will not necessarily defeat a claim for a lump sum or for child maintenance: *Re G (Financial Provision: Liberty to Restore Application for Lump Sum)* [2004] Fam Law 332.

⁶²⁵ *Atkinson v Atkinson* [1995] 2 FLR 356, [1995] 2 FCR 353; *Atkinson v Atkinson (No. 2)* [1996] 1 FLR 51, [1995] 3 FCR 788.

⁶²⁶ [2003] EWCA Civ 1841.

⁶²⁷ Although the court decided that given the wife's cohabitation and current financial position there was no reason to extend the period of her periodic payments.

⁶²⁸ [2005] EWHC 2886 (Fam).

⁶²⁹ The husband had argued in that case that it was inconsistent that cohabitation prior to marriage could be taken into account when assessing the length of a marriage (*Co v Co* [2004] 1 FLR 1095), but was not relevant when considering termination of spousal maintenance.

revolution' had taken place in connection with cohabitation. Nothing in the earlier case law stopped a judge from deciding that in the light of the cohabitation periodical payments should cease. However, in *Grey v Grey*⁶³⁰ the Court of Appeal approved the approach in *Fleming*. So a judge should now consider what financial contribution the new cohabitant was making or could make, to the spouse's household and take that into account in assessing the level of periodic payments.⁶³¹

To deal with the problem with the spouse receiving payments living with someone else, it is possible to draft the PPO or PAO to cease if there is cohabitation. For example, a typical order relating to the home is 'the wife to have occupation of the former matrimonial home, sale of the property to be postponed until such time as she remarry or cohabit with another man'; a typical PPO is that 'the order for periodical payments shall terminate in the event of the wife's cohabitation with another man'.⁶³² There are difficulties with such orders. The first is the complexity of cohabitation. If the wife has a partner who visits her regularly, when does this amount to cohabitation?⁶³³ Further, such clauses can even lead to spying by the paying spouse to try to discover whether there is cohabitation.

In *Vaughan v Vaughan*⁶³⁴ an ex-wife sought to increase her period payments or to have them capitalised. The primary issue was that her husband had remarried. He argued that if he paid his ex-wife a capital sum that would leave his present wife in a vulnerable position if ever they were to split up. The Court of Appeal disagreed. Although it was proper for the court to take account of the husband's obligation to support his current wife, they should not consider the hypothetical possibility of him divorcing his current wife.⁶³⁵ Notably, the court thought it important that the ex-wife receive a level of maintenance that was adequate compensation for her loss of earning potential caused by the marriage.⁶³⁶

B Setting aside a consent order

Once a consent order has been made by the court, the court will be very reluctant to permit any challenges to the order. The following are examples of the circumstances upon which an application can be made to set aside a consent order:

1. *Non-disclosure*. The court, in deciding whether to set aside a consent order on the basis of non-disclosure, will consider whether the non-disclosure was fundamental enough to merit setting the order aside.⁶³⁷ In *Livesey v Jenkins*⁶³⁸ the House of Lords thought the failure by the wife to reveal that she was engaged to remarry was of sufficient importance that the order should be set aside. The test, their Lordships suggested, was that had the court been aware of the information that had not been disclosed it would have made a substantially different order. This test strikes the balance between on the one hand ensuring fairness between the parties and discouraging non-disclosure, and on the other hand preventing a large number of appeals on the basis of the tiniest non-disclosures.

⁶³⁰ [2010] 1 FCR 394.

⁶³¹ *Grey v Grey* [2010] 1 FCR 394.

⁶³² Hayes (1994).

⁶³³ See *X v Y (Maintenance Arrears: Cohabitation)* [2012] EWCC 1 (Fam); *Kimber v Kimber* [2000] 1 FLR 383 and discussion in Mahmood (2013).

⁶³⁴ [2010] 2 FCR 509.

⁶³⁵ In *Fields v Fields* [2015] EWHC 1670 (Fam) it was said to be 'totally impermissible and impossible' for the court to assess a wife's prospects of remarriage.

⁶³⁶ See also *McFarlane (No. 2)*. [2009] EWHC 891 (Fam)

⁶³⁷ *Kingdon v Kingdon* [2010] EWCA Civ 1251.

⁶³⁸ [1985] FLR 813.

A mistake as to value will not be sufficient to justify setting aside a court order.⁶³⁹ A particularly controversial issue has arisen in the following case:

CASE: *Sharland v Sharland* [2015] UKSC 60

The Supreme Court were asked what approach should be taken if it transpired that a consent order was obtained following a fraud. In negotiations the husband said he had no plans to sell his private company for at least seven years. However, it transpired that at the time of the negotiations he was planning to sell the company for hundreds of millions of dollars (although in fact that sale never went through). The Supreme Court placed much weight on the fact that in a normal contract law case if a person used fraud to persuade another person to enter into a contract, that contract would be set aside. They thought the same should be true if fraud was used to persuade a victim to agree to a financial agreement on divorce. They quoted Briggs LJ in the Court of Appeal who had said 'fraud unravels all'. The general principle was that a consent order procured by fraud should be set aside. The one exception was if the court was persuaded that even if the other party had known the truth of the fraud would have entered into the agreement anyway or, that had the court known of the fraud it would have made a significantly different order. The perpetrator of the fraud had to persuade the court the exception applied. Applying that to the case at hand it was clear that had the wife known of the fraud she would not have agreed to the proposal nor would the court have approved of the consent order. The consent order could, therefore, be set aside. The wife was entitled to re-open negotiations or if they failed seek a new court order.

It is important to remember that this case was one involving deliberate fraud.⁶⁴⁰ Where the fraud is not deliberate the victim must demonstrate that the error would have made a material difference to the outcome of the case.⁶⁴¹

The courts are faced with a difficult dilemma. They want to avoid being too ready to permit attempts to set aside consent orders. Court orders are intended to be final and allow the parties to move ahead. On the other hand there is much merit in the Supreme Court view that a fraudster should not be permitted to gain by misleading the other party or the court.

2. *Bad legal advice*. In *B v B (Consent Order: Variation)*⁶⁴² it was accepted that 'manifestly bad advice' could be a ground for setting aside a consent order. In *Harris v Manahan*⁶⁴³ the Court of Appeal seemed to restrict this to cases where there was an exceptional case of the 'cruellest injustice'. It might be more profitable in such cases for a person to bring negligence proceedings against his or her solicitors.

C Appeal

It is possible to appeal against a court order. However, there are time restrictions on when an application can be made. A crucial issue is when it is possible to appeal against an order out of time. This is particularly relevant in relation to clean break orders when variation cannot

⁶³⁹ *Judge v Judge* [2008] EWCA Civ 1458, [2009] 2 FCR 158.

⁶⁴⁰ *Diduck* (2016).

⁶⁴¹ *AB v CD (Financial Remedy Consent Order: Non-Disclosure)* [2016] EWHC 10 (Fam).

⁶⁴² [1995] 1 FLR 9, [1995] 2 FCR 62.

⁶⁴³ [1997] 1 FLR 205, [1997] 2 FCR 607.

be relied upon. There is a balance to be drawn between on the one hand ensuring there is finality of litigation, so that the parties are not constantly challenging the orders made in the court, while, on the other hand, it could be seen to be contrary to justice to uphold a judgment known to be based on a falsehood. The leading case is *Barder v Barder (Caluori Intervening)*,⁶⁴⁴ which suggested that an application to appeal out of time will occur only if the following conditions are shown:

1. The basis of the order, or a fundamental assumption underlining the order, has been falsified by a change of circumstances since the making of an order. Perhaps the most common example of this is where a valuation relied upon by the court of, for example, a business or a house, has proved inaccurate,⁶⁴⁵ although it should be stressed that an application for leave can only rely on an unsound valuation as the basis of appeal if they have sought leave as quickly as possible and are not at fault for the misvaluation.⁶⁴⁶ Even then the courts take the view that valuations are an 'inexact science' and so only if they are very badly wrong will they form the basis of a successful appeal.⁶⁴⁷ Where the value of the property has fallen as a result of fluctuation in the property market, that will not be a *Barder* event.⁶⁴⁸ Similarly, a mistake as to the value of an item by the parties will not be a *Barder* event.⁶⁴⁹ In *Williams v Lindley*.⁶⁵⁰ In *Williams v Lindley*⁶⁵¹ an order was made which included a lump sum to meet the wife's housing needs. A few weeks after the order was made the wife became engaged and subsequently married a very wealthy man. The Court of Appeal by a majority found that this destroyed the foundation of the order which was to meet her housing needs. However, the wife's death six weeks after the order in *Richardson v Richardson*⁶⁵² did not undermine the order as the basis of it was not to meet the needs of the wife, but to award her, her share of the marital property. In *Maskell v Maskell*⁶⁵³ it was held that the husband's redundancy could not be regarded as a supervening event. It was not an unpredicted event, but part of life's normal difficulties. In *Critchell v Critchell*⁶⁵⁴ a month after the order the husband of a not well-off couple unexpectedly obtained an inheritance. That was a *Barder* event as the order was premised on the need to enable the husband to pay off loans.
2. Such change is within a relatively short time of the order, usually two years at most.⁶⁵⁵ However, the court may be sympathetic if the applicant has applied as quickly as could reasonably be expected once he or she knew of the change of circumstances, especially in cases of fraud.⁶⁵⁶
3. The applicant must show that had the true situation been known or event foreseen the court would have made a materially different order.⁶⁵⁷

⁶⁴⁴ [1988] AC 20.

⁶⁴⁵ E.g. *Kean v Kean* [2002] 2 FLR 28.

⁶⁴⁶ *Kean v Kean* [2002] 2 FLR 28.

⁶⁴⁷ *B v B* [2007] EWHC 2472 (Fam).

⁶⁴⁸ *Horne v Horne* [2009] 2 FLR 1031.

⁶⁴⁹ *Walkden v Walkden* [2009] 3 FCR 25.

⁶⁵⁰ [2005] 1 FCR 813.

⁶⁵¹ [2005] 1 FCR 813.

⁶⁵² [2011] EWCA Civ 79.

⁶⁵³ [2001] 3 FCR 296.

⁶⁵⁴ [2015] EWCA Civ 436.

⁶⁵⁵ *Worlock v Worlock* [1994] 2 FLR 689 (four years after application and two years after change then 'far too late').

⁶⁵⁶ Although see *Burns v Burns* [2004] 3 FCR 263 where the applicant was so slow in bringing the matter to court that leave was not granted. However, note *Den Heyer v Newby* [2005] EWCA Civ 1311 where it was said that, if such a delay in bringing the matter to court was caused by the respondent's failure to make proper disclosure, the respondent could not complain.

⁶⁵⁷ *S v S (No. 2) (Ancillary Relief: Application to Set Aside Order)* [2010] 1 FLR 993.

4. The application for leave must have been made reasonably promptly once the change of circumstances was known about.
5. The granting of leave should not prejudice unfairly third parties who have acquired interests for value in the property affected.
6. Only in an 'exceptionally small number of cases' will these factors justify the overruling of a decision in a family law case.⁶⁵⁸

The Court of Appeal has said that *Barder* events are 'extremely rare'.⁶⁵⁹ In *Myerson v Myerson (No. 2)*⁶⁶⁰ there was a huge drop in the value of the husband's assets soon after the making of an order. The value of his assets were now 14 per cent of what they had been valued to be at the time of the order. However, this was held not to be a *Barder* event. It represented the normal process of price fluctuation. When he had agreed to the order, the husband had realised that his assets were volatile and could increase or decrease in value. In *Dixon v Marchant*⁶⁶¹ a husband claimed that his wife's remarriage just seven months after the making of a clean break order amounted to a *Barder* event. The majority of the Court of Appeal disagreed. The husband realised that a clean break order carried the risk the wife might remarry soon after it was made and so he would end up paying more than he would have done had he been paying periodical payments (which would stop on remarriage). Importantly, the court found that there was no evidence that the wife had deceived her husband during the negotiations leading up to the clean break order. The case can be contrasted with *Williams v Lindley*⁶⁶² where the wife's remarriage shortly after the making of a consent order did justify variation. In that case it seems that the wife's need for housing had dominated the negotiations prior to the order. As her housing needs were met on the unforeseen marriage so soon after the making of the order, this was held to be a *Barder* event.⁶⁶³

13 Reform of the law on financial support for spouses

There has been much criticism of the current state of the law. Coleridge J in *RP v RP*⁶⁶⁴ stated that:

After three decades of silence (1970–2000) when the House of Lords declined to give any guidance, there have now been two momentous decisions in six years. They run to hundreds of paragraphs. In addition they have been subjected to further interpretation in cases in the Court of Appeal and/or below. A new statute could not have had more far reaching social or forensic consequences. At present, on the ground, considerable confusion abounds.

He called for a plea for 'reflective tranquillity', concluding: 'Section 25 says it all, thereafter perhaps for the moment, the least said the better.'⁶⁶⁵

⁶⁵⁸ *Shaw v Shaw* [2002] 3 FCR 298 at para 44.

⁶⁵⁹ *Richardson v Richardson* [2011] EWCA Civ 79.

⁶⁶⁰ [2009] 2 FLR 147.

⁶⁶¹ [2008] 1 FCR 209.

⁶⁶² [2005] 1 FCR 269.

⁶⁶³ See Saunders (2011) for further discussion.

⁶⁶⁴ [2008] 2 FCR 613, at para 77.

⁶⁶⁵ This, notably, is at para 78 of his judgment.

Despite Coleridge J's wise words, the discussion has continued.⁶⁶⁶ The Law Commission has undertaken a consideration of the issue.⁶⁶⁷ Mary Walstead⁶⁶⁸ has written:

The law relating to ancillary relief oscillates in a schizophrenic manner as attempts are made by the judiciary to find overriding principles, such as the tripartite ones put forward in *Miller v MacFarlane*, to guide them through the discretionary morass of s 25 of the Matrimonial Causes Act 1973. No sooner than new principles are articulated, they are followed by decisions which erode them or expand them depending on the viewpoint of the judiciary.

The complaints about the current law are often exaggerated. The complexity of the issues raised by big money financial provision questions should not be underestimated. Any attempt to produce a clear formula to deal with these cases is unlikely to be sufficiently nuanced to provide the certainty so many crave. At least it would do so only at the cost of unfairness in individual cases. In fact, Emma Hitchings,⁶⁶⁹ in her study of 'everyday' cases, found little uncertainty in the law. She writes:

I would suggest that the findings in this study do not support the argument that the law of ancillary relief is uncertain and chaotic. At the everyday level at least, there does not appear to be a pressing need for additional principle to increase certainty of outcome. In the everyday case where needs dominate, the findings demonstrate that the advice given to clients is pretty consistent, subject to local court culture and the practicalities of the individual case.

It is suggested that the complexity that has been introduced has largely resulted from a reluctance to accept the principle of equality that was at the heart of the decision of the House of Lords in *White v White*. Indeed, much of the subsequent case law, and resulting complexity, can be seen as an attempt to diminish the significance of that decision. The concepts of marital and non-marital property, extra-ordinary contributions and pre-nups have been developed by the lower courts to mean that the significance of the principle of equality is diminished. Nearly always the post-*White* developments means the money-earner gets to keep much more than half of the assets, to the disadvantage of the homemaker and the child-carer.⁶⁷⁰

In recent years there has been some discussion about whether the law needs to be reformed to give it a clearer structure.⁶⁷¹ Although there have been many voices calling for change, there is little agreement over what system would be better.⁶⁷² There are a number of options that have been mooted including the following:

1. The Law Commission Report⁶⁷³ deals with three issues at the heart of the disputes over reform of the law: financial needs; marital agreements; and the concept of non-matrimonial property. In relation to needs the Report is clear that a couple have financial responsibilities which continue after divorce. The report considered the current law in relation to needs and determined no reform is necessary, although it would be helpful of the Family Justice Council produced clarification of the current approach. The Ministry of Justice has agreed that the Family Justice Council should do this.⁶⁷⁴ It leaves open the question of whether a

⁶⁶⁶ Harris (2008).

⁶⁶⁷ Law Commission Consultation Paper 208 (2012).

⁶⁶⁸ Walstead (2012).

⁶⁶⁹ Hitchings (2009b: 204).

⁶⁷⁰ Murray (2013).

⁶⁷¹ Barlow (2009b); Bailey-Harris (2005); Miles (2005); Bird (2002).

⁶⁷² Maclean and Eekelaar (2009).

⁶⁷³ Law Commission Report 343 (2014).

⁶⁷⁴ Ministry of Justice (2014b).

formula could be developed to provide broad guidance. The law seeks to balance the need to meet the core requirements of the parties, with the need to encourage the parties to be financially independent, a process which in some cases can take several years. This, the Commission believes, is the correct approach.

In relation to pre-nups the Law Commission has proposed that legislation is needed to clarify the law. It recommends the notion of ‘qualifying nuptial agreements’ (QNA) which would be enforceable contracts and not subject to the scrutiny of the courts. These QNAs could determine the financial consequences of divorce or dissolution. Before an agreement could be a QNA certain procedural requirements would have to be satisfied (such as the need for legal advice and disclosure) and they would have to meet the financial needs of both parties. These are summarised as follows:

- (a) The agreement must be contractually valid (and able to withstand challenge on the basis of undue influence or misrepresentation, for example).
- (b) The agreement must have been made by deed and must contain a statement signed by both parties that he or she understands that the agreement is a qualifying nuptial agreement that will partially remove the court’s discretion to make financial orders.
- (c) The agreement must not have been made within the 28 days immediately before the wedding or the celebration of civil partnership.
- (d) Both parties to the agreement must have received, at the time of the making of the agreement, disclosure of material information about the other party’s financial situation.
- (e) Both parties must have received legal advice at the time that the agreement was formed. It is recommended that it should not be possible for a party to waive their rights to disclosure and legal advice.

On the final issue of non-matrimonial property, the Law Commission felt that the current practice of the courts that non-matrimonial property (property acquired before the marriage or received during the marriage as a gift or inheritance) is not to be subject to the sharing principle.⁶⁷⁵

2. *Pre-marriage contracts*. We discussed arguments about these above. It might be possible to require people to make pre-marriage agreements as a pre-condition to marriage.
3. *Equal distribution*. Some have proposed that there should be a presumption of equality in distribution of assets.⁶⁷⁶ The Conservative Party’s Centre for Social Justice⁶⁷⁷ argues:

Our proposal on financial provision is that all assets of the couple on divorce should be categorised into marital assets and non-marital assets and divided differently. Marital assets should be divided equally subject to overriding calls on those assets, and non-marital assets should stay with the relevant spouse again subject to overriding calls on those assets and unless there is any good reason to make any distributive orders. Non-marital assets would be pre-marital assets, inheritances or gifts and certain post-separation assets with provision that some non-marital assets would become marital assets in particular circumstances and over time. The court would have power to make different orders if there was significant injustice but otherwise the present very wide discretion would be fettered.

⁶⁷⁵ See also Scherpe (2013).

⁶⁷⁶ Thorpe LJ (1998c).

⁶⁷⁷ Centre for Social Justice (2009), discussed in Hodson (2009).

That is close to the current law as it applies to big money cases, but it appears that they want it to apply to all cases. Their proposals should be understood bearing in mind they also would like to see pre-marriage contracts enforced unless they would cause significant injustice. The major concern with their equal division proposal is that in many cases there is an unequal division in order to meet the basic needs of the children and their carer. A strong equality approach would be likely to work against the interests of children and their carers.⁶⁷⁸ As Baroness Hale has acknowledged: 'Too strict an adherence to equal sharing and the clean break can lead to a rapid decrease in the primary carer's standard of living and a rapid increase in the breadwinner's.'⁶⁷⁹

4. *Unequal distribution*. In *Wachtel v Wachtel*⁶⁸⁰ Denning LJ suggested that the wife should be entitled to one-third of the family's assets. He explained that the husband would have to find 'some woman to look after his house', while it would be unlikely a woman would need to. This view has few supporters nowadays. It is clearly based on traditional gender roles and, even from its own sexist perspectives, overlooks the need of the wife to employ a handyman to help with house repairs!
5. *Formula*. John Eekelaar⁶⁸¹ has suggested an approach which attaches greater significance to the length of time the parties have lived together than the current law.⁶⁸² He explains that 'duration of marriage is an excellent proxy for measuring a number of factors which are important in achieving a "fair" outcome. They include: the degree of commitment to a relationship; the value of contributions made to it, which is not susceptible of straightforward economic measurement; and the extent of disadvantage undergone on separation.'⁶⁸³ By contrast, Thorpe LJ has stated: 'What a party has given to a marriage and what a party has lost on its failure cannot be measured by simply counting the days of its duration.'⁶⁸⁴ John Eekelaar accepts that in a lengthy marriage equality is appropriate, but where one party brings to the marriage substantial assets the poorer party should be regarded as gradually earning an increasing share in the other's assets. He suggests 2.5 per cent per annum, leading to an equal share after 20 years. Similarly, in relation to maintenance he suggests that the person who has taken on the majority of child care receive an award of 30 per cent of the income at the time of separation after a 20-year marriage, scaled down if the marriage is shorter. Payments should last for 60 per cent of the duration of the marriage.⁶⁸⁵

Eekelaar's argument is strongest when considering an extreme case: if, for example, a woman marries a multi-millionaire but the marriage lasts only a few weeks she should not be entitled to half the fortune. But if the marriage has lasted 30 years she has a strong claim for an equal share of the fortune. Against his argument is the view that it does not accord with how most couples understand their marriage and finances. The notion of the child-carer/homemaker day by day earning a little more in his or her spouse's assets is not one with which many couples would feel an affinity. Rebecca Bailey-Harris⁶⁸⁶ also argues that it is discriminatory that domestic contributions earn equal value only over time, whereas financial ones do not. Eekelaar responds to this comment by suggesting that unlike financial contributions homemaking is linked to duration. His point is that one

⁶⁷⁸ Wilson J (1999).

⁶⁷⁹ *McFarlane*, para 142. See also Hale (2011a).

⁶⁸⁰ [1973] Fam 72. See Douglas (2011c) for a discussion of the significance of this case.

⁶⁸¹ Eekelaar (2001a; 2003c).

⁶⁸² See also Ellman (2005).

⁶⁸³ Eekelaar (2006a: 756).

⁶⁸⁴ *Miller* [2005] EWCA Civ 984, para 34.

⁶⁸⁵ Eekelaar (2006a: 758).

⁶⁸⁶ Bailey-Harris (2003a).

day's housework cannot be worth more or less than one day's housework; however, the money-earner's value depends on the amount brought home. So homemaking can be valued only by time, but money-earning need not be.⁶⁸⁷ 'Homemaking for one day, however brilliantly done, is in itself of relatively little value,' he says. This, at least if it includes child care (as it appears to), is debatable. Would that be true of the day of birth? Or the day the child finally was helped by the parent to understand multiplication? Or the day the teenager was given comfort for their first broken heart?

6. *Societal changes.* Others argue that if there is to be financial fairness between spouses on divorce, some fundamental change in society is required. Diduck and Orton look forward to a better future:

Along with true equality in employment and pay and affordable good quality child care, an adequate valuation of domestic work would mean it would not be necessary that each partner play exactly the same role in wage earning . . . Roles in marriage could be adopted based on the partners' actual interests and skills. Maintenance on divorce would still sometimes be necessary, then, but it would no longer overwhelmingly be women who require it and it would no longer result in economic disadvantage for the recipient. Maintenance would be seen as a right, expected and earned, rather than as a gift, act of benevolence or based on a notion of women's dependency on men.⁶⁸⁸

As it is, many of the problems with finding a fair law of financial provision are due to the fact that we live in a flawed society with gendered inequalities in term of wages, child care, housework and discrimination, a society which does not recognise caring for others in financial terms. Given such a background, the law on financial provision is bound to fail. Much of the approach of the current law is based on trying to enable a woman to enter the job market or to compensate her for 'missing out' on employment. The assumption is that care work is not valuable and that the ideal wives should be striving for is to match the 'male' ideal of employment. An alternative would be to recognise the value of care work not just for the couple themselves, but for society in general.⁶⁸⁹

14 Conclusion

Ruth Deech opens her recent discussion of financial orders on separation by asking her readers to consider three sisters:

One is very pretty and marries a national footballer; they have no children and it is a short marriage before she leaves him for an international celebrity. The second sister marries a clergyman and has several children; the marriage ends after 30 years as he is moving into retirement. The third sister never marries; she stays at home and nurses first their mother, who has a disability, and then their father, who has Alzheimer's, and dies without making a will. Which of the three sisters will get the windfall: an amount sufficient to keep her in luxury for the rest of her days, when her relationship with a man comes to an end? And which one most needs and deserves financial support, even of the bare minimum? The message is that getting married to a well-off man is an alternative career to one in the workforce.⁶⁹⁰

⁶⁸⁷ The argument is less convincing if one includes as a contribution to the marriage not only money-earning, child care and household tasks, but also emotional support, love, etc.

⁶⁸⁸ Diduck and Orton (1994: 686–7).

⁶⁸⁹ Glennon (2010).

⁶⁹⁰ Deech (2009a).

Her implied message is that the current law on financial orders on separation has gone badly wrong. The undeserving footballer's wife ends up with millions, the carer of the demented father ends up with nothing. She is right that this seems unfair. But, of course, it does not follow that the problem is the award to the footballer's wife. It may be the real issue is the lack of provision for carers, rather than excessive awards to wives. And the way resources are distributed in the world is generally unfair.

This chapter has focused on the financial position of partners on the breakdown of their relationship. For many couples it is the financial support for children which is the key issue, with limited resources available for spousal support. For both married and unmarried couples, child support is calculated by means of a rigid formula, set out in the Child Support Act 1991. This is by contrast with the wide discretion the courts have to determine spousal support under the Matrimonial Causes Act 1973. The two systems reveal the contrasting benefits and disadvantages of rule-based and discretion-based systems. The section also reveals the different bases upon which financial support obligations are based. In *White v White* the House of Lords has stressed the importance of fairness between spouses, although in many ordinary cases it is enough of a struggle meeting the basic needs of the parties and the children, let alone considering broader theoretical concepts. Running through this chapter is the requirement for the law to be realistic. Imposing obligations which cannot be enforced, or requiring people to support those to whom they feel no particular moral obligation, is unlikely to result in an effective law. That said, finding a law on financial support for family members which is regarded as fair, reflects the social obligations which people feel, and is practicably enforceable, might be an impossible task.

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7

Domestic violence

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain and evaluate the definitions of domestic violence
2. Discuss the orders available under the Family Law Act
3. Analyse the response of the criminal law to domestic violence
4. Summarise the issues around parental abuse
5. Debate the theoretical issues around the response of the law to domestic abuse

1 Introductory issues

A Terminology and definitions

Learning objective 1

Explain and evaluate the definitions of domestic violence

There is no agreement over the correct terminology to be used to describe violence that takes place between adults in a close relationship. At one time it was common to talk about domestic violence or 'battered wives', but now the violence between those in close emotional relationships is seen as a wider problem, being restricted not just to wives nor even to domestic situations.¹ Despite its drawbacks, the term 'domestic violence' will be employed here because it has become so widely accepted.

In the Legal Aid, Sentencing and Punishment of Offenders Act 2012 the following definition of domestic violence is used:

domestic violence means any incident, or pattern of incidents, of controlling, coercive or threatening behaviour, violence or abuse (whether psychological, physical, sexual, financial or emotional) between individuals who are associated with each other.²

There are two things in particular to note about this definition. First, it is not restricted to physical attacks, but is widely drafted to include financial and emotional abuse. Secondly, it uses the

¹ See Kaganas (2007a) for a refutation of claims that women are often violent to men.

² Legal Aid, Sentencing and Punishment of Offenders Act 2012, Sch 1, para 12(9).

terminology 'associated person' which shall be explored later. This category is not restricted to people living together, but includes violence between family members.

This kind of wide definition is not universally supported. Helen Reece has expressed grave concern that employing a definition of domestic violence that includes emotional abuse is a 'remarkable downplaying of the physical'.³ Indeed, some have argued that domestic violence should be seen as but part of the spectrum of violence faced by women.⁴ The lines between domestic violence and stalking, sexual harassment, violence by children against parents, elder abuse, 'honour violence' and 'date rape' are not easy to draw.⁵

The Supreme Court has recently considered the definition of domestic violence:

CASE: *Yemshaw v Hounslow London BC* [2011] UKSC 3

The Supreme Court had to consider the definition of domestic violence, for the purpose of the Housing Act 1996. Ms Yemshaw was married and had two children, aged six and eight months. She was fearful of her husband. Although she accepted that he had never physically assaulted her, she claimed that he had inflicted emotional, psychological and financial abuse upon her. She applied to Hounslow Housing Authority for accommodation, after being forced from the matrimonial home by the alleged abuse. The Housing Authority refused to rehouse her. Under the Housing Act 1996 it only had to rehouse someone who had a house, if it was not reasonable for them to live there. The statute stated that it would not be reasonable if the owner was a victim of domestic violence. As she had not suffered violent touching, nor was there a probability of that, they determined there was no domestic violence. She sought a judicial review of their approach. The key question, therefore, centred on whether domestic violence was limited to actions of physical violence. The Court of Appeal supported the approach taken by the Housing Authority. The Supreme Court did not.

Lady Hale gave the leading judgment, with which Lords Hope and Walker agreed. She accepted that while physical force was an example of violence, it was not the only form of violence. Lady Hale also discussed a wide range of documents from national and international bodies showing that they did not restrict the concept of domestic violence to physical attacks (at [20] and [21]). She referred to reports from the United Nations Committee monitoring the Convention on the Elimination of all forms of Discrimination against Women; the General Assembly of the United Nations; the House of Commons Home Affairs Committee; the Law Commission; the National Inter-Agency Working Party; the Association of Chief Police Officers; the Crown Prosecution Service; the Ministry of Justice; the UK Border Agency, and even the London Borough of Hounslow itself (at [24]).

So if domestic violence is not to be restricted to touching, what is the correct definition of violence? Lady Hale (at [38]) adopted the definition from a practice direction, namely that it 'includes physical violence, threatening or intimidating behaviour and any other form of abuse which, directly or indirectly, may give rise to the risk of violence'.

Of course, it was not for the Supreme Court to rule on the ultimate outcome of the applicant's case for housing. It was remitted to the local authority to approach the question

³ Reece (2009a).

⁴ Kelly and Lovett (2005).

⁵ Stewart *et al.* (2006).

again with the benefit of their Lordships' judgment. Lady Hale (at [36]) helpfully set out what she regarded as the key questions the authority would need to address:

Was this, in reality, simply a case of marriage breakdown in which the appellant was not genuinely in fear of her husband; or was it a classic case of domestic abuse, in which one spouse puts the other in fear through the constant denial of freedom and of money for essentials, through the denigration of her personality, such that she genuinely fears that he may take her children away from her however unrealistic this may appear to an objective outsider?

Some commentators have complained that this approach does 'linguistic violence' to the definition of domestic violence.⁶ Others have welcomed the willingness of the courts to acknowledge that domestic violence is about 'coercive control' of the victim, which may be exercised in a range of ways, not all of which will involve an assault.⁷

The definition of domestic violence used by the Government has varied over time. In 2012 the Government announced a new definition:

Any incident or pattern of incidents of controlling, coercive or threatening behaviour, violence or abuse between those aged 16 or over who are or have been intimate partners or family members regardless of gender or sexuality. This can encompass, but is not limited to, the following types of abuse:

- psychological
- physical
- sexual
- financial
- emotional

Controlling behaviour is: a range of acts designed to make a person subordinate and/or dependent by isolating them from sources of support, exploiting their resources and capacities for personal gain, depriving them of the means needed for independence, resistance and escape and regulating their everyday behaviour.

Coercive behaviour is: an act or a pattern of acts of assault, threats, humiliation and intimidation or other abuse that is used to harm, punish, or frighten their victim.

This definition, which is not a legal definition, includes so called 'honour' based violence, female genital mutilation (FGM) and forced marriage, and is clear that victims are not confined to one gender or ethnic group.⁸

What is particularly notable about this definition is that it recognises that domestic violence is best understood as a pattern of behaviour, rather than a single incident. Further, that at its heart domestic violence is about controlling the other person and this can be done through a range of behaviours, including, but not limited to, physical attacks. As Evan Stark explains:

most abused women have been subjected to a pattern of sexual mastery that includes tactics to isolate, degrade, exploit, and control them as well as to frighten them or hurt them physically . . . These tactics include forms of constraint and the monitoring and/or regulation of commonplace activities of daily living, particularly those associated with women's default roles as mothers, homemakers, and sexual partners, and run the gamut from their access to money, food, and transport to how they dress, clean, cook, or perform sexually.⁹

⁶ Knight (2012).

⁷ Herring (2011b).

⁸ Home Office (2012).

⁹ Stark (2012).

Not everyone approves of this broader understanding of domestic violence. Brendon O'Neill¹⁰ complains: 'the everyday emotional ups and downs of living together, of commitment itself, are now treated by officialdom as terrible instances of "abuse" which might require the intervention of the state.'

Michael Johnson has suggested we can separate three forms of domestic violence:¹¹

1. 'Intimate terrorism' (IT) – When one intimate partner uses a variety of tactics to exert power and control over another;
2. 'Situational couple violence' (SCV) – When an argument between partners gets 'ugly' and escalates out of control; and
3. 'Violent resistance' (VR) – When a victim, usually a female, uses violence to retaliate against being abused.

Not everyone would agree that the third category should be regarded as domestic violence at all. Nevertheless, this categorisation is helpful in bringing out the different contexts in which domestic violence can occur. Under his model it is 'intimate terrorism' which is the most serious form of domestic violence.

Michelle Madden Dempsey has suggested that we need to draw a distinction between domestic violence in the 'strong sense' and domestic violence in the 'weak sense'. Domestic violence in a 'strong sense' requires the intersection of three elements – illegitimate violence, domesticity and structural inequality in the relationship¹² – while domestic violence in its 'weak sense' only requires domesticity and structural inequality. Adopting this approach it is possible to recognise that violence is especially serious, while still retaining the label of domestic violence for not physical but abusive behaviour.¹³ As Ward LJ has acknowledged: 'Domestic violence, of course, is a term that covers a multitude of sins. Some of it is hideous, some of it is less serious.'¹⁴ This distinction between domestic violence in its strong sense and in its weak sense is, Madden Dempsey suggests, helpful if there are limited resources at the hands of prosecutors. They should focus on prosecuting domestic violence in the strong sense, although she is certainly not opposed to prosecution of cases involving domestic violence in the weak sense.

There are two aspects of Madden Dempsey's analysis, which are controversial. First, she emphasises the role played by structural inequality. She explains that this involves not only considering the ways in which domestic violence can involve and build on coercive control exercised by one party over the other.¹⁵ It also reflects and is reinforced by sexist structures within society.¹⁶ Madden Dempsey explains:

the patriarchal character of individual relationships cannot subsist without those relationships being situated within a broader patriarchal social structure. Patriarchy is, by its nature, a social structure – and thus any particular instance of patriarchy takes its substance and meaning from that social context. If patriarchy were entirely eliminated from society, then patriarchy would not exist in domestic arrangements and thus domestic violence in its strong sense would not exist . . . Moreover, if patriarchy were lessened in society generally then *ceteris paribus* patriarchy

¹⁰ O'Neill (2013).

¹¹ Johnson *et al.* (2010: 2).

¹² See Madden Dempsey (2006: 332) for a very useful article on the definition of domestic violence. See also Kelly and Johnson (2008).

¹³ In a later work she has replaced 'structural inequality' in the relationship with 'domesticity': Madden Dempsey (2009: ch. 6).

¹⁴ *Re P (Children)* [2009] 1 FLR 1056, para 12.

¹⁵ Stark (2007).

¹⁶ Carline and Eastal (2016).

would be lessened in domestic relationship as well, thereby directly contributing to the project of ending domestic violence in its strong sense.¹⁷

For Madden Dempsey, then, domestic violence must be understood in its broader social context, as supporting and reinforcing patriarchy. This makes it particularly important that the state takes it seriously and seeks to stop it.

Not everyone is convinced by the emphasis placed on the broader social context.¹⁸ It might be seen as moving responsibility away from the abuser. The emphasis on patriarchy also might be seen as making it harder to understand domestic violence on men and violence in same-sex relationships.¹⁹ One response is to say that domestic violence which is male on female is more serious than other forms of domestic violence because of the broader social context. However, that would be a controversial point of view.

A second controversial issue raised by Madden Dempsey's analysis is the emphasis placed on violence, which elevates a case up to a strong case of domestic violence. To some it is wrong to see physical violence as necessarily worse than emotional harm. The physical effects of torture may not be as long lasting as the emotional impacts. If domestic abuse is about control, emotional abuse may be more effective than physical violence.

Considering the social context of the behaviour raises a different issue: to what extent is the phrase 'domestic violence' a 'culturally specific term'? What this means is that the understanding of domestic violence is determined by the norms of a particular culture.²⁰ So, in some cultures, if a husband refused to permit his wife to leave the home unaccompanied, this would not be regarded as abuse, whereas in other cultures it might be seen as dignifying. There are real difficulties here. Should the definition of abuse be determined by the victim or by society? Are there rights that should not be infringed even if it is acceptable to do so in a particular culture? This refers back to the discussion of cultural pluralism that was undertaken in Chapter 1. One difficulty is that victims do not necessarily regard themselves as victims of domestic violence.²¹ A woman might think that she deserved to be hit, for example, or that pushing and punching is normal in intimate relationships. Smart and Neale have found that the versions of events given by men and women of an incident of domestic violence are often quite different.²² Sadly too often the courts fail to see the severity of violence. In *R v Widdows*²³ a couple had lived together for nearly two years during which the man raped the woman and subjected her to a series of violent assaults. The Court of Appeal nevertheless felt it appropriate to describe the relationship as 'predominantly affectionate'.

B Domestic violence and gender

The vast majority of domestic violence takes place against women.²⁴ This is not to say that men are never the subject of domestic violence. But, most violence by women against men is quite different from violence by men against their female partners because women's violence is often in self-defence or an isolated incident.²⁵ It is very rare for women's violence against

¹⁷ Madden Dempsey (2007).

¹⁸ Reece (2016).

¹⁹ Cowan (2014).

²⁰ See also Patel (2009) writing on 'dowry abuse'.

²¹ Smart and Neale (1999a).

²² Smart and Neale (1999a).

²³ *R v Widdows* [2011] EWCA Crim 1500.

²⁴ Hester (2013).

²⁵ Hester (2012).

men to be part of an ongoing oppressive relationship.²⁶ Also where men are the victims the injuries involved tend to be less serious.²⁷ Despite this a study by Hester found that where women are assessed by the police to be the perpetrator of domestic violence they are three times more likely to be arrested than men.²⁸ She suggests that in many of the cases of arrest the women were in fact using force in self-defence:

male domestic violence suspects were able to influence decisions made by officers at the scene of the crime, minimising their own role as primary aggressors and making women who were the victims appear as perpetrators.²⁹

Domestic violence can also include abuse against elderly people. This raises particular issues and will be considered separately in Chapter 13. The issue of children who are violent to their parents will be discussed further towards the end of this chapter. Indeed recent research into domestic violence is picking apart the ways in which race, class, disability and sexuality can interact, so that the experience of domestic violence of a disabled black woman may be different from that of an affluent white woman.³⁰

C The incidence of domestic violence

The occurrence of domestic violence is often underestimated in the public consciousness. Giddens has written: 'The home is, in fact, the most dangerous place in modern society. In statistical terms, a person of any age or of either sex is far more likely to be subject to physical attack in the home than on the street at night.'³¹ It is not easy to gather comprehensive statistical information on domestic violence, given that so little of it is reported.³² However, the following shocking array of statistics demonstrates the prevalence of domestic violence:

KEY STATISTICS

- Domestic violence is the largest cause of morbidity worldwide in women aged 19–44, greater than war, cancer or motor vehicle accidents.³³
- A third of women in Europe reporting suffering physical or sexual abuse since the age of 15 and 8% at some point in the past 12 months.³⁴
- In England and Wales, 28.3% of women (an estimated 4.6 million women) have experienced domestic abuse since the age of 16.
- On average the police receive an emergency call relating to domestic abuse every 30 seconds.³⁵

²⁶ Dobash and Dobash (2004: 343); Day Sclater (2000: 105–6).

²⁷ Buzawa and Buzawa (2003: 13).

²⁸ Hester (2012).

²⁹ Hester (2013).

³⁰ Nixon and Humphreys (2010). And see further for ethnicity, Thiara and Gill (2010); same sex-relationships, Donovan (2016); Kaganas (2007a) and Donovan and Hester (2011); disabilities, Hague, Thiara and Mullender (2010).

³¹ Giddens (1989).

³² Home Affairs Select Committee (2008).

³³ Home Affairs Select Committee (2008: 1).

³⁴ *The Guardian* (2014).

³⁵ Women's Aid (2016).

- 33% of all assaults which cause injury which are reported to the police are domestic violence.³⁶ On average two women are killed by their partner or ex-partner every week in England and Wales.³⁷ 47% of all female murder victims are killed by a current or former partner.³⁸
- Domestic violence cases now account for 14.1% of all court prosecutions. 92.4% of defendants were male and 7.6% were women. 84% of victims were female and 16% were male.³⁹ Mooney found that 61% of women questioned said that they could imagine their male partners using violence against them in a hypothetical scenario.⁴⁰
- A recent survey of disadvantaged youth found over half of girls reported being the victim of physical violence in the partner relationship.⁴¹ Another survey of teenage girls found that 31% thought it acceptable for a boy to be 'aggressive' to his girlfriend if he thought she had been unfaithful to him.⁴²
- There are significant financial costs which fall on the state as a result of domestic violence. Domestic violence is estimated to have cost England £5.5 billion in 2011.⁴³
- Of women who had been the subject of domestic violence who left home, 76% suffered continued violence.⁴⁴
- 30% of cases of domestic violence start during the victim's pregnancy.⁴⁵
- On average, women are attacked 35 times before seeking assistance.⁴⁶ One study looking at only the very worst cases of domestic violence found that only 23% were reported to the police.⁴⁷
- Around 50% of women in contact with mental health services have experienced child sexual abuse; a significant number have also suffered abuse as adults. The majority of women in prison have a background of child abuse or domestic violence.⁴⁸
- In the United Kingdom, one in four young people, aged 10 to 24, reported that they experienced domestic violence and abuse during their childhood.⁴⁹

An issue of particular recent concern is the impact of domestic violence on children.⁵⁰ There is widespread acceptance that children raised in a household where there is domestic violence suffer in many ways, as compared to households where there is not.⁵¹ This includes psychological disturbance and often a feeling that they are to blame for the violence.⁵² The impact of the domestic violence on the mother may itself harm the child.⁵³ Indeed, one study of children who had suffered abuse showed that 39 per cent of them had come from families in

³⁶ HMIC (2014).

³⁷ Women's Aid (2016).

³⁸ Thompson (2010).

³⁹ Women's Aid (2016).

⁴⁰ Mooney (2000).

⁴¹ Wood, Barter and Berridge (2011).

⁴² BBC Newsonline (2005b).

⁴³ Trust for London (2011).

⁴⁴ Humphreys and Thiera (2002).

⁴⁵ Home Office (2003a: 20). See also Burch and Gallup (2004).

⁴⁶ Falconer (2004).

⁴⁷ Walby and Allen (2004).

⁴⁸ Home Office (2009).

⁴⁹ HMIC (2014).

⁵⁰ Hester (2009).

⁵¹ Kitzmann *et al.* (2003); Mullender *et al.* (2002); Humphreys (2001).

⁵² Barnardo's (2004).

⁵³ Radford and Hester (2006).

which there was domestic violence.⁵⁴ Marianne Hester found that children were present in 55 per cent of cases of domestic violence.⁵⁵ Ten per cent of children who witnessed domestic violence witnessed their mother being sexually assaulted.⁵⁶

D Causes of domestic violence

The explanations of the causes of domestic violence fall into three categories:⁵⁷

1. *Psychopathological explanations.* These tend to see the problem of domestic violence as flowing from the psychological make-up of the abuser. It is said that domestic violence is caused by the abuser having an underdeveloped personality, including an inability to control his anger or deal with conflict. There is also a strong link between alcohol and abuse, although the alcohol may just exacerbate other factors.⁵⁸ Some even argue that male violence is natural, pointing to the fact that male animals are more violent than female animals. The psychopathological approach is criticised by others on the ground that pathology cannot be the only explanation for domestic violence, as abusers are able to control their tempers outside the home, when dealing with people at work, for example. The Government has sought opinions on whether there should be a register of domestic violence abusers.⁵⁹
2. *Theories about the position of women in society.* These theories focus on patriarchy and the domination of women by men, throughout society.⁶⁰ One argument is that the attitude of the law and state authorities perpetuates abuse. Society, through the multifarious ways that men are permitted to exercise power over women, makes domestic abuse appear acceptable to the abuser. This can be supported by evidence which shows that violence often occurs when women do not fulfil their traditional roles and men use violent means to reassert their authority.⁶¹ Further, the lack of an effective response by the law means that women are unable to find suitable ways to escape from abuse.⁶² Elizabeth Schneider states:

[H]eterosexual intimate violence is part of a larger system of coercive control and subordination; this system is based on structural gender inequality and has political roots . . . In the context of intimate violence, the impulse behind feminist legal arguments [is] to redefine the relationship between the personal and the political, to definitively link violence and gender.⁶³
3. *The family relationship.* Some argue that the failure of family relationships leads to domestic violence. Poor communication skills or volatile partnerships are to blame as the causes of violence.⁶⁴ This is a controversial approach, because it suggests that it is the fault of both the abuser and the victim that the violence has occurred. It also fails to explain why it is the man rather than the woman who is usually violent.

⁵⁴ Farmer and Pollock (1998).

⁵⁵ Hester (2009). According to a study by the charity Barnardo's (2004) in nine out of 10 cases of domestic violence children are in the room of, or in the room next door to, the violence.

⁵⁶ Mullender (2005).

⁵⁷ A useful discussion on the causes of domestic violence is found in Miles (2001: 80–7).

⁵⁸ See Home Office (2004) on the links between alcohol and domestic violence.

⁵⁹ Home Office (2003a: 36).

⁶⁰ See, for example, Hanmer (2000).

⁶¹ Herring (2011b).

⁶² Hester and Westmarland (2005).

⁶³ Schneider (2000a: 5–6).

⁶⁴ Borkowski, Murch and Walker (1983).

The truth, no doubt, is that domestic violence occurs as a result of the complex interaction between these and many other factors.

E The development of the law on domestic violence

A famous statement of the lawyer Hale describes the attitude of the law to domestic violence in the past: he suggested that a husband could beat his wife with a stick no wider than his finger.⁶⁵ This was seen as an aspect of the husband's right to control his household. The law did not really recognise domestic violence until the feminist movement brought it to the attention of a male-dominated media and legislature in the 1970s. It was either regarded as so rare as not appropriate for legal intervention, or as simply part of the 'rough and tumble of marital life'. It was the refuge/shelter movement and the growth of feminist writings, in particular *Scream Quietly or the Neighbours Will Hear* by Pizzey, which made domestic violence a public issue.⁶⁶

A series of statutes was passed by Parliament, presenting a rather haphazard scheme of protection: Matrimonial Homes Act 1967; Domestic Violence and Matrimonial Proceedings Act 1976; and Domestic Proceedings and Magistrates' Courts Act 1978. We will not go into the details of these pieces of legislation, but they displayed a confusing array of law. The three Acts used different criteria; were available to different kinds of relationships; used different courts; and provided different kinds of remedies. In addition to the statutes, the courts sometimes relied upon their power to make orders under tort and the courts' inherent jurisdiction.⁶⁷ The Family Law Act 1996 was introduced in an attempt to bring coherence to the civil remedies for domestic violence. The increased interest in protecting human rights led to arguments that safeguarding victims of domestic violence was an aspect of protecting their human rights.⁶⁸ In 2012, Britain signed a Council of Europe Convention on Preventing and Combating Violence Against Women, although it has yet to ratify it.⁶⁹

To understand fully the law on domestic violence it is necessary to appreciate aspects of criminal law, tort law and housing law, as well as legislation specifically designed to deal with domestic violence.⁷⁰ Traditionally, a distinction has been drawn between civil proceedings and criminal proceedings. In civil proceedings it is the victim herself who is bringing the proceedings to pursue applications against the abuser, as compared with the criminal law, where the proceedings are brought on behalf of the state. The rest of the discussion here will proceed as follows. First, we will consider the injunctions and orders that can be obtained to protect a victim of domestic violence from abuse under the Family Law Act 1996. Secondly, the remedies available under the Protection from Harassment Act 1997 will be examined. Thirdly, the section will outline the provision of alternative accommodation by local authorities to victims of domestic violence. Fourthly, it will consider the criminal law's response to this problem. The section will end with a consideration of why the law finds domestic violence such an intractable problem.

⁶⁵ Cited in Doggett (1992).

⁶⁶ Pizzey (1978).

⁶⁷ Reserved by s 37 of the Senior Courts Act 1981 and s 38 of the County Courts Act 1984.

⁶⁸ Choudhry and Herring (2006a).

⁶⁹ Peroni (2016).

⁷⁰ Humphreys, Hester, Hague *et al.* (2002) discuss the importance of a multifaceted response to domestic violence.

2 Injunctions and orders under the Family Law Act 1996

Learning objective 2

Discuss the orders available under the Family Law Act

Here we will consider orders available under the Family Law Act 1996. There are essentially two kinds of order available. The victim of domestic violence (the applicant) can seek a court order that the abuser (the respondent), first, does not molest her and, secondly, that he leave and stay away from the family home. These are known as non-molestation orders and occupation orders respectively. Both are primarily designed to deter the respondent from abusing the applicant in the future. If he does so in breach of a non-molestation or occupation order, he could face imprisonment.

A The non-molestation order

The non-molestation order is an order that one party does not molest the other.⁷¹ Molestation is not defined in the Act but includes conduct that harasses or threatens the applicant. Such an order is less intrusive than an order forcing someone to leave his or her home and so is more readily and widely available than an occupation order. Indeed, many acts that would constitute molestation are crimes (especially after the Protection from Harassment Act 1997). So viewed, the non-molestation order can be regarded as odd – an order that someone not commit a crime against another. Cynics argue that the use of non-molestation orders is merely a means of delaying treating domestic abuse as a crime.

(i) Who can apply for a non-molestation order?

There was much debate over who should be able to apply for non-molestation injunctions under the Act. On the one hand, there was a desire that people who needed protection receive it; on the other hand, if too many people could seek non-molestation injunctions this could lead to excessive litigation. For example, it was thought inappropriate that disputes between neighbours and employees should be resolved by using non-molestation injunctions. Under the Act only associated persons can apply for a non-molestation order. 'Associated persons' are defined in s 62(3). Before listing those who come under this heading, it is important to note that Wall J in *G v F (Non-Molestation Order: Jurisdiction)*⁷² suggested that if it is unclear whether the relationship between two people falls within one of these definitions, it should be treated as if it does. Indeed, he thought that unless it was clear that the couple were not associated, it should be presumed that they were. A person is associated with another person if:

1. They are or have been either civil partners or married to each other.
2. They are cohabitants or former cohabitants. Under s 62(1)(a) 'cohabitants' are defined as 'two persons who are neither married to each other nor civil partners of each other but are living together as husband and wife or as if they were civil partners'. In *G v F (Non-Molestation Order: Jurisdiction)*⁷³ the respondent stayed with the applicant a few nights a week in her home and she visited him for two nights a week at his home. Wall J held that this should be regarded as cohabitation. Particular weight was placed on the fact that they had had a sexual relationship, had lived in the same household, and had had a joint account.⁷⁴

⁷¹ Family Law Act 1996 (hereafter FLA 1996), s 42.

⁷² [2000] 2 FCR 638.

⁷³ [2000] 2 FCR 638.

⁷⁴ See *Clibbery v Allan* [2002] 1 FLR 565 where the couple were not found to be cohabiting.

3. They have or have had an intimate personal relationship with each other which is or was of a significant duration. This category was added in by the Domestic Violence, Crime and Victims Act 2004. Before then couples who were going out together but not actually cohabitants or were not engaged could not apply for non-molestation orders as they were not associated people. Now they are. We will look forward to the courts' attempts to define an 'intimate personal relationship' and 'significant duration'. District Judge Robert Hill has suggested that it is unclear whether a relationship of 'several months' will be of 'significant duration'.⁷⁵ Other people will regard a relationship of 'several months' as a lengthy one and believe that a relationship lasting over a week is of 'significant duration'. Given the approach in *G v F (Non-Molestation Order: Jurisdiction)*,⁷⁶ it may well be that borderline cases will be included in the definition.
4. They live or have lived in the same household, otherwise than merely by reason of one of them being the other's employee, tenant, lodger or boarder. This category includes many people living together and would cover, for example, students living together in a student house; or two elderly people sharing accommodation companionably. A sexual relationship is not required. It should be noted that just because one of a couple is the other's employee, tenant, lodger or boarder does not mean the couple are necessarily excluded: the question is whether they live together merely because of that relationship. So if a landlord and tenant are lovers, they may be associated. Under this heading a child may claim to be associated with a parent and therefore be entitled to apply for a non-molestation order against a parent.⁷⁷
5. They are relatives. This is given a very wide definition in s 63(1):
 - (a) the father, mother, stepfather, stepmother, son, daughter, stepson, stepdaughter, grandmother, grandfather, grandson, or granddaughter of that person or of that person's spouse or former spouse; or
 - (b) the brother, sister, uncle, aunt, niece, nephew or cousin (whether of the full blood or of the half blood or by affinity) of that person or of that person's spouse or former spouse; and includes, in relation to a person who is cohabiting or has cohabited with another person as husband and wife, any person who would fall within paragraph (a) or (b) if the parties were married to each other.

This is a wide definition and is rather arbitrary. It includes, for example, a former cohabitant's half-niece, although it does not include cousins.

6. They have agreed to marry one another or enter a civil partnership (whether or not that agreement has been terminated). It should be stressed that this is not as broad a category as it may at first appear. This is because there are only three ways one can prove that there is an agreement to marry.⁷⁸ First, that there is evidence in writing of the agreement to marry. Secondly, that there was the gift of an engagement ring by one party to the agreement to the other in contemplation of the marriage. Thirdly, that there was a 'ceremony entered into by the parties in the presence of one or more other persons assembled for the purpose of witnessing the ceremony'.⁷⁹ There has been some debate over whether an engagement

⁷⁵ Hill (2005: 283).

⁷⁶ [2000] 2 FCR 638.

⁷⁷ *Re Alwyn (Non-Molestation Proceedings By A Child)* [2010] 1 FLR 1363.

⁷⁸ FLA 1996, s 44. See Civil Partnership Act 2004, s 73 for the definition of a 'civil partnership agreement'.

⁷⁹ FLA 1996, s 44.

party would be sufficient for the third method of proof. It seems unlikely that a court would accept a party as 'a ceremony', although a religious service on engagement would certainly be sufficient. It is rather odd that if a couple can prove that they are engaged, but not in one of the ways above, they would not necessarily be associated. It should be noted that a formerly engaged couple can only apply for a non-molestation order if the agreement to marry was terminated less than three years previously.⁸⁰ There are no restrictions in the statute on the means of proving the termination of the agreement.

7. In relation to any child, a parent of a child or someone who has parental responsibility for the child. In relation to any child who has been adopted, the natural parent of the child; a parent of the natural parent; or a person with whom a child has been placed for adoption.
8. They are parties to the same family proceedings (other than proceedings under Part IV of the 1996 Act). Family proceedings are defined in s 63. The list includes, for example, parties to a contact application. The list also includes the Adoption Act 1976 and so if there was tension between the potential adopters and the genetic parents an application for a non-molestation injunction can be made.

If the applicant is associated with the respondent, she can apply for a non-molestation injunction against him, even if the dispute between them is not a family dispute. In *Chechi v Bashier*⁸¹ the Court of Appeal rejected the argument that the Family Law Act 1996 could not apply to two brothers who had a business dispute. Although their dispute was not a family one, they were associated by virtue of being brothers and so the court had jurisdiction to make a non-molestation order.⁸²

Helen Reece has argued that isolation and inequality are the touchstones of the rationale of domestic violence.⁸³ These are experienced by those female cohabitants suffering domestic violence as part of an ongoing unequal relationship, from which there is no easy exit, but not non-cohabiting relatives.⁸⁴ Reece argues that the wide definition used by the Family Law Act 1996 loses sight of the fact that domestic violence involves the abuse of unequal cohabiting relations.

The court can make a non-molestation order on its own motion.⁸⁵ This might be appropriate where the court decides that a party or a child needs the protection of the order but is for some reason (maybe fear) unwilling to apply for the order.⁸⁶ Similar concerns have led to s 60 being inserted into the 1996 Act, which permits approved third parties to bring proceedings on behalf of victims of domestic violence. This provision is, however, yet to be brought into effect.

A child can apply for an order with the leave of the court if he or she is under the age of 16 but the 'court may grant leave for the purposes of subsection (1) only if it is satisfied that the child has sufficient understanding to make the proposed application for the occupation order or non-molestation order'.⁸⁷ In making its decision the court is likely to consider the kinds of factors that are relevant when a child applies for an order under the Children Act 1989.⁸⁸

⁸⁰ FLA 1996, s 44(4).

⁸¹ [1999] 2 FLR 489.

⁸² But declined to do so.

⁸³ Reece (2006a).

⁸⁴ Reece's (2006a) survey of the statistics indicates that violence between relatives outside the context of cohabitation is very rare.

⁸⁵ But only to protect parties to the proceedings before it.

⁸⁶ FLA 1996, s 42(2).

⁸⁷ FLA 1996, s 43.

⁸⁸ See Chapter 9.

(ii) On what grounds can the order be granted?

Under s 42(5) of the Family Law Act 1996:

LEGISLATIVE PROVISION

Family Law Act 1996, section 42(5)

In deciding whether to exercise its powers under this section and, if so, in what manner, the court shall have regard to all the circumstances including the need to secure the health, safety and well-being—

- (a) of the applicant or, in a case falling within subsection (2)(b), the person for whose benefit the order would be made; and
- (b) of any relevant child.

This is clearly a very widely drawn test, permitting the court to take into account any circumstances it believes relevant. The aim of the test is to focus on the need for protection in the future rather than requiring proof of the fact or threat of violence in the past.⁸⁹ 'Health' is defined to include 'physical or mental health' and so it is not necessary to show that there is even a threat of physical violence. One factor the court will consider is whether the order may be misused. If the court fears that the order will simply be used as a weapon in the party's disagreements, rather than to provide protection, the court may decline to make the order.⁹⁰

(iii) What can the order contain?

A non-molestation order will prohibit one person from molesting another. Molestation is not defined in the statute. That is a deliberate omission and was recommended by the Law Commission, which argued that there should not be a definition for fear that it might provide loopholes that a respondent could exploit.⁹¹ It was noted that the lack of a definition had not led to grave difficulties with the law to date. The Law Commission stated that molestation could encompass 'any form of serious pestering or harassment and applies to any conduct which could properly be regarded as such a degree of harassment as to call for the intervention of the court'.⁹² It could range from rifling through a handbag⁹³ to shouting obscenities.⁹⁴ In *C v C (Non-Molestation Order: Jurisdiction)*⁹⁵ the Court of Appeal stated that a husband could not obtain a non-molestation order to prevent his former wife making revelations in newspapers about their relationship. It was explained that molestation does not involve simply a breach of privacy but 'some quite deliberate conduct which is aimed at a high degree of harassment of the other party'. Here it was felt that the husband was seeking protection of his reputation rather than protection from molestation. This case might be contrasted with *Johnson v Walton*,⁹⁶ where a man sent semi-naked photographs of his former

⁸⁹ Law Commission Report 192 (1990: 3.6).

⁹⁰ *Chechi v Bashier* [1999] 2 FLR 489.

⁹¹ Law Commission Report 207 (1992: 3.1).

⁹² Law Commission Report 207 (1992: 3.1).

⁹³ *Spencer v Camacho* [1984] 4 FLR 662.

⁹⁴ *George v George* [1986] 2 FLR 347.

⁹⁵ [1998] 1 FLR 554, [1998] 1 FCR 11.

⁹⁶ [1990] 1 FLR 350, [1990] FCR 568.

girlfriend to the press. It was held that this could constitute molestation. A distinction between these cases may be made on the basis that the press involvement was directly aimed at humiliating the woman in *Johnson v Walton*, whereas in *C v C (Non-Molestation Order: Jurisdiction)*⁹⁷ the wife's conduct was intended to explain her version of events rather than disgracing her husband.⁹⁸

Under s 42(6) the order can refer to specific acts of molestation. This might be appropriate where the applicant wishes to prevent a particular kind of conduct which the respondent (or the police) might not appreciate would constitute molestation. Persistent telephone calls might be an example. There are some lower court unreported decisions which indicate that s 42(6) can include prohibiting a person from entering a specified area around a person's house.⁹⁹ This may well be open to challenge before the Court of Appeal, as it could be seen as obtaining an occupation order through the back door.¹⁰⁰ In *R v R (Family Court: Procedural Fairness)*¹⁰¹ it was said that orders restricting people from an area or prohibiting any kind of contact were serious interferences in the respondent's rights and so should be used sparingly.

It seems certain that a non-molestation order could not be used to remove someone from a house.

There is no limit to the duration of a non-molestation order. It can be stated to last until a further order is made.¹⁰²

(iv) Can the order be made against someone who is unable to control his or her actions?

Prior to the Family Law Act 1996, case law suggested that only deliberate acts could constitute molestation.¹⁰³ This is probably no longer correct. In *Banks v Banks*¹⁰⁴ it was seen as inappropriate to make a non-molestation injunction against a woman who was suffering from a manic depressive disorder and therefore unable to control her behaviour. The reasoning was that it would be wrong if she were to be guilty of contempt of court through conduct that was beyond her control. This was only a decision of a county court and so is not a strong precedent. The concern is that a similar argument could be used to prevent an injunction being made against an alcoholic abuser. It is arguable that in this area the law should focus on protection of the victim rather than fairness to the perpetrator of the violence. In the light of these arguments and the decision of the Court of Appeal in *G v G (Occupation Order: Conduct)*¹⁰⁵ that an occupation order could be made after unintentional conduct,¹⁰⁶ it is submitted that a non-molestation injunction should be able to be made even following unintentional conduct. However, it should be borne in mind that a person can only be guilty of contempt if he or she has sufficient mental capacity to understand that a court order has been made forbidding certain conduct, under threat of punishment.¹⁰⁷

⁹⁷ [1998] 1 FLR 554, [1998] 1 FCR 11.

⁹⁸ The court in *C v C (Non-Molestation Order: Jurisdiction)* [1998] 1 FLR 554, [1998] 1 FCR 11 also took into account the importance of freedom of the press.

⁹⁹ These unreported decisions are discussed in *Da Costa* (1998).

¹⁰⁰ See FLA 1996, s 33(3)(g).

¹⁰¹ [2014] EWFC 48.

¹⁰² *Re B-J (A Child) (Non-Molestation Order: Power of Arrest)* [2000] 2 FCR 599.

¹⁰³ *Johnson v Walton* [1990] 1 FLR 350, [1990] FCR 568, but contrast *Wooton v Wooton* [1984] FLR 871.

¹⁰⁴ [1999] 1 FLR 726.

¹⁰⁵ [2000] 2 FLR 36.

¹⁰⁶ *G v G (Occupation Order: Conduct)* [2000] 2 FLR 36.

¹⁰⁷ *P v P (Contempt of Court: Mental Capacity)* [1999] 2 FLR 897.

(v) Enforcement of the orders

Section 42A of the Family Law Act (inserted by the Domestic Violence, Crime and Victims Act 2004) states that it is a criminal offence for a person to do something he is prohibited from doing by a non-molestation order without reasonable excuse.¹⁰⁸ A person can only be guilty of the offence if when they engaged in the conduct they were aware¹⁰⁹ of the existence of the order.¹¹⁰ The prosecution has the burden of proof of showing that the defendant did not have a reasonable excuse.¹¹¹ Prior to the insertion of s 42A, a breach of a non-molestation order would be dealt with by the victim applying to court for an order of contempt of court. The significance of this change in the law is that if there is a breach it no longer lies in the hands of the victim to decide whether or not to bring contempt proceedings; it is the decision of the police. Before the Act, following a breach, if the victim decided not to instigate contempt proceedings nothing further would happen. Now, even if the victim objects, the police may decide to bring proceedings for the offence under s 42A.¹¹² This has led to complaints by some that this provision disempowers the victim in taking away the choice of whether or not to bring proceedings if an order is breached.¹¹³ Supporters claim that police prosecution protects victims from being pressurised into not commencing enforcement proceedings, and demonstrates how seriously society regards such breaches. However, there is evidence that the police are using cautions or informal warnings, rather than prosecuting for this offence.¹¹⁴ If this happens, victims may be worse off than they would have been in the past. Another concern is the delay in police procedures, and particularly those of the Crown Prosecution Service, before a decision over prosecution is taken. This can mean it might be weeks before the offender is brought to court, while under the previous system a respondent who was arrested under a power of arrest for a breach of a non-molestation order could be brought before the court to be sentenced the next day.¹¹⁵ Later in this section we will consider the decline in the use of civil remedies. One explanation is that s 42A had put claimants off seeking a non-molestation order.¹¹⁶

If the order is breached by acts of violence, the respondent is likely to be prosecuted under s 42A.¹¹⁷ In deciding what sentence is appropriate, the court should focus on the act that constitutes the breach, rather than the facts that led to the making of the injunction in the first place. In *Cambridgeshire CC v D*¹¹⁸ a non-molestation injunction was obtained after serious violence. In breach of the injunction, D wrote love letters. The Court of Appeal overturned a sentence of 12 months for contempt, saying that that was an excessive punishment for writing love letters, despite the serious violence in the past.¹¹⁹ In recent years the courts have indicated that they are taking violent acts that breach court orders more seriously than they might have done in the past.¹²⁰

¹⁰⁸ See Platt (2008) for a useful discussion of the practical significance of this section.

¹⁰⁹ Normally, this will be because he has formally been served with the order, but it need not be.

¹¹⁰ FLA 1996, s 42A(2). As well as committing the s 42A offence the person will be guilty of a contempt of court. They cannot be convicted in respect of both (s 42A(4)).

¹¹¹ *R v Richards* [2010] EWCA Crim 835.

¹¹² The court can no longer attach a power of arrest to a non-molestation order (para 38 of Sch 10 to the Domestic Violence, Crime and Victims Act 2004).

¹¹³ Hitchings (2005).

¹¹⁴ Home Affairs Select Committee (2008); Platt (2008).

¹¹⁵ Hester, Westmarland, Pearce and Williamson (2008).

¹¹⁶ Platt (2008).

¹¹⁷ *G v C (Residence Order: Committal)* [1998] 1 FLR 43.

¹¹⁸ [1999] 2 FLR 42.

¹¹⁹ For a general discussion on sentencing in these cases, see *Hale v Tanner* [2000] 3 FCR 62.

¹²⁰ *H v O (Contempt of Court: Sentencing)* [2004] EWCA Civ 1691; *Lomas v Parle* [2004] 1 All ER 1173.

B Occupation orders

An occupation order can remove an abuser from the home and can give a right to the victim to enter or remain in the home. Although the occupation order is most commonly used in cases of domestic violence, it can be applied for if there is no violence, but simply a dispute over who should occupy the property. Where the order is that someone be removed from their home, this is a severe infringement of the rights of the person who is removed from their home. However, the order may be the only way possible to provide effective protection for the victim(s). In the very worst cases it might be crucial that the abuser does not know where the victim is, in which case alternative accommodation will be essential. Given the greater infringement of the rights of the respondent, access to occupation orders is far more restricted than to non-molestation orders. There are five different sections, which apply to different groups of applicants, and each section has slightly different requirements, some being harder to satisfy than others.

An applicant can only obtain an occupation order against a respondent to whom she is associated. If the applicant is married to the respondent or is entitled to occupy the property, she should use s 33.¹²¹ However, if the applicant is not entitled to occupy the property, the key question is whether the applicant is the ex-spouse of the respondent or is the cohabitant or former cohabitant of the respondent. If she is the ex-spouse, s 35 is appropriate; if she is the cohabitant or ex-cohabitant then an application should be made under s 36. In the very unlikely event that neither the applicant nor the respondent is entitled to occupy the dwelling-house, s 37 or s 38 should be used. It seems unlikely that a child could seek an occupation order against a parent as they would not fall within any of these categories.¹²² This section will now consider these different sections in further detail.

(i) Section 33: married and entitled applicants

(a) Who can apply?

'Entitled' applicants can use s 33. An entitled person is a person who:

LEGISLATIVE PROVISION

Family Law Act 1996, section 33

- (a) is entitled to occupy a dwelling-house by virtue of a beneficial estate or interest or contract or by virtue of any enactment giving him the right to remain in occupation, or
- (b) has home rights in relation to a dwelling-house.

Nearly all spouses or civil partners, therefore, are 'entitled' because they will have home rights.¹²³ Also, anyone who has a right to occupy a dwelling-house is entitled. This includes those who own the house (for example, those who are registered owners) and those who, although not registered owners, have a beneficial interest in the property by virtue of a resulting trust, a constructive trust, a proprietary estoppel or an interest under a trust for land. The question of whether a person has a right to reside in the property under a proprietary estoppel or trust can be highly complex. Cases deciding such issues have been known to go on for weeks.¹²⁴ It might seem odd that an applicant seeking urgent protection from violence could need to introduce evidence of

¹²¹ Except in the very unusual situation where neither spouse is entitled to occupy their home (e.g. if they are squatters).

¹²² *Re Alwyn (Non-Molestation Proceedings By A Child)* [2010] 1 FLR 1363.

¹²³ The exception being where neither is entitled to occupy the house, in which case either s 37 or s 38 applies.

¹²⁴ *Hammond v Mitchell* [1992] 1 FLR 229, [1991] FCR 938.

promises made often years earlier in order to determine which section of the Act should be used.¹²⁵ To amount to an interest sufficient to be able to use s 33 it must not be insubstantial. For example, a contractual licence to occupy the home for four days would be insufficient.¹²⁶

(b) In respect of what property can the order be sought?

There are two requirements here. The first is that the property is a dwelling-house. So if a couple ran a business together it would not be possible to get an order in respect of the business premises. The second is that the home must be or was intended to be the home of the applicant and a person to whom she is associated. So if a flat was bought with the sole intention of it being the wife's pied-à-terre while she worked in London, an occupation order could not be obtained concerning the flat as it was never meant to be the home of the couple together. Similarly, if the applicant left the marital home and moved in with her mother she could not get an occupation order requiring the respondent to stay away from her mother's home.¹²⁷ Whether a holiday cottage would be defined as a home is open for debate.

(c) Against whom can the order be made?

The order can be sought by the applicant against any person with whom she is associated and with whom she shared or intended to share a home.

(d) What factors will the court take into account?

The 'significant harm test'

The starting point for the court's deliberations is the significant harm test set out in s 33(7):

LEGISLATIVE PROVISION

Family Law Act 1993, section 33(7)

If it appears to the court that the applicant or any relevant child is likely to suffer significant harm attributable to conduct of the respondent if an order under this section containing one or more of the provisions mentioned in subsection (3) is not made, the court shall make the order unless it appears to it that—

- (a) the respondent or any relevant child is likely to suffer significant harm if the order is made; and
- (b) the harm likely to be suffered by the respondent or child in that event is as great as, or greater than, the harm attributable to conduct of the respondent which is likely to be suffered by the applicant or child if the order is not made.

The court must first ask itself what will happen if the court makes no order: is it likely that the applicant or relevant child will suffer significant harm attributable to the conduct of the respondent? If the answer is 'no' then the significant harm test is not satisfied. If the answer is 'yes', the court must consider what will happen if the court does make an order: will the respondent or any relevant child suffer significant harm? If the answer to that question is 'no', the court *must* make an occupation order. If the answer is 'yes', then the question is whose risk

¹²⁵ In *S v F (Occupation Order)* [2000] 1 FLR 255 Judge Cryan found that there was not enough time at the hearing to hear all the evidence necessary to decide whether the applicant had an interest and so treated the application as if made under s 35.

¹²⁶ *Moore v Moore* [2004] 3 FCR 461.

¹²⁷ Although a non-molestation order may offer some protection here.

of harm is greater. If the harm the applicant or child will suffer is greater than that which the respondent and any relevant child will suffer, an order *must* be made. Otherwise, the significant harm test is not satisfied.

*B v B*¹²⁸ shows how the subsection operates.

CASE: *B v B* [1999] 1 FLR 715, [1999] 2 FCR 251

The case concerned a married couple who had two children living with them: the husband's son from his previous relationship and a baby of their own. The husband was extremely violent and so the wife and baby moved out to temporary accommodation, leaving the husband and his son in the flat. The court considered the significant harm test. They were satisfied that if they made no order the mother and baby who were living in unsatisfactory temporary accommodation would continue to suffer significant harm and that this was attributable to the husband's violence. However, the court also accepted that if the husband and his son were ordered from the flat they would suffer significant harm too. In particular, the local authority would not be under any obligation to house them and so the son's education and general welfare would suffer. The court decided that the harm, especially to the son, if the order was made would be greater than the harm that the mother and baby would suffer if the order was not made, and so the significant harm test was not satisfied.

A few points on the wording of the test will now be considered:

1. *Who is a 'relevant child'?* A relevant child here is broadly defined to include 'any child whose interests the court considers relevant'.¹²⁹ The child does not need to be the biological child of either the applicant or the respondent. In most cases, the child will be living with the applicant and respondent, but conceivably the interests of a child not living with them will also be relevant, for example if the making or not making of an occupation order prevents the child having contact with the parties.
2. *What is harm?* Harm is defined as including 'ill-treatment and the impairment of health' (which includes emotional health).¹³⁰ For a child, harm also involves impairment of development. Ill-treatment 'includes forms of ill-treatment which are not physical and, in relation to a child, includes sexual abuse'.¹³¹ It is rather surprising that the statute makes it clear that sexual abuse is harm to a child but does not state this in respect to an adult. There is probably no significance in this because sexual abuse of an adult would inevitably constitute ill-treatment or impairment of health. Also, although the definition of harm in the Children Act 1989¹³² does not specifically apply to the Family Law Act 1996, presumably the court would willingly accept that a child who witnessed domestic violence was being harmed.

¹²⁸ [1999] 1 FLR 715, [1999] 2 FCR 251.

¹²⁹ FLA 1996, s 62(2).

¹³⁰ FLA 1996, s 63(1).

¹³¹ FLA 1996, s 63(1).

¹³² Section 31.

3. *What is significant harm?* There is no definition of significant harm in the Family Law Act 1996, although in a similar context Booth J suggested it was harm that was 'considerable, noteworthy or important'.¹³³ In *Chalmers v Johns*¹³⁴ the Court of Appeal rejected an argument that a one-and-a-half mile walk to school for the mother and child was 'significant harm'. The court stressed that in order to be 'significant harm' some kind of exceptional harm needed to be shown.
4. *What does 'attributable' mean?* One point of particular importance on the wording of the test is that when considering whether the applicant or relevant child will suffer significant harm it must be shown that the significant harm will be attributable to the conduct of the respondent. In *B v B*, the facts of which are explained above, the mother was able to show that it was her husband's extreme violence which had forced her from the house and so the significant harm was attributable to her husband's conduct. If there had been no violence and she had moved out simply because she did not like her husband any more, she would have had grave difficulty in showing that the significant harm was attributable to the husband's conduct. However, notably, when considering the risk of significant harm to the respondent there is no need to show that it is attributable to the conduct of the applicant. So in *B v B* it was irrelevant that the significant harm that the son and husband would suffer if the order was made would not be due to the wife's conduct. *G v G (Occupation Order: Conduct)*¹³⁵ makes it clear that conduct is attributable to the respondent even if it is unintentional conduct: the court's focus is on the effect of the respondent's conduct, not his or her intention. In *Dolan v Corby*¹³⁶ the woman suffered from psychological problems. Although she was suffering significant harm and her condition would be improved if the man left, Black LJ said it could not be found that her significant harm was attributable to the conduct of the man. Nevertheless an occupation order was made based on the general factors, to be considered shortly.
5. *What does 'likely' mean?* It is not clear what 'likely' means here. The word 'likely' in s 31 of the Children Act 1989 has been defined by the House of Lords to signify 'a real possibility'.¹³⁷ It is suggested that a similar interpretation is given to the term here. It seems that the degree of likelihood of significant harm is not relevant in the significant harm test. In other words, if it is almost certain that the applicant will suffer significant harm, but there is a real possibility that the respondent will suffer a higher level of harm, the significant harm test will not be satisfied.
6. *What if the risks of significant harm are equal?* It should be noted that if the harm likely to be suffered by the applicant is equal to the harm that may be suffered by the respondent then an order does not have to be made.

The significant harm test sets out the circumstances in which the court *must* make an order. It is important to appreciate that simply because the significant harm test is not satisfied does not mean that an order cannot be made.¹³⁸

¹³³ *Humberside CC v B* [1993] 1 FLR 257 at p. 263.

¹³⁴ [1999] 1 FLR 392.

¹³⁵ [2000] 2 FLR 36.

¹³⁶ [2011] EWCA Civ 1664.

¹³⁷ See Chapter 10.

¹³⁸ *Chalmers v Johns* [1999] 1 FLR 392.

(e) General factors

If the significant harm test is satisfied then the court must make an order. If, however, it is not, the court must then consider the general factors.¹³⁹ These are set out in s 33(6):

LEGISLATIVE PROVISION**Family Law Act 1996, section 33(6)**

- (a) the housing needs and housing resources of each of the parties and of any relevant child;
- (b) the financial resources of each of the parties;
- (c) the likely effect of any order, or of any decision by the court not to exercise its powers . . . , on the health, safety or well-being of the parties and of any relevant child; and
- (d) the conduct of the parties in relation to each other and otherwise.

The courts have in fact been reluctant to grant occupation orders. Thorpe LJ in *Chalmers v Johns*¹⁴⁰ held that when considering the general factors a judge should bear in mind that an occupation order 'overrides proprietary rights and . . . is only justified in exceptional circumstances'.¹⁴¹ Occupation orders should be seen as 'draconian'.¹⁴² In *G v G (Occupation Order: Conduct)* it was stressed that to succeed, an applicant must show that more tensions exist than normally surround a family during a divorce.¹⁴³ In *Re Y (Children) (Occupation Order)*¹⁴⁴ Sedley LJ suggested occupation orders should be seen 'as a last resort in an intolerable situation'.¹⁴⁵ These decisions of the Court of Appeal emphasise that occupation orders should be made only in exceptional cases. Critics would argue that these statements are excessively restrictive. Had Parliament intended that occupation orders should only be available in exceptional cases, it would have said so. Notably, in one of the most recent cases, *Grubb v Grubb*¹⁴⁶ Wilson LJ preferred the word 'serious' to describe the effect of an occupation order. Unfortunately in *Dolan v Corby*¹⁴⁷ Black LJ returned to the old terminology, saying: 'it must be recognised that an order requiring a respondent to vacate the family home and overriding his property rights is a grave or draconian order and one which would only be justified in exceptional circumstances'.¹⁴⁸

The Court of Appeal in *B v B*¹⁴⁹ considered the position had the father not had the son with him. The court suggested that in that case, even if the significant harm test might not have been satisfied,¹⁵⁰ the court would still be minded to make an order, when looking at the general factors and in particular bearing in mind his violence towards the wife. This suggests that where the court is dealing with a violent spouse the conduct factor ((d)) may become very important. However, it would be wrong to state that an occupation order is only available

¹³⁹ *Dolan v Corby* [2011] EWCA Civ 1664.

¹⁴⁰ [1999] 1 FLR 392 CA.

¹⁴¹ [1999] 1 FLR 392 at p. 397; see also *Re Y (Children) (Occupation Order)* [2000] 2 FCR 470 at p. 477.

¹⁴² See also *G v G (Occupation Order: Conduct)* [2000] 2 FLR 36.

¹⁴³ [2000] 2 FLR 36.

¹⁴⁴ [2000] 2 FCR 470.

¹⁴⁵ [2000] 2 FCR 470 at p. 480.

¹⁴⁶ [2009] EWCA Civ 976.

¹⁴⁷ [2011] EWCA Civ 1664.

¹⁴⁸ In *L v L* [2012] EWCA Civ 721, Aikens LJ also used the terminology 'draconian'.

¹⁴⁹ [1999] 1 FLR 715, [1999] 2 FCR 251.

¹⁵⁰ Because the husband being rendered homeless would be a greater harm than the mother and baby living in poor accommodation.

when there is serious violence. In *S v F (Occupation Order)*¹⁵¹ the children were residing with the mother, who had decided to leave London to live in the country. One son wished to remain in London, especially because he was soon going to be taking examinations at school. The court was willing to make an occupation order granting the father the right to live in the matrimonial home in London so that he could provide a house for his son for the completion of the schooling, while the mother moved to the country.

It is, therefore, quite possible, for the court to make an occupation order even where there is no violence.¹⁵² Also a court can make an occupation order even if the person being removed has not behaved in a particularly blameworthy way.¹⁵³ In *Grubb v Grubb*¹⁵⁴ the couple accepted their relationship had broken down and they could not live together. The husband was ordered to leave the home ('his ancestral home') because he was well off and would have no difficulty in finding alternative accommodation, while the wife had few resources of her own and the husband had refused to provide her money for accommodation. In *L v L*¹⁵⁵ the judge found that the children were being harmed by the arguments between the husband and wife. As it was the mother who was the primary carer, the man should leave so the children could remain in the home. The Court of Appeal thought that was an entirely appropriate approach to take.

(f) What orders can be made?

These will be divided into three categories:

1. *Declaratory orders under s 33(4) and (5)*. These orders simply enable the court to declare that a party has a right to remain in the property. This may forestall any attempt by the respondent to bring court proceedings to evict the applicant.
2. Orders under s 33(3):

LEGISLATIVE PROVISION

Family Law Act 1996, section 33(3)

An order under this section may–

- (a) enforce the applicant's entitlement to remain in occupation as against the other person ('the respondent');
- (b) require the respondent to permit the applicant to enter and remain in the dwelling-house or part of the dwelling-house;
- (c) regulate the occupation of the dwelling-house by either or both parties;
- (d) if the respondent is entitled as mentioned in subsection (1)(a)(i), prohibit, suspend or restrict the exercise by him of his right to occupy the dwelling-house;
- (e) if the respondent has matrimonial home rights in relation to the dwelling-house and the applicant is the other spouse, restrict or terminate those rights;
- (f) require the respondent to leave the dwelling-house or part of the dwelling-house; or
- (g) exclude the respondent from a defined area in which the dwelling-house is included.

¹⁵¹ [2000] 1 FLR 255.

¹⁵² *Dolan v Corby* [2011] EWCA Civ 1664; *L v L* [2012] EWCA Civ 721.

¹⁵³ *L v L* [2012] EWCA Civ 721.

¹⁵⁴ [2009] EWCA Civ 976.

¹⁵⁵ *L v L* [2012] EWCA Civ 721.

These orders can be divided into three categories: first, there are those which enforce the applicant's existing rights ((a), (b)); secondly, orders used to regulate the rights of both parties ((c)); thirdly, those that prevent the respondent from enforcing his rights ((d), (e), (f), (g)). The strongest order that the court could make would require the respondent to leave the dwelling-house;¹⁵⁶ remove his rights to re-enter;¹⁵⁷ and exclude him from the area surrounding the house.¹⁵⁸ Subsection (c) gives the court great flexibility and permits the court to make all kinds of arrangements for the occupation of the home. It might decide that the applicant can live there during the weekdays and the respondent at the weekends, or that the respondent live on the top floor and the applicant on the ground floor.

3. *Section 40 orders.* There would be little point in removing the respondent from the house if the applicant was unable to pay for the rent for the house or meet the mortgage payments and so could be removed by the landlord or mortgagee. Therefore, under s 40 four kinds of supplemental orders can be made. First, either party can be ordered to pay the rent, mortgage payments, or general household expenses;¹⁵⁹ secondly, either party can be ordered to maintain or repair the house;¹⁶⁰ thirdly, the party who is to remain in the property can be required to make payments to the party who is to be removed (in effect this will be equivalent to a payment of rent);¹⁶¹ and, fourthly, orders can be made to deal with disputes over use and care of furniture.¹⁶² When considering an application under s 40, the court should consider all the circumstances, including the parties' financial needs, obligations and resources.¹⁶³ Unfortunately, because statute does not provide for any method of enforcing orders requiring payment under s 40, the Court of Appeal in *Nwogbe v Nwogbe*¹⁶⁴ has recommended that financial orders are not made under s 40 until Parliament has rectified this error.¹⁶⁵

(g) Duration

An order under s 33 can be of fixed or unlimited length, until the court next hears the matter.¹⁶⁶ The length of the order does not seem to be limited by the extent of the property right or the duration of the marriage.

(ii) Section 35: one ex-spouse or ex-civil partner with no existing right to occupy

(a) Who can apply?

This section applies only to situations where the applicant has no right to occupy the property but the respondent (the applicant's ex-spouse or civil partner) does. If the couple are still married or civil partners and the applicant is entitled to occupy the property, s 33 should be used.

(b) In respect of what property?

An order under s 35 is available only in respect of a dwelling-house which was the actual or intended home of the applicant and the respondent.

¹⁵⁶ FLA 1996, s 33(3)(f).

¹⁵⁷ FLA 1996, s 33(3)(d).

¹⁵⁸ FLA 1996, s 33(3)(g). There is some debate over what exactly an 'area' is in this context. Would it be possible to exclude someone from the village in which the home is situated?

¹⁵⁹ FLA 1996, s 40(1)(a)(ii).

¹⁶⁰ FLA 1996, s 40(1)(a)(i).

¹⁶¹ FLA 1996, s 40(1)(b).

¹⁶² FLA 1996, s 40(1)(c), (d), (e).

¹⁶³ FLA 1996, s 40(2).

¹⁶⁴ [2000] 2 FLR 744, [2000] 3 FCR 345.

¹⁶⁵ Parliament's response is still awaited.

¹⁶⁶ FLA 1996, s 33(10).

(c) What orders are available?

The list of orders is similar to those in s 33(3). However, there is an important difference in that if the court is going to make any order under s 35 then the applicant must be given the right to enter or remain in the property, and the respondent must be prohibited from evicting the applicant. These orders are known as the mandatory orders. The thinking behind these provisions is that it would be quite wrong to evict the respondent but not give the applicant the right to enter or remain in the property. Otherwise, it would be possible to end up with a situation where neither party would have the right to live in the property. In addition to the mandatory orders, the court can make a discretionary order. Those are any of the other orders available under s 33(3): for example, an order excluding the respondent from a defined area around the dwelling-house.

(d) What factors are to be taken into account?

When considering a mandatory order, the general factors as listed in s 33(6)¹⁶⁷ apply, although there are some extra factors which are to be taken into account for the ex-spouse, and these are (s 35(6)):

LEGISLATIVE PROVISION

Family Law Act 1996, section 35(6)

- (a) the length of time that has elapsed since the parties ceased to live together;
- (b) the length of time that has elapsed since the marriage was dissolved or annulled; and
- (c) the existence of any pending proceedings between the parties–
 - (i) for an order under section 23A or 24 of the Matrimonial Causes Act 1973 (property adjustment orders in connection with divorce proceedings, etc.);
 - (ii) for a property adjustment order under Part 2 of Schedule 5 to the Civil Partnership Act 2004; or
 - (iii) for an order under paragraph 1(2)(d) or (e) of Schedule 1 to the Children Act 1989 (orders for financial relief against parents); or
 - (iv) relating to the legal or beneficial ownership of the dwelling-house.

These three factors are to turn the court's mind to the nature of the parties' marriage or civil partnership. The shorter the marriage or civil partnership and the longer the time since the separation, the harder it will be for the applicant to succeed.

If the court decides not to make a mandatory order, it should then consider making a discretionary order. When considering whether to make a discretionary order, the court must first consider the significant harm test which operates in exactly the same way as described above in relation to s 33. If the test does not require the court to make an order, the court will then consider the general factors listed in ss 33(6) and 35(6)(e). This is rather odd because it means that a more wide-ranging investigation is made when the court considers making the discretionary order than when it makes a mandatory order, even though the mandatory orders involve a greater invasion of the respondent's property rights. The explanation may be that having found that the applicant deserves to have a right to occupy the property (in deciding

¹⁶⁷ See above (p 317).

whether to make a mandatory order), the case then involves two people who both should be entitled to occupy the dwelling-house and so the case is similar to a case involving an entitled applicant under s 33 and the criteria for further orders should then be the same.¹⁶⁸

(e) Duration

The duration of an order under s 35 is more limited than a s 33 order. The order cannot exceed six months, although at the end of the six months the applicant can reapply for further extensions not exceeding six months each.¹⁶⁹

(iii) Section 36: one cohabitant or former cohabitant with no existing right to occupy

(a) Who can apply?

This section applies to an applicant who is not entitled to occupy the property and who is the cohabitant¹⁷⁰ or former cohabitant of the respondent. Cohabitants are defined as 'two persons who are neither married to each other nor civil partners of each other but are living together as husband and wife or as if they were civil partners'.¹⁷¹

(b) In respect of what property?

The orders are available only in respect of a property that was or was intended to be the home of the applicant and the respondent.

(c) What orders can be made?

The orders available are exactly the same as under s 35.

(d) What factors are to be taken into account?

When considering whether to make a mandatory order, the court must consider the general factors listed in s 33(6) and, in addition, the following extra criteria:

LEGISLATIVE PROVISION

Family Law Act 1996, section 36(6)

- (a) the nature of the parties' relationship and in particular the level of commitment involved in it;
- (b) the length of time during which they have lived together as husband and wife;
- (c) whether there are or have been any children who are children of both parties or for whom both parties have or have had parental responsibility;
- (d) the length of time that has elapsed since the parties ceased to live together; and
- (e) the existence of any pending proceedings between the parties
 - (i) for an order under paragraph 1(2)(d) or (e) of Schedule 1 to the Children Act 1989 (orders for financial relief against parents); or
 - (ii) relating to the legal or beneficial ownership of the dwelling-house.

¹⁶⁸ Although that would not explain why (e) is taken into account when considering the discretionary stage.

¹⁶⁹ FLA 1996, s 35(10).

¹⁷⁰ As defined in FLA 1996, s 62(3).

¹⁷¹ FLA 1996, s 62(1)(a).

When considering whether to make a discretionary order, the court begins by asking the 'significant harm' questions. These are:

LEGISLATIVE PROVISION

Family Law Act 1996, section 33(7)

- (a) whether the applicant or any relevant child is likely to suffer significant harm attributable to conduct of the respondent if [a discretionary order is not made]; and
- (b) whether the harm likely to be suffered by the respondent or child if [the discretionary order is made] is as great as or greater than the harm attributable to conduct of the respondent which is likely to be suffered by the applicant or child if the provision is not included.

This is very similar to the significant harm test, but it does not compel the court to make an order if the applicant's significant harm is greater than the respondent's harm would be. The significant harm that the parties are at risk of suffering are simply factors to be considered, along with the general factors in s 33(6). Given the argument earlier that once a mandatory order is made an applicant should be viewed in the same light as an entitled applicant under s 33(6), it is hard to justify using the significant harm questions rather than the significant harm test.¹⁷²

(e) Duration

An order under s 36 cannot exceed six months in duration and can be extended on one occasion for a period of six months. This is similar to s 35, with the important limitation that under s 36 only one extension can be applied for, but there is no limit on the number of extensions under s 35.

(iv) Section 37: neither spouse nor civil partner entitled to occupy

(a) Who can apply?

This section applies to spouses or former spouses or civil partners or former civil partners where neither party is entitled to occupy the property. In fact, it would be very unusual for neither party to be entitled to occupy the matrimonial home. If the spouses were squatters, then this may be so.¹⁷³ There will be very few applications under this section.

(b) In respect of what property?

The orders are available only in respect of a property that was or was intended to be the home of the applicant and the respondent.

¹⁷² The significant harm questions are one of the provisions inserted late in the legislative process to distinguish the treatment of married and unmarried couples.

¹⁷³ Or if they were bare licensees (e.g. if a friend had invited the couple to stay).

(c) What can the order contain?

Under s 37(3):

LEGISLATIVE PROVISION
Family Law Act 1996, section 37(3)

An order under this section may–

- (a) require the respondent to permit the applicant to enter and remain in the dwelling-house or part of the dwelling-house;
- (b) regulate the occupation of the dwelling-house by either or both of the spouses;
- (c) require the respondent to leave the dwelling-house or part of the dwelling-house; or
- (d) exclude the respondent from a defined area in which the dwelling-house is included.

These orders are much more limited than those under ss 33, 35 and 36 because neither party is entitled to occupy the home and so they have no rights that can be restricted or removed.

(d) What factors are to be taken into account?

Section 33(6) (the general factors) and (7) (the significant harm test) apply.

(e) Duration

An order under s 37 can be made for a period not exceeding six months, but may be extended on any number of occasions for a further period not exceeding a total of six months.

(v) Section 38: neither cohabitant nor former cohabitant entitled to occupy**(a) Who may apply?**

This section applies to a cohabitant or former cohabitant where neither the applicant nor the respondent is entitled to occupy the property. Again, it will be very rare for applications to fall within this section.

(b) In respect of what property?

The orders are available only in respect of a property that was or was intended to be the home of the applicant and the respondent.

(c) What orders can be made?

The same orders that were listed as available under s 37(3) (quoted above) are available under s 38.

(d) What factors are to be taken into account?

Section 36(6) (the general factors) and (7) (the significant harm questions) apply.

(e) Duration

As under s 36, the order can be for a maximum of six months, and be extended on one occasion for a maximum period of six months.

(vi) Those who cannot apply for an occupation order

As should be clear from the above, a person who is not entitled to occupy the property and is not the spouse, former spouse, cohabitant or former cohabitant of the respondent cannot apply for an occupation order. In particular, relatives and non-cohabiting couples cannot

apply for an occupation order in respect of a dwelling-house unless they are entitled to occupy it.

(vii) Some core issues in occupation orders

(a) Conduct

The original Law Commission proposals did not refer to the conduct of the parties.¹⁷⁴ Orders, it was suggested, should be granted solely by considering the parties' needs, resources, and obligations – in effect a 'no-fault' scheme to resolve disputes over the occupation of the home. It is understandable that Parliament was reluctant to follow these proposals. It would have meant that if there was a case where the violent party was less well-off and not in a position to find alternative accommodation then the victim of domestic violence could be the one ordered out of the house for her own protection. This would be unacceptable to the majority of people. That said, the parts of the Family Law Act 1996 relating to domestic violence do not sit easily with the parts intended to deal with divorce, which stress the importance of 'no-fault' divorce and discourage the parties from making allegations of misconduct against one another.

(b) Property interests

When considering occupation orders, property rights are of significant importance. Cohabitants and former spouses with property interests are treated differently from those without property interests. The importance of property interests is also revealed by the fact that cohabitants with property interests are treated in the same way as married couples with property interests. A critic would argue that considering the property interests of the parties is inappropriate when deciding how to protect an applicant from violence: are not people more important than property rights?¹⁷⁵ Can it be justifiable that if two victims of domestic violence in similar circumstances need the protection of an occupation order, one may be granted the order and one not, as the result of their property entitlement under the rules of land law? Those who seek to justify the relevance of property interests do so on two bases. First, it has been argued that an order removing a party's property rights is a greater infringement of a party's rights than removing a party from a house in which they have no property interest, and therefore requires stronger justification. Secondly, it has been maintained that entitled and non-entitled applicants should be treated differently because different kinds of issues are involved. The Law Commission suggested that cases involving non-entitled applicants are 'essentially a short-term measure of protection intended to give them time to find alternative accommodation or, at most, to await the outcome of an application for a property law remedy'.¹⁷⁶ By contrast, cases of entitled applicants may involve imposing long-term solutions. These arguments, although powerful in theory, lose some of their force when it is recalled that the law on whether or not a person has an interest in property under a constructive trust or proprietary estoppel is so controversial and appears to draw arbitrary distinctions.¹⁷⁷ Another argument is that a property right carries with it obligations, including the obligation not to enable the property to be used for criminal purposes.¹⁷⁸ Could it be said that a person who commits violence in his or her home thereby forfeits his or her property right?

¹⁷⁴ Nor in the significant harm test (s 33(7)) did the applicant's significant harm have to be attributable to the respondent's conduct.

¹⁷⁵ Law Commission Report 207 (1992).

¹⁷⁶ Law Commission Report 207 (1992: para 4.7).

¹⁷⁷ See Chapter 5.

¹⁷⁸ *Tuck v Robson* [1970] 1 All ER 1171.

(c) Children's interests

It is notable that the interests of children are not paramount, as they are in other issues involving children. The Law Commission was concerned that placing children's interests as paramount 'might lead to more specious applications by fathers for custody, and encourage more mothers to use "I've got the kids so kick him out" arguments'.¹⁷⁹ The concern is understandable, but a similar argument could be used in many circumstances where the welfare test applies. Although the child's welfare is not paramount under the Family Law Act 1996, the Act does have provisions which protect children.¹⁸⁰ There are three in particular:

1. Children can now, under s 43, apply for an occupation or non-molestation order. If under the age of 16, the child needs the leave of the court and can apply only if 'the child has sufficient understanding to make the proposed application'.¹⁸¹ If a child has applied to the court for a non-molestation order, the court is likely to make one if possible.¹⁸² Only rarely will the child be able to establish a property interest and so be able to apply for an occupation order.¹⁸³
2. When considering the significant harm test it is important to note that if there is a relevant child who is likely to suffer significant harm attributable to the conduct of the respondent, the court must make an order unless greater or equal harm will be caused to the respondent if the order is made. However, it is notable that there is no attempt to attach greater importance to the harm suffered by the child than the harm suffered by the respondent or applicant.
3. The needs of the child are factors that should be taken into account when considering the general factors.

The failure to prioritise the needs of the child in the Family Law Act 1996, Part IV does not fit comfortably with the weight placed on children's interests under the Children Act 1989, Adoption and Children Act 2002 and Human Rights Act 1998.¹⁸⁴ Notably, children who are suffering significant harm can be removed from their parents and taken into care under s 31 of the Children Act 1989. However, the fact that the child is suffering significant harm does not necessarily require the making of an occupation order under the significant harm test, if it can be shown that the respondent will suffer a greater level of harm.¹⁸⁵ This may be a particular concern because there is increasing evidence that children who witness domestic violence suffer in a variety of ways. Some commentators, however, have expressed concern that putting children at the forefront of domestic violence issues will lead to lack of focus on the woman who is the direct victim of domestic violence.¹⁸⁶

(d) The distinction between married and unmarried couples

The Family Law Act 1996 does distinguish between unmarried and married couples or civil partners, but only where the applicant has no interest in the property. If the applicant does

¹⁷⁹ Law Commission Report 207 (1992).

¹⁸⁰ For a discussion of the impact of domestic violence on children, see McGee (2000).

¹⁸¹ FLA 1996, s 43(1).

¹⁸² Bainham (1998a: 428).

¹⁸³ *Re Alwyn (Non-Molestation Proceedings by A Child)* [2010] 1 FLR 1363.

¹⁸⁴ Choudhry and Herring (2006a). See also Stanley *et al.* (2010b); Westendorp and Wolleswinkel (2005).

¹⁸⁵ Although the court may still make an occupation order when considering the general factors.

¹⁸⁶ Davies and Krane (2006).

have an interest in the property there is no difference in the law that applies. Where the applicant does not have an interest in the home the law draws three distinctions:

1. The significant harm test is not used for non-entitled applicants; the significant harm questions are used and only once, using the general factors, it has been decided that a mandatory order must be made.¹⁸⁷
2. There is a difference in the general factors that are taken into account. In particular, the court is required to consider the nature of the parties' relationship.
3. The maximum duration of orders for non-entitled cohabitants is shorter than for non-entitled spouses or ex-spouses or civil partners.

As suggested earlier, it is hard to see how any of these differences could be thought to uphold marriage, and some commentators have suggested that in this context no distinction should be drawn between married and unmarried couples.

(e) Human Rights Act 1998

The Human Rights Act 1998 may be relevant to domestic violence in the following ways:¹⁸⁸

1. Article 3 requires the state to protect citizens from torture or inhuman or degrading treatment from other people.¹⁸⁹ Article 2 requires the state to protect citizens from a risk of death at the hands of others.¹⁹⁰ A state will infringe an individual's right under articles 2 or 3 if it is aware that she or he is suffering the necessary degree of abuse at the hands of another and fails to take reasonable¹⁹¹ or adequate¹⁹² or effective¹⁹³ steps to protect that individual.¹⁹⁴ The phrase 'inhuman treatment' in article 3 includes actual bodily harm or intense physical or mental suffering.¹⁹⁵ 'Degrading treatment' includes conduct which humiliates or debases an individual; or shows a lack of respect for, or diminishes, human dignity. It also includes conduct which arouses feelings of fear, anguish or inferiority capable of breaking an individual's moral and physical resistance.¹⁹⁶ In considering whether treatment is 'degrading', the court will have regard to whether its object was to humiliate and debase the victim, and the effect on the victim. The fact the abuse take place over a long period of time can bring it within article 3.¹⁹⁷ It is clear, then, that the more serious forms of domestic violence that involve physical abuse are likely to fall within article 3. If the police, prosecuting authority or courts fail to take positive steps to provide an effective remedy for someone suffering torture or inhuman or degrading treatment, they will be in breach of article 3.¹⁹⁸ The court must ensure, in considering an application for an occupation order, that an applicant who is suffering torture or inhuman or degrading treatment is provided protection.

¹⁸⁷ FLA 1996, s 36.

¹⁸⁸ Choudhry and Herring (2010: ch. 9); Burton (2010).

¹⁸⁹ *A v UK (Human Rights: Punishment of Child)* [1998] 2 FLR 959, [1998] 3 FCR 597; *E v UK* [2002] 3 FCR 700.

¹⁹⁰ *Opuz v Turkey* (App. No. 33401/02); *A v Croatia* [2010] ECHR 1506. *Van Colle v CC of Hertfordshire* [2008] UKHL 50.

¹⁹¹ *Z v UK* [2001] 2 FCR 246.

¹⁹² *A v UK* [1998] 3 FCR 597, para 24.

¹⁹³ *Z v UK* [2001] 2 FCR 246, para 73.

¹⁹⁴ *E v UK* [2002] 3 FCR 700; *Van Colle v CC of Hertfordshire* [2008] UKHL 50.

¹⁹⁵ *Ireland v United Kingdom* (1978) 2 EHRR 25.

¹⁹⁶ See, *Price v United Kingdom*, no 33394/96, (1988) 55 D & R 1988, paras 24–30 and *Valašinas v Lithuania* [2001] ECHR 479.

¹⁹⁷ *Opuz v Turkey* (App. No. 33401/02).

¹⁹⁸ *MC v Bulgaria* (2005) 40 EHRR 20; *ES v Slovakia* (App. No. 8227/04).

2. Article 8 protects an individual's right to respect for their private and family life. The right to private life includes the right to personal integrity, both physical and psychological.¹⁹⁹ Domestic violence which imposes physical or psychological harm could therefore infringe this. If the violence interfered in the way that a mother was able to care for her children, this could amount to an interference in her right to respect for her family life. As with article 3, the state has a positive obligation to ensure that one individual does not interfere with another individual's article 8 right.²⁰⁰ The obligation can arise where it would be reasonable for the state to intervene to protect someone's rights and there is an 'element' of culpability in the state's failure to intervene.²⁰¹

An occupation order requiring someone to leave their home would appear clearly to breach the right under article 8 of the Convention to respect for private and family life.²⁰² However, the making of orders could readily be justifiable under para 2 of article 8 on the grounds of public safety; prevention of disorder or crime; protection of health or morals; or protection of rights and freedoms of others. In particular, an occupation order could be justified in order to protect the rights of the applicant or the child. It might even be argued that an abuser loses his rights in his home by using his home as a place in which to be violent to others.²⁰³ A more interesting question is whether the high hurdles placed in the way of obtaining occupation orders adequately protect the right to respect for the private and family life of the applicant and child.

3. Article 6 is relevant in requiring a public hearing. As will be discussed later, it is arguable that an *ex parte* occupation order infringes a party's rights under article 6. Of potentially more significance is a suggestion that an occupation order could be regarded as punishment following a criminal charge and so the requirements of article 6 must be complied with, the argument being that removal from one's home is equivalent to a criminal punishment.²⁰⁴ In deciding whether a law involves punishment, the European Court of Human Rights has suggested that there are three factors to be taken into account: the legal classification of the provision; the nature of the offence; and the nature and degree of severity of the penalty.²⁰⁵ If article 6 does apply, then all the paragraphs of article 6 apply:

- (a) a presumption of innocence;
- (b) a right to be informed of the accusation;
- (c) a right to have adequate time and facilities for the defence;
- (d) the right to defend oneself, to have representation and legal aid;
- (e) the right to call and cross-examine witnesses.

It is not clear that (a) would be protected in law on occupation orders. The other requirements may be infringed in relation to *ex parte* applications (which will be discussed later). However, there are good reasons for arguing that occupation orders do not constitute criminal proceedings and punishment. First, the application is not brought by the state but by an individual. Secondly, the purpose of the remedy is not to punish the respondent, but to protect the applicant.

¹⁹⁹ *Anufrijeva v Southwark LBC* [2003] 3 FCR 673; *Pretty v UK* (2002) 12 BHRC 149, para 61.

²⁰⁰ *Hadjuova v Slovakia* (App. No. 2660/03).

²⁰¹ *Anufrijeva v Southwark LBC* [2003] 3 FCR 673.

²⁰² See *McCann v The United Kingdom* [2008] 2 FLR 899.

²⁰³ Choudhry and Herring (2006b).

²⁰⁴ *Öztürk v Germany* (1984) 6 EHRR 409.

²⁰⁵ *Ravnsborg v Sweden* (1994) 18 EHRR 38.

4. Article 1 of the first Protocol of the European Convention states that: 'Every person shall be entitled to the peaceful enjoyment of his possessions. No one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by the law and by the general principles of international law.' Although an occupation order might deprive a person of his or her right to enjoyment of his or her possession, in most cases where such an order will be made it could be justified as being in the public interest.²⁰⁶
5. Article 14 prohibits discrimination. A failure by a state to properly respond to domestic violence has been held to be sex discrimination.²⁰⁷ Domestic violence far more commonly affects women than men and therefore an inadequate legal response disproportionately impacts women. It might also be argued that the law on occupation orders discriminates against unmarried couples. If an applicant is able to show that because she was not in a married relationship or a civil partnership, she was not able to get an order under the Family Law Act, she could argue that this amounts to discrimination contrary to article 14.

(f) Wider consequences of domestic violence orders

As well as resolving a dispute between two parties as to who can live in a property, the occupation order can in fact have far wider impact. For example, there can be consequences in relation to the children. If, say, the husband is removed from the house, and the wife and children remain there, it may well be that the father will lose contact with the children. Certainly by the time the court comes to consider the residence of the children, the children will have settled with the mother and the 'status quo principle' (see Chapter 10) will mean that the father will be very unlikely to obtain a residence order. Further, in ancillary relief applications, if the husband has found alternative accommodation and the children and wife are living in the house, the court may well make an order transferring the house into the wife's name.²⁰⁸ Indeed, studies have suggested that in a significant number of cases domestic violence is connected in complex ways with a whole range of family disputes.²⁰⁹

C *Ex parte* non-molestation and occupation orders under the Family Law Act 1996

An *ex parte* application is an application made by one party without the other party being present or being given notice of the proceedings. Such an application will most often be used when there is a need for the immediate protection of the victim and any delay in serving papers on the respondent and giving him time to reply may endanger the applicant. In offering the applicant some immediate protection, the statute makes it clear that an *ex parte* hearing should be followed by an *inter partes* hearing, at which both parties will be able to put forward their arguments.²¹⁰ It should be stressed that the *ex parte* court order is effective only once it has been served on the respondent. So there is no danger that a respondent will breach an order of which he or she is unaware. There is a careful balancing exercise required here. On the one hand, there is the difficulty of ensuring that the evidence is sufficient to make an order, particularly an order removing someone from his or her home, when only one side of the case is heard. On the other hand, it is necessary to make available fast and

²⁰⁶ *Sporrong and Lönnroth v Sweden* (1986) 5 EHRR 35.

²⁰⁷ *Opuz v Turkey* (App. No. 33401/02).

²⁰⁸ See Chapter 6.

²⁰⁹ Pleasence *et al.* (2003).

²¹⁰ FLA 1996, s 45(3). This was emphasised in *Re C (Due Process)* [2013] EWCA Civ 1412.

effective remedies to those in dire need of them. Section 45 of the Family Law Act 1996 states that a court can make an *ex parte* occupation or non-molestation order 'in any case where it considers that it is just and convenient to do so'. In deciding whether this is so, the court shall have regard to all the circumstances, including:

LEGISLATIVE PROVISION

Family Law Act 1996, section 45(2)

- (a) any risk of significant harm to the applicant or a relevant child, attributable to conduct of the respondent, if the order is not made immediately;
- (b) whether it is likely that the applicant will be deterred or prevented from pursuing the application if an order is not made immediately; and
- (c) whether there is reason to believe that the respondent is aware of the proceedings but is deliberately evading service and that the applicant or a relevant child will be seriously prejudiced by the delay involved [in effecting service or substituted service].

It is arguable that making an *ex parte* order could deny people the right to a fair and public hearing under article 6 of the European Convention on Human Rights. However, in a different context, the Court of Appeal in *Re J (Abduction: Wrongful Removal)*²¹¹ rejected such an argument on the basis that the right to the full *inter partes* hearing and the right to apply to have an *ex parte* order set aside protects the right to a fair hearing.

D Undertakings

An undertaking is a promise by the respondent in clear terms, which is made formally in court. The court can accept an undertaking in any case where it has the power to make a non-molestation or occupation order. Where the court accepts the undertaking, an order is normally not made.²¹² Section 46(4) states that an undertaking can be enforced as if it were an order of the court.²¹³ However, s 47(3A) states that undertaking should not be accepted in cases involving violence:

LEGISLATIVE PROVISION

Family Law Act 1996, section 47(3A)

The court shall not accept an undertaking under subsection (1) instead of making a non-molestation order in any case where it appears to the court that—

- (a) the respondent has used or threatened violence against the applicant or a relevant child; and
- (b) for the protection of the applicant or child it is necessary to make a non-molestation order so that any breach may be punishable under section 42A.

²¹¹ [2000] 1 FLR 78.

²¹² FLA 1996, s 46(1).

²¹³ FLA 1996, s 46(4), although a power of arrest cannot be attached to an undertaking (s 46(2)).

E The reduction in the use of civil remedies

In the past few years there has been a noticeable reduction in the use of civil remedies in domestic violence cases. In 2004, 32,891 occupation and non-molestation orders were made, while in 2011 this had fallen to 22,728, and slightly risen to 25,973 in 2015.²¹⁴ There has been a particularly marked drop in the number of occupation orders from 10,897 in 2003 to 2,347 in 2015.

There are a number of possible explanations for this. One is that section 42A Family Law Act 1996, introduced in 2004, with the creation of an offence of breaching a non-molestation order, has deterred applicants.²¹⁵ However, the percentage drop in the number of occupation orders has been higher than in relation to non-molestation orders and so that cannot be a major cause. A more plausible explanation may be that the police are now taking domestic violence more seriously and are prosecuting domestic violence cases with greater vigour. That might mean that fewer people are seeing the need to rely on domestic violence remedies.

Another explanation is that there has been a decrease in the number of public funding (legal aid) for domestic violence proceedings.²¹⁶ It is difficult to know whether that is because fewer clients are seeking such orders or whether it is becoming harder to get public funding to seek them. What certainly seems to be true is that there are a decreasing number of solicitors' firms doing publicly funded work. It may be that the difficulty in accessing legal advice is causing a decrease in the numbers.²¹⁷ On the other hand the increase in applications for non-molestation orders for 2012–13, from 16,288 to 18,749, might suggest some people are applying for the order primarily as a passport to legal aid; although by 2015 this had dropped to 18,070, suggesting the cutbacks in legal aid have not led to a dramatic rise in applications.

However, changes to the law on legal aid do not explain the longer-term decline in the number of orders made. A closer look at the figure suggests another explanation. There has not been a huge drop in the number of applications. Indeed, there was only a drop of a few hundred in the number of applications for non-molestation orders between 2006 and 2013. It may be that judges are being less willing to grant domestic violence orders. This might indicate a scepticism about allegations of domestic violence, particularly in cases where there is a dispute over contact and the allegation may be regarded as being made to assist in the contact case, rather than being a genuine case. If so, this is very worrying. Especially worrying if judges fear applicants for non-molestation orders are really seeking access to legal aid, rather than protection from violence.²¹⁸ The statistics on domestic violence indicate that many more people suffer domestic violence than seek legal remedies and that where they do seek legal assistance this is after a lengthy period of abuse.

3 Domestic Violence Protection Notices and Orders

The police have power to issue a Domestic Violence Prevention Notice (DVPN) and apply for Domestic Violence Prevention Orders from the court. There were introduced under sections 24–33 of the Crime and Security Act 2010. Pilot studies were conducted in local areas and they came into force nationally in 2014. They are designed to deal with the problem that an

²¹⁴ HM Government (2016).

²¹⁵ Platt (2008).

²¹⁶ See Chapter 2.

²¹⁷ Burton (2009a).

²¹⁸ See Chapter 2.

abuser might be arrested by police and charged and then is normally released. There were cases where the abuser then returned to the victim and assaulted them, although in theory a victim could seek an emergency Occupation Order that would require her to be very familiar with the law and to act quickly. The DVPN can give the victim 'breathing space' and 'temporary respite' from the abuser.²¹⁹

A DVPN is issued by the police and a DVO is sought by the magistrates' court on application by the police. These can only be made if the parties are 'associated persons'.²²⁰ For a police officer to issue a DVPN: the authorising police officer must have reasonable grounds for believing that violence has been used or threatened and that a DVPN is necessary in order to protect the victim from violence or the threat of violence. These requirements are fairly broadly drawn and so a police officer should be able to issue a DVPN in any case where there are reasonable concerns that a victim is about to suffer domestic abuse. The officer must take reasonable steps to consult with the victim, but can issue a DVPN even if the victim objects.²²¹ The notice will prohibit the individual from molesting the victim and can exclude them from entering the house where the victim lives. Significantly the order only lasts 24 hours.²²² If further protection is needed the police need to apply to the magistrates' court for a DVO. A breach of a DVPN can lead to the individual being arrested and an application for a DVO can be made. It seems that a breach of a DVPN is not itself an offence.²²³

If an application is made for a DVO the following set out the criteria to be considered by the court:

LEGISLATIVE PROVISION

Crime and Security Act 2010, s 27

- (1) The court may make a DVPO if two conditions are met.
- (2) The first condition is that the court is satisfied on the balance of probabilities that P has been violent towards, or has threatened violence towards, an associated person.
- (3) The second condition is that the court thinks that making the DVPO is necessary to protect that person from violence or a threat of violence by P.
- (4) Before making a DVPO, the court must, in particular, consider—
 - (a) the welfare of any person under the age of 18 whose interests the court considers relevant to the making of the DVPO (whether or not that person is an associated person), and
 - (b) any opinion of which the court is made aware—
 - (i) of the person for whose protection the DVPO would be made, and
 - (ii) in the case of provision included by virtue of subsection (8), of any other associated person who lives in the premises to which the provision would relate.
- (5) But the court may make a DVPO in circumstances where the person for whose protection it is made does not consent to the making of the DVPO.

²¹⁹ Home Office (2015a).

²²⁰ As defined in FLA s 62.

²²¹ Crime and Security Act 2010, s 24(5).

²²² Crime and Security Act 2010, s 25.

²²³ Burton (2015).

The order will prevent the individual from molesting the victim and can prohibit them from entering the place the victim lives. The court should state the duration of the order, although no maximum is stated in the legislation.

The pilot studies indicated a degree of success with these orders. During the pilot there was considerable variation in the use of the orders. One study suggested in areas where they were little used, the fact DVPNs only lasted two days was referred to as an explanation. They were seen as not worth the bureaucracy.²²⁴ On the other hand there may be concerns that the order can interfere in the rights of the alleged abuser, especially as they are not authorised by the court. Restricting the maximum duration of the order to two days might do something to mitigate that concern.

4 Injunctions under the Protection from Harassment Act 1997 and tort

The Protection from Harassment Act 1997 in effect creates a new tort of harassment. It is possible to obtain an injunction if there is an actual or anticipated breach of s 1.²²⁵ Under s 1:

LEGISLATIVE PROVISION

Protection from Harassment Act 1997, section 1

- (1) A person must not pursue a course of conduct—
 - (a) which amounts to harassment of another, and
 - (b) which he knows or ought to know amounts to harassment of the other.
- (2) For the purposes of this section, the person whose course of conduct is in question ought to know that it amounts to harassment of another if a reasonable person in possession of the same information would think the course of conduct amounted to harassment of the other.
- (3) Subsection (1) does not apply to a course of conduct if the person who pursued it shows—
 - (a) that it was pursued for the purpose of preventing or detecting crime,
 - (b) that it was pursued under any enactment or rule of law or to comply with any condition or requirement imposed by any person under any enactment, or
 - (c) that in the particular circumstances the pursuit of the course of conduct was reasonable.

This section requires proof of three elements:

1. First, it must be proved that the defendant harassed the victim. The Act does not define harassment and so the word is to be given its normal meaning. However, the Act makes it clear that 'references to harassing a person include alarming the person or causing the person distress'.²²⁶ The most useful definition was produced by the Supreme Court in *Hayes v Willoughby*²²⁷ stated that 'harassment is a persistent and deliberate course of unreasonable

²²⁴ Burton (2015).

²²⁵ Protection from Harassment Act 1997, s 3.

²²⁶ Section 7(2).

²²⁷ [2013] UKSC 17.

and oppressive conduct, targeted at another person, which is calculated to and does cause that person alarm, fear or distress’.

2. The offence can be committed only where there is a course of conduct, which must involve conduct on at least two occasions.²²⁸ So a single incident, however terrifying, cannot amount to an offence under the Act. Two incidents separated by four months were found not to be a ‘course’ of conduct in *Lau v DPP*.²²⁹ However, it all depends on the nature of the conduct. If there was a threat to do an act and a year later the threat was carried out, this linked form of conduct could constitute a course of conduct.²³⁰ What is required is some kind of nexus or theme which connects the behaviour into a course of conduct.²³¹ In *R v Hills*²³² there were two incidents of violence separated by six months. However, between the two incidents the couple had cohabited and had sexual relations. This, the Court of Appeal felt, meant that there could not be a course of conduct. Indeed, they doubted that the Protection from Harassment Act 1997 was suitable in cases where the defendant and victim were living together, as such cases were a long way from the stalking cases at which the Act was primarily aimed. In *R v Widdows*²³³ it was held that the offence is not appropriate for ‘criminalising conduct, not charged as violence, during incidents in a long and predominantly affectionate relationship in which both parties persisted and wanted to continue’. That said, the 1997 Act has been used for a wide variety of cases beyond the traditional stalking cases, ranging from animal rights protesters, to neighbours falling out with each other, and it is hard to see why cohabitants should be seen as outside the Act’s scope.
3. It is enough if it is shown that the defendant *ought* to have been aware that his or her conduct was harassing. It is therefore no defence for defendants to claim that they were unaware that their behaviour was harassing. In *R v Colohan*²³⁴ the schizophrenic defendant argued that the jury should consider whether a reasonable schizophrenic person would be aware that his or her conduct was harassing. The argument was rejected: the jury or magistrates should simply consider what an ordinary reasonable person would have known.

There are various defences available listed in s 3(3). The one most likely to be relied upon is the defence that the course of conduct was reasonable. A defendant’s mental illness will not render his or her conduct reasonable.²³⁵ Once s 1 is established, an injunction can be made. In addition, s 3(2) states that damages can be awarded for anxiety and any financial loss.²³⁶

It should be stressed that this Act does not require there to be any kind of relationship between the parties. It is therefore potentially very wide. Interestingly, the first reported case under the section involved animal rights protesters picketing an animal laboratory.²³⁷ This was not the kind of case the Government had in mind in passing the legislation, but demonstrates the potential width of the statute.

²²⁸ Protection from Harassment Act 1997, s 7(3): conduct includes speech.

²²⁹ [2000] 1 FLR 799.

²³⁰ *Lau v DPP* [2000] 1 FLR 799.

²³¹ *R v Patel* [2004] EWCA Crim 3284. But repeated ‘spontaneous’ acts can be a course of conduct: *Hipgrave v Jones* [2005] FL 453.

²³² [2001] 1 FCR 569.

²³³ *R v Widdows* [2011] EWCA Crim 1500.

²³⁴ [2001] 3 FCR 409.

²³⁵ *R v Colohan* [2001] 3 FCR 409.

²³⁶ In *Singh v Bhakar* [2006] FL 1026, £35,000 was awarded to a wife harassed by her mother-in-law.

²³⁷ *Huntingdon Life Services Ltd v Curtis* (1997) *The Times*, 11 December.

5 Protection under the Mental Capacity Act and inherent jurisdiction

If a person lacks mental capacity an order can be made protecting them under the Mental Capacity Act 2005. In *Tower Hamlets London Borough Council v TB*²³⁸ a woman with a severe learning disability was found to have married her cousin and had four children with him. There had been a series of incidents of domestic violence. It was held she lacked capacity to consent to sex with her husband and to be married to him. It was held to be in her best interests to be separated from him.

In *A Local Authority v DL*²³⁹ the Court of Appeal confirmed that a local authority can seek an order under the inherent jurisdiction to protect victims of domestic violence. It will be interesting to see if this power is used extensively by local authorities concerned about victims of domestic violence who do not take steps to protect themselves and where there is insufficient evidence for a criminal prosecution.

CASE: *A Local authority v DL* [2012] EWCA Civ 253

DL, a middle aged man, lived with his parents (Mr and Mrs L). Mrs L was seriously disabled. There were concerns that DL was violent towards his parents and sought to control their lives. Mrs L opposed any legal action for fear she would lose contact with DL and that he might commit suicide. Had Mr and Mrs L lacked mental capacity then proceedings under the Mental Capacity Act 2005 could have been brought. However, they had capacity to decide where to live. The local authority sought to use the inherent jurisdiction to protect vulnerable adults. The Court of Appeal accepted that in a case like this the inherent jurisdiction could be used. Even though the couple had capacity, they were vulnerable, given DL's influence over them. The court would make an order which promoted their welfare. MacFarlane LJ explained that overruling the wishes of Mrs L in this case was not necessarily restricting autonomy: '... The jurisdiction ... is in part aimed at *enhancing or liberating* the autonomy of a vulnerable adult whose autonomy has been compromised by a reason other than mental incapacity ...'²⁴⁰ In other words, removing the source of influence would mean they could genuinely exercise their choice.

Surprisingly, the inherent jurisdiction was not used in the case of *PC v York*.²⁴¹ Here a young woman with intellectual impairment had fallen in love with a man in prison. Although he had a history of violence against former partners, she refused to believe he was guilty or posed a risk to her. She married him while he was in prison. Shortly before he was due to be released the local authority sought an order preventing her from living with him. The Court of Appeal found that she had capacity to make the decision as defined under the Mental Capacity Act 2005 and so the court should not intervene. The possibility of using the inherent jurisdiction was not referred to. This was surprising given the court had determined her failure to understand the risk he posed meant that she did not understand the key facts in deciding whether

²³⁸ [2014] EWCOP 53.

²³⁹ [2012] EWCA 253.

²⁴⁰ Paragraph 54.

²⁴¹ [2013] EWCA 478.

to live with him, but she did not fall under the 2005 Act because it had not been shown that her mental disorder had caused that lack of knowledge.²⁴² Critics complain the case left her in a relationship, which experts strongly predicted would be violent, on the basis of a decision she made based on a serious misapprehension about her partner.²⁴³

6 The Children Act 1989 and domestic violence

It is not possible to obtain a prohibited steps order or specific issue order under s 8 of the Children Act 1989, which has the same effect as an occupation or non-molestation order.²⁴⁴ There are two reasons for this. The first is that the basis of making an order under the Children Act 1989 is the welfare principle, whereas Parliament has set out different criteria in the Family Law Act 1996 for occupation and non-molestation orders. To allow someone to be able to get an occupation order under the Children Act 1989 would be to bypass the criteria in the Family Law Act 1996. The second is that an order under s 8 of the Children Act 1989 can be made only in respect of an issue which relates to an exercise of parental responsibility. An order that one partner does not molest the other would not relate to an exercise of parental responsibility and so could not be made under s 8 of the Children Act 1989.

7 Domestic violence and the criminal law

Learning objective 3

Analyse the response of the criminal law to domestic violence

The fact that a violent incident occurred in a home does not affect its position in the criminal law.²⁴⁵ An assault in a home is as much an assault as if it took place in a pub; at least, that is the theory. However, the history of the criminal law in this area shows that the police and courts have often regarded domestic violence as a less serious offence than other crimes. In recent years Parliament, the courts and police have shown an increasing awareness of the problems of molestation, domestic violence and stalking, but there is still much dissatisfaction with the operation of the criminal law.

A The substantive law

As already stated, the fact that an offence takes place in a home makes no difference to the substantive law. It is nowadays uncontroversial to say that a domestic assault is as serious as any other. However, some commentators have gone further and argued that in fact domestic assaults should be regarded as aggravated assaults. There could be special offences connected with domestic violence in the same way as there are offences dealing with racist assaults. There used to be a common law rule that a husband could not be guilty of raping his wife. The reasoning behind this rule was that, on marriage, a wife gave her irrevocable consent to sexual relations throughout marriage. In *R v R (Rape: Marital Exemption)*²⁴⁶ the House of Lords stated that the traditional view that a husband could not be guilty of raping his wife

²⁴² Presumably it was her love that blinded her to the dangers.

²⁴³ See Herring and Wall (2013) for further discussion.

²⁴⁴ *Re H (A Minor) (Prohibited Steps Order)* [1995] 1 FLR 638, [1995] 2 FCR 547.

²⁴⁵ Cowan and Hodgson (2007).

²⁴⁶ [1992] 1 AC 599. The decision was put into statutory form in Criminal Justice and Public Order Act 1994, s 142 and see now Sexual Offences Act 2003.

was now unacceptable and the common law rule was abolished. Now, a husband can be guilty of raping his wife. The fact that the law did not change until 1992 reveals the reluctance of Parliament and the courts to deal with domestic violence.²⁴⁷

Under the Crime and Security Act 2010 a pilot scheme gave the police the power to issue a 'domestic violence protection notice'. The police could issue this without going to court. The notice could prohibit molestation of a person associated with the individual or even remove them from the house. Crucially the victim's consent would not be needed for the notice to be issued. The police then have to apply to the Magistrate's Court for a domestic violence order. The court could make the order if satisfied on the balance of probabilities that the respondent was violent towards an associated person or threatened violence against them and that the order is necessary to protect the associated person from violence or threat of violence.²⁴⁸ The order could last for between 14 and 28 days. The Government has announced that the programme will be extended across the country, following a successful pilot scheme.²⁴⁹ Some have questioned whether these orders are primarily designed to save money on legal aid for funding applications for civil orders or funding prosecutions. There is also a question over whether they are compatible with human rights.²⁵⁰

Particularly controversial is the power of the police to issue a notice removing someone from their home, without a court hearing. Supporters of the order would point out it offers immediate and effective protection and that it only lasts for 48 hours. Opponents argue that being removed from one's home is a major invasion of rights and should not lie in the whim of a police officer.

Criminal courts, on conviction or acquittal of a defendant for any criminal charge, can now impose a restraining order for the purpose of protecting someone from conduct that amounts to harassment by the defendant.²⁵¹ The idea behind this is that if there is a criminal trial and it is clear that a person needs protection from domestic violence or harassment, the court will be able to offer the protection immediately, rather than the victim having to make an application of their own. In *AJR v R*²⁵² the court emphasised the need to show that the precise terms of the order were all necessary to protect the victim.

There have been cases where a victim of domestic violence has killed her abuser and been charged with murder. The courts have been willing to develop the law on the defence of loss of control and diminished responsibility to deal with such cases.²⁵³ However, there are still grave concerns over whether the current defences work effectively in these cases.²⁵⁴

Section 5 of the Domestic Violence, Crime and Victims Act 2004 creates an offence of failing to protect a child who was at risk of death or serious physical harm.²⁵⁵ While this has been welcomed by some as an important aspect of protecting children from violence, others have expressed concern that the offence has to date been used against mothers who were themselves the victims of domestic violence from the person who killed the child.²⁵⁶ It is suggested that the state would do better offering effective protection to victims of domestic violence, rather than prosecuting them for failing to protect their children, when the state itself has so manifestly failed to protect them.²⁵⁷

²⁴⁷ Herring (2011a) argues the law still fails to deal adequately with marital rape.

²⁴⁸ For an argument that beyond reasonable doubt should be the requisite burden of proof see Crompton (2014).

²⁴⁹ Gay (2014).

²⁵⁰ Crompton (2013b).

²⁵¹ Protection from Harassment 1997, s 5A.

²⁵² [2013] EWCA Crim 591.

²⁵³ See Herring (2012c) for a detailed discussion of the law.

²⁵⁴ Kaganas (2002).

²⁵⁵ Domestic Violence, Crime and Victims (Amendment) Act 2012 extended the offence to cover physical harm.

²⁵⁶ Herring (2007a).

²⁵⁷ Herring (2008b).

B The new domestic violence offence

Section 76 of the Serious Crime Act 2015 creates a new offence of controlling or coercive behavior in an intimate family relationship. It is designed specifically to deal with cases where there is domestic abuse but there has been no physical violence.

LEGISLATIVE PROVISION

Serious Crime Act 2015, Section 76

- (1) A person (A) commits an offence if—
 - (a) A repeatedly or continuously engages in behaviour towards another person (B) that is controlling or coercive,
 - (b) at the time of the behaviour, A and B are personally connected,
 - (c) the behaviour has a serious effect on B, and
 - (d) A knows or ought to know that the behaviour will have a serious effect on B.
- (2) A and B are 'personally connected' if—
 - (a) A is in an intimate personal relationship with B, or
 - (b) A and B live together and—
 - (i) they are members of the same family, or
 - (ii) they have previously been in an intimate personal relationship with each other.
- (3) But A does not commit an offence under this section if at the time of the behaviour in question—
 - (a) A has responsibility for B, for the purposes of Part 1 of the Children and Young Persons Act 1933 (see section 17 of that Act), and
 - (b) B is under 16.
- (4) A's behaviour has a 'serious effect' on B if—
 - (a) it causes B to fear, on at least two occasions, that violence will be used against B, or
 - (b) it causes B serious alarm or distress which has a substantial adverse effect on B's usual day-to-day activities.
- (5) For the purposes of subsection (1)(d) A 'ought to know' that which a reasonable person in possession of the same information would know.
- (6) For the purposes of subsection (2)(b)(i) A and B are members of the same family if—
 - (a) they are, or have been, married to each other;
 - (b) they are, or have been, civil partners of each other;
 - (c) they are relatives;
 - (d) they have agreed to marry one another (whether or not the agreement has been terminated);
 - (e) they have entered into a civil partnership agreement (whether or not the agreement has been terminated);

- (f) they are both parents of the same child;
 - (g) they have, or have had, parental responsibility for the same child.
- (7) In subsection (6)—
- 'civil partnership agreement' has the meaning given by section 73 of the Civil Partnership Act 2004;
 - 'child' means a person under the age of 18 years;
 - 'parental responsibility' has the same meaning as in the Children Act 1989;
 - 'relative' has the meaning given by section 63(1) of the Family Law Act 1996.
- (8) In proceedings for an offence under this section it is a defence for A to show that—
- (a) in engaging in the behaviour in question, A believed that he or she was acting in B's best interests, and
 - (b) the behaviour was in all the circumstances reasonable.
- (9) A is to be taken to have shown the facts mentioned in subsection (8) if—
- (a) sufficient evidence of the facts is adduced to raise an issue with respect to them, and
 - (b) the contrary is not proved beyond reasonable doubt.
- (10) The defence in subsection (8) is not available to A in relation to behaviour that causes B to fear that violence will be used against B.
- (11) A person guilty of an offence under this section is liable—
- (a) on conviction on indictment, to imprisonment for a term not exceeding five years, or a fine, or both;
 - (b) on summary conviction, to imprisonment for a term not exceeding 12 months, or a fine, or both.

Home Office guidance²⁵⁸ gives some examples of the kinds of behaviour that might fall within this offence:

- isolating a person from their friends and family;
- depriving them of their basic needs;
- monitoring their time;
- monitoring a person via online communication tools or using spyware;
- taking control over aspects of their everyday life, such as where they can go, who they can see, what to wear and when they can sleep;
- depriving them of access to support services, such as specialist support or medical services;
- repeatedly putting them down such as telling them they are worthless;
- enforcing rules and activities which humiliate, degrade or dehumanise the victim.

This offence is a welcome addition to the range of offences the police can use in prosecuting perpetrators of domestic violence. It will be interesting to see how often it is used. There are a number of features to highlight. First, the offence is only committed if the couple are 'personally connected', meaning they are relatives or have had an intimate relationship. So it does

²⁵⁸ Home Office (2015b).

not cover a case where a stalker is following someone they do not know. Second, the offence applies even if there has been no physical violence. It covers cases where the defendant is 'coercive and controlling'. However, it needs to be shown that this has a serious effect on the victim, as defined in subsection (4) to include fear of violence or alarm or distress which has a substantial adverse effect on B's usual day-to-day activities. This might, in some cases, be difficult to prove. Third, it is noticeable that the defendant is guilty if he 'know or ought to know' that his behaviour will have a serious effect on the victim. A defendant who claims that he did not realise his conduct was bothering the victim could still be convicted if he ought to have realised the impact on the victim.

A very surprising aspect of the offence is that a person with parental responsibility cannot be convicted of it in relation to their child under the age of 18. Why should a parent who is exercising coercive control over their child so as to have a serious effect on them not be guilty of a crime? Presumably Parliament feared that it might be seen as punishing strict parents and so be unacceptable to the general public. Another controversial aspect is the defence in subsection (9), which imagines a case where the coercive and controlling behaviour is reasonable. Perhaps such case might be where a spouse has dementia and their partner needs to restrict their freedom of movement to keep them safe.²⁵⁹ Although in such a case it might be thought the jury would readily conclude the behaviour was not coercive and controlling.

C The criminal law in practice

There has been a history of the criminal law not, in practice, taking domestic violence seriously. A 2014 report by Her Majesty's Inspectorate of Constabulary admitted:

The overall police response to victims of domestic abuse is not good enough. This is despite considerable improvements in the service over the last decade, and the commitment and dedication of many able police officers and police staff. In too many forces there are weaknesses in the service provided to victims; some of these are serious and this means that victims are put at unnecessary risk. Many forces need to take action now.

Domestic abuse is a priority on paper but, in the majority of forces, not in practice.

Factors that contribute to this in many forces are:

- a lack of visible leadership and clear direction set by senior officers;
- alarming and unacceptable weaknesses in some core policing activity, in particular the collection of evidence by officers at the scene of domestic abuse incidents;
- poor management and supervision that fails to reinforce the right behaviours, attitudes and actions of officers;
- failure to prioritise action that will tackle domestic abuse when setting the priorities for the day-to-day activity of frontline officers and assigning their work;
- officers lacking the skills and knowledge necessary to engage confidently and competently with victims of domestic abuse; and
- extremely limited systematic feedback from victims about their experience of the police response.²⁶⁰

In a survey conducted for the report a third of victims felt no safer as a result of the police intervention.

²⁵⁹ Home Office (2015a).

²⁶⁰ HMIC (2014).

In a file review of 600 domestic abuse cases of actual bodily harm (where the victim will have a visible injury), HMIC found that photographs of the injury were taken in only half of the cases, and in three cases out of 10 the officer's statement lacked important details such as a description of the scene or the injuries of the victims. There are also striking variations in practices around charging perpetrators of domestic abuse with criminal offences. In some forces, there are high levels of cautioning. In addition, in some forces there appear to be comparatively fewer charges for domestic abuse-related crimes compared with other offences. HMIC is concerned that these data further underline that some forces are not prioritising the issue of domestic abuse.

As the HMIC report indicates, although at present much work is being done to change attitudes, for too long the approach of the police was that 'domestics' were not proper crimes which warranted a thorough investigation.²⁶¹ Further, the prosecution authorities were reluctant to take such cases to court unless there was a very high chance of success. The Government has declared it as an aim of its domestic violence policy to increase arrest and prosecution rates.²⁶² This seems to have succeeded. The volume of prosecutions for violence against women and girls rose from 75,000 in 2007–08 to 91,000 in 2011–12, an increase of 21 per cent.²⁶³ The volume of convictions rose by 29 per cent from 52,000 to almost 67,000. The rate of 'successful' prosecutions for domestic violence has increased from 46 per cent in 2003 to 73 per cent in 2011.²⁶⁴ These are welcome figures, but are still a small percentage of domestic violence incidents. The Director of Public Prosecutions, however, has admitted that more work needs to be done on combatting domestic violence among ethnic minority groups.²⁶⁵ Similarly, more work is needed in ensuring that gay and lesbian victims of domestic violence do not see contacting the police as 'seeking help from the enemy'.²⁶⁶

There are basically three stages at which an incident of domestic violence may fail to lead to a successful prosecution: the arrest; the decision to prosecute; and the trial.

(i) Arrest policies

Criminologists have written much on the importance of police culture²⁶⁷ and have argued that in police culture domestic violence is often not taken seriously enough. At present in England and Wales there is a wide range of practice in cases where the police respond to a domestic violence incident. In Northamptonshire just over 40 per cent of cases lead to an arrest, while in Cleveland well over 90 per cent do.²⁶⁸ The official policy on arrest is set out in the HMIC report:

where there are 'grounds for arrest in the context of domestic abuse, it will normally be necessary for the officer to exercise that power'. The decision to arrest lies with the arresting officer at the scene, based on the circumstances of the offence, and their professional judgment about whether this power should be exercised. This is not a mandatory arrest policy, but a policy with a strong expectation that where arrest is justified it will be carried out, and if the arrest is not made it needs to be justified and reasons recorded. Where the decision is made not to arrest, there are still likely to be other actions that the officer needs to take in order to meet the requirements of a positive action policy. These will include actions to ensure the safety of the victims and of any children.

²⁶¹ See also Hester and Westmarland (2005).

²⁶² Home Office (2006a).

²⁶³ Starmer (2012).

²⁶⁴ Starmer (2012).

²⁶⁵ Starmer (2012); Thiara and Gill (2010).

²⁶⁶ Donovan and Hester (2011). Andrews and Johnston Miller (2013) suggest the increasing number of women police officers has helped improve attitudes towards domestic abuse.

²⁶⁷ Hoyle (1998).

²⁶⁸ HMIC (2014).

There are three main problems which limit the likelihood of arrest. First, for various reasons, the victim may fail to contact the police after an assault. For example, the victim may feel that what happened was not a crime, or she may feel that she would not be taken seriously. Secondly, the police may not make an arrest because they themselves do not regard domestic violence as a 'proper crime', or because they find it impossible to discover what actually happened. The police arrive at scenes which are often emotionally charged and not easy to deal with. Certainly a domestic violence incident is not as clear-cut an issue as dealing with a fight outside a pub. Thirdly, the victim, even though she may have contacted the police, may not actually want an arrest, but just want the man to be removed.²⁶⁹ This decision might be encouraged explicitly or implicitly by the police's reaction to the situation.

(ii) 'Down-criming' and decisions not to prosecute

Some people have alleged that although there has been an increase in the number of arrests for domestic violence following changes made in police practice, the number of convictions has not changed, because of the attitude of the Crown Prosecution Service (CPS).²⁷⁰ It is the job of the CPS to decide either to prosecute the offence; to 'down-crime' (that is, to charge a lesser offence than the one the victim alleges); or not to pursue the case to a court hearing.²⁷¹ The decision not to prosecute, or to 'down-crime', may be caused by difficulties of proof, especially as often the only witnesses to the incident are the victim and the defendant. It may be that the victim is unwilling to pursue the prosecution because of her fear of reprisals or because she believes that it will be of no tangible benefit to her. Indeed, the imprisonment of the abuser might cause the victim financial and emotional harm. In cases where a victim withdraws her testimony, the CPS has been instructed to investigate to ensure that her decision truly reflects her wishes.²⁷² The CPS may prosecute even if the victim does not wish to give evidence.²⁷³ However, in practice it is rare for there to be a prosecution if the victim is unwilling to cooperate.

(iii) The trial

Even if the case reaches trial, a conviction is, of course, not guaranteed. There are particular problems if the victim does not want to give evidence.²⁷⁴ Under s 23 of the Criminal Justice Act 1988 a written statement of the victim of an assault may²⁷⁵ be admissible as evidence.²⁷⁶ So in suitable cases there may be no need for the victim to give evidence in court. Nevertheless, live evidence is likely to be more persuasive to a jury. It would be possible to compel the victim to give oral evidence, by threatening them with contempt of court if they fail to testify in person.²⁷⁷ In one case a victim refused to give evidence and this led to the case being dropped against her attacker, but as a result the judge decided to sentence the victim to prison for contempt of court.²⁷⁸

²⁶⁹ Hoyle (1998: 214).

²⁷⁰ See Crown Prosecution Service (2009) for their current policy.

²⁷¹ 'Down-criming' occurs in all offences.

²⁷² Home Office (2000c: 2b:ii.4).

²⁷³ Crown Prosecution Service (2009).

²⁷⁴ Home Office (2000b: ch. 2) sets out guidance for courts in order to make the experience of giving evidence as untraumatic as possible.

²⁷⁵ The court has a discretion to decide whether to admit the statement, and in particular to rule whether the evidence can be subject to the scrutiny of cross-examination.

²⁷⁶ Although only if the witness was able to give that evidence 'live'.

²⁷⁷ Police and Criminal Evidence Act 1984, s 80.

²⁷⁸ *R v Renshaw* [1989] Crim LR 811.

D Reforming the criminal procedure

A more radical approach could be taken by the criminal law in dealing with domestic violence. Some of the options are as follows.

(i) Pro-arrest guidelines or pro-prosecution

Some jurisdictions have adopted 'pro-arrest' policies or even 'mandatory arrest' policies.

TOPICAL ISSUE

Pro-arrest policies

With pro-arrest policies the police are required or strongly encouraged to arrest an abuser if the victim of domestic violence makes a complaint.²⁷⁹ Even if the victim subsequently withdraws her consent, the prosecution should still continue. In the United Kingdom the closest statement to a mandatory arrest policy is the most recent guidance of the Home Office, suggesting that, unless there are good reasons not to, an arrest should be carried out in cases of domestic violence.²⁸⁰ Further, there could be a strong presumption in favour of prosecuting domestic violence cases, even where the victim opposes this.

One argument in favour of a mandatory arrest and prosecution policy is that a potential abuser, aware of the high likelihood of being arrested, may be deterred from violence. Others suggest that it is unlikely that batterers would be aware of the policy, and, even if they were, it would not operate as a deterrent in the 'heat of the moment'. A further justification of a pro-arrest or mandatory arrest policy is that the batterer will automatically be publicly labelled as an abuser. The publicity that would surround such a policy might make a powerful statement to society in general that domestic violence is unacceptable.²⁸¹ The policy would also lead to less pressure being put on victims, who would not have to decide whether or not to seek arrest or prosecution, and because of this might also be more willing to assist police officers.²⁸² This, supporters claim, will disempower batterers, by removing their ability to thwart criminal procedures by terrifying the victim into withdrawing her complaint.²⁸³ Critics could reply that such policies in fact disempower the victim by assuming that society knows what is best for her, rather than letting her decide whether to pursue her complaint.²⁸⁴ Such policies, some claim, work against the interests of women and racial minorities.²⁸⁵

One well-known example of a mandatory arrest policy in practice was the Minneapolis Experiment in the United States. Although this policy led to a reduction in the rate of reported domestic violence, it was unclear whether this was because victims were not reporting violence because of the policy or whether the policy did indeed reduce the level of violence.²⁸⁶ Further replica studies in Omaha, Nebraska and Charlotte, North Carolina failed to replicate the

²⁷⁹ Ellison (2002a).

²⁸⁰ Home Office (2000c: ch. 2).

²⁸¹ Madden Dempsey (2007 and 2009) describes how effective prosecution of domestic violence can exhibit the characteristics of a feminist state.

²⁸² Ellison (2002a).

²⁸³ Schneider (2000b: 488).

²⁸⁴ Dayton (2003); Miccio (2005).

²⁸⁵ Gruber (2007).

²⁸⁶ Buzawa and Buzawa (2003).

Minneapolis results.²⁸⁷ There is therefore no conclusive evidence that such a policy would lead to a reduction in the level of violence. The argument that such a policy would send out a clear message of society's disapproval of domestic violence still stands.

Carolyn Hoyle and Andrew Saunders have argued:

The pro-arrest approach assumes a position opposite to that of the victim choice model approach: that victims have little agency and that the police and policy makers know what is best for them. It seems presumptuous that policy makers or the feminist advocates who have influenced them can easily determine what is best for, or in the interests of, a diverse group of battered women. It is as much a conceit as the theory of deterrence in this area, which assumed that violent men are a homogeneous group.²⁸⁸

This, however, assumes that it is straightforward to ascertain what a victim wants. Even in cases where the victim is saying that she does not want a prosecution, this may not represent her true wishes. She may be acting out of fear of reprisal or she may have contradictory wishes: I do not want the violence to continue, but I do not want a prosecution. In such a case, ascertaining her wishes is not straightforward.

A pro-arrest policy could also be supported on human rights grounds.²⁸⁹ As explained earlier in this section the state has an obligation to take reasonable steps to protect citizens from inhuman and degrading treatment.²⁹⁰ A failure to arrest or prosecute a perpetrator of domestic violence could infringe the victim's rights under articles 2, 3 or 8 of the ECHR.²⁹¹ This could lead to a claim for damages under ss 7 and 8 of the Human Rights Act 1998.

(ii) 'Rehabilitative psychological sentences'

An alternative approach would be for the criminal law to focus on the rehabilitation of domestic violence offenders rather than on punishment. In other jurisdictions those arrested for domestic violence offences can be sent on 'batterers' programmes'.²⁹² Linda Mills has argued for a model 'therapeutically fostering reconciliation' loosely modelled after the Truth and Reconciliation Commission in South Africa.²⁹³ Other models focus on the apparent psychological inadequacies of the aggressor: they can teach the aggressor acceptable ways of expressing anger; challenge the abuser's general attitude towards women; or treat both the abuser and the victim together by finding ways to improve their communication.²⁹⁴ Supporters of such programmes suggest that in this way the law can actually prevent future violence, but opponents argue that the method fails to take violence seriously enough and treats it as an illness rather than as criminal behaviour. Further, there is little evidence yet that they are effective.²⁹⁵ Mullender and Burton found that a large majority of victims did not want prosecutions of the

²⁸⁷ A further difficulty with the approach is that it might lead to both parties being arrested, if both have been violent. It might be possible to require arrest of the primary aggressor, but this would not be an easy policy to implement on the ground.

²⁸⁸ Hoyle and Sanders (2000: 19).

²⁸⁹ Choudhry and Herring (2010: ch. 9); Choudhry (2010).

²⁹⁰ *Opuz v Turkey* (App. No. 33401/02).

²⁹¹ Burton (2010).

²⁹² According to evidence given to the House of Commons Home Affairs Select Committee (2008), such programmes have huge waiting lists and few resources.

²⁹³ Mills (2003) and Stark (2005) are strongly critical of approaches of this kind.

²⁹⁴ Dobash and Dobash (2000) and Bowen, Brown and Gilchrist (2002) describe such programmes.

²⁹⁵ Mullender and Burton (2000).

alleged abuser, some because they did not want to break up their relationships.²⁹⁶ For such cases the psychological course may find favour with victims. There is, however, much debate over the effectiveness of such programmes.²⁹⁷ The Home Office has recognised the benefits of some programmes of this kind, but has not suggested that they should replace the sanctions of the criminal law.²⁹⁸ Interestingly the HMIC report takes a very negative line towards them: 'The police should not use restorative justice in intimate partner domestic abuse cases and should do so with extreme caution in other forms of domestic abuse.'²⁹⁹ One journalist has rather scathingly written the message sent by such programmes is 'Violent men beware! Beat up your wife and go on a course'.³⁰⁰

(iii) Not using the criminal law at all

It could be argued that the criminal law is inappropriate in cases of domestic violence. Given that there are such difficulties in proof and in finding punishments that meet the victims' needs, rather than developing criminal law and policing, the law should focus on attempting to find alternative housing for abused women. Some say that imprisoning the abuser can only worsen the position of the victim.³⁰¹ However, this approach fails to recognise the interest that society has in preventing domestic violence and in expressing its condemnation of such acts through the criminal law. Offering alternative accommodation can be used in conjunction with the criminal law, but should not be a replacement for it.

Another line of approach is to help people avoid entering abusive relationships. Education at schools may assist here. In November 2013, the Home Secretary announced that the domestic violence disclosure scheme would come into effect in 2014. This allows someone to ask the police whether their partner has a violent past and so might pose a risk of violence.³⁰²

8 Children abusing their parents

Learning objective 4

Summarise the issues around parental abuse

One problem that is only recently receiving the attention it deserves is that of teenagers abusing their parents. In her overview of the research Amanda Holt³⁰³ found its prevalence varies from 7–29 per cent of parents. Mothers bore the vast brunt of the violence. However, the Parentline survey found both boys and girls were roughly equally likely to be aggressive, although physical violence was much more common among boys. In another survey of parents receiving violence, 35 per cent had not sought help because they did not know where to go to find that help, and a further 11 per cent did not seek help because of the stigma.³⁰⁴

²⁹⁶ Mullender and Burton (2000). Some victims are concerned that informing public authorities about violence will lead to investigation by social workers into the welfare of their children: McGee (2000).

²⁹⁷ Bullock *et al.* (2010).

²⁹⁸ Home Office (1999).

²⁹⁹ HMIC (2014).

³⁰⁰ Bindel (2015).

³⁰¹ Hoyle and Sanders (2000: 19).

³⁰² Gay (2014).

³⁰³ Holt (2012).

³⁰⁴ Family Lives (2012).

The causes of parental abuse are complex. It should not be assumed that the issue can be directly analogised to domestic violence,³⁰⁵ although there are clear similarities. Parents suffering parental abuse often report feelings of guilt and shame: they see the violence as reflecting badly on their parenting.³⁰⁶ They also report confusion as the child appears loving and kind one moment and aggressive the next. The legal solution is not straightforward. Understandably, parents are reluctant to voice their concerns about such a problem. Few parents would want to see their children prosecuted or removed from them. Indeed, in many cases parents will feel that they are to blame, due to their failure to parent their children effectively.

The issue does not neatly fall into the categories of family law. Is it best regarded as an issue of domestic violence or child protection? Does the fact that child is being violent indicate that they need to be taken into care or receive punishment? It may be that there are elements of both issues in some of these cases.³⁰⁷

9 Why the law finds domestic violence difficult

Learning objective 5

Debate the theoretical issues around the response of the law to domestic abuse

Around the world, legal systems struggle to find the correct response to domestic violence. There are a number of reasons for the difficulties.

A The traditional image of the family

Domestic violence challenges the traditional images within family law of the family as a place of safety, a haven in a harsh world.³⁰⁸ The presumption of non-intervention in family life is based on this peaceful view of families, although, as we saw when considering the statistical information on domestic violence, abuse is common in the home. The strength of the image of the family may explain why some victims refuse to regard themselves as the victims of crime, even regarding violence as an aspect of 'normal life'.³⁰⁹

B Privacy

At the start of this text the importance of the concept of privacy in family law was stressed.³¹⁰ O'Donovan³¹¹ suggests: 'Home is thought to be a private place, a refuge from society, where relationships can flourish uninterrupted by public interference.' So not only is the home regarded as a refuge; some consider it essential that the law should 'stay out of the home'. Catharine Mackinnon characterised the ideology of privacy as 'a right of men "to be let alone" to oppress women one at a time'.³¹² However, despite the strength that has traditionally been attached to the privacy argument, there are good reasons in favour of state intervention in cases of domestic violence.

³⁰⁵ Baker (2012).

³⁰⁶ Holt (2011).

³⁰⁷ See Herring (2015) for further discussion.

³⁰⁸ Lasch (1977). See Suk (2009) who argues this image has now disappeared.

³⁰⁹ Kaganas and Piper (1994).

³¹⁰ Schneider (1994).

³¹¹ O'Donovan (1993: 107).

³¹² Mackinnon (1987: 32).

1. Battering can be seen as causing public harm: it can cause increased costs to the NHS; extensive loss to the economy of police time, victims having to take time off work, etc. It has been estimated that domestic violence alone costs the economy £5.8 billion per year, once the costs to the National Health Service, police and lost work have been taken into account.³¹³ Notably, half of women seeking help for mental health problems have been the victim of domestic violence.³¹⁴
2. It could be said that domestic violence is caused by and reinforced by patriarchy. As the state upholds and maintains patriarchy, it has responsibility for it and so is under a duty to mitigate its effects.
3. Intervention in domestic violence could be required in order to uphold the equal rights of men and women. If there is to be equality between the sexes in the home, there must be effective remedies for domestic violence.

It has been argued that if society focuses on the victim's privacy rather than the privacy of the 'home', intervention is justified. Schneider³¹⁵ maintains that the state needs to promote 'a more affirmative concept of privacy, one that encompasses liberty, equality, freedom of bodily integrity, autonomy and self-determination, which is important to women who have been battered'. Intervention in domestic violence can therefore be justified in order to promote the privacy of the victim. However, Jeannie Suk is concerned that arguments such as these mean that the notion of intimate space has been lost. She is not convinced that this is necessarily good for women. 'The abuser is out, and the state is in',³¹⁶ she explains, expressing her concern that women who were controlled by abusers might now be controlled by the state. This may be exaggerating what is happening. The state in removing the abuser is not remaining in the home in a controlling way.

C Difficulties of proof

One of the difficulties of domestic violence is that often the only witnesses to the violence are the two parties themselves. In many cases it is one person's word against another's. This requires the courts to make orders that may infringe important rights of either party on the basis of meagre evidence. If the court makes the wrong decision, an innocent person may be removed from his or her home, or a victim may be denied protection from further violence. An obvious objection to mandatory prosecution is that without the evidence of the victim it is going to be extremely difficult to obtain a conviction. The incident is often only witnessed by the victim: so, in a practical sense, is it possible to prosecute where the victim opposes the prosecution? Those who wish to see more extensive prosecution in this area might suggest two solutions. One would be to compel victims of domestic violence to testify under pain of imprisonment for contempt of court. This has few supporters. As the primary justification offered for intervention is the protection of the rights of the victim and any children, to imprison the victim would undermine that aim. The second alternative has more support. This involves a prosecution without the involvement of the victim. At present it is very rare for this to happen.³¹⁷ Louise Ellison³¹⁸ has argued that 'victimless prosecution' is the way

³¹³ Walby (2004).

³¹⁴ Home Office (2003a: 10); Walby (2004).

³¹⁵ Schneider (1994: 37).

³¹⁶ Suk (2009: 34).

³¹⁷ Edwards (2000).

³¹⁸ Ellison (2002a and b).

forward.³¹⁹ She argues that, although it is often assumed that without victim involvement a prosecution is not possible, more imaginative policing and prosecution techniques would make it feasible. She discusses, for example, the use of cameras as soon as the police arrive on the scene, to capture objective evidence of injuries.³²⁰ She recommends that police procedure in domestic violence cases should be premised on the assumption that there will be a 'victimless prosecution'.³²¹ There may also need to be changes to the law of evidence – and in particular the hearsay rule and the admissibility of previous convictions – to assist in victimless prosecution. The advantages of victimless prosecution are clear: it involves less invasion of the victim's autonomy if the victim is opposed to it; the victim can avoid the pressures associated with giving evidence in these kinds of cases; and it can prevent threats or other pressures being used to dissuade victims from participating in litigation. Of course, none of this should be seen as seeking not to prosecute with the victim's consent; much more should be done to enable and encourage the victim to support the litigation. The use of specialist domestic violence police, advisors,³²² prosecutors and courts might assist in these procedures.³²³ The pilot studies to date indicate that in specialist domestic violence courts victimless prosecutions have been successfully brought.³²⁴

D Occupation or protection

There are two kinds of cases in which someone may apply for an order relating to the occupation of a home: the first type involves domestic violence, where the applicant is seeking protection; the second kind involves no violence and the dispute concerns who should occupy the home until a final resolution is reached regarding the financial affairs of the couple (this being more in the nature of a property dispute). Although these are quite different kinds of cases, the Family Law Act 1996 deals with them both under ss 33, 35 and 36.

E Victim autonomy

DEBATE

What weight should be attached to the wishes of the victim?

There can be real difficulties in finding a correct solution to a situation once domestic violence is proved. In some cases the ideal solution from the victim's point of view is that her partner returns to the home but ceases to be violent. The victim may be emotionally and financially dependent on the abuser and to imprison him might cause her further harm.³²⁵ It can be argued that a victim who wishes to remain in a violent relationship is not expressing her genuine wishes, and that, rather than respect what the victim says she wants, we should

³¹⁹ See also Edwards (2000) arguing for a greater willingness to use victim's written statements in cases where victims are unwilling to give evidence in court.

³²⁰ HMIC/CPSI (2004: 10) contains useful discussions of some of the practical steps that can be taken.

³²¹ Ellison (2002b) and Crown Prosecution Service (2009).

³²² Howarth *et al.* (2009).

³²³ Lewis (2004). Crown Prosecution Service and Department of Constitutional Affairs (2004) reports particularly favourably on developing a multi-agency framework to provide improved support to victims.

³²⁴ Burton (2006).

³²⁵ In certain cultures there may be severe social disadvantages following public intervention in domestic violence.

seek to put the victim where the victim, free from violence, can make genuine choices.³²⁶ As one victim is reported as saying: 'He basically reprogrammed me to make me think that I was just worthless and absolutely nothing.'³²⁷

Another argument is that the common attitudes of victims to domestic violence – 'I want the relationship to continue, but the violence to stop' – represent incompatible wishes. The law is not able to respect both of these desires of the victim. The law could take the view that the desire for the violence to stop is the more important aspect of the wishes of the victim.

There may also be a conflict here between the interests of the state and the victim. The state may wish to express its abhorrence of domestic violence by a severe punishment, whereas the victim may not seek such stern treatment. This tension is revealed in civil law in that s 60 of the Family Law Act 1996 permits third parties to bring proceedings on a victim's behalf, but the courts may make orders on their own motion under s 42 of the Family Law Act 1996. Both sections suggest that it may be proper to provide a victim with protection which she does not want. In criminal law, encouraging arrest and pressurising a victim into providing evidence demonstrates the tension between protecting the victim's right to choose what should happen and voicing society's opposition to domestic violence. A leading body representing family lawyers has urged that protection rather than punishment should be at the heart of law on domestic violence.³²⁸ At the extreme it might even be alleged that a victim's autonomy is threatened, on the one hand, by her abusive partner and, on the other, by state agencies acting to 'protect her' contrary to her wishes.³²⁹ However, whether an abused woman is in a position to exercise autonomy following what might be years of abuse is also open to question.³³⁰ Further, it could be argued that the interests of potential future victims of domestic violence justify a tough approach against current incidents of violence.³³¹ The reasons for this reluctance on the part of the victim may include: a fear of retaliation if they are seen to co-operate in legal proceedings; a desire that the relationship with the abuser continue; concerns about the welfare of children; difficulties in obtaining legal aid for civil proceedings;³³² a failure on the part of the police and others in supporting victims; and a sense that none of the 'remedies' on offer by the law is helpful.

Questions

1. *Is it demeaning to treat victims of domestic violence as 'vulnerable adults' who do not deserve the full protection of autonomy?*
2. *Do you think that domestic violence crimes are not really 'crimes against the state' and therefore can be treated differently from assaults in public places?*

Further reading

Read **Hoyle and Sanders** (2000) and **Choudhry and Herring** (2006a) for contrasting views on the correct response to whether mandatory arrest and prosecution would be a good idea.

³²⁶ The argument is discussed in Miles (2001: 101).

³²⁷ Quotes Casciani (2014).

³²⁸ Solicitors Family Law Association (2003).

³²⁹ Mills (2003).

³³⁰ Hoyle and Sanders (2000).

³³¹ Ellison (2002b).

³³² Rights of Women (2004: 5).

F Integrated approaches

One of the difficulties that the law has faced in this area has been integration of the work of the civil courts and criminal courts. An incident of domestic violence can lead to both a criminal prosecution and a civil application by the victim. We have not had room to cover housing law, but that is another area where domestic violence can be very relevant. If the courts which hear the different applications are not co-ordinated, there is a danger of conflicting remedies being provided.

One solution is the creation of specialist domestic violence courts which hear all kinds of cases of domestic violence.³³³ The other benefit of this is that the courts become expert in the law and issues surrounding domestic violence. A further example of integrating civil and criminal remedies is s 5A of the Protection from Harassment Act 1997: a court which acquits a defendant on a charge under the Act may nevertheless make a restraining order protecting the alleged victim. This might be appropriate in a case where, although it has not been proved that the defendant committed an offence, there is enough evidence to demonstrate that the 'victim' requires protection. Certainly it must not be forgotten that the making of a court order is only the start of the process of responding to domestic violence. There are often long-term issues arising from it which require extensive involvement from a range of agencies.³³⁴

A different issue of integration is the need to achieve co-operation between the different groups who work with victims of domestic violence: battered women's refuges, the police, local authority housing departments and benefits agencies might all need to work together to provide effective protection for victims of domestic violence. The Government has been seeking to improve communication between the different groups.³³⁵ Ninety per cent of police forces have now appointed domestic violence officers who will coordinate the responses to domestic violence cases.³³⁶

G The law is not appropriate

Some feminists argue that the law's treatment of domestic violence is doomed to fail, given the patriarchal domination of the language, procedures and personnel of the legal process.³³⁷ They maintain that domestic violence can only be combatted if the domination of women by men throughout society is brought to an end. Until then the law can only tinker at the edges of the problem. Indeed it is worth noting the depressing statistic that in one survey over 90 per cent of abused women continued to face abuse even after they had separated from the abuser.³³⁸

³³³ Crown Prosecution Service and Department of Constitutional Affairs (2004). See Burton (2006) for an excellent discussion of the work of these courts.

³³⁴ Abrahams (2010).

³³⁵ Home Office (2006a).

³³⁶ HMIC/CPSI (2004: 3.26).

³³⁷ Smart (1984).

³³⁸ Kelly, Sharp and Klein (2013).

10 Conclusion

This chapter has considered the law on domestic violence. This is an area where the notion of privacy has been particularly influential: that behaviour between partners in their home is their own business and the state should not interfere. In recent years the extent of domestic violence has become more widely acknowledged, both in terms of the severity of the violence and the number of people involved. However, acknowledgement of the problem is but a small step towards providing a solution. The Family Law Act 1996 and the judicial interpretation of that statute reveal that ousting abusive partners runs counter to the protection of property rights and (now) the right to respect for family and private life under the Human Rights Act 1998. So, even if ousting an abusive partner will provide the most effective protection to a victim of domestic violence, the courts will require convincing evidence before being willing to do so. A further difficult issue is to what extent the law should respect the right of autonomy of the victim of domestic violence and therefore rely on her to pursue the remedy she wishes; and to what extent the state should seek to protect the victim (regardless of whether she wants the intervention). This is an area where, perhaps, the solution lies not so much in the hands of the law, but in a wholesale change in attitudes towards violence in the home.³³⁹

There is little doubt that in the past few decades there has been real progress in the legal response to domestic violence. It is taken more seriously in the criminal justice system and there is a greater awareness of the issue among the judiciary. However, as Marianne Hester³⁴⁰ argues, there is a problem with what she calls the ‘three planets’ of domestic violence law, the law on contact disputes and child protection issues.³⁴¹ While in straightforward applications for domestic violence orders the law’s response is generally reasonable, when the issue arises outside that context, in a child contact case, for example, it is sidelined. Sensitivity to domestic violence issues should not be restricted to ‘domestic violence cases’.

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³³⁹ Home Office (2000d and 2000e) discuss how the Government intends to change attitudes towards domestic violence.

³⁴⁰ Hester (2011).

³⁴¹ Financial orders on separation should be added to make four planets.

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8

Who is a parent?

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain and evaluate the different theories about the definition of parenthood
2. Define who is a mother according to law
3. State who is a legal father
4. Summarise how the status of parenthood can be lost
5. Discuss the position of the social parent
6. Explain who has parental responsibility
7. Debate who should get parental responsibility
8. Critically examine how parenthood issues are dealt with in cases involving same-sex couples

1 Introduction

It may seem rather odd to ask, 'Who is a parent?'¹ But the concept of parenthood is far from straightforward. It is often assumed that the parents of a child are the woman whose egg and the man whose sperm together ultimately produce the child. In the past, although there may have been practical problems in proving who was the biological father, that definition of parenthood was generally agreed. In recent times this definition has become problematic.² Four developments in particular have caused a re-examination of the concept of parenthood. The first is the advent of new reproductive technologies.³ Now the woman who carries the child need not be genetically related to the child; a man may donate sperm to a hospital without ever intending to play a parental role; a whole range of options have been opened up for same-sex couples wishing to produce a child. Technologies continue to evolve and in 2008 it

¹ The United Nations Convention on the Rights of the Child does not include a definition of a parent. For a general discussion on defining parenthood, see Bainham (1999) and Steinbock (2005).

² Jones (2007).

³ Sheldon (2005).

was announced that a man had been enabled to become pregnant.⁴ In 2014 technology was approved which would enable a child to be born genetically related to three or more people.⁵ It is now plausible to talk of a right to procreate.⁶ Secondly, with increased rates of divorce and breakdown of relationships it is now common for a child to be cared for by someone who is not necessarily a genetic parent but, for example, a step-parent. Indeed, a child may have a series of adults who carry out the social role of being a parent. For such children there has been a separation between who is the person caring for them day to day and who is their genetic parent. Thirdly, there has been an increased interest in child psychology among lawyers, and an acceptance that children may have a 'psychological parent' who is not genetically their parent, but is regarded by the children as their parent.⁷ Fourthly, what it means to be a mother or father in our society is undergoing complex and interesting changes. Men are sometimes seen as dispensable in the reproductive process, men are mere 'mobile sperm banks' it is said.⁸ Yet many men greatly value the paternal role.⁹ Sally Sheldon and Richard Collier have written of the 'fragmentation' of fatherhood, with it appearing to involve a number of disparate and sometimes conflicting roles.¹⁰

Shortly, the law on parenthood will be considered, but it will be useful to consider briefly the understanding of parenthood from three other disciplines.

2 Psychological, sociological and biological notions of parenthood

It is interesting to examine how different academic disciplines understand the notion of parenthood. Here are some examples.

A Child psychologists

Learning objective 1

Explain and evaluate the different theories about the definition of parenthood

One influential group of child psychologists has argued that, from a child's perspective, 'psychological parenthood' is of greater significance than biological parenthood.¹¹ Goldstein *et al.* write:

Whether any adult becomes the psychological parent of a child is based on day-to-day interaction, companionship and shared experiences. The role can be fulfilled either by a biological parent or by an adoptive parent or by any other caring adult – but never by an absent, inactive adult, whatever his biological or legal relationship to the child may be.¹²

They explain that children's and adults' perceptions of parenthood may differ:

Unlike adults, children have no psychological conception of blood tie relationship until quite late in their development. For the biological parents, the experience of conceiving, carrying and giving

⁴ BBC Newsonline (2008c).

⁵ Chau and Herring (2015).

⁶ Eijkholt (2010).

⁷ See *Re CC (Adoption Application: Separated Applicants)* [2013] EWHC 4815 (Fam) for judicial use of the terminology 'psychological parents'.

⁸ Deech (2000).

⁹ See Collier (2009a) and Daniels (2006) for the tensions between reproduction and notions of masculinity.

¹⁰ Collier and Sheldon (2008).

¹¹ For discussion of the psychological importance to a child of 'attaching' to a parent-figure, see Bowlby (1973); Aldgate and Jones (2006).

¹² Goldstein *et al.* (1996: 19).

birth prepares them to feel close to and responsible for their child. These considerations carry no weight with children who are emotionally unaware of the events leading to their existence. What matters to them is the pattern of day-to-day interchanges with adults who take care of them and who, on the strength of such interactions, become the parent figures to whom they are attached.¹³

B Sociologists

Some sociologists have argued that parenthood is a socially constructed term, meaning that the rules on who is a parent reflect common norms within society, rather than reflecting an inevitable truth. Indeed, anthropologists looking at different societies in different parts of the world and at different times have found a wide variety of understandings of parenthood. For example, Goody has noted the following different aspects of parenthood: bearing and begetting children; endowment with civil and kinship status; nurturance; and training and sponsorship into adulthood.¹⁴ Different people in different cultures may carry out these roles.

C Biological perceptions

Johnson has usefully distinguished four kinds of parenthood in a biological sense.¹⁵ First, there is genetic parentage. At present, there is a need for sperm from the man and an egg from the woman to produce a conceptus which will ultimately develop into a person.¹⁶ Secondly, there is coital parentage, which involves the meeting or joining of the sperm and egg.¹⁷ Thirdly, there is a gestational or uterine component of parentage, involving the rearing and support of the foetus, which in humans is undertaken by the mother in pregnancy. Finally, there is the post-natal component: the raising of the child after birth.

It is obvious from this very brief outline that the definition of a parent is unclear and the term 'parent' can cover a wide range of ideas. The traditional image of one mother and one father for each child is under strain, yet so far the law has struggled with the idea a child might have more than one mother or one father.¹⁸

3 The different meanings of being a parent in law

It is not surprising that the law has a variety of understandings on being a parent. Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)*¹⁹ has looked at different aspects of parenthood and has usefully suggested that it is necessary to distinguish three key elements: legal, genetic and social parenthood.²⁰

1. Legal parenthood is concerned with who is deemed in the eyes of the law to be the parent.
2. Genetic parenthood relates to whose sperm or eggs led to the creation of the child.
3. The social parent is the person who carries out the day-to-day nurturing role of a parent.

¹³ Goldstein *et al.* (1996: 9).

¹⁴ Goody (1982).

¹⁵ Johnson (1999). See also Rothstein *et al.* (2006).

¹⁶ It may be that technology will develop so that in the future more than two people could be genetically related to a child.

¹⁷ For the majority of human parents this will be through sexual intercourse.

¹⁸ Harder and Thomarat (2012).

¹⁹ [2006] 1 FCR 436 at paras 32–5. See the excellent discussion in Diduck (2007).

²⁰ A similar distinction had been earlier drawn by Eekelaar (1991c) and Bainham (1999). See further Callus (2008) and Masson (2006c) who also discuss ways of breaking down aspects of being a parent.

These roles are often acted out by the same person, but can be carried out by different people. For example, a step-parent may be the social parent of a child without being the biological or legal parent. Bainham has usefully explained that the law distinguishes between parentage, parenthood and parental responsibility.²¹ Some legal consequences flow from the mere genetic link between an adult and a child (parentage); some flow from the legal status of being a parent (parenthood); and some flow from having parental responsibility (the rights and duties of being a parent).

The benefit to the law in having these different understandings of 'parent' is that it increases flexibility. The law can decide that some people will have parenthood but not parental responsibility, or indeed that some people will be regarded as having parental responsibility but not parenthood. For some children it is possible that different people will have parentage, parenthood and parental responsibility under the present law. For example, imagine a woman who gives birth following assisted reproductive services provided to her and her unmarried partner but using the sperm of a sperm donor. After the birth she leaves her partner and marries another man, who is awarded a residence order in respect of the child. In such a case the sperm donor would have parentage; the partner parenthood; and the husband parental responsibility.

The law could be much simpler. We could have just two categories for adults: they either are or are not parents of a child. But having only two categories would lead to a less subtle law. By accepting different forms of parents the law is able to capture the variety of ways in which an adult can act in a parental role. Bainham argues that having different ways of being a parent assists in the debate over whether social or biological parenthood should be regarded by the law as the crucial element of parenthood: 'Increasingly the question will not be whether to prefer the genetic or social parent but how to accommodate both on the assumption that they both have distinctive contributions to make to the life of the child'.²²

However, Bainham's enthusiasm for accepting a wide range of different kinds of parent is controversial. It is important to note that the 'problem' in defining parenthood is largely one of defining fathers. There is relatively little difficulty in defining motherhood. In the vast majority of cases, there is no separation between parentage, parenthood and parental responsibility for mothers, as they relate to the same person. Increasing the number of people who can be regarded as parents is in reality increasing the number of people who can be regarded as fathers.²³ From the mother's viewpoint, the greater the recognition given to different kinds of fathers, the weaker the mother's position may become.²⁴ For example, a requirement that mothers should consult with a child's father(s) over important issues is a more onerous requirement if several men are regarded as father, rather than just one. Indeed, some commentators argue that the only kind of parenthood the law should be interested in is the 'doing' of parenting: the person who undertakes the day-to-day care of the child. A person whose only link to the child is one of blood has no link which deserves any recognition. But that goes against the very strong feelings about blood ties which many people have.

These debates can be put in broader social context. The financial and emotional burdens of the gestation, rearing and caring for children fall disproportionately on women. Shari Motro²⁵ claims there is a 'fundamental gender imbalance' in the responsibilities that flow

²¹ Bainham (1999).

²² Bainham (1999: 27).

²³ Masson (2006c: 135).

²⁴ See further Herring (2001: 137).

²⁵ Motro (2010).

from sex. Indeed she argues that women should be able to sue their partners for damages for the costs flowing from a pregnancy and child-raising. That may be going too far for many, but it suggests that in determining the rights and responsibilities of parents, the gendered nature of division of responsibilities in practice is important.

We will now consider the legal definitions of who is the mother and who is the father of a child.²⁶

4 Who is the child's mother?

Learning objective 2

Define who is a mother according to law

For legal purposes, the mother of a child is the woman who gives birth to the child.²⁷ This is so even where there is assisted reproduction and the woman who carries and gives birth to the child is not genetically related to the child. Section 33(1) of the Human Fertilisation and Embryology Act 2008 (hereafter HFEA 2008) states:

LEGISLATIVE PROVISION

Human Fertilisation and Embryology Act 2008, section 33(1)

The woman who is carrying or has carried a child as a result of the placing in her of an embryo or of sperm and eggs, and no other woman, is to be treated as the mother of the child.

This indicates that, in relation to motherhood, it is the gestational rather than the genetic link which is crucial. In fact the genetic link is irrelevant in establishing legal motherhood.²⁸ This could be explained in any one of three ways. The most convincing argument is that the care, pain and effort of pregnancy and childbirth and the closeness of the bond which develops through pregnancy and birth justifies the status of motherhood.²⁹ The gestational mother has given more of herself to the child than the genetic mother. In other words, the law emphasises the caring aspect of parenting over the genetic link. Secondly, the law could be justified on the basis of certainty. It is far easier to discover who gave birth to the child than to ascertain who (if anyone) donated the egg.³⁰ Thirdly, the law might be seen as a way of encouraging egg donation. Egg donors may be deterred from donating if they were to be regarded as the parents of the child. Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)*³¹ explained the law in this way:

While this may be partly for reasons of certainty and convenience, it also recognises a deeper truth: that the process of carrying a child and giving him birth (which may well be followed by breast-feeding for some months) brings with it, in the vast majority of cases, a very special relationship between mother and child, a relationship which is different from any other.

²⁶ For a discussion of the medical law issues surrounding reproduction, see Herring (2013a: ch. 7).

²⁷ *Amphill Peerage Case* [1977] AC 547 at p. 577.

²⁸ Contrast *Johnson v Calvert* [1993] 851 P 2d 774. See also *Moschetta v Moschetta* (1994) 25 Cal App 4th 1218.

²⁹ Herring (2013a).

³⁰ This argument was stressed by the Warnock Report (1984: 6.6–6.8).

³¹ [2006] 1 FCR 436, para 34.

A woman can also become a child's mother through the making of an adoption order or a parental order.³² It should be noted that, unlike the position in France, a woman who gives birth does not have the option to disclaim motherhood.³³ However, if the child is adopted, the birth mother will cease to be the legal mother.

The definition of mother may be challenged by lesbian couples seeking assisted reproductive treatment together or making private arrangements for one of them to become pregnant.³⁴ They may argue that they wish to raise the child as a couple together and so both should be recognised as parents. The current law is clear: only the woman who gives birth is the mother. Her partner can be recognised as a 'second parent', but rather oddly, she will not, as a matter of law, be defined as the mother. There is no legal significance in the difference in name; she is fully a parent in the eyes of the law. If the mother and her partner have entered a civil partnership or marriage then under s 42(1) of the HFEA 2008, the partner will be treated as a parent, unless it can be shown she did not consent to the placing of the sperm or eggs into the mother.³⁵ If the mother (W) and other women (P) are not in a civil partnership or marriage, the partner can become a parent if she meets the 'agreed female parenthood provisions':

LEGISLATIVE PROVISION

Human Fertilisation and Embryology Act 2008, section 44(1)

- (1) The agreed female parenthood conditions referred to in section 43(b) are met in relation to another woman ('P') in relation to treatment provided to W under a licence if, but only if,—
 - (a) P has given the person responsible a notice stating that P consents to P being treated as a parent of any child resulting from treatment provided to W under the licence,
 - (b) W has given the person responsible a notice stating that W agrees to P being so treated,
 - (c) neither W nor P has, since giving notice under paragraph (a) or (b), given the person responsible notice of the withdrawal of P's or W's consent to P being so treated,
 - (d) W has not, since the giving of the notice under paragraph (b), given the person responsible—
 - (i) a further notice under that paragraph stating that W consents to a woman other than P being treated as a parent of any resulting child, or
 - (ii) a notice under section 37(1)(b) stating that W consents to a man being treated as the father of any resulting child, and
 - (e) W and P are not within prohibited degrees of relationship in relation to each other.
- (2) A notice under subsection (1)(a), (b) or (c) must be in writing and must be signed by the person giving it.
- (3) A notice under subsection (1)(a), (b) or (c) by a person ('S') who is unable to sign because of illness, injury or physical disability is to be taken to comply with the requirement of sub-section (2) as to signature if it is signed at the direction of S, in the presence of S and in the presence of at least one witness who attests the signature.

³² These will be discussed shortly.

³³ See the discussion in Simmonds (2013) and Marshall (2008).

³⁴ Sifris (2009). See also Almack (2006).

³⁵ It will be presumed there is consent unless there is evidence to the contrary: *Re G (Human Fertilisation and Embryology Act 2008)* [2016] EWHC 729 (Fam).

It is worth noticing that it is not actually necessary for the mother and partner to be in a sexual relationship. Although the clinic is unlikely to agree to treat a couple if it is felt they do not have a close relationship of some kind.

Unfortunately there have been a series of cases where clinics have made mistakes with the paperwork, which has been lost or incorrectly completed.³⁶ This seems to have happened in a surprising number of cases. A strict reading of the 2008 Act indicates that without completion of the appropriate paperwork the partner of the mother cannot be the mother. Later cases, however, (*Re Human Fertilisation and Embryology Act 2008 (Cases A, B, C, D, E, F, G and H)*)³⁷ and *X and Y v St Bartholomew's Hospital Centre for Reproductive Medicine (CRM)*)³⁸ have been more flexible and if there is evidence that the couple intended both to be parents they will be regarded as such, even if the paperwork is lost or incomplete. However, in *AB v CD and the Z Fertility Clinic*³⁹ Cobb J held that approach could not be used where the clinic had failed to seek the consent of the partner and no paperwork ever existed.

The fact that the female partner is not described as a mother is odd. Especially given that the male partner of the mother (as we shall see shortly) in equivalent circumstances is treated as a father.⁴⁰ One possible explanation is that the law is wedded to the idea that a child can have only one mother and one father. Indeed, the HFEA 2008 seems to go to considerable lengths to ensure that a child does not have two of one kind of parent. It may be thought to be to stretch the conventional understanding of a family too far to hold that a child has two mothers. Alternatively, it might be thought simply to amount to a fiction to say a child has two mothers. The child will know that cannot be true. However in cases of assisted reproduction, it is no more of a fiction to say a woman's female partner is the mother, than to say a male partner is a father.

In 2015 Parliament passed the Human Fertilisation and Embryology (Mitochondrial Donation) Regulations 2015.⁴¹ These permit and regulate Mitochondrial Replacement Therapy (MRT), which is designed to help mothers who have or carry mitochondrial DNA diseases. A donated egg is used and the nuclear genetic material is removed and replaced with the nucleus of the egg of the intended mother. This can then be fertilised with sperm and placed in the mother. Technically a child born through such a process will be genetically related to three people. However, the donor is, effectively, donating only the mitochondrial DNA. Although there is some dispute over this, it is generally thought that that plays a relatively small part in the person's genetic make-up. The regulations make it clear that the donor of the egg is not a parent of the child and even states that unlike the position with sperm donors the child cannot discover the identity of the egg donor.

³⁶ Mistakes over the forms have arisen in a surprising number of cases; e.g. *Re I (Human Fertilisation and Embryology Act 2008)* [2016] EWHC 791 (Fam).

³⁷ [2015] EWHC 2602 (Fam).

³⁸ [2015] EWFC 13 (Fam).

³⁹ [2013] EWHC 1418 (Fam).

⁴⁰ Leanne Smith (2007). See also Wallbank (2004a).

⁴¹ See Chau and Herring (2015).

5 Who is the child's father?

Learning objective 3

State who is a legal father

The law on fatherhood is much more complex. A man⁴² who wishes to prove that he is the father of a child must show:

- that he is genetically the father of the child;⁴³ or
- that one of the legal presumptions of paternity applies and has not been rebutted; or
- that he is a father by virtue of one of the statutory provisions governing assisted reproduction; or
- that an adoption order or parental order has been made in his favour.

The core notion of paternity has traditionally been seen as a biological or genetic concept. A man is the father of a child genetically related to him.⁴⁴ Until recently it was difficult to prove whether a father was genetically related to a child and so the law had to rely on certain presumptions. Now DNA testing can prove conclusively whether a man is the father of a child. However, the legal presumptions are still of importance because they explain who the father of a child is if no tests have been carried out.⁴⁵

A Legal presumptions of paternity

These are the circumstances in which fatherhood is presumed:

1. If a married woman gives birth, it is presumed that her husband is the father of the child.⁴⁶ This presumption is sometimes known as *pater est quem nuptiae demonstrant* (or *pater est* for short). It does not apply to unmarried cohabitants nor in a case of same sex marriage.⁴⁷ If the birth takes place during the marriage but conception took place before the marriage, the *pater est* presumption still applies. The presumption also applies if it is clear⁴⁸ that the conception took place during a marriage, even if death or divorce has ended that marriage by the time the birth occurs.⁴⁹ There will be conflicting presumptions, therefore, if the child could have been conceived during a first marriage but is born during the course of the wife's second marriage. It is not clear who the law would regard as the father in such a situation. It is suggested that the second husband should be regarded as the father, it being more likely that he is the genetic father. He is also the man who would act in the parental role during the child's upbringing. Against this view is the argument that it would be wrong to presume that the wife committed adultery.

The *pater est* presumption is controversial, although no doubt statistically it is more likely than not that a husband is the father of his wife's child. It is also possible to see the

⁴² Only a man can be a father: *X, Y, Z v UK* [1997] 2 FLR 892, [1997] 3 FCR 341 ECtHR. This was confirmed in *J v C* [2006] EWCA Civ 551.

⁴³ A sperm donor to a licensed clinic cannot rely on this ground (HFEA 1990, s 28(6)).

⁴⁴ This was confirmed in *Leeds Teaching Hospital NHS Trust v A* [2003] EWHC 259, [2003] 1 FCR 599.

⁴⁵ See Freeman and Richards (2006) for a fascinating study of the legal and social ramifications of DNA testing.

⁴⁶ *Banbury Peerage Case* (1811) 1 Sim & St 153 HL.

⁴⁷ Although it does to parties in a void marriage: Legitimacy Act 1976, s 1.

⁴⁸ The court will refer to the normal gestation period, although the House of Lords in *Preston-Jones v Preston-Jones* [1951] AC 391 HL could not agree on the definition of a gestational period.

⁴⁹ A cynic might regard this presumption as unrealistic in some cases. If a child is conceived and shortly afterwards there is a divorce, that may well suggest that a third party is the father.

presumption as being based on the policy of seeking to avoid a child not having a father. Thorpe LJ in *Re H and A (Children)*⁵⁰ has doubted the relevance of the presumption. He explained, 'as science has hastened on and as more and more children are born out of marriage it seems to me that the paternity of any child is to be established by science and not by legal presumption of inference'.⁵¹ Without the presumption, however, children will have no legal father until tests are carried out. There is some doubt over the extent to which children of married couples are the children of the husband. It has been claimed that around 15 per cent of children born to married couples are in fact not the children of the husband.⁵² A more reliable estimate puts the figure at 4 per cent.⁵³

2. The law presumes that if a man's name appears on the birth certificate of a child, he is the child's father.⁵⁴ If the couple is married, there is a statutory obligation on both parties to register the birth within 42 days. If the mother is unmarried, the obligation rests on her, but the couple can jointly register.

Section 56 and Sch 6 of the Welfare Reform Act 2009 required a mother registering the birth to name the father. However, the Government has announced it will not be bringing those provisions into force.⁵⁵ While the 2009 Welfare Reform Act was designed to compel the mother to name the father, there was an extensive list of exceptions. If a mother wished to conceal the identity of the father, she could simply tell the register she does not know his identity ('I think he was called Tom and he had ginger hair, but it was after a great party and it's all a bit of a blur') and there is not much the registrar can do but leave the name of the father blank.⁵⁶ It seems the Government was persuaded not to bring in the provisions as there were concerns that mothers may have good reasons for not naming the father, such as fear of violence.

3. It is not clear whether the making of a parental responsibility agreement will be regarded as prima facie evidence of paternity, although the Lord Chancellor's Consultation Paper⁵⁷ believes it does. *R v Secretary of State for Social Security, ex p West*⁵⁸ suggests that a parental responsibility order by consent can be regarded as evidence of paternity by the Child Support Agency.
4. The court may also infer paternity simply from the facts of the case. For example, if it were shown that the mother and the man spent the night together at the time the conception is said to have taken place, this would be evidence of the man's paternity.

B Birth registration

We have just mentioned the disputes over the abandoned Welfare Reform Act 2009 reforms and as those indicate the issue of birth registration has proved a highly controversial one. Andrew Bainham argues, there are four interests at stake in the process: the state, the child, the mother and the father.⁵⁹

⁵⁰ [2002] 2 FCR 469.

⁵¹ At p. 479.

⁵² Sterling (2009). This figure was based on the percentage of CSA paternity tests which were false. But that is hardly a representative sample of the population.

⁵³ King and Jobling (2009).

⁵⁴ Births and Deaths Registration Act 1953, s 34(2); *Brierley v Brierley* [1918] P 257.

⁵⁵ Clifton (2014).

⁵⁶ Although it is an offence under s 4 of the Perjury Act 1991 to provide incorrect information at birth registration.

⁵⁷ Lord Chancellor's Department (1998).

⁵⁸ [1999] 1 FLR 1233.

⁵⁹ Bainham (2008c).

1. *The state.* Bainham argues that the state has an interest because the state has an interest in ensuring the 'orderly assumption of responsibility by parents from the moment of the child's birth'.⁶⁰ This is true, but it is debatable whether registration has much to do with ensuring parents look after their children. One area where the state might be in relation to enforcement of child support. Child support rests in biological parentage (as seen in Chapter 6) but it is not always clear who is a child's father and in such a case child support may not be collectable. If all fathers were registered, this difficulty could be overcome. Less important interests of the state may include the collection of demographic data and the creation of identity confirming documentation.
2. *The child.* Bainham claims that a child has a right to be registered at birth.⁶¹ This right is included in the United Nations Convention on the Rights of the Child.⁶² It can be seen as a way of protecting the right of the child to know their genetic origins, which is protected in article 8 of the ECHR. We will be discussing this alleged right later in this section. Jane Fortin⁶³ notes that the child also has interests to ensure that the mother is not caused emotional harm or put in physical danger as a result of the registration process.
3. *The mother.* Bainham⁶⁴ sees the interest of the mother as being part of her right to respect for private life under article 8. By being registered as the mother she can establish herself as having the legal rights and responsibilities of parenthood. He notes that she has an interest in the naming of the father under the current law, in that the registered father will thereby acquire parental responsibility. Another interest (not emphasised by Bainham) is that the mother may wish to keep the identity of the father hidden, either to protect her private life or to protect herself or the child from violence.
4. *The father.* As Bainham argues, the father has a particular interest in registration because although birth is a readily observable event establishing maternity, the birth registration document is the most obvious way a father can establish paternity. It enables the possibility of establishing a relationship with the child at some point. If his name is not on the birth certificate and the mother does not want the father to see the child, there is little likelihood of the child and father having a relationship at any point.

Bainham's conclusion in weighing up these interests is that the fundamental rights of the child should be central. As he emphasises, these rights are not based in welfare, but autonomy. The significance being, he argues, that simply showing that the registration will cause harm to the child will not necessarily be sufficient to defeat a claim based on autonomy. In putting the argument this way he does not support the approach of the Government which puts the case for joint birth registration on the basis that it is beneficial for the child to know who the father is.⁶⁵ Bainham argues there should be a clear legal duty on mothers to identify the father wherever possible. Except in a case of rape he does not think that mothers have a good reason not to name the father. As Jane Fortin⁶⁶ notes it is hard to see why only rape counts as an exception. If the father has been abusive to the mother in the past, he may well pose a serious risk to the mother and child in the future. However, as she points out, article 8 is not an absolute right and needs to be balanced against the interests of others. Bainham's

⁶⁰ Bainham (2008c: 450).

⁶¹ Bainham (2008c).

⁶² Article 7.

⁶³ Fortin (2009a).

⁶⁴ Bainham (2008c).

⁶⁵ Department for Children, Schools and Families (2009).

⁶⁶ Fortin (2009a).

assumption that the right to know one's genetic origins necessarily trumps the interests of the mother is not made out in the ECHR case law.

It is interesting that Bainham does not go so far as to suggest there should be a DNA test of all children and their alleged parents, 'something which would be a move too far for almost everyone'.⁶⁷ It is not clear why he thinks this is 'too far'. If we think registration of genetic parentage is a fundamental right the minor inconvenience for adults of the test or the expense involved does not seem a good enough reason not to do this. Perhaps the fact that DNA tests of all do not seem plausible and few suggest it, indicate that in fact even supporters of the importance of genetic parentage, like Bainham, accept it is not that fundamental a right.

Julie Wallbank has also written opposing the abandoned reforms and Bainham's broad support of them.⁶⁸ She argues that we need to remember the social class of the group of people targeted in these proposals: unmarried mothers who are not registering births jointly. She refers to sociological research into these women which suggests that they are socially and economically vulnerable. They are often fearful of the father and it cannot be assumed that the father wishes to be involved in the child's life, or if he does that it will be beneficial. To impose obligations to name fathers on this group of women is unjustifiable because it exposes them to risk with little counterbalancing benefit to the child.

Another issue to consider is that the proposed reforms might have worked against the interests of lesbian couples who have used a friend as a sperm donor, on the understanding that he is to play no role in the child's life.⁶⁹ Having to register the man as the father may not reflect the intentions of any of the parties, nor the reality of the child's life. By contrast, as Crawshaw and Wallbank⁷⁰ note, if a couple have used donated sperm through a licensed clinic the sperm donor need not be registered as the father and 'the law itself now assists heterosexual couples to present as if they are straightforwardly the biological parents with no obligation to reveal the child's conception story unless they so choose'. They argue that the rights of donor conceived children mean their biological parents should be recorded on the birth certificate. We will return to that issue later.

The resolution of these debates turns on two questions. First, how important is the right to know one's genetic origins. This is an issue we shall look at later in this chapter. Second, how much weight do we attach to a woman's choice not to register the father? Do we respect her assessment of what is best for the child, bearing in mind the socio-economic circumstances of the couples in question, or is it necessary to override her concerns in order to protect the child and the father's rights?

C Rebutting legal presumptions of paternity

Section 26 of the Family Law Reform Act 1969 states that the legal presumptions of paternity can be rebutted on the balance of probabilities. In *S v S, W v Official Solicitor (or W)*⁷¹ Lord Reid thought that the presumptions should be regarded as weak, and could be rebutted with only a little evidence.⁷² There are two main ways whereby a man presumed to be the father could rebut the presumption. The first and most reliable is to seek a court order for genetic

⁶⁷ Bainham (2008c: 459).

⁶⁸ Wallbank (2009).

⁶⁹ Sheldon (2009).

⁷⁰ Crawshaw and Wallbank (2014).

⁷¹ [1972] AC 24.

⁷² In *Re Moynihan* [2000] 1 FLR 113 a higher standard of proof was suggested, but the Court of Appeal in *Re H and A (Children)* [2002] 2 FCR 469 preferred *S v S*.

tests (normally through comparing DNA samples). There is power to order such tests under s 20 of the Family Law Reform Act 1969, although, as will be noted later, the court in some cases will refuse to order tests to be performed. If a man is shown to be the father of the child through genetic tests, then he is legally the father of the child, and if another man was presumed to be the father, he is no longer so regarded. In *F v CSA*⁷³ it was unclear whether the father of the child was the mother's husband or her lover. The lover was assessed by the Child Support Agency. He refused to undergo blood tests: this refusal led to a presumption that he was the father.⁷⁴ This presumption was held to be stronger than the presumption of legitimacy. The second way that a man could seek to rebut a presumption that he was the father would be to introduce evidence to undermine the logical basis of the presumption. So a husband could rebut the presumption that he was the father of his wife's child by introducing evidence that he was abroad at the time of the alleged conception, or that he was impotent.

A child under 16 can be tested if a parent with parental responsibility consents for the test. In *Re P (Identity of Mother)*⁷⁵ the Court of Appeal said that a child under 16 who refused to be tested should not be tested against her will, even if a parent had consented. That was in a case involving a child of 15. Where the child refuses to consent the court can make inferences about parenthood based on that refusal.

Crawshaw and Wallbank⁷⁶ record an unreported case of a donor conceived person (E) who sought the removal of the name of her 'father' from her birth certificate on the basis that he was not her biological father under s 55 of the Family Law Act 1986. The registered man had separated from E's mother shortly after birth and there had been minimal contact or support during her childhood. The court issued a new birth certificate with the name of the father blank.

D Fathers and assisted reproduction

There are various forms of assisted reproduction:

1. *Assisted insemination*. This refers to the placing of sperm into the mother (other than by sexual intercourse) leading to fertilisation. It is common to distinguish insemination using the husband's sperm (AIH) and insemination using a donor's sperm (AID).
2. *In vitro fertilisation (IVF)*. This technique involves mixing in a dish an egg and sperm. The fertilised egg is then placed in the woman's uterus. The sperm and/or egg may come from the couple themselves or donors.
3. *Gamete intrafallopian transfers (GIFT)*. Here a donated egg is placed with the sperm (either of the husband or a sperm donor) in the womb.
4. *Intra-cytoplasmic sperm injection (ICSI)*. This involves the injection of a sperm into an egg with a very fine needle. The resulting embryo is placed in the woman.

The law governing assisted reproduction is found in the Human Fertilisation and Embryology Acts 1990 and 2008. The starting point in ascertaining parenthood in cases of assisted reproduction is that the same rules that govern fatherhood in other cases apply. The genetic father, or a man presumed to be the father by virtue of one of the presumptions above, will be the father in a case of assisted reproduction unless he can find a statutory provision that

⁷³ [1999] 2 FLR 244.

⁷⁴ See also *Re P (Identity of Mother)* [2011] EWCA Civ 795.

⁷⁵ [2011] EWCA Civ 795.

⁷⁶ Crawshaw and Wallbank (2014).

states otherwise. In other words, the 'default' position, in the absence of any provision to the contrary, is that the genetic father is the legal father. Any man who is a father as a result of provisions in the Act is a father in the full sense of the law and cannot, for example, seek to escape liability under the child support legislation on the basis that he is not the biological father.⁷⁷

The Human Fertilisation and Embryology Acts provides for the following exceptions to the basic rule that the genetic father is the child's father:

1. Section 41 HFEA 2008 makes clear that a man who donates sperm to a licensed clinic is not the father of any child born using that sperm as long as his sperm is used in accordance with his consent under Sch 3 of the 1990 Act. The protection does not cover the donor who consents to sperm for use with his wife, but it is used for another woman.⁷⁸ He will be regarded as the father of any child born. The donor must trust the clinic not to use his sperm outside the terms of his consent. The sperm donor's identity can be revealed to a child who seeks to discover the donor's identity if the sperm was donated after April 2005.⁷⁹
2. A man who has died before his sperm is used in procedures leading to pregnancy is not the father of any child born using that sperm.⁸⁰ A dead man's sperm can only be used where he has consented to its use.⁸¹ A man can be a father and registered on the birth certificate if the child is conceived after his death using sperm where he had given permission, or if donor sperm is used before his death.⁸²

The HFEA 2008 also provides that a man not genetically related to a child is the legal father in the following circumstances:

1. Under s 35 the husband of a woman who gives birth as a result of a licensed clinic's assisted reproductive treatment is presumed to be the child's father unless he shows that he did not consent *and* that he is not the child's genetic father.⁸³ The lack of consent will be assessed subjectively and does not need to be communicated to the sperm donor for it to operate.⁸⁴ It should be noted that a clinic is very unlikely to provide services to a married woman without her husband's consent⁸⁵ and so it should be rare that the question of consent will be raised. In *Leeds Teaching Hospital NHS Trust v A*⁸⁶ a wife's egg was mixed by mistake with the sperm of Mr B, rather than that of her husband (Mr A). It was held that Mr A had not consented to the treatment of his wife *with that sperm* and therefore he was not the father under s 28 of the 1990 (which is in similar terms to s 35 of the 2008 Act). As Mr B's sperm had been used without his consent, s 28(6) (the equivalent to s 41, discussed above) did not apply and so he was the father. Sally Sheldon⁸⁷ makes the interesting point that

⁷⁷ *Re CH (Contact Parentage)* [1996] 1 FLR 569, [1996] FCR 768; *Leeds Teaching Hospital NHS Trust v A* [2003] EWHC 259 (Fam), [2003] 1 FCR 599.

⁷⁸ *Leeds Teaching Hospital NHS Trust v A* [2003] EWHC 259 (Fam), [2003] 1 FCR 599.

⁷⁹ Human Fertilisation and Embryology Authority (Disclosure of Donor Information) Regulations 2004.

⁸⁰ HFEA 2008, s 42(1).

⁸¹ In *Centre for Reproductive Medicine v U* [2002] FL 267, Butler-Sloss P rejected an argument that the husband's withdrawal of his consent before his death was the result of undue influence.

⁸² HFEA 2008, ss 39, 40.

⁸³ HFEA 1990, s 28(2).

⁸⁴ *M v F and another (declaration of parentage: circumstances of conception)* [2014] 1 FCR 456.

⁸⁵ The Human Fertilisation and Embryology Authority Code of Practice, para 5.7 makes this clear.

⁸⁶ [2003] 1 FCR 599, discussed in Ford and Morgan (2003).

⁸⁷ Sheldon (2005).

had it been the eggs that had been mixed the position would have been different. Mrs A would be the mother because she gave birth. Why should it matter whether it was the sperm or the eggs that were muddled up?

2. Under s 37 a man will be treated as the father of a child born to a woman⁸⁸ as long as the 'agreed fatherhood conditions' are satisfied. These are as follows:

LEGISLATIVE PROVISION

Human Fertilisation and Embryology Act 2008, section 37(1)

1. The agreed fatherhood conditions referred to in section 36(b) are met in relation to a man ('M') in relation to treatment provided to W under a licence if, but only if,—
 - (a) M has given the person responsible a notice stating that he consents to being treated as the father of any child resulting from treatment provided to W under the licence,
 - (b) W has given the person responsible a notice stating that she consents to M being so treated,
 - (c) neither M nor W has, since giving notice under paragraph (a) or (b), given the person responsible notice of the withdrawal of M's or W's consent to M being so treated,
 - (d) W has not, since the giving of the notice under paragraph (b), given the person responsible—
 - (i) a further notice under that paragraph stating that she consents to another man being treated as the father of any resulting child, or
 - (ii) a notice under section 44(1)(b) stating that she consents to a woman being treated as a parent of any resulting child, and
 - (e) W and M are not within prohibited degrees of relationship in relation to each other.

Notice that for this provision to apply there is no need to show that the man and woman are in a sexual relationship or even living together.⁸⁹ However, a clinic is only likely to provide treatment to a couple in a close relationship. To rely on s 37, the treatment must take place in a licensed clinic,⁹⁰ registered by the British Human Fertilisation and Embryology Authority.⁹¹ Cases of so-called DIY treatment will be discussed next.

⁸⁸ The provision does not apply to married women receiving treatment with their husbands (s 28(2) is the relevant provision for them): *Leeds Teaching Hospital NHS Trust v A* [2003] EWHC 259 (Fam), [2003] 1 FCR 599.

⁸⁹ As with female partners if the paperwork is incorrectly filled in or is lost the court can deem those requirements met: *X and Y v St Bartholomew's Hospital Centre for Reproductive Medicine (CRM)* [2015] EWFC 13 (Fam).

⁹⁰ *U v W (Attorney-General Intervening)* [1997] 2 FLR 282, [1998] 1 FCR 526.

⁹¹ Human Fertilisation and Embryology Authority (2010).

E DIY assisted reproduction

TOPICAL ISSUE

Why not DIY?

In a case of do-it-yourself insemination, where, for example, a woman obtains sperm via the internet⁹² or from a friend and uses a syringe to impregnate herself, it used to be thought that the normal rules apply. The donor of the sperm will be treated as the father, and the woman who gives birth as the mother. However the issue has been thrown into doubt by *M v F and another (declaration of parentage: circumstances of conception)*.⁹³ There the husband had had a vasectomy and decided to use assisted reproduction to produce a child. The wife made contact with a sperm donor (F) on the internet and met with him several times, against her husband's wishes, and became pregnant following sexual intercourse. Peter Jackson J found that F was the biological and legal father. The case fell outside the scheme of the 1990 HFE Act because it involved sexual intercourse. The general common law therefore applied and so the genetic father was the legal father. Intriguingly Peter Jackson J did suggest that the Act could apply to cases outside the context of licensed sperm donation if there was no sexual intercourse, but did not develop his reasoning on that. He did suggest that given the prevalence of people engaging in DIY insemination it might be a good idea to have new regulations governing it. He noted the benefit of regulation under the 1990 HFE Act: 'regulation is broadly successful in protecting participants from exploitation and from health risks, while providing some certainty about legal relationships'.

Section 35 of HFE Act 2008 suggests that if the mother is married then her husband (and not the sperm donor) is the father, unless it can be shown that the husband did not consent to the use of the sperm, even in cases of unlicensed treatment.⁹⁴ There is a similar provision making the mother's civil partner a parent. In all other cases, the sperm donor in a DIY case will be the father and can thereby become liable to pay child support for the child.⁹⁵ Mind you, there were news reports of two men making £250,000 from selling sperm via the internet.⁹⁶

F An analysis of the allocation of parenthood in the HFE Acts

There are several notable features of the law on allocation of parenthood following the HFEA 2008. One is that in cases of assisted reproduction the father's status is secured through the mother.⁹⁷ He acquires parental status through being her husband or as a result of her consenting to him being recognised as the father in order to satisfy the agreed parenthood conditions.

⁹² Try www.mannnotincluded.com if you are interested! According to BBC Newsonline (2009g) there is an 'underground world' of sperm donation through the internet.

⁹³ [2014] 1 FCR 456.

⁹⁴ An unmarried couple cannot rely on s 28(3) because that applies only where the couple receive treatment in a licensed clinic.

⁹⁵ BBC Newsonline (2007h).

⁹⁶ BBC Newsonline (2010e).

⁹⁷ Lind and Hewitt (2009).

That might reflect a lingering suspicion that a non-genetic father is not a real father and that there is a need for the mother to vet and approve him as a suitable man.

As a result of the provisions in the Human Fertilisation and Embryology Acts 1990 and 2008, some children can be deemed fatherless. This might arise where a single woman (or a married woman acting without her husband's consent) becomes pregnant as a result of artificial insemination by donor (AID) provided by a licensed clinic. The donor could not be the father due to s 41, and the legislation does not provide for anyone else to be the father. A similar situation arises if a man's sperm is used after his death. Some have criticised the fact that the law allows a child to be fatherless; but, without breaching the principle that sperm donors should not be fathers, it is hard to see how the law can avoid this. However, it fits uneasily with the approach taken elsewhere in the law that assumes it is important for a child to have a link with a father.⁹⁸

One interesting observation on these legally fatherless children is that the law here, for the first time, is moving away from the view that a child must have one father and one mother.⁹⁹ Hale LJ has stated that it is clearly in the child's interests to have a father, if possible.¹⁰⁰ However, she went on to accept that that was not always possible. One prominent theme within the present law is that a child, as far as possible, should have one father and one mother, and can never have more than one mother or one father. Richards has complained of the 'very persistent prejudice that children should never have more than two parents and when a new one arrives, an old one has to go'.¹⁰¹ The assumption that there can be only one mother and one father is, presumably, tied to genetic parentage. However, technological advances mean that it would now be possible for a child to be born genetically related to two women. Techniques involving artificial sperm are progressing quickly.¹⁰² If biology no longer necessitates the two-parent rule, maybe it is time to abandon it.¹⁰³ Also it restricts the law and means that the law cannot recognise that there may be a number of men or women playing a parental role in the child's life.¹⁰⁴

These points may reflect a broader point that the law seems fixated on the traditional family form of a mother and father for each child.¹⁰⁵ This explains why the law is reluctant to accept a parent having two mothers, which produces such a strange set of provisions dealing with same-sex parents.¹⁰⁶

From a different perspective, there have been complaints that the HFEA 2008 departs too much from the principle that parentage should match genetics. However, not everyone is happy about the extension to the notion of parenthood provided for in the 2008 Act reforms. Thérèse Callus¹⁰⁷ objects that the reforms confuse parental role and parental status. She thinks the parental role is very important, but carrying out a parental role is different from having a parental status. Andrew Bainham argues:

The fact that someone is doing some of the things which parents do does not make that person the parent. The true claim which same-sex partners and other social parents have is that they should be given the legal powers which are necessary to enable them to look after a child properly and it is the status of possessing parental responsibility which is best designed to achieve this.¹⁰⁸

⁹⁸ Smith (2010).

⁹⁹ Lind and Hewitt (2009).

¹⁰⁰ *Re R (A Child)* [2003] 1 FCR 481, para 27.

¹⁰¹ Richards (1995a: 21).

¹⁰² BBC Newsonline (2009b).

¹⁰³ Wallbank (2004a).

¹⁰⁴ Lind and Hewitt (2009).

¹⁰⁵ Lind and Hewitt (2009); McCandless and Sheldon (2010a).

¹⁰⁶ Diduck (2007).

¹⁰⁷ Callus (2008).

¹⁰⁸ Bainham (2008a: 348).

Such arguments lead some to the conclusion that parentage should follow genetics and that we should use parental responsibility to recognise the role played by the partners of women receiving assisted reproduction using donated sperm.¹⁰⁹

G Surrogacy

Surrogacy involves an agreement whereby the ‘gestational mother’¹¹⁰ (sometimes called the ‘surrogate mother’) agrees to bear a child for someone else (‘the commissioning parent or parents’). The Surrogacy Arrangements Act 1985 defines a surrogacy arrangement as one made before the woman began to carry the child ‘with a view to any child carried in pursuance of it being handed over to, and parental responsibility being met (so far as practicable) by another person or persons’.¹¹¹ The aim is that the gestational mother will hand over the baby after birth to the commissioning parent and that the gestational mother will not exercise parental responsibility. Surrogacy can cover a wide range of different forms. The genetic link between the commissioning parents can vary: the gestational mother could be impregnated with both the sperm and the egg of donors; or the child could be born through the gestational mother being artificially inseminated with either the father’s or a sperm donor’s sperm.

Whatever the form of the surrogacy, the legal attribution of parenthood is straightforward. It is clear that the gestational mother is the mother and the genetic father is the legal father unless he is a sperm donor providing sperm to a licensed clinic. Although if the gestational mother is married her husband will be presumed to be the father, until DNA tests are performed. However, that default position can be changed by subsequent events. We will first consider what happens if the child is handed over and the commissioning parents want to become recognised as parents in the law. Later we will look at what happens if the gestational mother does not want to hand over the child.

(A) Parental orders

If the surrogacy arrangement goes to plan and the gestational mother hands over the child, the commissioning couple can apply to a court for a parenting order, the effect of which is that they will be treated as the parents of the child. On the making of the order, the child will be treated as the child of the applicants.¹¹² The order is ‘declaratory’ and so it can be made even though one of the applicants has died between the birth and court hearing.¹¹³ The order will vest parental responsibility exclusively in the applicants, and the parental status and parental responsibility of anyone else (and specifically the gestational mother) will be thereby extinguished.¹¹⁴ The order will be registered in the Parental Order Register.¹¹⁵ To obtain an order under section 54 HFEA 2008 it is necessary to show:

1. Either the sperm, or eggs, or both, came from the commissioning husband or wife.

¹⁰⁹ See the discussion in Bainham (2008a).

¹¹⁰ Cook, Day Sclater and Kaganas (2003) provides useful discussions of surrogacy.

¹¹¹ Section 1(2) (as amended by Children Act 1989, Sch 13, para 56).

¹¹² Although the child will still be within the prohibited degrees of the birth family for marriage purposes and the law of incest.

¹¹³ *A v P (Surrogacy: Parental Order: Death of Applicant)* [2011] EWHC 1738 (Fam).

¹¹⁴ HFEA 2008, s 54.

¹¹⁵ When someone is 18 he or she can be supplied with a copy of his or her birth certificate (which will reveal the identity of the birth family), and counselling facilities will be available: Adoption Act 1976, s 51, applied by Parental Orders (Human Fertilisation and Embryology) Regulations 1994.

2. The applicants are married, civil partners or in 'an enduring family relationship and are not within prohibited degrees of relationship in relation to each other'.¹¹⁶ The couple need not be living together, but must be in a committed relationship.¹¹⁷
3. The applicants must both be over 18.
4. At least one of the applicants must be domiciled in the United Kingdom.¹¹⁸
5. The child must, at the time of the order, live with the applicants.¹¹⁹
6. The order must be made within six months of the child's birth.¹²⁰
7. The father must give full and unconditional consent¹²¹ to the making of the order.¹²²
8. The gestational mother must give her full and unconditional consent to the making of the order, at least six weeks after the birth.¹²³
9. The husband of the woman who gave birth to the child must give his full and unconditional consent.¹²⁴
10. Money or other benefits have not been given to the surrogate mother, unless they are reasonable expenses or the court has retrospectively authorised the payments.
11. The pregnancy was not the result of sexual intercourse between the surrogate mother and male applicant.
12. The court must decide to make the order with the child's welfare being the paramount consideration and the checklist of factors in section 1 of the Adoption and Children Act 2002 being applied.¹²⁵

This appears to be a highly restrictive list of requirements. They have caused the courts real difficulties. The problems arise particularly in cases involving a surrogacy arrangement entered into abroad and the couple then bringing the child to England. The couple then seek a parental order, but one of the requirements is not met. In such a case it often seen to be in the child's best interests that a parental order is made, otherwise the child will be without a legal parent. In a series of cases the courts have determined that the section 54 requirements

¹¹⁶ Section 54, Human Fertilisation and Embryology Act 2008 amended the 1990 Act to extend the list of those who can apply beyond married couples.

¹¹⁷ *DM and Another v SJ and Others (Surrogacy: Parental Order)* [2016] EWHC 270 (Fam).

¹¹⁸ This includes the Channel Islands or Isle of Man. See *Z and B v C (Parental Order: Domicile)* [2011] EWHC 3181 (Fam) for a detailed discussion of this requirement.

¹¹⁹ Human Fertilisation and Embryology Act 2008, s 54(4).

¹²⁰ Human Fertilisation and Embryology Act 2008, s 54(3). This is interpreted strictly and there is no scope to extend the period: *Re WT (Foreign Surrogacy)* [2014] EWHC 1303 (Fam).

¹²¹ The consents mentioned are unnecessary if the person cannot be found or is incapable of giving agreement.

¹²² This requirement is of consent to the order, not just consent to the application: Human Fertilisation and Embryology Act 2008, s 54.

¹²³ If the mother cannot be found despite all reasonable efforts her consent can be dispensed with: *Re D and L (Minors)(Surrogacy)* [2012] EWHC 2631 (Fam).

¹²⁴ *Re X and another (foreign surrogacy)* [2009] 2 FCR 312.

¹²⁵ Human Fertilisation and Embryology (Parental Orders) Regulations 2010 (SI 2010/985), Sch 1. A consideration of welfare will not be restricted to the child's childhood, but their whole life: *Re X and Y (Parental Order: Retrospective Authorisation of Payments)* [2011] EWHC 3147 (Fam); *D and L (Surrogacy)* [2012] EWHC 2631 (Fam).

are not 'essential' and the court will make a parental order even though they are not all met. A good example is the following:

CASE: *Re X (A Child) (Surrogacy: Time Limit)* [2014] EWHC 3135 (Fam)

The commissioning couple entered a surrogacy arrangement with a woman in India who carried the child using donated eggs and the commissioning father's sperm. The child was born in December 2011 and entered the United Kingdom in 2013. The couple did not realise they needed to apply for a parental order until 2014. The central issue for Sir James Munby was whether an parental order could be made even though HFEA 2008, s 54(3) provides that 'the applicants must apply for the order during the period of six months beginning with the day on which the child is born', when the applicants were applying two years and two months after the birth. He held the order could be made. He emphasised the importance of looking at the purpose of the statute. He could not believe that Parliament intended a court could be barred from making an order if it were just one day after the three-month limit. Given the importance to the child of the security provided by a parental order and the child's human rights the court should not interpret the time limit as a strict one. Further, although the commissioning couple were not living together (a requirement under s 54(4)(a)) that too was not an absolute requirement and in this case the child shared time with each parent and so it was in line with the child's human rights and welfare that the order be made.

Taking a similar line the courts have been willing to make a parental order even though the couple have separated;¹²⁶ the application was brought three years after the birth, rather than the required six months;¹²⁷ or the surrogate could not be found and so her consent could not be provided. The current position is well summarised by Russell J:

when a child's welfare demands that a parental order is made it can only be refused in the '*clearest case of the abuse of public policy*'.¹²⁸

So far there has only been one case where the courts have insisted that the section 54 requirements be fulfilled. That was *Re Z (A Child: HFEA: Parental Order)*¹²⁹ where a single man had arrangements for an overseas surrogate to carry a child for him and he wanted a parental order to be made in favour of him alone. The requirement in section 54 for there to be two applicants was seen as indispensable as it was a 'fundamental feature' of the legislation. No real explanation was offered by Munby P for why this requirement was fundamental and the others were not. In subsequent litigation (*Re Z (A Child) (No. 2)*)¹³⁰ the government conceded that s 54(1) and (2) of the HFEA 2008 are incompatible with the rights of the father and child under article 14 in conjunction with article 8, in so far as they prevent the father from obtaining a parental order on the sole ground of his status as a single person, as opposed to being part of a couple.¹³¹

¹²⁶ *A and B (No. 2) (Parental Order)* [2015] EWHC 2080 (Fam).

¹²⁷ *AB and CD v CT (Parental Order: Consent of Surrogate Mother)* [2015] EWFC 12 (Fam).

¹²⁸ *Re A and B (Children) (Surrogacy: Parental Orders: Time Limits)* [2015] EWHC 911 (Fam).
¹²⁹ [2015] EWFC 73.

¹³⁰ [2016] EWHC 1191 (Fam).

¹³¹ See Fenton-Glynn (2015) for a helpful review of the literature.

What are we to make of the generous approach of the judiciary towards the section 54 requirements? One view is that it highlights how family judges will always want to put the interests of the child first. If an order will promote the welfare of a child a judge will strain every rule of statutory interpretation to be able to make the order. On another view the response of the courts is not really necessary. Where applicants cannot obtain a parental order there is nothing to stop them applying to adopt the child. On this view denying a parental order is hardly leaving the child in limbo¹³² or being cruel to commissioning parents, it is rather requiring them to arrange an adoption. That argument, however, might be rejected by commissioning parents who prefer a parental order that declares they *are* the parents of the child, rather than adoption whereby they *become* the parents. Such an argument might be seen to imply adoptive parents are somehow second rate parents of a child and the law might not want to support that view. However, *Theis J AB v CD (Surrogacy: Time Limit and Consent)*¹³³ agreed with the arguments of the parents that an adoption order was not an adequate alternative:

I agree a parental order and the consequences that flow from it are, from a welfare perspective, far more suited to surrogacy situations. They were specifically created to deal with these situations. Put simply, they are a more honest order which reflects the reality of what was intended, the lineage connection that already exists and more accurately reflects the child's identity. An adoption order in these situations leaves open the risk of a fiction regarding identity that may need to be resolved by the child later in life.

Not everyone will be convinced by the argument. It is not quite clear why the parental order is more 'honest' than an adoption order: it may be less 'honest' about who the mother is (in cases where at least one of the commissioning couple is a woman). What may be more relevant is that if adoption is used the commissioning couple will need to be approved by an adoption agency and they may find that oppressive. But, is it a bad thing to have commissioning couples checked by an agency before they become parents?

There have been cases where the child has been handed over to the commissioning parents who have taken no legal steps to formalise the situation. In legal terms the gestational mother would be the mother and the genetic father the father. The commissioning parents (without a court order) would not have parental responsibility and so would be bringing up the child without formal legal authority. If the child's status ever did come to court, the judge may have little choice but to affirm the status quo and grant a residence order to the commissioning parents. This is demonstrated by *Re H (A Minor) (S. 37 Direction)*,¹³⁴ where a mother gave birth, but did not want to care for the child. She handed the baby over to two friends, a lesbian couple. One had a history of mental illness and the other had a criminal conviction. Nine months after the birth, the matter was brought to the court's attention. By now the child had bonded with the couple and the court accepted that unless there was danger of significant harm to the child, it would have to affirm the present arrangements. Had the matter come to court shortly after the birth, with the couple applying for a residence order, it would have been highly unlikely that the court would have made the order. This case demonstrates the difficulties of legal intervention in this area. A surrogacy arrangement may not come to the court's attention until so much time has passed that the court has little option other than to affirm the transaction.

¹³² If a child born following surrogacy was left with no legal parents that might interfere with the child's human rights: *Mennesson and Labasee v France* [2014] ECHR 664.

¹³³ [2015] EWFC 12.

¹³⁴ [1993] 2 FLR 541, [1993] 2 FCR 277.

(B) Commercial Surrogacy

Section 2(1) of the Surrogacy Arrangements Act 1985 states:

LEGISLATIVE PROVISION

Surrogacy Arrangements Act 1985, section 2(1)

No person shall on a commercial basis do any of the following acts in the United Kingdom, that is—

- (a) initiate or take part in any negotiations with a view to the making of a surrogacy arrangement,
- (b) offer or agree to negotiate the making of a surrogacy arrangement, or
- (c) compile any information with a view to its use in making, or negotiating the making of surrogacy arrangements;

and no person shall in the United Kingdom knowingly cause another to do any of those acts on a commercial basis.¹³⁵

To constitute an offence the arrangement needs to be made before the gestational mother becomes pregnant. It should be stressed that the gestational mother and the commissioning mother are not liable for the offence; only third parties who make the arrangements can be guilty of the offence. The United Kingdom, therefore, will never allow the situation which arises in the United States, where companies will advertise mothers at varying rates depending on their age, intelligence and health.¹³⁶

It is also an offence to pay money that constitutes a reward or profit to the gestational mother under a surrogacy arrangement, but payment can cover expenses.¹³⁷ Any payments can be authorised under s 30(7) of the Human Fertilisation and Embryology Act 1990, thereby allowing the court to make a parental order.

There has been extensive litigation over what expenses the court will authorise.¹³⁸ In *Re C (Parental Order)*¹³⁹ payments of \$51,200 to the American surrogate couple and \$15,000 the agency were authorised even though they exceeded the expenses. The payments were said by Theis J to be not disproportionate to the expenses; the payments did not overbear the will of the surrogate; and the commissioning couple had acted in good faith and had complied with the authorities. She was therefore willing to authorise them. Generally courts have been willing to approve sums.¹⁴⁰ Unless the sum appears to be completely in excess of expenses incurred and be a blatant case of 'baby selling' then it is unlikely a court will not approve the payments.¹⁴¹

¹³⁵ Section 3 outlaws advertising in relation to surrogacy.

¹³⁶ In *JP v LP and Others (Surrogacy Arrangement: Wardship)* [2014] EWHC 595 (Fam) it was noted that unintentionally a firm of solicitors who had been paid a fee for drawing up a surrogacy agreement had breached this law.

¹³⁷ *Re Adoption Application AA 212/86 (Adoption Payment)* [1987] 2 FLR 291. In *Re C (Application by Mr and Mrs X)* [2002] Fam Law 351, £12,000 has been accepted as a payment covering expenses.

¹³⁸ Payment for compensation for pain was not a payment for expenses: *Re L (Commercial Surrogacy)* [2010] EWHC 3146 (Fam).

¹³⁹ [2013] EWHC 2408 (Fam).

¹⁴⁰ For other examples see *AB v DE* [2013] EWHC 2413 (Fam); *J v G* [2013] EWHC 1432.

¹⁴¹ *Re P-M* [2013] EWHC 2328.

Emily Jackson concludes:

The UK's prohibition on commercial surrogacy is, therefore, completely ineffective. If the people applying for a parental order are decent, or even adequate parents, it is unlikely that the fact that they had paid the surrogate mother would prevent them from being granted a parental order.¹⁴²

A recent report found that 27.1 per cent of respondent surrogates received less than £10,000 and the mean amount was £10,859,¹⁴³ suggesting that we are not yet in the situation where commercial surrogacy is the norm.

(C) What happens when surrogacy arrangements break down?

So far we have been thinking of cases where the gestational mother hands over the child on birth, in line with the agreement. However, there have been cases where the gestational mother refuses to give the child to the commissioning couple. What happens in such a case?

The starting point is that a surrogacy agreement is not a binding contract. Section 1A of the Surrogacy Arrangements Act 1985 states: 'No surrogacy arrangement is enforceable by or against any of the persons making it.' So the commissioning couple could not bring an action for breach of contract. The most likely course of action is that they will apply for a child arrangements order that the child live with them.¹⁴⁴ Leave to make the application will be required unless the commissioning husband is the genetic father of the child. In considering the application, the court's paramount consideration will be the welfare of the child, and the court will not in any sense feel bound by the terms of the surrogacy agreement. However, if the gestational mother does not oppose the application it is likely to be granted.¹⁴⁵ Normally, if the child has bonded with the surrogate mother, the court will be reluctant to order the child be handed over to the father. An exceptional case is *Re P (Surrogacy: Residence)*¹⁴⁶ where the surrogate mother lied to the father and told him that she had miscarried.¹⁴⁷ He later found out the truth and with his wife applied for a residence order. Although the child was now 18 months old and had spent all its life with the mother, it was held to be in the child's best long-term interests that the child be raised by the father and his wife. Evidence of the mother's psychological state indicated she would not be able to parent a child in the long term.

In *H v S (Disputed Surrogacy Agreement)*¹⁴⁸ a surrogate mother refused to hand over the child and wanted to keep her. The matter came to court, where Russell J emphasised the key issue was what order would promote the welfare of the child. She ordered the child live with the commissioning couple (one of whom was the biological father), with regular visits to the surrogate mother. She justified this order on the basis the surrogate mother was highly resistant to contact with the couple (while they were open to contact with the surrogate, if the child lived with them). The surrogate mother was also found to have lied to the court and breached court orders. Russell J emphasised this was not a case of enforcing a surrogacy contract, but rather determining what order was best for the child. By contrast in *Re Z (A Child)*¹⁴⁹ it was the commissioning couple who were found to have deceived the surrogate mother and shown a lack of concern and respect towards her. Their conduct was taken into account in deciding the child should live with the surrogate mother.

¹⁴² Jackson (2014).

¹⁴³ Horsey (2015).

¹⁴⁴ *JP v LP* [2014] EWHC 595 (Fam); *Re C (A Minor) (Wardship: Surrogacy)* [1985] FLR 846; *Re P (Minor) (Wardship: Surrogacy)* [1987] 2 FLR 421, [1988] FCR 140.

¹⁴⁵ E.g. *Re C (A Minor) (Wardship: Surrogacy)* [1985] FLR 846.

¹⁴⁶ [2008] Fam Law 18.

¹⁴⁷ There was evidence she had done this to several men.

¹⁴⁸ [2015] EWFC 36.

¹⁴⁹ [2016] EWFC 34.

The kind of problems which can arise on the breakdown of a surrogacy are well illustrated by this case:

CASE: *Re TT* [2011] EWHC 33 (Fam)

Mr and Mrs W were unable to have a child and used the internet to find a surrogate. The initial contact from the mother (M), aged 25, is revealing:

hello sweetie my name is [name given] and I am a surrogate mother in the UK . . . I read our [sic] ad on yedda [the surrogacy website] and I am truly interested in helping you to make your family complete. I hope you contact me back and I can tell you all about me. (para 10)

From this, negotiations by text and the internet followed, under which it was agreed that Mr W's sperm would be used to impregnate the mother. The agreement was that the mother would receive several thousand pounds and that the child would be handed over to Mr and Mrs W on birth. After several unsuccessful attempts pregnancy was achieved and in July 2010 a baby girl (T) was born. The mother refused to hand the child over. The matter was brought to court.

Baker J noted that the legal position was that in this case M was the mother and Mr W was the father. In deciding with whom the child should live the key question was the welfare of the child. Baker J decided the child should stay with the mother. He attached little weight to the fact that M had agreed to hand over the baby:

. . . in my judgment, the court should not attach undue weight to the fact that the mother originally promised to give up the baby. In some cases, such a promise may indicate a lack of commitment to the child so as to call into question the mother's capacity to care for her. In my judgment, the situation in the present case is very different. I am satisfied that the mother has genuinely changed her mind (para 63).

He emphasised the child had formed an attachment with M, and that through breast-feeding the mother was able to meet the child's physical and emotional needs. Breaking these bonds would 'undoubtedly create a risk of emotional harm' (para 61).

(D) Reform?

As will have been clear from this discussion the current law is uncertain and widely seen as unsatisfactory. However there is little agreement over the direction of reform. A fundamental issue is whether surrogacy is something that should be encouraged and enabled, or whether it is something to be discouraged.

DEBATE

Arguments over surrogacy

Arguments against surrogacy

1. It has been argued that surrogacy arrangements are contrary to the best interests of children. Bainham has suggested that: 'It is difficult to see how it could be argued that surrogacy is designed *primarily* for the benefit of the child.'¹⁵⁰ However, he adds that talking

¹⁵⁰ Bainham (1998a: 209).

- of the benefits for the child is a little odd in this context. Would it be in a child's interests not to be born? Perhaps the strongest way the argument can be put is that it is not desirable for a child to be born in circumstances that are so likely to result in a dispute between adults, which may well harm the child. Some argue that children born as a result of surrogacy will be confused as to their identity.
2. Surrogacy can be seen as demeaning to women – they are being used as little more than 'walking incubators'. There are some areas of life, it is argued, that are too intimate to be the subject of a contract. Alternatively, it may be argued that the decision to give up a child is such a complex one that it cannot validly be made until after the birth.¹⁵¹ There are particular concerns where women are forced through poverty to offer themselves as surrogate mothers.¹⁵²
 3. Surrogacy does not challenge the attitude of society towards infertility and means resources are not directed towards discovering the causes of infertility.
 4. The Roman Catholic Church has argued that surrogacy is analogous to adultery, in that it brings a third party into the marriage.
 5. There are concerns expressed by some that the child after birth might be rejected by both the gestational mother and the commissioning parents, particularly if the child is born disabled. Even if this does not happen, there are concerns that children will be confused over their biological origins or that the child will be harmed by being denied contact with his or her birth mother.¹⁵³ Whether these concerns are such that it would be better for the child not to be born is hotly debated.
 6. Commercial surrogacy arrangements commodify children and treat them as chattels to be bought and sold. Of course, this argument is only really of weight when considering commercial surrogacy.

Arguments in favour of surrogacy

1. A woman should be allowed to do with her body as she wishes. If she wishes to enter into a surrogacy arrangement and use her body in that way, she should be allowed to. Surrogacy can also be argued as an aspect of procreative freedom. Indeed, it is possible to regard surrogacy as a 'gift' to be encouraged.¹⁵⁴
2. Some people believe that surrogacy is a more appropriate solution for infertile couples than assisted insemination by donor (AID) or other forms of treatment. However, as Bainham notes, 'surrogacy will be triggered by a man's desire to have his own *genetic* child where his wife or partner is unable to conceive or bear a child'.¹⁵⁵
3. Surrogacy is inevitable, and therefore best regulated by the law. Its history goes back to biblical times, and, were it to be outlawed, this would simply lead to a black market in the practice.
4. It has been argued that surrogacy encourages and enables a variety of family forms. For example, a gay couple would be able to have a child through a surrogate. In early 2000 the media paid much attention to a gay couple who travelled over to the United States and

¹⁵¹ See the discussion in Lane (2003).

¹⁵² Rao (2003).

¹⁵³ Lane (2003: 131).

¹⁵⁴ See the discussion of the use of gift in this context: Ragoné (2003).

¹⁵⁵ Bainham (1998b: 202) (*italics changed from the original*).

produced a child, using a surrogacy arrangement, and then returned to Britain with the child.¹⁵⁶ In a different case a couple sought unsuccessfully to use a surrogate mother and the sperm of their dead son so that they could have a grandchild.¹⁵⁷ Some will see these examples as a welcome break from the traditional nuclear family form; but others will see them as a misuse of technology.

Questions

1. *Should a surrogacy contract be enforced? If so, how?*
2. *Should surrogacy be regulated in the same way as adoption? Specifically should surrogate parents require approval from the local authority?*

Further reading

Read **Horsey and Biggs** (2007) for a useful collection of essays on surrogacy.

The Law Commission has indicated it is interested in looking at reform of surrogacy. Surrogacy UK issued a detailed report into surrogacy and recommended the following reforms:¹⁵⁸

- Parental orders should be pre-authorised so that legal parenthood is conferred on intended parents at birth.
- Intended parents should register the birth.
- Parental orders should be available to single people who use surrogacy.
- Parental orders should be available to [intended parents] where neither partner has used their own gametes ('double donation').
- The time limit for applying for a parental order should be removed.
- Parental order/surrogacy birth data should be centrally and transparently collected and published annually.
- IVF surrogacy cycles and births should be accurately recorded by fertility clinics/Human Fertilisation and Embryology Authority (HFEA).
- NHS funding should be made available for IVF surrogacy in line with NICE guidelines.
- The rules on surrogacy-related advertising and the criminalisation of this should be reviewed in the context of non-profit organisations.

The most controversial of these proposals is the first. If a gestational mother decides not to hand over a child on birth, should she be regarded as the mother or as having no parental status, that belonging to the commissioning couple? That goes back to the fundamental question we identified at the start of this chapter. What makes someone a parent: their care and relationship with the child or the biological link or their intentions? Opponents of the Surrogacy UK report will argue that the care and relationship of pregnancy must be recognised by giving the gestational mother legal motherhood, even if she decides to transfer that to the commissioning couple.

¹⁵⁶ *Independent on Sunday* (2000).

¹⁵⁷ Laurance (2000).

¹⁵⁸ Horsey (2015).

6 Adoption

Adoption will be discussed in detail in Chapter 12. There are two points to be stressed here. The first is that before adoption takes place, prospective adoptive parents must undergo close scrutiny through the adoption panel of the local authority. The court will further consider whether the adoption is in the child's best interests. The court can make the order only if the parents consent or, *inter alia*, the court decides that it would be in the child's welfare for the parents' consent to be dispensed with. Secondly, once the adoption order is made, the adoptive couple acquire the full status of parenthood. They do not merely obtain parental responsibility but are considered by the law to be the child's parents.

7 Losing parenthood

Learning objective 4

Summarise how the status of parenthood can be lost

Legal parenthood will only come to an end if an adoption order is made or a parental order under s 54 of the Human Fertilisation and Embryology Act 2008 is awarded. In either of these cases the original parents (the parents at birth) cease to be the legal parents and the applicants take over as parents.

8 Social parents

Learning objective 5

Discuss the position of the social parent

Under this heading we will discuss the various ways the law treats those who are caring for the child in a parental way, even though they may not actually be the parents. There are several categories: guardianship; foster parents; special guardians; treating a child as a child of the family; step-parents; and others caring for children.

A Guardianship

The law is naturally concerned about children whose parents die. In part this is dealt with by enabling parents with parental responsibility to appoint someone to be a guardian of their children in the event of their death. The courts can also appoint a guardian. There is no restriction over who can be appointed as a guardian¹⁵⁹ and more than one guardian can be appointed.¹⁶⁰ The parents may appoint anyone they choose, although step-parents are common choices. Surprisingly one study found that children are rarely consulted when parents select guardians.¹⁶¹ A local authority cannot be appointed as a guardian.¹⁶²

¹⁵⁹ It seems even a child can be a guardian of a child, but this would be highly unusual.

¹⁶⁰ Children Act 1989 (hereafter CA 1989), s 6.

¹⁶¹ Hazan (2013).

¹⁶² Nor can the director of social services be appointed in order to circumvent this restriction (*Re SH (Care Order: Orphan)* [1995] 1 FLR 746 at p 749).

(i) The appointment of guardians by parents

Parents with parental responsibility can appoint guardians,¹⁶³ as can people who are guardians themselves. But a father without parental responsibility cannot appoint a guardian; nor can a non-parent with parental responsibility. The appointment of a guardian must be written, dated, and signed.¹⁶⁴ Usually the appointment is made as a term in a will, although this is not necessary.

At what point does the guardianship come into effect? This depends upon whether or not one of the parents has a residence order at the time when a parent dies:

1. Where a residence order has been made in favour of one of the parents, the guardianship will take effect on the death of the parent with the residence order, even if the other parent is still alive and has parental responsibility. In such a case the child will have both a parent and a guardian.
2. Where there is no residence order in place, the guardianship only comes into effect once the last remaining parent with parental responsibility dies.¹⁶⁵ So, if a couple are married and the mother appoints a guardian and then dies, the appointed guardian will not actually become a guardian until the father also dies. By contrast, if a father is unmarried and without parental responsibility, the mother can appoint a guardian who will take office immediately on her death.

The person appointed to be guardian does not need to have been approved by the court or the local authority. It is notable that there is a very limited control on the making of an appointment; the absence of control over such appointments is in marked contrast to adoption or fostering.¹⁶⁶ However, there is power in the court to revoke a guardianship and this power could be used if the guardian was unsuitable. It is still arguable that a power to revoke guardianship once it has become apparent the guardian is unsuitable is not as effective protection for a child as requiring a would-be guardian to undergo some kind of vetting process.

(ii) The appointment of guardians by courts

The court may consider appointing a guardian where the parents have both died without either of them appointing anyone as guardian of their children.¹⁶⁷ The court can also appoint a guardian even though the parents have appointed other guardians. This might occur if the person appointed by the parents as guardian is unable or unwilling to carry out the role. The court only has the power to appoint a guardian if there is no parent with parental responsibility who is alive, or if the parent with the residence order has died.¹⁶⁸ Usually this will follow an application to the court by the proposed guardian, although the court can act on its own motion. In deciding who to appoint, the child's welfare is to be the paramount consideration.¹⁶⁹ Clearly the court is likely to want to appoint someone who knows the child well.¹⁷⁰

¹⁶³ Although a guardian can only be appointed by a person over the age of 18.

¹⁶⁴ CA 1989, s 5(5).

¹⁶⁵ CA 1989, s 5(7), (8). The surviving parent can apply for the appointment to be ended if he or she wishes.

¹⁶⁶ Douglas and Lowe (1992).

¹⁶⁷ Or having appointed an unsuitable or unwilling guardian.

¹⁶⁸ Although there is no requirement to consult the checklist in s 1(3) of CA 1989.

¹⁶⁹ Although there is no requirement to consult the checklist in s 1(3) of CA 1989.

¹⁷⁰ *Re C (Minors) (Adoption by Relatives)* [1989] 1 FLR 222, [1989] FCR 744.

(iii) The legal effects of guardianship

The effects of guardianship are as follows:

1. The guardian acquires parental responsibility.
2. The guardian can object to adoption.
3. The guardian can appoint a guardian to replace them on their death.
4. A guardian is not liable to provide financially for a child under the Children Act 1989 or child support legislation, nor under social security legislation.¹⁷¹
5. There are no succession rights on the intestate death of the guardian.¹⁷²
6. No citizenship rights pass through a guardian.

It should be noted that guardians are given more 'rights' than a non-parent with parental responsibility (e.g. the rights on adoption), although they are not given all of the rights and responsibilities of a parent with parental responsibility. Although guardians are not liable for assessment under the child support legislation, guardians are under a legal duty to maintain the children and provide education, adequate food, clothing, medical aid and lodging. The explanation is that there was a fear that guardians would be deterred from accepting guardianship if they could become financially responsible for the child under the child support legislation.

(iv) Revoking an appointment

Section 6 of the Children Act 1989 deals with revocation of a guardianship appointment. The guardianship can be revoked in the following ways:

1. The parent who made the appointment makes a subsequent appointment. This will revoke the first appointment unless it is clear the parent was seeking to appoint a second guardian.¹⁷³
2. The parent who made the appointment can revoke it by a signed and dated document.¹⁷⁴
3. If the appointment is made in a will it is revoked if the will or codicil is revoked.¹⁷⁵
4. If the appointment is made by a document, the destruction of the document will end the appointment.¹⁷⁶
5. If a spouse is appointed as guardian,¹⁷⁷ this will be revoked by a subsequent divorce.¹⁷⁸

(v) Disclaimer

A guardian can disclaim the appointment within a reasonable length of time.¹⁷⁹ The disclaimer must be in writing. Once someone disclaims guardianship, he or she ceases to have the rights and responsibilities of guardianship. There is no need for a person to consent to

¹⁷¹ Social Security Administration Act 1992, s 78. It should be noted that guardians might be liable to support the child on their divorce under the Matrimonial Causes Act 1973 if the child were regarded as a 'child of the family'.

¹⁷² Nor can the guardian claim in the event of the child's death.

¹⁷³ CA 1989, s 6(1).

¹⁷⁴ CA 1989, s 6(2).

¹⁷⁵ CA 1989, s 6(4).

¹⁷⁶ CA 1989, s 6(3).

¹⁷⁷ For example, if a step-parent is appointed as guardian.

¹⁷⁸ CA 1989, s 6(3A).

¹⁷⁹ CA 1989, s 6(5).

becoming a guardian, so the burden rests on the guardian to make the non-acceptance of the appointment clear as soon as possible.

(vi) Termination

A court order can terminate guardianship. Anyone with parental responsibility, or the child him- or herself, can apply for a revocation, as can the court on its own motion.¹⁸⁰ The welfare principle governs the issue. The court may also decide to appoint a replacement guardian. The kind of circumstances in which the court may terminate a guardianship are where the guardian is failing properly to care for the child or where there is a dispute between, say, an unmarried father and the guardian which cannot be resolved, and the court decides the child's long-term future is with the father.

Termination of guardianship will occur on the death of the child, the death of the guardian, or on the child reaching majority. It may well be that the guardian's powers will terminate on the minor's marriage, but there is no clear provision to this effect.

B Foster parents

(i) The nature of foster parenthood

Foster parents¹⁸¹ are people who look after children on a long-term basis, but are not related to them. The term therefore covers a wide variety of arrangements: from a friend asked by a mother to care for her child while the mother has a lengthy time in hospital, to a family approved by a local authority to look after children who have been taken into local authority care. The law draws an important distinction between those placements which are private (arranged by parents) and those which are public (arranged by the local authority).

(ii) Private foster parents

The Children Act 1989 defines a 'privately fostered child'¹⁸² as a child under 16 years of age cared for by someone who:

- is not a parent;
- does not have parental responsibility for the child;
- is not a relative; and
- has accommodated the child for at least 28 days.

The requirement that a foster parent must accommodate a child for at least 28 days means that babysitters, day-care centres, playgroups and nurseries are not classified as foster parents.

There is, in practice, limited regulation of private foster parents.¹⁸³ There is no need for a court or local authority to approve a private fostering arrangement, although the local authority should be notified by the foster parents of the fact they are fostering or intend to foster.¹⁸⁴

¹⁸⁰ CA 1989, s 6(7).

¹⁸¹ Although the statute refers to 'foster parents', local authorities prefer to refer to 'foster carers'.

¹⁸² CA 1989, s 66. See Laming (2003) for a call that the Governments reconsider the law on private foster arrangements.

¹⁸³ It is now possible for a person who is thought by a local authority to be unsuitable to be a foster parent to be disqualified.

¹⁸⁴ Children (Private Arrangements for Fostering) Regulations 1991 (SI 1991/2050), r 4.

The local authority, in theory, can inspect the house where the child is living to check that it is suitable for fostering and may even supervise the fostering. In practice, many private fostering arrangements go unreported to any organ of the state.¹⁸⁵ Even where the local authority is notified of the arrangement, it is unlikely to intervene unless there is evidence that the child is being harmed.

Foster parents do not automatically acquire parental responsibility.¹⁸⁶ They are normally in the same position as anyone else who happens to be caring for a child at a particular time. They can rely on s 3(5) of the Children Act 1989:

LEGISLATIVE PROVISION

Children Act 1989, section 3(5)

A person who–

- (a) does not have parental responsibility for a particular child; but
- (b) has care of the child

may (subject to the provisions of this Act) do what is reasonable in all the circumstances of the case for the purpose of safe-guarding or promoting the child's welfare.

(iii) Local authority foster parents

Local authority foster parents (or foster carers as they tend to be called) have a very special position in the Children Act 1989 and the details of their position will be discussed in Chapter 12. However, the law seeks to hold together two policies. On the one hand, there is the realisation that foster carers and children can form a close relationship which should be recognised and protected.¹⁸⁷ On the other hand, local authority foster carers are not normally intended to be permanent carers and it is necessary to ensure that local authorities can remove the child (perhaps with a view to placing the child with prospective adopters) when necessary. The balance is struck by restricting the foster carer's ability to apply for a residence order until the foster parents have cared for the child for three years.

C Special guardians

The Adoption and Children Act 2002 created the status of special guardianship. This is intended to cover those who are full-time carers of children but are not going to take on the full status of parenthood. (This is discussed further in Chapter 12.)

D Those who treat a child as a child of the family

Even if an adult is not a child's genetic parent, legal consequences will follow if he or she treats a child as 'a child of the family'.

¹⁸⁵ Barton and Douglas (1995: 107) suggest that compiling the register is not high on the list of priorities of a local authority and that the power of inspection is rarely used; see Laming (2003).

¹⁸⁶ In *Re M (A Child)* [2002] 1 FCR 88 the child was found to have family life with the foster carers for the purposes of article 8 of the European Convention on Human Rights.

¹⁸⁷ Foster carers and their children can have family life together for the purposes of article 8: *Kopf and Libarda v Austria* (App No. 1598/06).

(i) What does 'a child of the family' mean?

The phrase 'child of the family' means any child of a married couple and any child treated by a married couple as a child of their family.¹⁸⁸ The definition therefore covers both genetic children of the marriage and a child to whom the spouses are not genetically related, but whom they have brought up as their child.¹⁸⁹ It covers stepchildren who are treated by step-parents as their own child. The phrase does not cover children brought up by unmarried couples.¹⁹⁰ To decide whether a child is a child of the family, the Court of Appeal has proposed the test: 'the independent outside observer has to look at the situation and say: "Does the evidence show that the child was treated as a member of the family?"'¹⁹¹ Therefore, the test focuses on the conduct of the adult rather than their beliefs.¹⁹² The child must be treated as a child of a family. There must be a family – a husband and wife living together.¹⁹³ The child cannot be treated as a child of a family due to actions before he or she was born.¹⁹⁴

(ii) The consequences of treating a child as a child of the family

1. On divorce, a spouse is liable to provide financial support for any child he or she treated as a child of the family under s 52 of the Matrimonial Causes Act 1973.¹⁹⁵
2. A person who has treated a child as a child of the family may be liable to provide financial support under Sch 1 to the Children Act 1989.¹⁹⁶
3. A person who has treated a child as a child of the family may be liable to provide financial support under the Domestic Proceedings and Magistrates' Courts Act 1978, s 38.
4. A person who has treated a child as a child of the family can apply as of right for a residence or contact order without needing to apply to the court for leave.¹⁹⁷
5. A child may be able to claim against the estate of a deceased adult who has treated them as a child of the family under the Inheritance (Provision for Family and Dependents) Act 1975.¹⁹⁸

By using the concept of a child of the family, the law gives some recognition to social parenthood, although it is restricted to those who are married. The emphasis is on the imposition of responsibilities rather than granting rights. The person treating the child as if the child is his or hers acquires responsibilities towards the child as listed above, although he or she does not thereby acquire parental responsibility. The biological parents will still be liable to support the child under the Child Support, Pensions and Social Security Act 2000, the Children Act 1989 or the Matrimonial Causes Act 1973; and the social parent may also be liable to support the child under the concept of a child of the family. From the child's viewpoint, this greatly increases the chances that someone will support the child financially.

¹⁸⁸ CA 1989, s 105(1).

¹⁸⁹ Foster children placed by a local authority or voluntary agency are excluded from the definition.

¹⁹⁰ *J v J (A Minor: Property Transfer)* [1993] 2 FLR 56, [1993] 1 FCR 471.

¹⁹¹ *D v D (Child of the Family)* (1981) 2 FLR 93 at p 97, per Ormrod LJ. See *Re A (Child of the Family)* [1998] 1 FLR 347 for an application of the test.

¹⁹² *Carron v Carron* [1984] FLR 805.

¹⁹³ Cohabiting for a fortnight was sufficient in *W v W* [1984] FLR 796.

¹⁹⁴ *A v A (Family: Unborn Child)* [1974] Fam 6.

¹⁹⁵ See Chapter 6.

¹⁹⁷ CA 1989, s 10(5)(a).

¹⁹⁶ See Chapter 6.

¹⁹⁸ Inheritance (Provision for Family and Dependents) Act 1975, s 1(1)(d). (See Chapter 12.)

E Step-parents

(i) The legal position of step-parents

A step-parent is a person who marries the mother or father of a child.¹⁹⁹ Inaccurately, but commonly, the term is also used for an unmarried cohabitant who moves in with a child's parent.²⁰⁰ Step-parents, and particularly stepmothers, have often been stigmatised in fairy tales as terrifying figures for children. Of course, the quality of relationship between stepchildren and step-parents varies enormously, as indeed does the relationship between genetic parents and their children.²⁰¹ A study by found that many stepfamilies did not describe themselves using the label 'step-' but simply as families.²⁰² However, the research suggested that, in times of family stress, the stepfamily emphasised the genetic relationships, rather than the step-relationships.²⁰³

The law's treatment of step-parents is ambiguous. Even though a step-parent in practice often acts towards the child as a parent and indeed may be treated by the child as if they were their biological parent, the step-parent does not automatically acquire parental responsibility on marrying the parent.²⁰⁴ However, if the step-parent reaches an agreement with the child's parents with parental responsibility, he or she can thereby gain parental responsibility.²⁰⁵ It should be noted that a step-parent will need the consent of the non-resident parent (if he or she has parental responsibility) for this to happen. The alternative for a step-parent is to apply to the court for a parental responsibility order. This will be used, no doubt, mainly where the non-resident parent is refusing to consent to the sharing of the parental responsibility. The step-parent who acquires parental responsibility in either of these two ways will not lose it if their marriage to the parent comes to an end. However, they can have that parental responsibility brought to an end by a court order.²⁰⁶ These provisions apply only to a person who marries a parent; they do not apply to a cohabitant of a parent. Another option for a step-parent is to adopt the child.²⁰⁷ The step-parent is not under a legal obligation to support stepchildren, although if he or she treats a child as a child of the family he or she may be liable on divorce or separation to support the child, under the Matrimonial Causes Act 1973. On divorce, a court may award a step-parent a contact order, but there is no presumption in favour of such an order.²⁰⁸

F Others caring for the child

A family friend or relative may care for a child on a day-to-day basis without having an official role. Such a person does not acquire parental responsibility simply because he or she is caring for a child. However, the law does provide some ways in which day-to-day carers are regulated by the law:

1. It is possible to delegate parental responsibility. Under s 2(9) of the Children Act 1989 a person with parental responsibility may 'arrange for some or all of it to be met by one or

¹⁹⁹ The social and legal position of step-parents is discussed in M. Smith (2003). Ribbens McCarthy *et al.* (2003) found that many stepfamilies reject the 'step-' terminology and regard themselves simply as families.

²⁰⁰ Barton (2009).

²⁰¹ Ribbens McCarthy *et al.* (2003).

²⁰² Ribbens McCarthy *et al.* (2003).

²⁰³ Ribbens McCarthy *et al.* (2003).

²⁰⁴ See Bainham (2006a: 61) for an argument for not treating a step-parent the same as a natural parent.

²⁰⁵ CA 1989, s 4A. This section was added by the Adoption and Children Act 2002.

²⁰⁶ The application to do so can be brought by a person with parental responsibility or the child.

²⁰⁷ See, further, Chapter 12.

²⁰⁸ A contact order is available but there is no presumption of contact between a child and a step-parent, as was made clear in *Re H (A Minor) (Contact)* [1994] 2 FLR 776, [1994] FCR 419.

more persons acting on his behalf.²⁰⁹ Hence, a parent may delegate responsibility to a babysitter or childminder.²¹⁰ There is no need to obtain court approval of the delegation. However, delegation does not absolve someone with parental responsibility from any legal liability. For example, a parent may be guilty of a criminal offence involving neglect of children, even though they have delegated parental responsibility to someone else, as s 2(11) makes clear.

2. Under s 3(5) of the Children Act 1989 if an adult is caring for a child, he or she 'may... do what is reasonable in all the circumstances of the case for the purpose of safeguarding or promoting the child's welfare'. The exact scope of this power and to what extent such a carer must consult with the parent is unclear.²¹¹ It is generally accepted that a person relying on s 3(5) cannot overrule a decision of a person with parental responsibility, but there is no provision explicitly to this effect.
3. A social parent with leave could apply to the court for a s 8 order.²¹² If the child is living with that adult, then he or she could acquire parental responsibility by virtue of a residence order.
4. A carer could seek to use wardship. The best-known circumstances are *Re D (A Minor) (Wardship: Sterilisation)*,²¹³ in which there were plans to sterilise an 11-year-old girl. Her parents did not object, but an educational psychologist who had been seeing the girl was concerned and used wardship to bring the issue to the court. However, wardship is available only in extreme cases. Following the Children Act 1989, in most cases an application for such a s 8 order will be most appropriate.
5. People caring for children have responsibilities. They commit criminal offences if they assault, ill-treat, neglect, abandon or expose a child in a way likely to cause unnecessary suffering or injury. Also a child can be taken into care on the basis of the lack of care provided by a carer.²¹⁴

9 Relatives

Here we will consider the position of those who are a child's relatives.²¹⁵ First, we will look at the rights of family members under the Children Act 1989. It will also be necessary to examine the right to respect for family life protected under the Human Rights Act 1998. The Children Act defines relatives as including 'a grandparent, brother, sister, uncle, or aunt (whether of the full blood or half blood or by affinity) or step-parent'.²¹⁶ In the Children Act there is no clear legal status which flows from being a relation. There are some who argue for a more

²⁰⁹ CA 1989, s 2(9).

²¹⁰ Department for Children, Schools and Families (2008a: para 2.18).

²¹¹ In *B v B (A Minor) (Residence Order)* [1992] 2 FLR 327, [1993] 1 FCR 211 a grandmother without parental responsibility caring for a child had difficulty in dealing with doctors and the educational authority in cases relating to children.

²¹² CA 1989, s 10.

²¹³ [1976] Fam 185.

²¹⁴ *Lancashire CC v B* [2000] 1 FLR 583, [2000] 1 FCR 509.

²¹⁵ For a useful discussion of the psychological role that relatives can play, see Pryor (2003).

²¹⁶ CA 1989, s 105. The Family Law Act 1996 gives a much longer list of relatives (discussed in Chapter 7).

formalised position for relatives, giving them a clear set of rights.²¹⁷ The arguments are made especially in respect of grandparents.²¹⁸ Sociological studies demonstrate that most children hold their grandparents in special affection²¹⁹ and indeed grandparents often play a major role in child-care arrangements.²²⁰ Over one-half of women in paid work with a child under five left the child with the child's grandparents.²²¹ Where a child is disabled, the role played by grandparents can be particularly significant.²²² There are dangers in talking about grandparents as a general group. One study suggested that grandmothers tended to play a more significant role in children's lives than grandfathers, and maternal grandparents than paternal grandparents.²²³ In a recent study it was found that, on parental divorce, paternal grandparents often lost contact with their grandchildren and that grandparents suffered depression as a result.²²⁴ This has led some to call for the law to grant grandparents a special legal status with attendant rights.

Opponents of such suggestions reply that giving wider family members rights will impinge on the rights of parents to raise their children as they think fit;²²⁵ further, that to give grandparents and others rights would be to give them rights without having responsibilities for the child.²²⁶ Douglas and Ferguson,²²⁷ arguing against giving grandparents special legal rights, maintain that this would work against the norms that generally govern relations between grandparents, their children and grandchildren. They argue that these relationships are governed by 'the norm of non-interference': that is, that grandparents seek to support but not interfere in the role carried out by parents. Further, they argue that the sacrifices that grandparents make for their grandchildren are not seen as part of a reciprocal relationship (i.e. grandparents do not expect anything back from their labours of love for their grandchildren).²²⁸

This is a complex issue, partly because the nature of the relationships varies so much. For example, some children never see their aunts and to others an aunt may be a 'second mother'. It is therefore perhaps not surprising that the law is reluctant to set out specified rights and obligations flowing from a particular blood relationship. One danger in this area is that, by giving relatives parental responsibility, the child might become confused. An aunt is an aunt, not a parent. That said, parental responsibility is a legal term of art and a phrase unlikely to be used in everyday family life. If parental responsibility gives the carer of the child the legal rights they need to look after the child, perhaps we should not get too worried about the device used to achieve this.

Under the Children Act 1989 there are various consequences of being a relative:

1. A relative can apply for a residence order or contact order without leave of the court where the child has lived with the relation for one year (or with the consent of the parents). Even

²¹⁷ Family Matters Institute (2009); see Masson and Lindley (2006) for an argument that relatives caring for children lack adequate support from the state.

²¹⁸ See Herring (2008c: ch. 7) for a detailed discussion on the law and social practice of grandparenting.

²¹⁹ Step-grandparents can play a significant role too.

²²⁰ Douglas and Murch (2002a). For a discussion of the support siblings can offer each other, see Beckett and Hershman (2001).

²²¹ Social and Community Planning Research (2000).

²²² *Re J (Leave to Issue Application for Residence Order)* [2003] 1 FLR 114.

²²³ Douglas and Ferguson (2003); Hunt (2006b).

²²⁴ Merrick (2000).

²²⁵ See Crook (2001).

²²⁶ Kaganas (2007b); Kaganas and Piper (2001: 268).

²²⁷ Douglas and Ferguson (2003).

²²⁸ Ferguson (2004).

if the child has lived with the relatives less than one year, the relative can still apply for a s 8 order, but leave of the court will be required.²²⁹ A relative is unlikely to be successful in applying for a residence order against the wishes of the parents unless it is shown that the parents are clearly unsuitable or the relative has formed a very close attachment to the child. (We will discuss this further in Chapter 10.) More commonly, a relative may apply for a contact order. In *Re A (Section 8 Order: Grandparent Application)*²³⁰ the grandmother wanted contact with her young grandchildren after a bitter divorce. The Court of Appeal stated that, although there was a presumption in favour of contact between a parent and a child, there was no such presumption of contact between a grandparent and a child, nor between any other relative and a child. It is clear that in each case the court will need to be persuaded that the relationship between the grandparent and the child is a close one and that contact will benefit the child.²³¹ The courts have acknowledged that to force a parent to permit contact between a child and a grandparent may be counter-productive if, for example, the parents regard the grandmother as interfering.²³² Siblings have a strong right to contact, but more distant relatives have been less successful than grandparents in contact cases.²³³

2. A grandparent and other relatives will have a strong case for contact with a child who is in care. If a local authority is 'looking after a child' then it is under a duty to promote contact between the child and the wider family.²³⁴ The cases certainly suggest that contact between a grandparent and a child in care will normally be granted.²³⁵
3. Where the parents of a child have died without appointing a guardian, the courts are likely to consider appointing a relative as guardian.
4. The local authority is under an obligation to consider placing a child with relatives before taking a child into care.²³⁶ Further, a local authority which is considering putting a child up for adoption should consider the possibility of placing a child with a relative before considering adoption by a stranger.²³⁷ (We will discuss this later in Chapter 12.)
5. Domestic violence injunctions. Under the Family Law Act 1996 non-molestation injunctions are available between 'associated persons', which includes relatives.²³⁸
6. Relatives may treat a child as a child of their family and this will trigger a series of rights and responsibilities.²³⁹
7. In certain circumstances a relative may be in a position to invoke wardship.²⁴⁰

²²⁹ CA 1989, s 10(5B).

²³⁰ [1995] 2 FLR 153, [1996] 1 FCR 467.

²³¹ *Re M (Care: Contact: Grandmother's Application for Leave)* [1995] 2 FLR 86, [1995] 3 FCR 550.

²³² *Re F and R (Section 8 Order: Grandparent's Application)* [1995] 1 FLR 524. See also *Re S (Contact: Grandparents)* [1996] 1 FLR 158, [1996] 3 FCR 30.

²³³ *G v Kirklees MBC* [1993] 1 FLR 805, [1993] 1 FCR 357 and *Re A (A Minor) (Residence Order: Leave to Apply)* [1993] 1 FLR 425, [1993] 1 FCR 870.

²³⁴ See Chapter 12.

²³⁵ *Re M (Care: Contact: Grandmother's Application for Leave)* [1995] 3 FCR 550.

²³⁶ Adoption and Children Act 2002, s 1(4)(f) requires the court to consider the child's relationship with her relatives before making an adoption order.

²³⁷ *Re R (A Child) (Adoption: Disclosure)* [2001] 1 FCR 238.

²³⁸ See Chapter 7.

²³⁹ See above (p 367).

²⁴⁰ See *Re H (A Minor) (Custody: Interim Care and Control)* [1991] 2 FLR 109, [1991] FCR 985.

10 The Human Rights Act 1998 and the right to respect for family life

Under article 8 of the ECHR:

LEGISLATIVE PROVISION

European Convention on Human Rights, article 8

1. Everyone has the right to respect for his private and family life, his home and his correspondence.
2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.²⁴¹

This is a clear recognition that family members other than parents can be protected through the law. The relevance of this article will be discussed throughout the text, but here a few general points will be made.²⁴²

A What is family life?

In defining family life it is clear that the paradigm of family life for the European Court of Human Rights has been a husband and wife and children.²⁴³ However, the European Court has not restricted family life to married couples and relationships through blood.²⁴⁴ In *Kearns v France*²⁴⁵ it was held that it covered a mother and child in a case where the mother had given her child up for adoption shortly after birth. Article 8 has been found to cover unmarried couples;²⁴⁶ siblings;²⁴⁷ uncle/nephew;²⁴⁸ grandparents/grandchild;²⁴⁹ same-sex couples²⁵⁰ and foster parents/foster child.²⁵¹ However, it appears that the further the relationship departs from the paradigm (i.e. the more remote the blood relationship), the more evidence is needed to show that there was a close social relationship between the parties. For example, in *Boyle v UK*²⁵² it was accepted that the uncle and nephew had 'family life' because the uncle proved he

²⁴¹ Article 8 of the European Convention.

²⁴² See Choudhry and Herring (2010) for a detailed discussion.

²⁴³ Choudhry and Herring (2010). In *Ahmut v The Netherlands* (1997) 24 EHRR 62 it was stated that once two people have family life, only in exceptional circumstances will that be lost.

²⁴⁴ *X, Y, Z v UK* [1997] 2 FLR 892, [1997] 3 FCR 341.

²⁴⁵ [2008] 2 FCR 1.

²⁴⁶ *X, Y, Z v UK* [1997] 2 FLR 892, [1997] 3 FCR 341. A suggestion that, on divorce, a couple ceases to have family life was made by the court in *L v Finland* [2000] 2 FLR 118 at p. 148; but this seems inconsistent with the general approach in the previous cases: e.g. *Keegan v Ireland* (1994) 18 EHRR 342.

²⁴⁷ *Moustaquim v Belgium* (1991) 13 EHRR 802 and *Senthuran v Secretary of State for the Home Department* [2004] 3 FCR 273.

²⁴⁸ *Boyle v UK* (1994) 19 EHRR 179.

²⁴⁹ *L v Finland* [2000] 2 FLR 118; *Adam v Germany* [2009] 1 FLR 560.

²⁵⁰ *Schalk v Austria* [2011] 2 FCR 650.

²⁵¹ *X v Switzerland* (1978) 13 DR 248.

²⁵² (1994) 19 EHRR 179. See also *Jucius and Juciuvienė v Lithuania* [2009] 1 FLR 403.

was a father figure to the boy. Had he actually been the boy's father, the court would readily have accepted that their relationship constituted family life and there would have been no need to show that their relationship was especially close. The English courts have been more willing to assume family life exists with wider relatives. In *Re R (A Child) (Adoption: Disclosure)*²⁵³ Holman J was willing to hold that a newborn baby had family life with her wider family, including uncles and aunts. If the relationship does not fall within family life, it may still be protected by article 8 as an aspect of the parties' private life. In *Znamenskaya v Russia*²⁵⁴ it was held that 'close relationships short of "family life" would generally fall within the scope of "private life"'.²⁵⁵

Perhaps the most controversy surrounds fathers and children. Although mothers inevitably have family life with their children,²⁵⁵ this is not true of fathers. As the European Court in *Lebbink v Netherlands*²⁵⁶ stated: 'The court does not agree with the applicant that a mere biological kinship, without any further legal or factual elements indicating the existence of a close personal relationship, should be regarded as sufficient to attract the protection of art. 8.' It explained that in considering a claim of a father the court would consider 'the nature of the relationship between the natural parents and the demonstrable interest in and commitment by the father to the child both before and after its birth'.²⁵⁷ It appears that fathers can acquire family life with their children in two ways:

1. By actually caring for the child in a practical way and thereby demonstrating his interest in and commitment to the child.²⁵⁸ This does not require the father to live with the child,²⁵⁹ but must involve some kind of contact.²⁶⁰
2. If the conception of the child takes place in the context of a committed relationship. Therefore, if the father was married, engaged or in a permanent cohabiting relationship at the time of the conception he will have family life with the resulting child.²⁶¹

This means that if the conception is part of a casual relationship and the man does not undertake a significant role in the care of a child, he will not be regarded as having family life with a child. In *G v The Netherlands*²⁶² a man donated sperm to a lesbian couple. After the child's birth he sought to have regular contact with the child. The European Court held that he did not have family life with the child.²⁶³ Similarly, in *Leeds Teaching Hospital NHS Trust v A*²⁶⁴ it was held that a man who provided sperm to enable a woman to become pregnant through assisted reproduction could not thereby claim to have family life with the child. In *Haas v The Netherlands*²⁶⁵ the European Court of Human Rights held there was no family life between a deceased man and a man who claimed to be his son. Although the deceased had financially

²⁵³ [2001] 1 FCR 238.

²⁵⁴ [2005] 2 FCR 406 at para 27.

²⁵⁵ *Re B (Adoption by One Natural Parent to Exclusion of Other)* [2001] 1 FLR 589, per Hale LJ.

²⁵⁶ [2004] 3 FCR 59 at para 37.

²⁵⁷ At para 36.

²⁵⁸ *Lebbink v Netherlands* [2004] 3 FCR 59.

²⁵⁹ *Lebbink v Netherlands* [2004] 3 FCR 59.

²⁶⁰ *Söderbäck v Sweden* [1999] 1 FLR 250.

²⁶¹ *Keegan v Ireland* [1994] 3 FCR 165 although subsequently the European Commission on Human Rights in *M v The Netherlands* (1993) 74 D&R 120 stated that there had to be some close personal ties to establish family life.

²⁶² (1990) 16 EHRR 38.

²⁶³ See also *Mikulic v Croatia* [2002] 1 FCR 720 where a father who had only ever had a casual relationship with the mother and had played no significant role in the care of the child was held not to have family life.

²⁶⁴ [2003] 1 FCR 599.

²⁶⁵ [2004] 1 FCR 147.

supported the child, he had never lived with the applicant nor his mother, nor had he ever recognised him as his son. In *Görgülü v Germany*,²⁶⁶ where a mother gave up a child for adoption shortly after birth, the court was willing to find that the father had ‘family life’ with the child. He did not have an actual relationships with the child, but that was because he was prevented from doing so. The court did add, however, that due to his limited involvement in the child’s life, it might be easier to justify an interference in his family life rights than it would have been if he had spent many years caring for the child. Recently in *Ahrens v Germany*²⁶⁷ the man had a brief relationship with a woman, before she settled down with another man and had a child. The woman and the new partner raised the child as their own. It was held the man did not have family life with the child. It seems the settled family life the child was in played a role in determining that there was no family life. However, arguably, that should have been seen as a factor justifying interference in the man’s rights, rather than denying he had family life with the child.

To some these cases constitute gender discrimination and there is no justification for assuming that a mother, but not a father, deserves family life with the child.²⁶⁸ To others the courts are recognising that through pregnancy and birth all mothers have demonstrated a relationship which deserves protection under the European Convention on Human Rights, while fathers’ relationships with their children can be so minimal that they do not automatically justify protection. It may be that future cases will develop the thinking in *Görgülü v Germany*²⁶⁹ and find that all fathers have a right to respect for family life, but the weight attached to that right will depend on the quality of relationship the father has.

B What is respect?

The European Court has made it clear that the requirement of respect for family life places both positive and negative obligations on the state. Article 8 may not only require the state not to interfere in family life but it may on occasions require the state to act positively to promote family life. For example, in *Hokkanen v Finland* the European Court held that the failure of the state to provide an effective mechanism for enforcing a contact order between a father and his child was an infringement of the right to respect for family life.²⁷⁰ In *Stubbings v UK*²⁷¹ it was explained:

although the object of article 8 is essentially that of protecting the individual against arbitrary interference by the public authorities, it does not merely compel the state to abstain from such interference: there may, in addition to this primary negative undertaking, be positive obligations inherent in an effective respect for private or family life. These obligations may involve the adoption of measures designed to secure respect for private life even in the sphere of the relations of individuals between themselves.

Thus the court has reasoned that some positive acts may be a necessary part of respect for family or private life and so a failure to provide these can be an interference with respect for family life. This is certainly so where the state has intervened in family life (e.g. by taking a child into care) in which case a duty arises requiring steps to be taken to reunite the child and

²⁶⁶ [2004] 1 FCR 410.

²⁶⁷ App No. 45071/09.

²⁶⁸ Bainham (2005: 216) argues the approach is inconsistent with article 7 of the UNCRC which recognises the right of the child to know both parents from birth.

²⁶⁹ [2004] 1 FCR 410.

²⁷⁰ [1996] 1 FLR 289, [1995] 2 FCR 320 ECtHR.

²⁷¹ (1997) 1 BHRC 316.

family.²⁷² It also means the state must take steps to enable family ties to be established. For example, *Rasmussen v Denmark*²⁷³ suggests that respect for family life may involve providing an effective and accessible remedy so that a man can establish that he is the father of a child.

The word respect does not necessarily involve approval. One might respect a person's religious beliefs, without agreeing with them. All that would be needed for respect would be an acknowledgement that the thing to be respected has some value. This suggests that the ECHR requires the state to value all forms of family life which have value, even if the Government believes they are below the ideal forms of family life. More controversially, it might be suggested that some forms of family life are so devoid of value that they do not deserve respect. That might be so where the relationship is characterised by abuse.²⁷⁴

C When can infringement be justified?

Paragraph 2 of article 8 sets out the circumstances in which an infringement of the right to respect for family life is justified. To justify the interference in the right it must be shown that:

1. The interference was in accordance with the law.
2. The interference was in pursuance of one of the listed aims (e.g. national security).
3. The interference must be necessary. It is not enough to show that the interference was reasonable or desirable; it must be shown that there was a pressing need for the interference.²⁷⁵ Further, it must be shown that the extent of the intervention was proportionate; in other words, there was not a less interventionist measure which would have adequately protected national security (or whichever of the listed aims was being pursued).

It is submitted that the nature of the quality of relationship between the parties is relevant, not only in deciding whether there is family life, but also in deciding whether the interference is justified under para 2. The weaker the relationship between adult and child, the more likely it is that state action will not be regarded as interference in the relationship; or if it is interference that it will be seen as justifiable.

11 Who has parental responsibility?

Learning objective 6

Explain who has parental responsibility

In many ways this is a more important question than 'who is a parent?' but, as we shall see, 'who is a parent?' and 'who has parental responsibility?' are actually linked questions. It is necessary to distinguish the way mothers, fathers, non-parents and

local authorities may obtain parental responsibility. First, the law will be set out in broad outline and then more detailed points will be discussed.

A Outline of the law

(i) Mothers

All mothers²⁷⁶ automatically have parental responsibility.

²⁷² See Chapter 12.

²⁷³ (1985) 7 EHRR 371. See also *Paulik v Slovakia* [2006] 3 FCR 323.

²⁷⁴ These arguments are developed in Herring (2008c).

²⁷⁵ *Dudgeon v UK* (1982) 4 EHRR 149.

²⁷⁶ That is, the woman regarded as the mother in the eyes of the law.

(ii) Fathers

A father²⁷⁷ will have parental responsibility in any of the following circumstances:

- he is married to the mother;²⁷⁸ or
- he is registered as the father of the child on the birth certificate;²⁷⁹ or
- he enters into a parental responsibility agreement with the mother; or
- he obtains a parental responsibility order from the court;²⁸⁰ or
- he has been granted a residence order;²⁸¹ or
- he has been appointed to be a guardian;²⁸² or
- he has adopted the child.

(iii) Non-parents

Someone who is not a parent can obtain parental responsibility in the following ways:

1. He or she will acquire parental responsibility if appointed as a guardian.²⁸³
2. A person who is not a parent or a guardian will acquire parental responsibility when he or she obtains a residence order.
3. A person who is granted an emergency protection order thereby acquires parental responsibility.

It should be noted that, in these circumstances, although the non-parent will have parental responsibility, he or she will not obtain the rights that flow from being a parent.

(iv) Local authorities

Local authorities can acquire parental responsibility as follows:

1. When a local authority obtains a care order it acquires parental responsibility.²⁸⁴
2. When a local authority obtains an emergency protection order it acquires parental responsibility.

B Consideration of the law in more detail

It is necessary to discuss some specific aspects of some of the points above.

(i) Mothers

The rule that all mothers automatically have parental responsibility for their children can be explained on the basis that the mother throughout the pregnancy has sustained the child and has undergone great sacrifices for her child. As she has demonstrated her commitment to the

²⁷⁷ That is, a man who is regarded as a father under the legal definition.

²⁷⁸ The phrase 'married to the mother' has a wide definition. This includes a child born as a result of assisted reproduction (CA 1989, s 2).

²⁷⁹ CA 1989, s 4, as amended by the Adoption and Children Act 2002.

²⁸⁰ CA 1989, s 4.

²⁸¹ CA 1989, s 12(2).

²⁸² CA 1989, s 5(6).

²⁸³ CA 1989, s 5(6).

²⁸⁴ CA 1989, s 44(4)(c).

child through pregnancy and has accepted that she will be involved in the care for the child after the birth, it is in the child's interests that she obtains parental responsibility.

(ii) Fathers

There is much debate over whether all fathers should automatically obtain parental responsibility. The present law restricts which fathers might obtain parental responsibility. For a father there are two sources of parental responsibility: first, the mother (if she has married him or has permitted him to be registered as the father on the birth certificate or has entered a parental responsibility agreement with him); secondly, the court (if the unmarried father is granted one of the orders mentioned above). The law appears to take the view that a father needs to be vetted and approved before he can acquire parental responsibility. But it should also be noted that a father (unlike the mother) has a choice: if a man wishes to father a child without having parental responsibility he may do so. There is no way that a mother can force the unmarried father of her child to have parental responsibility against his wishes.²⁸⁵ The mother does not have the option of giving birth to a child but not taking parental responsibility. This may well indicate cultural assumptions that it is 'natural' for mothers to care for children, but this is not necessarily expected of fathers.

We shall consider in further detail the different ways in which an unmarried father can acquire parental responsibility.

(a) The registered father

The Adoption and Children Act 2002 amended s 4 of the Children Act 1989 to provide that fathers who are registered as the father of the child on the birth certificate will automatically acquire parental responsibility.²⁸⁶ This significant change in the law will greatly increase the number of unmarried fathers who have parental responsibility. Around 80 per cent of births to unmarried couples were registered by both mother and father. There have been concerns that the new law will in fact deter fathers from being registered because they falsely believe that if they are given parental responsibility they will become financially liable for the child.²⁸⁷ Eekelaar voices a different concern, that mothers may be deterred²⁸⁸ from registering the father's name for fear that doing so would give him rights he could use to interfere with her upbringing of the child.²⁸⁹ If either of these concerns materialised, this would work against the policy of enabling children readily to discover the identity of their birth parents, discussed below. Another concern is that a mother may not appreciate the significance of registering the child's father.²⁹⁰

(b) Parental responsibility agreements

A father and a mother can enter a parental responsibility agreement under s 4(1)(b) of the Children Act 1989. The agreement must be in the prescribed form and recorded.²⁹¹ It must be signed by both parties and taken to a court where the certificate will be witnessed and signed.

²⁸⁵ She cannot register him on the birth certificate without his consent.

²⁸⁶ Of course, a father who misleads a registrar into putting his name on the certificate cannot thereby acquire parental responsibility: *A v H (Registrar General for England and Wales and another intervening)* [2009] 3 FCR 95.

²⁸⁷ In fact, fathers are liable under the Child Support Act 1991 whether or not they have parental responsibility.

²⁸⁸ In fact, he suggests they would be 'well advised' not to (Eekelaar (2001d: 430)).

²⁸⁹ Although he points out that having the father registered may make it easier to claim child support against him.

²⁹⁰ Diduck and Kaganas (2006: 229).

²⁹¹ An oral agreement could amount to a delegation of parental responsibility under CA 1989, s 2(9).

Critics of the procedure argue that the technicalities that surround it deter fathers from using it. Indeed, the number of parental responsibility agreements has not been high. The reason, no doubt, is that if the parents are happy together they do not see the need for a formal agreement, but if they are in dispute then there will be no agreement. On the other hand, there are those who suggest that the procedure is too easy. There is no effective check to ensure that the applicant is the father of the child; that the mother's consent is freely given; or that the man is suitable to have parental responsibility.

In *Re X (Parental Responsibility Agreement)*²⁹² the Court of Appeal regarded the right of a mother and father to enter into a parental responsibility agreement 'free from state intervention'²⁹³ as an important aspect of the right of respect for family life under article 8. The right to enter into the parental responsibility agreement exists even though the child has been taken into care.²⁹⁴

(c) Section 4 applications

If the father is not registered on the birth certificate and is unable to obtain the mother's consent, he can apply under s 4 of the Children Act 1989 for a parental responsibility order. Only genetic fathers can apply under s 4, and if there is any doubt whether the applicant is the father, DNA evidence will be required. Orders are available only in respect of a child under 18.²⁹⁵

In deciding whether to grant parental responsibility, s 1(1) of the Children Act 1989 applies,²⁹⁶ and therefore the welfare of the child is to be the paramount consideration.²⁹⁷ Although the Court of Appeal in *Re H (Parental Responsibility)*²⁹⁸ has stated that it is wrong to suggest that there is a presumption in favour of awarding parental responsibility, we shall see that the cases demonstrate that only in unusual circumstances will parental responsibility not be granted. In 2011 there were 5,586 court hearings involving parental responsibility orders and in only 45 cases was the order refused.²⁹⁹ Given that we are dealing with cases where the mother believed the father should not have parental responsibility, it is a tiny number of refusals.

Most of the cases considering applications under s 4 use as a starting point *Re H (Minors) (Local Authority: Parental Responsibility) (No. 3)*,³⁰⁰ where it was stated that these factors should be taken into account:

1. the degree of commitment which the father has shown towards the child;
2. the degree of attachment which exists between the father and the child; and
3. the reasons of the father applying for the order.

²⁹² [2000] 1 FLR 517.

²⁹³ This is perhaps a little misleading, as the agreement does have to be lodged at the court and so the state is involved.

²⁹⁴ In *Re X (Parental Responsibility Agreement)* [2000] 1 FLR 517.

²⁹⁵ There is no need to demonstrate that the circumstances are exceptional: cf. CA 1989, s 9(6).

²⁹⁶ The presumption of parental involvement (discussed in Chapter 9) applies. As does CA 1989, s 1(5): *Re P (Parental Responsibility)* [1998] 2 FLR 96, [1998] 3 FCR 98, although Gilmore (2003a) suggests that whether the welfare principle applies to applications for a parental responsibility order is yet to be definitively decided.

²⁹⁷ *Re H (Parental Responsibility)* [1998] 1 FLR 855.

²⁹⁸ [1998] 1 FLR 855.

²⁹⁹ Six per cent of the applications are refused and in 4 per cent of cases no order is made.

³⁰⁰ [1991] 1 FLR 214, [1991] FCR 361.

A little more focus to the test was set out in the question posed by Mustill LJ in *Re C (Minors)*:

... was the association between the parties sufficiently enduring; and has the father by his conduct during and since the application shown sufficient commitment to the child to justify giving the father a legal status equivalent to that which he would have enjoyed if the parties had married?³⁰¹

The fact that the applicant has applied for an order shows commitment in itself,³⁰² but the Court of Appeal has stressed that even if there is attachment and commitment the court still might not award parental responsibility if other factors indicate that it would be contrary to the child's interests.³⁰³ Each case depends very much on its own facts, but the following points have arisen in previous cases and will be considered:³⁰⁴

1. *Contact with the child.* Where there is regular contact and financial support the court will readily find there is sufficient commitment between the father and the child for a parental responsibility order to be appropriate.³⁰⁵ However, just because there has never been contact between the father and the child, it does not necessarily mean that parental responsibility will not be granted, especially if the father can demonstrate that the lack of contact was due to the mother's actions. That said, as yet there is no case where a father has never seen the child but was awarded parental responsibility. Indeed, in *Re J (Parental Responsibility)*³⁰⁶ parental responsibility was refused on the basis that the child never knew her father, he was 'almost a stranger'.
2. *Status.* In *Re S (A Minor) (Parental Responsibility)*³⁰⁷ the Court of Appeal emphasised that parental responsibility gave an unmarried father the status 'for which nature had already ordained that he must bear responsibility'. This judgment suggests that the parental responsibility order merely confirms what the father's status is according 'to nature'. The parental responsibility order was referred to as a 'stamp of approval'. In this case, even though the father had been convicted of possessing paedophilic literature, he was still awarded parental responsibility. It is not clear what to make of these statements of the Court of Appeal and they do not sit easily with some of the more recent decisions.

In *Re D (Withdrawal of Parental Responsibility)*³⁰⁸ Ryder LJ held that parenthood and having parental responsibility had to be kept separate. Simply because someone was a parent did not give them the right to have parental responsibility. Parental responsibility was given based on the child's welfare.

The following is now the leading case and it emphasises that the 'status' argument does not really carry independent weight and that the focus must be on what is in the child's welfare.

³⁰¹ *Re C (Minors) (Parental Rights)* [1992] 2 All ER 86 at p. 93.

³⁰² *Re S (A Minor) (Parental Responsibility)* [1995] 2 FLR 648 at p. 659.

³⁰³ *Re P (Parental Responsibility)* [1998] 2 FLR 96, [1998] 3 FCR 98.

³⁰⁴ Gilmore (2003a) provides a very useful discussion of the case law.

³⁰⁵ *Re S (A Minor) (Parental Responsibility)* [1995] 2 FLR 648.

³⁰⁶ [1999] 1 FLR 784.

³⁰⁷ [1995] 2 FLR 648.

³⁰⁸ [2014] EWCA Civ 315.

CASE: *Re M (Parental Responsibility Order)* [2013] EWCA Civ 969

The father of a boy, aged 11, M, was not married to the mother. He did not have parental responsibility. He separated from the mother, but had significant levels of contact with M. One night he disappeared with the boy and evaded the police who were seeking to locate him. Following that, contact ceased and a residence order in favour of the mother was granted. The father sought a parental responsibility order. The mother and boy opposed the application because the boy did not want his father knowing about his education. The father had developed entrenched views about the case and was convinced he was the victim of a corrupt legal system, and there were concerns the father might use the boy in his campaigns. The trial judge refused to grant him parental responsibility.

On appeal the Court of Appeal upheld the refusal. M was of sufficient age and understanding to have his views respected. Having regard to his wishes, the mother's vulnerability and the father's past behaviour it was right not to grant him parental responsibility. There was cogent evidence that the parental responsibility might be misused. The argument that parental responsibility was a 'status' recognising his parental role, was not a 'stand alone' factor. Ryder LJ went on to explain 'while there is no presumption, a parental responsibility order should normally be made on a father's application and it will be a rare case where it is not' (para 18). The court should focus on the welfare of the child. In this case the welfare balance came down against granting parental responsibility.

3. *Child's reaction to failed application.* In *C and V (Minors) (Parental Responsibility and Contact)*³⁰⁹ Ward LJ stated that it was good for a child's sense of self-esteem that the child thought positively about an absent parent and so 'wherever possible the law should confer on a concerned father that stamp of approval because he has shown himself willing and anxious to pick up the responsibility of fatherhood and not to deny or avoid it'.³¹⁰ Similarly, in *Re S (A Minor) (Parental Responsibility)*³¹¹ it was stated that:

... the law confers upon a committed father that stamp of approval, lest the child grow up with some belief that he is in some way disqualified from fulfilling his role and that the reason for the disqualification is something inherent which will be inherited by the child, making her struggle to find her own identity all the more fraught.³¹²

4. *The child's view.* If the child is sufficiently mature, the child's views on whether the application should succeed can be taken into account.³¹³ In *Re G (A Child) (Domestic Violence: Direct Contact)*³¹⁴ the fact that a child (aged nearly four) did not want to have any contact with the father and was fearful when he was mentioned led Butler-Sloss P to hold that it was inappropriate to grant him parental responsibility.

³⁰⁹ [1998] 1 FLR 392, [1998] 1 FCR 57; see Eekelaar (1996).

³¹⁰ See also *Re M (Parental Responsibility Order)* [2013] EWCA Civ 969.

³¹¹ [1995] 2 FLR 648.

³¹² At p. 657. A cynic might doubt whether the child will appreciate the significance of parental responsibility if he or she does not see his or her father. The order is more likely to affect the father's image of himself than his child's.

³¹³ *Re M (Parental Responsibility Order)* [2013] EWCA Civ 969. *Re J (Parental Responsibility)* [1999] 1 FLR 784.

³¹⁴ [2001] 2 FCR 134.

5. *Misuse*. A father should not be denied a parental responsibility order simply because there are fears that the father may misuse the order.³¹⁵ If necessary, the court can make orders restricting the father's use of parental responsibility or requiring him to obtain the leave of the court before bringing any proceedings.³¹⁶ It is even possible to remove parental responsibility from a father.³¹⁷ In *Re S (A Minor) (Parental Responsibility)*³¹⁸ the mother's argument that the father might misuse the order on the basis that he had been unreliable about providing financial support for the child and had been convicted of possessing paedophilic literature failed. It was stated that it was wrong to focus on the potential misuse of the order and, instead, a father wishing to undertake the responsibilities associated with parenthood should be entitled to do so. That said, if there is very clear evidence that the father is determined to disrupt the mother's care of the child and is applying for parental responsibility to enable him to do so then the court will decline to grant the order.³¹⁹ Alternatively, the court might grant him parental responsibility and at the same time make an order that he must not exercise his parental responsibility in a particular way.
6. *Parental responsibility and other orders*. A parental responsibility order can be made even though a child arrangements order is inappropriate.³²⁰ In other words, it is not necessary to show that the father will ever practically be able to exercise parental responsibility in order for him to be awarded it. So, parental responsibility can be ordered even though the child is about to be adopted.³²¹ A good example of this point is *Re C and V (Minors) (Parental Responsibility and Contact)*,³²² where a father had a close relationship with a child. Unfortunately, the child had severe medical problems and needed constant medical attention. The mother had learned the skills necessary to care for the child, but the father had not. It was therefore felt inappropriate to allow the child to visit the father, but still he was granted parental responsibility as a mark of his commitment to the child. Indeed MacFarlane LJ went further in *Re W (Parental Responsibility Order: Inter-Relationship with Direct Contact)*³²³ and suggested a refusal to order direct contact could strengthen the case for making a parental responsibility order, because the father would need it to confirm his status as a father.
By contrast, in *R v E and F (Female Parents: Known Father)*³²⁴ a father was to have contact with the child, but was not granted parental responsibility. It was held that s 3(5) of the Children Act 1989 enabled him to make decisions about the child during the contact session and so he did not need parental responsibility.
7. *Reprehensible conduct of the father*. Simply because the father has harmed the child in the past does not necessarily mean that a father will be denied parental responsibility. However, in *Re T (Minor) (Parental Responsibility)*³²⁵ the application was denied because the father had shown no understanding of the child's welfare and had treated the mother

³¹⁵ *Re W (Parental Responsibility Order: Inter-Relationship with Direct Contact)* [2013] EWCA Civ 335.

³¹⁶ CA 1989, s 91(14).

³¹⁷ CA 1989, s 4(3).

³¹⁸ [1995] 2 FLR 648.

³¹⁹ *Re M (Parental Responsibility Order)* [2013] EWCA Civ 969; *Re P (Parental Responsibility)* [1998] 2 FLR 96, [1998] 3 FCR 98; *Re M (Handicapped Child: Parental Responsibility)* [2001] 3 FCR 454.

³²⁰ *Re P (A Minor) (Parental Responsibility Order)* [1994] 1 FLR 578.

³²¹ *Re H (Minors) (Local Authority: Parental Responsibility) (No. 3)* [1991] 1 FLR 214, [1991] FCR 361.

³²² [1998] 1 FLR 392, [1998] 1 FCR 57, confirmed in *Re M (Parental Responsibility Order)* [2013] EWCA Civ 969.

³²³ [2013] EWCA Civ 335.

³²⁴ [2010] EWHC 417 (Fam).

³²⁵ [1993] 2 FLR 450, [1993] 1 FCR 973.

with violence and hatred.³²⁶ In *Re P (Parental Responsibility: Change of Name)*³²⁷ the Court of Appeal refused to interfere with a refusal to grant parental responsibility on the basis that the father's repeated criminal offences and resulting imprisonment demonstrated (the court felt) his lack of commitment to the child. In *Re H (Parental Responsibility)*³²⁸ the father had injured the son deliberately and there was even some suggestion that sadism was involved, and therefore the court did not grant parental responsibility as there was a future risk. So it appears that if the misconduct reveals a lack of commitment to the child or that the man is a danger to the child then the misconduct may be a strong reason to deny parental responsibility.

8. *Mother's possible reaction to the granting of the order.* The fact that the mother might bitterly oppose the order and there is hostility is not a reason for refusing the order,³²⁹ although if the child's mother will be so upset that this may affect her parenting ability and cause the child to suffer, then parental responsibility may be denied.³³⁰ In *Re R (Parental Responsibility)*³³¹ parental responsibility was not given to a man who was the psychological, but not biological, father of the child. Although deeply committed to the child, giving him parental responsibility would create tension and instability, given the breakdown.
9. *Mother's death.* In some cases the argument had been accepted that parental responsibility should be granted to a father so that he can take over care of the child if anything happens that might prevent the mother from caring for the child: for example, if she dies.³³²
10. *The father's ability to exercise parental responsibility.* In *M v M (Parental Responsibility)*³³³ the father suffered from a learning disability and head injuries and Wilson J argued that therefore he was incapable of exercising the rights and responsibilities of parental responsibility.

As the above discussion demonstrates, the cases do not always reveal a consistent approach, but it appears that if a father has shown sufficient commitment to the child then a parental responsibility order will be made unless there are serious concerns that he may harm the child. This has led one leading family lawyer to complain of the 'degradation of parental responsibility'.³³⁴ Indeed, it is striking that we needed a decision of the Court of Appeal (in *Re H (Parental Responsibility)*)³³⁵ to tell us that a father who had sadistically injured his child should not have parental responsibility.

In 2015, a total of 52,444 parental responsibility orders were granted and in only 45 cases did the court refuse to grant a parental responsibility order.³³⁶ The readiness of the courts to award parental responsibility is controversial. In discussing these cases it is crucial to remember that they all involve families where the mother is opposing the grant of parental responsibility. If she was in accord, the couple would lodge a parental responsibility agreement.

³²⁶ See also *Re G (A Child) (Domestic Violence: Direct Contact)* [2001] 2 FCR 134.

³²⁷ [1997] 2 FLR 722, [1997] 3 FCR 739.

³²⁸ [1998] 1 FLR 855.

³²⁹ *D v S* [1995] 3 FLR 783; *Re P (A Minor) (Parental Responsibility Order)* [1994] 1 FLR 578.

³³⁰ *Re K* [1998] Fam Law 567.

³³¹ [2011] EWHC 1535 (Fam).

³³² *Re E (Parental Responsibility: Blood Test)* [1995] 1 FLR 392, [1994] 2 FCR 709; *Re H (A Minor) (Parental Responsibility)* [1993] 1 FLR 484, [1993] 1 FCR 85.

³³³ [1999] 2 FLR 737.

³³⁴ Reece (2009b).

³³⁵ [1998] 1 FLR 855.

³³⁶ Ministry of Justice (2016). The latest statistics do not provide details of how many cases involved refusals.

What from one perspective appears to be the court encouraging the father to play his role in the child's life might appear to the mother to be a licence to the man who may have abused her child to interfere in every aspect of the child's life. The real difficulty here is that perhaps the notion of parental responsibility is not sufficiently fine-tuned. Returning to *Re S (A Minor) (Parental Responsibility)*, discussed above, to give a father who had a conviction for possession of paedophilic literature the right to clothe, feed and bathe a child might seem inappropriate, even if there is an argument that he should have a say in fundamental issues, such as where the child should be educated. The difficulty is that the present law on parental rights requires us to give him all or none of the legal rights of a parent.

(iii) Non-parents

It is sensible that if a non-parent is given a residence order, parental responsibility will also be granted because this will reflect the fact that he or she will be carrying out the parental roles. At present only parents or those with residence orders can be granted parental responsibility. There is an argument that the court should have a wider power to make parental responsibility orders. The court has certainly called for this. A good example of the problems of the present law is *Re A (A Child) (Joint Residence: Parental Responsibility)*³³⁷ where a child was raised by a man (A) and a woman. A believed himself to be a father and played a full role in raising the child. However, it was found after the child's second birthday that in fact A was not the father. The Court of Appeal approved the making of a shared residence order in order to recognise the role that he played as the child's social and psychological parent and to ensure he had parental responsibility. The making of the joint residence order was the only way of granting him parental responsibility. The order was made even though in reality the child was to live with the mother, and A was to have regular contact with the child.

(iv) Local authorities

This will be discussed in Chapter 11.

12 Who should get parental responsibility?

A Unmarried fathers

Learning objective 7

Debate who should get parental responsibility

As we have explained, unmarried fathers³³⁸ in English law do not obtain parental responsibility automatically. An unmarried father may acquire parental responsibility in three ways. The first is by agreement with the mother and being registered as the father on the birth certificate or registering a parental responsibility agreement with the court. The second is by marrying the child's mother.³³⁹ The third is by persuading the court to make a parental responsibility order. Whether this law is satisfactory is hotly disputed and there is much debate over whether unmarried fathers should get parental responsibility automatically.³⁴⁰

³³⁷ [2008] 3 FCR 107, see *R e H (Shared Residence: Parental Responsibility)* [1996] 3 FCR 321; *Re WB (Residence Order)* [1995] 2 FLR 1023, discussed in Wallbank (2007).

³³⁸ The widely used term unmarried father is not ideal; he may well be married – to someone other than the mother.

³³⁹ Only the father of a child obtains parental responsibility of the child by marrying the mother. A step-parent does not thereby acquire parental responsibility.

³⁴⁰ Sheldon (2001b); Bainham (1989).

The difficulty is that the term ‘unmarried father’ covers a wide range of relationships. The European Court of Human Rights in *B v UK*³⁴¹ has explained the dilemma: ‘The relationship between unmarried fathers and their children varies from ignorance and indifference to a close stable relationship indistinguishable from the conventional family-based unit.’ As 82 per cent of births to unmarried parents are joint registrations the large majority of unmarried fathers will have parental responsibility.³⁴² However, fathers who are not on the birth certificate may not realise they may lack parental responsibility. Research by Pickford³⁴³ found that although four-fifths of fathers were aware that they were financially liable to support their children, only one-quarter of all fathers were aware that there was a difference in the legal rights of married and unmarried fathers. Similarly, Elmalik and Wheeler³⁴⁴ found that more than 80 per cent of couples incorrectly believed a father cohabiting with his child had parental responsibility, even if unmarried. Indeed, they found doctors’ ignorance of law led them to operate on children on the basis of consent from an unmarried father and thereby, technically, acting without lawful authorisation. So, ignorance of the law is not just found among the parents, but those professionals dealing with them.

Very broadly, five approaches could be taken to unmarried fathers and parental responsibility:

1. All unmarried fathers could be given parental responsibility automatically.
2. All unmarried fathers could be given parental responsibility, but this could be removed on application to the court.³⁴⁵
3. A group of unmarried fathers could be given parental responsibility. There could be removal or addition to this group on application to the court.
4. No unmarried fathers could be automatically given parental responsibility, but a procedure could exist whereby they could acquire parental responsibility (or to remove parental responsibility). This is the position in England and Wales at present.
5. No unmarried father is given parental responsibility.

The essential question is, where should the burden lie? Should it be on the mother or the state to establish that the father is unsuitable, or on the father to show that he is suitable? At the heart of this issue is what parental responsibility means. The stronger the ‘rights’ that parental responsibility provides, the more reluctant the law will be in granting it to a wide group of people. However, the more limited the rights the more willing a legal system may be to grant all fathers parental responsibility. The meaning of parental responsibility is discussed later in the text (Chapter 9). There is also a dispute over the role of the law here. On the one hand, there are those who emphasise the ‘message’ that the law gives. They often argue that fathers should be encouraged and expected to fulfil their role as parents and this should be emphasised by giving as many unmarried fathers as possible parental responsibility. Others emphasise the practical effect of giving unmarried fathers parental responsibility and are concerned by the fact that parental responsibility could be misused.

Some of the key issues that have been raised in the debate are as follows:

³⁴¹ [2000] 1 FLR 1 at p. 5.

³⁴² National Statistics (2005: table 3.2).

³⁴³ Pickford (1999).

³⁴⁴ Elmalik and Wheeler (2007). See also Pickford (1999).

³⁴⁵ Parental responsibility for mothers cannot be revoked, except when following the making of an adoption order or a parental order.

DEBATE

Should all fathers automatically get parental responsibility?

1. *The balance of power between mothers and fathers.* The case for awarding parental responsibility to only a selection of unmarried fathers runs as follows. Why does the father need parental responsibility? He can carry out all the duties and joys of parenthood (feeding, clothing, playing with the child) without parental responsibility. He only needs parental responsibility when he is dealing with third parties such as doctors and schools. At such times the mother can provide the necessary consent. He would only need parental responsibility if he were wishing to exercise it in a way contrary to the mother's wishes.³⁴⁶ An unmarried father who has been fully involved in the raising of the child might be thought validly to have an important say in the raising of children. But an unmarried father who had limited or no contact with the child should surely not be able to override the mother's wishes. Ruth Deech has argued that parental responsibilities:

include feeding, washing and clothing the child, putting her to bed, housing her, educating and stimulating her, taking responsibility for arranging babysitting and day-care, keeping the child in touch with the wider family circle, checking her medical condition, arranging schooling and transport to school, holidays and recreation, encouraging social and possibly religious or moral development. Fatherhood that does not encompass a fair share of these tasks is an empty and egotistical concept and has the consequence that the man does not know the child sufficiently well to be able sensibly to take decisions about education, religion, discipline, medical treatment, change of abode, adoption, marriage and property.³⁴⁷

Julie Wallbank³⁴⁸ has argued that because women assume the primary responsibility for the child their views should be given priority in decisions about whether the father should acquire parental responsibility. She suggests that those who support giving all fathers parental responsibility rely on the 'ethic of justice' (which emphasises the importance of formal equality and general rules), rather than 'the ethic of care' (which emphasises the importance of responsibilities and relationships).³⁴⁹ She supports privileging the position of mothers who undertake the bulk of the day-to-day work with the child.³⁵⁰ Opponents of such views will claim that it is wrong to presume that unmarried fathers do not take part in the 'work' of parenting or do not have relationships with their children that are of equal worth to those mothers have.

2. *Fears of misuse.* There is a concern that the non-residential father may misuse parental responsibility. He may see it as a justification for 'snooping' on the mother and continuing to exercise power over her, although it may be said that if a man is of the kind who will pester the mother with legal actions and 'snooping' to check she is being a good mother, he will do so whether or not he has parental responsibility.
3. *Parental responsibility should reflect the social reality.* The argument here is that if a father is carrying out a parental role he should receive parental responsibility. This would mean that the legal position of the father and his social position would match. The parental

³⁴⁶ Eekelaar (1996).

³⁴⁷ Deech (1993: 30).

³⁴⁸ Wallbank (2002a).

³⁴⁹ See further Smart and Neale (1999b).

³⁵⁰ Sheldon (2001b: 105) argues there is not yet sufficient evidence to demonstrate that unmarried fathers undertake sufficient child care to be in a position to make important decisions for children. There is sufficient evidence in relation to mothers to make this assumption.

- responsibility could then be seen as the law's stamp of approval for the task he is carrying out.³⁵¹
4. *Rights of the child.* The issue could be examined from the perspective of the rights of the child. It could be argued that a child has a right to have the responsibilities of parenthood imposed on both his or her mother and father. Deech strongly opposes such an argument: 'The basic rights of the child are not furthered by delivering more choice to the unmarried father. Legal rights which he may acquire are choices for him; that is, he may or may not choose to exercise them. Such choice is a limitation on the rights of the child.'³⁵²
 5. *The rights of the father.* Some claim that the English law, in failing to provide an unmarried father with parental responsibility, breaches the Human Rights Act 1998.³⁵³ There are ways that such a claim may be made:
 - (a) *Discrimination on the grounds of sex.* Article 14 states: 'The enjoyment of the rights and freedoms set forth in this convention shall be decreed without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, natural or social origin in association with a natural minority, property, birth or other status.' It might be argued that, by giving mothers but not fathers automatic parental responsibility, this is discrimination on the ground of sex. However, this was rejected in *McMichael v UK*³⁵⁴ and *B v UK*.³⁵⁵ This, it is argued, is correct because of the greatly differing roles that men and women play during pregnancy.
 - (b) *Discrimination on the grounds of marital status.* Again, referring to article 14, it could be said that the list of prohibited grounds of discrimination is not closed (the article says 'such as', indicating that there could be other grounds apart from the ones mentioned in the article). It could be argued, therefore, that marital status could be added as another prohibited ground and that denying automatic parental responsibility to unmarried fathers is therefore prohibited. *B v UK*³⁵⁶ and *Sporer v Austria*³⁵⁷ have accepted that it is permissible under the European Convention on Human Rights for a state to treat married and unmarried couples in different ways, if a sound reason for doing so exists.³⁵⁸ It was suggested that, given the wide varieties of unmarried fathers, it was legitimate for the state to restrict which could receive parental responsibility.³⁵⁹
 - (c) *Breach of right to respect for family life.* Article 8 of the European Convention on Human Rights states that: 'Everyone has the right to respect for his private and family life, his home and his correspondence.' This article certainly protects unmarried fathers³⁶⁰ but this does not require automatic legal status. The approach taken by

³⁵¹ Eekelaar (1996).

³⁵² Deech (1993: 30).

³⁵³ Booth (2004: 355).

³⁵⁴ (1995) 20 EHRR 205.

³⁵⁵ [2000] 1 FLR 1, [2000] 1 FCR 289.

³⁵⁶ [2000] 1 FLR 1, [2000] 1 FCR 289.

³⁵⁷ App No 35637/03, ECHR.

³⁵⁸ Hofferth and Anderson (2003) argue that the sociological data (at least from the US) indicates that a marriage to the mother is a better indication of parental commitment than a genetic tie.

³⁵⁹ Although in *Sporer v Austria* (App No 35637/03) because an unmarried father could not put himself in the position of a married father there was discrimination.

³⁶⁰ E.g. *Johnston v Ireland* (1986) 9 EHRR 203.

the European Court seems to be that, as long as there is a route available by which a father can establish that he should be given parental responsibility, there is no breach of the Convention.

6. *Wrong to impose responsibilities but no rights.* An unmarried father is liable to pay child support under the Child Support Act 1991 but is not automatically awarded parental responsibility. Is it fair that he should suffer the burdens but not gain the benefits that flow from parental responsibility? Deech has argued the opposite. If the father is not willing to show the commitment to the mother and the child by marriage, he should not receive parental responsibility, but should bear financial responsibility.³⁶¹ Indeed, it could be argued that although it always promotes a child's welfare to have both parents under a duty to support him or her financially, it is not true that it is necessarily in a child's interests to have both parents having the power to make decisions over his or her upbringing. This is true especially if a parent with that power does not know the child.
7. *The rapist father.* The argument that carried much weight in the parliamentary discussion of the issue was that a man who fathered a child through rape should not obtain parental responsibility. To require a victim of rape to persuade a court that the rapist father should have his parental responsibility removed was clearly inappropriate and it was therefore better not to give the unmarried father automatic parental responsibility.³⁶² This argument is perhaps not as strong as might at first sight appear. It would be possible to have a specific statutory provision excluding convicted rapists³⁶³ (although this would deal only with those rapists who were convicted). In any event there is a danger in relying on a rare situation to establish a general rule.
8. *Uncertainty.* This is one of the strongest arguments in favour of the present law. One benefit of the present law is that it is relatively easy to know whether a man has parental responsibility for a child. He will need to produce his certificate of marriage with the mother, the child's birth certificate, a parental responsibility order or copy of a parental responsibility agreement. If the law were to state that all unmarried fathers automatically obtained parental responsibility then, unless biological tests were done, it would be impossible to know whether a man claiming to have parental responsibility was or was not the father of the child. As the most common situation where it really matters whether a man has parental responsibility or not is when a child needs medical treatment, it is important that doctors can readily discover whether a father has parental responsibility. Bainham's response to such a point is to suggest that from birth a father should be recognised as having 'inchoate' rights which are 'perfected and converted into recognisable' legal rights when paternity is established in the legal process.³⁶⁴ If this suggests that a father's rights will be enforceable only when his paternity is recognised in law, then few unmarried fathers will be able to rely on these rights because few of them will have their paternity established at law, except those named on the birth certificate, who have parental responsibility under the current law.
9. *Efficiency and public resources.* The present law seems to suggest that it is not at all difficult for an unmarried father to obtain parental responsibility (although it does involve

³⁶¹ Deech (1993).

³⁶² The argument overlooks the fact that a husband who rapes his wife gets parental responsibility under the law.

³⁶³ Bainham (1989: 231).

³⁶⁴ Bainham (2006b: 163).

expense and time) and, if so, it may be asked whether there is any point in having these administrative hoops, with the public costs they involve.³⁶⁵ On the other hand, it may be that increasing the number of people with parental responsibility will merely increase the scope for bringing disputes to court.

10. *Marriage promotion.* It might be argued that the distinction between married and unmarried fathers is important as part of the promotion of marriage. The belief of the majority of people that marriage does not affect parental rights undermines this argument to a large extent.³⁶⁶

Questions

1. Which is worse: that a deserving father is not given parental responsibility or that an undeserving father is given parental responsibility?
2. Are there good reasons for treating mothers and fathers differently in the allocation of parental responsibility?
3. Is the concept of parental responsibility trying to do too many things?

Further reading

Read **Gilmore** (2003) for a discussion of the arguments around the allocation of parental responsibility. Consider the arguments in **Masson** (2006c) over whether parental responsibility should be about a blood tie or caring.

The arguments over who should get parental responsibility are well balanced.³⁶⁷ The difficulty is that the cases where parental responsibility matters the least (where the mother and father are jointly raising the child together) are the cases where there are the strongest arguments for awarding both parents parental responsibility, and the cases where parental responsibility matters the most (the parents have separated and are in dispute over the raising of the child) are the cases where there is the strongest case for putting special weight on the wishes of the parent who carries out the bulk of the day-to-day caring for the child. The truth is that the law is requiring too much of responsibility. A single concept cannot do the job of an acknowledgement of a parent's commitment; be a stamp of approval for their parenting role; provide a parent with all the rights and responsibilities of parenthood; and decide who can make important decisions in relation to children. At a risk of further complicating the law, it is suggested that the law should develop two categories of parental responsibility: that which acknowledges that the father has shown commitment to the child and that which reflects the reality that he is sharing in the day-to-day upbringing of the child.

³⁶⁵ In terms of judicial resources and legal aid.

³⁶⁶ Pickford (1999).

³⁶⁷ Although most of the academic writing supports a change in the law to permit all fathers to acquire parental responsibility automatically (see Gilmore (2003a); Clifton (2014)).

13 Losing parental responsibility

A person with parental responsibility cannot give up parental responsibility just because he or she does not want it any more. Even if the child has to be taken into care because of the parent's abuse, parental responsibility does not come to an end.³⁶⁸ In *Re M (A Minor) (Care Order: Threshold Conditions)*³⁶⁹ the father had killed the mother in front of the children and was sentenced to a lengthy term of imprisonment. He still retained parental responsibility. However, parental responsibility can be extinguished in a few ways:

1. Anyone with parental responsibility will lose it when an adoption order is made. Once an adoption order is made, only the adoptive parents will have parental responsibility.
2. A child's birth mother and her husband will lose parental responsibility when a parental order under s 30 of the Human Fertilisation and Embryology Act 1990 is made.³⁷⁰
3. Once a child reaches 18, all parental responsibility for the child comes to an end.³⁷¹
4. If a father has parental responsibility through a parental responsibility order or birth registration, this can be brought to an end if the court so orders under s 4(2A) of the Children Act 1989.³⁷² However, the court may not end a parental responsibility order if there is a residence order still in force in favour of the father. An application to do so can be brought by someone with parental responsibility (including the father applying himself) or the child.³⁷³ The welfare principle governs the issue.³⁷⁴ In *Re P (Terminating Parental Responsibility)*,³⁷⁵ although the parents had made a parental responsibility agreement under s 4, it became clear that the father had caused the baby severe injuries, causing permanent disability. It was held that by his conduct he had forfeited his entitlement to parental responsibility and it was removed.³⁷⁶ It will require extreme conduct of this kind if the court is to remove parental responsibility under s 4(3).³⁷⁷

CASE: *Re D (Withdrawal of Parental Responsibility)* [2014] EWCA Civ 315

The father was convicted of sexual offences against the mother's two daughters when child D was five years old. He was sentenced to four years in prison. On his release the mother sought to have his parental responsibility terminated. The Court of Appeal confirmed that the child's welfare was the paramount consideration on such an application. The judge's decision to remove parental responsibility was upheld. The father had inflicted devastating emotional harm on the whole family, including child D. He continued to deny what he had done and was not in a position to exercise his rights and duties in a responsible way. Any interference in the father's human rights was justified by the welfare of the child.

³⁶⁸ See Chapter 12.

³⁶⁹ [1994] 2 FLR 577, [1994] 2 FCR 871.

³⁷⁰ See above, 'Parental orders: surrogacy'.

³⁷¹ CA 1989, s 91(7), (8).

³⁷² Another option is to limit the extent to which a parent can exercise parental responsibility: *H v A (No. 1)* [2015] EWFC 58.

³⁷³ With leave of the court (see Chapter 10).

³⁷⁴ *Re D (Withdrawal of Parental Responsibility)* [2014] EWCA Civ 315.

³⁷⁵ [1995] 1 FLR 1048, [1995] 3 FCR 753.

³⁷⁶ For another example, see *Re D (Withdrawal of Parental Responsibility)* [2014] EWCA Civ 315.

³⁷⁷ *Re A (Termination of Parental Responsibility)* [2013] EWHC 2963 (Fam).

That decision has been criticised by Stephen Gilmore³⁷⁸ in part because he believes it overlooked earlier authority but also because it does not appreciate the draconian nature of the order. As he notes, even a care order which requires proof that the child is suffering significant harm as a result of the parent's actions does not end parental responsibility. However, a care order is typically about removing a child from a parent with whom they are living and is a major interference in a parent's right to family life. Here the father was having little to do with his daughter and so the removal of parental responsibility was of little practical significance to him. With that in mind the straightforward welfare test seems appropriate.

5. If a person has parental responsibility by virtue of being granted a residence order, then when the residence order comes to an end so does the connected parental responsibility. However, a father who has been awarded a residence order (and therefore parental responsibility) will retain parental responsibility even if the residence order is ended.
6. Wardship and the inherent jurisdiction can be used to greatly restrict the effect of parental responsibility. In *T v S (Wardship)*³⁷⁹ the couple disagreed vehemently on just about every issue concerning the child. The child was made a ward of court so that the court could determine disputed issues. While not terminating parental responsibility, in effect, it was the court, rather than the parents, who determined issues around the child's upbringing.
7. Parental responsibility will, of course, end on the death of the child, although there may be separate rights in respect of burial of the child's body.³⁸⁰

14 Wider issues over parenthood

Having looked through the law regulating parents, we can now look at some of the key issues of debate in this area.

A What is the basis for granting parenthood?

There has been much discussion on what is at the heart of the concept of parenthood. Four main views will be considered: first, that genetic parenthood is the core idea in the law; secondly, that the law focuses on intent to be a parent; thirdly, that parenthood is earned by commitment to and care of the child; fourthly, that social parenthood (the day-to-day caring of the child) is the most important part of parenthood. Before considering the arguments in favour of these approaches, it should be noted that they are not necessarily incompatible. All four could be persuasive. Therese Callus³⁸¹ suggests that the genetic link plus the intent to produce a child should be used to allocate parenthood. Further, as Bainham has argued,³⁸² by using a variety of understandings of 'parent' the law can recognise different aspects of

³⁷⁸ Gilmore (2015).

³⁷⁹ [2011] EWHC 1608 (Fam).

³⁸⁰ *R v Gwynedd, ex p B* [1992] 3 All ER 317.

³⁸¹ Callus (2012).

³⁸² Bainham (1999).

parenthood. For example, it is then possible for the law to acknowledge that both genetic parent *and* social parent have a role to play in a child's life. Putting it another way, it may be that the law is expecting too much of the single term 'parent'.³⁸³

(i) Genetic parentage

It could be claimed that the core notion of parenthood is genetic parenthood. It is clear that there is not an exact correlation between genetic parentage and legal parenthood. The circumstances where a man who is not biologically the father of the child can still be recognised as the father were discussed above. The circumstances where the legal father will not be the genetic father are as follows:

1. A husband may be presumed to be the father of his wife's child, but in fact not be the genetic father. If the genetic father does not seek to challenge the presumption, the husband will be treated as the father.
2. In cases of AID treatment where either the husband is the father under s 28(2), or the partner is the father under s 28(3) of the Human Fertilisation and Embryology Act 1990, the child's father will not be the genetic father.
3. An adopted father will be a father in the eyes of the law, even if he is not the genetic father.
4. Where a father has the benefit of a parental order, he will be the legal father but may not be the genetic father.

However, these circumstances are all rare. The vast majority of genetic parents are parents in law, although not all genetic fathers are awarded parental responsibility, as we have seen. That said, if genetic parentage is at the heart of legal parenthood, it is surprising that the law does not take stronger steps to determine genetic parenthood. It would be possible for our legal system to require genetic testing of every child born to ensure that paternity is known, but it does not.³⁸⁴ Instead, we are happy to rely on the presumptions of law. One journalist³⁸⁵ has suggested that 30 per cent of husbands are unaware that they are not the father of their wife's children. If this figure is anything like accurate, then it must bring into question whether genetic parentage is in reality of significance for parenthood, because these husbands will be presumed to be the father in the law's eyes without being genetically the father. Further, there are claims which emphasise that genetic parentage can be unfair in cases of 'sperm bandits' (where men claimed that women obtained their sperm either by lying about whether they were using contraception or when the men were asleep or unconscious).³⁸⁶

But why should genetic links be regarded as important at all? There are two main arguments that have been relied upon in favour of biology:

1. *Genetic identity.* It is argued that our genetic parents play a crucial role in our self-identity. The strongest evidence for this is in relation to adopted children, who often seek to find information about their genetic parents. To recognise genetic parenthood acknowledges the importance to the child of the genetic link. It also recognises the importance many parents place on the genetic link to their children. This argument may, however, merge the questions of knowing your genetic origins and the allocation of parenthood. The law could give a child the right to know their genetic origins, without giving parenthood to the biological father.

³⁸³ Callus (2012).

³⁸⁴ Eekelaar (2006b: 75) argues that to do so would be too great an intrusion into a private area of life.

³⁸⁵ Illman (1996).

³⁸⁶ Sheldon (2001a).

2. *Genetic contribution.* Some argue that the genetic link is important because the child has been born out of the genetic contribution of the parents. As the child's being results from the contribution of the two genetic parents, that contribution must be recognised. Parenthood should not be based on a whim or current emotion, but on the permanence of the genetic link.³⁸⁷

Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)*³⁸⁸ explained the significance of genetic parentage in this way:

For the parent, perhaps particularly for a father, the knowledge that this is 'his' child can bring a very special sense of love for and commitment to that child which will be of great benefit to the child (see, for example, the psychiatric evidence in *Re C (MA) (An Infant)* [1966] 1 WLR 646). For the child, he reaps the benefit not only of that love and commitment, but also of knowing his own origins and lineage, which is an important component in finding an individual sense of self as one grows up. The knowledge of that genetic link may also be an important (although certainly not an essential) component in the love and commitment felt by the wider family, perhaps especially grandparents, from which the child has so much to gain.

Some writers have argued that it is deeply embedded in nature that a child should be raised by his or her biological parents. Margaret Somerville argues:

that the most fundamental human right of all is a child's right to be born from natural human biological origins . . . Children also have a right to be reared within their biological families and to have a mother and a father, unless an exception can be justified as being in the 'best interests' of a particular child.³⁸⁹

However, evidence suggests that children who live with their non-biological parents (e.g. adopted children) or same-sex parents do not suffer any hardship, and if anything do slightly better than other children.

(ii) Intent

Some have argued that the law should now place less emphasis on genetic parentage and that, instead, intent to be a parent is of far more importance.³⁹⁰ A parent is a parent only if he or she intends to be a parent. Or as Katharine Baker³⁹¹ prefers, a man is the father if he has struck a bargain to take on that role with the gestational mother. There is no doubt that there are some situations where intent to be a parent can be seen as crucial:

1. In assisted reproduction a man jointly receiving treatment with a woman can be treated as the father, even though he has no genetic link. Here his intention to be a parent is respected.
2. A sperm donor can waive his parental status. Here the law respects an intention not to be a parent.
3. Guardianship seems based on intention, but in a negative way in that, unless the guardian expressly disclaims the guardianship, they will be a guardian.³⁹²

³⁸⁷ Callus (2012).

³⁸⁸ [2006] UKHL 43 at para 33. See Leanne Smith (2007) for further discussion.

³⁸⁹ Somerville (2010).

³⁹⁰ Vonk (2007).

³⁹¹ Baker (2004).

³⁹² It does reflect the intention of the parent of who should carry on the parenting role.

4. Adoption is intent based. An adoption order is made only after a person volunteers to be an adoptive parent.

As Kirsty Horsey³⁹³ puts it:

because the intended parents initiate, plan and prepare for the birth of the child, they should be legally recognised as the parents of that child that, but for them, would not exist. It is they who choose to use assisted conception, thus choosing whether to use a donor of genetic material or a surrogate. They are the 'first cause' of the child and as such are of prima facie importance in the procreational relationship.

However, there are problems in emphasising intent when considering the most common origin of parenthood, where normal sexual intercourse is involved. It could be argued that to have sexual intercourse reveals an intent to be a parent.³⁹⁴ At first this seems an implausible argument, given the rate of unintended pregnancies. However, it is possible to argue that, given the availability of contraception and abortion, where the couple decide to go ahead with a pregnancy they manifest their intent to be parents. But there are difficulties with this. First, a father will have a limited role in law in the decision whether or not the mother has an abortion.³⁹⁵ Secondly, the decision not to abort may be due to religious or moral beliefs and not necessarily indicate an intention to become a parent. It could be argued that each time a couple engage in sexual intercourse they willingly accept the risk of becoming parents, and this is sufficient intent to be a parent. However, where contraception is used but fails, such a presumption would appear to fly in the face of the facts.

Further, it seems a very odd test for parenthood. If Y notices that a neighbour is pregnant and would like to act as a father of the child, Y cannot claim he has an intent to be the child's parent, which should be recognised by law. There is also a concern that such an approach would lead to uncertainty. For example, how does one prove one's intent? What exactly is an intent to be a parent? There are also fears that, under the guise of using intent to be a parent, different policies could be used. Could it be said, for example, that a drug addict could have no intent to be a parent because he or she would not be capable of being an effective parent?³⁹⁶ There are also concerns that focusing on intent might lead to the burdens of parenthood falling on more women than men because it is more likely that a man than a woman will successfully be able to argue that he did not intend to be a parent.³⁹⁷

There might, however, be an argument that the intent to be a parent is useful where there are competing claims based on biology. For example, in *Johnson v Calvert*,³⁹⁸ a Californian case, the mother gave birth following a surrogacy arrangement, the commissioning mother having provided the egg. Here both could be said to be the biological parent (the commissioning mother by providing the egg, the gestational mother through the care provided during the pregnancy). The court said that intent could be used to resolve the dispute. The court argued that 'but for' the intent of the commissioning parents, the child would not have been born and so they should therefore be regarded as the parents. It was held by Panelli J that it was the commissioning mother 'who intended to procreate the child – that is, she who intended to bring

³⁹³ Horsey (2010).

³⁹⁴ Callus (2012). She argues that even where contraception is used you can at least detect an assumption of the risk of becoming a parent.

³⁹⁵ A father cannot stop a mother having an abortion: *C v S* [1987] 2 FLR 505 CA. For a critique of such arguments see Sheldon (2003).

³⁹⁶ Douglas (1991: ch. 9).

³⁹⁷ See the interesting discussion in Sheldon (2001a).

³⁹⁸ [1993] 851 P 2d 774.

about the birth of a child that she intended to raise as her own – is the natural mother under Californian law'. The argument is not straightforward, as it could equally be suggested that if the gestational mother had not been involved, the child would not have been born. A similar claim could be made for the medical team involved in the assisted reproduction.³⁹⁹

It is certainly true that intent-based parenthood would help avoid gender stereotypes or overemphasis of traditional family structures.⁴⁰⁰ Recognising intent rather than the stereotypical male and female roles would acknowledge a variety of parenting forms. It would permit more than two people to be parents of a child, and parents would not need to be of the opposite sex. This could be seen as a great benefit of the approach or a great disadvantage, depending on one's view on the traditional family form.⁴⁰¹

(iii) Earned parenthood

It can be argued that parenthood must be earned: the mother, through pregnancy, has demonstrated her commitment to the child and has formed a bond with the child. If the father has married the mother and, therefore, can be presumed to have offered the mother support through the pregnancy, this also indicates a commitment to the child. But the unmarried father has not earned the parenthood, as he has not shown the commitment to the mother and child by marrying the mother.

(iv) Social parenthood

At the start of this section it was noted that psychologists have stressed the importance of psychological parents. This has led some to argue that the law should recognise the day-to-day work of parenting, rather than the more abstract notions of intended parenthood or genetic parenthood.⁴⁰² As noted earlier, psychological evidence suggests that, for children, it is the person who provides their constant care and with whom they have an emotional relationship who is most important. The emphasis on social parenthood would also appeal to those who would argue that the law should emphasise and value caring interdependent relationships between parties.⁴⁰³ I have argued:

Parental status should be earned by the care and dedication to the child, something not shown simply by a biological link. It is the changing of the nappy; the wiping of the tear; and the working out of maths together that makes a parent, not the provision of an egg or sperm.⁴⁰⁴

Such an approach may recognise that a range of adults have the authority to make decisions over a child's life.

(v) Child welfare

James Dwyer⁴⁰⁵ claims that the welfare of the child should be key to the allocation of parent.⁴⁰⁶ We should not, therefore, 'thrust a parent-child relationship on a child where the adult is presumptively unfit to parent'.⁴⁰⁷ This leads him controversially to suggest that where

³⁹⁹ See Probert (2004a) who suggests a definition of parent based on who was the legal cause of the child coming into existence.

⁴⁰⁰ Shultz (1990).

⁴⁰¹ See Chapter 1.

⁴⁰² Herring (2013a).

⁴⁰³ Herring (2013a).

⁴⁰⁴ Herring (2013a).

⁴⁰⁵ Dwyer (2006).

⁴⁰⁶ See Masson (2006c) who also suggests that the welfare of children should determine the allocation of parenthood, but with very different results from Dwyer.

⁴⁰⁷ Dwyer (2006: 35).

a biological parent is too young;⁴⁰⁸ has committed serious crimes; has an IQ less than 70;⁴⁰⁹ or is drug dependent, she or he should not be treated as a parent, unless they can show they are competent. He complains that the current law pays inadequate attention to the character or capacity of those it creates as parents.⁴¹⁰ Critics may reply that this is entering dangerous territory. Once we start trying to predict who may be a good or bad parent, we are slipping into 'social engineering'. It is simply impossible to predict who will or will not be a good parent.

B Is there a right to know one's genetic parentage?

(i) What could such a right entail?

The question: 'Does a child have a right to know genetic parentage?' is often asked, but is ambiguous. It is necessary to be quite clear about what such a right would entail. The following could be included:

- a right to know some non-identifying information about genetic parents;
- a right to be told the names of genetic parents;
- a right to meet one's genetic parents.

These rights might arise from as early an age as possible, or only once the child has reached the age of majority. It should be borne in mind that it is arguable that a child has a right *not* to know his or her genetic parentage.⁴¹¹ Even if we recognise the child's rights, it is necessary to appreciate that as well as these rights there are rights of parents that might also be relevant. There may be a right for a genetic parent to be acknowledged as the parent of a child. There may also be said to be a right of privacy: the right *not* to be acknowledged as the parent. There may also be rights of the social parent – that unwanted revelation of genetic parentage may amount to interference with their family life. Some countries in Europe offer a mother the opportunity to renounce her status of motherhood: the state will arrange alternative carers for the child and there will be no link between the mother and child.⁴¹² Such laws are said to encourage women not to abandon their babies or to abort unwanted children. There are no equivalent laws in England and Wales.⁴¹³

(ii) Does the law recognise the right to know one's genetic parentage?

In *Re A (Paternity: DNA Testing: Appeal)*⁴¹⁴ Black LJ, obiter, referred to the fact that 'The importance of and the right of children to know the identity of their biological father has long been recognised.' However, it is clear that the law does not recognise this right as a general one. We do not test every child at birth to determine genetic parentage. That said, with the Child Support Act 1991 and the expense that can fall on a non-residential father, it is likely that more fathers will seek to deny parentage and require tests which will establish the genetic truth. There are certain specific circumstances where the right to know one's genetic parentage arises.

⁴⁰⁸ He suggests under the age of 18.

⁴⁰⁹ Dwyer (2006: 260).

⁴¹⁰ Dwyer (2006: 255).

⁴¹¹ Herring and Foster (2011).

⁴¹² See the discussion in O'Donovan (2000).

⁴¹³ Although a mother can shortly after birth place her child with the local authority and ask for an adoption to be arranged.

⁴¹⁴ [2015] EWCA Civ 133.

(a) *Children born as a result of sexual intercourse*

A child can discover from his or her birth certificate who are registered as his or her parents. Once a child is 18 he or she can obtain a copy of the birth certificate, although the name of the father might have been left blank on the certificate. Even if it was filled in, there is no guarantee that the named man is the true father. A child might also discover his or her genetic parenthood if his or her mother is assessed by the Child Support Agency. However, the child has no right to be told who his or her father is by the Child Support Agency⁴¹⁵ and after the Child Maintenance and Other Payments Act 2008 there is no obligation on a mother receiving benefits to name a father.

An adult may seek to rebut one of the presumptions of parentage. However, it is not possible to make a free-standing application for a declaration of parenthood.⁴¹⁶ In other words, a man cannot seek a declaration that he is or is not the father simply out of curiosity. Instead, there must be some other application to which parenthood is relevant; for example, if a man is seeking to have contact with the child or if there is a dispute over whether a man should be financially responsible for a child. Even then the court may decide that the application can be decided without recourse to tests. For example, in *O v L (Blood Tests)*⁴¹⁷ the mother argued that her husband was not the father of the child three years after their separation when the husband sought contact. During the marriage the husband had assumed that he was the father of the child and the court held that, given the close relationship between the husband and the child, contact would be ordered regardless of what the blood tests showed. There was therefore no need to pursue the tests.⁴¹⁸

When should tests be ordered?

In deciding whether to order tests, the child's welfare is not the paramount consideration. This is because the child's upbringing is not in question and so s 1 of the Children Act 1989 does not apply. Instead, the test is as set out in *S v S, W v Official Solicitor (or W)*,⁴¹⁹ a decision of the House of Lords: 'the court ought to permit a blood test of a young child to be taken unless satisfied that that would be against the child's interests'.⁴²⁰ The case law on whether tests should be ordered reveals that the courts are pulled by two countervailing arguments. On the one hand, the courts have placed importance on the child's right to know their genetic origins; on the other hand, the courts have placed weight on the concern that if it is found that the child's father is not the mother's husband or present partner, the child's family unit will be disrupted and this will harm the child. The cases show that it can be hard to predict which argument will carry the day.

The leading case emphasising the importance of the child knowing the truth is the Court of Appeal decision in *Re H (A Minor) (Blood Tests: Parental Rights)*.⁴²¹ The mother and her husband cared for three children. It was alleged that the youngest of the children was the result of an affair the mother had had. All three children and the husband had a good relationship. Ward LJ argued that 'every child has a right to know the truth unless his welfare clearly justifies the cover-up'.⁴²² He claimed that such a right was apparent in article 7 of the UN Convention on the Rights of the Child: 'The child should be registered immediately after

⁴¹⁵ *Re C (A Minor) (Child Support Agency: Disclosure)* [1995] 1 FLR 201.

⁴¹⁶ *Re E (Parental Responsibility: Blood Test)* [1995] 1 FLR 392.

⁴¹⁷ [1995] 2 FLR 930, [1996] 2 FCR 649.

⁴¹⁸ See also *K v M (Paternity: Contact)* [1996] 1 FLR 312, [1996] 3 FCR 517.

⁴¹⁹ [1972] AC 24.

⁴²⁰ As summarised in *Re F (A Minor) (Blood Test: Parental Rights)* [1993] Fam 314 at p. 318; Tests can be carried out on an adult lacking capacity: *LG v DK* [2011] EWHC 2453 (COP), discussed in Herring (2011c).

⁴²¹ [1996] 2 FLR 65, [1996] 3 FCR 201.

⁴²² *Re H (A Minor) (Blood Tests: Parental Rights)* [1996] 2 FLR 65 at p. 80.

birth and shall have the right from birth to a name, the right to acquire a nationality and, as far as possible, the right to know and to be cared for by his or her parents.⁴²³ Ward LJ did add that it was important here that the child's relationship with the husband was not likely to be harmed by finding out the truth about his biological paternity and that the child was likely to find out in any event, as the older brothers were aware of the doubt over the child's paternity. It was better to have the issue resolved now than for the child to find out later.⁴²⁴

The arguments in favour of ordering tests have been strengthened after the Human Rights Act 1998.⁴²⁵ In *Mikulic v Croatia*⁴²⁶ the European Court of Human Rights held that a child had a right to know her biological parenthood as part of her right to respect for private life under article 8. The state was required to put in place procedures which would protect that right.⁴²⁷ Notably, the court did not claim that a father has the right to establish his paternity under article 8.⁴²⁸ Indeed, in *Yousef v The Netherlands*⁴²⁹ the European Court held that even though a father had family life with his child it was not in the child's interests to declare formally that he was the father. However, *Yousef* could be criticised on the basis that it failed to consider the child's right to have his paternity declared. In *Ahrens v Germany*⁴³⁰ the importance of reinforcing the child's life with the mother and her partner justified not ordering tests to establish whether a former boyfriend was the father. This last, most recent, case shows that although the right to establish genetic truth is protected under the ECHR, it can be interfered with if necessary to promote the welfare of the child.

The leading case in favour of not ordering tests is *Re F (A Minor) (Blood Test: Parental Rights)*.⁴³¹

CASE: *Re F (A Minor) (Blood Test: Parental Rights)* [1993] Fam 314

A wife became pregnant at a time when she was having sexual relations with both her husband and another man. After the affair she was reconciled with her husband and they raised the child together. There had been no contact between the alleged father and the child. The lover applied for parental responsibility. It was claimed that the blood tests would not benefit the child. Indeed, there was evidence that the mother's marriage would be harmed and the security of the child's upbringing would be diminished if the blood tests showed the lover to be the father. The Court of Appeal stressed that the welfare of the child depended upon the stability of the family unit, which included the mother's husband. The advantages to the child of the blood tests were, the court thought, minimal, when compared with the benefits of a secure family upbringing.⁴³²

⁴²³ The importance of ascertaining the truth was emphasised by the Court of Appeal in *Re H and A (Children)* [2002] 2 FCR 469, [2002] 1 FLR 1145.

⁴²⁴ This case has been followed in several other cases: e.g. *Re G (Parentage: Blood Sample)* [1997] 1 FLR 360, [1997] 2 FCR 325.

⁴²⁵ See Beesson (2007) for a discussion of the ECHR case law.

⁴²⁶ [2002] 1 FCR 720.

⁴²⁷ *Roman v Finland* [2013] 1 FCR 309.

⁴²⁸ *Re T (A Child) (DNA Tests: Paternity)* [2001] 3 FCR 577. But see *Rozanski v Poland* [2006] 2 FCR 178 where a father who had helped raise a child did have a right to be recognised legally as the father.

⁴²⁹ [2002] 3 FCR 577.

⁴³⁰ (App. No. 45071/09). See also *Kautzor v Germany* (App. No. 23338/09); *Shofman v Russia* [2002] 3 FCR 577, [2006] 1 FLR 680.

⁴³¹ [1993] Fam 314.

⁴³² A similar attitude was taken in *Re CB (Unmarried Mother) (Blood Test)* [1994] 2 FLR 762, [1994] 2 FCR 925.

In *Re K (Specific Issue Order)*⁴³³ Hyam J stated that the child's right to know the identity of his father could be outweighed by the child's welfare.⁴³⁴ There the mother had an obsessive hatred of the biological father, and if the child was told about the father's identity the child would suffer due to the mother's emotional turmoil. He therefore refused to require the mother to inform the child who her father was.

The most recent cases have favoured ordering tests: *Re H (A Minor) (Blood Tests: Parental Rights)*;⁴³⁵ *Re T (A Child) (DNA Tests: Paternity)*;⁴³⁶ and *Re H and A (Children)*.⁴³⁷ This suggests that only in cases where there is overwhelming evidence that children will suffer grave harm if tests are ordered are the courts likely to decline to order tests. However, it is clear that the courts still will, on occasion, refuse to order tests:

CASE: *J v C* [2006] EWHC 2837 (Fam)

A man sought tests to establish paternity and contact in respect of his child in 2004. The hearing was adjourned and there were further delays in the litigation. By the time of the hearing in October 2006 the father had disappeared and it became clear that the child, now aged 10, believed that the mother's current partner was his father. As the man was no longer pursuing the litigation, the court considered whether the court on its own motion should order that the child be told the truth. A psychiatric report before the court advised against this, stating that the mother was vulnerable and to tell the child the truth would have been detrimental to her health. A CAFCASS report also agreed that telling the truth would harm the mother and child. Sumner J started by confirming that a court was entitled to make orders on its own motion, if necessary to protect the welfare of the child. He emphasised that the mother agreed that the child should be told the truth when he reached 16, but not at the moment. Sumner J held that in this case the harm to the child and his family of knowing the truth outweighed the benefits.

CASE: *Re D (Paternity)* [2006] EWHC 3545 (Fam), [2007] 2 FLR 26

A man claimed to be the father of a child (D) aged 11. D had been raised by a woman he believed to be his paternal grandmother. D's only stability in his troubled life had been living with this woman. A man (not the person assumed by the boy to be his father) sought blood tests to establish that he was the father and then contact to be ordered. He and D's mother had a relationship at the time D was conceived. D, described by the judge as a troubled and angry person, strongly objected to the applications. Hedley J accepted that there was a serious possibility that the man was the father. He also confirmed that, as established in the earlier case law (e.g. *Re H and A (Children)*)⁴³⁸, the

⁴³³ [1999] 2 FLR 280.

⁴³⁴ *Re A (Paternity: DNA Testing: Appeal)* [2015] EWCA Civ 133.

⁴³⁵ [1996] 3 FCR 201.

⁴³⁶ [2001] 3 FCR 577, [2001] 2 FLR 1190.

⁴³⁷ [2002] 2 FCR 469, [2002] 1 FLR 1145.

⁴³⁸ [2002] 2 FCR 469.

general approach was that in a case of disputed paternity the truth should be known and tests performed. He referred to: 'the general proposition that truth, at the end of the day, is easier to handle than fiction', and explained that the courts' approach 'is designed to avoid information coming to a young person's attention in a haphazard, unorganised and indeed sometimes malicious context and a court should not depart from that approach unless the best interests of the child compel it so to do'.⁴³⁹

However, he held that this principle could be departed from where the best interests of the child compelled the court to decide otherwise. In this case the strong objections of the child played an important role in the decision-making. Even though the child may not have been *Gillick* competent,⁴⁴⁰ Hedley J found that he understood the issues and had a strong view. As this stage of his life it was best not to press the issue. Interestingly, the court ordered that the man supply samples and these be stored so that if the child later wanted tests to be done they could be performed quickly.

These two cases demonstrate that there can be circumstances in which the child's welfare will outweigh any 'right to know'.⁴⁴¹ Two particular points of interest are, first, that the courts have seen these cases as a matter of welfare and made no reference to the now extensive jurisprudence of the European Court of Human Rights on rights to know (e.g. *Mikulic v Croatia*).⁴⁴² Second, the weight placed on the child's views in *Re D* is notable, especially given that he was found not to be *Gillick* competent. Analysed in terms of rights, it raises the issue of the extent to which a child has the right *not* to know their genetic origins. That is a question yet to receive sufficient judicial or academic attention.⁴⁴³ It is interesting to note that in *Re A (Paternity: DNA Testing: Appeal)*⁴⁴⁴ where the child was seeking to find out their parentage the court seemed very supportive of the right to know. Third, the cases were, in part, driven by a reluctance to force a mother to disclose information she so clearly did not want to disclose. In *Re F (Children) (Paternity: Jurisdiction)*⁴⁴⁵ the court showed a more robust approach with a mother being ordered through a specific issue order to inform the children of their father's identity.⁴⁴⁶

Tests and consent

Section 21 of the Family Law Reform Act 1969 states that the court can direct biological tests but not force adults to take blood tests.⁴⁴⁷ A child can be tested if the person with 'care and control' of the child consents, or if they do not then the court can order that the tests be carried out if that would not be contrary to the best interests of the child.⁴⁴⁸ In *Re L (A Child)*⁴⁴⁹

⁴³⁹ *Re D (Paternity)* [2006] EWHC 3545 (Fam), [2007] 2 FLR 26 at para 22.

⁴⁴⁰ See Chapter 9.

⁴⁴¹ See also *Re L (Identity of Birth Father)* [2009] 1 FLR 1152.

⁴⁴² [2002] 1 FCR 720.

⁴⁴³ See Herring and Foster (2011).

⁴⁴⁴ [2015] EWCA Civ 133.

⁴⁴⁵ [2008] 1 FCR 382.

⁴⁴⁶ In *Re F (Paternity: Registration)* [2011] EWCA Civ 1765 an order that children be told of their paternity within four years of the order was said to be plainly wrong. Four months would have been at the limit of the courts' discretion.

⁴⁴⁷ Section 21(1).

⁴⁴⁸ Section 21(3)(b), inserted by Child Support, Pensions and Social Security Act 2000. Blood Tests (Evidence of Paternity) (Amendment) Regulations 2001 (SI 2001/773).

⁴⁴⁹ [2010] FL 132.

it was held that tests could be ordered against a presumed sibling of a child to determine the child's identity if it could be shown that doing so would not harm the sibling. If the child refuses to be tested although in theory the parent with parental responsibility or court can overrule her refusal it would be very rare a court would want to do that. In *L v P (Paternity Test: Child's Objection)*⁴⁵⁰ tests were not ordered against the wishes of a mature and rational child.

Adverse inferences and refusals to be tested

Section 23(1) of the Family Law Reform Act 1969 states that if a person fails to take a biological test then the court will draw inferences.⁴⁵¹ If a man is seeking to show that he is the father of a child but refuses to undergo blood tests, it will be presumed that he is not the father.⁴⁵² Similarly, if a man is seeking to show he is not the father but refuses to undergo blood tests, it will be presumed that he is the father.⁴⁵³ If a mother refuses to allow a child to be tested when a man claims he is the father, it will be presumed that the man is the father. If a mother refuses to consent to the child being tested when her husband claims he is not the father, then it will be presumed that the husband is not the father. In effect, the law is saying that if a person refuses to undergo blood tests, which will establish the truth, then it must be that he or she knows the test will show his or her claim to be false. The position is summarised by Ward LJ in *Re G (Parentage: Blood Sample)*:⁴⁵⁴ 'the forensic process is advanced by presenting the truth to the court. He who obstructs the truth will have the inference drawn against him.' The inferences are also a way of encouraging the parties to undergo tests.

An adverse inference will not be drawn if there is a reason for refusing a biological test which is fair, just and reasonable,⁴⁵⁵ rational, logical and consistent.⁴⁵⁶ For example, if it was contrary to someone's religious beliefs to give a sample for testing then this might be accepted as a valid reason.

(b) Children born as a result of assisted reproduction

Following the Human Fertilisation and Embryology Authority (Disclosure of Donor Information) Regulations 2004⁴⁵⁷ all children born as a result of donated gametes can discover the donor's name; the donor's date of birth and town of birth; the appearance of the donor; and (if provided) a short statement made by the donor. This applies to all children born from donations provided after 1 April 2005. Before that date a child could discover only certain information necessary for medical purposes and whether they were related to a person they wished to marry.⁴⁵⁸ The change in the law was promoted as an important part of ensuring that a child has a right to know their genetic origins.⁴⁵⁹ The Human Fertilisation and Embryology

⁴⁵⁰ [2011] EWHC 3399 (Fam).

⁴⁵¹ *Re A (A Minor) (Paternity: Refusal of Blood Tests)* [1994] 2 FLR 463.

⁴⁵² *Re G (Parentage: Blood Sample)* [1997] 1 FLR 360, [1997] 2 FCR 325.

⁴⁵³ *Re A (A Minor) (Paternity: Refusal of Blood Tests)* [1994] 2 FLR 463.

⁴⁵⁴ [1997] 1 FLR 360, [1997] 2 FCR 325.

⁴⁵⁵ *Re A (A Minor) (Paternity: Refusal of Blood Tests)* [1994] 2 FLR 463.

⁴⁵⁶ *Re G (Parentage: Blood Sample)* [1997] 1 FLR 360, [1997] 2 FCR 325.

⁴⁵⁷ SI 2004/1511.

⁴⁵⁸ HFEA 1990, s 31(4)(b). Marrying your half-sibling may seem fanciful, but in cities where there is a severe shortage of sperm donors (such as Glasgow apparently) this is not so far-fetched.

⁴⁵⁹ In *Rose v Secretary of State for Health* [2002] 2 FLR 962 it was accepted that children had a right to know the identity of their sperm donor fathers as part of their right to respect for their private and family life. However, the court left open the question of whether respect for the sperm donors' rights justified an interference in the child's rights.

Act 2008 requires the Human Fertilisation and Embryology Authority to keep a register of gamete donors. Once an individual has reached the age of 16, he or she can request information about those whose gametes were used to produce them, subject to regulations which will be produced later. This can include information about genetic siblings. A gamete donor can also find out limited information about the number and sex of children born using their gametes. Interestingly, the debate tends to surround sperm donors, there seem to be little consideration of egg donors.⁴⁶⁰

However, all those sources of information presume that a child knows that he or she has been born as the result of assisted reproductive technology. There is no requirement that a child's birth certificate indicate that a child was born as a result of donated sperm or eggs and there is no legal obligation on parents to tell their children of the circumstances of their conception.⁴⁶¹ There is evidence that over 70 per cent of parents who use reproductive techniques do not tell children of their genetic origins,⁴⁶² although the Human Fertilisation and Embryology Authority encourages parents to tell their children.⁴⁶³ Without a legal requirement that children born of donated sperm be told of their origins, the law's protection of their right to know their genetic origins is rather half-hearted.⁴⁶⁴ Bainham⁴⁶⁵ and others⁴⁶⁶ strongly assert that since children have a right to know the truth about their biological parentage, the law should oblige parents to tell their children that they are donor-conceived.⁴⁶⁷

The change in the law has had predictable results. There has been a dramatic drop in the number of men donating sperm and there is evidence of infertile couples seeking treatment abroad in order to avoid the sperm donor father's identity ever being discovered.⁴⁶⁸ A BBC report claims that 70 per cent of clinics are unable to access donor sperm, or find it extremely difficult. It may also be that the reforms have made it even less likely that a couple will inform their child that he or she has been born as a result of assisted reproduction.⁴⁶⁹ Turkmendag, Dingwall and Murphy express their objections strongly:

The removal of anonymity has had identifiable detrimental effects: donors are reluctant to donate, UK clinics cannot meet the demand for gametes, there are long waiting lists for patients who wish to get treatment, and increasing use of international travel to avoid the law. None of these consequences were unforeseen or unpredictable: worries about donor shortage were voiced by major stakeholders (e.g. clinics, BFS, Royal College of Obstetricians and Gynaecologists, and British Medical Association) before the new law was introduced.⁴⁷⁰

(c) Adopted children

This is discussed in Chapter 12.

⁴⁶⁰ Jones (2010).

⁴⁶¹ See M. Roberts (2000) and Blyth *et al.* (2009) for further discussion.

⁴⁶² Maclean and Maclean (1996). See also the studies by Cook (2002) and Golombok *et al.* (2002) also finding widespread secrecy surrounding assisted reproduction.

⁴⁶³ See Grace and Daniels (2007) for an interesting discussion of what causes parents to either disclose or not disclose their child's genetic origins.

⁴⁶⁴ In *J v C* [2006] EWCA Civ 551 at para 13. Wall LJ had grave doubts whether a specific issue order could be made to require a parent to tell their child of the circumstances of their birth.

⁴⁶⁵ Bainham (2008c).

⁴⁶⁶ E.g. Cowden (2012).

⁴⁶⁷ See Millbank (2015) who calls for greater use of voluntary registers to enable people to link up with those to whom they are genetically related.

⁴⁶⁸ Turkmendag *et al.* (2008: 293).

⁴⁶⁹ Blyth and Frith (2009); Nordqvist (2014).

⁴⁷⁰ Turkmendag *et al.* (2008: 293).

(iii) Should there be a right to know one's parentage?

DEBATE

Should there be a right to know one's parentage?

The main arguments in favour of recognising a right to know one's parentage include the following:⁴⁷¹

1. Eekelaar argues that there is a right to be informed of one's parentage.⁴⁷² He asks whether anyone would choose to live their life on the basis that they had been deliberately deceived about their genetic origin.⁴⁷³ On that basis he suggests we should recognise the right to know one's parentage.
2. There are claims that knowing parentage produces psychological benefits. There is evidence that some adopted children feel that unless they find out about their genetic origins they suffer psychologically. Barbara Almond seeks to explain the importance of knowing one's genetic origins:

Without this, [the children] are born as exiles from the kinship network and are orphans in a sense previously unknown to human beings. They may in fact have unknown half-siblings, cousins, aunts, grandparents, but they will never meet them. Of course, there is every chance that they will be provided by an alternative family network that will provide love and security, but the subtle similarities of genetic relationships may come to haunt them in the future, particularly when they have children of their own and start to look for such things as shared resemblances, attitudes, interests, tendencies, qualities of character and physical features in their own offspring.⁴⁷⁴

3. There is no evidence that children of assisted reproduction are harmed on discovering their origins.⁴⁷⁵ Freeman notes that Sweden, Germany, Austria and Switzerland do permit disclosure, without there being disadvantageous consequences.⁴⁷⁶
4. O'Donovan⁴⁷⁷ notes that there are medical reasons why one needs to know one's parentage. For example, if a child is aware that he or she is genetically predisposed to a particular illness, it might be possible to receive preventive treatment.

The main arguments against the right to know one's parentage are:

1. Some argue that social parents have an interest in not having their family life disrupted by information being given to the child they are caring for about his or her genetic origins.⁴⁷⁸ Values of caring and relationship are valid and can be undermined by emphasis on genetic truth.⁴⁷⁹ Carol Smart argues 'secrets may be felt to be necessary for the preservation of relationships, and the "truth" may be taken to be less important than stabilising fictions.'⁴⁸⁰

⁴⁷¹ Richards (2003) provides a useful summary of the arguments in favour of the right to know in the context of children born as a result of assisted reproduction.

⁴⁷² Eekelaar (1994a). See also Wallbank (2004b).

⁴⁷³ Eekelaar (1994a).

⁴⁷⁴ Almond (2006: 116). See also Somerville (2010).

⁴⁷⁵ Smart (2010).

⁴⁷⁶ Freeman (1996).

⁴⁷⁷ O'Donovan (1988).

⁴⁷⁸ Discussed in Maclean and Maclean (1996).

⁴⁷⁹ Smart (2009); Smart (2010).

⁴⁸⁰ Smart (2009: 558).

2. The genetic parents may have a right to privacy, which would be infringed by informing the child of their existence. There is evidence parents who have used assisted reproductive services would suffer grave emotional harm if they were forced to disclose to their child that they were born as a result of assisted reproductive services.
3. The child may have the right not to know his or her genetic parentage. This argument would be that the law should wait until the child is old enough to be able to decide for him- or herself. The fact that some adopted children choose not to discover their genetic parentage suggests that they would rather not know the information.
4. In the context of assisted reproduction there are concerns that giving children the right to discover their parentage may discourage donation. Many donors are not particularly interested in contact. This will depend on the motivation behind the donation of the sperm or egg. Empirical evidence suggests that the typical sperm donor is a student donating for beer money;⁴⁸¹ although, now that anonymity of sperm donors has changed, the kind of men who will donate sperm may well change.⁴⁸² Egg donors seem to be motivated more strongly by altruism; indeed egg donation (unlike sperm donation) is not paid. This is partly because egg donation involves a higher degree of risk and injury than sperm donation. More controversially, the technology exists to extract eggs from fetuses. The benefit of this might be thought to be that there would be no possible genetic mother who could seek to play a role in the resulting child's life.
5. Genetic origins are not very important. We each share 99.9 per cent of our genes with each other. Indeed, you share 50 per cent of your genes with a banana according to Professor John Harris!⁴⁸³ So, perhaps the importance given to our unique genetic inheritance is overemphasised.⁴⁸⁴ Many millions of people over the centuries have been brought up deceived as to their genetic origins, they don't seem to have suffered too much. It is only because we have the technology to do tests that this right has arisen.
6. Claims that a child has a right to know can easily be misused by adults to pursue their own agendas. Jane Fortin argues:⁴⁸⁵

The DNA testing applications brought by putative fathers are not brought to provide the child with information alone, they are the initial stages of attempts to establish a social relationship between father and child based on assumptions about biological connectedness. The putative fathers' assumption that once the biological ties between father and child have been clearly identified, they should be fulfilled by a social relationship, produces an elision of the right to know the parent's identity, with the right to know and have a relationship with that parent. Whether or not claims can be justified by reference to the child's own rights, such an elision concentrates the court's attention on the putative father's position and his own interests – countered by those of the mother. Such an approach thereby produces considerable tensions, not least those arising from the false assumption that the biological link between child and parent can magically transform a previously non-existent relationship into a fruitful one for both parties.

⁴⁸¹ At £15 a go (Horsey (2006)), it won't buy many rounds! An HFEA (2006) review suggested £250 plus expenses for a 'course' of sperm donation. It is not quite clear what a 'course' would be.

⁴⁸² Turkmendag *et al.* (2008).

⁴⁸³ Harris (2003).

⁴⁸⁴ Richards (2006: 61) questions whether one's genetic origins are central to one's sense of identity given that twins can have identical DNA, but clearly separate identities.

⁴⁸⁵ Fortin (2009a).

Questions

1. Is a child who does not know their genetic origins harmed?
2. Are the issues of a right to know genetic origins and the definition of parenthood linked?
3. Why do some people seem to value the blood tie so much and others not?

Further reading

Compare **Bainham** (2008c) and **Fortin** (2009a) on the importance of the blood tie and the right to know one's genetic origins.

C Is there a right to be a parent?

(i) What might the 'right to procreate' mean?

It is hard to claim a positive right to procreate, not least because natural procreation requires two people. Few people would seriously suggest that the state should be obliged to provide partners for anyone who wishes to produce a child! Article 12 of the European Convention states that 'men and women of marriageable age have the right to marry and according to national laws governing the exercise of this right found a family'. Although this might suggest a positive right to procreate on a literal reading, this notion has been rejected in *Paton v UK*.⁴⁸⁶ In *R v Secretary of State for the Home Office, ex p Mellor*⁴⁸⁷ the Court of Appeal held that a married prisoner had no right under article 12 to have access to artificial insemination services to enable his wife to have a child. Such services were a privilege or benefit and no one could claim them as of right.⁴⁸⁸ However, the Court of Appeal went on to suggest that there might be exceptional circumstances in which it would be a disproportionate interference in a prisoner's article 8 rights to deny access to assisted reproduction.⁴⁸⁹ However, the Grand Chamber of the European Court of Human Rights in *Dickson v UK*⁴⁹⁰ held by a narrow majority that a prisoner had a right under article 8 to receive assisted reproductive services. That right could be interfered with bearing in mind the interests of the child to be born and the wider state interests, but the state must ensure each prisoner's request to be able to use assisted reproduction was considered carefully on its own merits. Rather surprisingly, in *SH v Austria*⁴⁹¹ it was held this did not extend to a right to use donated gametes. The Austrian law which allowed couples access to assisted reproduction using their own gametes but was highly restrictive when donated gametes were needed was held to be an issue within the margin of appreciation.

A right to procreate might be understood in two ways. First, it can be said there is a right not to have one's natural ability to procreate removed by the state.⁴⁹² The notion of compulsory sterilisation, or having to be approved as a suitable parent before engaging in sexual intercourse, would not be acceptable in most democracies. Further, in some of the cases

⁴⁸⁶ (1981) 3 EHRR 408 ECtHR

⁴⁸⁷ [2000] 3 FCR 148.

⁴⁸⁸ For an interesting discussion of this case, see Williams (2002).

⁴⁸⁹ [2003] 3 FCR 148, at para 45.

⁴⁹⁰ Application 44362/04, discussed in Jackson (2007b).

⁴⁹¹ (2011) 52 EHRR 6.

⁴⁹² Although not expressed in such terms, *R v Human Fertilisation and Embryology Authority, ex p Blood* [1999] Fam 151, [1997] 2 FCR 501 and *Warren v Care Fertility* [2014] EWHC 602 (Fam) could be regarded as accepting a right to procreate.

involving sterilisation of adults with a mental disability, references have been made to the 'right of a woman to reproduce'.⁴⁹³

The second sense in which one might claim a right to procreate is to argue that one should not be denied fertility treatment without good reason.⁴⁹⁴ For example, lesbian women, gay men or single people should not be prevented from using such techniques, without good reason.⁴⁹⁵ It can be claimed that infertility should be treated as an illness and a would-be parent should be entitled to treatment for this as with any other medical condition. Mary Warnock⁴⁹⁶ argues that a person is only entitled to claim as a right a basic need. Although couples might desperately want a child, it is not a need that is basic to human well-being. Further, she is concerned that children should not be regarded as an entitlement, but should remain a gift to be received with gratitude.⁴⁹⁷ The law governing the provision of treatment by fertility clinics will be discussed further shortly, but it should be noted that if there is such a right, it is limited. Under the NHS any right to claim treatment must be regarded in the context of the whole NHS system and there may be monetary or medical reasons why a particular form of treatment is not available.⁴⁹⁸ It should be noted that those who are able to afford it may well be able to obtain infertility treatment privately. This means that maybe the question, 'Can you buy a baby in the UK?' cannot be answered with a definite 'No'.⁴⁹⁹

Some writers have claimed there is a right to reproductive autonomy – the right to choose whether or not to reproduce.⁵⁰⁰ It is argued that the choice to have a child is intimately bound up with our sense of identity and, therefore, can be analogous to other rights that are protected, such as the right to religion. The argument most often made to support such a claim is that, as there are no tests or restrictions on fertile couples who wish to produce a child, there should be no restrictions on those who need the assistance of fertility treatment.⁵⁰¹ Indeed, to impose such restriction could amount to discrimination on the grounds of disability. Opponents of such a right reject these arguments. O'Neill points out that the right to reproduce involves the creation of a third party, and this distinguishes it from other rights, such as to religion or free speech.⁵⁰² She argues that reproduction 'can never be justified simply by the fact that it expresses the individual autonomy of one or two (or more) would-be reproducers'.⁵⁰³

The issue of a 'right to be a parent' came to the fore in *Evans v Amicus Healthcare Ltd and others*.⁵⁰⁴

⁴⁹³ *Re B (A Minor) (Wardship: Sterilisation)* [1988] AC 199; *Re F (Mental Patient: Sterilisation)* [1990] 2 AC 1; *Re D (A Minor) (Wardship: Sterilisation)* [1976] Fam 185.

⁴⁹⁴ For further discussion, see Sutherland (2003). A lack of state resources is a common and lawful reason to deny access to NHS fertility treatments; *R (Rose) v Thanet Clinical Commissioning Group* [2014] EWHC 1182 (Admin).

⁴⁹⁵ This has been recognised by the ECtHR; *Knecht v Romania* [2013] 2 FCR 105.

⁴⁹⁶ Warnock (2002: 53). See further Warnock (2006).

⁴⁹⁷ Warnock (2002: 53 and 112).

⁴⁹⁸ *R (On the Application of Assisted Reproduction and Gynaecology Centre and H) v HFEA* [2002] Fam Law 347.

⁴⁹⁹ Brazier (1999).

⁵⁰⁰ Alghrani and Harris (2006); Spencer and Pedain (2006) for a useful collection of essays on this.

⁵⁰¹ Alghrani and Harris (2006).

⁵⁰² O'Neill (2002: 61).

⁵⁰³ O'Neill (2002: 62). See also Cahn and Collins (2009) for a discussion of an American woman who had octuplets.

⁵⁰⁴ [2004] 3 All ER 1025.

CASE: *Evans v Amicus Healthcare Ltd and others* [2004] 3 All ER 1025

In October 2001 Natalie Evans and Howard Johnston, who were engaged, underwent IVF treatment. It was discovered that Natalie Evans had tumours on her ovaries. Her ovaries had to be removed as soon as possible and she was required quickly to make a decision on whether she wanted any ova removed and frozen. There were three main options: either that she freeze her ova; or her eggs be fertilised with donated sperm and frozen; or that her ova be fertilised with Mr Johnston's sperm and then frozen. She chose the last option, a decision she would subsequently deeply regret. There were two main reasons for it. The first was that frozen ova do not freeze well and many do not survive. The second was that Mr Johnston assured her that he wanted to be the father of her children; that they were not going to split up; and that she should not be negative. Six eggs were harvested, fertilised and frozen. Later that month her ovaries were removed. In May 2002 the couple separated and Mr Johnston wrote to the clinic asking them to destroy the embryos. Ms Evans sought an order preventing the destruction of the embryos.

The Court of Appeal found the case straightforward in legal terms and decided against Ms Evans and authorised the destruction of the embryos. The decision was reached primarily on the basis of the interpretation of the Human Fertilisation and Embryology Act 1990 (HFEA 1990). That Act makes it clear that a licensed clinic is only permitted to store an embryo which has been brought about in vitro if there is effective consent by each person whose gametes were used to bring about the creation of the embryo (HFEA 1990, Sch 3, paras 6(3), 8(2)). Although Mr Johnson had consented to the original storage of the sperm and its use in fertilising the egg, he had now withdrawn his consent and so the clinic was no longer permitted to store it. It was not just the wording of the statutory provisions which convinced the Court of Appeal that this was the correct interpretation of the Act; they emphasised that there were two principles underlying the Act:

- (i) The welfare of any child born by treatment was to be of fundamental importance.
- (ii) The requirement of informed consent, capable of being withdrawn at any point prior to the transfer of the embryos to the woman receiving treatment.

Both of these principles supported the conclusion that the embryos should be destroyed. As to the first, it was not in the child's interests to be born to a father who did not want the child to be born. As to the second, it clearly required the destruction of the embryo.

The Court of Appeal also considered whether the Human Rights Act 1998 required the Court to reinterpret the HFEA 1990 in a way which was consistent with the parties' rights under the European Convention on Human Rights. The court quickly concluded that the embryo had no rights under the Convention.⁵⁰⁵ As to the rights to respect for private and family life, it was noted that Ms Evans's right to reproduce had to be balanced against Mr Johnston's right not to reproduce. This was problematic because it involved 'a balance to be struck between two entirely incommensurable things'.⁵⁰⁶ In essence, the Court of Appeal felt that the HFEA 1990 had taken a reasonable approach between balancing these rights and so it could not be said to be incompatible with the Convention, although,

⁵⁰⁵ This was confirmed in *Vo v France* [2004] 2 FCR 577.

⁵⁰⁶ [2004] 3 All ER 1025 at para 66.

had the Act permitted Ms Evans to implant the embryo, this too might have been a reasonable balance.

The case went to the European Court of Human Rights.⁵⁰⁷ The European Court of Human Rights (Grand Chamber) held that English law in the HFEA 1990 did not improperly interfere with the parties' rights under the ECHR; although their judgment implies that a statute which would have decided that she could have used the embryos would also have been compliant with the ECHR. In other words, this was an area where states within their margin of appreciation could legislate as they felt appropriate. The European Court of Human Rights held that the case involved a complex clash of article 8 rights: in essence, the right to be a parent (of Ms Evans) and the right not to be a parent (of Mr Johnston). It also involved some broader social issues, such as the principle of primacy of consent and the need for certainty. The UK law which favoured the right not to be a parent could not be said to be improper. It could not be said that the state had a positive obligation to ensure that a woman should be permitted to implant her embryo notwithstanding the withdrawal of consent by the gamete provider. She had not been prevented from becoming a mother in a social, legal or physical sense because she could adopt a child or use donated gametes.

The case as an interpretation of the HFEA 1990 was relatively uncontroversial.⁵⁰⁸ However, dealing with the human rights issues was less straightforward.⁵⁰⁹ The Court of Appeal concluded that the article 8 rights of Ms Evans and Mr Johnston were equal and this was seen as acceptable by the ECtHR. However, the claimed right to implant the embryo and thereby become a mother and the claimed right to destroy the embryo and thereby avoid becoming a father both fall within the right to respect for private and family life under article 8; this does not mean that the rights are equal. Many people will agree with Thorpe LJ that these rights are incommensurate. Only the most hard-hearted can fail to find sympathy with Ms Evans being denied the only chance she had to have a child of her own. But many will also sympathise with Mr Johnston's principled objection to becoming a father against his wishes. One could go back to what is at the heart of the rights claimed here. In essence, this is the right of autonomy: the right to live your life as you wish. It is common to talk in terms of encouraging people to find and live out their version of the 'good life' free from interference from the state. This provides us some benchmark against which to measure these competing rights. Would it be a greater setback to their version of living their 'good life' for Ms Evans to be denied having the child she so desperately wanted or for Mr Johnston to have to live his life knowing there was a child of his whom he did not know and in whose life he was not able to play an effective role?⁵¹⁰

⁵⁰⁷ *Evans v UK* [2006] 1 FCR 585 and [2007] 2 FCR 5. See Wright (2008) and Morris (2007) for interesting discussions of the issues.

⁵⁰⁸ Department of Health (2005b) recommends improvements be made in explaining to couples the paperwork they sign when agreeing to treatment at a licensed clinic.

⁵⁰⁹ An excellent discussion of the Court of Appeal case is Sheldon (2004).

⁵¹⁰ See Wright (2008). See *Warren v Care Fertility Ltd* [2014] EWHC 602 (Fam) where a woman's article 8 right was relied upon to permit her to use her deceased husband's sperm. And see *R (IM and MM) v Human Fertilisation and Embryology Authority* [2016] EWCA Civ 611, where parents of a deceased woman successfully challenged the HFEA's refusal that they be allowed to use their daughter's eggs to create a child.

(ii) Should assisted reproduction be permitted?

Although assisted reproduction is now commonly available, whether it should be permitted is a topic which still engenders debate. Giesen⁵¹¹ argues:

Assisted reproduction with both gametes donated must be prohibited as departing too far from the traditional setting; donation of female gametes as well disturbs the natural unity of bearing and genetic motherhood. We feel that a separation of biological and social fatherhood should be avoided as well. Still, we must answer to reality: prohibiting AID would turn out to be unenforceable, since AID does not require medical assistance.

So, wherever possible, reproductive techniques should use gametes from the couple concerned. The validity of this argument partly turns on the idea of the 'natural'. Some would say that allowing a couple medical assistance to have a child is allowing them to have what nature intended (a child); others might argue that AID is equivalent to adultery. Whatever the views of individuals, it appears that Giesen's approach is in a minority.

Another argument against assisted reproductive techniques is that the world is already overpopulated and there is no need to create more people. However, the number of children born through reproductive techniques is too small for this argument to carry much weight. Others argue that assisted reproduction overlooks the real problems connected with the issue, society's expectations which create the sadness often associated with infertility, and emphasises treating the symptoms of infertility, rather than considering its causes.⁵¹² Further, it should be remembered that assisted reproduction carries with it far higher risks of adverse outcomes from babies than 'natural' conception.⁵¹³

(iii) Restricting access to assisted reproductive techniques

(a) The legal restrictions

Although the Human Fertilisation and Embryology Acts of 1990 and 2008 provide regulations requiring the licensing of clinics it does not restrict who is permitted to have access to the treatment. The crucial provision is s 13(5), which requires clinics, in deciding whether to provide treatment to a particular patient, to take account of 'the welfare of any child who may be born as a result of the treatment (including the need of the child for supportive parenting), and of any other child who may be affected by the birth'.⁵¹⁴ Section 14 of the Human Fertilisation and Embryology Act 2008 had amended this provision, by removing the reference to a child's need for a father and replacing it by referring to the child's need for 'supportive parenting'.⁵¹⁵ There is also a non-binding code of practice.⁵¹⁶ This code of practice encourages clinics to start with a presumption that all those who seek infertility treatment should receive it. Clinics should consider whether there are things in a patient's medical or social background which might cause the child serious medical, physical or psychological harm. In law, then, the clinics have a wide discretion in deciding whether to provide treatment in individual cases.⁵¹⁷ Emily Jackson⁵¹⁸ has argued that it is not possible to assess the potential welfare of

⁵¹¹ Giesen (1997: 260). See also Somerville (2010).

⁵¹² Morgan (1995).

⁵¹³ Blyth (2008).

⁵¹⁴ Discussed in Jackson (2002); Jackson (2007a).

⁵¹⁵ Human Fertilisation and Embryology Act 2008, s 15. See Sheldon *et al.* (2015); Smith (2010) and McCandless and Sheldon (2010b) for a helpful discussion.

⁵¹⁶ Human Fertilisation and Embryology Authority (2010).

⁵¹⁷ Probert (2004b: 274).

⁵¹⁸ Jackson (2002).

a child born as a result of assisted reproduction.⁵¹⁹ We do not assess whether fertile people should become parents, so we should not do that for infertile couples either.⁵²⁰ As Alghrani and Harris point out, paedophiles and abusers are allowed to become parents naturally, so why should they not be allowed to become parents using assisted reproduction? They state 'there is only one reliable criterion for inadequate parenting; it is the palpable demonstration of that inadequacy, in terms of cruelty, neglect or abuse of children.'⁵²¹ In other words, a person can only be labelled an inadequate parent once they have harmed a child; until then we should not try and predict who will be one. Their suggestion that we permit a known child abuser to receive assisted reproductive treatment and then wait until they have actually harmed the child before removing her is extraordinary. But is there a sensible way in which we can decide who will or will not make a good parent? Some ethicists suggest that the question to ask is whether a virtuous parent would choose to become a parent in these circumstances.⁵²² But under that test maybe very few people indeed should become parents!

(b) Restrictions in practice

There is much evidence that clinics, in effect, ration access to reproductive treatments. The National Institute of Clinical Excellence which directs the NHS on what treatments are cost-effective for the NHS to provide has recommended that a woman who satisfies the following two criteria should be offered up to three cycles of IVF:⁵²³

- she is aged between 23 and 39 years at the time of treatment;
- she has an identified cause for fertility problems (such as azoospermia or bilateral tubal occlusion) or infertility of at least three years' duration.

This has proved expensive to offer and in 2016 a report found that only 18 per cent of Trusts provide the recommended number of cycles.⁵²⁴

D 'Illegitimacy'

Historically, in England and Wales a lesser status has been accorded to children whose parents are not married. At common law an illegitimate child was referred to as a *filius nullius* and had no legal relationship with his or her father, nor even, at one time, with his or her mother. There has been a gradual shifting of the position by permitting a child to be legitimated by the parents' subsequent marriage,⁵²⁵ and there has been a gradual removal of the legal disadvantages of children born outside of marriage. Now, as we shall see, very few consequences flow from illegitimacy. The key argument behind the reforms is that a child's legal position should not be affected by the parents' decision whether or not to marry. This is reflected in article 2(1) of the UN Convention on the Rights of the Child and in the European Convention on the Legal Status of Children Born out of Wedlock, which both state that a child's status should not depend on whether his or her parents were married. Some jurisdictions have removed the

⁵¹⁹ See Archard (2004a) who disagrees, arguing that it is wrong to bring into the world a child whose quality of life will be below a minimally decent level.

⁵²⁰ Fenton, Heenan and Rees (2010).

⁵²¹ Alghrani and Harris (2006: 202).

⁵²² McDougal (2007).

⁵²³ NICE (2010). For an unsuccessful challenge to their application see *R (Rose) v Thanet Clinical Commissioning Group* [2014] EWHC 1182 (Admin).

⁵²⁴ Moshiri (2016).

⁵²⁵ Legitimacy Act 1976.

status of the illegitimate child altogether.⁵²⁶ As confirmed by the European Court of Human Rights in *Sahin v Germany*,⁵²⁷ the Human Rights Act 1998 means that any distinction between legitimate and illegitimate children may infringe article 8 in conjunction with article 14, unless that distinction can be justified as necessary under para 2 of article 8.⁵²⁸

The Family Law Reform Acts of 1969 and 1987 have done much to limit the distinction made between legitimate and illegitimate children. Now children whose parents are not married have nearly the same rights as children whose parents are married. Section 1(1) of the Family Law Reform Act 1987 states that for all future legislation any reference to a parent would (unless there was contrary indication) cover both married and unmarried parents.

However, there are a few distinctions between children whose parents were married and those whose parents were unmarried, in the areas of citizenship, titles of honour⁵²⁹ and maintenance.⁵³⁰ There is also a distinction drawn in the father's legal position because an unmarried father, unlike a married father, does not acquire parental responsibility. It is also notable that the judiciary still in judgments refer to 'illegitimate' children, even in the House of Lords.⁵³¹ Indeed, we still have a Legitimacy Act 1976 on the statute books and it is technically possible to apply for a declaration of legitimacy.⁵³² So despite the formal removal of legitimacy from family law, it still lingers around.⁵³³

E Same-sex couples and parenthood

Learning objective 8

Critically examine how parenthood issues are dealt with in cases involving same-sex couples

The legal response to same-sex couples who wish to produce and raise a child together reveal clearly the difficulties the law is facing in using the traditional concept of a child with one mother and one father. The law is looking increasingly outdated as it struggles to apply the traditional heterosexual family model to same-sex couples.⁵³⁴

As already noted under the HFEA 2008, if a same-sex couple seek treatment at a licensed clinic, the woman who gives birth as a result is the mother, but her partner will be described as the 'other parent'. The law's reluctance to see a child having two mothers is manifest. It was also demonstrated by Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)*,⁵³⁵ dealing with a residence dispute between a lesbian couple. She placed weight on the fact that one woman was the genetic and gestational mother, while her partner was not, and that led to the residence order being made in the genetic mother's favour. This judgment might give the impression that lesbian parents can never be fully equal in the eyes of the law because the genetic and/or gestational parent will have a legal advantage.⁵³⁶ While a heterosexual couple

⁵²⁶ E.g. New Zealand.

⁵²⁷ [2003] 2 FCR 619. See also *Sporer v Austria* (App. No. 35637/03).

⁵²⁸ *Camp and Bourimi v The Netherlands* [2000] 3 FCR 307. *Genovese v Malta* (App. No. 53124/09).

⁵²⁹ Family Law Reform Act 1987, s 19(14).

⁵³⁰ See Chapter 6.

⁵³¹ *Dawson v Wearmouth* [1999] 1 FLR 1167; for criticism of them doing so, see Bainham (2000b: 482) and Bainham (2009c). Hale LJ in *Re R (A Child)* [2001] EWCA Civ 1344 was critical of case reporters who had used the word 'illegitimate' in the title of a case.

⁵³² Family Law Act 1986, s 56.

⁵³³ Bainham (2009c).

⁵³⁴ Wallbank (2010); McCandless (2012).

⁵³⁵ [2006] UKHL 43 at para 33. See Leanne Smith (2007) for further discussion.

⁵³⁶ That may be a slightly unfair reading of the case because Lady Hale only mentioned the genetics and gestational link because in relation to all the other relevant factors the parents were equal.

are therefore able to be equally the parents of the child, the law prevents a same-sex couple being equal parents.

The difficulties are also shown in a number of cases where a lesbian couple have asked a man to provide sperm which they have used to impregnate one of them. The understanding is typically that the man should play only a limited role in the child's life. Problems then arise where the man subsequently seeks to become more involved in the child's life. The courts' response to these cases is revealing about the assumptions on parenthood and shows the difficulties the courts face in using traditional concepts of parenthood in modern family life.

The courts have not developed a clear response to such cases. In *Re D (Contact and Parental Responsibility: Lesbian Mothers and Known Father)*⁵³⁷ Black J gave parental responsibility to a man who had been selected by a lesbian couple to impregnate one of them so that the couple could raise a child together. Justifying his decision he said that 'perhaps most importantly of all' is the reality that the man *was* the child's father. This suggests that biological parenthood itself is a good reason for granting parental responsibility to an informal sperm donor. Later cases seem to have required something more to justify granting a sperm donor parental responsibility. In *R v E and F (Female Parents: Known Father)*⁵³⁸ a father who donated sperm to a lesbian couple was not granted parental responsibility on the basis that there was no doubt he was the father and did not need parental responsibility to reinforce that. In *JB v KS and E (A Child Acting by his Children's Guardian)*⁵³⁹ the father was again granted parental responsibility. However, Hayden J went to lengths to emphasise that the sperm donor had developed and maintained a close relationship with couple and that it had always been agreed he would have a role in the child's life, even if not a parental one. He already had regular contact with the child and shown himself to be responsible. The judgment in that case seems to indicate that some good reasons are needed to justify granting parental responsibility. In *Re X*⁵⁴⁰ Theis J believed the welfare of the child was tied up with ensuring the lesbian couple had a secure relationship. Allowing the sperm donor indirect contact (through letters) meant he could retain a link with the child without disrupting the mothers' relationship.

The solution adopted in some cases has been to grant the father parental responsibility, but then restrict the kind of issues about which he exercise parental responsibility. Another response, used in *Re R (Parental Responsibility)*⁵⁴¹ is not to grant the father parental responsibility, but to make a specific issue order requiring him to be kept up to date with important issues in the child's life.

The following is the leading case:

CASE: A v B and C (Lesbian Co-Parents: Role of Father) [2012] EWCA Civ 285

B and C were a lesbian couple who asked A (a man who was in a relationship with another man) to help produce a child. A married B, in order to avoid the religious concerns of B's family. A's sperm was used to make B pregnant. The intention was that the child would be raised by B and C and that A play a secondary role. The relationship broke down and A sought a contact order.

⁵³⁷ [2006] 1 FCR 556.

⁵³⁸ [2010] EWHC 417 (Fam).

⁵³⁹ [2015] EWHC 180 (Fam).

⁵⁴⁰ [2015] EWFC 83.

⁵⁴¹ [2011] EWHC 1535 (Fam).

As the Court of Appeal acknowledged, as A was the biological father of the child and married to B it was clear he was the child's father and had parental responsibility for the child. The dispute focused especially on the extent of contact as it was agreed that a joint residence order for B and C was appropriate. The Court of Appeal rejected any suggestion of a general rule to such cases and emphasised that each case must depend on its fact and on an assessment of the welfare of the child. It was wrong in this case to assume that because a child benefited from having two parents that the addition of a third would be disadvantageous. Thorpe LJ went further:

[The mother and her partner] may have had the desire to create a two parent lesbian nuclear family completely intact and free from the fracture resulting from contact with the third parent. But such desires may be essentially selfish and may later insufficiently weigh the welfare and developing rights of the child that they have created.

Thorpe LJ explained that the role of the court was not to give effect to the intentions of the parties, but rather promote the welfare of the child.

The Court of Appeal also rejected an approach which had been developed by Hedley J which in similar cases had described the lesbian couple as the primary parents and the sperm donor as secondary.⁵⁴² Thorpe LJ explained

I would not endorse the concept of principal and secondary parents. It has the danger of demeaning the known donor and in some cases he may have an important role. In the present case some would say that the primary carer is the full-time nanny. However, let me rank the three parents in the context of care. Clearly [mother and her partner] are primary carers. Clearly [father] is only presently on the threshold of providing secondary care. Whether or not he should cross that threshold is the question that is likely to be decided by a judge in the future. But I would certainly not categorise him as a secondary parent.

Black LJ acknowledged that the courts had struggled to develop a principled approach to these cases. However, the court should not develop rules and allow each case to be determined by the welfare principle. She stated that 'The adults' pre-conception intentions were relevant factors in this case but they neither could nor should be determinative'.

The case was returned to the Family Division with a direction that the judge focus on the welfare of the child and find a solution that enabled the relationship between the child and A to thrive and develop, but in a flexible way taking account of accumulating evidence as the child grew up.

It seems that the approach the courts are taking in these cases is twofold. First, they are keen to solidify the parental role of the same-sex couple in relation to the child. This is typically done by making a shared residence order in their favour, which grants both women parental responsibility (*T v T (Shared and Joint Residence Orders)*).⁵⁴³ Second, they are seeking to maintain the parental role of the father, by acknowledging he is the father and ensuring this is a meaningful role by ensuring he has contact with the child.

⁵⁴² See e.g. *MA v RS (Contact: Parenting Roles)* [2011] EWHC 2455 (Fam) and *Re P and L (Contact)* [2011] EWHC 3431 (Fam).

⁵⁴³ [2010] EWCA Civ 1366.

The problem is that these two goals are to some extent in conflict. The lesbian couple may feel their role as parents is undermined by the fact that (as they may see it) a third party is given a role to interfere in the way they wish to raise the child. A contrast might be made with surrogacy, where if the surrogate mother hands over the child a parental order can be made and she has no link with the child.⁵⁴⁴

It might have thought that the HFEA 2008 would change the courts' approach in that it recognised that two women could be recognised as parents. In *Re G; Re Z (Children: Sperm Donors: Leave to Apply for Children Act Orders)*⁵⁴⁵ two cases were heard together. They both involved lesbian couples who had produced a child using assisted reproduction and the sperm of a male friend. Following the birth, the male friend wanted to take on a significant role in the life of the child and applied for leave to bring an application for a contact order. The couple objected. The mothers relied on s 48 of the 2008 Act that sperm donors are 'to be treated in law as not being a parent of the child for any purpose'. However, Baker J accepted the argument that had Parliament intended men in the donor's position never to have contact it would have barred them from seeking leave to apply for contact. He went further: 'the potential importance of genetic and psychological parenthood is not automatically extinguished by the removal of the status of legal parenthood, and that social and psychological relationships amounting to parenthood can and often do co-exist with legal parenthood'.⁵⁴⁶ Notably he, somewhat controversially, described the men as 'fathers who have been deprived of the status of legal parent by the HFEA 2008 Act', rather than referring to them as sperm donors.⁵⁴⁷ Baker J also placed weight on the fact the mothers had chosen to use a known donor and hence acknowledged the men would play some role in the child's life. It will be interesting to see if subsequent cases follow this line.

If the law is going to continue on its current path, it needs to be made clearer why it is important that the father is given the role the Court of Appeal seem to want him to have. The two reasons commonly given are unconvincing. The claim a child needs a 'male parental influence' seems unsupported by evidence showing that children raised by lesbian parents do just as well, if not better, than comparable children raised by opposite sex parents.⁵⁴⁸ The claim that the child needs to know their genetic origins can be met without the father being given any particular role. The argument must be that getting to know one's genetic parents is a benefit, but evidence would be needed to show why that is so. Many adopted children do not know their genetic parents, and do not want to. They do not appear to suffer as a result.⁵⁴⁹ Given the weakness of the arguments for giving the sperm donors in these cases parental status or parental responsibility it might be better to recognise the social reality that for these children it is the lesbian couple who are the child's parents. After all, that is how the child will understand the situation. Mary Welstead⁵⁵⁰ has promoted a different view:

To deprive a child of a biological father who wishes to be part of his child's life cannot be said to be in the child's best interests without further compelling evidence that such a relationship would be damaging to the child. Parental intention prior to conception, or the seemingly selfish desires of mothers, whether heterosexual or lesbian, to be sole carers, should rarely be an important factor in determining a child's future. The paramountcy principle must remain the sole

⁵⁴⁴ Smith, Leanne (2011).

⁵⁴⁵ [2013] EWHC 134 (Fam).

⁵⁴⁶ Para 116.

⁵⁴⁷ Para 115.

⁵⁴⁸ Leckey (2012); Golombok (2015).

⁵⁴⁹ Everett and Yeatman (2010). See Callus (2012) for an argument seeking to attach weight to the genetic role.

⁵⁵⁰ Welstead (2016).

basis for determining relationships between biological fathers and their children and would-be-parents should be aware of it before they embark on their journey to procreation.

She clearly places weight on importance of the biological link, but would we say the same to a sperm donor who has donated sperm through a licensed clinic to a heterosexual couple?

What we are seeing in these cases is the courts struggling to fit lesbian couples and sperm donors into the case law. Black LJ said in one case:

I had to adjudicate upon the issue of parental responsibility for the biological father equipped only with concepts and language which were not designed to cater for the situation I had before me.⁵⁵¹

Leanne Smith identifies a paradox in the current debates:

Excluding known donors from legal recognition through a system which recognises only two parents validates and protects lesbian families but also reinforces the dyadic parenting norm based on heterosexual reproduction. Conversely, giving legal recognition to multiple parents undermines the dyadic norm but reasserts heteronormativity by elevating the importance of genetic parentage and fathers.⁵⁵²

A further important point is that in many of these cases the lesbian couple have asked a gay friend to be the sperm donor. That can make the parenting enterprise 'a political and social endeavour for lesbians and gay men to challenge the patriarchal nuclear family'. Wallbank and Dietz⁵⁵³ argue that the validity of this challenge should be acknowledged as an aspect of the child's welfare. However, currently the courts in cases such as *DB v AB*⁵⁵⁴ have taken a straightforward understanding of welfare and seen it as beneficial for a child to retain links with their biological father. Although in that case it is, perhaps, notable that the court emphasised that it had been found that the lesbian couple and man had agreed that the man was to play some role in the child's life.

A more radical solution may be to break down the sharp distinctions that are drawn between parents and non-parents and to recognise the broad range of adults that play an important role in the life of a child.⁵⁵⁵ Any adult with a close beneficial relationship in relation to a child should have legal rights and responsibilities to the child. We might recognise how different adults in a child's life are especially well placed to make particular decisions about a child. In short we abolish the concepts of parents in the eyes of the law. Such an approach would open up our thinking about adult-child relationships, but it seems the law is a long way from departing from the paradigm of parenthood. Those who want to retain parenthood may refer to the writing of Brighouse and Swift⁵⁵⁶ who argue in favour of the notion of a parent:

In order to develop into flourishing adults, and to enjoy the goods intrinsic to childhood, children need to have a particular kind of relationship with one or more, but not many more, adults . . . When we say that children need parents – indeed that they have a right to a parent – we are saying . . . that there is an essential core to what they need that is best delivered by particular people who interact with them continuously during the core of their development . . . Continuity and combination are implied by the idea that what children need is a particular kind of relationship.

⁵⁵¹ *A v B and C* [2012] EWCA Civ 285.

⁵⁵² Smith, L. (2013), at p. 378.

⁵⁵³ Wallbank and Dietz (2013).

⁵⁵⁴ [2014] EWHC 384 (Fam).

⁵⁵⁵ Herring (2013a: ch. 6).

⁵⁵⁶ Brighouse and Swift (2014: 85).

15 Conclusion

It was not long ago when to ask, 'What is a parent?' would have appeared to be asking the obvious, but now the question is the subject of lengthy books. The complex sets of relationships within which children are raised require the law to recognise that a variety of people may act towards the child in a parental or quasi-parental way and those who are the child's genetic parents may play little part in the child's life. One major debate in this area concerns whether greater legal recognition should be given to those who are the genetic parents of the child or to those who act socially as the parents of the child.⁵⁵⁷ The law is developing ways of recognising both these understandings of parenthood, but the 'balance of power' between the adults involved is controversial. This part of the text has also considered other complex issues which have been created by the advent of assisted reproduction: Is there a right to be a parent? Does a child have a right to know his or her genetic origins? The future development of reproductive technologies will, no doubt, create many more legal problems.

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Visit www.pearsoned.co.uk/herring to access resources specifically written to complement this text.

9

Parents' and children's rights

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain when childhood begins and ends
2. Discuss the nature of parental rights
3. Explain and evaluate the concept of parental responsibility
4. Analyse the welfare principle
5. Describe how the Human Rights Act 1998 interacts with the welfare principle
6. Consider the issues around children's rights

1 Introduction

This chapter will consider the legal position of parents and children.¹ What rights do parents and children have? How can the law balance the interests of parents and children? Chapter 10 will look at how the courts resolve disputes between children and parents. Here we are concerned with the legal position if no court order has been made. The chapter will start by considering when childhood begins or ends. It will then examine the position of parents: what obligations and rights does the law impose upon parents? The chapter will then turn to the legal position of children: how does the law protect the interests of children? Do children have any rights? The complex questions of how to deal with clashes between the interests of children and parents and also between different children will be examined. The chapter will conclude by looking at particular issues to see how, in practice, the interests of children and parents are balanced.

¹ See Fortin (2009b) for an excellent discussion of themes of this section.

2 When does childhood begin?

Learning objective 1

Explain when childhood begins and ends

English law takes the position that a person's life begins at birth.² Before birth the foetus is not a person. But this does not mean that the unborn child is a 'nothing'. In the eyes of the law the foetus is a 'unique organism'³ which is protected by the law in a variety of ways.⁴ For example, it is an offence to procure a miscarriage unless the procedure is permitted under the Abortion Act 1967. However, the law is unwilling to protect the foetus at the expense of the rights of the mother to bodily integrity and self-determination. For example, in *Re F (In Utero)*⁵ the social services were concerned about the well-being of the unborn child and wanted to make it a ward of court. The court stated that the foetus could not be made a ward of court, as it was not a child; although once the child was born there was nothing to stop the court warding him or her.⁶ It was held that to enable a foetus to be warding would give the court inappropriate control over the mother's life.⁷

Fathers have no rights in relation to foetuses and, therefore, are not able to prevent an abortion.⁸ The only possible route for a father seeking to prevent an abortion is to argue that the proposed abortion is illegal. However, in *C v S*⁹ it was suggested that the Director of Public Prosecutions is the person who should be bringing any such proceedings, rather than the father.¹⁰

3 When does childhood end?

Childhood is a concept in flux. Societies at different times and in different places have had a variety of ideas about when childhood ends.¹¹ In 1969 the legal age at which a child ceased to be a minor in England and Wales was reduced from 21 to 18.¹² The Children Act 1989 confirms this by defining a child as 'a person under the age of eighteen'.¹³ However, there is not a straightforward transformation in the status of the child at age 18. For example, 16 is the age at which a child is entitled to perform some activities¹⁴ and there are still some legal limitations that apply until the person is 21.¹⁵ By contrast a child can be convicted of a criminal offence from the age of 10.¹⁶ Further, in *Gillick v W Norfolk and Wisbech AHA*¹⁷ the House of

² For a detailed discussion see Herring (2016b).

³ *Attorney-General's Reference (No. 3 of 1994)* [1998] AC 245 at p 256.

⁴ *St George's Healthcare NHS Trust v S* [1998] 2 FLR 728. *Vo v France* [2004] 2 FCR 577 made it clear that the foetus has no rights under the ECHR, although it is open to signatory states to pass legislation to protect foetuses if they wish.

⁵ [1988] Fam 122.

⁶ See Chapter 12 for further discussion of when a care order can be obtained in such cases.

⁷ For a general discussion of the law, see Seymour (2000); Herring (2000a).

⁸ *C v S* [1987] 2 FLR 505; *Paton v BPAST* [1979] QB 276. Approved by the European Convention on Human Rights: *Paton v UK* (1981) 3 EHRR 408.

⁹ [1987] 2 FLR 505.

¹⁰ Infant Life (Preservation) Act 1929, s 1.

¹¹ Freeman (1997a).

¹² Family Law Reform Act 1969, s 1. Eighteen is the age used by the UN Convention on the Rights of the Child, Article 1.

¹³ Children Act 1989, s 105(1); subject to exemptions relating to financial support.

¹⁴ A child can marry at age 16.

¹⁵ For example, applicants for adoption need to have reached the age of 21.

¹⁶ For discussion see Keating (2015).

¹⁷ [1986] 1 FLR 229, [1986] AC 112.

Lords accepted that the law must recognise that children develop and mature at different rates and a child under 16 who is sufficiently mature should be recognised as competent to make some decisions for himself or herself. We shall discuss the notion of '*Gillick*-competence' and when under 16-year-olds can make decisions for themselves in further detail shortly.

Although childhood legally ends at age 18, the parental role does not necessarily end then. Many over-18-year-olds continue to live with parents, who will continue to provide them with practical, financial and emotional support. Indeed, under certain circumstances parents can be legally obliged to support children financially beyond the age of 18.¹⁸

4 The nature of childhood

As we have seen already, there is no hard and fast line between childhood and adulthood. This has led some to claim that childhood is a social construction. In other words, that there is not an objectively true definition of childhood, rather the concept is created by societies. Certainly the notion of childhood is a powerful one in our society and the media are constantly concerned by the position of children. To some we are living in times when childhood is disappearing, with children becoming exposed to adult life at an earlier and earlier stage. In particular, there are concerns about the sexualisation and commercialisation of children.¹⁹ These are rushing children through what should be an innocent and stress-free time of life.²⁰ However, others claim that the lines between childhood and adulthood are being reinforced more than ever. Children are being excluded from public places either because their parents fear for their safety or because of concerns about their behaviour.²¹ Children's play is nowadays made up of commercialised leisure activities, usually overseen by adults.²² Much government legislation has been directed towards tackling truants and children with anti-social behaviour. Children have been regarded as a resource the state needs to invest in.²³ It may, in fact, be that both these perspectives have an element of truth:²⁴ that children are simultaneously being treated as dangerous young people in need of control in some areas of life, but also as vulnerable minors needing protection and/or restraint. Are they little angels or little devils?²⁵

Many commentators have argued that children's vulnerability has been used to justify controlling children and ignoring their rights.²⁶ They argue we need to recognise that children are far more competent than they are given credit for and should be entitled to many of the rights adults have. Taking a rather different tack, I have argued:

the law is right to regard children as vulnerable, where it is at fault is in failing to recognise the vulnerability of adults. Children are vulnerable, as is everyone. In children we adults see our own vulnerability and flee from it.²⁷

¹⁸ For example, *B v B (Adult Student: Liability to Support)* [1998] 1 FLR 373 (and see Chapter 6).

¹⁹ Although children's materialism simply reflects society's.

²⁰ Mayall (2002: 3).

²¹ Valentine (2004).

²² Mayhew *et al.* (2005).

²³ Piper (2009).

²⁴ Smart, Neale and Wade (2001) suggest that in the media children are often represented as either little angels or little devils.

²⁵ Valentine (2004: 1).

²⁶ See the analysis of vulnerability in Fineman (2011).

²⁷ Herring (2012e).

So, rather than treating children more like adults, I argue we need to be treating adults more like children. Many will regard that as a dangerous argument that allows people's human rights to be easily undervalued.

Jenks argues that children now have taken a central place in our society in meeting the needs of adults. He argues:

As we need children we watch them and we develop institutions and programmes to watch them and oversee the maintenance of that which they, and they only, now protect. We have always watched children, once as guardians of their own future and now because they have become the guardians.²⁸

Jenks then suggests that adults' concern over the vulnerability of children says far more about the insecurity of adults than it does about the reality for children. He also challenges the orthodox view that children are nowadays economically unproductive and are (until they are older) a drain on the economy. Such a view overlooks the way children contribute to the economy by the time they spend caring for themselves rather than relying on an adult to look after them; and by caring for sick or disabled adults and working for their parents in unpaid work.²⁹ There has also been much academic discussion of the notion of children as citizens.³⁰ Bren Neale³¹ writes of the need to see children 'not simply as welfare dependants but as young citizens with an active contribution to make to society'.

The last couple of decades have seen increasing interest in the role of children in family life from psychologists and sociologists. The common perception that children are passive in family life, the victims of the decisions of the adults around them, has been challenged. Increasingly children are recognised as active participants in family life, sometimes offering as much support and help as they receive from their parents.³² In relation to legal intervention on relationship breakdown Alison Diduck and Felicity Kaganas³³ suggest children are seen as both incompetent and dependent, but also as having agency and autonomy.

In all of this discussion there tends to be a separation into 'them' (the children) and 'us' the adults.³⁴ However, as already indicated, there is no clear divide.

TOPICAL ISSUE

Childhood in crisis?

In recent years the media paid much attention to the 'crisis' of childhood. In 2006 a letter was sent to the *Daily Telegraph* signed by leading academics and public figures. They expressed grave concern at the rates of depression and behavioural problems experienced by children. They saw 'modern life' as being part of the problem, explaining: 'Since children's brains are still developing, they cannot adjust – as full-grown adults can – to the effects of ever more rapid technological and cultural change. They still need what developing human beings have always needed, including real food (as opposed to processed 'junk'), real play (as opposed to sedentary, screen-based entertainment), first-hand experience of the world they live in and regular interaction with the real-life significant adults in their lives.'³⁵

²⁸ Jenks (1996: 69).

²⁹ Jenks (1996).

³⁰ Campbell *et al.* (2011).

³¹ Neale (2004: 1).

³² Smart, Neale and Wade (2001: 12).

³³ Diduck and Kaganas (2004).

³⁴ Mayall (2000).

³⁵ Abbs *et al.* (2006).

The Archbishop of Canterbury joined the expression of concern, complaining that children had become 'infant adults'.³⁶ A 2008 report blamed excessive individualism by adults as creating a mass of problems for children.³⁷ In one survey 89 per cent of adults felt that children had been damaged by materialism.³⁸ But children are regarded not just as disadvantaged but dangerous. In one poll 43 per cent agreed with the statement that 'something has to be done to protect us from children'.³⁹ Whether children 'have never had it so bad' is hard to assess. In material ways there is much evidence that children are better off than their predecessors, but that seems to be bringing with it a range of other problems. To take just one example, around one in ten children have a diagnosable mental health disorder'.⁴⁰

5 Parents' rights, responsibilities and discretion

Learning objective 2

Discuss the nature of parental rights

Parental responsibility is the key legal concept which describes the legal duties and rights that can flow from being a child's parent. It is significant that the Children Act 1989 talks of 'parental responsibility' rather than 'parental rights', because this stresses that chil-

dren are not possessions to be controlled by parents, but instead children are persons to be cared for. Parents should have their responsibilities, rather than their rights, in the forefront of their minds. However, when the Children Act comes to define parental responsibility in s 3, it states:

LEGISLATIVE PROVISION

Children Act 1989, section 3

In this Act 'parental responsibility' means all the rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation to the child and his property.

It will be noted that the first word used to describe parental responsibility is 'rights'. This demonstrates that it would be quite wrong to say that parents do not have rights.⁴¹ But we have already identified a key issue on the law on parenthood: how to balance and understand the notions of responsibilities and rights in parenthood. Before exploring that a little more it is important to be clear what we mean by parental rights.

A Parental rights

When we consider parental rights it is important to distinguish between:

1. The rights a parent may have as a human being. These will be called a parent's human rights and would include, for example, the right to life, free speech, etc.
2. The rights that a parent may have because he or she is a parent. These will be called a parent's parental rights and would include the right to decide where the child will live.

³⁶ BBC Newsonline (2006e).

³⁷ Layard and Dunn (2009b).

³⁸ BBC Newsonline (2008i).

³⁹ Barnado's (2008).

⁴⁰ Young Minds (2016).

⁴¹ See Scherpe (2009) for a comparative analysis of the notion of parental rights.

Most people will accept the first set of rights. You do not use your basic human rights by becoming a parent! The notion of parental rights is, however, more controversial.

When talking about a parent's parental rights it is important to be clear what might be meant by such a right. Take, for example, the parent's right to feed the child. By this could be meant one (or more) of three things:

1. Third parties or the state cannot prevent the parent carrying out this particular activity. So, no one is entitled to prevent a parent feeding the child what food the parent believes appropriate. This is often called a 'liberty'.
2. The acts of the parents are lawful. This means that although it may be unlawful for a stranger to feed a child,⁴² the parental right means it is not unlawful for a parent to feed a child. This can be regarded as a 'legal authority'.
3. The state must enable the parent to perform this activity. For example, in relation to the right to feed, the state is obliged to ensure that parents have sufficient money so that they can supply the food the child needs. This can be regarded as a 'claim right'.

In English law, it is rare to find parents having a claim right, but there are plenty of examples of liberties and legal authorities. A good example of the latter is that it is generally unlawful to deprive someone of their liberty (e.g. in a secure hospital) without a court order, but a parent with parental responsibility can provide legal authorisation in relation to child.⁴³

Having made these distinctions, we can explore further the nature of the legal consequences of parenthood.⁴⁴

B Are parents' rights and responsibilities linked?

In the House of Lords decision in *Gillick*, Lord Scarman argued that parents' rights exist only for the purpose of discharging their duties to children: 'Parental rights are derived from parental duty and exist only so long as they are needed for the protection of the person and property of the child.'⁴⁵ Lord Scarman is talking here about a parent's parental rights and is making the important point that any parental rights a parent has exist for the purpose of promoting children's interests. Andrew Bainham, however, suggests that the position is not that straightforward. He has suggested that parents have rights *because* they have responsibilities and they have responsibilities *because* they have rights.⁴⁶ By contrast, Michael Freeman puts the issue in terms of children's rights: children have a right to responsible parents.⁴⁷

Disagreeing with Lord Scarman, Alexander McCall Smith⁴⁸ has argued that not all parental rights exist for the benefit of children. He suggests that parents have two kinds of parental rights: parent-centred and child-centred rights. Child-centred rights are rights given to parents to enable them to carry out their duties. So, the parent has the right to clothe the child as an essential part of enabling the parent to fulfil his or her duty of ensuring the health of the child. By contrast, parent-centred rights exist for the benefit of the parent. One example McCall Smith gives is that of the parental right to determine the religious upbringing of children.

⁴² It is far from clear whether this would be a criminal offence (assuming the substance is not harmful), although it could be a battery.

⁴³ *Re D (A Child) (Deprivation of Liberty)* [2015] EWHC 922 (Fam).

⁴⁴ See Archard (2003: ch. 2) for a useful discussion of parents' rights.

⁴⁵ *Gillick v W Norfolk and Wisbech AHA* [1986] AC 112 at p. 184, *per* Lord Scarman.

⁴⁶ Bainham (1998a).

⁴⁷ Freeman (2008).

⁴⁸ McCall Smith (1990), discussed in Bainham (1994b).

He argues that this right is given to enable parents to bring up children as they think is most appropriate. Parent-centred rights, he explains, are justified not because they positively promote the welfare of the child, but because they cannot be shown to harm the child, but can benefit the parent. Such an approach has been supported by Andrew Bainham. He argues: 'It is simply not reasonable to take the position that those who bear the legal and moral burdens which society expects of a parent should be denied all recognition of their independent claims or interests.'⁴⁹

The distinction between child-centred and parent-centred rights is an important one, but there are difficulties with McCall Smith's approach. It can be difficult to decide whether a right is a parent-centred or child-centred right. Is the right to feed the child parent- or child-centred? Such a right is essential for the health of the child and so appears to be child-centred. But what kind of food is provided (for example, whether the parents choose to feed their children only vegetarian food) appears to be a parent-centred right. Further, it could be argued that parental rights do promote a child's welfare and do not exist solely for the benefit of parents. This is because many believe that living in a society where people like different kinds of food, have different religious beliefs, and different senses of humour is part of what makes life enjoyable. If so, it could be said to be in a child's interests to be brought up in a diverse society.

What is most useful about McCall Smith's distinction is that it stresses that there are certain areas of parenting over which parents do not have a discretion: they may not starve their child, the child must be adequately fed. There are, however, other areas of parenting where there is no state-approved standard of parenting (for example, what kind of clothes the child should wear; whether children should be allowed to drink small amounts of alcohol)⁵⁰ and so the issue is left to the discretion of each individual parent. So, while it is clear that if an issue relating to a child's upbringing comes before the court it will give 'respect' to the wishes of a responsible parent, at the end of the day it is for the court to decide what is in the best interests of the child.⁵¹ However, if the court finds that it is unclear what is in the best interests of the child, it will permit the resident parent to make the decision. The court may take the view that it cannot in practical terms force a parent to treat a child in a particular way and so to make an order would be pointless.⁵² This can mean that it is difficult for a non-resident parent to obtain a court order seeking to change the way the resident parent raises the child. So in *Re W (Residence Order)*⁵³ a non-resident parent who objected to the naturism of the resident parent and her new partner failed. Families have different attitudes about nudity and it was not appropriate for the court to intervene. Nonetheless, the Court of Appeal in *Re B (Child Immunisation)*⁵⁴ was willing to permit the vaccination of a child with the MMR vaccine, against the wishes of the resident parent, following an application for such an order by the non-resident parent. This may be explained on the basis that the order did not involve an invasion of the resident parent's rights on how to live her day-to-day life. It would, no doubt, have been quite different if the non-resident parent had sought an order that the resident parent feed the child at least five portions of fresh fruit or vegetables a day. It is unlikely that a court would make such a court order, despite the clear scientific evidence of the benefits of such a diet.⁵⁵

⁴⁹ Bainham (2009d).

⁵⁰ BBC Newsonline (2007d).

⁵¹ *Re A (Conjoined Twins: Medical Treatment)* [2000] 3 FCR 577.

⁵² *Re C (A Child) (HIV Test)* [1999] 2 FLR 1004, although see Strong (2000) for criticism of the argument on the facts of that case.

⁵³ [1999] 1 FLR 869.

⁵⁴ [2003] 3 FCR 156, discussed in O'Donnell (2004).

⁵⁵ See Probert, Gilmore and Herring (2009) for a detailed discussion of parental discretion.

Baroness Hale, in *R (On the Application of Williamson) v Secretary of State for Education and Employment*,⁵⁶ stated:

Children have the right to be properly cared for and brought up so that they can fulfil their potential and play their part in society. Their parents have both the primary responsibility and the primary right to do this. The state steps in to regulate the exercise of that responsibility in the interests of children and society as a whole. But 'the child is not the child of the state' and it is important in a free society that parents should be allowed a large measure of autonomy in the way in which they discharge their parental responsibilities. A free society is premised on the fact that people are different from one another. A free society respects individual differences.

Baroness Hale returned to theme in *The Christian Institute v The Lord Advocate*⁵⁷ seeing allowing children to be raised by their parents being key to a democratic state. She noted:

The first thing that a totalitarian regime tries to do is to get at the children, to distance them from the subversive, varied influences of their families, and indoctrinate them in their rulers' view of the world.

This is a remarkably different approach to parents' rights to that taken by Lord Scarman, mentioned above. In light of the points made by McCall Smith, it is respectfully suggested that it is also a more accurate one.

Jo Bridgeman has argued that any understanding of parental responsibilities should not be regarded as a set of abstract principles, but to flow from the parent–child relationship. She writes:

In any relationship, responsibilities are partly determined by social expectation, in part individually interpreted, and depend upon current needs . . . In contrast to traditional philosophy, which insists that what the individual ought to do should be determined according to abstract principles, it is argued that a moral concept of responsibility should be informed by practices of caring responsibility. That is, that what parents ought to do with regard to the care of their children's health should be informed by guidelines developed through consideration of what parents do in caring for their children's health.⁵⁸

This approach warns against trying to set out an abstract set of rights or responsibilities for parents, but rather suggests we look at the appropriate set of rights and responsibilities for the particular child–parent relationship at hand.

This debate over the nature of parents' rights and responsibilities has taken on an interesting dimension, with parents being held to account for their children. Parents are responsible for ensuring their children do not commit crimes, are not obese, and attend school. Helen Reece has suggested that: 'In the case of parents, in recent years their responsibility *for* their children has been undermined by their responsibility *to* external agencies.'⁵⁹ Indeed, she sees a move towards parental accountability:

The shift in the meaning of parental responsibility enables the law to be uniquely intrusive and judgmental, because every parent, on being held up to scrutiny, is found lacking. Accordingly the blurry spectrum of facilitation and support that has recently replaced clear-cut punishment and enforcement can be explained by its much better fit with parental responsibility as accountability.

⁵⁶ [2005] 1 FCR 498 at para 72.

⁵⁷ [2016] UKSC 51.

⁵⁸ Bridgeman (2007: 36).

⁵⁹ Reece (2009d).

The difficulty with this emphasis on the responsibility of parents to raise 'good citizens' is that it can become excessively burdensome for parents. It might even feed into 'hyper-parenting' where parents seek to take complete control of their children's lives to ensure their children become champion sports people; wonderful musicians; or brilliant scientists depending on the whim of the parents. I have argued against this phenomenon, suggesting:

Hyper-parenting and competitive parenting reflect the desire of parents to produce the ideal child. Government rhetoric, backed up by legal sanctions, reinforces this by emphasising that parents are responsible for their children in ways that are increasingly onerous and unrealistic. [I argue for] a different vision for parenthood. Parenthood is not a job for which parents need equipment and special training to ensure they produce the ideal product. It is a relationship where the parent learns from the child, is cared for by the child and is nourished by the child, as much as the parent does these things for the child. In short, parenthood should be framed not as a job, but as a relationship.⁶⁰

C Why do parents have rights and responsibilities?

It may seem self-evident that on the birth of a child the mother and father are under legal and moral obligations concerning the child and have the right to care for the child. But this need not be so. We could have a society where the state takes care of every child at birth in giant children's homes and the parents have no legal standing in relation to the child; or where on birth the child is handed over to the person who has scored highest in a parenting examination organised by the state. Most people would regard these alternatives with horror, but why is it that it seems so 'natural' that parents should be responsible for and should have rights over 'their' children? Philosophers and lawyers have struggled with this question and in truth there is no entirely satisfactory answer, but some of the suggestions are as follows:

(i) Children as property

Children can be seen as the fruit of the parent's labour through procreation and therefore as the property of the parent.⁶¹ This could be seen as the basis of parental rights. Indeed, Arden LJ⁶² has stated that the common law 'effectively treats the child as the property of the parent'.⁶³ At first sight, this is a rather unpleasant way of seeing children and such a theory has great difficulties.⁶⁴ We do not normally regard people as pieces of property which can be owned, and to describe parents' legal relationship with their children in the same terms used to describe their relationship with their cars seems clearly inappropriate.⁶⁵

Despite these objections, Barton and Douglas⁶⁶ argue that the property notion has something to be said for it. If a child is removed from a hospital by a stranger shortly after birth, parents might naturally say 'their' baby had been stolen. Our society is based on a strong belief that parents should normally be allowed to bring up 'their' children, and children can only be removed from parents if there is sufficient justification. Such claims are similar to those made in respect of items of property. However, despite some similarities there are many other ways in which children are treated quite differently from property. One can legally destroy one's computer but not one's child, for example.

⁶⁰ Herring (2017).

⁶¹ Montgomery (1988).

⁶² *R (On the Application of Williamson) v Secretary of State for Education and Employment* [2003] 1 FLR 726, 793.

⁶³ See Reece (2005) for an argument that no one has ever taken seriously the claim that children are property.

⁶⁴ Archard (2004b).

⁶⁵ Not least because once a child reaches majority parental rights cease.

⁶⁶ Barton and Douglas (1995).

(ii) Children on trust

This theory is that children have rights as people. As the child is unable to exercise these rights, the parents exercise these rights on the child's behalf. This version of explaining parents' rights is more popular than the property formulation.⁶⁷ It can take three forms:

1. The parents hold the rights of the child on trust for the child until he or she is old enough to claim these rights for him- or herself.
2. The parents hold the rights of the child on trust for the state. The parents care for the child until the child is able to become a citizen and a member of the state him- or herself.
3. The parents hold the rights of the child on a purpose trust – the purpose being the promotion of the welfare of the child.

The exact formulation matters little in practice, but the alternative approaches indicate important theoretical differences. The crucial difference is to whom the parent is responsible for the exercise of their rights: under 1 the parent is responsible to the child, whereas under 2 the parent is responsible to the state, while 3 leaves it unclear who has responsibility for enforcing the trust. The point to stress in all of these formulations is that the rights that parents exercise are not theirs, but those of the child and so should not be exercised for the benefit of the parent, but of the child.

There are three particular benefits of the trust analysis.⁶⁸ First, the law on trustees (fiduciaries) has been specifically developed to deal with fears that the trustee will misuse his or her powers as a trustee for his or her own benefit, rather than for the benefit of the subject of the trust. Such rules may be used by the law in ensuring that parents do not misuse their parental rights. Secondly, the law on trusts has developed realistic standards in policing the fiduciary's behaviour. The trustee cannot be expected always to make perfect choices, and is allowed a degree of discretion, but this does not permit the trustee to make manifestly bad decisions. These rules may also be useful in the parenting context. Thirdly, the trust approach means that the law would not need to see parents' interests and children's interests as in conflict.

There are, however, difficulties with the trusts approach. There are some uncertainties of a technical nature: precisely what is the subject of the trust? (the rights of the child is the most common answer); who created the trust? Other problems are more practical. It may be justifiable to place on fiduciaries heavy obligations never to consider their own interests when dealing with the trust property, but for parents the obligation to care for children is a 24-hour-a-day obligation, involving decisions which profoundly affect their own private lives. To require the same standards as of a trustee (and never to consider their own interests) may seem therefore overly onerous.⁶⁹ Further, although the law can readily establish a widely accepted standard on, for example, the duty of investment upon a trustee, finding community standards as to what is reasonable parenting would be well-nigh impossible on many issues.⁷⁰ Also, the trust model does not readily capture the notion that children may have the right to make decisions for themselves. This could be dealt with by stating that the number of rights which are the subject of the trust lessen as the child becomes older and the child is able to exercise these for him- or herself. Finally it has been claimed that the trust model fails to capture the sense of interconnection between parent and child.⁷¹

⁶⁷ See Holgate (2005).

⁶⁸ O'Donovan (1993).

⁶⁹ Schneider (1995).

⁷⁰ Schneider (1995).

⁷¹ Reshef (2013).

(iii) Imposition by society

The flip side of the question of why parents should have rights is to ask: 'Why should parents be under a duty to care for children?' Eekelaar argues that there are two aspects of a parent's obligations to care for a child.⁷² First, he suggests that every person owes a basic duty to other people to promote human flourishing. Secondly, on top of that basic duty there are special duties that society chooses to impose on particular people in particular circumstances. Our society chooses to impose special duties on parents to care for children. This is because children are vulnerable and need to be cared for by someone if society is to grow. Parents are best placed to provide the required care and that is widely accepted within our society. In other words, parents are only obliged especially to care for children because that is the choice of our society, not because of some underlying moral principle. Barton and Douglas⁷³ are unhappy with this approach because it suggests that there would be nothing morally objectionable for a state to require all children at birth to be removed from their parents and raised by state-approved agencies. They argue that most people would find such a system objectionable, even if it could be shown not to be particularly harmful to children, which is why they think that parents have something akin to an ownership right in respect of the child.

(iv) Voluntary assumption by parents

Barton and Douglas⁷⁴ argue that the key element behind imposing the responsibilities of parenthood is that parents have voluntarily accepted the obligation. A parent who does not want to care for the child is not necessarily obliged to. For example, they argue that if a mother gives birth to a child following a rape she is not obliged to raise the child, although she is under a duty to ensure the child receives some care, as would someone who came across an abandoned baby. However, any parent who chooses to undertake the parental role is under a duty to carry out the role reasonably well. There is much to be said for this theory, but it cannot completely explain why parents are under parental obligations.⁷⁵ If X notices that her neighbour has just had a baby and X steals her and undertakes to care for her, this does not give X the rights and duties of parenthood, despite her intent to be a parent. So, as Barton and Douglas⁷⁶ suggest, an element of the property argument or Eekelaar's argument needs to be relied upon in addition to the argument based on voluntary assumption of obligation if this theory is to explain the law's attitude towards parents.

(v) The 'extensions claim'

It can be said that the rights of parents to raise their children as they think fit is connected with the right that the state should not interfere with parents' private lives. As Charles Fried has put it, 'the right to form one's child's values, one's child's life plan and the right to lavish attention on the child are extensions of the right not to be interfered with in doing those things for one's self'.⁷⁷ The difficulty with such a claim is that it could be made in respect of close friends or fellow employees.⁷⁸

⁷² Eekelaar (1991b).

⁷³ Barton and Douglas (1995).

⁷⁴ Barton and Douglas (1995).

⁷⁵ See Chapter 6 for further discussion of such arguments in the context of child support.

⁷⁶ Barton and Douglas (1995).

⁷⁷ Fried (1978: 152).

⁷⁸ Archard (2003: 92).

(vi) Best interests of the child

This approach argues that the parents of the child should be those who are best placed to make decisions on the child's behalf. This may be those who are in a close caring relationship with the child.⁷⁹ One problem with this view is it does not explain why parents have a claim over a child at birth. It also might not explain the extent to which parents have discretion over how to raise the child. Further, it may be thought to give too much scope for the state to remove children from parents who are not acting in an ideal way. These are not necessarily overwhelming problems. We might say that it will cause a child trauma to be removed from parents unless they are causing a serious harm. That protects children from being too readily removed from their parents.

To conclude, it is surprisingly difficult to find a single theory that adequately explains why parents should be responsible for their children. Perhaps the answer lies in the strength of a combination of these views. So far we have been looking at parents' rights and responsibility from a theoretical perspective. What is the law itself?

6 Parental responsibility

Learning objective 3

Explain and evaluate the concept of parental responsibility

The law on the duties and rights of parenthood is covered by the notion of parental responsibility.

A What is parental responsibility?

Given that parental responsibility is one of the key concepts in family law, one might have thought it would be easy to define it, but it is not.⁸⁰ The root cause of the uncertainty is that the notion of parental responsibility is required to fulfil a wide variety of functions. Eekelaar has suggested that there are two aspects of parental responsibility:⁸¹

1. *What that responsibility means.* It encapsulates the legal duties and powers that enable a parent to care for a child or act on the child's behalf. Parents must exercise their rights 'dutifully' towards their children.
2. *Who has the responsibility?* It explains that the law permits the person with parental responsibility rather than anyone else to have parental responsibility. It determines who has the authority to make a decision relating to a child. As MacFarlane LJ has put it:

The Children Act 1989 does not place the primary responsibility of bringing up children upon judges, magistrates, CAFCASS officers or courts; the responsibility is placed upon the child's parents . . .⁸²

⁷⁹ Herring (2013a: ch. 6); Boyd (2016).

⁸⁰ See Probert, Gilmore and Herring (2009) for a useful set of essays on the topic. For an attempt to produce a Europe-wide definition of parental responsibility, see Boele-Woelki *et al.* (2007).

⁸¹ See Eekelaar (1991c).

⁸² *Re W (Children)* [2012] EWCA 999.

In an attempt to explain further what parental responsibility means, we need to look at the legislative and judicial understanding of parental responsibility:

(i) The Children Act

The starting point is s 3 of the Children Act 1989:

LEGISLATIVE PROVISION

Children Act 1989, section 3

In this Act 'parental responsibility' means all the rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation to the child and his property.

This leaves unanswered as many questions as it answers, because it fails to explain what those rights etc. are. The Law Commission decided against a statutory definition of the responsibilities of parents because they change from case to case and depend on the age and maturity of the child. For example, parental responsibility in relation to a disabled child might be thought to impose different obligations on a parent than if the child were not disabled.⁸³ In any event, it would not be possible to list all the responsibilities that attend parental responsibility. Rob George⁸⁴ suggested the following:

- naming the child;
- providing a home for the child;
- bringing up the child;
- having contact with the child;
- protecting and maintaining the child;
- administering the child's property;
- consenting to the taking of blood for testing;
- allowing the child to be interviewed;
- taking the child outside the jurisdiction in the United Kingdom and consenting to emigration;
- agreeing to or vetoing the issue of the child's passport;
- agreeing to the child's adoption;
- agreeing to the child's change of surname;
- consenting to the child's medical treatment;
- arranging the child's education;
- determining the child's religious upbringing;
- disciplining the child and sometimes take responsibility for harm caused by the child;
- consenting to the child's marriage;
- representing the child in legal proceedings;
- appointing a guardian for the child;
- disposing of the child's corpse.

⁸³ See Corker and Davis (2000) for a discussion of the legal treatment of disabled children.

⁸⁴ George (2012b: 131); building on Lowe and Douglas (2007: 377).

No doubt this is not a complete list, but it gives an indication of the range of issues for which parents may be responsible.

Rather than trying to list the issues over which parents can make decisions about a child, it may be more profitable to consider what limitations there are on the parental power to decide how to raise a child. The parent can make decisions about all areas of the child's life, subject to the following:

1. *The criminal law.* For example, it is a criminal offence to assault a child, which restricts the power⁸⁵ of parents to administer corporal punishment.
2. *Any requirement to consult or obtain the consent of anyone else with parental responsibility.* For example, s 13 of the Children Act 1989 requires a parent wishing to change a child's surname to obtain the consent of anyone else with parental responsibility, before doing so.
3. *The power of the local authority to take a child into care.* If a child is taken into care by a local authority, this effectively restricts the powers of parents to make decisions about their child's upbringing.⁸⁶
4. *Any orders of the court.* There may be a court order in force which deals with a specific aspect of a child's upbringing, in which case a parent may not act in a way contrary to the court order.⁸⁷
5. The ability of a child who is sufficiently mature (*Gillick*-competent) to make decisions for him- or herself. This will be discussed shortly.
6. The human rights of the child. Many interferences in the human rights of the child will also be a crime, but not all. In *RK v BCC*⁸⁸ it was held that although a parent could restrict the liberty of a child (for example, confining them to their bedroom), doing so to a significant extent might infringe their right to liberty under article 5 of ECHR.

(ii) Judicial understanding of parental responsibility

Unfortunately the courts have not been consistent in their understanding of parental responsibility. Some cases have described parental responsibility as a 'stamp of approval' to mark the 'status' which nature has bestowed on the father.⁸⁹ In *Re S (A Minor) (Parental Responsibility)* the Court of Appeal spoke of the way in which parental responsibility may create a positive image of the father in the child's eyes.⁹⁰ In *A Local Authority v A, B and E*⁹¹ a father who had been imprisoned for serious offences was allowed to retain parental responsibility in order to acknowledge his parental status, even though there were severe limitations on how it could be used. So understood, parental responsibility appears to be little more than a pat on the back and an official confirmation that the father is a committed father. This is especially so in cases where the father is given parental responsibility, but then denied contact with the child.⁹² If he is not going to see the child, he will be in no position to make decisions about

⁸⁵ Offences Against the Person Act 1861, s 47.

⁸⁶ See Chapter 12.

⁸⁷ Children Act 1989, s 2(8).

⁸⁸ [2011] EWCA 1305.

⁸⁹ For example, *Re S (A Minor) (Parental Responsibility)* [1995] 2 FLR 648, [1995] 3 FCR 225; *Re C and V (Minors) (Parental Responsibility and Contact)* [1998] 1 FCR 57.

⁹⁰ [1995] 2 FLR 648, [1995] 3 FCR 225.

⁹¹ [2011] EWHC 2062 (Fam).

⁹² See also the odd use of a joint residence order in *W v A* [2004] EWCA Civ 1587 even though the mother was to take the child to South Africa. The joint residence order, Wall LJ explained, would emphasise that both parents shared parental responsibility.

the child. Helen Reece looking at this case law has suggested that parental responsibility is being used as a form of therapy.⁹³ It is designed to make the father feel good about himself and his relationship with the child, even if, in reality, the relationship has little substance.

Other cases have, however, seen parental responsibility as about real rights and about the exercise of parental responsibility. For example, in *M v M (Parental Responsibility)*,⁹⁴ despite his obvious love and commitment to his child, the father was denied parental responsibility because he lacked the mental capacities to make decisions on behalf of the child. In *Re M (Sperm Donor Father)*⁹⁵ the court ordered contact to a father who did not know the child, and suggested that after a while the court might award him parental responsibility once he had got to know the child. The view that parental responsibility is about the making of decisions over children is further supported by those cases (which will be discussed shortly) which indicate that, with regard to important issues, the resident parent must consult with all parents with parental responsibility. In *Re G (Parental Responsibility Order)*,⁹⁶ where the father had no existing relationship with the child born as a result of a 'one-night stand', the judge granted him a 'suspended parental responsibility' which would come into effect if the mother failed to provide him with information about the child's health and education. On appeal, the Court of Appeal held that such a 'suspended parental responsibility' was not possible under the Children Act 1989; the judge would have to decide either to give or not to give parental responsibility.

As this discussion shows, there is a real tension in the case law as to whether parental responsibility is about real decision-making power, or whether it is of more symbolic value, recognising the father's commitment to the child. It is, therefore, perhaps reassuring to read Black J's statement: 'parental responsibility can be an inaccessible concept at the best of times, not infrequently difficult for lawyers to grasp and often very challenging for those who are not lawyers'.⁹⁷

The Family Justice Review noted that there was some uncertainty among parents about the meaning of parental responsibility and suggested: 'parents should be given a short leaflet when they register the birth of their child, providing an introduction to the meaning and practical implications of parental responsibility'.⁹⁸ They also recommended that on separation parents produce a parenting plan in which they agree how the child will be brought up.⁹⁹ This will give a little more substance to the ethereal concept of parental responsibility.

B Parental responsibility in practice

A person who does not have parental responsibility, of course, can act as a parent towards a child in a variety of ways. He or she can feed, clothe, educate, and play with the child. There are many men carrying out the tasks of parenthood, without parental responsibility. Indeed, no doubt, some people without parental responsibility act more like a parent towards a child than other people with parental responsibility. So when does it actually matter whether a person has parental responsibility? The following are rights and responsibilities that a father with parental responsibility has, which a father without parental responsibility does not have.¹⁰⁰

⁹³ Reece (2009c).

⁹⁴ [1999] 2 FLR 737.

⁹⁵ [2003] Fam Law 94.

⁹⁶ [2006] Fam Law 744.

⁹⁷ *Re D (Contact and Parental Responsibility: Lesbian Mothers and Known Father)* [2006] 1 FCR 556.

⁹⁸ Norgrave (2012).

⁹⁹ The Government agrees with these: Ministry of Justice (2012a).

¹⁰⁰ The issue relates only to fathers because all mothers have parental responsibility.

1. He can withhold consent to adoption and freeing for adoption.¹⁰¹
2. He can object to the child being accommodated in local authority accommodation¹⁰² and remove the child from local authority accommodation.¹⁰³
3. He can appoint a guardian.¹⁰⁴
4. He can give legal authorisation for medical treatment.¹⁰⁵
5. He has a right of access to his child's health records.
6. He can withdraw a child from sex education and religious education classes and make representations to schools concerning the child's education.¹⁰⁶
7. His consent is required if the child's mother seeks to remove the child from the jurisdiction.¹⁰⁷
8. He can sign a child's passport application and object to the granting of a passport.
9. He has sufficient rights in relation to a child to invoke the international child abduction rules.¹⁰⁸
10. He can consent to the marriage of a child aged 16 or 17.¹⁰⁹
11. He will automatically be a party to care proceedings.¹¹⁰
12. He can authorise a deprivation of liberty of the child (e.g. in a secure hospital).¹¹¹

Although this is a lengthy list, in fact, these rights do not arise very often in practice. The most common situations are where a third party wishes to treat a child in a particular way which would be a crime or tort without the consent of someone who has parental responsibility:¹¹² for example, a doctor wishes to provide medical treatment for a child.¹¹³ Ros Pickford¹¹⁴ found that over 75 per cent of fathers without parental responsibility were unaware that they lacked it. Many of these fathers were fathers of teenagers. This indicates that it is quite possible to carry out a full parental role without having to rely on parental responsibility. Notably, even those fathers who were aware they lacked parental responsibility few went on to seek it. Again this suggests that it is of little relevance in day-to-day life.

If parental responsibility is of limited practical significance, then why is it so important? John Eekelaar sums up the position well: 'parental responsibility can best be understood

¹⁰¹ Adoption Act 1976, s 72.

¹⁰² Children Act 1989, s 20(7).

¹⁰³ Children Act 1989, s 20(8).

¹⁰⁴ Children Act 1989, s 5.

¹⁰⁵ Eekelaar (2001d: 429) argues that a father without parental responsibility can give effective consent to medical treatment because he has a duty to promote the health of his children and that duty can only realistically be imposed if he has the right to provide the consent necessary for that treatment. See Probert, Gilmore and Herring (2009) for a questioning of this view.

¹⁰⁶ Education Act 1996. Eekelaar (2001d) argues that a father without parental responsibility can make decisions in relation to the child's education.

¹⁰⁷ Children Act 1989, s 13.

¹⁰⁸ See Chapter 10.

¹⁰⁹ Marriage Act 1949, s 3.

¹¹⁰ A father without parental responsibility can also be a party in certain limited circumstances: Children Act 1989, Appendix 3.

¹¹¹ *Re D (A Child) (Deprivation of Liberty)* [2015] EWHC 922 (Fam).

¹¹² Or the consent of the court.

¹¹³ *B v B (Grandparent: Residence Order)* [1992] 2 FLR 327, [1993] 1 FCR 211.

¹¹⁴ Pickford (1999).

as legal recognition of the exercise of social parenthood. It thus comprises a factual (recognition of a state of affairs) and a normative (giving the state of affairs the "stamp of approval") element'.¹¹⁵ As this implies, parental responsibility is more about confirming an existing situation or sending a message of approval to the parent, rather than actually creating rights. However, as most unmarried fathers are unaware of whether they have parental responsibility or not,¹¹⁶ the effectiveness of such a stamp of approval may be questioned.

C The rights of a parent without responsibility

Although parental responsibility is the primary source of parental rights, there are rights and responsibilities that flow simply from being a parent. These are the benefits and responsibilities that follow from parenthood in and of itself. Notice two things about this list. First, these rights apply to a parent, whether or not they have parental responsibility. Second, that most of these do not apply to a person who has parental responsibility but is not a parent.

1. A parent has a right to apply without leave for a s 8 order.¹¹⁷
2. A parent has rights of succession to the estate of the child.¹¹⁸
3. There is a presumption that a child in local authority care should have reasonable contact with each parent.¹¹⁹
4. On application for an emergency protection order, there is a duty to inform the child's parents.¹²⁰
5. A parent can apply to discharge an emergency protection order.¹²¹
6. Rights of citizenship pass primarily through parentage.
7. Parents are liable persons under social security legislation.
8. A parent cannot marry his or her child.¹²²
9. The criminal law on incest forbids sexual relations between parents and children.
10. A parent who is not living with his or her child will be liable to make payments under the child support legislation.

As can be seen from this list, the parent without parental responsibility has some rights, but they do not directly relate to the child's day-to-day upbringing. As Baroness Hale, in *Re G (Residence: Same-Sex Partner)*,¹²³ puts it:

To be the legal parent of a child gives a person legal standing to bring and defend proceedings about the child and makes the child a member of that person's family, but it does not necessarily tell us much about the importance of that person to the child's welfare.

¹¹⁵ Eekelaar (2001d: 428).

¹¹⁶ Pickford (1999).

¹¹⁷ Children Act 1989, s 10(4).

¹¹⁸ See Chapter 13.

¹¹⁹ Children Act 1989, s 34.

¹²⁰ Children Act 1989, s 44(13).

¹²¹ Children Act 1989, s 45(8).

¹²² Marriage Act 1949, s 1.

¹²³ [2006] 1 FCR 681 at para 32.

D The extent of parental responsibility

Parental responsibility is for life. Once a parent has parental responsibility, this cannot be removed, except in a few special cases.¹²⁴ Even if the parent has behaved in such a way that the child has to be taken into care, he or she will not lose parental responsibility.¹²⁵ However, in *A Local Authority v D*¹²⁶ the parents had caused serious emotional abuse to their son. He was taken into care. Although the parents still retained parental responsibility the abuse was such Munby J held they were not in a position to consent to his deprivation of liberty. The statutory basis for this finding is unclear, nor is it clear whether it can apply to other kinds of cases. Notably Munby J was not saying their bad conduct had led to the removal of their parental responsibility. It had just, somehow, limited its effectiveness.

Although a parent cannot surrender parental responsibility, it is possible to delegate it.¹²⁷ The fact that a new person acquires parental responsibility does not mean that anyone else loses it.¹²⁸ As shall be seen later, the nature of parental responsibility may change with the age and development of the child.

7 Sharing parental responsibility

It is clear from the scheme of the Children Act 1989 that there will be many situations where several people have parental responsibility. Although a child can have only two parents, any number of people can have parental responsibility. The question therefore arises whether each person with parental responsibility can exercise his or her parental responsibility alone or whether it is necessary to have the agreement of all those with parental responsibility in respect of each decision concerning the upbringing of the child.¹²⁹

Although there are a few exceptions, s 2(7) appears to give a clear answer:

LEGISLATIVE PROVISION

Children Act 1989, section 2(7)

Where more than one person has parental responsibility for a child, each of them may act alone and without the other (or others) in meeting that responsibility; but nothing in this Part shall be taken to affect the operation of any enactment which requires the consent of more than one person in a matter affecting the child.

There are two crucial points that appear clear from this subsection. The first is that, except where the statute provides otherwise, each person with parental responsibility can exercise parental responsibility alone without obtaining the consent of the others with parental responsibility or even consulting them. It has been suggested that in this way the Act promotes 'independent' rather than 'co-operative' parenting.¹³⁰

¹²⁴ If a non-parent has parental responsibility through a residence order, then when the order comes to an end the parental responsibility ceases. In *Re F (Indirect Contact)* [2006] EWCA Civ 1426 a father's parental responsibility (given to him under a parental responsibility order) was revoked after a sustained campaign of violence and harassment against the mother and child.

¹²⁵ See Chapter 11.

¹²⁶ [2015] EWHC 3125 (Fam).

¹²⁷ Children Act 1989, s 2(9).

¹²⁸ Children Act 1989, s 2(6), although an adoption order will end any existing parental responsibility.

¹²⁹ See the discussion in *Maidment* (2001b).

¹³⁰ Bainham (1990).

The second is that there is no hierarchy among those with parental responsibility. So, in the Children Act 1989 there is no preference given to mothers over fathers, or between those with whom the child lives and those with whom the child does not live. If a child who normally lives with her mother is visiting her father (with parental responsibility), he can take her to a church service, arrange for her to have an unusual haircut, or feed her meat – even if the mother strongly opposes these activities. The mother could apply for a prohibited steps order¹³¹ to prevent the father doing this, but in the absence of such an order he is free to do this.¹³² Similarly, when the child lives with the mother, she can bring up the child as she believes best.¹³³

There are a number of exceptions to the rule that there is no need to consult, although in all of these situations if the consent is not provided then the court may be able to dispense with the consent and authorise the act:

1. Adoption and freeing for adoption can take place only if *all* parents¹³⁴ with parental responsibility consent.¹³⁵
2. If the child aged 16 or 17 wishes to marry, then *all* parents with parental responsibility and any guardians must consent.¹³⁶
3. If the child is to be accommodated by the local authority, then *none* of those with parental responsibility must have objected.¹³⁷
4. Section 13 of the Children Act 1989 states that if a residence order has been made and one party wishes to change the surname of the child then the consent of all those with parental responsibility is required.¹³⁸ In *Re PC (Change of Surname)*¹³⁹ it was suggested that even if there was not a residence order in force then it was necessary to have the consent of all those with parental responsibility.¹⁴⁰
5. Section 13 of the Children Act 1989 states that if there is a residence order it is not possible to remove a child from the United Kingdom without the consent of all those with parental responsibility.¹⁴¹ It is arguable, by analogy with the decisions relating to surnames, that in order to remove a child from the United Kingdom the consent of all those with parental responsibility is required.
6. There are cases which suggest that the consent of all those with parental responsibility is required for any decision which is of fundamental importance to the child and is irreversible.¹⁴² Which decisions are of fundamental importance? This will, it seems, be decided on a case-by-case basis. We know the following are issues of fundamental importance:
 - *Education.* In *Re G (A Minor) (Parental Responsibility: Education)*¹⁴³ it was suggested that there is a duty to consult over long-term decisions relating to education. Here the question was whether the child should be moved from one school to another.

¹³¹ Under Children Act 1989, s 8.

¹³² A local authority has a duty to consult parents and people with parental responsibility about all decisions unless this is not reasonably practicable.

¹³³ There is no question of the parties being bound by pre-birth agreements: *Re W (A Minor) (Residence Order)* [1992] 2 FLR 332.

¹³⁴ And guardians.

¹³⁵ But not others with parental responsibility: Adoption Act 1976, s 16; Children Act 1989, ss 12(3), 33(6).

¹³⁶ Marriage Act 1949, s 3(1A).

¹³⁷ See Chapter 11.

¹³⁸ Children Act 1989, s 13.

¹³⁹ [1997] 2 FLR 730.

¹⁴⁰ Indeed (as we shall see in Chapter 10), it may be necessary to obtain the consent of every parent.

¹⁴¹ Children Act 1989, s 13.

¹⁴² Eekelaar (1998).

¹⁴³ [1994] 2 FLR 964, [1995] 2 FCR 53.

- *Circumcision*. In *Re J (Specific Issue Orders)*¹⁴⁴ the Court of Appeal held that if a male child¹⁴⁵ is to undergo a circumcision all of those with parental responsibility should be consulted.
- *Changing the child's surname*. Consultation with all those with parental responsibility is required before a child's surname can be changed.¹⁴⁶
- *The MMR vaccine*. If the resident parent decides not to give her child the MMR vaccine she should consult with the non-resident parent if he has parental responsibility.¹⁴⁷

It is arguable that these decisions fly in the face of s 2(7) of the Children Act 1989,¹⁴⁸ which makes it clear that, in the absence of statutory provisions to the contrary, a parent can exercise parental responsibility without consultation. However, MacFarlane LJ has recently emphasised that respecting the rights of the other spouses is part of parental responsibility: 'where two parents share parental responsibility, it will be the duty of one parent to ensure that the rights of the other parent are respected, and vice versa, for the benefit of the child'.¹⁴⁹

MacFarlane LJ, speaking extra judicially, said:¹⁵⁰

I cannot identify any part of the law that gives one parent an automatic right as against the other parent with respect to their child. Parental rights do exist, but they are rights as between parents and non-parents. They are the right to exercise the responsibility and do not include the right to override the status of the other parent. Similarly, any parental 'powers' involve the power to exercise parental responsibility and not a power to determine important matters irrespective of the status of the other parent who has joint, co-terminus and equal parental responsibility for the same child . . . The Children Act 1989 does not place the primary responsibility of bringing up children upon judges, magistrates, CAFCASS officers or courts; the responsibility is placed upon the child's parents.

It appears from the case law that the duty on the resident parent is to consult, rather than obtain, the non-resident parent's consent. The significance of this consultation requirement is therefore that it gives the non-resident parent the opportunity to bring legal proceedings to prevent the resident parent from acting in the proposed way. However, it is far from clear what the court will do if the resident parent fails to consult. For example, if the mother arranges for the circumcision without consultation with the father, there is not much the law can do. The requirement to consult appears unenforceable in many cases.

A Are all parental responsibilities equal?

It seems clear from s 2(7) of the Children Act 1989 that each parent with parental responsibility is equal. However, in *Re P (A Minor) (Parental Responsibility Order)*¹⁵¹ the courts have suggested that the parent with whom the child lives is to have the power to decide 'day-to-day' issues relating to the child. So the non-residential parent cannot use his or her parental

¹⁴⁴ [2000] 1 FLR 517, [2000] 1 FCR 307.

¹⁴⁵ Female circumcision is forbidden under the Female Genital Mutilation Act 2003.

¹⁴⁶ *Re PC (Change of Surname)* [1997] 2 FLR 730.

¹⁴⁷ *Re B (A Child) (Immunisation)* [2003] 3 FCR 156.

¹⁴⁸ Eekelaar (2001d).

¹⁴⁹ *Re W (Children)* [2012] EWCA 999.

¹⁵⁰ The Hershman Levy Memorial Lecture 2014 at <http://www.judiciary.gov.uk/wp-content/uploads/2014/06/speech-by-rt-hon-sir-andrew-mcfarlane-memorial-lecture.pdf>

¹⁵¹ [1994] 1 FLR 578.

responsibility to upset the day-to-day parenting of the residential parent.¹⁵² In *Re C (Welfare of Child: Immunisation)*, Sumner J stated: 'Where parents do not live together, the court recognises the importance of the particular bond which exists in most cases between a child and the parent with the principal care of the child . . . It does not give that parent greater rights. It does mean that the court will take care to safeguard and preserve that bond in the best interests of the child.'¹⁵³ In *A v A (Children) (Shared Residence Order)*¹⁵⁴ it was suggested that a resident parent should not interfere in day-to-day issues in the way the non-resident parent treats the child during contact sessions.

An interesting issue arose in *Re Jake (Withholding Medical Treatment)*,¹⁵⁵ do parents who lack mental capacity lose parental responsibility? That case involved medical treatment and the court was deciding whether treatment was in a child's best interests. They held that despite the difficulties the parents had, their views and wishes had to be taken into account by the court, just as the court would take any parents' views into account. They did not express a view on the harder question of whether a third party, such as a doctor, could rely on the consent of a parent with parental responsibility to give legal justification for treatment, or whether if there was a dispute between a parent with capacity and one without, the views of the one with capacity would carry greater weight.

B Is the law in a sound state?

If a residential parent (the parent with whom the child lives) exercises parental responsibility in a way objected to by the non-residential parent, the latter could bring the matter before the court by way of a specific issue order or prohibited steps order. There is, therefore, a sense that it matters little whether there is a formal duty to consult because, whether or not there is a requirement to consult, if those with parental responsibility disagree, the matter will be brought before a court. There are, however, three points of practical significance in whether or not there is a duty to consult. The first is that it determines whose responsibility it is to bring the matter before the court. For example, if the law is that one parent cannot change the name of the child without the other's consent then the parent seeking to change the name will have the burden of bringing the matter before the court. However, if the law was that a parent could independently change a name, then it would be the responsibility of the person objecting to the change to bring the matter before the court. Secondly, the issue of who should be liable to pay the legal costs of both parties if the matter is brought before the court may depend on whether there was a duty to consult, with which a parent did not comply. Thirdly, there is the 'message' that the law wishes to send out. Does the law wish to encourage co-operative or independent parenting?

The following are some of the approaches that the law could take regarding those who share parental responsibility:

1. All those with parental responsibility must agree on every issue relating to the child.
2. The residential parent can make all decisions relating to the child, and the non-residential parent has rights only to bring a matter to court.
3. The residential parent should make all important decisions, although the non-residential parent can make day-to-day decisions when the child is spending time with him or her.

¹⁵² For example, *Re J (Specific Issue Orders)* [2000] 1 FLR 517, [2000] 1 FCR 307.

¹⁵³ [2003] 2 FLR 1054 at para 305.

¹⁵⁴ [2004] 1 FCR 201 at para 118.

¹⁵⁵ [2015] EWHC 2442 (Fam).

4. The parents must consult on all important issues, otherwise each parent can take day-to-day decisions when the child is spending time with him or her.
5. Each parent with parental responsibility can exercise parental responsibility independently and does not need to consult with the other over any issue.

It should be clear that approach 1 is impractical. It would not be realistic to expect a parent to contact and discuss with the other parent the contents of every meal, for example. Approach 2 is likewise impractical, at least if the non-residential parent is to have contact with the child. The choice is therefore between the last three options. The issues seem to be as follows:

DEBATE

Should parenting be co-operative?

1. *Fears of misuse.* There are fears that giving the non-residential parent a say in how the child is brought up by the residential parent could constitute a major infringement of the rights of private life of the residential parent. For example, if the non-residential parent could compel the vegetarian parent to prepare meat for the child to eat, this may be seen as an infringement of the residential parent's rights. There are particular concerns in cases where there has been domestic violence, where there is evidence that abusers continue to exercise control over their victims through whatever route is available.¹⁵⁶ Giving powers to the non-residential parent to direct how the residential parent brings up the child is therefore open to abuse.
2. *Involvement of the non-residential parent.* There are concerns that the non-residential parent will be excluded from the child's life. If there is no duty to consult, the non-residential parent may not even be aware that there is a crucial issue to be decided in respect of the child and will not be able to carry out an effective parenting role.
3. *Lack of knowledge of non-residential parent.* Some claim that non-residential parents do not know the child well enough to make important decisions in relation to the child. Of course, this is a generalisation, but the law in this area must rest on generalisations and it may well be argued that, as a general rule, the residential parent will be better poised to make a decision in respect of a child than a non-residential parent.
4. *Onerous obligation on residential parent.* Some are concerned that an obligation to obtain consent could be unduly time-consuming, stressful and burdensome for the residential parent, especially where the other parent may be difficult to contact.¹⁵⁷
5. *Disruption for child.* There is a concern that permitting each parent to exercise parental responsibility will lead to disruption for the child by constantly changing lifestyles. For example, in *Re PC (Change of Surname)*¹⁵⁸ it was argued that if each parent with parental

¹⁵⁶ See Chapter 7.

¹⁵⁷ Law Commission Report 175 (1988: para 2.10).

¹⁵⁸ [1997] 2 FLR 730, [1997] 3 FCR 544.

responsibility could change the child's surname, this would lead to the child's name constantly being changed, first by one parent and then by the other. Similarly, a child receiving religious instruction from one parent and conflicting religious instruction from another could feel confused and pressurised.

6. *Law should stress 'doing'*. Smart and Neale¹⁵⁹ criticise the law for failing to place sufficient emphasis on the 'doing' aspects of caring. They argue it is wrong to stress 'caring about' children above 'caring for' children. They see a danger in giving non-residential parents rights, without having to perform the day-to-day care for children. Indeed the burden of ensuring there is co-operation seems to fall on the resident parent. It is she who must find and discuss the issue with the non-resident parent.
7. *Ignorance of the law*. Given the ignorance of the requirements of family law, it seems wrong to impose an obligation to consult, as it is likely to be unknown by most people. It would therefore be honoured more in the breach than the observance and would, as suggested above, effectively be unenforceable.
8. *Reality*. It could be argued that there is little the law can do here. Whether there will be co-operative or independent parenting will depend on the relationship and personality of the parties, rather than the requirements of the law. Compelling consultation or co-operation is unlikely to be productive.

Questions

1. *Can the law do anything to encourage co-operative parenting?*
2. *If one parent spends more time with the child than the other should they have a greater say in disputes over the child's upbringing?*

Further reading

Read **Bainham** (2009d) for a discussion of whether parents have rights.

As can be seen from the above, there are strong arguments on both sides. Whatever the law is, there will be some cases where a consultation requirement will be beneficial and others where it is open to abuse. This key issue is whether it is worth running the risks of misuse in the name of sending a message encouraging co-operation. Further, although we may generally want parents to consult over important issues concerning their children's upbringing, that does not mean that we should turn that into a legal obligation. Also, it is arguable that if there is to be a duty to consult we need to be a little more careful in deciding who should have parental responsibility.¹⁶⁰ Should the father in *Re S (A Minor) (Parental Responsibility)*,¹⁶¹ who was known to be a possessor of paedophilic literature, be consulted about his daughter's medical treatment? Even if he has not seen her for years? Should a mother be required to consult a father if he has been violent towards her in the past?

¹⁵⁹ Smart and Neale (1999a).

¹⁶⁰ Eekelaar (2001d).

¹⁶¹ [1995] 2 FLR 648, [1995] 3 FCR 225.

8 The welfare principle

Learning objective 4

Analyse the welfare principle

At the heart of the law relating to children is the principle that whenever the court considers a question relating to the upbringing of children the paramount consideration should be the welfare of the children. Section 1(1) of the Children Act 1989 clearly states the central principle of child law:

LEGISLATIVE PROVISION

Children Act 1989, section 1(1)

When a court determines any question with respect to–

- (a) the upbringing of a child; or
- (b) the administration of a child's property or the application of any income arising from it, the child's welfare shall be the court's paramount consideration.

This apparently simple principle is, in fact, complex. Several issues require explanation.

A What does 'welfare' mean?

The Children Act has attempted to add some flesh to the concept of a child's welfare.¹⁶² There is no definition of 'welfare' in the Children Act 1989, although there is a list of factors which a judge should consider when deciding what is in the child's welfare. These are listed in s 1(3):

LEGISLATIVE PROVISION

Children Act 1989, section 1(3)

- (a) the ascertainable wishes and feelings of the child concerned (considered in the light of his age and understanding);
- (b) his physical, emotional and educational needs;
- (c) the likely effect on him of any change in his circumstances;
- (d) his age, sex, background and any characteristics of his which the court considers relevant;
- (e) any harm which he has suffered or is at risk of suffering;
- (f) how capable each of his parents, and any other person in relation to whom the court considers the question to be relevant, is of meeting his needs;
- (g) the range of powers available to the court under this Act in the proceedings in question.

(The interpretation of these factors is discussed in detail in Chapter 10.)

¹⁶² For an interesting discussion that it would be preferable to talk in terms of well-being rather than welfare, see Eekelaar (2002a: 243).

B What does 'paramount' mean?

The courts' interpretation of the word 'paramount' is based on the decision of the House of Lords in *J v C*,¹⁶³ which considered the meaning of the words 'first and paramount' in the Guardianship of Infants Act 1925. Lord McDermott explained that the phrase means:

more than the child's welfare is to be treated as the top item in a list of items relevant to the matter in question. [The words] connote a process whereby, when all the relevant facts, relationships, claims and wishes of parents, risks, choices and other circumstances are taken into account and weighed, the course to be followed will be that which is most in the interests of the child.¹⁶⁴

This clearly expresses the view that the welfare of the child is the sole consideration.¹⁶⁵ As was stated by the Court of Appeal in *Re P (Contact: Supervision)*,¹⁶⁶ 'the court is concerned with the interests of the mother and the father only in so far as they bear on the welfare of the child'. Baroness Hale in *Re G (Children) (Residence: Same-sex Partner)*,¹⁶⁷ following *J v C*, explained that section one means that the welfare of the child 'determines the course to be followed.' *J v C*¹⁶⁸ itself was especially significant because the House of Lords made it quite clear that the interests of the children outweigh the interests of even 'unimpeachable' (perfect) parents.¹⁶⁹ So whether an order is 'fair' or infringes the rights of parents is not relevant; all that matters is whether the order promotes the interests of children. Notice this does not mean that parents are irrelevant to the welfare principle because if a parent is harmed this may mean they will be a less effective parent and that will harm the parent. So the parents interests can be taken into account, but if they directly impact on the child. A good example of this point is *Re C (A Child)*¹⁷⁰ where a father had been imprisoned after abusing his child (C). The first instance judge had ordered that he could not have contact with C, but that he should be sent a passport size photograph of C every year. The Court of Appeal overturned the order. Although the photograph would provide comfort to C, in no way did it promote C's welfare. The order could not be justified based on the benefit to the father.

The interpretation adopted by the courts is surprising because, had Parliament intended welfare to be the only consideration, it could have said so. There was no need to interpret the word 'paramount' to mean sole. It is interesting to note that the UN Convention on the Rights of Children, in article 3, states that the child's welfare should be the primary consideration. This appears to place slightly less weight on children's interests than s 1 of the Children Act 1989.

Of course, when the courts are told they are to promote the child's welfare, they are not fairies with a magic wand and must deal with the situation in which the child finds themselves. In *M v H (A Child) (Educational Welfare)*¹⁷¹ Charles J suggested that often all the courts were able to do was to find the 'least bad solution' for the child. The ideal solution may be for the parents to live together happily and raise the child together. That may not be possible and the court would have to select from the available options the one that caused least harm.

¹⁶³ [1970] AC 668. The background to the decision is helpfully discussed in Lowe (2011).

¹⁶⁴ At pp 710–11.

¹⁶⁵ See, for example, Lord Hobhouse in *Dawson v Wearmouth* [1999] 1 FLR 1167.

¹⁶⁶ [1996] 2 FLR 314 at p. 328.

¹⁶⁷ [2006] UKHL 43.

¹⁶⁸ [1970] AC 668.

¹⁶⁹ Freeman (2000a) notes that unimpeachable parents were always fathers.

¹⁷⁰ [2012] EWCA 918.

¹⁷¹ [2008] 2 FCR 280.

C The nature of welfare

The leading case on the nature of welfare is the following:

CASE: *Re G (Education: Religious Upbringing)* [2012] EWCA Civ 1233

The parents had raised their five children aged between 3 and 11 within the Chasssidic (or Chareidi) community of ultra-orthodox Jews. The marriage broke down and the children lived with the mother, although they had extensive contact with the father. The mother left the Chareidi community, although she considered herself an Orthodox Jew. The children attended a single-sex ultra-orthodox school attended by other Chareidi community children. The parents disagreed over where the children should attend school and with whom the children should live.

Munby LJ in deciding the children should live with the mother, with contact with the father, made some wide-ranging comments on the nature of the welfare of children. This summary will focus on those particular comments.

He emphasised that welfare in s 1 of the Children Act 1989 should be understood broadly to cover the child's well-being:

Evaluating a child's best interests involves a welfare appraisal in the widest sense, taking into account, where appropriate, a wide range of ethical, social, moral, religious, cultural, emotional and welfare considerations. Everything that conduces to a child's welfare and happiness or relates to the child's development and present and future life as a human being, including the child's familial, educational and social environment, and the child's social, cultural, ethnic and religious community, is potentially relevant and has, where appropriate, to be taken into account. The judge must adopt a holistic approach (para 27).

Somewhat controversially he made it clear this is not simply a matter of happiness:

I have referred to the child's happiness. Very recently, Herring and Foster¹⁷² . . . have argued persuasively that behind a judicial determinations of welfare there lies an essentially Aristotelian notion of the 'good life'. What then constitutes a 'good life'? There is no need to pursue here that age-old question. I merely emphasise that happiness, in the sense in which I have used the word, is not pure hedonism. It can include such things as the cultivation of virtues and the achievement of worthwhile goals, and all the other aims which parents routinely seek to inculcate in their children (para 29).

Further that the child's welfare has to be considered in their relational context:

The well-being of a child cannot be assessed in isolation. Human beings live within a network of relationships. Men and women are sociable beings. As John Donne famously remarked, 'No man is an Island . . .' Blackstone observed that 'Man was formed for society'. And long ago Aristotle said that 'He who is unable to live in society, or who has no need because he is sufficient for himself, must be either a beast or a god'. As Herring and Foster comment, relationships are central to our sense and understanding of ourselves. Our characters and understandings of ourselves from the earliest days are charted by reference to our relationships with others. It is only by considering the child's network of relationships that

¹⁷² Herring and Foster (2012).

their well-being can be properly considered. So a child's relationships, both within and without the family, are always relevant to the child's interests; often they will be determinative (para 30).

The judge, when deciding about a child's welfare had to act as a 'judicial reasonable parent' and have regard to the general standards in 2012 and the 'ever-changing nature of the world'. He expounded three aspects of this:

First, we must recognise that equality of opportunity is a fundamental value of our society: equality as between different communities, social groupings and creeds, and equality as between men and women, boys and girls. Second, we foster, encourage and facilitate aspiration: both aspiration as a virtue in itself and, to the extent that it is practical and reasonable, the child's own aspirations. Far too many lives in our community are blighted, even today, by lack of aspiration. Third, our objective must be to bring the child to adulthood in such a way that the child is best equipped both to decide what kind of life they want to lead – what kind of person they want to be – and to give effect so far as practicable to their aspirations. Put shortly, our objective must be to maximise the child's opportunities in every sphere of life as they enter adulthood. And the corollary of this, where the decision has been devolved to a 'judicial parent', is that the judge must be cautious about approving a regime which may have the effect of foreclosing or unduly limiting the child's ability to make such decisions in future (para 80).

Applying these principles to the case, the children should not be brought up in the Chareidi school which discouraged children pursuing further education and limited the opportunities later in life, especially for girls. In saying that he emphasised that the courts were neutral as between religions.

Re G (Education: Religious Upbringing) is striking because it is rare for the courts to discuss the actual meaning of welfare, apart from making some general statements about the courts having to take all the circumstances into account.¹⁷³ Several points are notable. The first is the emphasis placed on equality as an aspect of welfare and particularly that boys and girls should have an equal opportunity to fulfil their dreams. This highlights a tension between the statement that the court will not choose between religions and a desire to promote sex equality. In effect the judgment indicates that members of religious groups that treat girls in a disadvantageous way as compared with boys, will find it difficult to win arguments over upbringing if the other parent does not subscribe to such a religion. Notably in this case *Munby LJ* was clear that the mother's educational plans were 'better'.

Second, the Court of Appeal emphasised that the network of the relationships were central to a child's well-being. One of the issues in relation to education which could have been made is that had the father won the argument over education, the children would be raised in a school which would have been critical of the way of the life they had with the mother. As *Tamara Tolley*¹⁷⁴ suggests, had the children lived with the mother and it was she who wanted the children to go to the ultra-orthodox school, the dispute over education might have been decided different.

¹⁷³ See *Tolley* (2014) for a helpful discussion of the case.

¹⁷⁴ *Tolley* (2014).

Third, the court clearly saw as an important part of welfare that the children have an 'open future'; that they could choose from a range of options how they wished to live their lives. The ultra-orthodox school would have severely limited their choices as few pupils from the school took up jobs which were not related to their faith community, and very few took up professions such as law or medicine. That was virtually unheard of in relation to girls in particular.¹⁷⁵

A final point is that the court acknowledges that developing virtues is an important part of childhood. It seems that welfare is not just about ensuring children are happy, but also ensuring that children have good characters.

D When does the welfare principle apply?

The welfare principle applies when the court is asked to determine any question that concerns a child's upbringing or the administration of their property. Bracewell J in *Re X (A Child) (Injunctions Restraining Publication)*¹⁷⁶ stated that upbringing means 'the bringing up, care for, treatment, education, and instruction of the child by its parents or by those who are substitute parents'. It is of wide application and not restricted to the Children Act 1989. For example, s 1(1) applies where the court considers making an order under s 8 of the Children Act 1989; where the High Court is exercising the inherent jurisdiction;¹⁷⁷ and when the court considers public law orders such as care orders.¹⁷⁸ Rather than listing all the orders when the welfare principle applies, it is in fact easier to consider the issue from the opposite perspective and ask when the welfare principle does not apply.

E When does the welfare principle not apply?

The welfare principle does not apply in the following cases:

1. *If the issue does not relate to the child's upbringing.* It is clear from the wording of s 1 of the Children Act 1989 that the welfare principle applies only if the issues involve the upbringing of the child. Even if the issue does not involve the upbringing of the child, the court may still pay special attention to the welfare of the child, although the welfare of the child will not be paramount.¹⁷⁹ It is not always easy, however, to know whether an issue relates to the upbringing of the child, as is clear from some of the following examples:

- (a) In *Re A (Minors) (Residence Orders: Leave to Apply)*¹⁸⁰ the Court of Appeal held that deciding whether or not to grant leave to an adult to apply for an order under s 8 of the Children Act 1989 was not an issue that involved the upbringing of a child and so the child's welfare was not paramount. However, the welfare principle does apply where a child is seeking leave to bring a s 8 application.¹⁸¹

¹⁷⁵ Although see Tolley (2014) who argues there is evidence that both male and female member of the Chareidi community go to university.

¹⁷⁶ [2001] 1 FCR 541 at 546f.

¹⁷⁷ *Re T (A Minor) (Wardship: Medical Treatment)* [1997] 1 FLR 502, [1997] 2 FCR 363.

¹⁷⁸ *Humberside CC v B* [1993] 1 FLR 257, [1993] 1 FCR 613, per Booth J; applied in *F v Leeds City Council* [1994] 2 FLR 60, [1994] 2 FCR 428.

¹⁷⁹ *S v S, W v Official Solicitor (or W)* [1972] AC 24; *Richards v Richards* [1984] AC 174.

¹⁸⁰ [1992] 2 FCR 174, [1992] 2 FLR 154.

¹⁸¹ *Re SC (A Minor) (Leave to Seek Section 8 Orders)* [1994] 1 FCR 837, [1994] 1 FLR 96; *Re C (Residence: Child's Application for Leave)* [1995] 1 FLR 927, [1996] 1 FCR 461.

- (b) In considering whether to order blood tests to determine who is the father of a child, the welfare principle does not apply, as the taking of blood does not relate to the child's upbringing.¹⁸²
 - (c) It is held that the welfare principle does not apply when a court is deciding whether a parent should be committed to prison for breach of a court order concerning a child.¹⁸³
 - (d) In *Re Z (A Minor) (Identity: Restrictions on Publication)*¹⁸⁴ the Court of Appeal held that the decision whether a television company be allowed to film a programme about a child's education related to her upbringing and so the welfare principle applied. However, if the television programme relates not to the child's upbringing, but rather to publicity about the child's parent, then the child's welfare is not paramount, although it may be a factor to be taken into account.¹⁸⁵
2. *Part III of the Children Act.* The welfare principle does not apply to Part III of the Children Act 1989, which sets out the various duties that a local authority owes to children in its area. This will be discussed in Chapter 11.
 3. *Express statutory provision.* The welfare principle does not apply if a statute expressly states it should not. A notable example is in relation to redistribution of property and financial issues on divorce: the child's interests are said to be 'first', but not paramount.¹⁸⁶ Perhaps most significantly, in deciding whether or not to grant a divorce to a child's parents, the child's welfare is not paramount; indeed, the courts are not even required to consider the child's welfare.
 4. *Outside the context of litigation.* It is arguable that the welfare principle does not apply to parents with respect to their day-to-day decisions relating to the child. For example, where to live or what jobs to do. However, there are some dicta which have suggested that the welfare principle does affect a parent's day-to-day life. Ward LJ suggested:

a parent may choose to conduct himself in a way which has insufficient regard to his responsibilities to his children. If a person has no parental responsibilities, he is at liberty to conduct himself as he chooses . . . if he has parental responsibilities, those responsibilities may restrict his freedom of action. He is required, where his children's upbringing is involved, to have regard also to the welfare of his children.¹⁸⁷

It is far from clear how to interpret these dicta. Perhaps the best way to understand the law is that there is a duty on parents to avoid causing the child harm, but not a duty positively to promote the child's welfare.

In the Supreme Court in *ZH (Tanzania) v Secretary of State for the Home Department*¹⁸⁸ Baroness Hale explained that even where the welfare principle does not apply other provisions or international obligations may require children's interests to be prioritised. She explained, discussing an immigration case,:

For our purposes the most relevant national and international obligation of the United Kingdom is contained in art 3(1) of the UNCRC: 'In all actions concerning children, whether undertaken by public or private social welfare institutions, courts of law, administrative authorities or

¹⁸² *Re H (A Minor) (Blood Tests: Parental Rights)* [1996] 2 FLR 65, [1996] 3 FCR 201.

¹⁸³ *A v N (Committal: Refusal of Contact)* [1997] 2 FCR 475, [1997] 1 FLR 533.

¹⁸⁴ [1997] Fam 1.

¹⁸⁵ *Re LM (A Child) (Reporting Restrictions: Coroner's Inquest)* [2007] 3 FCR 44.

¹⁸⁶ Matrimonial Causes Act 1973, s 25(1).

¹⁸⁷ *Re W (Wardship: Discharge: Publicity)* [1995] 2 FLR 466 at p. 477.

¹⁸⁸ [2011] UKSC 4.

legislative bodies, the best interests of the child shall be a primary consideration.’ This is a binding obligation in international law, and the spirit, if not the precise language, has also been translated into our national law. Section 11 of the Children Act 2004 places a duty upon a wide range of public bodies to carry out their functions having regard to the need to safeguard and promote the welfare of children.¹⁸⁹

The United Kingdom has signed the United Nations Convention on the Rights of the Child, but has not taken any steps to make it directly enforceable in the courts.¹⁹⁰ Nevertheless, the courts do refer to it, particularly in cases where the welfare principle does not apply. Notice that the obligation under the UNCRC is that the interests of children should be primary, which is different from the paramountcy requirement.¹⁹¹ The children’s interests must be identified first, Baroness Hale explained, and are particularly important, but are not the only consideration. Hence, in *HH v Italy*¹⁹² the Supreme Court upheld the extradition of two people who had been arrested overseas on suspicion of drug trafficking, but had fled with their children to the United Kingdom and settled here. While it was accepted it was not in the best interests of the children for the parents to be extradited, doing so was justified by the overwhelming public good in taking this action. As this case shows, allowing children’s interests to predominate in every decision would mean parents could escape the administration of justice and ride roughshod over the interests of the other. That would lead to a society of a kind which would not promote children’s welfare.¹⁹³ The follow case is a good illustration of how the courts deal with cases involving children when the welfare principle does not apply.

KEY CASE: *R (on the application of SG) v Secretary of State for Work and Pensions (Child Poverty Action Group)* [2015] UKSC 16

As part of its ‘austerity’ programme the Government introduced a cap on welfare payments which set a maximum on the amount of benefits (including child tax credit and child benefit) that could be paid to any one household. The regulations introducing these reforms were challenged under the Human Rights Act 1998. Various arguments were used, but the one of most interest to family lawyers is that the scheme was most likely to impact on single parents with several children and was, therefore, indirectly discriminatory against women and children. The appellants referred to article 3(1) of the UNCRC which said that ‘the best interests of the child’ should be a primary consideration. The majority of the Supreme Court (Lords Reed, Hughes and Carnwath) held the cap was not unlawfully discriminatory. They held that although women were more likely to be impacted than men, the difference in treatment had an objective and reasonable justification (securing the economic well-being of the country) and was a proportionate means of reaching that end (given that many children in non-welfare payment households had to live in households with less income). Lord Reed for the majority thought the interests of children were not relevant to the argument as they were impacted similarly whether with father or mothers. Lord Carnwath, however, also in the majority,

¹⁸⁹ Paragraph [23].

¹⁹⁰ See Alderson (2015) for a helpful discussion.

¹⁹¹ Eekelaar (2015a).

¹⁹² [2012] UKSC 25.

¹⁹³ See for further discussion Fortin (2014).

accepted the cap did deprive children of money for reasons that were not connected to their needs and that was not compatible with the UNCRC. However, it was for Parliament and not the courts to deal with that clash. Baroness Hale, dissenting, held there was a breach of the UNCRC obligations: 'Claimants affected by the cap will, by definition, not receive the sums of money which the state deems necessary for them adequately to house, feed, clothe, and warm themselves and their children. Furthermore, the greater the need, the greater the adverse effect. The more children there are in the family, the less each of them will have to live on.' Depriving children of the basic necessities of life could not be in their best interests. She concluded that the benefit cap could not, therefore, be said to be a proportionate means of achieving a legitimate end. Lord Kerr agreed with her analysis. Indeed he went further and considered 'that the time has come for the exception to the dualist theory in human rights conventions'.

It is interesting to note that in such non-family law cases, the interests of children still play a central role.¹⁹⁴ John Eekelaar has suggested that in a case where children are indirectly affected by a decision, children's interests have an important but not paramount role to play:

The interests of the child are indeed part of the agenda, so must be taken into account alongside other relevant matters, and are a 'primary' consideration, although certain other matters may also be given 'primary' attention. There can be more than one primary consideration which must remain in the forefront of the minds of the decision-makers. However, they are relevant only in order to ascertain the effect any proposed solution to the issue to be determined has on such interests, not as part of a process of deciding what is best for the child in its current circumstances. But if the 'best' solution to the issue in question is considered to have a sufficiently detrimental effect on the child's interests, it may need to be modified or even abandoned. But modification or abandonment of the proposed solution is not inevitable because the nature of that outcome may be so important that it must be achieved notwithstanding its effect on the child's interests, or on other 'primary' considerations.

F What if the case involves two children – whose interests are paramount?

There is a real difficulty in using the welfare principle in cases where two or more children are concerned and their interests are in conflict.

(i) The basic rule: 'who is the subject of the application?'

*Birmingham City Council v H (A Minor)*¹⁹⁵ involved a mother who was herself a minor, being under 16, and her baby. The mother and baby had been taken into care, but had been separated. The mother applied for contact with the baby. It was felt that it was in the minor mother's interest that contact take place but that contact was not necessarily in the baby's interests. It was therefore crucial for the court to determine whose interest was paramount: the mother's or the baby's. The House of Lords took the view, relying on the wording of s 1(1) of the Children Act 1989, that it was the child who was the subject of the proceedings

¹⁹⁴ Taylor (2016).

¹⁹⁵ [1994] 2 AC 212.

whose welfare was paramount. It was held that because the mother was applying for contact with the baby, the baby was the 'subject of the proceedings' and so it was the baby's interests which were paramount and therefore contact was not ordered.¹⁹⁶

This is not a very satisfactory approach because it may be a matter of chance what form the application takes and which child happens to be the subject of the application. Although the approach of the House of Lords was correct as a matter of statutory interpretation, the House of Lords could have approached the issues on a more theoretical level: either by saying that in such cases the interests of the two children had to be balanced with each other; or that a minor mother's interests were always lower than her baby's. However, the House of Lords rejected these alternatives.

(ii) Where there are two or more children who are the subject of an application under the Children Act 1989

What if an application¹⁹⁷ were made in respect of two children and it was in the interests of one child that the order be made, but not in the interests of the other? Wilson J in *Re T and E*¹⁹⁸ explained that in such a case both children's welfare had to be taken into account and balanced against each other. So, if the order would greatly benefit one child and slightly disadvantage the other, the order should be made. This approach was applied in *Re A (Conjoined Twins: Medical Treatment)*,¹⁹⁹ where there were two conjoined twins, J and M. If no medical treatment was provided, then both would die. It was, however, possible to separate the twins with the result that J would live, but M would die. The operation would therefore be in J's interests, but not in M's (she would die sooner if the operation were performed than if it were not). The Court of Appeal was willing to balance the interests of the children. The interests of J were held to be more weighty than the interest of M and so the operation was authorised.

The most recent discussion was in *Re S (Children)*²⁰⁰ which involved two boys, B (aged 16 and a half) and C (aged 12) whose parents had separated. They lived with their mother but had regular contact with their father. The father wished to move to Canada to live and take the boys with him. It was found that the proposed move would be in the interests of B, but not C. The first instance judge approved the move, but the Court of Appeal overturned his judgment on the basis he had treated the two boys as a unit and failed to consider C's welfare in his own right. The judge should have considered each boy separately and decided what was in their best interests. In this case it meant that B should remain in Canada and C should remain in England.

G Conflict of interests between parents and children

One might expect that, given the welfare principle, if there is a clash between the interests of the children and parents, the interests of the child would be preferred.²⁰¹ As already mentioned, the welfare principle means that the court is only interested in the welfare of the

¹⁹⁶ Applied in *Re S (Contact: Application by Sibling)* [1998] 2 FLR 897 and *Re F (Contact: Child in Care)* [1995] 1 FLR 510.

¹⁹⁷ Or two applications are heard together.

¹⁹⁸ [1995] 1 FLR 581, [1995] 3 FCR 260.

¹⁹⁹ [2001] 1 FLR 1, [2000] 3 FCR 577.

²⁰⁰ [2011] EWCA Civ 454.

²⁰¹ See Henricson and Bainham (2005) on, generally, tensions in the law and policy in balancing the interests of children and parents.

child.²⁰² So, however great the sacrifice demanded of parents, if there is overall a marginal increase in the child's welfare, the order should be made.

In fact, despite the existence of the welfare principle, the English courts have been able to protect the interests of parents.²⁰³ Four of the ways that have been used to do this will now be briefly examined, although there are more:

1. The law makes no attempt to ensure that everything that adults do in relation to children day to day promotes their welfare. There is no direct supervision of the way parents treat their children, unlike the close direct regulation of day-care centres or childminders.²⁰⁴ Although there are regular inspections and assessments of day-care centres, there are no equivalent investigations into the way parents raise children. If the parents bring up the child in a way that harms the child then, unless one of the parents, the local authority or the child brings the matter before a court, there is unlikely to be any formal legal intervention.
2. As already noted, there are various issues to which the welfare principle does not apply, even though the interests of the child may still be an important consideration. Such circumstances include the granting of a divorce; domestic violence; financial redistribution of property on divorce; and enforcement of court orders.²⁰⁵ It may be noted that these are hardly topics where children's interests are insignificant, but rather cases where parents' interests are particularly weighty. A cynic may suggest that the law is only willing to promote a child's welfare where that does not greatly inconvenience adults.
3. A third way that the courts have protected the rights of parents is through closely identifying the interests of children and parents. Perhaps the best recent example to illustrate this is *Re T (A Minor) (Wardship: Medical Treatment)*.²⁰⁶ This case concerned a dispute over whether life-saving medical treatment should be given to a child. The unanimous medical opinion was in favour, but the parents opposed it. The court decided that it would not be in the child's best interests for the treatment to go ahead, bearing in mind the pressure that this would put on the parents. Butler-Sloss LJ reasoned: 'the mother and this child are one for the purpose of this unusual case and the decision of the court to consent to the operation jointly affects the mother and son and so also affects the father. The welfare of the child depends upon his mother.'²⁰⁷

By suggesting that the interests of the parent and the child were 'one', the Court of Appeal was able to take account of the parents' interests under the umbrella of the child's welfare. It can be argued that this case failed to consider fully the possibility of the child being cared for by alternative carers if the parents felt unable to cope, and, further, that the court placed excessive weight on the parents' views and insufficient weight on the child's right to life. By seeing the mother and child as one, the child's independent interests were hidden.

4. The courts have sometimes protected parents' interests by explicitly limiting their jurisdiction. So, for example, in *Re E (Residence: Imposition of Conditions)*²⁰⁸ the court refused to make it a condition of a mother's residence order that she remain in London because that

²⁰² *Re P (Contact: Supervision)* [1996] 2 FLR 314 at p. 328.

²⁰³ Herring (1999a).

²⁰⁴ Children Act 1989, Part X, Sch 9.

²⁰⁵ *Re F (Contact: Enforcement: Representation of Child)* [1998] 1 FLR 691, [1998] 3 FCR 216.

²⁰⁶ [1997] 1 FLR 502.

²⁰⁷ [1997] 1 FLR 502 at p. 510.

²⁰⁸ [1997] 2 FLR 638. Contrast *Re S (A Child: Residence Order: Condition) (No. 2)* [2003] 1 FCR 138.

would be to intervene in the mother's right to choose where to live.²⁰⁹ There is nothing in the Children Act 1989 that limits the courts' jurisdiction in such a way, but decisions of this kind enable the court to protect the interests of parents.²¹⁰

These indicate that, in fact, the courts are able to give effect to the interests of the parents despite purporting to uphold the welfare principle as a principle requiring the interests of parents to be subservient to the interests of children. In the light of the Human Rights Act 1998, the court will have to acknowledge explicitly that parents have human rights which cannot be automatically overridden simply by reference to the welfare principle.²¹¹ So how should the law deal with clashes between the rights and interests of parents and children?

Here are some of the possibilities that could be adopted:

DEBATE

How should the interests of parents and children be balanced?

1. *The standard welfare principle approach.* It could be argued that, despite the acknowledgement of parents' rights in the Human Rights Act 1998, the court should continue to assert that the interests of children are the sole consideration.
2. *Primary and secondary interests (Bainham).* One of the most developed considerations of how to balance the conflicting rights and interests of family members is the analysis made by Bainham. He suggests that the answer is to categorise parents' and children's interests as either primary or secondary interests.²¹² A child's secondary interests would have to give way to a parent's primary interests and similarly a parent's secondary interests must give way to a child's primary interests. In addition, the court should consider the 'collective family interest'.²¹³ This, he argues, should also be taken into account in the balancing exercise, so that the interests of one family member may have to be weighed against the good of the family as a unit.
3. *Relationship-based welfare (Herring).* This theory²¹⁴ argues that children should be brought up in relationships which overall promote their welfare.²¹⁵ It argues that families, and society in general, are based on mutual cooperation and support.²¹⁶ It is beneficial for a child to be brought up in a family that is based on relationships which are fair and just. A relationship based on unacceptable demands on a parent is not furthering a child's welfare. Indeed, it is impossible to construct an approach to looking at a child's welfare which ignores the web of relationships within which the child is brought up. Supporting the child means supporting the caregiver and supporting the caregiver means supporting the

²⁰⁹ See Chapter 10 for further discussion.

²¹⁰ See also *D v N (Contact Order: Conditions)* [1997] 2 FLR 797, [1997] 3 FCR 721.

²¹¹ Choudhry and Fenwick (2005); Bonner, Fenwick and Harris-Short (2003); Herring (1999b).

²¹² Bainham (1998c).

²¹³ Bainham (1998c). See also Henricson and Bainham (2005: 11) where it is argued that the family 'as a group' have interests that deserve protection.

²¹⁴ Herring (1999b); see also Bridgeman (2010).

²¹⁵ Sevenhuijsen (2002) and Czapanskiy (1999).

²¹⁶ See Butler, Robinson and Scanlan (2005) for evidence that families are increasingly based on a democratic model with children being involved in decision-making within families.

child.²¹⁷ So a court can legitimately make an order which benefits a parent, but not a child, if that can be regarded as appropriate in the context of their past and ongoing relationship.²¹⁸

4. *Virtue as part of welfare (Foster and Herring)*. Charles Foster and I have argued that the notion of welfare should not be restricted to happiness.²¹⁹ A good life is one where a person develops virtues and has good relationships. A person who is happy, but is utterly selfish or has no friends, has not had a good life. So too with the welfare of children. Promoting the well-being of children means raising them to display virtues of altruism and experience fair relationships. So an order may be made which will not make them happy, but will mean they develop virtue.
5. *Modified least detrimental alternative (Eekelaar)*. Eekelaar summarises his theory in this way:

The best solution is surely to adopt the course that avoids inflicting the most damage on the well-being of any interested individual . . . [I]f the choice was between a solution that advanced a child's well-being a great deal, but also damaged the interests of one parent a great deal, and a different solution under which the child's well-being was diminished, but damaged the parent to a far lesser degree, one should choose the second option, even though it was not the least detrimental alternative for the child.²²⁰

However, he adds an important qualification to this test and that is that 'no solution should be adopted where the detriments outweigh the benefits for the child, unless that would be the result of *any* available solution, so that is unavoidable.'²²¹ He also adds that there may be a degree of detriment to which a child should never be subjected, if that is avoidable.²²² He is concerned about cases where, for example, a disabled spouse would greatly suffer if on divorce the child were to live with the other parent.

6. *Balancing all interests*. This perspective²²³ simply requires the courts to weigh up the interests of each party. There would be no particular preference for the interests of each of the parties. This approach would suggest that the court should make the order which would produce the most benefit and least detriment for the parties.

The difference between these approaches can be clarified by looking at the benefit or disadvantage of the proposed orders on a scale of +50 (the most beneficial) to -50 (the least beneficial). Consider these four possible orders (F being the father, M the mother and C the child):

Solution 1: C (-30); F (+30); M (+30)

Solution 2: C (-5); F (-5); M (+35)

Solution 3: C (+10); F (-30); M (-40)

Solution 4: C (+5); F (-5); M (-5)

²¹⁷ Kavanagh (2004).

²¹⁸ See Bonthuys (2006) who complains that seeing parents' interests just through the prism of welfare fails to place sufficient weight on parents' interests.

²¹⁹ Herring and Foster (2012).

²²⁰ Eekelaar (2002a: 243-4).

²²¹ Eekelaar (2002a: 243).

²²² Eekelaar (2002a: 245).

²²³ This appears to be supported by Reece (1996).

The balancing all the interests approach would support solution 1 because this is the one that produces the greatest total benefit adding together all the disadvantages and benefits for each party and treating them equally. Solution 1 would be unacceptable to the welfare principle because it harms the child. It would be unacceptable to Bainham because it involves the infringement of a primary interest of the child. It would also be unacceptable to Eekelaar because he refuses to accept making an order which causes a detriment to a child unless any order the court would make would cause a detriment to a child.

The welfare principle approach would promote solution 3. Despite the fact this may harm (quite seriously) the father and mother, under the welfare principle the harms caused to the parents are irrelevant and this is the solution that would best promote the child's welfare. Eekelaar would prefer solution 4. Although solution 3 promotes the child's welfare to the greatest extent, it does so by causing the parents significant harm. Solution 4 manages still to promote the child's welfare (albeit to a lesser extent than solution 3) and it does so causing less harm to the parents. Bainham might also approve of solutions 2 or 4 because they do not involve the infringement of anyone's primary or secondary interests.

The Herring–Foster approach would consider what will promote virtue and an appreciation for relational values for a child. Perhaps options 2 or 4 could be justified as they are ones a virtuous person may take; neither claims a benefit for themselves at too great a cost to others.

Herring's relational welfare approach is less straightforward because it requires an understanding of the nature of the relationship in the past, and the foreseeable future. If, for example, in the past the mother and father have had to make unusual and extreme sacrifices for the benefit of the child, solution 2 or even 1 may be acceptable.²²⁴

Questions

1. Are there any circumstances in which it is appropriate for a court to make a decision which will harm a child?
2. Should parents be taken to accept that by choosing to become parents their interests will count for less than their children's?
3. How would these different approaches deal with a case where a child's sibling needed an organ donation and the child was seen as the best possible donor?²²⁵ What about a case where parents wanted a child to enrol as a participant in medical research?²²⁶ Is there a danger in the Foster/Herring proposal leading to a slippery slope of children being used for the benefit of others?²²⁷

Further reading

Compare Eekelaar (2002a) and Herring (1999b) for contrasting answers to this issue.

²²⁴ This perhaps indicates a concern with this approach. Most parents make enormous sacrifices for their children and so the approach might too easily lead to an argument that it is justifiable to promote parents' interests over those of children.

²²⁵ Contrast Cherkassky (2015) and Taylor-Sands (2013) on this.

²²⁶ Dar (2013).

²²⁷ Ferguson (2015c).

9 The Human Rights Act 1998 and children's welfare and rights

Learning objective 5

Describe how the Human Rights Act 1998 interacts with the welfare principle

It is generally accepted that the European Convention on Human Rights²²⁸ does not provide adequately for the rights of children.²²⁹ The Convention was clearly drawn up with adults (rather than children) as the focus of attention. Indeed, there are no articles in the Convention explicitly dealing with chil-

dren. However, that is not to say that children receive no protection under the Convention.²³⁰ Children are entitled to the same rights under the Convention as adults. Article 1 states: 'The High Contracting Parties shall secure to everyone within their jurisdiction the rights and freedoms in this Convention.'²³¹ The European Court has accepted that 'everyone' in article 1 includes children.²³² To give two examples: children have been able to bring applications before the European Court of Human Rights claiming that they are entitled to state protection under article 3 (to protect them from corporal punishment which constitutes torture or inhuman or degrading treatment)²³³ and article 5 (to complain of being wrongfully detained in a hospital).²³⁴ Children's interests can also sometimes be protected when an adult enforces his or her own rights. So the enforcement of a parent's rights of contact with his or her child inevitably leads to an enforcement of the right of the child to contact with his or her parent.²³⁵

The relevance of particular rights of children under the Convention will be discussed where appropriate throughout the text; but now the way the Convention deals with clashes between the interests of adults and children will be considered.

A Balancing the rights of parents and children under the Convention

The Convention, rather surprisingly, includes no explicit reference to ensure that the enforcement of adult rights does not harm a child's welfare. However, the European Court has been able to give weight to the interest of the child by considering the wording in the articles which restrict rights. For example, the most quoted article in cases concerning children is article 8:

LEGISLATIVE PROVISION

European Convention on Human Rights, article 8

1. Everyone has the right to respect for his private and family life, his home and his correspondence.

²²⁸ Choudhry and Herring (2010); Harris-Short (2005); Fortin (1999a); Herring (1999b).

²²⁹ Fortin (2002 and 2006a).

²³⁰ For a thorough discussion of the rights of children under the European Convention, see Kilkelly (2000).

²³¹ Article 14 states that the rights must be granted without discrimination 'on any ground such as sex, race, colour ...'. Although age is not specifically mentioned, the use of the words 'such as' indicates that the list is not intended to be exhaustive and so it could be argued that age should be included as a prohibited ground of discrimination.

²³² *Nielsen v Denmark* (1989) 11 EHRR 175.

²³³ *A v UK (Human Rights: Punishment of Child)* [1998] 2 FLR 959.

²³⁴ *Nielsen v Denmark* (1988) 11 EHRR 175.

²³⁵ For example, *Eriksson v Sweden* (1989) 12 EHRR 183.

2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.

So, a permitted interference of the right must be in accordance with the law;²³⁶ it must pursue a legitimate aim; it must be proportionate²³⁷ and necessary.²³⁸ It is clearly established that a 'legitimate aim' includes preserving the rights and welfare of children.²³⁹ In other words, an infringement of an adult's right to respect for private and family life can be justified if necessary to protect the children's interests.

The correct approach, then, where there may be a clash between the rights of children and adults (or between any two parties) is to start by looking at the rights that each individual has and consider whether the issue engages a right under the ECHR. If it does then the court will need to consider whether an infringement of that right is justified. So, a parent may have a right under article 8(1) to have contact with a child, but under article 8(2) it may be permissible to interfere with that right if necessary in the interests of the child or the resident parent. It would be necessary then to consider the right of each party involved (each parent and the child) and consider in each case where the rights and interests of others are sufficiently strong to justify an interference with that right. The difficulty with this approach is that you may end up with a clash between two rights under the ECHR.²⁴⁰

There are a number of solutions to a case where there is a clash between the rights of the parties. According to the European Court of Human Rights when considering the competing rights of adults and children in this case, the rights of children should be regarded as being of crucial importance (see below). Shazia Choudhry and Helen Fenwick²⁴¹ have suggested that the rights of children should be 'privileged'. However, Jane Fortin²⁴² complains that this is too vague and, while she is generally supportive of this kind of approach, feels that how the interests of children are privileged needs to be explained. Is it claimed that if there is a clash of rights the rights of children always win out? If not, when will children's rights lose out to an adult's right?²⁴³

Rachel Taylor and I have suggested that in a case of clashing rights the court should look at the values underpinning the right.²⁴⁴ In the case of article 8, which is the most common right used in family cases, the underlying value might be that of autonomy: the right to pursue one's vision of the 'good life'; or the right to have a flourishing family life. We could then consider the extent to which the proposed order would constitute a blight on each of the party's opportunities to pursue these values. The court should make the order which causes the least blight.

²³⁶ The procedure must be accessible, foreseeable and reasonably quick: *W v UK* (1988) 10 EHRR 29.

²³⁷ *Price v UK* (1988) 55 D&R 1988.

²³⁸ States have a margin of appreciation in deciding whether the intrusion is necessary.

²³⁹ For example, *R v UK* [1988] 2 FLR 445.

²⁴⁰ Choudhry and Herring (2010); Choudhry and Fenwick (2005); R. Taylor (2006); Harris-Short (2005).

²⁴¹ Choudhry and Fenwick (2005).

²⁴² Fortin (2006a).

²⁴³ Fortin (2006a) suggests that only if the rights are 'equal' should the child's win out; although it is not quite clear what 'equal' means here.

²⁴⁴ Herring and Taylor (2006). This seeks to develop Choudhry and Fenwick (2005) and dicta of Lord Steyn in *Re S (A Child) (Identification: Restrictions on Publication)* [2005] 1 AC 593 at para 17 which refer to the need to consider the values underlying the right when considering cases of clashing rights.

The European Court of Human Rights has not yet given much guidance on the issue. It is clear that in cases involving families, the interests of children must be considered. In *Hendriks v Netherlands*²⁴⁵ it was stated: 'the Commission has consistently held that, in assessing the question of whether or not the refusal of the right of access to the non-custodial parent was in conformity with article 8 of the Convention, the interests of the child would predominate'. This was accepted as an accurate statement of the approach of the Convention by the Court of Appeal in *Re L (A Child) (Contact: Domestic Violence)*.²⁴⁶ The European Court of Human Rights in *Scott v UK*²⁴⁷ has stated that the interests of the child are 'of crucial importance' in cases involving the interests of parents and child. In *Hoppe v Germany*²⁴⁸ it was said that the interests of children were of 'particular importance'.²⁴⁹ In *Yousef v The Netherlands*²⁵⁰ it was held that, under the European Convention, where the rights of children and parents conflict, the rights of children will be the 'paramount consideration'. In *Neulinger and Shuruk v Switzerland* it was said: 'The Court notes that there is currently a broad consensus – including in international law – in support of the idea that in all decisions concerning children, their best interests must be paramount'.²⁵¹ This is very close to the interpretation by the English and Welsh courts of the welfare principle;²⁵² however, a close reading of the judgments suggests that in these cases the ECtHR was not intending paramount to mean that the welfare of the child is the sole consideration.²⁵³ Most subsequent cases²⁵⁴ have not used the term 'paramount' and preferred to say children's interests are particularly important²⁵⁵ or crucial.²⁵⁶ It seems then that in cases involving clashes between the rights of adults and children, while under the Children Act 1989, only the interests of children should be considered, under the ECHR the interests of children and adults should be considered, but the interests of children will be regarded as having significant weight.²⁵⁷

Despite these rulings, there are concerns that the Human Rights Act 1998, by explicitly giving parents rights, will weaken the interests of children. As Fortin²⁵⁸ argues:

It is of fundamental importance that the judiciary shows a willingness to interpret the European Convention in a child-centred way, as far as its narrow scope allows. It would be unfortunate in the extreme, if such a change heralded in an increased willingness to allow parents to pursue their own rights under the Convention at the expense of those of their children.

²⁴⁵ (1982) 5 D&R 225.

²⁴⁶ [2000] 2 FCR 404.

²⁴⁷ [2000] 2 FCR 560 at p. 572.

²⁴⁸ [2003] 1 FCR 176 at para 49.

²⁴⁹ See also *Sahin v Germany* [2003] 2 FCR 619 and *Haase v Germany* [2004] 2 FCR 1.

²⁵⁰ [2000] 2 FLR 118 at para 118.

²⁵¹ (Application 41615/07), para 135. See also *YC v United Kingdom* [2012] ECHR 433.

²⁵² In *Re S (A Child) (Contact)* [2004] 1 FCR 439 at para 15 Butler-Sloss cited *Yousef* as showing that the ECHR had recognised the principle of the paramountcy of the child's welfare.

²⁵³ Simmonds (2012).

²⁵⁴ Harris Short (2005: 357) describes *Yousef* as an isolated decision. Although, see *Maire v Portugal* [2004] 2 FLR 653 at para 77, which followed *Yousef* in using the 'paramount' terminology. In *Kearns v France* [2008] 2 FCR 1, at para 79 the child's interests were said to be paramount, but that statement appears to relate to the particular context of the case.

²⁵⁵ For example, *Haase v Germany* [2004] 2 FCR 1 at para 93; *Suss v Germany* [2005] 3 FCR 666 at para 88; *Hunt v Ukraine* [2006] 3 FCR 756; *Chepelev v Russia* [2007] 2 FCR 649, para 27.

²⁵⁶ *Nanning v Germany* [2007] 2 FCR 543, para 63. See also, *C v Finland* [2006] 2 FCR 195 and *Buchleither v Germany* (App. No. 20106/13) which use both the crucial and particular terminology.

²⁵⁷ Choudhry and Herring (2010: chs 2 and 3).

²⁵⁸ Fortin (2006a and 2009b).

B Is there any practical difference between the approaches of the European Convention and the Children Act 1989?

It has been seen that the European Convention, based upon rights, can take into account the welfare of children and that the Children Act 1989, based upon the welfare principle, has taken into account the rights of parents. It is therefore inevitable that the question be asked: is there any practical difference between the two approaches?²⁵⁹

The UK courts have consistently taken the approach that there is no difference in outcome, whether the welfare principle is applied or an analysis based on human rights used.²⁶⁰ This was recently confirmed by Ryder LJ in *Re Y (Children: Removal from Jurisdiction: Failure to Consider Family Segmentation)*.²⁶¹

There is no suggestion that the [Children Act] 1989 . . . and in particular sections 1 and 8 and the principles extracted from them, are inconsistent with the Convention. Far from it. There is ample jurisprudence to support the proposition that domestic law . . . is Article 8 compliant.

It is respectfully suggested that this statement is not entirely accurate and that there are important differences between the approach of the Children Act 1989 and the European Convention on Human Rights.²⁶² Imagine a case concerning contact between a child and a non-residential parent. Under the European Convention, the starting point is the parent's right to respect for family life which will be infringed if contact is denied. In order to justify the breach, there must be clear and convincing evidence that the contact would infringe the rights and interests of the child or resident parent to such an extent that the infringement was necessary and proportionate. However, under the Children Act there is a factual assumption that contact will promote the child's welfare, although this could be rebutted by evidence that contact would not promote the child's welfare in this particular case.

The difference between the two approaches is twofold. First, less evidence would be required under the Children Act to show the assumption that contact promotes a child's welfare than would be required under the Convention to show that infringement of the parent's rights is necessary and proportionate. Secondly, the nature of the question is different. Under the Children Act the question is a factual one – will contact promote the child's welfare?; whereas under the European Convention approach it is a question of legal judgment – whether the harm to the child is sufficient to make the breach 'necessary' as understood by the law.

A further difference between the approach of the welfare principle and the Convention is that the Convention is in this area essentially restrictive – it tells governments and courts what they may not do;²⁶³ while the welfare principle requires the court to act positively to promote the child's welfare.²⁶⁴ A good example is article 2 of the first Protocol: 'no person shall be denied the right to education'. It should be noted that this does not give a positive right to education, just a right not to be denied any education offered by the state. Similarly, article 8 requires that the state should not interfere with respect for family life, but the

²⁵⁹ See Herring (1999b); Choudhry (2003).

²⁶⁰ *Re KD (A Minor) (Ward: Termination of Access)* [1988] FCR 657. *Re B (Adoption by One Natural Parent to Exclusion of Other)* [2002] 1 FLR 196.

²⁶¹ [2014] EWCA Civ 1287.

²⁶² This view has been taken by many commentators: Fortin (2006a); Harris-Short (2005); Choudhry and Fenwick (2005); Herring and Taylor (2006). Indeed, the writer knows of no academic commentator who agrees that the welfare principle as interpreted by the courts and an approach based on the ECHR are the same.

²⁶³ Hale (2006) sees this as a weakness of the ECHR from a child's point of view.

²⁶⁴ Although note s 1(5) of the Children Act 1989.

wording does not appear to require the state to promote family life. That said, as seen earlier (Chapter 7), article 8 has been interpreted to require the state in some circumstances to act positively to promote the child's welfare.

10 Criticisms of the welfare principle

The welfare principle seeks to ensure that children are not exploited for the interests of adults.²⁶⁵ At least, judicial decisions concerning children's upbringing must be phrased in terms of benefit for children. This can be justified on the basis that children are likely to be the least responsible for the difficulties that have led to the court case. They are also the least likely to be able to escape from the family difficulties and are least equipped to respond positively to the effect of any order which is against their interests.

Despite its predominance in the law relating to children, the welfare principle has been criticised.²⁶⁶ Some of the main objections will be now be outlined.

1. *The law has a narrow perception of welfare.* King and Piper have argued that 'the broad range of factors – genetic, financial, educational, environmental and relational – which science would recognise as capable of affecting the welfare of a child are narrowed by law to a small range of issues which fall directly under the influence of the judge, the social workers or the adult parties to the litigation process'.²⁶⁷ As Jo Bridgeman writes:

unless consideration is given to the individual child, to the person they are, their personality, character, feelings of pleasure and pain, and relational interests (relationships with those upon whom they depend), determinations about the best interests of the child are reached according to current ideas about the child and according to adult memories of childhood.²⁶⁸

Further, the court's focus on child welfare tends not to consider issues such as pollution, the quality of public housing and wider political questions which can have a powerful effect on the interests of children.²⁶⁹

2. *Uncertainty.* Mnookin²⁷⁰ argues that the welfare principle gives rise to inconsistency and unpredictability.²⁷¹ Guggenheim²⁷² writes:

However alluring and child-friendly the 'best interests' test appears, in truth it is a formula for unleashing state power, without any meaningful reassurance of advancing children's interests.

The uncertainty arises from the great many unknowns concerning welfare. The facts are not known because often there is only the conflicting evidence of the father and mother as to the history of the parents' relationship. Even if the facts are established, it is impossible to predict how well the parties will be able to care for children. Even if the court could predict how the parents will act, it may be hard to choose who is the better parent, given the lack of agreed values over what makes an ideal parent. These uncertainties in effect give

²⁶⁵ Eekelaar (2002a).

²⁶⁶ See, for example, Reece (1996). For support of the principle in the face of these criticisms see Herring (2005b).

²⁶⁷ King and Piper (1995: 50). This is based on autopoietic theory (see Chapter 1).

²⁶⁸ Bridgeman (2007: 9).

²⁶⁹ Henaghan (2015).

²⁷⁰ Mnookin (1975).

²⁷¹ For a good discussion of inconsistencies among Court of Appeal decisions in applying the welfare principle, see Gilmore (2004c).

²⁷² Guggenheim (2006: 41).

a judge a wide discretion in deciding what is in a child's welfare.²⁷³ Some have even suggested it enables a judge to give free reign to his or her prejudices.²⁷⁴ The uncertainty also creates problems for parents in negotiating. As it is hard to anticipate how a judge might decide a case, the parties may well prefer chancing a judicial hearing, rather than reaching a negotiated settlement. By contrast, if it was predictable how a judge would resolve a dispute between the parties then there would be little point in incurring the expenses involved in taking the matter to court.

3. *Smokescreen*. There is a concern that, given the uncertainty surrounding the welfare principle, the real basis for the decision will be hidden.²⁷⁵ In particular, the prejudices of the professionals involved (the judiciary, the expert witnesses and the lawyers) provide the true reason behind the decision. For example, an individual's ideology of what makes a good mother or father can be extremely significant.²⁷⁶ This then can lead to the welfare presumption being used in a way which works against the interests of women.²⁷⁷
4. *Increased costs*. It can be argued that the welfare principle simply increases the costs for the parties. Its unpredictability means that it is harder to negotiate a settlement and the complexity of the test means that court hearings take longer and require more substantial preparation.
5. *Unfairness*. The welfare principle can be attacked for failing to give adequate (or indeed any) weight to the interests of adults.²⁷⁸ Eekelaar explains: 'the very ease of the welfare test encourages a laziness and unwillingness to pay proper attention to all the interests that are at stake in these decisions and, possibly, also a tendency to abdicate responsibility for decision making to welfare professionals'.²⁷⁹ Those who see the force of such an approach would prefer the courts paid greater attention to the impact of the Human Rights Act 1998, which they say requires the court to pay attention to the rights of adults and children. The benefit of such an approach has been summarised by Sonia Harris-Short in this way:

Rights-based reasoning has the potential to introduce much greater intellectual rigour and discipline to judicial reasoning in the family law context, ensuring the needs and interests of all family members are clearly articulated and considered in the decision-making process and preventing untested assumptions and prejudices, currently obscured behind the vagaries of the welfare principle, from determining the outcome of common family disputes.²⁸⁰
6. *Unrealistic*. If there is a dispute over the medical treatment for a child and the matter is brought before the court, a judge considering what is best for the child may decide that the child should be flown to the top medical hospital in America to be treated by the world's leading expert in the field, with no expense spared.²⁸¹ Of course, a court could not make such an order. As this indicates, it is often for practical reasons impossible to make the order that would best promote the child's welfare.
7. *Children's rights*. As we will discuss later, those who advocate children's rights and in particular those who support the idea that children should be allowed to make decisions for themselves, even if that slightly harms them, would not support the welfare principle.

²⁷³ Elster (1987).

²⁷⁴ Reece (1996).

²⁷⁵ Reece (1996: 296–7).

²⁷⁶ Boyd (1996).

²⁷⁷ Fineman (1988).

²⁷⁸ Reece (1996: 303), although Ribbens *et al.* (2003: 140) argue that the position that the interests of children should be first is one of the few 'unquestionable moral assertions'.

²⁷⁹ Eekelaar (2002a: 248).

²⁸⁰ Harris-Short (2005: 359).

²⁸¹ Archard (2003: 41).

In the face of such powerful criticisms, is there anything that can be said in favour of the welfare principle?²⁸² As to indeterminacy, Gillian Douglas²⁸³ has written that the 'uncertainty and inconsistency may be both the greatest strength and greatest weakness of the "welfare principle"'. The benefit of the uncertainty surrounding the welfare principle is that it enables courts to produce results which are flexible and responsive to the individual needs of each child. Further, the welfare principle sends an important symbolic message.²⁸⁴ It recognises the value, the importance and the vulnerability of children. Quite simply, if a court order causes a loss or hurt, children have fewer resources open to them than adults do. Children lack the material, psychological, and relational resources that parents have. Another point is that without the welfare principle it would be easy in court proceedings for the interests of the children to be lost, especially because rarely in disputes over children is there an independent advocate for the child or is the child heard herself. Finally, the message sent to separating parents by the welfare principle is one they desperately need to hear: forget about your own rights; put the interests of your children first. Black LJ in *T v T*²⁸⁵ put the point well:

[The parents] must put aside their differences . . . if the adults do not manage to resolve things by communicating with each other, the children inevitably suffer and the adults may also pay the price when the children are old enough to be aware of what has been going on . . . It is a tremendous privilege to be involved in bringing up a child. Childhood is over all too quickly and, whilst I appreciate that both sides think that they are motivated only by concern for the children, it is still very sad to see it being allowed to slip away whilst energy is devoted to adult wrangles and to litigation. What is particularly unfair is that the legacy of a childhood tainted in that way is likely to remain with the children into their own adult lives.

11 Alternatives to the welfare principle

If the law were to abandon the welfare principle, what alternatives could be used?

1. *Presumptions.* The law could seek to rely on presumptions. These could be, for example, that children should live with their mothers and the view of the mother should be preferred over the view of the father in any issue of dispute or that on separation a child should spend an equal amount of time with each parent. We shall discuss such presumptions further later in the text (see Chapter 10). A major difficulty is that they are based on generalisations. Opponents argue that courts should deal with the particular children and family before them, and not rely on assumptions about what is often good for families in general. What is good for the majority of children is of limited use in determining what is good for the particular child before the court.²⁸⁶ For example, research from Australia which has developed a strong presumption in favour of shared residence is that it has worked against the interests of children in many families where the model is inappropriate.²⁸⁷
2. *Letting the child decide.* There is much evidence that although children wish to be listened to when their parents separate, most do not want to be forced to decide between their

²⁸² Herring (2005b) seeks to defend the welfare principle.

²⁸³ Douglas (2016: 173).

²⁸⁴ More cynically, see Van Krieken (2005) who sees the welfare principle being used as a way of 'civilising parents'.

²⁸⁵ [2010] EWCA Civ 1366.

²⁸⁶ Herring (2014b).

²⁸⁷ Rhoades (2010a). (See Chapter 10 for further discussion.)

parents.²⁸⁸ It is therefore unlikely that this would be appropriate except for mature teenagers who have strong views. There are further dangers that the approach might encourage parents to manipulate the child's views. In other cases the child will be too young to express a view.

3. *Tossing a coin.* Elster suggests that disputes over children could be resolved by tossing a coin.²⁸⁹ In part this approach is a counsel of despair: the courts are not able to predict what will promote the welfare of the child and so they may as well toss a coin. The approach is cheap and treats each side equally. However, the approach cannot really be acceptable, because it abdicates responsibility for children. It is true there are some cases where it is impossible to know what is in a child's interest, but there are many others where the court can ascertain what is in a child's interests or at least what is not in a child's interests. Not to protect the child in such a case would appear irresponsible.²⁹⁰
4. *Non-legal solutions.* It is perhaps too readily assumed that disputes between family members should be resolved by a court hearing. It is certainly arguable that social work to assist the family may be more effective than legal intervention. Thorpe LJ in *Re L (A Child) (Contact: Domestic Violence)*, also talking about disputes over contact, has suggested:

The disputes are particularly prevalent and intractable. They consume a disproportionate quantity of private law judicial time. The disputes are often driven by personality disorders, unresolved adult conflicts or egocentricity. These originating or contributing factors would generally be better treated therapeutically, where at least there would be some prospect of beneficial change, rather than given vent in the family justice system.²⁹¹

Such thinking has been influential in the Children and Adoption Act 2006 which provides extra-legal methods of seeking to encourage parties to resolve their differences over contact. Whether such an approach could be justified in the light of the Human Rights Act 1998, and the requirement that the state protects the rights of parents and children, is open to debate. This gives rise to some of the debates over mediation which were considered in Chapter 2.

Of all of the alternatives to the welfare principle, it is an approach based on children's rights which has been most influential and so we will consider that next.

12 Children's rights

Learning objective 6

Consider the issues around children's rights

So far we have looked at the law's attempts to promote the welfare of the child. However, in the last few decades there have been calls that, rather than adults attempting to promote the child's welfare, the law should recognise that children have rights of their own.²⁹² After all, it is hard to resist the argument 'children have human rights, because children are human'.²⁹³ Michael Freeman has argued:

Rights are important because they recognise the respect their bearers are entitled to. To accord rights is to respect dignity: to deny rights is to cast doubt on humanity and on integrity. Rights

²⁸⁸ Cantwell and Scott (1995).

²⁸⁹ Elster (1987).

²⁹⁰ Schneider (1991).

²⁹¹ [2000] 2 FCR 404 at p. 439.

²⁹² For a consideration of children's rights from a broad perspective, see John (2003), Freeman (2004b), Archard and Macleod (2002), Willems (2007) and Woodhouse (2000 and 2008).

²⁹³ Herring (2003b: 146).

are an affirmation of the Kantian basic principle that we are ends in ourselves, and not means to the ends of others.²⁹⁴

Indeed, children's rights are protected by a variety of international instruments,²⁹⁵ including most notably the United Nations Convention on the Rights of the Child (UNCRC).²⁹⁶ Although the UNCRC has been signed by Britain, it has not been made officially part of English law. That said, as we have already seen, the courts are increasingly turning to some of its principles in interpreting the law, particularly in areas such as immigration and planning.²⁹⁷

Katherine Federle²⁹⁸ explains the significance of seeing that children have rights, rather than just being people who should be looked after:

Rights have a transformative aspect because they have the potential to reduce victimization and dependence by changing the rights holder into a powerful individual who commands the respect of those in the legal system . . . rights create mutual zones of respect, challenging those who want to act in the best interests of children to promote the empowerment of children instead.

There is relatively little dispute that children should have some of the basic rights, such as right to life, rights to education, or rights to protection from serious harm;²⁹⁹ and so we will focus on whether children have rights in terms of two key questions:

1. Should children have all the rights that adults have or should we limit the rights available to children?
2. Should children be given extra rights over and above those given to adults?³⁰⁰

A Should children have all the rights adults have?

A simple approach is that children are people and so should have all the rights that adults have.³⁰¹ These will include the right to vote,³⁰² work, travel, use drugs and to engage in sexual relations.³⁰³ Such an approach is taken by a group of thinkers known as child liberationists or colloquially as 'kiddy libbers'.³⁰⁴ For example, Holt³⁰⁵ has written that the law supports the view of a child 'being wholly subservient and dependent . . . being seen by older people as a mixture of expensive nuisance, slave and super-pet'. He argues that childhood is used by adults to interfere in children's rights in a way that would be unacceptable for adults. For example, he claims that requiring children to attend schools 'for about 6 hours a day, 180 days a year, for about 10 years . . . is such a gross violation of civil liberties that few adults would stand for it'.³⁰⁶

²⁹⁴ Freeman (2007: 7); Freeman (2010).

²⁹⁵ Fortin (2009a: ch. 2) provides an invaluable discussion on the rights of children in international law. See also Stalford (2012) on children's rights in EU law.

²⁹⁶ MacDonald, A. (2009a). The Government had been criticised for failing fully to implement the Convention by the Committee on the Rights of the Child (2016).

²⁹⁷ Fortin (2014).

²⁹⁸ Federle (2009).

²⁹⁹ Alderson (2015).

³⁰⁰ See Herring (2003b) for more detailed discussion.

³⁰¹ Although still today some academic commentators take the view that it is appropriate to call a child 'it'.

³⁰² For a contemporary argument that children should have the right to vote, see Olsson (2008).

³⁰³ Holt (1975: 18). See Waites (2005) for a wide-ranging discussion on the age of consent to sexual relations.

³⁰⁴ Children's liberationists include Foster and Freund (1972) and Holt (1975). For criticism see Fox Harding (1996). For a more sympathetic reading see Byrne (2016).

³⁰⁵ Holt (1975).

³⁰⁶ Holt (1975: 163).

Initially, the argument children should have the same rights as adults seems unacceptable: surely we cannot accept a society where children have the same rights to sexual freedom, to marry, or to drive cars as adults?³⁰⁷ Farson replies to such arguments in this way:

asking what is good for children is beside the point. We will grant children rights for the same reason we grant rights to adults, not because we are sure that children will then become better people, but more for ideological reasons, because we believe that expanding freedom as a way of life is worthwhile in itself. And freedom, we have found, is a difficult burden for adults as well as for children.³⁰⁸

In other words, he accepts that giving children rights might lead to them being harmed, but the same thing happens to adults when we give them rights.

The child liberationist position is often criticised for failing to appreciate the physical and mental differences between children and adults.³⁰⁹ But this is not quite what most child liberationists nowadays claim; they argue that the same laws should apply to adults and children. It is quite permissible to ban from driving those incapable of driving competently, but the state should not ban people from driving on the grounds of age. So, children should not be barred from driving simply on the basis of their age, but can be on the basis of their inability at driving. Similarly, in sexual matters, if the child is not competent to consent then it would be unlawful for someone to have sexual relations with him or her.³¹⁰ But that would be true for all who have sexual relations with those who do not consent. Another way of putting this argument is that children should not be discriminated against on the grounds of their age.³¹¹ It must be admitted that the present law on at what age young people are able to do something is illogical. To give one example: a 16-year-old is deemed old enough to consent to sexual relations with her or his MP, but not to vote for her or him!

This more moderate liberationist approach is harder to rebut. It is necessary to show some morally relevant distinction between children and adults in order to justify rejection of the liberationist position. One argument may be based on bureaucratic difficulties in assessing competence. To expect a bar-tender to interview every person who orders a drink to ascertain whether they have sufficient understanding of the potential harms of alcohol to make a reasoned decision to purchase it would be unworkable.³¹² A slightly different point is that using age provides a clear impersonal requirement, because the assessment of each individual's capacity can involve 'contested norms'.³¹³ To start to test everyone (children or adults) to assess capacity to make decisions would be hugely controversial. Age provides a predictable criterion which enables adults to plan their lives, without fearing that they will be found incompetent.

As can be seen already, much of the discussion about children's rights centres on the right to autonomy. The right to autonomy is essentially the right to decide how you wish to live your life. John Eekelaar has called autonomy 'the most dangerous but precious of rights: the

³⁰⁷ Archard (2003: 9) suggests that some writers are 'rhetorical child liberationists' in that they do not really mean that children should have all the rights of adults, but that to make such a claim is eye-catching and therefore politically a useful way of increasing the number of rights children have.

³⁰⁸ Farson (1978: 31).

³⁰⁹ Fortin (2009a: 5).

³¹⁰ The Sexual Offences Act 2003 contains arrange of sexual offences that can be committed against children under the age of 16; s 5 makes it an offence for a man to have sex with a girl under the age of 13, whether or not she consents. See further *R v G* [2008] UKHL 37, confirming it was no defence if the man believed the victim to be over the age of 13 and consenting. See Keating (2012) for a critique of the law.

³¹¹ Herring (2003b).

³¹² How many adults would pass the test?

³¹³ Haldane (1994).

right to make their own mistakes'.³¹⁴ Most people accept that if an adult wishes to spend all his or her free time playing computer games or watching television or writing a law textbook he or she can, providing these activities do not harm anyone else. Sometimes writers talk about each person being permitted to pursue their own vision of the 'good life'. This is generally regarded as not only good for each individual but also good for society. Our society would be a less culturally rich society if everyone were to spend all their free time jogging, for example. It is good for society that there is diversity in the kinds of hobbies people enjoy. The difficulty is in applying this approach to children. Specifically, children do not have the capacity to develop their own version of their 'good life', at least in the sense of defining long-term goals. The essential problem is this: the way a child lives his or her childhood affects the range of choices and options available later on in life.³¹⁵ A simple example is that allowing a child to pursue their vision of a good life and allowing them not to go to school may mean that they will be prevented from pursuing what they regard as the good life once they reach majority because they will not have the education needed to pursue their goals. It, therefore, may be justifiable to infringe a child's autonomy during minority in order to maximise their autonomy later on in life. This, then, could explain why children cannot be treated as adults and why the state may be entitled to restrict autonomy rights in the name of promoting the child's welfare and ultimately their autonomy. John Eekelaar has developed a well-respected version of children's rights.³¹⁶ He started with Joseph Raz's definition of a right that: 'a law creates a right if it is based on and expresses the view that someone has an interest which is sufficient ground for holding another to be subject to a duty'.³¹⁷ Eekelaar suggests that three kinds of interest are relevant for children:

1. *Basic interests.* These are the essential requirements of living – physical, emotional and intellectual interests. They would include the interest in being provided with food and clothing and in developing emotionally and intellectually. Eekelaar argues that the duty to promote these basic needs lies on parents, but there is also a duty on the state to provide these where parents fail to do so.
2. *Developmental interests.* Eekelaar describes these as 'all children should have an equal opportunity to maximise the resources available to them during their childhood (including their own inherent abilities) so as to minimise the degree to which they enter adult life affected by avoidable prejudices incurred during childhood'.³¹⁸ Eekelaar accepts that, apart from education, these would be hard to enforce as legal rights.
3. *Autonomy interest.* This is the freedom for the child to make his or her own decisions about their life.

Of these three interests, Eekelaar would rank the autonomy interest as subordinate to the developmental and basic interests.³¹⁹ So children would not be able to claim autonomy interests in a way that would prejudice their basic or developmental interests. He would therefore allow children to make decisions for themselves, even if those were bad mistakes, unless the decision involved infringing one of the basic or developmental interests. This would mean that a child's decision not to go to school would be overridden, because this

³¹⁴ Eekelaar (1986: 161).

³¹⁵ Eekelaar (1994b).

³¹⁶ Eekelaar (1994b and 2006b: ch. 6).

³¹⁷ Raz (1994).

³¹⁸ Eekelaar (1994b).

³¹⁹ Eekelaar (1994b). Freeman (1997a) proposes a similar theory and agrees with the subordination of autonomy to other basic needs of the child.

would be infringing their developmental interests. But their decision to wear jeans should not be overridden as it would not infringe their interests.³²⁰ Of course, there may be borderline cases (would nose piercing be permitted?) but such borderline cases are present in every theory. Eekelaar's approach has the benefit of providing an explanation of why children do not have all the rights of adults – so that they can have greater autonomy as adults – and provides a sensible practical model enabling children to make some decisions for themselves, but not so as to cause themselves serious harm.³²¹

Eekelaar has developed his thinking by suggesting that the law should promote a child's welfare by encouraging dynamic self-determinism.³²² He explains that:

The process is dynamic because it appreciates that the optimal course for a child cannot always be mapped out at the time of decision, and may need to be revised as the child grows up. It involves self-determinism because the child itself is given scope to influence the outcome.³²³

The aim of this approach is:

To bring a child to the threshold of adulthood with the maximum opportunities to form and pursue life-goals which reflect as closely as possible an autonomous choice.³²⁴

This means that:

in making decisions about children's upbringing, care should be taken to avoid imposing inflexible outcomes at an early stage in a child's development which unduly limit the child's capacity to fashion his/her own identity, and the context in which it flourishes best.³²⁵

This approach then would give children an increasing role in making decisions for themselves as they grow up.

One way to test Eekelaar's theory would be to ask (as Eekelaar has) how as adults looking back on our childhood we would have wished to have been raised. The answer is probably that we would not have wanted every desire we had as children to be granted. It may well be that we would come up with a set of guidelines similar to Eekelaar's. Interestingly, a survey of children's views found a general agreement that although children should be able to make some decisions, parents should make important ones.³²⁶ Surely listening to children to find out what rights they think they ought to have is a productive way of considering the issue.

A dramatic example of the exercise of children's rights concerned a 14-year-old Dutch sailor who wished (with her parents' consent) to sail around the world. The Dutch authorities were concerned about her welfare and she was put into care by the Dutch authorities. She managed to escape and start her voyage. She was later given permission by the courts to undertake her expedition.³²⁷

However, Eekelaar's approach is problematic. David Archard³²⁸ considers parents who face a choice of encouraging a child to play sport or music. If we ask what as an adult the child would want, this is problematic because what the child would think when he or she

³²⁰ Unless he or she were not allowed to attend school while wearing jeans.

³²¹ Giddens (1998: 191–2) argues for the democratisation of family life, with children being treated as equal citizens in the family.

³²² Eekelaar (1994a).

³²³ Eekelaar (1994a: 48).

³²⁴ Eekelaar (1994a: 156).

³²⁵ Eekelaar (2004: 186).

³²⁶ Cherney (2010).

³²⁷ BBC Newsonline (2010d).

³²⁸ Archard (2003: 51).

grows up will depend on the choice. If the parents choose music and the child grows up a talented musician, he or she will approve of his or her parents' decisions. However, if the parents choose sport and the child becomes a successful sportsperson, the child will approve of that decision.³²⁹ There are also problems because the hypothetical adult will decide using adult eyes. Would the adult let the child go to an expensive Santa's grotto at Christmas, or would the hypothetical adult regard that as a waste of money? There is a real danger that children are regarded only as 'adults in the making' and childhood is not appreciated in its own right.³³⁰ Lucinda Ferguson has strongly criticised much writing on children's rights for failing to take a child-centred version of children's rights, giving children the rights adults think they should have, rather than looking at the issue from children's perspective.³³¹

There are also difficulties with applying Eekelaar's theory practically in modern society. Imagine a child who is a highly gifted artist. What are the parents to do? Should the parents permit or encourage the child to devote most of her life to developing this talent? If the parents do, is it not arguable that that will limit the child's range of lifestyles in adulthood: she will be aged 18, a gifted artist, but with a limited range of alternatives in life. If, however, the parents seek to encourage her to develop a wide range of interests and hobbies and not dedicate a large portion of her life to art, it is unlikely that she will be sufficiently skilled to become a professional artist. With increased specialisation (especially in artistic, academic and sporting activities), dedication in childhood is essential in order to live out some life goals. A more common example is of children whose parents have undergone a bitter divorce. The court may have to decide whether the child will live with the mother or the father, knowing that contact with the other parent is unlikely to be effective. In such a case the court cannot keep the options open for the child to decide when they are an adult; the court must decide on some basis which is best for the child. Indeed, a parent who tried to ensure that a child had a maximum range of options available at adulthood would soon collapse with exhaustion!

A second problem with Eekelaar's approach is that it is not clear why it is restricted to childhood. The university student who fails to work towards their degree and ends up failing their examinations could be said to have lessened their ability to choose their life choices. Is there a good reason for not permitting a child to limit their life choices but allowing university students to do so?!

A third objection is that Eekelaar's approach may lead to an open-ended solution. Leaving the question so that the child can make decisions when they are old enough may leave issues connected with the child's upbringing unresolved and open-ended. For example, in relation to a dispute over religious upbringing, Eekelaar's approach may suggest that a child be brought up within both religions so that they can decide their religion for themselves later on in life. However, this may leave the child confused and unsettled.³³² Despite these difficulties, it is submitted that Eekelaar's approach provides the best approach to examining children's rights.

³²⁹ A similar issue arises in raising a child with a particular religious belief, or ethnic identity. Eekelaar (2004) sees advantages in raising children with a variety of identities to choose from, although he sees nothing wrong with raising a child with a clear single sense of a single identity.

³³⁰ Cassidy (2009 and 2012).

³³¹ Ferguson (2013b). She does not, unfortunately, suggest what a child-centred version of children's rights would look like.

³³² Although see Eekelaar's (2004) reply to points of this kind. He rejects an argument that the child would find being raised with a variety of religions confusing.

It should not be thought that all supporters of children's rights are happy to give children the leeway to make decisions that even Eekelaar's model gives. Dwyer³³³ is adamant that any rights that children have must protect their best interests; they have a right to have their welfare promoted.³³⁴ Therefore, children should not be permitted to make decisions which will harm them. We will return to this issue later when we consider whether there is a difference between a rights-based approach and a welfare-based approach. There is, of course, a range of mid-way responses which suggest that children should be consulted over decisions concerning their upbringing, but their views will not be determinative.³³⁵

The Equality Act 2010 provides protection from discrimination on a broad range of characteristics, including age. However, it does not apply to children. The Government explained:³³⁶

Age discrimination provisions do not extend to the under 18s because it is almost always appropriate to treat children of different ages in a way which is appropriate to their particular stage of development, abilities, capabilities and level of responsibility.

However, the fact that discrimination against children may often be justified does not mean that children should not be protected from it when it is not justified. Having recognised in the Equality Act that unjustified age discrimination is a degrading treatment which needs to be challenged, it is hard to justify why that should be only true in the case of adults. The fact children are excluded from protection from age discrimination is a striking example of the failure to accord full weight to children's rights. The Government justified the exclusion by saying:

It was decided that age discrimination legislation is not an appropriate way to ensure that children's needs are met. It is almost always right to treat children of different ages in a way which is appropriate to their particular stage of development. Any such legislation would require a large number of exceptions.³³⁷

The Equality Act 2010 makes it clear that discrimination can be justified if there are sufficiently good reasons for it. So, it is not quite correct to say the legislation would require exceptions, it would be more accurate to say there may be a larger number of cases (as compared to, say, race discrimination) where there would be discrimination, but it would be justifiable under the Equality Act 2010. However, even that may be questioned. Flacks claims it is now well established that "adults consistently underestimate children's capacities" and that research shows 'most 14 year olds have equivalent competence to adults'. Even if that is disputed³³⁸ the UN Committee on the Rights of the Child emphasises that state parties 'cannot begin with the presumption that a child is incapable of expressing his or her own views. On the contrary, State parties should presume a child has the capacity to form her or his own views . . .'³³⁹ (paragraph 20). So, maybe the question is not whether the majority of 14-year-olds are as competent at making decisions as adults are, but rather whether it is right to presume all 14-year-olds lack decision making ability, just because some, maybe many, do.³⁴⁰

³³³ Dwyer (2006: 11).

³³⁴ Dwyer (2006: 132). See also Fortin (2006a) who rejects suggestions that rights can ever be used in a way which fundamentally harms a child.

³³⁵ Archard and Skivenes (2009).

³³⁶ HM Government (2010b: 11).

³³⁷ Quoted in Flacks (2014).

³³⁸ Herring (2012e).

³³⁹ Flacks (2014).

³⁴⁰ Watkins (2016).

B The argument against rights for children

DEBATE

Is there a case for children not having rights?

Here are some of the arguments that have been put forward against children having rights:

1. There are two main theories of rights: the will theory and the interest theory.³⁴¹ The will theory argues that rights can only exist where the right-holder can have choice in deciding whether or not to enforce the rights. This would mean that children (especially if very young) could not have rights.³⁴² McCormick and other supporters of children's rights argue that this would be unacceptable and hence he rejects the will theory of rights in favour of the interest theory, which protects the interests of the right-holder and is not dependent on the ability to make a choice.³⁴³ The arguments for and against these theories are discussed in detail in books on jurisprudence.³⁴⁴
2. A second objection would be that focusing on rights does not provide adequate protection for children.³⁴⁵ Children are vulnerable and need protection from adults who can seek to take advantage of them and from children's own foolish decisions. Lucinda Ferguson³⁴⁶ claims that children's rights can only be justified if they lead to better outcomes for children and so she could not support a version of children's rights that harms children.

A moderate version of children's rights, such as Eekelaar's, might diffuse such fears. However, there are still concerns that too much weight may be placed on children's wishes. Sir Thomas Bingham MR in *Re S (A Minor) (Independent Representation)*³⁴⁷ has explained:

First is the principle, to be honoured and respected, that children are human beings in their own right with individual minds and wills, views and emotions, which should command serious attention. A child's wishes are not to be discounted or dismissed simply because he is a child. He should be free to express them and decision-makers should listen. Second is the fact that a child is after all a child. The reason why the law is particularly solicitous in protecting the interests of children is that they are liable to be vulnerable and impressionable, lacking the maturity to weigh the longer term against the shorter, lacking the insight to know how they will react and the imagination to know how others will react in certain situations, lacking the experience to match the probable against the possible . . .

3. A further difficulty with rights for children is that an enforcement of a right of autonomy for a child will mean in many cases an infringement of a parent's or other carer's rights.

³⁴¹ McCormick (1976).

³⁴² It could be argued by supporters of the will theory who wish to support children's rights that if children are not competent to choose whether or not to enforce their rights, parents are entitled to enforce those rights on children's behalf. See the discussion in Archard (2003: 7).

³⁴³ The benefits and disadvantages of these approaches are beyond the scope of this text.

³⁴⁴ See, for example, Tobin (2013 and 2015); Eekelaar (2011c); Griffin (2008); McCormick (1976); Archard (2003: ch. 1); Federle (2009).

³⁴⁵ Purdy (1994).

³⁴⁶ Ferguson (2013b).

³⁴⁷ [1993] 2 FLR 437, [1993] 2 FCR 1.

Children live much of their childhood dependent on adults, and their relationship with adults is crucial.³⁴⁸ That argument will be of less concern if we accept that there needs to be a fair balancing between the rights of children and parents.

4. It is arguable that the language of rights is quite inappropriate in intimate family relationships, where sacrifice and mutual support are the overriding values of the family unit, rather than the individual market-place philosophy where rights might make more sense.³⁴⁹ It may be possible to produce a vision of rights that promotes individual autonomy *and* interpersonal connection, but these would not be identical to rights as they are commonly understood.³⁵⁰

Much work among feminist writers sympathetic to such arguments has been in developing an 'ethic of care'.³⁵¹ Sevenhuijsen explains that the ethic of care: 'is encapsulated in the idea that individuals can exist only because they are members of various networks of care and responsibility, for good or bad. The self can exist only through and with others and vice versa . . .'.³⁵² Such a model would seem to emphasise the values of interdependence and relationships, rather than individualistic versions of rights. Smart has explained that the ethic of care:

need not be carried forward on the basis of individual rights in which the child is construed as an autonomous individual consumer of oppositional rule-based entitlements, but more where the child is construed as part of a web of relationships in which outcomes need to be negotiated (not demanded) and where responsibilities are seen to be reciprocal.³⁵³

Fiona Kelly has argued that children must be seen as relational beings. An ethic of care approach can do this, but neither a welfare (protectionist) approach, nor a rights based approach does this:

While protectionism and children's rights go some way towards understanding children as relational beings, both are fundamentally incompatible with such a construction. The protectionist model does acknowledge the parent/child relationship, but the relationship it protects is inherently unequal. It is premised on children's incapacity and the right of adults to speak on behalf of children. Similarly, while there is some acknowledgement under the children's rights model of the importance of connection in children's lives – for example, the Convention on the Rights of the Child gives the child a right to maintain relationships with caregivers if it is in his or her best interests – because the rights model is focused on producing a rational and autonomous adult, connection is treated as a stage in the maturity process which will ultimately be supplanted by detached individualism. In addition, the relationships a children's rights model envisages protecting arise out of the enforcement of rights, rather than the acknowledgement or valorisation of connection; caregiver relationships are protected because the child has a 'right' to maintain them.³⁵⁴

³⁴⁸ Guggenheim (2006).

³⁴⁹ Regan (1993a).

³⁵⁰ Herring (1999a).

³⁵¹ See, for example, Sevenhuijsen (2000); Noddings (2003).

³⁵² Sevenhuijsen (2002: 131). See also Herring (2007a).

³⁵³ Smart (2003: 239).

³⁵⁴ Kelly (2005: 385).

³⁵⁵ have made a wider point, that the law in its emphasis on individualised rights can fail to attach sufficient significance to relationships of care:

We are not self-sufficient but interdependent; not isolated individuals but people in relationship; not people with rights clashing with those who care for us and for whom we care, but people who live with entwined obligations and interests with those we love. We are not easily divided up into carers and cared for. We are in mutually supportive relationships. We need then a legal and ethical approach that promotes just caring: respects it; rewards it; and protects those rendered vulnerable by the caring role – an approach which has relationship at its heart.

It may be possible, however, to deal with these concerns within a human rights framework, by developing an approach to rights which attaches appropriate weight to relational values.³⁵⁶

5. O'Neill³⁵⁷ has suggested that it would be more profitable to focus on the notion of duties that adults owe towards children, than to stress the rights of children.³⁵⁸ She is particularly concerned with impressive-sounding rights when it is unclear who has the duty to provide the child with the benefit. She warns:

many of the rights promulgated in international documents are not perhaps spurious, but they are patently no more than 'manifesto' rights . . . that cannot be claimed unless or until practices and institutions are established that determine against whom claims on behalf of a particular child may be lodged. Mere insistence that certain ideals or goals are rights cannot make them into rights . . .³⁵⁹

O'Neill therefore argues that there are obligations owed to children, which cannot be recognised as rights, but that should still be recognised as obligations. This might be particularly desirable in cases where children lack maturity to be able to enforce rights themselves.³⁶⁰ The main remedy she suggests to deal with children's powerlessness is to grow up. Her approach can be used to support the view that we should focus on dealing with the wrongs done to children, rather than giving them rights;³⁶¹ although rights supporters would argue that giving children rights is the best way of protecting them from wrongs. They might also agree with O'Neill that imposing obligations on adults is important, but this can be done in addition to giving children rights.

6. A further argument is that even if in theory children's rights are beneficial, in practice children's rights can be used to the disadvantage of women and children.³⁶² The fear is that rights are of use to those who have strength within society and, in particular, rights are of use to men to be used as tools of oppression. For example, children's rights could be used to investigate and control the intimate lives of women.
7. There are also concerns that children's rights reflect the norms within society, which may be discriminatory. Frances Olsen asks why getting children to help mother bake cookies at

³⁵⁵ Herring (2007a). See also Rhoades (2010b).

³⁵⁶ See Rhoades (2010b); Choudhry and Herring (2010: ch. 3); Wallbank *et al.* (2009).

³⁵⁷ O'Neill (1992).

³⁵⁸ See also Ferguson (2015c). For a discussion over whether too much is expected of children's rights, see Freeman (2000c).

³⁵⁹ Discussed further in Freeman (1997a).

³⁶⁰ Federle (2009: 343).

³⁶¹ Simon (2000).

³⁶² Olsen (1992).

home is not a form of child labour.³⁶³ This question, although a little tongue in cheek, does lead us to enquire how many of what we regard as human rights are in fact just a reflection of the cultural values of our society.

8. There is a concern over the enforcement of children's rights. If children's rights can only realistically be enforced by adults, it may be that such rights will be used only for the benefit of adults.³⁶⁴ For example, the courts have held that a child has a right to know his or her genetic origins, but in practice this only occurs when a father seeks to have biological tests carried out to determine whether or not he is the father. This example may lead one to conclude that in reality this is a right for fathers to establish paternity, rather than for children to know their genetic identity. In *R (On the Application of Williamson) v Secretary of State for Education and Employment*³⁶⁵ Baroness Hale memorably opened her speech: 'My lords, this is, and has always been, a case about children, their rights and the rights of their parents and teachers. Yet there has been no one here or in the courts below to speak on behalf of the children . . . The battle has been fought on ground selected by the adults.' She returned to the theme in *R (On the Application of Kehoe) v Secretary of State for Work and Pensions*.³⁶⁶ 'My lords, this is another case which has been presented to us largely as a case about adults' rights when in reality it is a case about children's rights.'

A slightly different point is about the problems the adult world may have in listening to children: children in our society are not used to being listened to. In schools and homes children become accustomed to not being expected to make decisions for themselves.³⁶⁷ Lowe and Murch also raise the issue of difficulties over communication between children and adults:

children, in certain respects, inhabit different cultural worlds from adults. Moreover, they can be baffled by the language of adults, especially by professional jargon. Equally, adults are often unfamiliar with children's language codes which, in any event, can differ from age group to age group.³⁶⁸

The ease of misconception is demonstrated by the finding of one study which suggested that children associated courts with criminal wrongdoing, even if in fact the court is a family one.³⁶⁹

9. Some commentators have argued that the most important right children have is 'the right to be a child'.³⁷⁰ This argument emphasises that children should not be expected to bear the responsibilities of adulthood. There is, for example, evidence from psychologists interviewing children whose parents are divorcing which suggests that, although children do wish to be listened to by their parents and the courts, they do not wish to be required to choose between their parents.³⁷¹ Neale found that children wanted to be involved in decision making, but to reach decisions with adults and not to be expected to reach decisions on their own.³⁷² Critics suggest that such arguments are based on an idealised childhood – a time of innocence, free from the concerns and responsibility of the adult world – that is a far cry from the poverty, bullying and abuse which is the lot of all too many children.³⁷³

³⁶³ Olsen (1992).

³⁶⁴ Guggenheim (2006).

³⁶⁵ [2005] 1 FCR 498 at para 71.

³⁶⁶ [2005] 2 FCR 683 at para 49.

³⁶⁷ Schofield and Thoburn (1996: 62).

³⁶⁸ Lowe and Murch (2001: 145).

³⁶⁹ Lowe and Murch (2001: 152).

³⁷⁰ Campbell (1992).

³⁷¹ Tisdall *et al.* (2004).

³⁷² Neale (2004). See also Smart (2002).

³⁷³ See Phillips (2003) who discusses the pervasive violence faced by many children in their everyday lives.

10. Some commentators from a more traditionalist perspective have been concerned about the way children's rights could be used to interfere in the privacy rights accorded to the family. Lynette Burrows writes:

State intervention into family life is feared and loathed by most children more than anything. They are more troubled by the state interfering than they are reassured by the protection offered. Children do not want rights, they want love and protection and the majority of them do not want social workers or anyone else coming into their families and telling their parents they are not behaving properly.³⁷⁴

However, you might wonder whether what she is saying is true for children who are being abused by their parents.

Questions

1. *Should children who are as competent as adults be treated exactly the same as an adult?*
2. *Do rights work in the context of intimate relationships?*
3. *Do children want rights?*

Further reading

Read **Archard and Skivenes** (2009) for a discussion of how to balance attaching weight to the wishes of children and to their protection.

C Extra rights for children

So far we have focused on whether children are entitled to all the rights that adults have. But can children claim rights which adults do not have? It certainly seems so.³⁷⁵ Children may be thought to have rights to education, protection from abuse³⁷⁶ and financial support to a greater extent than might be claimed by adults. These would reflect the developmental interests expounded in Eekelaar's approach. A clear example is that a parent is liable to support a child financially until (normally) the child reaches the age of 18.³⁷⁷ These rights, then, are the rights of the child to enable him or her to become an adult and take on the full mantle of rights an adult has.

D Children's rights for adults

Most of the discussion on children's rights has centred on the debate whether children are as competent as adults. Although difficult to gauge, probably most commentators appear to accept that the vulnerability of children and their dependency on their parents means that children cannot be granted the same rights as adults. However, it is interesting to ask the question the other way around: are adults as vulnerable and dependent as children? Although the law tends to assume that adults are self-sufficient, fully competent adults, this is an ideal which is unrealistic for many adults.³⁷⁸ Maybe the fact we are uncomfortable with children

³⁷⁴ Burrows (1998: 54).

³⁷⁵ Ferguson (2013b).

³⁷⁶ For example, Children Act 1989, Part IV.

³⁷⁷ See Chapter 6.

³⁷⁸ Lim and Roche (2000).

having the rights adults have tells us that our model of rights for adults is faulty. It can be argued that 'once co-operative, care-giving relationships among vulnerable people (rather than autonomous individuals) are seen as the basis around which rights work, the difficulties with children having the same rights to a large extent fall away'.³⁷⁹

E Children's rights in practice

As we have seen, most of the academic discussion on children's rights has centred on children's rights of autonomy. However, this discussion of children's rights is skewed from a western perspective. Notably, looking at the main English and Welsh textbooks on family law it is easier to find a discussion on whether children should be allowed to pierce their noses than on children's right to clean water. We tend to take for granted that the basic needs of children are met. However, Britain need not be complacent.³⁸⁰

KEY STATISTICS

- 3.9 million children live in poverty in the United Kingdom according to the figures for 2015.³⁸¹
- UNICEF in a report placed England bottom of a league of child well-being of 21 countries.³⁸² It found 118 ways in which England was failing to give due respect for children's rights.
- 'There is huge inequality in children's enjoyment of the right to life. The figures still show that infant mortality varies significantly according to socio-economic group; for example babies with fathers employed as shelf stackers or care assistants ("semi-routine occupations") were almost twice as likely to die as those born to professionals'.³⁸³
- 10% of children have a mental health problem at any one time.³⁸⁴
- Four out of five teachers report that some of their children are arriving at school hungry.³⁸⁵
- 22.4% of children are bullied daily, with disabled children and children from ethnic minorities most at risk of bullying.³⁸⁶
- Of children aged 2–15, 31.2% in England are classified as either obese or overweight.³⁸⁷
- There were 47,006 officially reported sexual offences and 10,136 cruelty and neglect offences against children. Of course not all crimes against children are reported. One in six 11–17-years-olds reported suffering severe maltreatment.³⁸⁸
- There were 187 suicides of those aged 15–19 in 2014.³⁸⁹

³⁷⁹ Herring (2003b: 172).

³⁸⁰ See Committee on the Rights of the Child (2016) for a discussion of the position of children in the UK.

³⁸¹ Child Poverty Action Group (2016).

³⁸² UNICEF (2007).

³⁸³ Children's Rights Alliance in England (2014).

³⁸⁴ Young Minds (2016).

³⁸⁵ Children's Rights Alliance for England (2014).

³⁸⁶ Children's Rights Alliance for England (2014).

³⁸⁷ Public Health England (2016).

³⁸⁸ Bentley *et al.* (2016).

³⁸⁹ Bentley *et al.* (2016).

- UK children watch an average of more than two hours of television and spend over three hours online each day.³⁹⁰
- A major survey by Girlguiding in 2013 found that 'Sexual harassment is commonplace, girls' appearance is intensively scrutinised and their abilities are undermined.' Three-quarters of 11–17-year-old girls said that sexism affected most areas of their lives.
- The president of the Family Division pointed out that Britons give far more money by way of charitable giving to donkey sanctuaries than to children in need.³⁹¹

Indeed, the United Nations Committee on the Rights of the Child had no difficulty in providing extensive criticism of the position of children within the United Kingdom.³⁹²

F Is there a difference between a welfare-based approach and a rights-based approach?

Does it really make any difference whether the law talks in terms of children's rights or their welfare?³⁹³ Traditionally there has been seen to be a clash between those who are paternalists and those who are supporters of children rights. Paternalism takes as its starting point that children are vulnerable and in need of protection from the dangers posed by adults, other children and themselves. Children lack the knowledge, experience or strength to care for themselves, and therefore society must do all it can to promote the child's welfare.³⁹⁴ Within paternalism there is some dispute over who should decide what is in the child's best interests: the child's parents or the state, taking the advice of expert psychologists.

After all, the rights of children to clothing, food, education, etc. could all equally be supported in terms of a child's right to their basic needs and as necessary in order to promote a child's welfare. Indeed, as Eekelaar has pointed out, 'if people have rights to anything, it must include the right that their well-being be respected'.³⁹⁵ In fact, in the vast majority of situations there would be no difference in result whether a rights-based approach or a welfare-based approach was taken. But, in practical terms, when would it matter which approach is taken? Looking at Eekelaar's approach, the welfare approach would justify promoting a child's basic or developmental interests. The difference between the approaches is revealed when considering autonomy. The rights-based approach would permit children to make decisions for themselves as long as there is no infringement of the developmental or basic interests. A welfare approach would also permit children to make some decisions for themselves. This is because it could be said to be in a child's interests to learn from their own mistakes. Alternatively, it could be argued that refusing to follow the child's wishes would cause the child emotional distress. The difference between a welfare approach and Eekelaar's rights-based approach would be over a small band of cases where allowing a child to decide for

³⁹⁰ BBC Newsonline (2011).

³⁹¹ Butler-Sloss (2003).

³⁹² Committee on the Rights of the Child (2016); UK Children's Commissioners (2009).

³⁹³ See the very useful discussion in Bainham (2002a) and Moylan (2010).

³⁹⁴ Fox Harding (1996).

³⁹⁵ Eekelaar (2002a: 243).

him- or herself would not infringe their basic or developmental interests, but would cause enough harm for a welfare approach to decide that more harm would be caused by allowing them to make the decision than not.

A child welfarist can, therefore, readily accept that children should be able to make decisions for themselves, and a children's rights proponent can readily accept that children's choices should be restricted in order to promote their welfare. Indeed, it would be quite possible for a children's rights advocate to be less willing than a child welfarist to allow children to make decisions for themselves. This would be so where a children's rights advocate emphasised children's rights to protection from harm, the right to a safe environment or the right to discipline and/or where a child welfarist placed much weight on the benefit to children of developing their own personalities through making decisions for themselves and learning from their mistakes.

It could be said that children have a right to have their welfare promoted.³⁹⁶ However, Eekelaar³⁹⁷ has rejected any suggestion of such a right:

A claim simply that some should act to further my welfare as they define it is in reality to make no claim at all. Running behind these explicit propositions lies the suggestion that to treat someone fully as an individual of moral worth implies recognizing that that person makes claims and exercises choices: that is, is a potential right-holder.

Even if in practical terms there are few cases when the approaches would produce different results, there are important conceptual differences between the two approaches. The first is that although both rights and welfare models can be explained on the basis that they protect the child's interest, in the welfare model the courts or parents determine what children's interests are, whereas the rights-based model seeks to promote the interests as the child sees them to be, or would see them were they capable. A second important difference is that the existence of rights implies that there are duties: that is, that the child (or those acting on behalf of the child) can make claims against the court or parents. However, a welfare approach imposes no obligation on the parents or courts, unless we merge the two approaches and give the children a right to have their welfare promoted by the courts and their parents.³⁹⁸ A third is that there may be rights which a child has, which cannot necessarily be demonstrated to promote his or her welfare. For example, it is increasingly recognised that a child has a right to know his or her genetic origins, even though it might not be possible to demonstrate that this knowledge promotes a child's welfare.

There is also an important difference between the two approaches in the form of reasoning used. Under the welfare approach the focus of the court is solely on what is best for the child, while under a rights-based approach all of the interests of the parties are considered. Supporters of a rights-based approach argue that that improves the quality of the reasoning and means that each party can leave court feeling that the case has been looked at from their perspective and that they had their rights considered.³⁹⁹ Opponents might respond that as soon as the focus of the court's attention is diverted from considering the position of the child, the results are likely to harm children.

To see how the theoretical discussion operates in practice, this section will now briefly discuss cases where the interests of children, parents and the state have had to be balanced. The area that reveals the issues better than any other is medical law.

³⁹⁶ See Fortin (2006a) who is critical of those who see rights and welfare as incompatible.

³⁹⁷ Eekelaar (1992: 221).

³⁹⁸ Eekelaar (1994d).

³⁹⁹ Choudhry and Herring (2010: ch. 3).

13 Children and medical law

Many of the cases involving disputes between children and adults have concerned medical treatment.⁴⁰⁰ The cases are useful beyond the medical arena because they give some general guidance on how disputes between children and adults should generally be resolved.

The law on when a doctor can treat a child can be summarised as follows.⁴⁰¹ Unless there has been a court order forbidding the carrying out of the treatment, a doctor can provide treatment to a child which he or she believes to be in the child's best interests if, and only if:

- the child is competent and consents to the treatment; or
- those with parental responsibility consent; or
- the court declares the treatment lawful; or
- the defence of necessity applies.

The court cannot force a doctor to provide treatment which the doctor does not wish to provide. An understanding of the law must start with the fact that a doctor who touches a patient commits a battery, which is a criminal offence, unless he or she has a defence. A defence is provided in any one of the four circumstances listed above. These will now be considered in further detail.

A 16- and 17-year-olds

Section 8(1) of the Family Law Reform Act 1969 states:

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Family Law Reform Act 1969, section 8(1)

The consent of a minor who has attained the age of sixteen years to any surgical, medical or dental treatment . . . shall be as effective as it would be if he were of full age; and where a minor has by virtue of this section given an effective consent to any treatment it shall not be necessary to obtain any consent for it from his parent or guardian.

This indicates clearly that a child aged 16 or 17 can give legal effect to treatment, unless they are shown to be incompetent, using the same rules as for an adult. This might arise if they suffered from a mental disability.

What if a child aged 16 or 17 refused to consent but their parents did consent to the treatment? Following *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)*,⁴⁰² a doctor can rely on the consent of the parents of a 16- or 17-year-old, despite the opposition of the child. However, this decision is subject to an important caveat. The doctor can only treat a patient if he or she believes the treatment is in the best interests of the patient. It would be most

⁴⁰⁰ But see *Re Roddy (A Child) (Identification: Restriction on Publication)* [2004] 1 FCR 481 for an example of the use of children's rights in the area of freedom of expression.

⁴⁰¹ Freeman (2005) provides a useful summary and discussion of the current law.

⁴⁰² [1993] 1 FLR 1, [1992] 2 FCR 785.

unusual for a doctor to decide that it would be in the interests of a 16- or 17-year-old to receive medical treatment against their wishes. Balcombe LJ stated in *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)*:⁴⁰³

As children approach the age of majority they are increasingly able to take their own decisions concerning their medical treatment . . . It will normally be in the best interests of a child of sufficient age and understanding to make an informed decision that the court should respect its integrity as a human being and not lightly override its decision on such a personal matter as medical treatment. All the more so if that treatment is invasive.

Even if a doctor did wish to treat such a patient, relying on the consent of the parents, he or she may well prefer to obtain the authorisation of the court before so doing.⁴⁰⁴ In *Re C (Detention: Medical Treatment)*⁴⁰⁵ C, aged 16, suffered from anorexia nervosa. The court under the inherent jurisdiction directed that C should remain as a patient at a clinic until discharged by her consultant or further order of the court. This power included the use of reasonable force to detain her for the purposes of treatment. This is a highly controversial decision because it is unlikely that, had C been over 18, it would have been lawful to detain her. In *Re P (Medical Treatment: Best Interests)*⁴⁰⁶ a blood transfusion was ordered on a young woman who was nearly 18. Johnson J emphasised his reluctance to make the order given that she was so nearly 18. However, in the life or death situation facing him he was willing to make the order authorising the transfusion if that was the only way to save her life.

B Under 16-year-olds

The leading case here is *Gillick*.⁴⁰⁷

CASE: *Gillick v W Norfolk and Wisbech AHA* [1985] 3 All ER 402; [1986] 1 FLR 229; [1986] AC 112 HL

In 1980 the Department of Health and Social Security provided a notice that in 'exceptional circumstances' a doctor could give contraceptive advice to a girl under 16 without parental consent or consultation. Victoria Gillick, a committed Roman Catholic, sought to challenge the legality of the notice after she unsuccessfully requested assurances that none of her five daughters under 16 would receive advice without her permission. She lost at first instance, but won unanimously at the Court of Appeal, but lost 3–2 in the House of Lords.⁴⁰⁸ The fact that the majority of judges who heard the case decided in her favour, even though she lost at the end of the day, reveals the difficulty of the issues involved.

The majority of the House of Lords accepted that if a doctor decided that it was in the best interests of an under-16-year-old that she be given the contraceptive advice she sought and that she was competent to understand the issues involved, then the doctor was permitted to provide the treatment without obtaining the consent of the parents first. This was a hugely important decision because it recognised that under-16-year-olds had the right to give effective legal consent to medical treatment.

⁴⁰³ [1993] 1 FLR 1 at p. 19, [1992] 2 FCR 785 at p. 786.

⁴⁰⁴ *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)* [1992] 2 FCR 785.

⁴⁰⁵ [1997] 2 FLR 180, [1997] 3 FCR 49.

⁴⁰⁶ [2003] EWHC 2327 (Fam).

⁴⁰⁷ Discussed in Fortin (2011b).

⁴⁰⁸ The case also gave rise to some interesting issues of criminal law, which will not be discussed here.

The *Gillick* decision was reconsidered in the following case:⁴⁰⁹

CASE: *R (On the Application of Axon) v Secretary of State for Health (Family Planning Association intervening)* [2006] 1 FCR 175

Mrs Axon applied for judicial review of Department of Health guidance which said that medical professionals could provide advice on sexual matters, including abortion, to under-16-year-olds, without their parents being notified. Silber J, following *Gillick*, ruled that there was a duty of confidence owed to young people and so advice on abortion and other matters could be given without informing the parent. He placed particular weight on evidence that if confidentiality concerning sexual matters could not be guaranteed young people may be deterred from seeking medical advice and this would have 'undesirable and troubled consequences'.⁴¹⁰ He rejected a claim that parents had a right to be informed of advice or treatment given to their children under article 8 of the ECHR, explaining that parents have no right to family life in respect of a competent child who does not want the parents to have that right.⁴¹¹ Even if they did have a right to be told of treatment given to their children, this could be justifiably interfered with in the name of promoting good sexual health among young people.⁴¹² Having said all of that, Silber J stated that he hoped most young people would want to discuss sexual health issues with their parents.

It would be wrong to see *Axon* as a case which is a total victory for adolescent autonomy. Silber J listed five criteria that a doctor would have to be satisfied had been met before a doctor could give treatment to an under-16-year-old without informing his or her parents: they must understand all aspects of the advice; the medical professional had not been able to persuade the young person to inform his or her parents; (in the case of contraception) the young person is very likely to have sexual intercourse with or without the contraception; unless the young person receives the advice or treatment his or her physical or mental health are likely to suffer; and it is in the best interests of the young person to receive the treatment on sexual matters without parental consent. Notably, then, a doctor may refuse to provide a competent minor with medical treatment where if the patient were an adult they would be entitled to receive it as of right.

The *Gillick* decision, recently followed in *Axon*, left a number of issues unanswered:

(i) When is a child competent to give consent?

The Mental Capacity Act 2005 sets out the test for mental capacity in relation to adults, but it does not apply to children.⁴¹³ However, in developing the law in relation to children the courts may pay attention to the Act. In s 2 it is said that a person lacks capacity if he or she is unable to make a decision for him- or herself. Section 3(1) explains that a person is unable to make a decision if he or she is unable:

⁴⁰⁹ [2006] 1 FCR 175.

⁴¹⁰ At para 66. See Gilbar (2004) for a wider discussion of confidentiality in children cases.

⁴¹¹ See Douglas (2016: 273) who questions this holding. It would seem preferable to say that the parent does have a right of family life in connection with the decision, although this right can be interfered with because that is necessary in the interests of the child. After all, if the decision is not to have an abortion this will have a huge impact on the parent's life.

⁴¹² Although see Lee (2004) for a discussion of the practical difficulties young people face in accessing abortion services.

⁴¹³ Chico and Hagger (2011). See Cave (2014b) for further discussion.

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Mental Capacity Act 2005, section 3(1)

- (a) to understand the information relevant to the decision,
- (b) to retain that information,
- (c) to use or weigh that information as part of the process of making the decision, or
- (d) to communicate his decision (whether by talking, using sign language or any other means).

The term ‘*Gillick*-competent’ has been widely used to describe children who are sufficiently competent to give consent to treatment. In considering whether a child is *Gillick*-competent or not, the court will consider a number of issues:

1. *Does the child understand the nature of their medical condition and the proposed treatment?* Relevant here is not just the fact that the child understands what it is that is proposed to be done, but the possible side-effects of any treatment.⁴¹⁴ A fairly straightforward case was *Re JA (Medical Treatment: Child Diagnosed with HIV)*⁴¹⁵ where a 15-year-old boy was described as ‘thoughtful, intelligent and articulate’, but refused medication for HIV as he would not accept he had the condition. His failure to understand his medical state meant he lacked capacity to refuse treatment for it. There is some debate over whether the child must also understand what will happen if the treatment is not performed.⁴¹⁶ Rather controversially, in *Re L (Medical Treatment: Gillick Competency)*⁴¹⁷ L was found not to be competent because she did not appreciate the manner of her death if the treatment was not performed. The reason why she did not was because the doctors thought it would cause her undue distress if they were to tell her. It seems highly unsatisfactory that a child can be found not competent because the doctors have failed to give her the relevant information that she needs to be competent.⁴¹⁸ Emma Cave has argued that medical professionals are under a duty to maximise a child’s capacity.⁴¹⁹
2. *Does the child understand the moral and family issues involved?* This was stressed by Lord Scarman in *Gillick*. It was also thought relevant in *Re E (A Minor) (Wardship: Medical Treatment)*,⁴²⁰ where the court was concerned that the child did not appreciate how much grief his parents would suffer if he were to die.
3. *How much experience of life does the child have?* The courts have relied on this ground in particular when considering children brought up by parents of strong religious views. In *Re L (Medical Treatment: Gillick Competency)*⁴²¹ a 14-year-old had been brought up by Jehovah’s Witness parents. The court felt that she had lived a sheltered life and had not been exposed to a variety of different religious views. This pointed to the fact she was not

⁴¹⁴ *Re R (A Minor) (Wardship: Consent to Medical Treatment)* [1992] 1 FLR 190, [1992] 2 FCR 229.

⁴¹⁵ [2014] EWHC 1135 (Fam).

⁴¹⁶ Gilmore and Herring (2011a) say the child does not need to understand that and Cave and Wallbank (2012) saying he must. The statements in *Gillick* on this are not crystal clear.

⁴¹⁷ [1998] 2 FLR 810.

⁴¹⁸ Indeed, since this decision the British Medical Association has suggested that doctors should not fail to give minor patients information on the basis that to do so would cause them distress.

⁴¹⁹ Cave (2011).

⁴²⁰ [1993] 1 FLR 386.

⁴²¹ [1998] 2 FLR 810.

competent.⁴²² Similarly in *F v F*⁴²³ it was held that a 15-year-old was too strongly influenced by her mother to have capacity to make the decision.⁴²⁴

4. *Is the child in a fluctuating mental state?* If the child is fluctuating between competence and incompetence, the court will treat the child as not competent. This was the approach taken in *Re R (A Minor) (Wardship: Consent to Medical Treatment)*.⁴²⁵ The decision could be justified on the basis that, otherwise, the hospital would be in a very difficult position in having to decide each time the child was touched whether she was competent or not. Opponents of the decision would argue that inconvenience for medical professionals should not justify not taking the rights of children seriously.
5. *Is the child capable of weighing the information appropriately to be able to reach a decision?*⁴²⁶ Here the court will consider not only the child's ability to understand facts, but also the ability to weigh the facts in reaching a decision. Lord Scarman noted that it is necessary to ask whether the child 'has sufficient discretion to enable him or her to make a wise choice in his or her own interest'. Michael Freeman suggests this means the child needs to have 'wisdom', which is not necessarily the same thing as knowledge.⁴²⁷ He argues there needs to be 'less emphasis on what these young persons know – less talk in other words of knowledge and understanding – and more on how the decision they have reached furthers their goals and coheres with their system of values'.⁴²⁸ In *F v F*⁴²⁹ a 15-year-old refused to take the MMR vaccine because as a vegan she objected to the fact it contained animal products. It was said she was not competent because she was fixated on the ingredients of the vaccine and did not consider the wider picture. This decision has been criticised. Many adult vegans would have a similarly hard line against taking animal products and it is not clear why having a strong moral stance on an issue should mean you lack capacity.⁴³⁰ It is also worth adding that some psychiatrists are adamant that children have the reasoning capacities of adults in exceptional cases.⁴³¹

(ii) When the doctor can rely on the parent's consent

Lord Scarman had suggested in *Gillick* that 'the parental right yields to the child's right to make his own decisions when he reaches a sufficient understanding and intelligence to be capable of making up his own mind on the matter requiring decision'. This seemed to suggest that if the child was competent and refused to give consent then this refusal could not be overridden by someone with parental responsibility. However, the Court of Appeal has made it clear in cases following *Gillick* that, even if a competent child does not consent, the doctor can still treat a child if he or she believes that to do so would promote the welfare of the child, and someone with parental responsibility for the child gives consent. In *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)*⁴³² it was explained that a doctor who

⁴²² See also *Re S (A Minor) (Medical Treatment)* [1993] 1 FLR 376. For criticism of such cases see Eekelaar (1994a: 57).

⁴²³ [2013] EWHC 2683 (Fam).

⁴²⁴ See Herring (2013b) for criticism.

⁴²⁵ [1992] 1 FLR 190, [1992] 2 FCR 229.

⁴²⁶ *Re MB* [1997] Med LR 217.

⁴²⁷ Freeman (2007).

⁴²⁸ Freeman (2007).

⁴²⁹ [2013] EWHC 2683 (Fam).

⁴³⁰ Herring (2013b).

⁴³¹ Steinberg (2013); Wilhelms and Reyna (2013).

⁴³² [1993] 1 FLR 1, [1992] 2 FCR 785.

wishes to treat a patient needs a 'flak jacket' of consent that would provide protection from liability in criminal or tort law. It was stated that this flak jacket could be provided by either the competent child *or* a person with parental responsibility⁴³³ *or* by the court.⁴³⁴ So the fact that the child had refused to provide the flak jacket did not prevent someone with parental responsibility providing one. Indeed, in *Re K, W, and H (Minors) (Medical Treatment)*⁴³⁵ it was held that, where someone with parental responsibility gives consent, it was unnecessary and inappropriate to bring the matter before the court; the doctors should simply provide the treatment. In *Re M (Medical Treatment: Consent)*⁴³⁶ a 15-year-old girl refused a heart transplant, stating that she did not want to have someone else's heart. Her mother consented to the treatment. The Court of Appeal authorised the operation, stating that the preserving of the girl's life justified overriding her views. Notably here the Court of Appeal did not state whether she was or was not *Gillick*-competent. This was because it did not matter; someone with parental responsibility had provided the flak jacket and the operation was in the best interests of the girl so her views were irrelevant. In *Nielsen v Denmark*⁴³⁷ the European Court of Human Rights appeared to accept that the European Convention would permit treatment to be carried out on children against their wishes, relying on the consent of the parent.⁴³⁸

Stephen Gilmore and I⁴³⁹ have argued that in *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)*⁴⁴⁰ the court was dealing with a child who was *Gillick*-competent to refuse a particular treatment, but was not found to be competent to refuse all treatment. The case is not, we suggest, authority for finding that where a child is competent to refuse all treatment a parent can provide an effective consent. This is a controversial interpretation of the case law⁴⁴¹ and it remains to be seen if it would be accepted by the courts.

A shadow of doubt may have been created by Silber J's judgment in *R (On the Application of Axon) v Secretary of State for Health*⁴⁴² where he stated: 'the parental right to determine whether a young person will have medical treatment terminates if and when the young person achieves a sufficient understanding and intelligence to understand fully what is proposed'.⁴⁴³ This implies that if a child is competent then the parent has no right to determine what treatment a child shall receive. However, this is a single obiter statement of a first instance judge and it cannot, of course, overrule a well-established line of Court of Appeal cases.⁴⁴⁴ It does, however, indicate some judicial unhappiness with the way the law has developed.⁴⁴⁵

⁴³³ Only the consent of one parent with parental responsibility is required: *An NHS Trust v SR* [2012] EWHC 3842 (Fam). Although if the parents disagree it may be best to get a court order.

⁴³⁴ In an emergency, where the doctor cannot obtain the consent of the parent or the court the doctors may be able to rely on the defence of necessity if they are acting in the child's best interests. However, that is available only where there is no time to go to the courts: *Glass v UK* [2004] 1 FCR 553.

⁴³⁵ [1993] 1 FLR 854, [1993] 1 FCR 240.

⁴³⁶ [1999] 2 FLR 1097.

⁴³⁷ (1988) 11 EHRR 175.

⁴³⁸ In an obiter comment in *Re S (A Child) (Identification: Restrictions on Publication)* [2003] 2 FCR 577 Hale LJ suggested that a child might be competent enough to consent to an interview with a newspaper and her parents would not have any power to stop her.

⁴³⁹ Gilmore and Herring (2011b).

⁴⁴⁰ [1993] 1 FLR 1, [1992] 2 FCR 785.

⁴⁴¹ It is rejected in Cave and Wallbank (2012).

⁴⁴² [2006] 1 FCR 175.

⁴⁴³ At para 56.

⁴⁴⁴ See further Taylor (2007).

⁴⁴⁵ See also *Mabon v Mabon* [2005] EWCA Civ 634, [2005] 2 FLR 1011, [2005] 2 FCR 354 where, at para 28, Thorpe LJ emphasised the importance of letting competent teenagers make decisions for themselves.

It may be that despite the official line taken by the courts in practice the views of children are given weight by doctors. In one much publicised case a 14-year-old, Hannah Jones, refused the heart transplant recommended by her doctors even though without it she was likely to die. The doctors decided to abide by her wishes, although she subsequently decided to accept the transplant.⁴⁴⁶ In 2010 there were newspaper reports of a 15-year-old Jehovah's Witness, Joshua McAuley, who died after refusing a blood transfusion. In both these cases the issue was not brought to the courts.⁴⁴⁷

(iii) If the matter is brought before the court, how should the court resolve the issue?

Where cases involving disputes over the medical treatment of children have been brought before them, the courts have been very willing to approve the treatment proposed by the doctors, even if the treatment is opposed by the parents and the children.⁴⁴⁸ The cases that have come before either court have tended to be extreme: the children of Jehovah's Witnesses refusing to consent to a blood transfusion necessary to save their lives;⁴⁴⁹ an anorexic girl refusing treatment necessary to treat her illness.⁴⁵⁰ It would be quite wrong, however, to conclude that parents' wishes are largely ignored. The fact that only these rather extreme cases come before the court indicates that, normally, doctors abide by the parent's wishes and, if not, try very hard to persuade the child or parent to consent to the treatment. In *NHS Trust v A*⁴⁵¹ although Holman J declared that receiving a bone marrow transplant would be in the best interests of the child, he refused to order the parents (who opposed the treatment) to present the child at the hospital. Notably, this was a case where the judge found the arguments for and against the treatment fairly balanced. Had the treatment been better for the child beyond all doubt the judge could have used the inherent jurisdiction or wardship to ensure the child received the treatment.⁴⁵²

There is one notable case where the court sided with the parents, rather than the medical establishment: *Re T (A Minor) (Wardship: Medical Treatment)*.⁴⁵³ Here a baby, C, had a life-threatening liver complaint. There was a unanimous prognosis from the medical experts that, without a liver transplant, C would not live beyond two-and-a-half years of age. However, if a transplant could be found the prognosis was very good. The parents refused to consent to the transplant. This time the courts sided with the parents and refused to authorise the transplant without the consent of the parents. Before examining the court's reasoning, it should be stressed that there were several facts that made the case rather unusual. First, both parents were healthcare professionals who had experience of caring for sick children. Secondly, C had undergone earlier unsuccessful surgery and this had caused C much pain and distress. Thirdly, the parents at the time of the case had moved (for job reasons) to a distant Commonwealth country. The Court of Appeal, in deciding not to authorise the treatment, relied upon the welfare principle. It was stated that although there was a presumption in favour of prolonging a child's life, this was not the court's sole objective. Ward LJ stated: 'in the last analysis the

⁴⁴⁶ BBC Newsonline (2010c).

⁴⁴⁷ Roberts (2010).

⁴⁴⁸ *Re E (A Minor) (Wardship: Medical Treatment)* [1993] 1 FLR 386.

⁴⁴⁹ *Re E (A Minor) (Wardship: Medical Treatment)* [1993] 1 FLR 386, [1992] 2 FCR 219; *Re S (A Minor) (Consent to Medical Treatment)* [1994] 2 FLR 1065, [1994] 1 FCR 604; *M Children's Hospital NHS Foundation Trust v Y* [2014] EWHC 2652 (Fam).

⁴⁵⁰ For example, *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)* [1993] 1 FLR 1, [1992] 2 FCR 785.

⁴⁵¹ [2008] 1 FCR 34.

⁴⁵² For further discussion see Morris (2009).

⁴⁵³ [1997] 1 FLR 502, [1997] 2 FCR 363; discussed in Bainham (1997).

best interest of every child includes an expectation that difficult decisions affecting the length and quality of its life will be taken for it by the parent to whom its care had been entrusted by nature'.⁴⁵⁴ The decision seemed to place much weight on the intrusion that ordering the treatment would make in the lives of the parents: they would need to return from their new country and would be required to provide extensive care for the child. Arguably, these concerns were misplaced because, even if the parents were unwilling to make these sacrifices, they could hand the child over to be cared for by a local authority. In fact, despite the Court of Appeal's ruling, the parents did return to the United Kingdom and the child received treatment. The decision may be contrasted with *Re MM (Medical Treatment)*,⁴⁵⁵ where the Russian parents opposed the treatment proposed by the doctors for what the court described as 'rational reasons' (they were not sure the treatment could be provided on their return to Russia; and did not want to depart from a treatment which had worked in the past). However, Black J authorised the proposed treatment, confirming the approach of most cases of this kind which have stressed that parents are not to be permitted to make martyrs of their children. A similar approach was taken in *Re A (Conjoined Twins: Medical Treatment)*⁴⁵⁶ where the Court of Appeal authorised the separation of the conjoined twins despite the objections of the parents. Ward LJ added, however, that had the hospital decided to abide by the wishes of the parents and not operate this would have been a 'perfectly acceptable response'. However, that suggestion appears to overlook the rights of J (the stronger of the twins) to the life-saving treatment which the court decided she should receive.

There have been tragically difficult cases involving children who have been born severely disabled and there is dispute over the appropriate medical treatment for the child.⁴⁵⁷ The criminal law prohibits any acts of doctors designed to end the child's life, or acts aimed at shortening the child's life (as opposed to aimed at relieving pain).⁴⁵⁸ What is strictly forbidden is the performing of any act designed to end the life of the child: that would be murder. However, the courts may authorise the doctors to refrain from offering treatment. The general approach has been that, if there is medical evidence that the child's life will be painful or undignified if the child lives, the court will approve the non-treatment or withdrawal of treatment, even if the parents are in favour of providing treatment.⁴⁵⁹ In *Wyatt v Portsmouth Hospital NHS Trust*⁴⁶⁰ the Court of Appeal summarised the approach of the courts:

In our judgment, the intellectual milestones for the judge in a case such as the present are, therefore, simple, although the ultimate decision will frequently be extremely difficult. The judge must decide what is in the child's best interests. In making that decision, the welfare of the child is paramount, and the judge must look at the question from the assumed point of view of the patient . . . There is a strong presumption in favour of a course of action which will prolong life, but that presumption is not irrebuttable . . . The term 'best interests' encompasses medical, emotional, and all other welfare issues . . . The court must conduct a balancing exercise in which all the relevant factors are weighed . . .⁴⁶¹

⁴⁵⁴ The use of the term 'it' in reference to the child is revealing.

⁴⁵⁵ [2000] 1 FLR 224.

⁴⁵⁶ [2000] 4 All ER 961.

⁴⁵⁷ See Nuffield Council on Bioethics (2007) and Morris (2009). If there is a dispute between the parents and doctors, such cases should be brought before the court: *R v Portsmouth NHS Trust, ex p Glass* [1999] 2 FLR 905.

⁴⁵⁸ *Royal Wolverhampton Hospitals NHS Trust v B* [2000] 1 FLR 953 at p. 956, per Bodey J.

⁴⁵⁹ *King's College Hospital NHS Foundation Trust v T, V and ZT* [2014] EWHC 3315 (Fam); *Central Manchester University Hospitals NHS Foundation Trust v A* [2015] EWHC 2828 (Fam).

⁴⁶⁰ *Wyatt v Portsmouth Hospital NHS Trust* [2004] EWHC 2247; [2005] EWHC 117; [2005] EWHC 693; [2005] 3 FCR 263; [2005] 4 All ER 1325.

⁴⁶¹ *Wyatt v Portsmouth Hospital NHS Trust* [2005] 3 FCR 263 at para 87.

In making the welfare assessment, it is important to look at the issue from the point of view of the child.⁴⁶² A life which seems awful from 'the outside' may not be for the child concerned if they know no other existence. A child who is severely impaired but still maintaining a relationship with their family will still have a life of value.⁴⁶³

This approach has been held by Cazalet J in *A NHS Trust v D*⁴⁶⁴ not to be in breach of a child's right to life under article 2 of the European Convention on Human Rights. Indeed, not providing treatment which would extend an intolerable life was necessary under article 3, which required the state to ensure that the child was not subjected to inhuman or degrading treatment.

In assessing a child's best interests the courts will attach weight to the views of the child even if they are not *Gillick* competent. In part that is because if a child is opposing treatment and force will need to be used to impose the treatment upon them only in the most serious of cases will this be in their welfare. In that regard the decision in *F v F*⁴⁶⁵ is striking in that although the court determined that it was in the welfare of the children to receive the inoculation against their wishes, they did not order the doctors to provide it.⁴⁶⁶ However, the views of the child lacking capacity may be relevant even beyond the point about the need for force. In *Re X (A Child)*⁴⁶⁷ a 13-year-old girl was pregnant and wanted an abortion. Although Munby P determined that she lacked the capacity to make the decision in determining what order to make based on her best interests, her views carried weight in the welfare assessment. In that case it was ordered that the termination went ahead. By contrast in *An NHS Foundation Trust v A and Others*⁴⁶⁸ a 15-year-old girl who had anorexia nervosa refused treatment. It was held that she lacked capacity to refuse treatment and although her refusal was due respect it was overall in her best interests that she receive treatment.

(iv) Can a doctor be forced to treat a child?

The issue here relates to the situation where the doctor refuses to treat a child. This may be because the doctor believes that the treatment is not appropriate, or may be because of health-care rationing (for example, that the treatment is too expensive). It is clear that if a doctor declines to offer treatment, the court cannot force him or her to perform the operation. One option in such a case is for a patient to apply for judicial review, although such an option is unlikely to succeed unless there is strong evidence that the decision is unreasonable.⁴⁶⁹ In any event, even if judicial review is successful, the NHS trust would be required only to reconsider the decision and would not necessarily be required to perform the operation. If a doctor is unsure about the propriety of treatment (for example, because it is a risky, untried procedure), the matter could be brought before a court for guidance.⁴⁷⁰

⁴⁶² *NHS Trust v Baby X* [2012] EWHC 2188 (Fam).

⁴⁶³ *An NHS Trust v R* [2013] EWHC 2340 (Fam).

⁴⁶⁴ [2000] 2 FCR 577.

⁴⁶⁵ [2013] EWHC 2683 (Fam).

⁴⁶⁶ Cave (2014a).

⁴⁶⁷ [2014] EWHC 1871 (Fam).

⁴⁶⁸ [2014] EWHC 920 (Fam).

⁴⁶⁹ *R v Cambridge District Health Authority, ex p B* [1995] 1 FLR 1055.

⁴⁷⁰ E.g. *Simms v Simms* [2003] 1 FCR 361; *An NHS Foundation Trust v AB, CD and EF (By his Children's Guardian)* [2014] EWHC 1031 (Fam).

(v) Can the parents be criminally liable for failing to arrange suitable medical care for a child?

It is an offence when anyone over 16 with responsibility for a child 'wilfully assaults, ill-treats, neglects, abandons, or exposes him . . . in a manner likely to cause him unnecessary suffering or injury to health'.⁴⁷¹ This means that a parent who wilfully fails to ensure that the child receives adequate medical treatment commits an offence. It should be stressed that it must be shown that the failure to arrange treatment is wilful. Therefore, as *R v Sheppard*⁴⁷² suggests, if parents do not provide treatment due to their low intelligence they will not be punished.⁴⁷³ If the child dies after his or her parents fail to organise suitable medical treatment, there is even the possibility of a manslaughter or murder conviction.⁴⁷⁴

(vi) Are there some kinds of treatment which cannot be carried out on children?

Is there a limit to what the doctors, with the parents' consent, can do to a child? The dispute here surrounds non-therapeutic treatment, that is, treatment which has no direct medical benefit to the child. It seems that some non-therapeutic treatment can be carried out, but only if it can be shown that the treatment benefits the child in the wider sense. So, for example, the parent can consent to a blood test to determine a child's paternity. Although such a blood test does not provide medical benefits, it is thought to be in a child's interests as it enables his or her paternity to be ascertained. However, problems may arise where the child is asked to donate bone marrow or organs for the treatment of someone else. If the bone marrow or organ is to a close relative, it may be possible to find a benefit to the child. For example, if a child is donating an organ to their sister and without the treatment the sister will die, the benefit to the child of maintaining the relationship with the sister may be sufficient to make the donation to the child's benefit.⁴⁷⁵

A procedure that is clearly to the detriment of a child may not be lawful. For example, it may be that a parent could not effectively consent to multiple body piercing of a child.⁴⁷⁶ One particularly controversial issue is circumcision. Female genital mutilation is unlawful, unless necessary for medical reasons.⁴⁷⁷ But the position as regards male circumcision seems to be that it is lawful. There are those who claim that this is an irreversible operation, which is an attack on the child's physical integrity, and unless there are medical benefits to the child it should be unlawful.⁴⁷⁸ There are others who argue that a child has a right to a religious or cultural heritage and, at least where circumcision is an aspect of religious background, it should be permissible.⁴⁷⁹

⁴⁷¹ Children and Young Persons Act 1933, s 1(1).

⁴⁷² [1981] AC 394.

⁴⁷³ It is no defence to show that even had one attempted to obtain medical assistance there would have been none available.

⁴⁷⁴ *R v Senior* [1899] 1 QB 283, where for religious reasons a parent refused to obtain medical treatment. See also the offence of causing or allowing the death of a child or vulnerable adult under s 5 of the Domestic Violence, Crime and Victims Act 2004.

⁴⁷⁵ By analogy with the reasoning in *Re Y (Mental Incapacity: Bone Marrow Transplant)* [1996] 2 FLR 787.

⁴⁷⁶ Similarly, sterilisation may be permitted if the child suffers from mental handicap, if that sterilisation can be said to be in the best interests of the child, and the court has given its approval: *J v C* [1990] 2 FLR 527, [1990] FCR 716; *Practice Note (Official Solicitor: Sterilisation)* [1993] 2 FLR 222; and *Practice Note (Official Solicitor: Sterilisation)* [1996] 2 FLR 111.

⁴⁷⁷ Female Genital Mutilation Act 2003. The Serious Crimes Act 2015 introduced Female Genital Mutilation Protection Orders, which are designed to prevent FGM. For an example of their use see *Re E (Children) (Female Genital Mutilation Protection Orders)* [2015] EWHC 2275 (Fam), discussed in Gaffney-Rhys (2016).

⁴⁷⁸ Fox and Thomson (2005 and 2012).

⁴⁷⁹ Circumcision of boys is regarded by many Jews and Muslims as an important aspect of their religious practice.

In *LA v SB*⁴⁸⁰ parents refused to agree to the treatment recommended by the hospital in response to life-threatening seizures a child was having. The local authority and doctors decided to withdraw from legal proceedings they had initially instigated. Unsurprisingly, Wall P concluded that he could not compel the local authority to continue litigation. More surprisingly, he concluded that the court should not intervene on its own motion. As this indicates, the court may be more willing to intervene where a parent wants to do something harmful to a child, than where a parent is failing to improve a child's situation.

C Comments on the law

(i) The case law and children's rights

Some have argued that the present law is illogical, by arguing as follows: the law permits a competent minor to consent to treatment, but not to refuse it. If the child is competent to decide the question, it seems a bit odd to say to him or her: 'You can decide this issue but only if you decide to answer "yes". If you decide "no" we may override your wishes.' It is especially odd because it is a far greater infringement of a child's rights to operate on him or her without their consent than to deny them treatment that they would like to have. If anything, the law would be more logical if it said that the doctor cannot operate on the child if he or she refuses but has a discretion if he or she consents.⁴⁸¹ Such arguments have led Fortin to suggest that the present law may be open to challenge under the Human Rights Act in that forcing treatment on young people breaches their rights to protection from inhuman and degrading treatment and right to liberty and security of the person.⁴⁸²

There are two ways that current law could be justified. One approach focuses on capacity. In a controversial argument Stephen Gilmore and I have argued that a child may have capacity to consent to treatment, but lack the capacity to refuse treatment.⁴⁸³ Further, a child may have the capacity to refuse a particular treatment, but not refuse all treatment. Examples will clarify our argument. Imagine a child has grazed her knee and a teacher offers a plaster. Most children will know what it is like to have a plaster and be able to understand the process sufficiently to consent. They may not, however, understand the consequences of refusing to accept the plaster (the risks of septicemia) and so lack the capacity to refuse. Similarly, in a more complex case, a child may be offered a range of treatments for their condition and have the capacity to refuse one (maybe one they have tried before), but not have sufficient capacity to refuse to consent to other more complex treatments. The child needs to understand the details about what they are consenting to or what they are refusing in order to have capacity to do so. It is, therefore, quite plausible that a child has the capacity to consent, but not refuse.⁴⁸⁴ This argument has been objected to by those who argue that in order to have capacity to make a decision about a medical treatment the child must understand what both receiving and refusing a treatment involves.

An alternative justification is to argue that the law is perfectly logical once it is recalled that the basis of the law relating to children is set out in s 1 of the Children Act 1989 – the welfare principle.⁴⁸⁵ The law is based on the view that, if the doctor wants to perform treatment, this is in the best interests of the child because it is the view of the medical expert. The law is then

⁴⁸⁰ [2010] EWHC 1744 (Fam).

⁴⁸¹ The law become particularly illogical when the parent is under 16 (see Fovargue (2013)) where a child can have a greater say over her child's body than her own.

⁴⁸² Fortin (2003: 129).

⁴⁸³ Gilmore and Herring (2011a and b; 2012).

⁴⁸⁴ The detail of the argument is set out in Gilmore and Herring (2011a).

⁴⁸⁵ See Gilmore (2009) for further discussion of this.

engineered to make it as easy as possible to enable the doctor to go ahead. The doctor can operate if either the mature minor consents, or the parents consent, or the courts give approval. The law could hardly do more to enable the doctor to treat, once he or she has decided that the treatment is in the best interests of the child. Put this way, the law is a clear example of ensuring that the child's best interests are promoted.

(ii) The importance of doctors

There is some concern that the law places too much weight on the opinions of doctors. It has just been argued that the law relating to children is best understood on the basis that the doctor is presumed to make decisions that are in the child's interests. In effect, if the parent consents and the child does not, it is the doctor who has the final say unless the child decides to bring the matter before the court. Of course, generally, doctors will be best placed to decide whether a medical treatment is in a patient's best interests. However, where the issue involves moral as well as medical issues (abortion, for example), giving so much power to doctors may be controversial.⁴⁸⁶ Also, in many areas of medicine there is more than one point of view as to the best kind of medical treatment. The present law favours the views of the particular doctor dealing with the patient, over what might be the reasonable objections of the patient.

(iii) Misuses of competence

It has been argued that the test for competence for children is too strict. Certainly the test of competence for children is stiffer than that for adults.⁴⁸⁷ Further, there is a danger that the child will be found incompetent if the doctor or court believes the child's decision to be wrong, but the child will be found competent if the decision is one which is thought to promote his or her best interests.⁴⁸⁸ However, arguments over the appropriate test for competence are complex. If the law was that a competent child's decision could not be vetoed by the courts or the parents, the law would wish to have a very strict test of competence. A further complaint about the law on competence for children is that it is wrong for the law to categorise children as either competent or not and, instead, decisions should be made with children, enabling them to participate in the decision-making process to as great an extent as possible.⁴⁸⁹

(iv) Is the law not adequately protecting children?

As mentioned above, if the parents oppose a form of treatment, the doctors will seek to find alternative forms of treatment or persuade the parents to change their minds. It is only where this fails that the doctors are likely to turn to the courts for authorisation to treat the child contrary to the parents' wishes. For example, where a child's parents are Jehovah's Witnesses, who oppose blood transfusions, doctors may try to use non-blood substitutes before eventually seeking court intervention.⁴⁹⁰ Caroline Bridge⁴⁹¹ has argued that this delay in providing the ideal treatment could be seen as protecting the parents' rather than the child's interests.

⁴⁸⁶ Herring (1997).

⁴⁸⁷ See Dickenson and Jones (1995) for a general discussion of children's competence.

⁴⁸⁸ Freeman (2005); Shaw (2002).

⁴⁸⁹ Herring (1997).

⁴⁹⁰ *Re S (A Minor) (Medical Treatment)* [1994] 2 FLR 1065, [1994] 1 FCR 604.

⁴⁹¹ Bridge (2009).

14 Children's rights in other cases

The reasoning in *Gillick* has been applied outside the context of medical cases. In *Re Roddy (A Child) (Identification: Restriction on Publication)*⁴⁹² a 16-year-old girl wanted to tell her story to the media. She had become pregnant at age 12. Munby J memorably stated:

We no longer treat our 17-year-old daughters as our Victorian ancestors did, and if we try to do so it is at our – and their – peril. Angela, in my judgment, is of an age, and has sufficient understanding and maturity, to decide for herself whether that which is private, personal and intimate should remain private or whether it should be shared with the whole world.⁴⁹³

He concluded that the court had to respect the right of free speech of a child who has sufficient understanding to make an informed decision. It was part of her dignity and integrity as a human being.⁴⁹⁴ The implication from the case is that *Gillick* will be of general application and that a *Gillick*-competent child can give effective consent to what would otherwise be a legal wrong, unless there is a specific statutory provision saying otherwise.⁴⁹⁵

The following case is a striking application of the *Gillick* approach.

KEY CASE: *PD v SD and Others* [2015] EWHC 4103 (Fam)

A boy when aged 14 told his adoptive parents that he wished to be recognised as male, rather than female. He was receiving expert help, but his parents struggled to understand his position and continued to call him by his female name. This caused the boy considerable distress and he decided he did not want to live with them and did not want them to receive any information about his treatment or life generally. He sought a court order confirming this. Keehen J granted the order. He was sufficiently mature to make decisions about his life and this included disengaging with his parents and deciding what information, if any, they should receive. His rights to respect his private and family life under article 8 ECHR and his welfare required the order to be made. He rejected the argument that parents had rights under article 8 saying:

It is not clear why the parent should have an Article 8 right . . . where the offspring is almost 16 years of age and does not wish it . . . where the parent no longer has a right to control the child . . . and where the young person, in Lord Scarman's words [see *Gillick*] 'has sufficient understanding of what is involved to give a consent valid in law'.

A notable case where the rights of children played an important role was *R (On the Application of Begum) v Headteacher and Governors of Denbigh High School*.⁴⁹⁶ The House of Lords considered a school dress code that prevented Shabina Begum from wearing the *jilbab* (a long coat-like garment) which she believed she was required to wear by her religion. Their Lordships accepted that children had a right to manifest their religion under article 9 of the ECHR, just as adults did. The majority held that there was no interference in her right to manifest her religious belief because she was free to go to another school where she could wear the *jilbab*.

⁴⁹² [2004] 1 FCR 481.

⁴⁹³ At para 56.

⁴⁹⁴ At para 57.

⁴⁹⁵ As there is, for example, in relation to sexual activity: Sexual Offences Act 2003.

⁴⁹⁶ [2006] 1 FCR 613, discussed in Edwards (2007).

Unanimously their Lordships agreed that, in any event, even if there was a breach it could be justified in the name of protecting the freedoms of other pupils at the school (particularly girls) who might otherwise feel pressurised into wearing the *jilbab* against their wishes.⁴⁹⁷

The issue has returned to the courts. In *R (Playfoot) v Governing Body of Millais School*⁴⁹⁸ Lydia Playfoot sought to wear a purity ring to school. The ring was said to symbolise her promise to God to abstain from sexual intercourse until marriage. She was told by the school that the ring infringed the school policy of 'no jewellery'. She claimed the school policy improperly infringed her right to manifest her religious beliefs, as protected under article 9 of the ECHR. This argument was rejected primarily on the basis that the wearing of the ring was not a manifestation of her religious belief. Her beliefs did not require her to wear the ring. While the case is primarily about the interpretation of manifestation of religious belief, it is remarkable that the court placed little right on the child's right to respect for her private life, which included wearing the clothing or jewellery she had wanted. The case should be contrasted with *R (Watkins-Singh) v Governing Body of Aberdare Girls' High School*⁴⁹⁹ where a Sikh girl was prohibited from wearing a *kara* (a religious steel band of about one-fifth of an inch wide). There it was found that the wearing of the *kara* was central to her religious beliefs, and barring it was indirect religious discrimination and hence unlawful.⁵⁰⁰ Important in that case was the fact that there was no evidence that the wearing of the *kara* would impact on other pupils.

Children's rights can be relevant in a wide range of other contexts, including immigration law, education law and criminal law. There is not space in this text to explore all of these.⁵⁰¹

15 Children in court

Children's rights would mean little without an effective mode of enforcement. It is therefore crucial that children have access to courts.⁵⁰² It is also important that the decisions of courts are communicated and explained to children.⁵⁰³ The fact that children should be heard in proceedings does not require that their views will necessarily determine the question. The right of a child to be heard is therefore less contentious than a right to autonomy. However, there is a delicate balance to be drawn between listening to children and not placing them in the position where they have to decide between their parents.⁵⁰⁴ Many commentators have been persuaded by the view that if children have autonomy rights then they must have a means to bring applications to enforce those rights. However, there are also serious concerns about involving children in litigation.⁵⁰⁵ There is considerable evidence that requiring a child to choose whether they live with their father or mother causes the child much harm. There is

⁴⁹⁷ The banning of headscarves in French schools was held not to infringe the ECHR in *Aktas v France* (Application 43563/08). See also *Lautsi v Italy* (App. No. 30814/06) on state sponsorship of religion in schools.

⁴⁹⁸ [2007] 3 FCR 754.

⁴⁹⁹ [2008] 2 FCR 203.

⁵⁰⁰ Under s 1(1a) of the Race Relations Act 1976 and s 45(3) of the Equality Act 2006.

⁵⁰¹ See Bainham and Gilmore (2016).

⁵⁰² UN Convention on the Rights of the Child, article 12. See also the European Convention on the Exercise of Children's Rights, not yet signed by the UK. See Lowe and Murch (2001) for an excellent discussion.

⁵⁰³ Wilson, I (2007).

⁵⁰⁴ King (2007: 190).

⁵⁰⁵ This was recognised by Thorpe LJ in *Re HB (Abduction: Children's Objections)* [1998] 1 FLR 422.

also a concern that children's rights to bring matters before a court are open to misuse, either from parents seeking to manipulate the children⁵⁰⁶ or even from solicitors keen to promote their professional standing.

There are three ways in which a child may be directly involved in family proceedings:

1. The child may bring proceedings through a solicitor in their own right.
2. The child's 'next friend' (normally one of their parents) can bring proceedings on the child's behalf.
3. The child's interests can be represented in the case between adults by a guardian ad litem.⁵⁰⁷

A Children bringing proceedings in their own right

Under rule 9.2A of the Family Proceedings Rules 1999 (SI 1999/3491), a minor can bring (or defend) proceedings under the Children Act 1989 or involving the inherent jurisdiction either:

- if the court gives leave; or
- where a solicitor, acting for the child, considers that the child is able to give instructions in relation to the proceedings.⁵⁰⁸

However, the most likely proceedings that a child will want to bring is for an order under s 8 of the Children Act 1989 and, for such an application, the court must give leave, even if the child's solicitor is satisfied that the child is competent.⁵⁰⁹

There was a fear when the Children Act 1989 was first introduced that the courts would be swamped with applications from children seeking to 'divorce' their parents (although this has proved to be unfounded). Before granting leave, the court must be satisfied 'that [the child] has sufficient understanding to make the proposed application'.⁵¹⁰ There has been some dispute over whether the welfare of the child is relevant when considering whether or not to grant leave. Following *Re H (Residence Order: Child's Application for Leave)*,⁵¹¹ it now seems to be accepted that the welfare of the child is not the paramount consideration. This was significant in that case because H was 15, and since the age of six he had come under the influence of a Mr R, who had been arrested for committing offences against children. As H was a mature and intelligent young man, it was held that he should have separate representation, even though there were grave concerns surrounding his desire to have unrestricted contact with Mr R. In considering whether to grant leave, the court will consider the following factors:

1. *Is the matter serious enough to justify a court hearing?* In *Re C (A Minor) (Leave to Seek Section 8 Order)*⁵¹² a 14-year-old wanted to go on holiday with her friend's family to Bulgaria. Her parents opposed this and she applied for a specific issue order that she be permitted to go

⁵⁰⁶ In *Re K (Replacement of Guardian ad Litem)* [2001] 1 FLR 663 the court decided that the child had been pressurised by his father into applying to dispense with the services of his guardian.

⁵⁰⁷ See Doughty (2008b) for a history of the role played by court welfare officers.

⁵⁰⁸ *Re H (A Minor) (Role of the Official Solicitor)* [1993] 2 FLR 552. Even if the solicitor decides that the child is competent, it is open to the court to stop the proceedings if the court is not satisfied that the child is competent: *Re CT (A Minor) (Child Representation)* [1993] 2 FLR 278, [1993] 2 FCR 445.

⁵⁰⁹ *Practice Direction* [1993] 1 FLR 668; *Re N (Contact: Minor Seeking Leave to Defend and Removal of Guardian)* [2003] Fam Law 154.

⁵¹⁰ Section 10(8).

⁵¹¹ [2000] 1 FLR 780.

⁵¹² [1994] 1 FLR 26.

on the holiday. Johnson J refused to grant leave, claiming that the issue was too trivial to be suitable for resolution by the courts. If this issue is too trivial, it is likely that many other issues which children may want to raise before a court (e.g. what time they go to bed) will also be too trivial. Freeman has forcefully argued that, where the child has instituted proceedings, this is an indication that, to the child, it is an important issue and there is therefore a need for some kind of intervention for the child's benefit.⁵¹³ This is correct, but whether the intervention need be in the form of a court hearing or some kind of informal social work is a matter for debate. It should be recalled that issues that may appear trivial to adults, may appear hugely important from a child's perspective.

2. *Should the family resolve the issue themselves?* Johnson J in *Re C (A Minor) (Leave to Seek Section 8 Order)*⁵¹⁴ also considered the girl's application that she be allowed to move in with her friend's family. He also refused to grant leave for that application on the basis that he thought the issue should be left to the family to sort out between themselves, rather than involving the courts. The court feared that giving the child leave might give her an advantage in her dispute with her parents, although it might be thought that denying her leave gave her parents an advantage point.
3. *How mature is the child?* In *Re S (A Minor) (Independent Representation)*⁵¹⁵ it was stressed that the real issue is not the child's age but her understanding.⁵¹⁶ The very fact that the child had applied to the court would indicate maturity.⁵¹⁷ In *Re H (A Minor) (Role of the Official Solicitor)*⁵¹⁸ it was stressed that what had to be considered was whether the child would be able to give instructions in the light of the evidence that would be produced to the court. Where the evidence might be complex there may be difficulty in demonstrating this. The court may also take the view that the emotional turmoil that would be caused to the child by becoming involved in the litigation would be contrary to his or her welfare.⁵¹⁹
4. *What is the likelihood of the success of the application?*⁵²⁰ In *SC (A Minor) (Leave to Seek Section 8 Orders)*⁵²¹ it was confirmed that the fact that the application was not a hopeless application would be a factor in favour of granting leave.
5. *Would the child suffer from being involved in a protracted dispute between the parents?* In *Re S (A Minor) (Independent Representation)*⁵²² an 11-year-old boy wanted to replace his guardian ad litem. In the Court of Appeal, Bingham MR said that it was necessary to respect the child's wishes but at the same time protect the child from danger. It was held here that the effect of being closely involved with a bitter dispute between parents could harm a child and it was better for the boy to have the 'buffer' of a guardian ad litem. In *Re C (Residence: Child's Application for Leave)*⁵²³ it was thought not to be to the child's benefit to hear the evidence of his warring parents. Fortin has argued that, rather than using this as a reason for denying access to the courts, consideration should be given as to how

⁵¹³ Freeman (1997a: 168; 2000c).

⁵¹⁴ [1994] 1 FLR 26.

⁵¹⁵ [1993] 2 FLR 437, [1993] 2 FCR 1.

⁵¹⁶ In *Re S (Contact: Application by Sibling)* [1999] Fam 283, a nine-year-old was found to have sufficient understanding to apply for leave for a contact order with her half-brother.

⁵¹⁷ *Re C (A Minor) (Leave to Seek Section 8 Order)* [1995] 1 FLR 927, [1996] 1 FCR 461.

⁵¹⁸ [1993] 2 FLR 552.

⁵¹⁹ *Re N (Contact: Minor Seeking Leave to Defend and Removal of Guardian)* [2003] Fam Law 154.

⁵²⁰ *Re C (A Minor) (Leave to Seek Section 8 Order)* [1995] 1 FLR 927, [1996] 1 FCR 461.

⁵²¹ [1994] 1 FLR 96, [1994] 1 FCR 837.

⁵²² [1993] 2 FLR 437, [1993] 2 FCR 1.

⁵²³ [1995] 1 FLR 927, [1996] 1 FCR 461.

court procedures can be altered to protect child litigants' psychological welfare.⁵²⁴ Further, it should not be forgotten that children are likely to have heard far worse arguments between their parents at home than they might witness in a court setting.⁵²⁵

6. *Will all the arguments that a child wishes to raise be presented to the court?* In **Re H (Residence Order: Child's Application for Leave)**⁵²⁶ a 12-year-old boy sought to apply to the court for a residence order in his father's favour on his parents' divorce. Although he was mature enough to make the application, Johnson J held that the child would not bring before the court any argument that the father would not be making in his application for a residence order. There was therefore nothing to gain from granting leave. This argument fails to appreciate the importance to the child of feeling that he or she is being listened to.
7. *The impact of the Human Rights Act 1998.* A child may have a right to be represented and heard in proceedings with which they are involved.⁵²⁷ **Re A (Contact: Separate Representation)**⁵²⁸ accepted that a boy who wished to alert the judge to the dangers he believed his father posed to his young half-sister should have leave to do so.

In the light of this list of reasons for not permitting access, it is not surprising that it is rare for children successfully to bring applications before the court, or to find that research suggests that, generally, judges are opposed to children even attending court hearings.⁵²⁹ It has been argued that the leave requirement improperly infringes a child's right to a fair hearing under article 6 of the European Convention, in a way which improperly discriminates on the basis of age, contrary to article 14.⁵³⁰ In reply it could be said that children may need protection from the rigours of the court procedures such as cross-examination and this justifies the imposition of the leave requirement.⁵³¹ The ability of children to represent themselves would mean that the court could hear the child's views in his or her own words, rather than mediated through the reports of welfare officers.⁵³² Notably, Dame Margaret Booth has argued that children should not be required to seek leave from the High Court before applying for a s 8 order.⁵³³

If leave is granted, the full application will be heard. The welfare principle will govern the issue. (The law governing the case is as discussed in Chapter 9.)

B Representation

In 2001 the Government created the Children and Family Court Advisory Support Service (CAFCASS).⁵³⁴ This agency was created to provide courts with services in cases involving children.⁵³⁵ It is in charge of ensuring that children's interests are properly represented in court cases.⁵³⁶ It is necessary to distinguish public and private law cases.

⁵²⁴ Fortin (2009a).

⁵²⁵ Wilson, J. (2007).

⁵²⁶ [2000] 1 FLR 780, discussed in Sawyer (2001).

⁵²⁷ Lyon (2007).

⁵²⁸ [2001] 1 FLR 715.

⁵²⁹ Masson and Winn Oakley (1999).

⁵³⁰ Lyon (2000).

⁵³¹ Lowe and Murch (2001).

⁵³² Butler and Williamson (1994).

⁵³³ Her views are noted and discussed in Children Act Sub-Committee (2002a: para 12.6).

⁵³⁴ Criminal Justice and Court Service Act 2000, s 11.

⁵³⁵ Murch (2003) provides an excellent discussion of the issues.

⁵³⁶ See Wall LJ (2006) and MacDonald (2008) for a discussion of the failures in child representation in court hearings.

(i) Public law cases

In public law cases (e.g. where a child is being taken into care) the child's interests will be protected by a guardian. The guardian will appoint a solicitor whose job it will be to represent the child's interests in any court hearing. The guardian and solicitor will work together to ascertain the wishes of the child and present these to the court. Courts can allow children who are the subject of public law proceedings to attend their hearing, although research indicates that at present many children who wish to attend the court are not allowed to do so.⁵³⁷ Fortin⁵³⁸ suggests that the awareness of children's rights under articles 6 and 8 might lead to a change in practice. Although the representation of children in public cases is generally well thought of, it is under huge threat from cutbacks in legal aid in public law cases.⁵³⁹

(ii) Private law cases

The representation of children's interests in private law cases is less effective.⁵⁴⁰ In a private case any of the following could occur:

1. The case proceeds without the court ever hearing of the child's views.
2. The court requests a child and family reporter⁵⁴¹ to prepare a report on the child, which will include a summary of the child's views.
3. The child could have party status (i.e. be treated as a party to the proceedings) and his or her interests be represented by his or her own lawyer.
4. The child may be able to litigate and bring applications on his or her own behalf with the leave of the court.⁵⁴²

Many commentators have expressed concern that all too often point 1 is what happens and that children's wishes and interests are not specifically addressed in a court proceeding. The United Nations Committee on the Rights of Children has expressed concern about the lack of representation of children's wishes in private cases.⁵⁴³ Fortin has gone so far as to complain that 'The most serious procedural weakness undermining the Children Act's direction to the courts to consider the child's wishes and feelings is that there is no guarantee that the court will receive any evidence indicating what those wishes are.'⁵⁴⁴ In part the reluctance to call for reports can be explained by the delays that can result while a report is being prepared.⁵⁴⁵ Further, courts are aware that CAFCASS is understaffed and underfunded. Judges are therefore, understandably, reluctant to ask for reports unless absolutely necessary. The situation has been worsened by the fact that the Government has asked CAFCASS officers to concentrate on assisting parents to reach agreements and thereby avoid a costly hearing. Ironically this means it is even less likely that the voices of children will be heard and CAFCASS officers, rather than listening to children and reporting their concerns, will be talking to

⁵³⁷ Fortin (2009b).

⁵³⁸ Fortin (2009b: ch. 7).

⁵³⁹ Blacklaws and Dowding (2006).

⁵⁴⁰ James, James and McNamee (2003).

⁵⁴¹ A specialist social worker attached to CAFCASS.

⁵⁴² It is very difficult for children to get leave in such cases: see *Re H (A Minor) (Care Proceedings: Child's Wishes)* [1993] 1 FLR 440 and *Re C (Secure Accommodation Order: Representation)* [1993] 1 FLR 440.

⁵⁴³ Committee on the Rights of the Child (2016).

⁵⁴⁴ Fortin (2009b: 256).

⁵⁴⁵ In *M v A (Contact: Domestic Violence)* [2002] 2 FLR 921 there was a seven-month delay in the preparation of a report.

parents and attempting to persuade them to reach an agreement, regardless of the views of the children.⁵⁴⁶ It has been reported that guardians will only be appointed to assist in private children's cases in the most urgent of cases.⁵⁴⁷

In the last few years there has been an increasing acknowledgement of the need to ensure that children are heard in disputes over their upbringing.⁵⁴⁸ Even if children's wishes are not to determine the case, they should at least be heard and have their views taken seriously.⁵⁴⁹ The case for child representation can be made on two bases.⁵⁵⁰ First, it can be promoted as a way of advancing children's welfare. There is much evidence that children who are the subject of litigation can be confused and anxious.⁵⁵¹ They report feeling ignored; not surprisingly, when it is claimed that in only 2 per cent of cases are children listened to and given a response.⁵⁵² It is well established that the existence of conflict between parents can be more harmful for the child than the ending of the relationship.⁵⁵³ Having children's representation can be seen as necessary to promote children's welfare. Secondly, it can be seen as part of the rights of a child, protected by the United Nations Convention on the Rights of the Child, article 12.⁵⁵⁴

The judiciary itself now recognises the importance of listening to the views of children.⁵⁵⁵ This is even true (perhaps particularly true) where the parents appear to agree over what is best for the child. Indeed, arguably a child has a right under article 6 of the European Convention on Human Rights to have her or his views given due consideration.⁵⁵⁶ This may require, as well as a report, separate representation of the child's interests.⁵⁵⁷ The leading case is *Mabon v Mabon*.⁵⁵⁸

CASE: *Mabon v Mabon* [2005] 2 FCR 354

The Court of Appeal overturned a judge's decision that three 'educated, articulate and reasonably mature' boys aged 17, 15 and 13 should not be separately represented in a bitterly contested application over residence and contact.⁵⁵⁹ Thorpe LJ was blunt: 'It was simply unthinkable to exclude young men from knowledge of and participation in legal proceedings that affected them so fundamentally . . . I am in no doubt that the judge was plainly wrong.'⁵⁶⁰ Indeed, he thought that even if participation would be contrary to the welfare of the child that would not necessarily mean that it

⁵⁴⁶ Fortin (2006b).

⁵⁴⁷ Walsh (2010).

⁵⁴⁸ Ruegger (2001); Murch (2003). Thomas (2001) emphasises that listening to children is also more likely to produce good decisions.

⁵⁴⁹ Archard (2003: 54) emphasises that children have a right not just to be listened to, but also to be heard.

⁵⁵⁰ Harold and Murch (2005).

⁵⁵¹ Douglas *et al.* (2006); Cashmore (2003).

⁵⁵² Harold and Murch (2005).

⁵⁵³ Harold and Murch (2005).

⁵⁵⁴ James, James and McNamee (2004); Davey (2010).

⁵⁵⁵ *Re A (Contact: Separate Representation)* [2001] 1 FLR 715.

⁵⁵⁶ Fortin (2009b: ch. 10).

⁵⁵⁷ Adoption and Children Act 2002, s 122 means that applications under CA 1989, s 8 are now 'specified proceedings' for the purpose of CA 1989, s 41 and so separate representation can be ordered. *Re A (Contact: Separate Representation)* [2001] 1 FLR 715 CA. But *CAFCASS Practice Note (Officers of Legal Services and Special Casework: Appointment in Family Proceedings)* [2001] 2 FLR 151 suggests that separate representation is appropriate only in special cases.

⁵⁵⁸ [2005] 2 FCR 354.

⁵⁵⁹ Though see *Re N (Contact: Minor Seeking Leave to Defend and Removal of Guardian)* [2003] 1 FLR 652 where the 11-year-old boy lacked the maturity to be able to give instructions.

⁵⁶⁰ [2005] 2 FCR 354. At paras 23–24.

should not be permitted: 'the right of freedom of expression and participation outweighs the paternalistic judgement of welfare'.⁵⁶¹ However, he could imagine very limited circumstances in which it would not be appropriate to permit a competent child participation:

If direct participation would pose an obvious risk of harm to the child arising out of the nature of the continuing proceedings and, if the child is incapable of comprehending that risk, then the judge is entitled to find that sufficient understanding has not been demonstrated. But judges have to be equally alive to the risk of emotional harm that might arise from denying the child knowledge of and participation in the continuing proceedings.⁵⁶²

This approach, Thorpe LJ held, was required in order to protect children's rights to autonomy under article 8 and also the right in article 12 of the UN Convention on the Rights of the Child for children to express their views.

The Family Proceedings Rules 2010, r 16 now covers the representation of children. In Practice Direction 16A of the Rules it is made clear that the child is a party to the proceedings is a step that will be taken only in cases which involve an issue of significant difficulty and consequently will occur in only a minority of cases. The court must determine whether it is in the welfare of the child to be represented, taking account of the fact that representation can cause delay.

Mabon must now be read in the light of *Re P-S*⁵⁶³ where a 15-year-old wanted to be heard in care proceedings. The Court of Appeal, referring to both article 6 of the ECHR and the UNCRC, confirmed that children had a right to be heard in proceedings concerning them, but that did not mean children had the right to give evidence. Part of a fair trial was that the wishes and feelings of the child be known to the judge and indeed that was part of the welfare assessment under the Children Act 1989. In this case the welfare reports had made clear the children's wishes. Seeing them in the court would add nothing. In *Cambra v Jones*⁵⁶⁴ a 16-year-old child was joined as a party. She was profoundly affected by the proceedings (about which country she should live in); very much wanted to participate; and she would add evidence insights that would not otherwise be available to the court.⁵⁶⁵

Despite the fine rhetoric in *Mabon*, the reality is that there is neither the funding nor the staff at CAFCASS to provide the representation for children that Thorpe LJ would evidently like to see.⁵⁶⁶ In fact, research suggests that representation is used as a 'last resort' where there are complex disputes.⁵⁶⁷

⁵⁶¹ At para 29.

⁵⁶² Paragraph 29.

⁵⁶³ [2013] EWCA Civ 223.

⁵⁶⁴ [2014] EWHC 913 (Fam).

⁵⁶⁵ Surprisingly in *Re H (Children) (Care Orders)* [2015] EWCA Civ 115 a 14- and 12-year-old were said to lack the maturity to appreciate the significance and importance of their own needs and so did not need separate representation in care proceedings.

⁵⁶⁶ *R v CAFCASS* [2011] EWHC 1774 (Admin). See *Re C (Children) (Appointment of Guardian)* [2008] 1 FCR 359 where the National Youth Advisory Service was asked to represent and assist the children.

⁵⁶⁷ Douglas *et al.* (2006). Bellamy and Lord (2003) found that rule 9.5 was used in 7.3 per cent of contested cases.

Even if not represented, a child may well be permitted to attend the hearing. In *A CC v T*⁵⁶⁸ Peter Jackson J said that it could no longer be assumed that a child's attendance in court proceedings was likely to be harmful. Children do not need to prove that their attendance will promote their welfare. The court should focus on the following factors in deciding whether the child could attend:

- the child's age and level of understanding;
- the nature and strength of the child's wishes;
- the child's emotional and psychological state;
- the effect of influence from others;
- the matters to be discussed;
- the evidence to be given;
- the child's behaviour.

Despite the acknowledgement that listening to and appreciating children's wishes is important, there are still grave concerns over the way in which reports concerning children are prepared and the length of time taken to prepare them. The problem that many commentators recount is that it is difficult for social workers to ascertain and report the wishes of children accurately. Children may feel intimidated and unable to say what they wish. Further, the questions asked of them by the Family Court Advisor may not reflect the way the problem is perceived by the child.⁵⁶⁹ The reporter therefore (unintentionally) deprives children of the ability to express their views in their own terms.⁵⁷⁰ James *et al.*⁵⁷¹ argue that their research indicates that the reporters have a particular image of childhood (e.g. that children become competent at particular ages) and this prevents an effective evaluation of every child. Indeed the very concept of 'listening' to children may too easily slip into taking a paternalistic approach to them.⁵⁷² A survey of cases by May and Smart⁵⁷³ found that in only one-quarter of cases was there any kind of record on the paperwork of cases as to the wishes of the child; although this could be largely explained by the age of the child or the fact that the parents were in agreement. They found that where children's wishes did not coincide with the welfare officer's view it was rare for the children's views to prevail. It is not surprising that there has, therefore, been encouragement for judges meeting with children directly, not least from Baroness Hale and Justice Munby.⁵⁷⁴

As well as preparing the reports, the child and family reporter can be responsible for communicating with the child after the order has been made. This is also important because part of taking a child's views seriously is reporting back to the child the court's decision and discussing it with him or her.⁵⁷⁵

⁵⁶⁸ [2011] 2 FLR 803.

⁵⁶⁹ Mayall (2002: 166).

⁵⁷⁰ Buchanan *et al.* (2001).

⁵⁷¹ Murch (2003). James, James and McNamee (2003). See also HM Inspectorate of Court Administration (2005).

⁵⁷² Clucas (2005: 291).

⁵⁷³ May and Smart (2004).

⁵⁷⁴ Hale (2016); Cobb (2015).

⁵⁷⁵ Buchanan *et al.* (2001: 93).

16 The Children's Commissioner

The Children Act 2004 created the post Children's Commissioner for England. There are separate ones for Wales, Scotland and Northern Ireland. As at 2016 Anne Longfield is the Children's Commissioner for England and Sally Holland for Wales.

The primary role of the English Commissioner is set out in s 2(1) of the Children Act 2004: 'promoting and protecting the rights of children in England'.⁵⁷⁶ Further detail is provided in the statute:

LEGISLATIVE PROVISION

Children Act 2004, section 2

- (1) The primary function includes promoting awareness of the views and interests of children in England.
- (2) In the discharge of the primary function the Children's Commissioner may, in particular—
 - (a) advise persons exercising functions or engaged in activities affecting children on how to act compatibly with the rights of children;
 - (b) encourage such persons to take account of the views and interests of children;
 - (c) advise the Secretary of State on the rights, views and interests of children;
 - (d) consider the potential effect on the rights of children of government policy proposals and government proposals for legislation;
 - (e) bring any matter to the attention of either House of Parliament;
 - (f) investigate the availability and effectiveness of complaints procedures so far as relating to children;
 - (g) investigate the availability and effectiveness of advocacy services for children;
 - (h) investigate any other matter relating to the rights or interests of children;
 - (i) monitor the implementation in England of the United Nations Convention on the Rights of the Child;
 - (j) publish a report on any matter considered or investigated under this section.
- (3) In the discharge of the primary function, the Children's Commissioner must have particular regard to the rights of children who are within section 8A (children living away from home or receiving social care) and other groups of children who the Commissioner considers to be at particular risk of having their rights infringed.
- (4) The Children's Commissioner may not conduct an investigation of the case of an individual child in the discharge of the primary function.

2A United Nations Convention on the Rights of the Child

- (1) The Children's Commissioner must, in particular, have regard to the United Nations Convention on the Rights of the Child in considering for the purposes of the primary function what constitute the rights and interests of children (generally or so far as relating to a particular matter).

⁵⁷⁶ The role of the Commissioner was redefined in the Children and Families Act 2014.

The Secretary of State can ask the Children's Commissioner to hold an inquiry into a case of an individual child if that would raise wider issues relevant for children.⁵⁷⁷ Under section 2D of the Children Act 2004 the Commissioner can give advice and assistance to children who are living away from home or receiving social care. The Commissioner produces a wide range of reports and guidance for children and public bodies who deal with children. Recent projects have involved work on sexual exploitation, online safety, and how children can complain about schools.⁵⁷⁸

The Children's Commissioner for Wales⁵⁷⁹ has as his or her principal aim to safeguard and promote the rights and welfare of children.⁵⁸⁰ He or she should have regard to the United Nations Convention on the Rights of the Child when exercising his or her functions.⁵⁸¹

17 Corporal punishment

Corporal punishment has been defined as 'the use of physical force with the intention of causing a child to experience pain but not injury for the purposes of correction or control of the child's behaviour'.⁵⁸² Corporal punishment is one of the most controversial topics surrounding parenting.⁵⁸³ Although nearly everyone agrees that children require some form of discipline,⁵⁸⁴ there is much dispute about what form that discipline should take. For some, the issue is straightforward: 'Hitting people is wrong – and children are people too.'⁵⁸⁵ Indeed, it can be regarded as a basic human right not to be hit.⁵⁸⁶ The impact on children can be underestimated. One child respondent to a Government survey stated 'the memory of how it made me feel inside was so much stronger than how it felt on my skin – that was over in a few seconds'.⁵⁸⁷ Others argue that corporal punishment is an important part of bringing children up well and even cite some biblical support.⁵⁸⁸ A third group (perhaps the majority of parents) do not think that corporal punishment is necessarily a positive good but admit that, when at the end of their tether, they use corporal punishment. A survey revealed that corporal punishment is widespread: 81 per cent of interviewees supported corporal punishment by parents of own children; 45 per cent by carers or nannies; 67 per cent by teachers; 71 per cent by head teachers; and (remarkably) 70 per cent by courts.⁵⁸⁹ Another survey found that 88 per cent of parents stated that they felt it sometimes necessary to hit their children.⁵⁹⁰ However, it may be that attitudes are changing, with the most recent survey finding only 59 per cent of those questioned believing that parents should be allowed to smack their children.⁵⁹¹ Corporal punishment starts surprisingly young: three-quarters of one-year-olds have been smacked and among four-year-olds 48 per cent were hit once a week.⁵⁹²

⁵⁷⁷ Children Act 2004, s 4.

⁵⁷⁸ Visit <http://www.childrenscommissioner.gov.uk/> or www.childcom.org.uk for current projects.

⁵⁷⁹ Children's Commissioner for Wales Act 2001 and Part V of Care Standards Act 2000.

⁵⁸⁰ Care Standards Act 2000, s 72A.

⁵⁸¹ Children's Commissioner for Wales Regulations 2001, SI 2001/2787 (W237), reg 22. See Thomas *et al.* (2010) for a discussion of the work of the Commissioner.

⁵⁸² Strauss and Donnelly (1993: 420).

⁵⁸³ For useful discussions of the use of force against children in a variety of contexts, see Saunders and Goddard (2010), Barton (2008c), Keating (2006) and Booth (2005).

⁵⁸⁴ Rhona Smith (2004) suggests a child has a right to discipline.

⁵⁸⁵ Newell (1989).

⁵⁸⁶ United Nations Committee on the Rights of the Child (2008) called on the UK to remove the defence of 'reasonable chastisement'.

⁵⁸⁷ Barton (2008c: 65).

⁵⁸⁸ Proverbs 13: 24; see *R (On the Application of Williamson) v Secretary of State* [2005] 1 FCR 498.

⁵⁸⁹ ICM poll (*The Guardian*, 7 November 1996).

⁵⁹⁰ Sawyer (2000).

⁵⁹¹ Department for Education and Skills (2008: para 31).

⁵⁹² Phillips and Alderson (2003).

The present law is that corporal punishment is *prima facie* an assault. It could be a battery, an assault occasioning actual bodily harm,⁵⁹³ or wounding or inflicting or causing grievous bodily harm,⁵⁹⁴ depending on the severity of the punishment. However, under common law there is a defence to these offences if the conduct constitutes 'lawful chastisement'. Precisely what 'lawful chastisement' is not clear. Section 58 of the Children Act 2004 makes it clear that 'reasonable chastisement' cannot provide a defence to a charge of assault occasioning actual bodily harm or the offences involving grievous bodily harm. In other words, to rely on the defence of reasonable chastisement the level of harm used must cause less than actual bodily harm. As actual bodily harm includes a bruise, only 'mild corporal punishment' is permitted. The Crown Prosecution Service guidelines state:

... for minor assaults committed by an adult upon a child that result in injuries such as grazes, scratches, abrasions, minor bruising, swelling, superficial cuts or a black eye, the appropriate charge will normally be ABH⁵⁹⁵ for which the defence of 'reasonable chastisement' is no longer available.

However, if the injury amounts to no more than reddening of the skin, and the injury is transient and trifling, a charge of common assault may be laid against the defendant for whom the reasonable chastisement defence remains available to parents or adults acting *in loco parentis*.⁵⁹⁶

The Government Review of the current law decided no change was necessary. Section 58 of the Children Act 2004 had improved the protection for children while not producing significant practical problems.⁵⁹⁷ While the Government 'does not condone smacking and believes that other methods of managing children are more effective',⁵⁹⁸ it 'does not believe the state should intervene in family life unnecessarily'. Therefore the current law remains, and as the *Daily Telegraph* put it: 'Parents can smack – if they're gentle'.⁵⁹⁹

As well as involving potential criminal charges, corporal punishment might also lead to investigation by a local authority.⁶⁰⁰ Corporal punishment is now forbidden in state and independent schools⁶⁰¹ and in residential care homes.⁶⁰² The European Court and Commission have had to address the issue of corporal punishment on a number of occasions.⁶⁰³ The most recent case, *A v UK (Human Rights: Punishment of Child)*,⁶⁰⁴ has had the biggest impact. A cane was used on more than one occasion by a mother's partner on her child. The European Court of Human Rights did not make a general statement on chastisement but did state that article 3 was breached. The defence of 'reasonable chastisement' was too vague and inadequately protected the child from inhuman and degrading treatment.⁶⁰⁵ The European Court

⁵⁹³ Contrary to Offences Against the Person Act 1861, s 47.

⁵⁹⁴ Contrary to Offences Against the Person Act 1861, s 18 or s 10.

⁵⁹⁵ Actual bodily harm.

⁵⁹⁶ Crown Prosecution Service (2007: 1).

⁵⁹⁷ See Choudhry (2009) for an excellent discussion of the current law.

⁵⁹⁸ Department for Education and Skills (2008: para 55).

⁵⁹⁹ Quoted Barton (2008c: 68).

⁶⁰⁰ *Re F (Children)(Interim Care Order)* [2007] 2 FCR 639 where a single act of excessive force in punishment was found on the facts to be insufficient to justify an interim care order.

⁶⁰¹ Education Act 1996, s 548(1) as amended by the Schools Standards and Framework Act 1998, s 131 abolished corporal punishment in independent schools. A challenge that this provision infringed parents' rights under the European Convention on Human Rights failed in *R (On the Application of Williamson) v Secretary of State for Education and Employment* [2005] 1 FCR 498.

⁶⁰² Day Care and Child Minding (National Standards: England) Regulations 2003 (SI 2003/1996), reg 5 prohibits childminders and day-care workers from 'smacking' children.

⁶⁰³ Including *Tyrer v UK* (1978) 2 EHRR 1; *Campbell and Cosans v UK* (1982) 4 EHRR 293; *Warwick v UK* (1986) 60 DR 5; *Y v UK* (1992) 17 EHRR 238; *Costello-Roberts v UK* (1995) EHRR 112; *A v UK (Human Rights: Punishment of Child)* [1998] 2 FLR 959, [1998] 3 FCR 597.

⁶⁰⁴ [1998] 2 FLR 959, [1998] 3 FCR 597.

⁶⁰⁵ The court left open a possible claim under article 8.

of Human Rights took the view that corporal punishment breached article 19 of the UN Convention, which requires the state to protect children from all forms of violence.⁶⁰⁶

In *R (On the Application of Williamson) v Secretary of State for Education and Employment* the House of Lords had to consider whether parents or teachers could claim a right to administer corporal punishment.

CASE: *R (On the Application of Williamson) v Secretary of State for Education and Employment* [2005] 1 FCR 498

The House of Lords rejected a claim by parents that the prohibition of corporal punishment in private schools (in Education Act 1996, s 548) infringed their right to respect for family life. They had sent their children to a private Christian school and the parents and teachers wanted the teachers to be able to use corporal punishment in the school. Their Lordships accepted that the Act did interfere with the right to religious freedom in article 9 of the ECHR, but held that the interference could be justified. Lord Nicholls explained: 'Corporal punishment involves deliberately inflicting physical violence. The legislation is intended to protect children against the distress, pain and other harmful effects infliction of physical violence may cause.' But it would be quite wrong to think that this case indicates that children have the right never to suffer corporal punishment. Lord Nicholls makes it clear he does not think that corporal punishment necessarily infringes a child's rights under article 3 or article 8. Baroness Hale is less clear. She states at one point: 'If a child has a right to be brought up without institutional violence, as he does, that right should be respected whether or not his parents and teachers believe otherwise.'⁶⁰⁷ However, she earlier states that in a free society parents should have a 'large measure of autonomy' in deciding how to raise children.⁶⁰⁸

Despite the changes to the law in the Children Act 2004, there are many who argue that the law should never permit corporal punishment.⁶⁰⁹

TOPICAL ISSUE

Should the law permit corporal punishment?

In this debate the following issues appear to be of particular significance:

1. The psychological evidence seems to suggest that corporal punishment harms children.⁶¹⁰ Opponents of corporal punishment argue that it teaches children that violence is an appropriate way to deal with situations of conflict and that it is appropriate for larger people to injure smaller people.⁶¹¹ Further, it is argued that corporal punishment cultivates a culture within society which accepts violence towards children. Some fear that where there is regular corporal punishment this can too easily escalate to more serious abuse and violence for the child.⁶¹² That said, there are many children who have been corporally punished, whom it cannot be shown have suffered particular harm as a result.

⁶⁰⁶ United Nations Human Rights Committee (2008).

⁶⁰⁷ At para 84.

⁶⁰⁸ At para 72.

⁶⁰⁹ E.g. Keating (2006); United Nations Committee on the Rights of the Child (2016).

⁶¹⁰ Gershoff (2002). Phillips and Alderson (2003) suggest it is striking how few experts in the area support smacking.

⁶¹¹ United Nations Committee on the Rights of the Child (2016).

⁶¹² United Nations Committee on the Rights of the Child (2016).

2. To some there are links between corporal punishment and sexual abuse. Freeman explains that it has been used as a form of grooming for further abuse. Others have linked corporal punishment to 'sexualised smacking'.
3. The most straightforward approach is that hitting children is an infringement of their rights. Freeman has stated that 'nothing is a clearer statement of the position that children occupy in society, a clearer badge of childhood, than the fact that children alone of all people in society can be hit with impunity'.⁶¹³
4. It would be possible to reform the law so as to forbid the hitting of the child with certain kinds of implements or hitting children on certain parts of the body. However, any such list would draw arbitrary lines and would be unlikely to be effective.
5. It is difficult to distinguish physical restraint and corporal punishment. It is generally accepted that on occasion it is necessary to use force to restrain a child.⁶¹⁴ Some believe there is a very fine dividing line between restraining children who are about to harm themselves or another and punishment.⁶¹⁵ The same act (e.g. pushing a child) could be restraining a child who was about to harm him- or herself or a punishment, depending on the intention of the parent. This demonstrates that there is some difficulty in saying that the issue is simply that a child should not be hit.
6. Some fear that if corporal punishment is outlawed then trivial assaults (e.g. a light smack) might be seen as corporal punishment. However, in Sweden, in the 14 years since corporal punishment was made illegal⁶¹⁶ there has been only one punishment of a parent after a complaint by a child.⁶¹⁷ This suggests that fears that any prohibition would lead to a major intrusion into family life are exaggerated.
7. In a survey, 88 per cent of those questioned thought it sometimes necessary to smack naughty children.⁶¹⁸ It must be questioned whether a prohibition against all corporal punishment which would go against the views and practice of the vast majority of parents would be justifiable. Perhaps, however, a useful analogy could be made with speeding whilst driving. Clearly not all speeding is punished, and most people do break the speeding laws, yet the laws are still generally accepted.

18 Children's duties

Although much has been written on children's rights, there is very little said about children's duties.⁶¹⁹ Indeed, children appear to be under few duties under the law. By far the most significant is the duty to obey the criminal law, at least once they have reached the age of 10.⁶²⁰ However, there is not even an obligation upon children to attend school.⁶²¹

⁶¹³ Points 2 and 3: Freeman (1997a).

⁶¹⁴ Fortin (2001: 247).

⁶¹⁵ See, e.g., Education Act 1996, s 550A, which sets out when teachers can use force.

⁶¹⁶ Sweden, Finland, Denmark, Germany, Iceland, Norway, Austria, Latvia, Ukraine, Croatia and Cyprus have all prohibited corporal punishment: Booth (2005).

⁶¹⁷ Sawyer (2000).

⁶¹⁸ Department of Health (2000a: Annexe A). See for further discussion on parents' attitudes: Bunting, Webb and Healy (2010).

⁶¹⁹ Bainham (1998c).

⁶²⁰ Notably, a young offender can be subject to a curfew order. Such orders cannot be made against adults.

⁶²¹ The obligation to ensure attendance at school is placed upon the parents, rather than the child.

At a theoretical level, as children's rights are increasingly recognised, it is arguable that greater emphasis should be placed on children's responsibilities. If children are thought to have sufficient capacity to be able to make decisions for themselves, then it is arguable that they have sufficient capacity to have responsibilities. As Sir John Laws has written:

A society whose values are defined by reference to individual rights is by that very fact already impoverished. Its existence says nothing about individual duty, nothing about virtue, self-discipline, self-restraint, to say nothing of self-sacrifice.⁶²²

However, the difficulty arises in enforcing any duties imposed upon children. Even though children are subject to the criminal law, the punishments imposed on children are not the same as those placed on adults. Certainly, where a child is exercising a right, like others she must ensure she respects the rights of others. In *Re Roddy (A Child) (Identification: Restriction on Publication)*⁶²³ a 16-year-old was permitted to tell the media her story of how she became pregnant at age 12. However, she was not permitted, in doing so, to reveal the identity of her child nor of the father of the child, both of whom were under the age of 18. In *Re M (A Child) (Care Proceedings: Witness Summons)*⁶²⁴ a child was forced to give evidence against her will in child abuse proceedings. The importance of discovering the truth about the alleged abuse in that case justified overruling her wishes.

19 Conclusion

This chapter has considered the ways in which the law looks at children. Two particular approaches have been contrasted: that in which the law seeks to promote the child's welfare; and that in which the law protects the rights of the child. In respect of many issues, despite their important theoretical differences, these approaches would adopt the same solution. The issue of most disagreement is over whether a child should be able to make decisions for him- or herself. The leading cases in this area have focused on the medical arena. In the rather extreme circumstances of those cases, the courts have not been willing to permit children to make decisions which have the effect of ending their lives. These cases might give the impression that children's wishes will be readily overridden by the courts, whereas in fact forcing any form of action on an unwilling teenager is rare, although this may be as much because of the practical problems in compelling a person to do something against their will as any theoretical principle. In *Mabon v Mabon*, Thorpe LJ indicated that in the twenty-first century there was a keener awareness of children's autonomy rights.⁶²⁵ We will wait and see if this leads to changes in the approaches of the courts. The chapter has also considered the ways in which the law must balance the interests of parents and children. The issue is often not made explicit in the case law. The simple approach that the interests of children are paramount and always trump those of the parent has been shown not to represent the law and not to be appropriate in theory.⁶²⁶ The Human Rights Act 1998 will no doubt lead to many more cases where the court will be required to balance the interests of parents, children and the state; and, hopefully, more well-thought-out principles will be developed.⁶²⁷

⁶²² Laws (1998: 255).

⁶²³ [2004] 1 FCR 481.

⁶²⁴ [2007] 1 FCR 253.

⁶²⁵ [2005] 2 FCR 354 at para 26.

⁶²⁶ Although see Dwyer (2006) for further discussion.

⁶²⁷ Fortin (2011a).

Further reading

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10

Private disputes over children

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain the orders available to the court in disputes over children
2. Describe who can apply for section 8 orders
3. Explain and evaluate how the court interprets the welfare principle
4. Summarise the issues around contact disputes
5. Describe how the courts use wardship and the inherent jurisdiction

1 Introduction

This chapter will consider the law in situations when there is a private dispute concerning children. Chapter 11 will examine public law cases, that is, where the local authority is seeking to protect a child whom it fears is in danger of being abused. Here we will concentrate largely on the cases which involved disputes between parents over the upbringing of children, although, as will become apparent, adults other than parents, and indeed children themselves, may seek court orders over children.

Generally parents are left to resolve disputes themselves. You might have strong views about the decisions your neighbours are making about their child's diet, religion or clothing, but unless it could be shown that the child was suffering significant harm and the local authority were willing to become involved, you would be extremely unlikely to be able to bring your case to the courts. The law is based on the assumption that parents promote the welfare of their children, and so there is normally no need for the intervention of the court in normal family life.¹ The courts become involved only if there is a dispute between the parents over the upbringing of their child or, rarely, if the child him- or herself applies to the court.

¹ Probert, Gilmore and Herring (2009).

2 Negotiated settlements

It is important to remember that the vast majority of parents are able to resolve their disagreements about their children themselves. For 90 per cent of separated families there is no need for court intervention because parents are able to negotiate arrangements between themselves or with the help of mediation. The Ministry of Justice has produced a Child Arrangements Programme which is designed to assisted separated couples reach agreements over their children.²

It is well recognised that negotiated agreements between adults generally enhance long-term cooperation, and are better for the child concerned. Therefore, separated parents and families are strongly encouraged to attempt to resolve their disputes concerning the child outside of the court system. This may also be quicker and cheaper.

Couples are encouraged to agree a parenting plan. As paragraph 2.5 of the new child arrangements programme states:

The parenting plan should cover all practical aspects of care for the child, and should reflect a shared commitment to the child and his/her future with particular emphasis on parental communication (learning how to deal with differences), living arrangements, money, religion, education, health care and emotional well-being.

If they cannot reach agreement themselves they can use mediation and indeed must attend a mediation information and assessment meeting, before commencing any legal proceedings. This was discussed in Chapter 2.

If the couple cannot reach agreement by any means, they may turn to the courts. The Children Act 1989 brought together the orders appropriate for most private disputes involving children, but sometimes the courts must use their inherent jurisdiction if it is not possible to make the order needed to protect a child under the Children Act 1989.³ This chapter will begin by setting out the orders available under the Children Act, and then consider how the courts decide what order to make.

3 The orders available to the court

Learning objective 1

Explain the orders available to the court in disputes over children

In private cases involving children the courts may make one of the orders mentioned in s 8 of the Children Act 1989. A section 8 order cannot be made in respect of a person over the age of 18.

The different orders that can be made under s 8 will now be considered. The law on orders relating to children has been dramatically reformed by s 12 of the Children and Families Act 2014.⁴ There are three kinds of orders that a court can make under s 8 of the Children Act 1989: child arrangement orders; specific issue orders and prohibited steps orders.

² Ministry of Justice (2014c).

³ For an interesting discussion of the history of the making of the Children Act 1989, see Harris (2006).

⁴ Practice Direction 12B – Child Arrangements Programme deals with procedural matters.

A Child arrangements order

LEGISLATIVE PROVISION

Children Act 1989, section 8

“child arrangements order” means an order regulating arrangements relating to any of the following–

- (a) with whom a child is to live, spend time or otherwise have contact, and
- (b) when a child is to live, spend time or otherwise have contact with any person;

The child arrangements order (CAO) replaces the old ‘residence order’ and ‘contact order’ which determined with whom a child should primarily live and with whom a child should have contact.⁵ These have been abandoned because the Family Justice Review suggested that separating couples had come to believe that whoever obtained residence was the ‘winner’ and whoever just had contact was ‘the loser’. This made proceedings more antagonistic than necessary. As Justice Moylan,⁶ writing extra-judicially, put it:

Words – even, or perhaps particularly, words used in a legal context – can all too easily be invested with a significance beyond that which the words themselves justify. For example, as outlined below, parents when conflicted or in dispute can attribute significance to a word because of the status which it is perceived to represent or reflect rather than to take it merely as a word which denotes the form of practical arrangements in respect of their children.

Moving away from this terminology and phrasing the order in terms of a child arrangement order it is hoped will make the issue less contentious because there will be no clear winner and loser. The difference in terminology is, therefore, largely semantic. It is not imagined that the redefinition of section 8 orders will result in a notable change in the orders made. It may not even succeed in its stated aim. The House of Commons Justice Committee stated:

We think that it is unlikely that a change to the wording of orders from ‘residence’ and ‘contact’ to ‘child arrangements order’ will remove the perception of winners and losers within the family courts, although a change of terms would not, in itself, be objectionable.

A more supportive approach towards CAOs would suggest that the statutory language can ‘set the tone’⁷ for couples disputing over children and encourage the parties to think about how to organise the child’s arrangements on the premise that both parties will be involved in some way in the child’s life. In particular, the change in terminology may counter the false view that some parents seemed to have which was that the parent with residence had the right to make decisions about the children and the ‘contact parent’ was in some sense the secondary parent.⁸ As MacFarlane LJ⁹ puts it, one of the messages of the 2014 reforms is that parents are equal:

Parental status comes with parental responsibility and, where it is shared, it is and will always be a status of equals with each parent required to respect the status of the other.

There are some issues which are unclear given the definition of the child arrangement order:

⁵ Under article 6 of the Children and Families Act (Transitional Provisions) Order 2014 all existing contact and residence orders will be transformed into child arrangements orders.

⁶ Moylan (2013).

⁷ Stevenson (2012b).

⁸ MacFarlane (2014).

⁹ MacFarlane (2014).

(i) Who has the obligation under a child arrangement order?

Although the CAO can state who is to spend time with a child it is not entirely clear what, if anything, is required of anyone. Notably the definition of a CAO is not that a parent must ensure the other parent is able to spend time with the child. Presumably a parent who takes steps to actively prevent the other parent seeing the child under the terms of the order will be seen to be in breach of it and liable to punishment as a result. However, a parent who simply fails to facilitate contact may well not be. But quite what is required of the other parent is far from clear. The line between 'preventing' and 'not facilitating' is a blurred one.

A further issue is whether a child can be required to have contact. It is hard to imagine a court threatening a child with imprisonment they fail to spend time with their parent as the CAO states.

(ii) Can the parent be forced to have contact with the child?

The wording of a CAO is also unclear on whether a parent can be *required* to have contact with the child. If the evidence is clear that the child would benefit from regular contact with the non-resident father, but the father does not wish to have contact, can he be compelled to see the child?¹⁰ The definition of a CAO would not seem to include an order that binds the person named to have contact.¹¹ Indeed, Thorpe LJ in *Re L (A Child) (Contact: Domestic Violence)*¹² speaking of the old law explicitly denied that a parent could be ordered to spend time with a child against the parent's wishes. In any event, it would probably be counterproductive to compel a reluctant parent to see a child and so it is hard to image the court would want to make such an order.¹³

(iii) What can 'contact' involve?

The CAO allows the court to regulate contact. This will normally involve face-to-face meetings, but the CAO can also involve indirect contact, for example in the form of letters, e-mails, Skypeing¹⁴ or telephone calls. An indirect contact order may be appropriate if the contact parent cannot see the child: for example, if the parent in prison;¹⁵ or the child is strongly opposed to face-to-face contact.¹⁶ It may also be appropriate if the child and the contact parent do not have a relationship at present, and they need to establish or re-establish links before direct contact would be appropriate.¹⁷ It would be most unusual for a court to decide that even indirect contact would be inappropriate.¹⁸

If contact is to be face to face, it can be supervised by the social services.¹⁹ This may be particularly appropriate where there is a fear that the contact parent may endanger the child.²⁰ If contact is to be supervised, it will often take place at a contact centre, a place set up by the local authority to assist in meetings between contact parents and children. The effectiveness of these

¹⁰ Of course, he could not physically be forced to do so, but he could be ordered to do so under threat of punishment.

¹¹ Although a specific issue order may have this effect.

¹² [2000] 2 FCR 404 at para 43. See also *Re S (A Child)* [2010] EWCA Civ 705.

¹³ But see the discussions on the duties of contact later in this chapter.

¹⁴ E.g. *Re A (Contact: Witness Protection Scheme)* [2005] EWHC 2189 (Fam).

¹⁵ *A v L (Contact)* [1998] 1 FLR 361, [1998] 2 FCR 204.

¹⁶ *Re A and B (Contact) (No. 4)* [2015] EWHC 2839 (Fam).

¹⁷ *Re L (Contact: Transsexual Applicant)* [1995] 2 FLR 438, [1995] 3 FCR 125.

¹⁸ *Re P (Contact: Indirect Contact)* [1999] 2 FLR 893; *A Local Authority v A, B and E* [2011] EWHC 2062 (Fam).

¹⁹ *Practice Direction (Access: Supervised Access)* [1980] 1 WLR 334.

²⁰ Although where there has been sexual abuse indirect contact is normally ordered: *Re M (Sexual Abuse Allegations: Interviewing Techniques)* [1999] 2 FLR 92.

centres will be considered later in this chapter. In *Re C (Abduction: Residence and Contact)*²¹ it was held that the Human Rights Act 1998 indicated that there was a presumption in favour of normal contact and there had to be clear evidence to justify requiring contact to be supervised. If supervised contact has successfully taken place for a considerable period of time, the court may well be minded to permit unsupervised contact.²² However, in some cases it has been accepted that all contact will always need to be supervised. In *Re S (Child Arrangements Order: Effect of Long-Term Supervised Contact on Welfare)*²³ a father had a conviction for making paedophilic images and was found to be sexually attracted to girls. It was likely that supervised contact with his daughter would always be needed, at least during her minority.

(iv) Is a no contact order possible?

Under the old law it was possible to make a 'no contact order'. That would be an order prohibiting contact between a child and parent.²⁴ It is not quite clear whether such an order would fall within the definition of a CAO. It probably does as an order for no contact is an order which regulates 'with whom a child is to . . . spend time or otherwise have contact'. However, it may be better for a 'no contact order' to be made as a prohibited steps orders. Sir James Munby in *Q v Q (Contact: Undertakings) (No. 3)*²⁵ held a prohibited steps order prohibiting contact could be made, although he described that as being at the limit of the court's powers and preferred, in that case, to rely on an undertaking from the father²⁶ that he would not contact that child. In that case the mother had applied for a no contact order after the father had been convicted of a sex offence against his nephew.

B Specific issue orders

LEGISLATIVE PROVISION

Children Act 1989, section 8

A specific issue order means an order giving directions for the purpose of determining a specific question which has arisen, or which may arise, in connection with any aspect of parental responsibility for a child.

The specific issue order (SIO) may require someone to act positively in some way or may require someone to refrain from a particular activity.²⁷ It is designed to deal with a particular one-off issue relating to the child's upbringing: for example, in *Re C (A Child) (HIV Test)*²⁸ an SIO was made that a baby be tested for HIV and in *M v M (Specific Issue: Choice of School)*²⁹ an SIO was used to decide that the child should attend a voice test for a cathedral school. It is not designed to deal with ongoing disputes – for example, what kind of clothes the child may wear.³⁰

²¹ [2005] EWHC 2205 (Fam).

²² *R v P (Contact: Abduction: Supervision)* [2008] 2 FLR 936.

²³ [2015] EWCA Civ 689.

²⁴ *P v D* [2014] EWHC 2355 (Fam).

²⁵ [2016] EWFC 5.

²⁶ Breach of a formal undertaking to court can lead to the same enforcement proceedings as breach of a court order.

²⁷ Gilmore (2004c) provides an excellent discussion of the use of specific issue orders.

²⁸ [1999] 2 FLR 1004 CA.

²⁹ [2005] EWHC 2769 (Fam).

³⁰ Whether an SIO can state that in future a named person (e.g. the mother) can make decisions concerning a particular topic is unclear: see Gilmore (2004c: 369–71).

C Prohibited steps order

LEGISLATIVE PROVISION

Children Act 1989, section 8

'a prohibited steps order means an order that no step which could be taken by a parent in meeting his parental responsibility for a child, and which is of a kind specified in the order, shall be taken by any person without the consent of the court.'

The prohibited steps order (PSO) is entirely negative – it tells a parent what he or she may not do in respect of their child. The order can be used, for example, to prevent a child being known by a different name,³¹ or to prevent a child being removed from the United Kingdom.

D Restrictions on the use of section 8 orders

The section 8 orders are loosely defined and so could be open to abuse were they not restricted in their scope in the following ways.

(i) The order must relate to an aspect of parental responsibility

This means that the order must relate to an issue concerning the upbringing of the child and not just concerning the relationship between the parents. So, for example, section 8 orders cannot prevent contact between adults,³² nor require a husband to provide the wife with a *get* so that their divorce can be recognised within Jewish law.³³ By contrast, requiring a mother to inform her children that a man is the children's father does fall under the scope of parental responsibility.³⁴

(ii) There is no power to make an occupation or non-molestation order through a section 8 order

A specific issue or prohibited steps order cannot be made if the effect is the same as an occupation or non-molestation order.³⁵ Any such order must be sought under the Family Law Act 1996, Part IV.³⁶ However, if it can be shown that the order sought is not identical to an order available under the Family Law Act 1996 then the order can be made. In *Re H (Minors) (Prohibited Steps Order)*³⁷ a PSO preventing a stepfather visiting a child could be made because a non-molestation order would only prevent molestation and not prohibit all contact with the child. The PSO, therefore, was not identical to a non-molestation order.

³¹ *Dawson v Wearmouth* [1999] 1 FLR 1167, [1999] 1 FCR 625.

³² *Croydon LB v A* [1992] 2 FLR 341, [1992] 1 FCR 522.

³³ *N v N (Jurisdiction: Pre-Nuptial Agreement)* [1999] 2 FLR 745.

³⁴ *Re F (Children) (Paternity: Jurisdiction)* [2008] 1 FCR 382.

³⁵ *Re D (Prohibited Steps Order)* [1996] 2 FLR 273, [1996] 2 FCR 496 CA; *Re D (Residence: Imposition of Conditions)* [1996] 2 FLR 281, [1996] 2 FCR 820.

³⁶ See Chapter 7.

³⁷ [1995] 1 FLR 638, [1995] 2 FCR 547.

(iii) There is no power to make a disguised CAO order using a PSO or SIO

Section 9(5)(a) of the Children Act 1989 states that neither a PSO nor an SIO can be made 'with a view to achieving a result which could be achieved by making a child arrangements order'.³⁸ The real significance of this restriction relates to local authorities: they can apply for specific issue orders or prohibited steps orders, but cannot apply for child arrangements orders.

(iv) A section 8 order cannot be made if the High Court would not be able to make the order acting under the inherent jurisdiction

The practical effect of this restriction is that a local authority is prevented from accommodating the child or obtaining the care or supervision of a child through a specific issue order.³⁹ If the local authority wishes to accommodate, care for or supervise a child, they must use its powers under the Children Act 1989, Part III, rather than use section 8 orders.

(v) The courts will not normally make a PSO or SIO in relation to trivial matters

*In Re C (A Minor) (Leave to Seek Section 8 Order)*⁴⁰ Johnson J refused to give leave to apply for an SIO permitting a child to go on holiday to Bulgaria with her friend's family against her parents' wishes. This was held to be too trivial an issue to be suitable for a section 8 order. If going on holiday is too trivial an issue for an SIO, many other questions that may concern a child or non-residential parent (such as whether the child has to eat green vegetables) can also be seen as too trivial.⁴¹ However, there is nothing in the wording of the statute to suggest that section 8 orders should not deal with what might appear to be trivial matters. A court might feel it is appropriate to deal with a 'trivial issue' (for example, what hairstyle the child should have)⁴² if the issue has come to dominate the parents' and child's relationship to such an extent that it is harming the child.⁴³ So the better view is that SIOs or PSOs can be made in relation to trivial issues, but only rarely will it be appropriate to do so.

(vi) The orders must be in precise terms

A prohibited steps or specific issue order must be in clear terms. An order prohibiting the publishing of 'any information' about two children was found to be in too general terms and restricted by the Court of Appeal to information that identified the children.⁴⁴ Similarly in *Re A and B (Prohibited Steps Order at Dispute Resolution Appointment)*⁴⁵ the father (a UKIP candidate) was prohibited in involving his children in political activities. The order was overturned on appeal because it was too imprecise.

(vii) Only residence orders are available if the child is in care

Under s 9(1) of the Children Act 1989 the only section 8 order that can be applied for if a child is in care is a CAO.⁴⁶ The reasoning is that the local authority, rather than the court, should make decisions relating to the upbringing of a child in care.⁴⁷

³⁸ *Re B (Minors) (Residence Order)* [1992] 2 FLR 1, [1992] 1 FCR 555.

³⁹ See Harding and Newnham (2016) for a discussion of the use by local authorities of section 8 orders.

⁴⁰ [1994] 1 FLR 26.

⁴¹ *Re C (A Minor) (Leave to Seek Section 8 Order)* [1994] 1 FLR 26.

⁴² E.g. what time the child should go to bed: *B v B (Custody: Conditions)* [1979] 1 FLR 385.

⁴³ *M v M (Specific Issue: Choice of School)* [2005] EWHC 2769 (Fam).

⁴⁴ *Re G (A Child) (Contempt: Committal Order)* [2003] 2 FCR 231.

⁴⁵ [2015] EWFC 816.

⁴⁶ *Re A and D (Local Authority: Religious Upbringing)* [2010] EWHC 2503 (Fam).

⁴⁷ See Chapter 12 for further discussion.

(viii) There may be restrictions on section 8 orders where the child has capacity

There is some dispute over whether a PSO can overrule the decision of a child who has capacity to make it. For example, if a mature child and doctor agree on a form of contraception, could a court make a PSO to prevent the doctor providing the contraception? One view is that the PSO can only prevent an exercise of parental responsibility. As a parent cannot overrule the consent of a competent child to such treatment, neither can a PSO.⁴⁸ The opposite view is that the PSO can overrule the wishes of a competent minor because the definition of a PSO in s 8(1) refers to the decision that 'a' parent, rather than 'the' parent, could make. The best view of the present law is that the court is unlikely to make a section 8 order against the wishes of a competent child, but it is open to the court to do so if necessary for the child's welfare. Even if this view were not taken, it would still be open to the court to overrule the child's wishes through the use of the inherent jurisdiction.

(ix) The order must not unjustifiably interfere with a parent's rights

In *Re A and B (Prohibited Steps Order at Dispute Resolution Appointment)*⁴⁹ a PSO that stopped a UKIP candidate involving his children in political activities was said to breach the father's ECHR article 8 rights. It was held that such an order could be made, but the court would need to explain that the harm to the children was sufficiently seriously to justify the interference in the parent's rights.

E Attaching conditions

When making any order under s 8, the court can attach conditions to the order. This power enables the court to 'fine-tune' the order. The conditions can give detailed arrangements as to how the order should be carried out. For example, there may be conditions stating where the contact is to take place. There is a fine balance here between encouraging the parties to be flexible and resolving minor issues between themselves, and making the order sufficiently detailed that it is clear what is required. Section 11(7) provides that an order under s 8 can:

LEGISLATIVE PROVISION

Children Act 1989, section 11(7)

- (a) contain directions about how it is to be carried into effect;
- (b) impose conditions which must be complied with by any person—
 - (i) in whose favour the order is made;
 - (ii) who is a parent of the child concerned;
 - (iii) who is not a parent of his but who has parental responsibility for him; or
 - (iv) with whom the child is living, and to whom the conditions are expressed to apply;
- (c) be made to have effect for a specified period, or contain provisions which are to have effect for a specified period;
- (d) make such incidental, supplemental or consequential provision as the court thinks fit.

⁴⁸ *Gillick v W Norfolk and Wisbech AHA* [1986] 1 FLR 229, [1986] AC 112.

⁴⁹ [2015] EWFC 816.

The power to attach conditions is not as wide as it might at first appear, and the courts have developed a number of restrictions on the use of the power:

1. Conditions are intended to be supplemental to the section 8 order and should not be used as the primary purpose of the order.⁵⁰ Hence, a Jewish wife failed in an application for a condition to be attached to a contact order that a husband provided her with a *get* so that she could obtain a religious divorce. It was held that this condition would not be appropriate as it was not supplemental to a contact order and was raising a completely new issue.⁵¹
2. The condition must not be incompatible with the main order. In *Birmingham CC v H*⁵² Ward J said that a residence order could not contain a condition that the mother had to live at a specialised unit for mothers and children and comply with reasonable instructions from the staff at the unit. The court explained that the basis of a residence order is that the person with the benefit of the order can choose where the child should live and how to raise the child; the condition was inconsistent with both of these.
3. The condition cannot affect the fundamental rights of a parent. In *Re D (Residence: Imposition of Conditions)*⁵³ children were returned to the mother under a residence order with a condition that the children should not be brought into contact with her partner and that her partner should not reside with her and the children. The Court of Appeal allowed an appeal against the imposition of the condition. Ward LJ explained that:

the case concerned a mother seeking, as she was entitled to, to allow this man back into her life because that is the way she wished to live it. The court was not in a position so to override her right to live her life as she chose. What was before the court was whether, if she chose to have him back, the proper person with whom the children should reside was herself or whether it would be better for the children that they lived with their father or with the grandmother.

In other words, the court should not use conditions attached to residence orders to 'perfect' a parent. Instead, in deciding who should have a residence order, the court should choose between the parents as they are.

4. The condition cannot be used as a back-door route to obtaining an order that is available under other pieces of legislation. So in *D v N (Contact Order: Conditions)*⁵⁴ the Court of Appeal stated that it was inappropriate to use conditions to prevent the father molesting the mother, as such an order was available under the Family Law Act 1996.
5. The condition must be enforceable. In *B v B (Custody: Conditions)*⁵⁵ a condition that the child be in bed before 6.30 pm was struck out. There was no way that the court could realistically enforce such an order. For the same reason, in *Re C (A Child) (HIV Test)*⁵⁶ the Court of Appeal agreed that it would be inappropriate to order a mother not to breastfeed her child.
6. There is no power to use conditions to interfere with the local authority's exercise of its statutory or common law powers. So a condition cannot be used to require a local authority to supervise contact⁵⁷ or to exercise its powers in a particular way.⁵⁸

⁵⁰ *Re D (Prohibited Steps Order)* [1996] 2 FLR 273, [1996] 2 FCR 496.

⁵¹ *N v N (Jurisdiction: Pre-Nuptial Agreement)* [1999] 2 FLR 745.

⁵² [1992] 2 FLR 323.

⁵³ [1996] 2 FCR 820 at p. 825.

⁵⁴ [1997] 2 FLR 797, [1997] 3 FCR 721.

⁵⁵ [1979] 1 FLR 385.

⁵⁶ [1999] 2 FLR 1004. For criticism of this decision see Strong (2000).

⁵⁷ *Leeds CC v C* [1993] 1 FLR 269, [1993] 1 FCR 585.

⁵⁸ *D v D (County Court Jurisdiction: Injunctions)* [1993] 2 FLR 802, [1994] 3 FCR 28.

4 Who can apply for section 8 orders?

Learning objective 2

Describe who can apply for section 8 orders

When considering who can apply for section 8 orders it is necessary to distinguish two separate groups of applicants: those who have the automatic right to apply for a section 8 order, and those who have the right to apply only if the court grants leave. The

detailed law will be discussed shortly but, generally, those who have a very close link with the child can automatically apply for a section 8 order. Anyone else must first seek the leave of the court to bring the application. Only if the court thinks there is an issue which requires a full hearing will it give leave for the application to be heard. If it thinks the application is frivolous or mischievous, the court will refuse to grant leave. The law in this area is seeking to strike a balance between making the court accessible to all those who have legitimate concerns about the upbringing of children, and protecting those who care for children from the stress of facing challenges to their parenting in the courts. The requirement for leave enables the court to filter out applications that the court thinks are inappropriate, without causing the residential parent the expense and stress of preparing a defence and attending the hearing.

A Persons who can apply without leave

Those who can apply for any section 8 order without leave of the court are:

1. Parents. This includes an unmarried father without parental responsibility. It does not include former parents, for example those whose children have been freed for adoption,
2. Anyone who has parental responsibility for the child.⁵⁹
3. Guardians or special guardians.
4. '[A]ny person who is named, in a child arrangements order that is in force with respect to the child, and person with whom the child is to live'.

There is a special category of people who can apply without leave only for a CAO. They are:

1. Any party to a marriage⁶⁰ or civil partnership if the child has been treated by the applicant as a 'child of the family'.⁶¹ This includes step-parents.
2. Any person with whom the child has lived for at least three years.
3. A relative or foster carer with whom the child has lived for at least one year.⁶²
4. Any person who has the consent of:
 - (a) each of the persons in whose favour a CAO is in force directing the child live with them; or
 - (b) the local authority, if the child is subject to a care order; or
 - (c) in any other case, each of the people who have parental responsibility for the child.⁶³
 - (d) Any person who has parental responsibility for a child by virtue of a CAO.

⁵⁹ *M v C and Calderdale MBC* [1993] 1 FLR 505, [1993] 1 FCR 431.

⁶⁰ Even if the marriage has been dissolved.

⁶¹ CA 1989, s 10(5)(a).

⁶² CA 1989, s 10(5B). The period need not be continuous but needs to have started more than five years before the application and be subsisting three months before the making of the application.

⁶³ CA 1989, s 10(5)(b).

The explanation seems to be that the listed people have a sufficiently close relationship with the child to have a say in where the child should live (particularly where the parents have become incapable of caring for the child), but they do not have a right to have a say in the details of how the parent should bring up the child.

B People who need the leave of the court

Anyone else can apply for a section 8 order once they have obtained the leave of the court. This includes the child him- or herself. The one exception to this is local authority foster carers, who must have the consent of the local authority to apply for a section 8 order unless they are related to the child or the child has been living with them for at least three years preceding the application.⁶⁴

C How the court decides whether to grant leave

If it is necessary to obtain the leave of the court, the factors that the court will take into account in deciding whether to give leave depend on whether the applicant is an adult or a child.

(i) Adults seeking leave

The factors to be considered are listed in s 10(9) of the Children Act 1989:⁶⁵

LEGISLATIVE PROVISION

Children Act 1989, section 10(9)

- (a) the nature of the proposed application for the section 8 order;
- (b) the applicant's connection with the child;
- (c) any risk there might be of that proposed application disrupting the child's life to such an extent that he would be harmed by it; and
- (d) where the child is being looked after by a local authority-
 - (i) the authority's plans for the child's future; and
 - (ii) the wishes and feelings of the child's parents.

In *Re A (Minors) (Residence Orders: Leave to Apply)*⁶⁶ the Court of Appeal held that the paramountcy principle under s 1(1) of the Children Act 1989 does not apply when considering whether to grant leave.⁶⁷ This is because the question of leave does not itself involve an issue relating to the child's upbringing.⁶⁸ The court can consider factors that are not listed in s 10(9), most notably the child's wishes.⁶⁹ In *Re G; Re Z (Children: Sperm Donors: Leave to Apply for Children Act Orders)*⁷⁰ men who had donated sperm to couples in a civil partnership to produce

⁶⁴ CA 1989, s 9(3).

⁶⁵ These do not apply to an application for leave following a s 91(14) application: *Re A (Application for Leave)* [1998] 1 FLR 1, [1999] 1 FCR 127.

⁶⁶ [1992] 2 FLR 154, [1992] 2 FCR 174.

⁶⁷ Confirmed in *Re G; Re Z (Children: Sperm Donors: Leave to Apply for Children Act Orders)* [2013] EWHC 134 (Fam).

⁶⁸ The Court of Appeal also argued that the criteria in s 10(9) would be otiose if s 1(3) applied.

⁶⁹ *Re A (A Minor) (Residence Order: Leave To Apply)* [1993] 1 FLR 425, [1993] 1 FCR 870.

⁷⁰ [2013] EWHC 134 (Fam).

a child applied for leave. Baker J said the policy underpinning the 2008 Human Fertilisation and Embryology Act of allowing a same-sex couple to be parents in an equal position to an opposite sex couple was a relevant factor. However, the men had been allowed to establish a relationship with the children and that was a strong factor in favour of granting leave. Although he did not say so explicitly there is an implication that leave would not have been granted had a relationship between the man and child already been established.

In deciding whether or not to grant leave, the courts must now take account of the applicant's rights under articles 6 and 8 of the European Convention.⁷¹ This suggests that only where the application is thought frivolous, vexatious or otherwise harmful to the child will leave not be granted.⁷² There is no need to show that the applicant has 'a good arguable case' before being granted leave.⁷³ Special considerations apply if the application concerns a child in care, and these will be discussed later (Chapter 12).

It is clear that if leave is granted there is no presumption that the application will succeed at the full hearing.⁷⁴

(ii) Children seeking leave

This was discussed earlier in the text (Chapter 9).

(iii) Applying for section 8 orders in favour of someone else

It is not clear whether it is possible to apply for a section 8 order on behalf of someone else, although, as there is no statutory bar, it is presumably possible. Certainly an adult can apply for leave on behalf of a child.⁷⁵ It also seems that a child can apply for leave for a CAO in favour of someone else.⁷⁶ There is some debate over whether a local authority can apply for a CAO in favour of a third party. Such an application would fail if it were thought that a local authority was seeking to circumvent the prohibition on a local authority to apply for a residence or contact order themselves.

D Restricting section 8 applications: section 91(14)

One parent may be intent on pursuing applications against the other out of bitterness or desperation. For example, a non-residential parent may constantly apply to the court for SIOs relating to tiny aspects of the child's upbringing.⁷⁷ Repeated fruitless applications to the court could cause severe distress to the child and their carer, not least because each application must be defended in court.⁷⁸ In order to restrict such applications, the court under s 91(14) can require a party to obtain the leave of the court before applying for any further orders.⁷⁹ This way the child and their carer will not be bothered by having to defend an application

⁷¹ *Re B (Paternal Grandfather: Joinder as Party)* [2012] EWCA Civ 737; *Re J (Leave to Issue Application for Residence Order)* [2003] 1 FLR 114.

⁷² *Re M (Care: Contact: Grandmother's Application for Leave)* [1995] 2 FLR 86, [1995] 3 FCR 550.

⁷³ *Re J (Leave to Issue Application for Residence Order)* [2003] 1 FLR 114.

⁷⁴ *Re W (Contact: Application by Grandmother)* [1997] 1 FLR 793, [1997] 2 FCR 643.

⁷⁵ There may be financial reasons for doing this, as the child may then be able to obtain legal aid: *Re HG (Specific Issue Order: Sterilisation)* [1993] 1 FLR 587, [1993] 1 FCR 553.

⁷⁶ So a child cannot apply for a residence order that he or she live by him- or herself.

⁷⁷ *Re N (Section 91(14) Order)* [1996] 1 FLR 356.

⁷⁸ *C v W (Contact: Leave to Apply)* [1999] 1 FLR 916. A resident parent improperly objecting to contact can also be ordered to pay costs: *Re T (A Child) (Orders for Costs)* [2005] 1 FCR 625.

⁷⁹ The order can be made even if the child is in care: *Re J (A Child) (Restrictions on Applications)* [2007] 3 FCR 123.

unless the court has considered it worthy of a full hearing and granted leave. In *Re N (Section 91(14))*⁸⁰ a s 91(14) order against both parents was said to be required because the parties had been litigating for five years, causing the child serious anxiety and stress. A court can make a s 91(14) order whenever it disposes of an application for any order under the Children Act 1989. It is possible under the subsection to restrict only a certain kind of application: for example, applications for a residence order. A s 91(14) order cannot be made in relation to a child in care.⁸¹ One interesting example of the use of the order was *K v M (Paternity: Contact)*,⁸² where a lover was prevented from bringing further applications to establish that he was the father of a woman's child, after the woman had decided to remain with her husband and to raise the child with him. The court thought the use of the order necessary to prevent the spreading of rumours over the child's paternity.

A s 91(14) order is appropriate only where there is evidence that future applications are likely to be unreasonable, vexatious, or frivolous.⁸³ In deciding whether or not to make an order under s 91(14), the court should keep in mind, *inter alia*, the following factors:⁸⁴

1. The welfare of the child is the paramount consideration.⁸⁵
2. It is a draconian order⁸⁶ which should be used sparingly and only as a last resort.⁸⁷ It should be regarded as an exceptional order.⁸⁸
3. The court should weigh up the child's interests in being protected from inappropriate applications with the fundamental right of access to the courts: *Re R (Residence: Contact: Restricting Applications)*.⁸⁹
4. The order is appropriate if there have been repeated and unreasonable applications.⁹⁰ However, the order can be made even if there is no history of making unreasonable applications,⁹¹ but only if there is evidence that he or she will do so; otherwise, the order will be inappropriate.⁹²
5. The order should be limited to only as long as it is necessary.⁹³ In *Re B (A Child)*⁹⁴ the Court of Appeal suggested that to make a s 91(14) order that would last for the whole of the child's minority was a disproportionate infringement of the father's rights, given that the father had never sought to misuse court proceedings. It was held that the order should last only two years.⁹⁵

⁸⁰ [2010] 1 FLR 1110A.

⁸¹ *Re M (Education: Section 91(14) Order)* [2008] 2 FLR 404.

⁸² [1996] 1 FLR 312, [1996] 3 FCR 517.

⁸³ *F v Kent* CC [1993] 1 FLR 432, [1992] 2 FCR 433.

⁸⁴ A complete list of relevant factors is listed in *Re P (Section 91(14) Guidelines) (Residence and Religious Heritage)* [1999] 2 FLR 573.

⁸⁵ *Re M (Section 91(14) Order)* [1999] 2 FLR 553.

⁸⁶ Butler-Sloss P in *Re G (A Child) (Contempt: Committal Order)* [2003] 2 FCR 231.

⁸⁷ *Re C-J (Section 91(14) Order)* [2006] EWHC 1491 (Fam).

⁸⁸ *Re C (Litigant in Person: Section 91(14) Order)* [2009] 2 FLR 1461.

⁸⁹ [1998] 1 FLR 749.

⁹⁰ *Re M (Section 91(14) Order)* [2012] EWCA Civ 446.

⁹¹ *Re F (Children) (Restriction on Applications)* [2005] 2 FCR 176.

⁹² *Re C (Contact: No Order for Contact)* [2000] Fam Law 699, [2000] 2 FLR 723.

⁹³ The order infringes a party's human right of access to the courts and so must be proportionate: *Re P (Section 91(14) Guidelines) (Residence and Religious Heritage)* [1999] 2 FLR 573.

⁹⁴ [2003] EWCA Civ 1966.

⁹⁵ Although see *Re H (A Child)* [2011] EWCA Civ 1773 where in the exceptional circumstances of the case a s 91(14) order was made without time limit.

If a s 91(14) order is made against a party, he or she can still apply for leave to make an application. The important point is that the hearing for leave will not require the attendance of the residential parent; indeed, they need not even know of the application.⁹⁶ This protects the residential parent or children from the worry that such applications may cause.⁹⁷ If an application for leave is made, the test in deciding whether to grant leave is whether the application for leave demonstrates a need for renewed investigation by the court.⁹⁸ It is not possible to apply conditions to a s 91(14) order.⁹⁹ In *Re S (Children)*¹⁰⁰ the Court of Appeal allowed an appeal against an order which had said that a father could seek leave to apply for an order only once he had undergone therapy.

5 Children's welfare on divorce and relationship breakdown

We will now consider the evidence of child psychologists that children suffer on the breakdown of their parents' relationship, and how the law responds to this. It is widely accepted that, statistically, children whose parents separate are more likely to suffer in various ways than those whose parents stay together.¹⁰¹ As one of the leading experts in the field, Martin Richards, has stated:¹⁰²

Compared with those of similar social backgrounds whose parents remain married, children whose parents divorce show consistent, but small differences in their behaviour throughout childhood and adolescence and a somewhat different life course as they move into adulthood. More specifically, the research indicates on average lower levels of academic achievement and self-esteem and a higher incidence of bad conduct and other problems of psychological adjustment during childhood. Also during childhood a somewhat earlier social maturity has been recorded. A number of transitions to adulthood are typically reached at earlier ages; these include leaving home, beginning heterosexual relationships and entering cohabitation, marriage and child bearing. In young adulthood there is a tendency toward more changes of job, lower socio-economic status, a greater propensity to divorce and there are some indications of a higher frequency of depression and lower measures of psychological well-being. The relationship (in adulthood) with parents and other kin relationships may be more distant.

It is important to appreciate what is *not* being claimed here. Clearly not all children whose parents separate suffer in these ways and some children whose parents do not separate do suffer in these ways. The point is merely that, on average, children whose parents separate are slightly more likely to suffer these harms than those whose parents have not separated. In fact, only a minority of children whose parents separate suffer in these ways,¹⁰³ although they appear to be twice as likely to do so as children whose parents stay together.¹⁰⁴ It should also

⁹⁶ In *Re G and M (Child Orders: Restricting Applications)* [1995] 2 FLR 416 it was expressly ordered that the mother should not be informed of applications for leave.

⁹⁷ *Re S-B (Children)* [2015] EWCA Civ 705.

⁹⁸ *Re A (Application for Leave)* [1998] 1 FLR 1, [1999] 1 FCR 127.

⁹⁹ *S v S* [2006] 3 FCR 614.

¹⁰⁰ [2006] EWCA Civ 1190.

¹⁰¹ Coleman and Glenn (2010b).

¹⁰² Richards (1997: 543).

¹⁰³ Coleman and Glenn (2010b).

¹⁰⁴ Rogers and Pryor (1998).

be stressed that although children whose parents have separated can suffer in these various ways, it does not necessarily follow that this is because their parents have separated. It may not be the separation that causes these problems, but the earlier tensions in the marital relationship;¹⁰⁵ or poverty connected to relationship breakdown; or society's reaction to separated families, although there is some evidence that the quality of parenting declines immediately following a divorce as the parents come to terms with lone parenthood.¹⁰⁶ Further, the research does not support the view that parents should 'stay together for the sake of the children'. Indeed, evidence suggests that children brought up in continually warring families do even less well than children whose parents separate.¹⁰⁷ There is also clear evidence that family breakdown affects the health of the parents.¹⁰⁸

There do seem to be some factors that are particularly linked to the problems children suffer on their parents' divorce, namely: poverty before or after the separation; conflict before, during or after the separation;¹⁰⁹ a parent's psychological distress; multiple changes in family structures;¹¹⁰ and a lack of high-quality contact with the non-residential parent.¹¹¹ Richards¹¹² suggests that there are steps that can be taken to lessen the harm caused to children on divorce. He argues that society should seek to encourage the maintenance of ties with both parents and kin; ensure adequacy of income for the child; reduce conflict over children involved; provide emotional support for parents; and limit the need for the child to move house or school.¹¹³ As will be seen, these aims are pursued by the law only to a limited extent. There is also ample evidence that listening to children and keeping them informed during the separation process is important to their welfare.¹¹⁴

In resolving any dispute relating to the upbringing of the child, the court must decide what is in the child's welfare or best interests. We discussed the general meaning of the welfare principle earlier in the text (Chapter 9). Here we will explore how it is applied in particular cases. However, when doing so it is important to bear in mind the important observation of Baroness Hale:

Family court orders are meant to provide practical solutions to the practical problems faced by separating families. They are not meant to be aspirational statements of what would be for the best in some ideal world which has little prospect of realisation.¹¹⁵

So, the courts are not concerned with what might be best for children in some mythical ideal world, but in the reality of the case before them. We need to be modest, therefore, about what good court orders can do.¹¹⁶

¹⁰⁵ Kelly (2003). Notably, children who experience the death of a parent do not suffer in these ways to the same extent as children whose parents have divorced.

¹⁰⁶ Rogers and Pryor (1998).

¹⁰⁷ Eekelaar and Maclean (1997: 53–7).

¹⁰⁸ Coleman and Glenn (2010b).

¹⁰⁹ Wild and Richards (2003).

¹¹⁰ E.g. living with a parent who has a number of partners during the child's minority.

¹¹¹ Rogers and Pryor (1998); Hawthorne *et al.* (2003).

¹¹² Richards (1994).

¹¹³ See also Richards and Connell (2000); Parkinson (2011).

¹¹⁴ Rogers and Pryor (1998).

¹¹⁵ *Holmes-Moorhouse v Richmond-Upon-Thames London Borough Council* [2009] 1 FLR 904, para 38.

¹¹⁶ Hedley (2009).

6 How the court obtains information on the child's welfare

Obviously, not all children are alike and the arrangements which might promote one child's welfare will not benefit another.¹¹⁷ Therefore, the court needs to consider the position of each child before it as an individual. In deciding what is in the interests of the child's welfare the judge does not rely on his or her own instincts, but seeks expert advice. Although the parties themselves are free to call witnesses to support their case, the court often needs independent evidence about a child and may seek a report, known as a welfare report.¹¹⁸ The report is not requested in every case, but only when there is no realistic possibility that the parties can be persuaded to mediate the dispute.

These reports are normally prepared for the court by an appointed social worker, a family court adviser or other expert.¹¹⁹ The report considers issues over which there is dispute; the options that are available to the court; and, if appropriate, recommends a course of action. In preparing the report, the reporter should interview each party as well as the child. Normally, quite a number of visits will be needed. The importance placed on the report means that great care should be taken in its preparation.¹²⁰ Often the report will be highly influential on the eventual outcome of the case, although it would be wrong to think that the court must follow the welfare report.¹²¹ If the judge is minded to depart from the report, he or she should obtain oral evidence from the reporter.¹²² The welfare report often records the child's wishes. However, there is increasing recognition of the desirability to the court of hearing the child's voice directly.¹²³ If necessary, the judge can interview the child in private to protect them from the ordeal of appearing in court.¹²⁴ The judge is more likely to interview a child in order to determine what order will best promote their welfare, than to determine what happened in the past.¹²⁵ If the judge does this they must be careful not to move beyond the role of asking questions to find out the views of the child and stray into the area of trying to influence the child.¹²⁶

There has been a growing interest in the right of children to express their views in any court case concerning their upbringing.¹²⁷ However, in *Re P-S*¹²⁸ it was held that article 12 of the United Nations Convention on the Rights of the Child 1989 and the European Convention on Children's Rights 1996 does not give a child a right to be personally heard in a court case, as long as their views are presented.¹²⁹ In difficult cases it may be appropriate for the child to be separately represented by his or her own counsel, but rarely is there funding for that.¹³⁰ There are, however, concerns that in problematic cases there may be difficulties in listening to children. Children may not be used to being listened to by adults and find it disturbing

¹¹⁷ Smart, Neale and Wade (2001: 166).

¹¹⁸ CA 1989, s 7(1).

¹¹⁹ CAFCASS (2008) discusses proposed reforms of CAFCASS.

¹²⁰ *Re P (A Minor) (Inadequate Welfare Report)* [1996] 2 FCR 285.

¹²¹ *Re P (A Minor) (Inadequate Welfare Report)* [1996] 2 FCR 285.

¹²² *Re CB (Access: Court Welfare Reports)* [1995] 1 FLR 622.

¹²³ Indeed, this is required under article 12(1) of the UN Convention on the Rights of the Child. See further, e.g., in Smart and Neale (2000).

¹²⁴ *Re R (A Minor) (Residence: Religion)* [1993] 2 FLR 163, [1993] 2 FCR 525.

¹²⁵ *Re A (Fact-Finding Hearing: Judge Meeting with Child)* [2012] EWCA Civ 185.

¹²⁶ *Re KP (A Child)* [2014] EWCA Civ 554.

¹²⁷ Caldwell (2011); Lowe and Murch (2003); Murch (2003).

¹²⁸ [2013] EWCA Civ 223.

¹²⁹ To which the UK is not a signatory.

¹³⁰ *Re C (Contact: Evidence)* [2011] EWCA Civ 261; *Re A (A Child) (Separate Representation in Contact Proceedings)* [2001] 2 FCR 55.

talking to professionals.¹³¹ One report on children's experiences of professionals depressingly concluded: 'Professionals may be perceived as inflexible, intrusive, condescending, deceitful and reinforcing in a myriad of ways their superiority to the child.'¹³² Another research team found that children wanted a conversation with their parents about the separation, rather than being asked for a formal expression of their views.¹³³ A disturbing account of the way children's wishes were used by professionals and couples seeking to negotiate a settlement and thereby avoid a court hearing, showed that children's views were used as tools in the negotiation, rather than being the starting point of the discussion.¹³⁴

In *F-D v CFCASS*¹³⁵ a father sought to sue CAFCASS in tort. He claimed CAFCASS had been negligent in preparing a report in connection with a dispute over contact. He failed before Judge Bidder QC on the basis that it would not be just or reasonable to impose a duty of care on CAFCASS towards the father. In any event it was found there had been no negligence. Whether a claim brought by a child would have more success is an issue which will, no doubt, be decided another day.

7 How the court decides what is in the welfare of the child: the statutory checklist

Learning objective 3

Explain and evaluate how the court interprets the welfare principle

When considering applications under section 8, the court must take into account the checklist of factors in s 1(3), in deciding what is in the welfare of the child.¹³⁶ The court is required to consider all the different factors and weigh them in the balance, although the court can also take into account other factors not mentioned in the list.¹³⁷

There are contrasting attitudes towards the checklist among the judiciary. Waite LJ in *Southwood LBC v B*¹³⁸ referred to the checklist as an *aide-mémoire*. To Staughton LJ in *H v H (Residence Order: Leave to Remove from the Jurisdiction)*¹³⁹ the checklist was not 'like the list of checks which an airline pilot has to make with his co-pilot, aloud one to the other before he takes off'. By contrast, *B v B (Residence Order: Reasons for Decisions)*¹⁴⁰ described going through the individual items on the checklist as a good discipline. Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)*¹⁴¹ suggested that in difficult cases it would be helpful to consider each item of the checklist. This suggests that the exact use of the checklist differs from judge to judge. What is clear is that if it can be shown that a judge failed to take into account one of the factors on the checklist which was relevant to the case in hand, then the decision would be liable to be overturned on appeal.¹⁴²

¹³¹ Lowe and Murch (2003: 18–19).

¹³² Neale and Smart (1999: 33).

¹³³ Smart, Neale and Wade (2001: 169).

¹³⁴ Trinder, Firth and Jenks (2010).

¹³⁵ [2014] EWHC 1619 (QB).

¹³⁶ CA 1989, s 1(4).

¹³⁷ Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)* [2006] UKHL 43 at para 40.

¹³⁸ [1993] 2 FLR 559 at p. 573.

¹³⁹ [1995] 1 FLR 529 at p. 532.

¹⁴⁰ [1997] 2 FLR 602.

¹⁴¹ [2006] UKHL 43 at para 40.

¹⁴² *Re H (Contact Order)* [2010] EWCA Civ 448.

A The various factors

The various factors listed in s 1(3) will now be considered.

(i) The ascertainable wishes and feelings of the child concerned (considered in the light of his age and understanding) (s 1(3)(a) CA 1989)

The child's wishes are only one of the factors to be taken into account, but where the child is mature it is likely to be the most important factor.¹⁴³ In *Re R (A Child) (Residence Order: Treatment of Child's Wishes)*¹⁴⁴ the Court of Appeal criticised a judge who failed to attach sufficient weight to the views of a child aged 10. In deciding whether a child's views should be taken into account the court will consider whether the child is competent.¹⁴⁵ 'Full and generous' weight should be given to a mature child's wishes.¹⁴⁶ In *Re LC*,¹⁴⁷ a Supreme Court decision considering the habitual residence of a child, the views of 'adolescents' (a term not defined) had to be taken into account, but not, the majority held, younger children.

Sturge and Glaser, two leading psychologists, suggest that the wishes of children under the age of six should be regarded as indistinguishable from the wishes of the main carer, and the wishes of children over 10 should carry considerable weight, while those between six and 10 are at an intermediate state.¹⁴⁸ However the courts tend to focus on the ability of the particular child rather than their age.

Baroness Hale has explained why she regards hearing the views of children important:

... there is now a growing understanding of the importance of listening to the children involved in children's cases. It is the child, more than anyone else, who will have to live with what the court decides. Those who do listen to children understand that they often have a point of view which is quite distinct from that of the person looking after them. They are quite capable of being moral actors in their own right. Just as the adults may have to do what the court decides whether they like it or not, so may the child. But that is no more a reason for failing to hear what the child has to say than it is for refusing to hear the parents' views.¹⁴⁹

Even if a judge believes the child to be mistaken, it may still be appropriate to follow the child's views. There are two reasons why a judge may do this. First, there are practical considerations. If a teenager insists on not living with a particular parent, the child may simply ignore any court order awarding residence to that parent. There will be little point in making an order that the child will simply disobey.¹⁵⁰ More dramatically, in *Re H (Residence)*¹⁵¹ a girl who was nearly 12 threatened to take her own life if she was not permitted to live with her father. The strength of her views was such that it would be impractical to force her to live with her mother. Secondly, it may damage a child psychologically to ignore his or her wishes. As Butler-Sloss LJ has argued:¹⁵² 'nobody should dictate to children of this age, because one is dealing with their

¹⁴³ *B v B (M v M) (Transfer of Custody: Appeal)* [1987] 2 FLR 146; *Re T (Abduction: Child's Objections to Return)* [2000] 2 FLR 193. UN Convention on the Rights of the Child, article 12, requires the court to give due weight to children's views in accordance with their age and maturity; discussed in Parkes (2009).

¹⁴⁴ [2009] 2 FCR 572.

¹⁴⁵ *Re S (Change of Surname)* [1999] 1 FLR 672.

¹⁴⁶ *Re H (Residence Order: Child's Application for Leave)* [2000] 1 FLR 780.

¹⁴⁷ [2014] UKSC 1, discussed in Gilmore and Herring (2014).

¹⁴⁸ Sturge and Glaser (2000: 624). See also Parkinson and Cashmore (2010).

¹⁴⁹ *Re D (A Child) (Abduction: Rights of Custody)* [2006] UKHL 51, para 57. See also her similar comments in *Re LC* [2014] UKSC 1.

¹⁵⁰ *Re H (Residence)* [2011] EWCA Civ 762.

¹⁵¹ [2011] EWCA Civ 762.

¹⁵² *Re S (Minors) (Access: Religious Upbringing)* [1992] 2 FLR 313 at p. 321.

emotions, their lives, and they are not packages to be moved around. They are people entitled to be treated with respect.' That is not to say that the wishes of a mature minor can never be overridden, because the welfare principle is the paramount criterion.¹⁵³

When the court considers the views of the child, it will have regard to the following factors:

1. The maturity of the child.¹⁵⁴ In *Re B (Minors) (Change of Surname)*¹⁵⁵ it was held that it would be exceptional for a court to make orders contrary to the wishes of a teenager.¹⁵⁶ In *Re C (Older Children: Relocation)*¹⁵⁷ there was a dispute whether a 17-year-old boy should live with his mother in New York or his father in London. It was held no order should be made as the boy was old enough to make his own decision. In *Re S (Contact: Children's Views)*¹⁵⁸ Tyrer J followed the views of a 16- and a 14-year-old stating that their views were carefully thought out. He stated that if the law required young people to respect the law then the law must respect them. This might even mean permitting them to make mistakes.¹⁵⁹ In *Re D (A child)*¹⁶⁰ the entrenched views of an 11-year-old boy opposing contact were respected. Various strategies had been tried to encourage him to permit contact, but he was adamant.
2. The importance of the issue is clearly relevant. The more important the issue, the more willing the court may be to overrule the wishes of a child. For example, if the child refuses to consent to medical treatment which would save his or her life, the court will readily override the child's decision.¹⁶¹
3. The courts are also concerned with the possibility that an adult may heavily influence the views of the child.¹⁶² So before attaching weight to the child's views, the court will try to ensure that they truly are the views of the child and they are not simply repeating what they have been told by one of their parents. In *Puxty v Moore*¹⁶³ Thorpe LJ, when considering the fact that a nine-and-a-half-year-old girl wanted to live with her mother, noted she was influenced by the fact her mother had bought her a pony. In *Re M (Intractable Contact Dispute: Court's Positive Duty)*¹⁶⁴ the opposition of a 15-year-old girl and 13-year-old boy to contact with their mother was not given great weight because 'their understanding in this case is corrupted by the malignancy of the views, with which they have been force-fed [by the father] over many years of their life, until so blinded by them that they cannot see the truth either of their mother's good qualities or of the good it will do them to have some contact with her'.
4. There is some psychological evidence that requiring children to choose between parents is very harmful.¹⁶⁵ The court will readily be prepared to accept that the child has no wishes

¹⁵³ *Re P (A Minor) (Education)* [1992] 1 FLR 316, [1992] FCR 145. Contrast the position in Finland where children over the age of 12 can veto court decisions concerning residence and access (the Finnish law is conveniently summarised in *K and T v Finland* [2000] 2 FLR 79).

¹⁵⁴ A nine-year-old's wishes were overridden in *Re R (A Minor) (Residence: Religion)* [1993] 2 FLR 163, [1993] 2 FCR 525.

¹⁵⁵ [1996] 1 FLR 791, [1996] 2 FCR 304.

¹⁵⁶ See also *Re M (Intractable Contact Dispute: Court's Positive Duty)* [2006] 1 FLR 627.

¹⁵⁷ [2015] EWCA Civ 1298.

¹⁵⁸ [2002] 1 FLR 1156.

¹⁵⁹ See also *Re W (Children) (Leave to Remove)* [2008] 2 FCR 420 and *CB v CB* [2013] EWHC 2092 (Fam).

¹⁶⁰ [2014] EWCA Civ 1057.

¹⁶¹ *Re M (Medical Treatment: Consent)* [1999] 2 FLR 1097.

¹⁶² *Re S (Transfer of Residence)* [2010] 1 FLR 1785; *EY v RZ (Family Proceedings)* [2013] EWHC 4403 (Fam).

¹⁶³ [2005] EWCA Civ 1386.

¹⁶⁴ [2006] 1 FLR 627 at para 26.

¹⁶⁵ Such an argument was influential in *Re A (Specific Issue Order: Parental Dispute)* [2001] 1 FLR 121.

in such cases. Interestingly, in one study only 55 per cent of children interviewed said they would like to have been asked whether they would prefer to live with their mother or father after the separation of their parents.¹⁶⁶

5. The court will wish to examine the basis of the child's views. In *Re M (A Minor) (Family Proceedings: Affidavits)*¹⁶⁷ the wishes of a 12-year-old girl to live with her father were overridden because her decision was based on occasional visits to her father while she lived with her grandparents. It was felt that her occasional visits did not give her a clear view of what life with her father would be like.¹⁶⁸ The case indicates that where a child has a strong view based on factual error, the court will readily override that view. The courts have also expressed a concern that children may put undue weight on short-term gains and not take a long-term view of their welfare.¹⁶⁹ In *Re A (A Child)*¹⁷⁰ the Court of Appeal were critical of earlier proceedings which had taken it for granted the child opposed contact with her father, without exploring more carefully why this was.

(ii) The child's physical, emotional and educational needs (s 1(3)(b) CA 1989)

In many cases the child's needs, together with the parents' capacity for meeting those needs, are the crucial issue. The emotional welfare of the child is particularly important.¹⁷¹ The welfare report will consider the closeness of the relationship between the child and each of the parents. This might require the court to compare different styles of parenting. In *May v May*¹⁷² the court preferred the father's parenting, partly because he stressed the importance of academic achievement, to the mother's more relaxed attitude towards school. As will be noted shortly, the courts have accepted that it is normally in the emotional interests of children to retain contact with both parents. In *Re G (Education: Religious Upbringing)*¹⁷³ the father proposed the children attended a ultra-orthodox Jewish school which segregated boys and girls and from which very few children went on to universities. The Court of Appeal preferred the mother's alternative which left the children with a broader range of opportunities to choose from for their adult lives and treated boys and girls equally.

(iii) The likely effect on the child of any change in his circumstances (s 1(3)(c))

The courts have stressed the importance of maintaining the status quo for children if possible.¹⁷⁴ Changing children's schools and housing can cause even further disturbance for children at a time when their lives are already under stress. In practice, as empirical evidence shows, the court will normally confirm the presently existing arrangements for the child.¹⁷⁵ In effect, then, if a child has a settled life with one parent, good reasons will be needed to justify a move to the other parent.¹⁷⁶ This was stressed by the Supreme Court in

¹⁶⁶ Douglas *et al.* (2001).

¹⁶⁷ [1995] 2 FLR 100, [1995] 2 FCR 90.

¹⁶⁸ In particular, she did not appreciate that she might have to do a lot of housework!

¹⁶⁹ *Re C (A Minor) (Care: Children's Wishes)* [1993] 1 FLR 832, [1993] 1 FCR 810.

¹⁷⁰ [2013] EWCA Civ 1104.

¹⁷¹ *Re J (Children) (Residence: Expert Evidence)* [2001] 2 FCR 44.

¹⁷² [1986] 1 FLR 325.

¹⁷³ [2012] EWCA Civ 1233.

¹⁷⁴ *Re H (Children) (Residence Order)* [2007] 2 FCR 621.

¹⁷⁵ Smart and May (2004a).

¹⁷⁶ *Re L (Residence: Justices' Reasons)* [1995] 2 FLR 445.

*Re B (A Child)*¹⁷⁷ where it was emphasised that a child should not be moved from an arrangement which was thriving unless there was a good reason to do so.¹⁷⁸

(iv) The child's age, sex, background and any characteristics of the child which the court considers relevant (s 1(3)(d) CA 1989)

These factors are likely to be of special relevance in choosing foster parents and potential adopters for children. The Children Act 1989 requires a local authority to take account of the child's 'religious persuasion, racial origin and cultural and linguistic background' in deciding what care arrangements are appropriate for the child. As we shall discuss shortly, there has been some debate in the case law as to whether girls are better looked after by their mothers and boys by their fathers.

(v) Any harm which the child has suffered or is at risk of suffering (s 1(3)(e) CA 1989)

Harm is defined in s 31(9): 'harm means ill-treatment or the impairment of health or development including, for example, impairment suffered from seeing or hearing ill-treatment of another'. The last 12 words of the subsection refer to the harm a child may suffer if aware of domestic violence in his or her household. The court, of course, would never make an order which it thought might place a child in a situation where there was a risk that the child would suffer harm. It has been made clear by the Court of Appeal in *Re M and R (Child Abuse: Evidence)*¹⁷⁹ that, before taking a risk into account, the court must find proved facts on the balance of probabilities which reveal that risk.¹⁸⁰ So the court must first consider what facts are proved. Once facts are proved, the next issue is whether those proven facts indicate a risk of harm.¹⁸¹ The risk only needed to be of a real possibility of harm; it does not need to be shown that it is more likely than not that the child will be harmed.¹⁸²

It is not always easy to tell whether an arrangement will cause harm to a child. In *Re W (Residence Order)*¹⁸³ the mother and her new partner had an uninhibited attitude towards nudity and were often nude in front of the children. The Court of Appeal thought the trial judge had been misled in assuming that this would harm the children. There was no clear evidence that the nudity would harm the children and so it should not have been taken into account. The risk need not be that the child will be directly harmed, but a risk of harm to someone close to the child (e.g. their primary carer) is often a risk that the child will thereby be harmed.¹⁸⁴

(vi) How capable each of the child's parents (and any other person in relation to whom the court considers the question to be relevant) is in meeting his needs (s 1(3)(f))

This factor must be read in conjunction with the needs of the child. If, for example, the child has a medical condition requiring careful management which only one parent is capable of providing, this would be a crucial consideration.¹⁸⁵ In *RO v A Local Authority and Others*¹⁸⁶

¹⁷⁷ [2009] UKSC 5.

¹⁷⁸ [1998] 1 FCR 549. A recent study suggested that in residence disputes the status quo was a significant factor: Giovannini (2011).

¹⁷⁹ [1996] 2 FLR 195, [1996] 2 FCR 617.

¹⁸⁰ This is explained and discussed further in Chapter 11.

¹⁸¹ *Re A (Contact: Witness Protection Scheme)* [2005] EWHC 2189 (Fam).

¹⁸² *Re A (Contact: Witness Protection Scheme)* [2005] EWHC 2189 (Fam).

¹⁸³ [1999] 1 FLR 869.

¹⁸⁴ *Re A (Contact: Witness Protection Scheme)* [2005] EWHC 2189 (Fam).

¹⁸⁵ *Re C and V (Minors) (Parental Responsibility and Contact)* [1998] 1 FLR 392, [1998] 1 FCR 57.

¹⁸⁶ [2013] EWHC B31 (Fam).

a child's mother had died and she had complex emotional needs, which it was held could be better met by her aunt than her father. In *Re M (Handicapped Child: Parental Responsibility)*¹⁸⁷ the father's inability to care effectively for his disabled daughter was fatal to his application for a residence order. The phrase 'other person' could include the new partner of the parent. The court may regard it as an advantage to the child to live in a two-adult household rather than a single-person one.¹⁸⁸

(vii) The range of powers available to the court under the Children Act 1989 in the proceedings in question (s 1(3)(g))

The court has the power to make orders other than those sought by the parties.¹⁸⁹ The court, in considering an application for a particular order, must decide whether the order sought would be better than any other order available under the Children Act 1989.

As well as the checklist of factors, the court must also take into account three further provisions of the Act which are relevant in deciding whether to make a section 8 order.

(viii) The presumption of shared involvement in child's life

The Children and Families Act 2014 has amended the way welfare should be understood in the Children Act 1989. The provisions are complex, even tortuous. They will be set out here and then explained:

LEGISLATIVE PROVISIONS

Children Act 1989, s. 1

- (2A) . . . as respects each parent within subsection (6)(a) to presume, unless the contrary is shown, that involvement of that parent in the life of the child concerned will further the child's welfare.
- (2B) In subsection (2A) 'involvement' means involvement of some kind, either direct or indirect, but not any particular division of a child's time.
- (6) In subsection (2A) 'parent' means parent of the child concerned; and, for the purposes of that subsection, a parent of the child concerned –
 - (a) is within this paragraph if that parent can be involved in the child's life in a way that does not put the child at risk of suffering harm; and
 - (b) is to be treated as being within paragraph (a) unless there is some evidence before the court in the particular proceedings to suggest that involvement of that parent in the child's life would put the child at risk of suffering harm whatever the form of the involvement.

¹⁸⁷ [2001] 3 FCR 454.

¹⁸⁸ *Re DW (A Minor) (Custody)* [1984] 14 Fam Law 17; *M v Birmingham CC* [1994] 2 FLR 141.

¹⁸⁹ CA 1989, s 10(1).

The effect of these provisions appears to be as follows. When considering an application for a section 8 order or a parental responsibility order, the court must ask the following:

1. *Does the parent fall within section 6(b), that is to say, is there evidence to suggest that involving the parent in the child's life would involve the risk of the child suffering harm whatever the form of involvement?*

If there is evidence that involving the parent risks the child suffering harm, whatever the form of involvement, then the court will simply proceed with the normal welfare analysis. Of course, as there is evidence that the parent's involvement will pose a risk to the child it is very unlikely the court will order that the parent will have a full role in the life of the child.

If there is no such evidence then the parent falls within s 6(a) and the court must consider the next question.

2. *Is there any evidence to show that involving the parent in some way in the child's life will not promote the child's welfare?*

If there is evidence that involving the parent will not promote the child's welfare, then the court will proceed on the normal welfare analysis. Although as there is evidence that involving them in the child's life will not promote the child's welfare it is unlikely the court will order that they play a full role in the child's life.

If there is no such evidence, then the court will presume that it is in the child's welfare that the parent be involved in their life to some extent and the court must look at all the evidence and decide what order will best promote the welfare of the child.

This might be read as saying in essence something pretty simple: unless it is shown that involving the parent in the child's life is harmful to the child, it should be presumed that it is in the welfare of the child to involve the parent in their life. That may seem to be so obvious as to hardly need saying.

Indeed, it is difficult to think of a case where these new provisions will have any impact on a case. If the court has found that involving a parent in the child's life will harm the child, then the presumption does not come into play. If the court has decided that the involving the parent will benefit the child, it is bound to take it that will be in the child's welfare. So, the only kind of case where the presumption seems to have any meaningful role is where the court determines that the involvement of the parent will be neutral, in other words neither benefit nor harm the child. Then it seems that the court must now presume the involvement will be in the child's welfare. One might, however, think that cases where the involvement of a parent in a child's life will be exactly neutral will be very rare.

It is also notable that the presumption does not apply if there is evidence that the involvement of a parent would put the child at risk of suffering harm. This is a very low threshold for the presumption that involving the parent in the child's life will benefit the child not to apply. It does not need to be a high risk, not does it need to be risk of serious harm. However, it should be noted that the question is about whether 'involvement of any kind' will harm the child. Presumably sending a birthday card is involvement of the child's life. Only in very rare cases would that be seen as posing a risk of harm. This means it will be rare for the presumption not to apply.

It is worth emphasising what this presumption is not saying. It is not saying the court should presume that the child should spend an equal amount of time with both parents. Even if the presumption applies, it only presumes that some kind of involvement in the child's life

will be in their welfare. Subsection 2B explicitly accepts this could be indirect contact. The explanatory note also makes this clear:

The purpose of this amendment to section 1 of the Children Act 1989 is to reinforce the importance of children having an ongoing relationship with both parents after family separation, where that is safe and in the child's best interests. The new subsection (2B) of section 1 is explicit that it is not the purpose of this amendment to promote the equal division of a child's time between separated parents. The effect is to require the court, in making decisions on contested section 8 orders, the contested variation or discharge of such orders or the award or removal of parental responsibility, to presume that a child's welfare will be furthered by the involvement of each of the child's parents in his or her life, unless it can be shown that such involvement would not in fact further the child's welfare. Involvement means any kind of direct or indirect involvement but not any particular division of the child's time.

However, there is a concern that whatever its intent, an equal sharing of time will be seen as the 'new norm'. As Liz Trinder¹⁹⁰ has observed:

Previously, parents seeking to establish their equal status had the prospect of a symbolic shared residence order to fight for. Under the new regime the only outlet for that desire will be in terms of an equal time split rather than a label.

The explanatory note to the legislation gives, in Chapter A, a series of examples of how the presumption will operate. Here is one:

738. Parent A and Parent B are married and have one child together. Parent A left the marital home and Parent B refuses to let Parent A see their child. Parent A wants to be able to see the child at the weekends. Parent A applies for a child arrangements order that sets out that the child should stay over with Parent A from Saturday evening until Sunday morning.

739. Each parent is treated by the court as being able to have safe involvement with the child as no concerns are raised that Parent A or Parent B pose a risk of harm to the child. The presumption therefore applies and the court has to presume that it will further the welfare of the child for Parent A to be involved in the child's life.

740. The child is 15 years old and the court has before it a section 7 welfare report that sets out that the child does not want to see Parent A or have any contact with Parent A as Parent A finds it difficult to come to terms with a recent declaration from the child that the child is gay and Parent A has refused to acknowledge that the child is gay. The child has expressed a strong wish to be able to explore issues of sexuality and feels that any contact with Parent A would inhibit this. The court decides that at the moment the child's welfare will not be furthered by involvement with Parent A and the presumption is rebutted.

741. The court makes its decision, weighing this factor alongside the other considerations in section 1 of the Children Act 1989, with the child's welfare remaining at all times the court's paramount consideration.

Parliament may not have meant the provisions to have much direct impact on cases, but rather to affect the general ethos surrounding parental separation. They may be seeking to create an expectation among society at large that on separation both parents should continue to be involved in the child's life, unless there is a risk of harm. If, however, that was their intention there may have been clearer ways to communicate that message to the people of England and Wales!

¹⁹⁰ Trinder (2014b).

Felicity Kaganas¹⁹¹ argues that the significance of the reforms lie not in their legal import, but the broader message they convey:

the change will have little impact in the courts, is unlikely to serve children's best interests, is unlikely to satisfy fathers' rights groups and is unlikely to reduce conflict between parents. Rather the reforms can be seen as part of a symbolic crusade to endorse the traditional importance of the father and to restore confidence in the family justice system. The new presumption is meant to affirm the status of fathers and of the separated but continuing family. As a result, the deviant nature of failing to abide by that norm is underscored. Although largely symbolic, this scapegoating may nevertheless have the effect of changing the balance of power in out-of-court settlements and so may prove damaging for some vulnerable mothers and children.

If Kaganas is correct then the greatest impact of the section may not be in the courtroom but in the mediation suite, where couples will feel that agreeing to a shared care arrangement is the fairest order to make. Indeed evidence from Australia is that in mediated settlements couples feel strong pressure to agree to shared care as the only fair kind of order even in cases where that is not appropriate.¹⁹²

Critics are concerned that these provisions detract from the court's job of ascertaining what is best for the particular child before them.¹⁹³ The concept of shared parental involvement is somewhat vague and substantial judicial time may be taken up clarifying it, without any necessary improvement in outcomes.¹⁹⁴ Focusing on whether or not the involvement of the parent will cause harm will take up valuable time and distract the court from focusing on the welfare of the child.¹⁹⁵

(ix) The principle of no delay

Section 1(2) states:

LEGISLATIVE PROVISION

Children Act 1989, section 1(2)

In any proceedings in which any question with respect to the upbringing of a child arises, the court shall have regard to the general principle that any delay in determining the question is likely to prejudice the welfare of the child.

The legal process is notoriously slow, but the longer the court takes in cases involving children, the greater the uncertainty for the children and the higher the levels of stress felt by the parents.¹⁹⁶ It is therefore not surprising that the judiciary has been particularly critical of delay in family cases.¹⁹⁷ Indeed, articles 6 and 8 of the European Convention on Human Rights may require a public hearing within a reasonable timescale, and so avoiding unnecessary delay is now required by the Human Rights Act 1998.¹⁹⁸

¹⁹¹ Kaganas (2014b).

¹⁹² Trinder (2014b).

¹⁹³ House of Commons Justice Committee (2012).

¹⁹⁴ Rhoades (2012).

¹⁹⁵ O'Grady (2013).

¹⁹⁶ Lord Chancellor's Department (2002c).

¹⁹⁷ *Ewbank J in Stockport MBC v B; Stockport MBC v L* [1986] 2 FLR 80.

¹⁹⁸ *Kopf and Liberta v Austria* [2012] 1 FLR 1199.

The no delay principle in s 1(2) applies to all proceedings concerning a child's upbringing, except financial orders.¹⁹⁹ It should be stressed, however, that while delay is not necessarily detrimental to a child, unnecessary delay is.²⁰⁰ There are occasions when delay may be beneficial. It might be important for there to be a delay in order that further crucial information can be obtained or for the parties' circumstances to settle so that the best long-term decision can be reached. But any delay should be planned and purposeful.²⁰¹

This subsection on its own would probably do little to prevent delay. The Children Act 1989 gave more powers to the judges to speed up cases. A central theme in the Family Justice Review²⁰² was the speeding up of the process and there have been significant procedural reforms designed to achieve this. There is a tension here between the desire to encourage speedy litigation and the desire to persuade the parties to settle without a court hearing. Encouraging people to resolve disputes themselves and to be litigants in person if they cannot may greatly lengthen the time disputes take to settle.

(x) The no order principle

This fundamental principle is set out in s 1(5) of the Children Act 1989:

LEGISLATIVE PROVISION

Children Act 1989, section 1(5)

Where a court is considering whether or not to make one or more orders under this Act with respect to a child, it shall not make the order or any of the orders unless it considers that doing so would be better for the child than making no order at all.

This provision emphasises that, before making an order under the Children Act concerning the upbringing of children,²⁰³ there should be a demonstrable benefit to the child by making the order. If no positive benefit can be obtained by making the order then no order should be made. This is sometimes referred to as the 'no order' principle.

Some commentators have read more into s 1(5) and have suggested that it represents the principle of deregulation or non-intervention;²⁰⁴ that is, that the subsection reflects the presumption that the parents are the best people to care for the child and they should decide what should happen to the child. Only if there are strong reasons should the law intervene. It can be said that this is in line with article 8 of the European Convention on Human Rights, which protects family privacy. However, other commentators stress that the statute itself does not suggest that there is a presumption that no order is

¹⁹⁹ See *Re TB (Care Proceedings: Criminal Trial)* [1995] 2 FLR 810, [1996] 1 FCR 101 for a discussion of how criminal and care proceedings should be co-ordinated.

²⁰⁰ *C v Solihull MBC* [1993] 1 FLR 290, [1992] 2 FCR 341.

²⁰¹ *C v Solihull MBC* [1993] 1 FLR 290, [1992] 2 FCR 341.

²⁰² Norgrove (2012).

²⁰³ *K v H (Child Maintenance)* [1993] 2 FLR 61, [1993] 1 FCR 684 states that s 1(5) does not apply to applications under Sch 1 to CA 1989 for financial provision for children.

²⁰⁴ See, e.g., Cretney and Masson (1997: 658).

best. Rather, it is neutral on the question of whether intervention is desirable.²⁰⁵ All the subsection is saying is that it is necessary to show there is a positive benefit to be gained from making an order.²⁰⁶ The disagreement over the meaning of the subsection is reflected in a study which found that practitioners and district judges took a variety of approaches to the sub-section.²⁰⁷ The view with most support is that s 1(5) is not creating a presumption against intervention, but requires the court to be satisfied that some good will come from making the order.²⁰⁸ In *Dawson v Wearmouth*²⁰⁹ Lord Mackay interpreted s 1(5) to mean that a court should make an order only if there was some evidence that to do so would improve the child's welfare. Baroness Hale has commented: 'This means that there must be some tangible benefit to the children from making an order rather than leaving the parents to sort things out for themselves'.²¹⁰ In *Re C (Older Children: Relocation)*²¹¹ the principle was relied on to decide not to make an order in a case involving a dispute where a 17-year-old should live. He could decide that for himself and a court order would be of no assistance.

Now some of the issues which have caused the courts particular difficulty in applying the welfare principle will be considered.

8 Issues of controversy in applying the welfare principle

A The use of presumptions

In the years following the Children Act the courts developed a set of presumptions to use when interpreting the welfare principle.²¹² In the context of the welfare principle the kinds of presumption being considered are rebuttable: that once a certain fact is proved then there is an assumption that making a certain order will promote the welfare of the child, unless evidence shows otherwise.

These included a presumption in favour of contact, a presumption favour of the 'natural parent' and so forth. These issues will be examined in detail below. However, in the past few years we have seen a gradual move away from presumptions and in favour of saying that in each case the court will look at the particular child and their relationships and determine what is best for that child. Statistical surveys indicating generally what is best for children might be helpful if one had to deal with a case about a child picked at random from the population on whom you had no particular evidence. However, the children who appear in court heard cases represent a highly unusual case, where what happens to 'normal children' is of little relevance. Certainly of little relevance when the court has before it detailed information about the particular child it is considering.²¹³

²⁰⁵ Bainham (1990: 221).

²⁰⁶ As argued in Bainham (1998b: 2–4).

²⁰⁷ Doughty (2008a).

²⁰⁸ *B v B (A Minor) (Residence Order)* [1993] 1 FCR 211; *Re S (Contact: Grandparents)* [1996] 3 FCR 30.

²⁰⁹ [1999] 2 AC 308.

²¹⁰ *Holmes-Moorhouse v Richmond-Upon-Thames London Borough Council* [2009] 1 FLR 904, para 30.

²¹¹ [2015] EWCA Civ 1298.

²¹² Herring and Powell (2013).

²¹³ Herring (2014b).

B Shared residence

TOPICAL ISSUE

Should there be a presumption of shared residence?

Much controversy has surrounded the question of whether or not there should be a presumption in favour of shared residence. In part the debate is muddled by the ambiguity over quite what is meant by that. What is generally meant as the starting point for the law should be that the child should spend a roughly equal amount of time with each parent.

The case against the presumption includes the following arguments:

1. In many cases it is simply impractical: the parents live too far apart or do not have big enough homes for the arrangement to work.²¹⁴
2. The evidence suggests that generally children in shared residence arrangements do less well than children with one primary residence.²¹⁵ This may be because shared residence is wrongly used in cases where the couple are highly conflicted.²¹⁶ A small-scale study by Neale, Flowerdew and Smart²¹⁷ of children living under a shared residence scheme showed a mixed picture. Some children valued the sense of fairness it created and the structure it provided for their lives. Others felt they were suffering inconvenience so that neither parent felt they had 'lost' and the structure of the order restricted their social lives. Shared residence where the needs of parents were prioritised and which were inflexible in their structures worked least well. As Hunt²¹⁸ notes shared residence creates 'substantial practical inconveniences and challenges, adjusting to different environments, loyalty conflicts and interference with peer group activities'.

In a thorough review of the evidence, Liz Trinder²¹⁹ accepts that shared residence can be positive if parents are able to cooperate and the arrangements are focused. However, in cases marked by high conflict and litigation, shared residence is linked with negative outcomes. This suggests that shared residence should not be regarded as the panacea response. She also helpfully makes the point the debates over shared residence may be missing the issue:

it is typically not the arrangements themselves that matter, whether shared or not shared, but how parents manage these relationships. Whilst courts inevitably focus on timetables it is critical that every effort is made to focus on the quality of relationships that matter to children.

Fehlberg *et al.*²²⁰ in their thorough study found 'no empirical evidence showing a clear linear relationship between the amount of shared time and improving outcomes for children.' It is the quality of contact, not the amount of time, that matters.

3. It can be argued that the case for a presumption is motivated by adults' needs to be seen to be treated equally, rather than an assessment of what is in the child's best interests.²²¹ In the majority of cases both during a relationship and afterwards the mother undertakes the

²¹⁴ Hunt (2014).

²¹⁵ Hunt *et al.* (2008).

²¹⁶ Newnham (2011).

²¹⁷ Neale, Flowerdew and Smart (2003).

²¹⁸ Hunt (2014).

²¹⁹ Trinder (2010).

²²⁰ Fehlberg *et al.* (2011).

²²¹ Daniel (2009).

bulk of the care of a child. To use a presumption of shared care, where this does not reflect the reality masks the reality of the mother's care.²²² Sonia Harris-Short²²³ argues, relying on a survey of the experience in Sweden, that shared care after a relationship breaks down works well only if there has been shared care before the relationship comes to an end. Therefore, if we wish to encourage more post-separation shared care, we need to encourage greater levels of shared care during the relationship. She argues:

equality cannot be conjured out of nothing at the point of separation. It must be firmly rooted in the practices of the intact family. In our eagerness to embrace the progressive promise of equality, there is a danger that the realities of family life can be forgotten. Yet it is in these realities that any decision about the future interests of the child must be firmly grounded. Within the intact family, patterns of care have been established; parental-child relationships have been defined; difficult decisions have been taken; parental sacrifices and investments have been made. Choices made within the intact family have a profound and lasting impact on all the family members, especially the child. To ignore this reality at the point of separation is deeply problematic.²²⁴

4. Any presumption is in danger of diluting the welfare principle. As already mentioned, this was the primary reason why the Family Justice Review rejected a suggestion that there should be presumption or statement in favour of shared residence. In Australia, where a presumption of shared residence has been enacted, mothers feel under great pressure to agree to shared care even in cases where there has been abuse.²²⁵ There is a particular concern that in many cases the presence of domestic violence or abuse will make any kind of shared residence order undesirable and dangerous. As Fehlberg *et al.*²²⁶ highlight, the research on shared residence suggests it works least well where mothers have ongoing safety concerns and/or there is high-level parental conflict. Indeed Brinig²²⁷ claims that in the United States a strong presumption in favour of shared contact is linked to an increase in domestic abuse following relationship breakdown. Yet cases of hostility are precisely the attributes one finds in cases that end up in court. Indeed in England half of all litigated child contact cases involve allegations of domestic violence.²²⁸ This makes the argument of suggesting a presumption in favour of shared care in litigated cases very weak indeed. Crawford and Pierce note:

In Denmark, for example, where previous legislation forced shared custody, the view is now that while the original purpose of the legislation was to ensure contact of the child with both parents, the actual effect was a cause of a heightened level of conflict between the parents and stress on the child.

The argument in favour of presumption of shared residence emphasises that it provides a powerful statement that we have moved beyond an assumption that one parent (normally the mother) is the child-carer, while the other parent (normally the father) is the provider. We need to do all we can to encourage both mothers and fathers to take their parental role seriously and acknowledge the essential contribution that mothers and fathers make to children. The presumption will diffuse the battles that too often flow from separation, with one or other parent seeking to be the 'resident parent'. We should expect each parent to care equally for their children.

²²² Barnett (2009).

²²³ Harris-Short (2011).

²²⁴ Harris-Short (2010).

²²⁵ Hunt (2014); Trinder (2010).

²²⁶ Fehlberg *et al.* (2011).

²²⁷ Brinig (2015).

²²⁸ Fehlberg, Smythe and Trinder (2014).

While that is an ideal we should strive for, that does not mean that we should enforce it through court orders as a blanket measure in all cases. To ensure a more equal involvement of parents after the relationship breaks down, we do better at trying to promote equal sharing during the relationship, as the evidence shows that mothers still undertake the vast majority of that.

C Is there a presumption in favour of mothers?

TOPICAL ISSUE

Are mothers preferred in residence cases?

One hotly disputed issue is whether there is or should be a presumption that children are better brought up by mothers rather than by fathers. At one time it was thought that there was a presumption that babies and girls should be brought up by mothers, and boys by fathers,²²⁹ but that has been long rejected by the courts. Nevertheless it is certainly true that mothers are more likely to have the child live primarily with them.²³⁰ This is especially so in the case of younger children. In *RO v A Local Authority and Others*²³¹ Mr Recorder Keehan QC ordered the child, whose mother had died, to live with female relatives rather than the father for various reasons, including because she was 'desperately in need of a mother figure'.

The Court of Appeal in *Re K (Residence Order: Securing Contact)*,²³² in awarding residence of a two-year-old to a father, admitted that this was 'somewhat unusual'. However, in *Re G (Education: Religious Upbringing)*²³³ Munby LJ was clear:

men and women, husbands and wives, fathers and mothers have come before the family courts, as they come today, on an exactly equal footing. The voice of the father carries no more weight because he is the father, nor does the mother's because she is the mother. The weight to be attached to their views, if opposed, is to be determined on the basis of the merits or otherwise of the views being expressed, not on the basis of the gender of the person propounding them.

The courts are wary of explicitly creating a presumption in favour of mothers, as this might constitute discrimination on the grounds of sex and so be in breach of the Human Rights Act 1998. However, there is evidence that girls are particularly vulnerable to sexual abuse following divorce. Fretwell Wilson²³⁴ points to a study which found that 50 per cent of girls living solely with their father reported sexual abuse by someone (not necessarily their father) and argues that these concerns must be addressed when the court is making decisions over where a child shall live.

The reality is that children on separation stay primarily with their mothers in 92 per cent of cases.²³⁵ To some that reflects deeply sexist presumptions about mothers and fathers that are perpetuated by the courts. On the other hand that statistics reflect the reality that for couples who are together mothers undertake the vast majority of child care. In Scandinavian countries where care is shared more equally during the relationship, unsurprisingly it is also shared more equally if the relationship breaks down.

²²⁹ See *Re W (A Minor) (Residence Order)* [1992] 2 FLR 332, [1992] 2 FCR 461.

²³⁰ This was implicitly accepted in *Humphreys v The Commissioners for HM Revenue and Customs* [2012] UKSC 18 where the Supreme Court was willing to assume that the fact child credit was paid to the parent with whom the child lived most nights indirectly discriminated against fathers.

²³¹ [2013] EWHC B31 (Fam).

²³² [1999] 1 FLR 583.

²³³ *Re* [2012] EWCA Civ 1233.

²³⁴ Fretwell Wilson (2002).

²³⁵ Crawford and Pierce (2012).

D The 'natural parent presumption'

At one time the courts promoted the natural parent presumption: '[t]he best person to bring up a child is the natural parent. It matters not whether the parent is wise or foolish, rich or poor, educated or illiterate, provided the child's moral and physical health are not endangered.'²³⁶ However, this presumption has been reconsidered by two important recent decisions of the House of Lords and the Supreme Court.

CASE: *Re G (Children) (Residence: Same-Sex Partner)* [2006] UKHL 43

A lesbian couple decided to have a child. One of them became pregnant through assisted reproductive techniques using donated sperm. In law the woman who gave birth to the child was the child's mother, but her partner did not have any parental status. The couple raised the child together. However, the couple broke up and a dispute arose over the residence of the child and contact arrangements. Initially, residence was awarded to the mother, and the partner had regular contact. However, the mother removed the child to Cornwall in an attempt to prevent contact and in breach of court orders. The Court of Appeal held that residence should be transferred to the partner. In this case they had both raised the child together and were both the psychological parents of the child. The 'natural parent' presumption applied to them both equally, Thorpe LJ believed. However, in the House of Lords their Lordships re-emphasised the importance of the natural parenthood and Lord Nicholls stated that there needed to be cogent reasons for removing a child from a 'natural' parent, in this case the mother. He stated:

In reaching its decision the court should always have in mind that in the ordinary way the rearing of a child by his or her biological parent can be expected to be in the child's best interests, both in the short term and also, and importantly, in the longer term. I decry any tendency to diminish the significance of this factor. A child should not be removed from the primary care of his or her biological parents without compelling reason.²³⁷

Baroness Hale explained that the fact that one of the parties was the natural mother was an important and significant factor to which the lower courts had failed to pay sufficient attention. However, she rejected the view that there was a formal legal presumption in favour of the 'natural parent'.

While the House of Lords in *Re G*²³⁸ appeared to acknowledge that the biological link was an important figure, they did not use the language of a presumption. The Supreme Court returned to consider the issue again.

²³⁶ *Re KD (A Minor) (Ward: Termination of Access)* [1988] 1 All ER 577 at p. 578. Supported and applied in *Re M (Child's Upbringing)* [1996] 2 FLR 441 and *Re P (A Child) (Care and Placement Proceedings)* [2008] 3 FCR 243.

²³⁷ See also *Re D (Care: Natural Parent Presumption)* [1999] 1 FLR 134 CA.

²³⁸ [2006] UKHL 43.

CASE: *Re B (A Child)* [2009] UKSC 5

The case concerned a four-year-old boy, B, who had lived with his maternal grandparents since birth. His parents, who separated before B's birth, had not been able to care for him satisfactorily, although they were in regular contact with him. In 2009 the father married and had a child with his new wife. He sought a residence order in relation to B. A report from the social services stated that B was thriving with the grandmother, but also found that the father and his new wife could provide an adequate home for him. In March 2009 a residence order was made in favour of the grandmother, with staying in contact with B's parents. This order was overturned in the Family Division, in an order upheld in the Court of Appeal. However, the Supreme Court affirmed the original order of residence in favour of the grandparents.

The central issue in the case was simple: what weight should be attached to the status quo and the good care that the boy was receiving from his grandmother and what weight should be attached to the possibility of the boy living with his father? Lord Kerr held that the error in the lower courts was to talk in terms of rights:

We consider that this statement betrays a failure on the part of the judge to concentrate on the factor of overwhelming – indeed, paramount – importance which is, of course, the welfare of the child. To talk in terms of a child's rights – as opposed to his or her best interests – diverts from the focus that the child's welfare should occupy in the minds of those called on to make decisions as to their residence.²³⁹

Lord Kerr held that this led to the judge making the error of deciding that if the father's care was 'good enough' he should be preferred over the grandmother, even if she could offer a higher standard of care. Lord Kerr rejected that approach: 'The court's quest is to determine what is in the *best* interests of the child, not what might constitute a second best but supposedly adequate alternative.'²⁴⁰

This did not mean that Lord Kerr thought parenthood irrelevant in residence disputes. He was willing to accept that '[i]n the ordinary way one *can* expect that children will do best with their biological parents'.²⁴¹ But, as he then astutely pointed out, many disputes about residence and contact cases do not follow the ordinary way. He summarised his views thus:

All consideration of the importance of parenthood in private law disputes about residence must be firmly rooted in an examination of what is in the child's best interests. This is the paramount consideration. It is only as a contributor to the child's welfare that parenthood assumes any significance. In common with all other factors bearing on what is in the best interests of the child, it must be examined for its potential to fulfil that aim.²⁴²

Four points are particularly important about this decision. The first, is that their lordships decried the use of presumptions or rights. They preferred to look at the particular child and the particular relationships in issue, rather than rely on general assumptions or presumptions about what is good for children.²⁴³ Second, the case emphasised that the focus of the court's attention is the

²³⁹ Paragraph 19.

²⁴⁰ Paragraph 20.

²⁴¹ Paragraph 35.

²⁴² Paragraph 37.

²⁴³ See Reece (2010) for an argument against using generalisations about children.

child, and not the parents. However unfair the decision may appear to the father in *Re B*, the court's paramount concern was with the child. Third, it is remarkable that the Human Rights Act 1998 was not mentioned by their Lordships in *Re B* even once. This demonstrates how in section 8 cases this Act has had a fairly small impact. Finally the decision marks the demise of the natural parent presumption. Now the best we can say is that in deciding a residence dispute between a natural parent and a third party, the biological link is but one factor to take into account in assessing the child's welfare. In *Re G*, where the other factors were finely balanced, the biological link played an important role, but in most cases other factors will be decisive. This final point was well illustrated in *Re E-R (A Child)*²⁴⁴ where a child (T) was living with her terminally ill mother and cared for by her and Mr and Mrs H (friends of the mother). When the mother died, the father sought an order that the child should live with him. At first instance the application was successful, with weight being given to the natural parent presumption. However, the Court of Appeal said the court should not have placed weight on the presumption. The fact the child was happy and well-settled with the mother and her friends was an important factor. The Court ordered a rehearing with a proposal to order the child remain with the mother's friends, with contact with the father. At the rehearing (*Re E-R (Child Arrangements)*)²⁴⁵ Cobb J ordered that the child remain with the friends. This was in line with the child's wishes. Further:

It is well-known that attachment is essential to the development of well-being and resilience; resilience is the ability to withstand and recover from adversity. Attachment to a significant person is critical to a child's ability to thrive; without attachment the child may fail to relate to others. As secure attachment will sustain the child in the face of adversity. While undoubtedly the father is T's biological parent, Mr and Mrs H are, or appear to have become, her psychological parents; this attachment to them paradoxically advances her capacity to attach to her father. T therefore benefits from two of the three ways in which parental relationships are achieved (i.e. [1] genetic/biological, [2] gestational and [3] psychological).²⁴⁶

The decision has been fiercely criticised by Andrew Bainham²⁴⁷ who decries the failure to recognise that parents do have rights in relation to their children, albeit rights that can be interfered with if necessary in order to protect the rights of children. He argues that our legal system does assume that a child is best cared for by a natural parent and this is shown by the fact that we do not routinely on birth check whether parents are suitable carers for a child or whether others may be better placed to care for the child.

Supporters of the decision will welcome the significance attached by the court to the strong relationship between the grandparents and the child. The quality of care provided by them and the strong emotional bond between them counted for more than the blood tie between the father and the child. The Supreme Court in *Re B* were not saying that the blood tie counted for nothing, simply that it was but one factor that needed to be taken into account alongside all of the others.

E Is there a presumption that siblings should reside together?

The evidence of psychologists stresses the importance of the sibling relationship, especially on the breakdown of the parental relationship.²⁴⁸ It is, therefore, not surprising that the courts have suggested that siblings should be kept in the same household unless there are

²⁴⁴ [2015] EWCA Civ 405.

²⁴⁵ [2016] EWHC 805 (Fam).

²⁴⁶ Para 51.

²⁴⁷ Bainham (2010).

²⁴⁸ Edwards, Hadfield and Mauthner (2005), although in the study by Douglas *et al.* (2001: 376) siblings were not found to be a significant source of emotional support on family breakdown and friends were far more important.

strong reasons against this.²⁴⁹ The same is true of half-siblings.²⁵⁰ It is clear that the relationship between two siblings will be regarded as family life and so protected under the Human Rights Act 1998.²⁵¹ However, in each case much will depend on the particular relationship between the child and sibling. The further the siblings are apart in age, the weaker the assumption that they should stay together.²⁵² Of course, there still will be cases where the separation of the siblings is necessary. For example, in *B v B (Residence Order: Restricting Applications)*²⁵³ the court decided that the mother should bring up two brothers, but the older brother simply refused to stay with the mother and lived with the father. The court felt that, as the older brother was intent on staying with the father and the younger brother had a close attachment to the mother, it was necessary for the brothers to live apart.²⁵⁴ If the siblings are to live in different places, there is a strong presumption that there should be contact between them.²⁵⁵

F Religion

The issue of religious parenting has become controversial.²⁵⁶ It has even been suggested that where parents raise their children as members of a particular religion this is child abuse.²⁵⁷ However, a study of children raised by Christian and Muslim parents found children speaking positively about their religious upbringing.²⁵⁸ In one well-known 18th-century case, the poet Shelley was denied custody of his child on the basis that he was an atheist.²⁵⁹ Nowadays the court would not deny a parent a residence order on the basis of their religious beliefs. Indeed, to determine a family law case simply on the basis of the religion of the parent would be contrary to the Human Rights Act 1998 because the European Convention on Human Rights protects freedom of religion and outlaws discrimination on the grounds of religion.²⁶⁰ Generally, if the child has no religious views, the present law is summed up in the dicta of Munby LJ in *Re G (Education: Religious Upbringing)*.²⁶¹

It is not for a judge to weigh one religion against another. The court recognises no religious distinctions and generally speaking passes no judgment on religious beliefs or on the tenets, doctrines or rules of any particular section of society. All are entitled to equal respect, so long as they are 'legally and socially acceptable' . . . and not 'immoral or socially obnoxious'.

This neutrality does not prevent the court considering whether the religion involves practices that directly harm the child. So, for example, if the religion requires lengthy periods of fasting, causing medical harm to the child, then the court would be willing to take the parent's

²⁴⁹ E.g. *C v C (Minors: Custody)* [1988] 2 FLR 291.

²⁵⁰ *Re H (A Child) (Leave to Apply for Residence Order)* [2008] 3 FCR 391.

²⁵¹ *Moustaquim v Belgium* (1991) 13 EHRR 802 at para 36. In *Senthuran v Secretary of State for the Home Dept* [2004] 3 FCR 273 it was held that adult siblings living together were capable of having family life together.

²⁵² *B v B (Minors) (Custody: Care Control)* [1991] 1 FLR 402, [1991] FCR 1.

²⁵³ [1997] 1 FLR 139, [1997] 2 FCR 518.

²⁵⁴ See also *Re B (T) (A Minor) (Residence Order)* [1995] 2 FCR 240.

²⁵⁵ *Re S (Minors: Access)* [1990] 2 FLR 166, [1990] 2 FCR 379.

²⁵⁶ For a discussion of the issues, see Taylor (2015 and 2009); M. Freeman (2003).

²⁵⁷ See the discussion in Taylor (2015 and 2009).

²⁵⁸ Lees and Horwarth (2009); Howarth *et al.* (2008).

²⁵⁹ *Shelley v Westbrook* (1817) Jac 266n.

²⁶⁰ Articles 9 and 14 respectively.

²⁶¹ [2012] EWCA Civ 1233.

religious practices into account. The court might be willing to consider an argument that a religion caused the child to suffer social isolation²⁶² or indoctrination,²⁶³ or failed to treat boys and girls equally.²⁶⁴ This however makes it difficult for the law to claim that it is being neutral. To say 'the law does not discriminate against you on the grounds of your religion but on the grounds of your religious practices' is to disguise the truth.²⁶⁵ It may be more honest to accept that there are limits to religious freedom, and that discrimination against a religion that demonstrably harms children is permitted.²⁶⁶

The court should always bear in mind that particular issues can be dealt with by means of a specific issue order. For example, the court should not be deterred from deciding that a child should live with a Jehovah's Witness parent for fear that the parent might refuse to consent to a blood transfusion should the child require it, because if that issue arose the court could overrule the parent's decision by means of a specific issue order.²⁶⁷

A consistent theme in the approach of the courts is that although parents can involve the child in religious activities, the child should be left to decide their religion for themselves. In *Re J (Specific Issue Orders: Muslim Upbringing and Circumcision)*²⁶⁸ the Court of Appeal firmly rejected the argument of the father that the child was a Muslim boy, holding that the child was not yet old enough to belong to any faith. If a child has religious beliefs²⁶⁹ of his or her own, the court is likely to make an order which enables the child to continue their religious practices.²⁷⁰ In *Re G (Education: Religious Upbringing)*²⁷¹ Munby LJ explained that 'the court will always pay great attention to the wishes of a child old enough to be able to express sensible views on the subject of religion, even if not old enough to take a mature decision, they will be given effect to by the court only if and so far as and in such manner as is in accordance with the child's best interests'. Although oddly in that case the views of the children seem not to have played any part in the reasoning.²⁷² If the child has religious views of their own, the parent with whom the child is living could be required to permit the child to exercise their religious beliefs. For example, there could be a specific issue order requiring the residential parent to permit the child to attend religious services²⁷³ or indeed preventing the parent from involving a child in the parent's religion.²⁷⁴ In *Re C (A Child)*²⁷⁵ a mother sought a prohibited steps order to prevent her 10-year-old daughter being baptised, a decision supported by the father. The judge refused to make the order and was particularly influenced by the clear views of the girl that she wanted the baptism.²⁷⁶

²⁶² *Hewison v Hewison* [1977] Fam Law 207.

²⁶³ *Wright v Wright* [1980] 2 FLR 276.

²⁶⁴ In *Re G (Education: Religious Upbringing)* [2012] EWCA Civ 1233.

²⁶⁵ Bainham (1994c).

²⁶⁶ See the general discussion in Johnson (2013).

²⁶⁷ *Re S (A Minor) (Blood Transfusion: Adoption Order Conditions)* [1994] 2 FLR 416.

²⁶⁸ [1999] 2 FLR 678; approved in *Re J (Specific Issue Orders)* [2000] 1 FLR 517. Contrast in *Re S (Change of Names: Cultural Factors)* [2001] 3 FCR 648.

²⁶⁹ The court will focus on the religious practices of the child and will *not* automatically assume that a child acquires a religion simply through being born to parents of a particular religion: *Re J (Specific Issue Orders)* [2000] 1 FLR 517.

²⁷⁰ *Re R (A Minor) (Residence: Religion)* [1993] 2 FLR 163, [1993] 2 FCR 525.

²⁷¹ [2012] EWCA Civ 1233.

²⁷² A point emphasised by Taylor (2013).

²⁷³ *J v C* [1970] AC 668 HL (Protestants gave an undertaking to bring up the child as a Roman Catholic); *Re R (A Minor) (Residence: Religion)* [1993] 2 FLR 163 (where the Exclusive Brethren aunt was permitted contact on condition that she did not discuss religion).

²⁷⁴ *Re S (Minors) (Access: Religious Upbringing)* [1992] 2 FLR 313.

²⁷⁵ [2012] EW Misc 15(CC).

²⁷⁶ See also *Re L and B (Specific Issues: Temporary Leave to Remove from the Jurisdiction: Circumcision)* [2016] EWHC 849 (Fam) where it was held best to delay a decision over whether to circumcise a boy until he was old enough to decide for himself.

Even if the child does not have beliefs of their own as they are too young, the court may still take into account the religious heritage into which they were born. So, when a child who was born to an Orthodox Jewish couple was taken into care, then the court confirmed that the local authority should try to find Jewish foster parents and adopters if possible.²⁷⁷

Where the parents of a child have different religions there might be disputes over the religious upbringing of a child. If the child is not old enough to form his or her own religious beliefs the courts are likely to allow the resident parent to determine the religious upbringing of the child. In *Re S (Change of Names: Cultural Factors)*²⁷⁸ Wilson J rejected the father's argument that the child should be raised as both a Muslim and a Sikh. Instead he should be raised in the religion of the mother (Islam), although he should be made aware of his Sikh identity and encouraged to respect Sikhism. Wilson J was persuaded that, having decided that the mother should have the residence order, the child would inevitably become integrated into the Muslim community of which she was part. In other cases, where there is a greater sharing of care between the parents, the courts have allowed each parent to raise the child in accordance with their religion. In *Re S (Specific Issue Order: Religion: Circumcision)*,²⁷⁹ on separation there arose a dispute between a Muslim mother and a Jain Hindu father. The Court of Appeal held that children raised with a mixed heritage should be allowed to decide for themselves what religion (if any) they wished to follow when they were older. Both parents should be allowed to teach the children about their religions.²⁸⁰ In *Re N (A Child: Religion: Jehovah's Witness)*²⁸¹ it was held 'where parents follow different religions and those religions are both socially acceptable the child should have the opportunity to learn about and experience both religions.' Although the parents were allowed to take the child to their different religious services (Anglican and Jehovah's Witness), neither parent was allowed to 'teach' the child. The court appeared concerned that otherwise each parent would seek to persuade the child to adopt their own religion, causing the child distress. In the case of religions with very strict rules of observance this may be very difficult. Then the court may need to determine which religion will provide the child with the opportunity to develop their lives (see *Re G (Education: Religious Upbringing)*)²⁸² outlined in Chapter 9).

A powerful critique of the law's approach to minority religions has been presented by Suhraiya Jivraj and Didi Herman²⁸³ who argue that unconsciously in these cases the judiciary are adopting a Christian perspective. In particular, the assumption that religion is something that is chosen by an individual rather than being membership of a community reflects a Christian perspective on the nature of religious identity. Further, that the notion of attempting to raise a child in a religiously neutral way can be questioned, given that it must be understood in a society in which Christianity has a dominant position among religions.

G Employed parents

It used to be thought that a parent who stayed at home to spend as much time as possible with a child would be favoured regarding residency over a parent who spent substantial time in employed work. Such an approach tends to favour mothers over fathers; indeed a father who gave up work to look after a child was at one time criticised by a court for 'deliberately

²⁷⁷ *Re P (Section 91(14) Guidelines) (Residence and Religious Heritage)* [1999] 2 FLR 573.

²⁷⁸ [2001] 3 FCR 648.

²⁷⁹ [2004] EWHC 1282 (Fam).

²⁸⁰ See Eekelaar (2004) for an insightful analysis of children of mixed religious backgrounds.

²⁸¹ [2011] EWHC 3737 (Fam).

²⁸² [2012] EWCA Civ 1233.

²⁸³ Jivraj and Herman (2009).

giv[ing] up work in order to go on social security'.²⁸⁴ However, it seems now that a working parent will be only slightly disadvantaged over a non-working parent.²⁸⁵ In *Re Dhaliwal*, both parents originally offered full-time care of the child. However, during the hearing on residence the father explained that rather than offering the child full-time care he was about to take up a job which had hours from 9 o'clock in the morning to 6 or 7 o'clock in the evening. Thorpe LJ on appeal said: 'The whole balance inevitably tips significantly in favour of the mother's proposal once the father revealed that he would be heavily dependent on the unexplored availability of the extended family.'²⁸⁶ In *Re R (A Minor) (Residence Order: Finance)*²⁸⁷ the court preferred to make a shared residence order so that both parents were able to continue in employment, rather than giving sole residence to the mother, because that would mean she would have to give up her job which would cause financial disadvantage to the children and involve the Child Support Agency in the family's finances. However, in *Re B (A Child)*²⁸⁸ the Court of Appeal expressed very strongly the view that it was wrong in principle to let Child Support Act consequences affect residence or contact arrangements.

The court should not place much weight on the fact that one parent can offer a higher standard of living than another.²⁸⁹ This is explained on the basis that 'anyone with experience of life knows that affluence and happiness are not necessarily synonymous'.²⁹⁰ Although this is true, if given a choice most children would rather their parents be rich than poor, all other factors being equal. In reality, it is easier to explain the irrelevance of wealth on the basis that it would be unjust to distinguish rich and poor parents. The significance of this factor is lessened in relation to married couples because the court has the power to redistribute the couple's property.

H Disabled parents

The courts will take into account the abilities of parents to meet the needs of a child, and any disability of a parent might in a few cases be relevant. In *M v M (Parental Responsibility)*²⁹¹ Wilson J decided that it would be inappropriate to give a father parental responsibility because he suffered from learning disabilities, aggravated by an accident, which meant that he would not be capable of exercising the rights and responsibilities of parenthood. Cases involving disabled parents must now be reconsidered in the light of the Human Rights Act 1998. Although the Human Rights Act does not explicitly prohibit discrimination on the basis of disability, it is arguable that it should be added to the list of prohibited grounds in article 14. Before refusing residence or contact to a disabled parent the court should ensure that a disabled parent cannot be enabled by the provision of suitable equipment or assistance to meet the child's needs. In *Re P (Non-Disclosure of HIV)*²⁹² Bodey J made it very clear that the HIV status of the mother was irrelevant to the residence/contact dispute between the parents. The mother did not need to disclose it to the father.

²⁸⁴ *Plant v Plant* [1983] 4 FLR 305 at p. 310. See also *B v B (Custody of Children)* [1985] FLR 166 CA; contrast *B v B (Custody of Children)* [1985] FLR 462.

²⁸⁵ Although see *Re B (Minors: Residence: Working Father)* [1996] CLY 615 and *Re O (Children) (Residence)* [2004] 1 FCR 169 where the court contrasted the care of a 'full-time mother' and the father who could only offer 'support' to the children's grandparents whom he proposed undertook the primary role of child caring.

²⁸⁶ [2005] 2 FCR 398, 402.

²⁸⁷ [1995] 2 FLR 612, [1995] 3 FCR 334.

²⁸⁸ [2006] EWCA Civ 1574. See the discussion of this case in Gilmore (2007).

²⁸⁹ *Stephenson v Stephenson* [1985] FLR 1140 at p. 1148.

²⁹⁰ *Re P (Adoption: Parental Agreement)* [1985] FLR 635 at p. 637.

²⁹¹ [1999] 2 FLR 737.

²⁹² [2006] Fam Law 177.

I Names

(i) Registration of birth

A child must be registered within 42 days of the birth and the person registering the birth can declare 'the surname by which at the date of the registration of the birth it is intended that the child shall be known'.²⁹³

If a father (or mother) objects to the initial registration, he (or she) can apply for a specific issue order that the child have his (or her) surname. Once the name is registered, it cannot be changed unless there has been a clerical error.²⁹⁴ Unlike other countries, there is no restriction on a choice of name.²⁹⁵ Parents are free to let their imagination run riot.

(ii) What is a child's name?

In law a child's name is not necessarily the name which appears on the birth register. *Re T (Otherwise H) (An Infant)*²⁹⁶ makes it clear that the child's surname in law is simply that by which he or she is customarily known, which does not, of course, have to be the registered name. It is possible through a deed poll to provide formal evidence of a change from the registered surname, although it is not essential.²⁹⁷ If a deed poll is used to recognise the new surname of a child, it must be signed by all those with parental responsibility.²⁹⁸

(iii) Can a parent allow a child to be known by a name with which he or she was not registered?

It is clear that only a person with parental responsibility can change the name of a child. What is not clear is whether a person with parental responsibility must consult with anyone else with parental responsibility before doing so. The following situations need to be distinguished.

(a) Where a residence order is in force

Where a residence order is in force the position is governed by s 13(1) of the Children Act 1989:

LEGISLATIVE PROVISION

Children Act 1989, section 13(1)

Where a residence order is in force with respect to a child, no person may—

- (a) cause the child to be known by a new surname; or
- (b) remove him from the United Kingdom

without either the written consent of every person who has parental responsibility for the child or leave of the court.

²⁹³ Registration of Births and Deaths Regulations 1987 (SI 1987/2088), reg 9(3).

²⁹⁴ Births and Deaths Registration Act 1953, s 29.

²⁹⁵ See, e.g., *Guillot v France* App. 22500/93 (24 October 1996).

²⁹⁶ [1962] 3 All ER 970.

²⁹⁷ The procedure for this is set out in *Practice Direction (Minor: Change of Surname: Deed Poll)* [1995] 1 All ER 832.

²⁹⁸ *Practice Direction (Minor: Change of Surname: Deed Poll)* [1995] 1 All ER 832.

So where a residence order is in force, the name of the child cannot be changed without the consent of all those with parental responsibility or the leave of the court.²⁹⁹

The section does not state that the consent of the child is needed. It was left open in *Re PC (Change of Surname)*³⁰⁰ whether the consent of a *Gillick*-competent child was necessary or sufficient to change the name. Given that the mature child can, in effect, ensure that he or she is known by friends and others by a particular name, there may be little point in ordering an older child to be known by a particular name.³⁰¹ The fact that there is a debate over whether a child can choose his or her own name shows how little respect there is for children's autonomy in English law. The decision over one's name is deeply personal, but can hardly be harmful. If children cannot make such decisions one wonders what decisions the law thinks they can make.³⁰²

(b) Where there is no residence order in force and both parents have parental responsibility

It was held in *Dawson v Wearmouth*³⁰³ that if two people have parental responsibility, the child's name cannot be changed without the agreement of both. If there is no agreement, the court's approval is required. They rejected an argument that s 2(7) allowed either parent to change the name arguing that if that was correct it could lead to a chaotic situation with the name being constantly changed and re-changed by each parent.

(c) Where one person has parental responsibility

Holman J in *Re PC (Change of Surname)*³⁰⁴ suggested that if only one parent has parental responsibility then he or she could unilaterally change a child's name. An unmarried father without parental responsibility could object to this by applying for a prohibited steps order, but the mother is entitled to change the name, and the burden is on the father to bring the matter to the court if he wishes to object. However, the law is unclear. Lord Mackay in *Dawson v Wearmouth*³⁰⁵ in the House of Lords stated: 'Any dispute [over the registration of a child's name] should be referred to the court for determination whether or not there is a residence order in force and whoever has or has not parental responsibility. No disputed registration or change should be made unilaterally.'³⁰⁶ This implies that even if only the mother has parental responsibility she will need to apply to the court for permission to change a child's name. However, in *Re R (A Child)* Hale LJ appeared to suggest that a parent without parental responsibility did not have a right to be consulted over the surname of a child, but did have the right to challenge the choice in court.³⁰⁷

(iv) Child in local authority care

Under s 33(7), if a child is in care then a child's name can only be changed in writing if all those with parental responsibility consent or the court gives leave. It would be open for a child in care, if sufficiently competent, to apply him- or herself to have their name changed.³⁰⁸

²⁹⁹ Leave of the court should probably be obtained through a section 8 application. For a discussion, see George (2008b).

³⁰⁰ [1997] 2 FLR 730, [1997] 3 FCR 544.

³⁰¹ *Re B (Change of Surname)* [1996] 1 FLR 791, [1996] 2 FCR 304.

³⁰² Herring (2008d).

³⁰³ [1997] 2 FLR 629 CA; affirmed [1999] 1 FLR 1167, [1999] 1 FCR 625.

³⁰⁴ [1997] 2 FLR 730, [1997] 3 FCR 544.

³⁰⁵ [1999] 1 FLR 1167, [1999] 1 FCR 625.

³⁰⁶ [1999] 1 FLR 1167 at p. 1173.

³⁰⁷ [2002] 1 FCR 170 at para 9.

³⁰⁸ *Re S (Change of Surname)* [1999] 1 FLR 672.

In *Re M, T, P, K and B (Care: Change of Name)*³⁰⁹ a local authority was given leave to change the surname of children in care because they lived in fear that their parents would discover their whereabouts. This was seen as a valid reason for giving leave to change the surname.

(v) How will the court resolve a disputed case?

If a dispute over a child's name is brought before the court then the child's welfare will be the paramount consideration.³¹⁰ Their Lordships in *Dawson v Wearmouth* made it clear there was no parental right to name a child.³¹¹ At one time it was thought that the person seeking to change the name had to provide 'good and cogent reasons' for changing the name. However, the Court of Appeal in *Re W (Change of Name)*³¹² said the court should simply consider what was in a child's welfare and there was no presumption for or against a change of name. The cases indicate that a court seeking to resolve a dispute over the surname of a child will consider the following issues:³¹³

1. **The child's views.** The child's views will be important, but not the sole consideration. In *Re S (Change of Surname)*³¹⁴ it was held that the views of a Gillick-competent child over a surname should be given careful consideration.³¹⁵ Surprisingly, Wilson J in *Re B (Change of Surname)*³¹⁶ ordered that three children (two teenagers) keep their father's surname, despite their opposition, in order to maintain the link with their father. It might be thought that little more could be done to damage the relationship between a father and teenagers than forcing them to keep his name.
2. **Embarrassment.** It seems that simply arguing that the child is going to be embarrassed by having a different name from their residential parent is not a strong enough argument to justify changing the name.³¹⁷ In fact, 'there [is] no opprobrium nowadays for a child to have a different surname from that of adults in the household'.³¹⁸
3. **Informal use of names.** There is a difficulty where the child's surname has informally been changed and the child has used the new name for some time before the matter is brought before the court. In such circumstances the court may easily be persuaded that it would be harmful for the child to have the name changed back to the original name. For example, in *Re C (Change of Surname)*³¹⁹ the Court of Appeal felt that, although the mother's initial decision to change the surname had been undesirable, given the length of time the children had been known by the new surname it would be inappropriate to revert to the original name. It may be that a court will accept that the formal name will be different from the informal name. Wilson J in *Re B (Change of Surname)* accepted that, in practice, there is little the law can do to control the name by which a child is to

³⁰⁹ [2000] 1 FLR 645.

³¹⁰ *Re W (Change of Name)* [2013] EWCA Civ 1488.

³¹¹ But see *Znamenskaya v Russia* [2005] 2 FCR 406 where a mother was held to have a right under article 8 to give her stillborn child the biological father's surname.

³¹² [2013] EWCA Civ 1488.

³¹³ *Stjerna v Finland* (1994) 24 EHRR 195 ECtHR.

³¹⁴ [1999] 1 FLR 672.

³¹⁵ *Re R (Residence: Shared Care: Children's Views)* [2005] EWCA Civ 542.

³¹⁶ *Re B (Change of Surname)* [1996] 1 FLR 791, [1996] 2 FCR 304.

³¹⁷ *Re F (Child: Surname)* [1993] 2 FLR 827n, [1994] 1 FCR 110; *Re T (Change of Name)* [1998] 2 FLR 620, [1999] 1 FCR 476.

³¹⁸ *Re B (Change of Surname)* [1996] 1 FLR 791, [1996] 2 FCR 304 CA; *Re T (Change of Name)* [1998] 2 FLR 620, [1999] 1 FCR 476.

³¹⁹ [1998] 2 FLR 656.

be known on a day-to-day basis. The court can only control the name by which the child will be known in formal documents.³²⁰

4. **Strength of the child's relationship with their parents.** Where the residential parent is seeking to change the child's surname from the surname of the non-residential parent then the strength of the relationship between the child and non-residential parent will be taken into account.³²¹ However, it is not easy to tell how this relationship will be taken into account. If the child sees the non-residential parent only rarely, then that is an argument *in favour* of retaining the non-residential parent's name, because the name may be the strongest link between the child and the non-residential parent. However, in the *B* case in *Re W, Re A, Re B (Change of Name)*,³²² approval was given to a change of name from the father's after the father had been imprisoned, because there was not likely to be a meaningful relationship between the child and her father in the future.
5. **Cultural factors.** A court might place weight on normal rules governing surnames from the parent's cultural background.³²³ In *Re S (Change of Names: Cultural Factors)*³²⁴ Wilson J held that the child's name should be changed for day-to-day purposes from a Sikh name to a Muslim name. This was because he had ordered residence to the Muslim mother and therefore the child would inevitably become part of the Muslim community; and the child should be helped to become accepted within that community. However, for formal purposes he held that the name should remain the Sikh name to remind him of his Sikh origins.
6. **Double-barrelled names.** It might be thought that suggesting the child have a double-barrelled name, linking the child to both the mother and father, would be a suitable compromise in many cases. In *Re R (A Child)*³²⁵ it was suggested that using a combination of both surnames was to be encouraged because it would recognise the importance of both parents to the child.
7. **Risk of harm.** The courts have been particularly ready to approve a change of name, where this is necessary to disguise children's identity and protect them from a risk of harm from the father.³²⁶

(vi) First names

In *Re H (Child's Name: First Name)*³²⁷ it was held that the rules in relation to surnames do not apply to forenames. A court will not stop the resident parent from using whatever forename he or she wishes. The father had registered the child with one first name and that would remain the registered name, but for all practical purposes the mother could choose the name she wished. Foster carers and adoptive parents should not change their children's first names (even by using a shortened form of the name) without the local authority's approval. If there is no agreement, the matter should be taken to the High Court.³²⁸ To many this might sound bizarre, but the President of the Family Division so held, explaining that changes of forenames raised important issues. Notably, however, she held that the

³²⁰ [1996] 2 FCR 304. Accepted also in *Re F (Child: Surname)* [1993] 2 FLR 837n, [1994] 1 FCR 110.

³²¹ *Re P (Parental Responsibility: Change of Name)* [1997] 2 FLR 722, [1997] 3 FCR 739.

³²² [1999] 2 FLR 930.

³²³ *Re A (A Child) (Change of Name)* [2003] 1 FCR 493.

³²⁴ [2001] 3 FCR 648.

³²⁵ [2002] 1 FCR 170. The option did not appeal to Tyrer J in *A v Y (Child's Surname)* [1999] 2 FLR 5 who thought that only the mother's half (the latter half) of the name would be used. See Herring (2008d) for support for double-barrelled names.

³²⁶ *A v D* [2013] EWHC 2963 (Fam); *AB v BB* [2013] EWHC 227 (Fam).

³²⁷ [2002] 1 FLR 973.

³²⁸ *Re D, L and LA (Care: Change of Forename)* [2003] 1 FLR 339.

foster carers, who were ‘marvellous people’ in caring for a severely disabled child, should not be caused unhappiness or difficulty by requiring them not to use the name they wished. By contrast in *Re C (Children: Power to Choose Forenames)*³²⁹ a mother with mental health issues had had her children taken into care. She wished the girl to be known as Cyanide and the boy Preacher. The court took the view that although normally it would be inappropriate to amend a parent’s choice of names, it would be if the choice would cause the child serious harm. Here the name Cyanide went beyond ‘the unusual, bizarre, extreme or plain foolish’ and would cause serious harm and so the foster carers could choose an alternative one. They should also choose an alternative name for the boy because it would harm him to know that he, but not his sister, had a name chosen by their mother.

(vii) What should the law be?

There are three main issues here.³³⁰ The first is whether the question of the surname is an important one. The House of Lords has accepted that changing the surname of the child is a ‘profound issue’,³³¹ so much so that the normal rule of independent parenting does not apply. Lord Jauncey in *Dawson v Wearmouth*³³² suggested that ‘the surname is . . . a biological label which tells the world at large that the blood of the name flows in its veins’. But is it really a ‘profound issue’?³³³ It is arguable that although the surname may be important to the parents, it is rarely a profound issue for children, for whom first names are usually far more important. It might be thought the issue of surnames should be regarded as trivial and should not be allowed to take up court time. A simple resolution avoiding court time is available: in the case of a dispute the law could say that the child will have a double-barrelled surname, with each parent can choosing one surname.³³⁴

The second issue is how the law should treat stepfamilies. Many of these cases involve the mother remarrying or re-partnering and wanting to take on her new partner’s name. The issue then arises whether the child’s name should be changed to reflect the mother’s new name and so tie in the child to the new family, or whether the child should keep his or her biological father’s name to retain the link with him. Hale LJ in *Re R (A Child)*³³⁵ expressed her view forcefully:

It is also a matter of great sadness to me that it is so often assumed, and even sometimes argued, that fathers need that outward and visible link in order to retain their relationship with, and commitment to, their child. That should not be the case. It is a poor sort of parent whose interest in and commitment to his child depends upon that child bearing his name. After all, that is a privilege which is not enjoyed by many mothers, even if they are not living with the child. They have to depend upon other more substantial things.

Third, there are those who see the norm of wives and children taking the husband’s surname as a way of reinforcing patriarchy. It symbolises the ‘headship’ of fathers over their family.³³⁶ However, others see the use of a common name as reflecting family unity, rather than any statement of male authority.

³²⁹ [2016] EWCA Civ 374.

³³⁰ Herring (1998a).

³³¹ *Dawson v Wearmouth* [1999] 1 FLR 1167 at p. 1173, *per* Lord Mackay.

³³² [1999] 1 FLR 1167 at p. 1175.

³³³ Thorpe LJ in *Re R (A Child)* [2002] 1 FCR 170 called the surname issue a ‘small issue’ (para 1).

³³⁴ Herring (2009d).

³³⁵ [2002] 1 FCR 170 at para 13.

³³⁶ Herring (2012h).

J Relocation

It is clear from s 13(1)(b) of the Children Act 1989³³⁷ that if there is a residence order in force then a child cannot be removed from the United Kingdom for longer than one month unless there is the written consent of every person with parental responsibility, or the leave of the court.³³⁸ Section 13(2) permits a child to be removed for less than one month by the person with the residence order without the consent of others with parental responsibility.³³⁹ If there is a dispute between the parents over removal of the child from the United Kingdom, an application for a specific issue order could be made.³⁴⁰ Only exceptionally will a parent will not be permitted to remove a child from the jurisdiction on a short holiday.³⁴¹

If leave to remove the child from the jurisdiction³⁴² is sought, the child's welfare is the paramount consideration.³⁴³ The court must take a long-term view in deciding whether leave to remove will promote the child's welfare.³⁴⁴ The most difficult cases involve the residential parent seeking to emigrate with a child.³⁴⁵ Not allowing the parent to leave might cause severe distress, which will harm the child. Refusing leave may be regarded as an infringement of the parent's right to respect for private and family life, which includes being able to choose where to live.³⁴⁶ The non-residential parent may well object on the ground that permitting emigration will severely restrict the practicability of any contact with the child and infringe that parent's rights under article 8. The approach that the courts have taken is that leave will be granted if the request to emigrate is reasonable and bona fide,³⁴⁷ unless it is shown that emigration would be contrary to the welfare of the child.³⁴⁸ Where the children are older, their views will be given weight.³⁴⁹ Where leave is granted, this may well be on the basis that the children will return to the United Kingdom for lengthy holidays.³⁵⁰

There has been a long series of cases on this issue. In *Payne v Payne*³⁵¹ Thorpe LJ explained, 'refusing the primary carer's reasonable proposals for the relocation of her family life is likely to impact detrimentally on the welfare of her dependent children. Therefore her application to relocate will be granted unless the court concludes that it is incompatible with the welfare of the children'.³⁵² He went on to give more detailed guidance:

³³⁷ See the box earlier in the chapter.

³³⁸ For a general discussion of this issue, see Pressdee (2008).

³³⁹ See also Child Abduction Act 1984.

³⁴⁰ *Re A (Prohibited Steps Order)* [2013] EWCA Civ 1115.

³⁴¹ *Re A (Removal from Jurisdiction)* [2012] EWCA Civ 1041. See *Re L (Removal from Jurisdiction: Holiday)* [2001] 1 FLR 241 where permission was given on condition (*inter alia*) that the mother and her family made solemn declarations on the Koran that they would return the child to the UK. See *Re R (Children: Temporary Leave to Remove from Jurisdiction)* [2014] EWHC 643 (Fam) where leave to take the children on holiday to India was refused for fear they would not be returned.

³⁴² That is, to remove the child from the country.

³⁴³ CA 1989, s 1(1). See George (2008b) for a discussion of whether the welfare checklist in s 1(3) should apply.

³⁴⁴ *Re B (Children) (Removal from Jurisdiction)* [2001] 1 FCR 108.

³⁴⁵ For some helpful international comparisons, see George (2011a and b); Young (2011); and Henaghan (2011).

³⁴⁶ European Convention on Human Rights, article 8; *Re G-A (A Child) (Removal from Jurisdiction: Human Rights)* [2001] 1 FCR 43.

³⁴⁷ That is, it is not being made solely for the purpose of bringing the contact arrangement to an end. See, e.g., *Tyler v Tyler* [1989] 2 FLR 158, [1990] FCR 22; *Re K (Application to Remove from Jurisdiction)* [1988] 2 FLR 1006.

³⁴⁸ *Re H (Application to Remove from Jurisdiction)* [1998] 1 FLR 848, [1999] 2 FCR 34.

³⁴⁹ *M v M (Minors) (Jurisdiction)* [1993] 1 FCR 5.

³⁵⁰ *Re B (Minors) (Removal from the Jurisdiction)* [1994] 2 FLR 309; *Re H (Application to Remove from Jurisdiction)* [1998] 1 FLR 848, [1999] 2 FCR 34.

³⁵¹ [2001] 1 FCR 425. See Taylor (2011) for some helpful background.

³⁵² [2001] 1 FCR 425 at para 26.

- (a) Pose the question: is the mother's application genuine in the sense that it is not motivated by some selfish desire to exclude the father from the child's life? Then ask is the mother's application realistic, by which I mean founded on practical proposals both well researched and investigated? If the application fails either of these tests refusal will inevitably follow.
- (b) If, however, the application passes these tests then there must be a careful appraisal of the father's opposition: is it motivated by genuine concern for the future of the child's welfare or is it driven by some ulterior motive? What would be the extent of the detriment to him and his future relationship with the child were the application granted? To what extent would that be offset by extension of the child's relationships with the maternal family and homeland?
- (c) What would be the impact on the mother, either as the single parent or as a new wife, of a refusal of her realistic proposal?
- (d) The outcome of the second and third appraisals must then be brought into an overriding review of the child's welfare as the paramount consideration, directed by the statutory checklist in so far as appropriate.³⁵³

This was interpreted by some to indicate a presumption in favour of allowing relocation if the proposal was reasonable. However, more recent cases have emphasised that the law on relocation is, predictably, governed by the welfare principle. The court should simply ask itself what order would best promote the welfare of the child.

KEY CASE: *Re F (International Relocation Cases)* [2015] EWCA Civ 882³⁵⁴

A father appealed a decision giving a German mother leave to take their 12-year-old daughter to Germany. The father was seeing his daughter twice a week for 2.5 hours and staying in contact one weekend in three. The key question on appeal was whether the judge had stuck too rigidly to the *Payne* guidance, rather than undertaking a straightforward welfare analysis. Ryder LJ emphasised that cases on relocation had to be resolved by determining what was in the welfare of the child. The *Payne* judgment was intended to provide questions to be asked in determining what the welfare of the child was and was not intended to provide principles or presumptions. The *Payne* questions could be considered in all cases, and were not limited to cases where there was a primary carer. However, the Court of Appeal warned that 'selective or partial' citation from *Payne* would be an error of law and wider analysis of the welfare of the child was required. The court needed to consider the pros and cons of all options and consider where the welfare of the child lay. In relocation cases this required the court to consider the proposals of both parents.

The Court of Appeal in *Re W (Relocation: Removal Outside Jurisdiction)*³⁵⁵ and *K v K (Relocation: Shared Care Arrangement)*³⁵⁶ reiterated that the only authentic principle from the relocation cases is that the welfare of the child is court's paramount consideration.³⁵⁷ In deciding whether relocation will promote the welfare of the child the court is likely to take into account the following factors:

³⁵³ [To come]

³⁵⁴ See Devereux and George (2015) for a detailed discussion.

³⁵⁵ [2011] EWCA Civ 345.

³⁵⁶ [2011] EWCA Civ 793.

³⁵⁷ *Re Z (Relocation)* [2012] EWHC 139 (Fam).

1. The reasons for the wish to relocate. Reasons for relocation which have been regarded as reasonable by the court include the pursuit of a career or educational opportunity;³⁵⁸ the wish to return to the home country or to be close to family and friends;³⁵⁹ the desire to join a new partner³⁶⁰ to enable that partner to pursue career or educational opportunities;³⁶¹ and the hope of establishing a new life in a new place. Of course, if the judge decides that the reason the applicant wishes to relocate is a desire to terminate the contact between the other spouse and the children it is very unlikely that leave will be granted.³⁶²
2. The strength of the relationship between child and parents.³⁶³ Where the child has a strong relationship with both parents the courts will be reluctant to approve relocation if that will have a significantly negative impact on the relationship with one parent.³⁶⁴ The court should consider the impact of the possible orders on the relationship between the child and each parent. If there are other adults in the United Kingdom who have a close relationship with the child, the impact of allowing leave on those relationships can be considered.³⁶⁵
3. The impact of the refusal on the parents and the resulting effect on the children. If the children spend most time with one parent then it is likely that any emotional harm with that parent will be more significant than emotional harm to the other parent.³⁶⁶ In *Re W (Relocation: Removal Outside Jurisdiction)*³⁶⁷ the Court of Appeal overruled a judge's refusal to grant leave because he had failed to place adequate weight on the impact of the refusal on the mother and thereby on the children.³⁶⁸ The courts are likely to require medical evidence to strengthen a case that refusal will have severe psychological impact.³⁶⁹ For example, in *J v S (Leave to Remove)*³⁷⁰ expert evidence established that if leave were refused the mother would suffer long-term ill health, requiring anti-depressants, and input from a clinical psychologist. In *Re TC and JC (Children: Relocation)*³⁷¹ the court allowed the relocation of children to Australia. There was little to choose between England and Australia in terms of child welfare, but the refusal of leave would be far more harmful to the mother than the father. That tipped the balance in favour of allowing relocation.³⁷²
4. In some cases the wishes of the children will be weighty factors.³⁷³ Where appropriate children's views should be heard in court.³⁷⁴
5. The court will also scrutinise the proposals for contact. In *W v A*³⁷⁵ the Court of Appeal accepted that technology had made international communication easier with telephone,

³⁵⁸ E.g. *W v A* [2004] EWCA Civ 1587.

³⁵⁹ E.g. *Payne v Payne* [2001] 1 FLR 1052.

³⁶⁰ E.g. *Re A (Leave To Remove: Cultural and Religious Considerations)* [2006] EWHC 421 (Fam).

³⁶¹ E.g. *L v L (Leave to Remove Children from Jurisdiction: Effect on Children)* [2002] EWHC 2577 (Fam); [2003] 1 FLR 900; *Re J (Children) (Residence Order: Removal Outside the Jurisdiction)* [2007] 2 FCR 149.

³⁶² *Re P (Children)* [2014] EWCA Civ 852.

³⁶³ The same principles will apply with a step-parent: *Re S (Relocation: Parental Responsibility)* [2013] EWHC 1295 (Fam).

³⁶⁴ *Re L (Relocation: Shared Residence)* [2012] EWHC 3069 (Fam).

³⁶⁵ *DL v CL* [2014] EWHC 1836 (Fam).

³⁶⁶ *Re E (Location: Removal from Jurisdiction)* [2012] EWCA Civ 1893.

³⁶⁷ [2011] EWCA Civ 345.

³⁶⁸ *Re E (Location: Removal from Jurisdiction)* [2012] EWCA Civ 1893.

³⁶⁹ *Re TG* [2009] EWHC 3122 (Fam).

³⁷⁰ [2010] EWHC 2098 (Fam).

³⁷¹ [2013] EWHC 292 (Fam).

³⁷² To similar effect see *Re C (Children)* [2014] EWCA Civ 705.

³⁷³ *Re J (Leave to Remove: Urgent Case)* [2006] EWCA Civ 1897. *Re S (Relocation: Interests of Siblings)* [2011] EWCA Civ 454.

³⁷⁴ *Re G (Abduction: Children's Objections)* [2010] EWCA Civ 1232.

³⁷⁵ [2004] EWCA Civ 1587 at para 19.

e-mail, text messages, skype and digital photography. All of these would help a non-resident parent keep up a relationship with the child even if they were now living overseas. In *B v S*³⁷⁶ Sedley LJ suggested that a father might find occasional substantial periods of residence a more effective way of maintaining a relationship than regular short times of non-residential contact. In *Re E (Location: Removal from Jurisdiction)*³⁷⁷ the mother agreed to bring the child to England for three months each summer. The court in granting leave noted that the father would in fact be spending no fewer days with the children per year under the proposed arrangement than he was with the current arrangement of seeing them every other weekend.

6. In *K v K (Relocation: Shared Care Arrangement)*³⁷⁸ Thorpe LJ held that the court should also consider whether the non-resident parent should move with the resident parent. If there are good reasons to allow the mother to relocate and the judge believes contact with the children should continue, the judge would be entitled to ask the father why he does not move with them. There is, however, no way a father could be forced to move against his will in such a case.

The courts' approach has been controversial. Mary Hayes³⁷⁹ argues that parents should accept restrictions on their liberties as one of the burdens of bringing up children. However, it should be noted that while the resident parent needs leave to go out of the jurisdiction with the child, the non-resident parent has freedom to move wherever he wishes. So the restrictions on liberty are not equally placed on parents. While holding that the decision in *Payne* was justifiable, Bainham is concerned that the reasoning used:

apparently attached more significance to the security and stability of the child with her mother, than it did to the preservation of the child's relationship with the father, as secondary carer, and the father's family. This, again, might be criticised as an inadequate response to the child's identity rights under the UN Convention.³⁸⁰

The approach can also be said to fail to attach sufficient weight to the rights of the child and non-resident parent as required by the Human Rights Act.³⁸¹ However, it can be argued that adopting a human rights approach would not lead to a change in the results reached because the autonomy rights of the resident parent and child would normally be more weighty than the other rights of the non-resident parent and child.³⁸²

Psychologists have much debated whether it is more harmful for the child to relocate and suffer diminished contact with the non-resident parent, or not to be allowed to relocate, with the resulting emotional harm to the mother. In truth there is no clear evidence either way.³⁸³ Supporters of the approach taken in *Payne* and its emphasis on the impact of the refusal on the primary carer argue that this is a welcome appreciation of the fact a child's welfare is tied up with the welfare of her primary carer.³⁸⁴ This is not unproblematic, however, as Mark Henaghan points out that in order to succeed in getting leave a mother has to portray herself as psychologically fragile.³⁸⁵ A firmer foundation may be put the case for relocation firmly on the basis of human rights.³⁸⁶

³⁷⁶ [2003] EWCA Civ 1149 at para 34.

³⁷⁷ [2012] EWCA Civ 1893.

³⁷⁸ [2011] EWCA Civ 793.

³⁷⁹ Hayes (2006).

³⁸⁰ Bainham (2002a: 285). See Judd and George (2010) for a comparative consideration of the law.

³⁸¹ See George (2011c and 2015).

³⁸² Herring and Taylor (2006).

³⁸³ See Warshark (2013) and Herring and Taylor (2006).

³⁸⁴ Boyd (2011).

³⁸⁵ Henaghan (2011). As he notes that carries the risk that the child will be removed from her because of her psychological state.

³⁸⁶ Herring and Taylor (2006).

Rob George has undertaken a fascinating study of relocation cases.³⁸⁷ One finding of particular interest is that in his sample of UK cases in around two-thirds of cases is leave granted. This shows that there is certainly not a strong presumption in favour of allowing leave.

K Internal relocation

Normally, the court will be reluctant to restrict a parent from moving to a different part of the country on the basis that would harm the child. It has been said that doing so is only suitable in truly exceptional cases.³⁸⁸ In *Re L (A Child) (Internal Relocation: Shared Residence Order)*³⁸⁹ there was a joint residence order, but the mother found a new job and wished to move to Somerset from North London, where the father lived. The Court of Appeal held that the case should be determined simply by an application of the welfare principle. The judge held that the move should not be permitted because of the impact on the child's relationship with the father. Although the Court of Appeal questioned whether the judge had placed adequate weight on the impact of refusal on the mother, it upheld the judge's decision as within his judicial discretion. The fact that this was a joint residence case was said just to be a factor in deciding what was in the child's welfare.³⁹⁰ In *Re F (Children) (Internal Relocation)*³⁹¹ the mother wished to move from Cleveland with her four children to the Orkney Islands, after a job offer. The children had regular extensive contact with the father and he objected. The Court of Appeal upheld the judge's refusal to allow the mother to move.³⁹² The Court of Appeal agreed with the first instance judge who noted that the removal to the Orkneys was equivalent to a removal to another country in terms of the difficulty of enabling contact. Wilson LJ questioned whether it was right to say that internal relocation should be only restricted in exceptional cases, given the impact could be comparable to removal from the jurisdiction. While making no finding on the issue, it is likely this point will be developed in other cases. In *Re R (Children: Temporary Leave to Remove from Jurisdiction)*³⁹³ a prohibited steps order was made preventing the mother moving to London to be with her new boyfriend. The order appears based on the concerns over the man. A criminal records check had not been performed on him; his immigration status was unclear; and the mother had been untruthful about him to the father. The court indicated that if these concerns were overcome the restriction would be lifted.

These cases are, however, rare. In *Re S (A Child)*³⁹⁴ the Court of Appeal refused to restrict where the mother and child could live, acknowledging her argument that the father's application to restrict her movement was part of a pattern of controlling behaviour by the father. Baroness Hale in *Re G (Children) (Residence: Same-Sex Partner)*³⁹⁵ confirmed that orders restricting where a parent should live are generally regarded as an unwarranted imposition on the right of the parent, although they can be justified in exceptional cases.³⁹⁶ The leading recent case is the following:

³⁸⁷ George (2013); George and Cominetti (2013).

³⁸⁸ *Re B (Prohibited Steps Order)* [2008] 1 FLR 613 and *Re E (Residence: Imposition of Conditions)* [1997] 2 FLR 638 (CA) at 642.

³⁸⁹ [2009] 1 FCR 584.

³⁹⁰ *Re S (Child)* [2012] EWCA Civ 1031.

³⁹¹ [2010] EWCA Civ 1428.

³⁹² The mother had applied for a specific issue order allowing her to relocate, although in fact she may not needed to have done so. In a different case the father might have applied for a prohibited steps order to prevent her moving.

³⁹³ [2014] EWHC 643 (Fam).

³⁹⁴ [2012] EWCA Civ 1031.

³⁹⁵ [2006] UKHL 43 at para 15.

³⁹⁶ Applied in *Re M (A Child)* [2014] EWCA Civ 1755. See also Bainham (2016).

KEY CASE: *Re C (Internal Relocation)* [2015] EWCA Civ 1305³⁹⁷

The child lived in London sharing her time between her mother and father, with two nights per week and every other weekend with the father. The mother wished to return to Cumbria, where she had been raised. The father sought an order preventing her from moving. The Court of Appeal declined the father's application. Black LJ accepted that relocation disputes involved an interference in the rights of parents, but said the court must focus on the welfare of the child. Black LJ has this to say:

It is no doubt the case, as a matter of fact, that courts will be resistant to preventing a parent from exercising his or her choice as to where to live in the United Kingdom unless the child's welfare requires it, but that is not because of a rule that such a move can only be prevented in exceptional cases. It is because the welfare analysis leads to that conclusion.

Vos LJ summarised the law in this way:

In cases concerning either external or internal relocation the only test that the court applies is the paramount principle as to the welfare of the child. The application of that test involves a holistic balancing exercise undertaken with the assistance, by analogy, of the welfare checklist, even where it is not statutorily applicable. The exercise is not a linear one. It involves balancing all the relevant factors, which may vary hugely from case to case, weighing one against the other, with the objective of determining which of the available options best meets the requirement to afford paramount consideration to the welfare of the child. It is no part of this exercise to regard a decision in favour or against any particular available option as exceptional (para [82]).

L When should there be contact between a child and parent?**Learning objective 4**

Summarise the issues around contact disputes

We have left the most controversial issue to the end. Baroness Hale has declared: 'Making contact happen and, even more importantly, making contact work is one of the most difficult and contentious challenges in the whole of family law.'³⁹⁸ Contact disputes can become bitterly contested and become impossible to resolve satisfactorily.³⁹⁹ Groups such as Fathers for Justice have claimed that the law on contact discriminates against fathers. In *V v V (Contact: Implacable Hostility)*⁴⁰⁰ Bracewell J admitted:

There is a perception among part of the media, and some members of the parents' groups, as well as members of the public, that the courts rubber-stamp cases awarding care of children to mothers almost automatically and marginalise fathers from the lives of their children. There is also a perception that courts allow parents with care to flout court orders for contact and permit parents with residence to exclude the parent from the lives of the children so that the other parent is worn down by years of futile litigation which achieves nothing and only ends when that parent gives up the struggle, or the children are old enough to make their own decisions, assuming they have not been brainwashed in the meantime . . .

³⁹⁷ Discussed in Easton and Jarman (2016) and Worwood and Hale (2016).

³⁹⁸ *Re G (Children) (Residence: Same-Sex Partner)* [2006] UKHL 43 at para 41.

³⁹⁹ Geldof (2003) is a vivid expression of the emotions that arise in disputed contact cases. See generally Bainham *et al.* (2003) for a useful discussion of the issues.

⁴⁰⁰ [2004] EWHC 1215 (Fam).

The publicity these campaigns have generated has led Wall J to state: 'The courts are not anti-father and pro-mother or vice versa.'⁴⁰¹ The fact that members of the judiciary feel it is necessary to make such comments indicates the pressure they feel under as regards this issue. In a careful review of the evidence Joan Hunt and Alison Macleod⁴⁰² found no evidence of bias against the father. Indeed, they found the courts were very reluctant not to order contact.

Before considering the approach the courts have taken, the findings of psychologists on the benefits of contact will be considered.

(i) Psychological evidence of the benefits of contact

There is much support among child psychologists for 'attachment theory': that at an early age a child forms a psychological attachment with a parent or parent figure. This normally takes place within the first three months of the child's life, but may occur even up to age seven. Removing that child from the adult to whom they have become attached can cause the child serious harm. Of course, the quality of the attachment is of great significance, but the breaking of any attachment can cause harm.⁴⁰³ The dominant view in England and Wales is that contact between a child and both parents is in general beneficial.⁴⁰⁴ A number of benefits have been claimed for contact with parents:

1. It avoids the child feeling rejected by the non-residential parent.
2. It enables the parent and child to maintain a beneficial relationship.
3. Contact may dispel erroneous fantasies that the child could have about the non-residential parent.⁴⁰⁵
4. Contact helps the child develop or retain a sense of identity. In particular, it may help in maintaining a sense of cultural identity.
5. Contact can help the child understand the parental separation.
6. It can ensure the child retains contact with the wider family of the non-residential parent.
7. It can help the child feel free to develop relationships with a step-parent without a sense of betrayal to his or her birth parent.

However, proof of these benefits is not established beyond doubt.⁴⁰⁶ As Eekelaar and Maclean explain:

What has not been established is whether a child whose separated parents behave gently and reasonably to her and to one another, but who sees the outside parent rarely or never, somehow does 'less well' than a child of similar parents who sees the outside parent often.⁴⁰⁷

There is good evidence that benefits do not flow from the mere existence of the contact; what matters is the frequency and quality of the contact.⁴⁰⁸ As Pryor and Daly Peoples put it:

⁴⁰¹ *Re O (A Child) (Contact: Withdrawal of Application)* [2003] EWHC 3031 (Fam) at para 3.

⁴⁰² Hunt and Macleod (2008).

⁴⁰³ See, e.g., Goldstein, Solnit and Freud (1996).

⁴⁰⁴ Willbourne and Stanley (2002).

⁴⁰⁵ In *Re M (Sperm Donor Father)* [2003] Fam Law 94 a lesbian couple used a sperm donor to father a child. He applied for a contact order. It was held that on balance it would be beneficial for occasional contact to take place, so that the child could, at an early stage, be comfortable about his origins.

⁴⁰⁶ As Eekelaar (2002b) points out, a number of studies cast doubt on the assumption that contact is beneficial: e.g. Poussin and Martin-LeBrun (2002).

⁴⁰⁷ Eekelaar and Maclean (1997: 55). See further Hunt (2006a).

⁴⁰⁸ Lewis (2005); Rogers and Pryor (1998: 40); Hetherington and Kelly (2002: 133).

Fathers who are able to have a nurturing and monitoring role have a positive impact on their children in a variety of ways . . . Those fathers whose participation is confined to outings and having fun will, then, have little influence on their children's adjustment.⁴⁰⁹

Stephen Gilmore, summarising his extensive studies into the benefits of contact, states:⁴¹⁰

Research suggests that it is not contact per se but the nature and quality of contact that are important to children's adjustment, and there is a range of factors which impact upon the nature and quality of contact . . . The evidence does not suggest that we can, or should, generalise about the benefits of contact.

In an important study looking at children's account of contact by Fortin, Hunt and Scanlan⁴¹¹, a central conclusion was that we should not assume there is an ideal model of contact for all children:

different children will be satisfied with different amounts of contact and that the quantity of contact is less important than the quality of the child's experience.

Even if there are benefits of contact, it must be recognised that there are also potential disadvantages:⁴¹²

1. Contact often leads to bitter disputes between the resident and non-resident parent, and this atmosphere of conflict may harm the child.⁴¹³
2. The child may feel torn between the residential and non-residential parent, a feeling which may be exacerbated by emotionally intense contact sessions. This may cause psychological disturbance.
3. The relationship between the child and the non-residential parent may be an abusive or bullying one whose continuance will harm the child.

A recent study on children in stepfamilies⁴¹⁴ found that contact with the non-resident parent had no discernible impact on children's welfare. Crucial to a child's welfare were the relationships in the home where the child was living. This suggests that the law should not seek to promote contact where this will cause severe disturbance in the child's home.⁴¹⁵

To conclude on the current state of the evidence on the benefits of contact between a child and non-resident parent: what the evidence certainly does show is that it should not be assumed that contact is always beneficial.⁴¹⁶ On the other hand, there are numerous benefits that *can* flow from contact in many cases where the contact is part of a constructive relationship.⁴¹⁷ Certainly there is evidence that children value the contact they have with their non-resident parent and would like to have more.⁴¹⁸ The appropriate amount of contact depends on the particular child and relationship and it should not be assumed that one model of contact (such as spending an equal amount of time with each parent) is best in all cases. It certainly not should be assumed that the more contact a child has with both parents the better.⁴¹⁹ As Fortin notes:

⁴⁰⁹ Pryor and Daly Peoples (2001: 199). See further Hunt (2006a).

⁴¹⁰ Gilmore (2008a). See also Gilmore (2006a and b and 2008b).

⁴¹¹ Fortin, Hunt and Scanlan (2012).

⁴¹² Discussed in *Re L (A Child) (Contact: Domestic Violence)* [2000] 2 FCR 404.

⁴¹³ This was accepted by Wall J in *A v A (Children) (Shared Residence Order)* [2004] 1 FCR 201.

⁴¹⁴ Smith *et al.* (2001).

⁴¹⁵ Maclean and Mueller-Johnson (2003).

⁴¹⁶ Rogers and Pryor (1998); Kaganas and Piper (1999).

⁴¹⁷ Hetherington and Kelly (2002); Poussin and Martin-LeBrun (2002); Trinder (2003a).

⁴¹⁸ Dunn (2003).

⁴¹⁹ Fortin (2015).

Regular and continuous contact was both a better predictor of a good contact experience with their non-resident parent and of a close child/parent relationship through into adulthood, than quantity of contact . . . Our statistical data suggest that the more traditional order, where a child lives with one parent and has regular contact with the other, is by no means second best so far as children are concerned.

It should not be forgotten in all the debate over whether children benefit or not from contact that contact arrangements can have significant impact on the welfare of fathers⁴²⁰ and mothers.⁴²¹ Most importantly, it must not be assumed that because contact is beneficial, forcing contact through court orders will be beneficial.

(ii) The courts' approach to contact

The current approach of the courts is to accept that contact cases should be decided on the basis of what is in the welfare of the child.⁴²² It is true that some cases have talked of children having a right to contact.⁴²³ For, example, Sir Stephen Brown suggested in *Re W (A Minor) (Contact)*:⁴²⁴ 'It is quite clear that contact with a parent is a fundamental right of a child, save in wholly exceptional circumstances.' Notably, those cases which have referred to a right to contact have stressed that contact is the right of the child and not the parent.⁴²⁵ However, in more recent cases the courts have preferred not to talk of a right to contact which is a misnomer because s 1(1) of the Children Act 1989 applies to contact applications and so the key question is whether or not the contact will promote the child's welfare.⁴²⁶ In *Re M (Contact: Welfare Test)* the Court of Appeal suggested a helpful question was:

whether the fundamental emotional need of every child to have an enduring relationship with both his parents [s 1(3)(b)] is outweighed by the depth of harm which in the light, inter alia, of his wishes and feelings [s 1(3)(a)] this child would be at risk of suffering [s 1(3)(e)] by virtue of a contact order.⁴²⁷

This quotation has been approved in the Court of Appeal in *Re L (A Child) (Contact: Domestic Violence)*,⁴²⁸ where Thorpe LJ and Butler-Sloss P explained that it was not appropriate to talk of a right to contact.⁴²⁹ Thorpe LJ was not keen even on referring to a presumption in favour of contact and preferred to talk of an assumption of the benefit of contact which was 'the base of knowledge and experience from which the court embarks upon its application of the welfare principle'.⁴³⁰ He suggested that the strength of the case in favour of contact depended on the quality of the relationship between the non-resident parent and the child. Where there is a high-quality existing relationship, the case for contact is at its strongest, but if the child does not know the parent, or the relationship is an abusive one, the argument for contact is much weaker.⁴³¹ Whether or not the father is married to the mother should not be

⁴²⁰ Simpson, Jessop and McCarthy (2003).

⁴²¹ Day Sclater and Kaganas (2003).

⁴²² *AB v BB* [2013] EWHC 227 (Fam).

⁴²³ E.g. *Re S (Minors) (Access)* [1990] 2 FLR 166 at p. 170, *per* Balcombe LJ; *Re F (Contact: Restraint Order)* [1995] 1 FLR 956 at p. 963.

⁴²⁴ [1994] 2 FLR 441 CA at p. 447.

⁴²⁵ *M v M (Child: Access)* [1973] 2 All ER 81.

⁴²⁶ See the discussion in Bailey-Harris (2001d).

⁴²⁷ [1995] 1 FLR 274 at p. 275.

⁴²⁸ [2000] 2 FLR 334, [2000] 2 FCR 404 CA.

⁴²⁹ Kaganas and Day Sclater (2000).

⁴³⁰ *Re L (A Child) (Contact: Domestic Violence)* [2000] 2 FCR 404 at p. 437.

⁴³¹ *Re L (A Child) (Contact: Domestic Violence)* [2000] 2 FCR 404 at p. 437.

a relevant factor.⁴³² All the different factors needed to be weighed up to determine whether contact would be in the best interests of the child.

The leading case is now *Re W (Children)*.⁴³³ MacFarlane LJ explained:

When a court determines any question with respect to the upbringing of a child, the child's welfare must be the court's paramount consideration (CA 1989, s 1(1)). The paramountcy principle in CA 1989, s 1(1), coloured as it is by the requirement of the court to have regard in particular to the aspects of welfare set out in the welfare checklist in s 1(3), is the sole statutory mandate directing the course that a court is to take in determining issues relating to the welfare of a child. Although the case of each child before a court will be unique and will justify careful scrutiny and a bespoke conclusion tailored to meet the particular welfare requirements of that young individual, the courts have nevertheless developed general approaches which indicate the contours of the landscape within which welfare determinations are likely to be taken when there is a dispute between a child's parents.

He then approved Wall J's statement in *Re P (Contact: Supervision)*⁴³⁴ as an example of the general approaches he was talking about:

1. Overriding all else, as provided by s 1(1) of the 1989 Act, the welfare of the child is the paramount consideration, and the court is concerned with the interests of the mother and the father only in so far as they bear on the welfare of the child.
2. It is almost always in the interests of a child whose parents are separated that he or she should have contact with the parent with whom the child is not living.
3. The court has power to enforce orders for contact, which it should not hesitate to exercise where it judges that it will overall promote the welfare of the child to do so.
4. Cases do, unhappily and infrequently but occasionally, arise in which a court is compelled to conclude that in existing circumstances an order for immediate direct contact should not be ordered, because so to order would injure the welfare of the child . . .
5. In cases in which, for whatever reason, direct contact cannot for the time being be ordered, it is ordinarily highly desirable that there should be indirect contact so that the child grows up knowing of the love and interest of the absent parent with whom, in due course, direct contact should be established.

Here we see a welcome reassertion of the importance of assessing the welfare of the particular child. While contact with parents, generally speaking, is good for children, that is just one of the factors to be taken into account in deciding whether on the facts of the particular case contact will be in the welfare of the particular child.⁴³⁵ This is in line with the decision of the Supreme Court in *Re B (A Child)*⁴³⁶ which recommended that judges should focus on assessing the welfare of the particular child, without being sidetracked by talk of presumptions. It is also in line with the new presumption in favour of parental involvement added into the Children Act by the Children and Families Act 2014, discussed above. It is clear that there is a presumption of involvement in the life of a child, but this need not involve direct contact. Indeed the limited nature of the statutory presumption may be taken as evidence that it would be wrong to say there is a formal presumption in favour of contact.

⁴³² *Sahin v Germany* [2003] 2 FCR 619.

⁴³³ [2012] EWCA Civ 999.

⁴³⁴ [1996] 2 FLR 314.

⁴³⁵ Gilmore (2008b).

⁴³⁶ [2009] UKSC 5.

Subsequent cases show the courts hold in tension the assertion that the welfare principle is paramount, with the additional view that contact is generally beneficial.⁴³⁷ In *Re R (No Order for Contact: Appeal)*⁴³⁸ Clarke LJ stated:

the court has in a series of cases stressed the importance of contact between parent and child as a fundamental element of family life, which is almost always in the interests of the child, and which is to be terminated only in exceptional circumstances, where there are cogent reasons for doing so and when there is no alternative. Contact is to be terminated only where it would be detrimental to the child's welfare. The judge has a duty to promote such contact and to grapple with all available alternatives before abandoning hope of achieving some contact. Contact should be stopped only as a last resort and once it has become clear that the child will not benefit from continuing the attempt. The court should take a medium to long term view and not accord excessive weight to what appear likely to be short term and transient problems.

In seeking to summarise the current law, the starting point is that the central principle in contact cases is the welfare principle (*London Borough of Croydon v BU*;⁴³⁹ *Re D (A Child)*;⁴⁴⁰ *Re A (A Child)*;⁴⁴¹ *Re R (No Order for Contact: Appeal)*⁴⁴²). However, in assessing what is in the welfare of the child, the court will generally assume that some contact is beneficial and will order contact unless there is evidence to suggest it is harmful.

Some of the recent case law gives a flavour of the kind of cases where contact is not ordered. In *Re K (Children: Refusal of Direct Contact)*⁴⁴³ the father was a serial sex offender who had been severely restricted in having contact with any children. It was held he should not be given a contact order. In *Re T (A Child: One Parent Killed by Other Parent)*⁴⁴⁴ HHJ Clifford Bellamy held that there was no presumption that a father who killed a mother should not have contact with his children, but on the facts of this case there should be no contact. The fact that we need court decisions to tell us contact was not appropriate in these cases shows how extreme the circumstances must be before contact is not permitted.

Although the courts have generally been reluctant to talk of a right of contact, the European Court of Human Rights has made it quite clear that the right to respect for family and private life under article 8 of the European Convention on Human Rights includes the right of contact between parents and children.⁴⁴⁵ In *Elsholz v Germany*⁴⁴⁶ it was confirmed that to deny contact between a father and a child where they had an established relationship infringed article 8, although denial of contact could be justified under paragraph 2 if necessary in the interests of the child or resident parent.⁴⁴⁷ When weighing up the interests of parents and child in relation to contact, the welfare of the child will be of 'crucial importance'.⁴⁴⁸ However, it must be shown that the concerns over the welfare of the child render the infringement of the father's right necessary.⁴⁴⁹ In other words, contact should not be denied simply because it will very slightly harm the child; a significant harm to the child is required to justify denying contact.

⁴³⁷ *Re M (Contact Refusal: Appeal)* [2013] EWCA Civ 1147.

⁴³⁸ [2014] EWCA Civ 1664.

⁴³⁹ [2014] EWHC 823 (Fam).

⁴⁴⁰ [2014] EWCA Civ 1057.

⁴⁴¹ [2013] EWCA Civ 1104.

⁴⁴² [2014] EWCA Civ 1664.

⁴⁴³ [2011] EWCA Civ 1064.

⁴⁴⁴ [2011] EWHC B4.

⁴⁴⁵ *Hokkanen v Finland* (1995) 19 EHRR 139 and *Ignaccolo-Zenide v Romania* (2001) 31 EHRR 7.

⁴⁴⁶ [2000] 2 FLR 486 ECtHR.

⁴⁴⁷ *Sahin v Germany* [2003] 2 FCR 619 ECtHR. Although see *Hansen v Turkey* [2004] 1 FLR 142 where the fact that the child did not want to have contact was in that case not sufficient to justify an interference in the right of the father to see the child.

⁴⁴⁸ *Sahin v Germany* [2002] 3 FCR 321 ECtHR at para 40.

⁴⁴⁹ *Elsholz v Germany* [2000] 2 FLR 486 ECtHR; *Suss v Germany* [2005] 3 FCR 666.

In *Re A (A Child) (Intractable Contact Dispute: Human Rights Violations)*⁴⁵⁰ the Court of Appeal stated that not making a contact order would infringe the rights of a father. The judge would have to ensure that any interference was ‘justified and proportionate’. In particular that the court should not decide not to order contact if it was the only alternative that could promote the welfare of the child. The court did not make clear whether this was meant to be a separate analysis from the welfare principle. However, they did assert that the welfare principle was the fundamental principle for contact applications. It may therefore be that the court were taking the approach of Thorpe LJ *Re L (A Child) (Contact: Domestic Violence)*⁴⁵¹ and Munby LJ in *Re C (A Child)*⁴⁵² that the human rights to contact were protected by the application of the welfare principle used by the English courts.⁴⁵³ The Court of Appeal may, therefore, be saying that the human rights analysis was a useful way of asking whether stopping contact really was in the welfare of the child.

In summary, the present law on contact is that the courts will consider the benefits and disadvantages of contact in each particular case. There is no presumption in favour of contact, although its benefits will readily be found in an appropriate case. In each case the courts will weigh up the benefits and disadvantages of contact.⁴⁵⁴ They should make sure that contact is only denied if that is the only option consistent with the welfare of the child. The courts have not accepted the arguments of some commentators that there should be a presumption in favour of equal parenting after divorce nor that the Human Rights Act 1998 requires a different approach.⁴⁵⁵ However, there is a presumption, if the parent poses no risk to the child, that they will be involved to some extent in the child’s life.

We will now consider certain types of contact cases which have raised particular difficulties.

(iii) The opposition of the residential parent

There has in recent years been a change in approach in cases where the resident parent is strongly opposed to contact.⁴⁵⁶ At one time opposition was thoroughly castigated. In *Re O (Contact: Imposition of Conditions)*⁴⁵⁷ it was stated:

The courts should not at all readily accept that the child’s welfare will be injured by direct contact . . . Neither parent should be encouraged or permitted to think that the more intransigent, the more unreasonable, the more obdurate and the more uncooperative they are, the more likely they are to get their own way.

More recently, in *Re P (Contact Discretion)*,⁴⁵⁸ the courts have accepted that there may be very good reasons for the residential parent to oppose contact, and it is now necessary to distinguish two types of cases.⁴⁵⁹ First, where the opposition of the parent is justified: in such a case if the residential parent’s fears are ‘genuine and rationally held’⁴⁶⁰ then the court may refuse contact.⁴⁶¹

⁴⁵⁰ [2013] EWCA Civ 1104.

⁴⁵¹ [2000] 2 FLR 334, [2000] 2 FCR 404 CA.

⁴⁵² [2011] EWCA Civ 521, para 47.

⁴⁵³ See Choudhry and Herring (2010) for further discussion.

⁴⁵⁴ For an example of where the disadvantages outweighed the advantages, see *Re F (Children) (Contact: Change of Surname)* [2007] 3 FCR 832.

⁴⁵⁵ For arguments that the Human Rights Act 1998 does require a new approach to contact cases, see Choudhry and Fenwick (2005).

⁴⁵⁶ Wallbank (1998) discusses these cases.

⁴⁵⁷ [1995] 2 FLR 124 at pp. 129–30.

⁴⁵⁸ [1998] 2 FLR 696, [1999] 1 FCR 566.

⁴⁵⁹ See also *Re D (Contact: Reasons for Refusal)* [1997] 2 FLR 48, [1998] 1 FCR 321.

⁴⁶⁰ *Re D (Contact: Reasons for Refusal)* [1997] 2 FLR 48 at p. 53.

⁴⁶¹ For a thorough discussion, see Children Act Sub-Committee (2002a) and *Re H (A Child) (Contact: Mother’s Opposition)* [2001] 1 FCR 59.

Where the resident parent reasonably claims that there is a risk of violence to the children or abduction,⁴⁶² that would be a reasonable ground to oppose contact, unless that risk can be eliminated.⁴⁶³ Secondly, those cases where the opposition is 'emotional' and there is no rational basis for it: in such a case contact will be ordered unless it can be shown that the residential parent will suffer such distress if forced to permit contact that the child will be harmed.⁴⁶⁴ In *Re H (Children) (Contact Order) (No. 2)*⁴⁶⁵ Wall J held that the child's need to have a competent and confident primary carer outweighed their need to have direct contact with their father in a case where there was evidence that the mother might have a nervous breakdown if contact was ordered. However, in *Re A (A Child) (Intractable Contact Dispute)*⁴⁶⁶ it was held that only in a case where there was a serious risk of harm should the objections of a parent be a reason for denying contact. In *Re S-B (Children)*⁴⁶⁷ it was emphasised by the Court of Appeal that the mother and children finding the contact unsettling or inconvenient would certainly not be sufficient to deny contact.

A few recent cases have focused on the father's conduct and have accepted the argument that the father, if he wishes to have contact, must behave in a more suitable way.⁴⁶⁸ Although it would be wrong to say that there is a rule that a father who has behaved badly must acknowledge his misbehavior and apologise if he has to have contact.⁴⁶⁹ The willingness of the court to look at the father's conduct is important because the earlier case law had concentrated on the mother and regarded her opposition as the problem, rather than considering whether it was the father's behaviour which created the difficulties.⁴⁷⁰ Some commentators have suggested that the law is predicated on an image of a 'good' or 'bad' mother or father.⁴⁷¹ A mother is automatically 'bad' if she denies contact to a father, even when she fears that the father may harm the child; whereas a father is 'good' if he seeks contact with the child, even though he may have shown disregard of the child's welfare during the parents' relationship.⁴⁷² There are concerns that the increased emphasis on encouraging contact will reinforce this message.⁴⁷³ In *RS v SS*⁴⁷⁴ Harris J held:

I found the mother to be a very angry and wilful woman. Her hatred of the father is almost pathological. In my judgment, this is likely to have its origins in the circumstances of the breakdown of their marriage: the father leaving when CD was but a few weeks' old, and her belief that the father had already begun an affair with SB.

By contrast, Harris J said of the father: 'He is totally committed to his sons.' After reading the facts not everyone will agree with Harris J's assessment. Some people will find it understandable if one's partner has an affair during your pregnancy and left you after your child was born, that you would feel angry with them. Further, that such a father has not thereby shown commitment to his children. Expecting parties to demonstrate great virtue when they have been so badly treated may seem to ask too much.

⁴⁶² D. Smith (2003).

⁴⁶³ *Re H (Children) (Contact Order) (No. 2)* [2001] 3 FCR 385.

⁴⁶⁴ *Re C (Contact: Supervision)* [1996] 2 FLR 314 suggested that it may be difficult to persuade a court of this. [2001] 3 FCR 385.

⁴⁶⁵ [2013] EWCA Civ 1104.

⁴⁶⁶ [2015] EWCA Civ 705.

⁴⁶⁷ *Re M (Minors) (Contact: Violent Parent)* [1999] 2 FCR 56; *Re O (A Child) (Contact: Withdrawal of Application)* [2004] 1 FCR 687.

⁴⁶⁸ *Re K (Contact)* [2016] EWCA Civ 99.

⁴⁶⁹ Smart and Neale (1999a).

⁴⁷⁰ Wallbank (2007).

⁴⁷¹ Kaganas and Day Sclater (2004); Boyd (1996).

⁴⁷² Rhoades (2002a).

⁴⁷³ [2013] EWHC B33 (Fam).

Some commentators take the wider point that for contact to be productive there must be trust and cooperation between the parents.⁴⁷⁵ Contact where the parents still fear and distrust each other (whether justifiably or not) is likely to lead to the child being used as a pawn in their dispute. Research suggests that the most common reason for resident mothers refusing contact is fear that violence or sexual abuse will be carried out against them or the child.⁴⁷⁶ Where these fears are justified, of course, contact will not be ordered.⁴⁷⁷ But even if they are unjustified fears, some commentators argue that contact in the context of such fear is likely to be traumatic for the child, rather than beneficial.⁴⁷⁸ Consider, for example, the case of *Re U (Children) (Contact)*⁴⁷⁹ where the father had, when 22, been convicted of 'a particularly unpleasant and brutal' indecent assault on a child aged 11. He was convicted to a sentence of four years' imprisonment. After his release he married, but never told his wife of his conviction. The marriage broke down with the wife alleging violence. When she discovered his previous conviction she refused to permit contact with their two daughters. However, the Court of Appeal held that the father should have been permitted to produce evidence that he had received therapy and did not pose a threat to them. One can imagine that, whatever evidence he might introduce, the mother is unlikely to be convinced he is safe. One wonders whether in such an atmosphere contact could be beneficial.

(iv) The relevance of the child's opposition

In the previous section we considered cases where the opposition to contact has come from the resident parent. What if the opposition comes from the child? As has already been discussed, in deciding what is in the welfare of a child the court will place much weight on the child's views, taking into account the age of the child, the reasons behind the child's views and the seriousness of the issues.⁴⁸⁰ Clearly in some cases practicalities will rule the day. If a teenager really does not want to have contact, there will be little point in a court order requiring it.⁴⁸¹ In *Re S (Contact: Children's Views)*⁴⁸² the strong views of 16-, 14- and 12-year-olds that they did not want to have contact with their father were followed by the court. The Court of Appeal wisely stated:

They [the children] might obey, perhaps they will obey an order of the court, but with what result? What would be the quality of what is being asked of them by me to do if I order them to do it? ... If young people are to be brought up to respect the law, then it seems to me that the law must respect them and their wishes, even to the extent of allowing them, as occasionally they do, to make mistakes.⁴⁸³

For younger children, courts may not be unduly perturbed by the apparent distress of children,⁴⁸⁴ believing that the long-term benefits of contact normally outweigh short-term distress.⁴⁸⁵

⁴⁷⁵ Herring (2003a).

⁴⁷⁶ Rhoades (2002b); Day Sclater and Kaganas (2003).

⁴⁷⁷ See *Re C (A Child) (Contact Order)* [2005] 3 FCR 571.

⁴⁷⁸ Imagine what a mother with such fears will say to her child as she sends him or her off for the contact session.

⁴⁷⁹ [2004] 1 FCR 768.

⁴⁸⁰ In *Re F (Minors) (Denial of Contact)* [1993] 2 FLR 677, [1993] 1 FCR 945 CA contact was not ordered because the children (aged 12 and 9) strongly opposed contact following the father's 'sex change' operation.

⁴⁸¹ *M v M (Defined Contact Application)* [1998] 2 FLR 244.

⁴⁸² [2002] 1 FLR 1156.

⁴⁸³ At p. 1169.

⁴⁸⁴ *Re H (Minors) (Access)* [1992] 1 FLR 148, [1992] 1 FCR 70.

⁴⁸⁵ *Re R (No Order for Contact: Appeal)* [2014] EWCA Civ 1664.

With older children who object to contact the court will want to determine the reasons for the objection.⁴⁸⁶ Where they are based on good reasons the court is likely to give them considerable respect. In some cases they may fear the child is simply repeating the objections of the parent they are living with.⁴⁸⁷ In other cases the court will seek to determine whether the concerns of the child can be met and the child's attitude towards contact be changed. In *Re A (A Child) (Intractable Contact Dispute)*⁴⁸⁸ the Court of Appeal was critical of lower courts accepting that M (aged 13, 'a very bright girl and mature beyond her chronological age'⁴⁸⁹) objected to contact, without seeking to explore why, given that the father was 'unimpeachable'.⁴⁹⁰ However, arguably such an approach fails to attach sufficient weight to M's right to have her views respected. Forcing a 13-year-old to see someone (previously arrested for assaulting her) requires a strong justification. Adults are not forced to see people they do not want, however nice the other person is.

The issue of child objection to contact has brought to the fore what has been called 'parental alienation syndrome'.⁴⁹¹ This controversial 'syndrome' is said to lead to the resident parent turning the child against the non-resident parent. Supporters claim that appreciation of this syndrome means that if the child opposes contact the court should readily ignore his or her view and order contact. Indeed, the opposition of the child may indicate that the residential parent suffers from this syndrome and that residence should be changed. An example of the 'syndrome' may be found in *Re M (Intractable Contact Dispute: Interim Care Order)*⁴⁹² where it was found that a mother had falsely persuaded her children that their father had physically and sexually assaulted them.

However, as mentioned, 'parental alienation syndrome' is controversial.⁴⁹³ Many psychologists deny that the 'syndrome' is a medical condition and it is too often applied in cases where the parent has reasonable grounds for objecting to the other parent.⁴⁹⁴ In a study by Trinder *et al.*⁴⁹⁵ only 4 per cent of the cases that came to court for enforcement could be seen as cases where the parent objecting to contact was doing so out of hostility and with no justification.⁴⁹⁶ That suggests that even if parental alienation exists it is very rare.⁴⁹⁷ Indeed, although in the press it is mothers who are typically said to have parental alienation, evidence from Australia suggests that it is far more common for non-resident parents to seek to turn children against resident parents than vice versa.⁴⁹⁸

In *Re S (Transfer of Residence)*⁴⁹⁹ the Court of Appeal accepted the 'syndrome' did exist, but urged caution and the use of experts before determining it. Other cases have been less positive about the syndrome.⁵⁰⁰ In *Re O (A Child) (Contact: Withdrawal of Application)*⁵⁰¹

⁴⁸⁶ *Re G (Intractable Contact Dispute)* [2013] EWHC B16 (Fam).

⁴⁸⁷ *Re G (Intractable Contact Dispute)* [2013] EWHC B16 (Fam).

⁴⁸⁸ [2013] EWHC B16 (Fam).

⁴⁸⁹ Para 7.

⁴⁹⁰ A rather surprising description given he was arrested and prosecuted for assaulting his daughter.

⁴⁹¹ Hobbs (2002a) provides a basic introduction to this alleged syndrome; Gardner *et al.* (2005) provide a book-length treatment of the subject. See also Clarkson and Clarkson (2007).

⁴⁹² [2004] 1 FCR 687. See *Re M (Children)* [2005] EWCA Civ 1090 where the resident father was found to have turned the children against the non-resident mother.

⁴⁹³ Eaton and Jarman (2016).

⁴⁹⁴ Walker and Shapiro (2010).

⁴⁹⁵ Trinder *et al.* (2013).

⁴⁹⁶ For similar results see Harding and Newnham (2014).

⁴⁹⁷ Fortin, Hunt and Scanlan (2012).

⁴⁹⁸ Rhoades (2002a).

⁴⁹⁹ [2010] 1 FLR 1785.

⁵⁰⁰ *Re P (A Child) (Expert Evidence)* [2001] 1 FCR 751; *Re S (Contact: Children's Views)* [2002] 1 FLR 1156.

⁵⁰¹ [2004] 1 FCR 687.

Wall J suggested the father's allegation of the syndrome was denial of his own responsibility for the problems relating to contact.⁵⁰² In *Re C (Children: Contact)*⁵⁰³ Butler-Sloss P thought that the more likely explanation for the children's objection to seeing their father was that he had left his wife and children for another woman, rather than parental alienation syndrome, as the father alleged.

The following case is a dramatic example of how the issue of child objection to contact can be dealt with.

CASE: *Re S (Transfer of Residence)* [2010] EWCA Civ 291

Between 1999 and 2010, S, aged 12 in 2010, had been the subject of disputes between his parents. Originally, he was placed with his mother, and had contact with his father. The contact broke down. The father alleged the mother had parental alienation syndrome and had turned S against him. In 2010, in an attempt to ensure contact with both parents, continued residence of S was transferred to the father. S strongly opposed the move and obtained his own solicitor. The court tipstaff was directed to implement the order and take S to the father. S resisted and the court made an interim care order and he was placed with foster care. The local authority sought to effect care with the father but S sat with his head in his lap and fingers in his ears. S said he would rather remain in care than live with his father. Concerns grew over S's mental stability. Eventually, S was returned to the mother and the father gave up on seeking contact.

Depending on your point of view, this case is either one where the intransigent mother got her way or where the court failed to treat a child who did not like his father with appropriate respect. Either way, the case was a tragedy.

Perhaps in light of that case, more recent decisions have been wary of forcing a child who strong opposes contact to see their parent. Instead, the courts have put pressure on mothers to do more to encourage children to see their fathers. In *Re H-B (Children)(Contact: Prohibitions on Further application)*⁵⁰⁴ Munby P in the Court of Appeal put the point strongly:

I appreciate that parenting headstrong or strong-willed teenagers can be particularly taxing, sometimes very tough and exceptionally demanding . . . But parental responsibility does not shrivel away, merely because the child is 14 or even 16, nor does the parental obligation to take all reasonable steps to ensure that a child of that age does what it ought to be doing, and does not do what it ought not to be doing. I accept . . . that a parent should not resort to brute force in exercising parental responsibility in relation to a fractious teenager. But what one can reasonably demand – not merely as a matter of law but also and much more fundamentally as a matter of natural parental obligation – is that the parent, by argument, persuasion, cajolement, blandishments, inducements, sanctions (for example, 'grounding' or the confiscation of mobile phones, computers or other electronic equipment) or threats falling short of brute force, or by a combination of them, does their level best to ensure compliance. That is what one would expect of a parent whose rebellious teenage child is foolishly refusing to do GCSEs or A-Levels or 'dropping out' into a life of drug-fuelled crime. Why should we expect any less of a parent whose rebellious teenage child is refusing to see her father?

⁵⁰² See also *Re Bradford, Re O'Connell* [2006] EWCA Civ 1199.

⁵⁰³ [2002] 3 FCR 183, [2002] 1 FLR 1136.

⁵⁰⁴ [2015] EWCA Civ 389, para 76.

Notably these comments were made in the context of a case where the court felt it had done all it could do to enable contact and no more orders could be made. The blame for the problem was in this quotation laid at the door of the mother. Whether this is fair is open to debate.⁵⁰⁵ The father had not exactly behaved angelically. Further, a wide range of professionals had sought to encourage the girls to be positive about their father, and failed. Should a parent be expected to do what trained professionals cannot? Perhaps more importantly the case involved children aged 16 and 14. The analysis of the court seems unwilling to take seriously their own views of the matter and instead regards them as pawns in the hands of their parents. It is not possible that these young women have formed perfectly reasonable views of their own? Why should they not be listened to and respected? Is there not something rather patronising about suggesting the views of a 16-year-old need to be changed by the mother by grounding her?

(v) Domestic violence and contact

In recent years there has been much debate in the courts and among commentators concerning cases in which there is a dispute over contact where the parental relationship had been marked by domestic violence.⁵⁰⁶ One study of separated parents found that 56 per cent of parents interviewed reported domestic violence and 78 per cent feared it.⁵⁰⁷ Eighty per cent of resident parents disputing contact cited violence concerns in one study.⁵⁰⁸ Some commentators have argued in favour of a legal presumption against contact where there has been domestic violence.⁵⁰⁹ Those who take such an approach point to the following:⁵¹⁰

1. Children who live in an atmosphere of domestic violence suffer psychological harm,⁵¹¹ even if they do not actually witness the abuse.⁵¹²
2. There is evidence that there are statistical links between child abuse and spousal abuse. Judge Wall⁵¹³ quoted research that if a man is abusing his wife there is a 40–60 per cent chance he is also abusing his child.
3. There is also a fear that a father may be able to continue to dominate and exercise power over the mother through the arrangements over contact.⁵¹⁴ For example, contact arrangements can be used to discover the mother's address, or to threaten or abuse her.⁵¹⁵ Hale LJ has expressed her concern 'that some women are being pursued and oppressed by controlling or vengeful men with the full support of the system'.⁵¹⁶ A study by Women's Aid highlighted 29 cases where children had been killed during or in connection with contact meetings.⁵¹⁷

⁵⁰⁵ The father and new partner had behaved in some blameworthy ways: see Herring (2016b).

⁵⁰⁶ Choudhry (2012).

⁵⁰⁷ Trinder (2005).

⁵⁰⁸ Hunt and Macleod (2008).

⁵⁰⁹ Fineman (2002); Perry (2006).

⁵¹⁰ For a helpful summary, see Bell (2008).

⁵¹¹ Barnett (2000).

⁵¹² *Re L (A Child) (Contact: Domestic Violence)* [2000] 2 FCR 404. Note also the definition of harm in CA 1989, s 31(3A) including the witnessing of ill-treatment of another.

⁵¹³ Wall (1997).

⁵¹⁴ E.g. Kaye, Stubbs and Tolmie (2003); Masson and Humphreys (2005); Hardesty and Chung (2006); Humphreys and Thiara (2003).

⁵¹⁵ Women's Aid (2003).

⁵¹⁶ Hale LJ (1999).

⁵¹⁷ Saunders (2004). See Wall (2006) who argues that in only three cases could the court possibly have foreseen any kind of risk.

4. One survey, which looked at cases where contact had been ordered even though there had been domestic violence, suggested that 25 per cent of children were abused⁵¹⁸ as a result of the contact.⁵¹⁹

The leading case on the law is *Re L (A Child) (Contact: Domestic Violence)*.⁵²⁰ The Court of Appeal decided to hear four cases together so as to analyse the law in this area.⁵²¹ It was emphasised that the fact that there had been domestic violence is not a bar to contact. However, it is one important factor in the balancing exercise. The Court of Appeal stressed that a judge should approach such cases in two stages:

1. If domestic violence is alleged, the court has to decide whether the allegations are made out or not.⁵²²
2. The court should weigh up the risks involved, and the impact of contact on the child, against the positive benefits (if any) of contact. Any risk of harm to the residential parent should also be considered.

Butler-Sloss P explained:⁵²³

a court hearing a contact application in which allegations of domestic violence are raised, should consider the conduct of both parties towards each other and towards the children, the effect on the children and on the residential parent and the motivation of the parent seeking contact. Is it a desire to promote the best interests of the child or a means to continue violence and/or intimidation or harassment of the other parent? In cases of serious domestic violence, the ability of the offending parent to recognise his or her past conduct, to be aware of the need for change and to make genuine efforts to do so, will be likely to be an important consideration.⁵²⁴

In particular, the court should consider the following factors when considering contact where there has been domestic violence:

1. The child might be abused during contact.
2. Contact might exacerbate the bitterness between the parents, and this would be detrimental to the child.
3. A bullying or dominating relationship between the child and contact parent might be perpetuated.
4. If the child had witnessed domestic violence between their parents, contact might reawaken old fears.⁵²⁵
5. If the child opposes contact, weight should be placed on their views.⁵²⁶

⁵¹⁸ A term the researchers used to include emotional harm. Ten per cent were sexually abused and 15 per cent physically abused.

⁵¹⁹ Hester (2002).

⁵²⁰ [2000] 2 FCR 404.

⁵²¹ The Court of Appeal paid particular attention to Children Act Sub-Committee (2002a). See further Sturge and Glaser (2000).

⁵²² *Re K and S* [2006] 1 FCR 316.

⁵²³ See Gilmore (2008b) for criticism of the Court of Appeal's handling of the expert evidence in that case.

⁵²⁴ *Re L (A Child) (Contact: Domestic Violence)* [2000] 2 FCR 404 at p 416.

⁵²⁵ This factor was relied upon when denying contact in *Re G (Domestic Violence: Direct Contact)* [2000] Fam Law 789.

⁵²⁶ See *Re S (Transfer of Residence)* [2010] EWCA Civ 291.

When considering the benefits the court should recall in particular:

1. That seeing a father may be beneficial to the child's identity.
2. The 'male contribution to parenting'⁵²⁷ that a father can offer.
3. The loss of opportunity to know the paternal grandparents if contact does not take place with the father.
4. The opportunity 'to mend the harm done' may be lost if contact is not ordered.

Even if domestic violence means that direct contact is not possible, indirect contact may be appropriate.⁵²⁸

In Practice Direction 12J to the Family Procedure Rules 2010 it states that when considering contact in a violence case the court must consider:

- (a) the effect of the domestic violence or abuse on the child and on the arrangements for where the child is living;
- (b) the effect of the domestic violence or abuse on the child and its effect on the child's relationship with the parents;
- (c) whether the applicant parent is motivated by a desire to promote the best interests of the child or is using the process to continue a process of violence, abuse, intimidation or harassment or controlling or coercive behaviour against the other parent;
- (d) the likely behaviour during contact of the parent against whom findings are made and its effect on the child; and
- (e) the capacity of the parents to appreciate the effect of past violence or abuse and the potential for future violence or abuse.

It also states:

The court should only make an order for contact if it can be satisfied that the physical and emotional safety of the child and the parent with whom the child is living can, as far as possible, be secured before during and after contact, and that the parent with whom the child is living will not be subjected to further controlling or coercive behaviour by the other parent.⁵²⁹

The Practice Direction makes it clear that domestic violence issues should be identified at the earliest opportunity and the court should give directions to enable the allegations to be determined. Where there is a finding of domestic violence but the court determines that contact should take place nonetheless, the court should consider whether restrictions should be imposed on the contact, for example that it be supervised.

The approach of the courts is based on the principle that the welfare of the child is the paramount consideration and domestic violence is but one factor to be taken into account. This has produced some concerning cases.

- In *Re J-S (A Child) (Contact: Parental Responsibility)*,⁵³⁰ despite the fact that the father had thrown a shoe at the mother, forced his way into her home, had pushed a hot tea bag in her face, and hit her across the face chipping her tooth, he was permitted contact. It was

⁵²⁷ It is not clear exactly what this means.

⁵²⁸ *AB v BB* [2013] EWHC 227 (Fam).

⁵²⁹ Para 36.

⁵³⁰ [2002] 3 FCR 433.

explained that the child had established a strong attachment with the father and that to end contact with the father would therefore harm the child.⁵³¹

- In *Re A (Suspended Residence Order)*⁵³² a court ordered a mother to allow her daughter to visit the father even though the father had been found to have sexually abused one of the mother's other daughters and despite the strong opposition of the daughters to contact. Such cases will be opposed by those commentators who are concerned that too great a willingness to permit contact following serious domestic violence may endanger mothers and children.⁵³³ Indeed, one may well ask in that case how a father can claim to be committed to the child when he treats the child's primary carer or half-sisters in that way.
- In *Re M (Contact Refusal: Appeal)*⁵³⁴ the mother and three children escaped to a women's refuge after prolonged violence. The elder boys had suffered physical abuse at the hands of their father and were acting out his aggressive behaviour. The Court of Appeal emphasised that domestic violence is not a bar to direct contact. They held that in this case the judge had not shown that no other orders apart from a no contact order could protect the children. What seems absent from the Court's analysis is an assessment of what ways contact with the father would benefit the boys, as required by *Re L (A Child) (Contact: Domestic Violence)*.⁵³⁵ The case seemed to take the benefit for granted, even though the facts indicated that their relationship with their father to date had resulted in little but harm.
- In *Re A (Supervised Contact Order: Assessment of Impact of Domestic Violence)*⁵³⁶ the Court of Appeal upheld a judgment ordering supervised contact in a case where the mother had been repeatedly raped and sexually abused by the father, causing her to suffer post-traumatic stress disorder. The judge had separated out the sexual abuse of the wife, which he characterised as serious, from the physical abuse (he had thrown a book and pen at her) which he characterised as low level. The judge took the view that the father's conduct did not pose a risk to the daughter, at least in the context of supervised conduct. That a multiple rapist should have even supervised contact with the daughter of his victim is surprising.

Arianne Barnett's study found a reluctance in courts to find domestic violence being proved in contact cases, with one practitioner describing a finding of domestic violence like 'gold dust'.⁵³⁷ Even where it is proved, the cases just referred to demonstrate that the courts will strive to allow some kind of contact. Opponents will argue that a man who has been violent towards the mother of a child has shown such a lack of regard for the child's well-being that he should not be awarded contact, unless there are compelling reasons to do so.

Arianne Barnett⁵³⁸ in another powerful study of the current operation of the law finds that the courts regularly downplay the relevance of domestic violence and emphasise the importance of joint parental involvement. She concludes:

The gendered relations of power that construct, underpin and sustain the law's current construction of 'the truth' about children's welfare constantly challenge and subvert attempts to focus professionals and courts on protecting children and women in private law Children Act

⁵³¹ See *Carp v Byron* [2006] 1 FCR 1 for a case where the violence justified an order for no contact.

⁵³² [2010] 1 FLR 1679.

⁵³³ Hester (2002).

⁵³⁴ [2013] EWCA Civ 1147.

⁵³⁵ [2000] 2 FLR 334, [2000] 2 FCR 404 CA.

⁵³⁶ [2015] EWCA Civ 486.

⁵³⁷ Barnett (2014b).

⁵³⁸ Barnett (2014a). See also Macdonald (2013).

proceedings. These relations of power give rise to a discursive and ideological terrain that downplays, trivialises and erases women's concerns about continued contact with violent fathers and have a powerful normative influence on professional and judicial perceptions and practices. The symbolic and functional power of the presumption of parental involvement may reduce even further the ability of victims/mothers to offer any opposition to father-involvement in child arrangements proceedings by reinforcing 'the deviant nature of failing to abide by [the norm] of the separated but continuing family' . . . We have seen that the parameters of what constitutes the 'safe family man' are expanding to include increasingly abusive, 'dangerous' fathers, a process that may be exacerbated by the presumption of parental involvement.

These concerns will be exacerbated in cases of mediation. The emphasis that is placed on benefits of contact raises the concern that couples will agree contact orders even where there has been domestic violence and contact will not benefit the children. As Jane Craig⁵³⁹ has argued, it should not be assumed that in cases where the couple agree to contact taking place that contact is necessarily beneficial or even safe for the child. As she notes, of the 29 children killed by their fathers during contact in one study, in only three of the cases had contact been ordered by the court. In the rest the mothers had agreed to contact. Kaganas and Piper⁵⁴⁰ fear that:

in some instances, vulnerable mothers will be persuaded by the combination of education, mediation and the new law – all probably giving the same simplified message [that parental involvement of father is always good for children] – to agree to outcomes which do not include the protection they need or which leave their children in a situation which is not in their best interests.

Research by Judith Masson⁵⁴¹ also supported the view that consent orders for contact pay insufficient attention to safeguarding children, particularly in cases where there has been domestic violence. It seems the desire to persuade the parties to reach agreement, and the overemphasis on the benefits of contact, is leading some lawyers to encourage their clients to agree to contact in circumstances where doing so harms or endangers children. There is also disturbing evidence that in cases of mediated agreement mediators sideline and downplay allegations of domestic violence to encourage the parties to agree to contact taking place.⁵⁴²

(vi) Step-parents and hostility

Sometimes the courts are willing to accept the opposition of a step-parent to the contact order as reason enough for denying contact. In *Re SM (A Minor) (Natural Father: Access)*⁵⁴³ the fear that contact with the natural father would destabilise the relationship between the mother and the stepfather was seen as a reason for denying contact. A similar finding was made in *Re B (Contact: Stepfather's Opposition)*,⁵⁴⁴ where the stepfather gave evidence that he would leave the mother if the father were allowed contact with the child. The Court of Appeal accepted that the stepfather was sincere⁵⁴⁵ and noted that, had contact with the father been ordered, the contact would have been very limited. These cases are very controversial, with some arguing that a step-parent's views should not be taken into account. Both cases are from the 1990s and it may well be that a different attitude would be taken if they were heard today.

⁵³⁹ Craig (2007).

⁵⁴⁰ Kaganas and Piper (2015).

⁵⁴¹ Masson (2006d).

⁵⁴² Trinder, Jenks and Firth (2010).

⁵⁴³ [1996] 2 FLR 333, [1997] 2 FCR 475.

⁵⁴⁴ [1997] 2 FLR 579, [1998] 3 FCR 289.

⁵⁴⁵ Evidence was given that his attitude was common among the Asian community.

(vii) Indirect contact

Even if direct contact is not appropriate, the court will make an order for indirect contact in all but exceptional cases.⁵⁴⁶ That can take the form of letters, texts, Skype or e-mails.⁵⁴⁷ If necessary a third party can be asked to pass on the communications to ensure there is no contact between the parents.⁵⁴⁸ In *Re L (Contact: Genuine Fear)*,⁵⁴⁹ indirect contact was ordered even though the mother suffered a 'phobia' of the father (he had been a Hell's Angel who had stabbed his ex-wife, and her solicitor and boyfriend). Although it was felt that the 'phobia'⁵⁵⁰ meant that direct contact could not take place, this was no reason for denying indirect contact. The judge asked for professional help in ensuring the indirect contact took place because it was feared that the mother might destroy any correspondence. Only very rarely will the court not even order indirect contact. In *Re C (Contact: No Order for Contact)*⁵⁵¹ the child was terrified of his father and destroyed all letters sent by the father. This persuaded Connell J to make an order which prohibited indirect contact between the father and the child.⁵⁵²

(viii) Enforcement of CAO orders

There is much debate over how the court should enforce contact.⁵⁵³ For example, if a mother refused to permit a father to have contact with a child, despite the existence of a contact order, what should be done? Before considering the options two points must be made. First, it is for the person seeking to enforce the order to prove that the order was breached.⁵⁵⁴ Second, as already discussed, the definition of a CAO makes it very difficult to know what is required of any parent under the order. It was suggested above that only a parent who actively prevents contact may be in breach of it. A parent who fails to facilitate it is not.

In recent years there has been a concerted effort to improve attempts to enforce contact. Ward LJ in *Re M (Contact Dispute: Court's Positive Duty)* held:

Where, as in this case, the court has the picture that a parent is seeking, without good reason, to eliminate the other parent from the child's, or children's, lives, the court should not stand by and take no positive action. Justice to the children and the deprived parent, in this case the mother, requires the court to leave no stone unturned that might resolve the situation and prevent long-term harm to the children.⁵⁵⁵

However, at the same time there is a recognition that the use of the law may not be the most effective way of enforcing contact orders. In *Re C (A Child)*⁵⁵⁶ Munby LJ observed:

The resumption of contact, which is so much in C's interests and which the mother so ardently desires, is more likely to be achieved by therapy than by further litigation at this stage.

⁵⁴⁶ *Re K (Contact: Mother's Anxiety)* [1999] 2 FLR 703; *Re F (A Child) (Indirect Contact through Third Party)* [2006] 3 FCR 553.

⁵⁴⁷ *A Local Authority v A, B and E* [2011] EWHC 2062 (Fam).

⁵⁴⁸ *Re F (A Child) (Indirect Contact through Third Party)* [2006] 3 FCR 553.

⁵⁴⁹ [2002] 1 FLR 621.

⁵⁵⁰ Bruce Blair QC described her fears as 'irrational', perhaps surprisingly.

⁵⁵¹ [2000] Fam Law 699.

⁵⁵² See Perry and Rainey (2007) for a discussion of the use of indirect contact orders.

⁵⁵³ Smart and Neale (1997).

⁵⁵⁴ *Re H (Contact: Adverse Findings of Fact)* [2011] EWCA Civ 585.

⁵⁵⁵ [2006] 1 FLR 621 at para 41.

⁵⁵⁶ [2011] EWCA Civ 521, para 47.

In *Re Q (A Child)*⁵⁵⁷ an expert centre was to provide a family with therapy to enable contact to take place. The centre said the therapy was most likely to succeed if litigation was not on-going. The Court of Appeal upheld the judge's approach of halting litigation to give the therapy a chance of success.

The greater efforts taken by the court to enforce contact are a response both to judicial acceptance that previously not enough had been done to ensure the child saw both parents⁵⁵⁸ and also to the Human Rights Act 1998. Recently, in *Re C (A Child)*⁵⁵⁹ Munby LJ thought that it could be helpful to look at the issue in terms of the human rights of the parties. He helpfully summarised the position as it would be understood under the Human Rights Act 1998, relying on the leading cases of *Hokkanen v Finland*,⁵⁶⁰ *Glaser v UK*,⁵⁶¹ and *Kosmopoulou v Greece*.⁵⁶²

- (i) Contact between parent and child is a fundamental element of family life and is almost always in the interests of the child.
- (ii) Contact between parent and child is to be terminated only in exceptional circumstances, where there are cogent reasons for doing so and when there is no alternative. Contact is to be terminated only if it will be detrimental to the child's welfare.
- (iii) There is a positive obligation on the State, and therefore on the judge, to take measures to maintain and to reconstitute the relationship between parent and child, in short, to maintain or restore contact. The judge has a positive duty to attempt to promote contact. The judge must grapple with all the available alternatives before abandoning hope of achieving some contact. He must be careful not to come to a premature decision, for contact is to be stopped only as a last resort and only once it has become clear that the child will not benefit from continuing the attempt.
- (iv) The court should take a medium-term and long-term view and not accord excessive weight to what appear likely to be short-term or transient problems.
- (v) The key question, which requires 'stricter scrutiny', is whether the judge has taken all necessary steps to facilitate contact as can reasonably be demanded in the circumstances of the particular case.
- (vi) All that said, at the end of the day the welfare of the child is paramount; 'the child's interest must have precedence over any other consideration'.

The Human rights dimension was taken up in the following important decision.

CASE: *Re A (A Child)* [2013] EWCA Civ 1104

The mother and father separated when their daughter was one year old. There then followed around 100 hearings involving disputes over where the daughter should live and what contact arrangements there should be. She spent most of the time with the mother. The mother had been consistently opposed to contact and sought to prevent it. The limited contact that took place was largely positive.

When the girl reached the age of 13 she started to strongly oppose contact. Although the judge was satisfied that the father was commendable and unimpeachable, it was held

⁵⁵⁷ [2015] EWCA Civ 991.

⁵⁵⁸ *Re D (A Child) (Intractable Contact Dispute: Publicity)* [2004] 3 FCR 234.

⁵⁵⁹ [2011] EWCA Civ 521, para 47.

⁵⁶⁰ [1996] 1 FLR 289, [1995] 2 FCR 320.

⁵⁶¹ [2000] 3 FCR 193.

⁵⁶² [2004] 1 FCR 427.

that all means of enabling meaningful contact to take place had been extinguished and given the considerable weight that had to be placed on the daughter's views the court 'had to accept failure'. There would be no contact and no further applications would be permitted until the girl was 16.

The father appealed to the Court of Appeal. The court acknowledged that the case represented a failure of the family justice system. As Aitken LJ put it:

It is tragic to have to agree with the judge that the Family Justice System has failed the whole family, but particularly M, whose childhood has been irredeemably marred by years of litigation. As a result of the system's failure, she has suffered the lack of a proper relationship with her father during her childhood years. Yet he, throughout, has acted irreproachably.

The court confirmed that the child's welfare was the court's paramount consideration in all matters relating to contact. The wishes of the child were a relevant factor, to be considered. The court was concerned that in enforcing contact the view of the parent with whom the child lived should not dominate:

Where, as in the present case, there is an intractable contact dispute, the authorities indicate that the court should be very reluctant to allow the implacable hostility of one parent to deter it from making a contact order where the child's welfare otherwise requires it . . . In such a case contact should only be refused where the court is satisfied that there is a serious risk of harm if contact were to be ordered.

The Court of Appeal emphasised that judges in contact cases had to ensure that the article 6 and article 8 rights of the parties were respected. In this case the requirements of procedural fairness in the enforcement of orders had not been met. MacFarlane LJ explained this conclusion was not based on a particular decision in the litigation but rather an overall look at what had happened:

The finding that I have made is based in part upon the bald facts which were recited at the beginning of this judgment: this is an unimpeachable father, who has been prevented from having effective contact with a daughter who has enjoyed seeing him, in circumstances where the child's mother and primary carer has been held to be implacably opposed to that contact. In ECHR terms, there can be no dispute that the issues in this case engaged the Art 8 right to family life of M and each of her parents. No facts have been established to support a finding that, in terms of Art 8(2), it was 'necessary' or proportionate to refuse contact in order to protect the 'health' or 'the rights and freedoms' of others.

He went on to explain that if an order has been breached:

the judge must, in the absence of good reason for any failure, support the order that he or she has made by considering enforcement, either under the enforcement provisions in CA 1989, ss 11J-11N or by contempt proceedings.

In an important article responding to this case John Eekelaar⁵⁶³ suggests that:

rather than being an example of 'system failure' as described by the court, the case might be seen as a rare, but predictable, consequence of the normal functioning of the system, just as one might view the rare acquittal of a guilty person in a criminal justice system based on the presumption of innocence. It also expresses some doubt whether the procedures can be so readily seen as a violation of the European Convention.

⁵⁶³ Eekelaar (2014a).

As he points out, the courts need to respond to the 'shifting undercurrents of individual behaviours'. As he explains this case involved a girl whose views developed and matured as she grew up, and a mother who had medical and emotional difficulties. He claims:

It may be over-optimistic, and possibly undesirable, to expect rapid resolution in some family disputes. Observations of judges in lower courts showed they often seek to move parties, step by step, towards agreed solutions sensitive to changing family circumstances rather than to impose outcomes rapidly.

It is common and desirable to allow the courts to find ways of establishing and building up trust between the parties. Only if that happens can effective and strong contact take place. This might well involve 'trial and error' and human nature means that attempts to establish trust will fail. The fact this may involve repeated attempts over the years which are not ultimately successful does not mean that the approach of the courts was misguided.

The court categorised this case as one of an unimpeachable father and obdurate mother. That seems a gross simplification. The father was charged with assault after pinching the girl and giving her a bruise. The mother was beset with serious health issues. The mother had for some time allowed contact to take place. As Eekelaar notes, in this case at various stages there was contact, indeed the daughter lived with the father for nearly a year, and there would have been reasons for optimism and encouraging the parties to develop trust, rather than taking a harsh line whenever an order was not complied with. The mother's objections largely centred on overnight contact, not all contact. These points are made simply to suggest this case was far more complex than one in which a hostile mother was viciously stopping the father seeing his child.

A further important point in this case is that the court was not stopping the child and father seeing each other. There was no order prohibiting contact, simply the courts did not compel it. It was the objections of the child, rather than anything the court was doing, which prevented further contact. Eekelaar therefore questions whether the courts were interfering with the right to family life of the father. It was the daughter's decision not to see the father which meant he did not have a relationship with her, not anything the court did. This was not a case like *Kopf and Liberta v Austria*⁵⁶⁴ where the courts would not hear applications by the foster parents for contact and in which the court held there was a breach of article 8. Quite the opposite – the courts were constantly hearing applications on this case.

It is helpful to look at what kind of cases come to the courts for enforcement. In their study of conflicted contact cases Trinder *et al.*⁵⁶⁵ found that conflicted contact cases fell within four categories:

1. Conflicted, where 'intense competition or chronic levels of mistrust between the parents meant that they were unable to work together to implement the court order';
2. Risk/safety, where 'one or both parents raised significant adult and/or child safeguarding issues, most commonly domestic violence, child physical abuse and neglect, alcohol and drug abuse or mental health issues';
3. Refusing, 'involving an apparently appropriate and reasoned rejection of all or some contact by an older child (10+). The refusal appeared to reflect problematic behaviours/lack of sensitivity by the non-resident parent;

⁵⁶⁴ (App 1598/06) [2012] 1 FLR 1199.

⁵⁶⁵ Trinder *et al.* (2013).

4. Implacably hostile/alienating, where there was 'sustained resistance to contact by the resident parent. The resistance appeared unreasonable and was not a response to significant safety concerns or the problematic behaviour of the other parent. In some cases the resident parent may have influenced the child so that the child refused all contact but without the well-founded reasons that characterised the refusing cases'.

Trinder *et al.* estimated that only 4 per cent fell into this last category. The vast majority of the cases fall into the first three cases.

Despite the decision in *Re A (A Child)*⁵⁶⁶ there will be cases where the court will decide that all reasonable options to enforce have been tried and the time has come to stop seeking to enforce contact. As the Court of Appeal in *Re W (Contact Dispute) (No. 2)*⁵⁶⁷ put it, the court had to accept 'the facts as they were', rather than what they would like them to be. There the children had consistently refused to participate in contact, despite the intervention of different professionals. There was nothing the court could do.

We will look at the legal options available before returning to the question of what the legal response ought to be.

(a) Imprisonment

One option is imprisonment, after all that is a typical response to breach of a court order. In *A v N (Committal: Refusal of Contact)*,⁵⁶⁸ it was confirmed that, when considering imprisonment, the welfare of the child was a material consideration but was not the paramount consideration.⁵⁶⁹ Holman J accepted that the daughter would suffer if the mother were imprisoned but held that this was not due to the law's approach but that 'this little child suffers because the mother chooses to make her suffer'.⁵⁷⁰ However, in more recent cases the courts have sought to avoid such a drastic conclusion. In *Re F (Contact: Enforcement: Representation of Child)*,⁵⁷¹ where the baby suffered cerebral palsy, it was held that the harm to the child if the mother was imprisoned was such that it would be inappropriate to attach a penal notice to a contact order. In *Re K (Children: Committal Proceedings)*⁵⁷² the Court of Appeal emphasised that imprisonment of the resident parent would infringe the article 8 rights of both the mother and child and therefore before committal the court should ensure that the committal is justifiable under article 8(2).⁵⁷³ The Court of Appeal in *Re M (Contact Order: Committal)*⁵⁷⁴ stated that, before committal to prison, other remedies such as further contact orders, a fine,⁵⁷⁵ family therapy⁵⁷⁶ and even changing residence should be explored.⁵⁷⁷ In *Re A and B (Contact) (No. 1)*⁵⁷⁸ where the children had become strongly opposed to contact with the father, as a result of the mother's attitude, imprisoning the mother was seen as counter-productive as likely to set them even more strongly against the father. A later hearing of that case, *Re A and B (Contact) (No. 2)*,⁵⁷⁹ contemplated but ultimately rejected making a

⁵⁶⁶ [2013] EWCA Civ 1104.

⁵⁶⁷ [2014] EWCA Civ 401.

⁵⁶⁸ [1997] 1 FLR 533, [1997] 2 FCR 475.

⁵⁶⁹ This was approved by the Court of Appeal in *M v M (Breaches of Orders: Committal)* [2005] EWCA Civ 1722.

⁵⁷⁰ See also *F v F (Contact: Committal)* [1998] 2 FLR 237, [1999] 2 FCR 42.

⁵⁷¹ [1998] 1 FLR 691, [1998] 3 FCR 216.

⁵⁷² [2003] 2 FCR 336.

⁵⁷³ The non-resident parent's and child's rights under article 8 must also be considered.

⁵⁷⁴ [1999] 1 FLR 810.

⁵⁷⁵ *Re M (Contact Order)* [2005] 2 FLR 1006.

⁵⁷⁶ *Re S (Uncooperative Mother)* [2004] EWCA Civ 597.

⁵⁷⁷ Baroness Hale suggested that this was more often threatened than actually done.

⁵⁷⁸ [2013] EWHC 2305 (Fam).

⁵⁷⁹ [2013] EWHC 4150 (Fam).

care order on the basis that the mother's hostility to contact was causing the children significant harm, although a supervision order had been made. The litigation ended with indirect contact being the best the court could provide the father.⁵⁸⁰ It was clear that removing the children to foster parents was an option that could be used in some cases.

Occasionally the courts are willing to imprison a resident parent who is refusing to allow contact. In *Re S (Contact Dispute: Committal)*⁵⁸¹ Hedley J was willing to uphold a committal to prison for seven days after a mother failed to allow a father to see his six-year-old daughter. It was a last resort, he accepted, but respect for the rule of law required obedience to orders of the court, and punishment if they were not obeyed. In *B v S (Contempt: Imprisonment of Mother)*⁵⁸² the Court of Appeal stated that the 'days were long gone' when a mother could assume her care of the child protected her from imprisonment following breach of an order. Nevertheless, the court emphasised that the interference in the baby's human rights caused by imprisoning the mother had to be justified. Not surprisingly, a study into methods used to enforce contact found it rare for the 'nuclear option' of imprisonment to be used.⁵⁸³ Not only is imprisonment likely to cause the child serious harm it is hard to believe it will do much to strengthen the relationship between the parties and enable contact to progress well.

(b) Fine

Another option for a court dealing with a parent who has failed to comply with a CAO is impose a fine. This is also rarely used.⁵⁸⁴ Many mothers cannot afford to pay a fine.⁵⁸⁵ Such an order is only likely to increase antagonism.

(c) Unpaid work

If the court has made a CAO and is satisfied beyond reasonable doubt⁵⁸⁶ that a person has failed to comply with that order, the court may make an enforcement order, unless the court is satisfied that the person has a reasonable excuse for not complying with the order.⁵⁸⁷ The resident parent, the parent who is to have contact or the child⁵⁸⁸ can apply for the enforcement order. The enforcement order will require the person breaching the contact order to undertake unpaid work. Presumably this will be of the kind undertaken by a person convicted of a criminal offence who is required to serve a community sentence.

It should be emphasised that it must be shown beyond reasonable doubt that the contact order has been breached. This is the criminal burden of proof which is, perhaps, a recognition that the unpaid work order is a punishment. The defence of reasonable excuse will no doubt be often relied upon. Whether fear of violence, particularly if the court believes it to be genuine but unjustified, is a reasonable excuse is an interesting question.⁵⁸⁹

Section 11L of the Children Act 1989 opens:

⁵⁸⁰ *Re A and B (Contact) (No. 4)* [2015] EWHC 2839 (Fam).

⁵⁸¹ [2004] EWCA Civ 1790.

⁵⁸² [2009] 2 FLR 1005.

⁵⁸³ Trinder *et al.* (2013).

⁵⁸⁴ Trinder *et al.* (2013).

⁵⁸⁵ Butler-Sloss P in *Re S (A Child) (Contact)* [2004] 1 FCR 439 at para 29.

⁵⁸⁶ *Re R (Costs: Contact Enforcement)* [2011] EWHC 2777 (Fam).

⁵⁸⁷ The person claiming to have a reasonable excuse has the burden of proving this on the balance of probabilities: CA 1989, s 11J(4).

⁵⁸⁸ The child will require leave: s 11J(6).

⁵⁸⁹ CA 1989, s 11K states that an enforcement order cannot be made if the individual has not been served with the order.

LEGISLATIVE PROVISION

Children Act 1989, section 11L

- (1) Before making an enforcement order as regards a person in breach of a contact order, the court must be satisfied that—
- (a) making the enforcement order proposed is necessary to secure the person's compliance with the contact order or any contact order that has effect in its place;
 - (b) the likely effect on the person of the enforcement order proposed to be made is proportionate to the seriousness of the breach of the contact order.

The court is required specifically to consider the effect of the order on the individual; in particular, whether it will interfere with his or her religious beliefs, employment or education.⁵⁹⁰ Most significantly, s 11L(7) of the CA 1989 states: 'In making an enforcement order in relation to a contact order, a court must take into account the welfare of the child who is the subject of the contact order.' Notably, this does not require the court to treat the welfare of the child as the paramount consideration. The child's welfare must only be taken into account. The Government has considered, but rejected, calls for curfews, removal of passports or driving licences to be added to the list of sanctions.⁵⁹¹

The three options discussed so far are essentially putative. They punish the parent obstructing contact but do not provide a positive way forward. Given the research by Trinder *et al.*⁵⁹² into the kind of cases where enforcement proceedings are brought it seems that punishment is rarely the correct response. If long-term contact is to progress well it is important to establish a degree of trust between the parents so a more positive response is required. The other orders to be considered next seek to promote contact, rather than punish.

(d) Change of residence

If a mother is refusing to comply with a CAO, the court may amend the CAO so that the child lives with the other parent, if they are willing to allow contact. Of course, that will only be an option if the making of the order is in the child's welfare. A court which believes that it is important that the child retain a relationship with both parents, may determine that the child will be better off with the father who will allow contact, than with the mother who will not.⁵⁹³ However, changing residence was described by the Court of Appeal in *Re A (Residence Order)*⁵⁹⁴ as 'a judicial weapon of last resort'⁵⁹⁵ and in *Re B (A Child)*⁵⁹⁶ as 'a dire sanction'. Baroness Hale stated that transferring residence is more often used as a threat, than is carried out.⁵⁹⁷ Colderidge J described it as 'putting a gun to a parent's head to force her or him to rethink'.⁵⁹⁸ Many resident parents who are told that if they do not allow contact the children

⁵⁹⁰ CA 1989, s 11L(4).

⁵⁹¹ Trinder *et al.* (2013).

⁵⁹² Trinder *et al.* (2013).

⁵⁹³ *Re L* [2014] EWCA Civ 167.

⁵⁹⁴ [2010] 1 FLR 1083.

⁵⁹⁵ Paragraph 18.

⁵⁹⁶ [2012] EWCA Civ 858.

⁵⁹⁷ In *Re G (Children) (Residence: Same-Sex Partner)* [2006] UKHL 43 at para 42.

⁵⁹⁸ *Re A (Suspended Residence Order)* [2010] 1 FLR 1679.

will be removed to the other parent will be thereby persuaded to allow contact.⁵⁹⁹ In *Re W (Residence: Leave to Appeal)*⁶⁰⁰ the Court of Appeal warned against using a change in residence to punish the mother, and emphasised it should only be used where it would promote the welfare of the child. In that case the court, having decided that transferring residence to the father was not beneficial, ordered that the residence be transferred to the grandmother, who was willing to facilitate contact with both the mother and father.

(e) A contact activity direction

This was introduced by the Children and Adoption Act 2006 and is designed to encourage a couple to resolve their disagreements. A contact activity direction is a direction to engage in the following activities:

LEGISLATIVE PROVISION

Children's Act 1989, section 11A(5)

- (a) programmes, classes and counselling or guidance sessions of a kind that—
 - (i) may assist a person as regards establishing, maintaining or improving contact with a child;
 - (ii) may, by addressing a person's violent behaviour, enable or facilitate contact with a child;
- (b) sessions in which information or advice is given as regards making or operating arrangements for contact with a child, including making arrangements by means of mediation.⁶⁰¹

These must not include medical or psychiatric examination, assessment or treatment, or the taking of medication.⁶⁰² Rather they will require a person to attend group sessions, lectures or individual meetings in an attempt to encourage the parties to reach an appropriate agreement over contact.⁶⁰³ Domestic Violence Perpetrator Programmes and Separated Parent Information Programmes have been developed for use in contact activity directions.

The parties may both be required to attend or may attend separately. Children cannot be required to attend.⁶⁰⁴ In deciding whether to make a contact activity direction, the welfare of the child is the paramount consideration.⁶⁰⁵

Section 11B(1) of the Children Act 1989 states: 'A court may not make a contact activity direction in any proceedings unless there is a dispute as regards the provision about contact that the court is considering whether to make in the proceedings.' Presumably, this is designed to prevent a court making a contact activity direction where the parties have come to an agreement with which the court is unhappy: for example, where the couple agree there should be only negligible contact, but the court would like to see more. However, in such a case it could be argued under s 11B(1) that there is a dispute between the judge and the parties and so a

⁵⁹⁹ In *Re M (Contact)* [2012] EWHC 1948 (Fam).

⁶⁰⁰ [2010] EWCA Civ 1280.

⁶⁰¹ See Perry and Rainey (2007) for a welcome response to such orders.

⁶⁰² CA 1989, s 11A(6).

⁶⁰³ See Rhoades (2003) for the negative Australian experience of these, although P. Parkinson (2006) appears more positive about it.

⁶⁰⁴ CA 1989, s 11B(2), unless they are the parents of the child whose case is before the court.

⁶⁰⁵ CA 1989, s 11A(9).

direction can be made; that interpretation would probably be contrary to the intention of the drafters of the legislation.

Before making a contact activity direction, the court must be satisfied of three matters as set out in s 11E:

LEGISLATIVE PROVISION

Children's Act 1989, section 11E

- (1) The first matter is that the activity proposed to be specified is appropriate in the circumstances of the case.
- (2) The second matter is that the person proposed to be specified as the provider of the activity is suitable to provide the activity.
- (3) The third matter is that the activity proposed to be specified is provided in a place to which the individual who would be subject to the direction (or the condition) can reasonably be expected to travel.

The court is also required to consider the likely effect of imposing the condition on the individual;⁶⁰⁶ in particular, whether there will be a conflict with religious beliefs, employment or education.⁶⁰⁷ A fee may be charged for the contact activities, although help may be provided to those who cannot afford it.⁶⁰⁸

This section is an acknowledgement by the law that formal court-based intervention may not be the most effective way of dealing with a hotly contested contact dispute. It is better to assist and inform the couple so that they can reach an agreement between themselves. It may be questioned whether or not telling parents about the importance of putting children first will be of much assistance. Generally, couples accept this; where they are in dispute is whether contact will promote the welfare of the child.⁶⁰⁹ The studies from the pilot projects on family resolution of contact disputes is mixed. Only half of the parents completed the programme, but those who did found the group sessions useful, with a change in form of contact taking place in two-thirds of cases.⁶¹⁰ The researchers concluded that the programmes offered little for the really hard cases.⁶¹¹ However, it seems that around 40 per cent return to court within two years because the agreement has broken down.⁶¹²

(f) Contact activity condition

This matches the contact activity direction, but is used where the court has made a contact order.⁶¹³ The same restrictions and requirements apply to a contact activity condition that apply to a contact activity direction. The condition must specify the activity and who is to provide the activity.⁶¹⁴ The order can require the resident parent, the parent who will be having contact or both to attend a contact activity.

⁶⁰⁶ CA 1989, s 11E(5).

⁶⁰⁷ CA 1989, s 11E(6).

⁶⁰⁸ CA 1989, s 11F.

⁶⁰⁹ Smart (2006); Kaganas and Day Sclater (2004).

⁶¹⁰ Trinder *et al.* (2006).

⁶¹¹ Trinder *et al.* (2006).

⁶¹² Trinder and Kellett (2007).

⁶¹³ CA 1989, s 11C.

⁶¹⁴ CA 1989, s 11C(4).

One option may be to encourage the parties to attend an education programme to inform them of the benefits of contact. In an evaluation of one such programme it was found that it led to no change in the amount of contact nor in the levels of conflict between the parents.⁶¹⁵ Given the complexity of the kinds of cases where the courts are asked to enforce contact, as revealed in the Trinder *et al.* study,⁶¹⁶ it is perhaps not surprising that they cannot be readily involved by classes.

(g) *Monitoring contact activity conditions or directions*

When making a contact activity condition or direction the court can require a family proceedings officer to monitor whether the condition or direction is being complied with and to report to the court any failure to attend an activity.

(h) *Monitoring contact*

When the court makes or varies a contact order it can require a family proceedings officer to monitor whether the order is complied with by the resident parent or the parent who is to have contact with the child.⁶¹⁷ The court can require the officer to report on such non-compliance as the court requests.

(i) *Contact warning notices*

Section 11I of the Children Act 1989 states: 'Where the court makes (or varies) a contact order, it is to attach to the contact order (or the order varying the contact order) a notice warning of the consequences of failing to comply with the contact order.' No doubt this will often be backed up with an oral warning given by the judge to the parties, where appropriate.

(j) *Compensation for financial loss*

Section 11O(2) of the Children Act 1989 states:

LEGISLATIVE PROVISION

Children Act 1989, section 11O(2)

(1) If the court is satisfied that—

- (a) an individual has failed to comply with the contact order, and
- (b) a person falling within subsection (6) has suffered financial loss by reason of the breach,

it may make an order requiring the individual in breach to pay the person compensation in respect of his financial loss.

The people falling within subsection (6) are the resident parent, the parent who is to have contact with the child, a person subject to a condition attached to a contact order or the child.⁶¹⁸ The individual is not required to pay if they can show that they have reasonable excuse for failing to comply with the contact order.⁶¹⁹ The amount payable can be any sum

⁶¹⁵ Smith and Trinder (2012).

⁶¹⁶ Trinder *et al.* (2013).

⁶¹⁷ CA 1989, s 11H.

⁶¹⁸ CA 1989, s 11O(6). The child can apply only with leave and must have sufficient understanding to bring the proceedings (s 11O(7)).

⁶¹⁹ CA 1989, s 11O(3). The individual must have been served with a copy of the order: s 11P.

up to the total lost.⁶²⁰ In deciding whether to make an order, the court must take into account the welfare of the child.⁶²¹ Again, note that the welfare of the child is not the paramount consideration.

This provision deals with the situation where the non-resident parent buys tickets in order to take the children on an outing during a contact session, but the resident parent then refuses to hand the children over, for no good reason. In such a case the court could now order the resident parent to compensate the non-resident parent for any financial loss. It should be emphasised that, as it is not possible to make an order requiring the non-resident parent to have contact with the child if the non-resident parent does not turn up for a contact session, technically speaking that is not a breach of the order. It appears, therefore, that the resident parent cannot seek compensation for expenses they have incurred on the assumption that the non-resident parent will have the children for the day. Possibly the court will take a broad interpretation of the statute and award damages in such a case.

(k) Family assistance orders

The Children and Adoption Act 2006 has extended the provisions dealing with a family assistance order so that they can be useful in the context of a disputed contact case. It inserts a new s 16(4A) of the Children Act 1989 which means that on making a family assistance order the court officer can 'give advice and assistance as regards establishing, improving and maintaining contact to such of the persons named in the order as may be specified in the order'. It also creates s 16(6) of the Children Act 1989 under which a court officer can be required to report to the court on matters relating to contact.

Academics have hotly contested the correct way of responding to a breach of a contact order:

DEBATE

How should contact orders be enforced, if at all?

Here are some of the views that have been expressed on how (if at all) contact should be enforced:

1. Smart and Neale⁶²² have suggested: 'Questions must be asked about where family law is going, because in its current form the law is beginning to look like a lever for the powerful to use against the vulnerable, rather than a measure to safeguard the welfare of children.' They see these cases as too often involving strong fathers using the law on contact as a tool against mothers they have abused or terrified. Contact can then become a way of continuing to exercise power over the mothers. Bainham has maintained that such an argument is in danger of equating the interests of children with those of their mothers.⁶²³ Helen Reece puts the argument in terms of enforcement of contact maintaining gender roles:

These critiques point to the division of labour that still exists within the intact traditional nuclear family, characterised primarily by women taking the main responsibility for childcare, and secondarily by gendered roles in relation to shared childcare, with fathers tending to perform discrete, fun activities (such as taking children to the park) and mothers

⁶²⁰ CA 1989, s 11O(9).

⁶²¹ CA 1989, s 11O(14).

⁶²² Smart and Neale (1997: 336).

⁶²³ Bainham (1998b: 7).

tending to remain in charge of the more repetitive, continuous and mundane day-to-day care. They argue that the strong assumption of substantial post-separation contact between fathers and children is one mechanism by which the law ensures that parental separation does not fundamentally disrupt this division of labour: instead, the nuclear family is replicated post-separation.⁶²⁴

Felicity Kaganas⁶²⁵ believes that the law sees the problem in disputed contact cases being the mother opposing contact, rather than recognising that the father may be to blame.

For some years mothers who oppose contact or disobey orders have been construed as the problem. What has changed is the way in which the legislature, and the courts themselves, have decided how to approach this problem. The solution chosen is to enable family courts to act in a way analogous to problem-solving courts. What family courts are 'for', now, includes not only seeking to persuade parents (mainly mothers) to comply but also deciding to refer them to services so that they address their underlying problems. Courts have become part of a therapeutic network being deployed to change attitudes and behaviour. Conversely, helping agencies have now become part of the disciplinary framework governing families, and in particular resident mothers. These 'helping' services have in effect been incorporated into the family justice toolkit, backed up by punishment.

2. Some groups promoting the interests of fathers have claimed that the non-enforcement of contact orders means that they are not worth the paper they are written on. If court orders are not enforced the law is seen as powerless and unwilling to enforce people's rights.⁶²⁶ Opponents of this view may argue that if contact has taken place only following threats of imprisonment or pressure from judges or professionals there will not be effective contact.⁶²⁷
3. Bainham suggests that there must be an attempt to enforce contact in order to send the message that contact is an important right of the child which the law will protect.⁶²⁸ He writes:

Unless the courts are seen to be taking the contact issue seriously, the message of the law that contact is an important right of the child may be lost. And caution needs to be exercised in equating too readily the interests of women (usually the so-called 'primary carers') and children in this matter. Moreover . . . the ECHR requires the State to take action to enforce orders for contact.⁶²⁹

4. Even if at the end of the day contact orders are not enforced, they should be made and steps should be taken to try to enforce them, he argues. Carol Smart⁶³⁰ has argued against the use of rights in this context. She argues that children see contact issues not in terms of rights, but in terms of care and love. We need a law reflecting those values, rather than emphasising rights.
5. John Eekelaar has warned: 'it is important not to jump from the fact that an outcome is optimally desirable to the conclusion that it should, therefore, be legally enforceable'.⁶³¹ It certainly seems odd to enforce an order designed to further a child's welfare in a way

⁶²⁴ Reece (2006b: 547).

⁶²⁵ Kaganas (2010b).

⁶²⁶ Bainham (2003a).

⁶²⁷ Herring (2003a).

⁶²⁸ Bainham (2003b).

⁶²⁹ Bainham (2005: 160).

⁶³⁰ Smart (2004).

⁶³¹ Eekelaar (2002b: 272).

that harms a child. However, the law might be justified by the argument that the imprisonment of the mother in the case harms the child, but this promotes the welfare of children generally by encouraging parents to obey court orders.

6. Some commentators⁶³² have argued that where contact orders are ignored the solution lies not in imprisonment but in the use of extra-legal facilities. In *Re H (A Child) (Contact: Mother's Opposition)*⁶³³ the mother opposed contact. The Court of Appeal took the view that the mother's opposition was without foundation and amounted to an attempt to blackmail the court. The Court of Appeal sought the assistance of a psychiatrist who was to assist the family and advise on how contact could be progressed. This indicates a recognition that some cases of this kind involve emotional and psychological difficulties more suitable for the help of a counsellor or psychiatrist than a judge or a lawyer.
7. Many commentators take the view that there is little the law can do in these cases.⁶³⁴ We have to acknowledge that family law cannot always provide an answer. A recent study⁶³⁵ found that couples who rely on the law to resolve their contact disputes risk making matters worse for everyone concerned. By contrast, those parents who resolve matters without recourse to the law avoid stress and distress. The researchers argued that in dealing with contentious contact cases it would be more profitable to spend time and money on services to improve the relations between the parents and children, rather than on lawyers and the legal process.
8. Several commentators⁶³⁶ have noted the contrast in treatment of resident and non-resident parents. If the resident parent deprives the child of the benefit of contact, he or she risks imprisonment. However, if the non-resident parent does not want contact with the child (equally depriving the child of the benefit of contact), he or she will not face any legal sanction. Both are interfering equally in the child's right of contact with both parents, but only the resident parent is punished.
9. MacFarlane LJ in *Re W (Children)*⁶³⁷ in a useful contribution to the debate has focused on parental responsibility. He argues:

In all aspects of life, whilst some duties and responsibilities may be a pleasure to discharge, others may well be unwelcome and a burden. Whilst parenting in many respects brings joy, even in families where life is comparatively harmonious, the responsibility of being a parent can be tough. Where parents separate the burden for each and every member of the family group can be, and probably will be, heavy. It is not easy, indeed it is tough, to be a single parent with the care of a child. Equally, it is tough to be the parent of a child for whom you no longer have the day-to-day care and with whom you no longer enjoy the ordinary stuff of everyday life because you only spend limited time with your child. Where all contact between a parent and a child is prevented, the burden on that parent will be of the highest order. Equally, for the parent who has the primary care of a child, to send that child off to spend time with the other parent may, in some cases, be itself a significant burden; it may, to use modern parlance, be 'a very big ask'. Where, however, it is plainly in the best interests of a child to spend time with the other parent then, tough or not, part of the responsibility of the parent with care must be the duty and responsibility to deliver what the child needs, hard though that may be.

⁶³² E.g. Masson (2000b).

⁶³³ [2001] 1 FCR 59.

⁶³⁴ Trinder, Beek and Connolly (2002) emphasise the harm children can suffer due to stress and dispute over contact.

⁶³⁵ Trinder, Beek and Connolly (2002).

⁶³⁶ E.g. Smart and Neale (1997).

⁶³⁷ [2012] EWCA Civ 999. See also *Re D (A Child)* [2014] EWCA Civ.

He is not seeking to enforce this through the law but seeking to encourage an attitude in parents disputing contact to put their responsibilities as parents to promote the welfare of the child to the fore. The difficulty is that in many cases of disputed contact the resident parent is opposing contact precisely because they fear it will harm the child. They will see themselves being responsible parents in seeking to prevent contact.

The Government is consulting on reform of the law on enforcement. It is considering adding 'withholding of passports and driving licences as well as the imposition of a curfew order requiring the parent concerned to remain at a specified address between specified hours' to the penalties available. However, it rejected suggestions that a parent who was preventing having contact would not be required to pay child support.⁶³⁸

Questions

1. *Is the real answer to contact disputes to rely on non-legal remedies, such as counselling and mediation? Is that appropriate in cases of domestic violence?*
2. *Normally, when a court order is deliberately breached imprisonment will follow, so why not in relation to contact orders?*
3. *Would it be better for the courts to be more reluctant to make contact orders, but then stricter in enforcing them?*

Further reading

See **Bainham et al.** (2003) for a useful set of essays on contact. See **Gilmore** (2008b) for an insightful analysis of the data on the benefits of contact.

(ix) Contact centres

There has been increased interest in and use of contact centres.⁶³⁹ These provide a neutral venue in which contact can take place. Although not designed to deal with potentially violent cases,⁶⁴⁰ they are often used by courts and solicitors in cases where the resident parent has concerns over his or her own or his or her child's safety.⁶⁴¹ The contact can be supervised by a social worker or untrained volunteer, who can make sure that there is no abuse of the child. Also it would be possible for the arrangements to be such that the resident parent and contact parent do not meet.

Not everyone is convinced that the use of contact centres is the solution to the intractable problem of contact.⁶⁴² Key to the success of such studies is that they create a safe and pleasant atmosphere for contact. One study suggested that (predictably) resident parents feel that the supervision at such centres is inadequate, while non-resident parents feel that the supervision is unnecessarily invasive and humiliating.⁶⁴³ The study went on to note that in a significant minority of centres the well-being of women and children was being compromised due to a lack of staff and expertise, leading to inadequate supervision.⁶⁴⁴ Indeed, it should be appreciated that

⁶³⁸ Department of Education (2012).

⁶³⁹ Lord Chancellor's Department (2002a); Humphreys and Harrison (2003a). See Wall P. (2010) for guidance on when contact centres should be used.

⁶⁴⁰ A point emphasised by Humphreys and Harrison (2003b).

⁶⁴¹ Humphreys and Harrison (2003a).

⁶⁴² See the concerns in Caffrey (2013) over the lack of listening to children in contact centres.

⁶⁴³ Aris, Harrison and Humphreys (2002).

⁶⁴⁴ There is grave concern over decisions like *Re P (Parental Responsibility)* [1998] 2 FLR 96 where a paedophilic father who had been 'grooming a child' was allowed contact at a contact centre.

in the United Kingdom many contact centres are run in community buildings such as church halls.⁶⁴⁵ It should also be recalled that very young children might require the resident parent to remain in sight during the contact session.⁶⁴⁶

(x) Other relatives

Step-parents⁶⁴⁷ and grandparents⁶⁴⁸ can apply for contact, but there is not the same assumption of the benefits of contact that exists in relation to parents.⁶⁴⁹ Step-parents and grandparents must persuade the court that they have a close relationship with the child and that the child will benefit from continued contact. In *Re W (Contact: Application by Grandparent)*⁶⁵⁰ Hollis J accepted that it can be extremely beneficial for a child to have contact with her grandparents, even if that contact is opposed by the parents. However, some campaigners claim that other judges too readily deny contact to grandparents, especially if that is opposed by the child's parents. Grandparents with an established relationship with a child may be able to claim that they have rights to contact under article 8 of the EHCR, as acknowledged in *Re H(A Child)*.⁶⁵¹

(xi) Duties of contact

Although there has been much discussion of the rights of contact, there has been less about the duties of contact. Yet, as Bainham has pointed out, 'to talk of contact as a *right* of anyone is devoid of meaning unless considered alongside the *obligations* which go with that right'.⁶⁵² Bainham argues that if we acknowledge that children have a right of contact then parents have a duty to exercise it. This is controversial because it suggests that a parent who does not want to have contact with his or her child could be required by a court order (on pain of imprisonment) to have contact.⁶⁵³ Bainham accepts that such a duty may be unenforceable, but this does not mean that the duty should not be recognised as a way of underlining the fact that society values relationships between parents and children. Thorpe LJ in *Re L (A Child) (Contact: Domestic Violence)* suggested that such an order cannot be made: 'The errant or selfish parent cannot be ordered to spend time with his child against his will however much the child may yearn for his company and the mother desire respite.'⁶⁵⁴

Bainham⁶⁵⁵ also controversially suggests that if a parent has a right of contact with a child then the child can be said to be under a duty to permit that contact. Without such a duty, the parent's right is not meaningful. Again, he accepts there may be difficulties in forcing children to see parents they do not want to see, but he suggests attempts should be made to do so. John Eekelaar forcefully rejects the notion that children may be under a duty of contact: 'to put a child under a legal duty to submit to the care and attentions of someone who is not the daily caregiver simply because that person is the child's parent . . . is to put the child under legal constraints based not on the child's interests, but on the demands of adults, or one adult, which have arisen as a result of events in which the child had no part.'⁶⁵⁶

⁶⁴⁵ Maclean and Mueller-Johnson (2003).

⁶⁴⁶ Aris, Harrison and Humphreys (2002) found this to be so in a significant minority of cases.

⁶⁴⁷ *Re H (A Minor) (Contact)* [1994] 2 FLR 776, [1994] FCR 419.

⁶⁴⁸ *Re A (Section 8 Order: Grandparent Application)* [1995] 2 FLR 153, [1996] 1 FCR 467.

⁶⁴⁹ For a useful discussion of grandparents and contact, see Kaganas and Piper (2001).

⁶⁵⁰ [2001] 1 FLR 263.

⁶⁵¹ [2014] EWCA Civ 271. See also *Adam v Germany* [2009] 1 FLR 560.

⁶⁵² Bainham (2003a: 61).

⁶⁵³ See also Wallbank (2010).

⁶⁵⁴ [2000] 4 All ER 609 at pp 637e–f.

⁶⁵⁵ Bainham (2003a).

⁶⁵⁶ Eekelaar (2006b: 68).

(xii) Encouraging contact

The problem of the lack of contact between children and non-resident parents is only partly due to non-resident parents wanting, but not being able to have, contact. A far more common cause of the lack of contact is that non-resident parents do not seek contact with children. It is notable that those who seek to emphasise the right of the child to contact use this right as a means of forcing resident parents (normally mothers) to have contact with the non-resident parents (normally fathers) but arguably more could be done by those wishing to promote the child's rights to contact if those fathers who do not have contact with their children were encouraged to do so.⁶⁵⁷ The reality is that after separation many non-resident fathers find their relationship with their children strained. Further, it is often difficult to fit in contact sessions with the work life of the non-resident parent and the social life of the child.⁶⁵⁸

(xiii) Contact in practice

The statistics suggest that contact arrangements often break down. Eekelaar and Clive⁶⁵⁹ found that although two-thirds of non-residential parents had contact in the first six months, by five years after the divorce only one-third did. However, other studies have shown higher rates of contact. Eekelaar and Maclean in their study found contact rates of 69 per cent where the parents had been married, but 45 per cent where unmarried.⁶⁶⁰ Trinder *et al.*⁶⁶¹ found that for only 27 of the 61 families were contact arrangements 'working'. A study by the Office for National Statistics found that 10 per cent of children saw both parents daily.⁶⁶² Around 30 per cent of resident parents reported that the child never saw the non-resident parent. Poole *et al.*⁶⁶³ found that 59 per cent of non-resident fathers saw their children once a week and 87 per cent said they had some kind of contact. However, all the studies show a decline in the rate of contact as the years since parental separation pass. This drop-off has been explained on three grounds: the first is that some fathers may (falsely) believe they do not have to pay (or can escape payment of) child support if they do not see the child; secondly, some find occasional contact painful;⁶⁶⁴ thirdly, some fathers believe that the child will settle down better if contact is stopped. Another important factor is that the father may remarry or re-partner⁶⁶⁵ and his new partner may discourage contact, especially once the new couple have children of their own. Certainly there are higher rates of non-contact among fathers who have a 'new family'.⁶⁶⁶ Long-term contact works best where both the resident and non-resident parent are committed to making contact succeed and are willing to work through the practical difficulties.⁶⁶⁷

⁶⁵⁷ See Herring (2003a) for a discussion of how the law might do this, including a suggestion of collecting child support more effectively. Where child support is paid, there is evidence that this increases the rate of contact (see Poole *et al.* (2013)), although Australian research is less clear on the link: Fehlberg *et al.* (2013).

⁶⁵⁸ Buchanan and Hunt (2003).

⁶⁵⁹ Eekelaar and Clive (1977).

⁶⁶⁰ Eekelaar and Maclean (1997).

⁶⁶¹ Trinder, Beek and Connolly (2002).

⁶⁶² National Statistics (2008a).

⁶⁶³ Poole *et al.* (2013).

⁶⁶⁴ Trinder, Beek and Connolly (2002) found that children experienced difficulty in establishing a meaningful relationship with the non-resident parent.

⁶⁶⁵ Eekelaar and Maclean (1997) found that sometimes re-partnering encouraged contact and sometimes discouraged it.

⁶⁶⁶ Poole *et al.* (2013).

⁶⁶⁷ Trinder, Beek and Connolly (2002).

(xiv) Reform of the law

As already mentioned, contact disputes are often the most bitter cases. Many believe that too often fathers are denied contact: the courts refuse to order contact, or, where they do, the orders are not enforced. Others claim that the courts too readily order contact, placing mothers and children in danger. In fact, the evidence is that where contact is applied for it is nearly always granted. Where couples negotiate and avoid the need for a court hearing, they nearly always agree some degree of contact.⁶⁶⁸ This shows that the argument that judges are denying fathers contact because they are anti-father is false. In fact, given that around 90 per cent of contact disputes are resolved through negotiations⁶⁶⁹ and only the most contested reach court, the number of applications refused looks worryingly low, especially given the rates of domestic violence and child abuse. A major study of the way contact cases are dealt with found no evidence of bias against fathers. In the very few cases where contact was denied there were very good reasons for this.⁶⁷⁰ In fact, a much stronger case can be made for saying that the legal process is too ready to grant contact than it is for refusing it.

One of the difficulties in reforming this area of the law is that most cases are resolved amicably and reasonably between the parents. Less than 10 per cent of cases reach the court.⁶⁷¹ As the research by Joan Hunt and Liz Trinder shows, what they call 'chronically litigated contact cases'⁶⁷² involving five or more court cases, raise a host of particularly complex issues, with the contact dispute being but one of a range of problems facing the family. Mental health issues, domestic violence, sexual abuse, personality problems, substance misuse, poverty abound. These disputes are not easy to resolve because they are genuinely complex cases.

9 Wardship and the inherent jurisdiction

Learning objective 5

Describe how the courts use wardship and the inherent jurisdiction

The inherent jurisdiction provides the court with powers which do not originate from statute but from the common law.⁶⁷³ The jurisdiction flows from the ancient *parens patriae* jurisdiction which the Crown owes to those subjects who are unable to protect themselves. The classic example of such subjects are chil-

dren. The basis of the jurisdiction is that if a child needs protection the courts should not be inhibited from acting merely because of 'technical' difficulties. It is readily understandable that children should not be left without the protection of the law.⁶⁷⁴ However, there is concern that use of the inherent jurisdiction bypasses the protection of the rights of children and adults in statutes. It is notable that, following the Children Act 1989, there is a limited role for the inherent jurisdiction.

⁶⁶⁸ Hunt and Macleod (2008).

⁶⁶⁹ Hunt and Macleod (2008).

⁶⁷⁰ Hunt and Macleod (2008).

⁶⁷¹ Hunt and Trinder (2011).

⁶⁷² Hunt and Trinder (2011).

⁶⁷³ See Lowe (2012) for a discussion of the modern use of wardship.

⁶⁷⁴ In *W v J (Child: Variation of Financial Provision)* [2004] 2 FLR 300 it was said to be inappropriate to use wardship as a way of getting one parent to pay the other's legal fees because that would not be for the benefit of the child.

The following are examples of cases where wardship has proved useful:

1. Wardship might be appropriate where the parents refuse to consent to medical treatment and it is necessary to take long-term decisions about the child. In *Re C (A Baby)*⁶⁷⁵ a child was abandoned and there was no one with parental responsibility for the child who could be found. Sir Stephen Brown suggested that wardship was useful, especially as the child was severely ill, having developed brain damage after meningitis.⁶⁷⁶
2. Wardship might also be useful if third parties such as the press are intruding on the child's life. A prohibited steps order or specific issue order cannot be obtained against someone who is not exercising an aspect of parental responsibility. Wardship would be able to protect the child as the court has the power under wardship to prevent publicity relating to children.
3. In *Re W (Wardship: Discharge: Publicity)*⁶⁷⁷ a father had care and control of four sons. He permitted the children to talk to the press, which led to the publication of various articles. The father also changed the children's schooling without consulting the mother. The Court of Appeal saw the need for wardship because a specific issue order could not be made which was wide enough – it was not possible to predict how the father might act in the future. It was also thought beneficial that the Official Solicitor could remain involved in the case and act as a buffer between the parents.
4. In *Re KR (Abduction: Forcible Removal by Parents)*⁶⁷⁸ wardship was used to protect a child who, it was feared, was about to be removed from the jurisdiction to be forced to enter an arranged marriage. Although wardship can only be used for children habitually resident in the jurisdiction.⁶⁷⁹
5. Wardship has been found useful in cases involving children of asylum seekers where there are concerns about their welfare.⁶⁸⁰
6. In *T v S (Wardship)*⁶⁸¹ there was incessant bitter disputes between the parents over nearly every issue to do with the child's upbringing. A wardship order was made so that the court could make decisions about the child and bring the warring to an end. The court would decide with which parent the child should live and what contact arrangements should take place.

The exercise of the inherent jurisdiction is quite different from wardship. The order will simply resolve a single issue relating to the child and have no wider effect. It does not provide ongoing supervision by the court of the child's welfare. The Court of Appeal has stated that its powers under the inherent jurisdiction are unlimited.⁶⁸² Specifically, it is accepted that the court, acting under the inherent jurisdiction, has wider powers than a parent.⁶⁸³

Controversially, in *Re LA (Medical Treatment)*⁶⁸⁴ the court declined to invoke the inherent jurisdiction in a case where a six-year-old boy had a progressive brain disease. The parents

⁶⁷⁵ [1996] 2 FLR 43, [1996] 2 FCR 569.

⁶⁷⁶ Although see *LA v SB, AB & MB* [2010] EWCA Civ 1744 for a case where the court refused to intervene after parents refused to consent to recommended treatment.

⁶⁷⁷ [1995] 2 FLR 466, [1996] 1 FCR 393.

⁶⁷⁸ [1999] 2 FLR 542.

⁶⁷⁹ *H v H (Jurisdiction to Grant Wardship)* [2011] EWCA Civ 796. Although see also *Re L (A Child)(Custody: Habitual Residence)* [2013] UKSC 75.

⁶⁸⁰ Welstead and Edwards (2006: 278). However in *S v S* [2009] 1 FLR 241 it was held to be a misuse of wardship to attempt to interfere in an immigration decision.

⁶⁸¹ [2011] EWHC 1608 (Fam).

⁶⁸² *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)* [1993] Fam 64, [1992] 2 FCR 785, [1993] 1 FLR 1.

⁶⁸³ *Re R (A Minor) (Wardship: Consent to Medical Treatment)* [1992] Fam 11 at p 25.

⁶⁸⁴ [2010] EWHC Fam 1744.

refused to cooperate in agreeing to treatment options, believing it was best to offer no treatment. The local authority initially started care proceedings, but decided to withdraw them. The court held the matter of surgery was a matter between the parents and hospital. Neither had sought to involve the court and the local authority had withdrawn its application. Critics might think this was exactly the kind of case where inherent jurisdiction could be used.

There have been a series of recent cases where wardship and the inherent jurisdiction have been used in cases where it is believed children may have been 'radicalised'. We will discuss these in Chapter 11.

10 Child abduction

There is a special set of rules that deals with child abduction: that is, where a child is removed from the care of the residential parent, often to another jurisdiction. This area of law is complex, and is not covered in detail in this text.

The popular image of child abduction is the harrowing one of a father, having lost his battles in the court, who steals his child from his or her school and removes the child to another country: the distraught mother despairs of seeing her child again. While there are cases such as this, in fact the majority of child abductions are carried out by women. It has been suggested that many women are removing themselves and their children to other countries to escape from their partner's abuse and violence.⁶⁸⁵ One of the difficulties with the law on child abduction is that a wide range of cases come before the courts and it is difficult to find a single approach that deals with all cases appropriately.

It is partly a sign of the growth of international travel and cross-national relationships that international child abduction has become a growing problem. In 2010 the Official Solicitor took on 376 new cases of children abducted from the United Kingdom.⁶⁸⁶ It must not be assumed, of course, that once the child is returned the difficulties for the resident parent are over. Fear of repeat abduction and harassment of the family may continue for some time.⁶⁸⁷

In a united effort to combat the problem of child abduction, two international conventions have been produced which aim to facilitate the location and return of abducted children.⁶⁸⁸ The United Kingdom has signed the Hague Convention on the Civil Aspects of International Child Abduction (The Hague Convention), Council Regulation (EC) No. 2201/2003 (Revised Brussels II) and the European Convention on Recognition and Enforcement of Decisions Concerning Custody of Children and on Restoration of Custody of Children (the European Convention). These are based on the assumption that disputes are best heard in cases where the child is habitually resident: however, there are exceptions which apply where returning the child to their country of origin would cause the child grave harm.

The Child Abduction Act 1984 states that it is an offence for a person unconnected with a child to remove from or keep a child under 16 from a person who has lawful control of the child.⁶⁸⁹ There are two separate offences: one of removal and the other of keeping.⁶⁹⁰ Of perhaps greater significance for the purposes of this topic is that it is an offence for a person

⁶⁸⁵ Herring (2012f).

⁶⁸⁶ Official Solicitor and Public Trustee (2011).

⁶⁸⁷ Marilyn Freeman (2003).

⁶⁸⁸ Required by the United Nations Convention on the Rights of the Child 1989, articles 11, 13.

⁶⁸⁹ Child Abduction Act 1984, s 2.

⁶⁹⁰ *Foster v DPP* [2005] 1 FCR 153.

connected with a child to remove a child under 16 from the United Kingdom,⁶⁹¹ without the consent⁶⁹² of everyone with parental responsibility, unless the leave of the court has been granted.⁶⁹³ So, even if the parents are happily married, it could be an offence for a husband to take the children out of the country without the consent of the mother.⁶⁹⁴ If someone has lawful permission to remove a child from the jurisdiction for a specific period of time (e.g. under a court order), they do not commit the offence if they keep the child overseas for longer.⁶⁹⁵ However, it is not an offence for a mother of a child to take the child out of the United Kingdom without the consent of a father without parental responsibility. There is one exception and that is where a parent has a residence order, in which case he or she can remove the child for a period of up to one month without the consent of others with parental responsibility, unless there is a prohibited steps order in effect to prevent it.

There is no offence if one of the defences under s 1(5) is proved. These are that the removal was done:

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Child Abduction Act 1984, section 1(5)

- (a) . . . in the belief that the other person–
 - (i) has consented; or
 - (ii) would consent if he was aware of all the relevant circumstances; or
- (b) he has taken all reasonable steps to communicate with the other person but has been unable to communicate with him; or
- (c) the other person has unreasonably refused to consent.

There are other offences which could be relied upon in a child abduction case, most notably kidnapping and false imprisonment.⁶⁹⁶

11 Conclusion

We have considered those cases where the courts have had to resolve private disputes concerning the upbringing of children. Much of this area of the law depends on the judiciary exercising their discretion and deciding each case on its own particular facts. Indeed, increasingly the courts are willing to accept that there is no one view which represents the child's best interests and it is rather a case of deciding which of the parents' wishes are to predominate. That said, there are some presumptions or assumptions (e.g. in favour of the 'natural' parent; in favour of contact with parents) which the courts have developed to provide a

⁶⁹¹ England, Wales, Scotland and Northern Ireland. The Channel Islands and Isle of Man are not included.

⁶⁹² Written or oral.

⁶⁹³ There are limited defences in s 1(5).

⁶⁹⁴ Although there is a defence if the father believes that the mother consents even though in fact she does not (Child Abduction Act 1984, s 1(5)).

⁶⁹⁵ *R (on the application of Nicolaou) v Redbridge Magistrates' Court* [2012] EWHC 1647 (Admin) explained they had not 'taken' the child unlawfully.

⁶⁹⁶ E.g. *R v D* [1984] AC 778; *R v Kayani* [2011] EWCA Crim 2871; see Herring (2012f) for the inadequacies of kidnapping to deal with child abduction.

degree of predictability for some kinds of cases. However, recently the courts have been preferring to talk of an assessment of the welfare of the particular child in question, rather than relying on presumptions. Interestingly, some of the judiciary have begun to question whether the courtroom is the appropriate forum in which to resolve family disputes. Whether this marks the beginning of the end for court resolution of family disagreements is unlikely, but it may well be that the cuts in legal aid mean that courts will only be troubled by arguments between members of richer families.

Further reading

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11

Child protection

Learning objectives

When you finish reading this chapter you will be able to:

1. Explain and evaluate the significance of human rights on child protection law
2. Discuss the protection offered to children by the criminal law
3. Examine the voluntary services offered by a local authority
4. Summarise the differences between a care order and a supervision order
5. Analyse the threshold criteria
6. Consider the use of emergency protection orders
7. Explore the use of adoption and special guardianship
8. Analyse the balance of power between courts and the local authority

1 The problems of child protection

One of the greatest powers the state has is to remove a child from their parents.¹ While our society generally assumes that children are best raised by their parents, it is clear that is not true for every child. Yet for many parents, one of the worst things that could happen to them would be having their children compulsorily removed by the state. On the other hand, the appalling harm that children can suffer at the hands of their parents means that the state must intervene if children's rights are to be protected.²

The issue of child abuse is a major one in today's society. Between 2008 and 2015 there was an increase of well over 50 per cent in the number of applications for a care order. In part this was a response to the 'Baby Peter' case where there was a huge media outcry after a child was not protected from abusive parents and died.³ Julie Doughty suggests it also reflects

¹ For a magnificent lengthy discussion of the issues, see Hoyano and Keenan (2007).

² For a disturbing account of the long-term effects of child abuse, see e.g. Colquhoun (2009).

³ Doughty (2014).

the fact that there is increased understanding of how neglect, as well as active abuse, can harm children.⁴ Indeed, cases of neglect now make up over half of all child protection registrations.⁵

One of the major problems in the law concerning the protection of children is that if the wrong decision is made, enormous harm can be caused. Imagine that a social worker visits a home where a child has a broken arm and bruises. The social worker suspects this may have been caused by the parents, while the parents claim that the injuries were caused by a fall down the stairs. If the parents' explanation is untrue, but the social worker decides to believe it, she would be leaving the child with abusive parents and there would be a danger that the child could suffer serious injury or even death.⁶ On the other hand, if the explanation is true and the social worker decides to remove the child, then the child and parents may suffer great harm through the separation. The history of the law on child protection reveals tragedies resulting from excessive intervention in family life as well as gross failure to intervene.⁷ The difficulty is that it is only with hindsight that it would be apparent that in a particular case the approach was inappropriate.

This puts social workers in an impossible position. Many are happy to rush to criticise them when they are seen to be too interventionist. Wall LJ in *EH v Greenwich London Borough Council*⁸ has noted:

What social workers do not appear to understand is that the public perception of their role in care proceedings is not a happy one. They are perceived by many as the arrogant and enthusiastic removers of children from their parents into an unsatisfactory care system, and as trampling on the rights of parents and children in the process.

Yet social workers face equal levels of blame when they fail to protect children from harm, as seen in the media outcry following the Baby Peter case.⁹ The report into the case found it was not so much a case of inadequate guidelines, as a failure to follow them. The frustration in Lord Laming's report into the many failings that meant there was inadequate intervention to protect the child is palpable:

[T]his document, and its recommendations, are aimed at making sure that good practice becomes standard practice in every service. This includes recommendations on improving the inspection of safeguarding services and the quality of serious case reviews as well as recommendations on improving the help and support children receive when they are at risk of harm. The utility of the policy and legislation has been pressed on me by contributors throughout this report. In such circumstances it is hard to resist the urge to respond by saying to each of the key services, if that is so 'NOW JUST DO IT!'¹⁰

It is easy when looking at individual dramatic failures to obtain a false picture. Many social workers engage in hugely important work for families. The difficulties have largely arisen as a result of inadequate funding, low morale and poor management. Given the huge importance of the issues at stake, social work requires significantly greater levels of funding and support from the state.

⁴ Doughy (2014).

⁵ Davis (2015).

⁶ Hedley (2014).

⁷ Masson (2000b).

⁸ [2010] 2 FCR 106, para 109.

⁹ Laming (2009).

¹⁰ Laming (2009: 1).

In Julia Brophy's and Martha Cover's study of care proceedings, it was found that most involved the poorest families, who had multiple needs and problems.¹¹ For example, in their sample 84 per cent were dependent on income support and 45 per cent of parents had serious mental health problems. As Brophy and Cover point out, the cases involve family with complex needs that are ignored until child protection issues arise. Cutbacks in social service support are likely to see more and more troubled families arriving at the doors of courts.

It is also clear that there are some troubled people who appear repeatedly in child protection proceedings. One study estimated that between 2007 and 2013, a total of 7,143 mothers had different children removed in separate care proceedings.¹² These women, it was found, lived family lives which had a 'toxic trio' of mental health problems, substance misuse and domestic abuse. All of this indicates that the issues of child protection interplay in complex ways with a wide range of social problems.¹³

And it is not just sociological factors which are involved. Political factors play a role too. Debbie Singleton and Martha Cover¹⁴ consider the increase in the number of newborns subject to care proceedings within 31 days of their birth from 800 per year to 2,000 per year between 2008 and 2014. They offer many explanations, including the following:

- There is a sustained and powerful government drive in favour of adoption, with pressure placed on local authorities to increase the number of children adopted from care. Social workers are encouraged to focus more of their time and attention on infant removals.
- Frontline services for children and families are cut to the bone. Sustained direct engagement with parents and long-term support is largely a thing of the past. Social services provide support over a short period and, if sufficient change is not shown, the response to continuing risk is removal . . .
- There is an intense focus by Government on the need for speed – pushing care cases through the court process within 26 weeks of issue of proceedings. Despite the repeated concerns voiced by the higher courts, this research shows that justice is indeed being sacrificed to speed and on a significant scale. The Government-appointed Family Justice Board is focused on time targets and case throughput. At the local level, it seeks to include judges in a managerial model where they are part of a partnership with local authorities and CAF-CASS (but not parents). The judge is treated by civil servants as the senior court resources manager, not as someone whose duty it is to remain impartial and to do justice in the individual case, without fear or favour.

As this discussion suggests, many of the difficulties in this area lie not so much in the substantive law, as practical issues. Nevertheless, there are important legal issues to address. Here are three major difficulties that the law faces.

1. There are evidential problems. Lord Nicholls in the House of Lords recognised the difficulties facing a judge in care cases of having to 'penetrate the fog of denials, evasions, lies and half-truths which all too often descends'.¹⁵ In other words, social workers and the courts often simply do not know the facts and have to deal with possibilities. Even experts

¹¹ Brophy and Cover (2012).

¹² Broadhurst *et al.* (2015).

¹³ Roberts (2014) highlights the concern that black and ethnic minority families are overrepresented among the families with children in care.

¹⁴ Singleton and Cover (2016).

¹⁵ *Lancashire CC v B* [2000] 1 FLR 583 at p 589.

examining the same injuries can differ widely in their interpretation of them.¹⁶ Indeed, as the decision in *R v Cannings*¹⁷ revealed, there are dangers in placing excessive weight on the opinion of experts in the field. In that case a mother's conviction of murder of her babies was quashed after it was found that the prosecution expert's evidence was flawed.¹⁸ Similarly, there are the difficulties of predicting the future. Predicting the likelihood that a parent will abuse a child on the basis of past conduct is far from easy. Yet such predictions are essential to child care in practice.

2. Even if the facts are known, there is much controversy over how much suffering the child should face before it is suitable for the state to intervene to protect him or her. If a local authority finds a child living in a home which is dirty and untidy, where the family's diet is unhealthy, and the children spend nearly all their time watching television, what should be done? Many would argue that this kind of situation is not sufficiently serious to justify intervention. Others would argue that the state must offer support and help to the parents to improve the family's lifestyle, for the sake of the child. The issue here is whether protection of family privacy means the state should intervene only in the most serious cases, or whether the local authority is justified in acting in order to prevent abuse.

Fox Harding has outlined four basic approaches that the law could take in relation to suspected child abuse:¹⁹

- (a) *Laissez-faire and patriarchy*. Here, the core approach is that the role of the state should be kept to a minimum. The privacy of the original family should be respected. This is an 'all or nothing' approach. Family privacy should be protected unless it is absolutely necessary to remove a child. Critics argue that the approach promotes non-intervention except in the most extreme cases of violence, enabling men to exercise control over women and children within their families.
- (b) *State paternalism and child protection*. This approach favours the intervention of the state in order to protect the child. It encourages state intervention, to whatever extent is necessary, to promote the welfare of children. Opponents of this policy claim that the approach places insufficient weight on the rights of birth families. The approach, they claim, can too easily slip into 'social engineering', and presumes that the state knows what is best for the child.
- (c) *The defence of the birth family and parents' rights*. The emphasis in this approach is on the benefits of psychological and biological bonds between children and parents.²⁰ The birth family is seen as the 'optimal context' for bringing up children. Even where parents fail, the state should see its role as doing as much as possible to preserve the family ties. The approach is not opposed to state intervention, but argues that such intervention should be aimed at supporting the family as much as possible. Even where children do have to be removed, contact with the family should be retained and the aim should be to reunite the family if at all possible. Opponents of such an approach argue that it does not provide adequate protection for children. Given the levels of abuse within families, we cannot assume that children are always best cared for by their families.

¹⁶ *Re W (A Child) (Non-accidental Injury: Expert Evidence)* [2005] 3 FCR 513.

¹⁷ [2004] 1 FCR 193.

¹⁸ See Bettel and Herring (2011) for difficulties in proof in shaken baby cases.

¹⁹ Fox Harding (1996).

²⁰ For a radical challenge to the presumption that, wherever possible, children should be brought up by their parents, see Dwyer (2006).

- (d) *Children's rights and child liberation.* Here the emphasis is on the child's viewpoints, feelings and wishes. There is a range of approaches focusing on children's rights. At one extreme it could be argued that the state should intervene only if the child requests it. In areas of suspected abuse, placing weight on children's views must be treated with great caution, given the complex psychological interplay that can exist between a child and his or her abuser.

Fox Harding argues that aspects of all of these approaches can be found in the Children Act 1989. This, she suggests, is not necessarily a bad thing. In some areas the law may wish to place greater weight on the powers of parents, in other areas children's rights, and in others the protection of children.

3. Even where abuse is proved, there is much debate over the correct response to it. Of particular concern is the level of abuse of children in care, and in particular of those in children's homes. Removing a child from an abusive family only to place him or her into an abusive situation in a children's home is to heap harm upon harm.²¹ As Professor Maurice Place²² has emphasised:

children whose early family experiences have been abusive or neglectful are likely to do better the earlier they are removed. But removal in itself does not improve the underlying difficulties, it merely reduces the risk of further damage. To improve functioning these children need subsequently to have a persistently positive living experience and to successfully engage with any therapeutic work that is deemed necessary . . . present provision falls well short of need.

This chapter will proceed as follows. It will provide an overview of child protection law in England, before exploring specifically the range of orders available and what needs to be shown for each. We will start with voluntary services that may be appropriate for families that are facing challenges; then the powers to investigate worrying situations involving children; then the orders that may be suitable in emergencies; before finally looking at longer-term solutions for children who have been abused.

2 The Children Act 1989 and child protection

The duties and responsibilities of local authorities towards families are located in Part III of the Children Act 1989. It would be quite wrong to see the state's protection of children as limited to court intervention. Health visitors, social workers, teachers and doctors can encourage the voluntary co-operation of parents and thereby encourage them to adhere to prevailing expectations about the appropriate care of children. This has been called the 'soft' policing of families.²³

The Children Act 1989 was produced after a major rethink over child protection policy, and two major themes emerged:

1. There should be a clear line drawn between the child being in care or not in care. A child in care is one looked after by the local authority, where the local authority effectively takes over the parental role. Under the previous legislation a child could be in an ambiguous

²¹ Although Wade *et al.* (2012) found children who remained in care did better than children in care who were returned home.

²² Place (2013).

²³ Parton (1991).

position – formally not in care, but effectively in care. Under the Children Act a child can only officially enter care as a result of a court order and there are clear criteria which govern when a care order can be made.²⁴ That ideal is not reflected in practice. Around a third of children who enter the care of the local authority do so as a result of a care order, the other two-thirds are looked after through an agreement between parents and the local authority.²⁵

2. The Act promotes ‘partnership’ between parents and local authorities.²⁶ Parents and local authorities should work together for the good of the child. This has two aspects. The first is that the local authority should be regarded as a resource for parents to use, especially if the family is having difficulties. The aim, therefore, is that parents experiencing difficulties in parenting will regard the local authority as there to provide support and assistance, rather than as a body to be feared.

The second aspect is that, even if the child is taken into care, parents should be involved with the care for the child to the greatest extent possible.²⁷

There is a fear that there cannot be a partnership, or at least anything like an equal partnership, between a parent and a local authority.²⁸ The local authority has the ‘sword of Damocles’ of a care order hanging over the parents, and so there can be little equality in the ‘partnership’.²⁹ The fear is that, under the guise of ‘partnership’, social workers will be able to exercise even more power over parents than they would if they acknowledged the intervention was compulsory. In particular, there is concern with the increased use of informal understandings between parents and the local authority concerning the child.³⁰ These agreements may be entered into without the parents receiving legal advice or without the protection of legal procedural safeguards.

Not only should parents and local authorities work in partnership, so also should local authorities and all the other bodies involved in child work (for example, the NSPCC, hospitals).³¹ The Children Act in various ways encourages cooperation between these different agencies. Reports into failings of the child protection system regularly cite a lack of communication between different bodies as being a cause of the absence of proper care.³²

3 The Human Rights Act 1998 and child protection

Learning objective 1

Explain and evaluate the significance of human rights on child protection law

English and Welsh law after the Human Rights Act 1998 must now start with a strong presumption that the state must respect the right to family and private life (article 8).³³ Any infringement of human rights must be justified.³⁴ However, it would be wrong to assume that the Human Rights Act supports

²⁴ Although see Bainham (2013) who argues that the line between public and private proceedings in this area is being blurred.

²⁵ Doughty (2014).

²⁶ HM Government (2013).

²⁷ Department for Children, Schools and Families (2008a).

²⁸ Kaganas (1995).

²⁹ Masson (1995).

³⁰ The increase in court fees may well increase the use of these.

³¹ See Children Act 2004, Part II which is designed for better integration of the delivery of children’s services.

³² Laming (2003).

³³ Choudhry and Herring (2010: ch 8); Kaganas (2010b).

³⁴ *EH v Greenwich London Borough Council* [2010] 2 FCR 106, para 63.

a non-interventionist approach in child protection cases. There are three ways in which the Human Rights Act can permit or even require intervention:

1. Any removal by the state of a child from his or her parents will automatically constitute an infringement of article 8, but this may be justified by taking into account the welfare of the child.³⁵ Paragraph 2 of article 8 permits an infringement of the right if it is necessary in the interests of others, and this would clearly include the interests of the child.³⁶ In deciding whether the infringement is necessary, the consideration of the welfare of the child is 'crucial'.³⁷ Just because it turns out that the removal of the child was based on a false belief does not mean there was a breach of human rights – as long as the belief was a genuine and reasonably held concern.³⁸
2. Although article 8 may readily be invoked to protect parents from state intervention, it could be argued that abused children have rights to respect for private life that can be protected only by intervention. Article 8 imposes positive obligations on the state and these will include obligations to protect a child from abuse.
3. Article 3 requires the state to protect children and adults from torture and inhuman and degrading treatment³⁹ and article 2 requires the state to protect children from the risk of death.⁴⁰ This is an absolute right in the sense that a breach of it cannot be justified by reference to the interests of others. Therefore, if a local authority knows or should know that a child is suffering serious abuse then it is obliged to take reasonable steps to protect the child from that harm.⁴¹ A local authority will have infringed a child's rights under article 3 if it has failed to take measures that could have prevented the abuse. It is not necessary to show that had the local authority acted as it should the abuse would not have occurred.⁴² A child who was not protected by a local authority from abuse could sue it under s 7 of the Human Rights Act 1998.

A significant concept which was introduced by the Human Rights Act 1998 is the notion of proportionality.⁴³ If the state is to intervene in a child's life, it must be shown that the level of state intervention is proportionate to the risk that the child is suffering.⁴⁴ We will discuss that in more detail later in this chapter.

The Human Rights Act 1998 also has important implications in the procedures used by a local authority before taking a child into care and in the decision-making process once a child has been taken into care. Both articles 6 (the right to a fair trial) and 8 have an impact when deciding the extent to which parents of children should be involved in local authority decision-making processes concerning their children.⁴⁵ The key test is to be found in *W v UK*:⁴⁶

³⁵ Although see the controversial argument in Herring (2008c) that abusive forms of family life may not be entitled to respect under article 8.

³⁶ *North Somerset Council v LW* [2014] EWHC 1670 (Fam).

³⁷ *K and T v Finland* [2000] 2 FLR 79; *L v Finland* [2000] 2 FLR 118.

³⁸ *R v United Kingdom* (38000(1)/05).

³⁹ *A v UK (Human Rights: Punishment of Child)* [1998] 3 FCR 597 ECtHR; *X v UK* [2000] 2 FCR 245 EComHR.

⁴⁰ *R (Plymouth CC) v Devon* [2005] 2 FCR 428.

⁴¹ *Z v UK* [2001] 2 FCR 246 and *E v UK* [2003] 1 FLR 348.

⁴² *E v UK* [2002] 3 FCR 700.

⁴³ *Re C and B (Children) (Care Order: Future Harm)* [2000] 2 FCR 614; *Re S (Children)* [2010] EWCA Civ 421.

⁴⁴ *Westminster CC v RA* [2005] EWHC 970 (Fam).

⁴⁵ *Re L (Care: Assessment: Fair Trial)* [2002] 2 FLR 730.

⁴⁶ (1988) 10 EHRR 29, at paras 63–4.

The decision-making process must . . . be such as to secure that [the parents'] views and interests are made known to and duly taken into account by the local authority and that they are able to exercise in due time any remedies available to them . . . what therefore has to be determined is whether, having regard to the particular circumstances of the case and notably the serious nature of the decisions to be taken, the parents have been involved in the decision-making process, seen as a whole, to a degree sufficient to provide them.

Local authorities have struggled in some cases to comply with these procedural obligations. In *Re S (Children)*⁴⁷ the Court of Appeal identified seven breaches of the mother and children's human rights. Felicity Kaganas suggests that the procedural human rights obligations may have caused some local authorities to bypass court proceedings by using more informal measures of protecting children.⁴⁸

4 Defining and explaining abuse

There are great difficulties in defining child abuse.⁴⁹ The problem is the great stigma attached to conduct which is labelled abuse. If the definition is too wide, there is a danger that the stigma will be lessened. If the definition is too narrow, this may weaken the protection offered to children. One definition is:

A form of maltreatment of a child. Somebody may abuse or neglect a child by inflicting harm, or by failing to act to prevent harm. Children may be abused in a family or in an institutional or community setting by those known to them or, more rarely, by others (e.g. via the internet). They may be abused by an adult or adults, or another child or children.⁵⁰

Some would regard this as too wide a definition. Arguably, letting a child watch too much television or eat too much chocolate could fall into this definition, but most would not regard that as abuse.

KEY STATISTICS

Research for the NSPCC,⁵¹ the highly respected children's charity, has found that:

- 25.3% of young adults had been severely maltreated during childhood.
- 14.5% of young adults had been severely maltreated by a parent or guardian during childhood.
- 11.5% of young adults had experienced severe physical violence during childhood at the hands of an adult.
- 16% of young adults had been neglected at some point in their childhoods and 9% had experienced severe neglect.
- 6.9% of young adults had experienced emotional abuse during childhood.

⁴⁷ [2010] EWCA Civ 421, discussed in Herring (2010f).

⁴⁸ Kaganas (2010a).

⁴⁹ Archard (1999).

⁵⁰ HM Government (2013: 85).

⁵¹ Bentley *et al.* (2016).

- 23.7% of young adults were exposed to domestic violence between adults in their homes during childhood.
- 11.3% of young adults have experienced contact sexual abuse.
- On 31 March 2015 there were 49,690 children subject to child protection plans in England. In equivalent 2007 the figure had been 29,200.
- There has been a 24% increase in the number of children in the child protection system in the United Kingdom in the past five years.

Not surprisingly, there is no consensus on what causes abuse. The following are some of the explanations:

1. *Psychological factors.* This explanation of the abuse lies in the psychology of the abuser. For example, there is some evidence that those who were themselves abused as children are more likely to abuse children when they become adults, although the fact that by no means all abused children then later abuse indicates that this cannot be the sole explanation.
2. *Sociological factors.* This explanation focuses on the position of children within society. For example, the sexualisation of children in advertising is pointed to as indicating the ambivalent attitude of society towards children and sexual relations.
3. *Feminist perspectives.* These focus on child sexual abuse as an example of patriarchy – the exercise of male power. It reflects the fact that male sexual desire is often linked with themes of superiority and performance. It is notable that the vast majority of sexual abuse is carried out by men.⁵²
4. *Family systems.* Others point to family relationships as the key to explaining sexual abuse in the home. Furniss⁵³ argues that it is only if the other members of the family permit the abuse to occur (whether consciously or not) that it can. Some even claim that child abuse is caused by the wife's failure to meet the husband's sexual needs. Feminists have objected to this explanation on the basis that it can be read as blaming the mother for the abuse.⁵⁴

It is perhaps easy to label child abuse as caused by social deviants. But the disadvantages that children face are deeply socially ingrained. Abuse is the lot of far too many children in the United Kingdom and it is not just the 'sick' few who are to blame. If we are looking at the causes of child abuse, we must look at society as a whole as well as the 'abusers'.

5 Voluntary services provided by local authorities

Learning objective 3

Examine the voluntary services offered by a local authority

In this section we will be looking at the services that can be offered by local authorities to children who are at risk of abuse. They are largely voluntary, in the sense the child's family can refuse to accept the services. They are primarily designed to prevent more drastic intervention having to take place.

⁵² Smart (1989).

⁵³ Furniss (1991).

⁵⁴ Day Sclater (2000).

A Voluntary accommodation

One of the most basic needs of a vulnerable child is accommodation. Not surprisingly, the Children Act 1989 sets out duties on a local authority to accommodate certain children in need.⁵⁵ The Act draws a sharp distinction between children whose parents ask the local authority to accommodate their children ('voluntary accommodation') and children who have been compulsorily removed from parents under a care order and accommodated by the local authority ('compulsory accommodation'). In this chapter voluntary accommodation will be discussed.

(i) Duty to accommodate

Section 20 of the Children Act 1989 sets out the circumstances in which a local authority *must* accommodate a child in need:

LEGISLATIVE PROVISION

Children Act 1989, section 20

Every local authority shall provide accommodation for any child in need within their area who appears to them to require accommodation as a result of:

- (a) there being no person who has parental responsibility for him;
- (b) his being lost or having been abandoned; or
- (c) the person who has been caring for him being prevented (whether or not permanently, and for whatever reason) from providing him with suitable accommodation or care.

There are basically two categories of people whom a local authority must accommodate. First, a local authority must accommodate orphaned or abandoned children (although a local authority will often prefer to apply for a care order in respect of an orphaned child so that it acquires parental responsibility for the child). Secondly, there is a duty to accommodate those children whose carers are prevented from looking after them.⁵⁶ The accommodation is usually provided for by the local authority through foster parents or children's homes. However, s 22C of the Children and Young Persons Act 2008 imposes a duty on the local authority to explore placement for children with friends or relatives.⁵⁷

It should be stressed that there is no need for a court to approve the voluntary accommodation and typically the courts are not involved in such cases. But, the local authority may not accommodate the child if a parent with parental responsibility objects.⁵⁸ If a person with parental responsibility objects, then he or she must show that he or she is willing and able to provide accommodation for the child. There seems to be no requirement that the accommodation the parent offers be suitable, although a court may decide that such a requirement be read into the statute. If the local authority believes that the child will be endangered if accommodated by that person, it must apply for a care order or other protective order.

⁵⁵ CA 1989, s 22A imposes a duty on local authorities to ensure there is sufficient accommodation for looked-after children in their area.

⁵⁶ Article 27(3) of the UN Convention on the Rights of the Child requires the signatory states to provide needy children with assistance with housing.

⁵⁷ *R (On the Application of SA) v Kent County Council (The Secretary of State Intervening)* [2011] EWCA Civ 1303.

⁵⁸ *Re N (Adoption: Jurisdiction)* [2015] EWCA Civ 1112.

There have been some concerns about children being accommodated under s 20 as an alternative to care proceedings. In *Medway Council v M, F and G*⁵⁹ the local authority had instituted care proceedings, but in the preparation and hearing of the case it became clear that the medical evidence was not straight forward and that the local authority may not succeed. It entered discussions with the parents and it was agreed the children would be accommodated by the local authority. Theis J was critical of this use of s 20, particularly as the parents had not had access to legal advice. If it had been decided that care proceedings should not continue then the children should be returned to the parents.

(ii) Discretion to accommodate

In addition to the duty outlined above, local authorities have a discretion to provide accommodation to a child even if the child is not in need, 'if they consider that to do so would safeguard or promote the child's welfare' under s 20(4).⁶⁰ This discretion exists even if there is a person who has parental responsibility who can provide accommodation. However, all those with parental responsibility must consent to the local authority accommodating the child.⁶¹

(iii) Children requesting accommodation

If the child requests accommodation him- or herself, the position depends on whether the child is above or below the age of 16.

(a) Children over 16

The local authority must accommodate any child aged 16 or 17 'in need', whose welfare it considers 'is likely to be seriously prejudiced if they do not provide him with accommodation'.⁶² There is no need for parental approval.⁶³ If the child is not in such dire need, the local authority is required only to provide advice on accommodation or housing and is not required to accommodate the child. In a case where the child no longer wishes to live with her parents, but her parents are able to offer accommodation, the duty to accommodate does not arise.⁶⁴

CASE: *R (On the Application of G) v Southwark London Borough Council* [2009] 3 ALL ER 189

G was 16 when his mother excluded him from her home and he approached his local authority requesting an assessment of his needs under s 17. He also sought accommodation under s 20. The local authority assessment concluded that he had a need for housing, but this could be provided by the authority's homeless person's unit. He was also referred to the family resource team which could help him apply for benefits. He brought legal proceedings claiming that he had a right to be housed by the local authority under s 20.

⁵⁹ [2014] EWHC 308 (Fam).

⁶⁰ Any person aged 16–21 can be accommodated if a local authority believes that this would safeguard or promote the young person's welfare under the Children Act 1989 (hereafter CA 1989), s 20(5).

⁶¹ *Coventry City Council Applicant v C, B, CA and CH* [2012] EWHC 2190 (Fam) explains the parent must have sufficient understanding of what is proposed in order to consent.

⁶² CA 1989, s 20(3). If these requirements are met the local authority cannot seek to accommodate the child under s 17, rather than s 20: *R (W) v North Lincolnshire Council* [2008] 2 FLR 2150.

⁶³ CA 1989, s 20(3).

⁶⁴ *R (M) v London Borough of Barnet* [2009] 2 FLR 725; *R (On the Application of FL) v Lambeth London Borough Council* [2010] 1 FCR 269.

Their Lordships were clear that where a child has been excluded from the family home and asks their local authority for accommodation it was not open to a local authority to arrange for accommodation under the homelessness provisions of the 1996 Housing Act. Having determined that he was a child who was in need and that he had no permanent accommodation the authority was liable to accommodate him. It could be said that he had need for accommodation because his mother was prevented from offering him accommodation. Baroness Hale approved the comments of Rix LJ in the Court of Appeal:

a child, even one on the verge of adulthood, is considered and treated by Parliament as a vulnerable person to whom the state, in the form of a relevant local authority, owes a duty which goes wider than the mere provision of accommodation.⁶⁵

(b) *Children under 16*

There is much doubt concerning the position of under-16-year-olds requesting local authority accommodation. It might be argued that, following *Gillick*,⁶⁶ a competent minor should have a decisive say as to whether they are accommodated by a local authority. Eekelaar and Dingwall have suggested that when a child is *Gillick*-competent then the parents lose the power to decide where the child is to live. Those who oppose this view note that *Gillick*-competent children do not have a power of consent where there are express statutory provisions to the contrary.⁶⁷ Here s 20(6) states that the court should:

LEGISLATIVE PROVISION

Children Act 1989, section 20(6)

so far as is reasonably practicable and consistent with the child's welfare—

- (a) ascertain the child's wishes regarding the provision of accommodation; and
- (b) give due consideration (having regard to his age and understanding) to such wishes of the child as they have been able to ascertain.

This seems explicitly to fall short of giving the competent child the exclusive right to have themselves accommodated. Section 20(7) appears to be quite clear that a child cannot be accommodated under the Children Act 1989 against the wishes of a parent with parental responsibility. Bainham therefore argues that if a parent objects, then the competent child's wishes cannot prevail.⁶⁸ The matter, however, could be brought before the court by way of a section 8 application.⁶⁹

⁶⁵ [2009] 1 FCR 357 at [35].

⁶⁶ *Gillick v West Norfolk and Wisbech AHA* [1986] 1 FLR 229, [1986] AC 112.

⁶⁷ *Re W (A Minor) (Medical Treatment: Court's Jurisdiction)* [1993] 1 FLR 1, [1992] 2 FCR 785.

⁶⁸ Bainham (2005: 341).

⁶⁹ Although a child cannot apply for a residence order in favour of him- or herself nor in favour of the local authority. CA 1989, s 9(2): *Re SC (A Minor) (Leave to Seek Section 8 Orders)* [1994] 1 FLR 96, [1994] 1 FCR 837.

(iv) Removal from accommodation

Under s 20(8) of the Children Act 1989, anyone with parental responsibility 'may at any time remove the child from accommodation provided by or on behalf of the local authority'.⁷⁰ There is not even a requirement that parents give notice to the local authority of their intention to remove their child from voluntary accommodation.⁷¹ It is not possible for the local authority to stop a removal by obtaining a section 8 order preventing the removal by the parent,⁷² nor even to require a formal undertaking from parents not to remove their child.⁷³ But a parent with parental responsibility is not able to remove a child if the child was placed by another person with a residence order.

There are two main arguments in favour of the right of a parent to remove their children from accommodation. First, it is important to keep a clear distinction between voluntary and compulsory care, and the power of immediate removal maintains the clarity of this distinction. Secondly, it has been suggested that voluntary accommodation should be made as attractive an option as possible, so that parents feeling under great pressure will be willing to use the 'service'.

There have been concerns that parents may misuse their power of automatic removal and remove their children in unsuitable circumstances. For example, a parent could turn up at the foster parents' house drunk, demanding the return of his or her child. The Children Act 1989 appears to suggest that the foster parents must hand the child over to the parent, but there are four options available for a local authority in such a case:

1. Some commentators⁷⁴ argue that a local authority is permitted to prevent the unsuitable removal of children by relying on s 3(5) of the Children Act 1989. However, a strong opposing argument is that s 3(5) cannot be used to prevent the exercise of the parental right to remove the child, especially where the parental right is explicitly granted in a statute.
2. A local authority could apply for an emergency protection order if the child is likely to suffer significant harm.
3. A foster parent from whom a child was removed could apply for a residence order or even rely on wardship⁷⁵ or the inherent jurisdiction.
4. Police protection may also be available in an extreme case.⁷⁶

It may be that the threat of the local authority applying for a care order provides a suitable deterrent to children being inappropriately removed.

It seems that a child who is aged 16 or 17 can leave voluntary accommodation provided by the local authority at will. There is no statutory basis on which a local authority can detain a child against his or her wishes.⁷⁷ Possibly the inherent jurisdiction could be used in a case where the child was at risk of serious harm.

⁷⁰ This might include an unmarried father with parental responsibility.

⁷¹ *Re N (Adoption: Jurisdiction)* [2015] EWCA Civ 1112.

⁷² *Nottinghamshire County Council v J* unreported 26 November 1993.

⁷³ CA 1989, s 9(5), although *Re G (Minors) (Interim Care Order)* [1993] 2 FLR 839 at p. 843 suggested it was.

⁷⁴ See the discussion in Cretney, Masson and Bailey-Harris (2002: 709).

⁷⁵ Although if foster parents started caring for the child as a ward of court they may lose the financial assistance of the local authority.

⁷⁶ CA 1989, s 46.

⁷⁷ There is a severe lack of resources for housing: see Fortin (2009b: ch. 4). Also see the problems in *R v Northavon DC, ex p Smith* [1994] 2 FCR 859, [1994] 2 FLR 671, with families being shunted around from department to department. The House of Lords case made it clear that there is an obligation for local authorities to change their housing policies in the light of CA 1989, s 27.

B Services for children in need

Clearly, prevention of abuse is better than dealing with its consequences. Section 7 of the Children and Young Persons Act 2008 imposes a general duty on the Secretary of State to promote the well-being of children. Part III of the Children Act 1989 requires the local authority to provide certain services to those children who are 'in need'. The law governing children in need is a rather strange area because it appears there is no effective court enforcement of a local authority's duties, so the 'duties' are largely of a non-enforceable nature. However, a child whose needs are inadequately assessed could use judicial review, although that would rarely succeed.⁷⁸ The importance of the Children Act 1989 here is that it helps focus a local authority's attention towards vulnerable children. However, as we shall see, the House of Lords in *R (On the Application of G) v Barnet London Borough Council*⁷⁹ has held that s 17 of the Children Act 1989 does not give rights to individual children.

Crucial to understanding the extent of the local authority's responsibilities under the Children Act 1989 is the concept of being 'in need'.

(i) What does 'in need' mean?

A child is 'in need' if:

LEGISLATIVE PROVISION

Children Act 1989, section 17(10)

- (a) he is unlikely to achieve or maintain, or to have the opportunity of achieving or maintaining, a reasonable standard of health or development without the provision for him of services by a local authority under this part;
- (b) his health or development is likely to be significantly impaired, or further impaired, without the provision for him of such services; or
- (c) he is disabled.

'Development' includes 'physical, intellectual, emotional, social or behavioural development'; health includes 'physical or mental health'.⁸⁰ A disabled child is one who is 'blind, deaf, or dumb or suffers from mental disorder of any kind or is substantially and permanently handicapped by illness, injury or congenital deformity or such other disability as may be prescribed'.⁸¹ The law here is not concerned with the causes of the need, but rather the fact of need. The need may arise from the lack of skills of the parent, or may be due to the disabilities of the child. In *A v London Borough of Enfield*⁸² an 18-year-old girl who it was feared was being radicalised and was preparing to marry a much older man was held to be 'in need'.

⁷⁸ See *Re T (Judicial Review: Local Authority Decisions Concerning Children in Need)* [2003] EWHC 2515 (Admin); *R (On the Application of AB and SB) v Nottingham CC* [2001] 3 FCR 350; *R (EW and BW) v Nottinghamshire County Council* [2009] 2 FLR 974 for successful applications for judicial review.

⁷⁹ [2003] UKHL 57, [2003] 3 FCR 419, discussed in Cowan (2004).

⁸⁰ CA 1989, s 17(11).

⁸¹ CA 1989, s 17(11).

⁸² [2016] EWHC 567 (Admin).

(ii) What services should be supplied?

Part III of the Children Act 1989 was intended to establish a single code to govern the voluntary services to children and all decisions of a local authority. The general duty to provide services is set out in s 17(1):

LEGISLATIVE PROVISION

Children Act 1989, section 17(1)

It shall be the general duty of every local authority (in addition to the other duties imposed on them by this Part)–

- (a) to safeguard and promote the welfare of children within their area who are in need; and
- (b) so far as is consistent with that duty, to promote the upbringing of such children by their families by providing a range and level of services appropriate to those children's needs.

The duty is described as a general duty to indicate that an individual child cannot seek to compel a local authority to provide services by relying on this section.⁸³ The House of Lords in *R (On the Application of G) v Barnet LBC*⁸⁴ has held that the section does not create a right for a particular child to services, but rather describes a duty that the local authority owes to a section of the public (i.e. children in need). This is because it is for the local authority to decide how to spend its resources. The majority of their Lordships held that s 17 did not impose a duty on a local authority even to assess the needs of a particular child. Lord Steyn, for the minority, argued:

On the local authorities' approach, since s 17(1) does not impose a duty in relation to an individual child, it follows that a local authority is not under a duty to assess the needs of a child in need under s 17(1). That cannot be right. That would go far to stultify the whole purpose of Pt III of the 1989 Act.⁸⁵

What concerned the majority appears to be an attempt by the parents in this case, who were temporarily homeless and not entitled to housing, to make a claim to be housed through their children. Further, the courts recognised that delicate issues such as the distribution of public housing and the support of immigrants were best left to elected local authorities, rather than the decisions of courts looking at the merits of a particular case.

Services are to be made available not only to children, but also to their parents and family members,⁸⁶ as long as the services are aimed at safeguarding the welfare of the child. 'Family' is defined to include 'any person who has parental responsibility for the child and any other person with whom he has been living'.⁸⁷ 'Services' can include the provision of assistance in kind and even cash in exceptional circumstances.⁸⁸ There is also a list of special duties in Sch 2

⁸³ *R (On the Application of G) v Barnet London Borough Council* [2003] UKHL 57; *Re M (Secure Accommodation Order)* [1995] 1 FLR 418.

⁸⁴ [2003] UKHL 57.

⁸⁵ At para 32.

⁸⁶ This includes any person with parental responsibility or any other person with whom the child is living (CA 1989, s 17(10)).

⁸⁷ CA 1989, s 17(10).

⁸⁸ CA 1989, s 17(6).

to the Children Act 1989. For example, there are duties to take reasonable steps to avoid the need to bring proceedings for care or supervision orders; duties to encourage children not to commit criminal offences; and duties to publicise the services that the local authority offers.⁸⁹

C The family assistance order

The family assistance order (FAO) is governed by s 16 of the Children Act 1989 and is a form of voluntary assistance provided to a family by the local authority.⁹⁰ The order requires either a probation officer or an officer of the local authority ('the officer') to be made available 'to advise, assist and (where appropriate) befriend any person named in the order'. The order can benefit anyone with whom the child is living and is not restricted to parents. The order is designed to provide short-term help to a family and may be as much directed at the parents as the child.⁹¹ It might be particularly appropriate in a case where the parent is affectionate towards the child but lacks the skills to care for the child practically.

The order can be made only in exceptional circumstances⁹² and only by the court acting on its own motion. In other words, a parent cannot apply for an FAO. However, it is necessary that the person in whose favour the order is made has consented to the making of the order.⁹³ It seems the local authority must consent to the making of the order as well.⁹⁴

The maximum length of the order is six months.⁹⁵ The only power of enforcement that the officer has is to refer the case to the court if he or she believes there is a need for variation. He or she could also report their concerns to the local authority, which may wish to intervene by applying for a care order. The FAO should not be used for purposes unrelated to its primary purpose of assisting the family. An appropriate use of the order was found in *Re U (Application to Free for Adoption)*⁹⁶ when the court decided that a child should reside with her grandparents and thought that an FAO could assist the child and grandparents in establishing a new life together.

In practice, FAOs appear to be little used.⁹⁷ It has been suggested that this is because of concerns about the extent to which the order intervenes in family life. It also appears that there is much confusion among social workers as to their purpose.⁹⁸

6 Investigations by local authorities

There are two provisions in the Children Act 1989 under which the local authority may be required to investigate a child's welfare. Section 47 sets out specific circumstances in which a local authority must investigate a child's well-being. Section 37 permits a court to require a local authority to investigate a child's welfare. If the court wants further investigations it may make a child assessment order.

⁸⁹ A local authority is under a duty to provide day-care facilities to children in need as appropriate under CA 1989, s 18.

⁹⁰ Thorough reviews of the use of family assistance orders are to be found in HM Inspectorate of Court Administration (2007); and Seden (2001).

⁹¹ Department for Education (2014b).

⁹² CA 1989, s 16(3)(a).

⁹³ CA 1989, s 16(3).

⁹⁴ CA 1989, s 16(7); *Re C (Family Assistance Order)* [1996] 1 FLR 424, [1996] 3 FCR 514.

⁹⁵ CA 1989, s 16(5).

⁹⁶ [1993] 2 FLR 992.

⁹⁷ Seden (2001).

⁹⁸ James and Sturgeon-Adams (1999).

A Section 47 investigations

Under s 47 of the Children Act 1989 the local authority is under a duty to investigate the welfare of a child in their area when:

1. a child is subject to an emergency protection order;
2. a child is in police protection;
3. a child has contravened a curfew notice;⁹⁹ or
4. the local authority has reasonable cause to suspect that a child is suffering, or is likely to suffer, significant harm.¹⁰⁰

Local authorities may obtain information about potential abuse of children from a wide variety of sources. Neighbours, teachers, doctors, even children themselves may provide information. The local authority does not need proved facts before it carries out an investigation; suspicions are sufficient.¹⁰¹ This means that even if a criminal prosecution against an alleged perpetrator of sexual abuse had failed, the local authority might still be authorised to carry out a s 47 investigation.¹⁰² However, the local authority should not undertake a s 47 investigation because there are vague concerns without first finding out basic information from key people in the child's life such as teachers and GPs.¹⁰³

Under these circumstances the local authority must make 'such enquiries as they consider necessary to enable them to decide whether they should take any action to safeguard or promote the child's welfare'.¹⁰⁴ There is no power to enter a child's home against the parents' will. However, if parents fail to permit social workers to see a child, the local authority must apply for either an emergency protection order, a child assessment order, a supervision order or a care order unless they are satisfied that the child can be satisfactorily safeguarded in other ways.¹⁰⁵ However, if the parents have permitted the local authority to see the child, the legislation leaves the choice of what to do next to the local authority. The main options are: to do nothing; to offer the family services; or to apply to the court for a child assessment order, emergency protection order, or supervision or care order. As Eekelaar has pointed out, a local authority is not under a duty to apply for an order, even if it decides that the child would be best protected by applying for such an order. There is a duty to investigate and to decide what it *should* do, but there is no duty to do anything as a result of the investigation.¹⁰⁶ It may be that financial limitations would cause a local authority not to apply for an order which it thought desirable but not essential. In practice, few s 47 enquiries are undertaken due to staff shortages and lack of staff training.¹⁰⁷

A leading case is *A Local Authority v A and B*¹⁰⁸ where a local authority found out that parents of a severely disabled child (A) were locking him in his room at night to prevent him harming himself. The local authority made an investigation under s 47 and brought

⁹⁹ Under Ch. 1, Part 1 of the Crime and Disorder Act 1998.

¹⁰⁰ CA 1989, s 47.

¹⁰¹ *R (On the Application of S) v Swindon BC* [2001] EWHC 334, [2001] 3 FCR 702.

¹⁰² *R (On the Application of S) v Swindon BC* [2001] EWHC 334, [2001] 3 FCR 702.

¹⁰³ *R (on the application of AB) v Haringey LBC* [2013] EWHC 416 (Admin).

¹⁰⁴ CA 1989, s 47(1)(b).

¹⁰⁵ CA 1989, s 47(6).

¹⁰⁶ Eekelaar (1990).

¹⁰⁷ Department of Health (2002a: 6.8).

¹⁰⁸ [2010] EWHC 978 (Fam).

proceedings claiming the child's human rights were being infringed. The attitude of the authority were criticised by Munby J:

People in the situation of A and C, together with their carers, look to the State – to a local authority – for the support, the assistance and the provision of the services to which the law, giving effect to the underlying principles of the Welfare State, entitles them. They do not seek to be 'controlled' by the State or by the local authority. And it is not for the State in the guise of a local authority to seek to exercise such control. The State, the local authority, is the servant of those in need of its support and assistance, not their master.

Notably it seems the attitude of the local authority which concerned Munby J more than the fact they undertook an investigation.

A court has no jurisdiction to prevent a local authority carrying out its investigative duties.¹⁰⁹ If a court was convinced that the investigations by a local authority were unjustified and causing harm to a child, it could make a prohibited steps order under s 8 of the Children Act 1989 to restrain a parent from co-operating with the investigation.¹¹⁰ However, it would require a most unusual case for this to be an appropriate course of action.

B Section 37 directions

The court cannot require a local authority to apply for a care order, nor can it force a care order upon a local authority which does not apply for one.¹¹¹ What the court may do is direct a local authority to investigate a child's circumstances under s 37 of the Children Act 1989. The court can make such a direction wherever 'a question arises with respect to the welfare of any child', and it appears to the court that 'it may be appropriate for a care or supervision order to be made with respect to him'.¹¹² The court must not make a s 37 direction if the case is not one where it may be appropriate to make a care or supervision order.¹¹³ The local authority must report back to the court within eight weeks. The court cannot seek to control the local authority's investigation.¹¹⁴ If, following an investigation under s 37, the local authority does not apply for an order, it must explain this to the court and describe what services or assistance it intends to provide.¹¹⁵ If the local authority after its investigations decides not to apply for a court order, the court cannot force it to do so.¹¹⁶ Indeed there is not much the court can do if the local authority fails to undertake an investigation as requested by the court.¹¹⁷ It is submitted that, following the Human Rights Act 1998, where the local authority is aware that a child is suffering serious abuse following a s 37 or s 47 investigation, it is under a duty to protect the child.¹¹⁸

¹⁰⁹ *D v D (County Court Jurisdiction: Injunctions)* [1993] 2 FLR 802.

¹¹⁰ *D v D (County Court Jurisdiction: Injunctions)* [1993] 2 FLR 802.

¹¹¹ *Nottingham CC v P* [1993] 2 FLR 134, [1994] 1 FCR 624.

¹¹² CA 1989, s 37(1).

¹¹³ *Re L (Section 37 Direction)* [1999] 1 FLR 984.

¹¹⁴ *Re M (Official Solicitor's Role)* [1998] 3 FLR 815 suggested that it was inappropriate to use the Official Solicitor to ensure that a local authority carried out an investigation in the manner requested by the judge.

¹¹⁵ CA 1989, s 37(3).

¹¹⁶ *Nottingham CC v P* [1993] 2 FLR 134, [1994] 1 FCR 624.

¹¹⁷ *Re K (Children)* [2012] EWCA Civ 1549.

¹¹⁸ Choudhry and Herring (2006b).

C Child assessment orders

A child assessment order is a preliminary order that allows assessments to take place to determine whether further orders may be necessary.

(i) When is a child assessment order appropriate?

A child assessment order (CAO) is appropriate where the local authority has concerns about a child but needs more information before it is able to decide what action to take. The guidance makes it clear the CAO is for cases 'where the child is not thought to be at immediate risk'.¹¹⁹ If the grounds for an emergency protection order (EPO) are made out, s 43(4) of the Children Act 1989 states that the court may not make a CAO but must make an EPO. In fact, it is difficult to envisage when a CAO may be appropriate.¹²⁰ If there is a serious concern that the child is being abused, and the parents refuse to have the child examined, then an EPO will normally be more appropriate; whereas if the parents are happy to agree to the examination, then there may be no need for a CAO at all. It is not surprising that few CAOs are granted.¹²¹

(ii) When can the CAO be made?

A CAO can only be requested by a local authority or an 'authorised person' (at present, only the NSPCC).¹²² The court can make a CAO under s 43(1) where:

LEGISLATIVE PROVISION

Children Act 1989, section 43(1)

- (a) the applicant has reasonable cause to suspect that the child is suffering, or is likely to suffer, significant harm;
- (b) an assessment of the state of the child's health or development, or of the way in which he has been treated, is required to enable the applicant to determine whether or not the child is suffering, or is likely to suffer, significant harm; and
- (c) it is unlikely that such an assessment will be made, or be satisfactory, in the absence of an order under this section.

The phrase 'significant harm' has the same meaning as in s 31, which will be discussed later in this chapter. The focus of the test is the applicant's belief of the risk of significant harm: it must be reasonable. The hurdle is lower than that for a care order, for example, because the CAO is less intrusive into family life.¹²³ Once the court is satisfied that s 43(1) is fulfilled, it must still be persuaded that the making of the CAO is in the child's welfare under s 1(1) and satisfies s 1(5) of the Children Act 1989.¹²⁴

¹¹⁹ Department for Education (2014b: 35).

¹²⁰ Parton (1991: 188–90).

¹²¹ The numbers are so small that the Government stopped collecting statistics on CAOs after 1993.

¹²² Contrast with the emergency protection order, which can be applied for by anyone.

¹²³ One important difference between the CAO and the EPO is that an application for the CAO can be applied for *ex parte*.

¹²⁴ The checklist of factors in s 1(3) does not apply: *Re R (Recovery Orders)* [1998] 2 FLR 401.

(iii) The effects of a CAO

There are two automatic results of a CAO. First, the order requires any person who is able to do so to produce the child to a person named in the order (normally a social worker). The second effect is that the order authorises the named person to carry out an assessment of the child.¹²⁵ There are likely to be specific directions in the order relating to medical or psychiatric examinations: for example, who should conduct the examinations and where they should take place.¹²⁶ The local authority does not acquire parental responsibility, which remains with the parents. It seems that a child may refuse to submit to an examination if he or she is of sufficient understanding.¹²⁷

The maximum duration of a CAO is seven days from the starting date specified in the order.¹²⁸ There is no power to extend this time period. Seven days is unlikely to be long enough for some psychological examinations. The justification for the limitation is that seven days should be enough to tell the authority whether further orders are required.

7 Emergencies: criminal prosecutions and protection orders

There are a range of remedies available if children need immediate assistance.¹²⁹

A Police protection

In cases requiring urgent action, the police have some powers to protect children. The powers enable the police to act immediately, without the delay of having to apply to a court. For example, in *Re M (A Minor) (Care Order: Threshold Conditions)*¹³⁰ the police were called to a house where a husband had murdered his wife in front of the children; the police were able to take the children immediately into their care.

These powers exist under s 46(1) of the Children Act 1989: if a police constable has reasonable cause to believe that a child would be likely to suffer significant harm then the child can be removed by the constable to 'suitable accommodation'.¹³¹ However, this section does not give the police the power to enter and search a building. This is an important limitation and means that, if the parents refuse to cooperate with the police, and the child is in the parents' house, the police have no powers under the Children Act 1989 to protect the child.¹³²

The children can be kept in police protection for up to 72 hours. Once a child is taken into police protection, a designated officer will be appointed to be in charge of the case. He or she must inform the local authority of the decision to protect the child, and must let the parents or persons with parental responsibility know of the steps taken.¹³³ The police do not acquire parental responsibility when a child is in police protection, but the designated officer is required to do what is reasonable in all the circumstances to promote the child's welfare.¹³⁴

¹²⁵ CA 1989, s 43(7).

¹²⁶ If the child is to be removed from home, this should be set out in the order: CA 1989, s 43(10).

¹²⁷ CA 1989, s 43(8); but note the interpretation of *South Glamorgan County Council v W and B* [1993] 1 FLR 574, [1993] 1 FCR 626 on the similarly worded s 44(7), that the court may override the refusal of a child.

¹²⁸ CA 1989, s 43(5).

¹²⁹ See Masson (2005) and Masson *et al.* (2007) for excellent discussions of this topic.

¹³⁰ [1994] 2 AC 424.

¹³¹ The constable may also take reasonable steps to remove the child to a hospital or other place.

¹³² Unless the police are able to use their general powers to arrest people or search houses under the Police and Criminal Evidence Act 1984.

¹³³ CA 1989, s 46(3).

¹³⁴ CA 1989, s 46(9)(b).

He or she must permit reasonable contact between the child and anyone with parental responsibility, or anyone else with whom the child was living.¹³⁵ The child must be released to the parent or person with parental responsibility unless there are reasonable grounds to believe that he or she is likely to suffer significant harm if released.¹³⁶

B The emergency protection order

Learning objective 6

Consider the use of emergency protection orders

(i) When Is an emergency protection order appropriate?

Where it is clear that the child is suffering significant harm, but the local authority is not in a position to decide the long-term future of the child, then an emergency protection order (EPO) is appropriate.¹³⁷ The guidance explains that the purpose of an EPO is to enable 'the child to be removed from where he or she is, or to be kept where he or she is, if this is necessary to provide immediate short-term protection.'¹³⁸ The EPO should only be used in emergencies, as it involves the immediate removal of a child, often without notice to the parents or time to prepare the child appropriately.¹³⁹ Munby J has said that an EPO requires exceptional circumstances and there must be no less drastic alternatives available.¹⁴⁰

(ii) Who may apply?

Anyone can apply for an EPO. This is by contrast with a child assessment order, care order or supervision order. Restrictions on who can apply for the order seem inappropriate, given the kind of urgent situations in which the EPO is appropriate. The police, local authorities, teachers, doctors or close relatives are most likely to be the ones who will apply. If someone apart from the local authority is applying for the EPO, the local authority can take over the application if appropriate. As it is an emergency application, the EPO will normally be applied for *ex parte*.¹⁴¹

(iii) What are the grounds for the order?

There are three grounds for obtaining an EPO.

1. Where 'there is reasonable cause to believe that the child is likely to suffer significant harm if . . . (i) he is not removed to accommodation provided by or on behalf of the applicant'.¹⁴² This ground could be satisfied, for example, if there is reasonable cause to believe that the child is being abused.
2. Where 'there is reasonable cause to believe that the child is likely to suffer significant harm if . . . (ii) he does not remain in the place in which he is then being accommodated'.¹⁴³ This might apply where the child is currently safe, but there is a fear that he or she will be

¹³⁵ CA 1989, s 46(10).

¹³⁶ CA 1989, s 46(5).

¹³⁷ For detailed judicial guidance on the procedures and purposes of the EPO see *Re X (Emergency Protection Orders)* [2006] EWHC 510 (Fam).

¹³⁸ Department for Education (2014b: 37).

¹³⁹ *Re X (Emergency Protection Orders)* [2006] EWHC 510 (Fam). If used when there is no real emergency then there may well be an infringement of parents' human rights: *Haase v Germany* [2004] Fam Law 500.

¹⁴⁰ *X Council v B (Emergency Protection Orders)* [2004] EWHC 2015 (Fam). See *Haringey LBC v C* [2005] Fam Law 351 for a case where Ryder J believed an emergency protection order was unnecessary.

¹⁴¹ Family Proceedings Court (Children Act) Rules 1991 (SI 1991/1395), r 4(5).

¹⁴² CA 1989, s 44(1)(a)(i).

¹⁴³ CA 1989, s 44(1)(a)(ii).

removed to a place where they may be harmed. For example, if the child has run away to his or her grandparents, but the local authority fears that the father may be on the point of finding the child and taking him or her back to an abusive home life.

3. Under s 44(1)(b) a local authority or the NSPCC¹⁴⁴ can apply for an EPO where: the applicant is making enquiries into the child's welfare; and 'those enquiries are being frustrated by access to the child being unreasonably refused to a person authorised to seek access and that the applicant has reasonable cause to believe that access to the child is required as a matter of urgency'.¹⁴⁵

The NSPCC (but not local authorities) need to show also that there is reasonable cause to suspect that the child is suffering or is likely to suffer significant harm.

These grounds are all prospective; they relate to the fear of harm in the future. So an EPO cannot be made on the basis of past harm unless the fact of past harm is evidence of a fear of future significant harm. The test attempts to strike a balance between ensuring that proceedings in these emergency situations do not get bogged down in complex questions of evidence, while at the same time ensuring that children are removed only when there is evidence to justify rapid intervention.

Even if the grounds for an EPO are satisfied, the court must still decide whether or not to make an EPO using the welfare principle. Under article 8 of the European Convention on Human Rights the local authority will be required to consider whether there were any alternatives to removing the children under the emergency order.¹⁴⁶

CASE: *X Council v B and Others (Emergency Protection Orders)* [2004] EWHC 2015 (Fam)

Munby J provided authoritative guidance on the use of the emergency protection order (EPO). The case concerned three children who had a variety of difficulties. The parents, not surprisingly, struggled with the care of these children and there was evidence that the children suffered and were likely to suffer harm at the hands of their parents. An EPO was applied for and obtained. The case concerned an appeal against that order.

Munby J emphasised that an EPO was a drastic order to make. His description shows why:

An EPO, summarily removing a child from his parents, is a terrible and drastic remedy . . . After all, the child of five or ten who, as in the present case, is suddenly removed from the parents with whom he has lived all his life is exposed to something the new-born baby is mercifully spared: being suddenly wrenched away in frightening – perhaps terrifying – circumstances from everything he has known and loved and taken away by people and placed with other people who, however caring and compassionate they may be, are in all probability total strangers.¹⁴⁷

Partly with these concerns in mind, Munby J listed the features of the statutory regime that he believes are not entirely satisfactory. In particular, he noted that an EPO can be made without notice and the application need only be served on the parent 48 hours after the order is made; and that there is no appeal against the making or extension of an EPO. These concerns led him to consider the impact of the Human Rights Act 1998 on the law. He emphasised that the Human Rights Act 1998 requires that an EPO is appropriate only where there is

¹⁴⁴ CA 1989, s 31(9).

¹⁴⁵ CA 1989, s 44(1)(b).

¹⁴⁶ *KA v Finland* [2003] 1 FCR 201.

¹⁴⁷ Paragraph 34.

an imminent danger and the order is necessary. If a less interventionist order (e.g. a child assessment order) can adequately protect the child, then it should be used.¹⁴⁸ Similarly, if an EPO is to be made, it should last for as short a period as is necessary, and a child should be returned by a local authority to the parents as soon as it is safe to do so. Munby J stated:

An EPO, summarily removing a child from his parents, is a 'draconian' and 'extremely harsh' measure, requiring 'exceptional justification' and 'extraordinarily compelling reasons'. Such an order should not be made unless the FPC [Family Proceedings Court] is satisfied that it is both necessary and proportionate and that no other less radical form of order will achieve the essential end of promoting the welfare of the child. Separation is only to be contemplated if immediate separation is essential to secure the child's safety; 'imminent danger' must be 'actually established'.¹⁴⁹

Not just that, but the evidence supporting the claim must be effective:

The evidence in support of the application for an EPO must be full, detailed, precise and compelling. Unparticularised generalities will not suffice. The sources of hearsay evidence must be identified. Expressions of opinion must be supported by detailed evidence and properly articulated reasoning.¹⁵⁰

The judgment is likely to mean that courts will be far more wary about making EPOs. Where they are made, they will be of shorter duration and local authorities will exercise their powers under EPOs with even greater care. The significance of Munby J's judgment was shown by McFarlane J's recommendation in *Re X (Emergency Protection Orders)*¹⁵¹ that it should be made available to every court which hears an application for an EPO.

(iv) The effects of an EPO

Section 44(4) of the Children Act 1989 sets out the three legal effects of an EPO. The order:

LEGISLATIVE PROVISION

Children Act 1989, section 44(4)

- (a) operates as a direction to any person who is in a position to do so to comply with any request to produce the child to the applicant;
- (b) authorises—
 - (i) the removal of the child at any time to accommodation provided by or on behalf of the applicant and his being kept there; or
 - (ii) the prevention of the child's removal from any hospital, or other place, in which he was being accommodated immediately before the making of the order; and
- (c) gives the applicant parental responsibility for the child.

The EPO requires any person who can comply with the request to produce the child to do so. The order also forbids the removal of the child from the place where the applicant has

¹⁴⁸ Paragraph 49.

¹⁴⁹ Paragraph 57.

¹⁵⁰ Paragraph 58.

¹⁵¹ [2006] EWHC 510 (Fam), [2007] 1 FCR 551.

accommodated the child. If necessary, the applicant can enter any premises named in the EPO to search for the child,¹⁵² although if force is required then the police should be involved and a warrant is required.¹⁵³

The applicant will acquire parental responsibility on the making of the EPO. This is appropriate, as the applicant will remove the child and will be responsible for the child's welfare. However, the applicant obtains only limited parental responsibility – parental responsibility should only be exercised 'as is reasonably required to safeguard or promote the welfare of the child (having regard in particular to the duration of the order)'.¹⁵⁴ The applicant, therefore, should not make any decisions which are major or irreversible. The child should be returned home as soon as it appears to the applicant safe to do so.¹⁵⁵ Section 45(1) states that eight days is the maximum length of an EPO. The local authority or NSPCC can apply for an extension to a maximum total length of 15 days.¹⁵⁶

C Secure accommodation orders

Learning objective 5

State the law surrounding secure accommodation orders

The secure accommodation order is available only to local authorities and is used to control the aggressive behaviour of children.¹⁵⁷ The aim is not necessarily to provide treatment, but to ensure that problematic children are in an environment where they pose no danger to themselves or others. If the child is to be placed in secure accommodation for more than 72 hours, court approval through a secure accommodation order is required. The Government Guidance indicates it is to be used sparingly:

Restricting the liberty of a child is a serious step that can only be taken if it is the most appropriate way of meeting the child's assessed needs. A decision to place a child in secure accommodation should never be made because no other placement is available, because of inadequacies of staffing in a child's current placement, or because the child is simply being a nuisance. Secure accommodation should never be used as a form of punishment.¹⁵⁸

The grounds on which a child can be subject to a secure accommodation order are set out in s 25(1) of the Children Act 1989:

LEGISLATIVE PROVISION

Children Act 1989, section 25(1)

- (a) that–
 - (i) he has a history of absconding and is likely to abscond from any other description of accommodation; and
 - (ii) if he absconds, he is likely to suffer significant harm; or
- (b) that if he is kept in any other description of accommodation he is likely to injure himself or other persons.

¹⁵² CA 1989, s 48(3) and (4).

¹⁵³ CA 1989, s 48(9).

¹⁵⁴ CA 1989, s 44(5)(b).

¹⁵⁵ CA 1989, s 44(10).

¹⁵⁶ On application by the NSPCC or local authority under CA 1989, s 45(4).

¹⁵⁷ As well as the secure accommodation order, children can be detained under the Mental Health Act 1983; s 23 of the Children and Young Persons Act 1969; and s 38(6) of the Police and Criminal Evidence Act 1984.

¹⁵⁸ Department for Education (2014a).

The word 'likely' in this section means a real possibility that cannot sensibly be ignored.¹⁵⁹ In *Re W (A Child)*¹⁶⁰ a 17-year-old girl was housed by the local authority but being the victim of sexual exploitation kept staying away from her accommodation at night. A secure accommodation order could be used to protect her. The child's welfare is not the paramount consideration in deciding whether to make a secure accommodation order, as was made clear in *Re M (Secure Accommodation Order)*.¹⁶¹ It will be recalled that one of the purposes of the order is for the protection of the public, in which case the order may be justifiable, even if it is not for the child's benefit. The court's role is simply to test the evidence and fix the duration of the order, but not to determine what happens to the child during the accommodation.¹⁶² A local authority must review the detention one month after the making of the order and thereafter every three months. The local authority must be satisfied that the criteria are still met and that detention is necessary.¹⁶³

In *Re K (A Child) (Secure Accommodation Order: Right to Liberty)*¹⁶⁴ the Court of Appeal held that a secure accommodation order deprived a child of liberty and therefore fell within article 5 of the European Convention on Human Rights, which makes it clear that 'nobody shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law'.¹⁶⁵ The article lists the circumstances in which a detention may be permitted. A secure accommodation order could be compliant with the article on the basis of article 5(1)(d), which permits: 'the detention of a minor by lawful order for the purpose of educational supervision or his lawful detention for the purpose of bringing him before the competent legal authority'. Dame Elizabeth Butler-Sloss explained that education in article 5(1)(d) included education broadly defined. However, it would not be possible to use a secure accommodation order simply to punish or detain a child if there was no educational element in what was being done.¹⁶⁶

D Exclusion orders

Under ss 38A and 44A of the Children Act 1989¹⁶⁷ exclusion orders are available to the local authority in addition to an emergency protection order and interim care orders. The exclusion requirement may include one or more of the following (s 38A(3)):

LEGISLATIVE PROVISION

Children Act 1989, section 38A(3)

- (a) a provision requiring the relevant person to leave a dwelling-house in which he is living with the child;
- (b) a provision prohibiting the relevant person from entering a dwelling-house in which the child lives; and
- (c) a provision excluding the relevant person from a defined area in which a dwelling-house in which the child lives is situated.

¹⁵⁹ *S v Knowsley BC* [2004] EWHC 491 (Fam).

¹⁶⁰ [2016] EWCA Civ 804.

¹⁶¹ [1995] 1 FLR 418.

¹⁶² *Re W (A Minor) (Secure Accommodation Order)* [1993] 1 FLR 692.

¹⁶³ *LM v Essex CC* [1999] 1 FLR 988. A failure to do this could lead to a successful judicial review: *S v Knowsley BC* [2004] Fam Law 653.

¹⁶⁴ [2001] 1 FCR 249 CA, discussed in Masson (2002b).

¹⁶⁵ In *Bouamar v Belgium* (1987) 11 EHRR 1, where a person with a history of aggressive behaviour was detained, the court suggested that the detention was lawful only if the matter was brought speedily before the court.

¹⁶⁶ *Re M (A Child) (Secure Accommodation)* [2001] 1 FCR 692 emphasises that children have rights under article 6 to a fair trial in applications for secure accommodation orders.

¹⁶⁷ Inserted by Family Law Act 1996.

The circumstances in which an exclusion order can be made are (s 38A(2)):

LEGISLATIVE PROVISION

Children Act 1989, section 38A(2)

- (a) that there is reasonable cause to believe that, if a person ('the relevant person') is excluded from a dwelling-house in which the child lives, the child will cease to suffer, or cease to be likely to suffer, significant harm, and
- (b) that another person living in the dwelling-house (whether a parent of the child or some other person)–
 - (i) is able and willing to give to the child the care which it would be reasonable to expect a parent to give him, and
 - (ii) consents to the inclusion of the exclusion requirement.

There are two important limitations on the exclusion order. First, the exclusion order can only be made if the grounds for an emergency protection order or interim care order are made out. Both of these orders are short-lived, and so the exclusion requirement offers only short-term protection. The second requirement is that there must be another person in the home who is able and willing to care for the child, and who consents to the inclusion of the exclusion requirement.¹⁶⁸ If, for example, the mother wishes to continue her relationship with the suspected abuser, she may well refuse to consent. She may then have to choose between consenting to the removal of her partner and having her child removed under a care order.

E Wardship and the inherent jurisdiction

A local authority could seek to invoke the court's inherent jurisdiction or wardship in cases where there were urgent concerns about a child and other orders are not adequate.¹⁶⁹ These have been used in a series of recent cases involving young people whom it is feared are being radicalised.¹⁷⁰ The President of the Family Law Division has issued detailed Guidance on how to deal with 'radicalisation cases'.¹⁷¹

In *London Borough of Tower Hamlets v M*¹⁷² two children were made wards of court because they were at risk of leaving the United Kingdom and being taken to 'ISIS countries' to be involved in terrorist groups. The orders included requiring the retrieval of their passports. Wardship can be particularly helpful given it has international application and can be used in relation to children who are already overseas.¹⁷³ The courts will intervene even if there is evidence that the

¹⁶⁸ *W v A Local Authority* [2000] 2 FCR 662.

¹⁶⁹ It may even be used in relation to those over 18, if they are vulnerable adults: *O v P* [2015] EWHC 935 (Fam).

¹⁷⁰ For example: *Re M (Wardship: Jurisdiction and Powers)* [2015] EWHC 1433 (Fam), *Re X (Children) and Y (Children) (No. 1)* [2015] EWHC 2265 (Fam), *Re Z* [2015] EWHC 2350; *London Borough of Tower Hamlets v B* [2015] EWHC 2491.

¹⁷¹ President's Guidance: Radicalisation cases in the Family Courts, 8 October 2015.

¹⁷² [2015] EWHC 869 (Fam).

¹⁷³ *Re X (Children) and Re Y (Children) (No. 1)* [2015] EWHC 2265 (Fam); *Re M (Wardship: Jurisdiction and Powers)* [2015] EWHC 1433 (Fam).

child has chosen to be involved in terrorist activities.¹⁷⁴ However, not all applications in cases of this kind have succeeded.¹⁷⁵ In *Re X (Children) (No. 3)*¹⁷⁶ it was emphasised that suspicions or speculations of radicalisation were not sufficient to justify court intervention.¹⁷⁷ The fact that siblings have made their way to areas of terrorist activity would be evidence that children are at risk.¹⁷⁸

As a longer term solution to cases of radicalisation, care proceedings may be brought. In *London Borough of Tower Hamlets v B*¹⁷⁹ an analogy was drawn between sexual abuse which violated the body and radicalisation which violated the mind. The use of care proceedings to remove the child from her parents was justified on the basis it provided the victim with peace and safety to reassert her own independence. Although if there is intervention and the family respond positively a care order may not be appropriate.¹⁸⁰

The inherent jurisdiction is not limited to cases of radicalisation. In *Birmingham City Council v Riaz*¹⁸¹ serious concerns were raised about a 17-year-old girl who was being sexually exploited by ten men. Although there was not sufficient evidence to bring a criminal prosecution the local authority successfully applied for an order under the inherent jurisdiction preventing them from having contact with her (or any other girl under the age of 18 not previously known to them).¹⁸²

F Local authorities and section 8 orders

A local authority may obtain a specific issue order or a prohibited steps order subject to the following restrictions:

1. A local authority may not apply for a specific issue order or prohibited steps order which has the same effect as a child arrangements order.¹⁸³ The policy behind this restriction is that if the child is not suffering sufficiently for a care order to be made then a local authority should not be seeking to arrange accommodation for the child against the parents' wishes.
2. If the child is in care, then no section 8 order may be made apart from a child arrangement order. As a local authority cannot apply for it, the effect is that a local authority cannot apply for a section 8 order in respect of a child it has in its care.

So there is limited scope for a local authority to use section 8 orders. They are appropriate, however, when a local authority might be concerned about a specific aspect of a parent's care of the child and, while not wanting to take the child into care, may wish to protect the child. For example, if parents are refusing to consent to necessary medical treatment the local authority might apply to the court for a specific issue order authorising the operation.¹⁸⁴ Thorpe LJ in *Langley v Liverpool CC*¹⁸⁵ stated that he had never encountered a case where a local authority had decided to use a prohibited steps order to deal with a child protection case.

¹⁷⁴ *Re Y (Wardship) (No. 1)* [2015] EWHC 2098 (Fam).

¹⁷⁵ *Re X (Children) and Y (Children) (No. 1)* [2015] EWHC 2265 (Fam).

¹⁷⁶ [2015] EWHC 3651 (Fam).

¹⁷⁷ Delahunty and Barnes (2015).

¹⁷⁸ *Re Y (Wardship) (No. 1)* [2015] EWHC 2098 (Fam).

¹⁷⁹ [2015] EWHC 2491 (Fam).

¹⁸⁰ *Re M (Children) (No. 2)* [2015] EWHC 2933 (Fam).

¹⁸¹ [2014] EWHC 4247 (Fam).

¹⁸² Although see *London Borough of Redbridge v SNA* [2015] EWHC 2140 (Fam) where there were concerns about the breadth of the order sought and it was held that criminal prosecutions were more appropriate.

¹⁸³ See Chapter 10.

¹⁸⁴ E.g. *Re R (A Minor) (Wardship: Consent to Medical Treatment)* [1992] 1 FLR 190, [1992] 2 FCR 229.

¹⁸⁵ [2005] 3 FCR 303 at para 77.

G The problem of ousting the abuser

One situation which has troubled the courts and local authorities is where a child is living with the mother and a man who is suspected of abusing the child. The ideal solution may be to remove the suspected abuser, while leaving the child with the mother. This is certainly an acceptable solution where the mother agrees that the man should be removed. However, where the mother wants the man to stay, there is a complex clash between the rights of the child and the rights of adults. For the state to force the mother to separate from her partner against her will would be a grave invasion of her rights, but that may be the only solution which protects the child. In such cases the options for the local authority are as follows:

1. The local authority will no doubt prefer to deal with the issue by informal co-operation and persuade the suspected abuser to leave the house voluntarily. The local authority may be able to offer assistance or alternative housing.¹⁸⁶
2. The local authority could encourage the mother to apply for an occupation order, under the Family Law Act 1996, Part IV, to remove the man from the house.
3. The local authority could apply for a care order or a supervision order. It could then remove the child from the home under the care order. Alternatively, the child could remain with the mother under a care or supervision order and the local authority would request that the abuser leave the home, with the threat that the child would be removed from the mother immediately if the abuser returns. However, the local authority cannot be forced to apply for a care or supervision order, and the court cannot make a care or supervision order unless the local authority applies for one. This is clear from *Nottingham CC v P*¹⁸⁷ in which the Court of Appeal was deeply concerned that there was no power to compel the local authority to take steps to protect the children. A local authority may be wary of applying for a care order and permitting a child to remain in the house because of the potential liability in tort if the child were abused. Further, if either a supervision or a care order was relied upon, a local authority may have grave difficulty in ensuring that the suspected abuser did not live in the house. A local authority, for these reasons, may prefer to remove a child from the house if a care order is made, and enable substantial contact between the child and his or her mother.
4. The availability of section 8 orders for the local authority in this kind of case is very limited. In *Nottingham CC v P* it was stressed that it was not possible for the local authority to obtain a section 8 order to remove the suspected abuser. Removing the man from the home is in the nature of a residence or contact order and cannot be applied for by a local authority. This does not prevent a prohibited steps order being granted on the application of a local authority where a suspected abuser is living apart from the mother and children. In *Re H (Minors) (Prohibited Steps Order)*¹⁸⁸ Butler-Sloss LJ argued that it was permissible to use a prohibited steps order to prevent a stepfather having contact with the children with whom he was no longer living.¹⁸⁹
5. Exclusion orders are available under ss 38A and 44A of the Children Act 1989. These can only offer a short-term solution, as explained above.

¹⁸⁶ CA 1989, Sch 2, para 5.

¹⁸⁷ [1993] 2 FLR 134, [1994] 1 FCR 624.

¹⁸⁸ [1995] 1 FLR 638, [1995] 2 FCR 547.

¹⁸⁹ See Chapter 10 for discussion of this case.

6. The courts have also been willing to grant orders under the inherent jurisdiction removing a suspected abuser from the home, although the limits of this are unclear.¹⁹⁰ In *Devon CC v S* it was argued that where the court could not make an order which adequately protected the child then the court should rely on the inherent jurisdiction.¹⁹¹ If the court is persuaded that the child needs protection, and no order could be made which would protect the child, then an order under the inherent jurisdiction can protect the child.

The ideal solution is to enable or encourage the mother to separate from the abuser. Indeed in *EH v Greenwich London Borough Council*¹⁹² the local authority were criticised for not seeing the mother on her own and explaining the dangers to the children of continuing the relationship. Wall LJ was shocked: 'Here was a mother who needed and was asking for help to break free from an abusive relationship. She was denied that help abruptly and without explanation. That, in my judgment, is very poor social work practice.'¹⁹³

H Protection of children by the criminal law

Learning objective 2

Discuss the protection offered to children by the criminal law

If a child is abused, as well as the question of whether the child should be taken into care there is the issue of whether criminal proceedings should be brought against the abuser. There is no one offence of child abuse; the general criminal law protects children, and so children could be the victims of the whole range of assaults in the Offences Against the Person Act 1861. There are also special offences designed to protect children.¹⁹⁴ For example, s 1 of the Children and Young Persons Act 1933 states that any wilful violent or non-violent neglect or ill-treatment which is 'likely to cause him unnecessary suffering or injury to health (including injury to or loss of sight, or hearing, or limb, or organ of the body, and any mental derangement)' is an offence.¹⁹⁵ The Sexual Offences Act 2003 has radically reformed the criminal law on sexual offences against children. The law on child neglect was updated in 2015 to make it clear it covered emotional as well as physical abuse.¹⁹⁶

The arguments in favour of criminal prosecution centre on the fact that prosecution demonstrates society's condemnation of child abuse. To the child, the prosecution sends the message that the state acknowledges the abuse suffered and that harm has been done. If the perpetrator is imprisoned then, even if this does not guarantee that the abuser will not abuse again, at least it ensures that during the imprisonment he or she will commit no further abuse. On the other hand, if the prosecution fails, the abuser may feel vindicated and the child less protected. Jane Fortin argues:

There is a widespread perception among child-care practitioners that, as presently organised, the criminal justice system does not promote the welfare of children caught up in its processes and that its use may even victimise them all over again. At every stage of the child protection process, efforts to help the child recover from the effects of abuse may be undermined by the prospect of criminal proceedings against the abuser.¹⁹⁷

¹⁹⁰ *Re S (Minors) (Inherent Jurisdiction: Ouster)* [1994] 1 FLR 623; *Devon CC v S* [1994] 1 FLR 355, [1994] 2 FCR 409.

¹⁹¹ [1994] 1 FLR 355, [1994] 2 FCR 409.

¹⁹² [2010] 2 FCR 106.

¹⁹³ Paragraph 105.

¹⁹⁴ See, e.g., Punishment of Incest Act 1908; Sexual Offences Act 1956, ss 10–11, 14, 25 and 28.

¹⁹⁵ See Taylor and Hoyano (2012) for a helpful critique of this offence.

¹⁹⁶ Serious Crime Act 2015, s 66.

¹⁹⁷ Fortin (2009b: 644).

While she accepts that an argument could be made that the benefits to children as a class could justify criminal proceedings, she doubts this is made out given the low conviction rates.

8 Compulsory orders: care orders and supervision orders

Learning objective 4

Summarise the differences between a care order and a supervision order

To provide longer-term solutions for a child who is suffering serious harm the choice is between care or supervision orders.¹⁹⁸ Care and supervision orders should only be applied for as a last resort, if voluntary arrangements and the provision of services cannot adequately protect a child. As Bainham has put it: 'Court orders for care and supervision are . . . very much the ambulance

at the bottom of the cliff while the support services are the (however inadequate) fence at the top.'¹⁹⁹ Once a care order has been made the local authority can plan for adoption or other forms of long-term care.

The Children Act 1989 makes it clear that a child can only be taken into care through one route, that is s 31.²⁰⁰ This was dramatically revealed in *R (G) v Nottingham CC*²⁰¹ where a local authority removed a newborn baby from a mother. They did so without any court authorisation. The authority relied on the fact that she had not opposed the taking of the baby, but Munby J held that fell well short of the consent required. As he put it, 'helpless acquiescence' could not be equated with consent. The local authority, even if acting in the best interests of the child, had failed to obtain proper legal authorisation for what they did.²⁰² As Lady Hale put it in *Re SB (Children)*:

It is not enough that the social workers, the experts or the court think that a child would be better off living with another family. That would be social engineering of a kind which is not permitted in a democratic society.²⁰³

A Who can apply?

Section 31(1) states that only a local authority or the NSPCC can apply for a care or supervision order. There is provision for the Secretary of State to add to that list, but to date there have been no additions. Before the NSPCC brings care proceedings, it should consult the local authority in whose area the child is ordinarily resident.²⁰⁴

B Who can be the subject of care or supervision proceedings?

Care and supervision orders can only be made in respect of a child who is under 18.²⁰⁵ Orders should only be made if the child is habitually resident in the United Kingdom, or currently present there.²⁰⁶ A married child cannot be taken into care. The court has consistently held

¹⁹⁸ The effects of the orders will be discussed in detail later in the text (Chapter 12).

¹⁹⁹ Bainham (2005: 325).

²⁰⁰ *Re T (A Minor) (Care Order: Conditions)* [1994] 2 FLR 423, [1994] 2 FCR 721.

²⁰¹ [2008] EWHC 152 (Admin) and [2008] EWHC 400 (Admin).

²⁰² See Bainham (2008b).

²⁰³ *Re SB (Children)* [2009] UKSC 17, para 7.

²⁰⁴ CA 1989, s 31(6) and (7).

²⁰⁵ CA 1989, s 105.

²⁰⁶ *Lewisham London Borough Council v D (Criteria for Territorial Jurisdiction in Public Law Proceedings)* [2008] 2 FLR 1449.

that the fetus is not a person and so cannot be the subject of a care order, as was established in *Re F (In Utero)*.²⁰⁷ The local authority can only intervene to protect a fetus if the mother consents to the intervention.²⁰⁸ However, harm done to the foetus might be relied upon as evidence to place a child in care shortly after birth.²⁰⁹ In *A Local Authority v C*²¹⁰ there were grave concerns over a pregnant woman. An order under the inherent jurisdiction was made to protect the child, which was to come into effect on birth.

C The effect of a care order

Section 33 of the Children Act 1989 sets out the effects of a care order, which are as follows:

(i) Care orders and parental responsibility

Section 33(3) of the Children Act 1989 states that the local authority acquires parental responsibility by virtue of the care order and has 'the power (subject to the following provisions of this section) to determine the extent to which a parent or guardian of the child may meet his parental responsibility for him'.²¹¹ So, on the making of a care order, the local authority acquires parental responsibility, but parents or guardians retain theirs. However, those who have parental responsibility by virtue of a residence order lose parental responsibility on the making of a care order. This is because a care order automatically brings to an end any residence order. Even though parents and guardians retain parental responsibility, they cannot exercise it in a way which is incompatible with the local authority's plans.²¹² This means that, although parental responsibility is shared between parents and local authorities, in fact it is the local authority that very much controls what happens to the children in its care. However, that is not to say that local authorities are completely unrestrained in their use of parental responsibility and parents are powerless. The Children Act 1989 sets out a number of limitations on the exercise of a local authority's powers over children in its care, which protect the interests of parents. The list is interesting because it reflects those issues which the law regards as so fundamental to the concept of being a parent that the local authority should not be able to override the parents' wishes:

- Local authorities cannot permit the child to be brought up in a different religion from that which the parents intended for the child.²¹³
 - Local authorities do not have the right to consent (or refuse to consent) to the making of an application for adoption.²¹⁴ The consent of the parents is required before an adoption order is made.²¹⁵
 - Local authorities cannot appoint a guardian.²¹⁶
 - Local authorities cannot cause the child to be known by a different surname, unless they have the consent of all those with parental responsibility, or the leave of the court.²¹⁷
- An example of the kind of circumstances in which the court may be willing to give leave

²⁰⁷ [1988] Fam 122.

²⁰⁸ *St George's Healthcare NHS Trust v S* [1998] 2 FLR 728.

²⁰⁹ *Re D (A Minor)* [1987] 1 FLR 422; *Re N (Leave to Withdraw Care Proceedings)* [2000] 1 FLR 134.

²¹⁰ [2013] EWHC 4036 (Fam).

²¹¹ Although under CA 1989, s 33(4) the local authority can only restrict a parent's parental authority if satisfied that to do so is necessary to safeguard or promote the child's welfare.

²¹² CA 1989, s 33(3).

²¹³ CA 1989, s 33(6)(a).

²¹⁴ CA 1989, s 33(6)(b)(i).

²¹⁵ See below, *The consent of the parents* section.

²¹⁶ CA 1989, s 33(6)(b)(iii) (see Chapter 8).

²¹⁷ CA 1989, s 33(7).

to change a surname is *Re M, T, P, K and B (Care: Change of Name)*,²¹⁸ where the children were in terror of their parents and had a pathological fear that their parents would remove them from their foster parents. Changing the children's name was seen as a means of preventing the parents from discovering the whereabouts of the children.

- The child cannot be removed from the United Kingdom unless all those with parental responsibility consent or the court grants leave.²¹⁹
- The mother of a child in care is at liberty to enter a parental responsibility agreement, thereby giving the father parental responsibility, despite the local authority's opposition.²²⁰

The sharing of the parental responsibility between the parents and the local authority is highly controversial.²²¹ Some argue that it is inappropriate that parents who have appallingly abused their children, so that their children have been taken into care, retain parental responsibility. Others argue that the retention of parental responsibility by parents weakens the powers of local authorities.

A care order lasts until any of the following events occur:

- The child reaches the age of 18.
- The court discharges the care order.²²² The child, the local authority and anyone with parental responsibility may apply for the discharge of a care order.²²³ It should be noted that unmarried fathers without parental responsibility, therefore, cannot apply for a discharge, although the father could apply for a residence order which, if granted, would automatically discharge the care order.²²⁴ According to *Re A (Care: Discharge Application by Child)*,²²⁵ a child applying for discharge of a care order to which he or she is subject does not need leave. The welfare principle²²⁶ governs applications to discharge care orders.²²⁷ In some cases it may be appropriate to discharge a care order and replace it with a supervision order.²²⁸ A care order in relation to a 15-year-old was discharged after the child ran away from authority care and the local authority was unable to return him to their care. The order was doing nothing and so there was no point in maintaining it.²²⁹
- If the court grants a residence order in respect of a child, this will bring to an end any care order relating to that child.
- An adoption order will bring to an end a care order.

D The effect and purpose of the supervision order

The supervision order aims to give the local authority some control over the child, without the degree of intervention involved in a care order.²³⁰ Under a supervision order the child will remain at home, but will be under the watch of a designated officer of a

²¹⁸ [2000] 1 FLR 645.

²¹⁹ CA 1989, Sch 2, para 19(3).

²²⁰ *Re X (Parental Responsibility Agreement)* [2000] 1 FLR 517.

²²¹ Eekelaar (1991c: 43).

²²² A supervision order can be varied or discharged on the application of the child, any person with parental responsibility or the supervisor. Applications to discharge supervision orders are also governed by the welfare principle, although if the court wished to substitute a supervision order with a care order, this does necessitate proof of the significant harm test.

²²³ CA 1989, s 39(1). Variation of a care order is not permitted because there is nothing to vary apart from discharging it.

²²⁴ CA 1989, s 91(1).

²²⁵ [1995] 1 FLR 599, [1995] 2 FCR 686, Thorpe J.

²²⁶ CA 1989, s 1.

local authority, or a probation officer.²³¹ Under s 35(1) of the Children Act 1989 the supervisor has three duties:²³²

LEGISLATIVE PROVISION

Children Act 1989, section 35(1)

- (a) to advise, assist and befriend the supervised child;
- (b) to take such steps as are reasonably necessary to give effect to the order; and
- (c) where—
 - (i) the order is not wholly complied with; or
 - (ii) the supervisor considers that the order may no longer be necessary, to consider whether or not to apply to the court for its variation or discharge.

The making of the order does not alter the legal position of the parents: they retain full parental responsibility; the supervision order does not give parental responsibility to the local authority.

The key element of a supervision order is that a supervisor advises, assists and befriends the child. As well as befriending the child, the supervisor can advise the parents and make recommendations about the upbringing of children. It is also possible to add specific conditions to a supervision order. Schedule 3 to the Children Act 1989²³³ lists the conditions that a court can impose. These include requiring a child to live at a particular place, requiring the child to present him- or herself at a relevant place, or to participate in special activities. It is possible to impose conditions on a supervision order not listed in Sch 3, but only with the parents' consent.²³⁴

The whole ethos of the supervision order is based on the parents' consent and co-operation. The supervision order does not give the supervisor the right to enter any property and remove a child. Nor does the supervisor have the power to direct the child to undergo medical or psychiatric examination or treatment. It is not even possible to force the parents to comply with the conditions in the order or the requests of the supervisor. Critics claim that supervision orders 'lack teeth' and are 'ineffective'.²³⁵ However, the failure to comply with requests from the supervisor may lead to the supervisor applying for a care order or emergency protection order. As the threshold criteria for the making of a care and supervision order are the same, the court may well be convinced that it would be appropriate to make a care order if the parents are refusing to co-operate with the supervisor. This means that, although the supervision order is apparently based on partnership and voluntary co-operation between the local authority and the parents, the threat of having the children removed under a care order gives the supervision order a coercive edge. However, supervision orders appear to be unpopular with some

²²⁷ *Re T (Termination of Contact: Discharge of Order)* [1997] 1 FLR 517.

²²⁸ E.g. *Re O (Care: Discharge of Care Order)* [1999] 2 FLR 119.

²²⁹ *Re C (Care: Discharge of Care Order)* [2010] 1 FLR 774. The court made it clear that even if a care order was being ineffective there may be circumstances which made its retention useful.

²³⁰ If the problems relate specifically to education, a special education supervision order is available.

²³¹ CA 1989, s 31(1)(b).

²³² CA 1989, Sch 3 sets out their duties in further detail.

²³³ *Re V (Care or Supervision Order)* [1996] 1 FLR 776.

²³⁴ CA 1989, Sch 3, para 3(1).

²³⁵ Harwin *et al.* (2016).

social workers who told researchers that the orders were 'a complete waste of time' and toothless.²³⁶ A different kind of concern is indicated by research that children left with abusive parents are at risk of further abuse. In one study 40 per cent of children left with parents following local authority intervention suffered maltreatment in the 12 months following protective intervention. Fifteen per cent suffered serious maltreatment.²³⁷

A supervision order lasts for up to one year initially, although it can be made for a shorter period.²³⁸ It is possible for the supervisor to apply for an extension for up to three years. The welfare principle will cover any application for an extension.²³⁹ Any existing supervision order will be terminated if the court subsequently makes a care order.²⁴⁰

E Care or supervision order?

Where the threshold criteria (to be discussed shortly) have been made out, the local authority must decide whether a care order or a supervision order is more appropriate.²⁴¹

The following factors are relevant:

1. If the local authority wishes to remove a child from the home, it must apply for a care order.²⁴² It is not possible to remove a child under a supervision order.²⁴³ If the local authority decides that the child should stay with the family, either a care order or a supervision order can be made. If a care order is made, the child can be removed by the local authority at any time.²⁴⁴ If a supervision order is made, the child can only be removed if a further application is made to the court, for an emergency protection order for example. The supervision order, combined with the power to apply for an emergency protection order, should be regarded as a 'strong package', especially as the supervision order gives instant access into the child's home.²⁴⁵ However, where there is very serious harm or sexual abuse, the courts have suggested that a care order should be made.²⁴⁶
2. If the child is to be looked after by foster carers, a care order is normally appropriate. Although a child can be placed with foster carers under a supervision order, with the consent of the parents, the parents would have the right in law to remove the child from the foster parents.
3. Hale J in *Re O (Care or Supervision Order)*²⁴⁷ stated that a supervision order normally requires co-operation from the parents and is therefore appropriate only where there is at least a reasonable relationship between the parent and the local authority.²⁴⁸
4. Where the local authority wishes to acquire parental responsibility, a care order is appropriate.²⁴⁹ *Re V (Care or Supervision Order)*²⁵⁰ demonstrates this point well. There was a

²³⁶ Hunt and McLeod (1998: 237).

²³⁷ Brandon (1999: 200–1).

²³⁸ See, e.g., *M v Warwickshire* [1994] 2 FLR 593.

²³⁹ *Re A (A Minor) (Supervision Extension)* [1995] 1 FLR 335.

²⁴⁰ CA 1989, Sch 3, para 10.

²⁴¹ For a useful summary of the relevant factors, see *Re D (Care or Supervision Order)* [2000] Fam Law 600.

²⁴² *Oxfordshire CC v L (Care or Supervision Order)* [1998] 1 FLR 70.

²⁴³ Unless the child is voluntarily accommodated under CA 1989, s 20.

²⁴⁴ *Re T (A Child) (Care Order)* [2009] 2 FCR 367.

²⁴⁵ *Re S (J) (A Minor) (Care or Supervision)* [1993] 2 FLR 919 at p 947.

²⁴⁶ *Re S (Care or Supervision Order)* [1996] 1 FLR 753.

²⁴⁷ [1996] 2 FLR 755, [1997] 2 FCR 17.

²⁴⁸ *Oxfordshire CC v L (Care or Supervision Order)* [1998] 1 FLR 70.

²⁴⁹ *Re T (A Child) (Care Order)* [2009] 2 FCR 367.

²⁵⁰ [1996] 1 FLR 776.

dispute between the parents and the local authority over what kind of education was appropriate for a disabled child. The local authority wanted to be able to make decisions relating to the child's education and so a care order was made, even though the child was to remain with the parents.

5. If a child was injured through an act of a parent that was thought to be out of character and so there was no future risk to the child, then a supervision order may be more appropriate than a care order.²⁵¹
6. If the parents would react very negatively to the making of a care order, but not to a supervision order, this could be a significant factor, especially if the children are going to remain with the parents.²⁵²

In theory, a court could grant a care order even though the local authority only applied for a supervision order,²⁵³ although this would require 'urgent and strong reasons'.²⁵⁴

F Grounds for supervision and care orders: the threshold criteria

Learning objective 5

Analyse the threshold criteria

The grounds for a supervision or care order are set out in s 31 of the Children Act 1989. Before a care order or a supervision order can be made, it is necessary to show four things:

1. The court must be satisfied that 'the child concerned is suffering, or is likely to suffer, significant harm'.²⁵⁵
2. '[T]hat the harm, or likelihood of harm, is attributable to: (i) the care given to the child, or likely to be given to him if the order were not made, not being what it would be reasonable to expect a parent to give him; or (ii) the child's being beyond parental control'.²⁵⁶
3. The making of the order would promote the welfare of the child.²⁵⁷
4. That making the order is better for the child than making no order at all.²⁵⁸

The first two requirements are commonly known as the 'threshold criteria'²⁵⁹ and we shall focus on those in this section. It should be stressed that a care order or supervision order cannot be made simply on the basis that the child's parents agree that the child should be taken into care.²⁶⁰ By contrast, simply because there is significant harm does not mean that an order must be made; it must also be shown that the making of the order will advance the child's welfare.²⁶¹ If there are several children involved, each child should be considered separately. For example, in *Re B (Care Proceedings: Interim Care Order)*²⁶² the evidence was that the parents cared for

²⁵¹ *Manchester CC v B* [1996] 1 FLR 324.

²⁵² *Re B (Care Order or Supervision Order)* [1996] 2 FLR 693, [1997] 1 FCR 309.

²⁵³ In *Re M (A Minor) (Care Order: Threshold Conditions)* [1994] 2 AC 424 the House of Lords made a care order even though the local authority wished to withdraw its application; see also *Re K (Care Order or Residence Order)* [1995] 1 FLR 675, [1996] 1 FCR 365, where a care order was made contrary to the local authority's wishes.

²⁵⁴ *Oxfordshire CC v L (Care or Supervision Order)* [1998] 1 FLR 70.

²⁵⁵ CA 1989, s 31(2)(a).

²⁵⁶ CA 1989, s 31(2)(b).

²⁵⁷ CA 1989, s 1(1).

²⁵⁸ CA 1989, s 1(5). See *Redbridge LB v B, C and A* [2011] EWHC 517 (Fam).

²⁵⁹ See Wilkinson (2009) for a critical assessment of these.

²⁶⁰ *Re G (A Minor) (Care Proceedings)* [1994] 2 FLR 69.

²⁶¹ *Humberside CC v B* [1993] 1 FLR 257, [1993] 1 FCR 613.

²⁶² [2010] 1 FLR 1211.

the daughter perfectly well, but treated their son very badly. The threshold criteria were only made out in respect of the son. A care order could not be made in relation to the daughter.

These two requirements of the threshold criteria will now be considered separately.

(i) 'Is suffering or is likely to suffer significant harm'

The following terms need to be examined.

(a) Harm

Harm is defined in s 31(9) of the Children Act 1989 as 'ill-treatment or the impairment of health or development, including, for example, impairment suffered from seeing or hearing the ill-treatment of another'. This last clause covers, for example, the harm a child may suffer while witnessing the domestic violence of her mother.²⁶³ 'Ill-treatment' includes 'sexual abuse and forms of ill-treatment which are not physical, including, for example, impairment suffered from seeing or hearing the ill-treatment of another'; 'development' is defined as 'physical, intellectual, emotional, social or behavioural development'; and 'health' means 'physical or mental health'.²⁶⁴ Therefore, harm is not limited to physical abuse. For example, children can be harmed if their parents do not talk to them, or deprive them of opportunities of developing social skills. Similarly, not attending school²⁶⁵ or not receiving adequate medical treatment²⁶⁶ could amount to harm. In *Re C (A Child)*²⁶⁷ confirmed that the child witnessing constant parental arguments could amount to harm. In *Re L (Interim Care Order: Extended Family)*²⁶⁸ a suggestion that emotional harm should be seen as less serious than physical harm was firmly rejected.

The harm can be due to acts or omissions.²⁶⁹ Of course, harm can be caused unintentionally. In *Re V (Care or Supervision Order)*²⁷⁰ a mother, who was very protective of her son, sought to keep her son at home rather than sending him to a special school (he suffered from cystic fibrosis). This was held as amounting to harm, even though she was acting from the best of motives.

There can be difficulties in defining harm. Imagine a child who is brought up by devoutly religious parents who require the child to spend two hours a day in prayer and memorising holy texts. Some may say this is providing the child with an invaluable spiritual basis for his or her life. Others may regard this as abuse, hindering the child's social development. Another, perhaps controversial, example of harm is the following case:

TOPICAL ISSUE

The 'miracle' baby case

In *London Borough of Haringey v Mrs E, Mr E*²⁷¹ a couple were caring for a child they claimed was theirs, produced as a result of a miracle following a prayer session with a religious leader. It was clear that the child was not biologically theirs and there were very strong suspicions that the child had been illegally brought into the country from overseas. It was held that the child was likely to suffer significant harm because the child was not Mr and Mrs E's and

²⁶³ *Re R (Care: Rehabilitation in Context of Domestic Violence)* [2006] EWCA Civ 1638.

²⁶⁴ CA 1989, s 31(9).

²⁶⁵ *Re O (A Minor) (Care Order: Education: Procedure)* [1992] 2 FLR 7, [1992] 1 FCR 489.

²⁶⁶ *F v Solfolk* [1981] 2 FLR 208.

²⁶⁷ [2011] EWCA Civ 918.

²⁶⁸ [2013] EWCA Civ 179.

²⁶⁹ *Bracewell J in Re M (A Minor) (Care Order: Threshold Conditions)* [1994] Fam 95; approved [1994] 2 AC 424 HL.

²⁷⁰ [1996] 1 FLR 776.

²⁷¹ [2004] EWHC 2580 (Fam).

the child would be misled by them when he was older as to the origins of his birth. While it is understandable that authorities do not wish to encourage a practice which on one view of what happened amounted to 'baby selling', it is not obvious that this was a case where the child was suffering or was likely to suffer significant harm in the immediate future.²⁷²

(b) Significant harm

Booth J in *Humberside CC v B*²⁷³ suggested that 'significant' here meant 'considerable, noteworthy or important'. The Supreme Court in *Re B (Care Proceedings: Appeal)*,²⁷⁴ while not disapproving of Booth's dicta, thought it was not helpful to seek to define the word significant. However, Lord Wilson quoted with approval Hale LJ (as she then was) in *Re C and B (children) (care order: future harm)*:²⁷⁵ 'a comparatively small risk of really serious harm can justify action, while even the virtual certainty of slight harm might not'. Significant harm can be the result of several minor harms. The court will readily assume that an abandoned child will be likely to suffer significant harm.²⁷⁶

In the following case the Court of Appeal controversially found there was not a risk of significant harm.

CASE: *Re MA (Care Threshold)* [2009] EWCA CIV 853

The case involved a Pakistani family, who were illegally residing in the United Kingdom. They had three children of their own and a 'mystery' girl, aged 5. She was not their biological child and there was no information about her identity. She was kept secretly by the family and it was found that she was very badly treated. The children were accommodated by the local authority after the oldest child alleged physical abuse, although there was no evidence to support those allegations. The key issue in the case was whether the serious abuse of the mystery girl could found the basis of a finding that the couple's own children would be likely to suffer significant harm. The judge decided not. The fact that they mistreated the mystery child was not evidence that they would treat their own children in the same way. The children's guardian appealed.

The Court of Appeal by a majority upheld the judge's ruling, which could not be said to be plainly wrong. To amount to significant harm, the harm had to be significant enough to justify the intervention of the state and justify an intervention in the family life of the parents, under article 8 of the ECHR. The judge had been entitled to find that in this case there was not a sufficient risk to justify making an order. The court report noted that the children were 'well nourished, well cared for and with close attachments to their parents'. The court accepted that the position of the 'mystery child' was unclear and the judge was permitted to conclude that the way the parents had treated her was not sufficient evidence of a risk of serious harm to their natural children. Wilson LJ dissented, concluding that the way the mystery child had been treated was so 'grossly abnormal' she had suffered physical and emotional harm. This showed a capacity for cruelty and so gave rise to a real possibility that they would harm their own children.

²⁷² The child was subsequently freed for adoption: *Haringey v Mr and Mrs E* [2006] EWHC 1620 (Fam).

²⁷³ [1993] 1 FLR 257, [1993] 1 FCR 613.

²⁷⁴ [2013] UKSC 33.

²⁷⁵ [2000] 2 FCR 614.

²⁷⁶ *Re M (Care Order: Parental Responsibility)* [1996] 2 FLR 84, [1996] 2 FLR 521.

The case shows how difficult it can be to determine whether harm is significant. There was evidence from one of the children that they had been hit and slapped by the parents. On this Hallett LJ commented:

Reasonable physical chastisement of children by parents is not yet unlawful in this country. Slaps and even kicks vary enormously in their seriousness. A kick sounds particularly unpleasant, yet many a parent may have nudged their child's nappied bottom with their foot in gentle play, without committing an assault. Many a parent will have slapped their child on the hand to make the point that running out into a busy road is a dangerous thing to do. What M alleged, therefore, was not necessarily indicative of abuse. It will all depend on the circumstances.²⁷⁷

Not everyone would take such a sanguine view of the child's evidence, particularly in the light of the way the parents had treated the 'mystery girl'.²⁷⁸ You might think that it was harmful for the children to see the 'mystery girl' treated in that way. Particularly concerning is the majority's argument that because the parents had not provided an explanation for the slaps and kicks it was better to assume they were innocuous. That appears to encourage parents not to provide an explanation for injuries.²⁷⁹

In deciding whether the child is suffering significant harm, 'the child's health or development shall be compared with that which could reasonably be expected of a similar child'.²⁸⁰ Lord Wilson explained in *Re B (Care Proceedings: Appeal)*²⁸¹ that 'whereas the concept of "ill-treatment" is absolute, the concept of "impairment of health or development" is relative to the health or development which could reasonably be expected of a similar child.' So when considering health or development, the court must compare the child with a similar child. If the child has a learning difficulty one must compare their development with that expected of a child with that learning difficulty. However, the concept of ill treatment is the same, whatever the characteristics of the child. This might prevent a parent who, say, locks up a disabled in a cupboard, from saying that although that would be ill treatment for other children, it would not for disabled children. There are three particularly controversial issues in considering the 'similar child' test:

1. There is particular controversy over the extent to which the cultural background of the child should be taken into account.²⁸² For example, if a particular religion or culture teaches that a teenage girl should not talk to anyone who is not related to her, and a local authority thought this was harming a girl's social development, should the girl be compared only with a girl brought up in the same culture?

There are two main views on this. One is that 'Muslim children, Rastafarian children, the children of Hasidic Jews may be different and have different needs from children brought up in the indigenous white nominally Christian culture'.²⁸³ This perspective would require the court to compare the child with a child from a similar culture or background. The other view is that there should be a minimum standard for all children,²⁸⁴ what is considered harmful to children should not depend on their cultural background. However, the fact

²⁷⁷ Paragraph 39.

²⁷⁸ See the powerful analysis of Keating (2011) and Hayes, Hayes and Williams (2010) which is highly critical of the decision.

²⁷⁹ Hayes, Hayes and Williams (2010).

²⁸⁰ CA 1989, s 31(10).

²⁸¹ [2013] UKSC 33.

²⁸² Freeman (1992a: 107). See also Brophy, Jhotti-Johal and Owen (2003).

²⁸³ Freeman (1992a: 153). See also Freeman (1997a: ch. 7).

²⁸⁴ Bainham (2005: 383–4).

that the harm was an aspect of cultural or religious practice may be very relevant in deciding whether making a care order would promote the welfare of the child.²⁸⁵ In *Re D (Care: Threshold Criteria)*²⁸⁶ the Court of Appeal adopted the second view, declaring that what amounts to significant harm should not depend on the child's cultural or ethnic background. This may be supported by the statement of Hughes LJ *Re D (A Child) (Care Order: Evidence)*²⁸⁷ that the standard of parenting expected in s 31 was an objective standard. There is also some support for this in the approach of the law to female genital mutilation. This practice is illegal²⁸⁸ and the President of the Family Division has suggested it is a 'gross breach of human rights' and will automatically satisfy the threshold criteria.²⁸⁹ However, that very example raises the question, as the President noted, of how male circumcision, because it has long been an aspect of several major religions and cultures, is largely seen as acceptable. The President accepted that male circumcision, unlike genital mutilation, did not automatically satisfy the threshold criteria. He noted that in 2015 the law was:

still prepared to tolerate non-therapeutic male circumcision performed for religious or even purely cultural or conventional reasons, while no longer being willing to tolerate FGM.

The use of the word 'tolerate', and the difficulty the President had in justifying the law, leaves open the possibility this issue might be ripe for re-examination.²⁹⁰

2. To what extent are the characteristics or capabilities of the parents to be taken into account? If a child is brought up by a parent with a disability, should the child be considered only in comparison with a similar child living with disabled parents?²⁹¹ Hughes LJ addressed the issue in *Re D (A Child) (Care Order: Evidence)*.²⁹²

For the avoidance of doubt, the test under s 31(2) is and has to be an objective one. If it were otherwise, and the 'care which it is reasonable to expect a parent to give' were to be judged by the standards of the parent with the characteristics of the particular parent in question, the protection afforded to children would be very limited indeed, if not entirely illusory.

3. What if the child has brought about the harm him- or herself? In *Re O (A Minor) (Care Order: Education: Procedure)*²⁹³ it was suggested that in relation to a 15-year-old truant, the 'similar child' was 'a child of equivalent intellectual and social development who has gone to school and not merely an average child who may or may not be at school'. Crucially, the child was not to be compared with another truant child. The reason why truancy was not a relevant characteristic is not clear, but one interpretation of the decision is that factors that the child has brought upon himself or herself are not to be taken into account.

(c) Is suffering

Section 31 requires proof on the balance of probability²⁹⁴ that the child either is suffering or is likely to suffer significant harm. Notably, proof that the child has suffered harm in the past is insufficient, although harm in the past may be evidence that the child is likely to suffer harm in the future.

²⁸⁵ CA 1989, s 1(3)(d).

²⁸⁶ [1998] Fam Law 656.

²⁸⁷ [2010] EWCA Civ 1000, para 35.

²⁸⁸ Female Genital Mutilation Act 2003.

²⁸⁹ *Re B and G (Care Proceedings: FGM) (No. 2)* [2015] EWFC 3.

²⁹⁰ Fox and Thomson (2012).

²⁹¹ See Freeman (1992a: 107).

²⁹² [2010] EWCA Civ 1000, para 35.

²⁹³ [1992] 2 FLR 7, [1992] 1 FCR 489.

²⁹⁴ *Re H (Minors) (Sexual Abuse: Standard of Proof)* [1996] AC 563.

There has been much debate over what 'is' means in this context.²⁹⁵ The leading case is now *Re M (A Minor) (Care Order: Threshold Conditions)*,²⁹⁶ decided in the House of Lords.

CASE: *Re M (A Minor) (Care Order: Threshold Conditions)* [1994] 2 FLR 577, [1994] 2 FCR 871

The father murdered the mother in front of the children. The father was convicted of murder and given a life sentence, and there was a recommendation that he be deported on his release. Three of the four children were placed with W (the children's aunt). The remaining child, M, was initially placed with foster parents, but later joined her siblings with W. By the time the case came before the House of Lords it was agreed by everyone that M should live with W, but the local authority still wanted a care order just in case it became necessary in due course to remove M from W's house.

The crucial issue in the case was whether the phrase 'is suffering' meant that it had to be shown that the child was suffering at the time of the hearing before the court. This was important because, by the time the matter came to court, the child was safely with the foster parents and it could not have been found by the court that 'she is suffering significant harm'. Lord Mackay LC rejected such a reading. He stated that the date at which the child must be suffering significant harm was 'the date at which the local authority initiated the procedure for protection under the Act'. If the child was suffering significant harm at the time the local authority first intervened, and the social work continued to the date of the court hearing, then the child 'is suffering significant harm' for the purpose of the Act.

Applying this to the facts of the case in *Re M* it was clear that, at the time when the social work intervention started (i.e. just after the murder of the mother), it could have been said the child was suffering significant harm, and therefore a care order could be made. Lord Nolan explained:

Parliament cannot have intended that temporary measures taken to protect the child from immediate harm should prevent the court from regarding the child as one who is suffering, or is likely to suffer, significant harm within the meaning of s 31(2)(a), and should thus disqualify the court from making a more permanent order under the section. The focal point of the inquiry must be the situation which resulted in the temporary measures taken, and which has led to the application for a care or supervision order.²⁹⁷

The decision is clearly correct because, if it is necessary to show that at the time of a court hearing a child is suffering significant harm, then the local authority may have to delay taking measures to protect the child until there has been a court hearing.²⁹⁸ Subsequently, the Court of Appeal in *Re G (Care Proceedings: Threshold Conditions)*²⁹⁹ held that the local authority could rely on facts which subsequently came to light to demonstrate that at the time when the local authority first intervened the child was suffering significant harm, even if it did not know of those facts at that time.

²⁹⁵ Only lawyers . . . !

²⁹⁶ [1994] 2 FLR 577, [1994] 2 FCR 871; discussed in Bainham (1994a).

²⁹⁷ [1994] 2 FCR 871 at para 32.

²⁹⁸ Lord Templeman and Lord Nolan specifically took this point.

²⁹⁹ [2001] FL 727.

(d) Is likely to suffer significant harm

It is generally agreed that the state should be able to intervene and remove a child who is in real danger of suffering significant harm in the future, rather than wait until the harm occurs. However, removing a child on the basis of speculative harm, especially harm that may be a long way off, is controversial, because it is impossible to know whether or not the harm would materialise.

The simple words 'is likely to suffer significant harm' have proved highly problematic and have led to a string of decisions. The starting point is by the House of Lords in *Re H (Minors) (Sexual Abuse: Standard of Proof)*.³⁰⁰ The case divided the House of Lords three to two and revealed the real problems at issue.

CASE: *Re H (Minors) (Sexual Abuse: Standard of Proof)* [1996] AC 563

A 15-year-old girl alleged that she had been sexually abused by her mother's cohabitant. The cohabitant was tried for rape but he was acquitted by a jury. The local authority was still concerned about the situation, especially because the cohabitant continued to live with the mother and her three younger children.³⁰¹ The local authority sought a care order in respect of the three younger girls. It argued that, although it had not been proved beyond all reasonable doubt³⁰² that the older child had been abused, there was a substantial risk that the younger children could be abused. The judge at first instance accepted that there was 'a real possibility' that the older girl had been abused, but he felt that the 'high standard of proof' required for a care order had not been satisfied. He therefore dismissed the application for a care order. The House of Lords looked at five questions:

1. *What does 'likely' mean?* It was held unanimously that 'likely' meant that significant harm was a real possibility; that is, a possibility that could not sensibly be ignored. The Court of Appeal in *Re L-K (Children) (Non-Accidental Injuries: Fact Finding)*³⁰³ added that the nature and gravity of the feared harm were relevant in deciding whether the risk was one that could not sensibly be ignored. The phrase 'likely' did not require the court to find that the harm was more likely than not to occur. This is a remarkably 'pro-child protection' stance of the law to take. A child can be taken away from parents, even though the child has not been harmed and it is not even more likely than not that the child will be, if it can be shown that there is a real possibility the child will suffer significant harm.
2. *When must the harm be likely?* It needs to be shown that the child was likely to be harmed at the time the local authority first intervened; in other words, the *Re M (A Minor) (Care Order: Threshold Conditions)*³⁰⁴ approach to 'is' was also followed for 'is likely'. In *Re N (Leave to Withdraw Care Proceedings)*³⁰⁵ Bracewell J stressed that the court was not restricted to looking at harm in the immediate future, but could also consider longer-term harms.

³⁰⁰ [1996] AC 563. A powerful criticism of the reasoning can be found in Freeman (2004a: 331–3).

³⁰¹ The 15-year-old child had moved to live elsewhere.

³⁰² The standard of proof in criminal proceedings. See Cobley (2006) for an excellent discussion of the differences in this context for the different burdens of proof and justifications for them.

³⁰³ [2015] EWCA Civ 830.

³⁰⁴ [1994] 2 FCR 871.

³⁰⁵ [2000] 1 FLR 134.

3. *What is the burden of proof?* It must be shown on the balance of probabilities that harm is likely. In other words, it must be more likely than not that there is a real possibility of harm.³⁰⁶ In *A County Council v M and F*³⁰⁷ it was emphasised that this meant that it would be wrong to suggest parents had the burden of proving that there was an innocent explanation for injuries. This was not controversial. However, the question has been made far more complex by dicta of Lord Nicholls in *Re H (Minors) (Sexual Abuse: Standard of Proof)*,³⁰⁸ who argued: 'the more serious the allegation the less likely it is that the event occurred and, hence, the stronger should be the evidence before the court concludes that the allegation is established on the balance of probability'.³⁰⁹ That statement was interpreted by some to mean that in cases of more serious allegations more evidence was required to prove them than where less serious allegations were made. His statement was subsequently revised by the House of Lords in *Re B (Children) (Sexual Abuse: Standard of Proof)* (see below) which made it clear that in all cases the normal balance of probabilities test applies.
4. *Who has to prove that the child is likely to suffer significant harm?* The House of Lords agreed that the local authority had to prove that the significant harm was likely to occur. The burden did not lie on the parents to show that it was not likely to occur.
5. *From what evidence can the risk of harm be established?* The majority argued that, in order to find that harm was likely, it was necessary first to find certain 'primary facts'. Each of these primary facts would have to be proved on the balance of probabilities.³¹⁰ Then, looking at these primary facts, the court could consider whether they demonstrated that significant harm was likely (that is, that there was a real possibility of significant harm).³¹¹ In *Re H*, because it had not been found on the balance of probabilities that the older child had been abused (there was only a strong suspicion that she had), there were no primary facts proved. Therefore, it could not be shown that the younger girls were likely to suffer significant harm. Suspicion itself was an insufficient basis on which to decide that there was a significant likelihood of abuse. One reason is that it would be unjustifiable for a parent to have his or her child removed (with the attendant shame and social exclusion which would probably follow) on the basis of a suspicion. Another reason is that, as Lord Nicholls explained subsequently in *Re O and N (Children) (Non-Accidental Injury)*,³¹² otherwise a suspicion that a parent had harmed a child would not be sufficient to show that the child had suffered significant harm, but could be relied upon to show that the child was likely to suffer significant harm. That would be 'extraordinary', he suggested.³¹³

³⁰⁶ See, for an application of this, *A Local Authority v S, W and T* [2004] 2 FLR 129.

³⁰⁷ [2011] EWHC 1804 (Fam).

³⁰⁸ [1996] AC 563.

³⁰⁹ [1996] AC 563 at p. 586; applied in *Re ET (Serious Injuries: Standard of Proof)* [2003] 2 FLR 1205.

³¹⁰ The court can look at medical evidence as well as matters such as explanations given by parents for injuries and the credibility of those caring for the child (*Re B (Threshold Criteria: Fabricated Illness)* [2004] Fam Law 565).

³¹¹ In *Lancashire County Council v R* [2010] 1 FLR 387 Ryder J held it to be wrong to assume that a person who engaged in domestic violence had a propensity to child abuse.

³¹² [2003] 1 FCR 673. See the excellent discussion in Hayes (2004).

³¹³ [2003] 1 FCR 673 at para 16.

The majority's approach in *Re H* has been subject to several criticisms:

- (a) The minority argued that, looking at the case as a whole, there were sufficient worries (especially the fact that there was a strong suspicion that the cohabitant had abused the older girl) to justify the finding of likely harm. This, they thought, was sufficient to justify making the care order and the approach of the majority over-complicated the issue.³¹⁴ This argument was particularly strong on the facts of that case because, if the older girl had been abused as she had alleged, there was a very serious danger facing the younger children.
- (b) Mathematically, the majority's approach looks dubious. Imagine two cases: in case A there are ten alleged facts pointing to abuse and there is a 45 per cent chance that each alleged fact was true; in case B there is one alleged fact pointing to abuse for which there is a 60 per cent chance that it is true.³¹⁵ The approach of the majority would allow for a finding of likely harm only in case B. In case A, as none of the facts was proved on the balance of probabilities, an order could not be made. Yet, in statistical terms, case A would be a stronger case than case B. The approach of the minority, looking at the totality of the circumstances, would permit the making of a care order in case A.
- (c) The key underlying issue in the case has been explained by Hayes: 'The dilemma to be resolved is how the legal framework, and the legal process, can best reconcile safeguards for children suffering from significant harm with the obligation to respect parental autonomy and family privacy.'³¹⁶ There is an option of either threatening the parents' rights by removing the child from them without clear evidence, or threatening the child's rights by not providing protection even where there is a serious risk of danger. The House of Lords clearly preferred upholding parents' rights. Whether this is consistent with the welfare principle in s 1 of the Children Act 1989 is open to debate.
- (d) The question must be viewed in the light of the European Convention on Human Rights. A child must be protected from 'torture' and 'inhuman and degrading treatment'.³¹⁷ Yet, at the same time, the state is required to respect the private and family life of all the family members.³¹⁸ It is certainly arguable that the approach taken in *Re H* places more weight on the parents' right to respect for family life than on the child's right to respect for private life and to be protected from inhuman and degrading treatment.

Despite these criticisms, Lord Steyn's speech was confirmed as setting out the current law by the House of Lords in *Re B (Children) (Sexual Abuse: Standard of Proof)*³¹⁹ where their lordships emphasised that the court had to rely on facts proved on the balance of probabilities

³¹⁴ The majority did admit that the totality of the evidence established a worrying number of circumstances, but, as no facts were proved, this belief was mere suspicion.

³¹⁵ Assuming that the 10 facts, if true, would provide as good evidence that future harm was likely as the single fact, if true.

³¹⁶ Hayes (1997: 1–2).

³¹⁷ Article 3.

³¹⁸ Article 8.

³¹⁹ [2008] 2 FCR 339.

to establish the threshold criteria. Unproven suspicions could not be used. Lady Hale justified that approach in this way:

The Threshold is there to protect both the children and their parents from unjustified intervention in their lives. It would provide no protection at all if it could be established on the basis of unsubstantiated suspicions: that is, where a judge cannot say that there is no real possibility that abuse took place, so concludes that there is a real possibility that it did not.³²⁰

Lady Hale went on to clarify the burden of proof:

I . . . announce loud and clear that the standard of proof in finding the facts necessary to establish the threshold under s 31(2) or the welfare considerations in s 1 of the 1989 Act is the simple balance of probabilities, neither more nor less. Neither the seriousness of the allegation nor the seriousness of the consequences should make any difference to the standard of proof to be applied in determining the facts. The inherent probabilities are simply something to be taken into account, where relevant, in deciding where the truth lies.³²¹

This makes it clear that for all issues the test is the balance of probabilities, but that some allegations were inherently unlikely and might be harder to prove on the balance of probabilities.³²² The error in Lord Nicholls's speech in *Re H* was to suggest that it was the severity of the allegation that indicated its unlikelihood. That was incorrect. It was rather whether what was being alleged was particularly bizarre, or inherently unlikely. Their lordships' approach was later relied upon in *Re R (A Child)*³²³ a parent, whose care was normally exemplary, put their child into a bath of boiling water. It was said that given the history of excellent care it was inherently unlikely that the parent had deliberately sought to abuse the child. Clear evidence of that would be required.

Lady Hale in *Re B (Care Proceedings: Appeal)*³²⁴ also made some pertinent observation about cases based on future harm:

the longer term the prospect of harm, the greater the degree of uncertainty about whether it will actually happen. The child's resilience or resistance, and the many protective influences at work in the community, whether from the wider family, their friends, their neighbourhoods, the health and social services and, perhaps above all, their schools, mean that it may never happen. The degree of likelihood must be such as to justify compulsory intervention *now*, for there is always the possibility of compulsory intervention later, should the 'real possibility' solidify.

(ii) Harm attributable to the care given or likely to be given or the child's being beyond parental control

The court must be satisfied that the harm is attributable to the care of the child not being what it would be reasonable to expect a parent to give. In *Islington London Borough Council v Al Alas, Wray and Al Alas-Wray (Through Her Children's Guardian)*³²⁵ the injuries to the child were the result of a medical condition and not the care of the parents. Therefore, of course, the threshold criteria were not made out. The threshold criteria can be satisfied if the parent fails to protect the child from harm at the hands of another.³²⁶ It is important to remember that, as Wall LJ

³²⁰ Paragraph 54.

³²¹ Paragraph 70.

³²² *Re S-B (Children)* [2009] UKSC 17, discussed in Bainham (2009b).

³²³ [2013] EWCA Civ 899.

³²⁴ [2013] UKSC 33.

³²⁵ [2012] EWHC 865 (Fam).

³²⁶ *A v Leeds City Council* [2011] EWCA Civ 1365.

stated in *Re L (A Child) (Care Proceedings: Responsibility for Child's Injury)*,³²⁷ 'a child may receive serious accidental injuries whilst in the care of his or her parents, even where those parents are both conscientious and competent'. The obvious point is that the fact a child has suffered a serious injury does not mean the child has not been given the care by her parents that she should have been. Similarly a child's harm may result from the parenting, even though the parents are well motivated and doing their best³²⁸ and cannot be blamed for their failings.³²⁹

The Supreme Court in *Re B (Care Proceedings: Appeal)*³³⁰ emphasised that a court should be careful not to make a care order simply because they disapprove of the parents' character or beliefs. Only if a parents' behaviour causes the child harm or puts the child at risk of harm can it justify a care order. As Lady Hale put it:

We are all frail human beings, with our fair share of unattractive character traits, which sometimes manifest themselves in bad behaviours which may be copied by our children. But the state does not and cannot take away the children of all the people who commit crimes, who abuse alcohol or drugs, who suffer from physical or mental illnesses or disabilities, or who espouse anti-social political or religious beliefs.

She went on to approve the dicta of Hedley J in *Re L (Care: Threshold Criteria)*:³³¹

society must be willing to tolerate very diverse standards of parenting, including the eccentric, the barely adequate and the inconsistent. It follows too that children will inevitably have both very different experiences of parenting and very unequal consequences flowing from it. It means that some children will experience disadvantage and harm, while others flourish in atmospheres of loving security and emotional stability. These are the consequences of our fallible humanity and it is not the provenance of the state to spare children all the consequences of defective parenting. In any event, it simply could not be done.³³²

That quote is now regularly cited by the courts and makes an important point. Simply because failing in parenthood can be identified and a judge might be readily persuaded that the parent does not deserve the 'Parent of the Year' award, does not mean that the threshold criteria is satisfied. That is probably uncontroversial, but there is serious debate over how far 'diverse standards of parenting' should be accepted.

In *Re A (Application for Care and Placement Orders: Local Authority Failings)*³³³ a mother was imprisoned, but the father was willing to look after the child. He was a member of the English Defence League;³³⁴ had alleged drug and alcohol misuse; had not 'always been honest with professionals' and had early sexual experience. Sir James Munby J held that although he was 'not the best of parents' nor the most 'suitable role model' that was not a reason for applying for a care order and seeking adoption. Perhaps more controversially His Honour Judge Jack in *North East Lincolnshire Council v G and L*³³⁵ was considering a care order application in a case where there had been domestic violence between the parents and alcohol misuse. He stated:

The reality is that in this country there must be tens of thousands of children who are cared for in homes where there is a degree of domestic violence (now very widely defined) and where parents on occasion drink more than they should. I am not condoning that for a moment, but the courts

³²⁷ [2006] 1 FCR 285.

³²⁸ *X v Liverpool City Council* [2005] EWCA Civ 1173.

³²⁹ *Re D (Care Order: Evidence)* [2010] EWCA Civ 1000.

³³⁰ [2013] UKSC 33.

³³¹ [2007] 1 FLR 2050.

³³² Paragraph 50.

³³³ [2015] EWFC 11.

³³⁴ A political group which many would regard as racist.

³³⁵ [2014] EWCC B77 (Fam).

are not in the business of social engineering. The courts are not in the business of providing children with perfect homes. If we took into care and placed for adoption every child whose parents had had a domestic spat and every child whose parents on occasion had drunk too much then the care system would be overwhelmed and there would not be enough adoptive parents. So we have to have a degree of realism about prospective carers who come before the courts.

That case should certainly not be taken to suggest that domestic abuse cannot be used as the basis for a care order, as it is well established that it can.³³⁶

The courts have also considered cases where the parents have learning difficulties. There has been a shift in attitude in recent years and it is clear disabled parents should receive the support they need to be adequate parents. As Baker J put it in *Kent County Council v A Mother*:³³⁷

The last thirty years have seen a radical reappraisal of the way in which people with a learning disability are treated in society. It is now recognised that they need to be supported and enabled to lead their lives as full members of the community, free from discrimination and prejudice . . . One consequence of this change in attitudes has been a wider acceptance that people with learning disability may, in many cases, with assistance, be able to bring up children successfully.

In *Re D (No. 3)*³³⁸ Munby J reluctantly accepted that even with support the parents with learning difficulties could not provide 'good enough' care for their child, because their child had complex needs they were unable to meet.

A different issue, which has been particularly difficult for the courts, is where it is clear that the child had been harmed, but it is not clear who caused the harm.

The House of Lords in *Lancashire CC v B* examined this issue.³³⁹

CASE: *Lancashire CC v B* [2000] 1 FCR 509

The case involved child A, who was being cared for by a childminder while her parents were out at work. It became clear that A had suffered serious non-accidental head injuries, but it was impossible to establish whether these injuries were caused by the mother, the father or the childminder. The parents argued that s 31(2)(b) required proof that it was the care of the parents (or primary carers) which was not of the standard expected of a reasonable parent and, as it was not clear that they had harmed the child, the care order should not be made. The local authority argued that all that needed to be shown was that the care given by someone who was caring for the child was below the standard expected of a reasonable parent. In other words, the reference to parents in s 31(2)(b) was a reference to the standard of care expected and not a requirement that it was a parent whose care was less than the required standard.

The House of Lords acknowledged that there were difficulties with either interpretation. If the parents' argument was accepted, then a child might undoubtedly be suffering significant harm but, because it was not clear who had caused the harm, no protection could be offered. As Lord Nicholls maintained: '[s]uch an interpretation would mean that the child's future health, or even her life, would have to be hazarded on the chance that, after all, the non-parental carer rather than one of the parents inflicted the injuries'.³⁴⁰ On the other hand, if the view of the local

³³⁶ *Re T (Application to Revoke a Placement Orders: Change in Circumstances)* [2014] EWCA Civ 1369.

³³⁷ [2011] EWHC 402 (Fam).

³³⁸ [2016] EWFC 1.

³³⁹ [2000] 1 FCR 509, discussed in Bainham (2000a).

³⁴⁰ *Lancashire CC v B* [2000] 1 All ER 97 at p 103.

authority was accepted, a child could be taken into care even though the parents were blameless. The approach taken by the House of Lords was that if it is clear that either of the parents or one of the primary carers caused the harm, the attributable condition has been made out.³⁴¹

One difficulty with the House of Lords' decision is that it is far from clear who is 'a carer' in this context. In *Redbridge LB v B, C and A*³⁴² it was unclear if a child had been injured by a parent or a health care worker at the hospital. It was held that the threshold criteria were made out because the health care worker was a carer while the child was at the hospital.

A more substantial difficulty is the failure to explain why it matters if the harm is from a carer or not. If a child should not be denied protection because it is unclear whether the harm is caused by a parent or childminder, why should he or she be denied protection if it is unclear whether the harm is caused by a parent or a non-carer (e.g. a bully at school)? If, in the name of child protection, we are to permit children to be taken into care even if their parents may well be blameless, surely this should be so whoever else may have caused the harm?³⁴³ The real problem at the heart of the House of Lords' decision is that it does not consider the purpose of the 'attributable' condition. Its purpose could have been seen as a form of protection of parental rights: 'your child will only be removed if you do not treat your child as a reasonable parent would'; or as a way of protecting children's interests: it will only be best for a local authority to remove a child from his or her parents if he or she is suffering significant harm. But the House of Lords' decision is not consistent with either approach and leaves the attributable condition without a clear role.

Although the House of Lords in *Lancashire CC v B*³⁴⁴ provided clear guidance on when the threshold criteria would be satisfied in a case of an unknown perpetrator were the perpetrators remain caring for the child. They did not discuss what would happen if the child was now in the care of just one of the possible perpetrators. The Supreme Court returned to that issue in three cases: *Re O and N (Children) (Non-Accidental Injury)*,³⁴⁵ *Re S-B*³⁴⁶ and *Re J (Children)*.³⁴⁷ We will focus on the most recent of these, *Re J (Children)*,³⁴⁸ because that built on the earlier decisions and sets out the current law.

CASE: *Re J (Children)* [2013] UKSC 9

A couple had started a relationship in 2008. The mother had a child from a previous relationship (IJ) and the father had two children (HT and TJ). The three children all lived with the couple. The local authority became aware that the mother's first child had died and as a result another child had been taken into care. The investigations into the death found that the baby had died as a result of deliberate injuries, but was unable to establish who had caused the injuries. Both the mother and her ex-partner were in the 'pool of possible perpetrators'. Based on this history, the local authority brought care proceedings in relation to the child currently living with the mother. The key issue was whether the fact that the mother was in the pool of possible perpetrators in a previous case, could be relied upon to establish that the child was at risk in relation to the current one.

³⁴¹ See *Merton LBC v K* [2005] Fam Law 446 for an application of this approach.

³⁴² [2011] EWHC 517 (Fam).

³⁴³ Herring (2000b).

³⁴⁴ [2000] 1 All ER 97.

³⁴⁵ [2003] 1 FCR 673, [2003] UKHL 18.

³⁴⁶ Discussed in Keating (2009); Copley and Lowe (2009).

³⁴⁷ [2013] UKSC 9.

³⁴⁸ [2013] UKSC 9.

The Supreme Court determined that there were no proven facts which could be relied upon to make the care order. The fact the mother was in the pool of possible perpetrators was simply a finding there was a 'real possibility' she was involved in the death and not a finding of fact she was. A care order could not be based on the basis of reasonable suspicion. Lady Hale was clear:

The judge found the threshold crossed in relation to [the child who had not been harmed] on the basis that there was a real possibility that the mother had injured [her other child]. That . . . is not a permissible approach to a finding of likelihood of future harm . . . a prediction of future harm has to be based upon findings of actual fact made on the balance of probabilities. It is only once those facts have been found that the degree of likelihood of future events becomes the 'real possibility' test adopted in *Re H*. It might have been open to the judge to find the threshold crossed in relation to [the unharmed child] on a different basis but she did not do so.

There had to be an objective factual basis from which the inference could be drawn that future harm was likely. In this case, had the local authority been able to find other facts this could have made out the case for the care order. For example, the local authority might have relied on the mother's attempts to disguise the injuries from medical professionals in the earlier cases, a fact which had been proved to be true. If there were other facts which led to the finding of a risk of harm, the fact the mother was in the pool of possible perpetrators could be taken into account in deciding what order to make (Lord Wilson dissented on that point, deciding that only facts proved could be used at all stages of the care proceedings).³⁴⁹ That might include facts about the circumstances surrounding the original injury; the response of the parent to the injury; or any evidence of concealment or collusion surrounding the injury. For example, if the mother and father were possible perpetrators because it was not clear who had harmed the child, but it was established that the mother had failed to call for medical help when she discovered the injuries, that could be used to establish the threshold criteria.³⁵⁰

Lord Wilson (with whom Lord Sumption agreed) regarded this position as illogical because 'if, for the purpose of the requisite foundation, X's consignment to a pool has a value of zero on its own, it can, for this purpose, have no greater value in company'. Lord Hope most clearly articulated the flaw in this reasoning. In essence it involved an assumption that because something was not a sufficient fact it was also not a relevant fact.

The case law has been subjected to sustained criticism by Mary Hayes and other commentators.³⁵¹ At the heart of the objection is the complaint that the law means that children can be left with a parent who is a possible perpetrator of serious abuse, with no protection. Certainly the current law can produce some strange distinctions. One scenario was put to the Court of Appeal

Take . . . a case of two parents who are consigned to a pool of possible perpetrators of non-accidental injuries to their child; and who then separate; and who each with other partners, produce a further child, who together become the subject of conjoined care proceedings.

³⁴⁹ *A Local Authority v A Mother* [2012] EWHC 2647 (Fam).

³⁵⁰ *Re R (A Child)* [2013] EWCA Civ 1438; *LA v FM* [2013] EWHC 4671 (Fam); *Re S (A Child) (Care Proceedings: Non-accidental Injuries)* [2014] 1 FCR 128.

³⁵¹ Hayes (2014).

Because in this scenario we do not know as a fact that either parent abused the child, the court cannot, without further evidence, make a care order in respect of either child, even though we know that one of the children is living with a person with a history of serious abuse, who must pose a risk to the child.

Not everyone will be disquieted with this outcome. It rests in part on a judgment: which is worse: to remove a child from an ‘innocent’ parent or to leave a child with an abusive one? The current law seems more concerned to avoid the former harm than the latter. If one wanted to support that view one could argue that just because a parent has abused in the past is no guarantee they will abuse again. Further that if the child is removed and alternative care is found we cannot guarantee that the alternative care will not be abusive.

Another odd consequence of the current state of the law is that if *Re M; Lancashire CC v A* and *Re J*³⁵⁰ are considered together, they can produce a result Mary Hayes describes:

The impact of the Supreme Court’s rulings now mean that where parents, two possible perpetrators of significant harm to their child, are living together when the local authority first take protective action the threshold test will be applied at that point in time. The threshold can be crossed in relation to an unharmed sibling even though, as the case progresses, that child lives with just one parent, and the parents part shortly after the care proceedings commence. By contrast, where parents separate before the local authority first take protective action, the threshold test cannot be crossed in relation to the unharmed child.

John Hayes³⁵² suggests that the correctness of the case depends on the perspective it is looked at:

Those who believe that *Re J* . . . [was] rightly decided might counter by asking you to put yourself in the shoes of the innocent parent. Imagine, they argue, being faced with the risk of removal of your unharmed child in circumstances where the court has identified you not as an actual perpetrator but only as a possible perpetrator of harm to another child? Looked at purely from the perspective of that person, the argument appears to have some force. But what if you put yourself in the shoes of the child?

He suggests few people would choose to stay in a hotel run by a person who was one of two people who might have seriously assaulted hotel guests in the past.

Andrew Bainham³⁵³ is much more supportive:

it is unacceptable in a democratic society that children should be removed in the longer term, as opposed to the interim, on the basis only of suspicion rather than proof. Otherwise, no parents under previous suspicion would ever feel able to have another child or rebuild their family lives without the spectre of local authority involvement hanging over them and their partners. Where, as will almost invariably be the case, there are present concerns relating to the current family situation, there is nothing in this decision which remotely prevents the appropriate protective action being taken. It is right that the state should demonstrate that it has real concerns which are not solely historical.

One result of the debates over the ‘pool of perpetrators’ cases is that more attention is being paid as to when it is suitable to place someone as a possible perpetrator. The court should do this when there is a real possibility that a person harmed the child. If it is clear on the balance of probabilities who is the perpetrator only that person should be listed. If it is unclear whether the injuries caused to the child have an innocent explanation or are the result of

³⁵² Hayes (2014); Gilmore (2016).

³⁵³ Bainham (2013).

parental abuse it is not appropriate to use the 'possible perpetrator'.³⁵⁴ So in *Re D (A Child)*³⁵⁵ the oxygen supply to a child's ventilator stopped working while the mother and a student nurse were in the room. It was not appropriate to list the mother and student nurse as possible perpetrator as the evidence suggested it was a real possibility it was a malfunctioning of the machine.

Subsection 31(2) also includes cases where the child is suffering harm or is likely to suffer harm because he or she is beyond parental control. The kind of situation here is where the child behaves in an uncontrolled manner. Commonly, it is used where the child is dependent upon illegal drugs. It does not matter if it is unclear whether the harm is caused by the parent or the child being beyond parental control. Ewbank J in *Re O (A Minor) (Care Order: Education: Procedure)*³⁵⁶ suggested: '... where a child is suffering harm in not going to school and is living at home it will follow that either the child is beyond her parents' control or that they are not giving the child the care that it would be reasonable to expect a parent to give'. Where this ground is relied upon, it is not necessary to show that this is caused by the parenting of the child.³⁵⁷

(iii) The role of the threshold criteria

One issue behind many of the cases interpreting s 31 is the role of the threshold criteria. Here are three popular views:

1. According to Lord Nicholls in *Re O and N*,³⁵⁸ the purpose of the threshold criteria is 'to protect families, both adults and children, from inappropriate interference in their lives by public authorities through the making of care and supervision orders'.
2. The threshold criteria are there to reinforce the welfare principle and to remind courts that children are normally best brought up by their parents and only where there is a real danger will it be in the child's welfare for a care order to be made.
3. The threshold criteria exist to protect parents' rights. The state in effect guarantees to parents that, unless they cause significant harm to their children, their children will not be removed.

Lady Hale in *Re J (Children)*³⁵⁹ combined these theories in saying this:

In a free society, it is a serious thing indeed for the state compulsorily to remove a child from his family of birth. Interference with the right to respect for family life, protected by article 8 of the European Convention on Human Rights, can only be justified by a pressing social need. Yet it is also a serious thing for the state to fail to safeguard its children from the neglect and ill-treatment which they may suffer in their own homes. This may even amount to a violation of their right not to be subjected to inhuman or degrading treatment, protected by article 3 of the Convention. How then is the law to protect the family from unwarranted intrusion while at the same time protecting children from harm?

In England and Wales, the Children Act 1989 tries to balance these two objectives by setting a threshold which must be crossed before a court can consider what order, if any, should be made to enable the authorities to protect a child. The threshold is designed to restrict compulsory intervention to cases which genuinely warrant it, while enabling the court to make the order which will best promote the child's welfare once the threshold has been crossed.

³⁵⁴ *A Local Authority v NB* [2013] EWHC 4100 (Fam).

³⁵⁵ [2014] EWHC 121 (Fam).

³⁵⁶ [1992] 2 FLR 7.

³⁵⁷ *Re K (A Child: Post Adoption Placement Breakdown)* [2012] EWHC B9 (Fam).

³⁵⁸ [2003] 1 FCR 673 at para 14.

³⁵⁹ [2013] UKSC 9.

G Grounds for supervision and care orders: the welfare test

The court must not reason that, because the threshold criteria are satisfied, the care or supervision order must be made. It is crucial for the court to consider whether the making of the order is in the child's welfare and whether the 'no order principle' is satisfied.³⁶⁰ The court considers whether making the order is the best option for promoting the welfare of the child, considering the checklist of factors in s 1(3) must be taken into account.³⁶¹ In considering the welfare of the child, the views of the child may be relevant.³⁶²

(i) The welfare test and proportionality

When a local authority is applying for a care order, it must prepare a care plan.³⁶³ This sets out what the local authority proposes should happen to the child while he or she is in care. It will suggest, for example, where the child should live; whether the authority intends to plan for adoption or special guardianship; and what contact there should be with the birth family. The court, when considering whether to make the care order, should take into account the care plan.³⁶⁴ However, the court must consider any alternative possibilities. Those might include whether there are any relatives³⁶⁵ (or perhaps even a family friend) who can look after the child.

In *Re B-S (Adoption: Application of s 47(5))*³⁶⁶ and *Re G (Care Proceedings: Welfare Evaluation)*³⁶⁷ the Court of Appeal emphasised that if the threshold criteria are met the judge should look at all the realistic options in the round to determine which was the least interventionist order which would promote the welfare of the child.³⁶⁸ So, if the local authority is seeking to have the child adopted, the court should consider whether a residence order in favour of a family relative would be more appropriate. Similarly if a care order is sought the court will consider whether a supervision order might adequately protect the child. What the court should not do is simply ask whether the order sought by the local authority will promote the welfare of the child, without considering the alternatives. However, the court only needs to consider the realistic options.³⁶⁹ In *Re H (A Child) (Placement Order: Judge's Understanding of Earlier Proceedings)*³⁷⁰ the Court of Appeal emphasised they were not saying there was a presumption in favour of the birth family,³⁷¹ but rather that all realistic options needed to be considered before deciding that removal from the birth family was the best option.

Lord Neuberger in *Re B (Care Proceedings: Appeal)*³⁷² emphasised that even if the threshold criteria are satisfied a care order should only be made if it is necessary to make it. It should be a 'last resort' or as Lady Hale put it when 'nothing else will do'. These dicta were

³⁶⁰ *Re O and N (Children) (Non-Accidental Injury)* [2003] 1 FCR 673 at para 23, per Lord Nicholls.

³⁶¹ CA 1989, s 1(4)(b). Section 1(3)(g) is perhaps especially important in that it means that the court must consider whether making an s 8 order in favour of a relative is a better option than taking the child into care.

³⁶² *Re H (Care Order: Contact)* [2009] 2 FLR 55.

³⁶³ CA 1989, s 31A; *Manchester City Council v F* [1993] 1 FLR 419, [1993] 1 FCR 1000.

³⁶⁴ CA 1989, s 31(3A).

³⁶⁵ *Re Al-Hilli* [2013] EWHC 2299 (Fam); *Re N-B and Others (Children) (Residence: Expert Evidence)* [2002] 3 FCR 259.

³⁶⁶ [2013] EWCA Civ 1146.

³⁶⁷ [2013] EWCA Civ 965.

³⁶⁸ *Re T (Application to Revoke a Placement Orders: Change in Circumstances)* [2014] EWCA Civ 1369.

³⁶⁹ Although in *Re Y (Care Proceedings: Proportionality Evaluation)* [2014] EWCA Civ 1553 it was said the court would assume the child was best brought up by the birth family unless there was evidence to the contrary.

³⁷⁰ [2015] EWCA Civ 1284.

³⁷¹ *Re MR (Welfare Hearing: No. 2)* [2013] EWHC 1156 (Fam).

³⁷² [2013] UKSC 33.

repeated in *Re B-S (Adoption: Application of s 47(5))*³⁷³ in the context of adoption (which will be discussed later). However the Court of Appeal have since warned against reading too much into these statements.³⁷⁴

KEY CASE: *Re R (Adoption)* [2014] EWCA 1625

A mother had a problem with 'binge drinking' and abusive relationships. The police had removed the child from her care. The local authority had investigated but found no alternative family carers. They successfully sought a care order, with a view to placing the child for adoption. The mother appealed on the basis that the judge had failed to follow the approach recommended in *Re B-S*, in particular by not exploring all the alternatives to a care order and adoption and finding that adoption was the only alternative. The Court of Appeal emphasised that *Re B-S* was not intended to change the law and where making a care order and planning for adoption is best for the child the local authority should not shy away from doing so. It was true that where there was opposition from parents a care order with a plan for adoption was only permissible where 'nothing else will do'. However, *Re B-S* was designed to amend the way judgments were structured, rather than change the law. It was not intended to erode or put a glass on the welfare test. It required the court to look at all realistic options, but only realistic options, to determine if nothing else but a care order and adoption would do. It was not meant to make it harder to obtain a care order or supervision order.

(ii) Section 1(5)

Section 1(5) requires the court to be persuaded that it is better for the child to make the care or supervision order than not to make an order at all. This provision was discussed in detail earlier in the text (Chapter 10).

H Interim care orders

It may be that, having heard all the evidence, the court still feels it is not in a position to make a final decision of whether to make a care order or supervision order, or no order at all.³⁷⁵ In such cases an interim order is appropriate.³⁷⁶ An interim care order can only be made if there are reasonable grounds for believing that the threshold and s 1 criteria are met;³⁷⁷ the making of the order will be in the welfare of the child; and that making an interim care order is proportionate to the risk faced by the child.³⁷⁸ If, when hearing an application for a care order or supervision order, the court is not convinced that the child is in need of immediate local authority care, it may consider just making an interim residence order³⁷⁹ in favour of a relative. However, it may do so only if the court is persuaded that the child will be adequately

³⁷³ [2013] EWCA Civ 1146.

³⁷⁴ Doughty (2015).

³⁷⁵ *Re S, Re W (Children: Care Plan)* [2002] 1 FCR 577 at para 90.

³⁷⁶ *Re CH (Care or Interim Care Order)* [1998] 1 FLR 402, [1998] 2 FCR 347.

³⁷⁷ CA 1989, s 38(2), discussed in *Re B (Children)*, CA 16 August 2012.

³⁷⁸ *Re G (Interim Care Order)* [2011] EWCA Civ 745; *Re GR (Interim Care Order)* [2010] EWCA Civ 871; *Re S (Interim Care Order)*, [2010] EWCA Civ 1383. See Bainham (2011) for an argument that the barrier is set too low for interim care orders.

³⁷⁹ CA 1989, s 1(1) and (5) would have to be satisfied.

protected without an interim care order or supervision order.³⁸⁰ The aim of an interim should be to keep children safe until an application for a full care order can be heard.³⁸¹ Children should only be removed from their parents under an interim care order if their safety demands it.³⁸² Removal might be necessary so that a proper assessment of the parents can be made, which cannot safely be done while the children remain at home.³⁸³ An application for an interim care order is, therefore, not the time to consider the long-term future of the child.³⁸⁴

These interim orders provide a legal framework until a final order can be made. In *Re G (A Child) (Interim Care Order: Residential Assessment)*³⁸⁵ Lord Scott explained:

an 'interim' care order is a temporary order, applied for and granted in care proceedings as an interim measure until sufficient information can be obtained about the child, the child's family, the child's circumstances and the child's need to enable a final decision in the care proceedings to be made.

It is important to stress that, as was made clear in *Re G (Minors) (Interim Care Order)*,³⁸⁶ the fact that an interim order is made does not weigh on the court one way or the other in deciding the final order.³⁸⁷ To make an interim supervision order or interim care order, the court must be satisfied that there are reasonable grounds for believing that the criteria under s 31(2) of the Children Act 1989 (the threshold criteria) have been satisfied, but they do not have to prove the conditions exist.³⁸⁸ Andrew Bainham claims that in practice this means it is very rare for a local authority to fail in an application for an interim care order.³⁸⁹

On the making of an interim care order, the local authority gains all the benefits and obligations of a care order: parental responsibility is placed on the local authority and the child is in the care of the local authority. However, the local authority should consult with the parents on all important issues relating to the child. If there is a dispute the matter should be brought to the court.³⁹⁰

While it is not possible for a court to attach a condition to a full care order, it can to an interim care order. There are two leading cases. The first is *Re C (Interim Care Order: Residential Assessment)*.³⁹¹ The House of Lords had to consider s 38(6), which states:

Where the court makes an interim care order, or interim supervision order, it may give such directions (if any) as it considers appropriate with regard to the medical or psychiatric examination or other assessment of the child . . .³⁹²

Their lordships held that this provision covered parents being assessed at a residential unit, so the court would have more evidence as to whether they posed a risk to the child. This was acceptable because it was necessary to enable the court to decide what order should be made.³⁹³

³⁸⁰ CA 1989, s 38(3).

³⁸¹ *Re L (Interim Care Order: Prison Mother and Baby Unit)* [2013] EWCA Civ 489.

³⁸² *Re LA (Care: Chronic Neglect)* [2010] 1 FLR 80.

³⁸³ *Re B (Interim Care Order)* [2010] EWCA Civ 324.

³⁸⁴ *Re L (Interim Care Order: Prison Mother and Baby Unit)* [2013] EWCA Civ 489.

³⁸⁵ [2005] 3 FCR 621 at para 2.

³⁸⁶ [1993] 2 FLR 839, [1993] 2 FCR 557.

³⁸⁷ *Re B (Care Proceedings: Interim Care Order)* [2009] EWCA Civ 1254.

³⁸⁸ *Re B (A Minor) (Care Order: Criteria)* [1993] 1 FLR 815, [1993] 1 FCR 565.

³⁸⁹ Bainham (2014).

³⁹⁰ *R (on the application of H) v Kingston Upon Hull CC* [2013] EWHC 388 (Admin).

³⁹¹ [1997] 1 FLR 1, [1997] 1 FCR 149.

³⁹² CA 1989, s 38(7A) states that the assessment can be ordered only if the court is of the opinion that the examination or other assessment is necessary to assist the court to resolve the proceedings justly.

³⁹³ *Re W (Care: Residential Assessment)* [2011] EWCA Civ 661.

The decision in *Re C* does not sit easily with the general approach taken in the Children Act 1989 that the courts should not compel local authorities to spend their social services budget in a particular way.³⁹⁴ In *Re C (Children) (Residential Assessment)*³⁹⁵ the local authority argued that to be required to provide a residential assessment for the particular family would be to involve a disproportionate level of expenditure on one family, among all of those they had to care for. The Court of Appeal rejected this argument, but significantly on the basis that the local authority had not produced evidence to substantiate its claim. It was accepted that if such evidence had been forthcoming then the decision would have been different.

The second leading case on attaching conditions to a care order is *Re G (A Child) (Interim Care Order: Residential Assessment)*.³⁹⁶ There a judge had attached a condition to an interim residence order requiring the local authority to fund an assessment of a mother, her new partner and their child at a hospital which specialised in multi-problem families. Their Lordships held that conditions attached through s 38(6) had to have as their purpose the gathering of information. In this case the hospital would be engaged in providing treatment, advice and help for the family, as much as, if not more than, gathering information. Any assessment or examination must be for the purpose of gathering information and to provide treatment to the child or her parents. To use s 38(6) as the judge had done was to contravene the 'cardinal principle' in the Children Act that the courts could not order local authorities to provide particular services to children in care. It is noticeable that in *Re L (Children) (Care Order: Residential Assessment)*³⁹⁷ the Court of Appeal referred to article 6 of the ECHR and held that failing to provide the parents with an opportunity to take part in a residential assessment of the child would be unfair, as it would deny them the opportunity of having evidence to demonstrate they had the capacity to parent M. This suggests that the courts might interpret *Re G* quite strictly.³⁹⁸

Section 38(6) states that children can refuse to participate in the assessment if they have sufficient understanding. Very controversially, in *South Glamorgan County Council v W and B*,³⁹⁹ the court held that a court order under the inherent jurisdiction could override the refusal of a child. This seems to go against the normal position that an order under the inherent jurisdiction cannot run counter to a statutory provision. Here s 38(6) explicitly gives the child the right to refuse.

I Procedural issues

Significant work has been done to improve the procedures behind care applications, developing a Public Law Outline which sets out requirements of good practice in preparing cases for care proceedings.⁴⁰⁰ One study found that as a result of following the Public Law Outline nearly a quarter of children in their sample were diverted from the care proceedings, as a result of the recommended meetings with parents and interested parties, and early court hearings to determine what needs to be done to prepare the case for the full hearing.⁴⁰¹ There are,

³⁹⁴ In *Re A (Residential Assessment)* [2009] EWHC 865 (Fam) it was confirmed that an assessment could be required, while the child lived with an aunt and great grandmother.

³⁹⁵ [2001] 3 FCR 164.

³⁹⁶ [2005] 3 FCR 621.

³⁹⁷ [2007] 3 FCR 259.

³⁹⁸ See also *Re S (Residential Assessment)* [2009] 2 FLR 397.

³⁹⁹ [1993] 1 FLR 574, [1993] 1 FCR 626.

⁴⁰⁰ Children and Families Act 2014, ss 13–15.

⁴⁰¹ Masson and Dickens (2013). See also Doughty (2014).

however, tensions here.⁴⁰² The more that is done in terms of preparatory meetings, the greater the risk of delay. The quicker the proceedings, the greater the risk that an alternative to care will be overlooked. The Children and Families Act imposes a 26-week time limit on care proceedings.⁴⁰³ Notably, s 14(3) provides for extensions to the time limit in eight-week increments only if there is 'special justification'. In *Re S (Parenting Assessment)*,⁴⁰⁴ the first reported case on the extension provisions, Munby P quoted a comment of Pauffley J's: 'justice must never be sacrificed upon the altar of speed.' That said, he added, there needed to be strong reason to extend the permitted time period. There were three issues to consider. The first is whether there is evidence that the parent is committed to making the changes necessary to make a care order unnecessary. The second is whether there is evidence to believe that the parent will be able to maintain that commitment. The final question is whether there is evidence to believe the parent will be able to make such changes within the child's timescale.

The 26-week time limit has been criticised by Natasha Watson,⁴⁰⁵ a lawyer specialising in child care proceedings, who writes that the legal proceedings must be seen in the context of the broader response to child protection:

From the perspective of the child 26 weeks is an artificial, lawyer-centric, construction. The journey for the child does not start or end with the court process. It starts from the time that the need for protection is identified. The bulk of child protection cases do not arise out of emergency applications. They rarely involve really deliberate child cruelty which has suddenly come to light. They are more usually a depressing collision of alcohol, drugs, mental health issues, domestic violence and poverty in every sense, including emotional.

Another important procedural issue (raised in Chapter 2) is that legal aid restrictions have led to a growth in the number of litigants in person and difficulties in obtaining expert evidence. In *Re R (A Child)*⁴⁰⁶ the difficulties of litigants in person (LiPs) were acknowledged. It was said that local authorities will have to expect to assist LiPs in child protection cases.

9 Special guardianship

Learning objective 7

Examine the use of special guardianship

Now we turn to the long-term options for a local authority, if it believes the parents can no longer care for the child. One option is to apply for an adoption order, and we will explore that shortly. However, as we shall see, one of the major concerns

over the nature of adoption in England and Wales is the way that it terminates the parental status of the birth parents. Those troubled by this have sought to replace adoption with an institution which will provide security and an appropriate status for the new carer of the child, without ending completely the status of the birth parents.⁴⁰⁷ Special guardianship seeks to do this. It was introduced in the Adoption and Children Act 2002.⁴⁰⁸ This is not a replacement for adoption, but is an alternative to it. The White Paper mentions the kind of cases where special guardianship may be appropriate:

⁴⁰² Dickens (2014).

⁴⁰³ Norgrove (2012).

⁴⁰⁴ [2014] EWCC B44 (Fam).

⁴⁰⁵ Watson (2014).

⁴⁰⁶ [2014] EWCA Civ 597.

⁴⁰⁷ Department of Health (2000: 248).

⁴⁰⁸ See also Special Guardianship Regulations 2005 (SI 2005/1109) and Department for Education and Skills (2005c). Jordan and Lindley (2007) provide useful discussion of special guardianship.

Some older children do not wish to be legally separated from their birth families. Adoption may not be best for some children being cared for on a permanent basis by members of their wider birth family. Some minority ethnic communities have religious and cultural difficulties with adoption as it is set out in law. Unaccompanied asylum seeking children may also need secure, permanent homes, but have strong attachments to their families abroad.⁴⁰⁹

The Special Guardianship Guidance⁴¹⁰ lists some of the things special guardianship will do:

- Give the carer clear responsibility for all aspects of caring for the child and for taking the decisions to do with their upbringing. The child will no longer be looked after by a local authority.
- Provide a firm foundation on which to build a lifelong permanent relationship between the child and their carer.
- Be legally secure.
- Preserve the basic link between the child and their birth family.
- Be accompanied by access to a full range of support services including, where appropriate, financial support.⁴¹¹

There were 5,429 special guardianship orders made in 2015, a notable increase from 1,740 made in 2011.⁴¹² Typically, orders were made in favour of relatives with whom the child had been living for some time, particularly grandparents.⁴¹³ The children involved tend to be young, with 52 per cent under the age of five. Most children had come from troubled backgrounds marked by maltreatment or parental difficulties.⁴¹⁴

A Who can apply for a special guardianship?

The following can apply for special guardianship:⁴¹⁵

- any guardian of the child
- a local authority foster carer with whom the child has lived for one year immediately preceding the application
- anyone who holds a residence order with respect to the child, or who has the consent of all those in whose favour a residence order is in force
- anyone with whom the child has lived for three out of the last five years
- where the child is in the care of a local authority, any person who has the consent of the local authority
- anyone who has the consent of all those with parental responsibility for the child
- any person, including the child, who has the leave of the court to apply.

⁴⁰⁹ Department of Health (2000: para 5.9).

⁴¹⁰ Department for Education and Skills (2005a); Special Guardianship Regulations 2005 (SI 2005/1109).

⁴¹¹ A local authority scheme which paid special guardians at a reduced rate was found to be unlawful in *B v Lewisham BC* [2008] EWHC 738 (Admin).

⁴¹² Ministry of Justice (2015b).

⁴¹³ Wade, Dixon and Richards (2009).

⁴¹⁴ Wade, Dixon and Richards (2009).

⁴¹⁵ Children Act 1989, s. 14A.

B The grounds for making a special guardianship order

A special guardianship order can be made if it is in the welfare of the child to do so. The application is governed by section 1, Children Act 1989. When considering an application for a special guardianship the court will, *inter alia*, take into account the applicant's connection with the child and (if the child is being looked after by a local authority) the local authority's plans for the child's future.⁴¹⁶

Special guardianship is typically considered when the parents of the child cannot look after them and an alternative long-term carer is going to take on care. In such a case if adoption is not suitable, some kind of status is needed for that carer. Special guardianship can give that form status and the security it brings.⁴¹⁷ A study of special guardianship found that the order gave the guardians a sense of security and a secure legal foundation.⁴¹⁸

In *Re M (Adoption or Residence Order)*⁴¹⁹ the child was strongly of the opinion that she did not want her links with her mother and siblings to be destroyed, even though she wished to live with the applicants in a permanent relationship. This is the kind of case where special guardianship will be considered.⁴²⁰ In *Re F (Special Guardianship Order: Contact with Birth Family)*⁴²¹ it was decided the child should have contact with her great aunt so that the child's understanding of her cultural heritage could be retained. Given that links with the birth family were being retained it was held a special guardianship order was more sensible than adoption. The leading case on when special guardianship is suitable is the following:

CASE: *Re S (A Child) (Adoption Order or Special Guardianship Order)* [2007] 1 FCR 271;⁴²² *Re J (A Child) (Adoption Order or Special Guardianship Order)* [2007] 1 FCR 308; *Re M-J (A Child) (Adoption Order or Special Guardianship Order)* [2007] 1 FCR 329

The cases all involved applicants who originally sought adoption, but for whom the local authority had proposed special guardianship. The courts made the following important points.

First, the court explained that there were fundamental differences between adoption and special guardianship. Of course, the most significant is that while adoption ends the parental status of the birth parents, special guardianship does not. The Court of Appeal was clear that these differences should be considered carefully when deciding between an adoption and special guardianship order.

Secondly, the court refused to accept that there were particular categories of cases where a special guardianship order was preferable to an adoption order or vice versa. In every case the question was simply one of asking what order would best promote the welfare of the child in question. In particular, there was no presumption that, where the child was to be raised within the wider family, a special guardianship was preferable to an adoption order. In *Re J* the argument that it would be confusing for a child to be raised under an adoption order by his uncle and aunt was rejected because the child

⁴¹⁶ CA 1989, s 14A(12).

⁴¹⁷ *A Local Authority v Y, Z and Others* [2006] Fam Law 449.

⁴¹⁸ Wade, Dixon and Richards (2009).

⁴¹⁹ [1998] 1 FLR 570.

⁴²⁰ *Re K (Special Guardianship Order)* [2011] EWCA Civ 635.

⁴²¹ [2015] EWFC 25.

⁴²² [2007] 1 FCR 271. For helpful discussions of these cases, see Bond (2007) and Bainham (2007).

knew the true family relationship. There was, therefore, no danger that the family relationships would be 'distorted' by an adoption order.

Thirdly, the court emphasised that, under the Human Rights Act 1998, the court must ensure that the intervention in family life was necessary and proportionate. As a special guardianship order was a less fundamental intervention than an adoption order, it should be preferred if it protects the welfare of the child to the same extent as an adoption order. In *Re S* it was held:

In choosing between adoption and special guardianship, in most cases Art 8 is unlikely to add anything to the considerations contained in the respective welfare checklists. Under both statutes the welfare of the child is the court's paramount consideration, and the balancing exercise required by the statutes will be no different to that required by Art 8. However, in some cases, the fact that the welfare objective can be achieved with less disruption of existing family relationships can properly be regarded as helping to tip the balance.⁴²³

Fourthly, when considering whether to make a special guardianship order, it should be remembered that the child's parents will still be able to apply for s 8 orders. This is not true in the case of adoption. The special guardianship does not, therefore, provide the same permanency of protection as adoption. In a case (like *Re J*) where the carers and child needed an assurance that the placement could not be disturbed, then adoption may well be more appropriate. While it was true that, where a special guardianship order was made, a parent would need leave before making an application for a residence order, that did not provide the same level of security as an adoption order. A court could also make an order under s 91(14) of the Children Act 1989 to require a parent seeking any s 8 order to obtain leave of the court first. Even then the level of security for special guardianship would not match that available for adoption.

Fifthly, special guardianship orders can be made by the court on its own motion. In deciding whether to do so, the court must consider whether making the order against the wishes of the parties will promote the welfare interests of the child. A court can only make a guardianship order on its own motion when a report has been prepared by the local authority.⁴²⁴

In *Surrey County Council v Al-Hilli*⁴²⁵ the children's parents were killed in tragic circumstances. The court ordered that a special guardianship order be made in favour of their aunt and uncle who had taken over their care. This gave them security with their new carers, while retaining the links with their deceased parents. That case can be contrasted with *N v B (Adoption by Grandmother)*⁴²⁶ where adoption by a grandmother was appropriate after a father had murdered the mother and raped the aunt.⁴²⁷ This was better than special guardianship as the children needed to stay with the grandmother and the father's role in their life needed to be terminated. The concern over the 'skewing' of relationship was of lesser concern as the children understood the position clearly.

⁴²³ [2007] 1 FCR 271, para 49.

⁴²⁴ CA 1989, s 14A(8).

⁴²⁵ [2013] EWHC 3404.

⁴²⁶ [2013] EWHC 820 (Fam).

⁴²⁷ *N v B (Adoption by Grandmother)* [2013] EWHC 820 (Fam).

C The effect of special guardianship

Special guardianship does not terminate the parental status of the birth parents, and special guardians are not treated as the parents of the child.⁴²⁸ However, they are given many of the rights of a parent. They are able to make almost every decision about a child's upbringing. They can even change the child's name, with the consent of those with parental responsibility.⁴²⁹ As Andrew Bainham puts it, in terms of taking decisions over the child the special guardians are 'in the driving seat'.⁴³⁰ They cannot change the child's surname or remove the child from the jurisdiction for longer than three months without the written consent of all those with parental responsibility. The status of special guardianship remains until revoked by an order of the court. It is, in a sense, a halfway house between a residence order and an adoption order.⁴³¹

Often the court is choosing between special guardianship and adoption and so it is useful to consider their main differences.⁴³²

1. *The status of the carer.* The adopter becomes a parent for all purposes; the special guardian does not become a parent.
2. *The status of the birth family.* In adoption the child ceases to be a child of the birth family. That is not so in a case of special guardianship. In adoption the birth parents lose parental responsibility, while it is retained for birth parents in a case of special guardianship.⁴³³ In a case of special guardianship, birth parents can seek contact orders or prohibited steps orders or specific issue orders without leave of the court.
3. *Duration.* An adoption order is life long⁴³⁴ while a special guardianship order ceases on the child reaching age 18 or when it is revoked.
4. *Parental responsibility.* Adopters have full parental responsibility in the same way any other parent has. A special guardian's parental responsibility has limitations.⁴³⁵ In particular:
 - (i) Removal from the jurisdiction. A special guardian can remove a child from the country without leave for three months, but if they wish to remove the child for longer they need the written consent of all those with parental responsibility or the leave of the court.
 - (ii) Changing the name. Special guardians cannot change the child's surname without the written consent of all those with parental responsibility or an order of the court.
 - (iii) Consent to adoption. The consent of both special guardians and birth parents is required before an adoption order can be made.
 - (iv) Medical procedures. It may be that in the case of certain serious medical procedures (e.g. sterilisation) the consent of all those with parental responsibility will be required.
 - (v) Voluntary accommodation. If a parent objects, it seems that a local authority cannot accommodate a child, even if the special guardians consent, without a court order.

⁴²⁸ Even where a special guardian has been appointed the birth parents will retain their rights in respect of adoption.

⁴²⁹ CA 1989, s 14C(3).

⁴³⁰ Bainham (2005: 253).

⁴³¹ Johnstone (2006: 116).

⁴³² See Schedule at the end of *Re AJ (A Child) (Adoption Order or Special Guardianship Order)* [2007] 1 FCR 308.

⁴³³ CA 1989, s 14C.

⁴³⁴ ACA 2002, s 67.

⁴³⁵ CA 1989, s 14C.

5. *Death of the child.* Adopters have all the rights of a parent. Special guardians may not arrange for burials if the parents wish to undertake the arrangements.
6. *Revocation.* An adoption order is irrevocable, unless there are exceptional circumstances. Birth parents can apply for a special guardianship order to be revoked, with leave of the court.⁴³⁶ Leave to apply for a revocation will only be granted if the application has a real prospect of showing there has been a significant change in circumstances.⁴³⁷
7. *Financial support.* Following an adoption, birth parents cease to have any financial responsibilities for children. This is not so in a case of special guardianship. The guardians are entitled to a special guardianship allowance which is designed to cover the cost of caring for the child.⁴³⁸
8. *Intestacy.* If adopters die, their adopted children have rights of intestate succession. This is not so for children whose special guardians die.

D Variation and discharge of special guardianship

A special guardianship can be varied or discharged on the application of the following:⁴³⁹

- (a) the special guardian;
- (b) the child's birth parents or guardian, with the leave of the court;
- (c) the child with the leave of the court;
- (d) any individual who presently has the benefit of a residence order;
- (e) any individual who had parental responsibility immediately before the making of the special guardianship order, with the leave of the court;
- (f) the local authority, but only where a care order is made in respect of the child;
- (g) the court on its own motion in any case where the welfare of the child arises.

Any application to revoke special guardianship must obtain the leave of the court.⁴⁴⁰ Unless the application is by the local authority, the child or the special guardian him- or herself it needs to be shown that there has been a significant change in the circumstances from when the special guardianship order was made. This makes the special guardianship a little more secure than a residence order.⁴⁴¹

E An assessment of special guardianship

The success of special guardianship will depend on the extent to which both children and would-be adopters are satisfied that it will provide them with the sense of security and belonging together as a family which adoption has been said traditionally to provide.⁴⁴² One

⁴³⁶ CA 1989, s 14D.

⁴³⁷ *Re G (Special Guardianship Order)* [2010] EWCA Civ 300; *H v G (Adoption: Appeal)* [2013] EWHC 2136 (Fam).

⁴³⁸ *R (Barrett) v Kirklees Metropolitan Council* [2010] 2 FCR 153. Although the local authority can determine the level of the award there need to be good reasons for it to be lower than the amounts paid to foster carers.

⁴³⁹ CA 1989, s 14D.

⁴⁴⁰ One exception is where the child is applying (CA 1989, s 14D(5)).

⁴⁴¹ Department of Health (2002: 50).

⁴⁴² It has been suggested that the practice of local authorities of paying a lower level of allowance to special guardians was making them unpopular. That practice may become less widespread following the court's criticism of it in *B v Lewisham BC* [2008] EWHC 738 (Admin).

difficulty, an odd but important one, is terminology. Most people are very familiar with the concept of adoption, and a child can introduce her adoptive parents (and vice versa) without explanation. A special guardianship order might require more explanation until it becomes a familiar term. An earlier attempt to introduce a similar concept was labelled 'custodianship'. This proved deeply unpopular, perhaps in part because, for example, of the difficulties a child might face in introducing her carer to her friends: 'Meet my custodian.'⁴⁴³

Another issue which is key to the success of a special guardianship is the relationship between the special guardian and the birth parents. The following case provides a vivid example of how special guardianship can produce tensions between the parents and special guardians.

CASE: *Re L (A Child) (Special Guardianship Order and Ancillary Orders)* [2007] 1 FCR 804

The parents of child L were drug addicts in a volatile relationship. When L was just three months old she was placed with her grandparents, who were granted a residence order. Two years later, the grandparents sought an adoption order, but the judge made a special guardianship order. On appeal to the Court of Appeal there were two key issues. First, was whether there should be contact with the parents. The trial judge had ordered that contact take place six times a year, away from the grandparents' house, supervised by the local authority. Further contact could be agreed between the mother and grandparents if approved by a social worker. Second, was whether the grandparents were entitled to change the surname of the child to their own. This, they explained, would mean that they would not need to explain the family history to everyone who came into contact with the child and queried the difference in surname. The trial judge had refused to grant this request, a conclusion the Court of Appeal agreed with.

At the heart of both of these issues was the extent to which special guardians are permitted to make decisions concerning the child. At the general level, the Court of Appeal explained that special guardianship did give guardians the right to exercise parental responsibility in the best interests of the child. However, that did not mean that there was no judicial control over the decisions of the guardians. Indeed, in the two issues under consideration, s 14B of the Children Act 1989 required the court, when making a special guardianship order, to consider whether to make a contact order and enabled the court to give leave to change the surname. The response by the parents was:

What real value . . . does the name tag have if it does not give the guardians the autonomy to bring up the child in a normal way without 'big brother', the social workers, exercising the real control which, absent a care order, the local authority does not have.⁴⁴⁴

The court's response was that:

It is intended to promote and secure stability for the child cemented into this new family relationship. Links with the natural family are not severed as in adoption but the purpose undoubtedly is to give freedom to the special guardians to exercise parental responsibility in the best interests of the child. That, however, does not mean that the special guardians are free from the exercise of judicial oversight.⁴⁴⁵

⁴⁴³ Custodianship was introduced by the Children Act 1975.

⁴⁴⁴ Paragraph 30.

⁴⁴⁵ Paragraph 33.

On the surname issue, the court held that it was important that the child know of her background and live with the fact she is being brought up by her grandparents. However, given that the child was to have regular contact with her birth parents, it is not realistic to assume the child could be misled as to the relationship. As the court admitted:⁴⁴⁶ 'In the scale of things in this child's life, her surname is a fact of little real significance.' With that in mind one might have thought that allowing the special guardians, who had undertaken, somewhat reluctantly, the enormous task of raising this troubled child, the liberty to change the name would be a minor concession. The court accepted 'that the care offered by the grandparents was exemplary' but the litigation and surrounding dispute had left them 'not far short from breaking point'.⁴⁴⁷

On the contact issue, the relationship between the grandparents and mother was volatile and so having them together at the time of the contact session was potentially harmful to the child. However, it was held that the requirement that a social worker approve of contact in excess of that ordered was unnecessary.

10 Adoption

Learning objective 6

Summarise the circumstances in which an adoption order will be made

The history of adoption reveals changes within our society.⁴⁴⁸ Legal adoption started with the passing of the Adoption of Children Act 1926.⁴⁴⁹ Before then informal adoption had taken place under the guise of wet-nursing, apprenticeship and informal arrangements for the care of a child. Traditionally, adoption was regarded as a convenient way of handing children born to an unmarried mother to a married infertile couple. It was seen as a blessing to all concerned: the unmarried mother could quietly and without embarrassment get rid of the child, who would otherwise be a public witness to her 'sin', and the married couple would be provided with the child they so longed for.

Nowadays adoption is now seen as a service for children, rather than provision for infertile couples.⁴⁵⁰ It is one of the ways in which the state may arrange care for children whose parents are unable or unwilling to care for them. Infertile couples are now more likely to turn to assisted reproduction than an adoption agency. Unmarried mothers are unlikely to feel that such is the stigma of extramarital birth that they should put up their children for adoption. Indeed, only about 50 mothers a year place their babies for adoption and this is usually because of the child's disability or their mother's personal circumstances.⁴⁵¹ Further, in recent years half of all adoptions have involved the mother and stepfather adopting the mother's child,⁴⁵² so that the stepfather can become the child's father in the eyes of the law.

⁴⁴⁶ Paragraph 40.

⁴⁴⁷ Paragraph 22.

⁴⁴⁸ Douglas and Philpot (2003) and O'Halloran (2003) discuss the changing nature of adoption.

⁴⁴⁹ Cretney (2003a: ch. 17) provides an excellent history of adoption.

⁴⁵⁰ Lewis (2004). See Thoburn (2003) for a useful discussion of the effectiveness of adoption.

⁴⁵¹ Thoburn (2003).

⁴⁵² Lord Chancellor's Department (2003).

Traditionally, adoption was based on the ‘transplant’ model, namely that children would be transplanted from one family and inserted into a new family. The child would cease to be a member of his or her ‘old family’ and would become a full member of the new family. Baroness Hale has explained:

an adoption order does far more than deprive the birth parents of their parental responsibility for bringing up the child and confer it upon her adoptive parents (provided for in article 12 [of the ECHR]). It severs, irrevocably and for all time, the legal relationship between a child and her family of birth. It creates, irrevocably and for all time (unless the child is later adopted again into another family), a new legal relationship, not only between the child and her adoptive parents, but between the child and each of her adoptive parent’s families.⁴⁵³

However, increasingly the transplant model is under challenge. One of England’s leading family lawyers has written: ‘Much of the case for adoption seems to rest on meeting the insecurities of long-term carers, but it is questionable whether the only or best means of addressing these understandable insecurities is through what has been called a “constructed affiliation”’.⁴⁵⁴ While not arguing for the abolition of adoption, he sees it as suitable only in rare cases. One of the significant changes in the nature of adoption is that the average age of children being adopted has risen. The older the child is, the more likely it is that they will be aware of who their biological parents are and that it will be appropriate for the adopted child to retain contact with their natural parents. In such cases the transplant model is unsuitable. Further, the skills required of a parent adopting a newborn baby are different from those for taking care of an older child with a troubled history. So the kind of people who are adopting is changing too.⁴⁵⁵

KEY STATISTICS

The following statistics relate to England for the year ending 31 March 2015.⁴⁵⁶ They do not include children adopted by relatives.

- There were 5,330 adoptions. That is a dramatic rise from 4,010 in 2012–13 and 3,050 in 2010–11.
- 53% of children adopted were boys and 47% were girls.
- Only 4% of adoptions involved children under one year old. 20% involved children over five years. 91% of children were adopted by couples and 9% (420) by single adopters.
- 8% of children were adopted by same-sex couples.

At the turn of the century the number of adoptions had been in gradual decline and it had been forecast that adoption would become of little practical relevance for family lawyers. However, the Government indicated its desire to greatly increase the number of adoption orders being made and the law on adoption was significantly reformed by the Adoption and Children Act 2002. The Act was premised on the belief that adoption was underused by local authorities, was unco-ordinated, and riddled with delays.⁴⁵⁷ To improve the service the Act

⁴⁵³ *Re P* [2008] UKHL 38, para 85.

⁴⁵⁴ Bainham (2008a: 349).

⁴⁵⁵ *Re P* [2008] UKHL 38, para 91.

⁴⁵⁶ Adoption UK (2016).

⁴⁵⁷ Department of Health (2000).

created a national register of people who wish to adopt a child and children who need to be adopted; required local authorities to maintain an adoption service;⁴⁵⁸ and directed the Secretary of State to issued National Adoption Standards and other regulations which govern the way local authorities must perform their obligations concerning adoption.⁴⁵⁹

This enthusiasm among recent governments for adoption has surprised some, given that the adoption rate from care of children in the United Kingdom is already one of the highest in the world.⁴⁶⁰ Initially the political intervention had little success in increasing adoption rates, but as the statistics in the box above show the last few years have seen some notable increases. It should be noted though that adoption is still used for only a very small number of children looked after by local authorities.⁴⁶¹ In 2014–15 there were 69,540 children being looked after in care, but only 5,330 were adopted.

David Cameron's Government indicated (2015–16) a renewed determination to increase further the rates of adoption and it proposed a change in the law so that 'courts and councils always pursue adoption when it is in a child's interest'.⁴⁶² It is not clear whether the new Government will implement this and what form any reform will take.

There have been grave concerns that the push towards increasing adoption targets will lead to children being pushed into adoption, even where that is not the best option for the child. Clare Fenton-Glynn is particularly concerned by 'adoption scorecards' produced by the Department for Education that compare how local authorities have performed in terms of rates of adoption. She argues:

Adoption is not, and cannot be, the answer for every child and we must ensure it is not prioritised – either professionally or financially – at the expense of developing and supporting a range of appropriate solutions to meet individual needs.⁴⁶³

The Government is convinced that adoption benefits children. This could be supported on the basis of psychological evidence that children in care permanently placed with a family suffer less than children living in institutional children's homes.⁴⁶⁴ Research on adopted children even indicates that there is no difference between the well-being of adopted children and children living with their biological parents.⁴⁶⁵ Indeed, the majority of adopted children fare better on various indicia than children with comparable starts in life who live with their birth parents.⁴⁶⁶ Despite the widespread assumption that adoption benefits children, in fact there has been remarkably little research into the benefits of adoption. Those studies that have been carried out tend to suggest that adoption is beneficial, but the picture is not straightforward and much more research needs to be done before we can confidently assert that adoption is superior to long-term fostering.⁴⁶⁷

We will now explore some of the key issues relating to the law on adoption.

⁴⁵⁸ Adoption and Children Act 2002, s. 3. Further amendments were introduced by the Children and Families Act 2014.

⁴⁵⁹ Department of Health (2014b).

⁴⁶⁰ Tolson (2002).

⁴⁶¹ Adoption UK (2016).

⁴⁶² Fenton-Glynn (2016).

⁴⁶³ Fenton-Glynn (2016).

⁴⁶⁴ Quinton and Selwyn (2006a and b).

⁴⁶⁵ Quinton and Selwyn (2006a and b).

⁴⁶⁶ Rushton (2002).

⁴⁶⁷ Eekelaar (2003a); Warman and Roberts (2003).

A Adoption and secret birth

There have been several cases where a mother has not wanted the wider family (including her parents) to be informed about the birth of a child and instead wishes the child to be adopted.⁴⁶⁸ This has proved a controversial issue. Generally in such a case the courts seek to balance the rights of the mother to anonymity with the rights of the child to have her wider family considered as her carers.

Holman J in *Z CC v R*⁴⁶⁹ explained the importance of the right of the mother to anonymity:

There is, in my judgment, a strong social need, if it is lawful, to continue to enable some mothers, such as this mother, to make discreet, dignified and humane arrangements for the birth and subsequent adoption of their babies, without their families knowing anything about it, if the mother, for good reason, so wishes.

However, it would be wrong to think that the privacy rights of the mother will always win out in such cases. In *Birmingham CC v S, R and A*⁴⁷⁰ a father did not want his parents to be told about the birth or be considered as adopters. However, the Court of Appeal held that the father's objections could not carry weight because it could not be assumed that his parents would not be interested in caring for the child. It explained:

Adoption is a last resort for any child. It is only to be considered when neither of the parents nor the wider family and friends can reasonably be considered as potential carers for the child. To deprive a significant member of the wider family of the information that the child exists who might otherwise be adopted, is a fundamental step that can only be justified on cogent and compelling grounds.⁴⁷¹

Such grounds were not found in that case. It is interesting to note that this case involved the father, rather than the mother, wishing to keep the birth secret. The court made little of this point, but you might speculate whether the courts think that a mother has a greater right to secrecy than a father. Holman J, in the quote above, referred to the 'social need' to enable anonymous births. Is that to discourage abortion? If so, the argument is stronger in relation to mothers than fathers.

A rather different attitude can be detected in *C v XYZ CC*⁴⁷² where the Court of Appeal confirmed that there was nothing in the Adoption and Children Act 2002 which compelled a local authority to disclose the identity of a child to the extended family against the mother's wishes. The mother wanted neither the father nor their wider families to know of the birth. The Court of Appeal held that s 1 of the 2002 Act did not privilege the birth family over adoptive parents, 'simply because they are the birth family', although placing a child with a birth family will 'often be in the best interests of the child'.⁴⁷³ The Court of Appeal believed that the requirement in s 1(4)(f) of the 2002 Act to consider the relationships which a child has could include relationships which have the potential to develop in the future, even if there is currently no relationship.⁴⁷⁴ That included, in this case, the grandparents. However, the overall conclusion of the court was that in this particular case informing the family would

⁴⁶⁸ *Re R (A Child) (Adoption: Disclosure)* [2001] 1 FCR 238. See Marshall (2012) for an excellent discussion of the issues.

⁴⁶⁹ [2001] Fam Law 8.

⁴⁷⁰ [2006] EWHC 3065 (Fam).

⁴⁷¹ Paragraph 75.

⁴⁷² [2007] EWCA Civ 1206, discussed in Sloan (2009).

⁴⁷³ Paragraph 18.

⁴⁷⁴ Confirmed in *Re S (A Child)* [2011] EWCA Civ 505.

further delay finding an alternative home for the child. As to any Human Rights Act claims, it was held that the father had no family right with the child and so he could not claim any right to be informed of the birth. Interestingly, it was held that the grandparents did have a right to be informed of the birth under article 8(1), but that interference in their rights was justified. Brief mention was made of the argument that the child may have a right to family life, but any interference in that could be justified if the adoption was approved under article 8(2). It is surprising that the grandparents, but not the father, were found to have a right to be informed of the birth. This is not fully explained in the judgment, but it may have been because the father had indicated that he had no interest in the child and wanted to play no role in the child's life, while the grandparents had not had an opportunity to develop family life with the child.

In *Re A (Father: Knowledge of Child's Birth)*⁴⁷⁵ a wife wished to keep from her husband the fact that she had had a baby and arrange for the child to be adopted. The court held that only in cases of a high degree of exceptionality would orders be made designed to prevent the father knowing about the baby. While this was not restricted to cases where there was violence, in this case there were no real grounds for the mother's concerns.

There is, therefore, no clear settled approach taken by the courts. It appears that the key factors influencing the court are the strength and legitimacy of the mother's reasons for wanting to keep the birth anonymous and the likelihood whether informing other family members will lead to a realistic carer for the child coming forward.

B Who can adopt?

As part of the attempt to encourage an increase in the rate of adoption, the 2002 Act extends the category of those who can adopt. Now anyone can adopt, subject to the following restrictions:

1. An adoptive parent must be at least 21 years old. However, if a parent is adopting his or her own child then he or she need only be 18.⁴⁷⁶
2. If a couple wish to adopt together they must be married, civil partners or 'living as partners in an enduring family relationship'.⁴⁷⁷ If a couple are in a casual relationship, this would mean they could not adopt together, but one of them could adopt a child alone. In *Re CC (Adoption Application: Separated Applicants)*⁴⁷⁸ a couple separated during the placement. The court approved a joint adoption order as the child had come to recognise both adults as her parents; and it was intended they would both play a full role in the child's life. It was accepted that it would be rare for the court to make a joint adoption for a separated couple.
3. A single person can adopt. But a married person can only adopt alone if he or she satisfies the court that his or her spouse cannot be found; or is incapable by reason of ill-health of applying for the adoption; or that the spouses have separated and it is likely to be a permanent separation.⁴⁷⁹
4. There are complex rules which set out domicile or habitual residence requirements for would-be adopters.⁴⁸⁰

⁴⁷⁵ [2011] EWCA Civ 273.

⁴⁷⁶ Adoption and Children Act 2002 (hereafter ACA 2002), s 50.

⁴⁷⁷ ACA 2002, s 144(4). See A. Marshall (2003).

⁴⁷⁸ [2013] EWHC 4815 (Fam).

⁴⁷⁹ ACA 2002, s 51.

⁴⁸⁰ ACA 2002, s 49(2), (3). See *Re A (Adoption: Removal)* [2009] 2 FLR 597.

5. An adoption agency cannot place any child for adoption where a person over the age of 18 has been convicted or cautioned for a specified offence (e.g. child abuse).

At the time, one of the most controversial aspects of the 2002 Act was that it permitted adoption by a same-sex couple. Now there is such extensive evidence that same-sex couples can offer as good a quality of parenting as opposite sex couples that it is uncontroversial.⁴⁸¹ Despite this, small-scale studies found same-sex couples were disadvantaged in the adoption process.⁴⁸²

C Who can be adopted?

Only a person under the age of 19 can be adopted, although the application must be made before that person's 18th birthday.⁴⁸³ Although the child does not need to consent to the adoption, in the case of a child with sufficient understanding they should be consulted through the process and offered counselling. It is hard to imagine that an adoption agency would want to place a child for adoption who opposed it.

D The adoption procedures

Before setting out the procedures for matching adopters and children, we need to appreciate a tension in the law's goals here. A court will be willing to make an adoption order only if it is decided that there is no realistic hope of the child living with the birth family in the foreseeable future and that the adoption will promote the child's welfare. There are, therefore, difficulties in cases where the birth family objects to the adoption. When are their objections to be considered? If they are left to the end of the process, there could be a situation where the child has been placed with adopters for a trial period which has gone very well, with raised hope of the adopters and perhaps the child, which are dashed when at the final hearing the judge decides that the birth parents are justifiably objecting to the proposed adoption. However, if the consent of the birth parents is dealt with as the first issue the judge is in the difficult position of having to decide whether to dispense with the parents' consent, without knowing whether or not the proposed adopters will be suitable. The solution adopted by the 2002 Act is that the consent issue should be dealt with early on in the process, at the stage of the placement. However, if there is a change in circumstances then at the final hearing the parents have a further chance to object.⁴⁸⁴

The road to adoption under the Adoption and Children Act 2002 involves the following stages:

1. *Planning for adoption.* The local authority should consider whether adoption is suitable for every child in its care. If it decides that the birth family are unable to meet a child's needs in the foreseeable future and that adoption is likely to provide the best means of doing so, then a plan for adoption should be drawn up.⁴⁸⁵ In deciding whether to pursue adoption, the local authority must also consider the likelihood of finding appropriate adopters. In making the decision to consider adoption, a delicate balance has to be drawn. On the one

⁴⁸¹ Golombok (2015).

⁴⁸² Hitchings and Sagar (2007) and Samuel (2010).

⁴⁸³ ACA 2002, ss 47(9) and 49(4). See *Re MW (Leave to Apply for Adoption)* [2014] EWHC 385 (Fam).

⁴⁸⁴ It need hardly be said that this means a change in circumstances which makes the birth parent's opposition stronger: *Re T (Adoption)* [2012] EWCA Civ 191.

⁴⁸⁵ ACA 2002, s 1.

hand, if the local authority believes that there is a hope of rehabilitation with the birth parents it will be reluctant to pursue an adoption. On the other hand, delaying adoption because of a faint hope of rehabilitation may mean the child has to spend years in limbo, making the chance of success of any later adoption more remote. Some local authorities use a process known as twin-tracking to deal with this difficulty: at the same time, work is done on the one hand with the family in an effort to pursue rehabilitation with the birth parent, while on the other hand preparations are made to find an alternative secure home for the child.⁴⁸⁶ Such procedures can be difficult for all involved and require trust and commitment all round. There may also be concerns that such procedures may cause confusion for the child.

2. *Assessing would-be adopters.* When a couple or an individual approaches an adoption agency, wishing to be considered as an adopter, they will be assessed by the agency.⁴⁸⁷ Many agencies take the view that the process should be as much about the agency deciding whether the couple are suitable to be adopters, as about assisting the couple to decide whether they wish to adopt. Applicants must be treated fairly, openly and with respect.⁴⁸⁸ In the past there were concerns over the assessment of would-be adopters. In response, the Adoption Agency Regulations 2005 set out the grounds that should be taken into account.⁴⁸⁹ This should at least ensure there is consistency in practice between the different agencies.
3. *The preparation of the report.* The adoption agency must interview and assess anyone who puts themselves forward as potential adopters and then prepare a detailed report for the agency's adoption panel.⁴⁹⁰ The report might comment on the applicant's relationships, health and lifestyle, and will take up references. Attitudes to child care, and the use of corporal punishment, will be considered too.⁴⁹¹
4. *The adoption agency's decision on the applicant's suitability.* In the light of the report, the adoption agency will decide whether or not to approve the adopters. Although the report prepared by the panel will be taken into account, the decision is ultimately one for the agency. At present it appears that 95 per cent of applicants put before the agency are approved. This figure may seem very high, but it should be appreciated that most candidates thought unsuitable for adoption will have withdrawn from the process before the final report is placed before the panel.

An applicant who was rejected as an adopter by a local authority could apply for judicial review of the local authority's decision. In *R (Johns and Johns) v Derby City Council (Equality and Human Rights Commission Intervening)*⁴⁹² a Christian couple wished to adopt. They strongly opposed all sexual behaviour outside marriage, including same-sex behaviour. These views were going to be taken into account in deciding they would be approved as fosters or adopters. A challenge to this assessment failed, with the court rejecting the argument that the approach amounted to improper discrimination on the grounds

⁴⁸⁶ The courts have approved such schemes: e.g. *CM v Blackburn with Darwen Borough Council* [2014] EWCA Civ 1479.

⁴⁸⁷ See Suitability of Adopters Regulations 2005 (SI 2005/1712) for the procedures which should be followed.

⁴⁸⁸ Department for Education and Skills (2005c: standards B 1–7).

⁴⁸⁹ See, further, Department for Education and Skills (2006b).

⁴⁹⁰ This is required by the Department for Education and Skills (2006b).

⁴⁹¹ *R (A) v Newham London Borough Council* [2009] 1 FCR 545.

⁴⁹² [2011] EWHC 375 (Admin).

of religion. Importantly, the court noted that their views on sexual morality were only to be one factor to be considered. In *O v Coventry City Council (Adoption)*⁴⁹³ the court upheld a decision not to consider as adopters a couple who had a history of financial insecurity and where one had failed to pay child support or be involved with children from a previous relationship.

5. *Matching the child and adopter.* If the adopter(s) is (or are) approved, the agency must then consider whether there are any children needing to be adopted who are an appropriate match. If there are, the applicants will be given brief details of the children. If the applicants are keen to proceed, the adoption panel will prepare a report for the adoption agency on the proposed match.
6. *The agency approves the match.* The adoption agency will need to approve of the proposal that adoption between the child and would-be adopter should be pursued. It should be remembered that s 1 of the Act applies to the agency. Thus the agency should approve the match if to do so would promote the child's welfare. Section 3 of the Children and Families Act 2014 has removed the specific requirement that the adoption agency give due consideration to the child's religious persuasion, racial origin and cultural and linguistic background, when placing the child for adoption. This is not to say that these factors are not to be considered, rather that they are part of the general welfare assessment. The requirement was removed because it was thought it elevated these factors to undue prominence in a welfare assessment.

TOPICAL ISSUE

Transracial adoption

The issue of transracial adoption is a controversial one.⁴⁹⁴ At one extreme there are concerns that adoption can become a means of taking children away from deprived black families and giving them to infertile middle-class white couples. There is also conflicting evidence concerning whether children whose race differs from that of their primary carers suffer from confusions over their cultural identity. To others transracial adoption is to be encouraged as part of the creation of a racially and culturally diverse and mixed society.⁴⁹⁵ The removal of the obligation in s 1(5) of the Adoption and Children Act 2002 requires the court when considering the placement of children to give 'due consideration' to the child's racial origin was designed to prevent a local authority avoiding an otherwise good matching, on the basis of racial differences between the adopters and child. In *Re A (Placement Orders: Cultural Heritage)*⁴⁹⁶ the Court of Appeal approved the placement of children with adopters of a different ethnic and cultural background, as the would-be adopters were well placed to meet the children's other needs.⁴⁹⁷

7. *The adopters are provided with a full report on the child.* The would-be adopters at this stage will be provided with a full report on the child's health, needs and history.⁴⁹⁸

⁴⁹³ [2011] EWCC7 (Fam).

⁴⁹⁴ See the discussions in Hayes and Hayes (2014) and Sargent (2015).

⁴⁹⁵ Murphy (2000).

⁴⁹⁶ [2015] EWCA Civ 1254.

⁴⁹⁷ See also *Re CB (Adoption Order)* [2015] EWHC 3274 (Fam).

⁴⁹⁸ A local authority may be liable in tort if it fails to provide relevant information which, if disclosed, would have persuaded the adopters not to go ahead with the adoption: *A and B v Essex CC* [2002] EWHC 2709 (Fam).

8. *Placement of the child with the would-be adopters.* The next stage will be the placement of the child with the adopters for what is, in effect, a trial period. To place a child, the agency must either have the consent of each parent with parental responsibility⁴⁹⁹ or must have obtained a placement order from the court.⁵⁰⁰ The issue of placement is complex and will be discussed in more detail shortly.
9. *The agency applies for an adoption order.* If the placement has worked well, the final stage will be for the adoption agency to apply for an adoption order. It is not possible to apply for an adoption order unless there has been a placement order or the parents are consenting to the adoption, with one exception: that is, foster carers who have looked after the child for at least 12 months, who can apply without satisfying any further requirements.⁵⁰¹ This will be discussed further shortly.

E Placement for adoption

As we have just seen, the placement of a child with potential adopters plays a crucial role in the process for adoption. Once placement takes place, the agency or the people with whom the child is placed acquire parental responsibility, but the birth parents do not lose it. However, the agency is entitled to restrict the way parents can exercise their parental responsibility. A placement order also prohibits the removal of the child from the adopters by anyone (including, most importantly, the birth parents) except the local authority.⁵⁰² To place a child, the agency must either have the consent of each parent with parental responsibility⁵⁰³ or must have obtained a placement order from the court.⁵⁰⁴ These two alternatives will now be considered:

1. *Placement by consent.* Parental consent can be specific (i.e. the parents consent to the child being placed with a particular person or people) or general (i.e. the parents consent to the child being placed with whomever the local authority believes to be appropriate). However, if at any time a parent withdraws his or her consent, the agency must apply for a placement order or return the child to the parents.⁵⁰⁵
2. *Placement by placement order.* The court can make a placement order only if all of the following are satisfied:
 - (a) Either a care order has already been made in respect of the child or the court is satisfied that the significant harm test in s 31 of the Children Act 1989 is satisfied.
 - (b) Parental consent has been given or been dispensed with.⁵⁰⁶ Dispensing with parental consent will be dealt with in more detail shortly, but in brief this can happen if to do so will promote the child's welfare.
 - (c) The court is persuaded that it is better to make the placement order than not to do so.⁵⁰⁷

⁴⁹⁹ ACA 2002, s 19(1), unless care proceedings are pending (s 19(3)).

⁵⁰⁰ ACA 2002, ss 21(3), 52.

⁵⁰¹ ACA 2002, s 47.

⁵⁰² ACA 2002, ss 34(1), 47(4).

⁵⁰³ ACA 2002, s 19(1), unless care proceedings are pending (s 19(3)).

⁵⁰⁴ ACA 2002, ss 21(3), 52.

⁵⁰⁵ ACA 2002, ss 22, 31 and 32. If the birth parent(s) do not wish to be involved any further in the process, they are entitled to ask that they not be informed of any application for adoption (s 20(4)).

⁵⁰⁶ If consent has been given, the local authority is likely to go down the route of placement by consent.

⁵⁰⁷ ACA 2002, s 1(6).

The welfare principle applies when the court is making a placement order. The placement order can be made, even if it is foreseen that there may be difficulties in placing the child or even concerns that adoption may not be able to take place. In *NS-H v Kingston Upon Hull City Council and MC*⁵⁰⁸ the Court of Appeal explained that placement was only suitable where 'the child is presently in a **condition** to be adopted and is **ready** to be adopted'.

Before making a placement order, the court is required to consider the arrangements for contact between the child and birth family.⁵⁰⁹ The placement order will terminate any existing contact order, but on making the placement order the court can make a new contact order. It can also authorise the agency to refuse contact between the child and any named person.⁵¹⁰ The placement order cannot be subject to conditions. So a judge cannot set conditions on the kind of adopters a child can be placed with.⁵¹¹

It is illegal for anyone except an adoption agency to place a child for adoption with a person who is not a relative.⁵¹² If parents wish to have their child adopted, they should contact an adoption agency. Only local authorities and adoption societies can run adoption services.⁵¹³ There are even criminal offences if an unauthorised person seeks to run an adoption service.⁵¹⁴ Where a couple have unlawfully brought a child to the United Kingdom, the court will not normally then allow the couple to adopt the child.⁵¹⁵

F Revocation of a placement order by court order

A placement order can be revoked if it is decided that there is no plan for adoption.⁵¹⁶ That may be because the placement has not been a success. In rare cases there has been such an improvement in the position of the birth parents they wish to be reconsidered as primary carers of the child. Once the child has been placed,⁵¹⁷ birth parents cannot apply for revocation unless they have the leave of the court,⁵¹⁸ which will be granted only if there has been a change of circumstances of a nature and degree sufficient to justify reopening the issue and if granting leave would promote the welfare of the child.⁵¹⁹ It does not need to be shown the change of circumstances was 'exceptional'.⁵²⁰ The change in circumstances can be of any kind. In *Re LG (Adoption: Leave to Oppose)*⁵²¹ the change was that the family of a very young father came to learn of the birth and were keen to help him raise the child. The court will take into account whether the change in circumstances is likely to continue.⁵²² If someone is not

⁵⁰⁸ [2008] 2 FLR 918. See also *Re F (Appeal from Placement Order)* [2013] EWCA Civ 1277.

⁵⁰⁹ ACA 2002, ss 26, 27(4).

⁵¹⁰ ACA 2002, s 27.

⁵¹¹ *Re A (Children) (Placement Orders: Conditions)* [2013] EWCA Civ 1611.

⁵¹² ACA 2002, ss 92, 93.

⁵¹³ ACA 2002, s 92.

⁵¹⁴ ACA 2002, s 93.

⁵¹⁵ *Northumberland County Council v Z* [2010] 1 FCR 494.

⁵¹⁶ The child is treated as placed for adoption when the child starts to live with the would-be adopters: *Coventry City Council v O (Adoption)* [2011] EWCA Civ 729.

⁵¹⁷ *Re S (Placement Order: Revocation)* [2009] 1 FLR 503.

⁵¹⁸ See *S-H v Kingston-Upon-Hull* [2008] EWCA Civ 493 for a case where the parent was granted leave to apply to revoke the placement order, because the child was not thriving during placement.

⁵¹⁹ *Re LRP (No. 2) (Leave to Oppose Adoption Application)* [2014] EWHC 3311 (Fam). If an application for revocation has been made a child may not be placed for adoption: s 24 ACA 2002, although that does not apply to an application for leave to apply for revocation: *Re F (A Child) (Placement Order)* [2008] 2 FCR 93.

⁵²⁰ *Re T (Application to Revoke a Placement Orders: Change in Circumstances)* [2014] EWCA Civ 1369.

⁵²¹ [2015] EWFC 52.

⁵²² *Re G (A Child)* [2015] EWCA Civ 119.

a parent with parental responsibility or a guardian and they wish to challenge a placement order they need to seek leave to apply for a child arrangements order under s 8.⁵²³

If leave is granted, the whether or not the placement will be revoked will be considered on the basis of the welfare of the child.⁵²⁴ Proportionality will play a dominant role.⁵²⁵ The court will consider whether continuing with adoption is the option which will best promote the welfare of the child.

G Revocation by the local authority

A local authority can demand the return of the child within seven days under s 35(2) of the Adoption and Children Act 2002 by way of a notice and then apply to the court under s 35 to have the placement revoked. In *DL and ML v Newham LBC and Secretary of State for Education*⁵²⁶ where a local authority became concerned about a child it had placed with a couple they sought to revoke the placement under s 35(2) of the Adoption and Children Act 2002. The prospective adopters sought judicial review of the decision to issue a section 35(2) notice. Charles J quashed the notice and directed the authority to reconsider whether the child should be returned to the applicants. He emphasised that a placement gave parental responsibility to the prospective adopters. This meant there was family life between the prospective adopters and the child for the purposes of article 8. The local authority therefore had to ensure any interference in that family life was justified and complied with the article 8 requirements for procedural fairness. The prospective adopters had not been given a proper opportunity to address the concerns.

CASE: RCW v A Local Authority [2013] EWHC 235 (Fam)

The local authority sought to remove a child who had been placed with a young single woman, R, after she lost her sight. The placement had been going very well. It was held that the removal of a child from a prospective adopter was 'momentous'. It had to be welfare based and reached fairly. Here there had been little direct observation of how well R was able to care for the child; no assessment; no discussion with her friends and supporters; no proper understanding of her condition. She had not been invited to attend at meetings where the placement had been discussed. R had not been given an opportunity to address the local authority's concern. This breached common law principle of fairness and her rights under article 6 or 8. Strikingly the local authority admitted it did not even know if R's condition was permanent or temporary. It was emphasised that visual impairment did not disqualify someone from being a loving parent. She was awarded damages under s 7 of the Human Rights Act 1998 for the interference in her rights.

In *RY v Southend Borough Council*⁵²⁷ it was held that even though section 35 did not include a requirement that the local authority prove the child was suffering significant harm before a revocation of a placement order was made, it should be read as if it did. This would ensure

⁵²³ *Re G (Adoption: Leave to Oppose)* [2014] EWCA Civ 432.

⁵²⁴ Adoption and Children Act 2002, s 1.

⁵²⁵ *Re T (Application to Revoke a Placement Orders: Change in Circumstances)* [2014] EWCA Civ 1369.

⁵²⁶ [2011] EWHC 1127 (Admin).

⁵²⁷ [2015] EWHC 2509 (Fam).

the interference in the article 8 rights of the child and adopters were protected. In *Borough of Poole v Mrs and Mr W*,⁵²⁸ where the child was settled with the adopters and traumatised by an attempt to reintroduce her to her birth family, the court had no difficulty in refusing to revoke the placement. That case might be contrasted with the following controversial decision.

CASE: *A and B v Rotherham Metropolitan Borough Council and Others* [2014] EWFC 47 (Fam)

A child had been removed from the mother at birth. She untruthfully told the social workers that her partner was the father. Both the mother and partner were white, although the child was described as being of mixed race appearance. Despite this the mother's statements on paternity were accepted. A care order was made and the child placed for adoption, with what were described as 'perfect' adopters. The real genetic father then discovered the child's existence and although he had never seen the child wanted his sister (the child's aunt) to raise him. He emphasised that his family were Black African, while the adopters were white British (although they did seek to raise the child with an awareness of his African heritage). The case was seen as difficult because although had the father come forward before the placement the child would almost certainly have been placed with the aunt, the child was well settled into life with the adopters, who were providing an 'exemplary standard' of care. The social workers and psychologist favoured revoking the placement. Holman J agreed, concluding that the father coming forward was a change in circumstances and looking at the child's welfare during his whole life, the short-term disruption to his care was outweighed by the child living with the aunt who could be a 'bridge' to the birth family.

Undoubtedly people will disagree on the outcome here and Holman J admitted it was a finely balanced case. It seems a brave decision to move the child from what everyone agreed was a settled, attached and secure environment to a family the child had never met, but could offer the cultural heritage background. The child was aged 20 months and had lived with the adopters for 13 months. Certainly other cases (*Re C (Adoption Proceedings: Change of Circumstances)*)⁵²⁹ have placed considerable weight on the current security and happiness of a child if the placement is going well.

H The making of an adoption order

It is not possible for an adoption to occur without a court order. So, if a couple take into their home a child and raise him or her as their own child, this will not be an adoption. Before considering an adoption order, the court will have to be satisfied that the placement criteria have been met. The exact requirements depend on the nature of the applicants:

- If the adoption is arranged by an adoption agency, the child must have lived with the applicants for at least 10 weeks before the application is made.

⁵²⁸ [2014] EWHC 1777 (Fam).

⁵²⁹ [2013] EWCA Civ 431.

- If the adoption is a non-agency case and the applicant is a step-parent or partner of the parent, the minimum period is six months.⁵³⁰
- If the adoption is a non-agency case and the applicant is a local authority foster carer, a continuous period of one year is required.
- If the adoption is a non-agency case and the applicant is a relative, the child must have lived with the applicant for a cumulative period of three years during the preceding five years.⁵³¹

These requirements ensure that the child and would-be adopters have spent a sufficient amount of time together for the court to be able properly to assess whether the adoption is likely to benefit the child. If the placement criteria are satisfied⁵³² the court will go on to consider the two key crucial requirements for an adoption order:

- that the making of the adoption order is in the child's welfare; and
- that the birth parent consents to the adoption or that consent has been dispensed with.⁵³³

These requirements will be considered separately.

(i) That the making of the adoption order is in the child's welfare

In deciding whether or not an adoption order is in the welfare of the child, the court must consider the checklist in s 1(4) of the Adoption and Children Act 2002:

LEGISLATIVE PROVISION

Adoption and Children Act 2002, section 1(4)

- (a) the child's ascertainable wishes and feelings regarding the decisions (considered in the light of the child's age and understanding);
- (b) the child's particular needs;
- (c) the likely effect on the child (throughout his life) of having ceased to be a member of the original family and become an adopted person;
- (d) the child's age, sex, background and any of the child's characteristics which the court or agency considers relevant;
- (e) any harm (within the meaning of the Children Act 1989) which the child has suffered or is at risk of suffering;
- (f) the relationship which the child has with relatives, and with any other person in relation to whom the court or agency considers the relationship to be relevant, including—
 - (i) the likelihood of any such relationship continuing and the value to the child of its doing so;

⁵³⁰ 'Lived with' here requires the parties to share the same household. Being in regular electronic contact is insufficient.

⁵³¹ ACA 2002, s 42. It is possible to apply for leave to allow adoption without this requirement being met: *Re MW (Leave to Apply for Adoption)* [2014] EWHC 385 (Fam).

⁵³² If they are not satisfied, the court must grant leave to apply for the order. In such a case the court will consider the child's welfare and the likelihood of the application succeeding: *Re A (A Child) (Adoption)* [2008] 1 FCR 55.

⁵³³ See *Down Lisburn v H* [2006] UKHL 36 which highlights the problem with the 'reasonable person test' for dispensing with consent under the old law.

- (ii) the ability and willingness of any of the child's relatives, or of any such person, to provide the child with a secure environment in which the child can develop, and otherwise to meet the child's needs;
- (iii) the wishes and feelings of the child's relatives, or of any such person, regarding the child.

Four points in particular will be emphasised about this list.⁵³⁴ First, it should be noted that the court must consider the child's welfare not only during the child's minority, but for the rest of his or her life.⁵³⁵ Thus, a court may be persuaded that making an adoption order in favour of a child just short of his or her 18th birthday will promote his or her welfare, if doing so will give him or her British citizenship.⁵³⁶ In *Re T (A Child)*⁵³⁷ the child's parents were in prison. Although they could not offer immediate care, they may be able to do in the future. The possibility of future care by birth parents was taken into account in deciding whether the child should be adopted.

Secondly, as usual, the child's own views about the proposed adoption are likely to be very important, if not crucial, to a determination of the child's welfare. At one time it was proposed that an adoption order could not be made in respect of a child over the age of 12 without his or her consent. This did not appear in the final Act. However, it is hard to imagine a case where a court will decide that an adoption, against the wishes of a teenager, will promote his or her welfare.⁵³⁸ However, in one case the views of a seven-year-old were of 'passing interest' but he lacked the maturity to make the decision.⁵³⁹ As Pauffley J put it, it is one thing to ask 'if he would like fish fingers for tea and quite another to take account of and assent to his choice about where he should live'.

Third, the Act requires the court specifically to consider the child's relationships with his or her birth family: not just his or her birth parents, but his or her wider family.⁵⁴⁰ In particular, the court must consider whether the child's blood relatives are in a position to care for the child. In *Re C (Family Placement)*⁵⁴¹ the Court of Appeal preferred to make a residence order to a five-year-old's grandmother, rather than place the child for adoption with strangers, as the local authority wished to do. They referred to the law's preference that children be raised within their family. The grandmother's age was noted (she was 70), but the court believed other family members would rally round if the grandmother became unable to care for the child. Of course, in some cases where the child has been through a particularly traumatic time there may be a positive benefit in severing all ties so that a new start can be made.⁵⁴²

The fourth point is that, as mentioned earlier in this chapter, proportionality will play a key role in these cases. When considering an application for an adoption order the court must recall the alternative orders that it can make.⁵⁴³ This will mean the court should consider all

⁵³⁴ The list is similar, but not identical to, CA 1989, s 1(3).

⁵³⁵ For a general discussion see Sloan (2013).

⁵³⁶ *EAS v Secretary of State for the Home Department and Anor* [2015] EWCA Civ 951.

⁵³⁷ [2014] EWCA Civ 929.

⁵³⁸ Adoption Agencies Regulations 2005 require the agency to counsel the child and ascertain his or her wishes and feelings and report on these to the adoption panel, if appropriate.

⁵³⁹ *Re MM (Long Term Fostering: Placement with Family Members: Wishes and Feelings)* [2013] EWHC 2697 (Fam.).

⁵⁴⁰ Parkinson (2003).

⁵⁴¹ [2009] 1 FLR 1425.

⁵⁴² *Birmingham City Council v AB and Others* [2014] EWHC 3090 (Fam.).

⁵⁴³ *Re P (Children) (Adoption: Parental Consent)* [2008] 2 FCR 185.

the alternative carers for the child. Even if it is decided the child should live with the adopters the court must still consider as alternatives to adoption: (i) a child arrangements order in favour of the applicants;⁵⁴⁴ (ii) a special guardianship; or (iii) no order. All of these options could lead to the child living with the applicants, but, unlike adoption, the birth parents would not lose their parental status. Also, significantly, the formal links between the child and his or her wider family (e.g. siblings, grandparents, etc.) would remain. The court will have to weigh up the benefits of retaining the broad links with the birth family with the benefits of security offered by an adoption. Holman J in *Re H (Adoption Non-paternal)*⁵⁴⁵ summarised the benefits of an adoption order over and above a residence order in favour of the would-be adopters:

It is well recognised that adoption confers an extra and psychologically and emotionally important sense of 'belonging'. There is real benefit to the parent/child relationship in knowing that each is legally bound to the other and in knowing that the relationship thus created is as secure and free from interference by outsiders as the relationship between natural parents and their child.

To similar effect, in *Re V (Long-Term Fostering or Adoption)*⁵⁴⁶ Black LJ emphasised the difference in 'feel' offered by the permanence of adoption.

In *Re M (Adoption or Residence Order)*⁵⁴⁷ the views of a 12-year-old that she did not want to be regarded as no longer the sibling of her siblings were decisive in ordering a residence order in favour of the applicants, rather than an adoption. The Court of Appeal was brave in doing this because the applicants had stated that they would not be able to care for the child if only granted a residence order and threatened that if they were denied an adoption order they would return the child to the local authority. In the face of strong evidence that it was in the interests of the child to live with the applicants, the Court of Appeal trusted that the applicants would not carry through with their threats. In addition to a residence order, it also made an order under s 91(14) of the Children Act 1989, preventing the birth mother making an application for an order under that Act without the leave of the court. This would provide some limited protection to the applicants from concerns that the birth mother would be constantly seeking to interfere with the way they were raising the child.

When considering whether the adoption will promote the child's welfare, the court will be aware of potential rights under the Human Rights Act 1998.⁵⁴⁸ The approach of the European Court of Human Rights towards adoption is rather ambiguous. In *Johansen v Norway*⁵⁴⁹ the European Court considered the placement of the applicant's daughter in a foster home with a view to adoption. The court stated:

These measures were particularly far-reaching in that they totally deprived the applicant of the family life with the child and were inconsistent with the aim of reuniting them. Such measures should only be applied in exceptional circumstances and could only be justified if they were motivated by an overriding requirement pertaining to the child's best interests.⁵⁵⁰

This statement, subsequently repeated in many cases, appears to suggest that adoption is only permissible in exceptional cases and only if there is a very strong case for it based on the

⁵⁴⁴ The ACA 2002 has amended s 12 of the Children Act 1989 so that a residence order can last until the child's 18th birthday.

⁵⁴⁵ [1996] 1 FLR 717 at p. 726.

⁵⁴⁶ [2013] EWCA Civ 913.

⁵⁴⁷ [1998] 1 FLR 570.

⁵⁴⁸ *Re P (Children) (Adoption: Parental Consent)* [2008] 2 FCR 185.

⁵⁴⁹ (1996) 23 EHRR 33.

⁵⁵⁰ At para 78.

child's interests, while some later cases (e.g. *Söderbäck v Sweden*)⁵⁵¹ suggested a more positive attitude towards adoption. Recently the ECtHR has confirmed its restrictive approach in *R and H v UK*,⁵⁵² stating 'measures which deprive biological parents of the parental responsibilities and authorise adoption should only be applied in exceptional circumstances and can only be justified if they are motivated by an overriding requirement pertaining to the child's best interests'.

The approach of the courts to adoption is now dominated by the following important decision:

CASE: *Re B-S (Children) (Adoption: Leave to Oppose)* [2013] EWCA Civ 1146

Two children had been removed from a mother and made the subject of care and placement orders. The children were placed with prospective adopters and an application for adoption was brought. The mother applied under the Adoption and Children Act 2002, s 47(5) for leave to oppose the making of the adoption order. The basis of her application was that her life had been turned around and she was now able to offer good care of the children. At first instance, while accepting the improvements in the mother's situation it was emphasised that the children needed stability and care. Even if returned to her, the mother might not be able to cope and there was still 'a long road to travel'. She was refused leave to appeal. The appeal failed but the Court gave essential guidance on such applications and generally on the law's approach to adoption.

The Court of Appeal emphasised that s 47(5) was intended to give a parent a 'meaningful remedy'. It was also stressed that the remedy was for the benefit of the child, as well of the parent. Earlier dicta that only in 'exceptionally rare circumstances' would leave to oppose be granted were disapproved. The Court should ask two questions when considering leave to oppose. First, if there had been a change in circumstances and, second if so, whether leave to oppose should be given? In considering the second question the court should consider all the circumstances and in particular the parent's ultimate prospect of success of an adoption order not being made. Second, the impact on the child of the decision whether to give leave. If the judge determined that there had been a change of circumstances and there were solid grounds for seeking leave, the judge had to consider very carefully whether the child's welfare necessitated a refusal of leave. The more positive the change in circumstances and the more solid the grounds for seeking leave, the more compelling the arguments based on welfare would need to be if leave was to be refused. The impact on granting of leave on the potential adopters and the disturbance to them of having to defend adoption proceedings was a factor, but not one to carry undue weight.

Overriding all these points however was that the child's welfare was paramount; it was important to remember that adoption was 'the last resort' and 'only permissible if nothing else would do'. The law was based on the belief that children's 'interests included being brought up by its parents or wider family unless the overriding requirements of the child's welfare made that impossible'. The judge, in making decisions about adoption, had to consider all the options and the pros and cons of each option. Munby P expressed

⁵⁵¹ [1999] 1 FLR 250.

⁵⁵² (App No. 35348/06) [2011] ECHR 844, para 81.

concern at the 'recurrent inadequacy of the analysis and reasoning put forward in support of the case for adoption'; it was, he said, 'time to call a halt to sloppy practice'.⁵⁵³ It was wrong to take a 'linear' approach and consider each option individually, starting with the least interventionist. Rather the task of the judge was 'to evaluate all the options, undertaking a global, holistic and . . . multi-faceted evaluation of the child's welfare which takes into account all the negatives and positives, all the pros and cons of each option'.

This case picked up and developed the comments of Lord Neuberger's in *Re B*⁵⁵⁴ where he refers to:

. . . the importance of emphasising the principle that adoption of a child against her parents' wishes should only be contemplated as a last resort – when all else fails. Although the child's interests in an adoption case are 'paramount' (in the UK legislation and under Art 21 of the United Nations Convention on the Rights of the Child 1989), a court must never lose sight of the fact that those interests include being brought up by her natural family, ideally her natural parents, or at least one of them.

He also notes that in assessing the abilities of parents to care for their children the court must consider the assistance and support available from local authorities to parents to help them perform their role. In this regard parents who had a history of failing to co-operate with local authorities or not being honest with them, may be less likely to succeed than parents who had shown a willingness to receive assistance and support.⁵⁵⁵ In *Re E (A Child)*⁵⁵⁶ the local authority supported adoption as the mother had an unsuitable partner. However, the court noted it had provided the mother with no assistance in extricating herself from the relationship (e.g. by offering alternative accommodation) and so it could not be concluded that it had been shown adoption was the only option.

Further guidance on the rejection of the 'linear approach' has been helpfully provided in *Re G (Care Proceedings: Welfare Evaluation)*.⁵⁵⁷

The judicial exercise should not be a linear process whereby each option, other than the most draconian, is looked at in isolation and then rejected because of internal deficits that may be identified, with the result that, at the end of the line, the only option left standing is the most draconian and that is therefore chosen without any particular consideration of whether there are internal deficits within that option.⁵⁵⁸

MacFarlane LJ went on to say that judges must be wary of simply using phrases such as 'draconian order' to indicate that they appreciate the severity of the adoption order, they must genuinely consider whether the order is the only way of adequately promoting the welfare of the child.

⁵⁵³ For similar concerns see *Re V (Long Term Fostering or Adoption)* [2013] EWCA Civ 913.

⁵⁵⁴ [2013] UKSC 33.

⁵⁵⁵ *Re W (A Child)* [2012] EWCA Civ 1828.

⁵⁵⁶ [2013] EWCA Civ 1614.

⁵⁵⁷ [2013] EWCA Civ 965.

⁵⁵⁸ Approved in *Re C (Appeal from Care and Placement Orders)* [2013] EWCA Civ 1257.

One of the major implications of *Re B-S* is the emphasis on the argument that adoption is to be used if absolutely necessary.⁵⁵⁹ In *Re S (A Child) (Care and Placement Orders: Proportionality)*⁵⁶⁰ the making of a care order and a placement order, with a view to adoption, were said to be orders which:

are 'very extreme', only made when 'necessary' for the protection of the child's interests, which means when 'nothing else will do', 'when all else fails', that the court 'must never lose sight of the fact that [the child's] interests include being brought up by her natural family, ideally her natural parents, or at least one of them' and that adoption 'should only be contemplated as a last resort'.

One notable consequence of *Re B-S* is the emphasis placed on human rights⁵⁶¹ and in particular the requirement that the interference in article 8 rights by adoption is a proportionate and justifiable response given the welfare of the child.⁵⁶² Although in *Re C (Adoption Proceedings: Change of Circumstances)*⁵⁶³ it was held that a judge who properly applied the welfare test would be ensuring that the human rights requirements would be met at the same time. Nevertheless, it is safest for a judge to confirm that they have undertaken both the welfare analysis and ensured that there is sufficient justification for any breach of human rights.

However, as mentioned in relation to care orders, it is clear that some courts and commentators read too much into *Re B-S*. As mentioned earlier the Court of Appeal in *Re R (Adoption)*⁵⁶⁴ emphasised that the court should not be deterred from making an adoption order where doing so was in the child's best interests. A good example of the current approach is *Borough of Poole v Mrs and Mr W*.⁵⁶⁵ The case arose by way of an attempt to revoke placement and leave to defend an adoption. This was based on the fact that had been significant improvements in the parents' position, including them undertaking university degrees. It was argued that adoption could no longer be said to be the only option. However, the child, who had particular needs, would have been traumatised by an attempt to reunite her with the parents. The court therefore decided to proceed with the adoption process. It was emphasised that the welfare of the child is key and the dicta on the importance of the birth family in *Re B-S* could not be used to justify the child suffering harm. Indeed, it is still very true that in many cases the security and permanence offered by an adoption, especially where the placement has been a success, will carry significant weight in a welfare assessment.⁵⁶⁶ In *Re R (Adoption)*⁵⁶⁷ Munby P was clear:

'I wish to emphasise, with as much force as possible, that *Re B-S* was not intended to change and has not changed the law. Where adoption is in the child's best interests, local authorities must not shy away from seeking, nor courts from making, care orders with a plan for adoption, placement orders and adoption orders. The fact is that there are occasions when nothing but adoption will do, and it is essential in such cases that a child's welfare should not be compromised by keeping them within their family at all costs' (para [44]).

⁵⁵⁹ *Prospective Adopters v IA and London Borough of Croydon* [2014] EWHC 331 (Fam).

⁵⁶⁰ [2013] EWCA Civ 1073.

⁵⁶¹ *Re V (Long-Term Fostering or Adoption)* [2013] EWCA Civ 913.

⁵⁶² *YC v United Kingdom* [2012] ECHR 433; *Re E (Adoption Order: Proportionality of Outcome to Circumstances)* [2013] EWCA Civ 1614; *Re R (children) (care and placement orders: paternal grandparents)* [2013] EWCA Civ 1018.

⁵⁶³ [2013] EWCA Civ 431.

⁵⁶⁴ [2014] EWCA 1625.

⁵⁶⁵ [2014] EWHC 1777 (Fam).

⁵⁶⁶ *BC v IA* [2014] EWFC 1491; *Re MM (Long Term Fostering: Placement with Family Members: Wishes and Feelings)* [2013] EWHC 2697 (Fam).

⁵⁶⁷ [2014] EWCA 1625.

So the current position seems to be as follows.⁵⁶⁸ The court should consider all realistic options.⁵⁶⁹ If adoption is only one which will promote the welfare of the child, that should be chosen.⁵⁷⁰ If there is an alternative to adoption which is better than or as good as adoption that should be chosen, because adoption is a 'last resort'.⁵⁷¹ Even if there is another acceptable alternative to adoption, if adoption is clearly better it should still be preferred.⁵⁷² The court must take into account the underlying preference for being raised with the birth family. That can include the importance of being raised in the child's culture.⁵⁷³ The court will also take into account the relationship that has developed between a child and potential adopters during placement. Where a strong attachment has already been formed the court may take some persuading that the proposed adoption should not go ahead.⁵⁷⁴

(ii) The consent of the parents

Before an adoption order can be made, the court must have the consent of the parents or dispense with that consent.

(a) Who must consent?

The consent of all parents with parental responsibility and any guardians is required. The consent of an unmarried father without parental responsibility is not required. The 1996 draft Adoption Bill required the consent of children over the age of 12 to being adopted, but this is not required under the 2002 Act.⁵⁷⁵ The British Agencies for Adoption and Fostering objected to the consent requirement on the basis that children may feel they are being asked actively to reject their birth parents by consenting to adoption.

(b) The unmarried father without parental responsibility

As just noted, it is not necessary to have the consent of a father without parental responsibility before the court makes an adoption order; but that does not mean that he can be ignored by the adoption agency. The adoption agency should normally notify the father of the adoption proceedings.⁵⁷⁶ Where the father has family life for the purposes of article 8, the courts have held that he must be notified of the proceedings and involved sufficiently to protect his interests. Not to do so might infringe his rights under articles 8 and 6.⁵⁷⁷ This human rights dimension now means that he should be informed of the proposed adoption unless there are very good reasons for not involving the father (e.g. where there is a concern that he will be violent towards the mother if he should learn of the child's birth and proposed adoption).⁵⁷⁸

An example of this approach can be found in *Re M (Notification of Step-parent Adoption)*⁵⁷⁹ where it was determined a father should not be notified of a step-parent adoption. He had played no role in the child's life, nor had he attempted to. He, therefore, had no

⁵⁶⁸ See Sloan (2015c) and Holt and Kelly (2015a) for a helpful discussion of the current position.

⁵⁶⁹ *Re S (Care Proceedings: Evaluation of Grandmother)* [2015] EWCA Civ 325.

⁵⁷⁰ *Re S (Care Proceedings: Evaluation of Grandmother)* [2015] EWCA Civ 325.

⁵⁷¹ *Re B-S* [2013] EWCA Civ 1146.

⁵⁷² *Re M-H (Placement Order: Correct Test to Dispense with Consent)* [2014] EWCA Civ 1396, [2015] 2 FLR 357.

⁵⁷³ *Newcastle City Council v WM and Others* [2015] EWFC 42.

⁵⁷⁴ *Re M'P-P (Children) (Adoption: Status Quo)* [2015] EWCA Civ 58. See Nickols (2014) for difficulties in reuniting children and birth families after they have been removed.

⁵⁷⁵ See Piper and Miakishev (2003) for support for this proposal.

⁵⁷⁶ This includes anyone believed to be a father by the agency.

⁵⁷⁷ *Re R (Adoption: Father's Involvement)* [2001] 1 FLR 302.

⁵⁷⁸ *Re S (A Child) (Adoption Proceedings: Joinder of Father)* [2001] 1 FCR 158.

⁵⁷⁹ [2014] EWHC 1128 (Fam).

article 6 or 8 rights in relation to the child.⁵⁸⁰ In any event there was a real possibility he would be violent to the mother or child if he were to be informed of the proceedings, so even if he did have an article 8 right, the child and mother's interests justified an interference in it.

(c) What is consent?

Consent must be given 'unconditionally and with full understanding of what it involved'.⁵⁸¹ It is therefore not possible for a birth parent to consent to an adoption only under certain circumstances (e.g. that the adopter is a Chelsea supporter!). The consent must be in writing on a form which sets out the effect of adoption and is witnessed by a CAFCASS officer. The intention of these requirements is that the consent be given freely and with full understanding.⁵⁸² This explains why a birth mother's consent to adoption is valid only if the child is at least six weeks old.⁵⁸³ Until this time she may not have full understanding of the significance of the decision she is making. A birth mother could consent to placement immediately following birth, but then would need to provide later consent to adoption.⁵⁸⁴

(d) Consent to what?

The consent to the adoption can be consent to adoption by a specific person or general consent for the child to be adopted by anyone. The consent can be given at the time of placement or subsequently. This reflects the variety of roles that the birth family may wish to play in an adoption case. It may be that the birth parents do not want any involvement in adoption and hand over the child to the adoption agency, happy for them to select an appropriate adopter. On the other hand, it may be that the birth family want a say in the selection of the adopter (particularly if the adoption is to be an open one), in which case they may prefer to consent to a particular adopter of whom they approve.

(e) Changes of mind

If the consent is given in advance of the adoption order, it can subsequently be withdrawn as long as an application for an adoption order has not been made. But, if a placement order has been made, a parent cannot object to the making of the adoption order without the leave of the court.⁵⁸⁵ The court, under s 47(7), must be persuaded that there has been a change in circumstances, such that it would be appropriate to reopen the question.⁵⁸⁶ We discussed this earlier.

In *Re SSM (A Child)*⁵⁸⁷ a father sought leave to oppose making an adoption order. Mostyn J held that the change in circumstances needed to be 'unexpected'. So if, when making the original placement order, the court had foreseen that the father might improve his situation, such an improvement would not be a change in circumstances. However, in *Re W (Adoption: Procedure: Conditions)*⁵⁸⁸ the Court of Appeal held the judge had been in error in asking whether there had been a 'sea change' or 'significant' change in circumstances. As the court noted, the issue

⁵⁸⁰ *Re C (A Child)* [2013] EWCA Civ 431.

⁵⁸¹ ACA 2002, s 52(5); *Re CA (A Baby)* [2012] EWHC 2190 (Fam).

⁵⁸² Although see *Re A (Adoption: Agreement: Procedure)* [2001] 2 FLR 455 where the consent of a 15-year-old Kosovan rape victim to a freeing order was revoked on the basis that she had not understood what she was signing.

⁵⁸³ ACA 2002, s 52(3).

⁵⁸⁴ *A Local Authority v GC and Others* [2009] 1 FLR 299.

⁵⁸⁵ ACA 2002, s 47(3).

⁵⁸⁶ *Re W (Adoption Order: Set Aside and Leave to Oppose)* [2010] EWCA Civ 1535.

⁵⁸⁷ [2015] EWHC 327 (Fam).

⁵⁸⁸ [2015] EWCA Civ 403.

was simply whether or not leave to oppose the adoption should be granted; the court was not considering whether or not the application would succeed.

(iii) Dispensing with consent

If a parent whose consent is required does not give the consent, the court can dispense with the requirement, in two circumstances:

1. 'The parent or guardian cannot be found or is incapable of giving consent.'⁵⁸⁹ This provision will be used in cases where the parent or guardian has disappeared or is unknown (e.g. if the baby was found abandoned outside a hospital and the mother has never been identified).⁵⁹⁰ It is also used if the parent is suffering a mental disability which means she lacks capacity to consent.
2. 'The welfare of the child requires the consent to be dispensed with.'⁵⁹¹ Under the Adoption Act 1976, parents' objections to adoption could only be overridden if they were unreasonably withholding their consent to the adoption. Section 1 of the Adoption and Children Act 2002 makes clear that now the sole consideration for the court in dispensing with consent is the child's welfare. So the rights of the parents and questions about whether or not the parents were reasonable in their objections are irrelevant. This has led to heavy criticism by some who fear that to permit the adoption of children against the wishes of parents simply on the basis that it would be better for the child rides roughshod over the importance attached to parental rights. Can any parent be particularly confident that it is impossible to find someone else who would be better at raising his or her child?⁵⁹² Such concerns, however, may be overblown. There are a number of ways in which, despite the wording of s 52(1)(b), the interests of parents could be taken into account:
 - (i) The subsection uses the word 'requires'. This might suggest that, if it is shown that adoption is only slightly in the interests of the child, this will be insufficient to *require* the consent to be dispensed with.⁵⁹³ In *Re P (Placement Orders: Parental Consent)*⁵⁹⁴ the Court of Appeal held that the word *requires* carries a connotation of being imperative: that dispensing with the consent is not just reasonable or desirable but required in the interests of the child. In *Re Q (A Child)*⁵⁹⁵ it was suggested the word 'requires' implies the adoption is necessary. These cases seem in line with the general approach of the case law following *Re B-S*.
 - (ii) The Court of Appeal emphasised in *Re Q (A Child)*⁵⁹⁶ that under the Human Rights Act 1998 this subsection must be read in a way which is compatible with the European Convention if at all possible.⁵⁹⁷ Clearly an adoption order is a grave interference with

⁵⁸⁹ ACA 2002, s 52(1)(a). See *Haringey v Mr and Mrs E* [2006] EWHC 1620 (Fam) for such a case.

⁵⁹⁰ In *Re K and Another v FY and Another* [2014] EWHC 3111 (Fam) the mother was treated as not being able to be found, even though the court accepted with 'vast resources' and many people engaged in detective work she might be found.

⁵⁹¹ ACA 2002, s 52(1)(b).

⁵⁹² Barton (2001).

⁵⁹³ Davis (2005).

⁵⁹⁴ [2008] EWCA Civ 535.

⁵⁹⁵ [2011] EWCA Civ 1610.

⁵⁹⁶ [2011] EWCA Civ 1610.

⁵⁹⁷ In *ML v ANS* [2012] UKSC 30, a Scottish case, the Supreme Court took this approach. Welbourne (2002) and Choudhry (2003) provide useful discussions on the potential impact of the Human Rights Act 1998 in this context.

the right to respect for family life between the parent and child.⁵⁹⁸ Indeed, it is hard to think of a graver one. It must therefore be a proportionate intervention. Only a substantial benefit to the child of adoption might be thought sufficient to make adoption a proportionate response and therefore permissible under article 8(2).⁵⁹⁹

It should be added that if the child has lived with the would-be adopters and has developed a close relationship with them it is arguable that the would-be adopters and child have developed family life which is also protected under article 8 (*DL and ML v Newham LBC and Secretary of State for Education*).⁶⁰⁰ Such an argument is likely to be strongest where the child has lived with the applicants for a considerable period of time.⁶⁰¹

- (iii) Although at the adoption order stage the welfare test applies, at the placement stage the s 31 threshold criteria will have to be satisfied. Therefore, it will have to have been shown that the parenting of the child caused or risked the child significant harm before a child can be adopted against the parent's wishes. Further, since *Re B-S* adoption will only be approved as a 'last resort'.⁶⁰²

Despite such arguments, Bridge and Swindells argue that there is a change in the law in that: 'Whereas parents (under the former law) could take a different view of their child's welfare and not be unreasonable, the court will now be able to impose its view on them.'⁶⁰³ The point is that under the 1976 Act if it would be reasonable to take the view both that the child should be adopted and that the child should not (i.e. it was a borderline case) it would not be possible to dispense with the parent's consent. However, in such a case under the 2002 Act it would be open to the court to decide that an adoption was (just) in a child's welfare and therefore to dispense with parental consent. This is revealed in *Re R (Placement Order)*⁶⁰⁴ where Sumner J dispensed with the consent of Muslim parents to adoption. They opposed adoption as being contrary to Muslim practice. The judge held that the children's welfare required adoption despite the objections of the parents.

I The effect of an adoption order

An adopted child is to be treated as the 'legitimate child of the adopter or adopters'.⁶⁰⁵ This means that the adoption order will have the following effects:

1. Parental responsibility for the child is given to the adopters.⁶⁰⁶
2. Adoptive parents can make all decisions about the child which other parents can make, including appointing a guardian.⁶⁰⁷
3. An adoption order extinguishes the parental status and parental responsibility of any other person. There is one exception to this and that is where a step-parent adopts their partner's child, where their partner will retain parental responsibility and status.⁶⁰⁸

⁵⁹⁸ *P, C, S v UK* [2002] 2 FLR 631.

⁵⁹⁹ *P, C, S v UK* [2002] 2 FLR 631 at para 118.

⁶⁰⁰ [2011] EWHC 1127 (Admin).

⁶⁰¹ *Re B (A Child) (Adoption Order)* [2001] EWCA 347, [2001] 2 FCR 89.

⁶⁰² *Re M-H (Placement Order: Correct Test to Dispense with Consent)* [2014] EWCA Civ 1396.

⁶⁰³ Bridge and Swindells (2003): 152).

⁶⁰⁴ [2007] EWHC 3031 (Fam).

⁶⁰⁵ ACA 2002, s 67(1)–(3).

⁶⁰⁶ ACA 2002, s 46(1).

⁶⁰⁷ ACA 2002, s 67.

⁶⁰⁸ ACA 2002, ss 51(2), 67(3)(d).

4. After the making of an adoption order, an adopted child no longer has any right to inherit their birth parent's property.
5. On the making of an adoption order, an adopted child who is not a British citizen will acquire British citizenship if the adopter is a British citizen.⁶⁰⁹

There are, however, some circumstances in which the adoption order does not treat the adopted child in exactly the same way as a natural child.

- An adopted person is deemed within the prohibited degrees of relations for the purpose of marrying his or her birth relations.⁶¹⁰ Therefore, for example, if an adopted man marries his birth sister, entirely innocently, the marriage will be void. However, he can marry his adoptive relatives, including an adoptive sister, but not his adoptive mother.
- A minor may retain the nationality he or she had acquired from his or her birth. However, a minor adopted in the UK court will be a British citizen if one of the adopters is a British citizen.⁶¹¹
- Adoptions do not affect the right to succeed to peerages.
- Section 69 of the Adoption and Children Act 2002 states that an adoption will not affect certain dispositions of property.

The European Convention on Human Rights, under article 14, prohibits improper discrimination between adopted children and birth children.⁶¹² Of course, the legal effects are only a small part of the significance of adoption. As Thorpe LJ said in *Re J (A Minor) (Adoption: Non-Paternal)*⁶¹³ the result of adoption is 'the creation of the psychological relationship of parent and child with all its far-reaching manifestations and consequences'.

J Open adoption

As originally conceived, adoption was seen as a closed and secretive process.⁶¹⁴ Birth parents were not told who had adopted the child, adoptive parents were not told who the birth parents were, and the child was not told that he or she had been adopted. Even if the child did find out, this was a secret to be kept from the rest of the world.⁶¹⁵ This secrecy model changed with evidence that some adopted children needed detailed information of their birth background to establish a secure sense of who they were, and birth parents needed to know that their child had been successfully and happily adopted.⁶¹⁶

These concerns have led to an increase in willingness for local authorities to encourage open adoption. These are adoptions where the child maintains links with the birth parents or wider family. This may be indirectly through e-mails, or directly through face-to-face meetings. Research suggests that open adoptions more often involve contact between the birth mother and her side of the family, rather than the birth father.⁶¹⁷ At present at least 70 per cent of children who have been adopted retain some kind of contact with their birth families.⁶¹⁸

⁶⁰⁹ British Nationality Act 1981, s 1(5).

⁶¹⁰ ACA 2002, s 74(1).

⁶¹¹ British Nationality Act 1981, s 1(5).

⁶¹² *Pla and Puncernau v Andorra* [2004] 2 FCR 630.

⁶¹³ [1998] 1 FCR 125 at 130.

⁶¹⁴ See Smith (2004) for an autopoietic approach to open adoption.

⁶¹⁵ Cretney (2003a: ch. 17).

⁶¹⁶ Howe and Feast (2000).

⁶¹⁷ Neil (2000).

⁶¹⁸ Department of Health (2002d: 15). Thoburn (2003: 394) says the figure is around 80 per cent.

The Children and Families Act 2014 has added a new s 51A(2) to the Adoption and Children Act 2002 allowing the court to make an order allowing contact when making an adoption order.⁶¹⁹ This can require the adopted parents to allow contact with another person. In fact, it seems court orders are rare.⁶²⁰ The argument the courts have accepted is that if the adopters are happy for there to be contact then there is no need for the court to make an order requiring it;⁶²¹ and if the adopters do not want there to be contact it would be wrong to force them to do so.⁶²² This means that trust between the birth families and adopters is key.⁶²³ In *P (Children) (Adoption: Parental Consent)*⁶²⁴ it was held to be of fundamental importance that two siblings keep in contact.⁶²⁵ The Court of Appeal held that in such a case the court should order contact, rather than leaving it to be dealt with informally by the local authorities and adopters.⁶²⁶ The court, on adoption, can require a person not to contact the adopted child. That might be appropriate if there are fears that a birth relative will seek to disrupt adoption.

A member of a birth family can apply post-adoption for contact, but will need leave to bring the application. Section 51A(5) requires the court when deciding whether to grant leave to consider 'any risk there might be of the proposed application disrupting the child's life to such an extent that he or she would be harmed by it'. The courts are likely to grant leave only where the maintenance of contact with the birth family is of such benefit to the child as to justify overriding the privacy of the adoptive family. Forcing contact against the wishes of the adopters is unlikely to benefit the child in the long run⁶²⁷ and would be 'extremely unusual'.⁶²⁸ In *Seddon v Oldham Metropolitan Borough Council*⁶²⁹ a birth mother, who had only been permitted contact through letters, challenged the law as incompatible with the Human Rights Act 1998 and seeking direct contact. She failed. The court held s 51A did allow her to apply for contact and it was not interfering in her human rights. The harm and distress to the child that contact would bring justified denying her direct contact. Peter Jackson J emphasised that adoption terminated her article 8 rights.

In *Oxfordshire County Council v X*⁶³⁰ the adoptive parents objected to providing the birth parents with a photograph of the child, for fear they would use it on the internet to find out where the child was. The Court of Appeal in deciding that the adoptive parents should not be required to supply the photographs held that the question was not whether or not their fears were correct, but whether the views of the adoptive parents were unreasonable. The court held they were not. It was emphasised that the welfare of the child depended on the parents feeling secure and this feeling would be challenged if it was ordered that they supply photographs. Perhaps at the heart of this case is the blunt message: 'The adoptive parents are J's parents; the natural parents are not.'⁶³¹

⁶¹⁹ Sloan (2014). Generally conditions cannot be attached to an adoption order: *Re W (Adoption: Procedure: Conditions)* [2015] EWCA Civ 403.

⁶²⁰ *Re R (A Child) (Adoption: Contact)* [2007] 1 FCR 149. Although see *X and Y v A Local Authority (Adoption: Procedure)* [2009] 2 FLR 984.

⁶²¹ *Re T (Adoption: Contact)* [1995] 2 FLR 251.

⁶²² *Re T (Adoption: Contact)* [1995] 2 FLR 251.

⁶²³ Smith (2005).

⁶²⁴ [2008] 2 FCR 185.

⁶²⁵ See also *Re H (Leave to Apply for Residence Order)* [2008] EWCA Civ 503.

⁶²⁶ See also *Re B (Open Adoption)* [2011] EWCA Civ 509.

⁶²⁷ *Down Lisburn v H* [2006] UKHL 36; Eekelaar (2003a).

⁶²⁸ *Oxfordshire County Council v X* [2010] 2 FCR 355, para 6.

⁶²⁹ [2015] EWHC 2609 (Fam).

⁶³⁰ [2010] 2 FCR 355. See the discussion in Hughes and Sloan (2012).

⁶³¹ Paragraph 36.

One of the few cases where the Court of Appeal held that leave to apply for contact post-adoption should be granted was *Re T Minors (Adopted Children: Contact)*⁶³² where the adopters had failed to provide an annual report to the adopted children's adult half-sister. Notably, this case did not greatly interfere in the private and family life of the adoptive parents.⁶³³ More typical is *Re T (A Child)*⁶³⁴ where leave was not granted following evidence that hearing the application would not be in the child's interests because it would cause him and the adoptive parents great distress. Contact orders made in favour of birth family members against adoptive parents will be 'extremely unusual'.

DEBATE

Is open adoption a good idea?

The issue of open adoption is controversial.⁶³⁵ In favour it is said that openly adopted children will feel less of a sense of being rejected by their birth families;⁶³⁶ it will provide them with a greater sense of security; and it might encourage birth families to be supportive of the adoption.⁶³⁷ Indeed, one study interviewing adopted children found that many wanted greater contact with their birth families.⁶³⁸ Against open adoption it must be recalled that some cases of adoption are those where the child has suffered or been at risk of significant harm because of the parenting they have received. Particularly where the birth family have abused the child, the benefits of contact may be questioned. Further, there are concerns that contact with the birth family might undermine the position of the adopters.⁶³⁹ It may also deter some would-be adopters from going through with the adoption.⁶⁴⁰

Questions

1. What would happen if adoption were abolished? What could replace it?
2. Is there a case for amending the law on adoption so that the birth parents retain some status in respect of the child?

Further reading

See **Harris-Short** (2008) for a useful discussion of the law on adoption.

K Adoption by a parent

A parent may decide to adopt his or her own child. The reason for doing this is usually to eliminate the other parent from the picture. Nowadays this is very rare, but it sometimes arises. In *Re B (Adoption by the Natural Parent to Exclusion of Other)*⁶⁴¹ very shortly after the

⁶³² [1995] 2 FLR 792.

⁶³³ *Contrast Re S (Contact: Application by Sibling)* [1998] 2 FLR 897.

⁶³⁴ [2010] EWCA Civ 1527.

⁶³⁵ Smith and Logan (2002) and Neil (2003) provide useful discussions.

⁶³⁶ In *Re G (Adoption: Contact)* [2003] Fam Law 9 the fear was expressed that without contact the children might view their birth families as 'ogres'.

⁶³⁷ Smith and Logan (2002). *Re G (Child: Contact)* [2002] 3 FCR 377 acknowledges that research is generally in favour of open adoption.

⁶³⁸ Thomas (2001).

⁶³⁹ For an example see *Re C (Contempt: Committal)* [1995] 2 FLR 767.

⁶⁴⁰ Lowe and Murch (2002: 62).

⁶⁴¹ [2002] 1 FLR 196.

birth of her child a mother decided to place her child for adoption. The father, by chance, discovered this and offered to raise his child. The mother agreed to the arrangement. She did not want to play any role in the child's upbringing and was therefore happy for her maternal role to be ended. The Official Solicitor was appointed and objected on the basis that it was not in the child's welfare to terminate the link with her mother. At first instance the adoption order was made but the Court of Appeal allowed an appeal. Hale LJ held that only exceptional circumstances (e.g. disappearance of a parent or anonymous sperm donation) could justify single-parent adoptions. The House of Lords, however, allowed a further appeal and restored the adoption. It held, controversially, that an order which was in the child's best interests could not breach the child's rights. The decision was reached under the Adoption Act 1976 under which the child's welfare was the first, but not paramount, consideration in any decision. It was held that, as the mother did not want to have anything to do with the child, an adoption could not be said to interfere improperly with the human rights of the mother or child.⁶⁴²

L Adoption by parent and step-parent

Twenty-two per cent of all adoptions in 2005 involved step-parents.⁶⁴³ More recent statistics are not available. Typically, such adoptions arise where a mother remarries and her new husband wishes to have formal recognition of his status. He could enter into an agreement with his wife in relation to the child which would grant him parental responsibility.⁶⁴⁴ However, he might still want the formal label of father and/or he may be concerned that the birth father may seek to interfere with the way that the stepfamily will care for the child; he, therefore, may consider adoption. The stepfather might have two options:

1. The mother and her new husband adopt the mother's child. So, rather strangely, the mother adopts her own child. The purpose of doing this is that the birth father will lose entirely his parental status. The stepfather and birth mother will become the legal parents of the child. However, to some the attraction of adoption is that it means the stepfamily need no longer fear that the birth family will interfere with the way they raise the child.
2. The Adoption and Children Act 2002 enables the partner of a parent to adopt a child, without that affecting the parental status of the birth parents.⁶⁴⁵ Thus a stepfather can adopt the child. He will become the father, but the mother will remain as the mother. Notably the procedure can be used not only by the spouse of a parent, but any partner (including a same-sex partner).

If there is an application for adoption involving a step-parent, the application will be governed by the principles already outlined. It must be shown that the adoption will promote the welfare of the child, and the necessary parental consents must be obtained or dispensed with. It should be emphasised that the court must be persuaded that it is better to make an adoption order than to make no order at all.⁶⁴⁶

⁶⁴² See Bainham (2002b) and Harris-Short (2002) for criticism of this decision.

⁶⁴³ Department of Constitutional Affairs (2006).

⁶⁴⁴ CA 1989, s 4A.

⁶⁴⁵ ACA 2002, s 52(2).

⁶⁴⁶ ACA 2002, s 1(6).

Many take the view that step-parent adoptions should not be permitted. In particular, while it is understandable why the stepfather might want some kind of recognition of his position in the child's life, that should not mean that the birth father and his side of the family lose their status in respect of the child.

CASE: *Re P (A Child)* [2014] EWCA 1174

A Polish woman with three children had formed a relationship with an English man (F). The birth fathers of the children had minimal contact with them. When their relationship settled F, with the consent of the mother, applied for an adoption order. The fathers did not consent and the judge refused to consent on the basis that adoption was not essential to their welfare and was not a last resort.

It was held that the key issue in dispensing with consent was proportionality. There was a difference to be drawn between cases where step-parents were adopting a child with the children remaining with their birth mother; and where the children were to be adopted outside their family. That was because there was less disruption in the child's rights to respect to family life in a step-parent adoption case. The making of a step-parent adoption was more likely to be proportionate where the non-consenting parent had not had care or undertaken responsibility for the child; had no or infrequent contact with the child; and where the step-parent had formed a well-established relationship with the parent with whom the child was living.

M Post-adoption support

Lowe has suggested that adoption has changed from the gift/donation model to a contract/services model.⁶⁴⁷ He points out that at one time a child being adopted was regarded as a gift to be handed over by an adoption agency to an infertile couple. Once the child was received by the couple, the local authority's role was at an end and the adopter would be treated in the same way as a birth parent. Nowadays adoption is seen as one of the ways of arranging the care of a child taken into care. As the age of adopted children has increased, and as a result children being adopted may present a range of emotional and physical problems, it has become necessary to rethink the assumption that the local authority carries no responsibility for adopted children. This has led to increased awareness of the importance of providing support to children who have been adopted.⁶⁴⁸ The task of adopting a child who has been severely abused or suffers from complex physical disability may be beyond all but the most gifted of parents without the assistance, advice and support of a local authority. The offering of services may help to decrease the rate of adoption breakdown and may encourage prospective adopters to adopt 'difficult' children. A more cynical view is that these 'services' may in effect amount to regulation of and intervention in the family life of the adoptive family.⁶⁴⁹

The Adoption and Children Act 2002 now requires adoption agencies to provide for a wide range of adoption support services.⁶⁵⁰ However, this does not create a strong right to

⁶⁴⁷ Lowe (1997a).

⁶⁴⁸ Lowe (1997a).

⁶⁴⁹ Harris-Short (2008).

⁶⁵⁰ ACA 2002, s 4(7); Adoption Support Services (Local Authorities) (England) Regulations 2003 (SI 2003/1348).

such services. The Children and Families Act 2014 has added a new s 4A into the 2002 Act which requires local authority to provide adoptive parents a personal budget, but only where the local authority decides to provide adoption support. The personal budget allows the adoptive parents to purchase services they need. Section 5A requires the local authority to provide information about the services that might be available. However, neither of these provisions gives a right to post-adoption support or services. Although adopted parents and children have the right to request that they be assessed for the provision of adoption support, the Act does not require the local authority to meet the need.⁶⁵¹ This would mean that the local authority may assess an adopted child to be in need of services, but then decide that it is unable to afford to provide them.⁶⁵² Special guardians do not even have the right to be assessed, although a local authority may, if it wishes, provide services to them.⁶⁵³

N Revocation of an adoption order

The adoption order continues to have effect unless another adoption order is made. In particular, the adoption order does not come to an end when the child reaches the age of 18. As mentioned above, one of the main advantages of adoption is the security it creates. If adoption could be brought to an end it would undermine that benefit.⁶⁵⁴ There are just three circumstances in which an adoption order can be overturned:⁶⁵⁵

1. If the child is adopted by his or her father, but his or her mother then marries the father. In such a case the father could apply under s 55 of the Adoption and Children Act 2002 for the adoption to be revoked and the child would then in law be the child of his or her parents. This provision is very rarely invoked.
2. It is possible to appeal against the making of the adoption order, although it is necessary to show a flaw in the making of the order itself and demonstrate exceptional circumstances. The case law provides three examples of exceptional circumstances:
 - (i) Where the consent of the parent to the adoption was given on the basis of a fundamental mistake. In *Re M (A Minor) (Adoption)*⁶⁵⁶ a father agreed to the adoption of his children by his former wife and her new husband. Unknown to him, his ex-wife was terminally ill and she died shortly afterwards. The court allowed the appeal in what they regarded as a 'very exceptional case' on the basis that ignorance of the wife's condition negated his consent, which was based on a fundamental mistake.⁶⁵⁷
 - (ii) Where the adoption procedures involved a fundamental defect in natural justice. In *Re K (Adoption and Wardship)*⁶⁵⁸ an English foster carer had adopted a Muslim baby, who had been found under a pile of bodies in the former Yugoslavia. Unfortunately, the adoption process had been deeply flawed. The adoption order was set aside due to the lack of protection for the birth family and the breach of natural justice caused by

⁶⁵¹ ACA 2002, s 4.

⁶⁵² See, by analogy, *R (On the Application of A) v Lambeth* [2003] 3 FCR 419.

⁶⁵³ CA 1989, s 14F(1), (2).

⁶⁵⁴ *Re B (Adoption: Setting Aside)* [1995] 1 FLR 1 at p 7.

⁶⁵⁵ *Re B (Adoption: Jurisdiction to Set Aside)* [1995] 2 FLR 1, [1994] 2 FLR 1297.

⁶⁵⁶ [1991] 1 FLR 458; [1990] FCR 993.

⁶⁵⁷ In *Re O (Human Fertilisation and Embryology Act 2008)* [2016] EWHC 2273 (Fam) a clinic incorrectly told a female partner she was not a mother as the paperwork had been improperly completed and so the couple adopted the child. The adoption could be revoked as she could in fact have been declared the mother.

⁶⁵⁸ [1997] 2 FLR 221; [1997] 2 FLR 230.

the faulty procedure. At the rehearing⁶⁵⁹ for the adoption order it was decided that the child should be made a ward of court but that he remain with the foster carers who were required to bring him up with instruction in the Bosnian language and Muslim religion. Every three months they were required to report back to the Bosnian family.

- (iii) In *PK v Mr and Mrs K*⁶⁶⁰ the child successfully sought revocation. She had been adopted at a young age but essentially abandoned by her adoptive parents. She had eventually made contact with her mother and birth grandparents and now aged 14 wanted to revoke the adoption and live with her mother. The court described the case as 'highly exceptional and very particular' and revoked the adoption under the inherent jurisdiction.

3. If the child is adopted by a new set of parents, this will end (but not revoke) the original adoption.

In the absence of one of these three grounds, an adoption order cannot be set aside, however sympathetic the court may be to the application.⁶⁶¹ If the birth family are seeking to challenge an adoption order and are not able to overturn the adoption order, they could still apply for a residence order in respect of the child. It would be unlikely that such an application would succeed unless the adoption had completely broken down.⁶⁶²

A dramatic example of the application of these principles was the following case:

CASE: *Webster v Norfolk CC* [2009] EWCA Civ 59

Mr and Mrs Webster had three children in three years, born between 2000 and 2003. In late 2003 their middle child, B, was taken to hospital suffering multiple fractures. The hospital and local authority assessed the injuries to be non-accidental and caused by his parents. The children were adopted by late 2005.

In 2006 Mrs Webster became pregnant again. In the course of care proceedings relating to the new baby, the Websters obtained fresh expert evidence in relation to B. The new report was powerfully of the opinion that the injuries to B were caused by scurvy and iron deficiency rather than abuse. At the time scurvy was considered as unknown in the West and had not been considered as an explanation for the injuries. As a result, the care proceedings in relation to the baby were discontinued. The parents then sought to set aside all the orders relating to their three younger children.

Wall LJ confirmed that 'only in highly exceptional and very particular circumstances' can adoption be set aside. Why? Wall LJ thought the answer lay in the dicta of Swinton Thomas LJ in *Re B (Adoption: Jurisdiction to Set Aside)*:⁶⁶³

An adoption order has a quite different standing to almost every other order made by a court. It provides the status of the adopted child and of the adoptive parents. The effect of an adoption order is to extinguish any parental responsibility of the natural parents. Once an adoption order has been made, the adoptive parents stand to one another and the child in precisely the same relationship as if they were his legitimate parents, and the child stands in the same relationship to them as to legitimate parents. Once an adoption order has been

⁶⁵⁹ [1997] 2 FLR 230.

⁶⁶⁰ [2015] EWHC 2316 (Fam).

⁶⁶¹ *Re B (Adoption: Jurisdiction to Set Aside)* [1995] 2 FLR 1, [1994] 2 FLR 1297.

⁶⁶² *Re O (A Minor) (Wardship: Adopted Child)* [1978] Fam 196.

⁶⁶³ [1995] Fam 239, at 245C.

made the adopted child ceases to be the child of his previous parents and becomes the child for all purposes of the adopters as though he were their legitimate child.

In the Websters' case there was nothing in the procedure that led to the making of the order which rendered the procedure flawed, and hence the adoption order could not be set aside. Wilson LJ emphasised that the children had been with the adopters for four years in an arrangement they had been told was permanent.

The decision has proved controversial.⁶⁶⁴ The author has argued that the reasoning of the case failed to place appropriate weight on the human rights of the parties and the welfare of the children.⁶⁶⁵ While the decision placed weight on the importance for adopters in having the security of knowing adoptions will not be set aside unless there are exceptional circumstance, it did not mention the importance for birth parents feeling secure that their children will not be permanently removed without good cause.⁶⁶⁶ Andrew Bainham goes further and suggests that the decision requires a reconsideration of whether adoption should be a preferred model for children in care.⁶⁶⁷ Not everyone has objected to the decision. Caroline Bridge has described it as a 'model of clarity and common sense'.⁶⁶⁸ It was followed in *Re PW (Adoption)*⁶⁶⁹ where Mrs Justice Parker noted that if it was too easy to apply to set aside an adoption order on the grounds of procedural failures, adoptive parents might seek to do so, which she thought undesirable.

The breakdown of adoption

Surprisingly, there are no official statistics on the rate of breakdown of adoptions.⁶⁷⁰ One study found that 9 per cent of the placements studied broke down before an adoption order was made and 8 per cent broke down after the order was made.⁶⁷¹ A recent survey by Selwyn and Masson⁶⁷² found a 3.2 per cent disruption rate, which is much lower than previous studies. The strongest predictor of disruption was the child's age, with nearly two thirds of disruptions taking place during the child's teenage years and more than five years after the order has been made. Children who were 4 years old or more at placement were 13 times more likely to leave their adoptive family compared to those who were placed as infants. As the authors point out, it is sometimes assumed that adoption support is needed in the first few years after the adoption but can then safely be ended, but this study suggests it can be years after the adoption, as the child becomes a teenager, that support is particularly needed.

⁶⁶⁴ It was followed in *Re PW (Adoption)* [2011] EWHC 3793 (Fam).

⁶⁶⁵ Herring (2009h).

⁶⁶⁶ Herring (2010g).

⁶⁶⁷ Bainham, A. (2009a).

⁶⁶⁸ Bridge (2009: 381).

⁶⁶⁹ [2011] EWHC 3793 (Fam).

⁶⁷⁰ Department of Health (2002b).

⁶⁷¹ Parker (1999: 10).

⁶⁷² Selwyn and Masson (2014).

What is also striking about their study is that adoption seems to have a lower disruption rate than special guardianship orders (which had a 5.6 per cent disruption rate) and residence orders (25 per cent). Most residence orders will be with family members and so there is a clear warning there about the assumption that care with family members is best for children. However, these figures pale into comparison to the disruption rate of 65 per cent for children removed from parents under a care order, but then returned to parents. The impact of a failed adoption on the child and adoptive parents can hardly be imagined. Indeed, it is possible that failed adoptions will cause the child more harm than would have been suffered by the child if the adoption had not been attempted. It is therefore important that the Government's attempts to increase the number of adoptions do not lead to an increase in the rate of adoption breakdown. Where an adoption does break down, it will normally be necessary to take the child back into care through a care order.⁶⁷³

P Access to birth and adoption register

One study estimated that one-third of adopted people seek to obtain access to their birth records.⁶⁷⁴ Of course, others may make less formal attempts to find the background to their births. According to another study found that 75 per cent in their sample sought their birth mother and 38 per cent their father.⁶⁷⁵ An adopted person seeking to discover information about his or her birth family could seek access to the following:⁶⁷⁶

1. *Birth certificates.* The Registrar-General is required under s 79 of the Adoption and Children Act 2002 to keep records to enable adopted people to trace their original birth registration. This would enable a person to discover the details of their birth, including the name of their mother. There is no absolute right to obtain a copy of the birth certificate. This is demonstrated by *R v Registrar-General, ex p Smith*,⁶⁷⁷ where the Court of Appeal held that the Registrar-General was entitled to restrict the access of Smith to his birth records. Smith was in prison in Broadmoor, having killed his cell-mate in the belief that he was killing his mother. It was held that he might use the knowledge of his birth mother to harm her and the court held that it was therefore proper for the Registrar to deny him access.
2. *Information from adoption agencies.* The Adoption and Children Act requires adoption agencies to provide details which would enable an adopted person to obtain their birth certificate. They will also be able to obtain information from the court which made the adoption order.⁶⁷⁸ If the agency does not wish to disclose the information, it can obtain a court order permitting non-disclosure.⁶⁷⁹ If it is 'protected information', in that it concerns private information about other people, then the agency can fail to disclose it although they should also take reasonable steps to ascertain the views of the people involved.

⁶⁷³ *Re K (A Child: Post Adoption Placement Breakdown)* [2012] EWHC B9 (Fam).

⁶⁷⁴ Rushbrooke (2001).

⁶⁷⁵ Howe and Feast (2000).

⁶⁷⁶ Disclosure of Adoption Information (Post Commencement Adoptions) Regulations 2005 (SI 2005/888).

⁶⁷⁷ [1991] FLR 255, [1991] FCR 403.

⁶⁷⁸ ACA 2002, s 60(4).

⁶⁷⁹ ACA 2002, s 60(3).

3. *The Adoption Contact Register*. If birth families wish to contact adopted children, they can use the Adoption Contact Register. At 30 June 2001, there were 19,683 adoptees and 8,492 relatives on the Adoption Contact Register for England and Wales, and 539 successful matches had been made since the start of the Adoption Contact Register in 1991.⁶⁸⁰

These measures go some way towards recognising a person's rights to know about their genetic origins,⁶⁸¹ which has been held to be an important aspect of a person's right to private life, protected by article 8 of the European Convention on Human Rights.⁶⁸² It should be noted that, in fact, adopted children who seek information about their birth parents are particularly interested in finding out about their mothers. It is also important to appreciate that even where contact is made this does not usually lead to an ongoing relationship.⁶⁸³

In *FL v Registrar General*⁶⁸⁴ the adult daughter of an adopted man wished to find out about her father's birth family and sought information from the Registrar-General. Under s 79(4) of the Adoption and Children Act 2002 in exceptional circumstances the court could order the Registrar-General to give information to a person other than the adopted person. Roderick Wood J held that matters had to be looked at in the context of the wider public interest, the interests of society and the protection of potential third parties who might be profoundly affected by such disclosure, as well as in the matter of confidentiality. Even taking into account the possible mental illness of the father, which might be hereditary and questions over whether his erratic behaviour was exacerbated by the adoption, the case was not exceptional and so the Registrar-General was not ordered to make the disclosure. By contrast, in *Re X (Adopted Child: Access to Court File)*⁶⁸⁵ a woman sought information about her father. The application was made under 3.14.24 of the Family Proceedings Rules 2002 and the court granted access to the court file. The factors seemed to be that the adoptive parents, birth parents and adopted person were dead and so would not suffer distress, while the woman had a genuine reason for seeking the information.

Inter-country adoption

The limits on the number of children available for adoption has caused some people to turn to adoption of babies from overseas. This practice is governed by the Adoption (Inter-country Aspects) Act 1999 and the Adoption and Children Act 2002, which give effect to the Hague Conference on Private International Law's Convention on Intercountry Adoption.⁶⁸⁶ This topic is not covered in detail in this text.⁶⁸⁷

⁶⁸⁰ BAAF (2014). Up-to-date statistics are not recorded.

⁶⁸¹ Howe and Feast (2000).

⁶⁸² *MG v UK* [2002] 3 FCR 289.

⁶⁸³ Howe and Feast (2000) report a study that only 51 per cent of adopted children who had found their birth mother had continued the contact. However, 97 per cent of adopted people who had located their birth parents had no regrets about doing so.

⁶⁸⁴ [2010] EWHC 3520 (Fam).

⁶⁸⁵ [2014] EWFC 33.

⁶⁸⁶ See Bainham (2003b) for a useful discussion on why restrictions on inter-country adoption may be needed.

⁶⁸⁷ An excellent summary of the law on inter-country adoption can be found in Bridge and Swindells (2003: ch. 14).

11 The position of children in care

KEY STATISTICS

- For the year ending March 2015, there were 69,540 children being looked after by local authorities in England. That is a 6% increase from the 2011 figure. The rate per 10,000 children under 18 in care in England has increased from 54 in 2009 to 60 in 2015.⁶⁸⁸
- The most common age group of looked after children were those aged 10 and over (37%), while children under one year old were only 6% of the looked after population.
- Of children who started being looked after by the local authority between March 2014 and March 2015, 63% did so on a voluntary basis and only 21% under a care order.⁶⁸⁹

The history of state-organised child care in England and Wales is bleak, with widespread evidence of abuse and mistreatment of children in children's homes.⁶⁹⁰ Indeed, it is not difficult to find cases where the intervention of the state has made matters worse, not better, for children.⁶⁹¹ Claire Taylor states that her study of residential care for children in care paints an 'incredibly bleak and depressing picture' which is a 'national disgrace'.⁶⁹² The following statistics provide some insight into the issues:

KEY STATISTICS

- Almost one-third of children in care leave school with no GCSEs or vocational qualifications like GNVQs.
- Only 13.2% of children in care obtain five good GCSEs – compared with 57.9% of all children.
- Only 6% of care leavers go to university – compared with 38% of all young people.
- One-third of care leavers are not in education, employment or training – compared with 13% of all young people.
- 23% of the adult prison population has been in care and almost 40% of prisoners under 21 were in care as children (only 2% of the general population spend time in prison).
- A quarter of young women leaving care are pregnant or already mothers, and nearly half become mothers by the age of 24.⁶⁹³

Despite this gloomy picture, one study found the care system worked well for children where there was early intervention to protect them, a stable environment while they were in care, followed swiftly by allowing them to live an independent life.⁶⁹⁴ The authors of the report criticise media representations suggesting that children in care are doomed to a life of

⁶⁸⁸ Department for Education (2016).

⁶⁸⁹ Harker and Heath (2014).

⁶⁹⁰ Waterhouse (2000); (Social Services Inspectorate (2002 (Philpot (2001)).

⁶⁹¹ E.g. *Re F* [2002] 1 FLR 217.

⁶⁹² C. Taylor (2006: 175).

⁶⁹³ These statistics are all taken from Who Cares? Trust (2014).

⁶⁹⁴ Hannon *et al.* (2010); Stein (2009).

disadvantage.⁶⁹⁵ Rather, care can be a positive intervention for many children.⁶⁹⁶ Indeed another study comparing children who were in care who were returned home and those who remained in care, found those who remained in care fared better.⁶⁹⁷

The basic position under the Children Act 1989 is that local authorities (rather than courts) are responsible for deciding how children taken into care should be cared for. This is partly because the law recognises that decisions on how to look after a child in care involve careful interaction between the local authority, the parents, alternative carers and maybe other charitable bodies. These relationships might require ongoing and flexible negotiations of a kind unsuitable for court supervision. However, local authorities do not have unlimited discretion on how to bring up the child. There are four particular restrictions on local authorities' powers. First, there are financial restrictions which may limit the resources available to a local authority.⁶⁹⁸ Evidence suggests that this has meant that local authorities have failed to provide services needed by children in care.⁶⁹⁹ The Children and Young Persons Act 2008 allows local authorities to use private bodies to provide services. Whether this will lead to cheaper or higher quality care remains to be seen.⁷⁰⁰ Secondly, there are a few issues over which the courts retain some control. In particular, only a court can discharge a care order⁷⁰¹ and a court order is required to approve the termination of contact between the child in care and his or her parents.⁷⁰² Thirdly, parents retain parental responsibility (even when a child is taken into care) and will be encouraged to be involved in decisions relating to the way their child is brought up while in care. Fourthly, the children in care themselves play an important role in determining the way they are brought up under the care system.

A Duties imposed upon a local authority

The Children Act 1989 imposes upon local authorities a number of duties owed towards children who are looked after by them.⁷⁰³ These duties are owed to children who are voluntarily accommodated by the local authority for more than 24 hours⁷⁰⁴ and to those who are the subject of a care order.⁷⁰⁵

(i) The general duty

The general duty of the local authority is contained in s 22(3):

LEGISLATIVE PROVISION

Children Act 1989, Section 22(3)

It shall be the duty of a local authority looking after any child—

- (a) to safeguard and promote his welfare; and
- (b) to make such use of services available for children cared for by their own parents as appears to the authority reasonable in his case.

⁶⁹⁵ See Morgan (2010) and CAF/CASS (2010) for a discussion of the views of children in care.

⁶⁹⁶ Hannon *et al.* (2010).

⁶⁹⁷ Wade *et al.* (2012); Giovaninni (2011).

⁶⁹⁸ E.g. *Re C (Children) (Residential Assessment)* [2001] 3 FCR 164.

⁶⁹⁹ Lansdown (2001).

⁷⁰⁰ Cardy (2010).

⁷⁰¹ CA 1989, s 39.

⁷⁰² CA 1989, s 34.

⁷⁰³ CA 1989, s 22, inserted by Children and Young Persons Act 2008. See HM Government (2010c) for detailed guidance.

⁷⁰⁴ CA 1989, s 22(2).

⁷⁰⁵ CA 1989, s 22(1).

This duty is self-explanatory, but it should be noted that the local authority can owe duties to children even if the children are cared for by their parents.

(ii) The duty to decide where the child should live

The local authority must 'receive the child into their care and . . . keep him in their care while the order remains in force'.⁷⁰⁶ So on the making of the care order the local authority becomes responsible for deciding where the child should live.

(iii) The duty to consult

The Children Act 1989, s 22(4) requires a local authority to consult with the child and his or her family:

LEGISLATIVE PROVISION

Children Act 1989, section 22(4)

Before making any decision with respect to a child whom they are looking after, or proposing to look after, a local authority shall, so far as is reasonably practicable, ascertain the wishes and feelings of–

- (a) the child;
- (b) his parents;
- (c) any person who is not a parent of his but who has parental responsibility for him; and
- (d) any other person whose wishes and feelings the authority consider to be relevant regarding the matter to be decided.

The local authority must then give 'due consideration' to these views. The views of the child are taken into account as would be appropriate given the age and understanding of the child.⁷⁰⁷

(iv) The duty to provide accommodation

The local authority has a duty to accommodate a child in care.⁷⁰⁸ There is a specific duty to make arrangements for the child to live with his or her family or friends unless it is not reasonably practicable or consistent with his or her welfare.⁷⁰⁹ There is also a duty to accommodate the child as close as possible to the parents' home and to any siblings accommodated by the local authority.⁷¹⁰

It is a common misconception that children taken into care spend the rest of their childhood in children's homes. One study found that in less than half the cases where care proceedings were instigated were children removed from their parents.⁷¹¹ In fact, 39 per cent of children leaving care in 2011 returned home. The NSPCC has expressed concern that around half of those returned home then suffer further abuse or neglect.⁷¹² Indeed, it is becoming

⁷⁰⁶ CA 1989, s 33(1).

⁷⁰⁷ CA 1989, s 22(5)(a) and (b).

⁷⁰⁸ CA 1989 s 22A.

⁷⁰⁹ CA 1989, s 22C.

⁷¹⁰ CA 1989, s 22C(8).

⁷¹¹ Hunt and Macleod (1998: 287).

⁷¹² NSPCC (2012).

less common for children in care to be accommodated in children's homes, at least as a long-term solution. In part this is in response to a depressing procession of scandals about the physical and sexual abuse of children in children's homes. Foster carers are often seen as a preferable solution. In 2015, 75 per cent of looked after children lived with foster parents.⁷¹³

(v) The duty to maintain

There is a duty on the local authority to maintain a child, but in some circumstances it can recoup the cost by requiring a financial contribution to the child's maintenance from their parents or others, if reasonable to do so.⁷¹⁴

(vi) The duty to promote contact

A local authority is under a positive obligation⁷¹⁵ to promote contact between children and parents, family or friends unless such contact is not reasonably practicable or is inconsistent with the child's welfare. This is required under s 34 of the Children Act 1989 and would be required under article 8 of the European Convention.⁷¹⁶ Local authorities are also required to keep in touch with persons who have parental responsibility for the child and specifically to keep them informed of the child's whereabouts. In a survey of parents whose children were in care 61 per cent said they had contact with their child at least once a week. Only 8 per cent said they had no contact at all.⁷¹⁷

The issue of contact between the child in care and his or her family is one of the few issues concerning children in care where the court has a major say. If the local authority wishes to prohibit contact for a period longer than seven days, it must apply for an order under s 34 of the Children Act 1989 permitting it to do so.⁷¹⁸ If such an application is made, the court must determine whether there is to be contact and, if there is, the frequency and place of contact.⁷¹⁹

The welfare principle and the s 1(3) checklist govern the discretion of the court.⁷²⁰ However, in considering this there is a presumption in favour of there being contact between children in care and their parents. Simon Brown LJ in *Re E (A Minor) (Care Order: Contact)*⁷²¹ explained why:

Even when the s 31 criteria are satisfied, contact may well be of singular importance to the long-term welfare of the child: first in giving the child the security of knowing that his parents love him and are interested in his welfare; secondly, by avoiding any damaging sense of loss to the child in seeing himself abandoned by his parents; thirdly, by enabling the child to commit himself to the substitute family with the seal of approval of the natural parents; and fourthly, by giving the child the necessary sense of family and personal identity. Contact, if maintained, is capable of reinforcing and increasing the chances of a permanent placement, whether on a long-term fostering basis or by adoption.

The presumption can also be seen as part of the right to respect for family life under the Human Rights Act 1998.⁷²² To justify a termination of contact under the Act, it would have to

⁷¹³ Department for Education (2016).

⁷¹⁴ CA 1989, s 22B.

⁷¹⁵ CA 1989, Sch 2, para 15.

⁷¹⁶ *L v Finland* [2000] 2 FLR 118.

⁷¹⁷ Ofsted (2008).

⁷¹⁸ In such a case there is no duty to promote contact with the parents: CA s. 34(6A).

⁷¹⁹ CA 1989, s 34(3).

⁷²⁰ *Re H (Children) (Termination of Contact)* [2005] 1 FCR 658.

⁷²¹ [1994] 1 FLR 146, [1994] 1 FCR 584.

⁷²² *R v UK* [1988] 2 FLR 445. Although it will be easier to justify ending contact with a father who has had little contact with the child, than with a mother who has formed a close bond to the child: *Söderbäck v Sweden* [1999] 1 FLR 250.

be shown that it was necessary in the child's interests and that it was proportionate to the harm faced by the child.⁷²³

When a local authority seeks to terminate contact, this is often because contact is inconsistent with its plans for the child: for example, it wishes to place the child for adoption. So the plans of the local authority will be relevant too. The court should give respect to the plans of the local authority, but in the end the welfare principle governs the issue.⁷²⁴ Another factor can be the wishes of the child, as confirmed in *L v L (Child Abuse: Access)*.⁷²⁵ However, the weight placed on the child's wishes depends on the age of the child and circumstances of the case. There are dangers in placing weight on abused children's wishes because abuse can cause a complex psychological relationship between the child and an abuser.⁷²⁶

The Court of Appeal has held that the duty of the local authority to promote contact extended to 'any relative, friend or other person connected with him'.⁷²⁷ However, it needs to be stressed that unlike parents, the local authority does not require the consent of the court to terminate contact with those not listed in s 34. This means that if a local authority does not permit contact, these other relatives and friends need to apply for a contact order under s 8 of the Children Act 1989.⁷²⁸ The court would then need to determine whether the contact would promote the welfare of the child.⁷²⁹ The Court of Appeal considered that grandparents do not have a right of contact with children in care and must show that contact would be in the interests of the child. The court may well be prepared to assume that it is good for a child in care to maintain links with as many family members as possible if they are willing to go to the effort of visiting him or her.⁷³⁰

The court has no power to force an adult to have contact with the child, according to Wilson J in *Re F (Contact: Child in Care)*.⁷³¹ The only person who can be forced to behave in a particular way by an order under s 34 is the local authority, which can be required to allow the parents to have contact with the child.

(vii) Duty to review

The local authority is required to keep under review the long-term plans for each child in care. The local authority must review a child's case within four weeks of the child being first accommodated by the authority. A second review should be carried out within three months of the first and, thereafter, reviews every six months. The purpose of the review is to ensure that the child does not 'drift through care' and instead that the time in care is part of a co-ordinated programme designed to promote the child's welfare.⁷³² So it should be decided as early as possible whether the child is to be adopted and, if so, what steps should be put in place to enable that to take place. Parents and children should be included in the review, or at least consulted.⁷³³ Following the Human Rights Act 1998, the review should constantly ensure that the children's and parents' rights to respect for family life be maintained to the

⁷²³ *S and G v Italy* [2000] 2 FLR 771.

⁷²⁴ *Re S (Children) (Termination of Contact)* [2005] 1 FCR 489.

⁷²⁵ [1989] 2 FLR 16, [1989] FCR 697.

⁷²⁶ *Re G (A Child) (Domestic Violence: Direct Contact)* [2001] 2 FCR 134.

⁷²⁷ CA 1989, s ch 2, para 15(1)(c).

⁷²⁸ CA 1989, s 34(3)(b).

⁷²⁹ *Re M (Care: Contact: Grandmother's Application for Leave)* [1995] 2 FLR 86, [1995] 3 FCR 550.

⁷³⁰ *Re W (Care Proceedings: Leave to Apply)* [2004] EWHC 3342 (Fam).

⁷³¹ [1995] 1 FLR 510, [1994] 2 FCR 1354.

⁷³² For an appalling example of such drift, see *Re F, F v Lambeth LBC* [2002] Fam Law 8.

⁷³³ Review of Children's Cases Regulations 1991 (SI 1991/895).

greatest extent possible and that, where appropriate, the care plan progresses towards reuniting the child and the parent.⁷³⁴

B Empowering children in care

A variety of provisions seek to protect the rights of children in care:

- Children's views must be given due consideration when making decisions about their time in care.⁷³⁵
- Children can apply to the court for an order authorising contact with another person.⁷³⁶
- Children can apply for a s 8 order.⁷³⁷
- The child can institute the complaints procedures.⁷³⁸
- The child can apply to discharge a care order.⁷³⁹

Despite these provisions, research suggests that children in care feel that their wishes are not being taken into account and that they are not listened to.⁷⁴⁰ Some argue that the high levels of anti-social behaviour and running away among children in care is explained by the fact that they feel they are not being heard. There are particular concerns with the complaints procedure, which should be readily accessible to children in care. Some local authorities appoint a children's rights officer to promote good practice and to assist children to use the complaints procedure.⁷⁴¹

12 Questioning local authority decisions about children in care

The Children Act 1989 is designed to prevent disputes between parents and local authorities arising in the first place. There are two main ways in which this is done. The first is through the concept of partnership: this is the idea that local authorities should work in partnership with the child's family and others interested in the child's welfare. The second is through regular reviews: local authorities are required periodically to review each child looked after by them and have a duty to establish procedures to hear complaints or representations.

Despite these attempts to avoid disputes, inevitably they do arise and there are a number of routes of appeal for those seeking to challenge local authority decisions.⁷⁴²

A Internal complaints procedures

The internal complaints procedure is primarily designed to work in cases where there is no dispute over what the facts are or the law is. The complaints procedure is most appropriate where the dispute is whether the local authority has misused its powers.

⁷³⁴ *L v Finland* [2000] 2 FLR 118.

⁷³⁵ CA 1989, s 22(4)(a) and (5)(a).

⁷³⁶ CA 1989, s 34(2) and (4).

⁷³⁷ See Chapter 9.

⁷³⁸ CA 1989, s 26(3)(a). Complaints procedures will be further discussed shortly.

⁷³⁹ CA 1989, s 39(1).

⁷⁴⁰ Hunt, Waterhouse and Lutman (2010).

⁷⁴¹ CA 1989, Sch 2A.

⁷⁴² See Bailey-Harris and Harris (2002) for an excellent discussion.

*R v Kingston-upon-Thames RB, ex p T*⁷⁴³ suggested that the complaints procedure should be preferred to judicial review in most cases.

B Human Rights Act 1998

Under s 7 of the Human Rights Act 1998 an individual can bring a claim against a local authority which has infringed or is about to infringe that individual's rights under that Act. Section 8 provides that if the application is successful then the court can provide such relief or remedy as is appropriate. This could include requiring the local authority to pay damages⁷⁴⁴ or reverse its decision and reconsider what should happen to the child.⁷⁴⁵ Proceedings should only be brought under s 8 if there are no ongoing care proceedings. If care proceedings are ongoing, human rights arguments should be made in the context of those proceedings.⁷⁴⁶ In *C v Bury Metropolitan Borough Council*⁷⁴⁷ a mother brought an action against a local authority under the Human Rights Act 1998 claiming that it had infringed her article 8 rights and those of her son who was in care. The case centred on the decision by the local authority to move the son to a residential school 350 miles away from the mother. Although it was accepted that their article 8 rights had been infringed, it was held that the infringement was lawful, being in the son's interests and a proportionate interference. Perhaps of significance was the fact that the mother did not have a settled lifestyle and moved around the United Kingdom, and the finding that the local authority had acted reasonably given its financial responsibilities to all the children in its care. The decision has led one commentator to speculate that the Human Rights Act remedies may rarely differ in outcome from judicial review.⁷⁴⁸ That would be surprising, but time will tell.

C Judicial review

Judicial review is another court-based remedy when an individual is claiming that a local authority is acting illegally. Leave is required before an application for judicial review can be launched.⁷⁴⁹ The court must be persuaded that the applicant has sufficient interest in the matter.⁷⁵⁰ Clearly, a parent will have sufficient standing, as will other relatives if their relationship to the child was close enough. Before the court grants leave it will need to be satisfied that the applicant has a reasonable prospect of winning the case.⁷⁵¹ In *Re M; R (X and Y) v Gloucestershire CC*⁷⁵² Munby J held that judicial review was not an appropriate means of seeking to prevent a local authority from commencing emergency protection or care proceedings, unless there were exceptional circumstances.⁷⁵³ In *A and S v Enfield London Borough*

⁷⁴³ [1994] 1 FLR 798, [1994] 1 FCR 232.

⁷⁴⁴ Damages are to be ordered only if just and appropriate: Human Rights Act 1998, ss 7 and 8. See *Re V (A Child) (Care: Pre-birth Actions)* [2006] 2 FCR 121.

⁷⁴⁵ *Re M (Challenging Decisions by Local Authority)* [2001] 2 FLR 1300.

⁷⁴⁶ *Re L (Care Proceedings: Human Rights Claims)* [2004] 1 FCR 289; *Re V (Care Proceedings: Human Rights Claims)* [2004] Fam Law 238. The same is true if a claim is made in habeas corpus.

⁷⁴⁷ [2002] 2 FLR 868.

⁷⁴⁸ Bailey-Harris (2002).

⁷⁴⁹ Rules of the Supreme Court, Order 53, r 3.

⁷⁵⁰ Clearly, parents and the child him- or herself will have sufficient interest but more remote relatives might have difficulty.

⁷⁵¹ *R v Lancashire CC, ex p M* [1992] 1 FLR 109, [1992] FCR 283.

⁷⁵² [2003] Fam Law 444.

⁷⁵³ See also *Re M (Care Proceedings: Judicial Review)* [2004] 1 FCR 302.

*Council*⁷⁵⁴ Blair J suggested that it would be rare that judicial review should be used in the field of child protection. The purpose of judicial review is not to decide whether or not the decision was the right one but to decide whether the decision was reached in accordance with the law. So, even if the court thinks that the decision was the wrong one, it cannot overturn it unless the decision was outside the bounds of the law.

The following list indicates the kinds of complaints that have led to judicial review proceedings:

- removing a child from foster carers without consultation;⁷⁵⁵
- improperly removing a person from a list of approved adopters;⁷⁵⁶
- unjustifiably placing a child on a child protection register;⁷⁵⁷
- disclosing to third parties allegation of child abuse;⁷⁵⁸
- failing to take into account the views of a 15-year-old child in care about where she was to live.⁷⁵⁹

Even if a local authority is found to have acted illegally, the remedies after a successful claim for judicial review are limited. The court will declare the decision unlawful and require the local authority to reconsider the issue. The court does not normally have the power to compel the local authority to act in a particular way. The limited remedies available under judicial review indicate that it is best used when an applicant is attempting to challenge a general policy of a local authority. Where the complaint is about the way a particular individual was treated, an application under the Human Rights Act 1998 may be more appropriate. Munby J has described judicial review in this context as a 'singularly blunt and unsatisfactory tool' and 'a remedy of last resort'.⁷⁶⁰

D Secretary of State's default powers

The Secretary of State has the power to intervene in an extreme case. The Secretary of State will be reluctant to use this power in an individual complaint but may be persuaded to do so where a local authority has adopted what he or she regards as an undesirable policy. An example may be a local authority which has failed to set up a satisfactory complaints system.⁷⁶¹

E The local government ombudsman

A complaint can be made to the relevant local government ombudsman if there is maladministration. Recourse to the local government ombudsman is only possible where there is no remedy by way of the internal complaints procedure or it would be unreasonable to use that procedure. The ombudsman will issue a report and can award an ex gratia payment.⁷⁶²

⁷⁵⁴ [2008] 2 FLR 1945.

⁷⁵⁵ *R v Hereford and Worcester County Council, ex p R* [1992] 1 FLR 448, [1992] FCR 497; *R v Lancashire CC, ex p M* [1992] 1 FLR 109, [1992] FCR 283.

⁷⁵⁶ *R v Wandsworth LBC, ex p P* [1989] 1 FLR 387.

⁷⁵⁷ E.g. *R v Hampshire CC, ex p H* [1999] 2 FLR 359.

⁷⁵⁸ *R v Devon CC, ex p L* [1991] 2 FLR 541.

⁷⁵⁹ *R (CD) v Isle of Anglesey CC* [2004] 3 FCR 171.

⁷⁶⁰ *Re M (Care Proceedings: Judicial Review)* [2004] 1 FCR 302.

⁷⁶¹ *R v Brent LBC, ex p S* [1994] 1 FLR 203.

⁷⁶² This is not enforceable.

However, the ombudsman has no power to order the local authority to act towards a child in a particular way.

F Civil actions

There have been in recent years several attempts by parents and children to sue local authorities under the law of tort for compensation for harms caused by local authorities when performing their child-care obligations.⁷⁶³ These claims are usually based on either the tort of negligence or the breach of statutory duty.⁷⁶⁴ The cases involve some highly complex issues of tort law and so only a broad outline can be provided here. The position that the law has now reached is that each case depends on its facts. There is no blanket immunity that a local authority can rely upon when facing a claim of negligence. Instead a duty of care is owed where it is fair, just and reasonable. For example, in *W v Essex CC*⁷⁶⁵ foster parents specifically told a local authority that they would not be willing to care for a child who was himself a known child abuser. Nevertheless, the local authority housed such a child with them and he abused the foster parents' own children. The House of Lords were willing to accept that, potentially, the local authority could be liable in tort for the harm caused to the foster parents and their children. In *Barrett v Enfield LBC*⁷⁶⁶ a local authority was held liable for damages to a child whom it had taken into care but then unsatisfactorily placed with foster carers. It was held that the courts should be more ready to find a duty of care where the claim was that a child taken into care had been mistreated, than in cases where the argument was that the taking into care was improper.⁷⁶⁷

*JD v East Berkshire Community Health NHS Trust*⁷⁶⁸ marked a noticeable shift in the approach of the law. The House of Lords held, in line with the cases outlined above, that parents could not sue doctors or social workers who had acted negligently in child protection work. However, they indicated that the children concerned did have a right of action. Lord Nicholls explained why parents could not sue:

A doctor is obliged to act in the best interests of his patient. In these cases the child is his patient. The doctor is charged with the protection of the child, not with the protection of the parent. The best interests of a child and his parent normally march hand-in-hand. But when considering whether something does not feel 'quite right', a doctor must be able to act single-mindedly in the interests of the child. He ought not to have at the back of his mind an awareness that if his doubts about intentional injury or sexual abuse prove unfounded he may be exposed to claims by a distressed parent.⁷⁶⁹

In *B v A CC*⁷⁷⁰ the Court of Appeal held that a county council owed a duty of care in negligence towards adoptive parents with whom it was placing a child. Doing so would be 'fair, just and reasonable'. The parents lost their case because they were unable to prove that the

⁷⁶³ See Palser (2009) for a helpful summary of the law.

⁷⁶⁴ For an important recent decision on the doctrine of vicarious liability in the child-care context, see *Lister v Hesley Hall Ltd* [2001] 2 FLR 307.

⁷⁶⁵ [2000] 1 FLR 657.

⁷⁶⁶ [1999] 3 WLR 79.

⁷⁶⁷ See further *Pierce v Doncaster Metropolitan Borough Council* [2009] 1 FLR 1189.

⁷⁶⁸ [2005] 2 AC 373. The Court of Appeal in *Lawrence v Pembrokeshire CC* [2007] 2 FCR 329 confirmed that the case still stands even in the light of the Human Rights Act 1998. In *L v Reading BC* [2008] 1 FCR 295 it was confirmed that the same principles would bar a claim against the social workers individually.

⁷⁶⁹ [2005] 2 AC 373, para 85.

⁷⁷⁰ *B v A County Council* [2006] 3 FCR 568.

county council had revealed the adoptive parents' identity to the birth family, despite a guarantee not to, and that as a result the adoptive parents had suffered a campaign of harassment. Had they succeeded in proving those allegations damages may well have been awarded. In *Merthyr Tydfil County Borough Council v C*⁷⁷¹ a mother reported sexual abuse of her children by a neighbour. The local authority failed to deal with the complaint properly and later denied a complaint had been made. The mother suffered psychological harm and it was held that there was a reasonable prospect of a later court finding that the local authority did owe her a duty of care, created by virtue of the fact she had reported the abuse.⁷⁷²

The law involves a delicate balance. On the one hand, in favour of liability of the local authority under the law of tort are arguments that tort liability will encourage the local authority to see that it has in place procedures to ensure that negligent acts do not take place. Also in favour of liability are arguments that children or adults who suffer as a result of local authority intervention or non-intervention deserve compensation for their loss. Indeed, they may be entitled to a remedy under article 6 of the European Convention on Human Rights. On the other hand, there are also arguments against tortious liability. Local authorities may become too 'litigation conscious' in carrying out the delicate task of child protection, leading to social workers always adopting the safest course of action, which may not be the course which is the best policy for the child. A further complexity is that sometimes the decision over the form of intervention to protect a child is essentially a political one, involving allocation of resources. Such decisions, partly economic or political, are normally thought inappropriate for judicial review. Due to the difficulties in pursuing a tort action an applicant may prefer, where possible, to use the Human Rights Act 1998.⁷⁷³

G Private orders

An aggrieved parent or relative could use a section 8 order.⁷⁷⁴ In *Re A (Minors) (Residence Orders: Leave to Apply)*⁷⁷⁵ a foster mother sought to challenge a local authority's decision that she was no longer permitted to foster four children by applying for a residence order in respect of the children. The Court of Appeal took the view that, in considering whether to give leave, the authority's plans were very important.⁷⁷⁶ The court was willing to assume that departure from the local authority's plan would not promote the child's welfare and therefore it declined to grant leave. This case indicates that it will be rare for a court to grant leave for a section 8 application which the local authority opposes. Whether a court will have to be more willing to grant leave, relying on article 6 of the European Convention on Human Rights, is open to debate.

H Inherent jurisdiction

If a child is in need and no other route is open to protect the child's welfare, the court may be willing to use the inherent jurisdiction in exceptional cases. In *Re M (Care: Leave to Interview Child)*⁷⁷⁷ a father successfully applied under the inherent jurisdiction for an order that he

⁷⁷¹ [2010] 1 FLR 1640.

⁷⁷² For another horrific example, see *ABB, BBB, CBB and DBB v Milton Keynes Council* [2011] EWHC 2745 (QB).

⁷⁷³ *Lawrence v Pembrokeshire CC* [2007] 2 FCR 329. But see *MAK and RK v United Kingdom* [2010] ECHR 363.

⁷⁷⁴ Non-parents may require the leave of the court (see Chapter 10).

⁷⁷⁵ [1992] 2 FLR 154, [1992] 2 FCR 174.

⁷⁷⁶ As required under CA 1989, s 10(9)(d)(i).

⁷⁷⁷ [1995] 1 FLR 825, [1995] 2 FCR 643.

could have his child interviewed to assist in his defence to a rape charge. The court will only make an order under the inherent jurisdiction if persuaded that the order sought will promote the welfare of the child. The inherent jurisdiction cannot be used to compel a public authority to act in a particular way.⁷⁷⁸

13 The balance of power between courts and local authorities

Learning objective 8

Analyse the balance of power between courts and the local authority

A recurring theme through the past two sections of the text has been the delicate balance of power between the courts and local authorities.⁷⁷⁹ Courts and local authorities have each complained that the other has exceeded its powers. In *Nottingham CC v P*⁷⁸⁰ the court criticised the local authority for failing to apply for a care order, leaving the court powerless to help the child; while in *Re C (Interim Care Order: Residential Assessment)*⁷⁸¹ the local authority felt that the courts were exceeding their powers in ordering the local authority to assess the child at a specialist centre.

How does the Children Act 1989 balance the power between the courts and the local authority? At a simple level the answer is that the courts decide whether to make an order, but the local authority decides how to implement the order. The position has been summarised by the Court of Appeal in *Re R (Care Proceedings: Adjourment)*:⁷⁸²

[T]he judge is not a rubber stamp. But if the threshold criteria have been met and there is no realistic alternative to a care order and to the specific plans proposed by the local authority, the court is likely to find itself in the position of being obliged to hand the responsibility for the future decisions about the child to the local authority . . . To make other than a full care order on the facts of this case was to trespass into the assumption by the court of a control over the local authority which was specifically disallowed by the passing of the Children Act.

However, it is more complex than that. Dewar⁷⁸³ has suggested two models that could describe the way that the court operates:

1. The first is the adjudicative or umpire model. Here the court simply decides whether a local authority has made out the threshold criteria for an order and will make the order without involving itself in planning issues. In other words, once the court is persuaded that the grounds for an order are made out, the local authority takes over control of what should happen during the order.
2. The second is the active or participatory model. The court should decide not only whether or not there should be an order but also what should happen once the order is made.

There is support for both models in the Children Act 1989 and the case law. In favour of the adjudicative model being an accurate description of the role of the court in this area is the ethos of partnership, indicating that disputes over what should happen to the child in care should be resolved between the local authority, the parents and the child, without court intervention.⁷⁸⁴

⁷⁷⁸ *Re L (Care Proceedings: Human Rights Claims)* [2004] 1 FCR 289 at para 12.

⁷⁷⁹ Hayes (1996).

⁷⁸⁰ [1993] 2 FLR 134, [1994] 1 FCR 624.

⁷⁸¹ [1997] 1 FLR 1, [1997] 1 FCR 149.

⁷⁸² [1998] 2 FLR 390, [1998] 3 FCR 654.

⁷⁸³ Hayes (1996).

⁷⁸⁴ Department for Children, Schools and Families (2008a).

In particular, the local authority is required to set up a complaints procedure which is designed to resolve any disputes and avoid the need to refer issues to the court.⁷⁸⁵ In favour of the participative model is the fact that the courts retain control over the contact arrangements, although it should be noted that the courts have the power only to require the local authority to ensure contact continues. The courts have no power to order a local authority to prevent contact.⁷⁸⁶ The courts also have the power to revoke a care order, for example, by making a residence order.

There have been several cases revealing clashes between the courts and local authorities.⁷⁸⁷ The leading case is the following:

CASE: *Re S, Re W (Children: Care Plan)* [2002] 1 FCR 577⁷⁸⁸

Here the House of Lords was required to consider the extent to which a court could require a local authority to carry out its care order. The Court of Appeal in that case clearly felt frustrated that a judge makes a care order on the basis of a particular care plan, but the local authority may then decide to do something completely different with a child, without having to return to the court.⁷⁸⁹ An extreme example might be that the local authority in the care plan proposes keeping the child with the birth family, but providing them with services. The judge, approving of this, makes a care order but the local authority could then decide to place the child with fosterers, with a view ultimately to adoption: quite a different prospect from that foreseen by the judge who made the original care order.⁷⁹⁰ It should be added that local authorities tend to depart from care plans not because of malice, but a shortage of funds. One study found that only 60 of the 100 children studied had their care plans fulfilled.⁷⁹¹ The same study suggests that where care plans are implemented this normally promotes the child's welfare better than where the plan is departed from.⁷⁹²

The Court of Appeal in *Re S, Re W* therefore came up with a scheme under which, on making the care order, the court could star various items on the care plan (e.g. where the child was to live, crucial services which the local authority was to provide). If subsequently the local authority wished to depart from one of the starred items the local authority should take the matter back to court and seek approval of the course of action. If they failed to do so the matter could be brought before the judge by the guardian.

It must be admitted that there were no sections in the Children Act 1989 which mentioned this starring system. However, the Court of Appeal justified its creation of it by reference to the Human Rights Act 1998. The argument was that on making a care order the state would, inevitably, be interfering in article 8 rights of the child and family. The

⁷⁸⁵ CA 1989, s 26(3).

⁷⁸⁶ *Re W (Section 34(2) Orders)* [2000] 1 FLR 512.

⁷⁸⁷ For an extraordinary judicial expression of outrage at the 'disgraceful' conduct of an adoption agency, see *Re F (A Child) (Placement Order)* [2008] 2 FCR 93.

⁷⁸⁸ Discussed in Herring (2002b); Miles (2002); Mole (2002); Smith (2002).

⁷⁸⁹ In *Re O (Care: Discharge of Care Order)* [1999] 2 FLR 119 the care order was discharged because the care plan had been departed from so radically.

⁷⁹⁰ A more realistic example may be that the child is placed with the birth parents under the care order but the promised services are not provided. For an example of a child 'lost in care' while a local authority failed to carry out a care plan, see *F v Lambeth LBC* [2001] 3 FCR 738.

⁷⁹¹ Harwin and Owen (2003: 72).

⁷⁹² Harwin and Owen (2003: 78). See also Hunt and McLeod (1998: chs 7–9).

court would have to make sure that the interference was justified and that the extent of the intervention was proportionate. The only way the court could do this would be to approve the extent of the intervention as set out in the care plan, and require court approval for any further intervention. The House of Lords, however, felt that the Court of Appeal's approach was illegitimate. The Court of Appeal had crossed the line from using the Human Rights Act to interpret legislation, which was permissible, to amending legislation, which was not.⁷⁹³ The House of Lords pointed out that there were no words in the Children Act which the Court of Appeal were 'interpreting' to produce their starred system; rather, in effect, a new section was being added to the legislation.

The House of Lords went further and claimed that the Court of Appeal's interpretation infringed a cardinal principle in the Children Act 1989. Lord Nicholls explained:

The court operates as the gateway into care, and makes the necessary care order when the threshold conditions are satisfied and the court considers a care order would be in the best interests of the child. That is the responsibility of the court. Thereafter the court has no continuing role in relation to the care order. Then it is the responsibility of the local authority to decide how the child should be cared for.⁷⁹⁴

In other words, the court has the task of deciding whether or not to make a care order, but the local authority has the task of deciding what should happen to a child who has been taken into care.⁷⁹⁵ As Lord Nicholls acknowledges, this principle is not without exception. A local authority cannot, for example, terminate contact between a child in care and his or her family, nor change the child's name or religion without the permission of the court. Indeed, supporters of the Court of Appeal's approach might even claim that the Children Act does leave the courts with control over crucial issues concerning the upbringing of a child in care and therefore the issue is not as straightforward as the House of Lords might have suggested. It is worth noting that Lord Nicholls was clearly not unsympathetic to what the Court of Appeal was doing. He described the Court of Appeal's approach as 'understandable'⁷⁹⁶ and made it clear that his objection was that such an approach should be created by Parliament, not the courts.

Having decided that the Court of Appeal's use of the starring system was illegitimate, Lord Nicholls then held that the present law (whereby the local authority could decide how to bring up a child in its care free from court supervision) was not incompatible with the rights of the child and his or her family under article 8. He explained that although the law gave the local authority the power to infringe the child's rights (e.g. by disproportionately interfering in his or her article 8 rights) that did not mean that the law itself thereby infringed the child's rights. The fact that the Children Act provided only limited remedies where it was claimed that the local authority had interfered with the child's or his or her family's right to family life, this did not thereby render the Act itself incompatible with the European Convention. This was because the absence of a provision in a

⁷⁹³ *Re S, Re W (Children: Care Plan)* [2002] 1 FCR 577 at para 39. This approach to the balance of power between the courts and local authorities was approved in *Kent CC v G* [2005] UKHL 68.

⁷⁹⁴ *Re S, Re W (Children: Care Plan)* [2002] 1 FCR 577 at para 28.

⁷⁹⁵ For criticism of this, see Herring (2002b).

⁷⁹⁶ *Re S, Re W (Children: Care Plan)* [2002] 1 FCR 577 at para 35.

statute could not render that statute incompatible with the European Convention.⁷⁹⁷ In any event, as Lord Nicholls pointed out, whenever a local authority infringed a child's or his or her family's article 8 rights they could bring proceedings against the local authority under s 7 of the Human Rights Act 1998. This also provided protection for an individual's article 6 rights.⁷⁹⁸ He accepted that relying on parents bringing proceedings to protect the rights of a child in care was not fail-proof. A parent may not want or be unable to litigate. In such a case (unless the child was particularly mature) there would be no one who could enforce the child's rights.

In some ways the lesson to be learned from this litigation is that all too often local authorities lack the resources to implement care plans and this might lead to the infringement of the human rights of children in care. Although the temptation may be to enable the court to compel a local authority to abide by care plans, to do so might mean that local authorities will have to withdraw funding from other children in their care. The fact that all too often insufficient funds are available to ensure that the human rights of children in care are protected should shame our society.⁷⁹⁹

In *Re S and W (Children) (Care Proceedings: Care Plan)*⁸⁰⁰ the Court of Appeal felt it necessary to return to the issue of how the courts should deal with an unsatisfactory care plan. In that case there was no question but that a care order should be made in respect of three siblings and that they should be removed from their parents. There was, however, substantial dispute among the professionals involved over whether the children should be adopted by strangers or whether they should be fostered by a great-aunt and uncle or grandparents. In relation to one of the three children the local authority care plan was that the child be fostered by the great-uncle and aunt, but the judge clearly thought that plan inappropriate. He adjourned the application to enable the director of social services of the local authority to reconsider the care plan. On appeal it was argued that the judge was acting inappropriately in adjourning the case and asking the local authority to reconsider its plans. It was argued before the Court of Appeal that when a judge was faced with an application for a care order, supported by a care plan, the judge's role was to decide whether or not to make a care order, but not to interfere with the content of the care plan. That argument was fiercely rejected by the Court of Appeal. In fact, they held, the judge had to scrutinise the care plan rigorously and if the judge did not think it met the needs of the child, the court could refuse to make the care order.⁸⁰¹

In *Re W (A Child)*⁸⁰² the Court of Appeal said that although the details of the care plan were for the local authority to develop, it had to do so taking the facts as determined by the judge. If the local authority disagreed with the findings of fact of a judge they had to appeal it.

⁷⁹⁷ *Re S, Re W (Children: Care Plan)* [2002] 1 FCR 577 at para 59.

⁷⁹⁸ Theoretically, if a parent's parental rights were infringed in a way which did not constitute an infringement of their article 8 rights, then it may be that the parent's article 6 rights could be infringed, but, as Lord Nicholls said, it is hard to think of an instance where this would happen.

⁷⁹⁹ Herring (2002b).

⁸⁰⁰ [2007] EWCA Civ 232.

⁸⁰¹ *Re H (Care Plan: Human Rights)* [2011] EWCA Civ 1009.

⁸⁰² [2013] EWCA Civ 1227.

The local authority should set out the range of options based on the facts found by the judge and explain the services available to meet each. The court could then determine what order to make.

There is much to be said for the general approach of leaving day-to-day issues relating to the treatment of a child in care to the local authority. The first is a practical one and that is that the court cannot provide continuous guidance relating to children in care, responding to particular issues as they arise. Secondly, some issues relating to the care of abused children lie in the expertise of the local authority's social workers. Thirdly, the local authority will have to balance the needs of all children (and other vulnerable people) in their area with the resources they have available to spend. Although courts are adept in deciding specific issues relating to a particular child, court procedures are not suitable for formulating general policies in allocation of resources. Indeed this may have been the key policy behind the House of Lords' decision in *Re S, Re W (Children: Care Plan)*.⁸⁰³

14 Conclusion

Lady Hale⁸⁰⁴ has explained:

Taking a child away from her family is a momentous step, not only for her, but for her whole family, and for the local authority which does so. In a totalitarian society, uniformity and conformity are valued. Hence the totalitarian state tries to separate the child from her family and mould her to its own design. Families in all their subversive variety are the breeding ground of diversity and individuality. In a free and democratic society we value diversity and individuality. Hence the family is given special protection in all the modern human rights instruments . . .

This chapter has considered the circumstances in which it is appropriate to take a child into care. This is a notoriously problematic and controversial issue. It is all too easy, with hindsight, to claim that the local authority was too interventionist or not interventionist enough, but making the decisions in some of these cases must be agonising. The practical problems increase with the shortage of appropriately trained social workers. The Children Act 1989 has given the local authority the powers to provide services which are designed to prevent the authority having to use its more interventionist powers. Although the Children Act 1989 set up the threshold criteria before significant intervention in family life could be permitted, the interpretation of the criteria, particularly by the House of Lords, has had the effect of lessening the hurdle that they represent. The Human Rights Act 1998, as applied in case law, will now play an important role, at least in formulating the language which will be used: it must be shown that the intervention in family life by the state is a necessary and proportionate response to the threat faced by the child. In 1983 Michael Freeman wrote about the child's 'right not to be in care', reflecting the view that only in the most compelling cases should children be taken into care.⁸⁰⁵ Judith Masson⁸⁰⁶ in 2015 called for recognition of a child's 'right to state care', emphasising that the state has special obligations to children who cannot be cared for by their parents. These two different ways of expressing the issue reveal changes in quality of care that the state can offer and an increased awareness of the harm that abuse can

⁸⁰³ [2002] 1 FCR 577.

⁸⁰⁴ *Re B (Care Proceedings: Standard of Proof)* [2008] UKHL 35, per Lady Hale, at paras [20]–[21].

⁸⁰⁵ Freeman (1983).

⁸⁰⁶ Masson (2015a).

cause. What everyone agrees is that the issue is of fundamental importance. It involves the exercise by the state of one of its most coercive powers in order to fulfil its fundamental duties to protect the most vulnerable of its citizens.

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12

Families and older people

Learning objectives

When you finish reading this chapter you will be able to:

1. Discuss the statistics on older people
2. Debate whether adult children should be legally required to support their parents
3. Explain and evaluate the law on mental capacity
4. Summarise the broad issues around succession and intestacy
5. Describe how the law responds to elder abuse

1 Introduction

There is no legislative definition of 'older people'. It is most common to draw a definition in terms of the retirement age, or the age at which state pension becomes payable.¹ However defined, older people hardly constitute a homogeneous group.² As the catchphrase states: 'you are only as old as you feel'.³ Certainly there are stereotypes attached to old age – frailty and failing mental capacities – but many older people are highly active in their communities. Some may argue that it makes more sense to distinguish people with or without mental capacity or employment, rather than by using the category of age.⁴ Indeed, as we shall see later in relation to elder abuse, in more recent years government policy has focused on the abuse of vulnerable people, rather than specifically elder abuse.

In the family law context there are increasingly important questions about the extent to which families are and should be responsible for their older relatives.⁵ This chapter will consider whether adult children should be liable to support their impoverished parents in their old age, and how to balance the interests of the old and young within society. It will also examine the complexities that surround the abuse of older people. The chapter will then outline what happens when older people are no longer able to look after themselves. Finally, the

¹ See the discussion in Herring (2009d: ch. 1; 2014c; 2016c).

² Hence, this section of the text will use the phrase 'older people' rather than 'elderly people'.

³ For a discussion of the biological process of ageing, see Grimley Evans (2003).

⁴ For discussion of this issue, see Herring (2008e).

⁵ Herring (2009g).

chapter will discuss what happens to the property of older people on their death. Before considering these issues it is necessary to quote some statistics which reveal something of the position of older people within our society.

2 Statistics on older people

A Number of older people

Learning objective 1

Discuss the statistics on older people

There has been much talk of a 'generational time bomb'. It has been claimed that there is an increasing number of older people and that a growing proportion of the population is older. Certainly the statistics support this, although whether it is a 'bomb' and therefore something which should be a cause for concern is another issue.

KEY STATISTICS

- In 2016, there are 11.6 million people aged 65 or over in the United Kingdom. One third of the total UK population is over 50 and 1.5 million people are aged 80 or over.⁶
- 29% of people born in 2011 can expect to reach their 100th birthday.
- The proportion of people aged 65 or over is predicted to rise from 24.2% currently to 29% in 2034.
- There are more people in the United Kingdom over the age of 60 than under the age of 18.
- 36% of all those over 65 live alone. 70% of those are women.

B Older people and their families

It has been estimated that there are 14 million grandparents in the United Kingdom.⁷ Grandparents are now the single most important source of pre-school child care after parents.⁸ One survey found that 44 per cent of children were receiving regular care from grandparents.⁹ Even if they are not taking part in child care, it appears that most older people are able to keep in contact with family or friends. In the OASIS survey, 75 per cent of older people in the United Kingdom had face-to-face contact at least weekly with their children; 61 per cent received instrumental help; and 76 per cent felt very close to their children.¹⁰ However, there is also evidence that older people, especially men, who divorce early on in life have weaker links with their families in old age.¹¹ Society has yet to see the full consequences of the increased rate of divorce.

The sharing of accommodation by adult children and their parents is not common, with only 2 per cent of men and 7 per cent of women over 65 living with their son or daughter.¹²

⁶ All the statistics in this box are taken from Age UK (2016).

⁷ Age UK (2016).

⁸ Spitz (2012).

⁹ Fergusson, Maughan and Golding (2008).

¹⁰ Lowenstein and Daatland (2006).

¹¹ BBC Newsonline (2014).

¹² Office of Population and Census Surveys (1996). See for further discussion Stewart (2007).

Increasing percentages of older people are living alone.¹³ This increase (again partly caused by higher divorce rates) has important social consequences because older people who live alone are much more likely to enter institutional care than those who live with a spouse.¹⁴ In fact, there is evidence that older people much prefer to live in their own homes than in institutional care.¹⁵

Many older women live alone. Among women aged 75 and over who live in private households, 60 per cent live alone compared with 36 per cent of men at the same age.¹⁶ Although it is rare for adult children to live with their infirm parents, it is common for them to provide day-to-day care for their parents. Most care is carried out by women aged 45–64.¹⁷ It has been estimated that 1.4 million carers in the United Kingdom are over 65.¹⁸

Despite all of this grandparents have a very limited set of rights in family law. This is discussed in detail later (see page xxx). In *Re K (A Child)*¹⁹ a mother handed over a baby to a grandmother shortly after the birth. The grandmother raised the child. The Supreme Court held this gave her ‘inchoate rights’ for the purposes of the Hague Convention on Child Abduction. The grandparent had undertaken the sole responsibility for the child and that had been accepted by a range of public bodies. Even if she did not have a formal legal status, she in effect had taken on the rights and responsibilities of the parental role. The difficulties this case found in recognising the legal position of the grandmother reveals the precarious position that grandparents find themselves in.

C Income

Poverty is endemic in old age. Age UK states that 1.6 million pensioners (14 per cent of them) live below the poverty line, that is with incomes below 60% of median household income after housing costs. Of these one million are defined as living in severe poverty.²⁰ Eight per cent suffer material deprivation, meaning they lack two or more basic utilities such as a washing machine, freezer, phone, microwave or television.²¹ Poverty does not lie equally on gender or race lines.²² It has been estimated that one in 10 older women are very poor, living on less than half the median household income.²³ There is a particular problem with poverty among divorced women,²⁴ caused by the failure to ensure divorce settlements provide adequately for women on retirement.²⁵ Not only are there are an increasing number of pensioners below the poverty line, but the gap between the income of pensioners and employees has widened. One cause of this is the linking of pensions with the increase in the prices of goods rather than wages. There are further difficulties because many pensioners do not claim all of the credits and benefits to which they are entitled.

¹³ Age UK (2016).

¹⁴ Age UK (2016).

¹⁵ Gibson (1998).

¹⁶ Age UK (2016). See Fox O’Mahony (2012) for an excellent discussion of older people and their homes.

¹⁷ Moynagh and Worsley (2000).

¹⁸ Age UK (2016).

¹⁹ [2014] UKSC 29.

²⁰ Age UK (2016).

²¹ Age UK (2016).

²² On gender see Burholt and Windle (2006). On race see Platt (2007).

²³ Price (2006).

²⁴ Bardasi and Jenkins (2002).

²⁵ The increased number of divorces is linked to poverty and old age: Burholt and Windle (2006).

D Age discrimination

Much of the recent legal discussion concerning older people has centred on the concept of age discrimination.²⁶ The Equality Act 2010 outlaws discrimination on the ground of age generally. It covers both direct discrimination²⁷ (where the discrimination is blatantly on the grounds of age) and indirect discrimination²⁸ (where the discrimination does not refer explicitly to age, but to other grounds which in effect discriminate on the basis of age). The Act only applies to those over the age of 18. A child, therefore, cannot complain that they were discriminated against on the basis of their age. It applies to the provision of services.²⁹ However, unlike other forms of discrimination, age discrimination can be justified if it is a 'proportionate means of achieving a legitimate aim'.³⁰

3 Do children have an obligation to support their parents?

Learning objective 2

Debate whether adult children should be legally required to support their parents

Some legal systems require adult children to support their aged parents.³¹ In Britain such a legal obligation generally has not been accepted.³² There is no equivalent of the Child Support Act which requires an adult child to support a parent in old age.

Further, the social security system does not treat an adult child as a 'liable relative' of a parent, meaning that an adult child's resources are not taken into account when considering a parent's claim for income support. However, with the debate raging over how care for older people is to be financed, this question must be reconsidered. There is widespread feeling that there is at least a moral obligation on adult children to provide some support for their infirm parents; however, it is hard to find a convincing basis for this sense of obligation.³³ There are a number of ways that one could establish an obligation on adult children to support parents:

1. *Reciprocated duty.* It could be argued that an obligation to support parents is a reflection of the obligation on parents to support young children. In other words, because parents provided for children in their vulnerability, children should support parents when parents become infirm. Despite the initial attraction of such an argument, there are difficulties with it. First, although parents can be said to have caused the child to be born in his or her vulnerable state, the adult child cannot be said to have caused the vulnerable state of his or her parents. A similar point is that, although parents can be said to have chosen to have the child and so impliedly undertaken the obligation to care for the child, the same could not be said of children.³⁴ In the light of these objections, it is clear that there is not necessarily a straightforward link between the duty of parents to care for children and an adult child's obligation to care for parents.

²⁶ For an excellent discussion of age discrimination, see Fredman (2003). See also Herring (2009d).

²⁷ Section 13.

²⁸ Section 19.

²⁹ Section 29.

³⁰ Section 13(2).

³¹ See e.g. the discussion in Deech (2010a).

³² Herring (2008d). See also Oldham (2001) for an excellent discussion of the English and French approaches to this issue.

³³ Mullin (2010).

³⁴ Daniels (1988).

2. *Relational support.* It could be argued that an obligation to support parents flows from the relationship of love that exists between parents and children. The difficulty is that clearly not all parents and children are in loving relationships. However, even where children and parents do not love each other, adult children may feel a sense of obligation to support their parents. This suggests that the obligation to support comes not so much from a relationship of mutual love, but from some other source. A further difficulty with the relational argument is that people do not feel an obligation to support all those with whom they are in a loving relationship. Most people would not feel obliged to support a good friend in his or her old age, even though they may choose to do so. It has been suggested that what distinguishes family relationships from friendships is the notion of intimacy. The argument here is that family life involves bonds of sharing and intimacy, unlike that in any other relationship.³⁵ Parents and children reveal to each other aspects of their lives that they show to no other person. However, whether this intimacy is unique to families may be questioned. Some people may feel that they are more open to their friends than to their families. All these points suggest that, although a loving relationship might form the basis of an obligation to support parents, there are other aspects that together complete a more complex picture of obligation.
3. *Implied contract.* It could be argued that there is an implied contract between parents and children that they will support each other. An obvious objection is that children are unable to consent to such a contract at birth. However, the law could assume that the child would have agreed to the contract at birth had he or she been competent to do so. This approach might carry some weight, especially if children were free to rescind the contract once they had reached sufficient maturity to decide whether to uphold it. Another objection to the contract approach is that to see the relationship between family members in terms of contract would not seem in accordance with the realities of family life. A family which regarded its relationships as governed by the terms of a formal contract would be rather unusual.
4. *Dependency.* Here the argument is that the obligation to support flows from the vulnerability of the parent. There is no doubt that some older people need care and financial help from someone. Our society would not accept that older people could be abandoned without any support. It is, then, a matter for society to decide who should provide that support. It could be argued that children are in the best position to give that care, and therefore society is entitled to require adult children to supply it.³⁶ This is a similar argument to the one used by Eekelaar to explain why parents are under a duty to care for their children.³⁷ Although children may be uniquely placed to provide emotional comfort for their older parents, whether the same is true for financial support is a different issue. This argument at its strongest could lead us to conclude that society would be entitled, if it wished, to require some kind of support of older parents by adult children. However, although there is widespread acceptance that the law is right to require parents to fulfil their parental duties, the idea that children must support their parents is much more controversial.³⁸

³⁵ English (1979).

³⁶ Kellet (2006).

³⁷ Eekelaar (1991b).

³⁸ See Oldham (2006) for an excellent discussion.

A Moral obligations or legal obligations?

English³⁹ has argued that although there may be moral obligations to support older relatives, these should not give rise to legal obligations. She argues that the law does not generally enforce obligations that arise out of love or friendship. Family members do not add up all they have given and all they have received from a relative in order to work out whether they should help them. Parents do not change nappies out of a sense of legal obligation, but as part of sacrificial love. These are strong arguments, but they could be used equally well in relation to adults and young children. We do place legal obligations on parents to care for young children, even though their relationship is one based on love. The law sets out the minimum required of parents, while accepting that it is just part of what is morally required of them. However, as we shall see, there is a fine line between legal obligations which compel people to provide care they may not wish to give, and the law encouraging and enabling people to give care and support voluntarily. So, before deciding what the law's response should be, it is necessary to consider what obligations family members actually feel towards older people.

B What obligations do people actually feel?

Despite the fact that it is difficult to pin down precisely *why* adult children owe a moral obligation to their parents, there is a widespread feeling that they do. However, such feelings of obligation are complex. Finch,⁴⁰ in her wide-ranging study of family obligations, distinguishes two kinds of moral obligation: a normative guideline; and a negotiated commitment. In basic terms, the normative guideline is an accepted standard that applies across the board to certain relationships: for example, that parents should care for their young children. The negotiated commitment is an agreement reached between two people which governs their behaviour: for example, the relationship between an elderly aunt and her nephew may develop over time to the stage where the nephew feels obliged to support his aunt even though, generally, nephews are not expected to support aunts. Finch found that, in deciding whether a person felt under an obligation to provide assistance to another, there were guidelines rather than strict rules in operation. Finch⁴¹ suggests that people tend to ask two key questions: 'Who is this person?' (e.g. are they a relative?); and 'How well do I get on with this person?' She found that parent-child links were the strongest family ties. In parent-child relationships the second question ('How well do I get on with this person?') is less significant than the needs of the older person. So an adult child may feel little responsibility for a spry elderly parent, even if their relationship is close; whereas an adult child might feel a burden of responsibility for an infirm parent, even if their relationship is not close. That said, Finch notes that most people do not think through in a rational way why they make the wills they do.

Further important aspects in the obligations that family members feel they owe to each other are gender and sexuality. Ungerson⁴² found that women have a clearer sense of obligation to family members than men. As noted earlier, it is women who perform the majority of practical care for older relatives. Gay and lesbian people, especially in the past, struggled to use wills to pass on property to their lovers, in a way which was not open to legal challenge.⁴³

³⁹ English (1979).

⁴⁰ Finch (1994).

⁴¹ Finch (1994).

⁴² Ungerson (1987).

⁴³ Westwood (2015).

C Integrating family and state care

If, then, there is a sense of moral obligation towards older parents, how should the law respond? There has been some debate over whether the provision of state aid for older people has weakened the feeling of responsibility of adult children to support their parents. Finch thinks not, arguing: 'If anything it has been the state's assuming some responsibility for individuals – such as the granting of old age pensions – which has freed people to develop closer and more supportive relationships with their kin'.⁴⁴ Indeed, the existence of state services for older people has not meant that relatives do not care for each other. A high level of acceptance that children should care for their older parents has also been found. Although Finch argues that the sense of family obligation has not lessened, she accepts that the circumstances of modern life (e.g. the fact that more women are working) mean that the way people carry out their obligations has changed.⁴⁵ Such changes may lead to the result that social services will be required to perform more day-to-day services for older people.

There is increasing acceptance that it is necessary to integrate state support for older people with the support of relatives. Tinker suggests the aim should be:

the interleaving of informal, usually family, care with statutory services that is so necessary but so difficult to achieve. What does seem evident is that without good basic statutory services, such as community nursing and help in the home, informal carers will not be able to support older people without cost to their mental and physical health. It is no use paying lip service to support for informal carers if help from professionals is not forthcoming.⁴⁶

Not only can the role of the state be regarded as a necessary support for carers, there is also some evidence that older people perceive direct financial support from their children embarrassing and, in a sense, a lessening of their autonomy. There is evidence that older people find it difficult to be in relationships with their children where they are receiving rather than giving. Therefore, receiving money directly from the Government in the form of pensions, rather than from their children, may be regarded by many as a more acceptable form of financial assistance.

D Conclusion

A case can be made for imposing obligations on adult children. Starting with the vulnerability and needs of older people, and accepting that they should be met somehow, society *could* choose to require adult children to provide that care, as they are often best placed to provide it. Such an obligation appears to be reflected in the attitudes and practices of most adult children. However, there are good reasons why our society may prefer to support older people through taxation rather than require financial support from relatives. First, there is the evidence mentioned above that older people dislike feeling that they are a drain on their younger relatives. Enforcing financial support and practical care may therefore damage the family relationships which can be so important in old age. Secondly, such a system could work against the interests of those older people who have no children. Thirdly, as we shall see shortly, there is clear evidence of the strain often incurred by those caring for vulnerable older relatives, and such strain may be exacerbated with an explicit legal obligation. So, it is submitted,

⁴⁴ Finch (1994: 243).

⁴⁵ Finch (1994).

⁴⁶ Tinker (1997: 250).

a better option is for the state to seek to enable and encourage caring among family members, rather than compel it.⁴⁷ As we shall now see, there is some attempt to do this in the present benefits system.

4 Financial support for older people and their carers

The state provides a wide selection of benefits to the retired.⁴⁸ Most obviously, there is the basic state pension, supplemented by the state earnings-related pension if paid into by the claimant during his or her employment. There is also a raft of other benefits including housing benefit, disability living allowance, incapacity benefit, and income benefit, as well as payments from the Social Fund, which are available to meet particular needs of the retired person. In addition to the state provision, the Government in recent years has encouraged people to take out private pensions if their employers have not provided occupational pensions.

Despite these state provisions, as seen earlier, poverty is rife among older people. Mika Oldham, considering the public provision for older people, states: 'Public provision is in a mess. Levels of under-funding are such that the welfare system is no longer straining – it is actually failing – to achieve its goals'.⁴⁹ The problem in part is the low level of benefits and in part the low rate of take up.⁵⁰

The failure of support applies not just to older people, but also those who care for them, many of whom are family members.⁵¹ There is ample evidence that carers suffer great strain, both emotional and financial.⁵² The Government has in recent years recognised the pressures that can be caused through caring for dependent relatives and has, following its report, *Caring About Carers*,⁵³ set up a national strategy for carers. Indeed, the Government announced a *National Strategy for Carers*, with the then Prime Minister declaring:

What carers do should be properly recognised, and properly supported – and the Government should play its part. Carers should be able to take pride in what they do. And in turn, we should take pride in carers. I am determined to see that they do – and that we all do.⁵⁴

Despite this, there is ample evidence that carers fail to receive much support or recognition.⁵⁵ There is, however, more help than there was in the past. For example, the local authority has the power to make special grants to enable carers to have breaks. Further, there are special benefits available for those who spend significant time caring for dependent relatives.⁵⁶ By offering these funds, the state is recognising the benefits that carers provide not only to their dependants, but also to the state through saving the state the cost of providing the care.

⁴⁷ For further discussion, see Herring (2008d).

⁴⁸ See Herring (2013a) for detailed consideration.

⁴⁹ Oldham (2001: 168). See also Katz *et al.* (2011).

⁵⁰ Age UK (2014).

⁵¹ For a detailed discussion, see Herring (2007a and 2013a).

⁵² Herring (2013a: ch 2).

⁵³ Department of Health (2002g).

⁵⁴ Department of Health (2005b: 1).

⁵⁵ Herring (2007a and 2008b).

⁵⁶ For the details, see Clements (2011).

The details of these benefits are beyond the scope of this text, but three important points on a theoretical level can be made:

1. Parents who do not seek employment, and instead care for children, receive no special benefits in respect of their care, while those caring for adult do.⁵⁷ Further, the Government has developed the New Deal (now the Flexible New Deal), through which the benefits system and other forms of assistance are designed to encourage lone parents with children to find employment.⁵⁸ So here the voluntary care by mothers (and especially lone mothers) of young children is not positively valued and encouraged by the state.⁵⁹ By contrast, the care of older people is supported and encouraged through the benefits system, although many argue that the support given to such carers is inadequate.⁶⁰ It may be that the Government feels that carers of older people need financial incentives to provide care, which the parents of children do not need.
2. There are grave concerns that carers are inadequately valued within society.⁶¹ Gibson⁶² suggests that social provision for frail and older people is predicated on the expectation that women provide the vast majority of the care at no fiscal cost to the state, and that the care the state does provide is subsidised by underpaid female care assistants. It has been claimed that the value of the care provided for older people and other dependent relatives is a staggering £587 billion per year, more than the spending on the NHS.⁶³ However, there is a dark side to care of older people at home. The majority of carers described themselves as 'extremely tired' and some were depressed.⁶⁴ Both the older people and carers were terrified about the possibility of having to move the older person into a nursing home. It should not be assumed that, once the older person is in residential care, their carers are then free from strain.
3. What is the state's obligation towards an older person who is wealthy enough to pay for support him- or herself? To what extent can the National Health Service and social services be expected to provide free care for an older person? The current system is based on a fundamental distinction between health care which is paid for by Government and social care which is means tested and can be charged for. For a long time it has been accepted that this division is problematic and has led to serious inadequacies in the care provided. In an attempt to move the debate forward, the Government in 2010 set up a commission headed by the respected economist Andrew Dilnot to investigate the issue. The key proposals of the Dilnot Report are as follows:
 - Individuals' lifetime contributions towards their social care costs – which are currently potentially unlimited – should be capped. After the cap is reached, individuals would be eligible for full state support. This cap should be between £25,000 and £50,000. We consider that £35,000 is the most appropriate and fair figure.
 - The means-tested threshold, above which people are liable for their full care costs, should be increased from £23,250 to £100,000.

⁵⁷ Apart from child benefit, which is available to all parents whose household income is below £50,000.

⁵⁸ See Douglas (2000a).

⁵⁹ See the discussion at the start of the text (Chapter 1).

⁶⁰ See the campaigns of Carers UK.

⁶¹ Herring (2013a).

⁶² Gibson (2000).

⁶³ Carers UK (2012).

⁶⁴ Carers UK (2012).

- National eligibility criteria and portable assessments should be introduced to ensure greater consistency.
- All those who enter adulthood with a care and support need should be eligible for free state support immediately rather than being subjected to a means test.

The Commission also sought a scheme whereby people in care homes could defer payment, meaning that they would not be required to sell their homes to pay for care,⁶⁵ although it may well be that on death their home would need to be sold to pay for the costs. The Commission estimates that its proposals – based on a cap of £35,000 – would cost the state around £1.7 billion per annum.⁶⁶

The Dilnot Commission was clearly influenced by the political reality that an expensive scheme was unlikely to be supported by the Government. The cost of £1.7 billion, while considerable, was a feasible sum of money to deal with a major issue.

The Government took a long time to respond.⁶⁷ It supported what it regarded as the two key principles behind the Dilnot Report:

- the Government should put a cap on the lifetime care costs that people face, and raise the threshold at which people lose means-tested support; and
- there should be universal access to deferred payments for people in residential care.

These principles the Government accepted should be the ‘right basis’ for any new funding model. However it explained:

... it is our intention to base a new funding model on them if a way to pay for it can be found, there remain a number of important questions and trade-offs to be considered about how those principles could be applied to any reformed system. Given the size of the structural deficit and the economic situation we face, we are unable to commit to introducing the new system at this stage. The Government will work with stakeholders and the Official Opposition to consider the various options for what shape a reformed system, based on the principles of the Commission’s model, could take before coming to a final view in the next Spending Review. Taking a decision in the Spending Review will allow the Government to take a broad view of all priorities and spending pressures.⁶⁸

The Government indicated in 2012 that the cap on costs will be £70,000, significantly higher than the £35,000 proposed by the Dilnot Report. Also, surprisingly, it mooted the possibility this will be in an ‘opt-scheme’ where people who opt for it will finance the reform. Whether it can succeed on an opt-in basis and how those who do not opt in will be treated remains to be seen. Indeed in recent years there has been talk of radical reform. Cynics might see this response as being little more than prevarication. Effective and much needed reform still seems a long way off.

5 Inter-generational justice

At the heart of the Equality Act 2010 is the principle that discrimination on the grounds of age (and other characteristics) is prohibited. Too often older people are seen as a burden. This is implied with the hysterical reporting that can accompany reports that people are

⁶⁵ This issue is well discussed in Fox O’Mahony (2012).

⁶⁶ Dilnot (2011).

⁶⁷ HM Government (2012b).

⁶⁸ HM Government (2012a: 3).

living longer and that we are an ageing population, rather than recognising that this is in fact good news!⁶⁹ In the United States, in particular, there has been much discussion of inter-generational justice.⁷⁰ This is an ethos that there should be fairness between the older members of society and the younger. There are some who argue that older people receive a disproportionate level of society's resources. Although those over 65 constitute 20 per cent of the population in the United Kingdom, 41 per cent of hospital admissions were of those aged over 65.⁷¹ However, it is worth noting that the statistics indicate that the majority of hospital admissions involve people below the age of 65. The idea that hospitals are full of older people, is false. Some talk almost in terms of a battle between the older and younger generations, with the older generation calling for even greater health and pension provision for which the younger generation would have to pay through taxes.⁷² There is no easy way of avoiding the fact that a society which distributes resources on the basis of need may well prefer one age group over another.

Daniels⁷³ wishes to move away from the image of competition between generations. He proposes the 'lifespan approach', in which he suggests that society needs to consider whether the state should provide people with special resources in their young, middle or old age. The fact that the state might provide an especially high level of services in old age is not preferring the old to the young, because the young will receive the same benefits when older. Across each person's lifetime the state expenditure will be the same, Daniels argues. In other words, 'transfers between age groups are really transfers within lives'.⁷⁴ Although his approach has much to recommend it to society, medicine and technology are changing too quickly for his approach to provide a satisfactory solution. For example, when a person is born, social attitudes and medical advances may mean that society wishes to focus provision on children, but by the time the person is older, social advances may mean that there is no need to spend so much on the young, and those funds might be better spent on older people.

6 Incapable older people

A Do older people have rights?

Clearly, old people who have mental capacity have rights. However, more difficult is the position of older people who through illness or old age lack capacity.⁷⁵ Over 800,500 have dementia, nearly all of them older people,⁷⁶ although not all those with dementia will necessarily have lost capacity.⁷⁷ When children's rights were discussed earlier in the text (Chapter 9), it was noted that there are some difficulties in claiming that children have rights because they cannot choose whether to exercise their rights. The approach propounded by Eekelaar was that children's basic, developmental and autonomy interests should be promoted so that once

⁶⁹ See Herring (2009d) for a discussion of ageism.

⁷⁰ E.g. G. Smith II (1997).

⁷¹ Age UK (2016).

⁷² An American organisation, Americans for Generational Equity (AGE), argues that older people receive an undue proportion of available public resources and that it would be unreasonable to divert more funds to them.

⁷³ Daniels (1988: 5).

⁷⁴ Daniels (1988: 63).

⁷⁵ Goodin and Gibson (1997).

⁷⁶ Age UK (2016).

⁷⁷ For a discussion of legal responses to dementia see Foster, Herring and Doron (2014); Herring (2009f and 2011f).

children were sufficiently mature they would be in a position to make life choices for themselves.⁷⁸ Such an approach is not possible for incapable older people. Older people will already have developed their own style of life and values. Therefore, the law cannot take a neutral position and make decisions for older people that would enable them to make their own once competent; this is because, having lost competence, most older people will not regain it.

Goodin and Gibson suggest that, for these reasons, it is inappropriate to hold that an incompetent older person has rights and instead the law should move towards a different approach: 'A much more apt description of our duties and their due is couched in terms of a broader but in many ways more demanding notion of "right conduct" towards dependent others'.⁷⁹ So, rather than talking about the protection of interests, 'it is rather, that there are certain sorts of things that we must, and certain sorts of things that we must not, do to and for particular sorts of people'.⁸⁰ This view therefore says that we cannot talk about rights for the older incapable person, because they cannot choose what they want, and the law cannot ascertain the interests that should be protected. However, this does not mean that older people should be unprotected because others are obliged to treat them with 'right conduct'. There is much to be said for such an approach, although talk of 'right conduct' lacks the punch of 'rights' in political rhetoric.⁸¹

B When does an older person lose capacity in the eyes of the law?

Learning objective 3

Explain and evaluate the law on mental capacity

Section 1(2) of the Mental Capacity Act 2005 (MCA 2005) makes it clear it should be presumed that a patient is competent, unless there is evidence that he or she is not.⁸² If the case comes to court, the burden is on the doctor or whoever treated the patient in a particular way to demonstrate that the patient lacks capacity on the balance of probabilities. But what exactly does it mean to say that the patient is incompetent? Section 2(1) of the MCA 2005 states:

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 2(1)

... a person lacks capacity in relation to a matter if at the material time he is unable to make a decision for himself in relation to the matter because of an impairment of, or a disturbance in the functioning of, the mind or brain.

So, for a person to be incompetent, it must be shown that he or she is unable to make a decision for him- or herself. Section 3(1) explains:

⁷⁸ Eekelaar (1986).

⁷⁹ Goodin and Gibson (1997: 186).

⁸⁰ Goodin and Gibson (1997: 186).

⁸¹ Poffé (2015).

⁸² Mental Capacity Act 2005, s 1. See Herring (2012b) for a discussion of the law.

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 3(1)

... a person is unable to make a decision for himself if he is unable—

- (a) to understand the information relevant to the decision,
- (b) to retain that information,
- (c) to use or weigh that information as part of the process of making the decision, or
- (d) to communicate his decision (whether by talking, using sign language or any other means).

As this indicates, there are a number of ways in which a person may be said to be unable to make a decision.⁸³ It may be a case of lack of comprehension: the person is not capable of understanding their condition or the proposed treatment or the consequences of not receiving treatment.⁸⁴ Also assessment of capacity is issue specific. A patient may be found to have sufficient understanding to be able to consent to a minor straightforward piece of medical treatment, but not have sufficient understanding to be able to consent to a far more complex procedure. The MCA 2005, however, emphasises that a patient should not be treated as lacking capacity 'unless all practical steps to help him' reach capacity 'have been taken without success'. That may involve their family or friends assisting them in making decisions. Further, under s 2(2):

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 2(2)

A person is not to be regarded as unable to understand the information to a decision if he is able to understand an explanation of it given to him in a way that is appropriate to his circumstances (using simple language, visual aids or any other means).

To be competent, the patient must also be able to use the information: weigh it and be able to make a decision. This means that, even though a patient may fully understand the issues involved, if she is in such a panic that she is unable to process this knowledge to reach a decision then she will be incompetent. Section 1(3) of the MCA 2005 states that: 'A person is not to be treated as unable to make a decision merely because he makes an unwise decision'.⁸⁵ There is a careful line to be trodden between not allowing the line of reasoning: this decision is irrational therefore the patient is incompetent; but permitting the reasoning: this decision is irrational because the individual is not able to properly weigh up the different issues and therefore is incompetent.

In order to show that a person lacks capacity under the MCA 2005, it is not enough just to show that they are unable to make a decision for themselves; it must be shown that this is as a result of an impairment of, or disturbance in the functioning of, the mind or the brain.

⁸³ Harding, R. (2012).

⁸⁴ MCA 2005, s 2(4).

⁸⁵ Despite the clear statement of this principle, commentators have claimed that the judges have done exactly this to ensure patients receive the treatment they need: Montgomery (2000).

The significance of this is that a patient has capacity if there is no mental impairment or disturbance, however impaired their reasoning process may have been. So, for example, a patient with no mental impairment who refuses all treatment because of her religious belief that God will cure her will not lack capacity, even if the doctors try to argue that she does not properly understand the reality of her situation.

A final point on competence is that the MCA 2005 makes special provision to ensure that patients are not assessed as lacking capacity in a prejudicial way. Section 2(3) states:

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 2(3)

A lack of capacity cannot be established merely by reference to—

a person's age or appearance, or

a condition of his, or an aspect of his behaviour, which might lead others to make unjustified assumptions about him.

This is designed to ensure that a patient who appears unkempt or disordered is not assessed as lacking capacity purely on that basis. The use of the word 'merely' is perhaps surprising because it suggests prejudicial attitudes can be a factor taken into account in assessing capacity.

The treatment of a patient lacking capacity is now governed by the Mental Capacity Act 2005. The Act applies only to those over the age of 16.⁸⁶ It will be remembered that the Act makes it clear that a patient should be presumed to be competent.⁸⁷ If it is found that the patient is incompetent and a medical professional wishes to treat the patient, then the following questions must be considered:

1. Has the patient created an effective advance decision (sometimes called a 'living will') which refuses the treatment in question? If so, the advance decision must be respected.⁸⁸
2. Has the patient effectively created a lasting power of attorney (LPA)? If so, the donee of the LPA may be able to make the decision.⁸⁹
3. Has the court appointed a deputy? If so, the deputy in some cases can make the decision.⁹⁰
4. If there is no effective advance decision and no LPA or deputy who can make the decision, then the question is whether the treatment is in the best interests of the patient.

We need to consider, therefore, the four scenarios separately.

⁸⁶ Although the offence of ill-treatment or wilful neglect of a person lacking capacity in s 44 has no limit. Also, in s 18(3) there is power for the court to deal with the property of an incapable minor.

⁸⁷ MCA 2005, s 1(2).

⁸⁸ MCA 2005, s 24.

⁸⁹ MCA 2005, s 9.

⁹⁰ MCA 2005, s 19.

C Advance decisions

An advance decision is defined in MCA 2005, s 24 thus:

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 24

'Advance Decision' means a decision made by a person ('P'), after he has reached 18 and when he has capacity to do so, that if—

at a later time and in such circumstances as he may specify, a specified treatment is proposed to be carried out or continued by a person providing health care for him, and at that time he lacks capacity to consent to the carrying out or continuation of the treatment, the specified treatment is not to be carried out or continued.

A number of points should be noted about this definition. First, the advance decision is only effective if, when it was made, P (the patient) was over 18 and competent. Secondly, the advance decision is only to be relevant if the patient lacks capacity to consent to the treatment. So, if a patient has signed an advance decision refusing to consent to a blood transfusion, but at the time is competent and consents, then the advance decision should be ignored.⁹¹ Thirdly, the definition of advance decisions only allows 'negative' decisions; decisions to refuse treatment. An advance decision cannot be used to compel a medical professional to provide treatment. The definition of advance decision covers both treatment and the continuation of treatment. An advance decision, therefore, could indicate that P is willing to receive treatment, but only for a certain period of time. If the advance decision does reject life-saving treatment, it must be in writing and signed by P and witnessed by a third party.⁹² Otherwise, the decision does not need to be in writing.

Section 25 explains how an advance decision may be invalid. This is where P, with capacity, has withdrawn the advance decision; where P has created an LPA after making the advance decision and given the LPA the power to make the decision in question; or where P has done anything else which is clearly inconsistent and to which the decision related.

Section 26(1) of the MCA 2005 explains:

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 26(1)

If P has made an advance decision which is—

- (a) valid, and
- (b) applicable to the treatment,

the decision has the effect as if he had made it, and had had capacity to make it, at the time when the question arises whether the treatment should be carried out or continued.

⁹¹ MCA 2005, s 25(3).

⁹² MCA 2005, s 25(6).

This means that if P has a valid and applicable advance decision which rejects treatment the medical professional should not provide it. If she or he does, then there is the potential for a criminal or tortious action. However, under s 26(2): 'A person does not incur liability for carrying out or continuing the treatment unless, at the time, he is satisfied that an advance decision exists which is valid and applicable to the treatment'.

D Lasting powers of attorney

If a person wants someone else to make decisions on their behalf when they become incompetent, they can make a lasting power of attorney (LPA) under s 9 of the MCA 2005. The donee or donees of the LPA can make decisions for general matters relating to someone's welfare, including some medical decisions. In order to execute an LPA the person (P) must be over 18 years old and have capacity to do so.⁹³ There are strict regulations as to the formalities surrounding the LPA and its registration. These are set out in Sch 1 to the MCA 2005. If they are not complied with the LPA will be ineffective.

The donee of the LPA must be over the age of 18. It is possible to appoint more than one LPA. Unless the LPA says so, where more than one donee is appointed they are to act jointly.⁹⁴ In other words, all of them must agree on the decision in question before using the LPA. An LPA can be revoked at any time if P has the capacity to do so.⁹⁵

Where an LPA has been validly appointed and the donee has the power to make decisions about P's personal welfare, this can extend to giving or refusing to the carrying out of health care. However, this is subject to an important restriction in that the donee must make the decision based on what would be in P's best interests, as described in s 4 (which will be discussed below).

E Deputies

Under the MCA 2005, s 16, if P lacks capacity in relation to a matter concerning her or his personal welfare (e.g. a health issue) then the court can make the decision on P's behalf or decide to appoint a deputy to make decisions on P's behalf. In deciding whether to appoint a deputy the court should consider whether to do so would be in P's best interests (considering the factors in s 4 which we shall be looking at shortly) and also the following principles:

- (a) a decision by the court is to be preferred to the appointment of a deputy to make a decision; and
- (b) the powers conferred on a deputy should be as limited in scope and duration as is reasonably practicable in the circumstances.

This suggests that where there is a 'one off' decision to be made about P, appointing a deputy is unlikely to be appropriate. Where decisions need to be made about P on a regular basis, a deputy may be more suitable. A deputy must be over the age of 18 and have consented to take on the role.⁹⁶ The court can appoint more than one deputy; and it can revoke the appointment of a deputy.⁹⁷

⁹³ MCA 2005, s 9.

⁹⁴ MCA 2005, s 9(5).

⁹⁵ MCA 2005, s 13(2).

⁹⁶ MCA 2005, s 19.

⁹⁷ MCA 2005, s 16(8).

F Court decision based on best interests

An application can be made to court in respect of any person who lacks capacity. The court can make a declaration as to the lawfulness of any act concerning the individual. The decision will be made based on what is in the best interests of the patient, as that is understood under MCA 2005, s 4.

G The best interests of the person

If an advance decision is valid and applicable, that must be respected and the issue of what is in P's best interests does not arise. However, where a court or donee of an LPA or deputy or a person caring for or providing treatment to P is making a decision concerning P, the decision must be made based on what is in P's best interests.⁹⁸ Section 1(6) emphasises that:

Before the act, is done, or decision is made, regard must be had to whether the purpose for which it is needed can be effectively achieved in a way that is less restrictive of the person's rights and freedom of action.

So, whenever a decision is being made about an incompetent patient, it is not enough just to show that the action is in P's best interests; it must be shown there is not an equally good way of promoting P's interests which is less invasive of his rights or freedom.

Section 4 of the MCA 2005 states that, in deciding what is in a patient's best interests, the court or deputy must consider all the relevant circumstances, including the following factors:

- (i) '(a) whether it is likely that the person will at some time have capacity in relation to the matter in question, and (b) if it appears likely that he will, when that is likely to be'.⁹⁹ Clearly if the person is soon to regain capacity, it may be better, if possible, to postpone making a decision so she or he can make it for her- or himself.
- (ii) The decision-maker must 'so far as reasonably practicable, permit and encourage the person to participate, or to improve his ability to participate, as fully as possible in any act done for him and any decision affecting him'.¹⁰⁰ This is a recognition that even if it is not possible for the person to make a decision for him- or herself, he or she should still be involved to a reasonable extent in the decision-making process and his views listened to.
- (iii) The decision-maker must consider, so far as is reasonably ascertainable, '(a) the person's past and present wishes and feelings (and, in particular, any relevant written statement made by him when he had capacity), (b) the beliefs and values that would be likely to influence his decision if he had capacity, and (c) the other factors that he would be likely to consider if he were able to do so'.¹⁰¹ It should be emphasised that the MCA 2005 does not adopt a substituted judgment test (see below). In other words, it does not require decision-makers to make their decision based on what they guess the person would have decided if she or he had been competent. However, as this factor makes clear, the views of the person while competent, and assessment of what decision she or he would have made if competent, can be taken into account in deciding what are in her or his best interests.

⁹⁸ MCA 2005, s 1(5).

⁹⁹ MCA 2005, s 4(3).

¹⁰⁰ MCA 2005, s 4(4). See Herring (2009f) for further discussion.

¹⁰¹ MCA 2005, s 4(6).

- (iv) The decision-maker should, if practical and appropriate, consider the views of '(a) anyone named by the person as someone to be consulted on the matter in question or on matters of that kind, (b) anyone engaged in caring for the person or interested in his welfare, (c) any donee of a lasting power of attorney granted by the person, and (d) any deputy appointed for the person, by the court, as to what would be in the patient's best interests'. The decision-maker may choose to consult a wider group of people than this, but is not required to do so.¹⁰² It is unclear how much weight should be placed on the views of a family. If P's family are all Jehovah's Witnesses and oppose the required blood transfusion, should their views carry the day? Probably not; the views of family members are only one factor and in such a case it would be hard to see P's death as in P's best interests, as that term is generally understood in society. If the court decides that it is important that the relative has an ongoing relationship with P, then their views may be relevant to ensure that continues.¹⁰³

There are two factors which the decision-maker should not take into account:

- (i) A decision as to what is in a person's best interests should not be made merely on the basis of '(a) the person's age or appearance, or (b) a condition of his, or an aspect of his behaviour, which might lead others to make unjustified assumptions about what might be in his best interests'. This might be most relevant in combating assumptions about older people and what is best for them.
- (ii) Section 4(5) states: 'Where the determination relates to life-sustaining treatment [the decision-maker], in considering whether the treatment is in the best interests of the person concerned, may not be motivated by a desire to bring about his death'.

Where an incompetent patient is being detained for treatment and there is a need for detention or restraint, the 'Deprivation of Liberty Safeguards' must be complied with.¹⁰⁴ These are complex, but include a requirement that any deprivation of liberty be proportionate to the harm facing the person lacking capacity.¹⁰⁵

The Mental Capacity Act 2005 has been widely welcomed for setting the law on a clear statutory footing; on providing an explicit legal authorisation for those caring for those lacking capacity to do so; and for protecting human rights. There are, however, some concerns for those family members or others, caring for people lacking capacity. The first is that a decision made by them about care might be said to be not in the person's best interests. This concern is dealt with by s 5:

LEGISLATIVE PROVISION

Mental Capacity Act 2005, section 5

- (1) If a person ('D') does an act in connection with the care or treatment of another person ('P'), the act is one to which this section applies if—
 - (a) before doing the act, D takes reasonable steps to establish whether P lacks capacity in relation to the matter in question, and

¹⁰² Department of Constitutional Affairs (2004: para 4.23).

¹⁰³ *A Primary Care Trust and P v AH and A Local Authority* [2008] 2 FLR 1196.

¹⁰⁴ MCA 2005, s 6.

¹⁰⁵ See Herring (2012d) for a detailed discussion of the law.

- (b) when doing the act, D reasonably believes–
 - (i) that P lacks capacity in relation to the matter, and
 - (ii) that it will be in P's best interests for the act to be done.
- (2) D does not incur any liability in relation to the act that he would not have incurred if P–
 - (a) had had capacity to consent in relation to the matter, and
 - (b) had consented to D's doing the act.
- (3) Nothing in this section excludes a person's civil liability for loss or damage, or his criminal liability, resulting from his negligence in doing the act.

This provides some protection from a carer who reasonably believes the person they are looking after lacks capacity and acts in what they think is in that person's best interests. Even if a court later decides they were mistaken, s 5 offers them protection from legal challenge. However, this protection is somewhat limited by subsection 3.

A second concern is that at first blush the best interests test requires a family member to only consider P's interests and never their own, when making decisions. Strictly interpreted this would put an unbearable burden on carers. However, the carer can take into account P's views when competent and presumably P would not want family members utterly overburdened, and so it might be legitimate for a carer to take their own interests into account in a limited way.¹⁰⁶

In order to protect the right to protection from deprivation of liberty under Article 5 of the ECHR, the Deprivation of Liberty safeguards were introduced in 2009. These set out a series of requirements in section 4A and 4B of the MCA that had to be met if any deprivation of liberty was justified. In *P v Cheshire West and Chester Council*¹⁰⁷ the notion of deprivation of liberty was interpreted widely to cover any situation where a person was subject to continuous supervision and control and was not free to leave. Many care homes would fall under this definition.

In recent years the courts have shown an increasing willingness to use the inherent jurisdiction to make orders in relation to those who are classified as vulnerable adults.¹⁰⁸ In *DL v A Local Authority*¹⁰⁹ the court confirmed the existence of this jurisdiction which can be used for those who have mental capacity but are restricted in their ability to make decisions for themselves because, for example, they are living in an oppressive relationship.¹¹⁰ Under the inherent jurisdiction orders can be made which will promote the best interests of the vulnerable adult.

7 Succession and intestacy

Learning objective 4

Summarise the broad issues around succession and intestacy

We will now consider what happens to people's property on their death. What is particularly revealing is the law's acknowledgement that family members may have legally enforceable claims on the estate, even if there is no will. Before considering the law, the theoretical issues will be discussed.

¹⁰⁶ See Herring (2008b and 2013a) for a detailed discussion.

¹⁰⁷ [2014] UKSC 19.

¹⁰⁸ See Herring (2009g).

¹⁰⁹ [2012] EWCA 253.

¹¹⁰ The case is discussed in detail in Chapter 6.

A Theory

It is important to distinguish between two situations: first, where the deceased has left a will; and, secondly, where the deceased has not left a will or has left a will that does not deal with all of the deceased's property. These two scenarios give rise to quite different problems.

(i) Where there is a will

Where someone leaves a will it might be thought that the issue is straightforward. Our society accepts that people should be free to dispose of their property in whatever ways they wish, however foolish others may think them to be. If during their lives people wish to spend all of their hard-earned money on gambling or purchasing law texts, they may, and unless they are mentally incompetent there is no way of stopping them. If this is true in life, should it not also be true in death? Not necessarily, because on divorce the law feels entitled to redistribute a spouse's property to achieve a fair result. If the law is willing to do this when a relationship is ended by divorce, should it not also be able to do so if the relationship is ended by death?

As we shall see, the law's response to these arguments is to seek a middle course. A person is permitted to make a will directing what should happen to his or her property on death, but if anyone feels that the will has not provided for them adequately then they are allowed to apply to the court for an order that they receive a payment out of the estate under the Inheritance (Provision for Family and Dependents) Act 1975. What is interesting is that the class of potential claimants is not restricted to spouses. Other relatives may claim that the deceased has not adequately provided for them in the will. The intervention of the law could be based on two grounds. First, it could be argued that even though the deceased had made a will, he or she could not really have intended not to provide for the claimant and the law is intervening to ensure that the will truly reflects the wishes of the deceased. Alternatively, the law could be explained as being a recognition that legal claims can be made on the deceased's income. Neither of these arguments is satisfactory. With the first there is the difficulty that an award can be made under the Act even if the evidence is clear that the deceased did not want the claimant to receive any of his or her money. The problem with the second is that, while a person is alive, the law does not recognise a liability to provide for other relatives apart from spouses.¹¹¹ There does not seem to be a strong reason to explain why these obligations suddenly spring into existence on the death of a person. It may be argued that, while alive, a person has the right to govern what happens to their property and this trumps the claims of other family members; however, once deceased, a person has no rights and so the law can give effect to the claims of other family members.

(ii) Where there is no will: intestacy

There are different issues where the deceased has left no will. Here there are two main possible approaches: the law could attempt to ascertain what the wishes of the deceased were, considering all the evidence available; or the law could decide objectively what would be a fair and just distribution of the property. The two approaches could be intermingled: we might presume that a deceased's intention would be a fair and just settlement, but there may be occasions when there is evidence that the deceased did not wish a fair distribution to be made.

¹¹¹ Unless a legally binding contract has been entered into.

In a way, the law on intestacy is easier to defend than the law where there is a will. The law makes it clear that if an individual does not make a will then the law will decide how the property will be distributed. If the deceased decides not to make a will, he or she can make no objection (were they able to!) about the distribution of the property. Given the difficulties and litigation that would inevitably surround a law based on attempting to ascertain the deceased's wishes, the law has developed a set formula which operates in cases of intestacy. It has been estimated that about 40 per cent of people aged over 60 have not made a will¹¹² and so it is important that the formula is predictable and discourages litigation. However, because a formula is not appropriate in every case, English and Welsh law has established a procedure by which an application can be made to the court if the result of the statutory rules would produce injustice.

B The law in cases where there is a will

The starting point is that the will is enacted and property is distributed according to it. There are, of course, ways to challenge a will.¹¹³ It can be argued that a will does not comply with the formalities in the Wills Act 1837,¹¹⁴ or that the will was made by the deceased while of unsound mind or as a result of undue influence¹¹⁵ or that the will has been revoked.¹¹⁶ The detail of the law cannot be covered here,¹¹⁷ but if the will is invalid for any of these reasons then the estate will be dealt with using the rules of intestacy. There may also be arguments that a particular piece of property does not belong (or does not wholly belong) to the deceased. For example, it may be argued that the house, although being in the name of the deceased, was in fact held on trust for the deceased and his wife under a constructive trust or proprietary estoppel.¹¹⁸ In such a case, if the deceased purported in his will to give the house to his daughter, he would only be able to give her his share of the house.

If someone feels that they have not been adequately provided for under the will, they may be able to make a claim under the Inheritance (Provision for Family and Dependents) Act 1975, which will be discussed shortly.

C Intestacy

The rules that operate on intestacy apply where the deceased has not made a will or has made a will that does not dispose of his or her entire estate.¹¹⁹ The rules are rather complex and depend on whether the deceased has a surviving spouse or any surviving issue (that is, children of the deceased, including adopted children and children born outside marriage).

¹¹² Law Commission Report 187 (1989).

¹¹³ See *Marley v Rawlings* [2014] UKSC 2 on interpretation of wills.

¹¹⁴ *Marley v Rawlings* [2014] UKSC 2.

¹¹⁵ See Kerridge (2000) for concerns that the law may fail adequately to protect vulnerable testators.

¹¹⁶ E.g. divorce will revoke a will.

¹¹⁷ An excellent summary can be found in *Cattermole v Prisk* [2006] Fam Law 98.

¹¹⁸ See Chapter 5.

¹¹⁹ See Law Commission Consul Report 331 (2009) for proposals for reform of the law which would increase rights of cohabitants.

(i) If there is a surviving spouse and children or grandchildren

If there is a surviving spouse¹²⁰ and issue, the surviving spouse is entitled to all of the personal chattels,¹²¹ and £125,000 (known as the statutory legacy), if there is that much in the deceased's estate. If there is still money or property left in the estate after these transfers are made, the spouse has a life interest in half the remainder. The balance of the estate (subject to the spouse's life interest) is held on statutory trust for the children. This will mean that the children will be entitled to maintenance until they are 18 and then they will be entitled to the capital.¹²²

(ii) If there is a surviving spouse, no issue, but close relatives

If there is a surviving spouse and no children, but there are surviving parents, brothers or sisters,¹²³ the spouse is entitled to the personal chattels absolutely, £200,000 statutory legacy and half of the balance absolutely (rather than just a life interest). The parents, or if no parents then brothers or sisters (or their issue)¹²⁴, are entitled to the other half of the remainder.

(iii) If there is a surviving spouse, but no issue or close relatives

If there is a surviving spouse but no parents or brothers or sisters or issue of brothers and sisters, the spouse will take the intestate's estate absolutely.

(iv) If there is no surviving spouse

If there is no spouse, then there is a list of relatives who may be entitled to the estate in the following order. Whichever relatives are highest up the list will take the estate absolutely and those lower down the list will take nothing:

1. children of the deceased or grandchildren;
2. parents of the deceased;
3. brothers or sisters of the whole blood, or their issue;
4. brothers or sisters of the half blood, or their issue;
5. grandparents of the deceased;
6. aunts or uncles of the deceased, or their issue.

If there is more than one relative in a category, they will share the estate equally. If there is no one related to the deceased in this list, the estate will go to the Crown, *bona vacantia*. It is open to the Crown to give as a matter of grace some of the property to friends or others who fall outside the terms of the intestacy rules.¹²⁵ This power is most likely to be used in the

¹²⁰ It is necessary for the spouse to have survived the deceased by 28 days if he or she is to be seen as a surviving spouse: Administration of Estates Act 1925, s 46. See *Official Solicitor to the Senior Courts v Yemoh and Others* [2010] EWHC 3727 (Ch) for a discussion of how to deal with cases where the deceased had entered polygamous marriages.

¹²¹ In basic terms the furniture and personal objects of the parties. The term is defined in the Administration of Estates Act 1925, s 55(1)(x).

¹²² The Law Commission Report 187 (1989) found that the majority of people thought the surviving spouse should receive everything on the death of a spouse.

¹²³ They must be of the whole blood.

¹²⁴ 'Issue' here means the children of the brother and sister. They will take their parent's share if the parent has died.

¹²⁵ See Williams, Potter and Douglas (2008) for evidence of support among the public for increased provision in the intestacy rules for cohabitants.

case of cohabitants. Any person who is unhappy about the operation of the intestacy rules can apply to the court under the Inheritance (Provision for Family and Dependents) Act 1975.

As has been noted, a spouse is entitled to the personal chattels of the deceased: for example, the television, the bed, any pets, etc. This seems only sensible and is largely uncontroversial. In addition, the spouse is given absolutely a lump sum which he or she may use to purchase somewhere to live,¹²⁶ and a life interest in the rest of the estate which will provide him or her with an income. The rules do not mean that the spouse will automatically be able to live in the house. This may seem harsh but it is mitigated by two rules. The first is that if the family home is in the joint names of the deceased and the spouse then, on the deceased's death, under the rules of land law, the house will belong to the spouse absolutely and will not normally be regarded as part of the deceased's estate. So the spouse would have the house as well as the statutory legacy, and so should be well provided for. Secondly, even if the house is not in joint names then there are rules permitting the spouse to use his or her statutory legacy to purchase the house from the estate. Nevertheless, if the house is in the sole name of the deceased and is worth more than the statutory legacy, then the house may have to be sold. This has led some to argue that the spouse should be entitled to the entire estate of the deceased.¹²⁷ However, others argue that the present law is too generous to spouses. The circumstances in which it might appear too generous are where the deceased had remarried and the second spouse acquires the estate under the intestacy rules. The children of the deceased, especially if they do not get on well with their step-parent, may fear that the estate will ultimately be diverted to the step-parent's 'family' rather than the deceased's family. Another very important point about the intestacy rules is that they do not provide for unmarried cohabiting partners, nor good friends. The focus is very much on blood relations and spouses, not social relations. This is in contrast to other parts of the law¹²⁸ where social relationships are emphasised.

D The Inheritance (Provision for Family and Dependents) Act 1975

Where relatives or dependants feel that an inadequate sum has been left to them as a result of the deceased's will or the rules on intestacy, an application can be made to the court for an order. The burden of persuading the court to make the order rests on the applicant. There are no rights to property under the Act; the legislation simply gives the court a discretion to decide the appropriate amount, if any, to be paid to a claimant. The court is entitled to provide for someone who is not mentioned in the will or would not be entitled to money on intestacy. An individual can claim under the Act even if the deceased had made it quite plain that he or she did not wish the individual to receive any money on their death. The policy of the Act has been to ensure that a person who has become dependent upon the deceased does not suffer an injustice on the deceased's death.¹²⁹

¹²⁶ The spouse is entitled to take the matrimonial home in lieu of his or her lump sum.

¹²⁷ Law Commission Report 187 (1989).

¹²⁸ See Chapter 8, for example.

¹²⁹ *Jelley v Iliffe* [1981] Fam 128 CA.

(i) Who can apply?

The following can apply under the Act:

1. The spouse or civil partner of the deceased.¹³⁰
2. The former spouse or civil partner of the deceased, providing the applicant has not remarried or entered another civil partnership.¹³¹
3. A person who ‘... during the whole of the period of two years ending immediately before the date when the deceased died. . . was living – (a) in the same household as the deceased, and (b) as the husband or wife [or civil partner] of the deceased’.¹³²

This category would include many cohabiting couples.¹³³ The test to be applied is whether a reasonable person with normal powers of perception would say the couple was living together as husband and wife.¹³⁴ In using this test the reasonable person should be aware of the multifarious nature of marriages.¹³⁵ Therefore, in *Re Watson*¹³⁶ a couple in their fifties who started living together companionably without engaging in sexual relations could be said to be living as husband and wife. Indeed, Neuberger J noted that many married couples in their mid-fifties do not have sexual relations. In *Baynes v Hedger*¹³⁷ it was held that living as the deceased’s civil partner or spouse required that the relationship was publicly acknowledged. A clandestine same-sex relationship could not be categorised as living as civil partners.¹³⁸ In *Lindop v Agus, Bass and Hedley*¹³⁹ the couple lived together, had a sexual relationship, shared finances and on occasions cared for children together. It was held that the woman could claim under the Act, even though she had retained a separate address for many formal purposes. In *Kaur v Dhaliwal*¹⁴⁰ the couple were treated as cohabitants when they had lived together, then separated, but regularly met up, including overnight visits. The requirement that the cohabitation last until ‘immediately’ before the death has to be interpreted sensibly. In *Re Watson*¹⁴¹ the deceased spent the last few weeks of his life in hospital and that did not prevent the section applying. In *Gully v Dix*¹⁴² the claimant and deceased had cohabited for over 25 years, but she left the house three months before his death, saying she would return when he stopped drinking. The Court of Appeal took the view that in light of the length of the relationship she was still living in the same household as the deceased, even if she had temporarily moved out. There had not been an irretrievable breakdown in relations. In *Churchill v Roach*¹⁴³ Judge Norris QC said that to

¹³⁰ Inheritance (Provision for Family and Dependants) Act 1975 (hereafter I(PFD)A 1975), s 1(1)(a). This includes people who in good faith entered a void marriage with the deceased: I(PFD)A 1975, s 25(4), but does not include former spouses.

¹³¹ I(PFD)A 1975, s 1(1)(b).

¹³² I(PFD)A 1975, s 1A. This category of claimants is available only if the deceased died on or after 1 January 1996.

¹³³ See the reasoning in *Fitzpatrick v Sterling Housing Association Ltd* [2000] 1 FCR 21 HL. See Sloan (2011) for a helpful discussion.

¹³⁴ *Re Watson* [1999] 1 FLR 878.

¹³⁵ See Chapter 1 for a discussion of the factors a court is likely to take into account in deciding whether there was cohabitation.

¹³⁶ [1999] 1 FLR 878.

¹³⁷ [2008] 3 FCR 151.

¹³⁸ It may be argued that this fails to take into account the prejudice that can be shown towards open same-sex couples. See Monk (2011).

¹³⁹ [2010] 1 FLR 631.

¹⁴⁰ [2014] EWHC 1991 (Ch).

¹⁴¹ [1999] 1 FLR 878.

¹⁴² [2004] 1 FCR 453.

¹⁴³ [2004] 3 FCR 744 at p. 761.

live in the same household it was necessary to have 'elements of permanence, to involve a consideration of the frequency and intimacy of contact, to contain an element of mutual support, to require some consideration of the degree of voluntary restraint upon personal freedom which each party undertakes, and to involve an element of community of resources'.

4. Any child of the deceased, including posthumous, adopted and grown-up children.¹⁴⁴ An adopted child cannot claim under this ground against their biological parents, but can claim against their adopted parents.¹⁴⁵
5. Any person 'treated by the deceased as a child of the family in relation to' a marriage or civil partnership.¹⁴⁶ This is similar to the concept 'child of the family' discussed earlier in the text (Chapter 7). It most commonly applies in relation to stepchildren.¹⁴⁷ It should be stressed that this category exists only in the context of a marriage or civil partnership. If the deceased cohabits with a woman and her child from a previous relationship, the child could not rely on this category.¹⁴⁸
6. Any other person 'who immediately before the death of the deceased was being maintained, either wholly or partly, by the deceased'.¹⁴⁹ The phrase 'maintained' in this definition is clarified in s 1(3):

a person shall be treated as being maintained by the deceased, either wholly or partly, as the case may be, if the deceased, otherwise than for full valuable consideration, was making a substantial contribution in money or money's worth towards the reasonable needs of that person.

This could include unmarried cohabitantes as well as two friends living together without a sexual relationship but with a degree of maintenance. A few points need to be stressed about fulfilling the definition of this category:

- (a) The maintenance must be substantial. In *Rees v Newbery and the Institute of Cancer Research*¹⁵⁰ the deceased had provided the applicant (an actor) with a flat in London at a low rent. There was no cohabitation nor sexual or emotional relationship between them, but it was found that the applicant had been maintained by the deceased, by providing the flat. It does not need to be shown that but for the financial assistance the claimant would have been in dire poverty.¹⁵¹
- (b) The contribution must be in 'money or money's worth'. There is some debate whether companionship and care could count as maintenance for 'money's worth'. As housework and nursing services and even 'companionship' can be bought, it is submitted that these can be regarded as being for money's worth.¹⁵²
- (c) It has to be shown that the maintenance was not paid for by valuable consideration.¹⁵³ This requirement has caused difficulties. Could it be said that, although a deceased

¹⁴⁴ I(PFD)A 1975, s 1(1)(c).

¹⁴⁵ *Re Collins* [1990] Fam 56.

¹⁴⁶ I(PFD)A 1975, s 1(1)(d).

¹⁴⁷ See *Re Leach* [1986] Ch 226 CA for an example of the potential breadth of the section.

¹⁴⁸ Although they may be able to rely on I(PFD)A 1975, s 1(1)(e).

¹⁴⁹ I(PFD)A 1975, s 1(1)(e).

¹⁵⁰ [1998] 1 FLR 1041.

¹⁵¹ *Churchill v Roach* [2004] 3 FCR 744.

¹⁵² This seems to have been accepted in *Jelley v Illiffe* [1981] Fam 128.

¹⁵³ This, in simple terms, requires that the contribution had not been paid for.

cohabitant provided the claimant with free accommodation, this was in return for care and companionship and so the applicant was 'paid for' by valuable consideration? Although at one time it was suggested that it was necessary to weigh up the financial value of the maintenance provided by the deceased against the benefits to the deceased provided by the claimant, the courts no longer take such an approach. The courts will readily accept that one cohabitant was being maintained by the other. In *Bouette v Rose*¹⁵⁴ the Court of Appeal accepted that a mother was maintained by her disabled child. The child had been awarded a substantial sum of money as a result of her disability. The court took a practical approach and explained that the fund was used to support the lifestyle of both the mother and the child, and so the child was effectively maintaining the mother.

- (d) The deceased must have been maintaining the claimant immediately before the death of the deceased. As *Re Watson*¹⁵⁵ makes clear, the fact that the deceased's last few weeks were spent in a hospital or a nursing home will not prevent the applicant's claim being accepted. However, if a couple clearly separate shortly before the death, a claim cannot be made. This is controversial: although the separation may indicate that the deceased would not have wanted to leave a former cohabitant any property, it does not necessarily mean that it would not be fair to make such an award.

(ii) What is reasonable financial provision?

The key question in deciding an order is whether reasonable financial provision was made for the claimant in the will. Rather strangely, the concept of reasonable provision depends on the exact relationship between the deceased and the claimant. If the claimant is the spouse, the question is simply whether the *provision* is 'reasonable'. For other cases, the question is whether the *maintenance* is reasonable. The emphasis on maintenance is important. A non-spouse applicant who is 'comfortably off' may have difficulty in persuading the court that they need to be maintained.¹⁵⁶ A spouse who is well off will more easily be able to argue that the provision was not reasonable. This is because a spouse may be entitled to a share in his or her spouse's property because of the length of the marriage, even though he or she may not need to be maintained.¹⁵⁷ Reasonable provision is not necessarily restricted to the minimum necessary to survive,¹⁵⁸ but will not stretch to luxuries.¹⁵⁹ Under s 3, in considering a claim, the court should consider:

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- (a) the financial resources and financial needs which the applicant has or is likely to have in the foreseeable future;
- (b) the financial resources and financial needs which any other applicant for an order . . . has or is likely to have in the foreseeable future;

¹⁵⁴ [2000] 1 FLR 363.

¹⁵⁵ [1999] 1 FLR 878.

¹⁵⁶ *Re Jennings (Deceased)* [1994] Ch 256.

¹⁵⁷ I(PFD)A 1975, s 1(2).

¹⁵⁸ *Re Coventry* [1990] Fam 561.

¹⁵⁹ *Re Dennis* [1981] 2 All ER 140.

- (c) the financial resources and financial needs which any beneficiary of the estate of the deceased has or is likely to have in the foreseeable future;
- (d) any obligations and responsibilities which the deceased had towards any applicant for an order . . . or towards any beneficiary of the estate of the deceased;
- (e) the size and nature of the net estate of the deceased;
- (f) any physical or mental disability of any applicant for an order . . . or any beneficiary of the estate of the deceased;
- (g) any other matter, including the conduct of the applicant or any other person, which in the circumstances of the case the court may consider relevant.

These factors are largely self-explanatory. It should be noted that factors (b), (c), (d), (f) and (g) require the court to consider the position of all those who may be seeking money from the estate.¹⁶⁰ So, although a claimant may show a close relationship to the deceased and be in great need, his or her claim may fail if there are others interested in the estate who are of greater need. Although it is not stated explicitly, the wishes of the deceased can be taken into account.¹⁶¹ For example, in *Re Hancock (Deceased)*¹⁶² there was a dramatic increase in the value of the estate (from £100,000 to £650,000) and the Court of Appeal accepted evidence that, had the deceased been aware that his estate would increase to this level, he would have provided for the applicant. There are some additional considerations that apply for specific kinds of applicants:

(a) Spouses

For a surviving spouse reasonable financial provision means 'such financial provision as it would be reasonable in all the circumstances of the case for a husband or wife to receive, whether or not that provision is required for his or her maintenance'.¹⁶³ When considering the appropriate level for a spouse, the court will have regard to the age of the applicant; the duration of the marriage; the applicant's contribution to the welfare of the family of the deceased; and the provision the applicant may reasonably have expected to receive if the marriage had been terminated by divorce rather than by death.¹⁶⁴ Miller¹⁶⁵ has suggested that the court should separate two elements of provision for spouses: first, the spouse's share of the 'family property', and, secondly, the proportion of the estate which would be necessary to provide the spouse with sufficient support.

This emphasis on the amount that might have been awarded on divorce reflects the argument that a spouse whose marriage is ended by death should not be worse off than if the marriage had been ended by divorce. However, death and divorce are distinguishable. On divorce, the crucial question is how to divide up the property fairly between the two parties. On death, there is no division required except between the spouse and the other relatives. It could be argued, therefore, that on death a spouse might expect a greater share than on

¹⁶⁰ *Cattle v Evans* [2011] EWHC 945 (Ch).

¹⁶¹ According to I(PFD)A 1975, s 21, a statement of the deceased is admissible evidence.

¹⁶² [1998] 2 FLR 346.

¹⁶³ I(PFD)A 1975, s 1(2)(a).

¹⁶⁴ I(PFD)A 1975, s 3(2).

¹⁶⁵ Miller (1997).

divorce.¹⁶⁶ In *Lilleyman v Lilleyman*¹⁶⁷ it was held that amount that would be awarded on divorce was neither a floor nor a ceiling, but rather a factor to be taken into account. There has been some dispute in the case law whether the divorce analogy should be seen as just one factor, or the guiding criterion. *Re Krubert*¹⁶⁸ preferred the view that the divorce analogy was only one factor to be taken into account. Applying this in *Fielden v Cunliffe*¹⁶⁹ the Court of Appeal suggested that the reasoning in *White v White*¹⁷⁰ could be used, with its yardstick of equality guideline, but only with caution.¹⁷¹ This seems correct. First, as a matter of statutory interpretation – the divorce analogy relates to only one of several factors which should be taken into account. Secondly, as has already been mentioned, the two scenarios – death and divorce – are quite different.¹⁷² The Court of Appeal in *Fielden* indicated that the obligation to make reasonable provision is not the same as the goal of fairness emphasised in ancillary relief cases. In *P v G*¹⁷³ it was held that where a wealthy husband died after a lengthy marriage the wife might be entitled to more than the half share that a *White v White* approach might indicate in a divorce. This was because, unlike a divorce case, there was only the one spouse's needs and contributions to take into account; although Black J added that the court still needed to give due weight to the importance of testamentary freedom.

(b) Former spouses

A former spouse can only claim under the Act if he or she has not remarried.¹⁷⁴ It is rare for former spouses to claim under the Act because it is common on divorce for a court to order that an applicant cannot make a claim under the Act if the ex-spouse subsequently dies. If such an order is in place, an application cannot be made, whether or not the ex-spouse has remarried. Even if an ex-spouse is not prevented from bringing an application, the court may well take the view that it is reasonable provision for the deceased to leave a former spouse nothing in the will.¹⁷⁵

(c) Child of the deceased

The court should have regard to the manner in which the child was being, or in which he or she might expect to be, educated or trained.¹⁷⁶ So if the intention was that the child be privately educated, money from the estate could be claimed to provide such education.

(d) Adult children

The courts are generally reluctant to allow adult children who have sufficient earning capacity to succeed in making a claim against their parents' estate.¹⁷⁷ The difficulty facing an employed adult child claimant is in showing that an award would be reasonable for his or her maintenance. The courts have usually required that an adult child establish a 'moral obligation' or some other special circumstances if the claim is to succeed. Examples of a moral obligation or

¹⁶⁶ See, e.g., *Fielden v Cunliffe* [2005] 3 FCR 593 at p. 603, where it was said that the shortness of the marriage was a less critical factor in applications under the Act than in cases of divorce.

¹⁶⁷ [2012] EWHC 821 (Ch).

¹⁶⁸ [1997] Ch 97.

¹⁶⁹ [2005] 3 FCR 593. See Maguire and Frankland (2006) for a useful discussion.

¹⁷⁰ [2001] 1 AC 596.

¹⁷¹ See also *Baker v Baker* [2008] EWHC 977 (Ch).

¹⁷² Miller (1997).

¹⁷³ [2006] Fam Law 179.

¹⁷⁴ I(PFD)A 1975, s 1(1)(b).

¹⁷⁵ E.g. *Cameron v Treasury Solicitor* [1996] 2 FLR 716 CA; *Barrass v Harding* [2001] 1 FCR 297.

¹⁷⁶ I(PFD)A 1975, s 3(3).

¹⁷⁷ *Ilott v Mitson and Others* [2011] EWCA Civ 346.

special circumstances include a son who had worked on the family farm in the expectation that he would inherit it;¹⁷⁸ and an applicant whose father was left money by the applicant's mother on the understanding that he would leave the money in his will to the applicant but did not.¹⁷⁹ In *Re Hancock (Deceased)*¹⁸⁰ the Court of Appeal stressed that it would be wrong to say that an adult child can never succeed in an application unless there is a moral obligation or other special circumstances, but without those the application would be unlikely to succeed, especially if the applicant is in paid employment. In *Espinosa v Bourke*¹⁸¹ the daughter had for a while cared for her father, but somewhat abandoned him when she ran off to Spain to live with a Spanish fisherman. Despite this being what some would regard as reprehensible conduct, she was entitled to an award based on her need, her doubtful earning capacity, and having no formal employment. Similarly, in *H v J's Personal Representatives, Blue Cross, RSPB and RSPCA*¹⁸² a daughter failed in her claim against the estate of her mother who left her nothing after she had married a man the mother disapproved of. The court held that while many would not agree with the mother's actions she was entitled to leave her money to animal charities if she wished. Similarly, in *Garland v Morris*¹⁸³ it was found to be reasonable for the deceased to make no provision given his daughter had not spoken to him for several years. These decisions stress that moral obligation is but one factor to be taken into account. It is generally thought that the following case has indicated a more generous approach will be taken in the future to adult children claimants.

CASE: *Ilott v Mitson* [2015] EWCA Civ 797

The mother and daughter had been estranged for 26 years, after the daughter left home at the age of 17. The mother disapproved of the daughter's lifestyle. On her death the mother left the daughter nothing and left her estate of around £500,000 to charities. The daughter claimed under the Inheritance (Provision for Family and Dependants) Act 1975.

The Court of Appeal noted that there was no bar to an adult child claiming that she did not expect to receive a legacy. The question was whether there was an obligation, not whether or not there was an expectation. The Court also noted that the fact of the estrangement did not bar a claim, especially as the blame for the estrangement was not easily apportioned. Arden LJ emphasised that awards were to be limited to maintenance, explaining that Parliament had 'entrusted the courts with the power to ensure, in the case of even an adult child, that reasonable financial provision is made for maintenance only'. The daughter in that case was living at a 'basic level', essentially on benefits. She was awarded £143,000 to enable her to purchase alternative housing and £20,000 to provide a 'very small additional income'. The court noted that a larger award might impact on the level of benefits she received. This amounted to around a third of the estate. Notably the Court took into account that the will had given the estate to charities and for them any money from the estate would be a 'windfall'. It was not necessarily unfair for them to make an award to the daughter.

¹⁷⁸ *Re Pearce (Deceased)* [1998] 2 FLR 705.

¹⁷⁹ *Re Goodchild* [1996] 1 WLR 694.

¹⁸⁰ [1998] 2 FLR 346.

¹⁸¹ [1999] 1 FLR 747.

¹⁸² [2010] 1 FLR 1613.

¹⁸³ [2007] EWHC 2 (Ch).

(e) *Child of the deceased's family*

When the court is considering a child who was not biologically the deceased's, but whom he or she treated as a child of the family, the court should consider whether the deceased had assumed responsibility for the child and whether, in assuming responsibility, the deceased knew that the applicant was not his or her own child. The liability of any other person to maintain the applicant should also be taken into account.

(f) *Dependants*

In addition to the general factors, the court will consider 'the extent to which and the basis upon which the deceased assumed responsibility for the maintenance of the applicant, and . . . the length of time for which the deceased discharged that responsibility'.¹⁸⁴ Megarry V-C stressed that the deceased must have assumed responsibility for the applicant: that maintenance on its own would not be enough, if the deceased had not undertaken responsibility.¹⁸⁵ The Court of Appeal, however, has suggested that it is willing to infer assumption of responsibility from maintenance.¹⁸⁶ In determining the amount awarded to such claimants the court can take into account the lifestyle they enjoyed while being maintained by the deceased.¹⁸⁷

(g) *Cohabitants*

If the claimant relies on s 1A the following special factors apply:

- (a) the age of the applicant and the length of the period [of cohabitation] . . . ;
- (b) the contribution made by the applicant to the welfare of the family of the deceased, including any contribution made by looking after the home or caring for the family.

However, a cohabitant cannot normally expect an award at a level which would enable him or her to retain the same standard of living as the couple had enjoyed together, even if it had been a lengthy relationship.¹⁸⁸ Nevertheless, the previous lifestyle was a factor to consider, as was the length of the relationships, whether there were any children and the needs of other claimants. In *Webster v Webster*¹⁸⁹ a woman who had cohabited with the deceased for 28 years and had two children with him was awarded the bulk of the estate. In *Re Watson*¹⁹⁰ the needs of the frail applicant were particularly significant.¹⁹¹

8 Elder abuse

A Defining elder abuse

Learning objective 5

Describe how the law responds to elder abuse

The Law Commission has defined abuse in this context as the:

ill-treatment of that person (including sexual abuse and forms of ill-treatment that are not physical), the impairment of, or an avoidable deterioration in, the physical or mental health of that person or the impairment of his physical, intellectual, emotional, social or behavioural development.¹⁹²

¹⁸⁴ I(PFD)A 1975, s 3(4).

¹⁸⁵ *Re Beaumont* [1980] Ch 444.

¹⁸⁶ *Jelley v Iliffe* [1981] Fam 128; *Bouette v Rose* [2000] 1 FLR 363, [2000] 1 FCR 385.

¹⁸⁷ *Negus v Bahouse* [2008] 1 FCR 768.

¹⁸⁸ *Graham v Murphy* [1997] 1 FLR 860.

¹⁸⁹ [2009] 1 FLR 1240.

¹⁹⁰ [1999] 1 FLR 878.

¹⁹¹ *Musa v Holliday* [2012] EWCA Civ 1268.

¹⁹² Law Commission Report 231 (1995: 9.8).

Notably, this definition includes abuse by omission (not providing the appropriate level of care) as well as abuse by act. It also makes it clear that abuse includes acts that were not intended to harm the dependent person. The most recent government publications have emphasised that elder abuse should be regarded as part of a wider problem of abuse of vulnerable people.¹⁹³

Statistics on the level of abuse are hard to obtain, not least because much abuse goes unreported. We now have the benefit of a major recent study of elder abuse carried out for Comic Relief and the Department of Health.¹⁹⁴ It found that 2.6 per cent of people aged 66 or over who were living in their own private household reported mistreatment involving a family member, close friend or care worker in the past year. If the sample is an accurate reflection of the wider older population it would mean 227,000 people aged over 66 suffering mistreatment in a given year. The figures rise if the incidents involve neighbours or acquaintances to 4 per cent or 342,400 people.¹⁹⁵ Three-quarters of those interviewed said that the effect of mistreatment was either serious or very serious. The researchers believed these figures to be on the conservative side as they did not include care home residents in their survey and some of those most vulnerable to abuse lacked the capacity to take part. Also, even among those interviewed there may have been those who, for a variety of reasons, did not wish to disclose abuse.¹⁹⁶ A recent literature review looking at evidence of elder abuse around the world concluded that 6 per cent of older people had suffered significant abuse in the last month. A total of 5.6 per cent of older couples had experienced physical violence in their relationships and 25 per cent of older people had suffered significant psychological abuse.¹⁹⁷ Finding evidence on the levels of abuse in a residential setting is even harder. Professionals assert that, for example, 'the institutional abuse of older people is common'.¹⁹⁸ Although there is widespread anecdotal evidence to support this, there is little hard empirical evidence.¹⁹⁹

B The law

The criminal law applies as it does with any other group of people. There is no equivalent of ageist-aggravated criminal offences, as there are with racially aggravated ones. The law provides a number of routes whereby an older person can obtain protection from abuse. Some of these remedies are the same as those available to cohabitants or spouses.

1. Non-molestation orders and occupation orders are available under the Family Law Act 1996.²⁰⁰ To obtain a non-molestation order it is necessary to show that the older person is associated with the abuser. This can readily be established if the abuser is a relative. However, an older person who is living in a residential home will normally not be associated with a care assistant at the home.
2. Under the Mental Capacity Act 2005 the court can make orders based on what is in the best interests of a person lacking capacity. There have been cases where the court has restricted contact between such a person and others due to concerns that they pose a risk

¹⁹³ Department of Health (2002f).

¹⁹⁴ O'Keeffe *et al.* (2008). See also Mowlam *et al.* (2008) and Cooper *et al.* (2008).

¹⁹⁵ O'Keeffe *et al.* (2008), 4.

¹⁹⁶ O'Keeffe *et al.* (2008), para 7.4

¹⁹⁷ Cooper *et al.* (2008).

¹⁹⁸ Garner and Evans (2002).

¹⁹⁹ Hussein *et al.* (2005).

²⁰⁰ Discussed in detail in Chapter 7.

to them.²⁰¹ It is even possible to use the Act to remove the individual from an abusive house.²⁰² The Act can only be relied upon if the person has lost capacity. If they retain capacity, but are classified as vulnerable adults because they are unable to protect themselves, then orders under the inherent jurisdiction may be used (*DL v A Local Authority*).²⁰³

3. Older people are protected from abuse by the criminal law. However, this depends on the police being made aware of the abuse, which, given the private nature of abuse and the reluctance or inability of the older person to report the abuse, may mean that it is rare for the criminal law to be invoked. The Mental Capacity Act 2005 created an offence of ill-treating or neglecting a person without capacity,²⁰⁴ but otherwise it will be rare that a failure to obtain care will amount to an offence.²⁰⁵
4. There is a limited power in s 47 of the National Assistance Act 1948 to remove a person from care in a domestic setting. The application is on seven days' notice by a local authority to a magistrates' court. The main ground for such an application is that the person is living in unsanitary conditions and not receiving proper care and attention from other persons. The order initially lasts for three days. An emergency order can be applied for *ex parte* under the National Assistance (Amendment) Act 1951 for a maximum of three weeks. These powers are rarely used. This is in part because of the stigma that attaches to the phrase 'unsanitary conditions'.

The contrast with the protection available for children who are being abused is notable. In particular, there is no duty on a local authority to investigate a suspected case of abuse, as there is for children under s 47 of the Children Act 1989. Also, there is no equivalent to a child being taken into care. Some commentators have argued that local authorities need to be given a similar set of powers and duties to protect vulnerable adults, as they are to protect children.²⁰⁶

The Law Commission²⁰⁷ has called for a law which puts a duty on social services authorities to make enquiries where there is reason to believe a vulnerable adult in their area is suffering or is likely to suffer significant harm; a power to gain access to premises where it is believed a person at risk is living; the power to arrange a medical examination; the power to arrange the removal of the vulnerable person from the home; and the power to apply for temporary and long-term protection orders.²⁰⁸ Currently none of these is available.

C Issues concerning elder abuse

The question of the abuse of older people gives rise to some complex issues, which might explain why the law has struggled to find an effective response. The following are some of the difficulties:

1. *Autonomy*. Normally, in a liberal democracy the state is not willing to remove adults from their homes, or to prevent them from seeing someone simply on the basis that it would

²⁰¹ *Re MM (An Adult)* [2009] 1 FLR 487.

²⁰² *G v E* [2010] EWCA Civ 822; *Re SK* [2008] EWHC 636 (Fam).

²⁰³ [2012] EWCA 253.

²⁰⁴ Mental Capacity Act 2005, s 44.

²⁰⁵ Herring (2010a).

²⁰⁶ E.g. Herring (2012g), who argues that human rights considerations require this.

²⁰⁷ Law Commission Report 326 (2011).

²⁰⁸ See also Action on Elder Abuse, *Consultation Paper on the Potential for Adult Protection Legislation in England, Wales and Northern Ireland* (Action on Elder Abuse, 2008).

not be good for them. We have seen when considering family violence that the law seeks to respect the autonomy of the victim, although there is a tension with other values that the law may seek to uphold. An example of the problem is that an older person may prefer to be cared for by a relative who is abusive, rather than being placed in a residential home. Should the state deprive the older person of that choice? One answer may be that it depends on whether the older person is competent to make that decision or not. However, there are real difficulties in deciding the level of competence of an older person, especially as the level of understanding may vary considerably from day to day. In any event, can we be sure that residential care is better for an older person than personal care by a loved one who is occasionally abusive? But does this last question reveal an attitude that would be regarded as unacceptable if we were talking about the care of a child?

2. *Definitions of self-neglect.* What might appear to be self-neglect to one person may be eccentricity to another. An older person who insists on sleeping all day and being awake at night might be exhibiting signs of self-neglect or neglect by carers, or might be eccentric. If older people are exhibiting eccentric behaviour, does this justify state intervention to protect them from themselves, or is this an unwarranted intrusion into the autonomy of older people?
3. *Problems in defining violence and neglect.* A carer who is rough in handling an older person or is irritable might be said to be abusive to the older person. But others might regard ill-temper as an inevitable part of the stresses involved in giving personal care.²⁰⁹
4. *Proof.* As always with issues of abuse, there are great problems in proving the abuse. One solution would be regular visits of social workers to older people who are perceived to be vulnerable. However, there is a widespread feeling among older people that visits of social workers are an infringement of privacy.
5. *Remedies.* If the abuse is taking place in the older person's home, there is the difficult question of remedy. Placing the older person in a residential home against his or her wishes could itself be seen as a form of abuse. Another issue is that, even if the carer has physically abused the older person, this may be due in part to the lack of provision of adequate resources by the social services.
6. *Relationship of care-giver and care-receiver.* The relationship between the care-giver and care-receiver can be a complex one. The exhaustion and desperation that care-givers might feel could even be regarded as a form of abuse itself. Indeed, many cases of elder abuse are simply deeply sad stories that do not necessarily lead to blame of the kind that we place on the child abuser. Landau and Osmo²¹⁰ have pointed out that sometimes it is not clear who should be regarded as the social worker's client: the abused older person or the desperate carer.

9 Conclusion

The position of elderly people and their relatives is of increasing importance in family law. One key issue is the extent to which adult children should be required to provide financial support for elderly parents. Although there is widespread acceptance that there is a moral obligation owed by adult children to their parents, there are complex issues in the debate

²⁰⁹ Although see Herring (2011e), which questions whether carers' stress explains elder abuse.

²¹⁰ Landau and Osmo (2003).

whether the obligation should become a legal one. The law on succession indicates that, at least once a person is dead, the law will give legal effect to moral obligations between a variety of relationships, including those between adult children and their parents. This chapter has also considered an issue which will become of increasing importance – inter-generational justice: how should society distribute its resources between the younger and older sections of society? The concluding discussion looked at the topic of abuse of older people and the complex issues that arise in protecting the rights, interests and dignity of the older person.

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